BUSINESS

Second Shetland Truck System Report

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Second Shetland Truck System Report

by William Guthrie

NOTES 1.

Truck - The payment of wages otherwise than in money, the system or practice of such a payment. References/Edinburgh enquiry/book/archives/size of original doc. OED.

The Truck Commission Enquiry, 1872, is a major social history source the Shetland Islands in the 19th century. It followed on from an existing Truck Commission enquiry in 1871, after evidence from Shetland was heard in Edinburgh. 45,125 questions covered the rest of the country, 17,070 for Shetland. Despite this effort, little effect immediately resulted in Shetland from legislation following on the national enquiry.

References George W. Hilton, The Truck System, including a History of the British Truck Acts, 1465-1960, W. Heffer and Sons, Ltd., Cambridge, 1960.

Hance D. Smith, Introduction (to facsimile reprint of the Report of the Commissioners appointed to enquire into the Truck System (Shetland), Sandwick, 1978.

Hance D. Smith, Shetland Life and Trade, 1550-1914, John Donald Publishers Ltd., Edinburgh, 1984, ISBN 0859761037.

For further queries, contact Shetland.archives@sic.shetland.gov.uk.

NOTES 2.

The original documents come in a double column, small print format. Since it isn't possible, or even desirable to reproduce that here, some alterations have been made. Page numbers are indicated within square brackets - [Page x]. Tables, which were in even smaller print, have also been altered somewhat where necessary. In particular, Table I-IV in the Report section have been split up for ease of use, and put after, rather than in the middle of the section referring to them. The use of italics has been indicated by means of the following <italics>.

The most obvious typographical errors have been removed, but otherwise the text is untouched. However, the spelling of place names and personal names has altered a bit over the years, and the items below cover most of the obvious problems, as well as some misapprehensions and errors.

Blanch- now Blance.

ca'in/caain whales- alternative spellings of the same word - for Pilot Whale, usually.

Clunas- now usually Cluness.

Colafirth- now Collafirth.

Coningsburgh- now Cunningsburgh.

Cumlywick- now Cumlewick.

Cunningster- now Cunnister.

Dalzell- alternatively Dalziel, Dalyell, Deyell, and even Yell.

Dunrosness- now Dunrossness.

Edmonston/Edmonstone- now Edmondston.

Eskerness- probably Eshaness.

Exter, Janet- a misapprehension - actual name unknown but possibly Janet Inkster.

Fetler- now Fetlar.

Fiedeland- now Fethaland.

Flaus/Flawes/Flaws- alternative spellings of the same name now usually Flaws.

Garrioch/Garriock/Garrick- can be alternative spellings of the same name.

ghive/geo/gio- gio - an inlet.

Goudie/Gaudie- now Goudie.

Hancliffe- probably Hangcliff.

Harra- now Herra.

Hildesha- now Hildasay, an island.

Hillyar/Hillyard- probably Heylor.

Humphray/Humphrey/Umphray- can be alternative spellings of the same name.

Jameson/Jamieson- now usually Jamieson.

Lasetter- now Lusetter.

Lebidden- now Leabitten.

Leisk/Leask- alternative spellings of the same name.

Lesslie/Leslie- alternative spellings of the same name.

Lingord- now Lingarth.

Luija- probably Linga, an island.

Malcolmson/Malcomson- now usually Malcolmson.

Manaster- prob. Mangaster.

Mavisgrind- now Mavis Grind.

Nicholson- now usually Nicolson.

North Mavine/Northmaven- now Northmavine.

Rennesta- probably Ringasta.

Roenessvoe- now Ronas Voe.

Satter- now Setter.

scatthold/scattales/scattholes- now scattald.

scaups/scaaps- alternative spellings of the same word, a bed of shellfish on the sea bottom.

Simbister- now Symbister.

Stenness- now Stennes.

Sullem/Sullam- now Sullom.

Thomason/Thomson/Thompson- alternative spellings of the same name.

Trosswick- now Troswick.

Urrafirth- now Urafirth.

Usiness- prob. Ustaness.

Vinsgarth- now Veensgarth.

Waterbru- now Waterbrough.

West Sandwick- now Westsandwick.

Angus Johnson, May, 2001.

[Page 1 rpt.] REPORT. _____

TO THE RIGHT HONOURABLE HENRY AUSTEN BRUCE, ONE OF HER MAJESTY'S PRINCIPAL SECRETARIES OF STATE.

SIR, THE Report on the Truck System, presented to Parliament in 1871, stated that the Commissioners, Messrs. Bowen and Sellar, had received information from four witnesses with regard to Shetland, 'tending to show that the existence of Truck in an oppressive form is general in the staple trades of the islands'. The Commissioners in their Report call attention to this evidence, and add: 'Time would not allow of a local inquiry at Shetland, nor can an inquiry be adequately conducted into the Truck which is alleged to prevail there otherwise than upon the spot. No opinion accordingly is offered either as to the extent of, or the remedy for, the alleged evils; but the necessity of some investigation by Her Majesty's Government into the condition of these islands seems made out.'

Having been appointed, by a warrant under your hand, dated Dec. 23, 1871, one of the Commissioners under the Truck Commission Act, 1870, in room of Mr. Bowen, I was directed to proceed to Shetland and institute an inquiry there under that Act. I inquired respecting the matters embraced under the instructions of the Act, and I have now to report as follows:-

I went to Shetland at the beginning of the year, a time when the seafaring people of the country are generally at their homes, and I at once began to take evidence with

regard to the system of barter or truck which prevails in various trades and industries in these islands. Evidence was taken respecting the hosiery or knitting trade, in which a very large proportion of the women of the country are engaged. Evidence was also taken with regard to the fishing trade, which in its different branches affords employment for part of the year to the whole of the male population, with few exceptions. With regard to the manner in which sales of farm stock and produce are transacted, rents are paid, and land is held in Shetland, information has also been obtained, without which it appeared to be impossible to form a correct idea of the condition of the people, and the way in which barter or truck presents itself as an inseparable element of their daily life and habits. A large amount of evidence was also pressed upon me with regard to the engagement of seamen at Lerwick for sealing and whaling voyages to Greenland and Davis Straits.

Sittings for the purpose of taking evidence were held at Lerwick, Brae (Delting), Hillswick (Northmaven), Mid Yell, Balta Sound (Unst), Boddam (Dunrossness), and Scalloway, in Shetland. I visited Kirkwall, in Orkney, for the purpose of examining certain witnesses now residing there with regard to the condition of Fair Island, which was inaccessible at the time of my journey. Sittings were also held in Edinburgh for the examination of a few witnesses residing there.

Public notice by printed bills was given of all meetings, and circulars were also sent to all clergymen, schoolmasters, and landed proprietors, and to all persons in the fishcuring and hosiery trades. Evidence was received from almost all who tendered it, from a large number of persons suggested or put forward by employers of labour and purchasers of hosiery goods and fish, and from many witnesses who were selected and cited.

GENERAL DESCRIPTION OF SHETLAND.

The Shetland Islands are upwards of a hundred in number, varying in size from the Mainland, which is about seventy miles in length and thirty at its greatest breadth, to small rocks not even affording pasturage to sheep. The outlines of all the islands, as shown on the accompanying map are very irregular, long bays or voes indenting them so deeply that no point is more than three miles from the sea. The country is hilly, but none of the [Page 2 rpt.] hills are very lofty. Twenty-eight of the islands are inhabited; some of the smaller islands containing only two, or in some cases only one family. The population in 1861 was 31,670, viz. 18,617 females, and 13,053 males. The population in 1871 was 31,605, viz. 18,525 females, and 13,080 males. The census is taken at a time of the year when many men who are sailors in the merchant service are absent from their homes, which they visit once a year or oftener. At the last census there were 6,494 families, 5,740 inhabited houses, 220 vacant houses, and 10 houses building.

The Agricultural Returns for Great Britain for 1871 state the number of occupiers of land in Shetland, from whom returns have been obtained, at 3992, occupying on an average thirteen acres each. The total acreage under all kinds of crops, bare, fallow, and grass, is given as 50,454 acres in 1870, and 50,720 in 1871, of which, in the

latter year, 11,626 acres were under corn crops, 3,493 under green crops (2,909 being potatoes), 522 under clover and grasses under rotation, and 33,227 permanent pasture, meadow, or grass not broken up in rotation, exclusive of heath or mountain land. The total number of horses returned to the Statistical Department, as on 25th June 1871, was 5,354; of cattle 21,735; of sheep, 86,834; and of pigs, 5,251.

SOCIAL STATE.

The 'toons,' or townships, in which the peasantry of Shetland live, are generally situated along the margins of the voes, or far-stretching inland bays which intersect the country; and although in some districts they extend into the valleys running into the interior, they are almost always within a short distance from the sea. It is natural, therefore, that the Shetlander should be a fisherman or a sailor; and for two centuries it appears that he has generally combined the occupations of farming and fishing. The following description of the rural polity of Shetland, taken from Dr. Arthur Edmonstone's View of the Ancient and Present State of the Zetland Islands (2 vols. 8vo, Edin. 1809), is for the most part applicable at the present day.

'The enclosed land in Zetland is divided into what are called merks and ures. A merk, it is said, should contain 1600 square fathoms, and an ure is the eighth part of a merk; but the merks are everywhere of unequal dimensions, and scarcely two are of the same size. The oldest rentals state the number of merks to be about 13,500, and those of the present time make them no more. A considerable portion, however, of common has been enclosed and cultivated since the appearance of the first rentals, although not included in them. When a part of the common is enclosed and farmed, the enclosure is called an outset; but the outsets are never included in the numeration of merks of rental land. From these circumstances it is very difficult to ascertain the actual quantity of cultivated ground in Zetland.

'The enclosures are made, generally, in the neighbourhood of the sea, and contain from 4 to 70 merks, which are frequently the property of different heritors, and are always subdivided among several tenants. Such place is called a town or a room, and each has a particular name.

'The uncultivated ground outside of the enclosure is called the scatthold, and is used for general pasture, and to furnish turf for firing. Every tenant may rear as many sheep, cattle, or horses, on the general scatthold attached to the town in which his farm lies as he can. There is no restriction on this head, whether he rent a large or a small farm. If there be no moss in the scatthold contiguous to his farm, the tenant must pay for the privilege to cut peat in some other common, and this payment is called <hogalif.> It seldom exceeds 3s. per annum.

'The kelp shores and the pasture islands are seldom or never let to the tenant along with the land; these the landholder retains in his own hands. In some parts of Zetland, particularly in the island of Unst, the proprietor furnishes the tenant, gratis, with a house, barn, and stable, which he also keeps in a state of repair. In other parts of the country this expense is divided between them, but the chief proportion of it always falls on the landholder.

'The quantity of land farmed by a tenant varies from 3 to 12 merks, and sometimes more; but the average number to each may be taken at 5. In a few instances regular leases are granted, and some of them for a great number of years; but these are comparatively rare. In the great majority of cases, nothing more takes place than a verbal agreement on the part of the tenant to occupy a farm under certain conditions, for one year only, at the expiration of which both he and the landholder consider themselves at perfect liberty to enter on a new engagement ....

'The rents are paid in cash and various articles of country produce, such as fish, butter, oil, etc.; and the amount of the rent varies, according as the tenant has the exclusive disposal of his labour or agrees to fish to his landholder. In the former case, the probable profits on the sale of fish and the other articles of produce are estimated, and the lands are let at their full value. In the latter case, or where the tenant fishes to the landholder, he comes under an agreement to deliver to him his fish, butter,* and oil, at a certain price, and then the lands are let at a considerably reduced rate. This system, where there is a reciprocity of profit between the landholder and the tenant, is by far the most general, and the practice is immemorial in Zetland.

'The merks are divided into different classes, such as <six-penny, nine-penny>, and <twelve-penny> merks. These are arbitrary numbers, employed to designate certain differences in the rents of the merks, according to their size and produce. Thus nine-penny merks should be more valuable than six-penny merks, and twelve-penny more so than nine-penny. But these distinctions, although rounded, no doubt, originally on real differences, are at present very inaccurate measures of the relative value of the different classes of merks; for sometimes happens that a six-penny merk is as large and productive as a twelve-penny one. . .

'The lands in the different towns generally lie, <pro indiviso>, intimately mingled together, which not only [Page 3 rpt.] creates frequent disputes, but prevents the more industrious tenants from making smaller enclosures...

'The ground is divided into what is called <outfield> and <infield>. The outfield is the land which has been last brought into a state of cultivation, and in most parts the soil is mossy. It is sown generally with oats. The infield, on the contrary, has been long in a state of culture, and it produces barley, called in Zetland bear, and potatoes. The outfield is seldom well drained, although it might be easily done without any additional trouble or expense. Thus, when cutting peat for fuel, which is often done within the dyke, instead of doing this in parallel lines, leaving a considerable space between them to become a future corn-field, the people cut in every direction, disfigure the ground, and very often form reservoirs for water to accumulate in. The outfield is allowed to remain fallow for one, and sometimes two years in succession, but the infield is generally turned over every year.'** [Vol. i p. 147 sqq.]

* This does not accurately describe the present mode of paying rents. The rent is always nominally a money rent, although it may be paid in account, as will afterwards be shown ** It would be out of place to make extensive quotations from this valuable work. But I refer to it as containing discussions the social state of Shetland, showing

that many of the questions involved in the present inquiry required an answer seventy years ago. See also Hibbert's <Description of the Shetland Islands> (Edin. 1822)

The enclosed lands were formerly runrig, <i.e.> held by the inhabitants of the township in scattered allotments, at different places within the dyke or enclosing wall,-the allotments being made, apparently, in such a manner as to give the tenants equal shares of the different qualities of land. In late years, however, much progress is said to have been made in dividing the farms and throwing the ground of each tenant into one lot. [J.S. Houston, 9654; W. Stewart, 8992; A. Sandison, 9993.]

DWELLINGS.

The following description of the Shetland hut or cottage is written by Dr. Arthur Mitchell, now one of the Commissioners of Lunacy for Scotland, a very accurate and careful observer (Appendix to the Second Report of the General Board of Commissioners in Lunacy for Scotland, 1860):-

'The Shetland cottage or hut is of the rudest description. It is usually built of undressed stone, with a cement of clay or turf. Over the rafters is laid a covering of pones, divots, or flaas,* and above this again a thatch of straw, bound down with ropes of heather, weighted at the ends with stones, as a protection against the high winds which are so prevalent. Chimneys and windows are rarely to be seen. One or more holes in the roof permit the escape of the smoke, and at the same time admit light. Open doors, the thatched roof, and loose joinings everywhere, insure a certain ventilation, without which the dwellings would often be more unhealthy than many in the lanes of our large cities. To this, there is no doubt, we must attribute the comparative absence of fever, the occasional presence of which, I think, is greatly due to that violation of the plainest law of nature, the box-bed. This evil is often intensified in Shetland by having the beds arranged in tiers one above the other, in ship fashion, with the apertures of access reduced to the smallest possible size.

'Drainage is wholly unattended to, and the dunghill is invariably found at the very door. As the house is entered, the visitor first comes upon that part allotted to the cattle, which in summer are out night and day, but in winter are chiefly within doors. Their dung is frequently allowed to accumulate about them; and I was told that this part of the house is sometimes used by the family in winter as a privy. Passing through the byre, the human habitation is reached. The separation between it and the part for the cattle is ingeniously effected by an arrangement of the furniture, the bed chiefly serving for this purpose. The floor is of clay, and the fire is nearly always in the middle of it ....

'In some respects, however, the Zetland dwellings stand a favourable comparison with those of the Western Islands. There is a bareness and desolation about the misery of a Harris house that is tenfold more depressing. It is a poor house and an empty one - a decaying, mouldy shell, without the pretence of a kernel. Whereas in Zetland there is usually a certain fulness. There are bulky sea-chests, with smaller ones on the top of them; chairs, with generally an effort at an easy one; a wooden bench, a table, beds, spades, fishing-rods, baskets, and a score of other little things,

which help, after all, to make it a domus. The very teapot, in Zetland always to be found at the fireside, speaks of home and woman, and reminds one of the sobriety of the people - that very important difference between them and the inhabitants of the Hebridean islands. I think the Zetlanders, too, are more intelligent, and more inclined to be industrious, and give greater evidence of the tendency to accumulate or provide.

'Instead of describing the house occupied by each patient, I have given this general account of the average Zetland dwelling, and then, in my individual reports, I have spoken of the special houses as of, above, or below the average.'

*Different terms signifying varieties of sod.

Since 1860, the dwellings of the people have undergone considerable improvement, especially in the more advanced districts, such as Unst; but the description given of them by Dr. Cowie,* the latest writer on Shetland and himself a Shetlander, and my own observation so far as it went, enables me to state that Dr. Mitchell's description of the average cottage of the fisherman-farmer is still substantially correct. Cottages to which the description exactly applies may be found within a mile of Lerwick. In Lerwick, the capital, the poorer dwellings are, to say the least, not better than those of the same class in other towns of its size. [D. Edmonstone, 10,683; Rev. W. Smith, 10,718; Dr. Cowie, 14,745.]

*<Shetland: Descriptive and Historica>l. By Robert Cowie, M.A., M.D., Aberdeen. 1871. See p. 91. Edmonstone's <View of the Zetland Islands>, vol. ii., p. 48. <New Statistical Account of the Shetland Islands>, p. 138. _____

THE LING FISHERY.

DIFFERENT KINDS OF FISHING.

It is necessary to distinguish the terms which are somewhat loosely used in speaking of the different kinds of fishing carried on in Shetland. The home or summer fishing, when that term is used in its widest sense, includes all the fishing for ling, cod, tusk, [Page 4 rpt.] and seath prosecuted in open boats, whether of six oars, or of a smaller size such as are still used for the seath fishery at Sumburgh. The 'haaf fishery' is, in the greater part of Shetland, synonymous with the home or summer fishery, being distinguished from it only where, as at Sumburgh, seath fishing is prosecuted in summer in the smaller open boats. 'Haaf' is 'the deep sea - the fishing of cod, ling, and tusk.'* This fishery is also generically known as the ling fishing, because, though, considerable quantities of tusk and cod are also caught at the haaf, ling is by far the most important part of its produce. The term 'cod fishing' is sometimes applied to what is usually called the 'Faroe fishing', which is prosecuted in large smacks in the vicinity of the Faroe Islands, and in autumn as far north as Iceland. On the west coast of the mainland, the 'cod fishing'- or 'home cod fishing' as it is called, to distinguish it from the Faroe fishing - is carried on, though now to a comparatively trifling extent, in smacks of a smaller size, at banks to the south-west of Shetland. The 'winter fishing' is prosecuted in small boats of four oars, which belong entirely to the men engaged in it, the fish being generally cured by themselves, or sold to any merchant they please for a price fixed and paid in money

or goods at the time.

* Edmonstone's <Etymological Glossary of Orkney and Shetland Dialect> (Edin. 1866.)

FISHING TENURE FORMERLY EXISTING.

The ling and tusk fishery is the oldest of the existing fishing industries of Shetland. It appears in the seventeenth century to have been in the hands of Dutch merchants and shipowners, who supplied the natives with the means of fishing; cured, or at least dried, the fish on the beaches; and carried it to Holland. It is said that the proprietors of Shetland were first induced about the beginning of the eighteenth century to take the ling fishing into their own hands, supplying their tenants with materials, and receiving the fish at a stipulated rate.* The system which grew up after this change is referred to by Dr. Adam Smith,** and appears to have been in full vigour in at least one part of Shetland but a few years ago. It is thus described by a witness, William Stewart, as it existed till 1862 in Whalsay, where he was a tenant of the late Mr. Bruce of Simbister:-

'8978. What rent did you pay there?-The rent I always paid for my ground was 26s.' '8979. Did you fish for Mr. Bruce at that time?-Yes, for the late Mr. William Bruce.' '8980. And you had an account with him at the shop in Whalsay?-Yes.' '8981. How did you pay your rent?-Generally by fishing.' '8982. Was it put into your account?-Yes. The thing was carried on on a very strange system. Our land was put in to us at a low rent, and our fish were taken from us at as low a value. The prices for the fish never varied, either for the spring or summer.' '8983. Do you mean that they were the same every year?-They were. Whatever they might be in the markets, they were all the same to us.' '8984. Had you never the benefit of a rise in the market at all?- Never.' '8985. Did you not object to that?-We had just to content ourselves with it, or leave the place.' '8986. It was part of your bargain for your land, that you were to give your fish at a certain rate?-Yes; there were so much of the fish taken off for the land. That was the first of the fishing. We got 3s. 4d. a cwt. for ling, 2s. 6d. for tusk, and 20d. for cod, and so much of each kind of fish was taken off until the land was paid for; and then the prices were raised to 4s, I think, for ling, 3s. 2d. for tusk, and 2s. 6d. for cod, for all the rest of the summer fishing.' '8987. Did you get these prices for a number of years?-I think for the thirteen years that I was on the station they never varied one halfpenny for the summer fishing. The prices for the winter fishing varied a little. Sometimes we would sell the small cod as low as 2s. 6d, and at other times at 3s.' '8988. Did you sell the winter fishing for payment at the time, or did it go into the account too?-It was never put into the account at all; we just got what we required for it. It was ready payment; but it was very rarely that we got money for the winter fishing.' '8989. Did you know at the time that the prices you were paid at the latter part of the season were lower than the market price of the fish?-We knew that; but it was just the bargain.' '8990. Was that the system with all the tenants in Whalsay at that time?-With every one.' '8991. When did that system cease?-I think it ceased about a year after I came here-about 1863.'

[W. Stewart, 8978; See J.S. Houston, 9727.]

* Edmonstone's <View of the Zetland Islands>, vol. ii., p. 232., Brand's <Brief Description of Orkney, Zetland>, etc., pp. 73, 89, 128, 136, etc. (Edin. 1701). ** <Wealth of Nations>, b.i.c. xi.

LAND QUESTION CONNECTED WITH TRUCK QUESTION.

It is impossible to separate the question of Truck in Shetland from the land question - (1.) Because Truck, in the form in which it chiefly exists, has arisen out of these old relations between landlords and tenants in the times when the landlords were the principal or the only purchasers and curers of fish; and (2.) because, to a very material extent, the relations between the fish-curer and the fishermen are still subservient and ancillary to the landlord's security for his rent.* That this is so will appear from a description of the ling fishery as it now exists.

*<See> General Observations on Shetland, by Lawrence Edmonstone M.D., in <New Statistical Account>, p. 160 (Edin. 1841)

TACKSMEN AND MERCHANTS.

Although the proprietors may originally have had some concern with all the fishing of the year, it is in the ling fishery that they till lately occupied, and in some instances still occupy, the position of the old Dutch traders. In this position they have now, for the most part, been succeeded by merchants, who in some instances are tacksmen (or [Page 5 rpt.] 'tacksmasters,'-<Anglicé>, principal lessees or middle-men, having sub-tenants), and in others are merely lessees of a fishing station, with its invariable appendage, a retail shop or store for goods of every kind. There is a regular season for the haaf fishing, lasting from about the 20th of May till the 12th of August. It is carried on chiefly from stations as near as possible to the haaf, where lodges or huts are erected for each boat's crew. The men return to their homes at the end of each week. At each station where the fish are landed, whether that is a temporary station,-such as Feideland, Whalsay Skerries, Stenness, Papa Stour, Spiggie, or Gloup,-or a permanent curing establishment and shop, such as Reawick, Uyea Sound, Quendale, or Hillswick,-factors are employed by the merchants to receive and weigh the fish, and enter the weight in a fish-book. These factors at the temporary stations are entrusted with a small supply of meal, lines, hooks, and other articles likely to be wanted by the fishermen, which they sell to them in the same way as the merchants themselves or their servants do at the permanent shops.

[W. Irvine, p. 85.]

MODE OF FISHING.

The mode of fishing is similar to the long-line fishing in the North Sea, described in the Report of the Sea Fisheries Commission, 1866, App. p. 6.

AGREEMENTS AND SETTLEMENTS.

A boat is usually divided into six shares, each of the crew having one share; the proceeds of the fish, after deducting the price or hire of the boat and other expenses incurred on account of the crew, for which the crew is responsible as a company, being also divided into six shares. In some rare cases the shares are fewer, and one

or two of the men are hired.

It is an invariable rule that a boat's crew delivers all its fish taken during the summer to the same merchant. In a few cases this arises, as it formerly did almost universally, simply from the fact that the men are all tenants of a proprietor or middle-man, who makes it a condition of their holding their crofts that they shall fish for him. In others, it is the subject of an express or tacit arrangement with a particular fish-curer.

When he delivers his fish, the fisherman does not receive payment for it, nor does he know what price it will bring. The arrangement or understanding is, that the price is to be at the current rate at the end of the season. The season ends, so far as the fishing is concerned, at or about August 12; but the sales are not made until September and October, when the process of curing is completed. The settlement of the price does not take place till November, December, or January; and in the case of one merchant, it appears to have been more than once delayed to a considerably later period. When a number of crews deliver their fish to the same merchant, especially if he has a number of stations at different parts of the islands, his settlements are considerably protracted. Each crew, as I have said, has got supplies at the fishing station; it has also got fishing materials, and it may have to pay the hire, or instalments of the price, of its boat. These are all debited to the crew in a ledger account, kept in the name of the skipper and crew, thus -'John Simpson & Co., Stenness.' The sums due for these items being deducted from the total amount of the boat's fishing, the balance is divided into shares, which are carried to the private accounts of the several fishermen; for in almost every case the fisherman and his family obtain, during the year, 'supplies' of goods from the shop of the fish-curer. In the great majority of cases there are no passbooks for such accounts. The private account is read over to the fisherman by the fishcurer, or by his shopkeeper, where he does not personally manage that department of his business; and the fisherman being satisfied as to its correctness, or, as it often happens, trusting to the honesty of the merchant, it is settled, any balance due to the fisherman being paid in cash, any balance against him being carried to his debit in a new account. [See below - SETTLEMENTS AND PASS-BOOKS] THE debit against the fisherman consists-(1.) Of any balance against him in the account of the previous year; (2.) Of goods of various kinds supplied from the store; (3.) Of cash advanced in the course of the year, either to himself personally, or for rent, taxes, or other payments made on his account. It may possibly occur in a bad season, that his share of a balance against the crew with which he has been fishing may increase his indebtedness; but no case of this kind has been brought under my notice. On the other hand, he is credited with the price of his fish at the current rate, and with the price of any cattle or ponies sold by him to the merchant. The smaller farm produce, such as butter and eggs, although very often sold to the same merchant, does not enter the account, having been paid in goods across the counter, rarely in cash, at the time of delivery.

[See below, p. 24.]

[Page 6 rpt.]

TRUCK.

It thus appears to be quite possible that fishermen should receive the whole of their earnings in shop goods, and I understand that the truth of the allegation that most of the men actually are so paid, and that they have no option but to take goods for their fish, at prices fixed by the merchant, was intended to be the main subject of this inquiry.

COMPLAINTS BY FISHERMEN.

Upon this subject the complaints of the men themselves were not loud or frequent. The only cases in which fishermen came forward voluntarily for the purpose of stating grievances, on hearing of the Commission, were those in which they are bound by their tenure to deliver their fish to the proprietor of the ground, or his tacksman. As in all these cases they are also supplied with goods from the landlord's or tacksman's shop, it was necessary to hear fully what the men had to say, even although their complaints appeared to involve a question as to the tenure of land, as well as the payment of wages.

FISHING TENURES.

Complaints on this subject were made by tenants on the estates of Sumburgh and Quendale, in the parish of Dunrossness, and on the island of Burra. It also appeared in the evidence of persons cited, that the obligation exists and is enforced on the estate of Lunna, in the parish of Nesting and Lunnasting; on that of Ollaberry, in Northmaven; on those of Mr. Henderson, Mrs. Budge, Messrs. Pole & Hoseason, in Yell; in the island of Whalsay, held by Messrs. Hay & Co. from Mr. Bruce of Simbister; on the Gossaburgh estate, in Yell and Northmaven, held by them from Mrs. Henderson Robertson; and in Skerries, of which Mr. Adie has a tack from Mr. Bruce. On other estates the tenants are nominally free, although it may sometimes be doubtful how far they are able to exercise any choice.

SUMBURGH [Qu. 548 sqq.]

The first witness who came forward to speak of the obligation to deliver the fish to the landlord was Laurence Mail, who was not summoned, and his evidence shows how naturally this grievance is connected with the system of Truck. He says:-

'559. What is the complaint you wish to make?-There is one thing we complain of: that we are bound to deliver our fish, wet or green, to the landlord.' '560. That is, you have to deliver the fish as they are caught?- Yes; of course we have to take out the bowels and cut off the heads: it is the bodies of the fish we give. We think it would be much better if we had liberty to dry the fish ourselves, as we used to do formerly.' '561. To whom are you bound to give your fish?-To Mr. Bruce, our landlord.' '562. Is he a fish-curer or fish-merchant?-Yes.' '563. Is it Mr. Bruce or his son that you are speaking of?-It is young Mr. Bruce. He is the landlord or tack-master. His father is alive; but I think young Mr. Bruce has got power from his father to engage the tenants according to his own pleasure.' '564. Do you pay your rent to young Mr. Bruce?-Yes.' '565. And does he give you a receipt for it in his own name?-We settle once a year with him for our fishing, and for the store goods we have got, and rent

and everything together.' '566. Do you get an account for the whole?-He generally gives us a copy of our account. Sometimes, perhaps, he does not do so; but he will give it if we ask for it ....' '568. Is that all you have got to say on the subject of your complaint?-No; I have something more. Of course, as we are bound to fish for Mr. Bruce, a man, unless he has money of his own, is shut up to deal at Mr. Bruce's shop. His credit is gone at every other place, and that binds us to take our goods from his store; and generally the goods there are sold at the highest value.'

In the case of the Sumburgh tenants, who are above two hundred in number, there was a period of freedom, following a general increase of rent; but about 1862 the son of the landlord began business as a fish-merchant, and as a preparation for that obtained a lease of the southern portion of his father's estate. Intimation of the trick was made to the tenants; and it appears to have been intimated at the same time that the tenants must deliver their fish to young Mr. Bruce, the tacksman. Some of the tenants were required to sign an obligation so to deliver their fish. The merchants who had previously had stores on Mr, Bruce's property were removed.

[L. Mail, 625; G. Williamson, 4961; H. Gilbertson, 4575; J. Harper, 4507; G. Leslie, 4612; R. Halcrow, 4646, 4656; L. Smith 4720; A. Tulloch, 468; T. Aitken, 4803-4835; L. Mail, 639]

QUENDALE.

On the neighbouring estate of Quendale, where about fifty fishermen are employed, a similar statement was made to the tenants when the present proprietor became a fish-merchant. A change upon the previous system is said to have been then made; but one witness, who has lived on the property for at least fifty years, says that during all that period he never had freedom. The proprietor says that his tenants have sat upon the ground subject to that condition for three generations, <i.e.> since it was purchased by his family in 1765. James Flawes, the first witness examined as to this place, says:-

[Page 7 rpt.]

'4913. Is your obligation a written one, or is it part of a verbal lease of your land?-When young Mr. Grierson got the fishing, he read out a statement to his tenantry at large, in the schoolroom at Quendale.' '4914. How long ago was that?-Twelve years ago. That statement which he read gave the tenantry to understand that he was to become their fish-merchant, or the man they were to deliver their fish to; and that they were all bound to give him every tail of their fish from end to end of the season, as long as they held their land under him. If they did not do that, they knew the consequences: they would be turned out.' '4915. Was that all stated to you in the schoolroom on that occasion?-Yes; it was all read off by Mr. Grierson himself.' '4916. Were you present?-Yes.' '4917. Did he state that you would be paid for your fish according to the current price at the time of settlement?-Yes; that was stated also at that time.'

[James Flawes, 4911; G. Goudie, 5034; C. Eunson, 5056; L. Leslie, 5077; J. Burgess, 5099; H. Leslie, 5131; cf. C. Eunson, 5060, L. Leslie, 5087.]

LUNNA.

On Lunna estate, about the same time, Mr. Bell, then sheriff-substitute of the county, handed over the estate and fishing to Mr. John Robertson, sen., a merchant in Lerwick, as tacksman, the tenants being told, at a meeting at Lunna House, that they must in future fish for Mr. Robertson if they went to fish at Skerries, the principal fishing station in that part of the country.

[James Hay, 5425, L. Simpson, 13,833; John Robertson, sen., 14,075; John Johnston, 9224; L. Robertson, 13,934; Robert Simpson, 13,983; A. Anderson; 9277; J. Henderson, 5512.]

WHALSAY.

The men in Whalsay are not under Messrs. Hay & Co. as tacksmen, but they are bound to deliver their fish to them. Particulars were given by Mr. Irvine,. who is a partner of Hay & Co., and factor for the proprietor. No complaints came from this island. It may be remarked that the farms in it are more productive than in some other parts of Shetland, and that it is but lately that the people were emancipated from a very primitive kind of tenure, already described.

[W. Irvine, 3623, and see above, W. Stewart, 8978. See above, Page 4, rpt.]

BURRA ISLANDS.

As soon as I arrived at Lerwick, a complaint was laid before me in writing by the inhabitants of the Burra Islands, part of the trust-estate of the family of Scott of Scalloway. These islands are leased to Messrs. Hay & Co. for a tack duty nearly equal to the gross rental paid to them by the sub-tenants. The tack duty is paid by Messrs. Hay & Co. half-yearly, while they receive their sub-rents at the annual settlement. The chief inducement to Messrs. Hay to hold the lease of the island is that they may obtain the fish of the inhabitants, who are bold and successful fishermen, and are more favourably situated for the haaf fishing than any other people in Shetland.

[W. Irvine, 3623.]

The complaint made by the men of Burra was simply that they were not at liberty to cure their own fish and sell them in the highest market. Fourteen years ago the late Mr. William Hay told them that they must sell to him, and eight years ago a similar intimation was made on the part of the present firm, who wished the men to sign an obligation to deliver all their fish to them. The following is the statement of Walter Williamson, who was the chief spokesman of the Burra men who came to Lerwick:-

'790. Why do you not do it (<i.e.> cure and sell your own fish)?- Because we would be ejected from the place if we were not to deliver our fish to them.' '791. What is your reason for supposing that?-Because we have been told so.' '792. Was it on the occasion you have mentioned, eight years ago, that you were told so?-It was.' '793. Have you been told since that you would be ejected if you did not deliver your fish to Messrs. Hay & Co.?-I have never since asked anything about it, so that I had no reason to be told so.' '794. Has any person been ejected for selling fish to other

merchants than Hay & Co., or for curing his own fish?-I think there have been such cases in Burra. I believe John Leask was ejected for not serving as a fisherman to Messrs. Hay & Co.' '795. How long ago was that?-I think it would be about thirteen years since, or close thereby.'

[W. Williamson, 764, 776; P. Smith, 980; T. Christie, 1064; C. Sinclair, 1109; G. Goodlad, 1208.]

Liberty money was exacted by Messrs. Hay from some of the Burra men some years ago, <i.e.> a payment of 20s., in respect of a tenant or his sons having failed to deliver fish to the lessee. [Peter Smith, 1012.] But in some cases, at least, it appears that this money was repaid. Messrs. Hay & Co. explain that-

'Some years ago, after a time of bad crops and bad fishings, when we had to give them large quantities of meal for their support, and many of them were unable to pay rents, the islands were indebted the best part of £1000. We made an attempt at that time to get the young men to fish to us and assist their parents, and I think in two cases we imposed fines of 20s.; but it had a contrary effect to what we intended, and, so far as I remember, the money was given back.'

And Mr. Irvine says in his examination, 'The object of the fine was to compel the sons to assist the fathers.' The written obligation itself has not been recovered, and neither Mr. Irvine, of Hay & Co., nor other witnesses, have a very clear recollection of its contents. I am inclined to believe, however, although Mr. Irvine appears to have a different impression, that the obligation it sought to impose was wide enough in its terms to include the Faroe fishing, in which Messrs. Hay & Co. are engaged very extensively. There is some evidence that constraint or compulsion, or rather influence, such as a landlord can exercise over his tenants, has been used in Burra and elsewhere, in order to get [Page 8 rpt.] Faroe fishing-smacks well manned. But so far as Burra is concerned, that influence seems not to have been applied in late years, and it is not general elsewhere.

[W. Irvine, 3623, 3754 sqq.; Peter Smith, 1041; C. Sinclair, 1135, 1143; W. Irvine, 3920, W. Williamson, 923; Peter Smith, 1012, 1057; C. Sinclair, 1118; J.L. Pole, 9370.]

GOSSABURGH.

The tenants on the estate of Gossaburgh, in South Yell and Northmaven, about 120 in number, are also bound to deliver their fish, both in summer and winter, to Messrs. Hay & Co., as tacksmen of the property, if they engage in the ling fishing. In the Northmaven portion of the estate (North Roe), thirty-three out of fifty-six tenants actually fished for the tacksmen last year; three fished by sufferance to other curers, two were at Faroe, and two or three were sailing south; others were employed by the lessees as curers and tradesmen, and probably a few were unfit for fishing. The average rent paid by the tenants on this part of the estate is £3, 3s. It seems that the profit of Messrs. Hay & Co. on their tack consists, as it does in the case of Burra, almost entirely in the power it gives them over the fishermen tenants.

[J. Pottinger, 13,540; W. Robertson, 13, 628; W. Irvine, 3818; D. Greig, 7116-7131; W. Irvine, 3623, 3624, 3811; Andrew Ratter, 7404 sqq.]

BURRAVOE.

The tenants on the estate of Burravoe, in the south of Yell, belonging to Mr. Henderson, are bound to fish to their landlord. Both Mr. Henderson and his son were unable to attend the sitting at Mid Yell, in consequence of the state of their health; but I saw Mr. George Henderson at his place of business, examined his books, and obtained a full return from him. Mr. Henderson had thirty men fishing for him last year, but these were not all tenants of his own. On this estate, as on some others, it appears to be the rule, subject perhaps to exceptions, that a tenant who cannot or does not fish must quit his farm, or pay a higher rent.

[R. Smith, 9121, 9123 sqq.; D. More, 9639.]

SKERRIES

The tenants on the Out Skerries, north-east of Whalsay, forming six boats' crews, are obliged to fish to Mr. Adie, who holds a tack of the islands from Mr. Bruce of Simbister. Mr. Adie says:-

'5767. Is the rent which you pay for Skerries calculated so as to allow you a profit upon the rents of the sub-tenants?-No; I pay £110 of tack duty, and the gross rental from the tenants is only £68. I virtually pay the difference just for the station that is, station rent for the store and premises which are put up there.' '5768. Is it not also for the privilege of having these fishermen to fish for you?-I believe I could make more of these lands if I had them as grazing ground, without any fishermen there at all. There is only one of the Skerries I hold now; one of them has been sold to the Lighthouse Commissioners.' '5769. If you could make more of the island as grazing ground, why don't you turn it into that?-If I were to do so, what could I make of the men? There are fourteen families, and if I turned them adrift it would be a fearful thing.' '5770. Is it difficult for men to get land in Shetland?-It is very difficult now; there are so many requiring it, that almost every place is taken up. I have boats that go from the mainland to fish at the Skerries with the natives.' '5771. Then it is useful as a station for them?-Yes.'

[T. Hutchison, 12,622; P. Henderson, 12,734; D. Anderson, 12,774; A. Humphray, 12,802.]

YELL, ETC.

The tenants on certain scattered properties in Yell. and the Mainland belonging to Mr. Pole, held in tack by him, or for which he is factor, are bound, if he requires them, to fish to the firm of Pole, Hoseason, & Co.; and this obligation extends to the Faroe fishing also.

[W. Pole, 5936; J.L. Pole, 9369.]

OLLABERRY.

The tenants on the Ollaberry property in Northmaven parish are obliged to fish to a firm, of which the principal member is Mr. John Anderson, Hillswick, brother of the proprietor and tacksman of the estate. There are fifty or sixty tenants on this estate. There is some evidence that in this place the bound men or tenants get a lower price for their fish than those who are 'free.'

[John Anderson, 6592; W. Blance, 6014, 6026, 6048; A. Johnson, 14,890, 14,908, 14,947.]

CASE OF SEAFIELD TENANTS.

I have still to mention the latest case of this exercise of the patrimonial right of disposing of a tenant's fish, which is an instructive instance of the submissive way in which the right is accepted are Shetland. The tenants on the small property of Seafield, on Reafirth or Mid Yell Voe, twenty-one or twenty-two in number, had been in use to sell their fish in summer to Laurence Williamson, a fish-curer and merchant on the opposite side of the voe. There was, however, a shop at Seafield, the tenant of which had been carrying on business not very successfully. He had resolved to leave the place, and the business premises were likely to be shut up. In this state of matters, the law-agent for the proprietor wrote the following letter to a leading man among the tenants, William Stewart:-

'<Lerwick>, 22<d> Nov. 1870. 'WILLIAM,-I now write, as I promised, to explain what I expect the Seafield tenants to do in regard to fishing, that you may communicate the same to them. The business premises at Seafield cannot be allowed to remain vacant, and consequently unprofitable, while it is clear they must do so unless the tenants fish to the tenant of these premises. The Seafield tenants, therefore, must fish to Mr. Thomas Williamson upon fair and reasonable terms, and I understand he is quite prepared to meet them on such terms. I believe he will, in every respect, do you justice; and so long as [Page 9 rpt.] he does so, you have no reason to complain. But should it happen that he fails to treat you fairly and honourably (of which I have no fear), you can let me know, and matters will soon be put right. You and the tenants, however, must not act towards Mr. Williamson in a selfish or hard way either, for it is quite as possible for you to do so to him as it is for him to do so to you. Both he and you all must work together heartily and agreeably; and if you do so, I have no fear, humanly speaking, that the result will be success to both.- I am, yours faithfully, W. SIEVWRIGHT 'William Stewart, Kirkabister, Seafield, Mid Yell.'

[W. Stewart, 8917]

Mr. Sievwright made a statement with regard to this letter, which adds nothing to what appears in it, except the fact that most of the tenants were in arrear for rent. It is stated also by Thomas Williamson (who was put into business apparently by Mr. Leask, a very extensive merchant in Lerwick), that he did not 'want any of the men to fish for him;' that 'scarcely any man could keep the premises there and carry on business in them without the privilege of having the men to fish for him.' Twelve men of the Seafield tenants, forming two boats' crews, had entered into a written agreement to fish to Laurence Williamson in 1871; but they were obliged to leave him

and he says 'I slightly objected to it but of course I could not help it .... Of they had to leave me because they knew, or at least they believed, they would be differently dealt with if they did not leave.'

[W. Sievwright, 15,118; T. Williamson, 9493; W. Robertson, 13,660; L. Williamson, 9003, 9005.]

In short, it has been so much a habit of the Shetlander's life to fish for his landlord, that he is only now discovering that there is anything strange or anomalous in it. This man, William Stewart, to whom Mr. Sievwright wrote, had lived in Whalsay, as I have already shown, under what appears to have been a still more disadvantageous and servile tenure. He is a fair specimen of the average peasant of such a district as Yell. It is evident that men who have been brought up in such habits, and with the tradition among them of a still more subservient time in the past, are prepared not only to submit to extreme oppression on the part of their proprietors, or those to whom their proprietors hand them over, but also to become easily subjected to the influence of merchants who possess no avowed control over them.

CASE OF ROBERT MOUAT AT MOUL

An instance of the abuse to which the system is liable in the hands of an unscrupulous tacksman, is afforded by the case of Robert Mouat, who held, until two years ago, a tack of the estate of Mr. Bruce of Simbister, in Sandwick parish. A number of witnesses came forward to testify to the thraldom of the tenantry, and the injustice which they had suffered under his rule. The evidence against Mouat was certainly given with such freedom, I might say with such an earnestness of hatred, as was not displayed towards any merchant or tacksman who is still in the country. After making allowance for exaggeration, it is certain that the state of Coningsburgh during the seventeen years of his rule must have been very distressing. Every tenant on the ground was bound to sell to him not only his fish, but all the saleable produce of his farm. Money could not be got from him, according to one witness, either at settlement or during the season. The witness John Halcrow, who is much less vehement in his language than some others, says:

'13,089. Were they bound to deal with him for shop goods?-The fishermen were. They were required to go to him with all their produce, meal, ponies, and eggs, as well as with their fish.' '13,090. But they were not bound to buy their goods from him?- No; but they had to do so, because he received all their produce, and they could not go anywhere else. They had no money.' '13,091. Would he not give them money for their produce?-Yes, for such as cattle he would. But it was very few of them who had any money to get from him.' '13,092. Why?-Because they were bound to fish for him, and he received all their fish.' '13,093. But if he received all their fish he would have to pay them money for them?-It was very hard to get it from him.' '13,094. Did he prefer to give them the price in goods?-Yes, if they would take it.' '13,095. And did they take it in goods?-Not very much.' '13,096. Why?-Because they were not very good.' '13,097. Then they would have money to get at the end of the year if they did not take very much in goods?-Yes.' '13,098. Did they get the money at the end of the

year?-No. He said he did not have it to give them.' '13,099. Then they did not get their money at all?-In some cases they got it.' '13,100. But some of them did not get it?-Yes.' '13,101. And some of them did not get goods either?-Yes; they would not take his goods.' '13,102· Then did they go without either money or goods?-Yes.' '13,103. Was that often?-I have had to do it myself.' '13,104. When was that?-In 1870. He said he had no money to give me.' '13,105. Was that at settlement?-Yes. He had the tack for two years more at that time, and he gave me a receipt for the rent of 1871. Then he failed; and I had to pay my rent for 1871 over again to Mr. William Irvine.'

And the witness produced documents to show that he had actually paid rent in advance to Mouat in June 1871, which, according to the law of Scotland, does not discharge the tenant; and that he had afterwards paid it to Mr. Irvine, as factor for Mr. Bruce. While it may be taken for granted that the condition of tenants under Mr. Mouat was at no time enviable, some of the statements about his conduct ought probably to be accepted as literally true only with regard to the period of struggling circumstances immediately preceding his bankruptcy.

[John Leask, 1284; Gavin Colvin, 1382; M. Malcolmson, 2978; W. Manson, 3018; H. Sinclair, 5312; W. Irvine, 3948.]

[Page 10 rpt.]

EVICTION AND LIBERTY MONEY.

In all the cases where tenants are bound to fish for the landlord, there is a firm conviction that the penalty of disobedience is eviction, or payment of 'liberty money.' 'We knew quite well,' said James Flawes (4964), a tenant on Quendale, 'from the statement which was made to us before, that, if any one transgressed the rule, the penalty would just be our forty days' warning.' And cases of threatened removal for this cause, and payment of liberty money or fines, though not common, have yet been sufficiently numerous to keep alive a wholesome apprehension, and prevent widespread disobedience. Eviction to a Shetlander is a serious matter, especially when it is for such a cause as this. A new farm is always difficult to get. 'In the south,' says one witness, 'a man can shift from town to town and get employment; but here, if he leaves his house and farm, he has no place to go to except Lerwick, and there is no room to be got there, either for love or money.'

[W. Irvine, 3625, 3755; L. Smith, 4486; J. Flawes, 4956; C. Eunson, 5069; J. Johnston, 9238; J. Hutchison, 12,693; Peter Smith, 1012; M. Malcolmson, 2994; W. Manson, 3025; W. Goudie, 4274, 4385, etc.; H. Sinclair, 5320; John Johnston, 9423; T.M. Adie, 5770.]

There is an impression, not perhaps always correct in a region where the excessive subdivision of land is ascribed to the desire of landlords to increase the number of their fishing tenants, that a man who is independent enough to differ from his landlord with regard to the terms of his lease is not likely to find favour in the eyes of other proprietors. A witness, speaking of another condition of his holding, says:-

'801. Are you not at liberty to make your own bargain about the land, the same as any other tenant in Scotland is?-I am not aware of that.' '802. Suppose you were to

object to make such a bargain, could you not leave the land and get a holding elsewhere?-It is not likely we would get a holding elsewhere.' '803. Why?-We would very likely be deprecated as not being legal subjects, and the heritors would all know that we were not convenient parties to give land to. That is one reason; and another reason is, that places are sometimes not very easily got.' '804. Do the same conditions exist on other properties in Shetland?-So far as I know, they prevail all over the country, or nearly so.' 805. You think that, if you were trying to move, you would not get free of a condition of that sort?-We might get free of it for a time, but by next year the parties to whose ground we had removed might bind us down to the same thing.' 806. But supposing all the men were united in refusing to agree to such conditions, there could be no compulsion upon them?-They have not the courage, I expect, to make such an agreement among themselves.'

[Walter Williamson, 801.]

THE FORTY DAYS' WARNING TOO SHORT

It is proper to call attention here to the fact that in agricultural subjects held from Martinmas to Martinmas on a yearly tack, the forty days' warning to remove, which is held sufficient by the law of Scotland, is objected to, with some reason, as too short. A crofter witness makes the following statement:-

'4688. Is there anything else you wish to say?-There is only forty days' warning given before Martinmas. No doubt that may be well enough for tenants town like Lerwick, who hold nothing except a room to live in, but it is very disagreeable for a tenant holding a small piece of land as we do. As soon as our crop is taken in, we must start work immediately, and prepare the land for next season. We have to make provision for manure, and collect our peats, and prepare stuff for thatching our houses, and perhaps by Martinmas we have expended from £6 worth of labour and expense on our little farms. In that case, it is a very hard thing for us to be turned out of our holdings after receiving only forty days' notice, and perhaps only getting £1 or £2 for all that labour. Now what I would suggest is, that instead of that short notice we should be entitled to receive a longer notice, perhaps six or nine months before the term, that we are to be turned out.' '4689. Do you think you would be more at liberty to dispose of your fish, and to deal at any shop you pleased, if you were entitled to that longer warning?-I don't think the warning would alter anything with regard to that; but if I knew that I was to be turned out at Martinmas, I would probably start fishing earlier, and I might have a larger price to get for them, instead of working upon my land.' '4690. But you can be punished more easily by your landlord for selling your fish to another man, when he can turn you out on forty days' warning, than if he could only do it on six or eight months' warning?-I think it would be much the same with regard to that.' '4691. You don't think that would make any difference as to the fishing?-It might make a little difference, because if I received my warning in March, and knew that I was to leave at Martinmas, if I saw that I was to have a better price for my fish from another, I would not fish to my landlord at all; but I would go to any man I would get the best price from.'

[R. Halcrow, 4688.]

The same view is taken by the Rev. James Fraser, who gave very valuable information, both at the sitting held at Brae, and in a subsequent letter, printed in the evidence.

[R. Fraser, 8054 sqq.]

STATEMENTS BY LANDHOLDERS AND TACKSMEN

It is unnecessary to refer in detail to mere admissions on the part of landlords and tacksmen, that such obligations exist on the estates under their control. Such admissions were made in all the cases already referred to, as will be seen from the references on the margin. In some cases, however, arguments were stated in justification of the practice. Mr. Irvine perhaps put the case lower than any of this class of witnesses for he simply said in regard to Burra, that the tack had been held for a very long time by his firm, and that when it expired many of the people owed debts, some of which would [Page 11 rpt.] not have been recovered if the island had passed to another fish-merchant as tacksman. He assumed that here, as in other cases, the landlord in Shetland must depend on the fishing for payment of his rents. Mr. Bruce, younger, of Sumburgh thus states his views:-

'The tenants on the property in this parish managed by me are at liberty to go to sea to the Greenland or Faroe fishing, or to pursue any land occupation as they please; but if they remain at home and go to the home fishing, they are expected to deliver their fish to me, and receive for it the full market value. This is one of the conditions on which they hold their farms, and is, I consider, a beneficial rule for the fishermen. They must fish to some merchant, and as I give them as high a price as they could get from another, they are no losers, while I provide suitable curing and fishing stations, and these stations of mine are the most convenient places for them to deliver their fish .... This, I will endeavour to show, is no grievance at all, but an advantage to the fishermen.'

'In looking over the whole of Shetland, it will be found that the most prosperous districts are those under the direct management of the landlords.'

'Many of the fishermen in this country (as, indeed, many of the poorer classes everywhere) are unable, from want of thrift and care, to manage their own matters in a satisfactory manner, and require to be thought for and acted for, and generally treated like children, and are much better off under the management of a landlord who has an interest in their welfare, than they would be if in the hands of a merchant whose only object was to make a profit out of them.'

'A merchant who has no control over the fishermen, may, in some cases, wish to get them and keep them in his debt, in order to secure their custom; but the case of a landlord also a merchant is quite different. It is his interest to have a prosperous, thrifty, and independent tenantry; and he will use his utmost endeavour to keep them out of debt, and to encourage saving habits.'

'I can see no reason why the fact of a man being a landlord should prevent him from being also a merchant and fish-curer; and if so, why he should not secure a lot of good fishermen by making it one of the conditions of occupancy by his tenants, that if fishermen they shall fish to him.'

'The very fact of a landlord being a fish-curer would lead up to this, for tenants would naturally wish to stand well with their landlord, and, other conditions being equal, would prefer to give him their fish ....'

'There are, no doubt, many things in the Shetland system of trade which might be improved; but the system has been of long growth, and is so engrained in the minds of the people, that any change must be very gradual: a sudden and sweeping change to complete free-trade principles and ready-money payments would not suit the people, but would produce endless confusion, hardship, and increased pauperism.'

'Under the present system, with our small rentals and large population, our poor-rates are very high. But the landlords support a great many families which would otherwise be thrown on the rates.'

'It is no uncommon thing, where a family is deprived of its breadwinner, for the landlord to support the family till the younger members grow up, and are abler to provide for themselves, and repay the landlord's advances.'

'Abolish the present system suddenly, and I am afraid our poor-rates would become unbearable, and nothing would save the country but depopulation.'

[W. Irvine, 3623, 3625, 3920, 3974, etc.; P.M. Sandison, 5211; W. Pole, 5936; J. Anderson, 6573, 6592; D. Greig, 7111, 7215; J.L. Pole, 9370; T. Williamson, 9466, 9493, 9520; W. Robertson, 10,858, 13,667; L.F.U. Garriock, 12,299; G. Irvine, 13,130; John Bruce, jun., p. 330a; A.J. Grierson, 15,061; John Robertson, sen., 14,075; W. Rivine, 3916, 3920 sqq.]

And Mr. A.J. Grierson of Quendale speaks still more forcibly to the same effect.

[A.J. Grierson, 15,062, 15,078.]

In almost every case, however, except those of Mr. Bruce and Mr. Grierson, the condition as to fishing is spoken of by those in whose favour it is imposed, in apologetic terms. It is plain that the right to have men bound to give fish is regarded as a valuable one, since tacksmen so shrewd as Messrs. Hay & Co. are willing to pay for it a rent equal to the full amount of the sub-rents, and to manage and uphold the property besides.

[D. Greig, 7110; W. Irvine, 3816, 3929.]

PAYMENT OF RENTS THROUGH MERCHANTS.

Although the custom of delivering fish to the landlord or his lessee, as merchant and curer, has become less common, that custom has left its traces in the arrangement by which it has been superseded. [W. Irvine, 3962.] The merchants who receive fish from the tenants have still no small concern with their rent; and it may be said that even now the final cause of the existing system of settlements and

agreements with fishermen is to give security to the landlord for his rent. Mr. Gifford, factor on the largest estate in Shetland (Busta), says that there is now no understanding with the merchants who have establishments on that property that they shall be responsible for the rents of the men.

'There is not a single tenant on the Busta estate, out of the whole 480 on it, or out of the 530 with whom I have to do, that any of the merchants is liable for, even as a cautioner. That used to be the case some time before, but it has not been so for a long time.'

It does not follow, however, that the merchant has nothing to do with the payment of the rent. Everywhere, without any exception, rents are paid only once a year, at on about Martinmas. It was a frequent practice, when the rent day arrived before the tenants had received their money for fish, that they should get 'lines' from the curer, the stated sums in which were placed to their credit by the landlord. The sum-total of these lines was sent with a list to the curer, who returned a cheque for the amount. A witness, [J.S. Houston, 9657.] who speaks of the practice as it existed when he collected Major Cameron's rents in Yell, says that there was an understanding between Major Cameron and Sandison Brothers, then the chief curers there, that -

'Any of Major Cameron's tenants who were what might be called reckless or careless, should not be allowed to overdraw their earnings, but that something should be left for their rent.'

[Page 12 rpt.]

'9661. Was Mr. Sandison a tenant of Major Cameron's in his fish-curing premises?-Yes.' '9662. Were these lines always in the same form?-Generally they were the same. I have plenty of them at home.' '9663. Are you aware of a similar practice having existed on any other estate?-I believe it has existed; but I cannot speak so positively about it on other estates. I may say that similar lines have also been given to Major Cameron and myself from another curer in North Yell, Mr. William Pole, jun., before he became a partner of the Mossbank firm.' '9664. Had he premises from Major Cameron also?-No; he had his father's premises. With regard to these lines, I may state that, although there was no understanding on the subject, Major Cameron made it a practice not to come to his tenants asking for their rents until he was pretty sure that everything was nearly cut-and-dry for him.' '9665. Do you think it is a general practice in Shetland for the landlord to fix his rent day so as to be convenient for the fishermen?-I think it is. They fix it after settlement. Mr. Walker, the first year he was factor for Major Cameron, came nearly close to his time, 11th November, but since then he has not done so.' '9666. You are not aware whether that practice of giving lines exists in Yell now?-It does exist. I myself have paid rents by orders for cattle bought from Major Cameron's tenants.'

In these and similar cases the curers are not formally tacksmen, nor indeed do they formally guarantee to the proprietors the rents of the tenants who deliver their fish to them; but it may be said that there is a custom having almost the force of a legal obligation, which makes it unusual for a merchant to refuse an advance for payment of rent even to a man who is indebted to him. An extreme example of this

custom as it prevailed in Unst is thus described by a very intelligent merchant, Mr. Sandison:-

'I have here a letter which I wrote in 1860, and which represents my views on that subject, and I may as well read an extract from it:-"If we don't give unlimited advances, we are told the fishermen will be taken from us. I have now been nearly twelve months in this place (that was after I came first to Uyea), and have closely watched the system pursued by proprietors and others, and certainly agree with you that it is a bad one; but I know I have no right to make any remarks or trouble you with my views on that subject, further than to state that I cannot see any good that will result from burdening the tenants with debt to the fish-curers. It has been my desire, ever since I knew anything about Shetland tenantry, to see them raised in the social scale, and made thoroughly independent both of proprietors, fish-curers, and others, and I have felt deeply interested in the -- properties, no doubt from being more in contact with them; but when the poor among them are in terror of the proprietors alike, and bound by forced advances to different fish-curers, alas for liberty! and more offered to any fish-curer who will advance more on them. This is not calculated to raise any tenant in self-respect." '10,025. You speak in that letter of "forced advances:" what were these?-What I meant by that was this: the proprietor's ground officer or agent in the island, for the time being, told the tenant that he might fish for me this year. I found that he had only £2 or £3 to get; and the ground officer told that tenant that if he did not go to me and get an advance for his rent, he would take him from me and give him to any other man who would advance the rent. That looked very like forced advances.' '10,026. That, however, was in 1860?-Yes.' '10,027. Was that a common practice in those times?-I believe that thirteen years ago truck existed ten times as much as it does now.' '10,028. But in 1860 was it a common thing for a proprietor's ground officer to threaten to remove a tenant unless he could get his rent from the fish-curer?-Yes; to threaten to remove him from the ground unless he could pay his rent, or to move him from a fish-curer who would not give him an advance for that purpose, to some other fish-curer who would do so.' '10,029. Have you known instances of fishermen who were treated in that way?-Yes. I was referring to cases of that kind when I was writing that letter. It was my own experience at the time when I was at Uyeasound as a fish-curer, trying to engage any men who came to me. Many came to me and fell into debt, because I found that many of them required more from the shop than their fishing amounted to; and then I advanced rent after rent, until I saw that I was advancing to my own ruin.' '10,030. After advancing rent in that way, have you been informed that they were to be transferred to another fish-curer unless their rent was still advanced by you?-Yes; in more cases than one.' '10,031. Were you so informed by the landlord or by his factor?- It was generally by the tenant himself, when he came seeking the money.' '10,032. Were you ever informed of it by the landlord, or any one representing him?-No.' '10,033. Had you any reason to believe the story which the fishermen told you?-Yes. I believed them, because I knew of the men being taken away sometimes.' '10,034. Was that after they had made such statements to you, and although they were in your debt?-Yes.' '10,035. Were you able in these cases to make any arrangement with the new employer to pay up their debt?-In some cases we did that, but in other cases we did not; oftener we

made no arrangement ....' '10,039. Have you, within the last twelve years, met with cases of that sort, in which the proprietor endeavoured to coerce you to pay his rent?-Yes. I have had cases where the tenants came asking me for money, and I told them I could not advance them any further. They would then go away, and come back and tell me that the proprietor's agent or ground-officer had informed them that they must get their rent, and that I must pay it; and that if I did not do that, they would not be allowed to fish for me.' '10,040. Did that system continue until 1868?-No; it prevailed principally under the ground-officership of Mr. Sinclair, who acted for Mrs. Mouat, in Unst.'

[C. Nicholson, 11,912-11,933; T. Tulloch, 13,008; J. Smith, 13,047-13,055; W. Robertson, 13,689; John Laurenson, 9849; M. Henderson, 9925; J. Walker, 15,984; Andrew Tulloch, 488; L. Williamson, 9065; A. Sandison, 10,024.]

Mr. David Edmonstone, once a fish-merchant and tacksman, now a farmer and factor on the Buness estate in Unst, states that the want of cash payments is the reason why this arrangement with the curer is desired by the proprietor.

'10,640. Is it usual for the proprietor to enter into any arrangement with the fish-curer for the payment of his rents?-We do that on the Buness estate, and I should like to explain the reason of it. The tenants have all been told that they are at perfect liberty to fish to whom they like; but after they have engaged to fish to a certain curer, we wish them to bring a guarantee from their curer or curers for the rent of the year on which they have entered, and during which they are to fish. Our reason for that-in fact the only reason-is, that the men do not get money payments, and therefore a great number of them will be [Page 13 rpt.] induced to run a heavy account at the shop, and when we collect the rents at Martinmas we would have nothing to get. If the men were paid in money, daily or weekly or fortnightly, then we would make no such arrangement, but would collect the rents directly from the men.' '10,641. Then, in fact, that arrangement is made in order to limit the credit which the fish-merchant gives to his men?-Yes; and to secure that we are to get part of that money.' '10,642. But it has the effect of limiting their credit?-Yes.'

SPENCE & CO.'S LEASE

Since November 1868 Mr. Sandison's present firm of Spence & Co. have been responsible as tacksmen for the rents of the fishermen tenants of Major Cameron's estate in Unst. At that time they obtained a tack of the estate for twelve years, which was formerly described by Mr. Walker*, and is in some respects peculiar. Spence & Co., as lessees of the greater part of the estate, which includes nearly half of the island, pay a fixed sum of rent (£1100), and are bound to expend, or to get the sub-tenants to expend, a certain annual sum on improvements at the sight of the proprietor. Regulations for the cultivation of the small farms are annexed to the lease, and are to form conditions of the sub-leases to be granted by Spence & Co. The effect of these regulations and of the lease is thus explained by Mr. Sandison: [Comp. J. Walker, 15,977.]

* Truck Commission Evidence, qu. 44,450 sq. <See> Appx.

'10,159. Any tenants not complying with these regulations may be removed by you?-Yes; they will get their leases unless they comply with them, and we can remove them at any time ....' '10,161. How many of the tenants have adopted these regulations?-I should say that, to a greater or less extent, they have all made a fair commencement in the improvements and rotation of cropping.' '10,162. But you have absolute power to remove them if they do not comply with that?-We have. The property is absolutely let to us, and we can absolutely turn them out if they do not comply with the regulations. The lease is clear enough upon that point.' '10,163. Have you had occasion to exercise that power?-Not in any case.' '10,164. Have you threatened to do so?-Not so far as is known to me.' '10,165. There is no obligation on the tenants, under this lease, either to fish for you or to sell the produce of their farms to your firm?-No; it is long since I read the lease, but I don't think there is anything of that sort in it.' '10,166. In point of fact, is there any understanding on the part of the tenants that they are bound to do so?- No.' '10,167. You have told them that they are under no such obligation?-Yes.' '10,168. But, in point of fact, most of them do sell their fish to you?-They do.' '10,169. And, in point of fact, most of them do sell their eggs and butter to you?-I think the great bulk of them do, but I cannot tell so well about the butter and eggs. We buy fully as much now at Uyea Sound we did in any season before the company commenced.' '10,170. And a number of the tenants also run accounts for shop goods with your shops?-Yes; I think most of them do so ....' '10,174. But although this lease does not contain an express condition that the tenants are to fish for you, it gives you a power of ejecting them?-Of course it does.' '10,175. And the tenants are aware of that?-Yes.' '10,176. And of course they may feel a little more unwilling to deal with another party or to fish for him in consequence? -That may be. I don't know what their private feelings may be, but the lease gives us a stronger power than that: it reserves the peats, and what could they do without peats? We have absolute power in that respect, if we choose to put it in force, but I hope never to see that done. We can refuse them peats altogether and scattald altogether, and we can shut them up altogether, but I hope I will never live to see that day.' '10,177. In short, you can do anything you please with the tenants, except deprive any one of his holding who complies with these rules and regulations?-Yes.' '10,178. The only security he has is to comply with them?-Yes.' '10,179. As to the peats and scattalds, he has no security at all?- None.'

The rental annexed to the leases contains a list of 170 tenants, paying £834, 19s. 4d., exclusive of certain farms which do not fall under the lease until the expiry of current tacks. The surplus rent paid by Spence & Co. is understood to be for the scattalds.

Mr. Spence, the senior partner of the firm of Spence & Co., speaks of this liability of the curer for rent as a serious obstacle to the introduction of a system of cash payments, which he and his partners desire; but it is obvious that if payments were made in cash, no such guarantees could reasonably be asked from the curers. [J. Spence, 10,580 f.n.]

The evidence of Mr. Sandison above quoted, the belief which the men themselves entertain, and the statements of Mr. Walker, the factor on the estate, show that the

tenants on this property can hardly decline to fish for Spence & Co., even if there were other large merchants in Unst who could furnish them with materials and supplies, and purchase their fish. If they are not bound to sell their fish to Spence & Co., they have no opportunity and no liberty to sell them to any one else. [J. Harper, 10,404; J. Walker, 15,999.]

RESTRICTION OF FISHERMEN BY LETTING OF BEACHES

A limitation of the freedom of the fishermen arises in some districts where they are nominally free, from the beaches and fishing stations being let to particular curers, so that other merchants are excluded from the market; and even it would seem the fishermen are disabled, by the want of a suitable beach for drying their fish, from curing for themselves. There is not much evidence on this matter, which was brought under my notice at a late period of the inquiry by a statement made with regard to the fishermen at Spiggie and Ireland, in Dunrossness. The Act 29 Geo. II. c. 23 gives fishermen ample [Page 14 rpt.] powers to erect all apparatus and booths necessary for curing their fish on waste land within a hundred yards of high-water mark; but perhaps it could not be held as Mr. J. Harrison seems to think, to prevent a proprietor from enclosing and letting any part of his land adjacent to the sea for the purposes of a curing establishment.

[R. Henderson, 12,841; A. Irvine, 13,501; R. Mullay, 15,144; John Robertson, jun., 15,159; John Harrison, 16,470; T.M. Adie, 5762; Jas. Robertson, 8466; G. Gaunson, 8863; A. Sandison, <passim>; J. Spence, <passim>; John Harrison, 16,470.]

TRUCK SYSTEM-ADVANCES AND SETTLEMENTS.

The existing Truck Act (as well as the Bill now before Parliament) prohibits the payment of wages in goods in the various trades to which it applies. Even, therefore, if fishermen formed one of the classes of workmen falling under the Act, they would not be protected by it, because they do not receive wages, but are paid a price for their fish. One result of this is, that Truck, as it exists in Shetland, is without disguise or concealment. No machinery has been contrived for evading the law; and almost all the masters, and even some of the fishermen, regard the system which prevails, as wholesome, natural, and indeed inevitable.

I have already explained that the price of the fish is ascertained and settled only for once in the year. But fishermen, as Adam Smith remarks, have been poor since the days of Theocritus; and in Shetland the Truck system begins when, his farm produce failing to support the family, the fisherman farmer finds it necessary to obtain from the 'merchant' supplies or advances before the time of settlement, and, it may be, a boat, fishing materials, and provisions, to enable him to prosecute his calling. In Shetland the merchant needs to use no influence or compulsion to bring the fisherman to his shop. He has no black-list, and has to enforce no penalties for 'sloping.' As the laws against Truck do not apply to him, even remotely, he scarcely

ever seeks to conceal the fact that the earnings of those whom he employs are paid to a large extent, in goods, and he is even prepared with arguments in vindication of the practice. The man whose farm cannot keep his family until settlement, comes, as a matter of course, to the fish-curer's store; and even the thriving and prosperous man, who has money in the bank, 'almost invariably' has an account at the shop. In the great majority cases there is a mutual understanding, that when a merchant buys your fish, you ought in fairness to get at least a part of your goods at his shop.

[Andrew Tulloch, 509; L. Mail, 568; W. Williamson, 855; P.M. Sandison, 5146; Rev. D. Miller, 5998; J. Brown, 7986, 7997; T.M. Adie, 5633; 5735; A. Tulloch, 5472, 5501; John Anderson, 6546; G. Robertson, 9311; G. Gilbertson, 9557; J. Laurenson, 9837; M. Henderson, 9830-1; J. Harper, 10,387; C. Nicolson, 11,939; A. Abernethy, 12,268; L. Garriock, p. 303a etc., 12,347, 12,356, 12,360, 12,388 sq.; T. Hutchison, 12,686; L. Henderson, 12,744; J. Halcrow, 13,090; R. Simpson, 13,980; John Robertson, jun., 15169.]

'There is a tacit understanding' says the Rev D. Miller, 'at least that they must do that; but I believe that is induced by the circumstance, that for a large portion of the year their money is in the merchants' hands, and that again affords the kind of facility for running into debt which I have spoken of.' '5999. Do you think that makes them incur larger debts than they otherwise would do?-I think so.' '6000. Can you suggest any remedy for this state of things?-The remedy I would suggest is this: that the payments be as prompt as possible and that they be cash payments. I am quite ready to state how I think the cash payments would operate. At present the fisherman's money is all in the merchant's hands; but he is requiring goods in the meantime and he has money to procure them with, and therefore he goes to the merchant and procures his goods. The merchant is under no constraint,-he can put his own price on the articles which he sells; and of course, where there is a credit system like the present, there are a large number of defaulters. These defaulters do not pay their own debts; but the merchant must live notwithstanding, and therefore the honest men have to pay for the defaulters. The merchant could not carry on his business unless that were done. He must have his losses covered; and a system of that sort tells very heavily upon the public, because the merchant must charge a large margin of profit.'

The existence of such an understanding is sometimes denied, as by Mr. Pole, a merchant; but he evidently means only that there is no expressed bargain or arrangement. He adds, at the same time (speaking of the women employed at so much per ton in collecting kelp, who, like every other class of people in Shetland, have similar accounts), that they take a considerable part of their wages in goods:

'5925. Is there any expectation or understanding, when these women are engaged, that they shall open an account and take their wages, or the greater part of them, in goods at your shop?-No, there is no understanding; but we have every reason to believe that they will come to us, because they cannot manage otherwise.' '5926. Are the goods which they take generally provisions or soft goods?-Chiefly provisions, but some soft goods too.' '5927. In engaging these women, do you give any preference to those who deal at your shop?-No; but they mostly all deal there.' '5928. Has each of

them a ledger account in her own name with you?-Yes.'

A very observant and shrewd witness, speaking of the lobster and oyster trade, in which he is engaged, says:

[Page 15 rpt.]

'11,817. I understood you to say that when the men come with oysters and lobsters to the shop, and were paid, they generally took away some supplies from the shop?-They generally do, but they are not asked to do it.' '11,818. Do they appear to think it a fair and proper thing that they should do so?-I think they do.' '11,819. Is that a common sort of feeling, among the men?-Yes, it is it common feeling in the country.' '11,820. In short, they apologize if they don't spend the money in the shop where they get it?-Something like that. I should not say that they apologize, but sometimes they tell me what they want the money for, and they say they have to take it away. Of course they are not asked to leave it.' '11,821. But there seems to be it kind of understanding that they are to spend part of their earnings in the shop?-The people seem to have the opinion that they ought to do that.' '11,822. And I suppose the merchant has some feeling of the same kind also?-I never ask them to spend the money in the shop; but of course we are glad to get what money we can.' '11,823. I suppose they don't require to be asked to spend some of it?-No.'

[W. Harcus, 11,817.]

CASH ADVANCES

There is a reluctance on the part of the men to ask for an advance of cash, arising partly from the feeling I have mentioned, and partly from the habitual and natural reluctance of the merchant to give it. When cash is given, it is for a special purpose, such as the payment of rent or taxes, or the purchase of some article which the merchant himself cannot supply.

[P. Peterson, 6845; J. Laurenson, 9872; W.G. Mouat, 10,249; C. Nicholson, 11,977; l. Garriock, 12,589; J. Robertson, 8484; T. Robertson, 8597, J. Harrison, 16,509.]

'4973. Does Mr. Grierson advance you money in the course of the year before settlement when you ask for it?-He does.' '4974. Can you not take that money and deal with it at any other store that suits you better than Mr. Grierson's?-We do that very often.' '4975. Then how is it that you say that you have not the means of dealing where you choose?-What I mean by that is, that we don't have the chance to do it so often as we would like to do it; and we don't like to be always running to him for money for the small things we require. It is only in particular cases, when we require it pound or so to help us, that we ask it from him.'

[James Flawes, 4973-5.]

'8522. You say you were not bound to do it: is it common for men to feel that they are bound to do that?-Of course. If I was employed by a curer or a merchant, and had been in the habit of dealing with another before I was employed by him, I would consider it something like a duty, in a moral point of view, to put my money into his

shop; and I have done so, although I have never been obligated to do it.'

[P. Blanch, 8522.]

In some cases the evidence shows that cash advances during the season have been absolutely refused, or that at least it is thought useless to ask for them. Thus, says Malcolm Malcolmson:

'3004. Did you consider yourselves bound to take goods from Mouat's store?-We could not do anything else.' '3005. Why?-Because we had no money to purchase them with from other stores. We received no money during the fishing season.' '3006. Did you ever ask for advances of money during the fishing season?-Yes; but they were refused.' '3007. Why?-Because he just would not give it. He gave no reason, except that he could not give it.'

[M. Malcolmson.] [W. Manson, 3040; J. Nicholson, 8747.]

The merchant, both in Faroe fishing and ling fishing, naturally prefers to make any necessary advances in goods rather than money:

.. 'They make advances, perhaps before, but as soon the men engage to go to the fishing. It may be about this time, or it may be a month previous to this, when they make the engagement to go.' '8526. And they make an advance then either in cash or in out-takes?-I don't think they will likely give much cash. They may give 8s. or 10s. in cash; but unless they know the man is to be depended upon, I don't think they will give much more. They may give £1 to a man until he has made some earning by his fishing; but unless it is a case where they know it can be paid back again by the man otherwise, they will not give it. He may pay it out of his stock, for instance, or he may have some other means.'

[Peter Blanch.]

It was common in the past-though now cash is given more readily, at least in Lerwick and by the leading merchants-to refuse money before settlement, while the merchant was quite willing to advance to any reasonable amount in goods. This preference is sometimes shown very unmistakeably even in settling for the winter fish. This applies to Faroe still more than to ling fishing.

[W. Williamson, 821, 833; C. Sinclair, 1177; A. Tulloch, 5495; J. Anderson, 6550; J. Goodlad, 1188; J, Manson, 2962.]

The truth as to cash advances is very succinctly stated by a large employer, Mr. John Anderson of Hillswick, who says: 'I think they would not get cash (before settlement) unless they were clear, or unless we had good cause to know that they were really in necessity for something.'

[J. Anderson, 6546; A. Sandison, 7076; J. Robertson, 8484; T. Hutchison, 12,637.]

But although witnesses do not speak of many cases of actual refusal to advance money before settlement, it is well understood that the merchant, to whom the men look for more or less liberal support in bad seasons, prefers to make advances in goods. The Shetland peasant is quick to comprehend and act upon such a feeling; and

hence the understanding is almost universal that cash is asked for only within [Page 16 rpt.] very moderate limits, even by unindebted men, and the particular purpose for which it is wanted is generally specified.

There are, of course, differences in the readiness with which cash is advanced by the various merchants, as the returns made to me show. Thus there is unanimous testimony to the fact, that Mr. John Bruce, jun., whose 'bondage' and prices were most loudly complained of, never refuses money advances before settlement, when asked, to the full amount of the fish at a man's credit, and, in the case of a good man, to any reasonable amount he may ask for. In some places, advances are mostly made at the settlement of the previous year, to men who have got as much money as they require.

[L. Smith, 4457, 4486; H. Gilbertson, 4533; G. Leslie, 4629; R. Halcrow, 4676; A. Leslie, 4885; G. Williamson, 4905; J. Bruce, Jun., 13,322; G. Irvine, 13, 162; J.L. Pole, 9391.]

The effect of the long settlements in compelling men to deal at the merchant's shop is very clear to the men themselves, although they do not appear to regard it as a great hardship, except where the goods at a particular shop are of bad quality or high price. William Goudie says:

'4298. Are you under any obligation to buy your goods from Mr. Bruce's shop?-Not strictly speaking.' '4299. What do you mean by "not strictly speaking?"-In one sense we are not bound, yet in another sense we are bound. There is no rule issued out that we must purchase our goods from there; but as we fish for Mr. Bruce, and have no ready money, we can hardly expect to run accounts with those who have no profit from us. That confines many of us to purchase our goods from his shop.' .....'We cannot expect to run a heavy account with a man who has no profit from us, when we are uncertain whether we will be able to clear that account or not. Therefore, as a rule, we do not run heavy accounts for such things as meal, for instance, when our crops are a failure, with any man except Mr. Bruce.'

[Wm. Goudie, 4928, 4307.] [L. Smith, 4480, 4488.]

And another witness says:

'4669. But if the prices are so much higher at the Boddam shop than elsewhere, why do you go there when you say you are not obliged in any way to take goods from the Boddam shop? Why do you not go to Gavin Henderson's for them?-I am obliged to go to the Boddam shop and take my goods there if I have no money in my pocket to buy them elsewhere.' '4670. Does that often happen?-Perhaps not very often with me, but it happens as a general thing among many of the men. I believe there are as many men who have to go to Mr. Bruce's store and take their goods there, in consequence of the want of money to pay for them at other places, as there are who can go and open accounts with other merchants and pay them yearly'

[R. Halcrow, 4669.]

MEN MUST DEAL AT CURER'S SHOP

The main reason why men must deal with the fish-curer is, that most of them have neither money nor credit elsewhere. The fish-curer is secured in the fisherman's services for the fishing season, and holds his earnings in his hands for a year. He cannot lose by him, unless he voluntarily allows his 'out-takes' to exceed his earnings. But other shopkeepers have no such security; indeed they know that the man is already engaged to fish for a rival shopkeeper, and that the latter will not only pay himself for his possibly large account, but will also retain the man's rent, leaving for other creditors at best but a small balance, and not always a balance, of his earnings. Add to this that in bad seasons many fishermen depend on the merchants for larger advances than one season's fishing can repay, and it becomes apparent that the attraction to the merchant's shop is not only the possibility of present credit, but gratitude for past favours, and the certain expectation of having to ask for similar favours in future. It is quite true, as Mr. Irvine says, that 'one great drawback on a Shetland business is fishermen's bad debts, and our chief study is to limit the supplies when we know the men to be improvident; but it is quite impossible to keep men clear when the fishing proves unsuccessful.' And there is evidence that in bad seasons, such as 1868-69, merchants are expected to advance, and do advance, large amounts in meal and other necessaries, and in cash for rent. Where such advances are made, the fishermen are of course bound, sometimes by a written obligation, to fish for their creditor next season.

[M. Johnson, 7909, 7921, 7928; James Brown, 7977; C. Georgeson, 12,126; James Hay, 5401; W. Irvine, 3623, p. 83b 3793; A. Sandison, 10,016; J. Hay, 10,540; A.J. Grierson, 15,089; W. Irvine, 3796.]

The habit of dealing on credit at the fish-curer's store is so inveterate, that even men who have means to buy their provisions, etc., frequently begin the account for the year at the very time of settlement. Mr. Grierson says:

'15,096. But do you think a man would stand permanently in arrear at settlement with you if he had money in the bank?-No; but if I settle with him in January, I believe he would go and deposit a £10 note from that year's settlement, and begin a new account with me, and get a new boat, and let it stand to his credit until next year. But he would never think of having a permanent running balance with me if he had money of his own in bank.' '15,097. Is it a general thing among the men to go and deposit some of their money in bank and begin a new account with you?- Yes, I believe they do that for a single year. They would be great fools if they did not. They keep a pass-book, if they choose, with, the shop, and they would be no better off if they were to pay for their goods in money.'

[A.J. Grierson, 15,096.]

[Page 17 rpt.]

'Plenty of them,' says Mr. Peter Garriock, speaking of Faroe fishers, 'are able to live on their own resources, but still they come for their supplies;'and he gives an example, which is not a solitary one. Mr. John Harrison says:

... 'The system has obtained so long, of fishermen requiring advances, or rather taking advances, that they cannot see, or do not understand, why they should take

their own money in order to buy the necessary supplies before they proceed to the fishing. I have no doubt that they have also this idea, that the fish-curer takes a sufficient profit upon the goods supplied, and they consider they have a right to keep their money and not to pay for them until the end of the season.'

[P. Garriock, 15,223; W.B.M. Harrison, 15,724; John Harrison, 16,511]

It is of course a result of this system, that a large shop business, in many districts, can be carried on only by one who has a fish-curing establishment. In Lerwick and in Walls, in one case in Dunrossness (Gavin Henderson), and perhaps in Unst, some shops have succeeded without the aid of fishing, but always under difficulties. Fish-curers have also attempted to confirm or extend this monopoly by artificial means, such as the prohibition of rival shops,-as in Burra, Whalsay, Unst, Northmaven, Fetlar , and Yell.

[T. Williamson, 9463; G. Georgeson, 12,111; A. Sandison, 10,133.]

It has thus come to pass that there is almost nowhere in Shetland, out of Lerwick, a shop of any size not belonging to a fish-curer. I attempted to ascertain the views of various small shopkeepers, struggling to make a trade, with regard to their larger neighbours. Sometimes these men did not understand the disadvantage under which they are placed; or they may have had views of eventually rising by the same means which have led their competitors on to fortune; or, as there was sometimes reason to suspect, they may have been put into business by a larger merchant to sell his goods on commission, or have been otherwise indebted to him or dependent upon him. Whatever may be the cause, shopkeepers of this class are not so sensitive, or not so communicative, on this point as might be expected. One or two, however, were found independent enough, or intelligent enough, to tell how their business is hampered and confined by the local custom, which thirls the men to the shops of the fish-merchants. Mr. Georgeson, a respectable shopkeeper in the parish of Walls not engaged in fish-curing, says that men who sell their fish green are necessarily less frequent customers of his than those who cure their own fish. He thinks that the skipper generally influences his men to take their supplies from the shop of the merchant, or at least that the men are apt to be guided to do so by his example; while his neighbour, Mr. Twatt, thinks 'there is a little bribe which the skippers get for seeing that the men go to the shop.' I give this, however, merely as an opinion by a shrewd but not disinterested local observer. The force of custom, the want of ready money, and the other influences already mentioned, are quite sufficient to account for the great amount of this kind of Truck which exists in Shetland, without having recourse to the supposition that skippers or others are bribed to induce men to buy goods at the employer's shop.

[G. Georgeson, 12,122; J. Twatt, 12,200; R. Henderson, 12,860.]

ARGUMENTS FOR PRESENT SYSTEM

I have said that some of the employers are prepared with arguments to vindicate the system of annual settlements. The favourite argument is, that it affords the men, or at

least a certain class of them, protection against their own improvidence. For instance, Mr. P.M. Sandison says:

'5235. Does not that system of long settlements induce people to be a little careless about their money, and improvident?-There are a certain class who, if they had money, would spend it. That class are pretty well looked after by the fish-curer; they are only allowed advances in such small proportions as enable them to get through the year, and to be as little in arrear as possible at the end. If these same parties had the money in their hands, I am certain it would not last them so long as it does in the fish-curer's hands.' '5236. That is to say, he will only allow them certain amount of supplies from the shop?-Yes, so much a week or a fortnight.' '5237. Or cash if they want it, but to a limited extent?-Yes; I should think that cash would be given to a free man.' '5238. But not to a bound fisherman?-Not unless it was for a necessary purpose-to purchase something, for instance, which the merchant cannot supply.'

[P. Smith, 986; L.F.U. Garriock, 12,372; W. Irvine, 3641, 3826; J. Anderson, 6707; Rev. J. Sutherland, 7518; A. Harrison, 7664; T. Gifford, 8102-8124; D. More, 9634; A. Sandison, p.248 f.n. to 10,205, 10,483; J. Spence, 10.559.]

The members of the firm which holds the lands and fishings in Unst urged strongly that only a large concern like theirs would have the interests of the men in view as well as their own, and, by possessing a monopoly and restricting the men's credit, keep them free from debt. With this view they have made war against small shops in that island. The returns show that they have not yet succeeded in keeping the men free from debt.

[A. Sandison, 10,494; J. Spence, 10,559.]

The sort of partnership that exists between merchant and fisherman, the latter being paid in proportion to the results of the whole year's transactions, is the chief excuse for delaying settlements. The views of the merchants on this point may be seen from the following passage in the examination of Mr. Robertson, manager for Mr. Leask, one of the chief merchants in Shetland. Mr. Robertson came forward with other [Page 18 rpt.] merchants for the purpose of denying the Report of Mr. Hamilton to the Board of Trade, and the other statements made in the previous inquiry:-

... 'Then I deny that the truck system in an open or disguised form prevails in Shetland to an extent which is unknown in any other part of the United Kingdom. I have no proof to offer in contradiction of that statement; I simply deny it, and I don't believe it.' '13,698. What is the population of Shetland?-About 30,000.' '13,699. Of these, how many do you suppose consist of fishermen and their families?-I should say that perhaps about three-fourths of them are fishermen and seamen, and their families.' '13,700. I suppose the seamen are mostly the younger members of the families?-Yes.' '13,701. Is it not the case that almost every fisherman has an account with the merchant to whom he sells his fish?-Yes; but I don't consider that to be truck at all.' '13,702. That account is settled at the end of the year, part of the value of the man's fish being taken out in supplies of goods, and the balance being paid in cash, if any balance is due?-Yes. He simply has an account, in the same way that all the retail merchants in Shetland and everywhere else have to deal with wholesale merchants,

and have to pay them.' '13,703. Do you suppose Mr. Hamilton meant anything else than that by saying that the truck system prevailed in Shetland?-I am not bound to know what he meant, but I deny his statement.' '13,704. I presume he merely intended to state that a great part of the earnings of every fisherman, as well as of some other people in Shetland, were really settled by taking out goods from the employers. Do you suppose he meant anything else than that?-I am afraid he did. I am afraid he meant to convey the idea that the men got nothing but goods when they should have got money.' '13,705. Is it not the case that many of them do get nothing but goods?-That is their own fault.' '13,706. Still it may be the fact, although it is their own fault?-It may be the fact, because the men earn very little, and they require supplies of provisions and clothing; and no person would give them such supplies unless the person who employs them. But I don't think that is truck, in the common meaning of the word.' '13,707. Then the difference between you is rather a dispute about the meaning of the word "truck" than as to the actual state of matters in Shetland?-I would not even admit that. I don't think there is any room for complaint about the state of matters in Shetland, as a rule.' '13,708. I suppose you mean that the fishermen have a certain advantage by getting advances of goods? -Of course they have.' '13,709. But you do not mean to deny the fact that they do get such advances when they require them?- Of course I don't deny that; but the shipowner or curer runs a great risk in advancing goods on the security of fish which have to be caught. It is a very good thing in a good season, but in a bad season he may come rather short.' '13,710. On the other hand, he does not pay for the fish that are caught until six or seven months afterwards?-He does not realize them until then. None of the fishcurers get one penny for their fish until about the end of December, except perhaps for a very small parcel which they may send to a retail dealer in the south.' '13,711. That may be quite true; but is any employer of labour in a better position?-Yes.' '13,712. A farmer, for instance, pays his labourers weekly or fortnightly, as the case may be, and he very often does not realize his crops until many months afterwards?-That is true; but he is selling his butter and milk and cattle.' '13,713. Still it does not follow that he is paid for them at the time?-Cattle, I think, are generally paid for in cash.' '13,714. But there are other producers, such as manufacturers, who are only paid by long-dated bills, generally at three months?-Yes; but here the merchant does not get his return until the end of twelve months. The fish-merchant or curer begins to advance in the beginning of January, and he continues to advance until the end of December, without getting any money back; so that he lies out of his money for twelve months. He neither gets money from the party to whom he advances the goods, nor from the party to whom he sells his fish.' '13,715. Do you think that is the main justification for the long settlements which are made with the men?-Of course it is.'

The real or imaginary necessity under which the men are placed, of dealing at the merchant's shop, is demonstrated by their taking meal and other bulky articles a distance of many miles to their own houses, although there are shops nearer home where they could be purchased of as good quality, and it would seem sometimes better and cheaper. Thus James Hay says:

'5343. Do you deal at his shop for all your provisions and your purchases of cotton and other things?-I do for the principal part of what I need, but not altogether.' '5344. How far do you live from Mr. Adie's nearest shop?-About 71/2 miles; his shop is at Voe.' '5345. Do you always go there for what you want?-Yes; generally I do that, unless sometimes when I am needing some small things, I may go to another: but I am not bound to go to his shop unless I choose to go.' '5346. Then why do you go so far?-Because I generally fish to Mr. Adie, and I have the greatest part of my dealings with him. I have not been accustomed to shift very much, unless it might be an inconvenience to me, and sometimes I have gone to another shop.'. . . '5399. Are you under any obligation to go to Mr. Adie's shop for the goods you want in the course of the year?-None that I am aware of.' '5400. You have never been told it of course; but is it a great deal more convenient for you to go there than to deal at another shop?-No; it is not more convenient. I could go to a shop somewhat nearer; but still I don't think I would be any better; and as it has always been my custom to go there, I just continue to go.' '5401. Is it only because it is your custom to go, or is it because you are in the way of delivering your fish to Mr. Adie, that you go to his store?-Mr. Adie has been very obliging to me many a time, by helping me when I could not help myself, and therefore I always felt a warm heart towards him, and went to his store.' '5402. But is it the way with the fishermen here, that they go to the shop of the man that they sell their fish to?-I am not able to speak to that except for myself.' '5403. Do you not know what your neighbours do? -It depends on the circumstances that my neighbours are in. If they are indebted to the man they are fishing to, of course they will go to that man, and perhaps have very little to go to him with.' '5404. Are those neighbours of yours who are so indebted also likely to engage to fish for the same the merchant during the following season?-Yes. When a man is short of money, and has not enough with [Page 19 rpt.] which to pay his land rent, he may go to the man he is fishing to, and he will help him with what he requires; but the understanding in that case is, that he will serve him at the fishing for the rising year. That is generally the way it is done.' '5405. Do you mean that when a man gets advances at a merchant's shop, it is understood that he must fish to him in the coming year?-Yes; that is generally understood.'

[James Hay, 5352 etc.; W. Green, 5860 (Voe to Sullom); W. Blance, 6057, 6118 (Voe to Ollaberry); G. Scollay, 8417; J. Robertson, 8454 (Muckle Roe to Hillswick); J. Johnston, 9552 (Voe to Burravoe); T. Robertson, 8590.]

So John Twatt, a merchant, says:

'12,210. Is it not the fact that men who live near you do go to Reawick for supplies, although it is much farther away?-Yes.' '12,211. And although it is inconvenient?-Yes, it is inconvenient. They could do much better by coming to my shop, which is next door to them, and they could get as good articles at the same price as they can at Reawick.' '12,212. How far is it from your place to Reawick?-I think it is about 10 or 12 miles.' '12,213. When the men go there for meal or other supplies, are these supplies brought across the country?-Sometimes they are brought by boats, and sometimes round by the rocks.'

BOATS AND FISHING MATERIALS.

Advances by the fish-curer to fishermen, in the form of boats and fishing materials, form a very material portion of the debits in the men's accounts. For the most part the boats used in the ling fishing belong to the men. It is generally understood that when a crew gets a new boat, it is to be paid up in three years. Sometimes a good fishing enables them to pay it the first year; more frequently the payment extends beyond the three years-generally for five fishing seasons. The price of the boat is charged against the crew, which has a company account in the merchant's books, and they are labourers jointly and severally liable for the whole. When a boat is furnished, it is always understood that the men are to continue to fish for the merchant who furnishes it until the whole price is paid; and this of course constitutes a bond over the men for three or more years, as the case may be. Sometimes hire is charged for the boat, or for the boat and lines. A new boat, ready for sea, costs £20; if supplied with new lines, the whole cost will be from £35 to £40. The men agree to pay £6 as hire for boat and lines, or £2 to £3 for the boat, for the period of the summer fishing. In Yell and other places, the merchant, for this hire, undertakes the risk of the whole. On the west coast of Shetland, the rate charged as hire and the amount of the annual instalment of the price of the boat and lines appear to be the same; and the lines, if lost, are understood, it is said, to be at the risk of the men in both cases, which is an inversion of the ordinary rule of law in location. It is generally said that little or no profit is derived by merchants from boat hires or the sale of boats. In some places, however, those who are anxious to get into business make deductions from the boat hire; in order to get men to agree to fish to depending entirely for their profit on the fish and goods sold. Hence it may be inferred, either that the hires charged are sufficient to remunerate the merchant for his outlay and risk, or that the profits made from the fish and goods sold are so large as to allow of this bonus being given.

[W. Irvine, 3838; T.M. Adie, 5607; T. Tulloch, 12,960; G. Irvine, 13,272; O. Jamieson, 13,396; P.M. Sandison, 5206; T.M. Adie, 5610; W. Pole, 5881, 5890, 5953; D. Greig, 7125, 7153, 7209; L. Williamson, 9092; John Laurenson, 9856; T. Tulloch, 12,958; A. Johnson, 14,933; T.M. Adie, 5638, 5642; P. Peterson, 6808; A. Sandison, 10,133; C. Nicholson, 11,950; L. Williamson, 9092; T. Williamson, 9514.]

With regard to lines and hooks, and such things as the men require for the fishing, they are bound or expected at most places to buy them from the merchant for whom they fish.

[J. Robertson, 8454; P. Blanch, 8717.]

Turning from the debit to the credit side of the account between the curer and the fisherman, the most important branch of the latter is the price of the fish. This is fixed in Shetland only when the annual sales of cured fish have been effected, <i.e.> in September or October. The understanding is that the men shall get the current price. This is not ascertained in any formal way; but as there is little difference between the prices obtained by the various curers, each calculates for himself how much he can afford to give to the crews for the green fish, and pays accordingly. There is always, of course, some knowledge, more or less vague and general, of the prices obtained and given by other curers, and there may be a consultation of some kind between the leading merchants. In some cases, curers, especially those who are in a small way,

wait until the leading merchants have settled with their men, and thus avoid questions with their men. In all cases the men hear how much their neighbours have got for their green fish; and it may be supposed that there is sufficient competition for men to ensure that the highest possible sum will be given. The fishermen themselves, however, do not seem to be satisfied of this, and there is an impression among some of them that 'the current price' of green fish is fixed by arrangement among the merchants at a lower rate than they might afford. This belief has originated, or has been encouraged, by the fact that the dealers of Cunningsburgh, in Sandwick parish, have for some years paid considerably more than 'the current price.' In 1871, the usual payment to fishermen was 8s. per cwt. of wet fish, which was thus ascertained: 21/4 cwt. of wet fish are calculated to produce [Page 20 rpt.] cwt dry. The current price of dry fish was 23s. per cwt.; cost of curing is usually estimated at 2s. 6d. per cwt. dry (or by Mr. Irvine at 3s.). Thus:-

Price of 21/2- cwt. wet ling, at 8s., 18s. 0d. Cost of curing, at 2s. 6d., 2s. 6d. Merchants' profit and commission, 2s. 6d., 2s. 6d. Total, 23s.

or about 11 per cent.* Merchants say that the cost of curing is actually greater than 2s. 6d. per cwt., and that their profit has to cover not only the risk of bad debts and insurance, but likewise a loss upon boat hires and sales, which never remunerate. Fishermen, on the other hand, assert that curing never costs so much as 2s. 6d. per cwt.; and they appeal, in support of this, not only to their experience in curing their own fish, but to the higher rates paid by Messrs. Smith & Tulloch in Sandwick parish The reply, as regards these merchants, is that they sell to retail merchants direct, and thus save profit of the middlemen or wholesale purchasers; but there is evidently a feeling of irritation among other fishcurers, because they have broken in upon the practice of paying a uniform price throughout the islands. A similar question with regard to the cost of curing has been raised in the Faroe fishing.

[L.F.U. Garriock, 12,581; W. Irvine, 3742; J.L. Pole, 9423; J. Bruce, jun., 13,332; J. Flawes, 4919; A.J. Grierson, 15,105; L. Williamson, 9085; A. Sandison, 10,154; L. Williamson, 9097; T. Williamson, 9515, 9536; L. Mail, 662; R. Halcrow, 4694; G. Blance; 5561; A. Sandison, 7062; J. Nicholson, 8721; J. Flawes, 4990; J.S. Houston, 9673; W. Irvine, 3623; W. Pole, 5882 sqq.; J.S. Houston, 9698; A. Sandison, 10,125; W. Robertson, 13, 646; L.F.U. Garriock, 12,565.]

Some men complain because they do not know what they are to get for their fish and that they 'work away as if they were blind;' but it is said on in a few cases where a price has been fixed at the beginning of the season and the price that has risen, the men have grumbled, and the curer has been obliged to pay the higher current price in order to retain the future services of the men. There is not, however, sufficient evidence to justify the conclusion that Shetland fishermen would, as a body, resent a merchant's adherence to a bargain which on other occasions must turn out to be a favourable one for themselves and a losing one for him. If there is any advantage in the present system, it is, as the Rev. Mr. Fraser points out, on the side of the fisherman, who is less able than the merchant to foresee the probable course of the market, and who, if the suggested change were adopted, would have to take, in the

run of cases, such a price as the merchant might judge safe for himself.

[James Hay, 5375; A.J. Grierson, 15,081; P. Garriock, 15,228; J. S. Houston, 9862; A. Sandison, 10,009; Rev. J. Fraser, 8071, but see P. Blanch, 8546.]

*CURERS' PROFITS.

Mr. Irvine (3623) says the prices of last year leave only 40s. per ton to the curer, out of which he has to pay store rent, weighing, skippers' fees, gratuities to fishermen, and to meet loss by small and damaged fish, and of interest and risk. The total quantity of cod, ling, and hake landed from open boats and cured in Shetland in the year ending 31st December 1871, according to the returns made to the Fisheries Board, was 46,391 cwt. If we suppose that the expenses which are to be paid out of the fishcurers' 2s. per cwt. amount to 6d. per cwt., there remains a sum of £3479, 6s. 8d., as the total profit earned by thirty-seven fish-curers and fish-curing firms. If we suppose that these expenses absorb 1s. of this surplus, then the total profit amounts only to £2319, 11s. It may be observed, however that other sources of profit are open to these fish-curers. All of them have shops, in which the aggregate credit sales to fishermen amounted in the year 1871 (from settlement to settlement) to probably £14,000. A considerable amount of cash transactions, and sales of goods for butter and eggs, also take place at their counters; and many of them deal in cattle and kelp, and are engaged in the Faroe fishing. With all these sources of income, however, it is difficult to believe that no larger direct profit per cent. is earned from so complicated and hazardous a business as the ling fishing.

STOCK SOLD TO MERCHANTS

Next to fish, cattle sold form the largest and most common credit in the account of the fisherman farmer, although this is not, like fish, an indispensable item in the account. Cattle, ponies, sheep, and pigs, are an important part of the Shetlander's means, and they, like the rest of his saleable produce, are generally purchased by the merchant, who buys all that leaves the country, from a whale to an egg, and sells everything that the country people want, from a boll of meal or a suit of clothes to a darning-needle. The stock goes into the account, and is settled for at the yearly settlement. There is a custom throughout the country of holding public sales twice, sometimes four times in the year 'for the benefit of the tenant' as a witness puts it' but also for the benefit of the landlords and merchants. The sales are managed by the proprietor of the estate for which they are held, or by his tacksman or factor, and the prices of all the animals sold are paid, under the conditions of sale, into his hands. He has thus, just as in purchasing the fish of his tenants, an opportunity of retaining what is due to him for rent, and of making effectual his hypothec, or rather of avoiding the necessity of enforcing it at all. No cases have been alleged or proved in which advantage has been taken by proprietors or merchants of the power given them by their position, or by the indebtedness of tenants, for the purpose of getting cattle at low prices; and, indeed, the publicity of these sales to be a sufficient safeguard against such abuses. There is a practice, formerly much more widely prevalent than it is now, of marking the horns of animals with the initials of a

creditor, which is supposed to hypothecate the debtor's cattle effectually as against all but the landlord's claim for rent. The practical effects appear to have been formerly injurious; <e.g.>, a well-informed and reliable witness says that, twenty years ago, when a merchant bought a beast from one of his debtors, he could really fix the price himself. [Page 21 rpt.] But the practice seems now to be so rare, probably because its legal inefficacy is better understood, that it need not be more particularly referred to.

[J. Laurenson, 9873; T. Gifford, 8133; A. Sandison, 10,079.]

There is evidence as to the sales of cattle on the Sumburgh, Busta, Gossaburgh, and Ollaberry estates, and in the islands of Unst and Yell. A man who is in debt to the landlord or merchant-tacksman is expected to offer his cow or pony which is for sale to him first. If the owner is dissatisfied with the price offered, he has an opportunity of exposing it at the next half-yearly or quarterly sale, where all the money passes through the hands of the merchant or landlord, and is settled for at the end of the year, the owner getting supplies from the shop if he requires them in the meantime. Intimation is given to all the tenants of the sale; and a man who is very deeply in debt is 'so far forced to bring his cattle and sell them.'

[W. Irvine, 3772; R. Halcrow, 4673; P.M. Sandison, 5271; D. Greig, 7228; Rev. J. Sutherland, 7600; T. Gifford, 8130; J.S. Houston, 9686; J. Laurenson, 9873; G. Irvine, 13,241; J. Bruce, jun., 13,329; R. Halcrow, 4684.]

An instance of a sale of wool to a merchant-tacksman by an indebted tenant, at a lower price than might have been obtained (according to the tenant's own statement), is given by Robert Simpson:

'14,014. Was 111/2d. the current price for wool last autumn?-I cannot say. That was what we got for it from Mr. Sutherland.' '14,015. Did anybody else offer to buy it from you?-We did not offer it to anybody else, because we thought he had a better right to it, as he was paying the rent. There were several people asking me for it, but I would not sell it to them.' '14,016. How much did they offer you for the wool?-We never came to any particular agreement about the price, because I would not consent to sell it to them at all.' '14,017. Did they not say anything about what they would give you?-They spoke of 1s.; but I thought it better to sell it for 111/2d. wholesale than to sell it to them for 1s., even although I had had power to do it. Besides, I thought Mr. Robertson had the best right to it.' '14,018. Had Mr. Robertson told you that he expected to get your wool?-I cannot say that he had.' '14,019. Had Mr. Sutherland told you that?-If I could have paid my debt he would not have asked it.' '14,020. But did Mr. Sutherland tell you that he expected to get your wool?-Sometimes he would ask me if I would give him the wool, and that I would be better to give it to him than to sell it to another.' '14,021. Even at a halfpenny less?-Yes.'

This is probably a true enough picture of the transactions in regard to cattle, which in bad times are still commonly resorted to for the purpose of reducing large debts; but of which, in the late prosperous years, little has been heard.

THE EXTENT OF INDEBTEDNESS. ADVANCES ARE MADE UPON AN ENGAGEMENT TO FISH.

The evidence taken in Shetland does not confirm the statement made before this Commission in 1871, that 'the success of a merchant in Shetland consists in being able to accumulate such an amount of bad debts about him as will thirl the whole families in his neighbourhood, and then he succeeds,' etc. So far as this exaggerated statement has any truth, it may be said to mean that a merchant often avails himself of the power given him by his past advances, and by the hope of more, to secure both the fish and the shop custom of the fishermen in his neighbourhood; while fishermen so often need accommodation from the merchants, that even those who for the time are clear do not think it prudent to break off their connection with the merchant of the place from whom they have hitherto got supplies, and by whom they expect to be assisted in future bad years. But it does not mean, and probably was not intended to mean, that merchants ever deliberately sink a part of their capital in binding fishermen to them by the uqestionable bond of hopeless debt. The truth, so far as the highest class of merchants is concerned, seems to be fairly stated by Mr. Irvine, who says, with regard to the system of paying for fish by reference to the current price, that -

'Fishermen are quite safe with this arrangement. They know the competition between curers all over the islands is so keen, that they are secure to get the highest possible price that the markets can afford. Any curer that can offer a little advantage to the fishermen over the others is certain to get more boats the following year; and this is carried so far, that men with limited capital, in their endeavours to obtain a large share of the trade by giving credit and gratuities, in one way and another leave nothing to themselves, and in the end come to grief.'

[John Walker, qu. 44,319; W. Irvine, 3623, 3856 sqq.; See L. Williamson, 9092; T. Williamson, 9513.]

Undoubtedly, all the merchants are in the habit of making advances to fishermen, chiefly in the form of goods, long before the fishing season begins. In such cases there is, as a matter of course, an obligation, sometimes in writing, to fish for the ensuing year; and for the purpose of more easily getting such advances, boats' crews are often formed as early as November and December. Advances of boats and lines are invariably made upon an engagement by the men who get them to deliver their fish. [Page 22 rpt.] But many of the merchants examined as witnesses agree in stating that indebtedness does not give them a hold over their men; a statement which must, however, be limited to the case of men who are hopelessly and irredeemably sunk in debt, who see no means of escape from it, or rather no means of obtaining supplies beyond the barest subsistence, but by removing to another employment. A merchant is not always desirous to retain the services of such men, because his chance of getting the old debts repaid is small, while he cannot continue to employ them without making further advances to enable them to go on with the fishing. The statements made by merchants, that indebtedness is the great drawback to their business, that indebted men are worst to deal with, and that debt gives them no control over the men, must, I think, be referred to such extreme cases only, and are

not applicable to the relations between merchants and men who, not of being already hopelessly involved, require some advances in money for rent, in the form of boat and lines, or in goods for family use, after settlement and before the fishing season begins. In all such cases the debt is incurred on the express or understood condition that the man shall deliver his fish next season, and where the advance consists of boat and lines, until it is altogether paid off. To this extent it cannot be said that the debt gives the merchant no hold over the men.

EFFECT OF DEBT IN BINDING THE MEN TO A MERCHANT ENGAGEMENT BETWEEN MERCHANTS ON WEST COAST NOT TO INTERFERE WITH EACH OTHER'S MEN

In districts where indebtedness is general, the bond formed by debt is stronger. Merchants are there obliged to save themselves by enforcing their claims against indebted men, whom others, in more fortunate districts, would gladly get rid of. The merchants have allowed their debts to become too numerous and too large, either from a wrong system in the management of their business or from a desire to 'thirl' the west side men to them. On the coast of Northmaven and of Delting, a complete monopoly of the fish trade is possessed, not by landholders or their tacksmen or factors, but by three merchants (Messrs. Adie at Olnafirth Voe, Inkster at Brae, and Anderson at Hillswick and Ollaberry), who lease curing premises and a small portion of agricultural or pasture land from the Busta trustees. Except at North Roe, where Messrs. Hay have a station, there is no other merchant, along a coast-line extending for many miles, to whom the tenant can sell his fish; and the indebted man has not the liberty, which he seems to be able to exercise in some other districts, of entering into an engagement with another merchant, with whom he begins afresh, with clear books, and the hope of keeping clear. I do not say that it is morally wrong for the merchant to endeavour to secure payment of a debt by requiring the debtor to agree to deliver to him the produce of his fishing. But it cannot be a wholesome system which has led the merchants into giving credits, which they can only recover or secure by such means, and which induces them to enter into a formal written engagement among themselves-'not to tamper with or engage each other's fishermen, or allow our boat-skippers or men to do so, or to make advances of rent to them on their cattle, sheep, or ponies, or under any circumstances whatever, unless they produce a certificate from any of us whom they last fished for to the effect that he is clear of debt.' The formal stipulation thus undertaken is only what has been very frequently, not universally, acted upon throughout the western and northern parts of Shetland; for men changing their employment often find at settlement the debts due to their late master standing against them in the books of the new master. Sometimes in coming to a new employer the men's debts are, with their consent, transferred to his books, or they get cash to discharge them.

[Wm. Adie, 8641; J. Anderson, 7775; M. Laurenson, 7354; A. Harrison, 7746; T. Gifford, 8126; J. Wood, 8371; M. Henderson, 9940; A. Sandison, 10,497; T. Tulloch, 13,001; C. Ollason, 16,019; John Robertson, sen., 14,126; L. Williamson, 9074.]

The fishermen, on the other hand, for the most part admit that, so long as they are indebted to a merchant, they must continue to fish for him. Notwithstanding the

statements of the merchants before referred to (see above), the truth appears to be that most of them do so continue from honesty as much as from fear of onsequences. But, so far as the practical effects of the system are concerned, it is perhaps of small importance whether supplies are given in the belief that a man's honesty and his fear of legal execution will make him continue to work them off by his labour, or in the belief that his fear of legal consequences alone will have such an effect.

[G. Blance, 5554; C. Young, 5829; P. Blanch, 8575; C. Nicholson, 8694.]

Some merchants do not hesitate to admit that being indebted compels, or at least induces, men to fish to the creditor; and, indeed, it is so obviously and naturally an inducement to do so, that it is impossible to avoid regarding indebtedness to the merchant and the engagement to fish for him as more than a merely accidental sequence of events. Experience, however, has been teaching the more extensive merchants, and teaching them perhaps more readily because they have less difficulty than others in getting fishermen, that free or unindebted men are the most successful fishermen; and that to act on the old Shetland maxim, 'If you once get a man into debt, you have a hold over him,' is to fill their boats with inferior or at least half-hearted men, and their books with bad debts. Thus the returns show that at two important stations of a leading firm 244 men were employed in 1867, and 260 in 1871; and that of these, 72, or less than a third, owed sums averaging only £2, 7s. 9d. at the settlement of 1867; while in 1871 only 9 owed sums averaging £l. In this and other cases, where debt is less, the supplies of goods also bear a less proportion to the money payments.

[L.F.U. Garriock, 12,549; T. Tulloch, 12,998; J. Harrison, 16451; Rev. D. Miller, 5596; D. Greig, 7165.]

The extent of indebtedness thus differs in the different districts. It is difficult to say whether this difference is caused by accidental circumstances, or by the degrees of firmness with which the various merchants act on the principle of restricting advances and supplies when a man is getting behind. In bad years still more after a succession of lean fishings and harvests restriction is of course universal, and all the inhabitants of an island or a parish may be getting weekly doles of meal at the merchant's shop. At Grutness store, a day is fixed for the families who are 'on allowance' to come for their meal. The proportion of men in a state of indebtedness, and the amount of their debts, will be best seen from the tables afterwards given. There are, however, many general statements on this subject which I shall briefly refer to. In considering these and the tables, it must be kept in view that, in spite of some bad fishings and harvests in late years, the people are generally in a more thriving condition than they were ten or fifteen years ago. They have shared in the general prosperity of the empire. The Rev. Mr. Miller, who says that the majority of the fishermen at Mossbank are further in debt than they can hope to pay in one year, believes that they were once worse, and that eight or ten years ago hardly a fisherman was not in debt. The Rev. J. Fraser of Sullom believes that a great number of the men are very seldom clear, and that permanent indebtedness prevails to a much larger extent than is good for the community. It must be admitted that the sums due by the men are much smaller in Shetland than the sums which, it is said, are

often due by fishermen in Wick, where the boats and nets advanced to the men are comparatively expensive. In a few cases, debts of £40 have been contracted; but that seems to be a rare and indeed is considered a hopeless amount. The returns show that the average debt of chronic debtors, so far as it can be ascertained, is very much less. Mr. Anderson states it to be £12. 4s. in 1871 at Hillswick, having been £14, 2s. in 1868. The witnesses are numerous-so numerous that it is not necessary to note their names-who say that they have been in debt at settlement for many years, or that the balance is generally against them.

[T. Hutchison, 12,640; L. Robertson, 13,966; G. Irvine, 13,178; Rev. D. Miller, 5989; Rev. J. Fraser, 8019; A. Harrison, 7446; J. Anderson, 7770, 7835; A. Humphray, 12,822; J. Anderson, 7834.]

It is almost superfluous to point out the connection between the system of accounts at the shops and the general indebtedness of the peasantry; but it may be interesting to refer to the evidence of Magnus Johnston, now a small shopkeeper, and formerly skipper of a Faroe smack. He says:

'... I think it would be better for the people to have no accounts at all.' '7932. Do you mean that it would be better for their own sakes?- Yes. '7933. What would be the advantage to them?-For my own part, if I had no money, but if I had credit, I might go to a shop and take out more goods than perhaps I ought to do, without regard to whether I would be able to pay them or not; whereas if a man did not have that liberty, but went into a shop with only a few pence in his pocket, he might make it spin out better, or more to his own advantage. '7934. Do you think he might get his meal cheaper by going to another shop and paying for it in cash?-He might, or he might take better care of his money, and manage to spin it out more.' '7935. I suppose a merchant like yourself, if you were giving long credit in that way, would require little more profit on your goods?-Of course.' '7936. But you can afford to sell cheaper because you are paid in cash?-Yes; and I think it would be better for the public in general if all payments were made in cash.' [M. Johnson, 7931.]

Again, Mr. James Hay, formerly a merchant in Unst, but never concerned in fishcuring, says:

'... My own conviction is, that if a ready-money system was once in operation, and had a fair start, it would work better than the present system.' '10,528. But how are you prepared to give it a start?-I think that if the men were paid their money monthly or fortnightly, that would make them feel their independence better. Perhaps they would husband their means better; and if there were those among them who were careless about it, they would be taught a lesson when the year was done, which would serve as a warning for them in time to come. There might, however, be a difficulty in beginning such a system. I can remember, and others present will remember it too, two or three years of bad fishing, followed by a year of blight, when the man who wrought most anxiously and was honest-hearted could not meet the demands upon him. At such times, if there was no qualification or mitigation of the ready-money system, perhaps the men might get into difficulty.' '10,529. But do you not think that with that system of fortnightly payments a respectable fisherman and

tenant would get credit just as easily as he gets it now?-I believe he would.' '10,530. From a greater number of persons, and on advantageous terms?-I think he would.' '10,531. Do you think there would be more places open to respectable fishermen, at which they could get credit if it was absolutely required in a bad season?-Yes.' '10,532. I suppose in a bad season now no merchant would give credit to the fishermen unless he was secure of their services for next season?-I should suppose so.' '10,533. Therefore the fishermen, as a rule, are shut up to the one shop?-Yes, it comes to that.' '10,534. Where fishermen were paid monthly or fortnightly, and you knew a man to be a respectable man, would you, as a merchant, have any hesitation in a bad season in giving him credit for the support of his family?-I would have no hesitation in doing that at all, and I have done it. ....' '10,537. But do you think you would be more likely to obtain repayment if there was an open system, and the whole country was not monopolized by one or two great firms?-I think so; because if the men were paid their money I think they would feel more independent, and they would, so to say, eke out that money in the most economical way, and thus be better off.' '10,538. Probably, also, they would not be encouraged to run so very much in debt with any merchant as they are at present?-I think they would not. If the system were altered, and cash payments introduced, I think the men would feel that they could not ask credit to such a large extent as they do now, except in cases of urgent necessity.'

[J. Hay, 10,527; See also J. Anderson, 6537, Dr. R. Cowie, 14,731.]

SETTLEMENTS AND PASS-BOOKS

The accounts between merchants and fishermen are settled in a sufficiently loose manner. In many cases no pass-book is kept. Sometimes it has been refused by the shopkeeper on account of the trouble; sometimes it is the fisherman who could not be 'fashed' with it; sometimes it has been used for a time and given up because of the customer's irregularity in bringing it. There is undoubtedly much carelessness among the men with regard to their accounts. They get what they want without much trouble. The merchant or landlord helps them through bad times; and they do not always minutely scrutinize the items charged against them. They have a considerable, and probably not misplaced, confidence in the honesty of the shopkeeper, so far as the quantities of their 'out-takes' are concerned. Some men indeed keep private notes of their out-takes, which they compare with the shop ledger when read over to them; but most trust to their memory to check their accounts, and sometimes they are in a hurry to get home, and the ceremony of reading over the account is omitted altogether. The shopkeeper of course does not insist on doing so: in some places, indeed, it is read over only if expressly asked. William Blance, who fishes to the firm of T.M. Adie, is a specimen of the more careless class of men:

'... There are somethings which you have got which are not put in here?-Yes; I have gone to the shop when I did not have my book, and I have got what I asked.' '6086. What goods you got in that way when you did not have your pass-book were all put down in Mr. Adie's book, and you remembered about them when you came to settle?-Sometimes, and sometimes not.' '6087. If you did not remember them, did you

trust to the honesty of the shopkeepers?-Yes.' '6088. Is your account read over to you at settling time?-Yes, if I ask it to be done.' '6089. Do you generally ask it?-Sometimes I do not, if I am in a hurry to get home.' '6090. Then you have perfect confidence in their honesty?-I always think it would do more harm to them than to me if they were not honest ....' '6119. Do you get your meal at Voe?-Yes; most that we use comes from there.' '6120. I see it is not entered in your pass-book?-No; because the meal has generally been sent in my absence, and I carry the book about with me.' '6121. How is it sent?-I have got some of it sent from Aberdeen to Ollaberry direct.' '6122. How much of it was there of it at a time?-I don't remember ....' '6127. What did you pay for that meal?-I cannot say.' '6128. Is it settled for yet?-My account is squared up.' '6130. Do you know what you paid for it before?-I don't remember.' '6131. When was your account squared up?-Fourteen days ago.' '6132. It was not squared up in your pass-book then?- No, I had it with me; but I wanted to get home soon, and I did not ask Mr. Adie to look over the pass-book.' '6133. You saw there was a balance against you then?-Yes.' '6134. Did you not ask the price of the meal you had got?-No.' '6135. Did you not hear it mentioned?-No.'

[J. Hay, 5370; L. Mail, 690; J. Leask, 1348; G. Colvin, 1340; W. Irvine, 3668, 3778; W. Goudie, 4333; G. Goudie, 5402; P.M. Sandison, 5169; G. Blance, 5574; P. Peterson, 6790; T. Robertson, 8619; G. Garriock, 8828; J.L. Pole, 9359; J. Laurenson, 9827; G. Tulloch, 11,441; L.F.U. Garriock, 12,295; G. Irvine, 13,176, 13,267; W. Robertson, 13,791; R. Simpson, 13,990; Wm. Blance, 6085, 6119.]

The effect of the prevailing indebtedness plainly is to make the men careless about prices:

'8698. What is the price of meal at Mossbank just now?-I cannot say rightly.' '8699. When did you know last? Have you made your settlement this year?-Yes.' '8700. Don't you know what you were charged for meal then?- No.' '8701. Do you ask the price of your meal as you buy it?- Sometimes; but we must take it, whatever it is, because we have no money to purchase it with elsewhere.' '8702. Whose fault is that?-I don't know.' '8703. Is it the merchant's fault?-I cannot say that it is.' [C. Nicholson, 8698.]

THE RETURNS AND TABLES.

It was for the purpose of ascertaining the area and degree of debt, as well as the degree to which truck prevails in the various districts of Shetland, that a series of questions was sent, some time after the inquiry had been opened, to most of the fish-merchants in Shetland. The answers to these questions must have cost in the larger establishments a good deal of time and trouble, which I am bound to say was in most cases ungrudgingly bestowed. The returns for the home fishing of 1867 (Table I.) are furnished by merchants, who, according to the returns made to the Fishery Board, produced more than four-fifths of the whole cure from that fishery in that year. They show that out of 1913 fishermen in their employment, 596 were indebted at the settlement of 1866, and 1832 at that of 1867, showing an average debt of £6, 11s. per man in 1866, and £6, 13s. 8d. per man in 1867. In the same year the total sum due to their fishermen by the eighteen curers making returns was £19,362, 17s. 23/4d., and the total amount received by the men from the curers was £21,456, 5s.

10d., which resulted, according to the 10th column, in an increase of the debt by £1,631, 9s. 8d. The goods supplied in account by these curers to fishermen in 1867 amounted to £10,860, 1s. 41/2d., rather more than a fourth being charged to the crews for fishing expenses. Thus rather more than one half of the total payments were made in goods.

The returns for 1871 (Table II.) were made by the same merchants, with the exception of two who had not settled for that year, and represent, according to the Fishery Board returns, nearly three fourths of the total cure of the year. Out of 1615 fishermen, 644 were indebted in a total amount of £5,026, 19s. 13/4d., or an average sum per man of £7, 13s. 33/4d. at the settlement of 1870; and 614 were indebted in a total amount of £4,437, 1s. 21/2d., or an average sum per man of £7, 4s. 61/4d. at the settlement of 1871. The total amount due to their fishermen by these fifteen curers was £20,759, 17s, 33/4d., and the total amount which the men got from them was £20,579, 14s. 13/4d. The debt was reduced by £589, 18s. 111/4d. The goods supplied in account were £8,927, 2s. 10d., £2,574, 12s. 51/2d. being for fishing expenses. Thus, in this prosperous year, considerably less than a half of the whole earnings of the fishermen were received in goods. In 1867 about three fourths, in 1871 about a half, of the cash paid was paid before settlement.

Table III., for the Faroe fishing of 1867, applies to 509 men out of 699 who were engaged in that fishery in smacks belonging to Shetland curers. The average debt of 219 debtors in 1866 was £4, 13s. 2d., and of 125 debtors in 1867, £4, 11s. 31/2d. The total amount credited to the men was £6,764, 16s. 6d., and £6,723, 18s. 31/2d. was paid to them, of which £3,120, 14s. 9d., or less than half, was paid in goods.

In 1871 (Table IV.) the returns apply to 605 men out of 816 engaged in Shetland smacks in that year. Of these, 53 debtors in 1870 owed on the average £3, 8s. 93/4d each, and in 1871, 240 debtors owed £4, 6s. 91/4d. each. They had got altogether £8,177, 2s. 1d., or about £770 more than was due to them; and of that sum, £4, 146, 16s. 2d., or one half, was paid in truck.

Tables V. and VI. are Tables I. and II. in a different form, showing more clearly the total debits and credits of the men. They also show how accurately, upon the whole, the returns have been made up. Certain discrepancies are shown by the figures in the column entitled 'Amount indebted in excess of statement.' These may be accounted for in various ways;-where the discrepancy is small, by trivial errors in making the returns; where it is greater, by the omission from the returns of transactions of a less usual character, <e.g.> sales of cloth, which were not supposed to be within the questions asked; and in the two cases where the difference is largest, it may be conjectured that the large amount of debt may have been reduced by drafts upon secret bank accounts or hoards, on sons at sea, or on the earnings of the female members of the debtors' families.

These Tables show that from one third to one half of the fishermen are in debt to the curers each year at the time of settlement, after their fishing has been credited to them. It is not less true, as shown by the evidence, that during the rest of the year nearly the whole of them are in debt to the curers, because the goods and advances

are debited to them as they get them, while the credit for fish only comes at the end of the year.

TABLE I.--HOME FISHING--SEASON 1867. [Page 25]

1. No. of Fishermen employed

2. Amount of Goods debited to Fishermen

3. Cash advanced before Settlement

5. Gross Sum credited to Men for Fish

6. Gross Sum credited to them for Stock, etc.

7. Cash due to Fishermen at Settlement

8. Cash paid to them at Settlement.

9.1. No. of Fishermen indebted at Settlement of 1866

9.2. Total Debts.

10.1 No. of Fishermen indebted at Settlement of 1866

10.2. Total Debts.

1 2 2 2 3 3 3 A 191 £1114 17 11 £625 1 0 *B 79 576 18 9 79 19 11 C 48 349 18 81/4 118 12 31/2 D 46 164 8 2 54 10 7 *E 244 765 10 1 280 13 6 *F, 180 1006 5 1 537 6 5 G, 23 95 0 0 35 18 0 *H, 95 248 2 1 153 11 8 J, 52 428 14 111/2 120 0 91/2 K, 28 124 15 10 15 0 0 *L, 30 76 16 51/4 0 0 0 *M, 122 881 0 31/2 190 5 6 *N 189 480 7 11 617 1 5 O, 58 288 12 9 172 3 4 *P, 209 788 16 21/2 946 9 1‡ †Q, 31 149 5 91/2 79 15 6 R, 70 354 5 1 128 18 9 †S, 122 160 0 8 221 2 5 †T, 96 563 8 7 153 6 7 1913 £8617 5 31/2 £4529 16 9

4 4 4 5 5 5 6 6 6 A £367 1 5 £2594 2 81/2 £738 6 101/2 *B 88 10 9 769 18 01/2 31 0 93/4 C 51 15 0 338 14 1/4 92 4 9 D 69 16 9 292 8 1 43 4 4 *e 465 10 0 2233 10 10 0 0 0 *F, 126 0 0 863 10 10 213 13 0 G, 0 0 0§ 208 10 2 0 0 0 *H, 39 8 10 866 0 2 304 14 0 J, 162 13 3 415 8 101/2 114 12 81/2 K, 19 0 0 286 6 0 0 0 0 *L, 45 0 0 164 1 8 0 0 0 *M, 292 3 6 878 17 1 366 11 61/2 *N 331 1 4 1763 12 61/2 100 13 10 O, 0 0 0 650 4 1 0 0 0 *P, 0 0 0§ 2063 18 01/2 284 0 01/2 †Q, 12 9 7 174 5 11 50 4 91/2 R, 55 14 6 520 7 0 32 7 10 †S, 56 13 5 1054 6 111/2 0 0 0 †T, 59 17 9 861 11 8 91 8 0 £2242 16 1 £16,999 14 81/4 £2463 2 61/4

7 7 7 8 8 8 9.1 A £1077 1 11 £1444 7 1 114 *B 163 5 03/4 248 7 31/4 31 C 32 4 21/2 30 10 21/2 17 D 85 3 31/2 85 3 31/2 11 *e 834 6 3 834 6 3 25 *F, 0 0 0 0 0 0±¶ 118 G, 106 17 0 106 17 0 6 *H, 342 7 1 342 7 1 27 J, 34 11 41/2 28 10 0 29 K, 133 9 91/2 159 17 10 6 *L, 87 5 23/4 87 5 23/4 6 *M, 265 18 01/2 294 17 11/2 67 *N 484 4 11/2 479 8 1 22 O, 216 14 81/2 216 14 81/2 22 *P, 693 0 5 693 0 5 15 †Q, 21 17 9 21 17 9 6 R, 125 3 8 125 3 8 32 †S, 616 5 61/2 616 5 61/2 7 †T, 256 9 2 251 9 2 35 £5576 4 71/2 £6066 7 81/2 596

9.2 9.2 9.2 10.1 10.2 10.2 10.2 A £1160 8 8 143 £1379 5 7 *B 101 9 1/4 50 294 8 93/4 C 27 17 41/2 35 150 17 101/2 D 29 1 0 18 67 7 41/2 *e 59 11 9 72 172 1 9 *F, 783 0 0 141 948 18 3 G, 45 19 4 9 87 19 7 *H, 159 2 2 21 137 11 11 J, 220 11 7 38

401 12 31/2 K, 13 0 41/2 8 26 8 01/2 *L, 25 7 51/4 7 26 14 63/4 *M, 538 3 31/2 76 737 0 7 *N 74 18 0 27 122 15 81/2 O, 195 11 11 19 197 16 7 *P, 70 7 8 41 150 16 31/2 †Q, 9 16 4 16 48 14 31/2 R, 101 17 5 50 213 4 7 †S, 20 16 5 9 24 10 2 †T, 292 2 7 52 372 7 9 £3929 2 4 832 £5560 12 0

*See Note (*) on table II., Home Fishing, 1871. † This includes the Herring fishing. ‡ Includes $540, 9s. of Rents paid. § Included in No. 2. ± Although a few would have cash to get, yet the supplies to the whole exceeded their earnings by about £536, 7s. 8d.

TABLE II.--HOME FISHING--SEASON 1871. [Page 26]

1. No. of Fishermen employed

2. Amount of Goods debited to Fishermen.

3. Cash advanced before Settlement.

4. Fishing Expenses charged to the Men.

5. Gross Sum credited to them for Fish.

6. Gross Sum credited to them for Stock, etc.

7. Cash due to them at Settlement.

8. Cash paid to them at Settlement

9.1 No. of Fishermen indebted at Settlement of 1870

9.2 Total Debts

10.1. No. of Fishermen indebted at Settlement of 1871

10.2. Total Debts

1 2 2 2 3 3 3 A 182 £911 19 5 £809 16 8 *B 79 406 8 1/4 137 15 41/2 *C 46 308 16 1 103 19 61/2 D 100 411 15 8 249 18 0 *E 260 634 0 6 251 0 4 *F, 144 735 2 2 640 3 1 G, 23 60 0 0 40 17 0 *H, 103 260 12 4 182 16 1 J, 60 279 11 61/2 110 17 101/2 K, 12 65 11 111/2 23 0 0 Q 142 479 17 4 371 11 5 *M, 147 1136 17 61/2 276 8 0 O, 36 108 6 5 55 0 6 *N 185 345 6 91/2 560 11 01/2 S 66 107 14 8 110 14 11/2 *L 30 100 9 11 1615 £6352 10 41/4 £3924 9 01/2

*†U, 150 1125 3 1 £658 5 21/2 *†T, 126 1042 10 11 356 2 6 *†P, 281 788 1 21/2 1048 19 111/2 2202 £9308 5 63/4 £5987 16 81/2

4 4 4 5 5 5 6 6 6 A £274 10 1 £3101 14 3 £859 6 2 *B 73 18 0 1090 6 1 14 10 91/2 *C 49 10 6 578 0 21/2 115 2 83/4 D 178 9 21/2 999 3 9 33 3 61/2 *E 540 10 11 3436 16 7 *F, 99 0 0 1330 1 7 335 12 0 G, ‡ 310 4 0 *H, 163 18 9 1151 11 4 197 3 11 J, 161 14 111/2 623 4 8 60 8 6 K, 6 0 0 102 19 6 Q 123 8 5 1124 10 5 35 11 6 *M, 459 12 31/2 1800 7 21/2 385 19 11/2 O, 337 15 3 *N 324 17 41/2 1780 3 4 79 9 11 S 73 1 111/2 625 6 3 *L 46 0 0 251 4 81/2 £2574 12 51/2 £18,643 9 11/2 £2116 8 21/4

*†U, £50 4 8 £1651 11 11/2 £417 16 6 *†T, 67 4 0 1880 10 11 183 6 5 *†P, 2729 8 71/2 412 1 21/2 £2692 1 11/2 £24,904 19 91/2 £3129 12 33/4

7 7 7 8 8 8 9.1 A £1555 13 6 £1842 8 4 105 *B 463 1 11/2 519 16 61/2 27 *C 160 9 31/2 176 0 8 30 D 252 16 6 252 16 6 34 *E 1983 8 2 1983 8 2 17 *F, 235 8 4 235 8 4 136 G, 174 8 8 174 8 8 10 *H, 376 14 8 376 14 8 25 J, 90 5 6 74 5 21/2 44 K, 15 16 11/2 5 Q 299 9 10 299 9 10 46 *M, 890 7 51/2 501 16 41/2 82 O, 219 13 7 219 13 7 13 *N 586 13 111/2 571 9 111/2 31 S 333 15 41/2 333 15 41/2 32 *L 150 14 91/4 150 14 91/4 7 £7773 0 83/4 £7728 3 11/4 644

*†U, £276 6 4 £245 6 4 *†T, 710 16 8 874 16 6 82 *†P, 1305 10 71/2 1305 10 71/2 48 £10,065 14 41/4 £10,153 16 63/4 774

9.2 9.2 9.2 10.1 10.2 10.2 10.2 A £961 16 2 133 £839 10 0 *B 120 1 23/4 35 164 15 9 *C 141 19 01/4 22 94 16 93/4 D 92 12 101/2 48 153 4 111/2 *E 36 17 2 9 9 0 6 *F, 1433 12 11 99 1215 4 4 G, 56 13 0 5 23 10 0 *H, 244 0 1 25 232 18 8 J, 524 3 101/2 37 452 9 11 K, 18 1 7 6 19 10 2 Q 146 4 11 68 260 10 0 *M, 858 7 51/2 65 657 17 21/2 O, 163 15 10 11 140 6 0 *N 125 9 3 23 88 3 2 S 52 11 101/2 21 48 6 11/2 *L 50 11 103/4 7 36 17 71/4 £5026 19 13/4 614 £4437 1 21/2

*†U, £561 16 4 606 18 11/2 *†T, 433 18 9 68 710 5 10 *†P, 274 0 10 44 275 2 91/2 £6296 15 03/4 726 £6037 7 111/2

*In the Returns made by those marked (*), rents payable by men to them are included in the cash payments, except those of H. † The Returns by U, T., and P are for the year 1870. ‡ This in included in No. 2.

NOTES BY P. TO HIS ANSWERS 1870.

<Question No. 1.>--281. This includes 84 men engaged by me for the herring fishing, which on only begins on the 12th August. These men fish to other curers at the ling-fishing during the summer, and only] come to me for the herring fishing. They get no goods from me, nor cash advances, but receive the gross value of their fish in one payment when the fishing is over. <Question No. 2>.--£788, 1s. 21/2d. This represents the gross amount of the store accounts charged, and includes (the answer to question No. 4) all fishing expenses, and in some cases may included small advances in cash. <Question No. 3>.--£1048, 19s. 111/2d. This answer includes rent paid for the men, and should be-- Cash advanced ..... £481 11 7 Rents paid, ... 567 8 41/2 £1048 19 111/2 <Question No. 5.>--£2729, 8s. 71/2d. This sum includes £432 due for herrings to the 84 men mentioned in note on answer No. 1. <Question No. 6.>--£412, 1s. 21/2d. This includes the sum of £21, 5s. 61/2d. received from fishermen at settlement. <Question No. 7.>--All sums <due> to the fishermen were <paid> at settlement. <Question No. 8>.--This includes £432 paid to the 84 men mentioned in note on answer No. 1 for herrings.

TABLE III.--FAROE FISHING--SEASON 1867. [Page 27]

1. No. of Fishermen employed

2. Amount of Goods debited to Fishermen.

3. Cash advanced before Settlement.

4. Fishing Expenses charged to the Men.

5. Gross Sum credited to Men for Fish.

6. Gross Sum credited to them for Stock, etc.

7. Cash due to Fishermen at Settlement.

8. Cash paid to them at Settlement.

9.1. No. of Fishermen indebted at Settlement of 1866.

9.2. Total Debts

10.1. No. of Fishermen indebted at Settlement of 1867.

10.2. Total Debts 1 2 2 2 3 3 3 A, 47 £234 15 5.5 £141 6 0 B, 71 323 3 6.5 221 9 61/2 C, 41 221 11 0 196 18 11 D, 91 839 15 9.5 451 13 9 E, 11 20 10 9.5 13 15 0 F, 148 481 18 1.5 432 6 12 G, 31 122 0 3 80 8 2 H, 69 362 3 4 229 19 2 509 £2605 18 31/2 £1767 17 6 †J 28 163 10 11 51 7 2

4 4 4 5 5 5 6 6 6 A, £46 17 9 £656 5 9 £0 0 0 B, 32 16 6.5 901 14 91/2 0 0 0 C, 42 5 7 457 16 0 98 11 8 D, 0 0 0* 1696 1 1 0 0 0 E, 16 12 7 98 5 91/2 2 18 9 F, 331 14 6 1667 8 4 44 12 7 G, 14 13 6 312 5 11 0 0 0 H, 29 16 0 828 15 10 0 0 0 £514 16 51/2 £6618 13 6 £146 3 0 †J £14 14 11 171 0 0 42 6 9

7 7 7 8 8 8 9.1 A, £183 15 01/2 £183 15 01/2 20 B, 294 11 11/2 294 11 11/2 31 C, 88 7 6 89 7 6 17 D, 478 4 11 478 4 11 55 E, 50 19 21/2 50 19 21/2 1 F, 443 11 9 373 9 01/2 34 G, 99 8 31/2 99 8 31/2 3 H, 265 10 11 265 10 11 58 £1904 8 9 £1835 6 01/2 219 †J 0 19 1 0 19 1 25

9.2 9.2 9.2 10.1 10.2 10.2 10.2 A, £81 5 81/2 8 £31 14 2 B, 164 1 101/2 23 134 7 10 C, 60 12 11 15 54 8 3 D, 307 0 4 22 141 16 01/2 E, 0 16 2 1 1 9 6 F, 164 0 2 26 133 13 91/2 G, 10 7 7 9 14 6 10 H, 232 1 4 21 58 13 7 £1020 6 1 125 £570 10 0 †J 86 5 5 28 137 7 41/2

*Under this head no fishing expenses were charged against the men's accounts. The only fishing expenses were bait, and curing of fish, which were deducted from the gross amount before division, as agreed upon. † This Return in for 1866. In 1866 there was a remarkably 'lean' Fishing.

TABLE IV.--FAROE FISHING--SEASON 1871. [Page 28]

1. No. of Fishermen employed 2. Amount of Goods debited to Fishermen. 3. Cash advanced before Settlement. 4. Fishing Expenses charged to the Men. 5. Gross Sum credited to Men for Fish. 6. Gross Sum credited to them for Stock, etc. 7. Cash paid to them at Settlement. 8. Cash paid to them at Settlement. 9.1. Total Debts 9.2. No. of Fishermen indebted at Settlement of 1870. 10.1. Total Debts 10.2. No. of Fishermen indebted at Settlement of 1871.

1 2 2 2 3 3 3 F, 139 £563 5 6 £618 6 11 A, 51 205 0 81/2 123 12 6 C, 57 358 2 2 284 11 2 D, 85 774 13 2 467 1 9 H, 125 775 14 11 216 5 1 J, 13 85 10 3 24 19 6 E, 23 104 18 91/2 94 14 10 G, 47 266 18 1 111 17 10 †B, 65 249 19 3 203 18 21/2 605 £3384 2 10 £2145 7 91/2

4 4 4 5 5 5 6 6 6 F, £556 0 4 £2093 2 9 £32 6 0 A, 26 4 31/2 331 5 1 0 0 0 C, 51 3 6 150 4 6 647 0 2 D, 0 0 0 1810 12 7 0 0 0 H, 45 19 1 942 0 0 0 0 0 J, 9 12 0 39 17 1 4 9 71/2 E, 14 2 1 204 6 31/4 33 0 3 G, 28 18 10 545 10 3 0 0 0 †B, 30 13 21/2 572 6 4 ... ... £762 13 4 £6689 4 101/4 £716 16 1/2

7 7 7 8 8 8 9.1 F, £473 16 2 £375 12 3 21 A, 69 19 6 69 19 6 2 C, 168 14 21/2 172 10 61/2 13 D, 589 9 10 589 9 10 7 H, 253 1 2 253 1 2 4 J, 0 0 0 0 0 0 3 E, 49 1 10 48 17 111/2 2 G, 166 19 41/2 165 5 9 0 †B, 210 1 11/2 210 1 11/2 1 £1981 3 21/2 £1984 18 11/2 53

9.2 9.2 9.2 10.1 10.2 10.2 10.2 F, £83 1 11 31 £174 19 9* A, 0 11 6 26 94 3 51/2 C, 59 2 7 28 128 5 3 D, 19 2 91/2 19 35 0 10 H, 10 4 0 65 349 0 3 J, 1 19 0 13 72 0 61/2 E, 5 5 111/2 10 33 11 53/4 G, 0 0 0 14 29 3 111/2 †B, 2 18 6 34 125 3 111/2 £182 6 3 240 £1041 9 53/4

* Of this sum, £174, 19s, 9d., there was due by 13 men, the crew of one unsuccessful vessel, £105, 14s. 4d. The fishery of 1871 was comparatively a failure, and left many of the men in debt; while the previous year was very good, and the men were nearly all clear. † Excluding the crew of one smack, the crew of which had not been settled with.

TABLE V.--HOME FISHING--SEASON 1867. [Page 29]

No. of Fishermen in Debt at Settlement of 1866, and Amount of Debts. 1.1. No. 1.2. Amount. 2. Fishing Expenses Charged to the Men. 3. Goods charged to the Men.

CASH. 4.1. Advanced to the Men before Settlement 4.2. Paid to them at Settlement.

5. Total Debits to Fishermen.

Gross Sums credited to the Men. 6.1. For Fish. 6.2. For Stock.

7. Total Credits to Fishermen.

No. of Fishermen in Debt at Settlement of 1867, and Amount Indebted. 8.1. No. 8.2. Amount. 8.3. Amount as per Statement. 8.4. Amount indebted in excess of Statement

9. No. of men engaged during the Year.

1.1 1.2 1.2 1.2 2 2 2 A, 114 £1160 8 8 £367 1 5 B, 31 101 9 01/4 88 10 9 C, 17 27 17 4.5 51 15 0 D, 11 29 1 0 69 16 9 E, 25 59 11 9 465 10 0 F, 118 783 0 0 126 0 0 G, 6 45 19 4 H, 27 159 2 2 39 8 10 I, 29 £220 11 7 162 13 3 K, 6 £13 0 41/2 19 0 0 L, 6 25 7 51/4 45 0 0 M, 67 538 3 31/2 292 3 6 N, 22 74 18 0 331 1 4 O, 22 195 11 11 P, 15 70 7 8 Q, 6 9 16 4 12 9 7 R, 32 101 17 5 55 14 6 S, 7 20 16 5 56 13 5 T, 35 292 2 7 59 17 9 596 £3939 2 4 £2242 16 1

3 3 3 4.1 4.1 4.1 4.2 4.2 4.2 A, £1114 17 11 625 1 0 1444 7 1 B, 576 18 9 79 19 11 248 7 31/4 C, 339 18 81/4 118 12 31/2 30 10 21/2 D, 164 8 2 54 10 7 85 3 31/2 E, 765 10 1 280 13 6 834 6 3 F, 1006 5 1 537 6 5 G, 95 0 0 35 18 8 106 17 0 H, 248 2 1 153 11 8 342 7 1 I, 428 14 111/2 120 0 91/2 28 10 0 K, 124 15 10 15 0 0 159 17 10 L, 76 16 51/4 87 5 23/4 M, 881 0 31/2 190 5 6 294 17 11/2 N, 480 7 11 617 1 5 479 8 1 O,

288 12 9 172 3 4 216 14 81/2 P, 788 16 21/2 946 9 1 693 0 5 Q, 149 5 91/2 79 15 6 21 17 9 R, 354 5 1 128 18 9 125 3 8 S, 160 0 8 221 2 5 616 5 61/2 T, 563 8 7 153 6 7 351 9 2 £8617 5 31/2 £4529 16 9 £6066 7 81/2

5 5 5 6.1 6.1 6.1 6.2 6.2 6.2 A, £4711 16 1 £2594 2 81/2 £738 6 101/2 B, 1095 5 81/2 769 18 01/2 31 0 93/4 C, 578 13 63/4 338 14 01/4 92 4 9 D, 402 19 91/2 292 8 1 43 4 4 E, 2405 11 7 2233 10 10 F, 2452 11 6 863 10 10 213 13 0 G, 283 14 4 208 10 2 H, 942 11 10 866 0 2 304 14 0 I, 960 10 7 415 8 101/2 114 12 81/2 K, 331 14 01/2 286 6 0 L, 234 9 11/4 164 1 8 M, 2196 9 81/2 878 17 1 366 11 61/2 N, 1982 16 9 1763 12 61/2 100 13 10 O, 873 2 81/2 650 4 1 P, 2498 13 41/2 2063 18 01/2 284 0 01/2 Q, 273 4 111/2 174 5 11 50 4 91/2 R, 765 19 5 520 7 0 32 7 10 S, 1074 18 51/2 1054 6 111/2 T, 1320 4 8 861 11 8 91 8 0 £25385 8 2 £16999 14 81/4 £2463 2 61/4

7 7 7 8.1 8.2 8.2 8.2 A, £3332 9 7 143 £1379 6 6 B, 800 18 101/4 50 294 6 101/4 C, 430 18 91/4 35 147 14 91/2 D, 335 12 5 18 67 7 41/2 E, 2233 10 10 72 172 0 0 F, 1077 3 10 141 1375 7 8 G, 208 10 2 9 75 4 2 H, 1170 14 2 21 <228 2 4> I, 530 1 7 38 430 9 0 K, 286 6 0 8 45 8 01/2 L, 164 1 8 7 70 7 51/4 M, 1245 8 71/2 76 951 1 1 N, 1864 6 41/2 27 118 10 41/2 O, 650 4 1 19 222 18 71/2 P, 2347 18 1 41 150 15 31/2 Q, 224 10 81/2 16 48 14 3 R, 552 14 10 50 213 4 7 S, 1054 6 111/2 9 20 11 6 T, 952 19 8 52 367 5 0 £19462 18 21/2 832 £5922 10 111/2

8.3 8.3 8.3 8.4 8.4 8.4 9 A, £1379 5 7 £0 0 11 191 B, 294 8 93/4 <0 1 111/2> 79 C, 150 17 101/2 <3 3 1> 48 D, 67 7 41/2 46 E, 172 1 9 <0 1 0> 244 F, 948 18 3 426 9 5 180 G, 87 19 7 <12 15 5> 23 H, 137 11 11 <365 14 3> 95 I, 401 12 31/2 28 16 81/2 52 K, 26 8 01/2 19 0 0 28 L, 26 14 63/4 43 12 101/2 30 M, 737 0 7 214 0 6 122 N, 122 15 81/2 <4 5 4> 189 O, 197 16 7 25 2 01/2 58 P, 150 16 31/2 <0 1 0> 209 Q, 48 14 31/2 <0 0 01/2> 31 R, 213 4 7 70 S, 24 10 2 <3 18 8> 122 T, 372 7 9 <5 2 9> 96 £5560 12 0 361 18 111/2 1913

*Where the amount is less than the Statement, the figures are noted in italics, and effect is given to these sums in the addition.

TABLE VI.--HOME FISHING--SEASON 1871. [Page 30]

No. of Fishermen in Debt at Settlement of 1870, and Amount of Debts. 1.1. No. 1.2. Amount.

2. Fishing Expenses Charged to the Men.

3. Goods charged to the Men.

CASH. 4.1. Advanced to the Men before Settlement. 4.2. Paid to them at Settlement.

5. Total Debits to Fishermen.

Gross Sums credited to the Men. 6.1. For Fish. 6.2. For Stock.

7. Total Credits to Fishermen.

No. of Fishermen in Debt at Settlement of 1871, and Amount Indebted. 8.1. No. 8.2. Amount to Balance. 8.3. Amount as per Statement. 8.4. Amount indebted in excess of Statement

9. No. of men engaged during the Year.

1.1 1.2 1.2 1.2 2 2 2 A, 105 £961 16 2 £274 10 1 B, 27 120 1 23/4 73 18 0 C, 30 141 19 01/4 49 10 6 D, 34 92 12 101/2 178 9 21/2 E, 17 36 17 2 540 10 11 F, 136 1433 12 11 99 0 0 G, 10 56 13 0 H, 25 244 0 1 163 18 9 I, 44 524 3 101/2 161 14 12 K, 5 18 1 7 6 0 0 R, 46 146 4 11 123 8 5 M, 82 858 7 51/2 459 12 31/2 O, 13 163 15 10 N, 31 125 9 3 324 17 41/2 S, 32 52 11 101/2 73 1 12 L, 7 50 11 103/4 46 0 0 644 £5026 19 13/4 £2574 12 51/2

U, £561 16 4 £50 4 8 T, 82 433 18 9 67 4 0 P, 48 274 0 10 774 £6296 15 03/4 £2692 1 11/2

3 3 3 4.1 4.1 4.1 4.2 4.2 4.2 A, £911 19 5 £809 16 8 £1842 8 4 B, 406 8 01/4 137 15 41/2 519 16 61/2 C, 308 16 1 103 19 61/2 176 0 8 D, 411 15 8 249 18 0 252 16 6 E, 634 0 6 251 0 4 1983 8 2 F, 735 2 2 640 3 1 235 8 4 G, 60 0 0 40 17 0 174 8 8 H, 260 12 4 182 16 1 376 14 8 I, 279 11 61/2 110 17 101/2 74 5 21/2 K, 65 11 111/2 23 0 0 15 16 11/2 R, 479 17 4 371 11 5 299 9 10 M, 1136 17 61/2 276 8 0 501 16 41/2 O, 108 6 5 55 0 6 219 13 7 N, 345 6 91/2 560 11 01/2 571 9 111/2 S, 107 14 8 110 14 11/2 333 15 41/2 L, 100 9 11 150 14 91/4 £6352 10 41/4 £3924 9 01/2 £7728 3 11/4

U, £1125 3 1 £658 5 21/2 £245 6 4 T, 1042 10 11 356 2 6 874 16 6 P, 788 1 21/2 1048 19 111/2 1305 10 71/2 £9308 5 63/4 £5987 16 81/2 £10153 16 63/4

5 5 5 6.1 6.1 6.1 6.2 6.2 6.2 A, £4800 10 8 £3101 14 3 £859 6 2 B, 1257 19 2 £1090 6 1 14 10 91/2 C, £780 5 93/4 578 0 21/2 115 2 83/4 D, 1185 12 3 999 3 9 33 3 61/2 E, 3445 17 1 3436 16 7 F, 3143 6 6 1330 1 7 335 12 0 G, 331 18 8 310 4 0 H, 1228 1 11 1151 11 4 197 3 11 I, 1150 13 51/2 623 4 8 60 8 6 K, 128 9 8 102 19 6 R, 1420 11 11 1124 10 5 35 11 6 M, 3233 1 8 1800 7 21/2 385 19 11/2 O, 546 16 4 337 15 3 N, 1927 14 5 1780 3 4 79 9 11 S, 677 18 0 625 6 3 L, 347 16 7 251 4 81/2 £25606 14 13/4 £18643 9 11/2 £2116 8 21/4

U, £2640 15 71/2 £1651 11 11/2 £417 16 6 T, 2774 12 8 1880 10 11 183 6 5 P, 3416 12 71/2 2729 8 71/2 412 1 21/2 £34438 15 01/4 £24904 19 91/2 £3129 12 33/4

7 7 7 8.1 8.2 8.2 8.2 A, £3961 0 5 133 £839 10 3 B, 1104 16 101/2 £35 153 2 £4 C, 693 2 111/4 22 87 2 101/2 D, 1032 7 31/2 48 153 4 111/2 E, 3436 16 7 9 9 0 6 F, 1665 13 7 99 1477 12 11 G, 310 4 0 5 21 14 8 H, 1348 15 3 25 <120 13 4> I, 683 13 2 37 467 0 31/2 K, 102 19 6 6 25 10 2 R, 1160 1 11 68 260 10 0 M, 2186 6 4 65 1046 15 4 O, 337 15 3 11 209 1 1 N, 1859 13 3 23 68 1 2 S, 625 6 3 21 52 11 9 L, 251 4 81/2 17 96 11 101/2 £20759 17 33/4 624 £4846 16 91/2

U, £2069 7 71/2 £571 8 0 T, 2063 17 4 68 710 15 4 P, 3141 9 10 44 275 2 91/2 £28034 12 11/4 736 £6404 2 11

8.3 8.3 8.3 8.4 8.4 8.4 9 A, £839 10 0 £0 0 3 217 B, 164 15 £9 <11 13 51/2> 79 C, 94 16 93/4 <7 13 111/4> 46 D, 153 4 111/2 100 E, 9 0 6 260 F, 1215 4 4 262 8 7 144 G, 23 10 0 <1 15 4> 23 H, 232 18 8 <353 12 0> 103 I, 452 9 11 14 10 41/2 60 K, 19 10 2 6 0 0 12 R, 260 10 0 142 M, 657 17 21/2 388 18 11/2 147 O, 140 6 0 68 15 1 36 N, 88 3 2 <20 2 0> 185 S, 48 6 11/2 4 5 71/2 66 L, 36 17 71/4 59 14 31/4 30 £4437 1 21/2 £409 15 £7 1650

U, £606 18 11/2 <35 10 11/2> 150 T, 710 5 10 0 9 6 126 P, 275 2 91/2 281 £6029 7 111/2 £374 14 111/2 2207

*Where the amount is less than the Statement, the figures are noted in italics, and effect is given to these sums in the addition. _____

[Page 31] PRICES AT THE SHOPS OF FISH-CURERS.

Of an inquiry regarding the existence and effects of Truck, the quality and prices of the goods furnished by the employer in lieu of money forms a necessary part. In Lerwick, as might be expected, competition, and the greater facility of communication with other places, have kept the prices of the necessaries of life at a moderate figure.

No complaints were made as to prices there, and it was thought unnecessary to make a minute investigation. Evidence was taken, however, for the purpose of comparing the prices of meal and flour as sold in Lerwick with those charged at the fish-curers' shops in the country districts. It is a fact of some significance, that few persons above the condition of peasants purchase supplies for family use from the shops in Shetland. Provisions and groceries, as well as clothing are to a large extent imported by private individuals from Aberdeen, Leith, and Edinburgh. The Rev. Mr. Sutherland says that he gets his goods twice a year from the south, and does not deal with any local shop, unless he happens to be out of a particular article; and that, so far as he knows, it is common for clergymen and others in the same position to get their supplies from the south:

'7570. Why is that done?-I cannot afford to buy articles here; they are too dear for me. My stipend would not afford to pay for them.' '7571. Do you know if the same reason operates in the case of your fellow clergymen?-I don't know; but they have often spoken about it. In the first place, I hold the goods to be, as might be expected, inferior in quality to the goods I would like. I don't blame the merchants for not having goods of better quality, because their customers perhaps would not be in the way of buying them; but I could not afford to buy from the merchants here, in consequence of the tremendous percentage which they charge upon their goods.'

[C. Robertson, 15,017; J. Robertson, sen., 14,072.]

Statements to the same effect are made by the Rev. D. Miller, United Presbyterian minister at Mossbank, and the Rev. W. Smith, minister of Unst. [6001; 10,714.]

Many witnesses complained that prices are higher at the 'shops' than at Lerwick. Thus the leading witness from Dunrossness said that oatmeal at Mr. Bruce's shop at Grutness was 4s. a boll (140 lbs.), or 8s. per sack or quarter, above its price in Lerwick. [L. Mail, 568.]

GRUTNESS

The prices charged here are much too high; and this arises not merely from the want of the check of competition, as regards the men thirled to the shop by want of money to deal elsewhere, but also from the very peculiar way in which the prices are fixed.

This may possibly be explained by the fact that neither Mr. Bruce nor his shopkeeper have been properly trained to the business of the shop, which has been taken up as an appendage of the fish trade. Gilbert Irvine, the shopkeeper, was unable to give any very clear explanation of the way in which the price of meal at Grutness is fixed, and why the men never knew the price of it until the settlement. [G. Irvine, 13,173.] But Mr. Bruce says:

'13,306. In what way do you fix the average price of meal for the year?--We take what other people are charging in Lerwick and elsewhere; and after considering the quality of the meal, and our extra expense upon it, we charge what we think it can reasonably bring, without any regard to the cost price of it.' '13,307. Do you not take the cost price into consideration at all?- Of course it is an element, but not the principal element, in fixing the price.'

This loose method of proceeding may account for the complaints of the price made by all the men, who were quite satisfied with the quality. No man deals at the store at Grutness who can possibly get money to buy his goods elsewhere, and Mr. Bruce himself speaks of the shop as a necessity for the fishing, and not a source of profit in itself. The price of meal was ascertained by William Goudie to be at least 3s. per boll above, the price elsewhere. There is also at Grutness an ambiguity about weight -pecks being sold by 'lispund weight,' <i.e.> 4 to 32 lbs., instead of boll weight, <i.e.> 4 to 35 lbs. = quarter boll. The price of oatmeal for the whole of 1870 was 22s. at Grutness, which was the highest price it attained in Lerwick for a very short time after the breaking out of the French war. During by far the greater part of the year, it varied at Lerwick from 17s. 3d. to 19s. It is instructive to compare the price at Grutness with a note of the prices charged by Mr. Gavin Henderson at Scousbrough, three miles distant, where no fishermen are bound to the shopkeeper or engaged by him. This note (p. 319 of Evidence) brings out an average of 18s. 3d. per boll on all Mr. Henderson's sales for that year. Comparison of Mr. Henderson's note of prices for that year with Mr. Charles Robertson's (p. 378), shows that a merchant carrying on business twenty miles from Lerwick can sell his meal as cheaply as merchants there are in the practice of doing. Mr. Bruce's own invoices show that his meal for the season 1870 was purchased at an average price of 16s. 8d. per boll, and that out of the whole supply of 171 bolls, all but 25 bolls was bought at 16s. 3d. and under. The freight from Aberdeen to Grutness he states to be 1s. 5d. per boll. Thus 16s. 8d. +1s. 5d. = 18s. 1d., leaving 3s. 11d. for profit and risk, or about 22 per cent. But Mr. Bruce explains that, as his shop is not conducted on purely commercial principles, but as an auxiliary to the fishing, this is all required to cover expenses of management. It is nevertheless very expensive for the retail purchasers. 2 lb. lines at Grutness are sold for 2s. 2d.; at Mr. Henderson's, for 2s. Tea, of which Shetlanders consume a large quantity, and of which they are said to be good judges, is said by one witness to be from 4d. to 8d. dearer per lb. at Boddam, where there is a shop of Mr. Bruce's, than at Lerwick or Gavin Henderson's, a shop in the neighbourhood; cotton to be 2d. a yard dearer, and tobacco 1d. or 2d. a quarter lb. The evidence of Mr. Charles Fleming shows that some cotton stuffs, pieces of which were obtained at the shop at Grutness, and which were said by Mr. Irvine to be sold at 41/2d., 8d., and 1s. a yard respectively, were worth in retail very much less than these prices.

[J. Bruce, jun., H. Mailand, 4858; W. Goudie, 4317; G. Irvine, 13, 259; J. Brown, 5300; H. Gilbertson, 4551; C. Robertson, 15,040; J. Robertson, sen., 14,587; T. Aitken, 4833; G. Irvine, 13,224; J. Bruce, jun., 13, 319; G. Irvine, 13,291; R. Henderson, 12,877; R. Halcrow, 4663; C. Fleming, 17,042; G. Irvine, 13,200.]

QUENDALE

The general import of the evidence as to Mr. Grierson's shop at Quendale is that the prices are not so high as at Grutness, but higher (2s. or 3s per boll for meal than those at Gavin Henderson's at Scousborough and even than those at Messrs. Hay & Co.'s at Dunrossness. Here the prices of fishing lines are-2 lb., 2s. 3d.; 21/2 lb., 2s. 6d; 13/4 lb., 2s.; 11/2 lb., 1s. 9d. At Gavin Henderson's, 2 lb., 2s.; 21/4lb., 2s. 3d.

[J. Flawes, 4978; C. Eunson, 5067; G. Goudie, 13,392; R. Henderson, 12,877.]

MOSSBANK

The difference between prices at Mossbank and Lerwick has been not less than 4s. or 4s. 6d. per boll, although Mr. Pole (5962) says that in general the difference is from 1s. 6d. to 2s. per boll. The difference between Mossbank prices for meal and the shop of Magnus Johnston at Tofts, a mile distant, is said by Johnston to be a penny a peck, or 1s. 5d. per boll. At the shop of the same firm at Greenbank, in North Yell, the price of meal was 5s. 8d. per lispund (32 lbs.) in the summer of 1871-<i.e.> about 24s. 6d. per boll, while in Lerwick it ranged at 21s. 6d. Similar differences exist there as regards other articles, such as tea and sugar.

[J. Henderson, 5514; J. Nicholson, 8738; M. Johnston, 7897; J.L. Pole, 9396, J. Nicholson, 8736.]

HAY & CO.'S SHOPS

From Burra, Whalsay, and the other establishments of Messrs. Hay & Co., no complaints as to prices were made. Some of their stations are so near Lerwick that they must sell as low as possible, in order to secure the custom of the men. It is said that at Fetlar, one of their most remote stations, the goods are as cheap and good as at Lerwick. The books kept at Fetlar show sales of meal in July last at 23s., in August at 22s. 8d., and in September at 21s.; while in these months the prices in Lerwick were-July, 21s. 6d.; August, 21s.; September, 21s. In Fetlar, Messrs. Hay & Co. have the only large shop. At North Roe (Hay & Co.), the most remote shop on the mainland, the price of meal per boll, at the beginning of the fishing season of 1871, was only 6d. or 1s. higher than at Lerwick at the same date, according as the purchase spoken to by a witness was made in April or May. It seems to be a fair conclusion from the evidence that this firm does not, as a rule, charge high prices. No complaint has been made with respect to quality.

[W. Irvine, 3715; Catherine Petrie, 1458; G. Gaunson, 8887; J. Garriock, 8766; A. Ratter, 7400; C. Robertson, 15,040; T. Aitken, 4836.]

VOE

The establishment of Mr. Adie at Voe (Olnafirth) is one of the largest in Shetland. No specimens were obtained from it for examination; but the oral evidence as to the provisions sold there may be briefly referred to. Mr. Adie himself admits that the cost of carriage necessarily enhances prices at Voe, and that meal is therefore generally 2s. per boll dearer than at Lerwick. A witness who lately went to live there, however, paid 1s. 5d. per peck for meal which he would have got in Lerwick for 1s. 2d., or five months ago for 1s. 3d. This is a difference not of 2s., but of 4s. per boll; and although the witness Gilbert Scollay impressed me unfavourably by the manner of his evidence, there is much to corroborate his statement with regard to his dealings with the shop at Voe. He says that -

'Ultimately I wrote to the meal dealers in the south, and I found that there was a difference of 10s. on the sack of meal; that, upon 12 sacks, would have been a saving of £6 alone.'

[T.M. Adie, 5699; R. Mouat, 4240; C. Robertson, 15,040.]

Of course 2s. 6d., or in winter, according to Mr. Adie, 5s. per sack, must be deducted from this difference for freight. Again, on April 21, 1868, meal being 26s. 6d. per boll see or 1s. 7d. per peck, was sold at Voe at 1s. 9d. per peck.

[See G. Scollay, 14,975; C. Robertson, 15,040.]

R. MOUAT'S SHOP

The worst accounts are given of the meal kept at the shop of Robert Mouat, Sandwick, formerly referred to. Henry Sinclair says that 'the greater part of it was fit for nothing but the pigs.' What he called his second flour, says another witness, 'was of such a quality that it could not be eaten by human beings;' but,' he adds, 'it had to be eaten for the support of life while it existed.'

[5330; M. Malcolmson, 3013, 3014; W. Manson, 3039; T. Williamson, 9470; J. Robertson, jun., 15,186.]

BURRAVOE

Gilbert Robertson, a boatskipper and an elder of the kirk, gets his supplies in Lerwick, because he found flour to be 2s. per sack, and meal 3s. or 4s. a sack, cheaper than Burravoe, a place to which there has for some years been steam communication from Lerwick twice a week.

[9320]

UNST

In Unst a witness got meal from Spence & Co., at the date of the sitting there, at 1s. 5d. per peck, or as nearly as possible 24s. 11/2d. per boll, allowing 1/2d. a peck for

loss in weighing; the price in Lerwick being 19s. 6d. per boll, or 131/2d. a peck. During almost the whole of the previous year the same price was charged there, though it was sometimes 1s. 4d.; and 1s. 4d. was the price of the same meal at Isbister's adjacent shop. The books kept at Balta Sound show that meal was being sold at 5s. 8d. and 5s, 9d. per lispund, or above 24s. per boll, in October 1871, while the price in Lerwick in that month was 19s. 6d. per boll. An opinion is expressed by the registrar of the parish Unst, that the 2s. 6d. tea he gets in Lerwick is 'much about the same as the 3s. tea which he gets from Spence & Co. at Balta Sound. But a favourable report upon Spence & Co.'s 3s. tea sold to me is afterwards referred to.

[Janet Robertson, 9812; C, Robertson, 15,042; J. Laurenson, 9843, 9905; W. G. Mouat, 10,254; C. Robertson, 15,040; P. Johnson, 10,227.] SKERRIES

At Skerries, where Mr. Adie has the shop, and is tacksman of the islands, meal is said to be charged 7s. a sack higher than it is in Lerwick; and an instance is given in which 6s. a sack was paid for it, while it could have been had from any merchant in Lerwick for 50s. or 51s. In January of the present year the price was 1s, 4d. per peck, or 23s. per per boll, at Skerries, being 19s. 6d., or 1s. 11/2d. per peck, at Lerwick. A similar difference existed in spring 1871. All articles at Skerries are stated to be over-priced, such as soap, soda, and sugar, which can be got much cheaper even at Whalsay, where Hay & Co. have a shop. On soda the overcharge is said to be 50 per cent.

[T. Hutchison, 12,658; J. Robertson, sen., 14,569; P. Henderson, 12,756; D. Anderson, 12,795; A. Humphrey, 12,826; T. Hutchison, 12,685.]

VIDLIN

Although Mr. Robertson carries on an extensive trade in meal at Lerwick, and there sells at town prices, his shopkeeper at Vidlin, in Lunnasting, charges about the ordinary prices of the country shops. A pass-book produced by a witness shows meal charged at 22s. 8d. and 22s. in September 1870, when the Lerwick price was 19s. The difference, however, does not appear to be so great here as at some other places. Thus in February 1870 meal was 1s. 11/2 d. per peck, being 1s. per peck at Lerwick. In June 1871 overhead flour was sold at Voe at 1s. 3d. per peck; the price at Lerwick being 16s. 6d. per boll, or 1s. per peck, or for the finer quality of overhead flour, about 1s. 11/2 d. per peck.

[L. Simpson, 13,884; G. Scollay, 15,013; C. Robertson, 15,032; G. Scollay, 15,010; 15,012; C. Robertson, 15,037, 15,043.]

YELL, OLLABERRY, ETC

Prices charged by some other merchants may be mentioned at random. Laurence Williamson, Mid Yell, sold meal in August 1871 at 3s. per 1/2 lispund, or about 25s. per boll, the Lerwick price being then 21s. At Ollaberry shop (Anderson & Co.) 21/4 lines are charged 2s. 3d. cash, and 2s. 6d. if marked down, while they are got by a witness direct from Glasgow 'for 1s. 11d., including freight and everything.' In 1871

men fishing for William Jack Williamson at Ulsta, South Yell, paid 1s. 3d. for flour, while there was as good at Messrs. Hay's at Feideland, a remote fishing station, for 1s. 1d. Paraffin oil in Unst was retailed in January at the rate of 2s. 6d. per gallon, being purchased at 1s. 5d.

[L. Williamson, 9068; A. Johnson, 14,933, G. Gilbertson, 9583.]

These are but a few instances of the statements of witnesses with regard to the prices and qualities of goods. They appear to show that the truck system of Shetland resembles the truck of the English and Scotch mining and manufacturing districts in enhancing the prices of goods to the purchasers. This is the natural result of a system in which the purchaser has no option as to the dealer to whom he goes for necessary supplies; but it must also be remembered that in retail trade in rural districts custom has a powerful effect in fixing prices, and that even if truck did not exist, prices in so remote a region would be somewhat above the level of Aberdeen or Wick.

I conclude this part of the subject by referring to the evidence of Mr. James Lewis, an extensive and experienced merchant in Edinburgh, as to the price and quality of certain samples of goods submitted to him. The goods were purchased at the shops of Messrs. Pole, Hoseason, & Co., Mossbank, by a person employed by me, and that of Mr. Morgan Laurenson, Lochend, Northmaven, by Charlotte Johnson, for her own use; and at Messrs. Spence & Co.'s shop at Uyea Sound, by myself.

[A.T. Jamieson, 7945; C. Johnson, 15,811.]

MOSSBANK

The four articles first spoken to by Mr. Lewis were got at Mossbank. The meal was of very inferior quality, not saleable in the Canongate of Edinburgh; and though bought at 1s. 5d. a peck = £1, 4s. 6d. per boll, is valued at 20s. This corresponds exactly with the Shetland evidence as to value. Tea bought at 2s. 10d. is valued at 2s. 4d. as the retail price in Edinburgh, which gives 211/2 per cent. to cover carriage, risk, and <additional> profit. A tea bought at Mossbank at 2s. 4d. is of the same value as the 2s. 10d. tea, though somewhat different 'in style.' Sugar obtained at Mossbank at 6d. per lb. is worth 41/2d. in retail in Canongate, so that the merchant in Shetland takes 33 per cent. to cover carriage and <extra> profit.

[J. Lewis, 16,816.]

UYEASOUND.

Tea bought at 2s. 8d. is valued at 2s. 6d. here; and Mr. Lewis thinks 2s. 10d. would be a fair value for it in Shetland, being a good tea, and carrying, according to the practice of the trade, a larger profit. Sugar bought at 5d. is valued at 41/2d.

LOCHEND.

Tea, for which the witness paid 4s. 4d., is valued at 3s., and though by far the best of the teas examined, was much over-priced. Loaf-sugar at 10d. should have cost only 6d., and would be too dear at 8d. even in Shetland. Flour bought at 2d. per lb. is not fit for use, and is not flour at all in the opinion of the reporter. Rice at 31/2d. per lb. is

fairish; would sell at 21/2d. in Canongate, and might fairly be sold at 3d. in Shetland. Soap bought at 6d. per lb. was worth 4d., so far as Mr. Lewis could judge of it in a dry state.

Tobacco sold at Grutness at 4d. per oz., and another sample sold at Gavin Henderson's, Dunrossness, at 4d. per oz., are both valued at 4s. per lb., or 3d. per oz.

Throughout the islands the prices charged to the men in account are the same, with few exceptions, as those charged to the purchaser for cash. Mr. Adie gives a discount where the amount purchased is worth discounting, but he also usually gives a discount of 5 per cent. upon his men's accounts. In Unst a lower price seems to be charged where cash is paid.

[W. Irvine, 3625; A. Tulloch, 5446; J.L. Pole, 9440, 9448; W. Robertson, 11,111, 13,635; W.B.M. Harrison, 15,726; L.F.U. Garriock, 12,295; T.M. Adie, 5636; J. Harper, 10,393; T. Anderson, 10,507.] _____

SPLITTERS, BEACH-BOYS, AND WOMEN.

WAGES SETTLED IN GOODS

The fishermen hitherto spoken of are not strictly labourers receiving wages, but may be regarded as vendors of wet fish to the fish-merchant, or less properly as partners with him. But to persons employed in curing fish, wages are paid, and are often paid in goods to their full amount. In the payment of these persons, especially the women and boys, undisguised truck exists to an extent not exceeded in any of the trades in which the system has been carried to the highest perfection; but the important distinction is to be observed, that little or no compulsion or influence is required to make the work-people take the goods.

WEEKLY PAYMENTS, CURING BY CONTRACT

In some of the curing establishments at Lerwick the pays are as frequent as it is reasonably possible to make them. The people are paid every week; but in nine cases out of ten a large part of their weekly wages is anticipated in supplies at the employer's shop. This of course involves an amount of time and trouble, and a risk of bad debts, which no merchant would incur, except for a large profit, and which indeed led Messrs. Harrison & Sons to refuse altogether to give 'out-takes' to work-people of this class. The wages are, however, paid at Lerwick, and some of the people spend their money at the shops of the firm, which adjoin the pay-office. At Scalloway, where Messrs. Garriock & Co. have no shop, they employ persons at daily wages, which are paid weekly, or within the fortnight. But the habit of running accounts is so inveterate in Shetlanders that 'often what they have to get on the Saturday night is forestalled in the shops.' In contracts for curing, which are sometimes made, Messrs. Garriock & Co. have no dealings with the work-people employed by the contractors, but make such advances as are necessary to them in money. It is not always so where curing is ostensibly done by contract. Thus, in Unst, many of the work-people employed by a contractor at Westing have accounts in the shop-books of Spence & Co. at Uyea Sound; settlements being effected, and

sometimes advances made, by the merchants themselves on the authority of lines given by the contractor, stating the amount of the beach fee. The balance due is ascertained in the merchant's books, after deducting the amount due by the contractor for his own supplies at the shop.

[W.B.M. Harrison, 15,772; J. Manson, 2941; L.F.U. Garriock, 12,445, 12,443; A. Sandison, 10,108; P. Smith, 10,344.]

BEACH FEES

These are the cases in which exceptional circumstances are found in dealings between merchants and persons employed at the beaches. Throughout Shetland the most common arrangement is to pay splitters and beach-boys or women by a beach fee, which varies from £8 or £10 for the season to an experienced head curer, to 30s. to a beach-boy in his first year. Sometimes extra hands are paid weekly wages as day-workers. But even in these cases advances are generally made in goods; and sometimes, as at Mossbank and Greenbank, the account runs 'three, four, five, or six weeks or perhaps the whole season.' In a passage already quoted from the evidence of an extensive employer, it is made very clear that these people, in whatever way they are paid, are 'expected' to come to the employer for supplies.

[W. Pole, 5917; p. 14, see above.]

The operation of truck in this department is shown in the examination of Mr. Robertson, manager for Mr. Leask, who employs 80 persons regularly, and others occasionally, in his curing establishments near Lerwick. Mr. Robertson afterwards produced a 'time-book' for the people employed at Sound Beach, near Lerwick,

13,607. ....'to show the proportion of money and of goods received by each. [Produces book.]' '13,608. That is a time-book for the work-people employed in 1871 at Sound Beach, which is about a mile from Lerwick?-Yes. It shows the amount of cash paid, the balance, of course, being the amount of their accounts for the week.' '13,609. The first name is M'Gowan Gray?-He is the superintendent.' '13,610. The entry in his case is, Cash 2s., time 6, wages 10s.: what does that mean?-He has 10s. a week of wages, six days a week, and 2s. is the cash he has to get.' '13,611. The entry in the inner column is made at pay-day, showing the amount of cash he has to get?-Yes.' '13,612. How is the amount of cash ascertained?-We have a ledger account with each individual, which is settled every week, but perhaps it may not be balanced. We do not generally balance until the end of the year, but we square accounts before.' '13,613. Is the account squared to ascertain the amount of cash payable?-Yes, the amount of cash due to the individual.' '13,618. Are the balances entered here always paid in cash?- Always.' '13,619. Are they never allowed to lie?-Not with the work-people.' '13,620. Is the week ending 2d Sept. 1871, of which this- [showing]-is the account, a fair average of week throughout the season?-I think it will be about a fair average.' '13,621. It shows £5, 17s. 5d. as the total amount of wages earned; and of that, £3, 19s. 7d. was paid in cash at the end of the week, the rest having been taken out in the course of the week in goods?-Yes, principally in provisions.' '13,622. I see that in one case it had been altogether taken out in goods, and there was no cash

due?-Yes; but in others you will find that there has been nothing taken out, and that the whole was paid in cash.' '13,623. I see that in six cases cash has been paid in full out of twenty-seven people employed?-Yes.' '13,624. I fancy that in that week rather more has been paid in cash than the average, because in the following week £2, 9s. 2d. was due, and £1, 1s. 6d was paid in cash. In another week £4, 12s. 2d. was payable, and £1, 11s. 10d. was paid in cash. In another week £4, 6s. 9d. was payable, and £1,4s. 5d was paid in cash, there being twenty-five persons employed in that week. Then, in the last week which appears in the book, £3, 14s. 7d. was payable, and £1, 2s. 7d. was paid in cash, there being twenty-five persons employed then also?-Yes; people of course require the same amount of provisions whether they earn much or little, the amount of their balance in cash being less where the work has been less.'

[W. Robertson, 11,248.]

The story from other places is much the same. Thus, at Scalloway, where Messrs. Hay & Co. have a curing establishment, their manager's evidence is:-

'11,430. Is payment made to them in the shop at the counter?- Yes. Their advances are entered against them in the book, and then their wages are placed to their credit; and if they have anything to get, it is given to them.' '11,431. Is there a separate ledger account for each of these parties?-Yes; every one has an account, and when he gets advances these are put to that account.' '11,432. Can you say that any money ever passes at any settlement with these beach people?-Sometimes there has been a little, but not a great deal.'

[G. Tulloch, 11,430.]

The beach fee, which is the usual mode of payment to beach-boys, is almost always anticipated to a large extent, and the advances of goods sometimes begin as soon as the boy is engaged in the winter-<i.e.>, from three to six months before the work is begun. An example of the practice is presented in the evidence of James Garrioch, shopkeeper at Fetlar for Messrs. Hay & Co.; from an analysis of which it appears that of £16, 6s. payable as beach fees to nine boys, less than £7 was paid in cash, chiefly at settlement; and of £13, 5s. due to two men employed as curers, only £3 was paid in money. An examination of the books of Spence & Co. leaves the impression that most of the men and boys employed by them in curing at Balta Sound and Haroldswick take goods to an amount exceeding their beach fees.

[W. Goudie, 4401; J. Flaws, 5011; T.M. Adie, 5754; T. Thomason, 6241; J. Anderson, 6602; T. Hutchison, 12,608; J. Robertson, sen.,14,086; J. Garrioch, 8791; W.G. Mouat, 10,277.]

At Quendale, Sumburgh, and other places, where the tenants are bound to deliver their fish to the landlord, it is one of the conditions of their holding that 'they have to supply boys when they have them suitable for the purpose.'

[G. Jamieson, 13,361; A. J.Grierson, J. Bruce jun., G. Irvine, W. Goudie, 4369; J. Burgess, 5106.]

FAROE FISHING.

The cod fishing in smacks, chiefly on the banks near the Faroe Islands, has become an important branch of commerce in Shetland, In 1871 it employed 63 smacks, whose total tonnage was 2809 tons. They carried 816 men.' The produce of the fishing 1871, an unsuccessful year, was 370,597 fish, weighing 14,337 cwt. dry. In addition to these vessels belonging to Shetland owners, five curers in Shetland purchased at a fixed price the fish of 21 English smacks (tonnage, 680; men, 210), being 200,042 fish, weighing 5097 cwt. dry. The whole cure from the Shetland Faroe fishing was thus 19,434 cwt. In 1867 the Shetland smacks, 61 in number, weighing 2326 tons, and carrying 699 men, brought home 399,148 fish, or 14,031 cwt. In that year 24 English smacks (tonnage, 960; men, 222) sold to curers in Shetland 175,125 fish, or 6280 cwt.; making the total cure in Shetland in that year 21,301 cwt.

In the Faroe fishery the smacks always belong to the curer or merchant. A written contract is made with the men, generally in December. They agree to join the vessel on a day fixed, or to be fixed, in March, and to prosecute the fishing until the middle of August, on the coasts of Faroe, or other places in the North Sea, exerting themselves to make a successful fishing. If any person fails in the performance of his duty, his fee is to be reduced. The owners become bound to cure the fish, which the men split and salt on board as soon as caught. The owners sell the fish, when cured, for the benefit of all concerned. From the proceeds are deducted the expense of curing and of bait, together with a commission of five per cent. in some cases, for management and sale, allowances to master and mate, and score money, <i.e.> 6d. or 9d. per score of sizeable fish, to be divided among the crew according to the number caught by each man. The net proceeds after these deductions are equally divided between the owners and the crew, the crew accepting their half in full of wages and provisions, except 1 lb. of biscuit <per diem> provided by the owners. The share to be taken by each man, whether a full share or a half share, 2-3, 7-12 share, or whatever it may be, is written opposite the signature of each man. The men are bound, if the master or owners see fit, to leave Faroe for Iceland before the 30th August 'to endeavour for a late voyage' to go and fish for wages and victuals on a scale annexed to the agreement. These stipulations, with some others for the protection of the vessel, are usually in the agreement; but one owner uses a much shorter form, which will be found in the Evidence.

[L.F.U. Garriock, 12,414; T.M.Adie, 5726; J. Walker, 15,941, 15,957; W. Pole, 5956; W. Robertson, 13,603.]

The vessel is fitted out ready for sea by the owners; salt and curing materials are put on board at the joint expense; but the men provide themselves with lines and hooks, and all provisions except bread. These they always buy at the owner's shop, and they are entered in their private accounts. It is unnecessary to analyze the evidence as to the custom of dealing with the merchant-owner for provisions, etc. for the family, which is exactly similar to the custom already described as prevailing among the ling fishermen. Some of that evidence has already been noticed, and the chief passages are noted on the margin. Some of the evidence led me to think that the proportion of out-takes to earnings is less in the Faroe fishing than the ling fishing, and this theory was confirmed by several obvious considerations. The men are often

young men without families or with small families, and they sometimes live at such distances from the merchant's shop as to make it inconvenient to resort thither constantly. Moreover, in years of average success, the earnings of the Faroe fishing are larger than those of the ling fishing, and the men therefore are generally more independent. It follows from the nature of the employment, that they are also upon the whole a more active and energetic class of men than those exclusively engaged in the ling fishery.

[C. Sinclair, 1157; J. Johnston, 12,232; W.B.M. Harrison, 15,720; P. Garriock, 15,212; M. Johnston, 7868; J. Pottinger, 13,592; W. Blance, 6099; P. Blance, 8521, (supra p. 15) W. Pole, 5956.]

It appears, notwithstanding, both from the statements of witnesses and the returns, that a very considerable proportion, not less than in the ling fishery, of the earnings of Faroe fishermen is paid in 'out-takes.' Mr. Lewis Garriock, one of the leading merchants, says:

'The fishermen's proportion is paid to each of them in cash, under deduction of any provisions and articles of clothing for themselves, and provisions, etc., supplied to their families during the season, so far as they have supplied themselves from us; but they are under no obligation to take such advance from us, and can, if they choose, buy their articles from any shopkeeper, either for cash (which many of them have spare) or on credit. A few of the men can do without advances, having spare money; but the fishing could not be carried on if we were not to supply them, especially as regards the lads in their first and second year.'

'In years when the fishing is not remunerative advances merchants making these lose heavily in bad debts.'

'I have gone carefully over the accounts with the crews of two smacks, and produce an abstract of the men's accounts, which shows that, as respects one of them in 1870, we accounted to them for £427,19s. 2d., of which they had from us for lines, hooks, and provisions on board, £71, 7s. 9d.; clothing, and supplies of meal, etc., to their families, £114, 14s. 5d.; and in cash, £239, 17s. The other crew, in 1870, had, in lines, hooks, and provisions, £81, 7s. 11d.; goods, £129, 0s. 8d.; and in cash, £374, 13s. 6d. The same crew, in 1871, in lines, provisions, etc., £63, 3s. 4d.; goods, £67, 7s.; cash, £198, 9s. 7d. Looking at the last two years, as regards our fishermen in smacks, it appears they have had considerably more than half their gross shares paid them in cash .'

'We would, as merchants, greatly prefer a cash system, payment being made upon the fish being delivered, the same as we do to English smacks fishing-for us at a contract price-and we derive about one-third of our cure from this source. But I believe were such a mode attempted, it would lead to fixed wages, and would end in loss to both men and owners and a great falling off in this branch of the fishery.'

I have already mentioned that some attempts have been made to hold tenants or their sons bound to engage in their landlords' or tacksmen's smacks for this fishing; but it rather appears that these attempts have not always been successful. [See pp. 7, 15]

The men have not come forward to complain of this. The only grievance which some of them have stated is, that they do not see the bills of sale, and that they are therefore not satisfied that they are fairly treated in settling.

[M. Johnston, 7868; P. Blance, 8531; J. Pottinger, 13, 658.]

HOME COD FISHERY.

This fishery is carried on chiefly by Garriock & Co., Reawick, who used to have ten or twelve, but last year had only five smacks engaged in it, with crews of nine hands. The fishing season is from 1st May to 15th August.* The men are engaged on shares, and are settled with in the same way as those on board the Faroe smacks. There is this difference, that the owners do not provide bread or coals, and the men get seven-twelfths of the earnings. The men come home every week. A copy of a settlement with the crew of one of these vessels, produced by Mr. Garriock, shows that four-fifths of the whole earnings were paid in cash, the rest being taken in goods.

* <Sea Fisheries Commission Evidence>, 31,851, 31,974. <Account of Herring and White Fisheries in the Shetland Islands> by A. Anderson, p. 22 (London 1834. Pp. 32).

[L.F.U. Garriock, 14,468; J. Johnston, 12,236; L.F.U. Garriock, 12,474.]

KELP

The manufacture of kelp from sea-weed is still prosecuted to a large extent on the coasts of Shetland. The tang or sea-weed is gathered and burnt by women, from May till August. In most cases the fish-merchant of the district has a tack or lease of the kelp-shores from the landlord, for payment of a royalty of about 15s. per ton. The women are employed by him, or without any previous arrangement gather the kelp and burn it,- of course with the understanding that they must deliver it to him. They invariably have accounts at his shop for provisions, tea, and dry goods. The merchants themselves state that these accounts generally exhaust the whole summer's earnings. The accounts are generally settled in winter,-sometimes, as in Unst, when the kelp is delivered; and it is not alleged that the women have any difficulty in getting money, if any is due to them, at settlement. There are in most districts two prices for kelp, or more properly two rates of wages for gathering and burning kelp,-at present, 4s. per cwt. if paid in cash, 4s. 6d. if paid in goods; and it is usually paid in goods. In one or two places I found only one price, 4s.; and at Greenbank, in North Yell, Messrs. Pole, Hoseason, & Co. pay 3s. 6d. in cash, and 4s. in goods. In Unst, from 120 to 130 women were employed and at Lunna 60.

[P.M. Sandison, 5262; H. Williamson, 6337; Mrs Hughson, 6360; E. Peterson; 6466; J. Anderson, 6632; D. Greig; J. Brown, 7986; J. Garriock, 8839.]

EGGS, BUTTER, ETC.

Every shopkeeper in the country districts buys eggs and butter. The wife of the small farmer has the management of this department of rural economy. She takes the eggs and butter to the shop, and seldom thinks of getting money for them. They are

commonly paid for in goods, which are handed over at the time; but it does not appear that money would be refused if asked for. I found no instance of transactions of this kind being entered in an account.

[E. Peterson, 6484; W. Stewart, 8967; A. Sandison, 10,169; G. Tulloch, 11,437; W. Harcus, 11,853; G. Georgeson, 12,038, 12,047; A. Abernethy, 12,254; L.F.U. Garriock, 12,295; R. Henderson, 12,929; T. Tulloch, 13,015; R. Simpson, 14,022.]

HOME-SPUN CLOTH.

In some districts the people make a grey woollen cloth, which they dispose of to the merchants or shopkeepers. Mr. Anderson, Hillswick, states that most of his dealings in this cloth are settled for at the time in cash or goods. Another witness testifies to the difficulty of getting money, and his being obliged to take goods; and it appears that formerly there was one price in goods and another in cash. There is little evidence about this industry, which is now confined to particular districts. It shows that those who are free prefer to settle in cash or goods, as they choose, at the time of delivery; but that where the maker or her husband is indebted, it enters the account, and the merchant gives such amount of cash or goods as he judges fit. The wool is sometimes provided by the merchants at a price fixed and marked in account, and the cloth is paid for at the current price when returned, the cost of the wool being deducted. The people never think of selling the manufactured goods to another merchant. It may be a question whether the colourable sale of the materials to the workwoman saves transactions of this kind, in the making of woollen cloth, from the operation of the existing Truck Act.

[Mrs. C. Johnston, 8163, 8124.]

HERRING FISHERY.

The herring fishery is prosecuted in Shetland to a very limited extent, and in late years has not been fortunate. It has been said that this want of success is because the men of Shetland do not go to the herring fishing till late in the year, when the shoals have passed them. In 1833 the herring fishing in Shetland is stated to have employed 500 boats and 2500 men; and the total number of barrels cured to have been 10,000 in 1830, 20,000 in 1831, 28,000 in 1832, and 36,000 in 1833.* It is carried on in August and September by some of the men who have been engaged in the ling fishery during the earlier part of the season. The men are paid at a fixed rate per cran, as at Wick, the men buying from the curer nets, which are put into their accounts. A witness stated that it took him, or rather his crew, between eight and nine years to pay off the price of his nets, 'because they had lean fishings.' The price of the herrings is credited to the men at the annual settlement.

*Mr. Anderson's pamphlet on the 'Herring and White Fisheries in the Shetland Islands,' gives an account of the herring fishing as it existed in 1834, showing that it was prosecuted then, as it is now, under the same circumstances as to truck and tenure as have been detailed with regard to the ling fishery.

[T. Robertson, 8605; W. Williamson, 10,337.]

Mr. J. Robertson, sen., describes his recent experience in the herring fishery in the north-west of the Mainland. He arranged with some of the men who fished ling for him in summer that they should fish herring also for him, instead of Mr. Adie, for whom they had in previous years gone to the herring fishing. It was part of the arrangement that he should 'clear them off with Mr. Adie,' by paying their debts in accounts with him. It thus cost Mr. Robertson £300 in cash advances, which, he says, 'account for the large amount of debt shown to be due in 1870' by his fishermen. These men get half the fish for their labour, and the other half goes to the credit of the boat and nets supplied by the merchant. The price of the herring is the same as that paid by Messrs. Hay & Co.

[J. Robertson, sen., 14,108; 14,126.]

It would seem that the large sum required for nets is apt, as at Wick, to lay upon the fisherman an amount of debt which he is ill able to bear.

[C. Sinclair, 1135.]

PAYMENTS TO PAUPERS.

In the last Report of the Board of Supervision of the Poor, there is a 'Special Report by the General Superintendent of the Northern District (Mr. Peterkin) as to the Administration of the Poor-Law in Shetland.' The concluding part of this Report describes fully and correctly the facts as to shop dealings with paupers; and as it was communicated to me before I went to Shetland, I did not consider it necessary to spend much time in making further inquiries in regard to a subject already so carefully investigated. In one of the parishes, where the poor-law is practically administered, as Mr. Peterkin says, by these merchants and fish-curers, the inspector of poor was examined; and his evidence shows, I think, that the recent action of the Board of Supervision in this matter has been as effective as could be expected in a country where it is difficult or impossible to find either members of boards or inspectors altogether free from interest in 'shops.' An example of the state of things described by Mr. Peterkin is afforded by the evidence of Gilbert Scollay, who is employed by the parishes of Delting and Lunnasting to keep paupers. He is indebted to Mr. Adie, chairman of the Parochial Board of Delting; he signed an order entitling Mr. Adie to draw all the money payable to him by the parish for the support of a lunatic in his charge; and he got part of his supplies from Mr. Adie's shop, and part from Mr. Robertson's shop at Vidlin, in Lunnasting, in consequence of his having in his keeping another pauper from that parish.

[Appendix, p. 65; J. Bruce, 7638, L.F.U. Garriock, 12,503; G. Jamieson, 15,407, 15,418, 15,468; G. Scollay, 8387, 8389, 8418, 8419, 8427; Poor-Law Directory for 1871.]

FAIR ISLAND.

This island is situated half way between Orkney and Shetland, being about twenty-five miles distant from each. It is about two miles in length, and one in breadth. The population in 1861 was 380; but, after a season of great scarcity, about 100 of the people emigrated to America. Emigration has taken place also at other

times. Thus-'Six families left Fair Island and came to Kirkwall in 1869. We all left because meal was so dear, and wages were so low. They all left of their own accord.' I was informed by Mr. Balfour, of Balfour and Trenaby, that a colony of Fair Island people form a fishing village in Stronsay, in Orkney, where they have now been for two generations. At all times emigration must have been necessary to prevent intolerable overcrowding in so small an area. and yet the whole circumstances of the island show that this remedy is resorted to with great reluctance. At present the island is inhabited by about 40 families, or 226 persons.

[T. Wilson, p. 425; J. Bruce, jun. p. 330; T. Wilson, 16,656.]

The island is the property of Mr. John Bruce, jun., of Sumburgh. Before 1864 it belonged to Mr. Stewart of Brough, a proprietor in Orkney, and was held in tack by merchants of Orkney, who bought the people's fish and sold them provisions and goods.

It was impossible in winter to visit the island, or to get any witnesses brought out of it. But as the truck system was generally said to be practised there to an excessive degree, I received evidence from various persons acquainted with the island, viz.: Mr. Bruce, the proprietor; his factor; persons who had visited the island in his employment; and from two of its former inhabitants now living at Kirkwall, who left it about two years ago.

The people are obliged to sell their fish (seath or coal-fish) to Mr. Bruce. They get a lower price than that paid in Shetland. Mr. Bruce says:

'As I have to keep a store there for the convenience of the islanders, I discourage them from trading with any one else, as the only chance to make my store pay is to get the whole or the greater part of their custom.'

'Though there is a rule that the islanders shall not trade with others, I have never enforced this rule where I believed the parties visiting the island did not attempt to buy fish-in fact, in many cases I have given liberty to parties to trade with the islanders; and the only case in which I have enforced the rule, is in the case of a man from Orkney who, I had evidence to prove, stole my fish from the station at night, and shipped it on board of his vessel.'

'I have no poor-rates and no paupers in Fair Isle, and I have never evicted a tenant. If a widow or other poor person can't pay their rents, they sit rent free, and get help from their friends; and my manager has orders to see that no one starves.'

And again:

'13,326. With regard to Fair Isle, is there a standing prohibition against other traders dealing with the inhabitants there?-To a certain extent there is. I don't object to people trading there, if they confine themselves to hosiery and eggs, and that sort of thing; but what I am afraid of is, that persons may go there and buy fish.' '13,327. The inhabitants there are under an obligation, as a condition of their tenure, to fish for you?-Yes.' '13,328. As the landlord, do you place a restriction upon the sale of their cattle also?-Yes, there is a rule to that effect, but it is a very lax one.' '13,329. Is it not virtually the result of the obligation to fish or to sell cattle to the proprietor

alone, that the proprietor has the power of fixing the price, and that the tenant has no option at all with regard to that in either case?-That is not the result. Even although the proprietor buys the cattle, and prevents any one else from competing with him, still he respects public opinion so far that he gives the full value for the animal.' '13,330. Then public opinion is the only check upon the proprietor, and of course his own sense of right?-That is his only check.''

It is obvious that rules such as these must be injurious, unless they are worked not only with a sincere desire for the true welfare of the people, but with diligent care and sound judgment. There is no reason to doubt that Mr. Bruce desires to be both kind and just to his people; but it is plain that at Fair Island, as at Sumburgh, his system has not proved advantageous to the people who are placed so entirely at his mercy.

The people complain that they get a lower price for the fish than is paid in Shetland, and that excessively high prices are charged for the goods sold to them at the shop. They also complain that wages allowed for work to the proprietor are too low, and that they were prevented by him from working at better wages to one Williamson, who bought a ship wrecked on the island in 1868, and who employed men to work at the wreck. The settlements are annual, though sometimes a year has been passed; and they do not take place till June, when all accounts are settled up to let May. No money is asked for or paid until settlement.

The restrictions of the islanders to the master's store is strict, and indeed avowed; and there is some difficulty and risk in dealing with the strangers who occasionally come to the island to trade. One of these, James Rendall of Westray, Orkney, has come into collision with Mr. Bruce's people; the people of the house in which he lodged were forbidden to allow his business to be carried on there, and he was driven to erect a stage below high-water mark and sell his goods there. Once at least, when Mr. Bruce and his factor were on the island, he carried on his traffic by night. The prohibition is directed, according to Mr. Bruce, only against the sale to strangers of cattle and fish; but the people have so little money, that that may be held as nearly equivalent to a prohibition to buy goods from them.

[H. Smith, 4747; T. Wilson, 16,656; L. Wilson, 16,659; G. Irvine, 13,238; J. Smith, 13,058.]

The price paid for fish by Mr. Bruce is generally 10s. a ton less than he gives at Grutness.

The prices of goods are considerably higher than even the prices at Grutness. Thus two witnesses say that meal, before they left the island in 1869, was never lower than 30s. per boll, while they had bought it from Rendall at 26s. and 24s., and from Williamson, when he was working at the wreck of the 'Lessing,' 3s. or 4s. cheaper than at the shop. It could then be got at Kirkwall at 23s. or 24s. Rendall sold sugar at 6d., while the same quality was 7d. at the shop; and tea at 9d. and 10d., while it was 11d. and 1s. 1d. at the shop, and once 1s. 3d. On a rare occasion Mr. Bruce had loaf-sugar at the shop, which was 1s 2d. or 1s. 3d. per lb. Soap, invoiced to Mr. Bruce at 28s. per cwt., was sold at Fair Island at 6d. per lb., exactly double the wholesale

price.

[H. Gilbertson, 4734; T. Wilson, 16,656; L. Wilson, 16,659; G. Irvine, 13,234, 13,235.]

FOULA.

CENSUS.

This island is situated eighteen miles from the nearest point on the west side of the Mainland. It is three miles long, and two miles broad. Its hills or precipices are very lofty, the highest point being 1369 feet above the sea. In 1861, the population was 233. The people are said to be a superior race to those of Fair Island. It is the property of R.T.C. Scott, Esq. of Melby.

The fishing and the shop are entirely in the hands of Messrs. Garriock & Co., who are factors for the proprietor. No other shop is allowed, and no other traders have tempted for some time to trade with the people at the island. I did not hear, directly or indirectly, that any complaints are made by the people with regard to the business arrangements of Mr. Garriock. It is said, indeed, that the people are trucked; but current rumour in Shetland, even among the opponents of truck, does not allege that any gross abuses exist in the island. The island is difficult of access, and the only evidence with regard to it is that of Mr. Garriock himself.

'12,880. Would you continue to supply them if you did not have the bulk of their dealings?-No, we would not keep a shop there if we did not have the bulk of their dealings; it would not be worth our while. I may explain that, a few years ago, some of the youngmen wished to cure their own fish, and go out with them to the Mainland. There was a little discussion amongst them about it, and we put it to them whether they would wish to have that liberty or not; and in order to ascertain their views, we sent in a paper to the schoolmaster, and asked him to circulate it among the men.

[The witness put in a document in the following terms, signed in the affirmative by 65 men:- .

'"Garriock & Co., who have for the last fourteen years kept a curing establishment on the island of Foula, and found the undivided produce small enough to pay for the trouble and risk of it, while furnishing the necessaries of life, fishing material, etc., at ordinary rates, would, now that some parties have shown an inclination and even begun to cure their own fish, wish to ascertain the views of the people as to whether they desire G. & Co. to continue their establishment as before; or would they prefer each to cure as it suits him, and provide his necessaries as he can? Whilst there is always the most perfect freedom to all to fish, labour and sell their produce in what appears to them the best market, the isolated position of the island appears to require that one system be followed by all." '

'"The heads of families and other fishermen will therefore please indicate their views by subscribing below, adding yes if the former system be preferred; or no, if otherwise.-1867."] '12,381. Were there any negatives to the paper?-No. It created great alarm amongst the people, because they were afraid they would be left to their own resources.' '12,382. In consequence of that you continued to supply the

islanders?-Yes, we went on as before ....' '12,386. Since you sent in that paper, has any attempt been made by the inhabitants of Foula to cure their fish themselves?-No; we found it needless to have sent in that paper, because they had given it up themselves, as it had not been paying them.' '12,387. But that paper had the effect of making it quite clear to the inhabitants of Foula that they must either give their fish to you green, or you would remove your shop?-We would either have their whole trade or none of it. It is a great risk to send vessels and boats there, and part of their trade would not pay, I may say that we supply goods there at the same price as we do at our shop at Reawick.'

NORTHERN WHALE AND SEAL FISHING.

The owners of Vessels engaged in this trade, and belonging to Hull, Dundee, and Peterhead, find it convenient to engage large numbers of their crew at Lerwick, where they call in their voyages northwards in February or March and in May. For this purpose agents at Lerwick are employed, who receive a commission of 21/2 per cent. on the wages of the men. None of these agents are, I believe, licensed by the Board of Trade, under sec. 146 of the Merchant Shipping Act of 1854; but no prosecution for penalties for supplying seamen, under sec. 147 of the Statute, has been directed against any of them, or against the masters of the ships for which they act. The men are paid by monthly wages at a low rate, and by sums of 'striking-money,' 'fish money,' 'oil money,' and 'bone money,' which vary according to the success of the voyage. The whole earnings are payable when the men are discharged, except a second payment of oil-money-a small balance left over until the oil has been boiled, and its exact due amount ascertained.

It was stated by witnesses examined before Mr. Sellar in 1871,* and by Mr. Hamilton in a Report to the Board of Trade partly printed in the former Report,** that the chief profit of these agents, who are also shopkeepers, 'arises from what they can make out of the earnings of the men;' that the agents are interested in finding employment for the men who are in their debt, the inference being that they procure engagements for them in preference to others; that, for security of the agent's advances, allotment notes are made out in his favour; that even men who have means to pay for their outfit are obliged to deal at the agents' shops, that they may have their assistance in getting an engagement; and that settlements of wages, which ought by law to be made at the Custom-house within three days of the ship's return, are often delayed for months, in order that the accounts at the agents' shops may be increased.

*First Report, Min. of Ev., qu. 44,217 ** Report, p. xcix.

AGENTS' EVIDENCE IN CONTRADICTION OF FORMER REPORT

Most of the agents engaged in this business came forward to contradict the statements of the former witnesses, and of Mr. Hamilton's official Report; and they evinced much indignation, especially with regard to the latter. Upon their own evidence, however, the state of matters in times not very long past is not inaccurately

described by Mr. Hamilton. It is true, indeed, that his Report, as printed, does not notice that the Board of Trade, acting through Mr. Gatherer, Collector of Customs and Superintendent of the Mercantile Marine Office at Lerwick, had, shortly before he wrote, taken measures to secure that the men should be paid their wages according to law, in cash, in presence of the Superintendent; but the efforts of the authorities do not appear to have been quite successful at the time when the Report was written. Although even now some improvements are required, the men's dealings with the agents have evidently decreased during the last few years.

[L.F.U. Garriock, 12,543.]

The understanding that men shall get their supplies where they get their employment is so universal in Shetland, that it is not surprising that it should have extended to the men employed in the whaling ships; and although Mr. Hamilton's description may be coloured by his personal acquaintance with a few extreme cases, a knowledge of the system prevailing in the local fisheries certainly raises the strongest presumption in favour of its substantial accuracy.

[A. Sandison, 7088; A. Moffat, 16,352; A. Goodlad, 16,399; P. Halcrow, 15,549; W. Robertson, 16,581.]

The substance of the evidence on this subject may be stated in a few sentences:-

The debts of the seamen to the agents are often considerable in bad years, and the agents often lose a great deal by bad debts. The amount of the accounts after successful voyages may be seen from the abstracts given in by Messrs. Hay & Co. and Mr. Tulloch. Mr. Tulloch and Mr. Tait agree in saying that the men's average out-takes still amount to about one-fifth of their earnings; and Mr. Robertson estimates them at one-fourth. In the case of the 'Camperdown,' in 1865, under the old system, the men's earnings for both the seal and whale fishery amounted to £1537, 10s. 3d.; the amount of cash paid was £1120, 12s. 3d.; leaving £416, 18s. for goods sold. This case was selected by the witness. The accounts in the agent's ledger are settled when the men come to Lerwick for the purpose, many within a month or two after the men are landed, but in other cases, where the men live at a distance, not for several months. No doubt the men are in some measure to be blamed for this; but there can be no doubt that they would attend for payment at the proper time if the agents and shipmaster seriously insisted on their doing so. Before 1867 the men received the balance of wages due to them at the agent's office, the whole of the payments in cash and supplies of goods made in the course of the year to themselves or their families having been deducted. The account was balanced by payment of the sum remaining due after these deductions. Since 1867 the account in the agent's books is still in the same form, and is balanced exactly in the same way; but the seaman goes through the form of receiving at the Mercantile Marine Office the whole sum due to him, under deduction only of the advances, etc., allowed by the Merchant Shipping Act. His account is read over and made ready for settlement before he goes to the Mercantile Marine Office; and after he has got the lawful sum of money there, he returns to the agent's office, and either hands back what he owes for goods or cash advanced over and above the legitimate deductions already made, or he hands

over the whole money he has got at the Custom-house to the agent, that he may pay himself, and settle the account in the regular Shetland fashion. The accounts due for former years to other agents are sometimes deducted from the balance due; and with this view, it was formerly the practice, not yet quite obsolete, that lists of indebted men should be handed from one agent to another, and that their old accounts should be found standing against them in the books of their new agent. Down to 1870 accounts were still 'squared' at the Custom-house in some cases, the agent handing over there only the exact sum due to the men.

[W. Robertson, 10,938, 10,048; J. Gatherer, 15,895; A. Munro, 16,193; W. Robertson, 16,631; W. Robertson, 11,130, 11,213; J. Leisk, 14,632; A. Goodlad, 16,419; A. Munro, 16,161; G. Williamson, 9624; W. Robertson, 11,029; W.B. Tulloch, 14,382; W. Garriock, 16,800; W.Robertson, 10,974, 11,031; W.B. Tulloch, 14,420, A. Munro, 16,182.]

It is explained to the men, when they first come to the agent's office and have their ledger account adjusted, that the 'account of wages' settled at the Mercantile Marine Office does not include the agent's account of supplies, and that he has to pay that afterwards; or he is told at the Custom-house to go down and pay his money back. It is still quite understood that the agent having the first claim on the man's wages in honour, if not in law, he has to go down at once to pay the amount of his account; and instances of failure in this respect are hardly known.

[W. Robertson, 11,022, 11,212; G.R. Tait, 14,529.]

The outfit and some of the family supplies are almost always taken from the agent's shop; but many of the men live so far from Lerwick, that the distance forbids them to deal with him to a large extent. The circumstances of the men are generally so much better than those of ordinary ling fishermen, that they are not compelled to get credit to the same extent, or perhaps can get it near home, since the enforcement of the law in 1867 gave some security that the earnings of the year's voyages would not be forestalled. The outfit is still almost invariably got from the agent; and Mr. Robertson, whose special mission was to deny everything in the former evidence and in the Report by Mr. Hamilton, could not point to any case where it had been got elsewhere. Young hands in their first voyage must get their outfit from the agent; and as in their case the outfit is generally very expensive, the number of young hands engaged since 1867 has decreased, the agents being unwilling to give an outfit or credit, which one season's wages are often insufficient to pay.

[W. Robertson, 10,973; A.B. Jamieson, 14,318, 14, 321; J. Leisk, 14,637, 14,680; W. Robertson, 10,940, 10,954; W.B. Tulloch, 14,448; L.F.U. Garriock, 12,509; W. Robertson, 16,593; P. Moodie, 14,675.]

Notwithstanding the enforcement of the law as to payment of wages, the old custom of dealing with the agent who gets the engagement is still not without force; and some men say that it is still so strong as to deprive them of credit elsewhere, because they are expected not only by the agent, but by other tradesmen, to be running an account at his shop.

[A. Moffat, 16,352; A. Goodlad, 16,399.]

Allotment notes have not come into general use at Lerwick; and when they are drawn up, they are sometimes taken in the name of the agent, or some one in his employment. Many families in either case are supplied with goods as they want them, or, if they live in Lerwick, with a weekly allowance of meal, the only difference being that the sums in allotment notes need not undergo the process of being handed over at the Mercantile Marine Office. The money obtained on advance notes is often paid back at once to the agent for outfit or supplies, or rather the advance note is left with the agent, in security of the goods supplied. It is stated by Mr. Robertson (10,968) that the first month's advance is paid in cash. and that the men may spend it where they like. But since leaving Shetland I have received a very detailed statement by a seaman, that he was this year refused such payment unless he took two-thirds in goods. That statement, however, is not an oath, and therefore does not form part of the evidence. Of course an advance note is not strictly due until after the man has joined the ship; but the practice is as Mr. Robertson states in his evidence. Only one case is spoken to in which an agent refused or hesitated to give cash for a balance due to a seaman. But in older times it was usual to 'shove off' the men, giving 10s. or £1 at a time, and refusing to settle with them.

[A. Blanch, 9144; G. Williamson, 9608; A.B. Jamieson, 14,311, W. Robertson, 11,180; A. Goodlad, 16,358; P. Halcrow, 15,552; W. Laurenson, 15,601.]

It is in evidence that many men believe that the agents, who have unquestionably a voice in regard to the selection of the men, procure berths in the first place for those who are indebted to them for outfit and supplies. Of course they have, as they admit, a strong interest to do so; and it is said that masters have complained of inferior men being put upon them for this reason. But no very distinct evidence as to this could be obtained. Two cases are referred to in which agents declined to procure engagements for men, or tried to prevent their being engaged. In one of these the offence was having drawn the money due for the sealing voyage, instead of letting it remain until after the whaling voyage.

[W.R. Tulloch, 14,490; W. Robertson, 16,572; W. Garriock, 16,280; T. Gifford, 15,552; W. Robertson, 10,959; G.R. Tait, 14,558; F. Gifford, 15,499; W.R. Tulloch, 14,483.]

While, therefore, Mr. Hamilton's Report must be received with some qualification in regard to one or two points as to which he could not have full information, and while it must be granted that a cursory perusal of it leaves a stronger impression of the abuses it exposes than a more critical study of its language justifies, its general correctness with regard to a recent time has not been disproved but confirmed by the attacks to which it has been subjected. Indeed, nothing could more clearly demonstrate the truth of the general conclusions to which it leads, than the fact's, (1) that Messrs. Hay & Co., Mr. Tait, and Messrs. Laurenson & Tulloch, three out of the four agents at Lerwick, have within the last two years retired from the business, all stating that the commission of 21/2 per cent. is insufficient to remunerate them for the trouble of engaging and settling with the men; and (2) that all the agents concur, by refusing credits, in excluding from engagements the 'green hands,' from whom the chief part of their profits was formerly derived. It is not surprising that these

respectable merchants, whose error consisted in carrying on business on a system deeply rooted in the country, and which in more than one case had descended to them from their fathers and grandfathers, should have felt deeply the interference of new laws, the expediency of which they were naturally unable to see. But, in noticing the effect of these laws, imperfectly as they have hitherto been observed, it is impossible to avoid asking whether some analogous regulations might not effectually extirpate the truck system in the other fishing industries in Shetland.

HOSIERY AND SHETLAND

In the Evidence, the word hosiery is used improperly to include the large class of woollen articles knitted by the Shetland women. The fineness of the wool of the Shetland sheep probably gave a very early impulse to this industry. It is recorded that in the seventeenth century a great fair for the sale of hosiery, properly so called, was held each year, on the occasion of the visit of the Dutch fishing fleet to Bressay Sound. The Rev. Mr. Brand says:

'The Hollanders also repair to these isles in June, as hath been said, for their herring fishing; but they cannot be said so properly to trade with the countrey as to fish upon their coasts, and they use to bring all sorts of provisions necessary with them, save some fresh victuals, as sheep, lambs, hens, etc., which they buy on shore. Stockins also are brought by the countrey people from all quarters to Lerwick, and sold to these fishers; for sometimes many thousands of them will be ashore at one time, and ordinary it is with them to buy stockins to themselves; and some likewise do so to their wives and children, which is very beneficial to the inhabitants, for so money is brought into the country there is a vent for the wooll, and the poor are employed. Stockins also are brought from Orkney, and sold there, whereby some gain accrues to the retailers, who wait the coming of the Dutch fleet for a market.' [Brand's <Shetland>, p. 132.]

The 'Truck system' was even then in operation, for Mr. Brand says:

'These (Hamburg and Bremen)merchants seek nothing better in exchange for their commodities than to truck with the countrey for their fishes, which when the fishers engage to, the merchants will give them either money or ware, which they please.'-p. 131.

The finer articles, now known as Shetland shawls, veils, etc., were not manufactured till a much more recent date. Dr. Edmonstone speaks of stockings as if they were the only product of the Shetland knitter's industry; * and stockings and gloves are the only articles of woollen manufacture specified as made in Shetland by the writers of the Statistical Account in 1841 [Stat. Acc. 16, 47]. Originally the trade was entirely carried on by persons knitting the wool grown by their own flocks, or procured from their neighbours; and they bartered the articles so made to merchants in Lerwick or elsewhere for goods of every kind. Transactions of this kind, which are still common, do not fall within the provisions of the existing Truck Acts, which apply only to the payment of wages, and not to sales. Mr. Arthur Laurenson, the head of the oldest house in this business, says:

* <View, etc.>, vol ii p. 1 (Edinr. 1809)

'It is only within the last twenty or thirty years that the women have been employed, so to speak, by the merchants. It was about 1840 or 1841 that the making of shawls began to get very common here; and about 1845 or 1846 there was a very great demand for them. After that the veil knitting commenced, about 1848 or 1849, and from 1852 to 1856 there was a very great trade done in veils.'

KNITTING PAID IN GOODS

Although payment in goods, or in account, of work done with the merchants' wool may be held to be an offence under the existing law, the custom of barter has so long existed in Shetland, and is so thoroughly interwoven with the habits of the people, that the question has never been raised in the local courts, and it does not even appear to have occurred to merchants that they might be held to infringe the law. In regard to both branches of the trade, the sale or barter of the knitted articles, and the employment of women to knit them, evidence has been freely given by the merchants themselves.

In both branches of the trade, it is the custom and understanding of the country, from Unst to Dunrossness, that payment shall be made in goods. Formerly money payment was never thought of. Of late, however, the custom of giving a portion of the payment in cash has, according to Mr. Laurenson and other merchants, been increasing. But this alleged increase is, I think, so slight as to be hardly worth mentioning, except in regard to the very highest class of articles. These the merchants are anxious to get, and the women who knit them have learned to demand payment of the whole or a portion of the price in money. There are few knitters, however, of this class, and some of them sell their work out of Shetland. An effort was made by some merchants to show that money had, in some cases, been paid for hosiery; but the few cases in which sums of any amount were so paid, and the smallness of the payments (3d., 6d., and 1s.) which, in all but one or two exceptional cases, appear in the women's accounts, only prove how strictly the rule is observed that all hosiery transactions are to be settled in goods. The cases are too numerous to be specified in which women say that they never get money, because it is a thing the merchants never give, and that they never ask for it; or that they asked for it once, and being refused, did not apply again. I give a single example. Margaret Williamson says:

'8314. Do you always get goods for your knitting?-Yes; I get goods, because I can get nothing else.' '8315. Do you want to get money?-I hardly ever ask for money. I asked for a penny the last time out of 35s., and they refused to give it to me. I bought all that I could buy out of the work I had taken in, and when it came to the last penny I asked for it, but they would not give it. That was at Mr. Linklater's.' '8316. What did he say he would give it in: sweeties?-No; they would not keep any sweeties for fear of having to give them.' '8317. What did they give you?-They gave me the penny at length, but they said we must take goods.'

[A. Laurenson, 2136, 2168; R. Sinclair, 2399; C. Brown, 17,026; J. Anderson, 6645; R. Sinclair, 2440; W. Johnstone, 2836; J.J. Bruce, 3384; R. Sinclair, 2436; A. Eunson, 3422; C. Winwick, 15; E. Robertson, 238; A. Simpson, 313; B. Johnstone, 379; Janet Irvine, 87; M. Clunas, 3459; C. Williamson, 165; Jemima Tait, 354; E. Paterson, 6460; M. Hughson, 6347.]

Knitters who sell their goods to the shopkeepers have not always an account in their books; perhaps, indeed, it may be said that, in a majority of cases in Lerwick, they have not. It is different in the country. But as it may often happen that a woman who brings a fine shawl or a lot of veils for sale does not want the whole value in goods at the time, or cannot make up her mind as to the particular article she will take, a balance of the price often stands over. The merchant will not give cash, unless it has been so specially agreed beforehand, for he would thereby lose the expected profit on his goods sold; and the knitter never thinks of offering to pay a discount for money. The balance is therefore (where the knitter has not an account) marked down in some corner of the day-book, or a line or voucher is given. The latter device has been adopted to a large extent in some shops. The most perfect, and perhaps the most extensive system of lines, is that in use in the shop of Messrs. R. Sinclair & Co. at Lerwick. This firm does not wish, they say, to give out lines, but would prefer that the women should take out the value at once. They have, however, been obliged to give lines; and they keep a line-book as a check, which was produced at the examination of Mr. R. Sinclair. This he stated to be the second book of the same kind which he had used since he perfected the system. It is a register of all the lines issued at the shop, and begins at the top of the first page, thus:

LINE-BOOK

'Line-Book, March 1871. B.H.

6 £0 2 6 £0 2 6 17 0 3 3 0 3 3 45 0 11 0 0 11 0'

And so on.

M. Sanderson, 7297; R. Sinclair, 2592; J. Sinclair, 3251; R. Linklater, 2695.]

For several pages at the beginning of the book the numbers are not consecutive; and it was explained that the unpaid notes in a previous book had been copied into this book, book, in order to avoid having to refer to two books in the course of business.

The notation employed consists of the letters of the alphabet, with a number up to 100. When the single letters were exhausted, that is, when 2600 lines were issued, the lines were marked AA 1, AA 2, and so on, up to 100; and then AB 1, AB 2, up to 100, and so on till the latest entry, which was on January 4, 1872, DA 90.

Each of the tickets (which are in this form-'CY 92-Credit bearer value in goods for 18s. R. Sinclair & Co., J.J.B. 22/12/72') is marked with the same letters and number the corresponding entry in this book. When it is returned, goods are given for its amount, or for part of it,-the payment in the latter case being sometimes marked on the line which is retained by the knitter. When the whole amount is paid the line is

marked in the line-book 'Paid,' and the date of settlement is generally added, thus:

'B.H. 93 Paid 18/11/71 W.B. £0 1 6 £0 1 6 98 Paid 23/11/71 0 15 0 0 15 0'

The majority of the lines now standing in the early pages of this book are still unpaid.

Thus, on page 1, out of 29 lines from BAH 6 to BL 34 (199 lines issued within the same period having presumably been paid before this new register was begun), only 3 are remarked as paid. So, on the second page, out of 30 lines, from BL 36 to BO 24, only 4 are marked paid; and on page 3, from BO 40 to BR 57, only 3 are marked as paid.

Taking as a specimen the 74 lines issued on the first four days of December 1871, the average amount of the sums for which they are granted is 5s. 6d. the actual amounts varying from 31s. 6d. to 1s. Out of these 74, 21 lines, amounting in all to £8, 6s. 2d (and averaging 7s. 1020/21d), were paid at 4th January. It does not appear whether the extinction of the lines is always effected by taking goods to the full amount of the line, or whether part of a line is not, on the occasion of a purchase of goods, transferred to a new line, which might very readily be done.

Although Mr. Sinclair has the largest transactions in lines, they are resorted to when required by most of the merchants who buy hosiery or fancy goods.

[J. Anderson, 6709; L. Moncrieff, 11,497.]

A few other merchants employ the same system of lines and a line-book on a smaller scale; and they, too, ascribe the practice to their solicitude for the convenience of the knitters. The merchants of course have the benefit of getting their hosiery, to some extent, on credit; they have the use of the money without interest so long as it remains in their hands; and when they pay, they pay in goods on which they have a large profit.

[T. Nicholson, 35; M. Laurenson, 7299.]

SALE OR BARTER OF LINES

It is natural to suppose that documents of this kind should come to be used as a sort of currency, in a district where money is so scarce as Shetland. This custom is not so wide-spread as might have been expected; but that lines are frequently transferred by the original holder, is clearly enough proved. The merchants who issue them are chary of admitting that such transfers are made, and some even seem to think it necessary to take precautions against such a proceeding. That the practice exists appears from the evidence of Mr. Sinclair's chief shopman, who admits that he has heard a 'vague report' that the lines have been exchanged; and when asked to explain the entry 'To lines' occurring in accounts in the journal or work-book, says:

'... Sometimes the party that the account belongs to will have to pay another party so much, and she gives us instructions to mark a line for a certain amount in the book, and then give her that line to give to the other party, who comes back with it and gets the amount in goods.' '3383. Then the line is granted to your knitters for the

purpose of paying their debt to another?-Yes.' '3384. Is that frequently done?-Not very often. It has happened occasionally.'

[J.J. Bruce, 3355; R. Sinclair, 2581, 2591, 3617.]

The evidence of the knitters themselves proves that the practice of selling or exchanging these lines is quite usual and well-known among the more necessitous of them, <i.e.> those who have no means of living but knitting. One respectable merchant in Lerwick gave up the practice of issuing lines, on account of the trouble and annoyance occasioned by this practice.

[E. Robertson, 248; M. Hutchison, 1592; E. Moodie, 1879; W. Johnstone, 2880; J. Henderson, 11,637, 2897; W. Johnston, 2875.]

WORK-BOOKS FOR KNITTERS EMPLOYED BY MERCHANTS

The accounts of women who knit with the merchant's wool are kept in a 'work-book.' Settlements are made from time to time, more frequently than in the case of fishermen's accounts; and the women, though they seldom have a balance in their favour, are seldom allowed to take a larger amount in goods than is owing to them for work. I examined a number of work-books, and among others that of R. Sinclair & Co., which may be taken as a specimen. Each knitter has an account current with the firm, the debit side of which contains the amount of the goods and worsted furnished, the credit side the amount of articles of hosiery returned, and the sum allowed for each. The book seems to be well enough kept, and each account bears to be balanced from time to time. No signature is attached to the balance. The entries of tea are numerous, frequently more than one parcel being given in one day. Those of cash paid are very rare; in many accounts there are none. To Catharine M'Courtenay, who has numerous dealings, amounting to above £5 in eleven months, there are three payments of cash, of 31/2d. and 3d. each, on December 1st, 9th, and 19th, 1871. Mr. Sinclair pointed out the case of Marion Sinclair and sisters (who are tenants of his own at a rent of 17s. 6d. a quarter, which is entered on the debit side of the account), as one in which cash had been paid. The amount of the account from January 16, 1871, when there is a balance against her of £1, 5s. 41/2d. is nearly £10 and the amount of cash paid is 9s. 9d., of which 1s. 3d. is entered 'Cash for dressing. On the other hand, looking through the book, I found one payment of 10s. in cash to Mrs. Irvine, Scalloway, and of 5s. to another, while one woman from Troswick is credited with a payment of 5s. in cash. Other payments in cash, on one side or the other, occur, but they are rare and of small amount.

[A. Laurenson, 2216; R. Sinclair, 2378, 2462; R. Anderson, 3069.]

PASS-BOOKS

Sometimes, but not in the majority of cases, knitters have pass-books. The neglect to have them is no doubt due to the same reluctance to undertake unnecessary trouble on the one side, and carelessness or trustfulness on the other side, which make

pass-books so rare among fishermen.

[R. Sinclair, 2383, 2455; B. Johnston, 385; Janet Exter, 4099; E. Robertson, 232; see above p. 24. (fishermen).; Mrs. Nicholson, 3504; M. Jamieson, 14,045.]

The tone in which the knitters themselves speak of the custom of the trade varies considerably. In general, they declare their decided preference for payment in cash; and many came forward voluntarily to complain of the present custom. Some have felt it for years back to be a grievance, and have been in the habit of complaining of it to those from whom they could look for sympathy or assistance; while all try to sell their productions for money rather than goods, if they can get as high a nominal price. They manage to sell many articles to strangers who visit the country in summer, to ladies who have made a practice of getting them sold to friends from charitable motives, and to women in Lerwick who act as agents for merchants in the south.

[C. Winwick, 53; J. Irvine, 82; M. Hutchison, 1564; M. Clunas.]

It is stated that there are two prices for knitted articles, a price in goods and a cash price; but the impression among many of the people is, that it is better to take the high price in goods than the lower price in money This is described by Mr Sinclair:

'2609. Have you ever stated to the knitters, who were coming to sell to you, that they had better take ready money and take less of it?-I have. It would save us a very great deal of bother if they would do so.' '2610. What have they said to that proposal?- They have never entered heartily into it. There was a case I may refer to, not of women employed to knit for us, but of women from whom we bought shawls over the counter, which corroborates what I have already said on that subject. I cannot now recall the names of the parties, but I would know their faces at once.' '2611. Were they women from Dunrossness?-Yes. Three girls came into my shop, each of them having a shawl to sell, worth £1. At that time the noise had come up about cash payments, and I said to them, "Now, what would you take for these in money? I am not saying that I will give you money, but what would you take for them in money?" One of them said, "I ken you will just be going to give us money." I said "Why? Don't you think the goods you get cost us money?" She said, "I ken that fine. I will give my 20s. shawl for 18s. 6d." I said, "I could not give her 18s. 6d. for it, and asked her if she would take 17s." She said, "No," and that it would be most unconscionable to take 3s. off the price of a shawl. I said, "I don't think it, because when I sell the shawl again, I can only get 20s. for it, and then there is a discount of 5 per cent. taken off." '2612. I suppose that bit of trading came to nothing: they did not take money?-No; they did not take money; but another one said, "I would not sell my shawl for 18s. 6d. or 19s. either, for I see a plaid in your shop that I want for my shawl; and what good would it do me to sell you the shawl for 17s., and then take 3s. out of my pocket to pay you in addition, when you are willing to give me the plaid in exchange for the shawl?" That was her answer to me.'

[A. Laurenson, 2168; R. Sinclair, 2397; R. Linklater, 2726; H. Linklater, 2920 (contra).]

Mr. Morgan Laurenson says:

'7306. In that case, is a lower price given in cash than would have been given in goods?-Yes, because in ordinary transactions I have a profit only on the goods sold. I may state, however, that the women are unwilling to take cash. I remember that on one occasion, when I was changing from one place of business to another, I had no goods, and I offered the knitters cash for their hosiery, at such a price as would give me a reasonable profit, but they objected to take it. For instance, in the case of gentlemen's undershirts, the usual price given may be from 4s. to 4s. 6d. I have offered to give them in the one case 3s. 8d., and in the other 4s. in cash, but they have invariably refused. They would rather leave it, and get such goods as they wanted, than take a lower price in cash; and that has got to be the rule. They are very fond of getting the highest nominal value; and I can show from my books that, as a rule, I give the full price for each article which we charge in selling them, and have only a profit on the goods we give in exchange.'

Some knitters say that the price is low enough, even if it were paid in cash, and conclude, perhaps illogically, that they are therefore better to take the goods.

[Joan Ogilvy, 9752; M. Jamieson, 14,052.]

SALE OF GOODS GOT FOR KNITTING

With many women money is a necessity for payment of rent, purchase of provisions, and other purposes. Cotton goods, tea, and shoes, which are almost the only things they can get for their knitting, are not enough to keep life in them. Those who depend entirely on their own labour have therefore to find some other means of providing themselves with these necessaries; and it is chiefly by them that the complaints of the present system are made. Some work out-of-doors for part of the year, <e.g.> in fish-curing or farm-work. In many cases they have sold the goods obtained at the shop, or bartered them with neighbours, for potatoes or meal. This practice cannot be described as universal, because the greater number of knitters live with parents, or have some supplementary occupation by which they get money. But still the practice is proved to have been so common that the ignorance which many witnesses profess with regard to its existence is surprising. Tea especially is a sort of currency with which knitters obtain supplies of provisions. Even if there were not direct testimony to this effect, it would be a fair inference from the large quantities of tea which the pass-books and merchants' books show that they get. Thus, in one account, more than a half of the total amount consists of 1/4lb. packages of tea.

[J. Irvine, 120; B. Johnston, 401; M. Clunas, 3466; R. Henderson, 1295; M. Jamieson, 14,053; Dr Cowie, 14,709; J. Coutts, 15,336; R. Irvine, 15,748; M. Quin, 16,657; C. Sutherland, 16,660; C. Borthwick, 1627; 1645; Mrs. Nicholson, 3516; Mary Coutts, 11,601, Agnes Tait, 11,758; E. Russell, 11,583; E. Moncrieff, 11,474; Janet Exter, 4112; C. Nicholson, 11,997; M. Tulloch, 1487; Jane Sandison, 4151; A. Johnstone, 4226; R. Sinclair, 2436; J. Anderson, 6696; C. Greig, 11,559; M. Jamieson, 14,058; I. Henderson, 11,656, 11,663.

Cotton and drapery goods are also sold or exchanged by knitters in order to get provisions or wool, and sometimes at a considerable loss. Thus Isabella Henderson says she had to give goods which cost 6s. 6d. for 5s. worth of meal. Women at Scalloway stated that they had frequently hawked the goods given them for knitting through the country for meal and potatoes. Mary Coutts says:

'11,601. How do you get your provisions, such as meal and potatoes?-We give tea to the farmers, and get meal and potatoes for it. We have sometimes to go to the west side, to Walls and Sandness, for that. Our aunt, Elizabeth Coutts, has done that for us. She has not been to Walls and Sandness for the last two years, but she went regularly before. It was only for our own house, not for other people, that she took the tea there and got the meal and potatoes in exchange.' '11,602. During the last two years how have you got your meal and provisions?-We have knitted for Mr. Moncrieff last year.' '11,603. And therefore you did not need to barter your tea?-No.' '11,604. Did you get the full price for your tea from the armers?-I suppose we did sometimes, but I could not say. They did not weigh out the meal and potatoes which they gave in exchange; they merely gave a little for the tea which my aunt gave them. I have known her go as far as Papa Stour, twenty-four miles away, to make these exchanges. That was where most of her friends were.' '11,605. Have you often had to barter your goods for less than they were worth?-Sometimes, if there had been 21/2 yards of cotton lying and a peck of meal came in, we would give it for the meal. The cotton would be worth 6d. a yard, or 15d.; and the meal would be worth 1s. I remember doing that about three years ago; but we frequently sold the goods for less than they had cost us in Lerwick.'

MERCHANT'S PROFIT ON HOSIERY

One of the peculiarities of the hosiery trade, as described in the evidence of the merchants, is that they have no profit on the hosiery and fancy articles, which they invoice to merchants in the south at prices either the same as the prices paid for them in goods, or so little higher as only to cover the risk and loss upon damaged articles and job lots. They say that the only exception to this is in the case of fine fancy work, which is often bought for cash, and in selling which they can readily obtain a sufficient profit. There is a good deal of evidence about this which rather tends to show that although dealers in Shetland invoice their goods to trade purchasers in London, Edinburgh, and elsewhere, at such prices as are, upon the whole of their sales, sufficient to keep them free from loss and allow a profit, yet that profit is very small, being at most a small commission for the trouble of getting the goods disposed of; and that they have a much less, but still considerable, trade with private purchasers, in which they realize considerable profit. The inquiry into traders' profits was not prosecuted in a more searching way, by examining themselves and their knitters at length upon invoices and specimens of goods, because the sufficiently intrusive inquiry which was made, and which stands in various parts of the printed evidence, seemed clearly enough to show that the truth as to this collateral question is as I have stated it.

[A. Laurenson, 2199, 2264; R. Sinclair, 2525, 3246, etc.; R. Linklater, 2728; J. Tulloch, 2795, etc.; W. Johnston, 2844; T. Nicholson, 3584; M. Laurenson, 7517.]

MERCHANTS PRICES FOR GOODS

But while the merchants assert that they have no direct profit upon their sales of knitted goods, or at least none but the smallest, they do not deny that, in order to repay themselves for the trouble and risk involved in the two transactions upon which this profit is realized, they charge considerably more for their tea and drapery goods than the ordinary retail price in other districts. In other words, although there is nominally no profit upon the knitted goods, there is a double profit, or a very large profit, on the drapery goods, tea, etc., bartered for it. If, therefore, we calculate what the price of these goods should be at the ordinary retail rate, and deduct the surplus from the nominal price of the knitted articles, we find that the usual percentage of profit is obtained on the latter as well as on the tea and drapery.

TWO PRICES FOR GOODS

In some places, indeed, there are two prices for goods, according as they are paid for with hosiery or with money; and formerly this was the custom in Lerwick. Mr. R. Sinclair says:

'2574. Then I understand you to say that in every bargain with a knitter, and generally with a seller, of a shawl, the understanding is that they are to take the price in goods?-Yes; that has been so time out of mind. I remember a time, about forty years ago, when it was different, and when there were two prices on the goods which they sold.' '2575. There were two prices then-one for cash, and the other for goods?-Yes; perhaps from 20 to 30 per cent. of difference. I remember hearing that question discussed at my father's fire when I was a mere youth. I have been told, although I do not know it myself, because I was not in the trade then, that a woman may have bought a piece of goods for 16d., when a party paying cash for it only paid 1s. The more intelligent of the natives thought that was an iniquitous thing; but then it was always known and done avowedly, and the people yielded to it. They said it was not possible for them to take barter, and sell their goods at the same rate, because there was so much risk and outlay. That reason never appeared satisfactory to me; and it was not until I came behind the scenes, as it were, that I saw the reason for it was that the value given for Shetland goods was far beyond what it really was worth in the market. Its real value in the market was about the same amount less than what was charged as an addition upon the goods. What I mean is, that, supposing a woman came in with a pair of stockings, the real market price of which was 2s., but for which she wished 2s. 6d., the merchant, in order to secure a sale for his goods, would give her goods in exchange of the nominal value of 2s. 6d., but he would put 3d. a yard on the price of the goods which he gave in exchange. That explains how it is that a person knowing the value of the articles, seeing the purchase which the woman might have made, and hearing the price of it, might have said that they were about 25 per cent. too high, whereas in reality they were not so. She had merely been getting value

for her goods, although she did not know it; and it would not have made any difference, although it had been as many pounds higher, while the relative proportions were kept up between the value of the two articles.' '2576. Is that done now?-Not that I know of.'

A discount for cash is still given there by some (or all?) of the merchants; but it has not been shown, nor I think alleged, with regard to Lerwick, that the principal merchants now avowedly sell their goods at different prices for cash and for hosiery. There are, however, passages in their evidence which create a strong impression that the custom described by Mr. Sinclair as a thing of the past is not yet entirely obsolete, even in the capital. Thus Mr. Sinclair himself has now two drapery shops in Lerwick, in one of which no hosiery is bought at all, all the dealings being for cash. He admits that in some things, <e.g.> calicoes, there is 'a very small shade of difference' between the prices there and in his other shop, which is his principal one. Mr. Johnstone's reason for ceasing to issue lines was simply that people used to come to his shop and bargain for articles as for cash, and end by presenting one of his 'lines' in payment, which would not have been felt as a grievance if the principle of having only one price were rigidly adhered to. The evidence as to the general prices at the shops which take in knitted articles also leads to the conclusion that, although articles are nominally for sale at one price, a purchaser for cash often succeeds in getting a reduction if she is a shrewd bargainer. The shopkeeper classifies some articles as 'money articles,' which is a convenient reason for not giving them in exchange for hosiery; and the impression seemed to exist in the minds of some keen purchasers examined as witnesses, that goods are sometimes rather rapidly transferred into that category, when it is unexpectedly discovered, after the negotiations have reached a certain point, that the intention is to pay for them otherwise than in cash.

[T. Nicholson, 3586; R. Sinclair, 3229; W. Johnstone, 2280; Mrs. Nicholson, 3510; L. Leslie, 5093.]

In the rural districts, the custom of selling goods at two prices, according as the payment is in money, or in knitted articles or yarn, still prevails. By Messrs. Pole, Hoseason, & Co., it has been given up quite lately.

[P. Blanch, 8578; G. Scollay, 8639; J. S. Houston, 9715; Rev. J. Fraser, 8039.]

There is no doubt that the general prices of tea and drapery goods are higher where hosiery is dealt in. It may be that a cash purchaser gets a reduction occasionally, or always if it is asked for. But there is a general concurrence of testimony to the effect that goods got by knitters at the hosiery shops are dearer than at other shops in Shetland. Various merchants admit that a higher profit is charged, in consequence of the custom of paying in hosiery. Two respectable shopkeepers in the country say that the goods which knitters have bartered at their shops for provisions were said to have been got at higher nominal prices than those charged for the same things by them. And various witnesses state, as the result of their experience, that prices at hosiery shops are higher than at others, and that they would get more goods for cash at the ready-money shops than for the same nominal

amount in hosiery, where that is rather bought. Mrs. Nicholson, a very intelligent witness, says:

'3509. Are there drapery shops now in Lerwick that do not deal in hosiery?-Yes.' '3510. And is it the case that you can purchase the same goods at those shops at a lower price than you can at shops where the hosiery business is carried on?-Yes; I know that from experience, because I have the money in my hand, and I can go and purchase them cheaper elsewhere than I can do at some of these shops. I don't say at them all; but I know there are some of the drapery shops in Lerwick where they could be got cheaper. I will give a case of that. Last summer I had to buy a woollen shirt, and I went into a shop and saw a piece that I thought would do. The merchant brought it down and said it was 1s. 8d. a yard. Another merchant had charged me 1s. 6d. for something of the same kind, and I told this merchant that the thing was too dear. He said, "I will give it to you for 1s. 6d. a yard;" and I said, "Well, I will give you 4s. 6d. for 31/4 yards of it;" and he gave it me. A day or two afterwards a woman came into my house and saw the goods, and said, "That is the same as I have bought; what did you pay for that?" I said I had paid money,-because it is an understanding that some shops can give it for less with money than with hosiery. I told her I paid 4s. 6d. for 31/4 yards; and she then told me that she had paid 2s. of hosiery for a yard of it-6s. for 3, or 6s. 6d. for 31/4 yards-just the quantity required.' '3511. Have you any objection to give me the name of the woman and the names of the shops?-I could give the names, but I would prefer to do so privately. The stuff I bought is still in existence, and also what she bought, and they could be compared, to show that they are of the same quality. I did not do that with any intention of finding out the difference in prices; it just occurred accidentally, and I only give it as an instance, to prove that if we could get money for our hosiery goods it would be far better for us."

[A. Laurenson, 2206, 2245; W. Johnston, 2869; Contra-R. Sinclair, 2523 sq.; C. Nicholson, 12,004; R. Henderson, 12,916; A. Johnstone, 4215; J. Halcrow, 4174 sqq.]

The evidence of Mr. Morgan Laurenson, quoted above, may be referred to. Mr. Laurenson says he gets no profit on hosiery, except the profit on the goods he gets in exchange. What the amount of that profit is, has been shown in dealing of prices.

[above p. 35]

SHETLAND YARN

The trade in the raw material of the knitting trade presents some features of interest. Some women stated that they could not get worsted from the merchants in exchange for their work-wool and worsted being called by them 'money articles.' Further inquiry showed that this was uniformly true only with regard to the true Shetland yarn, which the shopkeepers can with great difficulty get in sufficient quantity for their own purposes and for which, even if they could keep it for sale, the people would give only the price for which they can get it from their neighbours, <i.e.> the same price at which the shopkeepers have bought it. Even when sold for money, it is given as a favour, or, at least, the transaction is out of the usual course. But even the Yorkshire or Scotch yarn cannot always be got from the shops in exchange for knitted

work. Of course, both kinds are given out to knitters working on the employment of the merchant. Shetland yarn and wool may be bought occasionally in small quantities at the shops of grocers and provision-dealers, who have got it from country people in exchange for meal and goods.

[J. Irvine, 115; C. Williamson, 152; C. Petrie, 1423, 1430; B. Johnston, 449; A. Laurenson, 2288; R. Sinclair, 2465; R. Anderson, 3179; W. Johnston, 2897; J. Tulloch, 2781; R. Linklater, 2752, 2765; A. Laurenson, 2304; Mrs Nicholson, 3530.]

The merchants, who give out both kinds of worsted to be knitted for them, generally purchase only articles made of real Shetland wool.

[C. Greig, 11,551.]

SPINNING.

In the country, the knitters or the older women in their families commonly spin their own wool; or if, as in Lerwick and Scalloway is generally the case, they have not sheep, they spin wool bought from neighbours or at the shops just mentioned, and knit the yarn so manufactured. For instance, a witness says that she barters tea or a parcel of goods for a small quantity of wool, which she spins herself, having no money to buy worsted-money article-or to put the wool to the spinner because that would require money too; or at times she may get a little wool in exchange for a days work, 'but it is not often we can get that.'

[C. Greig, 11,532, 11,547; E. Russell, 11,572; M. Coutts, 11,617; Joan Fordyce, 16,049; P.M. Sandison, 5192; M. Jamieson, 14,053; G.C. Petrie, 1425.]

Exceedingly high prices are sometimes given for the finest qualities of Shetland worsted. It is sold by the cut, which is nominally 100 threads. The weight of the worsted is of course less in proportion to the fineness of its quality, and 7d. per cut being where the price of the finest quality, which is rare, the price per lb. reaches £4, or even £7. Ordinary yarn for fancy work is 3d. to 4d. per cut, or 24s. to 40s. per lb.

[A. Sandison, 10,186.]

GENERAL OBSERVATIONS.

As I have not had the advantage of considering, in conjunction with a colleague, the questions suggested by the facts now detailed, I do not make definite and detailed recommendations. These are indeed questions of policy, which it is for a Government rather than a Commissioner to decide. But the duty committed to me will not be discharged without an attempt to show what is the general result of the inquiry, what are the questions presenting themselves, and how these questions are viewed by some of the witnesses who have intimate personal concern with them.

MODES IN WHICH WAGES ARE PAID

The system of barter which has been described does not extend to any trades or handicrafts in which wages are paid to the workmen or workwomen, with three exceptions, viz.: (1) the knitters who knit the merchants' yarn; (2) the persons

employed in curing fish, boatbuilding, and some miscellaneous employments connected for the most part with fishing; and (3) the kelp-gatherers. The days' wages also of fishermen occasionally employed by proprietors or merchants in agricultural work are sometimes carried into their accounts. If it be assumed that legislation for the prevention of truck is expedient, there can be little difficulty in applying to these three classes any Act of Parliament that may be passed for that end. And on the same assumption, there is as much reason for protecting the persons engaged in these trades from being compelled, by their own misfortune, weakness, or improvidence, to take payment of their wages, or part of them, in goods, as for giving such protection to workmen in other parts of the empire.

APPLICATION OF STATUTES

It has already been mentioned that one branch of the knitting of Shetland goods probably falls under the existing Truck Act, 1 and 2 Will. iv. c. 37. It rather seems, however, that such knitting will not be one of the trades to which the bill now before Parliament applies. It seems also doubtful whether the application clause of the bill will extend, as it now stands, to all the branches of fish-curing, or to the manufacture of kelp. See 33 and 34 Vict. c. 62, sch. 2; 34 and 35 Vict. c. 4.

BARTER OF EGGS ETC.

It will hardly be contended that in the system of bartering eggs or butter for goods, which prevails in Shetland, delivery being made on both sides at the time when the bargain is made, and the transaction being thus finished at once,-there are evils similar to those which legislation against truck is intended to remedy, or at least that the law ought to prevent buyers and sellers in such cases from making any contracts they please. This custom, which was or is not uncommon in other remote rural districts, will probably disappear of itself as the islands are brought into more frequent and intimate relations with the rest of the world.

BARTER OF KNITTED ARTICLES

The same might be said with regard to the barter of knitted articles for tea and drapery, where the knitter is in no sense employed or engaged to manufacture the raw material provided by the merchant. Here, however, the element of credit or accounting is often introduced; and it is a question whether, so far as it is so, this handicraft ought not to be ruled by the same considerations as the fishing trade. The evils arising from long accounts in this trade and in fishing seem to point to the necessity of extending to these cases the prohibition of set-off contained in §5 of the existing Act and in §10 of the Bill now before Parliament. Another uggestion is, that a short prescription for such accounts should be introduced-say a prescription of three months, running from the date of the earliest item in the account, and accompanied by a provision that no acknowledgment shall bar prescription unless it be contained in a holograph or probative writing.

CASES IN WHICH LABOUR IS PAID BY A SHARE OF THE PROFITS

In the ling fishing the fisherman may be regarded, if we speak technically, as a vendor to the merchant. Practically he is a partner, for the price of his wet fish is in proportion to the proceeds of the merchant's sales of the cured fish. In the Faroe fishing the fisherman is more distinctly and formally a partner, for the agreement signed by the merchant and the crew entitles him to a share of one-half of the net proceeds of the fishing. The question to be answered is, whether the principle of the Truck Acts extends to these two occupations, so as to justify the State in laying down such rules as shall prevent the fisherman in either case from taking part of his earnings, although they are not wages, otherwise than in current coin; and if that be so, what practical difficulties stand in the way of applying the principle. It is difficult to read the evidence without arriving at the conclusion, that if it is right to protect the skilled artisans of Sheffield and Birmingham, and the highly paid miners of Lanarkshire and South Wales, from receiving their wages in goods, it is also right to require the fish-curer of Shetland to give money instead of goods to his fishermen. By whatever name we may call the earnings of the latter, there is not such a difference in the positions of the two classes as to justify us in applying to them different rules of law. Both are labouring men; for the Shetlander's possession of a small allotment of third-rate land does not elevate above the condition of a peasant.

If we apply to the Shetlander the legal distinctions which occur in the existing law, he differs but little from some of the protected crafts in England. He engages to fish the curer, and to give him the produce of his labour at the current price, just as a collier contracts to put out coal at a certain rate per ton. If the law is to protect from truck the man who agrees to be paid not directly for his labour, but for the result of his labour, the Shetland ling fisher may be held to fall within that principle. There is, indeed, this distinction, that his remuneration depends on the price eventually obtained for the produce of his labour, so that he takes the risk of the market. The amount of his earnings is affected both by his success in catching fish and by the fluctuations of the market. The collier, on the other hand, works for wages fixed at a certain rate, and the only element of uncertainty is the quantity of his out-put. The fisherman certainly works upon the co-operative principle at present; and in considering any legislative change, it may be desirable to avoid interfering with this principle of the present system, and unintentionally leading to the substitution of fixed wages.

ARGUMENTS AGAINST LEGISLATIVE INTERFERENCE TO ENFORCE SHORT PAYMENTS

It is maintained on various grounds that the provisions suggested for the prevention of truck in other trades cannot be advantageously applied to fishing. Most of the merchants are averse to short pays, and I cannot say that the fishermen themselves are in general desirous to have them introduced. I endeavoured to ascertain from the witnesses examined whether there is any insuperable obstacle to the introduction of ready-money payments for fish.

The objections may be reduced, to two classes:-

SHORT PAYMENTS 'IMPRACTICABLE'.

1. That payment of the fish on delivery would be 'impracticable;' which is explained to mean, (1) that it would necessitate the employment of more highly paid factors at the stations, and the conveyance of considerable sums of money for distances of many miles, there being no banks in Shetland except at Lerwick; and (2) that the settlement with the men would take up a long time and detain them from the prosecution of the fishing, which, during the summer months, requires incessant activity.

On the other hand, it may be said that every cargo of fish is now received at the station by a factor employed by the curer, who weighs the fish and enters the weight of each kind in his fish-book. If the price of the fish were fixed, there could be no difficulty in ascertaining the money share of each man in a particular haul, or in the catch of a week or a fortnight, as is done in Fife and in some of the Wick fisheries; and the factor might either pay it in cash or give an order, which the fisherman or one of his family could cash at the merchant's counting-house. If the price were left to be fixed at the end of the season, the law might require payment of a proportion of the estimated price, as it does now in the case of the Northern whale fishery.

The argument, that the settlement would take up an intolerable time, and prevent crews from getting to sea in favourable weather, is sometimes fortified by the assertion that the people of Shetland are singularly defective in arithmetic. Even if we assume this statement to be correct, there is so little intricacy in a calculation of the price of 18 cwt. of fish at 6s. 6d. per cwt., and dividing the sum among five or six men, that a very low arithmetical faculty would not be severely taxed in checking it. There is little doubt that in stating this objection, which scarcely deserves refutation, the simple settlement at landing a cargo of fish, or at paying cash for a week's fishing, is confounded with the very different kind of settlement to which the witnesses are accustomed at present, and in which all the transactions of a year in fish, cattle, meal, tea, clothing, soap, fishing lines, and a hundred other things, have to be gone over in detail, and checked generally, on one side at least, from memory.

SHORT PAYS 'NOT ADVANTAGEOUS TO FISHERMEN'

2. It is maintained that a system of short payments in cash would not be advantageous to the fishermen, because, in the first place, their improvident habits would lead them to spend their receipts at once, so that at the end of the year they would have nothing left with which to pay their rents, and no means of living in the spring, when the meal from their crofts is exhausted; and, in the second place, because it is inconsistent with their being paid according to the price actually realized for the fish, which is commonly higher than the 'beach price' during the season, or the market price at the time when agreements for the summer fishing are made.

The first of these reasons is felt and stated by some of the fishermen themselves. But are Shetland fishermen more improvident than other people similarly situated would be? Under the present system of credit transactions, indeed, it would be

strange if a part of them were not careless and extravagant, and it would not be strange if a great majority were hopelessly improvident and insolvent. No man is more likely to waste his means than he who never knows how much he has to spend; and this general truth is not likely to fail in its application to men following a precarious calling in which there are great runs of luck, and who have been brought up from their earliest years to expect their employers to supply their pressing wants in times of adversity. But the objectors themselves assert, and there is no reason to doubt, that a very considerable proportion of the people have saved money in spite of the influences under which they live, and have, for their rank in life, large deposits in the banks. If many of them are careless and improvident, that is a reason, not for continuing, but for altering a system which is admirably conceived for promoting extravagance and recklessness about money. If some Shetlanders are improvident, it is the system which has made them so; and if it be a fact that so many have saved money, it proves that under a better system the people of Shetland would compare favourably with those of any other district in frugality and foresight. If the fisherman had his money in his hand, it is not likely that he would forget rent day and the time of short supplies which he has often to pass through in spring.

[R. Halcrow, 4700; R. Malcolmson, 4781; P.M. Sandison, 5227; G. Gilbertson, 9578; J. Hay, 5375; P. Blanch, 8565; C. Young, 5815, 5918.]

It is said that in bad years, when the crops or the fishing, or both, have failed, the population would starve in winter and spring if the merchants were not to make advances of meal and provisions; and that they could not do this, but for the security afforded by having the men engaged to fish to them for a price to be settled only at a distant day. Even if supplies of food are not required, men may be unable to go to the fishing for want of boats, lines, and hooks, which they have to get from the curer, and which, it is contended, may properly form a first charge against the proceeds of the enterprise. Fishing is always most productive when the men are paid by shares, not by wages; and it is not desirable to introduce any change which would necessitate the payment of the men by wages.

[W. Irvine, 3896; T. Gifford, 8150; H. Hughson, 9599; W. Irvine, 3834; A. Sandison, 10,007; L.F.U. Garriock, 12,605.]

It may be replied, that however true this may be, it just presents one of those cases in which the weaker party is likely to be led into a disadvantageous bargain, and in which, upon recognised principles, the law may interfere for his protection, by regulating the bargain so made, or by teaching him how to escape from the position of disadvantage. The transition to a new state of things might in bad seasons be attended with some difficulties and hardships, especially to those who are now indebted. Thus Mr. A. Sandison, in recommending a system of monthly payments, says, 'I think it would pauperize a number of the fishermen, because there are a great number of them in debt, and in the transition from the one system to the other they would require to pay up their debts, so far as their means would go' (Q. 10,015).* One cannot avoid observing that this class of objectors to cash payments exaggerate both the inability of the people to provide against the evil future, and the value of the 'merchants' as a source of credit in bad times. It is impossible to judge of the energy

that would be exerted under the stimulus of necessity by a population which has always had landlords, tacksmen, and merchants to depend on in adversity. Those who urge that the men could not live, or at least could not go to fish, unless the merchants were there to supply their wants, forget that, while the existing system presents one ready source of credit to fishermen, it closes up all others. The fish-merchants, by getting delivery of their debtors' fish, have such a security for their accounts, that other shopkeepers do not now venture to furnish any but the smallest quantity of goods to the average fisherman on credit. But if there was some certainty that the fish-merchant had not a contra account against the fisherman, at least equal to the price of his fish, other merchants would not have the same reason, in cases of necessity, for refusing to give some credit to deserving men. This is shown by the fact-certainly an exceptional one-that a most successful business has been established in Dunrossness by Mr. Gavin Henderson, in a district where the tenants are strictly bound, and that he has been in the habit of giving credit to considerable amounts to fishermen bound to other merchants. And other cases of credit sales by others than the fish-merchant are recorded. The extension of credit dealings with smaller shopkeepers is, however, strongly deprecated by Mr. Spence and Mr. Sandison, partners of the firm of Spence & Co. It is enough to remark, that such credits would be subject to the ordinary rules of the law; and that if they were found to be injurious, it would for the Legislature to consider whether the rule of the Arrestment of Wages (Scotland) Act 1871, or a short prescription, should not be extended to them.

*'10,016. Do you think the fishermen under that new system would not be able to get credit to a certain extent?-I don't see how some of them could. For instance, take the year 1869. In 1868 the fishings were almost a failure. Our total catch in Unst and Yell amounted to £1607, which could not average much over £4, 10s. to each fisherman. That year we imported meal and flour to the amount of £1824, cost price per invoice; we paid in cash for rents to Major Cameron, Mr. Edmonstone, Lord Zetland, and others, £1600; and we expended on fishing-boats and fish-curing materials £780,-being a gross amount of outlay of £4223 against the fishing, the return for which, as said, was only £1607.'

[R. Henderson, 12,855; M. Laurenson, 7342; D. Edmonstone, 10,658; J. Thomson, 11,711; L. Moncrieff, 11,518; G. Georgeson, 12,032, 12,118; J. Twatt, 12,186; J. Spence, 10,559; A. Sandison, p. 248, f.n. 10, 494.]

It may be contended that a law which would restrict the freedom of fishermen to contract for payment in proportion to the profits realized on their fish, would be inexpedient; but it is not impossible to frame an enactment which, leaving them this power, should require payment, weekly or monthly, of such a proportion of their earnings as would obviate the necessity of living on credit.

OPINION OF MR SANDISON IN FAVOUR OF SHORT PAYMENTS

It is satisfactory to find one of the most enterprising and intelligent merchants in Shetland stating a strong opinion in favour of a system of monthly payments for fish. Mr. Sandison's evidence on this subject, with which the other members of his firm agree is as follows:-

'10,006. Do you think it would be possible to introduce any system by which the settlement should not be made at such long intervals?-I have considered the matter seriously since the Truck Commission was first spoken about, and I have come to the settled conviction that it would be very much better for the curer to pay monthly in cash.' '10,007. Would that payment be according to the quantity of fish delivered, or by way of wages, or partially both?-There are two reasons why I think wages would not do. In the first place, the fishermen would not like to take wages, because if they make a good fishing they would not get so much as they do now; and, in the second place, I am sorry to say that with the greater part of them, if they got wages they would not fish half so much.' '10,008. Then what system would you suggest?-I think the right system is just to fix a price at the beginning of the year of so much per cwt. for green fish, and pay it monthly or fortnightly in cash as may be agreed upon.' '10,009. Do you think it likely from your experience that the fishermen would agree to that?-Two years ago in North Yell, when I settled with the fishermen there, I urged the men to take cash payments, because we had no store there, and it was an inconvenience for us to send goods. We had to employ a man and pay him, which cost us something. But I found that they all declined my proposal. In the same year, 1870, I tried to engage our fishermen in the south of Unst and in Yell at a fixed price, and I did so. Every fisherman who went out in the south end of Unst and Yell that year was engaged at 7s. per cwt. I made that bargain in December in writing; but when settling time came we could afford to pay them 7s. 3d., and I did so, according to the previous practice. I might have pocketed £30 by that transaction; but if I had done so, the fishermen would have thought I had treated them dishonestly.' '10,010. Were they going to grumble?-I have no doubt some of them would have grumbled if they had not got the additional price. I would not say that all of them would have grumbled, because there are some of our fishermen who are very intelligent and very reasonable men, and who would have understood the thing, and said that a bargain was a bargain.'

GENERAL INQUIRIES AS TO FISHERIES IN OTHER PLACES

I have thus endeavoured to state some of the general considerations on both sides of the question as to the possibility and expediency of introducing, by direct or indirect legislative action, a system of cash payments into the Shetland fisheries. In such an investigation it is natural to ask how fishing undertakings are conducted elsewhere, and whether indebtedness and truck are necessary elements in the condition of all fishermen. In the hope of obtaining an answer to this question, which might either suggest a remedy for the case of Shetland, or might show how far local and exceptional legislation is admissible, I made some very general inquiry as to the state of fishermen elsewhere in regard to the mode of paying their earnings. For this

purpose some personal and informal inquiries were made in Orkney and Wick; and at Edinburgh two of the employees of Mr. Methuen, the most extensive fish-curer in Scotland, who has stations on almost all parts of the coast, were examined. The prima facie conclusion derived from such inquiries is, that where fishermen are not within easy reach of a fresh market, they are apt to be largely in debt to the fish-curers. In Orkney, the social state of which formerly closely resembled Shetland as it now is, a great change has been effected by the improvement of agriculture. The tenants have to a large extent abandoned fishing, finding sufficient employment and adequate support in cultivating their farms. In Orkney the fish-curers have in general no shops. I was not able to ascertain whether there is any practice of guarantees, such as is said to exist at Wick and Stornoway.

[G.S. Sutherland, 16,661 sqq.; D. Davidson, 16,920 sqq.]

COMBINATION OF FISHING AND FARMING

Orkney is referred to as showing the beneficial effect of separating the occupation of fishing from that of farming. It is not, however, certain that the immediate separation of fishing and farming in Shetland is either possible or desirable. It is held by some of the chief opponents of truck in Shetland that the land will be most profitably managed under a system of sheep farming, and that the fisheries also will be most productive if the fishermen are not dependent for a material part of their subsistence upon their crofts, but are stimulated by necessity to go to sea during the greater part of the year. The 'improvements' which have been begun with the view of effecting this separation on the Garth and Annsbrae estates, have given rise to much of the indignation which the introduction the of sheep farming and depopulation has been wont to excite in similar cases. Nothing but actual experiment, however, will prove whether cod and ling fishery can be prosecuted successfully from the coasts of Shetland in winter. The fishermen here do not, like those of Wick, described in the paper of Mr. M'Lennan, fish all the year round in modes adapted to the varying seasons. Almost their only profitable fishing is in the summer months; and it seems to be certain that the haaf fishing could not be successfully prosecuted in winter with the present open boats. These, buoyant and wonderfully safe and handy as they are, afford no shelter, and cannot in stormy winter weather keep the sea for any length of time. When a storm comes on the Shetland fisherman makes for land, although it is in approaching it that he meets with the dangerous tideways in which the shipwrecks of his comrades have usually taken place. In winter and spring these storms are so frequent and so sudden, that it is impossible for open boats to pursue the haaf fishing successfully. It is disputed whether larger vessels, such as the smacks employed in the Faroe fishing, or those of the Grimsby and Yarmouth men, could carry on the long-line fishing in the deep water and rocky bottom of the Shetland haul, and the best authorities say that they could not, because on that fishing ground the lines cannot be taken in by the boats while sailing. It does not, however, appear whether recent attempts have been made on a sufficiently large scale to justify a decision in the negative; and it is satisfactory to know that a company has been formed for the express purpose of extending the season of the ling fishing, and carrying it on without

the ordinary connection with a shop.

[Appx. p. 61; C. Williamson, 10,841; L.F.U. Garriock, 12,478, etc.; C. Williamson, 10,839, 10,794; J. Walker, 15,941, 15,952.]

INQUIRIES AT WICK

At Wick many of the resident fishermen are nothing but fishermen; but some who fish from Wick in summer have small farms along the coast, and many of the hired men who are required for the herring fishing come from Highland districts, where they combine agricultural and seafaring occupations during the rest of the year. The paper by Mr. M'Lennan of Wick affords interesting information with regard to the Wick fisheries. It shows, by the experience of the haddock fishing and the winter cod fishing, that payment to crews fishing on shares, or 'on deal' as it is there called, may easily be made each Saturday night; by that of the winter herring fishing that payment may be made at landing the fish, and by that of the Lewis herring fishery, how a settlement in a very extensive fishing with complicated arrangements is made immediately at the close of the fishing season.

[Mr M'Lennan, Appendix II; D. Davidson, G.S. Sutherland, 16,806, 16,750.]

At Wick the herring fishing alone is directly affected by the indebtedness of the fishermen, and in it alone is the settlement delayed for two months after the close of the season. The amount of indebtedness existing among the fishermen, and its effects upon the bargains which they make, is remarkable. In Shetland, as has been seen, one-third, and in some districts a much less proportion, of the fishermen is indebted to the curers. There, £20 or £30 is a very large debt for a fisherman to owe, and such debts make no disadvantageous distinction between the debtors and other fishermen in regard to the price paid for the fish. At Wick, on the contrary, the expense of boats and nets is so great, that debts of £200 and upwards are not uncommon; and all who owe above a certain amount are obliged to fish for 20 per cent., or according to another witness 1s. per cran, less than free men get. These statements agree with the information I received personally from a large fish-curer at Wick. Mr. M'Lennan says that 'there is no such thing as truck; and payment, when payment is owing, is made in cash.' But it appears both from his paper and from the evidence of Mr. Sutherland, that at Wick, and in the Hebrides and West Highlands, the men cannot prosecute the fishing without supplies being advanced to them. Except, however, as regards boats and fishing materials, these advances are not made directly by the curers, who do not keep provision shops but by the local shopkeepers upon 'lines' or guarantees by the curers. 'It is tolerable certain,' says Mr. M'Lennan, 'that the curer receives an abatement or discount from the merchants' prices of meal, goods, ropes, nets, or other things which the fishermen procure on his guarantee.' Nothing, indeed, can be more probable; but no inquiry being made into transactions between curers and fishermen out of Shetland, except for the purposes of suggestion and comparison, I am not able to say whether such a system of disguised truck does in fact prevail.

[G.S. Sutherland, 16,805.]

It seems to be fairly deducible from this evidence, that cash payments for fish are not impracticable and inexpedient, as some witnesses have said. The condition of fishermen in Wick and the West Highlands shows further that Shetland is not, as has sometimes been thought, a peculiar and exceptional country. Elsewhere also fishermen have crofts, are poor, and in debt; require advances for boats, fishing implements, and provisions; and obtain them from or through the curers to whom they sell their fish. The evidence given before the Select Committee on the Irish Sea Fisheries Bill of 1867 shows that the condition of many fishermen on the Irish coast is worse in regard to indebtedness than that of any in Shetland.

The question may then be asked, whether a partial and local remedy should be applied to Shetland, while nothing is done for the fishermen of other districts; and whether it is expedient to pass an Act of Parliament for the protection of a particular trade in a single county, unless it be fully ascertained that its circumstances are materially different from those of the same trade in the rest of the empire. It is for Her Majesty's Government to decide whether it can introduce a measure for the repression of truck, and the regulation of agreements between fishermen and their employers, without having information as to the nature of the present relations between these parties throughout the empire.

There is a good deal to lead to the conclusion, if any general conclusion may be formed from a local and partial investigation, that fishermen and fish-curers may fairly be subjected to regulations analogous to those which the Merchant Shipping Act lays down for the engagement of seamen. It is also a point worthy of consideration, whether the prohibition of set-off should not be extended to all dealings between fishermen and fish-merchants, with this exception, that the curer or merchant should be at liberty to retain one third of each week's or month's earnings for payment of any boats or lines supplied to the fishermen by him or on his guarantee. The carelessness or incompetence of fishermen in regard to pass-books and accounts, suggests also the propriety of a limitation of action upon such accounts to three months, with a provision that no acknowledgments shall bar prescription unless holograph, or signed before witnesses.

LAND QUESTION.

I have not thought myself at liberty to enter upon the land question in Shetland as substantive part of the inquiry; but it is plain that the prevalence of truck is due in no small degree to the habit of dependence, or submission, which the faulty relations between landlords and tenants have fostered. Here, too, however, it may perhaps be said that legislation ought not to be of a local and exceptional character. I may at least be permitted to hope that, in any reform of the land tenancy laws of Scotland, the case of Shetland will not be forgotten.

The introduction of a class of peasant proprietors seems impossible, except by some measure resembling the 44th clause of the Irish Land Act, 1870; while the sudden expulsion of the present population, and the substitution of sheep, would probably be destructive to the fishing industries as they now subsist. But the present insecurity of tenure is not consistent either with the permanent interests of the land

(in which the country still more than the landlord is concerned), or with the formation or maintenance of a race of independent and intelligent citizens. Probably a law of landlord and tenant, passed with no arrière pensee as to maintaining the authority of the landlord, but with the honest intention of reconciling the rights and interests with the independence of both parties to the contract, would not permit the landlord to evict without cause upon forty days' warning. It may even be maintained that in the present state of agricultural science, no tenure for so short a period as one year ought to be permitted. Farmers of the larger class, however, are or ought to be able to protect themselves in their bargains with landlords; and as this Report has nothing to do with such tenant farmers, they may be left out of the question. But in the case of small fishermen farmers, it is worthy of consideration whether a warning of at least one year, excepting cases of insolvency or specified kinds of misconduct, ought not to be required before eviction from any agricultural holding below a certain rental; and whether in such holdings tenants should not have some summary means of recovering from the landlord or succeeding tenant any extraordinary expenditure they make upon their land or houses.

. (Signed) W. GUTHRIE. EDINBURGH, <June> 15, 1872

APPENDIX to COMMISSION ON THE TRUCK SYSTEM (SHETLAND).

I. LEASES AND RULES FOR TENANTS.

I. CONDITIONS OF SET of all LANDS forming parts of the ESTATE of QUENDALE, in the Parishes of DUNROSSNESS, AITHSTING AND SANDSTING, TINGWALL, WHITENESS AND WEISDALE, and LERWICK, in SHETLAND.

1. The proprietor reserves--(1.) All mines and minerals, limestone and stone quarries, marl and clay, in his lands, with full power to work the same. (2.) All shell-fish, and especially mussels and mussel scawps, and all shell-sand on the shores of his lands, with sole and exclusive power to take and use the same. (3.) All game and rabbits on his lands, and sole right to take and kill the same, with full power to enter on and use his lands for that purpose. (4.) All lochs and burns, with power to drain the lochs, and divert the course of the burns, the proprietor making compensation for damage by any of his said operations; and the tenant being entitled to take and use, for his own purposes only, the limestone, stone quarries, marl and clay in the lands occupied by him, and the shell-fish, mussels, and shell-sand on the shores thereof, subject always to such rules and restrictions as the proprietor may establish or prescribe in regard to any or all of these matters.

2. The proprietor reserves the heritors' share of all ca'ing whales killed or stranded on the shores of his lands; and every tenant, on behalf of himself, and all in family with him, acknowledges the proprietor's right to one-third of such whales.

3. The landlord reserves to himself all tang and other sea-weed, growing and drift, with power to enter upon all his lands, and use the same for the purpose of manufacturing the same, without making any compensation to the tenants therefor; but the tenants shall be entitled to take such tang and sea-weed as they may require for manure.

4. The proprietor reserves full power -- (l.) To redivide his enclosed lands, to the effect of placing the lands of each tenant in one or more portions, and in a different place or places from where they may have previously lain. (2.) To regulate and control the use of the town mails, grass, and arable lands, by placing restrictions on the tenants in the keeping of swine, geese, or otherwise. (3.) To enclose or otherwise withdraw from the scattalds such portions, not exceeding one-fourth of each scattald, to be judged of as at the date of each tack, as he may deem proper. (4.) To regulate the amount of sheep and horse stock to be kept by each tenant on the scattald, so that each tenant shall have an amount of pasturage proportionate to his rent. (5.) To limit the number of swine and geese to be kept by each tenant on the scattald, and, if he sees fit, to prohibit the tenants from turning loose or keeping swine or geese on the scattalds altogether, and, where allowing of such stocks, to place the keeping of them under such regulations as he deems proper.

5. The proprietor reserves all trout fish in the lochs and burns on his lands, and sole right to fish therefor; and every tenant shall be held specially to consent, and shall be expressly bound and obliged, alike as regards himself and all in family with him, to abstain from fishing for trout (fresh-water or sea-trout alike) in all fresh-water lochs, waters, and burns, and also in all burn-mouths into which the sea-water may flow, and in all voes, inlets, or bays, though consisting wholly or partially of salt or sea-water, into which any fresh-water lochs or burns flow, and bounded wholly or partially by lands belonging to the Busta estate; and shall in no way take, or attempt to take (by rod, net, cruive, or hoovie, or in any other way), any trout fish therein, unless with the express leave of the proprietor; and when such leave extends to fishing by net, then with a net of the size of mesh, used in the manner, and at the time, and to the extent, expressly allowed and prescribed by him.

6. All tenants shall be bound, if required, to pay, over and above their stipulated rents, their proportion of all public and parochial burdens which the law has laid, or may lay, directly upon tenants, any custom to the contrary notwithstanding.

7. No office house must, hereafter, be erected on the side or end of a dwelling-house, without the written permission of the proprietor; and no tenant shall be entitled to remove from out the dwelling-house or offices possessed by him at the expiry of his lease, any roof, window, door, loft, stair, or other plenishing of a like fixed nature, even though furnished and put in by himself, unless his tack specially confers upon him such power; but the incoming tenant shall be bound to pay the outgoing tenant the value of the roofs, windows, and doors of the office-houses, if such roofs, doors, and windows were paid for by him at entry, or furnished by him during his lease.

8. Every tenant shall be bound, throughout the whole currency of his tack, to maintain good and sufficient dykes of every sort, including yard dykes, and to maintain sufficient and convenient grinds in his dykes at all places usual and needful, and to have all dykes in thorough and sufficient repair, and all grinds sufficient and properly hung, at the latest on or before the first day of April, and to keep up said dykes and grinds until the first day of November in each year.

9. That in the event of any tenant not keeping dykes and grinds in sufficient order, the proprietor shall be entitled to enter upon the lands, and to repair the same, and to charge the tenant 10 per cent. on the sums expended by him in said repairs; and the amount shall be held as conclusively ascertained and fixed by a certificate thereof, under the hands of the factor on the estate of Quendale for the time.

10. Every tenant shall be bound to cultivate his lands in a proper and husbandlike manner, with reference to the best practice of husbandry in the district, and to consume upon his lands the whole straw, hay, and fodder grown thereon, and not to sell or remove any thereof, or any manure made upon the said lands from off the same, even during the last year of his lease; the incoming tenant being, however, bound to pay the outgoing tenant the value of the straw, hay, fodder, or manure left by him on the lands.

11. In all cases, where arable lands are situated on a slope or declivity, and are laboured by spade, the tenant shall, when labouring, delve the riggs lengthwise, or along the side of the rigg, each feal or fur extending from the top to the bottom of the rigg, and the delving to begin one season at the right side, and the next season at the left side of the rigg; and, in situations where it is necessary to delve down hill, the tenant shall remove the first or lower feal or fur at the bottom of each rigg, and along the whole breadth thereof, and shall, when the rigg is completely delved, carry the said removed feel or fur to the top, and deposit it in the last fur or hollow at the top formed by the turning down of the topmost feel or fur, so as much as possible to prevent the removal, to the foot of the rigg, of earth from the higher ground.

12. No tenant shall be entitled to bring upon the lands possessed by him (enclosed or scattald), or to allow to remain thereon, any stock that does not belong to himself, or any halvers stock, or stock that belongs wholly or partially to others, even though such owners or co-owners be members of his own family, without the express leave in writing of the proprietor; but tenants shall be entitled to take for hire cattle to feed on their enclosed lands during summer, or any tenants of parks or islands to take for hire cattle to feed during the year round.

13. No tenant shall, on any pretext, keep or allow to be kept on his enclosed lands or scattald, any swine, unless the same shall be properly ringed; and it shall be the duty of all persons finding unringed swine on lands belonging to the estate, immediately to inform the factor or ground officers, or, the persons so finding unringed swine, may lay hold of them, forthwith informing the factor or ground officers of the circumstance; and no tenant shall be entitled to cut truck or take earth, whether for the purpose of manure, or any other purpose whatever, or to cut peats, feal, or divot, or to cast pones, or ryve flaws, or ryve or strike, or cut thack or heather, or to cut, pull, or to take floss, or rushes, at any places or times, or in any way or manner, except at the places, and at the times, and in the way and manner, that shall be allowed by the proprietor; and, until special places, times, ways, and manners shall be pointed out and prescribed, tenants shall only do these acts at the places and times proper and usual, and in the way and manner least calculated to exhaust the supply and injure the pasture or other subject; and especially in cutting truck and taking earth, no tenant shall be entitled to do it where the soil is thin and

the ground high or sloping, nor to scrape mould on such ground, but only to cut truck and take earth from places where the soil is deep, or where, from being in a hollow, it will speedily again accumulate and sward over; and, in cutting peats, tenants shall on all occasions open the banks in a straight line, and in the line of the watercourse, and make proper drains from the lower end of the banks, in order to prevent the accumulation of stagnant water, and shall carefully preserve the surface feal, and as soon as the peats are cut, smooth the surface of the bottom of the banks, and replace properly the surface feals with the grass side uppermost.

14. No tenant shall be entitled to keep more than two dogs, and which dogs shall be harmless, and properly trained not to follow sheep, except when sent after them by their masters; and every tenant shall be responsible for all damage done by any vicious dogs kept by him, and shall be bound to part with any dogs judged by the proprietor to be vicious, on a requisition by him to that effect.

15. No tenant shall be entitled to sell or retail, or allow to be sold or retailed on his lands, any spirituous or malt liquor, tobacco, snuff, or tea, nor to carry on, nor allow to be carried on upon his lands, any fish-curing business of any kind, without the consent of the proprietor; with power, however, to the tenant, if a fisherman, to cure the fish caught by himself; and that either separately or in conjunction with other fishermen.

16. No tenant shall receive into his house nor allow to harbour on his lands, any useless or disabled persons, not members of his own family, or any idle or disorderly or disreputable person or persons whatever, or any married persons (except himself), though relations, without the leave of the proprietor; and every tenant shall be bound to maintain all members of his family, who, from infirmity, age, or otherwise, may be incapable of supporting themselves, so as to prevent their becoming a burden on the Parochial Board.

17. Every tenant shall be bound to maintain good neighbourhood; to abstain from all encroachments on his neighbours, either by allowing his cattle improperly to stray on their grounds or otherwise, and to that end to keep his cattle properly tethered within the limits of his own grass, ley, or stubble ground, from the 1st day of April to the 1st day of November in each year; and to maintain in all respects a character and conduct becoming an industrious and Christian man, and to enforce such a line of conduct on all living in family with him.

18. Every tenant shall be bound to bring up and educate his children properly, according to his means and opportunities, by using every endeavour to allow of their attendance at schools where sound religious and secular knowledge may be acquired; and, by precept and example, otherwise training them up to be pious, industrious, and good members of society.

19. It is expressly declared, that all powers conferred on the proprietor by these conditions shall be capable of being effectually exercised and carried into effect by, and at the instance of, the duly appointed factor on the estate of Quendale, and by the sub-factors and ground officers under them.

II. RULES FOR THE BETTER MANAGEMENT OF THE SUMBURGH ESTATE.

Any tenant on the estate can apply for a copy of these regulations; and on his obtaining said copy, duly dated and signed by himself and the landlord, these rules shall form a binding agreement between himself and the landlord, and shall have all the force of a lease.

Each holding shall be valued by the landlord, and the nature of the holding and value declared on the back of the copy of these rules, handed to the tenant thereof; and the rent shall not afterwards be raised to that tenant for the term of fifty years, except as herein provided.

As, in time past, money has gradually but surely decreased in value, and land has gradually increased in value in the same or a greater proportion, it shall be in the option of the landlord, at the end of ten years from the signing of this agreement, to make such addition to the rent paid by the tenant as he shall see fit and reasonable, according to the times; but said addition shall, under no circumstances, exceed twenty per cent., or one-fifth of the rent formerly paid, and so on, at the end of every ten years.

The tenant shall be at liberty to make such improvements on the property in his occupation as shall be sanctioned by the landlord; and such improvements, when executed, shall be inspected by the landlord, and shall be described in a minute appended to this agreement; and said minute shall declare the value of said improvements, and the number of years it is considered the tenant ought to occupy said holding, in order to obtain repayment for said improvements; and should the tenant leave his holding before the expiry of said number of years, he shall be entitled to receive from the landlord compensation for the unexhausted part of his improvements, as under:-- Dividing the declared value of the improvement by the number of years of occupancy required to repay the outlay, the tenant shall receive one part for every such unexpired year; thus: suppose the improvement cost twenty pounds, and the number of years required to repay the outlay were twenty years,-- if the tenant left after five years, he would be entitled to fifteen pounds; if after ten years, to ten pounds; if after fifteen years, to five pounds; and so on.

No tenant shall have a right to claim compensation for improvements which have not been approved of by the landlord, by a signed minute, appended to this agreement.

Should any tenant fail to execute such improvements as the landlord shall consider necessary, then the landlord shall be entitled to enter on said holding, and execute said improvements himself; and shall charge the tenant, in addition to his rent, such interest on said improvements as he shall see fit,--said interest not to exceed ten per cent., or two shillings in the pound, on the total cost.

Should any tenant desire improvements which he is unable to execute without assistance, he may apply to the landlord, and obtain from him such assistance as he may require; the landlord charging interest on such outlay made by him, as above provided, and the tenant being entitled to compensation, as above provided, on his part of the outlay.

All houses, buildings, fences, and drains, as well as any improvement made, as above, must be kept up by the tenant during his occupancy, and in good tenantable repair; and the fact of any tenant allowing such improved property to deteriorate, shall debar him from claiming compensation for it.

After any farm shall have been enclosed, the tenant shall be bound to adhere to a rotation of crops, or course of cropping,-- the ordinary five-course shift of <corn, turnips> or <potatoes, corn, grass>, or other rotation, to be approved of by the landlord.

No tenant shall cut up the grass lands for truck, feals, or divots, either within the town dykes or in the scattald, except on such spots as may be pointed out by the ground officer.

Peats are only to be cut where pointed out by the ground officer: the banks to be opened in straight lines, the moss cut to the channel, and the feals laid down, carefully, with the grass side up.

No tenant shall allow his swine to go at large.

No tenant shall sublet any part of his holding, or shall take in a second family to live with him or on his farm, without permission from the landlord.

The landlord reserves to himself all minerals, game, shooting, and trout fishing on the estate; and shall be at liberty, at all times, to enter on any holding, to search for and work minerals and quarries, to lay off and make roads, and to alter the marches of any farm in such a manner as he shall see fit. But should such action of his lessen the value of any farm, he will make a proportionate reduction of rent.

The tenant shall be bound to observe all the rules generally in force on the property for the time being.

<Subject to the above rules, the landlord reserves right to take into his own hands any part of his estate, at any time, on giving the tenant legal notice>.

III.

ARTICLES, REGULATIONS, AND CONDITIONS OF LEASE, which are to have the same effect as if engrossed at length in the Leases agreed betwixt the PROPRIETOR of the Estates of GARTH and ANNSBRAE, on the one part, and the Tenants of said Lands, on the other part.

1. <Length of Lease and Rent Term>. -- The lease shall be for ten years from Martinmas. The rent shall be due and payable at the term of Martinmas every year.

2. <Payment of Taxes>. -- Such local or other taxes as shall be levied upon tenants shall be duly paid by them when due, or if advanced by the proprietor, shall be settled for along with the rent.

3. <Subletting, etc.> -- The tenant is bound not to sublet or assign in whole or in part, directly or indirectly, without the permission in writing of the proprietor or his factor. Without similar permission, only one family shall occupy the subject let. The

head of the family is responsible for the conduct of all the members of same. The tack is to go to the lawful heirs-male of the tenant, according to seniority in the first instance, and failing heirs-male, to the heirs-female by the same rules, without division. But the tenant is allowed, notwithstanding, by a written deed or letter under his hand, to select any one of his children in preference to another to succeed him in the lease, who will be recognised and received as tenant, upon due intimation being given in writing, provided that the lease descends to the individual named free and unencumbered.

4. <Repairs to Houses, etc.> -- The tenants are bound to maintain, keep, and leave at the end of their lease in good tenantable condition the houses, and all permanent improvements handed over, or that may be added during the lease.

5. <Enclosing and other permanent Improvements.> -- In consequence of the land being unenclosed, and in need of draining and other permanent improvements, the tenants are bound to annually expend upon their farms, in such manner as may be pointed out by the proprietor or his factor, improvements equal in value to the amount of the annual rent. During the first five years of the lease the proprietor will allow annually an amount equal to one half of such permanent improvements as may have been executed in a satisfactory manner (said amount in no case to exceed one half of the amount of rent). During the last five years of the lease, the tenants are bound to pay in addition to the annual rent a further rent-charge, at the rate of seven per cent. per annum upon the total sum or sums allowed for improvements during the first five years of the lease.

6. <Rotation of Cropping.>--The practice of continuing to labour without any regular rotation, and to exhaust the soil by over-cropping, being extremely prejudicial both to the interests of the proprietor and tenants, it is stipulated that every tenant shall follow a five-shift rotation of crops in the order after prescribed, viz.:--one-fifth of the farm under summer fallow, or green crop properly cleaned and dunged; two-fifths to be under corn crops, but not immediately following each other in the, same division; and two-fifths in first and second years grass. During the first three years, as it may be impossible to follow the rotation, the tenants are bound to follow such orders of cropping as may be pointed out by the proprietor or his factor.

7. <Selling Straw, Turnips, etc.> -- To insure the improving the lands, no tenant shall be at liberty to sell or otherwise dispose of any straw, turnips, hay, or dung produce upon his farm. All that class of produce must be consumed on the farm, unless with the written permission of the proprietor or his factor.

8. <Way-going Crop.> -- In compensation for the tenants leaving their lands in a more improved condition, and for being prevented from disposing of certain portions of their crops, the tenants are to be paid for the grass seeds sown with the way-going crop, as also for their straw, hay, and turnips left at the end of their lease, and for all dung made during the last six months of said lease, all at the value as appraised by two arbiters mutually chosen.

9. <Keeping second-rate Animals for breeding purposes.> -- To insure improvement upon stock, no tenant is allowed to keep any bull, stallion, ram, or boar,

except such as has been approved of, and permitted in writing by the proprietor or his factor.

10. <No Dogs allowed.> -- To prevent the destruction of, or annoyance to, the stock upon the scattalds, no tenant will allowed to keep a dog or dogs.

11. <Minerals, Shootings, etc. reserved.> -- The proprietor reserves to himself the right of searching for, opening, and working mines and minerals, on paying such surface damage only as may be ascertained and fixed by two arbiters mutually chosen. The proprietor also reserves the shootings, and the salmon and trout fishings.

12. <Peat-moss, Sea-weed, and Shell-sand reserved.> -- The proprietor further reserves to himself all the peat-mosses, sea-weed, and shell-sand, with power to regulate and divide them as circumstances may render necessary. All tenants are bound in future to cast such peats as may be allotted, in a regular manner, and to lay down the turf in neat and regular order, without potting, and to the satisfaction of any one duly appointed by the proprietor. The drift, seaweed, and shell-sand to be used as manure, will be divided amongst the tenants, according to the quantity of land held by each. All other sea-weed, rights of foreshore, share of whales, etc., are expressly reserved by the proprietor.

13. <Boats> noust,< etc.> -- All privileges of grazing upon scattalds, removing ' truck,' etc., is reserved by the proprietor. No tenant is allowed any privilege outside the boundary of his farm, with the single exception of the boats nousts as presently enjoyed.

14. <Regulations, etc.> -- The tenants are bound to accede to all local regulations which are or may be established for the more orderly management of the property, and the general interests of all concerned.

15. <Bankruptcy.> -- It is expressly stipulated, that when any act of bankruptcy upon the part of the tenant takes place, that his lease shall terminate and revert back to the proprietor at the first term after such act of bankruptcy; but to remove all grounds to complain of injustice, whatever rise of rent is actually obtained from the farm in a bona fide manner, when let anew, shall be accounted for annually when received during the balance of the lease to the creditor or trustee, or an equivalent paid in one sum for all the years of the lease unexpired.

16. <Feus reserved.> -- The proprietor reserves to himself the right to grant feus off any farm, upon allowing such deduction of rent only as may be determined by two valuators mutually chosen.

17. <Penalties.> -- All tenants are bound to conform to the foregoing articles, regulations, and conditions of lease, under the penalty of forfeiture of all the benefits of their lease, and immediate loss of their farms.

18. <Formal Lease, etc.>--A printed copy of these conditions and regulations, signed by the proprietor or his factor, before witnesses, shall be delivered to each person who is accepted as a tenant, and the tenant's name, designation of farm, amount of rent, etc. entered in a minute-book specially kept for such purpose; and the tenant may at any time afterwards claim a regular lease upon stamped paper, to be

extended at his own expense.

19. <Removal.> -- Every tenant shall be bound to remove from the houses and lands at the expiry of the lease, without notice of removal or other legal warning, and shall be liable to double the previous year's rent for every year that he or she may remain in possession after the termination of the tack.

IV. CIRCULAR sent to TENANTS on Major CAMERON'S Estate in Unst, by the Tacksmen, Messrs. SPENCE & CO.

As there has been, for some time past, many vague reports throughout the island regarding the change of system in the management of the tenantry, consequent on the withdrawal from them of the scattalds, which of late have been looked upon as more valuable than formerly, with other changes in the mode of farming, etc.,

We therefore deem it right to make it generally known to the tenants on the Garth and Annsbrae estates in Unst, that, knowing the change was certain, and believing it would be severely felt at first, if not gradually and judiciously introduced; we have, hoping to modify to a certain extent coming changes, obtained a lease of these estates; and, with the view at the commencement, and throughout, if possible, of retaining the scattalds in connection with the arable lands and outsets, have taken the scattalds at a fixed and separate rent. The scattalds, on this footing, if viewed as a business speculation, could be enclosed, as has been done here and elsewhere, and let out to strangers, or occupied by ourselves. Such a course, however, we consider would be hard on the present tenants, and therefore, in the meantime, purpose to forego all pecuniary advantage which might, by keeping the scattalds, arise to ourselves, and give such over to the general advantage of tenants, on condition of receiving for all animals pasturing thereon a fixed rate per head, to be determined yearly. With this view, and in order to disturb existing arrangements as little as possible this year, we shall begin with fixing a charge of 1s. 6d. per head on byre cattle, 3s. 6d. per head on all horse stock over one year old, with 9d. per head for sheep, payable at Martinmas 1868. These rates will be doubled for stock to tenants on any other property found pasturing on the scattalds rented by us; and before these neutral tenants will be allowed to pasture stock on our scattalds, they must pay in advance, and obtain a licence for such number as they wish to pasture on the grounds. Thus the benefit of the scattalds will be secured to those who pay for them. Measures will be adopted to protect the tenants and ourselves from all unlawful trespass.

As regards the 'rules and regulations' in force on the Garth and Annsbrae estates, copies of which have been given to the tenants in Unst, we have obtained such modifications of these, as, we believe, will be found satisfactory, easily wrought, and we fondly hope for the good of all concerned in the end. These modified rules, however, will not come into operation this year; tenants will have time to consider them; and, when introduced, we believe generally, they will see the advantage accruing to themselves. We do not expect that the idle and thriftless will admire them, but it may help them to discover that 'Idleness is the parent of want, while the hand of the diligent maketh rich.'

From these remarks we hope it will be seen that our desire is to help and benefit the tenants, and, as far as we can, raise them, socially and morally. With a strict regard to equity, confining ourselves entirely to this affair and business, on strictly fair and just principles, we shall persevere and hope, under the blessing of Providence, that all will result well to proprietors, tenants, and ourselves.

In carrying this work forward, we ask the tenants' help and assistance; we will study never to present ourselves in a false light, and we shall at all times claim honest and fair dealings on the tenants' part; doubledealing, deceit, and dishonesty will be punished; the idle-inclined and the spendthrift will meet with encouragement only as they abandon those habits. The careful, honest, active man will receive all help and encouragement in our power. Our desire is to benefit all under our care, and we will do so, unless the tenants themselves prevent it.

JOHN SPENCE. WILLIAM G. MOUAT. JOHN THOMSON. <December> 1867. ALEXANDER SANDISON.

V.

EXCERPTS from LEASE between Major T.M. CAMERON of Annsbrae and Messrs. SPENCE & CO.

The subjects set are all and whole the town and farms of Norwick, Balliasta, and others, together with the outsets thereon, as more particularly specified in the rental annexed, and subscribed by the contracting parties as relative hereto, together also with the scattalds, dwelling-houses, piers, booths, beaches, and all parts, pertinents, and privileges of the said lands not hereby expressly reserved, and not inconsistent with the working of the lands under the rules of good management, all lying in the parish and island of Unst and county of Shetland, with entry to the said lands and others (excepting as to the following farms and subjects held on lease by the respective tenants, viz.: Crossbister, held by Edward Ramsay; Balliasta, held by Charles Gray and James Manson; the grass parks of Gardie, held by Alexander Sandison; house and one merk in Himron, held by Alexander Harper; the mill Westing, now vacant; Saredale, held by John Nisbit; Muness, held by James Thomson; Collaster, held by James Smith; and Uyeasound, held by Donald Johnson) at the term of Martinmas, in the year eighteen hundred and sixty-eight, and from thenceforth to be peaceably occupied and possessed by the said lessees for the space of twelve years, say until the term of Martinmas in the year eighteen hundred and eighty; and with respect to the said subjects already let by the proprietor, with entry at the termination of the respective tacks thereof, and from thenceforth the whole of said subjects to be peaceably possessed by the said lessees till the said term of Martinmas, eighteen hundred and eighty; but declaring that, notwithstanding the term of entry to these subjects is postponed on account of their being already let, it is provided and declared that the lessees under this tack shall draw the rents payable in respect thereof from and after the term of Martinmas, eighteen hundred and sixty-eight; together also with the right to the said lessees of manufacturing kelp from seaweed grown upon or gathered from the shores of the said lands, together also

with the right of collecting drift-weed be used as manure, and the right of cutting turf or 'pones,' but that only for the purpose of keeping in repair the roofs of the houses hereby let, and only in parts of the subjects where the same would be least injurious to the lands; and in the event of any difference of opinion arising as to this, the same to be determined by the arbiter hereinafter appointed; together also with the right of cutting peats in the manner after mentioned in the rules for subtenants; reserving to the proprietor all mines and minerals, with liberty to search for, etc.

And in respect the lessees are taken bound, as after-mentioned, to expend yearly for five years certain sums on the improvement of the property hereby let, the one half of which is to be repaid to them by the proprietors in the manner afterwards stated: And whereas they contemplate getting their half of these improvements executed by their sub-tenants under certain stipulations in the sub-leases after mentioned, the condition of which sub-leases are new in Shetland, and a number of the tenants may decline to enter into them, thus leaving vacant farms, and entailing on the lessees themselves the half of the expense of carrying out the improvements upon these farms; it is hereby provided and declared, and the said Thomas Mouat Cameron, for himself and his foresaids, their heirs and successors, binds and obliges him and them, that should such a number of the said farms remain vacant as to entail of annual outlay an annual amount altogether exceeding one hundred pounds sterling, he and they shall be bound to advance any excess of that sum, making an annual rent-charge upon the lessees of 10 per cent. on their half of said advance (as, for example, should improvements to the value of only six hundred pounds per annum be effected by means of the sub-tenants, leaving three hundred to be expended by the lessees, the proprietors would, in such case, advance the agreed-upon four hundred and fifty pounds at six pounds fourteen shillings per cent. per annum, and of the one hundred and fifty pounds expended by the lessees, the excess of one hundred pounds -- namely, fifty pounds -- at a rentcharge of ten per cent. per annum): And where as some of the houses on the property hereby let are not in good repair, the said Thomas Mouat Cameron binds and obliges himself, and his and their foresaids, to put the same in good tenantable order and condition within two years from the commencement of this lease ..... And it is hereby provided and declared that this lease is granted, and the same is hereby accepted, under the restrictions and reservations, and subject to the following conditions, viz.: <First>, That the said lessees and their foresaids shall annually, during the first five years of this lease, and that before the first day of September in each year, expend, either by themselves or by their sub-tenants, under rule 5 of the rules and regulations for sub-leases, afterwards referred to, and annexed hereto, upon permanent improvements upon the subjects hereby let, in such a way as may be pointed out by the proprietors or their factor (the laying off and subdividing the ground to be improved to be at the expense of the proprietor), the sum of nine hundred pounds sterling per annum; it being provided and declared that the first annual expenditure, or as much thereof as the lessees may require, shall be made on fencing, subject always, however, to the aforesaid sanction of the said proprietors or their factor; the one half of said sum, viz. four hundred and fifty pounds sterling per annum, for five years, shall be repaid to the said lessees by the proprietors, through some drainage or land improvement

company, at the term of Martinmas yearly, provided always that the said improvements shall have been executed by the said lessees before the previous said first day of September in each year, and shall, previous to said payment, have been inspected and passed by the Government inspector, and shall have in every respect been executed in the way pointed out by the proprietors or their factor; or, in the event of their having failed to point out the improvements required at least ten months before the said first September, then it shall be sufficient if the lessees have executed them in the way they deem best; upon which advances the lessees shall pay halfyearly, at the terms of Whitsunday and Martinmas, during the continuance of this lease, the whole of the rent-charge payable in respect of said advance by such drainage or other company, at such rate as the said company may charge upon a twenty-five years' loan, but not to exceed six pounds fourteen shillings per cent. per annum; and the lessees shall also pay the poor-rates and road-money, if any, exigible from the landlord in respect of said rent-charge; and it is also provided and declared that, in the event of the said lessees failing regularly to pay the said rent-charge and the said annual rent, and allowing the same to remain unpaid for more than ten days after the terms at which the said payments thereof respectively become due in any year, then, and in that event, it shall be in the option of the proprietors, or their foresaids, to put an end to and terminate this lease, and the same shall <ipso facto> become null and void. ..... <Fourth>: That the lessees 'shall labour, cultivate, and manure such parts of the subjects hereby let as are brought or to be brought under cultivation, according to the rules of good husbandry, and shall follow a six course shift or rotation, and leave the same in that state, but with reference to rule 6 of the rules with sub-tenant annexed hereto.

<Fifth>. That the lessees are bound to offer to the present tenants sub-leases of such portion of the lands hereby let as may be laid off to accompany their houses, and may, during the first six years of the lease, sublet to others any farms so laid off, and which the present tenants may refuse to take and during the remaining six years any sub-tenancy becoming vacant can only be sublet with the consent, in writing, of the proprietors or their agent; but such sub-leases can only be entered into on observing the conditions rules, and regulations for that purpose annexed, and subscribed by the contracting parties as relative hereto, to which special reference is made, and which shall be held to be as binding on both parties as if the same were incorporated herein.

<Sixth>. That the lessees shall be bound to leave upon the subjects hereby let a flock of Cheviot or black-faced ewes average quality, and not less in number than six hundred of equal proportion one, two, three, and four years of age, and shall be bound to hand the same over to the proprietors at the end of this lease, at the valuation of two persons to be mutually and specially chosen for the purpose.

<Seventh>. That the lessees shall arrange that only one family shall be in the occupation of each holding at the expiry of this lease, and for at least one year prior thereto.

<Twelfth>, It is hereby stipulated and agreed on by the lessors and lessees that this lease may be added to, altered, or modified, by simple letters exchanged between or modifications be found necessary in order to work out its different provisions and

the lease being of a nature new and untried in Shetland, that it shall be interpreted as favourably as possible for the lessees, consistent with already expressed intentions of the two parties.

RULES AND REGULATIONS to be entered into between the LESSEES under the foregoing Lease and their SUB-TENANTS referred to, and subscribed by the parties with special reference to said Lease.

1. No sub-lease shall extend beyond the term of Martinmas eighteen hundred and eighty.

2. Such local or other taxes as shall be levied upon tenants shall be duly paid by the sub-tenants according to the amount of their rents, or if advanced by the lessees shall be repaid to them by the sub-tenants.

3. Only one family shall be allowed to occupy each holding. 4. The sub-tenants shall be bound to maintain, keep, and leave at the end of their sub-leases in good tenantable condition, the houses and all permanent improvements handed over or that may be added during the existence of the sub lease.

5. The sub-tenants shall be bound to expend annually upon their respective holdings, in such manner as may be pointed out by the proprietor, or his factor improvements equal in value to the amount of the annual rent. During the first five years of the sub-lease, the lessees will allow annually an amount equal to one half of such permanent improvements as may have been executed in a satisfactory manner (said amount in no case to exceed one half of the amount of rent), and the sub-tenants shall be bound to pay at the rate of seven per cent. per annum on all advances so made during the period of endurance of their sub-leases.

6. Every sub-tenant shall be bound to follow a six-shift rotation of crops, according to the rules of good husbandry. During the first three years, as it may be impossible to follow the rotation, the sub-tenants are bound to follow such orders of cropping as may be pointed out by the proprietors or their factor and the lessees.

7. No sub-tenant shall be at liberty to sell or otherwise dispose of any straw, turnips, hay, or dung produced on his farm except to neighbours, tenants on the property. All that class of produce must be consumed on the farm, unless with the written permission of the proprietors which will be given to any tenant agreeing to expend the full value of any such produce sold upon the purchase of oilcake or special manure to be consumed on the farm during the same season.

8. In compensation for the sub-tenants leaving their lands in a more improved condition, and for being prevented from disposing of certain portions of their crops, the sub-tenants shall be paid by the proprietor of the lands, through the lessees for the grass seeds sown with way-going crop, as also for their corn and straw, hay and turnips, or other produce left at the end of their sub-leases, and for all dung made during the last six months of said sub-lease, all at the value as the same shall be determined by two valuators to be mutually chosen for the purpose.

9. No sub-tenant shall be allowed to keep any bull, stallion, ram, or boar, unless such as permitted by the lessees.

10. The lessees shall reserve from the sub-leases, for behoof of the proprietor, the right of searching for and working mines and minerals, and the right of salmon and trout fishings and shootings.

11. The lessees shall also reserve all the peat-mosses, shell-sand, and sea-weed, and shall regulate and divide them among their sub-tenants as circumstances shall render necessary; the lessees shall also bind the sub-tenants to 'cast', such peats as may be allotted in a regular manner, and to relay the turf in neat and regular order, with the grass side uppermost. The drift sea-weed and shell-sand to be used as manure will be divided by the lessees among their sub-tenants according to the quantity of land held by each.

12. No sub-tenant shall have an right to strike theek, cut turf, except as hereinbefore provided for repairing roofs of houses, or floss, remove earth, or in any way deteriorate or injure the lands hereby let, without the consent of the proprietors or their agent or factor.

13. The sub-tenant shall be bound to accede to all local regulations which may be made by lessees, with consent of the proprietors, for the more orderly management of the property and the general interests of all concerned.

14. When any act of bankruptcy shall take place upon the part of any sub-tenants, it shall be stipulated that this lease shall terminate and revert back to the lessees at the first term after such act of bankruptcy.

15. The lessees shall be bound to reserve from the sub-leases the right to the proprietor to grant feus off any farm, upon his allowing such deduction of rent to the lessees, and through them to the sub-tenant, as may be determined by two valuators mutually chosen for the purpose, and upon his finding security, to the satisfaction of the lessees, that the said feus shall not be used in any form what ever for purposes of business during the existence of their lease.

16. A clause shall be inserted in the sub-leases binding the tenants to remove from the houses and lands at the expiry of their respective sub-leases without notice of removal or other legal warning.

17. Lastly, a clause shall be inserted in the sub-leases binding the sub-tenants to conform to the foregoing regulations and conditions, under the penalty of forfeiture thereof.

II.--THE FISHERIES AND FISHING TRADE OF WICK.

(Communicated by Malcolm M'Lennan, Esq., procurator-Fiscal, Wick.)

White-fishing is but a secondary enterprise at Wick. In the end of September, annually, a number of boats engage in fishing for haddocks, and prosecute this fishing till November. This year fifteen boats engaged in this work, each manned by eight men. The best boats of the herring fishing fleet are employed, and for the use of the boat one-ninth part of the proceeds of the fishing is paid to the boatowner. In local phraseology, the boat is said to be held by the crew 'on deal,' and the consideration paid for it is 'the boat's deal.' The average winnings of these boats for

the seven weeks or two months of the haddock-fishing are reckoned at £100, divisible into nine shares, eight for the crew and one for the boat's deal. The men hire the boat, and provide each his own lines and bait.

Before commencing this fishing the fishermen generally agree with a fish-curer, who binds himself to take all the haddocks which they catch at a fixed price. This year the rate was 8s. per cwt. The price is paid in cash each Saturday night of the season.

In the end of November or beginning of December the fishermen enter into engagements for the cod and ling fishing, then about to commence. This fishing is prosecuted from December till March, both months included. This year about 30 boats are engaged in it. The system pursued is much as in the haddock-fishing. Good boats are hired by the crews 'on deal,' and the crews supply their own lines and bait; and having arranged with a fish-curer, deliver their fish to him as they catch them. The contract is, however, varied to some extent. The men bargain for 'a bounty ' which is paid to them in cash at the time of forming the bargain. This year it ranged from £8 to £12, and the bounty is at once divided by the crew. The fish are sold not by weight, but at a fixed price for each fish of a certain standard of length, which this year was fourteen pence for each fish of sixteen inches. All smaller fish are rejected by the curers, and are sold by the fishermen in the local markets. The curers pay cash each Saturday night for fish delivered to them in course of the preceding week.

Simultaneously with the cod and ling fishing what is known as 'the winter herring-fishing' is prosecuted. Indeed, the cod and ling fishing is, in a large measure, dependent on this fishing for herrings -- fresh herrings being found to be the best bait for cod and ling. The value of the herrings landed at Wick in course of December, January, and February in some years has touched £5000, but generally is very much less. The herrings are sold to the highest bidder on the arrival of the boats at the harbour, and paid for in cash on the instant, there being no such contract concerning them as in the case of white fish.

By the time the cod and ling fishing ceases in March the fishermen begin preparations for the herring-fishing on the west coast Lewis and the Hebrides which commences about the middle of May. For this fishing much the same up of five or six joint-adventurers, each supplying his share of nets; or, if a less number of partners embark in it they hire one or more fishermen to complete the crew and of course, have each a larger share of the profits. Generally they take with them in their boats their supplies of meal, groceries, and biscuit, etc. In the west-coast fishing, so far as boats from Caithness engage in it, the fishermen engage themselves to deliver all their fish to a curer at an agreed on price per cran, which price is paid in cash at the end of the fishing, about 1st July. In the majority of cases the men get an advance of cash from the curers when fitting out their boats, to the amount of £4 or £5 per man. Such sums, of course, are deducted from the price of the herrings in the final settlement.

The Caithness herring-fishing next follows, commencing about 18th July, and lasting till 6th or 10th September. Hitherto the whole course of the dealings between the fishermen and fish-curers noticed in this statement has been unexceptionable,

being simply the delivery of fish by the former at agreed on rates of price, paid by the latter, the curers, in cash at short periods. In the great Caithness herring-fishing a change of system occurs, which appears to be mainly owing to the heavy cost of the boats and material employed, and the heavy sums disbursed by each boat for labour and maintenance in each season.

A new fishing-boat of the best class costs from £120 to £140, including sails and rigging complete. A drift of 35 nets (and the drift often consists of a greater number), at 10s. per net, is value for £120. A boat well kept is reckoned to stand fourteen years. The drift of nets is said to require renewal every eight years.

The ordinary case is, that one fisherman is either really or nominally owner of the boat and drift with which he engages in this fishing. At least a fisherman actually undertakes the whole enterprise of the season's fishing with the boat of which he has possession with all the liabilities attending it. This is, however, subject to variation, as sometimes two men, and sometimes but less frequently three men, are the real or nominal owners of a boat and take the risks of it . Assuming that a man starts with a new boat and drift free of debt, not only must he have a capital of about £250 invested in these, but he must be prepared to undertake further the following charges of the season:--

1 Wages of four hired men (generally strangers from the Highlands or Islands) and a boy, ... £ 30 0 0 2. Their lodgings, ... 3 0 0 3. Their allowance of meal, ... 4 0 0 4. Cost of barking nets, ... 3 0 0 5. Cartage and drying-green for nets,. . 3 0 0 6. Harbour dues, ... 1 0 0 44 0 0

But taking into account that accidentally many nets are lost or destroyed in each year, and that the fishing is prosecuted in boats, and with nets more or less worn, and that thus there is need of considerable annual repair and replacement, it will be seen that in the ordinary case the expense of a fishing season is largely greater than in the case of an adventure, with a new boat and drift. Thus the expense, as above, ... £ 44 0 0 Replacing 4 nets, ... 14 0 0 Repairing drift, ... 2 0 0 Repairing and tarring boat, barking ropes, sails, etc. , ... 2 0 0 To which falls to be added, to meet the annual deterioration of the boat 10 0 0 £72 0 0

It follows that the fisherman can have no advantage from the Caithness herring-fishing unless his boat clears a sum of £ 72, or thereabout, in which case the surplus over that amount will constitute his profit.

But if the fisherman has borrowed the money invested in the boat and nets, it is apparent that his annual burden is increased by the sum of interest which he must pay for it. And this leads to reference to a local custom of some importance. If the fisherman has borrowed the money to purchase his boat and nets, or if, as is usually the case, he receives them from a fish-curer to whom he thus becomes debtor for their value, he does so on the condition -- very natural in the circumstances -- that he shall deliver all his fish to the creditor as long as he remains in debt. In such a case the price of the herrings is not fixed by contract, but is 'the general terms' of price conceded by fish-curers to fishermen in their debt; and these terms are generally about 20 per cent. below the price paid by the curers to men free of debt, and able to

bargain beforehand concerning it. This is so while interest is charged on the amount of the debt, or while the fisherman is charged with 'boat's deal' as he usually is, when the debt is not wiped off within the second year.

For the years 1860-70, the average annual take of herrings was only 86 crans. The average price is not stated in any tabular form, but it certainly did not amount to £1 per cran under 'the general terms' system. Thus, assuming that that portion of the herring fleet held by fishermen in debt fished its fair average of these eleven years, it will be seen that the total sum realized but barely sufficed to meet the necessary outlays of the season, and to pay interest on the capital involved

This average, however, represents the mean of success and failure. In every year a few boats fish largely in excess of the average, and a still larger number fall more or less short of it. The latter lose money, if they have money to lose. They who have none fall into debt, or into deeper debt. It is said that fully two-thirds of the fishermen are in debt, and pursue this extensive enterprise burdened with all the disadvantages of debt. Their debts range from all kinds of figures up to £300.

Still there is no such thing as truck; and payment, when payment is owing, is made in cash. In the case of men free of debt, the price, being fixed, is at once paid at the close of the fishing, or soon thereafter. In the case of men in debt, circumstances make the settlement more complicated. At the outset of his career the fisherman is desirous of standing as little as possible in debt to his curer. One or two unsuccessful seasons or seasons of but partial success quickly change his view and he becomes eager to lay as much of the burden of the fishing as possible on the fishcurer. Thus, when he wants nets, he calls on the curer to guarantee payment to the seller of nets. He gets tar, and cutch, and ropes in the same way. The curer guarantees payment of the wages, meal, and other supplies of the crew; and of the cartage of the nets, and the rent of their drying ground. All these are, of course, debited in the fisherman's account. Generally the curer pays off all those claims that require instant settlement at the close of the fishing season. If things have gone fairly well, he may make the man a payment in cash at the same time; but the final settlement of the year is postponed till Martinmas, when, if cash is owing, it is paid. If no balance accrues to the fisherman, his account is handed to him; and if he is a crofter, or a reliable man the curer advances to him £12 or £20, to pay his rent and tide him over the hard times in winter. Sometimes the curer assists his fishermen debtors by supplies of meal for their families in winter, the meal being procured by the curer's orders to millers or meal dealers.

It is tolerably certain that the curer receives an abatement or discount from the merchant's prices of the meal, goods, ropes, nets, or other things which the fishermen procure on his guarantee. But sometimes the guarantee is an open one, with which the fisherman goes to any merchant he chooses making the best bargain he can.

Thus the basis of the system in this, the herring-fishing, is also mainly one of cash payments. On the first relation of it, too, it seems a system conducted in very liberal ways, inasmuch as the fish-curers are prompt to supply the capital, or the boat and

materials equivalent to the capital, needed by the fisherman, and to pay him promptly the whole profits. But this, a thing unusual in ordinary commercial dealings, lays the system open to suspicion; and it is, in fact, highly objectionable, and replete with hard and injurious consequences to the fishermen. Take an ordinary case. A fisherman has made a lucky fishing with an old boat, and finds himself at the end of the year clear of debt, or near to that fortunate condition. He has for years used the old boat, as he knows, at a serious disadvantage, for the old boat and defective gearing are insufficient to carry the fisherman twenty or more miles from shore nightly, and at such distances the shoals of herrings often are. His curer will give him a boat one year old, and he takes it, agreeing to pay for it what it originally cost the curer. If the old boat is worth anything, the curer will take it in part payment. But thus the fisherman at once becomes debtor in a £100 or thereby, and bound to fish on 'general terms.' He has probably been so bound all his fishing career. In the same way, a fish-curer will readily trust a boat to a smart young fisherman wishing to start on his own account. Of course, the curer takes care that he has power by writing to seize the boat again, if necessary for his security.

It is commonly calculated that few men fish over 100 crans of herrings oftener than in one season out of five and all the chances are that our fisherman will do little to reduce his debt for some years to come. If the price is not paid by a lucky fishing in the first year, but runs unpaid to a second or third, the curer generally charges the man with deal for the boat, £10 or £14 as may be, and this year after year; so that, when at last the price is paid, and the fisherman gets free, the boat has actually cost him £150 or more. This, however, only occurs with fish-curers who are of a lower class than the most respectable. The leading men in the trade generally credit the sums paid as deal in the final settlement of the boat's price.

The probabilities are that the fisherman will increase the debt year after year, for some years. Then the curer takes from him a sale-note of the boat and of his drift. The boat is beached, so as to preserve the curer's right to it. The nets are sent to his store. The generosity of the original transaction disappears. It is, of course, understood that the boat and nets may be redeemed; but in many cases interest is added to the debt year after year, the deal is always charged for the boat, and the fisherman loses about 20 per cent. of his earnings by the 'general terms.' The sense of failure operates injuriously on the man, perhaps makes him negligent. He finds the curer disinclined to increase the debt by an additional advance of money just when money is most necessary to him for subsistence, and things go on from bad to worse. At last his year of luck comes round. He fishes 100 or 120 crans, perhaps 200 crans. His debt is reduced so as to be fairly less than the value of the boat and drift. Then he may go on for another course of the same risk and indebtedness. But not unfrequently the curer at this juncture closes the transaction by retaining and appropriating the boat and drift, and dismissing the man. The appropriation is made not seldom without any valuation of the property, and the man is dismissed without discharge or balancing of the debt.

The disadvantages of this system to the fishermen are apparent, and are really very great. <First>, Responsibility for the whole expenses of the fishing is cast upon

them, while really the boats and nets are the fishcurer's. <Second>, They are charged with the maintenance of these boats and nets, in effect to keep the curer's capital put into their hands as near to its original value as possible. <Third>, They pay interest in some cases, and not seldom an arbitrary profit on part of the capital in form of boat's deal. <Fourth>, They receive 20 per cent. less for their fish than free fishermen do.

The disadvantages of the fishermen are the advantages of the fish-curers. But these advantages are not wholly unmixed. The fish-curer has not only in the majority of cases to find the boats and nets, but to disburse all the charges of the fishing where the proceeds of the catch are insufficient to do it, and 'to keep on' the fishermen by advances for their food and rents. Thus the aggregate of the debts is a continual strain on the curer's capital, and payment is as uncertain as the chances of fishermen individually getting extraordinary hauls of fish. There is still further the risk of the debtor dying, in which event the debt is wholly lost beyond the value of the boat and nets. On the death of a fish-curer recently, his books were found to contain about £16,000 of debts due to him by fishermen, and these for the most part valueless. Still, if the system were not advantageous to the curers, it is plain that they would not conduct their trade in so questionable a method.

The fisherman's profits in good years are swallowed up by the charges and drawbacks of bad and indifferent years, unless happily there be for him a succession of good years. But, considering how little the average value of the fishing exceeds the actual outlays of the year, it is not surprising that this great fishing should be carried on under a mass of debt, spread over fully two-thirds of the fleet. It is unquestionably a national misfortune that any great enterprise like the Caithness herring-fishing should be conducted under such serious disadvantages, and with such unfortunate results to the large and adventurous class of men who labour in it.

These results are mainly owing to the great error of the fishermen in accepting the use of capital on terms unreasonably to their own disadvantage, standing debtor for the whole charges of the fishing, and submitting to the large deduction of 20 per cent. on the value of their fish. But they do it with their eyes open; and it is of contract, partly expressed and partly understood, and regulated by local custom. If it were desirable to regulate the arrangements of the trade by Act of Parliament, and if it were provided (1) that no person could advance money or money's worth to a fisherman, with the view of engaging in or equipping him for the fishing, without thereby constituting himself a partner of the fisherman, to the extent of such advance, proportionately to the value of the boat, drift of nets, etc. possessed by the fisherman and used in the fishing, and becoming liable as such partner for a proportional share of the charges of the fisherman's adventure, and (2) that the custom of fixing the price 'by general terms' be abolished; the trade would, it is thought, soon revert to legitimate methods of dealing. The real capitalist would share the risks and generally engross them; while the labour and zeal of the individual fisherman, who may have only his labour and zeal to give, would find their value in wages or other remuneration. But it is not to be denied that any such legislation would be extremely arbitrary and indefensible in principle.

It should here be stated that what the fishermen earn in white-fishing, and in the winter and Lewis herring-fishing, is always paid in cash, irrespective of the debt resting owing in respect of the Caithness herring-fishing. The individual debtor of the herring-fishing is lost in the five, six, or eight joint-adventurers who man the boats in the fishings first mentioned.

The men who hire themselves as boatmen for the herring-fishing season bargain for wages to be paid in cash at the end of the season. These wages vary from £4 to £8, according to the skill or strength of the boatman. Besides the money wages, these men have lodgings and cooking of their food supplied to them, and each receives a stone of meal weekly. The money wage is payable at the close of the fishing, and is always paid in cash. The number of men so employed is about 4000 at Wick alone.

These men make their engagements with the boatmasters, who, as already stated, are ostensibly owners of the boats. They used to experience much hardship by the failure of the boatmasters to pay them in bad years. To enforce payment was difficult, for the fish-curers were invariably found to be the owners of the boats and nets, the sole possessions of the boatmasters. This has come to be remedied to a great extent by the men refusing to engage without receiving a guarantee for payment by the curer.

With regard to coopers, they are engaged for terms longer or shorter, to make barrels at current wages or rates, and payments are fortnightly and always in cash.

The women employed in gutting and curing the herring are engaged for the season. They are paid 6d. per barrel, and 1s. 3d. a day for repacking and filling up the barrels. 1500 of them may be employed. The payments are made in cash at the end of the season.

Thus it will be seen that the whole business of the Caithness fishings is based on cash payments; and if it were not for the specialties of the herring-fishing, the whole would be sound and equitable. These specialties operate so extensive an injury, that they well merit the attention of the Legislature.

It remains to be noticed that the inducements to engage in the herring-fishing under all the disadvantages set forth are very great. It has all the precarious and enticing character of a lottery. Every year a few lucky men fish large hauls, exceeding £200 in value in the brief fishing season. As a rule, fishermen marry young; and how can the young fisherman so easily procure the means or chance of livelihood as by accepting the boat and nets which the curer so readily offers? But, apart from any such special prompting, our fishermen, essentially venturous, all too eagerly incur the debt and risk a life of indebtedness for the chance of winning the comparative comfort to which a few, a very few, of their class attain. I know of no class requiring protection from their own recklessness in these contracts more than do the fishermen of Caithness.

III.-- EXTRACTS FROM LETTER FROM REV. MR. ARTHUR, UYEA SOUND, UNST.

UYEA SOUND, 1<st Feb>. 1872. I have yours of the 26th Jan. '72, making inquiries about the price and quality of provisions, etc. in the Fair Isle. When I arrived

there in summer '70, my furniture and provisions I had brought with me from Edinburgh had not arrived, through the gross misconduct of Mr. Bruce's skipper; so I had no alternative but to get provisions from his store, the only shop in the island. Tea, equal to 2s. or 2s. 2d. a pound in Glasgow, which I had tried from curiosity, was sold to me for 4s.; sugar (East India brown) worth 31/2d. a pound, cost 7d.; soap, the same; coarse biscuit (the only bread), 4d. a pound. All these articles were, I conceived, about 100 per cent. above the ordinary selling price, or profits, in other places. I afterwards bought other articles, but I forget the price, and could not tell the profits.

Meal is the great demand of the island, besides tea, tobacco, etc. I heard great complaints of the price of the meal, but I needed none. They said the bere-meal cost about 20s. a boll, but they did not know the precise price till settling day, once a year or two years. Then they had to pay whatever Mr. Bruce chose to name, after it was all eaten. He kept off the price from that of their fish; and there too, they had to take whatever he named. I found from an Orkney newspaper that bere-meal was selling there at 13s. a boll. As the meal was bought with their own money, and the price of their own fish of last year, I suppose a penny letter could order 100 bolls, shipped at Aberdeen or Kirkwall; the price of carriage to Lerwick would be, say 6d. a boll; then conveyed to Fair Isle in Mr. Bruce's own vessel, with a reasonable freight would clear about one thousand per cent. on the actual outlay or he would pocket £30 for a penny letter.

The people 'were restricted (as you say you have been informed) to buy from any one else, both by word and writing, and by the fact that they had nothing to pay it with till July last from 1869-1871. Mr. Bruce tried to establish a complete monopoly, but he did not altogether succeed. Others came and undersold him vastly, though even they were VERY DEAR, and would not sell above high- water mark. Every time any one came to the island to sell tea, sugar, coffee, soap, etc., it was reported that any one buying from such would get their warning to leave the island--the grand and only punishment known there. Of course, they all bought more or less secretly or openly and none were turned away I was at first astounded to find they did not believe a word I said, and I soon learned not to believe a word they said. I don't mean all were liars alike, but only a stranger can't tell whom to trust.

One seller came three times to the island that summer(1870) and took away a good deal of money and goods each time. I bought bread, sugar, fowls, etc, for Mr Bruce's laws did not apply to me Good sugar 6d. a pound, would have cost 5d. and 51/2d. in Glasgow. Soap equally cheap, I was told. Bread 2d. above Kirkwall price, <e.g.> a 4 lb. loaf 8d. instead of 6d. at Kirkwall. This man and his boat's crew of two or three men remained six days on one occasion in good weather selling and collecting accounts, and took away cattle, etc. It was in regard to him that the notice was stuck up in the store window <signed> by Mr Bruce that he advised his tenants not to deal with strangers, nor to receive them into their houses.

As to the fish, the people complained that they got 9d. a cwt. less than those at Sumburgh for the same fish; their prices varying from 2s. 6d. to 3s., about 25 per cent. below the same article twenty-four miles distant, so that £75 would pay as much

fish there as £100 at Sumburgh. If the Sumburgh fishermen complain you may guess what the islanders will do if they dare speak out. I am told the Unst fishermen have got this year 8s. a cwt. for cod and ling -- the cod-fish of Fair Isle are bought at half-price. When I was there for my furniture in July last I asked for curiosity, what they got for their fish as Mr. Bruce was there settling. They said 2s. 9d. and 3s. that would be 5s 6d. and 6s. for cod. Now 6s. is to 8s. as £75 is to £100. If the fish are not paid till a year or two after they are delivered, the only capital required is the outlay for salt; and I should think £20 of salt should serve £200 of clear profit on the fish -- equal to 1000 per cent. on the outlay as

You may think their plots of ground are let cheap with a view to profit on the fish. The reverse is the fact. The price of land there is nearly double that of the lots I have priced in Sutherlandshire and the rest of Shetland The land is the source of the people's <loudest> and <bitterest complaints>. They say Mr. Bruce has doubled the rents since he got the island, four or five years ago and the tacksmen had overtaxed them before he got it. Many have left the island since then, on the plea of oppression voluntarily submitting to the only punishment they have to fear. ..... I received letters in October dated July, and none after till I came for them in March, although the people were fishing every month in the year, and we could speak the mail steamer going north twice in three trips. Going south, she is generally under night or very early in the morning. I have gone to the mail and spoken to the captain in October, November and December, and my letters and papers on board were carried fifty miles past me, to be obtained when anybody coming to the island chose to ask them; and thus I might obtain them in a few months, OR NEVER. And so of letters <leaving> the island. Now, a few pounds could establish a post-office in the island and the mail steamer could deliver a bag forty or fifty times in the year when going north; indeed always, unless she passed in a fog, or in the dark, or in a storm from a south or south-east wind. In a north wind, the harbour is perfectly calm, and the island shelters the steamer.

IV.--EXTRACT FROM LETTER BY WM. MOUAT, ESQ. OF GARTH, ADVOCATE, TO MACCULLOCH, AUTHOR OF 'THE HIGHLANDS AND WESTERN ISLANDS OF SCOTLAND' (DISCOVERED AMONGST THE GARTH PAPERS IN MARCH 1872).

<2d November> 1820. . . . With regard to the points in question, I think, if I can make myself understood, I should be able to satisfy you; but our mode of holding, or rather of describing property, is so different from anything practised either in England or Scotland, that I suspect it will be necessary to take a very elementary view before I can be sure of succeeding.

In the first place, then, there are no <Manorial rights>, or anything analogous to them, either in the person of Lord Dundas or of any other person. The reason why you have heard his Lordship spoken of as so universal a proprietor in the commons is, that although his is only a third or fourth rate property, it is so much scattered, that there are few commons (scattales or scattholes) in the country in which he has not something to say, <simply, however, as a proprietor>. The Crown is the universal superior, and all the land is freehold. It is true that Lord Dundas lately possessed over all the country, and does still possess over some few estates, the right to the Crown

rents. These were the feu-duties exigible from the feued lands, and a payment called scatt, exigible both from Udal and feued land; but this was simply a right to collect the payments, and did not infer any right of superiority. Etymologically, scatt certainly seems to have some connection with <scattholds>, but practically it has none whatever, so far as the receiver is concerned, and is as to him simply a feu-duty. The opinion of the country, however, is so far in favour of the etymological view, that it is generally conceived that all towns (<i.e.> townships) paying scatt have right to a share of the commons, while those who do not have none; but this point has never been settled by any judicial authority.

In the second place, you are mistaken in supposing that tenants pay no rent for the scattholds. Every township its own scatthold, the boundaries of which are, or ought to be, known. I say 'ought to be,' because I believe in many instances a knowledge of the marches has been lost. Any scatthold, therefore, is common merely as respects the township to which it belongs; and it is the exclusive property of the owners of that township, or, more strictly speaking, forms a part of the township itself. Each township consists of a certain number of merks. The following history of the origin of this term (which is our universal denomination of land, both in letting it to tenants and in conveying it from one proprietor to another) may help to explain its nature. It seems, then, to have arisen in the times when rents were fixed by public authority, each township being valued, <in cumulo>, at so many merks of money as it was considered worth. The share of each landlord was then naturally said to consist of so many merks, because the rent was in fact his whole interest, the farmer being, according to the old Danish law, the real proprietor, and the landlord only a sort of lord of the manor. The term, by a very easy change, came, with the changes of laws, to apply to that portion of land which had originally paid a money merk of rent, but did not, and does not to this day, denote any particular spot or measurement, but merely such proportion of the whole township as had been equivalent to one money merk of rent, when the whole was valued at a given number. This hypothesis, for I acknowledge it is little more, at least gives a result corresponding precisely to our present idea of a merk of land, and also accounts for the great variety of contents which we find in merk, since, to be equal in value, they must have been of very different extent in different situations. The number of merks in each town is known from old records and traditions, or, practically, from the sum of all the proprietors. Thus, if in the town of M. 40 merks belong to A., 30 to B., and 20 to C., then is M. a town of 40 + 30 + 20 = 90 merks. It is of no consequence here whether M. contains five acres or five hundred, 40-90ths of the whole belong to A., and 30-90ths to B., etc. And, on the other hand, the number of merks might be double, triple, or in any other proportion, without at all altering the extent or state of the property, except that the interest of each proprietor would be expressed by proportionally higher figures. A. would have 80-180ths, B. 60-180ths, and so forth. In these circumstances, if a landlord lets to a tenant any given number of merks, it is just giving him a fractional share, of which the total number of merks in the town is the denominators, and the number let the numerator. A tenant taking ten merks in the above supposed town of M., would just have right to 10-90ths of the corn land, 10-90ths of the meadow land, 10-90ths of the stinted pasture within the dyke, and 10-90ths of the unstinted

pasture, or 'scatthold,' without the dyke. But the rent is charged at so much per merk -- <Ergo>, the tenant does pay rent for the scatthold, Q.E.D.!!

I do not, however, allege that the rent thus paid is anything like what it might easily be under a better system.

That the rents were anciently fixed by public authority, is, I believe, an established fact, and there is reason to believe that the practice continued long after the transference of this country from Norway to Scotland, when, of course, it ceased to be law. This practice, and the long period for which both rents and improvements were stationary, had produced so strong an impression upon our habits of thinking on this subject, that, at so late a period as to be distinctly within my own recollection, landlords, in general, had no clear practical confidence in their own right to demand a direct rise of rent, and, under this feeling, resorted, in many instances, to indirect methods of doing that which they had a right to have done openly and avowedly. The sight of this sort of thing, without an understanding of the circumstances and habits of thinking which lie to it, gave superficial observers an idea that much oppression and injustice was exercised towards the tenantry, and produced much of that obloquy (some of which may possibly have fallen in your way) which has been thrown upon the Shetland landholders.

This idea has now, however, completely vanished, and many Shetland proprietors have let their lands at a raised money rent, without reserving any further claim upon the tenants: and if all have not done so, it arises from other causes, and not from any feeling of the kind described above, or from any inclination to take undue advantages.

As to your question why the scattholds remain undivided, the general backwardness of improvement, and want of agricultural skill and capital, are the immediate causes. The present tenantry are so ignorant of the means of turning these commons to any proper account, that the fee-simple of most of them would, under the present management, hardly pay a common land-measurer for surveying them, far less could they bear any litigation. There are, however, many considerable scattholds at present the exclusive property of one or a few persons. Improved management has begun, and will probably take root, first in such situations, and afterwards, when its advantages are seen, and a sufficient number of people trained to practise it has arisen, it will spread over those lands where the difficulty and expense of divisions have to be previously incurred. Your alternative of levying a rent of so much per head of beasts pasturing, would not answer, because, as I have already endeavoured to explain, the tenants, in paying a rent per merk, pay for their scattholds as well as for their other land. Your other suggestion, however, numerically limiting the stock according to the rent, or, which is the same thing, according to the moths, would be highly beneficial both to tenants and landlords. If you ask, Why then is it not carried into effect? I can only answer that we have not long turned our attention the way of agricultural improvement, and have only begun to discover that what is difficult is not always impossible.

V. -- EXCERPT FROM REPORT OF MR. PETERKIN, GENERAL INSPECTOR OF BOARD SUPERVISION OF THE POOR IN SCOTLAND. <Shop Dealings with

Paupers>.--The Board are aware of the constantly recurring reference I have had to make for many years to the tendency of Inspectors and members of Parochial Boards, here and there, over the whole of Scotland, to traffic with paupers, by furnishing them with goods of all kinds, and with lodgings, and intercepting the parochial allowances in payment thereof. On this subject there has, since the institution of the Board, been a constant struggle; for here and there, all over Scotland, in the large towns as well as in rural and remote parishes, the practice prevailed, and was occasionally discovered-- generally by accident. The Board long ago expressed decided opinions on the impropriety of the practice. Now in Shetland, it so happens that almost the only persons who are practically the administrators of the Poor Law are more or less directly or indirectly interested in the local trade -- in the fish-curing, or in the shops, or in the stores of one kind or another. In one parish the Poor Law is practically administered by these merchants and fish-curers, and to their shops the paupers must of necessity go to make their purchases. In two other parishes nearly the same thing occurs. There is probably no parish in Shetland, where, to a greater or less extent, this is not the case; and to find there persons capable of transacting business, and of acting as members of Boards or Inspectors of Poor, who are not, in some way or other, directly or indirectly interested in a shop, or connected with a shopkeeper, is perhaps impossible. Where the line is to be drawn, when all interest in the business of the shop will cease, is beyond my powers of discovery. Even among the more recent appointments of Inspectors we have one who is personally unobjectionable, having no shop; but his mother keeps "<the shop>" of the district. Another was a shopkeeper; and on his appointment as Inspector he gave up his shop and goods, and with them, of course, it was to be supposed all interest in the business; but he made them all over to his niece, <a girl fifteen>! And the third, having ceased to keep a shop, acts as agent for his brother and his partners, who have shops and stores and curing stations; but at present he sells nothing. These three men seem to me in themselves to be really as competent as can be for their duties, and are, I believe, as good and efficient men as can be found in their respective parishes. In another parish we have as an Inspector the paid shopman or servant of the firm who has "<the store>." In another parish the chairman of the Board has "<the shop>," and his brother has "<the other shop>." In short, everything in Shetland gravitates towards "<the shop>." To it the child takes a dozen eggs in a morning, and obtains for the family breakfast what is called a "<corn o' tea>;" to it the young woman takes her knitted hosiery, and in exchange will receive either tea or some article or material of dress; to it the pauper takes the pass-book, or pay-ticket of the parish, and on that guarantee will get the "<corn o' tea>," or the "<corn o meal>;' and he who supplies the goods over the counter is almost certain to be a member of the Board, or a near relative of one who is, or of the Inspector, -- he may even be the chairman of the Board himself.

'I do not pretend to be able to offer any suggestions to remedy such a state of matters, but too rely state the facts as they have come under my observation. I have, however, no doubt that the poors' rates in Shetland are, to a great extent, but the natural results of such parochial arrangements as I have referred to.'

VI.--NOTES OF PRICES PAID BY JAMES METHUEN, LEITH, FOR (CURED) SALT FISH, FREE ON BOARD AT LERWICK, FROM 1853 TO 1871.

Year Ling Cod Tusk Saith 1853 £20, 10s. £18 £20. 10s. £10. 10s. 1854-5 .... 1856 .... £15 .... £11, 10s. to £12 1857 £21 to £22 £18 to £17 £19, 5s. £12, 10s. 1858 £21, 10s. £16, 10s. .... £12 1859 £20 to £22 £15, 10s. .... £10 to £11 1860 £19 to £21 £17. 15s £20 £13 1861 £18 to £17, 10s. £17, 10s. £18 £12 to £13 1862 £17 to £18 £15 to £16 £17 £8, 10s. 1863 £18 to £20, 10s. £18 £20 £9 1864 £18 to £21 £17 to £19 £21, 5s. £12 1865 £23 to £24 £21 to £22 £23 £15 1866 £23 to £25, 10s. £19 to £23 £24 £13, 10s. 1867 £17 to £18 £16 £17 £7 1868 £18 to £19 £16 .... 1869 £20 to £20, 10s. £17 £18, 10s. £11 1870 £21, 10s. to £22 £18 £20 .... 1871 £22, 10s. to £24 £20 .... £13, 10s.

Priced per ton

VII.--ABSTRACTS OF SETTLEMENTS PRODUCED BY MR. GARRIOCK.

1. ABSTRACT of SETTLEMENT with FAROE FISHERMEN by GARRIOCK & CO.

Vessel Earning Paid in Lines, Clothes, Cash Hooks Meal, etc., and Stores for Self and used on Family Board 'Mizpah' 1870. £585 2 1 £374 13 6 £81 7 11 £129 0 8 'Mizpah' 1871. £328 19 11 £198 9 7 £63 3 4 £67 7 0 'Sylvia' 1870. £427 19 2 £239 17 0 £71 7 9 £16 4 5

2. ABSTRACT OF SETTLEMENT with CREWS of FISHERMEN at DALE and WALLS -- Season 1871.

Name of Crew Gross Earning Lines, Nets, Salt, Meal, and Goods Amount paid in Cash <6-oared boats> James Twatt and crew £66 8 6 £16 4 4 £50 4 2 John Jeromson and crew 88 16 111/2 18 4 4 70 12 71/2 Wm. Jameson and crew 74 11 11 36 12 11 37 19 0 Fraser Henry and crew 100 0 41/2 20 1 61/2 79 18 10 Thomas Laurenson and crew 100 2 7 27 14 6 72 8 1 Jacob Christie and crew 96 6 6 15 2 71/2 81 3 101/2 36 men Total £526 6 10 £134 0 3 £392 6 7 <4-oared boats> Scott Williamson and crew £21 2 11/2 £9 8 91/2 £11 13 4 Chas. Williamson and crew 33 2 11/2 19 16 81/2 13 5 6 William Smith and crew 21 17 7 10 2 31/2 11 15 31/2 Jas. Tait and crew 34 3 41/2 7 19 21/2 26 4 2 Geo. Georgeson and crew 16 0 7 .... 16 0 7 Thomas Moffat and crew 18 15 41/2 4 14 81/2 14 0 8 Magnus Thomson and crew* Thos. Thomson and crew* Mat. Thomson and crew* 158 11 0 42 18 9 115 12 3 34 men Total £829 19 1 £229 0 81/2 £600 18 41/2

* 4 boats with 3 men each = 12 men

AVERAGE.

Earning Goods, etc. Cash 36 men in six-oared boats, each £14 12 5 £3 14 5 £10 17 11 34 men in four-oared boats, each £8 18 7 £2 15 103/4 £6 2 81/4

Minutes of Evidence taken before the Commission on the Truck System (Shetland)

Lerwick: Monday, January 1, 1872. Mr Guthrie, Commissioner.

<Mr. Guthrie>.-I have come here, as a Commissioner appointed under the Truck Act of 1870, to inquire into the system of Truck, and to report upon that and upon the

operation of all Acts or provisions of Acts prohibiting the truck system; and I have power under the Act, as it says, 'to investigate all offences against such Acts which have occurred within the period of two years immediately preceding the passing of this Act (that was, in 1870), and to make such report on the subject of the truck system, and of the existing laws in relation thereto, as they (the Commissioners) shall deem proper and useful'. I wish all that are here, and all that are interested in the subject of this inquiry, to remember that the object for which I am sent here is simply to find out the truth, and the whole truth, about the way in which the system of truck, or, if it is not properly called the system of truck, the system of paying wages and the price of productions,-which is said to prevail in Shetland, operates; and I trust and believe that I shall receive from all of you every assistance in ascertaining the truth with regard to that matter. I wish every person in Shetland, and every person interested in the matter, to bear in mind, first of all, that I come here with no formed opinion as to the operation of that system, either on the one side or on the other. I come here to find out the truth; and I believe that, so far as Shetland is concerned, the Government which has sent me here is in exactly the same position, and has not formed any opinion. It is simply anxious to find out what is the truth about the system which is alleged to prevail here; and I trust, as I have already said, that I shall receive every assistance from everybody in prosecuting that inquiry. I have to thank some gentlemen, to whom I have already made application for information, for the courteous way in which they have responded to my application. The interests of some of them may be supposed to be affected by the inquiry, but I hope that they and all of you will come forward frankly and tell me what you know about the matter. It is right, however, to mention, that the Act of Parliament under which I am sent here, furnishes me with special and very stringent powers with regard to the obtaining of information. In particular, I am empowered, among other things, to examine witnesses upon oath; to compel them to answer such questions, as may be put to them; to compel the production of documents; to order the inspection of any real or personal property; and a summons requiring the attendance of a witness must be obeyed just in the same way as if it were issued by any of Her Majesty's superior courts. I hope and trust, however, that it will be unnecessary to exercise any of these powers. I think the people of Shetland have sufficient intelligence and good sense to make the enforcement of these powers quite unnecessary. I rely upon their good sense and courtesy to allow the truth to be ascertained, without any difficulty or any resistance or attempt at concealment. I may mention-although perhaps in this country it is less necessary-that the Act of Parliament gives me power, when any person examined as a witness makes a full and true disclosure touching all matters with respect to which he is examined, to give him a certificate stating that he has made such a full and true disclosure; and that certificate has the effect of protecting him against any civil or criminal procedure which might be taken against him in consequence of anything that he speaks to. Further, I have to express a hope that no person who is interested in the system that is said to prevail here will in any way attempt to interfere with this inquiry by intimidating any witness who is to be called before me, or exercising any undue or improper influence upon him. If any instance of such intimidation or improper influence takes place, I hope the party on whom it is attempted to be exercised will at once make the circumstance known to me, whether

that intimidation is exercised by a threat of dismissal from employment or a refusal of work, or in whatever other way it may be done. All these things would be a serious violation of the law, and would be visited with severe punishment. I shall be ready to receive any information that any person may wish to give on the subject of the inquiry; and if any one wishes to give evidence or to suggest any point for inquiry, I have to ask that they will give that information privately, as the inquiry itself, so far as the taking down of evidence is concerned, must, by the terms of the Act, be held in public.

Lerwick, January 1, 1872. CATHERINE WINWICK, examined

1. You live in Lerwick?-Yes.

2. You are in the habit of knitting for Mr. Linklater?-Yes.

3. For any one else?-No.

4. Do you supply your own wool?-No.

5. Where do you get it?-I knit Mr. Linklater's own worsted.

6. Do you get a supply of it at his shop?-Yes.

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7. Do you pay for it when you get it?-No; he pays me for the knitting.

8. Are you paid in money?-Some in money and some in goods.

9. What is your system of dealing? When you go with anything you have knitted to Mr. Linklater's shop, do you put a price upon it?-No; he gives what he thinks right.

10. He puts the price upon it?-Yes.

11. Does he pay you that price usually in money?-Part in money and part in goods. He does not pay all in money.

12. Do you keep a pass-book with him?-No.

13. Do you get all the money you want?-I always get what money I ask for; but I never ask for all in money. I have asked for a few shillings in money, and I have always got it.

14. Why did you not ask for the whole in money?-Because he was not in the habit of giving all money for his knitting.

15. Do you mean that you knew if you had asked for it you would not have got it?-I don't think I would have got it all in money; I never asked him for it all, but I always got what I asked for. If I asked him for a few shillings of money, he always gave it to me.

16. Is a settlement always made when you bring your work back?-Sometimes it is, and sometimes not perhaps sometimes I have something in his hands to get, and perhaps sometimes I am due him a little.

17. Due him for what?-For anything. Perhaps he might give me something sometimes when I did not have it to get, if I asked him for it.

18. Did you ever wish to buy your goods at any other place?-No; I could not buy my goods at any other place.

19. Were you always content with what you got?-Yes; I was always content.

20. Then if you wanted money, it would be for some other purpose, such as paying rent?-Yes.

21. Or for provisions?-Yes.

22. And you always got what you wanted for these purposes?- Yes. When I asked for a few shillings of money for knitting, I always got it.

23. Do you live by yourself?-Yes.

24. And not in family with any others?-No.

25. Do you make all your living by knitting?-Yes.

26. You have no other means of getting money to pay your rent?- No.

27. You pay rent for a room?-Yes.

28. And you have always got enough from the employer to whom you sell your work to pay your room rent and your food?-Yes. It had to be enough, for I could not get anything else.

29. Do you mean by that, that you would have liked to have had more money to spend upon food?-Yes.

30. But you could only get goods?-Yes.

31. How much do you earn by knitting in a week or in a month?-I suppose perhaps about 10s. in a month. I would knit a shawl in a month, and the merchant would allow me that sum for knitting it.

32. Would it take you a month to knit a shawl, working at nothing else?-Yes. Of course I would not be always at it. People cannot sit and knit continually; but it would take a month to make it, working in an ordinary way.

33. When you take that shawl to the shop, price of say 10s. is put upon it, how much of that do you got in money, and how much in goods?-I have knitted a shawl for 10s, and I have got 5s. in money on it from Mr. Linklater.

34. Is that the usual proportion of money you get?-No, not always. Sometimes I don't get so much as that.

35. Did you ever ask for more?-No; I think never asked for any more on one shawl.

36. Supposing you were going with a shawl of that value what goods would you get? Take the last time you went, for instance: what did you get?-Cottons, or such things as I would be requiring. The last time I was there I bought nine yards of cotton at 81/2d. a yard.

37. Was that to make a dress with?-No; it was white cotton.

38. Did you ask for that?-Yes.

39. Did you want it for any particular purpose?-Yes; I wanted it.

40. What else did you get?-That is all I remember getting at that time.

41. Did you get the rest in money?-Yes.

42. Have you any reason to complain of the quality of the goods you get?-No, I have not.

43. Would you wish to go to any other shop if you got money?-I have no reason to leave Mr. Linklater, for he has always given me money as well as I could have got it from any other merchant, I believe.

44. What arrangement do you make about the supplying of the wool?-We make no arrangement.

45. Then you are supplied with the wool; and the 10s. is the price not of the shawl, but of your work upon it?-Yes.

46. Is that the usual way in which the knitting trade is carried on by the women in Shetland?-Yes.

47. Do they generally get the wool supplied to them that way?-I believe they do. At least it is the way with some of them. They won't want it.

48. They don't buy the wool themselves?-They are not able to buy the wool.

49. Have you worked for other merchants than Mr. Linklater?- No; only for him. I have knitted a few things for a lady, but I never knitted to any other merchant than Mr. Linklater.

50. Then you don't know how the other merchants deal with the women who knit for them?-No; I cannot say anything about that.

51. Would you prefer to sell your goods to a private lady, or to a stranger counting to Shetland, rather than have to take them to a merchant?-If I could get all money for them, I would prefer that. 52. Supposing there was a merchant here who paid for goods altogether in money, would you prefer to take your hosiery to him?-Yes; if I could get all money, I would prefer that.

53. Is there no such person?-No; there is no such person here as that. A lady may buy a thing or two at a time, and give money for them, but that could not be a general thing.

54. How do you know that you cannot got money from the merchants? Is it because you have attempted to get it, or simply because you have a sort of understanding to that effect?-The merchants don't allow all money for the knitting.

55. Have they told you that?-Yes.

56. Who has told you?-Just the whole of them. None of them pay wholly in money for anything.

57. But who has told you that? I think you said you had never been refused?-I never was refused a few shillings on anything by Mr. Linklater. When I took home work to him and asked him for a few shillings of money, I always got it.

58. But you would rather have it all in money?-Yes.

59. And you cannot get it?-No.

60. How do you know that?-They won't give it to us. If we buy worsted ourselves, and knit the work, and take it to them, they won't give any money at all.

61. Have you tried that?-Yes.

62. You have knitted a shawl with your own worsted, and gone to them to sell it; and they would not allow money on it?-Yes.

63. Has Mr. Linklater done that?-Yes.

64. Did he refuse to give you money for that shawl?-Yes.

65. But he would pay for the shawl in goods?-Yes, if I would sell it.

66. When did that happen?-I could not just remember the time; but it has been often.

67. You did that yourself?-Yes, I have done that myself; and I have got shawls from friends to sell, and have gone out with them, and the merchants would not give money on them.

68. Is there anything else you want to say?-No.

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Lerwick, January 1, 1872, JANET IRVINE, examined.

69. Do you live in Lerwick?-Yes.

70. Your mother is a widow?-Yes.

71. Do you support yourself by knitting?-Yes; and partly by working outside at the fish.

72. What have you to do with the fish?-I help to cure them in the fish-curing establishment.

73. For whom do you knit?-Sometimes for myself, and sometimes for Miss Mary Hutchison.

74. Is she a dealer in hosiery?-Yes; she knits shawls herself, and sends them south.

75. Is she an agent?-Yes.

76. For whom?-I think she is agent for Mr. White, in Edinburgh.

77. Do you sometimes work for others?-No; not very often. I sometimes work for myself when I have any time. I knit a veil or a necktie, but in the summer 1 have not much time for that.

78. Do you knit these things for the purpose of selling them?- Yes.

79. Do you sometimes sell to the merchants in Lerwick?-Yes.

80. To whom?-To any one who is buying anything.

81. Do you generally get money for your shawls?-No; I got money from Miss Hutchison when I ask for it.

82. Do you get the price all in money from her?-When I want it all in money, I get it all in money, and when I want any other thing, she gives it to me.

83. Do you generally ask for it all in money from her?-Yes; I generally ask for it in money, because that is the only way we have to get it.

84. Does she deal in goods?-No. She generally brings home a little tea.

85. Does she only deal in tea?-In nothing else, so far as I know.

86. Then you sometimes get payment from her in tea?-Yes. When I ask it, I get it; but when I ask money, I get money.

87. When you sell to the merchants in Lerwick, do you get payment in money?-No; I never asked it, because I know they would not give it to us, as it is not the custom. They do not give it here.

88. Do you get part of it in money?-No; I get no money.

89. You have to take it all in goods?-Yes.

90. Do you prefer to get it in goods or in money?-I would like to get money if I could; but I can't get it.

91. And Miss Hutchison is not always ready to buy, from you?- No; she does not buy anything but her own. She brings home worsted, or buys worsted here, and I get it from her to knit.

92. What you sell to the merchants you knit with your own worsted?-Yes.

93. Where do you buy your worsted?-From the shops.

94. Which shops?-I used to buy from Mr. Brown, but he is not alive now; and I buy from Mr. Sinclair.

95. Do you pay ready-money for your worsted when you buy it?- Yes.

96. Do you not get worsted from the shops to knit into articles for the merchants?-No.

97. You sell to the shops only when Miss Hutchison has not got work for you?-Yes. It is only when I have it of my own that I sell to the shops.

98. Have you asked for money instead of goods at any of the shops?-No; I never asked for it.

99. Your sister also works in the same way?-Yes; she knits, but she does not work outside. She is not here to-day.

100. When was the last time you took anything of your own knitting to a shop to sell? Was it long ago?-No; it is not long,- perhaps about two or three weeks ago.

101. What was it?-A necktie.

102. Where did you take it?-I took it to Mr. Sinclair's. I could not get it sold that night, because he was not in, and the servants could not take it in his absence. I took it home with me.

103. What did you do with it?-The woman who dressed it sold it for me at Mr. Sinclair's. She generally dresses things, and sometimes sells them for me.

104. What is dressing?-Getting them sorted for sale. After being knitted, they are washed and dressed and starched.

105. Do you give the woman who dresses the articles a commission to sell them?-Yes; she sells them for me.

106. Why is that?-Because she is generally in the way of doing it. She can do it better than I can.

107. Do you mean that she can make a better bargain?-She dresses goods for the merchants, and sometimes she sells them too. She sold that article for me.

108. Who is the woman?-Mrs. William Arcus; she lives at the Docks.

109. What was the price put upon that necktie which she sold?- Eighteenpence.

110. What did you get for it?-I just got anything I required.

111. What did you require at that time?-I got a little tea, and the rest in cotton.

112. Did you want the tea?-Yes.

113. Have you sometimes asked the merchants for goods which they would not give you?-No.

114. When you go to a merchant to sell a shawl, can you get any kind of goods you want?-I don't sell any shawls, because I don't have any of my own. I have not had any of my own for a long time.

115. But when you go to sell any of the goods you have knitted, can you get anything you want?-I cannot get money, but I can get anything else, except worsted. They won't give it.

116. Will they not give you worsted for your knitted goods?-No. They won't give it for the hosiery. They want money for the worsted.

117. Do they give any reason for that?-I don't know. They say it is a money article.

118. Does that mean ready-money?-Yes.

119. It is cotton or tea you generally get?-Yes; or any other small thing except money. We can get anything except it.

120. You work at other things; so that I suppose you have money from your wages in the fish-curing establishment for the purpose of paying your rent, and things that

you must pay in money?-Yes.

121. You get your wages there in money?-Yes; I get money for that.

122. You work for Mr. Leask?-Yes.

123. He does not keep a store of any kind?-No; he has no store, but he keeps a shop.

124. Have you to take goods for your wages there?-No; I can either get money or goods, whichever I want.

125. But what do you do in point of fact? Do you take money or do you take goods from Mr. Leask's shop?-I take money.

126. Always?-Not always. I take other things too, because they keep everything there that is required.

127. You have no complaint to make about that?-No.

128. You are quite content to go to Mr. Leask's shop for what you want?-Yes.

129. When you buy things there, you pay your money across the counter?-Yes.

130. You have got that money from the pay-clerk previously?- Yes.

131. Where is that money paid to you?-In the shop.

132. In which shop?-In Mr. Leask's shop. We get it in the office, and we pay it in the shop. He has two shops there.

133. Is the office at the Docks?-No; it is in the town.

134. Are you expected to go to Mr. Leask's shop when you get your wages?-No; we can go anywhere we like.

135. How long in the year do you work for Mr. Leask?- Sometimes, when the vessels get fish early, we begin soon. We begin in the spring.

136. Will you work there for six months?-Some [Page 4] times longer. We sometimes begin in spring, and work until after Martinmas.

137. During all that time you won't do much knitting?-No.

138. But you get your wages every week?-Yes.

139. How much do you get?-1s. a day.

140. And that is paid weekly on Saturdays at the office?-Yes.

141. Do you take that money home?-Yes; what I don't pay away.

142. You perhaps want something on the Saturday, and go into the shop for it?-Yes; what I want I go into the shop for.

143. How much of it do you generally take home after making your purchases?-I cannot say.

144. As a general thing, do you spend the half of it in the shop?- Yes; I spend the half of it.

145. Every week?-No; sometimes it is more, and sometimes less.

146. Have you ever been told that you ought to go to the shop?- No.

147. Or that you are expected to go there?-No.

148. Would you still be employed there in the same way although you went and bought your goods elsewhere?-They don't bid any of their people buy out of the shop. They just please themselves. Mr. Leask just gives the money, and he does not care where you buy from.

Lerwick, January 1, 1872, Mrs. CHRISTINA WILLIAMSON, examined.

149. You are a widow, and live in the Widows' Asylum in Lerwick?-Yes.

150. Are you in the habit of knitting goods for sale?-Yes.

151. Do you knit for any particular merchant?-No; I knit for myself.

152. Do you buy your own wool?-Yes; I generally get wool, and get a woman to spin it for me.

153. Who is that woman?-Mrs. Irvine, Burn's Close.

154. Is that the mother of the last witness?-Yes.

155. Do you buy the wool from a farmer?-Yes.

156. And then you knit it for yourself, and take the shawls and sell them?-Yes.

157. Do you do that upon an order, or just upon chance?-Just upon chance.

158. Who do you generally sell to?-I have some unsold just now. The last one is unsold.

159. How long have you had it?-I have had that one lying for a twelvemonth.

160. Why don't you sell it?-Because I can't get money for it.

161. Who have you asked to buy it?-I have asked none lately.

162. Who have you asked at all?-I have asked no one in the town.

163. Why do you know you would not get money?-Because it is not the custom to give it, and therefore did not ask it.

164. Have you ever asked money for your shawls?-Yes; often.

165. From whom have you asked money?-I have asked it from the whole of the merchants in the town, but they are not used to giving money.

166. Who are the merchants in the town?-Mr. Sinclair and Mr. Tulloch, and Mr. Laurenson.

167. Are these all you remember?-Yes.

168. Have you sold any shawls to any of these gentlemen lately?- Yes; I sold one to Mr. Laurenson about three months ago.

169. What was the price put upon it?-30s.

170. Was that what you call fine knitting?-Yes.

171. How were you paid for it?-I got goods for it.

172. Did you get no money at all?-No.

173. Did you ask to get some of it in money?-No; I did not ask that.

174. Did you want to get the goods?-Yes; because the goods suited.

175. What goods did you get?-I got bread.

176. Does Mr. Laurenson sell bread in his shop?-Yes.

177. Was there an account run for that?-Yes.

178. What else did you?-Just all kinds of things I was using.

179. Was it all provisions that you got?-No; there was light and plenty of things.

180. Any clothes?-No clothes.

181. Was there any account due before you sold that shawl?-No.

182. Did you get all these goods away with you at the time?-No; I just ran an account for them.

183. Have you got a pass-book?-I have got one, but I don't have it with me.

184. Was that pass-book going on with Laurenson before you sold him the shawl?-No; it just commenced when I sold the shawl.

185. Does that account still continue?-Yes.

186. Do you remember how much it comes to now?-No; I don't remember exactly.

187. Do you live in the Widows' Asylum?-Yes.

188. Are you not provided for there?-No.

189. You have to get your own food?-Yes.

190. You got what you wanted on that occasion from Mr. Laurenson?-Yes.

191. Have you sold anything to him since then?-No.

192. Have you sold anything to any one else?-No.

193. Did you not knit a shawl for' Mr. Tulloch about a month ago?-Yes.

194. You did not sell it to him?-No; I did not sell it. 195. Did he supply the wool in that case?-Yes.

196. Was that because you had not wool of your own?-Yes.

197. What did he charge for the wool?-He just gave me £1 for knitting the shawl.

198. He supplied the wool, and agreed to pay you for knitting the shawl?-Yes.

199. Were you paid that £1?-Yes.

200. In money?-No.

201. Did you ask for money?-No.

202. Are you sure you did not ask for it in money?-Yes; I am sure of that.

203. Did you get any part of it in money?-No.

204. What did you get?-Just any clothes that I was needing.

205. When you went into the shop with the shawl, what passed between you?-I said, 'Here is your shawl Mr. Tulloch.' He asked me what I was wanting.

206. Did you say you wanted money?-No.

207. What did you say?-That I was wanting some goods.

208. Did you mention the goods you wanted?-Yes.

209. What were they?-I believe I took 6 yards of white cotton at 6d. a yard; I also took 41/4 yards of cloth at 4s. 2d. a yard, with which to make waterproof clothing. I got some small things with the balance but I don't remember what they were.

210. But the shawl was to be £1; the cotton came to 3s., and the waterproof cloth to 17s. 81/2d., so that you were rather in Mr. Tulloch's debt: was that left standing till the next time?-Yes.

211. Then you are to knit him something more?-Yes.

212. You have another order just now?-Yes.

213. Are you working at it?-I have not begun to it just yet.

214. Have you anything else to sell just now?-Yes.

215. Is it something you have knitted with your own wool?-Yes; but I have sent it south.

216. Is that because you expect to get money there?-Yes; I have sent it to an old neighbour woman of mine who is now in Thurso.

217. Is she a person who makes a practice of dealing in such things?-No; she is just an acquaintance of mine.

218. Is there anything else you wish to say?-No.

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Lerwick, January 1, 1872, ELIZABETH ROBERTSON, examined.

219. Are you a knitter in Lerwick?-Yes.

220. Do you live alone?-I live with my aged stepmother.

221. Who do you work for?-For the last six years I have knitted for myself, but before that I used to knit for the merchants in general. I knitted for the late Mr. Laurenson, and Mr. G. Harrison, and Mr. Tulloch, and Mr. Linklater,-in short, for almost all the merchants.

222. But that was six years ago?-Yes.

223. When you knitted for the merchants, was the wool supplied to you by them?-Yes.

224. Did you pay for it when you got it out, or when you were paid for your work upon it?-I was just paid for my work.

225. How much would you be able to make in a week at that sort of work?-I could not exactly say how much. I was in delicate health; but in some weeks I might have earned 1s. 6d. a day, and in some weeks perhaps less.

226. Was that the only thing you were working at?-Yes. The only sort of knitting I had was veils and shawls.

227. But was knitting the only thing you were employed at that time?-That was the only thing I was ever employed at in my life.

228. Then, on an average, you earned from 5s. to 6s. a week?- Yes; or from 4s. to 5s.

229. How often were you paid?-Just when I asked for any sort of goods that were in the shop.

230. Would you go once a week or once a fortnight to the shop for payment?-Yes; perhaps I would. I just went as I was done with the work which they required.

231. Did you get a book?-No. I never kept a book.

232. How did you know how much was due to you?-I just depended on the truth of the gentlemen's statements when they added up my accounts.

233. They kept an account in a book?-Yes.

234. Was that the same with all the dealers?-Yes; all that I dealt with before the last six years.

235. Did these merchants supply you with all kinds of goods?- Only with soft goods, and tea and sugar.

236. What did you do for your provisions, such as meal and bread?-I had often to buy such things as I could get, and sell them again at half the price to anybody in the row who would take them from me.

237. Were these the goods you got from the merchants?-Yes.

238. Could you not get anything from them you wanted, except what you have mentioned?-Sometimes I would get a sixpence and sometimes a shilling, but just occasionally.

239. Was that given you as a favour?-Yes, and because they knew I really needed it. It was a mere favour.

240. Were you supporting your stepmother at that time?-No; not at that time. I had only myself to support.

241. But you had no other means of support than your knitting?- No other means at all.

242. Did you ask for money at that time?-Yes; I always asked for money, because I required it so much.

243. Was it generally on a Saturday that you were with?-I did not make any particular settlement; it was just any time that I went.

244. When you got a settlement and took home some of these soft goods, did you go to your neighbours, or to the baker's or provision dealer's shop, and ask for what you wanted in the way of food?-No; but any neighbours that knew me would take from me some of the goods I had, and perhaps give them to a country friend of theirs, and get the money for them.

245. During the last six years you have got into the way of knitting with your own wool?-Yes.

246. Where do you buy your wool, or how do you get it?-There is a lady in the town-a dressmaker and milliner-who deals very largely in hosiery.

247. What is her name?-Miss Robertson. She takes goods from me on lines which I get for my shawls and she gives me wool and cash to favour me, because she knows I have no other way of getting money.

248. What do you mean by taking goods on lines-When I sell a shawl to any hosiery merchant in the town, I get any sort of goods that are in the shop, except wool to knit with; but if I don't want the goods at the time, then the gentleman will give me a line to the amount I have to get.

249. Is that an I O U?-That used to be on them. I think there are other two letters now; but they mean all the same thing.

250. Have you any of these lines?-I have one home. I shall bring it. If I go back to the shop with the line, or send anybody back with it, the merchant's servants will serve the party who brings it with the amount.

251. They will give you full value for it?-Yes, to the full value of the lines.

252. Then Miss Robertson takes these I O U's from you, and gives you worsted for them?-Yes.

253. That worsted you knit into shawls, and these shawls you sell to the merchants, getting from them I O U's?-Yes.

254. Are you any better off under this system than you were before?-Yes. She brings home the wools, and shows me the invoice for them, and I get the wools at what she pays for them. That is much cheaper than I can purchase them for in

Lerwick.

255. But you did not buy the wool under the old way of working: you got the wool supplied to you, and were paid for your work?- Yes.

256. Do you think you make more money under the present system?-Yes.

257. When you get these I O U's, you spend only part of them in purchasing worsted?-I get no worsted on them except what I get from Miss Robertson.

258. But you spend only part of them in paying Miss Robertson for worsted?-Yes; and I get part money from her for them, because they serve her just the same as money would do, in getting articles from the merchants. She favours me in that way, and enables me to support my stepmother and myself, and pay rent and taxation.

259. Do you hand all your I O U's to Miss Robertson?-No; only what I can spare.

260. You sometimes take one of them yourself to the merchant from whom you got it, and you get goods from him for it?-Yes.

261. You have more money passing through your hands now than you had formerly?-Yes. I am able now to pay my rent.

262. How did you pay your rent formerly?-I did not require it then so much. My father was alive then.

263. But you have now to pay rent?-Yes; and to support my stepmother partly.

264. Have you within the last six years asked for money instead of these lines?-Yes; I have asked almost daily for money, and I get a little.

265. When did you ask last for money?-On Saturday.

266. Who did you ask?-Mr. Sinclair.

267. What did he say?-He gave me what I asked.

268. How much was that?-I just asked 1s.

269. Did you present one of his lines?-No; I sold him a shawl, and bought goods, and got a line for the rest, and 1s. of cash.

270. How much was it altogether?-I got 10s. 6d. for the shawl.

271. And you got 1s. in cash, and 9s. 6d. in goods or in line?- Yes.

272. Did you ask for more money than that?-Not on Saturday.

273. You got all the money you wanted then?-Yes.

274. How much did you the time before?-I got 2s. 6d. then.

275. From whom?-From Mr. Sinclair.

276. How much were you selling at that time?-15s. worth, I think.

277. Was that a fortnight's work?-It was more than that; it would be about three weeks'.

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278. How much money did you ask that time?-I asked for 5s.

279. What was said?-There was no more money at hand at the counter at that time, and I got 2s. 6d.

280. What did you get for the 12s. 6d.?-It was some other little things I was purchasing. I don't remember what they were.

281. You did not get a line at that time?-No.

282. The things you got you really wanted?-Yes.

283. Suppose you had got 15s. in cash, would you have purchased your goods there?-Yes. Whatever wearing goods I required, I would not have purchased them anywhere else. I am quite satisfied with Mr. Sinclair's goods; but I am always needing money so much that I have always to ask it.

284. Does this system of not getting money, or being paid in goods, make you buy more dress or clothing than you would otherwise care for?-Yes; I would not need one half the clothes I get, if I could get money.

285. That is to say, you would prefer to take the money, and spend it upon food?-Yes.

286. Or lay it by?-I should not think much of laying it by, if I could only get enough to serve the present time.

287. Have you handed the I O U's to anybody else than Miss Robertson?-Yes; to lots of people.

288. For money?-Yes; for money, and for peats or fuel for the winter. My acquaintances will sometimes take a line from me to oblige me, because I have no money to give them.

289. Name one of them?-John Ridling, Burn's Lane, is one of them.

290. What would he do with it?-Mrs. Ridling would send it to the shop and purchase anything she wanted.

291. Have you known these lines passing through more hands than one before coming to the shop?-Yes; they would do that.

292. For instance, if Mrs. Ridling wanted money instead of goods at the shop, might she pass the line to somebody who would give her money for it?-No, not that I know of.

293. You said you had known the lines passing from hand to hand before going back to the shop?-Yes; sometimes they do that.

294. That is to say, if you handed a line to a person for money, that person might sell it again for money to another neighbour?-I do not know of selling the lines for money; but they might pass from one person to another in a quiet way.

295. For goods?-Yes; but not for money, so far as I know.

296. For fish?-Yes; I have got that on lines.

297. And bread?-Yes.

298. And then the party from whom the fish or bread was got would hand the line to the merchant?-Yes; and get what things suited them.

299. Is that it common thing in Lerwick?-No, it is not common; but it is the case with me.

300. Have you known any one else who has passed her lines in that way?-Yes; I have heard of some people who have taken lines from others. I know that Miss Hutchison has taken lines from people, and given them money for them. [The witness produced a line, in the following terms:

'C. W. 20.-Cr. Bearer value in goods for thirteen shillings stg. 13s. To hat, 3s. R. SINCLAIR & Co. <pr>. W.T.M. Lerwick, 5. 12. 71.']

I think the letters 'C.W.' are a private mark. It used to be I O U. The entry, 'To hat, 3s.' is an article I have got since, and there is therefore a balance of 10s. left on the line.

301. Have you any particular reason for preferring these lines to the old way of getting goods?-Yes; sometimes I can get the lines turned into cash.

302. You can turn them into money more readily?-Yes; through Miss Robertson taking them from me.

303. Are there many such lines given to people at shops?-Yes.

304. Do most of the people prefer the lines to being paid in goods?-Sometimes they don't perhaps require the articles at the time; but when they require them, they go with the lines and get them.

Lerwick, January 1, 1872, Mrs. ANDRINA SIMPSON, examined.

305. Are you a knitter in Lerwick?-Yes.

306. For whom do you knit?-For myself.

307. Have you always done so?-I have always done so for a good many years back.

308. Where do you purchase your wool?-I purchase it just from any person, and I spin it for myself.

309. Do you purchase it from farmers?-Yes.

310. To whom do you sell your work?-To any the merchants who will take it. I generally sold it to Mr. Spence when he was in the town, and to his sister Miss Spence since he went away.

311. Does she still deal in hosiery?-Yes.

312. How are you paid?-Generally just by goods.

313. Do you ask for money?-For the last shawl I sold I asked 2s. in money. She did not appear very willing to give it; but I got 2s. on it, and the rest in goods.

314. What was the value of the shawl?-It was 12s.

315. Did you not ask for more than 2s. upon it?-No. I did not ask for any more, because she did not wish to give any more.

316. You did not ask for the whole price of the shawl in money?- No.

317. Did you want it all in money?-I would have liked it all in money.

318. Why? What would you have done with the money if you had had it?-There is many a thing that can be done with money.

319. But had you any particular reason for wanting the money instead of the goods? Did you not want the goods?-I could have been doing at that time without the articles that I got; but I just had to take them, because I could get no more than 2s. in money on the shawl.

320. Is that the usual practice in your dealings with the merchants?-Not always. Sometimes I have seen me getting a few shillings more from her; and at other times, if she did not have a particular order for the articles, she seemed not to be willing to give any, money at all.

321. How do you square your accounts when you get goods in that way? For instance, when you sold that 12s. shawl and got the 2s. in money, did you also get so many yards of cloth?-Yes; of print.

322. At how much?-At 7d. per yard. I also got some wincey.

323. Did that balance the account exactly?-Yes.

324. You got what made exactly the 10s. worth?-Yes.

325. Do you generally take just so much cloth as makes up the value of the shawl?-Yes; generally.

326. Do you do anything else in the way of working for your living than by knitting these articles?-Yes. I am married. 327. Then knitting is an extra sort of thing with you?-Yes.

328. Have you tried any of the other shops in the town to see if they would give you money for your hosiery?-No, none for a good while back; but it is not very much that I can do at it, on account of the house-work. My husband is a shoemaker.

329. Have you ever got lines for your shawls?-No: I generally settle up for the whole in goods at the time when I sell the shawls.

330. Is that all you want to say?-Yes.

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Lerwick, January 1, 1872, Mrs. JEMIMA BROWN or TAIT, examined.

331. Are you a knitter in Lerwick?-Yes.

332. Do you live with your parents?-Yes.

333. What is your father?-A shoemaker.

334. And you knit for your own benefit?-Yes.

335. For whom do you knit-For Mr. Robert Linklater.

336. What kind of goods do you knit?-Generally veils.

337. How much do you make in a week?-Sometimes 3s., and sometimes not so much, just according as the merchant buys the articles we make.

338. Is it his worsted you work?-Yes.

339. And he pays you so much for the work you put upon it?- Yes.

340. What is the value of the work you put upon the veil?-The last veils I made I got 9d. apiece for them.

341. Does what you get for them depend upon the size of the veils?-A good deal. These were the largest veils of all.

342. Then you will sometimes make four or five of them in a week?-I just made three of these. They were large ones.

343. How often do you get settled with for your work?-We have a pass-book, and the merchant lets it go on until he thinks we have got goods up to the value we have knitted for. He then makes up the book. [Produces pass-book in name of Harriet Brown, and another in name of Amelia Brown.] These are my sisters. One book served for the whole of us.

344. Did any one tell you to come here and bring those books?- No; I just heard what was to be done, and I came of my own accord.

345. These books contain the goods which you have purchased from Mr. Linklater?-Yes.

346. The last one begins on April 16; 1870, and is added up in January 1871. The amount at your credit is £5, 5s. 2d.: what does that mean?-It means, that we have knitted articles to that amount, and we have also got goods of that value. That was a square balance. The articles we have knitted bringing out that sum, are entered in a separate account at the end of the same book.

347. Is that account the same as appears in Mr. Linklater's books?-Yes.

348. It is-April 16, By balance at account, 10s. 111/2d.; May 5, twenty veils at 1s., £1: are these entered at the time you hand them back?-Yes; I took twenty veils to Mr. Linklater at that time.

349. The next entry is-September 6, twenty veils at 1s., £1. I thought you said you got 9d. for the largest veils you made?-Yes, for the largest size; but the veils I took in then were finer work, and the price for them was 1s. each.

350. Then-December 29, twenty veils at 1s, £1; March 30, two shawls at 3s. 6d, 7s.; August 19, nine veils at 1s., 9s.; same date, one shawl, 3s. 6d.-in all, £5, 10s. 51/2d. There is deducted £5, 5s. 2d., leaving a balance in your favour of. 5s. 31/2d.; and then the account begins again, and is continued down till December 26?- Yes.

351. Do you live with your father?-Yes.

352. Therefore you don't want much money for your own purposes?-We can never get any money. We would be very glad to get it if we could.

353. Have you asked money for your shawls instead of goods?- Yes.

354. What answer was made to your request?-That he never gave any money, and that he could not give it.

355. Was it not because you had this account, standing against you that he refused to give you any money?-No. The merchants don't give money to anybody, unless it be just to favourites.

356. At August 19 there was 5s. 31/2d. at your credit: did you not ask for that in money?-No; I did not ask for money then, but I had asked for it before.

357. I see that on August 19, when you were settling up, and when there was 5s. 31/2d. due to you, you took a hat and feathers, some velvet, and a jacket. You got a great deal more then than was due to you-Yes; because we had a number of veils knitting for the merchant at the time, and they all go into the account for the goods we get.

358. You say you did not ask for money at that time: did you not want it?-We always want it; but we never got it when we did ask for it; and it is no use always asking for it.

359. When did you ask for it last?-Some time in 1871.

360. I see there are no goods entered in your book as having been received by you from Mr. Linklater between January 1871 and October 1871: had you stopped working for him during that time?-I was in the south then.

361. But your sister was here?-Yes; but she was not knitting any. She was very sickly.

362. Is there anything else you want to say?-No.

363. Your sister Amelia is here to make the same statement that you have now made?-Yes.

Lerwick, January 1, 1872, BARBARA JOHNSTON, examined.

364. You have come from the parish of Sandwick?-Yes.

365. How far is that from Lerwick?-About thirteen miles.

366. Who do you live with there?-I live with my mother, Mrs. Johnston. My father is dead.

367. How many of a family are there of you?-I have two brothers and a sister in the south and there is a sister at home besides myself.

368. You do some work in knitting?-Yes.

369. For whom do you work?-For Mr. Robert Linklater.

370. Do you always work for him?-Yes. I work for nobody else.

371. Have you a pass-book?-No.

372. How long have you worked for Mr. Linklater?-For some years. I cannot say the number exactly.

373. Do you get wool from him, or do you supply it yourself?-I get the worsted from him, and I am paid by him for my work.

374. What kind of wages do you get?-I get 10s. for making a big shawl.

375. That is not the finest quality of knitting?-No; it is about the coarsest.

376. Is it always shawls that you work at?-No; sometimes I make veils.

377. When you take your work back to Mr. Linklater, are you paid for it in money or in goods?-In goods.

378. Do you sometimes ask for money?-Yes.

379. What has he said to you when you asked for money?-He says he never gives it, and that he won't give it to me. I got 2s. from him today; but that is all I ever got, except, I think, one sixpence before. I also got the offer of a pass-book to-day. I had never been offered one before.

380. Was it after you had seen me this forenoon that you got the 2s. and the offer of the pass-book?-Yes.

381. When you get your worsted, is there a bargain made between the merchant and you about the payment you are to receive for the work?-No. I have just an idea what I think the thing will come to; and then, when I come back with it, he gives me what he likes.

382. You don't make any bargain beforehand?-No.

383. But you might do so if liked?-He won't do it. I have asked him, but he said he would see the thing when I came back with it.

384. I suppose, he wants to see the quality of the work before he pays for it?-Yes.

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385. Did you take the pass-book that was offered you today?-No.

386. Why?-I had no particular I reason for not taking it.

387. Did you not want it?-I thought I would not mind it to-day, as I had never had one before.

388. Do you remember the last time before to-day when you went to Mr. Linklater with some of your work?-Yes.

389. How much was due to you at that time?-I think he was due me about £1.

390. That would be for more than one shawl?-Yes; it was for some veils about four months ago. I have made two shawls for him since, and some veils.

391. But the last time you went with your work, how much was due you?-I think there would be about £1.

392. Did you ask for money then?-Yes.

393. Who did you ask it from?-Mr. Linklater.

394. Was it from Mr. Linklater himself, or one of his people?-It was either from Mr. Linklater or from Mr. Anderson; I don't remember which.

395. What was said to you?-He just said that he would not give it, as he never gave any.

396. What goods did you get?-Some stuff for a dress, and some tea and cotton.

397. Had you made up your mind before you went there as to what you wanted to buy?-Yes.

398. And you got what you wanted?-I had to take what he had. I had no other chance.

399. Did you want these goods at that time?-If I had got the money, I would not have bought them at that time.

400. What would you have done with the money?-I would have bought grocery things-things that he did not have.

401. How do you get provisions when you want them?-My mother has a farm, and I work with her.

402. You sometimes work out-of-doors?-Yes.

403. How do you pay your rent for the farm?-My mother sometimes sells an animal, and pays the rent with the price.

404. To whom does she sell these animals?-To any one she can get to buy them. I don't know any one particularly to whom she sells them.

405. Whose ground are you on?-Mr. Bruce of Sand Lodge.

406. Is there any one in your family who goes to the fishing?-No; my brothers are all in the south.

407. Do you sometimes exchange for provisions the goods you get from Mr. Linklater for your hosiery?-No; I always get provisions home with me without changing them.

408. How is that? Have you some money?-Yes. It is by the farm that we have it.

409. Have you ever had occasion to exchange your goods for provisions?-No.

410. Do you know whether that is a common practice in your district?-I don't know.

411. Have you ever received a line instead of goods?-No.

412. Have you ever asked for a line?-No.

413. You say that to-day you took a shawl to Mr. Linklater, which he had ordered, and that you got from him along with goods?- Yes.

414. What was the value put upon the shawl?-10s.; but I had had a shawl in with him before and some veils since I was in the town last.

415. Had these been paid for?-No.

416. Then what was the whole sum due to you day?-I think it was £1, 2s. 6d.

417. Why did you not get your money or goods the last time you went in?-I sent the articles in then; I did not come myself.

418. So that there was no opportunity of settling with you before today?-No.

419. How much money did you ask for to-day?-I asked for 2s., and I got it.

420. Did you not want more?-I did not ask more and I don't think I would have got more if I had asked it. That was the reason why I did not ask it; because Mr. Linklater does not make it his practice give money.

421. Then when you go in any day to the merchant, you just say, 'Here is your shawl,' and you ask how much you are to get for it?-Yes.

422. What is his answer?-He just mentions whatever he likes to give.

423. But he gives you a fair value for the work, does he?-Yes; sometimes.

424. Do you think he puts too low a value on your work?-Yes; I often think that.

425. Do you think there is anything very unreasonable in the value he puts upon it?-Yes; sometimes I do.

426. How long does it take you to make a 10s. shawl-I would make one of them in a month if I was not doing much else.

427. Would it take you so long as a month?-Yes.

428. When you take in the shawl, you say the merchant puts his value upon it: do you ask him for a little more than he says, or are you satisfied with the value he puts on it?-If it is reasonable-like, I say nothing about it.

429. He does not hand you the money?-No.

430. What takes place then?-He asks me what I want in goods. If I ask for money, he says no.

431. Does he give any reason for refusing you money?-He says he never gives it, and he won't give it to me.

432. Is that the only reason that has ever been assigned to you for not giving you money?-Yes. There was one of them in the shop that said that to-day, and Mr. Linklater himself came in and gave me 2s.

433. Then you were refused money to-day by the shopman?-Yes.

434. He wanted you to take the whole amount in goods?-Yes.

435. He did so, because that was the practice?-Yes; and Mr. Linklater himself gave the 2s., and he also offered me a pass-book.

436. Who was the shopman who did that?-I think Robert Anderson is his name.

437. Did you say anything to Mr. Linklater when he came in?-I just asked him for the money.

438. You applied to him for the money when the shopman had refused it?-Yes.

439. And Mr. Linklater gave it to you without any hesitation?- Yes.

440. The 2s. was all that you asked?-Yes. I thought I would not get any money, because I had been denied it before.

441. Did you take the pass-book that was offered to you?-No; I did not think of taking it to-day.

442. Were you thinking of not dealing with Mr. Linklater any more?-No; I have got another shawl from him to make.

443. Did you get the worsted for it to-day?-Yes.

444. Does Mr. Linklater take a note of the quantity of worsted he gives out to you?-Yes; he weighs it.

445. He knows how much it will take to make a shawl, and he weighs the shawl when it is brought back?-Yes.

446. Have you ever bought worsted for your own knitting?-No; I could not get it bought, because I was not in the way of earning money.

447. Have you tried to buy it?-I could not try without the money. He would not give worsted for nothing.

448. And you had no money to pay for it?-No; I could not have it.

449. But when you were taking back your work to him, have you never asked to take part of the value of it in worsted?-I have; and I have been refused.

450. When did you do that?-It is long ago now; but I have done it.

451. What did he say when he refused you the worsted?-That it was a money article and he could not give it without the money.

452. Was it Mr. Linklater or Mr. Anderson who, said so?-I cannot remember now, it is so long ago.

453. Has that happened with you more than once?[Page 9]-I only remember asking it once. I never did it again, when I got a denial the first time.

454. Your sister also knits, and many of your acquaintances?- Yes. I would like to speak on my sister's behalf as well as my own. She is not here, but she wants to say the same thing that I have done.

455. She wants to make the same complaint?-Yes. She is not well, and is unable to come in.

Lerwick, January 1, 1872, ANDREW TULLOCH, examined.

456. You are a fisherman at Cunningsburgh?-Yes.

457. Have you got a piece of ground there?-Yes.

458. You are a tenant of whom?-Mr. Bruce of Sumburgh.

459. Who do you fish for?-Thomas Tulloch at present.

460. Is he a relation of yours?-No.

461. Where is his place?-At Lebidden, close by Sand Lodge. There are some houses there.

462. Do you live there?-No; I live at Cunningsburgh.

463. Is Mr. Thomas Tulloch a tacks-master under Mr. Bruce.

464. What is he?-He is just a merchant carrying on business there, and he has stepped into the fishing. He sold goods before he began to it.

465. Does he keep a shop at Lebidden?-Yes, for the fishermen; and to sell to other people as well.

466. You engage to fish to him: is that for the summer fishing?- Yes, chiefly; or for the whole season, if we can follow it up.

467. Do you go to the Faroe fishing for him?-No; only to the ling fishing, in the six-oared boats.

468. What have you come here to say?-Chiefly, that we should like to have our freedom. We have freedom at present; but we are afraid of young Mr. Bruce taking the tack of the tenants into his own hands. He got a lease of the tenants from his father last season.

469. What did he get a lease of?-Of his father's premises at Cunningsburgh.

470. Then he got a lease of the whole lands of Cunningsburgh?- Yes, from his father. That was his statement the last time we settled with him.

471. What did he say then?-He said he was prepared to settle with the tenants, because he had got a lease from his father of the lands.

472. But you say you have your freedom?-Yes, at present; but we are doubtful if we can keep it, because young Mr. Bruce has taken the tenants at the place where he is living himself-at Dunrossness. He took the tenants there some three or four years ago, and he has built a house; and both we and the merchant are doubtful that he may take us into his own hand too. We rather think we might be worse off if we were taken back.

473. What do you mean by being taken back?-I mean, if the tenants were taken into his own hands again.

474. Have you any objection to the arrangement you have just now with Mr. Thomas Tulloch?-We cannot complain of it, further than that we don't know the price

we are to get until we settle. We never had any chance of knowing that from any merchant we ever dealt with.

475. When do you arrange to go out to fish?-About the beginning of May. In some years it may be a month or a fortnight earlier, just as the weather is.

476. At that time do you make a bargain with Mr. Tulloch about the fishing, to fish for him, during the whole season?-Yes. We have so much confidence in him that we do not make any written agreement; it is all done by word of mouth.

477. To whom do the boats belong that you go out in?-The boat I go in is our own. It belongs to the crew.

478. How many of you are there?-Five men and a boy.

479. How long have you had your boat?-We have had our present boat for about seven or eight years. She was a second-hand boat, about five years old, when we got her.

480. You bought her yourselves?-Yes.

481. Is the price all paid up now?-Yes; it was paid a few years ago.

482. Then Mr. Tulloch makes his arrangement with you to go to fish about the 1st of May?-Yes.

483. What is the bargain? Is it that you are to fish for him during the whole season?-No; only till Lammas that is, the end of July; and after that we stick to the herring fishing.

484. But when you are at the ling fishing you give him all your fish?-Yes; the whole. Every time we come ashore we deliver them to his factor.

485. That is for the purpose of being cured?-Yes.

486. He takes an account of them as he receives them?-Yes.

487. And the only complaint you have against Mr. Tulloch is, that you don't get settled until when?-We get settled generally at settlement time but we don't know our price until we come to settle.

488. When is the settlement made?-We are not quite settled yet for last year; but when we are called on by our landlord to pay our rent, Mr. Tulloch has no objection to give us money for that.

489. Who do you pay your rent to?-To Mr. Bruce; he is the proprietor.

490. Then your complaint is, that you don't know the price of your fish until January?-Yes.

491. Would you rather contract with Mr. Tulloch to supply all your fish at so much per cwt.?-Yes.

492. But you cannot get that bargain made?-Some of the men seem very reluctant to agree to it. A few of them have said that they would leave and go to another merchant before they would have that.

493. Does Mr. Tulloch keep a store?-Yes; he has a store, and he supplies all the fishermen.

494. What does he supply them with?-Just with material. He also keeps meal; and they take it from him, more or less, as their families require it. He keeps other things besides, such as lines, hooks, and tar for the boats.

495. Are these things which you get from the store marked down in pass-books of your own, or in the books of the store?-We can have a book for ourselves if we like. I did not bring mine with me. 496. Does the storekeeper mark the things in your pass-book as you get them?-Yes.

497. Are the quantities of fish also marked into that pass-book as they are delivered?-No; they are entered into another book which the factor keeps, and we keep the accounts in a book for ourselves.

498. You mark them down for yourselves in another book?-Yes.

499. Is that the general practice among the fishermen in your locality?-It is; and then we compare the quantities with the factor before we go up to settle.

500. Then each fisherman has two books-a passbook for his dealings with the store, and a book of his own in which he marks down the quantities of fish delivered?-Yes.

501. When you came to settle, do you generally get a large balance paid to you in cash?-Every year is not alike. If it has been a bad fishing season, and if the crops are light, then perhaps the accounts will not square. But there have been two or three good seasons lately.

502. When the accounts do not square, you mean that, you may be in debt to the fish-merchant?-Yes; £2 or so.

503. And he allows that to over, and to be paid next year?-Yes.

504. But you have no serious complaint to make about that system?-No; we cannot complain about the regulations in Shetland.

505. Could you make a better bargain with anybody else?-I don't think we could-in Shetland.

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506. Is that your fault, or the fault of the fish-merchant?-I think, for my own part, I would stick into any place where I could get the best bargain. We have been fishing for some years to some of the merchants who would give 3d. or 6d. per cwt. more for the fish than we could get in Lerwick, and therefore we have stuck by them.

507. Suppose another merchant were at hand at Cunningsburgh, would you be quite at liberty to sell your fish to him?-Yes.

508. Is there any such merchant there within reach of you?-There is another merchant close by, named James Smith. Part of the men on the beach I belong to fish for him, and part to Thomas Tulloch.

509. Are there any other stores than Mr. Tulloch's at Cunningsburgh or in the neighbourhood?-There are some small shops that we could get small groceries from, but I do not do much with them.

510. Suppose you were to agree at the beginning of the season to sell your fish to another than Mr. Tulloch, would you have any difficulty in getting credit at his store for your supplies?-He would not like that very well.

511. Would you not get your supplies there?-No, not unless the man who asked them was one he was well acquainted with.

512. Would you be able to get them anywhere else?-I don't know. I don't think I would try to get them, unless at the place I was sending my fish to.

513. But if you had not the money yourself, would you get credit for your supplies during the summer from any other shopkeeper, either in Lerwick or Cunningsburgh?-Yes. All the fish-merchants we deal with in Lerwick I can get a little credit from up to the present day.

514. And in that way you are not bound over to Mr. Tulloch in any way?-No. We can leave him this season if we have a mind.

515. You were to say something about the herring fishing: I thought there was not much herring fishing here?-There will be nothing at all this season in Shetland. We generally fished to Messrs. Hay & Co. when we were in it.

516. Have you any complaint to make about it?-Much the same as about the ling fishing The don't like to give a stated price.

517. Where do you deliver the fish when you go to the herring fishing?-There is a small ghioe* close by our own place at Cunningsburgh. Hay & Co. send down a cooper there, and they have a booth for their stores close by.

518. What is the bargain you make with them about that?-They generally wish us to go to the fishing, and they will pay us accordingly.

519. What do you do about a boat?-We use the same boat as we have in the ling fishing.

520. Then your only complaint about the herring fishery is, that you don't know the price until settling time?-Yes. But there has been no herring fishery on the island at all this season, to speak of.

521. Do you require advances of money at all during the season?- We are often in want of a few shillings.

522. How do you get that?-The man we are dealing with just now (Mr. Tulloch) has never said no, so far as what we asked was reasonable. I got an advance of £2 from him last season to buy a cow. We were out of milk that season, and he did not refuse me the money when I asked it.

523. Do you get advances from Messrs. Hay also when you need it?-1 don't think they are so very frank about that, and I don't like to ask it; but they will give us any

small thing we need from their shops.

* <Gio>-A deep ravine which admits the sea.-<Edmonstone's Glossary>.

524. Do they supply you with goods also?-Yes.

525. Where is their store from which you get the goods?-There is their shop in town.

526. Do you come to Lerwick for them?-Yes.

527. Do you run an account there?-Sometimes we do, and sometimes not; but we have not much to do with Messrs. Hay on that footing.

528. You said that your reason for coming here and offering to give evidence to-day was, that you were afraid of young Mr. Bruce taking the fishing into his own hands?-Yes; that is the thing we find to be most oppressive, if it was coming to be the case.

529. Is it the general opinion in the country that he has undertaken to manage the fishings on his father's estates?-He addressed himself so in the note he gave us. He called himself general merchant and fish-curer.

530. Did he give you intimation of that one year at rent time?- Yes; that was last year.

531. But he has not yet taken the management of the fishing at Cunningsburgh?-No.

532. Has he fishing establishments elsewhere?-He has-at Dunrossness. He has taken all the tenants there into his own hands. The property, I daresay, is twice as large as Cunningsburgh.

533. Do you know from your own knowledge whether the tenants there are obliged to fish for him?-Yes; they are fishing to himself.

534. Have they no choice but to fish for him?-I don't think it. As far as my knowledge goes, they have not.

535. Are you acquainted with any of the fishermen there?-I know a little about them, from passing them on the road.

536. Have they ever complained to you about the state of matters at Dunrossness?-I cannot say much about that, except that they think they would have been fully better with their freedom.

537. Have they not got their freedom?-They cannot have their freedom when they are fishing to him.

538. But they may fish to him of their own free will?-They might; but I think he has gripped them so that they cannot have their freedom.

539. That, however, is only your own supposition?-I think it is true. It is so true that both the merchant and us are afraid that he will grip us too.

Lerwick, January 1, 1872, SIMON LAURENSON, examined.

540. You are a fisherman at Cunningsburgh?-Yes.

541. Do you fish for Mr. Tulloch?-No; I fish for James Smith.

542. You have heard the evidence of the previous witness, Andrew Tulloch?-Yes.

543. Is the statement you wish to make very much the same as his?-Very much the same. We want to know, as British subjects, whether, if we pay our rent annually, we are entitled to our freedom.

544. You mean, whether you are to be allowed to fish to any person you choose?-Yes; to fish to any person, or to work at any kind of work for which we have a mind.

545. Have you been told by young Mr. Bruce, or any one else on his behalf, that you are not to have your freedom?-No. We only got a hint of it from the fish-merchant.

546. And your alarm has been excited by what you have heard from the people at Dunrossness?-Yes.

547. Do you know what Mr. Bruce's system is with the tenants under him there?-I cannot say exactly, except that they are not well satisfied with it. At least I know that some of them are not satisfied.

<Adjourned>.

[Page 11] Lerwick: Tuesday, January 2, 1872.

LAURENCE MAIL, examined.

548. You are a fisherman at Scatness, in Dunrossness?-I am.

549. Are you a tenant of land?-Yes.

550. Under whom?-Under Mr. Bruce of Sumburgh.

551. How much rent do you pay?-For the present year I pay between £10 and £11 of rent.

552. Have you more land this year than usual?-Yes; I have more than I used to have.

553. Do you fish in the home fishing?-Yes.

554. Do you fish in the Faroe fishing?-No; I don't go to it.

555. How long have you been at Dunrossness?-Ever since I was a child.

556. Have you always been in the same house?-Yes; except for about two and a half years.

557. What is your age?-I am thirty-eight years old.

558. You have come here today to make some statement about the system of fishing?-Yes.

559. What is the complaint you wish to make?-There is one thing we complain of: that we are bound to deliver our fish, wet or green, to the landlord.

560. That is, you have to deliver the fish as they are caught?-Yes; of course we have to take out the bowels and cut off the heads: it is the bodies of the fish we give. We think it would be much better if we had liberty to dry the fish ourselves, as we used to do formerly.

561. To whom are you bound to give your fish?-To Mr. Bruce, our landlord.

562. Is he a fish-curer or fish-merchant?-Yes.

563. Is it Mr. Bruce or his son that you are speaking of?-It is young Mr. Bruce. He is the landlord or tack-master. His father is alive; but I think young Mr. Bruce has got power from his father to manage the tenants according to his own pleasure.

564. Do you pay your rent to young Mr. Bruce?-Yes.

565. And does he give you a receipt for it in his own name?-We settle once a year with him for our fishing, and for the store goods we have got, and rent and everything together.

566. Do you get an account for the whole?-He generally gives us a copy of our account. Sometimes, perhaps, he does not do so; but he will give it if we ask for it.

567. Have you got a copy of your account for any year with you?- I have not got one here, but I will send one.

568. Is that all you have got to say on the subject of your complaint?-No; I have something more. Of course, as we are bound to fish for Mr. Bruce, a man, unless he has money of his own, is shut up to deal at Mr. Bruce's shop. His credit is gone at every other place, and that binds us to take our goods from his store; and generally the goods there are sold at the highest value. Meal, particularly, has for some years been 4s. a boll above what it was in Lerwick; and very often, when we ask the price of goods at the time we get them, they do not know the price which they are to charge us, and we never learn what the price is until we come to settle.

569. Is there any other store in the neighbourhood from which you could purchase at a cheaper rate?-There are some other stores in the parish that we could purchase from.

570. Where is the store situated that you are speaking of?-It is situated not very far from us-perhaps about a mile or more from Scatness.

571. Is that the most populous part of Dunrossness parish?-No; Scatness is at the very land's end, near Sumburgh point.

572. Are there many fishermen there?-There are good many. There is a population down that way of nearly 500, most of whom are fishermen; and out of the whole lot of them there was not a man who would come here and represent their case except myself. Every man among them was frightened he would get his warning if he came forward.

573. How do you know that?-They said so themselves.

574. Was there any meeting on the subject?-Yes; there was a meeting held last Friday night.

575. What were the names of the men who said they were afraid to come?-There was one Sinclair Cheyne: he said that perhaps they might get their warning; and I think Robert Malcolmson also signified something of the same kind. However, I know it was the general feeling among the whole lot of them.

576. Was there any particular ground stated for that apprehension?-I don't know. Of course every one suspected that if the landlord heard that they were coming forward with any case against him, he would warn them out. That was the general suspicion.

577. Has the landlord or his factor ever told you that a man not dealing at the store, or refusing to deliver his fish to him (the landlord), would be turned out of his farm?-The landlord never told me exactly that if I did not fish for him I would be turned out, but I have seen an evidence of that in the case of a neighbour.

578. What was the name of that neighbour?-James Harper. His son dried a few hundredweight of fish for himself and gave them to Mr. Bruce, and on that account his father was warned.

579. Do you say that the father was warned although the son gave the fish to Mr. Bruce?-Yes, he gave then to him dried; and because he did not give them to him wet, his father was warned.

580. When was that?-I think it was seven or eight years ago; and, if I am not mistaken, the father had to pay 30s. so that he might sit still.

581. But he did sit still?-Yes; he is there yet.

582. Do you know anything about the case of a James Brown?- Yes; it was reported, I believe, to Mr. Bruce that Brown had given some fish to some other merchant, and directly his house was put up for let.

583. In what way was it put up for let? Was it advertised?-Yes; it was advertised at the store, as it was a public place.

584. Did you see the notice?-No; I did not see it, but I was informed that some notice was put up. The thing was found out to be false, and Brown got leave to stay where he was.

585. How long ago was that?-I could not exactly say, but I think it was somewhere about eight or ten years ago.

586. Have you known of any person being warned off the ground for not dealing at the store?-No; there is no compulsion about that. We have liberty to deal at any place we like; but when our credit is cut off the way I have mentioned, there is no use in having that liberty.

587. You say your credit is cut off because you are compelled to fish for the landlord?-Yes.

588. Therefore that is virtually compulsion to deal at the store: is that what you mean to say?-Yes; of course it comes to that. Suppose we have liberty to deal at any place we like, still if a man does not have money his credit is cut off with any other merchant, so that he must deal at the landlord's store.

589. When you deliver your fish, do you get any money that you want?-Yes. Mr. Bruce always gave me money when I wanted it, if he had money of mine in his hands; indeed he always gave me what money I asked, whether I had any to get or not. I always found him very generous in that way.

590. Therefore, whenever you wanted money for your fish you got it, even although it was a long time before settling day?-Yes; Mr. Bruce will give money at any time throughout the whole season, especially to men that he knows have it to get.

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591. You have no complaint to make about that?-No.

592. The fishing, I understand, begins in April?-Yes.

593. And when does it end?-About September.

594. Suppose you wanted to draw all the money, or about all the money, that was due to you in August or September, is it likely that you would get it?-If I did not have very much to get, perhaps I might get it all, or perhaps more; but if I did have much to get, I don't think he would be inclined to give it all.

595. If you wanted anything, and could not get the money, would you be obliged to take the goods out of his store?-Of course if I could not get money from him, and was requiring the goods, I had no other chance than taking them from the store.

596. If you wanted a supply of provisions or clothing, you would have to get them there?-Yes.

597. Do you get both provisions and clothes at the store?-There is not much clothing there.

598. Where do you get the rest of your clothing?-At any place where we can get it cheapest when we can have a few shillings in hand.

599. Where are the other stores in that district?-There is a man, Mr. Gavin Henderson, who has a store about four or five miles from us; and I believe he generally sells things at as cheap a rate as they can be got in the country.

600. Have you dealt at his store?-Yes; occasionally.

601. Do you find the goods that you get from Henderson to be cheaper than those in Mr. Bruce's store?-Yes; they are cheaper than we can get them at any other place.

602. Give me an instance of that: have you bought meal at both places?-No, I have not bought meal from there.

603. What have you bought at Henderson's store?-I have sometimes bought leather for making boots and shoes.

604. Do you not buy your shoes ready-made?-No.

605. You buy your leather, and get somebody to make them?- Yes.

606. What is the difference in the price of the leather at the two places?-We generally think that we can get it a few shillings cheaper at Henderson's store than we can get it elsewhere.

607. Do you mean that the leather for a pair of boots is a few shillings cheaper at Henderson's store than at Mr. Bruce's?-Yes.

608. Is there any other article you can specify on which there is a difference of price?-I don't know shout anything else in particular.

609. Where do you get your bread?-We buy all our meal, and bake it for ourselves.

610. You spoke about the meal being 4s. a boll cheaper at Lerwick than at Mr. Bruce's: do you know that because you have bought it there yourself?-No; but I have asked what the price of the meal was in Lerwick-sometimes when I was there, and sometimes from people that I could rely upon. Of course we did not know what the price of Mr. Bruce's meal was until we came to settle.

611. But you found out at settling time that Mr. Bruce had charged you 4s. more per boll than meal was selling for at the same time in Lerwick?-Yes.

612. Are you quite sure of that?-Yes.

613. Is the quality of meal from the store good?-Generally it is;

614. You have no fault to find with the quality?-I have no complaint against it or against the quality of any of the goods sold there; they are generally good.

615. What is the price of a boll of meal at Mr. Bruce's store just now?-I cannot say. There is not much meal bought at the store about this time. Most of us have small farms of our own from which we get meal.

616. Then it is generally in summer that you buy meal from Mr. Bruce's store?-Yes.

617. What was the price of meal during last summer?-I cannot say, because I had none from them last summer, except the fourth of a boll.

618. What was the price of that?-I won't know the price of it until settling time. I don't think any man dealing there knows the price of his meal until that time.

619. Is the only compulsion upon you to fish for Mr. Bruce, that you are afraid of being turned out of your holdings?-Of course.

620. If you did not fish for him, or if you sold your fish to another, would you have to pay liberty money?-I don't think there is anything of that kind done with us.

621. You have no written leases?-No. We got the offer of a lease last year. But it would have made us worse than we are, because Mr. Bruce would give a lease for fifty years; but he had it in his power every ten years to raise the rent, so that it would have been double at the end of the fifty years.

622. But you had it in your power to refuse that?-Of course; and we did refuse it.

623. But you had it in your power to refuse at the end of the ten years, as well as at first, to pay the increased rent?-No. That was the condition he offered to give us the lease upon. Besides, he was to have it in his power to cause any man who took a lease to make such improvements as he thought proper; and if he did not make the improvements then Mr. Bruce was to make them himself, and charge the men a certain interest.

624. Was the lease which he offered you in writing?-No, it was in print. I will send a copy of it.

625. You say there is no liberty money paid in your district now?-No. My father paid 50s. of liberty money at one time; but the rents have been raised, so that the liberty money is included in the rent now.

626. How long ago was that?-I think it is about ten years since the rent was raised.

627. Have you any other reason than you have stated for supposing that you will be turned out of your ground if you fished for another than Mr. Bruce?-It is a general belief that we would be turned out.

628. But I want to know the ground of that belief. How long is it since Mr. Bruce took up the business?-Eleven years.

629. Was there at that time any intimation made to you or to the other tenants that you were expected to hand your fish over to him?-There was a letter from old Mr. Bruce sent round to all his tenants. One letter served for them all. If I am not mistaken, the officer went round among them with it.

630. Did he show you the letter?-He read the letter; and in it Mr. Bruce stated that he gave his tenants over into the hands of his son. His son became his tack-master.

631. That letter was not delivered to you?-No; I don't think it was.

632. Was there not a copy of it sent to each tenant?-I don't think there was. It is eleven years ago; and I don't remember any of the particulars that were in it.

633. Do you mean to say that that letter was the beginning of the understanding which now exists about fishing?-Certainly it was.

634. What did it say about that matter?-I really cannot say now what was in the letter.

635. Did it intimate that he had handed over the Dunrossness tenants to his son?-Yes; I think that was the purport of the thing.

636. Did it say anything about the fishing?-It was understood that he handed over the fishing. At that time there were different merchants in Lerwick who were receiving fish from the tenants, and they had all to remove their goods from that district.

637. Had they stores?-Yes, they had stores and goods for supplying the fishermen; and they had all to remove except Messrs. Hay & Co.

638. Were these merchants warned out?-I cannot say.

639. I suppose they paid rent to Mr. Bruce for these stores?-Yes; at least for liberty to have the stores there.

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640. Who were these merchants?-Hay & Co. were put out of the store that Mr. Bruce now occupies.

641. But they have a store at Dunrossness yet?-Yes, they have a store there.

642. How far is it from you?-I think about a quarter of an hour's walk.

643. Is it nearer your place than Gavin Henderson's store?-Yes.

644. Is Hay & Company's store on Mr. Bruce's property?-Yes; but they have a lease of it, otherwise I believe they would not have been there.

645. Can you not sell your fish to Messrs. Hay & Co.?-No.

646. From whom do they buy fish in that quarter?-The tenants of Mr. Bruce of Simbister, through the parish, have liberty to sell their fish where they please, and some of them are sold to Hay & Co.

647. Have you ever been prevented from selling your fish to Messrs. Hay?-I never tried to sell my fish to any other person than Mr. Bruce since he took the fishing.

648. Do you know if any man has tried to do that?-Yes; there are various men who have sold a few to other merchants. On one occasion young Mr. Bruce asked me whether I had sold any fish to any other person than him.

649. When was that?-It would be about half a dozen years ago. I told him I had sold a little, and I did not think I was doing any sin before God or man for doing it.

650. You were not turned out for that?-No.

651. Have you any grievance in Dunrossness with regard to whales?-Yes, we often drive whales on shore there; and after they are killed and pulled ashore, and the oil all taken out, the landlord takes one-third.

652. But you are allowed to sell the other two-thirds?-Yes.

653. To whom do you sell the two-thirds of the oil?-Generally to merchants in Lerwick.

654. How are you paid for that?-Not very well at the present time.

655. Are you paid in money?-Yes; in cash. Of course it comes through the proprietor's hands.

656. Does it enter into your annual accounting with the proprietor?-Yes.

657. The proprietor gets the whole money for the oil, retains his third, and hands you over or puts to your credit the remaining two-thirds?-Yes. Of course if a man requires the money to clear his way with the proprietor, it answers that end. If not, then the proprietors pass over the money to him.

658. Do you really think that if the proprietor had no store there, and you could buy your dry goods and provisions from anybody you like, you would be better off with respect to what you buy?- No; we could not do without the proprietor's store, because, if we have to give our earnings to the proprietor, we are obliged to take goods from his store in return.

659. But supposing you had liberty to sell your fish where you pleased, and to buy your goods where you pleased, do you think you would be any better off than you are?-Yes. There is a man named Laurence Leslie who went to the fishing in the same boat with me last summer. He lives in Lerwick, and was a free man, and he dried his fish for himself, and after he had paid for salt and curing he had about £5 more than any of us.

660. Do you mean that he had about £5 more from the home fishing than you had?-Yes.

661. Can you tell now the proceeds of your last summer's fishing?- We will be paid the price that has been paid already in the country.

662. But you don't know yet what you are to get?-No; Mr. Bruce said at the commencement that he would give us the currency of the country. Now Mr. Bruce is one of the greatest fish-dealers in the country, and of course he has it so far in his power to make the currency; but it is likely we will get the same as the other merchants are paying.

663. Then, in speaking of the sum which Leslie has earned more than you, you are calculating in this way: you know the price which other merchants have paid, and you know the quantity you have delivered?-Yes; and we know in that way what the amount will be.

664. What do you think the amount of your take will be?-About £18.

665. You think your fishing for the whole of last season will be £18, at the prices which are going in Lerwick?-Yes.

666. And you know how much Laurence Leslie has got?-Yes.

667. Had he about the same quantity of fish as you-Yes; he had the same quantity divided green.

668. What quantity had you?-I cannot exactly say. We had so much ling, so much cod, and so much saith.

669. You say he was in the same boat with you: were not all the boat's crew obliged to fish to Mr. Bruce?-All but that one man.

670. You separated your fish: did you just give Leslie his proportion of the whole fish in the boat?-Yes. We kept an account of his fish and of ours, and we gave him his share; and then he dried his part for himself.

671. How many men were in the boat?-Six.

672. Then, when you came to shore, you delivered five-sixths of the fish to Mr. Bruce, and Leslie got one sixth?-Yes; that was the way it generally went. Sometimes we would give all the fish to Mr. Bruce, and sometimes all to Laurence Leslie, and we kept an account; so that we could put the thing all right in the end.

673. Did you do that among yourselves?-Yes.

674. How did Leslie happen to go in that boat among Mr. Bruce's men?-Because he belonged to the place originally, and he agreed with us to go. He only left the place last year.

675. Has he not had a farm there for the last year?-No.

676. And therefore he did not consider himself bound to deliver his fish to Mr. Bruce?-Yes.

677. Who did he sell his fish to?-To Hay.

678. Were they cured when he sold them?-Yes. Mr. Bruce would not allow him to weigh his fish on his scales and weights, because he would not give them to him.

679. Who forbade him?-Mr. Bruce's factor.

680. Was that Mr. Irvine?-It was not Mr. Irvine; it was the man who was there in his place. I recollect that one day we were a good deal put about in consequence of that. It was a very coarse day at the fishing, and Hay & Co. did not have weights at the place, and Mr. Bruce's man would not allow us to weigh the fish on his weights.

681. But you were obliged to weigh them in order to find out how much was Mr. Bruce's share?-We were obliged to weigh the fish in order to know how they were to be divided among ourselves, and they had to lie for a whole day until weights were got.

682. Do you know how much money Leslie got for his fishing?-I think the whole amount was pretty nearly £26; but then he had expenses for salt and cure to be taken from that-perhaps 30s.

683. He would also have his own time and trouble to allow for?- He had a lad for curing the fish; that is included in the 30s. Of course Leslie would have some more trouble with it than we had.

684. That makes a difference of £6, 10s. between you, whereas you said the difference was about £5?-There may be some difference of that kind; I am not exactly sure to a few shillings.

685. Was there no objection made to Laurence Leslie going in the boat with you?-They did not know that he was, not to fish for Mr. Bruce until we commenced the fishing, and then they could not object; but Mr. Bruce's rule is, that he won't take part of a boat. The whole boat must be for him; and in that way there have been men who have been forced to part company who were nearly as bad to part as man and wife.

686. After the boat's crew was made up, was any objection taken to Leslie fishing with you?-They could not object then, because we had begun to the fishing, [Page 14] and they could not get another man to take his place, even although they had objected.

687. Do you keep a pass-book, at Mr. Bruce's store for the supplies you get for your house?-No; it would be of no use for me to do so.

688. Why?-Because I do not know the prices of the goods, and they won't mark them down themselves.

689. But they would mark the quantities of the articles you got, would they not?-No; they would not be bothered with that.

690. Have you ever asked for a pass-book?-Yes; I had a pass-book, and I had to drop it, because Irvine said he would not be bothered with it.

691. Does Mr. Irvine keep the store himself?-Yes.

692. Does he collect the rents on the property?-No; Mr. Bruce carries through the annual accounting himself.

693. When you go to settle with him, the books of the store are all made up by Mr. Irvine; and does Mr. Bruce state the balance to you?-Yes.

694. Does he show you how it is made up?-Mr. Irvine tells us the amount we have had from the store, and hands that in to Mr. Bruce. Mr. Bruce enters that against us along with the rent, and tells us the balance.

695. What means have you for checking that statement of his? How do you know whether it is correct or not?-We don't have the chance of knowing whether is correct or not.

696. Do you not know how much goods you have got?-Perhaps we might; but we cannot know the price of the goods.

697. But you might know how much goods you have got, and how much fish you have delivered, and how much you have to pay?- But we don't know the price of the goods.

698. Do you not know the price of the goods at the end?-We hear it read over as fast perhaps as it can be read.

699. Do you not get a copy of it?-Not of the shop account.

700. Have you ever asked for one?-No.

701. I thought you told me that you had a copy for some years?- Yes; from Mr. Bruce, but not from Mr. Irvine, for the store. I have had a copy of my account from Mr. Bruce for the whole thing, and it contained a sum for the goods got from the store; but it was all one sum.

702. It is a slump sum, and does not show the different articles?- Yes; that is the account which I promised to send.

703. You say you have asked for a pass-book, and have been refused it?-Yes; I had one, and Mr. Irvine threw it back again, and said he would not be bothered with it.

704. When was that?-I think about two years ago.

705. You brought a pass-book and handed it to Mr. Irvine, and asked him to put your account into it as the articles were furnished, and he refused to do so?-Yes; I wished to have a knowledge of how I was going on.

706. When does the annual settlement take place?-Generally in February or March.

707. Where do you meet for the purpose of settling?-At Sumburgh, at Mr. Bruce's office.

708. Has he an office in his own house?-Yes.

709. Are all the people summoned to meet there on a particular day?-There are certain men called for a particular day, according as he can get through them,-so many men for each day.

710. How long does it take you to settle with him?-Perhaps three or four hours. It is possible I might be three or four hours with him myself. Generally three men go in a boat, and the three men would probably take six hours, or perhaps only four hours.

711. You said there were six men in your boat last year?-Yes, there were six in our boat, but three is the usual number in the smaller boats.

712. And they will perhaps all go together to Mr. Bruce?-Yes, the men in every boat go together; and Mr. Bruce gives us every chance of being satisfied with our accounts that he possibly can.

713. Except giving you a note of them?-He will give us a note.

714. A short note; but he won't give you the full account?-We don't get the full account from the shop, but that, of course is not in Mr. Bruce's hand.

715. He only gets the sum-total due at the shop?-Yes; and he has the rest in his own books. The rest of the balance is in his own hand, and of course he gives us every satisfaction about it.

716. But the shop is his too?-Yes.

717. Did you ever ask him to let a pass-book be allowed you, or an account to be given you at the shop?-No; I never asked him for that.

718. Did you ever complain to him that you did not get it?-No.

719. Did you ever complain about any of the sums brought out in the shop account as not being due by you?-No, I could not do that, because I could scarcely tell whether it was right or wrong.

720. In fact you trusted to the honesty of the shopkeeper?-I was obliged to do that.

721. Then you say that you never see any statement of your account for goods supplied to you at the shop at all?-None, except the total. The total is handed in to Mr. Bruce at settling time.

722. Is there anything else you wish to say?-There is one thing I would like to ask. In consequence of my coming here, I expect nothing but that I will be turned off; and I would ask how I am to proceed.

723. I don't think you need be afraid of that; but if there is anything done to you in consequence of the evidence which you have given here, you had better write and let me know. Of course I am only to be here for a short time; but it would be my duty to communicate the fact to some of my superiors. There is one other thing I would like to mention: that any amount of liberty would be of very little account in Shetland, so long as the proprietors have power to turn off men at any time when they have a mind to do so.

724. At the end of the summer fishing is there generally a balance in your favour at the accounting between you and the landlord?- Sometimes there is, and sometimes not. I believe I generally stand about half and half.

725. Do you mean that if your fishing is worth £18, your account at the store and your rent will be about £9 or £10?-No; there are some years in which my account at the store, and my rent, are above the whole amount of my year's earnings,-while there are other years when my earnings are above my shop account and rent.

726. When the year's earnings are less than your account, is the balance written down against you for the next year?-Yes.

727. Then that is an additional reason why you are bound to fish to your landlord, because when you are in his debt you cannot very well sell your fish to another?-If we had our liberty, we could sell our fish to another merchant.

728. But suppose you had liberty, would not the fact of your being in debt to your landlord still be a sort of obligation upon you to fish for him?-It would still bind us, of course.

729. Does that cause operate, in fact, to tie the fishermen to the same merchant?-When the men have had their liberty, that has been the case.

730. Was it the case before Mr. Bruce took the fishing into his own hands?-Yes.

731. So that many men in those times would be unable to sell their fish to another merchant than Messrs. Hay or Mr. Robertson, who had the fishing then?-Yes; of course there were times when the fishing was small, and perhaps men required a lot of meal, and they could not get it without going into debt; and when merchants supported them in that way, the men could not do better than hand over their fish to the merchants to whom they were in debt.

732. So that there was even then a certain obligation on the men to fish to a particular merchant?-[Page 15] Yes. When a man is in debt, he is under an obligation to clear his debt.

733. But your complaint is, that you are much more strictly bound now?-Yes; there was no obligation for a man to clear his debt with any merchant before now.

734. Was there then any obligation to purchase at that merchant's store?-None.

735. Except that perhaps they would not get credit elsewhere?- Exactly.

736. In those times did the men get advances in money during the season when they asked them?-Yes.

737. But you still get that?-Yes, we get that still, of course.

738. If you choose, you can get your provisions elsewhere; and if you choose to get them elsewhere, you will get all your money at the end of the season?-Yes, if we had any over; but if we had no money over, of course the merchant from whom we had to get our goods would have to want.

Lerwick, January 2, 1872, LAURENCE LESLIE, examined.

739. You are now a fisherman in Lerwick?-Yes.

740. You formerly lived at Dunrossness?-Yes.

741. And you had a piece of ground from Mr. Bruce of Sumburgh?-Yes.

742. You have been present during the examination of the previous witness, and heard the whole of his examination?-Yes.

743. Do you concur in that part of it which referred to yourself with regard to the quantity of fish you got last season?-I do.

744. What may be the total price you got for your cured fish?-We had three different kinds of fish-saith, cod, and ling. We got 12s. per cwt. for saith, I think 18s. for cod, and 20s. for ling, dried.

745. The quantity which you had to sell was the same when weighed green as that which Laurence Mail delivered to Mr. Bruce?-Of course.

746. You lived in Dunrossness for a number of years?-Yes.

747. Do you concur with the rest of the evidence which Laurence Mail gave?-I do.

748. It was all correct?-Yes.

749. Do you know a man named William Brown at Millpond?- Yes.

750. Was he a fisherman?-Yes.

751. How far did he live from your place?-I think about two miles.

752. Do you know whether at any time lately he and some other old men went fishing on their own account, and were obliged to pay liberty money?-Yes; he stated that he had been applied to for payment of liberty money.

753. How long ago was that?-I think it was three years ago.

754. Is Brown an old man?-Yes; perhaps between fifty and sixty.

755. Would he be able to come to Lerwick?-He might.

756. Would it not be rather hard for a man of his age to come this length?-I think it would be rather hard; but I think he could come.

757. To whom had he to pay that liberty money?-To Mr. Grierson of Quendale, his landlord.

758. Is Mr. Grierson a fish-merchant too?-Yes.

759. Do you know James Williamson at Berlin, Dunrossness?- Yes.

760. Is he on Mr. Grierson's land?-Yes.

761. Do you know anything about a boy of his who had gone out to service with a neighbouring farmer lately?-I know that he has a boy, but I cannot say anything about him going to service. I don't think Williamson could come here; he is in ill health at present.

Lerwick, January 2, 1872, WALTER WILLIAMSON, examined.

762. You are a fisherman in the island of Burra?-I am.

763. Do you hold a piece of ground there under Messrs. Hay & Co., who are the lessees of Burra under Misses Scott of Scalloway?-I do.

764. You are one of the men who signed the following letter which has been addressed to me:- ' Burra Isle, 1st Jan. 1872. 'SIR, We, the undersigned, desire to give evidence to the following effect, and will be glad to be informed when it will be convenient for you to receive our evidence':- 'We are bound by agreement to fish to our landlord; but no price is agreed upon until the time of settlement, which occurs about once a year. We have then to take what price is offered; and if we or our sons fish to any other person, we have to pay 20s. each yearly of '<liberty money>.' 'We can get no leases of our farms, and have to build and repair our own houses at our own expense, without any compensation when leaving the farm, or when ejected from it. 'As we settle only once a year, of course we have to buy from our landlord's shop till the end of the year, at which time we seldom have any money to get, except when we have better fishings than ordinary. 'If we capture whales, we have to pay one-third of the proceeds to the landlord. 'Those of us who have daughters engaged in knitting can testify to the fact that they are invariably paid in goods, both for the goods they sell, and also for their wages when engaged to knit for the hosiery dealers. 'We have to add, that we wish to be free to fish to whom we please, or to cure our own fish, and to receive compensation for improvements effected on our houses or farms when we leave them. 'Other details we will state when called before you. Meantime we remain, sir, your most obedient servants, 'WALTER WILLIAMSON. 'GILBERT GOODLAD. 'LAURENCE POTTINGER. 'PETER SMITH. 'LAURENCE INKSTER. 'CHARLES SINCLAIR 'JOHN NEWTON GOODLAD. 'HANCE SMITH. 'ROBERT SINCLAIR. 'JOHN POTTINGER. 'ALEXANDER SINCLAIR. 'THOMAS CHRISTIE. 'GEORGE JAMIESON. 'To WILLIAM GUTHRIE, Esq., ' H.M. Commissioner, Lerwick.' -I am.

765. You say in that letter, 'We are bound by agreement to fish to our landlord, but no price is agreed upon until the time of settlement, which occurs about once a year. We have then to take what price offered; and if we or our sons fish to any other person, we have to pay 20s. each yearly of 'liberty money.' Is that an obligation which you have entered into with Messrs. Hay & Co.?-It is an obligation that we are under, that we are bound over to them.

766. Have you signed any obligation to that effect?-I was asked to sign an obligation to that effect; but I said I could not sign to bind my sons, and that I would on no account come under that obligation.

767. How long ago was that?-To the best of my recollection, it was about eight years ago.

768. Was there an agreement to that effect handed to you for signature?-Yes.

769. And to a number of other men at the same time?-Yes.

770. By whom was it handed to you?-By Mr. Wm. Irvine, who is a partner of the firm of Hay & Co.

771. Was that in Burra or here?-It was in Messrs. Hay & Co.'s office in Lerwick.

772. Was it handed to the other men at the same time?-It was offered to them at the same time that it [Page 16] was offered to me. A certain number of them were present at the time.

773. How many?-I should think there might have been five present, exclusive of myself.

774. Did they all sign it?-I cannot say that they did, for I went out and left them there.

775. Then you are under no written obligation to fish for your landlord?-No.

776. Is there any other understanding or bargain between you that you shall fish only for him?-Yes, we were told that we must fish for them.

777. When was that said to you?-At the time, when I took a property from them in Burra.

778. How long is that since?-About fourteen years ago.

779. Who told you so then?-The late Mr. William Hay.

780. Have you ever been told so since?-I have.

781. By whom?-By Mr. William Irvine.

782. How long ago is that?-It is just eight years.

783. Was that at the same time when you were asked to sign the agreement?-Yes; it was on the same day.

784. Have you ever been told so since that time?-No; I have never sought to fish for anybody else, nor asked my liberty since then. I asked for my liberty that day when I was asked to sign the agreement.

785. Was it given to you?-No. I offered to pay 20s. if they would give me my liberty, but I could not get it for that.

786. Was any price fixed by them for that?-I offered 20s. for my liberty to fish for whom I liked, or to cure for myself, and I could not get it for the paying of the 20s.

787. Were you told what they would give it to you for?-No; they would not say.

788. Do you wish to fish for anybody else?-I should certainly wish to fish for anybody that I could get most from; but I should like especially to be the master of my own fish, to cure them for myself, and to sell them to the best advantage.

789. You mean you would like to catch and cure your own fish, and then sell them, do you?-Yes; that is what I would like.

790. Why do you, not do it?-Because we would be ejected from the place if we were not to deliver our fish to them.

791. What is your reason for supposing that?-Because we have been told so.

792. Was it on the occasion you have mentioned, eight years ago, that you were told so?-It was.

793. Have you been told since that you would be ejected if you did not deliver your fish to Messrs. Hay & Co.?-I have never since asked anything about it, so that I had no reason to be told so.

794. Has any person been ejected for selling fish to other merchants than Hay & Co., or for curing his own fish?-I think there have been such cases in Burra. I believe John Leask was ejected for not serving as a fisherman to Messrs. Hay & Co.

795. How long ago was that?-I think it would be about thirteen years since, or close thereby.

796. That is an old story. Has there been anybody ejected since?- I don't remember any one at present.

797. Do you know from your own knowledge of any threats of ejection having been made to parties who were fishing for others?-Yes.

798. Who were so threatened?-We were threatened at that very time, eight years ago, that we should be ejected if we did not sign the agreement.

799. But do you know of any threats to particular parties for particular offences since that time?-There never have been any threats made to me, and I cannot remember exactly about them having been used to others; but there are parties here who may remember better about that than I do.

800. You say further in the letter, 'We can get no leases of our farms, and we have to build and repair our own houses at our own expense, without any compensation when leaving the farm, or when ejected from it.' That does not exactly fall under this inquiry, though it may perhaps indirectly affect it; but I suppose the obligation to build and repair your own houses is part of the bargain you enter into on taking the land?-It is.

801. Are you not at liberty to make your own bargain about the land, the same as any other tenant in Scotland is?-I am not aware of that.

802. Suppose you were to object to make such a bargain, could you not leave the land and get a holding elsewhere?-It is not likely we would get a holding elsewhere.

803. Why?-We would very likely be deprecated as not being legal subjects, and the heritors would all know that we were not convenient parties to give land to. What is one reason; and another reason is, that places are sometimes not very easily got.

804. Do the same conditions exist on other properties in Shetland?-So far as I know, they prevail all over the country, or nearly so.

805. You think that if you were trying to move, you would not get free of a condition of that sort?-We might get free of it for a time, but by next year the parties to whose ground we had removed might bind us down to the same thing.

806. But supposing all the men were united in refusing to agree to such conditions, there could be no compulsion upon them?-They have not the courage, I expect, to make such an agreement among themselves.

807. To come to the more proper subject of the inquiry: you go on to say, 'As we settle only once year, of course we have to buy from our landlord's shop till the end of the year, at which time we have seldom any money to get, except when we have better fishings than ordinary.' Your settlement, I suppose, takes place about the beginning of the year for the whole of the previous year?-Yes; generally a month after the beginning of the year.

808. And at that time you settle with your landlords, Messrs. Hay & Co., for all the provisions you have got from their shop?-Yes.

809. Where is their shop?-They have shops both at Lerwick and Scalloway.

810. Does the same man keep an account at both shops?-The same company keeps a store at Scalloway and a store at Lerwick.

811. But has the same man a book in both shops?-Yes; he has a book in both shops.

812. The men deal at both?-Some men in the islands deal at both, and others, again, have liberty to deal only at one.

813. Then, at the settlement time, you settle for all the provisions you have got from the shops, and for the rent that is due for your farm, and they set against that the price of the fish you have delivered?-Yes.

814. And you say that generally the account against you is as large, or larger, than that in your favour?-Taking it generally amongst the tenants on the island, I believe it is.

815. Do you get money advanced to you in the course of the season when you ask for it?-Yes, I have always, or generally, got it when I asked for it.

816. Suppose that at the close of the fishing season-that is, in September-you were to ask for all the money that was due for your fish, or for a sum about equal to the value of your fish, would you get it?-I don't expect I would get it.

817. Have you ever asked for it?-Yes.

818. In September, or about that time?-I asked it on 1st November, thirteen years ago.

819. That is a long time ago?-That was the first year I was resident in Burra; I had been there for a twelvemonth then.

820. What did you ask for, then?-I asked for the value of the fish that belonged to a fee'd man who had been along with me for three months in autumn. I fee'd a young man for these months to go along with me to the summer fishing at that time; he was to get one-third of the fish, and I was to supply him with boat, lines, and lodging. At the end of autumn he went home, and he wanted me to introduce him to Messrs. Hay's agent, so that he might get his money.

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821. Did he want to leave the island?-He did not belong to the island; and as he was going home, he wanted to be paid, and he asked me to introduce to the agent, which I did.

822. Did you apply for his money?-Yes, as being a stranger I wanted them to settle with him; but they would not settle with him at all, I then asked for an advance of 20s. on my own account, and I would give it to him for his trouble; but they would not give that either.

823. At that time had you and he a large contra account against you in the shop?-Neither of us had any account against us at all. He told me that at the time he had not a penny taken out from either of their stores.

824. Was he offered goods at that time?-Yes; in my hearing.

825. What was said about that?-He was told to take anything he wanted out of the store.

826. Where was that?-At Scalloway, I expect, or Lerwick.

827. Can you tell me of anything of the same kind happening within the last two or three years?-I don't recollect anything of the kind happening within that time, so far as I was personally concerned.

828. Have you, within the last two or three years, always had a large account against you at the beginning of the winter?-Not of a bad debt.

829. But have you had a large account against you for goods supplied during the course of the season?-Yes; I have generally had a considerable account so far as our accounts go.

830. Was that the reason for your not asking for a settlement of it at that time?-I cannot say whether that would be the reason or not.

831. Did you know that you had got the value of your fish, or something approaching to it, in provisions?-Some of us in Burra had, no doubt, got the whole value in goods, and had even overdrawn their accounts, but others of us had not.

832. But if you want money in the course of the autumn or in the early part of the winter, do you not get an advance on applying for it at Messrs. Hay's place?-I only know of those getting it who might be worthy of it, who had not overdrawn their

accounts.

833. But they will give you money as readily as they will give you goods now?-I suppose they would in Lerwick, but I don't think they would do that at Scalloway.

834. What is your reason for supposing that?-About twelve months ago I went once, twice, and at last three times with some fish to their fish-curing place in Scalloway; and their law there was that we should only get goods for our fish, but no money.

835. Who told you that?-Mr. Gilbert Tulloch, the shopkeeper, the master of the store.

836. Is he the shopkeeper for Messrs. Hay at Scalloway?-Yes.

837. Did you on that occasion ask for money for the fish you delivered?-The last time I went up, after taking a number of small things that I was requiring, there was a shilling due to me on the fish which I had delivered, and I asked for it. Mr. Tulloch said that I knew it was not the custom to give money. I said I knew that too well, but that it could not affect him very much to give me a few pence, as he had got much more from me in the course of the year. He hung on for a little bit and then put his hand on the counter and gave it to me; but he bade me remember it was to be the last.

838. You say the amount of your account is made up in the beginning of the year: how did you know that the cost of the provisions you were getting at the time you have now mentioned came to within 1s. of what was due?-There is a misunderstanding between us there. We have an opportunity of taking goods out of their stores; but when we come to their store at Scalloway with a little fish, we get goods from them there, without them entering into the annual settlement. That is not the proper place where we deliver our fish to Messrs. Hay-the proper place is in the island of Burra itself, but we have a chance of coming to Scalloway occasionally when we have got a few small fish, and we get goods home with us.

839. Then, when you want goods, you take the fish to Scalloway?-Yes, but we can also get goods there, although we deliver the fish at the proper place in Burra.

840. In that case, do you get a line from the manager at Burra stating that you have delivered so much fish?-No.

841. Then how do they know to allow you goods?-When we take the fish up to the store at Scalloway, we only get goods for their exact value. In the case I have mentioned I got goods up to the value of my fish within a shilling.

842. Did you not say you could also get goods at Scalloway although you delivered the fish at Burra?-Yes; that is on account of the fish which we give to the local factor.

843. And the goods you get in that case go to the general account for the whole year?-Yes.

844. Then those which you deliver at Scalloway are not put into the general account at all?-No.

845. That is to say, you are at liberty to deliver your fish elsewhere than to the factor at Burra?-Yes.

846. But the only place where you are at liberty to deliver them, if you do not deliver them to the factor in Burra, is to the store at Scalloway?-Yes.

847. And you take them there if you want a supply of goods?- Yes.

848. Is there any reason for preferring that way of dealing?-We have none.

849. But have you any reason for preferring to take the fish to Scalloway and getting the goods, rather than delivering them to the factor at Burra and having the goods entered in your general account?-We have then got the pleasure of seeing our fish paid for all at once. That is all the advantage we have about it, so far as I know.

850. Have you a chance of getting more money in hand if you take the fish to Scalloway?-Not one farthing more. I have got none this year.

851. But on the other system you may still get an advance of money if you ask for it?-Yes; I believe I might get some money if I wanted it.

852. Would you get it from the factor at Burra, or at Scalloway or Lerwick?-So far as I am aware, I would only get it at Lerwick.

853. Do you purchase in that way, from Messrs. Hay, all your provisions and clothing, and everything you want for the support of your families?-As a general thing over the islands, it is only from them we can get them. It is only from them we need ask them, because we have no power to sell the labour of our hands to any one else.

854. And you have no credit with any one else?-Some of us would have credit; but the system prevents us from getting credit, because we could not pay the parties from whom we got the goods.

855. But if these parties knew that you were getting money from Messrs. Hay for your fish, would it not be possible for you to get the money from Messrs. Hay, and with it to pay the other dealers?-That may be done no doubt on a very small scale, for anything I know. I believe it is done, to a certain extent, by persons who get a few pence or a few pounds from Messrs. Hay; but it is only a few of the men who are able to deal in that way.

856. You say in your letter that you don't know the prices you are to get for your fish until the end of the year: is that so?-Yes, it is so.

857. Messrs. Hay & Co. do not fix the price until what time of the year?-They do not fix it until we settle-about a month after the New Year.

858. So that you don't know before then what you are to get?-We never do.

859. Have you ever been to agree to fish at a certain price per cwt.?-I never was asked to agree to that during the whole fourteen years I have served them.

860. Would you like to have a certain price per cwt. [Page 18] fixed before the commencement of the season?-We should like that well enough if we had power ourselves to inquire after it, but we should not like it if it was to be left in the hands of

another who had power to make the price what he pleased.

861. You also say, in your letter, 'If we capture whales, we have to pay one-third of the proceeds to the landlord.' Is that a frequent source of profit to you in Shetland?-It is not, a very frequent source. It is occasional, but not frequent.

862. What is your objection to that system?-We think that as we the fishermen, drive the whales ashore, and they are all flinched and wrought below high-water mark, we have a right to the whole proceeds. We think the proprietor has no right to anything at all, any more than he has to the fish that come ashore in our boats.

863. But when you get the whales you get two-thirds of the oil?- We do.

864. And you can sell that in any market you like-I believe we can.

865. Do you get cash for it?-Yes.

866. So that there is no truck there?-No; none.

867. Do you dispose of the oil yourselves, or is it done for you by the landlord?-I always knew of it being sold by public auction on the beach where it was landed.

868. Is it sold in lots consisting of the amount of oil which each man gets?-I always knew of it being sold in company; but it is set up in lots, perhaps of a tun, or five tuns, or half a tun, and so on, and it is carried away by the purchaser.

869. Then the landlord does not sell it you?-No.

870. How is his third set apart?-It is taken off the whole money when it has been paid by the purchasers. Any party or parties who buy the oil at auction, pay the money to the landlord, and he gets a third, and pays the other two-thirds to the fishermen.

871. Is it paid to you at the time, or is it put into your general account?-So far as I know, it is always paid at the time.

872. But that is not a common occurrence?-No. Perhaps it may not occur in the same place for ten or twelve or twenty years, or sometimes longer than that.

873. Does not the value of the oil go into the general accounts of the men at the end of the year?-I have had a share in whales on two occasions, and I believe that some of the fishermen who are in debt to the landlord will allow their shares to go into the general account. Those who are not in debt will get the money clear out.

874. You are not obliged to take that in goods?-I never knew of that being done.

875. In speaking of the fishing, for which you settle with Messrs. Hay in the beginning of the year, all your evidence has had regard to what is called the home or summer fishing?-Yes.

876. It has not had reference to the Faroe fishing-Not so much, so far as I know.

877. It is only with regard to the home fishing that you are bound to fish for them?-It is only with regard to it that I can speak, for I am not a Faroe fisherman.

878. Are the men in Burra free to ship for the Faroe fishing with any master they like?-I expect they are; but there are some of the men to be examined afterwards, who will be better witnesses on that subject than I can be.

879. The fish you take in the summer fishing are ling, cod, and haddocks?-Yes. There are plenty in the islands who fish herrings also.

880. But that is a distinct thing altogether from the summer fishing?-Yes.

881. The fishing you have been speaking to during all your examination has been the fishing for ling and cod?-I have been speaking of the whole home fishing of every kind, the herring fishing as well.

882. What do you catch in what you call the home fishing?-Ling, cod, and herrings.

883. And haddocks?-Yes; there are plenty of the men who catch haddocks also.

884. You spoke of taking some fish to Scalloway: were not these merely the small fish or haddocks?-Yes; the haddocks chiefly, and small cod.

885. Is that done at a particular season of the year?-Yes. 886. That is, when Messrs. Hay have not men at Burra to receive the large fish; or have they men there all the year round?-They have them all the year round.

887. Then why is it generally the smaller fish that you take at Scalloway?-I cannot give a particular statement why it is, except that the men get their account cleared off at Scalloway with these small fish. It is only haddocks that are taken there. The haddocks have never been taken in at their fish-curing station at Burra, so far as I know.

888. At what season of the year are these haddocks generally caught?-In winter.

889. Do they smoke the haddocks in Burra?-No; they never did that.

890. Their establishment there is only for curing the larger fish?- Yes.

891. Then, in order to get your haddocks smoked and cured, you must bring them to Scalloway, and deliver them at the store there?-Yes.

892. And that is the reason why you bring some of your fish to Scalloway?-It is.

893. Supposing you bring these fish there, is it still in your option to let them enter your general account, instead of getting goods for them at the time?-We can either take the value of them at the time in goods, or we can have them entered in our general account.

894. Have you ever asked, when bringing fish to Scalloway, to get the price of them in money?-Yes.

895. Have you asked for the whole price in money?-I don't remember that I ever asked to get the whole of it in that way.

896. Why?-Because, of course, I knew I would not get it.

897. How did you know that?-I knew it, because last year I asked only for a shilling on one occasion, and I was told by the shopkeeper that it was to be the last.

898. Then you go on to say in your letter, 'Those of us who have daughters engaged in knitting can testify to the fact that they are invariably paid in goods both for the goods they sell and also for their wages when engaged to knit for the hosiery dealers.' Have you sold goods for your daughters, or do they generally take them to the market themselves?-I have no daughters, and I cannot give evidence about the knitting.

899. You further say, 'We have to add, that we wish to be free to fish to whom we please or to cure our own fish, and to receive compensation for improvements effected on our houses or farms when we leave them. Other details we will state when called before you. That is the same complaint which you made at the commencement of your letter?-Yes.

900. Are there any other details on the subject which occur to you at this moment, and which you desire to add?-There is one thing which I desire to ask on behalf of myself and of the parties who shall be examined after me. I have been desired to ask you whether they shall be at liberty to speak here? If her Majesty's Government will give an obligation to protect them, they will speak then, and if not, they won't.

901. What is the obligation to protect them that you want?-An obligation that they shall not be ejected or fined.

902. I don't think there is any probability of that. You know you are all protected by the law, and I can give you no further protection than the law affords. The Government have it under contemplation at present to alter the law, and this inquiry is for the purpose of ascertaining whether the law ought to be altered in any respect.-If we had not been under the belief that it would surely be altered, we would not have come here.

903. Do you remember, three or four years ago, of the men in Burra getting up a memorial stating their [Page 19] grievances, and what they wanted, and having it forwarded to the agent for the proprietor of the island?-I do.

904. Were you concerned in that matter?-I was.

905. Was there any inquiry made at that time?-There was a petition sent up at that time to the trustee in Edinburgh for Misses Scott of Scalloway, by their tenants in Burra, asking for their liberty.

906. Was there any particular reason at that time for the petition being got up?-There was plenty of reason.

907. Was there any more reason for it then than at any other time? Was there any threatened expulsion, or any strict enforcement of the obligation to fish?-If my memory serves me right it was immediately after we had been asked to sign an obligation in Messrs. Hay's office to pay for our sons' labour.

908. But you said that was eight years ago?-Yes; about that time.

909. Was the memorial not sent up within the last three or four years?-No; it was longer than that, to the best of my recollection. Our petition was got up very shortly after we were wanted to sign the obligation.

910. Did you complain much at that time about the herring fishery?-I believe some of the men did but am not a herring fisher.

911. What is the usual amount of rent that you pay in Burra?-It will run from £6 to £2, 10s., or perhaps as high as £7.

912. That rent is paid for a small piece of ground?-Yes.

913. Is there a right to the pasture in the scattald besides?-Yes.

914. Your scattalds in Burra are not extensive or of much value?- No; they are of very little value.

915. Do you know of any other agreement having been signed by the Burra men, or asked from them, except that one eight years ago?-I have heard of another, but it was before I came to the island.

916. Was there any particular reason for getting the agreement signed eight years ago? Was there general renewal of your holdings; or what reason was assigned for it?-I know of no reason for it, except merely that we were to fish for nobody except Messrs. Hay & Co.

917. But was there any reason for it being signed that particular time?-I believe it was about that time, or immediately after, that Mr. Irvine came to be a partner of Messrs. Hay & Co.

918. There was a change in the firm about that time?-Yes.

919. Are there any leases given in Burra?-I never knew of any being given.

920. Do you know that most of the young men in Burra go to the Faroe fishing?-They do.

921. Do you know that they have shipped both with Messrs. Hay and with other merchants?-Yes.

922. Do they get the same terms both from Messrs. Hay and from other merchants?-I believe they do, so far as I know.

923. Do you know from your own knowledge, whether there is any objection made by Messrs. Hay to their shipping with other merchants for the Faroe fishing?-I have not heard of any recently, but it used to be objected to a few years back. There have been good fishings at Faroe for some time back, and all the agents can get plenty of men; so that there is no need for any restrictions.

924. Supposing you were at liberty to deliver your fish to any other merchant than Messrs. Hay, what reason have you for supposing that you would be better paid than you now are?-I have been a fisherman in Burra for fourteen years, and I was a fisherman in Havera for twenty years before that. There I cured my own fish, and I could do with them what I liked; and I learned there how much I could make by curing them for myself, or selling them to any one within reach who would buy them green.

925. It costs you something, both money and trouble in curing them?-Yes.

926. But, notwithstanding that, you would make more money by being allowed cure them for yourself?-We believe that, and we know it. We know that we would make more money than we have ever got.

927. To whom would you have an opportunity of selling your fish cured?-We could them to any one who would give us the most for them.

928. Are there people there who would buy them from you?-Yes, there are plenty of merchants in Shetland or in the south country who would come and buy them; and we would have a chance of sending them south at our own risk, or to our own advantage.

929. Has any one in Burra ever cured his own fish?-No; I believe no one has ever done so since Burra rose out of the water.

930. Has any one near Burra done so?-Havera is near Burra, and belongs to the same parish, and I cured my own fish there.

931. Why did you leave Havera and go to Burra?-Havera is a very small island, and it became too strait for me.

932. The population was increasing too rapidly?-Yes.

933. Had you not a holding of your own there?-No; I got married, and had to look out for a holding somewhere; and I was, by the law of necessity, compelled to move against my will.

934. Are there any dealers in Scalloway who would buy your fish from you if you were allowed to sell them?-Yes; there are Charles Nicholson and Robert Tait.

935. Do they buy fish cured?-They buy them either cured or uncured, and also what may be properly called half-cured-that is, salted but not dried.

936. Do they employ fishermen?-Charles Nicholson employs fishermen.

937. Do the fishermen who are employed by Nicholson and Tait supply their fish to them green or dry, as they like?-They only give them to them green, so far as I know.

938. But these merchants also buy cured fish from independent fishermen?-Yes.

939. With regard to your farm, do you sell any produce off your land?-We sell none.

940. What does it bear?-Oats and barley, or bere, and potatoes or turnips, and some cabbage.

941. Do you sell these things, or do you consume them yourselves?-We consume them either by ourselves, or by the stock on our farm. We have some cattle and sheep and pigs .

942. Do you sell your stock?-The cattle are generally sold to relieve the tenant's necessities, and in order to let him have a few shillings in money.

943. What is that money used for? Is it for things that you cannot buy in the store?-Yes; and sometimes for paying our rent.

944. I thought the rent was entered as part of your account with Messrs. Hay?-If our earnings are not sufficient to meet Messrs. Hay's account, or if we have

overdrawn our account with them, then we sell an animal, and the price of it is put into the account.

945. Is there anything else for which you have to sell your cattle?-I am not aware of anything.

946. How do you sell them? Is it at a roup or at a public market?-We sell our cattle where we can dispose of them to the best advantage-sometimes at the market at Lerwick, and at other times cattle-dealers come round and ask us for them. If we choose to give them to the dealers, we have every advantage in selling our cattle.

947. You are quite free to sell them where you like-Yes.

948. Have you any ponies in Burra?-Yes; a few of the men have some.

949. And you have also and poultry?-Yes.

950. You can dispose of them as you please?-Yes.

951. Is there any shop on the island?-No.

952. You have to go over to Scalloway or to Lerwick for all your goods?-Yes. We don't have liberty to have any shop on the islands.

953. Are Messrs. Hay sometimes largely in advance [Page 20] to the people on the island after a bad season?-Yes; I believe they are largely in advance in some seasons.

954. Then they will trust you for a year or two until a good season comes, and the balance is then paid off?-Yes; most commonly they do that.

955. You would not have had that advantage if you were all free to fish for anybody you liked?-We believe that, if we had our freedom, we would not require to have that advantage. We believe we would be so clear that we would be independent. Neither have we the advantage of having a shop there, and keeping the penny among ourselves.

956. Do you think the goods you get at Messrs. Hay's shop are expensive as compared with the prices you would pay for them elsewhere?-I never thought that, and I never thought them worse than we could get elsewhere.

957. But as to the price, do you think they charge more for their goods than other people?-No; I have nothing to say against that.

958. Or as to the quality?-Both as to the quality and the price I was always satisfied as I would have been with any other body's.

959. You don't suppose they charge a higher price in consequence of the long credit they give?-No.

960. You get your goods from January onwards, and they are not settled for until the following January?-That is so.

961. But then there is credit on both sides; so that I suppose there need be no higher price on that account?-That is the case, so far as I am aware.

962. Is there anything else you wish to say?-You have not asked what may be the difference on a hundredweight of fish, if we had the advantage of selling them for ourselves, as against what we get for them under the present system. I believe the difference would be between 2s. and 3s. per cwt.

963. Do you think your profit would be 2s. or 3s. more per cwt. if the fish was sold by you?-Yes; if we were free agents to act for ourselves.

964. But in the case of a man who was curing on a large scale, has he not an advantage in the way of curing cheaper than a single fisherman would have?-We cannot think he would. We know what we could, cure them for ourselves: that is a matter within our own knowledge. The merchants tell us they cure, at a dearer rate, but we cannot enter into their accounts. If it costs them so much to cure the fish, then they must cure them much dearer than we know they could be cured for by ourselves.

965. Is it from your experience in Havera, as compared with your experience in Burra, that you believe you would be 2s. or 3s. per cwt. better off by curing the fish for yourselves?-That is from my experience in Havera, and also from my experience in Burra.

966. But you have had no experience of selling your own fish cured for at least thirteen years?-Not cured; but I have had a little experience in half-cured fish since that time.

967. Have you sold fish half-cured?-Yes; I have sold a little this year.

968. Were these small fish?-Yes.

969. Did you make more of them than you would have done by delivering them to the merchant?-I did.

970. Was any objection taken by Messrs. Hay to your selling the fish in that way?-I must tell the truth: we did smuggle a few. We would not like them to know of it, but I suppose they will know of it by and by.

971. Is there much smuggling carried on in that way among the fishermen?-I believe it is done on a very small scale.

972. But the restrictions you are under do induce you to smuggle occasionally, in order to get a larger price?-Yes; and on some occasions, in order to get the ready money.

973. Do you not always get ready money for smuggled fish?-We can get it now.

974. From people in Scalloway?-Yes; but if had our liberty like Englishmen, we would have no need to smuggle.

975. Is there anything more you want to say about the matters referred to in your letter?-I think I have said all I wish to say, only that our errand in here has been undertaken under the protection of you, as a commissioner from Her Majesty's Government, who can give us our liberty; and if it had not been on that account we would not have come.

Lerwick, January 2, 1872, PETER SMITH, examined.

976. You are a fisherman in Burra?-Yes.

977. You hold some land in that island under Messrs Hay, and you fish for them in the home fishing?-Yes.

978. Do you go to the Faroe fishing also?-No; I never went there.

979. You have been present during the examination of Walter Williamson?-Yes.

980. Do you concur generally in what you have heard him say?- Yes.

981. You have been engaged in the herring fishery also?-Yes.

982. And you were one of the parties who signed memorial to the trustee on the estate of Scalloway some years ago?-Yes.

983. Can you remember how long it is since that petition was got up?-I cannot exactly say, but think it was eight years ago.

984. Was it shortly after you were asked to sign the obligation which Williamson mentioned?-Yes.

985. Do you remember the grievances that were set forth in the memorial?-Were they the same things that you are complaining of now, or was there anything additional?-There was nothing additional.

986. Was there any prohibition at that time to sell tea to your neighbours?-There was very little of it sold.

987. But was it forbidden to sell tea to your neighbours?-Yes.

988. Is that forbidden now?-We have never tried it since.

989. Who forbade it?-Messrs. Hay.

990. Why?-Because they won't allow that to be done on the island.

991. What was their reason for that? Did you want to sell tea?- We did not want to sell tea, except that we were locked up in the island, and we could not get to Scalloway every day. If a storm came on and lasted for perhaps eight days, we could not get to the shop; and some parties might have had a pound or half a pound of tea in small parcels, and they would supply it to any of their neighbours who happened be run out.

992. How did any of the people happen have much tea by them?- They were working among the fish for Messrs. Hay, and they took the tea out of their store.

993. Why did they take it? Did they not want it?-They sometimes required a few pennies. The merchants at that time would give nothing but truck, and the people took the tea, and sold it to their neighbours in order to get a few pence.

994. How do you know that was forbidden? Was there any order issued in writing, or otherwise, stating that people should not sell tea to their neighbours?-It was ordered by word of mouth, and it was also stated by the obligation which we had to

sign in Messrs. Hay's office.

995. Did you sign that document?-Yes.

996. So that, you are now under a written obligation not to sell tea?-Yes; a written obligation.

997. Have you heard anything of late years about that prohibition against selling tea?-No.

998. Is it common for a neighbour who has got more tea than he wants, to sell it to another?-No they don't do it now.

[Page 21]

999. Why?-I don't know, except just that they are afraid.

1000. Then, if you want tea or any other goods, must go direct to the store at Scalloway for them?-Yes, if we have not got money. If we had money, then we could go to any store we like, and buy what we want.

1001. Have the Burra people any complaints to make with regard to oysters?-I don't deal in them.

1002. You were engaged in the herring fishery. Was there any special complaint made in the memorial, or have you any special complaint to make just now, as to that fishery?-The herring fishery is carried on under the same restrictions as the ling,

1003. You are bound to hand over the fish to Messrs. Hay, and they are entered into the account the same as the others?-Yes.

1004. When you prepared that petition some years ago, did you land your herring on the island, or were they handed in to some vessel?-There were two or three years about that time when a vessel came to Hamnavoe, and we measured them on board of her. When she was full, we had to measure them on shore.

1005. Who sent that vessel?-It was a man who came with a vessel from Hamburg for herrings, and he bought them from Messrs. Hay.

1006. Did the man pay you for the fish?-No; we had nothing to do with him, so far as the paying was concerned.

1007. Was it one of the grievances set forth in the petition, that you were paid in goods for these herrings, while the Wick fishermen got a larger price in cash?-I don't remember about that.

1008. You say you signed the obligation about eight years ago. Have you ever endeavoured or wished to break through it and to obtain your liberty?-No.

1009. You have never attempted that?-No.

1010. Does that obligation bind your family as well as yourself?- Yes, if they like to do it.

1011. But in the obligation itself did you become bound that your sons as well as yourself should fish for Messrs. Hay?-Yes.

1012. Have had to pay liberty money for any of your sons?-Yes; I had to pay it for one of my sons-Robert Smith. He was two years away. One year he was with Mr. Harrison, and the year following he was with Mr. Garriock, and I paid liberty money in these years to Messrs. Hay on his account.

1013. How long ago was that?-I think it was three years ago.

1014. Then the obligation to fish applied to the Faroe fishing as well as to the home fishing?-Yes; to the whole fishings.

1015. Have you ever had to pay liberty money for your sons leaving the home fishing and going to some other employment?- No; they never followed the home fishing. They would not go to it.

1016. Then, if a man does not choose to go to the home fishing at all, he is free?-Yes.

1017. But if a man does go to the home fishing he is to fish for the landlord?-Yes, if he be a tenant.

1018. But he need not fish unless he likes?-No; it is only if he does fish, and if he is a person holding land, that he must fish for Messrs. Hay.

1019. Or if he is the son of a landholder, and living in his father's house?-Yes.

1020. I believe the liberty money amounts to 20s.?-Yes.

1021. When is it paid?-When we settle.

1022. Is it deducted from the amount due?-Yes.

1023. Do you know of any cases where that liberty money has been paid back by Messrs, Hay?-Yes.

1024. Was it paid back to you?-Yes; it was paid back to me for my son.

1025. Then the money you mentioned just now as having been paid by you for your son was paid back to you?-Yes; it was paid back to me afterwards.

1026. How long afterwards?-I think about a year and a half.

1027. Did you ask for it to be paid back?-Yes; I asked it over and over again before I got it. I think I asked for it two or three times, if I remember right.

1028. Did they give it back to you as a favour?-Yes.

1029. Was the amount of liberty money fixed in the obligation which you signed?-Yes.

1030. Did you get a copy of that obligation?-No.

1031. Have you been spoken to about that obligation since you signed it, and told that it was in force?-Never, except when they charged liberty money. I objected to pay it; and their answer was, that I had signed an obligation to pay it, and therefore that I was obliged to do so.

1032. Do you know any one else who has paid liberty money within the last year or two?-Yes; Andrew Laurenson paid it for his brother.

1033. Is Laurenson here?-No.

1034. Why did he have to pay it for his brother?-Because I think the father was not able, and Andrew had just to pay it.

1035. Were both the Laurensons living with their father?-No, Andrew was not living with him; he was married, and had gone away. But Robert was living with his father; and Andrew paid the money for the brother, because his father could not.

1036. Has there been any other case?-Yes; Peter Henry paid liberty money for himself about three years ago.

1037. Was Laurenson's money paid back?-Yes.

1038. After he had asked it?-I don't know if he asked it, but I know that it was paid back.

1039. Was Henry's paid back?-I don't know.

1040. Did these cases all occur about the same year?-Yes, all about the same time.

1041. Is it the case that at time you had several bad fishing seasons?-Yes.

1042. And is it the case that at that time Messrs. Hay were largely in advance to the fishermen in Burra?-Yes; for some years they were largely in advance.

1043. Did they want to get the young men to go to the Faroe fishing in order to get their parents out of debt: did they assign that as a reason for charging liberty money?-Yes, sometimes they did.

1044. Did they tell you, or did you understand, that these fines were required in order to induce the young men to go to the Faroe fishing, and to pay off the debt due by their parents?-Yes, I understood that.

1045. Were you told that by Messrs. Hay at the time?-Yes.

1046. Are these the only cases in which such fines have been exacted, within your knowledge?-Yes.

1047. Have all the landholders since that time fished for Messrs. Hay, to your knowledge?-Yes; they have all fished for them at the home fishing.

1048. And at the Faroe fishing too?-There are very few of the landholders who go to the Faroe fishing.

1049. Are there many men in Burra who go to the Faroe fishing?- Yes, a considerable number.

1050. But these are the younger men?-Yes; generally they are.

1051. And they are not bound in any way?-No, are not now.

1052. Do they generally ship with the Messrs. Hay?-Some of them do, and some do not. It is not general thing with them to do so.

1053. They can do as they like?-Yes.

1054. Can your sons do as they like in that matter, and ship with any person they please?-Yes.

1055. Do they go to the Faroe fishing?-Yes.

1056. And you are not asked to pay liberty money for them now?-No.

1057. Is that because Messrs. Hay have ceased to require payment of liberty money?-Yes; they thought the thing was not legal, and they have given it up.

1058. Are your sons living in your house still?-One of them is, but the other one is married, and is away from me.

1059. And the one who is living with you goes to the Faroe fishing?-Yes.

1060. Have you ever cured fish for yourself?-No.

1061. Then you don't know from your own experience, [Page 22] whether you would have a larger profit if you did cure them on your own account?-No; not from my own experience.

1062. Except when you signed the document you have mentioned, was there any occasion on which you were told by any of the firm of Hay & Co. that you were bound to fish for them only?-I don't remember any other time.

Lerwick, January 2, 1872, THOMAS CHRISTIE, examined.

1063. You are a fisherman in Burra, and a tenant under Messrs. Hay?-Yes.

1064. You have been present during the examination of the two preceding witnesses?-Yes.

1065. Do you concur with them as to the most of the facts which they have stated?-Yes.

1066. Did you sign the obligation which has been spoken to?-I signed it once, about eight years ago.

1067. Did you do so willingly, or did you refuse first?-I did so willingly.

1068. Had you not received warning to leave your ground first?- No, I don't think it.

1069. Were you ever told that you would have to leave your ground if you did not sign it?-Yes; I suppose I was.

1070. Have you complied ever since with that obligation to fish for Hay & Co.?-Yes.

1071. You did not try to break it in any way?-No.

1072. Have you ever had to pay liberty money for yourself or any of your children?-No.

1073. Have you cured fish for yourself?-No.

1074. Is it your opinion, as well as that of the other witnesses, that you would make a larger profit if you cured your own fish?-I think we would.

1075. Can you give me any reason for supposing that?-No; no particular reason, because I never cured them.

1076. But you know that is the general belief?-Yes.

1077. Have you any knitters in your family?-Yes.

1078. The letter you have signed says that they are invariably paid in goods, both for the goods they sell, and also for their wages when engaged to knit for the hosiery dealers: is that so?-Yes.

1079. Have you ever sold any articles for your daughters?-Yes.

1080. Do you sometimes take the goods they knit the shops and sell them for them?-Yes.

1081. Where have you taken them to?-To Linklater.

1082. Do you keep an account with him?-No.

1083. You just take the article in and sell it?-Yes, and get what they want for it.

1084. Do your daughters knit with their own wool?-No, they knit with wool supplied by Mr. Linklater.

1085. Is it through you that the dealing generally takes place?- No; not through me.

1086. Your daughters generally manage it themselves?-Yes.

1087. But you have brought in articles which they have knitted?- Yes; on one or two occasions.

1088. On these occasions what took place?-I was just ordered to get some things from the shop, and I got them.

1089. Did you ever ask for money?-No, they never expected to get money, they never asked for it.

1090. You were told the articles that you were to bring home, and the value that was to be put upon the shawls?-Yes.

1091. Did you not leave the fixing of the price to the merchant?- He knew the price himself. It was marked down in the book, what I brought in for them was added to the account.

1092. Do your daughters have a book?-No; but the merchant enters these things in his own book.

1093. Then they have an account with Mr. Linklater-which is kept in his book?-Yes.

1094. What is the name of your daughter?-Elizabeth Christie.

1095. Is the account in Mr. Linklater's book kept in her name?- Yes.

1096. You say that you buy your goods until the end of the year from your landlord's shop: is it from the shop at Scalloway or in Lerwick that you generally buy?-I buy from both places.

1097. Is there an account in your name in both shops?-Yes; I can go to any place I like.

1098. And you get the same class of goods at both?-I don't think there is much difference.

1099. Do you get every kind of goods at both shops?-Yes.

Lerwick, January 2, 1872, CHARLES SINCLAIR, examined.

1100. You are a fisherman in Burra?-Yes.

1101. Do you hold any land there?-No, I have only a room, and pay rent for it, in an old mansion-house on the island.

1102. To whom do you pay rent?-To Messrs. Hay.

1103. How do you make your living?-By fishing, and sometimes by going as master of a small coasting vessel.

1104. Does that vessel belong to you?-No; I sometimes get employment from the owners in Lerwick,-from Mr. Leask, or Messrs. Hay, or others.

1105. You have not a permanent employment as master?-No, but I am competent for taking charge of a vessel at times.

1106. Is that a vessel employed in the fishing trade?-Yes, and sometimes in the coasting trade, taking cured fish to any port in England or Scotland.

1107. You have been present during the examination of the previous witnesses during the day?-Yes.

1108. Do you concur generally in what they have stated?-So far as I can remember it, I do.

1109. Is there anything additional you want to say?-Yes. Our wishes are to have our liberty to fish for whoever we please, and to make the best we can of our fish.

1110. But you are not bound in any way?-I am bound to fish for Messrs. Hay in the long-line and herring fishing in the island.

1111. Did you sign any obligation-to fish for Messrs. Hay only?- No.

1112. Then in what way are you bound?-By our father signing an obligation.

1113. Are you the son of a Burra man?-Yes.

1114. Did your father sign the obligation eight years ago?-Yes.

1115. What reason have you to suppose that binds you to fish?- My father told me when he came home, that neither he nor his sons were to be allowed to fish to any other men than Messrs. Hay.

1116. Is it eight years since he told you that-Yes.

1117. Is your father alive?-Yes, he is here. His name is John Sinclair.

1118. Have you attempted or wished to fish for any other than Messrs. Hay?-Yes; in the Faroe fishing, but nowhere else.

1119. Was there any objection taken to your doing so?-No; because at the time when I broke off from Messrs. Hay they could not suit me with a vessel. I was competent to take charge of a vessel, and they had none to give me, and for that reason they let me off.

1120. Do you go in for the home fishing?-Sometimes.

1121. Have you fished for any other than Messrs. Hay in that fishing?-No, not in the long-line fishing.

1122. Have you proposed to do so?-No.

1123. Then you have never been interfered with in any way yourself?-No, not further than that. Occasionally I have had to fish a little for them when I was not engaged at anything else.

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1124. How had you to fish to them?-To support myself.

1125. But if you had chosen, you might have engaged with any other merchant than Messrs. Hay?-No, not for the home fishing.

1126. Why do you say that?-Because we were made to understand that we would not be allowed to do so.

1127. You say that your only reason for understanding that, was what your father had told you. What would have been the result to you if you had done it?-The result would have been, that my father would have been turned out on my account.

1128. Is that what you were afraid of?-Yes.

1129. And is that the reason why you never tried to get engaged with any other merchant?-Yes.

1130. Had you ever to pay liberty money?-No.

1131. Had your father ever to pay liberty money for you or any of his sons?-I believe he had to pay for one who died.

1132. Do you know that yourself?-I am confident of it, from having heard about it.

1133. Was that when you were young?-Yes.

1134. But that was a good many years ago?-Yes. I cannot remember the time.

1135. Is that all you wish to say?-I remember in my early years, when I was a young fellow, and commenced to fish along with my father, we went chiefly to the herring fishing, and we had to catch herring for Messrs. Hay at a very low price. We had a certain allowance of meal, which I suppose would amount to about twenty-four

pounds for seven or eight days; and it was hardly fit to sustain a family of about eight people. My father had to find boats and nets with which to proceed to the fishing, and that put him into debt; and about four years ago I and my brothers had to come good for that debt.

1136. Was that an old debt which your father had contracted?-It was a debt accumulated chiefly in the herring fishing.

1137. When was it begun to be incurred?-About fifteen or sixteen years ago.

1138. Had the debt increased, or did it merely stand over?-It was not regular; it sometimes rose and sometimes fell.

1139. But your father was constantly in debt up to four years ago?-Yes, so far as I can remember.

1140. Was that debt made out by the annual accountings which we have heard about to-day? Was it a debt in the books of Messrs. Hay for provisions supplied at the store?-Yes, and for fishing materials.

1141. Was it for a boat also?-It was chiefly for a new boat and nets. He purchased a new boat, which put him further down than ever.

1142. Was it purchased about fifteen or twenty years ago?-No; it is perhaps ten or twelve years ago.

1143. And you say that about four years ago this debt became so large that you and your brother had to become bound for it?-Yes.

1144. How did that happen?-Because they wrote out, or pretended to write out, what might be called a travelling-ticket, or a warning to remove off the land.

1145. At what term?-Was it at Martinmas?-As far as I recollect, it was.

1146. Some people have taken special objection to the short Martinmas warning. Do you concur in that objection?-Yes. It is only forty days in some cases.

1147. And your father got that warning?-Yes.

1148. How much was he in debt at that time?-Perhaps from £9 to £12. I and my brother Robert had to pay £6, and I believe that was the half of it.

1149. Did you sign any document obliging you pay that money?- No.

1150. Then how did you become bound?-On account of my father being warned out.

1151. But in what way did you become bound? Did you merely promise by word of mouth that you would pay it?-Yes; we had to become good for it.

1152. But you did not sign any agreement?-No; we handed over the money-the sum of £6.

1153. Was that money which you had earned?-Yes.

1154. Was it due to you in your account with Messrs. Hay?-No; I had it in my pocket. I had saved it in other employments.

1155. Then you had no difficulty in getting money for your wages when you wanted it? You were not obliged to take your wages in goods?-No, not our wages; but we have to take the proceeds of our fishing in that way, to a certain extent. They will give us part of that in goods.

1156. Is that the proceeds of the Faroe fishing?-No; of the home fishing.

1157. In the Faroe fishing, what arrangement do you make about the payment of your share?-We can get it all in money if we choose to have it.

1158. You have been at the Faroe fishing?-Yes.

1159. There is no difficulty in that fishing in getting cash at the end of the season?-No; not at the settling times, which take place once a year.

1160. How do you do about your supplies for the Faroe fishing?- We generally apply for them to the merchant we fish for.

1161. And you get a supply from him of provisions, clothing, fishing material, and everything you require?-Yes.

1162. That is marked down against you in the book, and deducted from the price of your fish at the end of the season?-Yes.

1163. Is the price for these fish fixed only at settling time?-Yes.

1164. Who does the boat belong to in which you go to the Faroe fishing?-I have been at that fishing for different owners.

1165. Does the boat always belong to the merchant, or does it sometimes belong to the men themselves?-No; it always belongs to the merchant.

1166. But the whole material required for that fishing, except the boat, belongs to the men?-Yes; and it is purchased by them from the shipowner. We have to find our hooks and lines and provisions. That is all we have to find, the owner finds the rest.

1167. Are you a married man?-Yes, I have a wife and two children.

1168. How are your family supported during your absence at the Faroe fishing? Where do they get their supplies?-They can get them in the owner's store if they require them, but, for myself, I do not require to go there. I can get them at any place I please.

1169. Is it a common thing for the other men who go to the Faroe fishing, to buy their goods at the owners store?-When they don't have money to buy them at other places, they go there for them.

1170. But is that a common thing?-I cannot say exactly. I suppose it is not uncommon.

1171. Does it often happen that a man employed in the Faroe fishing finds an account against him in the owner's store for provisions at settling time as large as the

amount which he has to receive for his fishing?-I am not acquainted with that myself.

1172. When you are away at the Faroe fishing, and your family have occasion for money, is there any difficulty in getting it from the parties who employ you?-Not if they know we have money to get. If we have a balance in our favour, they are not against giving it.

1173. How long are you generally absent at that fishing?- Sometimes six months, sometimes seven, and sometimes as low as three months.

1174. Suppose you had been away from home for two or three months, there would certainly be two or three months take of fish, if it was a middling season, for which money would be due to you?-Yes.

1175. Would your wife at home be able to get an advance of money from the merchant in that case, if she required it for the support of the family?-Yes.

1176. There is no difficulty made about that?-No.

1177. Is it a common thing in Shetland for a man's wife to get such advances of money during his absence-Yes, they would get a small sum of money, but the merchant would prefer them to take goods.

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1178. If she comes for the money is she ever told to take it in goods; or is there any understanding that she is to take it in goods?-I cannot answer that, because I am not acquainted with what goes on while I am away. I can only speak to what has come within my own experience.

Lerwick, January 2, 1872, GILBERT GOODLAD, examined.

1179. You are a fisherman in Burra, and you hold land there under Messrs. Hay?-Yes.

1180. You have been present during the examination of the previous witnesses?-Yes.

1181. Do you agree with most of what Williamson and Smith have said?-Yes.

1182. Is it all correct?-Yes; all correct.

1183. You generally go to the Faroe fishing?-I do.

1184. How long may you be absent at that fishing?-It just depends upon the season: sometimes we may be away for perhaps four months. We are generally home once in the middle of the time. We are sometimes we may be away longer than four months, sometimes not so long ago.

1185. What merchants have you generally engaged with?-I have engaged with a great many merchants in Shetland.

1186. There has been no objection made to your going with any merchant you liked?-No.

1187. Messrs. Hay have not objected to that?-No. They might not have been requiring me when I was going, and therefore I could go where I liked.

1188. When you go there, how do you arrange for your family to be supplied during your absence?-The merchant supplies them during my absence.

1189. What merchant?-Whatever owner I am out for.

1190. When your wife wants supplies, does she go to his shop for them?-Yes.

1191. If she wants money, does she ask it from him too?-She may, but sometimes she has been refused it. They are not willing to give money. If they think we are doing well at the fishing, they will advance her a little money; but if they think we are not succeeding well, they will not give it, because they would think then that we might come to be in their debt.

1192. Is there any communication with the vessels when they are at the fishing?-Yes. Some of the vessels may go home and come back again, or an accident may occur on board of one of them, and she may go home and give an account of how the fishing is going on. They may also send letters from Faroe, by Denmark, to Shetland; so that there are several ways of communicating from there to here.

1193. Who are some of the parties with whom you have shipped for the Faroe fishing?-I have been out for Mr. Garriock in Reawick, Mr. Garriock in Lerwick, Mr. Leask, and Messrs. Hay.

1194. But, whoever you go out for, your wife generally goes to their shop for her supplies?-She is obliged to go there, if we have no other means to live on.

1195. Can you tell me one occasion on which she went and was refused money, or on which you have asked them to give her money and it has been refused?-I am not quite sure that there has been any occasion of that kind, because we know that if we are not fishing well, we need not ask for money.

1196. Have you been told that by any of the shopkeepers?-I have seen it, and experienced it.

1197. When, and how?-Even during the last season with the Faroe fishing, there were some of the merchants who would not make an advance to the people when they required it.

1198. Did they require to get an advance of money?-They might try to live on through the season without money, and they might have done it if they could only have got some meal and some bread to live upon.

1199. Do you mean that the people at the fishing had to do so?- No; the people whom they left at home got so little that they could hardly subsist upon it, and they had to try some other means in order to enable them to live.

1200. What other means had they?-They might have a cow or two, and make butter, and sell the milk, and buy a little meal with that.

1201. Do any of the members of your family knit?-I have two daughters who knit

1202. Do they get money for that knitting?-Not one cent.

1203. Have you sold the hosiery work for them?-I never did. They always manage these matters for themselves.

1204. Have you ever represented their case to the merchants, and said that they ought to pay them in cash?-No. It is no use saying anything of the kind, because the merchants would not give them money. There is one thing I should like to say with regard to the Faroe fishing. We come into the town of Lerwick, or any other port in Shetland where the vessels happen be fitting out, and commence to fit the vessels so as to have them ready for sea. We have to go on board, and have only an allowance of one pound of bread a day for every day we are on board the vessel. We have nothing else to live on during the time we are fitting out the vessels, and if we are absent on any account whatever during the time the vessels are being fitted out they charge 2s., 6d. per day for that, in order to put a man in our place.

1205. Is not that merely a part of your bargain with the merchants for whom you engage to fish?-It is part of the bargain, but it is a very bad part.

1206. If you did not choose to make a bargain of that kind, you would not be bound to carry it out?-That is true; but the poor people here cannot strike as they do in England: because they are so poor, the merchants can just do as they please with them.

1207. Did you sign the obligation eight years ago which has been spoken to by the previous witnesses?-No.

1208. Do you go in for the home fishing at all?-Yes; I am a fisherman in the Burra Isles.

1209. Do you consider yourself bound to fish only for Messrs. Hay in the home fishing?-I do.

1210. Have you ever been told so by Messrs. Hay?-Yes, I have been told that; and there was a document made out, but I did not sign it. I have got no notice about the matter since then, because we knew that we had to carry on the fishing in the same way.

1211. Have you ever paid liberty money?-No, I never had anybody to pay it for, and I never paid for myself.

1212. Have you ever asked to have the price of your fish fixed at the beginning of the season?-No.

1213. Is there not a feeling among the men, that that would be a better mode of dealing than the present?-We durst not go in for anything of the kind.

1214. Would it not be a better plan in the Faroe fishing?-We could not do anything of the kind there, because the merchants don't know what the price of the fish will be until they can be sold. The market may rise.

1215. You take your chance of the markets there-Yes; whatever chance the merchant gets, we get too. We run shares with the merchants in that fishing.

1216. You are not paid at so much per cwt.?-No; we have shares. One half of the fish that are brought in by the vessel belongs to the crew, and the other half belongs to the owners.

1217. Then you are not serving for wages there at all?-No; they give us wages if we have to go to Iceland in the fall of the year but they give no wages for the summer fishing at Faroe. It is just a partnership that is made up for the fish that are caught.

1218. Is there anything further you wish to say?-No; I think everything which we have to say has been pretty well said by the other men.

1219. Are all the thirteen men here who signed the letter to me about Burra?-Yes.

1220. Have any of them anything further to say?-[No answer.]

<Adjourned>.

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Lerwick: Wednesday, January 3, 1872. <Present>-Mr Guthrie.

JOHN LEASK, examined.

1221. You are a fisherman at Channerwick, parish of Sandwick?- I am.

1222. You came here yesterday for the purpose making some statement: what was it about?-I wanted to make some statement about how I have been treated three years back, particularly.

1223. Are you a tenant of land?-Yes.

1224. Are you a yearly tenant?-Yes.

1225. Under whom?-Under Mr. Robert Bruce of Simbister.

1226. Do you pay your rent to him?-We pay our rent to Mr. William Irvine, the factor.

1227. Is that Mr. Irvine of Hay & Co.?-Yes.

1228. What quantity of land do you hold?-It is rather more than what are called two merks and about a third.

1229. How much is that in acres?-I don't know. It is a Danish measurement.

1230. How much rent do you pay for that?-£4, 2s. 10d.

1231. Do you also pay taxes and poor-rates in addition?-No; that is included in the sum I have mentioned.

1232. What did you come to complain about?-About the way we were dealt with when we were under tack for seventeen years to Mr. Robert Mouat. He got bankrupt in the latter end.

1233. How long is it since he became bankrupt?-It was only last year, and he went away then.

1234. Before that, had he a tack of the whole lands of Mr. Bruce in that part of the country?-He had Levenwick, Channerwick and Coningsburgh in tack.

1235. Had you to pay your rent to him?-Yes.

1236. He was what is called a middle-man in Shetland?-Yes; a middle-man or tacksmaster. The Shetland name for it is tacksmaster.

1237. You were under tack to him, and you paid the same rent to him that you have mentioned just now?-Yes, I suppose so, but I don't remember what rent I paid to him, for I never got my rent from him.

1238. How do you mean?-Because he was the tacksman, and he took what rent he liked.

1239. Do you mean to say that you did not pay £4, 2s. 10d. to him the same as you are doing now?-I paid him more.

1240. When was your rent fixed at £4, 2s. 10d.?-This year.

1241. What was your rent before?-I cannot tell what it was under Mouat, for I never heard what it was. He never told me what my rent was; it was just what he liked to take. But after Mouat left, Mr. Bruce gave us our liberty. We have had our liberty for the past year, and we go now and pay our rent to the factor, and he has told us what our rent is.

1242. Did you fish for Mouat when he was there?-I was bound by the proprietor to do so.

1243. Had you signed any agreement to do that?-I was never called upon to sign any agreement, but Mouat told me that his agreement with the proprietor was that I was bound to fish for him; and he told me that if I did not fish for him, he had power to warn me out of the place where I lived.

1244. When did he tell you that?-He told me that at the commencement of the tack, seventeen years ago.

1245. Had you been in the same ground before that time?-Yes.

1246. Who did you hold from at that time?-The tacksman before Mouat was Mr. Spence, Lerwick. He collected the rents for Mr. Bruce.

1247. Was he the tacksman or only a factor?-He was a lawyer or tacksman, taking up the money for Mr. Bruce.

1248. Were you bound then to fish for any particular individual?- We were always bound.

1249. After Mouat told you that you must fish for him, did you ever fish for any one else during the whole of these seventeen years?-No.

1250. Why did you not sell your fish to any one else?-For fear of being warned off the property where was living; and I had nowhere else to go to, because I was a poor man.

1251. Is it the home fishing you are now speaking of?-Yes, the home or ling fishing; but I have been in the whale fishery, and in the straits fishery, and the Faroe fishery, as well as in the home fishery.

1252. But you were not at these other fishings for Mouat?-No; I was at home when I fished for him.

1253. Could you engage with any one you pleased for the whale fishing or the Faroe fishing?-Yes.

1254. You have no complaint to make about that-No; I could go to any one I liked, only I was bound under tack to Mouat.

1255. When you fished for Mouat, did you deliver your fish to his people?-Yes.

1256. Where?-At Levenwick.

1257. Did you deliver them green or dry?-Green.

1258. How were you paid for them?-We were just paid as he liked to pay us. He gave us just what he chose.

1259. When were you paid for them?-Sometimes in March, sometimes about the New Year, or just when he chose to make arrangements for paying us.

1260. Did he pay you then for all the fish of the previous season?-Yes.

1261. At what time in the season did you begin to fish?-We began in the spring-generally in the month of May.

1262. And all the fish which you caught from May down to next winter were paid for in January or February or March?-Yes; or at any time, just as he chose to make arrangements for paying.

1263. Did you make a bargain about the price at the beginning of the season?-No.

1264. Did you make your bargain when you delivered your fish to him?-No.

1265. When did you fix the price which you were to get?-He fixed the price when he paid us.

1266. Did you ever object to the price which he fixed?-Many a time.

1267. You made that objection at settling day?-Yes.

1268. What did he when you asked for a larger price?-He told us that we should have no more, and that we were in duty bound to fish for him.

1269. Had Mouat a shop?-Yes; his shop was at the Moul of Channerwick, close to my house.

1270. Are there many fishermen living close by there?-There are a good many, and almost all men are fishermen.

1271. Do they live near that shop?-Yes.

1272. How many houses may be there, or about that neighbourhood?-I think there are about nineteen of them close together.

1273. Are there many more houses at a little distance?-There are no more at that particular place, but in the town of Levenwick, about a mile to the south of the Moul, there are more.

1274. Is there another shop there?-No.

1275. Do the Levenwick people come to the Channerwick shop?- Yes.

1276. What did you get in Mouat's shop?-We got the goods he pleased to give us.

1277. Did you get the goods you wanted?-No; we did not get the goods we wanted. We could just get the goods he had.

1278. What did you get?-We sometimes got a [Page 26] little tea and cotton and anything we asked for that was there. If it was there for us to get it was very well; but if it was not there, we had to walk home without, and we could get no money to buy it with.

1279. How could you get no money?-Because he would not give it to us on any consideration at all.

1280. Did you often ask for?-Every year and every time.

1281. What do you mean by every time?-Every time we came to that store when we thought his goods were not a bargain for us to take we asked for some money to go somewhere else and get a better bargain; but of course we were denied it. We could get none.

1282. Did you never get an advance of money from the time the fishing began, until settling time?-No.

1283. Did you ever get any money from Mouat during the whole seventeen years you fished for him?-No.

1284. Did you not get money if there was, a balance over at settling time?-No.

1285. Do you swear that?-Yes, I do.

1286. Supposing that at the time of settling there was a balance due to you after paying your account at the shop and your rent did you not get, that in money?-No. I had to take it in goods or else go without.

1287. Were you told that you must take it in goods?-Yes; I could get no money.

1288. Did you generally take goods there and then or did you get them afterwards just as you wanted them?-Sometimes I got them as I wanted them and at other times I might take a little goods expecting that I would perhaps get a shilling of money along with them as I was in necessity for it; but I could not get any.

1289. Did you expect that you might get a shilling for the goods?-As I had a balance due I expected that I might get a shilling in money; and I did not take all the goods at one time but I took a little now when I required them, and a little the next

time; and always when I came to the store I asked if I could not get a shilling in money because goods could not serve me every time.

1290. Did you sell the goods which you got from the shop in order to raise a little money?-Sometimes.

1291. Did you sell them to your neighbours?-I could not sell them to my neighbours, because they were in the same state as I was myself.

1292. Where did you sell them?-Sometimes we would take a little and fall in with a boy or a laddie, who would buy a bit of cloth from us, or the like of that, at a reduced price and thus help us to get a few shillings.

1293. To what boys or lads did you sell these goods?-Just to any lad that would buy them. Perhaps my own lad would be going elsewhere, such as to the sea, where he would be paid by a fee; and sometimes I would get a bit of goods and give it to my boy, and he would pay me for it with a few shillings out of his fee and that would serve my ends for the time.

1294. Had you anything to sell off your farm?-Yes.

1295. You sold a beast now and then?-Yes; but Mouat took the whole of them.

1296. Did he buy your beasts too?-Yes.

1297. Did you not have liberty to sell them to other people?-No, we had no liberty at all; because he said we were under the same obligation with regard to beasts and eggs and all the produce of our farms as we were under with regard to the fish, and therefore, if he got the one, he compelled us to give him the other too.

1298. When did he tell you that about the beasts and the eggs?- He told us about it in the same year that he took the tack.

1299. Did you ever try to sell them to another?-Yes, I tried that sometimes.

1300. To whom did you try to sell them?-To any one who came round asking for such things; but I knew that if I did such a thing, and Mouat came to know about it, I must be prepared to take to my heels and fly.

1301. Did you ever actually sell any of the produce of your farm to another than Mouat?-I never sold any, except one little horse; and I sold it when I was in starvation for meal. That was towards the end of Mouat's tack.

1302. How long ago was it?-I think it is two years past.

1303. Who did you sell it to?-I sold it to a man in the neighbourhood of Quarff.

1304. What was his name?-Andrew Jamieson, he lives at Quarff now.

1305. What did you get for it?-I got £2; it was a small beast

1306. Did Mouat know that you had sold that beast to Jamieson?-Yes, and as soon as he heard about it he sent for me, and told me what he was determined to do, and that I might prepare myself for going.

1307. How long was that before he failed?-I think I only paid one year after that.

1308. Do you mean that there was only one settlement with him after that?-Yes.

1309. When you were making your settlements, I suppose it was the previous Whitsunday and Martinmas rents that you settled for at each?-Yes.

1310. How long would it be before the settlement that you sold the horse?-I sold it after the settlement for the year. Mouat knew that I had a pony to sell and he wanted me to give it to him. I said that I would give him the pony as he told me I was bound to do it but he must bring me some meal, because it was a very bad season, and I could not sow down my ground. He would not bring me any meal and therefore I resolved that, whatever might happen to me whether I should be put out or not, I would sell my animal and procure a living for my house; and I did so.

1311. At what time of the year did you sell it?-In March.

1312. That would be shortly after the settlement?-Yes.

1313. How long was it after that when Mouat told you that you must leave?-Just about eight days-as soon as he heard it.

1314. But he did not turn you off?-No.

1315. Could he not have turned you off at the following Whitsunday term?-Yes; he could have turned me off then.

1316. But he did not do it?-No; because I went to the proprietor, Mr. Bruce, and told him what I had done, and what Mouat was going to do to me. I don't know what took place between Mr. Bruce and Mouat about that, but I did not get my warning?

1317. What did Mr. Bruce say to you about it when you saw him?-He said very little. I went to him, and also to the factor, Mr. Irvine, and told him about it. I got no satisfaction at the time, and therefore I expected I would be turned off; but in the end I was not put off the ground.

1318. That would be in the spring of 1870?-Yes.

1319. Have you paid any rent to Mr. Irvine or to Mr Bruce this year?-Yes; I paid my rent about six weeks ago.

1320. To whom do you deliver your fish now?-To any one I choose.

1321. Who did you fish for last season?-For Mr. Robertson.

1322. Where do you get your goods now?-I can get them from Mr. Robertson. He bought Mouat's store in Channerwick.

1323. Do you still get your goods there?-Yes.

1324. Are you bound to get them there?-We are not bound particularly, because if we ask Mr. Robertson for a few shillings of money during the time we are fishing for him, we will get them.

1325. Have you got money from him since he took that store?- Yes; I got my rent from him this year.

1326. You mean, that you got money from him to pay your rent?- Yes.

1327. Can you mention the name of any person who [Page 27] was turned away for selling his fish or the produce of his farm to another merchant than during the seventeen years he held the tack?-I cannot mention any one particularly, except an old man who was turned off his farm; but that was a good while ago. His name was Henry Sinclair, in Levenwick. That occurred about the beginning of Mouat's tack.

1328. What was he turned out for?-For an 'outfall' about some fishing.

1329. What had he done with his fish?-It was his son that the thing occurred with.

1330. What had his son done?-His son got into some sort of dispute with Mouat about fishing, I can not tell what the cause of it was exactly; but Mouat gave him warning, and sent him off the property that he was staying on. Sinclair took a little bit of scattald outside of the premises, and built a house on it, and he is living there in a very mean condition.

1331. Did the other people in the neighbourhood take that case as a warning?-Yes.

1332. It frightened them, did it?-Yes; Shetland people are of that nature, to be frightened by such things-very much to their hurt.

1333. Do you know of any other person who was turned off in the same way?-No, I don't remember of any other person being turned off; because Mouat had no occasion to turn them off. They did not transgress his law.

1334. Do you know of any other who was threatened to be turned off?-Every one of us was threatened, the next man was threatened, and we were all threatened; so that we were frightened.

1335. Do you know of any person who sold his fish or his beasts or eggs to another than Mouat?-Towards the end of his tack, in the very last fishing when I fished for him, my family and I were in a state of starvation for want of meal. I have seen me out at sea under him for two days and part of a third, on two pounds of meal; and I saw that I must make some effort for a living, Accordingly I went to another store close by and gave them some of the fish I had caught, and got some meal from them. If Mouat's tack had continued longer, I have no doubt I would have been punished for that; but as it was nearly broken, he did not have it in his power to do me any hurt.

1336. Did Mouat speak to you about that?-Yes. There came a letter from him to the people in the neighbourhood, because some of them did take their liberty and go away.

1337. Was that in the last year of his tack?-Yes.

1338. What kind of letters were these?-They were letters from Mouat telling them not to prepare their turf or anything to keep them in their farms, because they had their warning to go. I got a letter as well as the rest.

1339. Did it refer to the fish that you had sold to the other merchant?-Yes.

1340. Have you got that letter?-I don't know. I don't know what became of it. I think I burnt it; but there ought to be letters in the neighbourhood that came from Mouat at that time.

1341. You said you did not get all the goods you wanted at Mouat's shop. What were the goods you asked for and could not get?-I generally asked for little tea.

1342. Could you not get that?-Yes, I always got that, and I could get a bit of cotton or anything out of the store that I wanted.

1343. Did you get the tackle you wanted for your fishing from him?-Yes.

1344. And clothes for your family?-I could get clothes for my family if I asked for them. Sometimes I did get a little clothing from him.

1345. Was it principally meal and tea that you got from Mouat?- Yes; and if his meal had been grain, it would have been good enough; but as it was, it was not fit for human food.

1346. You mean that it was not of good quality?-It was not; and we paid at the dearest rate for it.

1347. How do you know that?-Because we heard it from the storeman who sold it to us. Mouat had a storeman in the shop; and when we got the meal from him, he told us what the price of it was.

1348. Had you a pass-book?-We sometimes had a pass-book, but it was not always taken there; and besides, the storeman was not very willing to be bothered with it.

1349. Did you ever ask the price of meal and tea in Lerwick?- Yes.

1350. Did you ever buy these articles in Lerwick when you happened to have some money?-Yes, sometimes when I had any money I did so; but it was very little money that ever I had, because where could we get it, when we could get no money at all for our fishing?

1351. Have you bought these articles in Lerwick within the last two or three years?-Yes.

1352. Did you find the Lerwick meal better and cheaper than what you got from Mouat?-Yes; the Lerwick meal was grain, but Mouat's meal was nothing but the refuse of the worst that was given to us poor fishing slaves.

1353. Then the complaint you have to make is only about what is past?-Yes; about how I was treated during the seventeen years I was under Mouat. I have nothing to say against Mr. Robert Bruce, or against Mr. Robertson either, with regard to our present condition.

1354. You are quite content with your way of dealing at present?-Yes, I have nothing to say against that, but I am frightened for the future.

1355. Have you a boat of your own?-No.

1356. How do you do for a boat?-I generally arrange with some fish-curer, and he procures me a boat, and takes a hire for it for the season.

1357. How much is the hire?-The hire, as a general rule, has been £2 for three months, or £3, 10s. for the whole season.

1358. Is that the way you did with Mr. Robertson last year?-Yes.

1359. You got goods at his store?-Yes.

1360. As many goods as you wanted during the fishing season?- Yes.

1361. And a little money when you asked for it?-Yes.

1362. How much money would you get at a time from him?-If I asked Mr. Robertson for 5s. or 2s. or 6s., I would get it, according as I asked for it.

1363. If you asked for the whole of your earnings in money, and took no goods out of Mr. Robertson's store, is it likely that you would get the money, so that you could go elsewhere and buy your goods?-I could not say anything about that, because I did not ask it.

1364. You don't wish to go anywhere else?-No; I have not tried that.

1365. Do you think the quality of Mr. Robertson's goods is better than Mouat's?-Oh, Mouat's was nothing at all.

1366. Have you any daughters in your family who knit?-I have two.

1367. Do they knit their own worsted?-Yes; they make worsted for themselves from the wool of our own sheep.

1368. Do they go into Lerwick to sell the articles they have made?-They do.

1369. To whom do they sell them?-To anybody; they do not knit for a merchant. They go to any merchant they choose and sell their shawls, because the worsted with which they are made is their own. If they go into one store with the shawl, and the price is not suitable, they go into the next one.

1370. How are they paid for their shawls?-They are paid in goods at any store where they can sell them.

1371. Do they ever ask for money?-They have asked for it often, but they have never got it; and therefore they say there is no use asking for it, because they know they won't get it.

1372. Are you satisfied with the value of the goods they get in exchange for their shawls?-Sometimes, but not always. Sometimes the goods which they get [Page 28] in exchange are not worth the value put upon them. Sometimes they get cottons for 10d. which are not worth above 8d.

1373. How do you know that?-Because I see the quality of them.

1374. Have they told you the price which the merchant has charged for them?-Yes; and sometimes when my daughters have knitted a shawl, and it is ready to go to the dresser, there may be no money in the house to pay for the dressing of it, and it has to be paid in money. I have known my daughters detained in that way for some days, until I went to a neighbour and borrowed a shilling to pay for the dressing of the shawl, or until I could sell something off the farm; and then, when the shawl was dressed, they went to the merchant with it and sold it to him for goods, according to the custom.

1375. Can your daughters not dress the shawls themselves?-No; they are shawl-makers, but not shawl-dressers. Their dresser is Mrs. Arcus, at the Docks.

1376. Is she the only dresser here?-No; there are other dressers than her, but she is the only one that my daughters go to.

1377. Would she not give them credit for the dressing?-No.

1378. She always requires ready money for that?-Yes; she might give credit to a girl living in the town, but I live sixteen miles from Lerwick, and she would not give credit to a party living at that distance.

1379. How long have your daughters knitted?-A long time now. There is one of them twenty-seven years of age, and she has knitted since she was about eighteen.

1380. Have you ever seen your daughters bring home money for their knitting?-No; I never saw a shilling come into our house in my life which had been got for a shawl. I have paid out several shillings for the dressing of the shawls but I never saw any money given in for them.

1381. Is there anything more you wish to say?-No.

Lerwick, January 3, 1872, GAVIN COLVIN, examined.

1382. Are you a fisherman?-Yes.

1383. Where?-In Levenwick, Sandwick parish.

1384. Was the ground there held in tack by Robert Mouat at one time?-Yes.

1385. How long have you been there?-I have been there all my life.

1386. What was your rent when you held your land under Mouat?-It was £4, excluding poor-rates and road money.

1387. That was what you paid to Mouat?-Yes.

1388. Then you knew what your rent was?-Yes. Of course he told us what our rent was.

1389. And it was accounted for at the settlement?-Yes. At the settlement he summed up our accounts, and told us we were due so much-so much for rent and so much for goods.

1390. Had you a pass-book?-No. He did not approve of pass-books.

1391. Did you take a note yourself of the goods you got, or did you just trust to the people at the store?-I trusted to the people at the store,-to his storekeeper.

1392. Have you been present during the examination of John Leask?-Yes.

1393. You have heard all that he said about the way of dealing, and about the store, and the quality of the goods?-Yes.

1394. Do you agree with all that he said?-Yes, I agree more particularly with what he said about the quality of the goods. The goods were very inferior at Mouat's store.

1395. You also agree with him in his description of the way of dealing with Mouat?-Yes.

1396. Do you also say that you were compelled to sell all your fish to him?-Yes. All our earnings, whether by sea or land, were in duty bound to his store. That was stated to us every year at the settlement.

1397. Was that stated to you by Mouat?-Yes. We were told that we were in duty bound to bring every iota of our produce, whether by sea or land, to his store.

1398. Did you ever get any letter threatening you for selling your fish or your goods to another than Mouat?-I never did, I got no letter, because I never got far forward as to require that treatment.

1399. You never got warning to go away?-No, but I was often told that I would get warning if I persisted in such things.

1400. Do you know of any of your neighbours having got such letters?-No; not in my neighbourhood.

1401. Is there anything you wish to add to the statement made by John Leask?-Nothing.

1402. Who were you fishing for last year?-For Mr. Robertson.

1403. Did you get goods at his store?-Yes.

1404. They were of better quality than those you got from Mouat?-Certainly they were.

1405. Do you get all the money you ask for?-I get what goods I require, and if I ask for money I will get it. At the settlement, if there is anything due to me I will get it; and if I don't have money for my rent, he will help me with it.

1406. But if you want all your balance in money, will you get it?- Yes. I got it last time. We are quite satisfied with Mr. Robertson according to the custom of the country.

1407. But are you satisfied with the custom of the country?-No; I don't agree with it.

1408. What do you want to be changed?-I am not prepared to say in the meantime.

1409. Do you want the price of your fish fixed in advance?-We would require that, I think, for some encouragement to us.

1410. Could you not get it fixed then, if you asked for it?-We have asked for it, but we have never got it yet.

1411. Who did you ask it from?-From the dealers we were fishing to, all along.

1412. But you have fished for no dealers except Mouat and Robertson?-No.

1413. Have you asked them to fix the price before?-Yes.

1414. Did they refuse your request?-Yes. They refused to state a price then, and said they would give the currency of the country at the end of the season.

1415. Have you asked them to pay for the fish as they were delivered?-No; I never asked them for that.

Lerwick, January 3, 1872, CATHERINE PETRIE, examined.

1416. You come from the island of Fetlar?-Yes.

1417. Where do you live there?-In Aithness.

1418. Are you a married woman?-No.

1419. Do you live with your people?-Yes.

1420. Are you in the habit of knitting?-Yes.

1421. What do you knit?-Fine shawls and veils.

1422. Do you knit these articles with your own wool?-Yes.

1423. Do you make your own worsted, or buy it?-I buy wool, and make it.

1424. Where do you buy it?-From any person who sells it. There is a Mrs. Smith in Fetlar who sells wool. She lives at a place called Smithfield.

1425. Has she a shop?-No. They formerly had shop, but they don't have one now. She is a widow

1426. Has she any land?-Yes; she has a small farm. She has some sheep, and she obliges any person with wool who wants it.

1427. Do you always buy your wool from her?-[Page 29] Sometimes from her, and sometimes from any merchant I can get it from.

1428. Do you pay for it in money?-Yes; or in work.

1429. What kind of work?-Any kind of household work that they have to do. People employ others to do so much work, and give them wool for it.

1430. Do you mean work on their farms or ground-Yes; and they will give them wool in return, because the wool in Fetlar is so scarce.

1431. You knit on your own account, and sell what you knit?- Yes.

1432. Do you sell it to merchants in Fetlar?-No. There are no merchants in Fetlar who take it. I come down to Lerwick with it once a year.

1433. Do you then bring in with you all that you have knitted during the season?-Yes.

1434. How much will you bring?-It is not much; perhaps two or three shawls. I have had as high as five shawls when I came down. We have household work to attend to, and we cannot knit so fast as they do here in Lerwick.

1435. It is just part of your time that you can give?-Yes.

1436. Have you come down just now for the purpose of selling the articles you have knitted?-Yes.

1437. How many shawls did you bring with you this year?-Two.

1438. That is less than usual?-Yes.

1439. How do you get paid for your shawls?-I get goods out of the shop.

1440. Does the merchant fix the price 'for the shawl' when you take it in?-Yes.

1441. How much did you get for the two you brought down this time?-16s. for one, and 17s. for the other; and I had one belonging to another person that I got 19s. for.

1442. Who was the merchant that you sold them to?-Mr. Sinclair.

1443. What did you get for them?-Goods.

1444. Did you ask for money?-I did not ask for money, because it has been understood for many years back that they would not give any, and goods are marked on the paper that we get. When I come down I employ a person to dress the shawls, and then that person sells them for me in the shop, and I get back a note from her, stating the amount in goods that I am to get for them. I understand not to ask for money, because the thing is always in that form.

1445. When you get the note, do you hand it back at the shop and get the goods in return?-Yes.

1446. Have you got any of these notes?-No; I have got the goods for them, and I was preparing to return to Fetlar when I was summoned here.

1447. Is the note printed or written?-It is all written.

1448. Who is the dresser that you employ?-A Miss Robertson. I don't know where she lives. The woman I live with when in Lerwick-Mrs. Park, Charlotte Place-went with her when she sold the shawls.

1449. Do you never go to the shop and sell your own shawls?- Sometimes I do; but not this time.

1450. Did you ever go to the shop to sell your shawls, and ask to be paid in money?-No; because I understood I would get no money.

1451. Did you ever get any part of the balance in money?-None.

1452. What do you get in goods?-Any kind of soft goods which I want, and which are in the shop. If the goods I want are not in the shop, then they would say that they did not have them; and I would have to take something else.

1453. Is it just soft goods that are in the shop?-Yes.

1454. Not provisions?-No; not provisions.

1455. Is there any tea?-No.

1456. You go to the shop yourself for your goods, and hand your line in payment for them?-Yes.

1457. Could you the same goods in Fetlar?-I could get the goods in Fetlar if I had money to give for them; but I could not get money for shawls or veils in Fetlar.

1458. But if you had the money, could you get the goods as good and cheap in Fetlar as in Lerwick?-Yes; they are very cheap in Fetlar. Messrs. Hay Co. have a shop there.

1459. And you think you could get your goods as good and cheap there as you can in Lerwick?-Yes.

1460. And of course you would not have to carry them back with you?-No.

1461. Are there many people in Fetlar who knit the same way as you do, and come in to Lerwick to sell their shawls?-Yes; there are a good many people who knit in the same way that I do, and come down here with their shawls, because there is no other way of disposing of them.

1462. Do they get their payment in the same way?-So far as I know, they do.

1463. Do they always get goods for their lines when they come down?-Yes.

1464. Will they not get a line to come down at another time for the goods?-No; I don't think they would get them in that way.

1465. Suppose you did not want the whole amount of your line in goods at one time, could you not take the line home with you, and when you happened to be again in Lerwick might you not get the balance in any kind of goods you wanted that were in the shop?- Yes; and I could get the goods at any time if I were to send down the line.

1466. Is that sometimes done?-I have never done it; but I suppose the merchants would do it.

1467. Did you ever know of a line being sold to another for money, or for another kind of goods?-No; I never did that myself, and I don't know of it being done.

1468. Is it all drapery that you are taking back?-Yes.

1469. Then you will have about £2 or £3 worth of it this time?- Yes.

1470. Do you want all that for your own use?-The girl for whom I sold one of the shawls will get her share of it.

1471. But when you brought down five shawls you might have twice as much to take back as you have this time?-It is not very much that they give for the shawls sometimes; and once, when I came down from Fetlar and had to pay the freight, I had to take what they would give me; and I could not get what I asked.

1472. Is it all stuff for, your own use that you are taking back, in exchange for your own, shawls which you sold?-Yes.

1473. Do you want the goods?-Yes.

1474. Are you to use them for yourself?-Yes.

Lerwick, January 3, 1872, MARGARET TULLOCH, examined.

1475. You live in Lerwick

1476. Are you in the habit of knitting for merchants here?-Yes.

1477. Do you buy your own wool?-For about eighteen months I have bought it.

1478. Before that, how did you do?-I knitted for Mr. Robert Linklater.

1479. You got the wool from him and knitted it, and took back the articles to him?-Yes.

1480. When you got the wool from him, in what way were you paid?-In goods.

1481. Had you a pass-book?-Yes.

1482. Have you got it with you?-Yes. [Produces it]

1483. The goods you got at the shop are entered in the first part of the book, and then at the end there are entries of the knitted work which you have brought back to the shop?-Yes; I knitted a great deal before I took the pass-book out at all.

1484. The knitting begins on July 7th, 1869, and the goods begin in November 1866, and there was balance due for knitting of £3, 17s., 10d., which is not entered in the book at all: how do you explain in that?-It was them who always made up the book.

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1485. Had you a pass-book for goods before this?-I knitted a long time before I took a pass-book.

1486. When did you begin to knit?-I cannot remember how many years it is ago. I had knitted for two or three years to Mr. Linklater before I got the book.

1487. Are the goods which are entered here just for your own use?-No; I sold some tea and got money for it, for I could not get money out of the shop.

1488. I see that in, 1867, on January 3d, you have, Tea 1s. 10d.; 24th, 9d.; 26th, tea 11d., tea 11d., 1s. 10d: does the last entry mean that you got two separate parcels of tea, each 11d.?-It may have been that; I cannot exactly say.

1489. How much tea would you get for 11d.?-A quarter of a pound.

1490. Then you got two quarter pounds on one day?-I suppose so. One would be for my own use and the other not.

1491. What would the other be for?-I would likely sell the other, in order to get money for it.

1492. Who do you generally sell it to?-I cannot remember who I sold it to. Sometimes there would be men coming to the house to buy, tea, and I supplied them.

1493. What kind of men were these?-Men come from the country and want to have some tea made and I supply them with it because I have it in the house.

1494. Do you keep lodgers?-I have very few lodgers; but sometimes people come from the country and want tea made for them, although they do not stay all night.

1495. Why, did they not stay all night?-Because they went home.

1496. Was it part of your business to take in people and give them tea?-No; but they would come into the house and get tea made, and then go out and do their errands.

1497. Then they came to your house to get refreshments?-Yes.

1498. And they sometimes paid you for the which they got?-Yes; I was always paid for the tea which I gave them in that way.

1499. Did you sell it to them in quarter pounds or smaller quantities?-Smaller quantities.

1500. Do you make a profit off that?-I get money for that, but I cannot say that I make a profit. Sometimes I had people working for me, to whom I gave a quarter pound of tea.

1501. When you got two quarter pounds, would you sell one quarter entire?-Yes. When people were working for me, then I had to give them a quarter of a pound of tea in order to pay them, because I did not have money to give them.

1502. What people had you working for you?-I have sometimes been sick, and I have had a person attending upon me, because I am not healthy; and I had to pay these persons in tea.

1503. Are you a married woman?-No.

1504. Have you a house of your own?-Yes; a room.

1505. The entries in this book only come down to February 1870. Have you had no book since then?-No.

1506. Have you still been dealing with Mr. Linklater?-No; I have been working for myself with my own worsted. That was when I stopped knitting for him.

1507. I see an entry on September 9th 1868, Tea 10d., tea 8d., 1s. 6d.: would these be two quarter pounds of tea of different quality?-Sometimes they would be that, and sometimes not.

1508. But I am speaking of that particular entry. Was it so in that, case?-I cannot remember.

1509. But when you got tea at 10d. and tea at 8d., that must have been two quarter pounds of different qualities?-Yes; I would get better tea, and tea that was not so good.

1510. When you got them on the same day, would you be intending to sell one of them?-Yes.

1511. Is that a common practice, to get two quarter pounds of tea and to sell one of them, or to get several quarter pounds in payment for your shawl?-No; I just got it as I asked for it.

1512. Have you sold anything else besides tea which you got from the shop?-Yes, cottons and some moleskins which I had to take out of the shop in order to pay my rent.

1513. I don't see any moleskins marked here?-No; they are not in that book.

1514. Had you any other book?-No; it was when I sold my own shawls that I took the moleskins.

1515. You say you buy your own wool: where do you buy it?- There is a woman who spins it for me. I buy it in worsted.

1516. Do you pay her for it in money?-Yes.

1517. And you sell your shawls to any merchant who will buy them?-Yes.

1518. How are you paid for them?-I sold the last two to Miss Robina Leisk.

1519. Is she a merchant in Lerwick?-Yes.

1520. Has she a shop?-Yes.

1521. How were you paid for these shawls?-I got £2, 14s. for the two-27s. apiece.

1522. Were you paid in money?-No.

1523. Were they fine shawls?-Yes

1524-5. Did you get any part of that sum in money?-14s.

1526. Was that all you asked for in money?-Yes.

1527. And you got the rest in goods?-Yes.

1528. Did you want these goods for your own use?-No; I took some moleskins to sell.

1529. Was that because you could not get the rest in money?- Yes.

1530. Did you ask for more in money?-She did not want to give me more.

1531. Did you ask for more?-I did not ask for it, because I knew I would not get it.

1532. Did she say she would give you that much, without your asking?-Yes.

1533. What did you do with the moleskins?-I sold them.

1534. How much of them did you take?-21/2 yards.

1535. What was the price of them?-2s. 8d. a yard.

1536. Was there anything else you bought for the purpose of selling?-Yes; I bought some cotton.

1537. Have you sold it?-Yes.

1538. Did you get as much for it as you paid?-Yes.

1539. Did you get a little more?-No; no more. I thought it a favour to get the same price.

1540. Did you know any person who would take these goods from you at the time you got them, or did you buy them on the chance of selling them?-No; I knew a person who would buy them from me.

1541. Is that the way you generally deal when you have shawls to sell?-Yes.

1542. You get some things that you want, and some things that your neighbours want, and as much as you can in money?-Yes.

1543. Do you often get tea for the purpose of selling it?-I get it when I ask it; but I only ask it when I know of a person who will take it from me for what they have done for me.

1544. How do you purchase the provisions-the meal and bread- that you want?-When I sell anything that I get for my work, I buy them with the money.

1545. But if you don't have the money, what do you do?-I don't have money at the time, I go down to a shop and get it from them until I can get the money to pay for it.

1546. What did you do with the 14s. that you got for the shawls from Miss Leisk?-It would go for worsted to make other things.

1547. Have you always to pay money for your worsted?-Yes.

1548. You don't get provisions, either meal or bread, at the shops where you sell your shawls?-No.

1549. Is that never done in Lerwick?-No; I never had it done to me. Those who buy the shawls keep nothing of that kind.

1550. Would you be content to take a lower price [Page 31] for your shawls if you were paid for them in money instead of goods?-Yes.

1551. Have the merchants ever offered you a lower price for your shawls in money?-No.

1552. Have you ever asked them to do that, or tried to get them to do it?-I knew that I need not try that, because I would not have got it.

1553. Do you manage to sell many of your shawls privately in the town, or to visitors in the summer?-No.

1554. Is there not a good deal of that done in Lerwick?-I believe some people do that, but I don't do it.

1555. Is it not an advantage to get them sold in that way?-Yes; I think it would be an advantage to get ready money.

1556. Do charitable ladies sometimes take the shawls-and get them sold to their friends at a distance?-I can say nothing about that, because I never sold them in that way.

1557. Do you give receipts for the goods or money which you get as the price of your shawls?-No.

1558. The transaction is all done across the counter, without any writing?-Yes.

1559. Do you know whether the shopkeeper enters the price of the shawls, and the amount of the goods sold to you in return for them, in any book? Do you see whether that is done?-No, I don't see it.

1560. You have never noticed that?-No.

Lerwick, January 3, 1872, MARY HUTCHISON, examined.

1561. You live in Lerwick?-Yes.

1562. Are you in the habit of knitting?-Yes.

1563. Do you knit with your own wool?-Yes.

1564. Do you sell your knitting in Lerwick?-I sell some of it in Lerwick; but I send the most of it south, to Mr. John F. White, Edinburgh.

1565. Do you also act as an agent for him in Lerwick, by taking in things from other people?-Yes; a little.

1566. How are you paid for the articles you send to him?-I am paid in ready money.

1567. Is it remitted to you by a post office order or a bank cheque, as the case may be?-Yes.

1568. How much do you send to him?-I never send a large quantity. I just send what he tells me: a few shawls at a time.

1569. He gives you orders which you execute?-Yes.

1570. Do many women who knit come and sell their shawls to you?-No; I don't buy shawls. I give out wool to be knitted.

1571. How do you purchase your wool?-I buy it for money.

1572. From merchants in Lerwick?-Yes. Sometimes I buy from Mr. Sinclair, but generally I send to the North Isles for it, to people who buy it in there.

1573. There are people in the North Isles who buy the wool from their neighbours and sell it to you, such as Mrs. Smith, who was spoken of by a previous witness?-Yes; much the same.

1574 Have you dealt with her?-No.

1575. Do you pay the women who work for you in money?-Yes.

1576. You don't keep a store?-No, nothing except the money; or whatever they require they got it.

1577. Do you make a bargain when you give out the wool, or fix price when you see the work?-I buy the wool, and employ them to knit it.

1578. You do not merely act as agent for Mr. White?-No; I just buy the wool and employ the women, and pay them according to the size of the shawl.

1579. How many women are working for you in that way?-I cannot say exactly.

1580. Are there about half a dozen?-Yes, just about that.

1581. Do you find that the women here are anxious to work for you?-Yes; they are anxious to get money.

1582. You think they would much rather work, for you than for a merchant who keeps a shop?-Yes; I am never at a loss for them. When I am in a hurry I always get them to help me, because I pay in money.

1583. I suppose you get the choice of the knitters?-I don't know about that. I just get done what I have to do.

1584. Have you often been applied to by women who were anxious to work for you rather than for the shops?-Yes; very often.

1585. Do they tell you that it is a kindness or charity to employ them?-Yes; because they could not get the money out of the shops.

1586. Do you know, from your own observation of the system, as to the mode of dealing at the shops?-I often sell shawls in the shops, although I am not in the habit of going with them myself, so that I am often dealing a little in the shops.

1587. You send them by some other person?-Yes: I employ a girl to go and sell them for me.

1588. In that case, how is the transaction carried out?-I just get a line out of the shop, and get goods for it.

1589. Is the line in your name?-No; it is just a simple line or I O U, and I send it back: to the shop at any time when I want the goods.

1590. Have you any of these lines with you?-I have one at home, which I will send in.

1591. From whom did you get it?-From Mr Robert Sinclair.

1592. Have you sometimes got these lines from knitters?-Yes; often.

1593. They wanted money, and could not get it at the shops, and brought their lines to you?-Yes; I have often taken a line and given them money for it in order to meet their necessities, because they would not get money elsewhere.

1594. You kept these lines until you could make some use of them yourself?-Yes. Whenever I required any little thing, I sent to the shop for it, and paid for it with these lines.

1595. Have you any of these lines belonging to other women in your hands just now?-I have not.

1596. How much money may you have had lying out in that way at a time?-Not very much; perhaps a few shillings now and then.

1597. Are the lines generally for a large amount?-No; from 8s. to 7s. or 8s., or thereabout.

1598. May you have had two or three of them at a time?-Perhaps one or two.

1599. Have you known other, people taking lines in the same way?-Yes;, I believe there are many who do it.

1600. Do you know any one who is often applied to in that way?- I cannot say exactly; but I have often taken a line from Miss Elizabeth Robertson, who was examined on Monday, and given her money for it, because she was in necessity.

1601. Does Janet Irvine knit for you?-Yes.

1602. Have you taken lines, from her?-No; she is a fish-girl, and does not knit much.

1603. In selling your own shawls to the shops, have you asked for money?-No; but I have told the girl who went with the shawls to sell them for me to ask for a shilling or two, and she said she need not ask for it because she would not get it.

1604. But that was a case of sale. You know nothing about the case where, the wool has been given out by the shops?-No, I don't know about that, because it is long since I knitted any for the shops.

1605. Do you know of any other person in Lerwick who sends hosiery south in the same way?-Yes; there are plenty of them through the town.

1606. Do they send the hosiery, south direct to White or to other merchants in Edinburgh or Glasgow?-Yes; there are, plenty who do that; but I never have any dealings with any one except Mr. White.

1607. Who else in Lerwick deals in that way with [Page 32] the shops in the south?-There is a Mrs. James Henry in Burn's Lane, and a Mrs. Elizabeth Anderson, and several other people.

Lerwick, January 3, 1872, CATHERINE BORTHWICK, examined.

1608. Are you a knitter in Lerwick?-I am.

1609. Do you buy your own wool?-No.

1610. Who do you knit for?-For Mr. Robert Sinclair, Mr. Thomas Nicholson, and sometimes for Miss Robina Leisk.

1611. Have you books with all these people

1612. Have you any pass-book at all?-No.

1613. You get the wool weighed out to you, and you take back the article which has been ordered?-Yes.

1614. What articles do you knit?-Veils, shawls, neckties, ladies' scarfs, and the like.

1615. How long have you been doing business in that way?- About fifteen years.

1616. How are you paid?-Just in goods from the shops.

1617. You take an article which you have made to the shop, and tell them what the price is?-No; they price it themselves.

1618. Do they price it when the material is given out to you?-No; they price it when the article is brought to them again.

1619. When they have fixed the price, what takes place?-I can get anything out of their shop in the shape of goods that I ask for, only I cannot get any money.

1620. Do you not get part of the price in money?-No; I have never any money from Mr. Sinclair, except perhaps 5s., for the whole fourteen years I have wrought for him.

1621. Do you get money from other dealers you have mentioned?-I have got a little money from Mr. Thomas Nicholson; but it is not long since he began business for himself.

1622. Do you often go into the shops with articles worth about 10s?-Yes.

1623. How much of that do you get in money?-I have never got any money from Mr. Sinclair at all. It is about seven years since I asked him for 1s., and he would not give it me, and I have not asked since.

1624. Can you only get dry goods and tea at the shops?-I can get tea, and soap, and soda, and blue, and starch, and the like of that.

1625. How do you get your food?-I have a father, who buys it for me.

1626. You live with your father, and get your food with the family?-Yes; what his wages can bring in.

1627. Is that the only way you have of getting a living?-No; sometimes I have to take things out of the shop and sell them for money.

1628. To whom do you sell them?-To any neighbour or any person who requires them.

1629. Do you do that often?-No; I have not done it for the last two years, because some of the ladies in the town have employed me to knit for money.

1630. Do you prefer to sell to ladies in the town?-Yes.

1631. Are the goods which you knit for them for their own use?- Yes; or perhaps they get an order from the south, and they will rather put the money our way than go to the merchants with it.

1632. Do many ladies befriend you in that way?-Not many. There is Mrs. Walker, the Rev. Mr. Walker's lady.

1633. Who else?-I have not done anything for any other person for money.

1634. But Mrs. Walker pays you in money?-Yes; and the same amount as I would get in goods from the shops.

1635. Are the women who knit anxious to get customers of that kind?-Yes.

1636. Would you be content with a lower price for your shawls if you could get it in cash?-Yes.

1637. Have you ever been to take a lower price and get the money?-No.

1638. Have you ever offered to take less for your shawls if you could get money?-Yes.

1639. To whom did you make that offer?-I offered a white half- shawl to Mr. Robert Sinclair, and I also offered a white half-shawl to Mr. Thomas Nicholson.

1640. When?-The one I sold to Mr. Nicholson was in the spring, and that to Mr. Sinclair was about two years back.

1641. How much less did you offer to take in these cases?-2s. The shawl was worth £1, and I offered it for 18s.

1642. Was anything due to you by Mr. Sinclair at the time you asked for the shilling?-Yes; I think he was due me about 5s. 6d. at that time.

1643. Do you mean that you took goods to the shop worth 5s. 6d.?-No; he was due me about 5s., 6d. at that time. I was knitting a shawl for him, and was settling up for it.

1644. Was the shawl not finished?-Yes; I brought the shawl ready, and I was settling up. I had all the price of the shawl to get, and I took some goods, and then there was about 5s. 6d. over; and I asked him for 1s., and he said he could not give it to me.

1645. How did you square the balance at that time?-I just took something to give to a girl who had been working in our peats.

1646. What did you take?-A petticoat.

1647. Was it worth. 5s. 6d.?-Yes; the girl took it because she knew I could not get the money.

Lerwick, January 3, 1872, MRS. MARGERY MANSON or ANDERSON, examined.

1648. Are you a knitter in Lerwick?-Yes.

1649. Do you knit with your own wool?-I have done so for the last twelve months.

1650. Before that, who did you knit for?-For Mr. Robert Linklater.

1651. You got wool from him?-Yes.

1652. Were you paid for your work in goods, or in money?-In goods.

1653. Did you get any money from him that you asked for, if you, wanted some?-I knew that I need not ask him for any, because I would not have got it.

1654. You are married, and therefore you don't spend all your time in knitting?-No.

1655. Why did you give up knitting for Mr. Linklater?-Because I could not do with it; it did not pay me.

1656. How did it not pay you?-I could not get money.

1657. But were the goods you got not as good you as money?- No.

1658. Were they not worth the money value that was put upon them?-No.

1659. Why was that?-I did not have money to live upon.

1660. But your husband keeps you?-No; he is sickly, and I have to do for myself.

1661. You have heard the evidence of the preceding witnesses, Catherine Borthwick and Margaret Tulloch?-Yes.

1662. They have explained the way of dealing here. Is that the way you have been accustomed to?-Yes.

1663. Have you anything different to say about the way in which you were paid for shawls that you knitted with Mr. Linklater's wool?-No.

1664. Did you ever get lines when you would not take goods?- No; I had a pass-book.

1665. Have you got it here?-No.

1666. Was it kept in the same way as Margaret Tulloch's?-Yes.

1667. The goods you got were entered at one end, and the shawls you gave in were entered at the other, and a balance was made now and then?-Yes.

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1668. How often was your book balanced?-I don't remember.

1669. Did you sign your pass-book as a receipt?-No; he signed it.

1670. You have had no pass-book since you began to knit with your own wool?-No.

1671. Where do you buy your wool now?-I have a woman spinning for me, and I buy the worsted from her.

1672. You pay her in ready money?-Yes.

1673. Do you sell your shawls to any person in particular?-Yes; to Mr Robert Sinclair.

1674. Are you paid for them in goods?-Yes, and a little in money. I always get some money from him to buy the worsted with.

1675. Would you be content with a lower price for your shawls if you were paid in money?-Yes.

1676. Have you ever asked to get it all in money, and offered to take less?-No.

1677. Do you ever sell shawls to ladies or to any person not in the trade?-No; Mr. Robert Sinclair has bought them all from me.

1678. Have you ever asked for more money from any of the merchants than they would give you?-No.

1679. Have you ever got lines?-Yes, I got lines from Mr. Sinclair.

1680. When?-When I gave in my articles.

1681. And when you did not happen to want goods?-Yes.

1682. Have you got any of these lines?-No.

1683. What did you do with them?-I gave them back when I got the goods.

1684. Was that long ago?-No, not long ago; it was when I sold my last shawl to him.

1685. Would that be a month or two?-Yes.

1686. Was a line given to you for the whole price of the shawl that you were selling, or was it only for the balance?-27s., was the price of the shawl.

1687. How much of that did you take in goods?-I took about one half of it, and I got a line for the rest.

1688. Did you take the line out in goods afterwards-Yes.

1689. You did not think of asking money for the line?-No; I never asked money at that time.

1690. Did you ever know of people selling their lines to their neighbours?-No.

1691. Or dealing with them in any way, or letting their neighbours get goods for them?-No.

1692. How much of the 27s., the price of your last shawl, did you get in money?-7s.

1693. When was that?-I think about two months ago, I do not recollect exactly.

1694. Was the 7s. all that you asked for?-Yes; I asked for the 7s. and he said he would give it to me.

1695. Did you take 4s. or 5s, worth of goods at the same time?- Yes; or perhaps more.

1696. And the rest in a line?-Yes.

Lerwick, January 3, 1872, JEMIMA SANDISON, examined.

1697. Are you a knitter in Lerwick?-Yes.

1698. Do you knit with your own wool?-No.

1699. Do you knit for merchants in the town?-Yes; for Mr. Robert Sinclair.

1700. Have you a pass-book?-Yes. [Produces it.]

1701. Do you deal with Mr Sinclair in the way which has been described already by the Witnesses you have heard?-No.

1702. Do you deal in a different way?-Yes.

1703. How is that? You get wool from him to knit into shawls or veils?-Yes; chiefly veils.

1704. The goods you get are entered in the passbook you have produced, and the goods given in are entered at the end of it?- Yes.

1705. Are the goods supplied to you always goods which you are requiring for your own use?-Yes.

1706. You do not sell any of them, or get them for your neighbours?-No; unless such goods as my own family require.

1707. Do you live with your own family?-Yes; with my mother.

1708. Do you get part of the payment for your shawls and veils in money?-Yes; whenever I ask money I get it. I never asked a shilling from Mr. Sinclair himself but that I always got it.

1709. When you got money for a shawl, how was it entered in the book?-I cannot say anything about that.

1710. If you were to take two veils to Mr. Sinclair and ask the money for them, do you think you would get it?-I cannot say, because I never asked it; but whenever I asked for a small quantity of money, such as 2s. or the like of that, I got it.

1711. What quantity of goods did you generally take at a time?-I cannot say that either. I don't think I ever had money to get out of his book. I was always due him something, and in that way I could not ask him for money.

1712. Then your account was larger than the value of the articles which you took to him?-Yes.

1713. If that was so, did you ever ask him for money at all?-Yes; sometimes, when I was in a strait for money I asked him for a little, and I got it.

1714. Then that was an advance, which he made when there was nothing due to you?-Yes; I have asked him for money when I was due him.

1715. But you don't know how that was entered in the pass-book, or whether it was entered there at all?-No; I don't think it was entered.

1716. I see there are entries in your pass-book: April 28, 1871, cash 1s.; April 26, cash 6d.: is that the way the money was entered?-Yes.

1717. There is an entry of worsted, 5d. was that worsted given to you for the purpose of knitting shawls to Mr. Sinclair?-I asked for worsted to buy, and I got it to knit for myself, and to sell again.

1718. Then it is entered in the pass-book just as goods?-Yes.

1719. Is there any difficulty made about giving you worsted in that way and entering it in the pass-book?-No; whenever I ask for worsted, I get it the same as any other thing out of the shop.

1720. Were you ever told that worsted was a money article?-No; I never was told that, so far as I can remember.

1721. Have you dealt in any other shop than Mr. Sinclair's in this way?-No; I have knitted for two and a half years for Mr, Sinclair.

1722. And always in the same way?-Yes.

1723. Are you a North Unst woman?-Yes.

1724. Do you live in Lerwick by yourself?-I live with my mother and my two sisters in a room.

1725. Does your mother knit?-No; she spins.

1726. Does she spin your wool?-No; she gets wool from other people to spin, and gets money for her work. She only spins for those who employ her.

1727. Does she spin for the shops?-No; she spins generally for ladies in the town, who employ her to make worsted for them.

1728. Ask her employers altogether ladies, not merchants?-They are just merchants' wives, and ladies in the town-chiefly Dr. Cowie's lady.

Lerwick, January 3, 1872, MRS ANN ARCUS, examined.

1729. You are a dresser in Lerwick?-Yes.

1730. How do you carry on that business? What is the nature of it?-I sometimes make shawls myself, and sell them. There [producing it] is a line of mine, which I got from Mr. Sinclair.

1731. Do you dress shawls or make them?-I dress shawls, and sometimes I make them or get them made.

1732. What is the dressing business?-Washing the shawls, and stretching them on the grass, and mending [Page 34] them and making them ready for the market. The stitches sometimes give way when they are stretched and then I mend them.

1733. Do you also bleach the shawls?-We whiten them with brimstone.

1734. You do that before stretching them on the grass?-Yes.

1735. That is part of the washing process?-Yes.

1736. Does every shawl, after being knitted require to be so dressed before it is sold?-Yes.

1737. The merchants don't buy shawls until after they are dressed?-No.

1738. Are your transactions in dressing shawls always with the knitters, or are they sometimes with the merchants?-Sometimes they are with the merchants, and sometimes with the knitters.

1739. Then the merchants do buy shawls undressed?-No; they do not buy them undressed, but they send some shawls out to be worked for themselves; and it is these shawls I dress for them

1740 In that way a knitter who works for a merchant has nothing to do with you?-No.

1741. When she has knitted a shawl with wool supplied by the merchant, she takes it to the merchant, and he sends it to you to be dressed?-Yes.

1742. It is only the knitters who work with their own wool who come to you?-Yes.

1743. Do you also buy shawls from knitters yourself?-No; but I get shawls made in the same way as the merchants do, and then I sell them.

1744. To whom do you sell them?-To the merchants.

1745. Do you send any shawls south?-No.

1746. Do you sometimes sell knitted articles to the merchants on behalf of the knitters?-Yes.

1747. When a knitter brings you a shawl to dress, I suppose she pays you in money?-Yes.

1748. What is the usual for that?-There are different charges, according to the size of the shawl; but for the general run of them it is 6d.

1749. And that is always paid by the knitter to you in money?- Yes.

1750. In what way is it that you are sometimes asked to sell articles for the knitters?-Because I cannot always have them dressed and ready for them to sell after the time they come in with the goods and before they go away again. These women come from the country, and I cannot have their things ready before they want to go home again; and therefore I sell them for them before they come back.

1751. You sell them as their agent?-Yes.

1752. And then you account to them for the price?-Yes. I get the price from some of the merchants, but others mark it in their books, and don't give lines. These merchants mark down the price of the shawl, and the name of the woman who owns it.

1753. And she, when she comes to the merchant again, arranges with him as to the price?-Yes.

1754. Is it within your knowledge that these shawls are always paid for in goods?-The country girls don't want money, and don't ask it. It is always clothing they need, and they get it.

1755. Then they just knit for the purpose of supplying themselves with clothing?-Yes.

1756. How is it that they don't want money?-They have some other way of doing at home, and I suppose they only want their clothing from the shops in Lerwick.

1757. Then the knitting with them is an extra sort of employment?-Yes; it is not exactly a livelihood for them.

1758. Is that the case with the town girls too?-No; they generally depend on their knitting for a living.

1759. Do they regard it as a hardship not to get money?-I can only speak for myself, not for them. When I have a shawl of my own, and ask some money on it, I get it.

1760. Do the town girls come to you to sell their articles for them?-No; they sell their own work themselves. I dress the shawls for them, and they get the price themselves-sometimes in money I suppose, to pay me with.

1761. You think they get sufficient money for their shawls from the merchants, to pay your charge?-They get money somewhere to pay me with: whether it is their own money or not I don't know. I don't take anything but money.

1762. You give them credit sometimes until their shawl is sold?- Yes.

1763. And then they come back you with the charge for dressing?-Yes.

1764. You shown me a line: where did you get it?-I got it in Mr. Robert Sinclair's shop-I think from his clerk.

1765. When?-When I sold my shawl-a shawl of my own, which I knitted myself.

1766. You did not want anything particular at the time, and therefore you took the line: was that so?-No. I asked him for a little money on the shawl, and I got it; and then I got the line, so that I could buy what I required afterwards as I needed it.

1767. Did you ask for money?-Yes; I asked for a little, and I got the sum which is marked on the line as having been paid to me in cash.

1768. He gave you 6s. in cash?-Yes.

1769. Was that all you wanted?-Yes. I did not ask for that sum, I only said I wanted a little money, he gave that.

1770. The line, is in these terms: 'C Z 91-Cr. bearer value in goods twenty six shillings 26s. stg. 'To cash 6s; to Vict. tartan 4s. 7d. ' ' White cotton, 6d.; wincey, 2s. 10d. ' ' Grey cotton, 6d. 'R. SINCLAIR & CO. 'C. S. '28.12.71'

This was last Thursday?-Yes.

1771. Was the shawl with your own?-Yes.

1772. Then it was just a sale to Mr. Sinclair?-Yes.

1773. You got 6s. in cash and 8s. 5d. in goods, and the rest is still due?-Yes, for me to get when I require it.

1774. Is that a usual way of doing business in Lerwick?-Yes; but I have got the whole of the price in money from a merchant for a shawl when asked for it-not for myself, but for a country girl.

1775. From whom have you got it all in money?-From Mr William Johnston. The price was 20s.

1776. Is he a hosiery dealer, just in the same way as Sinclair & Co., and Mr. Laurenson, and Mr. Linklater?-Yes. I have had money from them all whenever I asked for it.

1777. Would the women get money from them if they were selling the shawls themselves?-I cannot answer for that. I don't know that they would.

1778. Is it not the fact that the reason why you are sometimes asked to sell shawls for these women is that you can get the money for them?-I don't ask any money for the country girls at all; they never asked me to seek it.

1779. Do not the girls employ you to sell their shawls because they think you may get some money from the merchants, when they would not?-It is just because they think I can get a better price; at least that is what I think is the reason. They don't bid me get money.

1780. Do you think the merchants give you a better price?-They think so.

1781. Perhaps you can make a better bargain for them?-They have that idea.

1782. Have you never been asked by a country girl to sell a shawl for her and to get money for it?-Never.

1783. Then, on the occasions when you have got money, it has been for shawls which you have sold either for yourself or for town girls?-Yes, but particularly for my self.

1784. Have you sold them for town girls, and got money for them?-No; I have never asked money for any person but myself, and I have always got it.

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1785. How many shawls may you sell for yourself in the course of a year?-Sometimes there may be two.

1786. May there sometimes be three?-I could not tell the number particularly, but I have always one or two in the course of the twelvemonth.

1787. I suppose you are chiefly engaged with your dressing business, and have not much time to knit shawls?-Yes; the dressing is my only way of living.

1788. Are you a widow?-Yes.

1789. Have you often got lines similar to the one you have now produced?-Yes. Whenever I sell a shawl to Mr. Sinclair I get these lines, and then I give them to the girls to whom the shawls belong.

1790. Then they don't always want the value of their shawls in goods, but they sometimes take a line-Yes; and they keep it until they want something else. They are always served with what they want when they come with a line.

1791. You have not a pass-book with any of the merchants?-No.

1792. I suppose pass-books are only used where girls knit with the merchants wool?-Yes.

1793. Do you keep a pass-book with any of the merchants for the shawls which you dress for them?-No; I just get the money.

1794. Are you paid for them at the time?-Yes.

1795. Will the merchant send you a large consignment of shawls at a time to be dressed?-Yes; sometimes he may send a good lot.

1796. And you return the lot you have got when they are finished, and get paid for them when you return them?-Yes; in money.

1797. There is nothing entered in any book between you about that?-No.

1798. Are you the largest dresser in Lerwick?-I don't know that I am.

1799. Are there any others in the business?-Yes; there are a good many.

1800. Do they live mostly at the Docks?-No; there are one or two dressers who live at the Docks. They don't do so much as I do, but Mr. Sinclair has dressers of his own who do more than I.

1801. Does he pay them day's wages?-No; I think he pays them just as they work for him. The veils, neckties, and scarfs go by dozens.

1802. Is that the way you charge for these things?-I charge 11s. 6d. for a dozen veils, and the same for a dozen neckties or scarfs. I charge 6d. for every shawl, sometimes 3d. or 4d. if it is small, or 1s. if it is a very fine one.

1803. Have you ever sold shawls to any people except merchants?-I have.

1804. Do you sometimes sell to private ladies?-Yes, and gentlemen too.

1805. Do you sell to visitors in summer, and to people living in Lerwick?-Yes.

1806. Do you consider you are likely to get a better bargain with them than with the merchants?-I get the money from them.

1807. But you have no reason for dealing with them for the purpose of getting the money, because you say you get money from the merchants if you ask it?-Yes; but if a gentleman comes and asks me for a shawl, he has nothing to give me except the money, and I get it all in money then.

1808. Would you rather do with a gentleman or lady in that way than with a merchant?-It is only sometimes that they can take a shawl in that way; but the merchant always takes them.

1809. But would you prefer to deal with strangers rather than with the merchants?-If they were always here, I should like it very well.

1810. That is because you get a better bargain, and you are sure to get all money?-Yes.

1811. Is it not rather a favour to you that the merchant gives you money when you ask it?-I don't know whether it is a favour to me, but I always get it when I ask it. But I don't have such a great run of shawls as some of the other women have.

1812. It is rather out of your ordinary way to be selling shawls?- Yes; but when I do make one and ask money, I get it.

1813. Have you ever got the whole price of a shawl in money?- Yes.

1814. From the whole of merchants you have named?-No, only from Mr. Johnston; and that was for a country girl, because she was in need of it.

1815. That was a case in which you went out of your usual way, because the girl required it?-Yes.

1816. Have you asked the whole money from any of the other merchants?-No, I never did.

1817. You have only asked a part of it in money?-Yes.

1818. On a shawl worth 25s. that you were selling for yourself or for a girl, how much might you, in a general way, ask in money?- I have got as high as 10s. or 7s. 6d. or 5s., just as I asked it.

1819. But you never thought of asking the whole price of it in money?-No; but I was always requiring something that the merchants had to give me.

1820. Supposing you had a shawl to sell, would you give it to a merchant for a lower price if he paid it down in cash, than if he paid you in goods for it?-Yes; if I was requiring the cash, I would.

1821. Would you not do it in any case?-I would be glad of the money, certainly.

1822. Do you think it would be worth while for the knitters, as a rule, to take a less price for their shawls and to get money for them, rather than to go on in the present way?-I don't know about that. For my own part, I should like if the people were to get part of both-both money and articles. Nobody can live without articles; and it is just as well to get them from the merchants who buy our shawls, as to get the money.

1823. But if the merchants did pay all the price of the shawls in money, it would just come back to them, because, as you say very truly, people cannot do without some of the merchants' goods, and the money would return to them in payment for their goods. Don't you think, that would be a better system for all parties than the present?-Those who need money would like to get it; but some people don't stand so much in need of money as others. For instance, if I were knitting shawls only, I would need most of the price in money, because I have no other way of living but I don't mean to say that girls who work merely for the sake of getting clothing, require to get the whole price in money.

1824. But suppose they got all the price of their work in money, might it not be easier for them to make the purchases of the goods they require?-They would not get so much for their shawls then; they could not expect it.

1825. That is because the merchant makes a profit upon the goods he sells, as well as upon the shawls?-Yes.

1826. Are you aware whether it is a common thing in Lerwick, to sell shawls cheaper for money than they would be given for goods?-Yes, any person who required money would rather sell a shawl for 1s. or 2s. less, in order to get it.

1827. Have you often seen that done?-Yes.

1828. Have you often done that yourself on behalf of the country girls?-Yes.

1829. You mentioned a case where you got the whole price of a shawl in money from Mr. Johnston: did you, in that case, say you would give it for 2s. or 3s. less if you could get the whole price in money?-Yes; because the girl required it, and told me to do that. She wanted the money to pay her rent with.

1830. Was the price you got a fair price for the shawl?-It was at that time.

1831. Is there anything else you wish to say on this subject?-I have only to say that I think the girls ought to be very thankful to the merchants, for they have done more for them than any one in the place has done yet. They have bought their work, and then they have gone and distributed it throughout the country. This knitted work is not worn here; but the merchants have got a market for it, and therefore I think the girls ought to be very grateful to them.

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1832. Do you think they would not have got a market for their goods themselves?-No; plenty of them would never have been able to have gone to the market, even if they had thought of it.

1833. How long is it since that trade became general here?-I can hardly tell; I was a little girl when it began. The first shawl I made I got 7s. 6d. for, and I was very proud of it.

1834. How much would you get for that now?-They would not buy such a thing now, the work was so open. I can just recollect of it. I don't think I was much more than ten years at the time. I sold it to Mr. Harrison, and he and Mr. Laurenson were about the first who began to buy them. We got groceries and everything we wanted then for our shawls.

1835. You do not get these things now, because the merchants who buy the shawls don't have them?-They have them all except groceries.

1836. With regard to the girls in town who sell the shawls to merchants and get only goods in return, how do they do for a living?-Some girls live with their parents, and can do very well.

1837. But a number of them live in rooms by themselves, and perhaps have a parent or some other person to support out of their earnings: how do they generally do for their food?-I can hardly answer that. I don't know how they do; but I know that some of the girls that I am in the habit of dressing the shawls for, come and tell me they have sold a shawl today, and what they got for it, and that they have got some money. Some of the merchants give them money, and some of them tea, and worsted to knit another shawl with; and that is just money.

1838. But if they have to make shawl with the worsted, they cannot turn it into provisions?-No; but they will make another shawl.

1839. And they may get 1s. or 2s. in money?-Yes.

1840. But if they only get 1s. or 2s. on each shawl, that is not sufficient either to pay their house rent or to supply them with provisions?-No; but I think there are

some of them who may get a shawl sold for all money, and then that pays the rent.

1841. They do happen to get that occasionally?-Yes; some lady who wants one for a present to a friend might buy it from them. That is the only way I can think of in which they can get their provisions; but if it was the case that the merchants had groceries in their shops, people would not require very much money, and then they would get their livelihood.

1842. What kind of goods do you generally get for your country girls in exchange for their shawls?-I do not buy them; they buy them for themselves.

1843. You get lines, and they choose the goods for themselves when they next come to town?-Yes.

1844. In that way you do not know what they get?-No; but I always hear them say that they got very good bargains, and they are generally well pleased.

1845. You say shawls are sometimes sold to a lady or gentleman passing through the town; I suppose, in that case, there will be two prices for them?-No.

1846. Would you ask from them the same price that you get from the merchant in goods?-We might ask it, but, seeing the money, we might give the shawl for less. Some people don't ask to have the price reduced, but others do.

1847. You just make the best bargain you can, in each case?-Yes.

Lerwick, January 3, 1872, Mrs. ELIZABETH MOODIE, examined.

1848. Are you in the habit of knitting for any one in Lerwick?- Yes; for Mr. Sinclair.

1849. Has any one asked you to come and give evidence here to-day?-Yes; I was summoned.

1850. Did any one ask you besides that?-No.

1851. Do you knit with your own wool, or is it with wool supplied to you by Mr. Sinclair?-Partly both, I generally have a shawl of my own in hand, but I always knit for Mr. Sinclair.

1852. Do you keep a pass-book?-No; I never had a pass-book with him.

1853. Are you paid in the same way both for your own shawls that you sell, and for those that you knit for him?-No; generally when I knit a shawl for Mr. Sinclair, he allows me so much for the knitting of it; but when I sell a shawl, I price it myself.

1854. Is that price paid in the same way that the wages are paid to you for knitting?-No.

1855. Is it paid to you in money in both cases; or in goods?-It is paid in goods in both cases.

1856. Is there not a certain part of it, in both cases, that you can get money for?-Yes. When I knitted for Mr. Sinclair before I was married, he generally gave me money whenever I asked for it; but since I had a house of my own, I generally manage my affairs so that I do not have to ask him for money. I usually take clothes for my

children and myself from him without getting money at all; but if I did ask him for money, I have no doubt he would give it to me.

1857. Have you always got money when you asked for it?-Yes; whenever I asked I got it.

1858. Do you generally take the whole value of your shawls in goods?-Yes, I always do.

1859. And no money passes between you at all?-No, not since I was married; but previously, when I asked him for money, I always got it.

1860. Did you generally ask for a considerable part of the price of your shawls in money?-Yes.

1861. How much might you get out of a 20s. shawl, for instance?- Perhaps I might have asked him for 2s. or 2s, 6d., and so on, money.

1862. Would that be about the usual thing?-Yes; that was generally about the usual thing.

1863. Did you ever get the whole price of a shawl or of any hosiery goods in money?-No; I never asked it.

1864. Do you live at home with your people, or did you live by yourself before you were married?-I lived at home with my father.

1865. So that you did not require any money with which to purchase food for yourself?-No.

1866. You merely knitted to supply yourself with dress, or whatever you wanted for yourself?-Yes.

1867. Did you require for your dress all the payments you received for your knitting?-No, I cannot say that I required it all for myself. I might have supplied some of my brothers or sisters with any little thing they wanted.

1868. Did they repay you for that, or did you make a present of it to them?-I generally made a present of it to them, as I was at home.

1869. Would you have preferred to have been paid wholly in money?-I should prefer to be paid part of both, if I could manage it.

1870. Would you prefer to get half the price in money?-Yes, I would like that very well.

1871. Could you not get one half of it in money if you asked for it?-I believe if I had asked for it I could have got it, but I did not ask it.

1872. Then, if you preferred it, why did you not ask for it?-I told you I managed my affairs in such a way that I did not need it.

1873. But you said you would have preferred to have had half of it in money?-Provided I could have got it, I should have liked it very well; but I did not ask that.

1874. Why did you not ask it? Do you think there would have been a difficulty in getting it?-I don't know; I only know that I never asked for one half of it in money.

1875. Why?-I generally took a line for what remained to me upon a shawl. I might have got the money instead of a line, but I did not ask it.

1876. You have taken lines sometimes?-Yes, I generally took them.

1877. Have you any of these lines have none just now?-No, I have none just now.

1878. When you get a line, do you always take it [Page 37] back to the shop, and get goods?-Yes; I sometimes take it back to the shop.

1879. What do you do with it at other times?-Sometimes a friend may require a line from me, and give me money for it.

1880. If you were selling your goods for ready money, would you take a less price for them?-Sometimes I have seen me take a shilling or so less if it was all money.

1881. But you said you never got the whole price of a shawl in money?-Occasionally I sold a shawl to a stranger in the place in the summer time, and I might give it to him for a shilling less.

1882. Do you generally get a smaller price when you sell to a stranger in that way?-Perhaps I may sometimes have asked a smaller price, as it was the money I was to get.

1883. If you wanted the money, why did you not, when selling your shawls to a merchant, ask him for the ready money, and take 1s. or 2s. less?-I don't know. I never thought of that.

1884. Was it not because it was not the practice here to give money?-Yes; that is the truth.

1885. Of course a shawl which you sold to a stranger in that way would be one knitted with your own worsted which you had bought?-Yes.

1886. Do you always pay ready money for your worsted?- Always.

1887. Do you always buy your worsted from the merchants in town?-Sometimes; and sometimes, when the country people come down, they have worsted with them, and I buy it from them too.

1888. Is the price the same in both cases?-Yes, always.

1889. If you were selling a shawl to a merchant and taking goods, and if you asked to have part of the goods in worsted, is there any objection made to that way of dealing?-No; I never heard any objection made to that.

1890. Did you ever get worsted as part of the goods you received in payment for your shawls?-Yes.

1891. Often?-Not very often; sometimes.

1892. You never knew of any objection being made to giving you worsted as part of what you were to get for your shawls?-No.

1893. Or for a line?-No; I never heard any objection.

1894. Do you knit to a large extent?-Yes; knit a good deal

1895. How much will you make in a month or in a week in that way?-I could not exactly say. It takes a good long time to make a nice shawl.

1896. Is it mostly shawls you make?-Yes.

1897. Will it take a month to make a shawl which is worth £1?- Yes. I have other things to do, and cannot keep constantly at it.

1898. But you do make one shawl a month or there about?-Yes.

1899. So that your dealings in that way will come perhaps £12 or £14 a year?-They will be more than that. I would reckon that they would be about £15.

1900. Would that all be your own knitting?-I could not say that. Perhaps I might get some one to help me a little with a shawl.

1901. But it would be mostly your own work?-Yes.

Lerwick, January 3, 1872, MARGARET OLLASON, examined.

1902. Are you in the habit of knitting for merchants in Lerwick?- No; I knit for myself, and I sell the goods.

1903. How are you paid for them?-I generally make articles for which I get an order.

1904. From whom?-From ladies who employ me.

1905. Have you never sold to merchants at all?-I have sometimes sold to Mr. Sinclair.

1906. When you sell to him, are you paid in money?-I have asked for part of both-money and goods-and I got it.

1907. You did not ask for the whole in money?-No.

1908. Why?-Just because I thought it was not the custom of the place.

1909. Did you want the whole in money?-No; I was requiring the goods at the time.

1910. Does it often happen that you sell articles to Mr. Sinclair in that way?-Yes; I sold him two shawls lately.

1911. How much of the price did you get in money?-The price of one of the shawls was 35s., and I got 17s. 6d. in money.

1912. Did you ask for that?-Yes.

1913. And you had no difficulty in getting it?-No. I sold the other shawl for 28s., and I got 8s. in money and £1 in goods.

1914. That was the arrangement that you wanted yourself?-Yes; I asked it.

1915. You wanted the goods?-Yes.

1916. Would you have made a better bargain by selling these shawls to a lady in Lerwick, or to a stranger visiting the place?-I got much the same price from Mr. Sinclair as I had been in the habit of getting.

1917. Do you sell to visitors, or to ladies in Lerwick, because you prefer to do that?-We sell to them because we are not requiring the goods.

1918. And you prefer to sell to them because you wish to get the money?-Yes.

1919. Do you live with your friends?-I live with my father.

1920. And you buy your own worsted?-Yes.

1921. Where do you buy it?-I get it from the North Isles,-from Yell.

1922. You get it from people who make it there?-Yes.

1923. Do you generally knit for ladies who have given you an order, or do you knit your shawl and then seek for a purchaser?- Sometimes I get an order for shawl and make it, and at other times I make one and keep it until I get an order.

1924. Is it considered among you who knit, to be a better way of living that you knit to ladies than to merchants?-Yes.

1925. Do you ever try to dispose of your shawls to visitors who come to Shetland in the summer?-No, I never did that, for I generally get orders for them as soon as I have them ready.

1926. Do you know that it is the practice to look out for visitors in summer, or to send shawls to places such as hotels or lodging-houses where they stay, in order to get buyers among them?-I know that is a common thing, but I have never done it.

1927. Is that done because it is a more profitable way of disposing of the goods than by selling them to the merchants?-I think that is the reason.

1928. Or is it done because they get money from the visitors or strangers?-I believe it is because they get money.

1929. Do you get as large a price from a visitor in money as you get from a merchant in goods?-Yes.

1930. Do you know that from your own experience?-Yes.

1931. You said you had sold a shawl for 35s. to Mr. Sinclair: if you had sold that shawl to a visitor, or to a lady in Lerwick, or to a stranger in the summer time, would you have got 35s. for it?-I would.

1932. Have you got that price for a shawl exactly the same?-Yes; I have got it from Dr. Hamilton in Bressay, who was requiring it for a lady.

1933. You sold another shawl for 28s. Could you have got as high a price in money from a visitor for it as you got in goods from the merchant?-Yes.

1934. You don't know that there are two prices for shawls, according as they are paid in money or in goods?-I don't know that, for I have not experienced it.

1935. Would you have given either of these two shawls you mentioned for a lower price if you had got the whole price of it in money?-No; I don't think [Page 38] I could have done it, for I thought the shawls were worth the price I put upon them.

1936. Don't you think you could have got a higher price than 35s. for that shawl from a visitor?-I don't think it.

1937. When you sold the shawl to Mr. Sinclair at that price, you knew that he was buying it for the purpose of selling it again: was the price which he gave you not something of a wholesale price?- It was just the price I would have asked any one for it, because it was just what I thought it was worth. The price I put upon it was just sufficient to pay me for my worsted and my work.

1938. But Mr. Sinclair must make his profit off the shawl when he purchased it in order to be re-sold, so that there may be two prices in that way: do you know anything about that?-No; I don't know anything about it.

1939. You thought you ought to get at least 35s. for the shawl, and you were prepared to take as much more as you could get?-Yes.

Lerwick, January 3, 1872, Mrs. BARBARA BOLT, examined.

1940. You are the wife of William Bolt who lives in Lerwick?- Yes.

1941. Are you in the habit of knitting Mr. Sinclair?-I knit for myself, but I sell my work to Mr. Sinclair.

1942. You have no pass-book in that way of dealing?-No.

1943. Did you hear Margaret Ollason's evidence?-Yes.

1944. Do you knit the same kind of goods as she does?-No; I generally knit veils and shawls to Mr. Sinclair.

1945. Do you deal in the same way as she has described?-Yes; something like the same.

1946. Do you sell to other people than Mr. Sinclair?-No; I generally sell everything have to him.

1947. When you go to him to sell your work, do you get payment in money or in goods?-In goods.

1948. Do you prefer that way of dealing; or do you want all money?-I generally require goods.

1949. Have you a family?-Yes; the goods were wanted for them.

1950. You don't get provisions there: you provide them otherwise?-Yes.

1951. Do you sometimes ask for money from Mr. Sinclair?-Yes, I have asked for money, and I got it when I asked it. I have not sold anything to any other shop for the last fifteen years.

1952. Would you prefer to get money if you could?-I don't know. If I were getting money, I would just have to buy goods with it, so that the goods are the same to me as

money.

1953. Do you know that any one can get money for their goods if they want it?-I know there are plenty who get it.

1954. But can any one get whatever money they require for their goods?-I don't know. I only know that there are many who want money; but for my own part, I generally ask for goods, and I get them; and if I require a little money, I always get it.

1955. Do you sometimes get lines?-Yes; and worsted to knit, which is the same as money.

1956. If you are in want of worsted, do you buy it from Mr. Sinclair in payment for your shawls?-Yes.

1957. Do you keep any account, or do you just deal across the counter?-I just get the things as I want them.

1958. You go to the shop and say you want so much worsted as part of what you are taking?-Yes.

1959. Do you get it at the ordinary price?-Yes; it is just the same price.

1960. Does your sister-in-law, Mrs. James Bolt, deal in the same way?-Yes; in the same manner.

1961. And, altogether with Mr. Sinclair?-Yes. We always knit together, and what hosiery we have we always sell to him.

1962. Do you buy the worsted from Mr. Sinclair exactly in the same way as you would buy a piece of cotton or a dress?-Yes; just the same.

1963. The price of the worsted is reckoned up as part of the price of the shawl that you are selling?-Yes. We get it on a line the same as the other goods.

1964. Of course: there is no writing: it is just a transaction across the counter unless there is a line?-Yes.

1965. But if you have a line, and bring it back to the shop in order to get goods, do you get worsted for it just as you get any other goods?-Yes; I have got worsted on a line.

1966. Do you know that these transactions are all entered in Mr. Sinclair's book?-Yes.

1967. You have seen that done?-Yes.

1968. The worsted is entered there as well as the other things?- Yes.

Lerwick, January 3, 1872, Mrs. WILHELMINA BOLT, examined.

1969. Have you anything different to say about the way in which you knit and deal in your hosiery business from what you have heard stated by your sister-in-law?-No; I have nothing more to say.

1970. You agree with her in everything?-Yes.

1971. And there is no difference or addition that you can state?- No.

1972. Have you asked for money and got all you wanted?-Yes; I never asked for money and did not get it. When I had a line from Mr. Sinclair, I just got the same goods from him upon it as I would have got for money.

Lerwick, January 3, 1872, MRS HELEN FLAUS, examined.

1973. Are you a dresser in Lerwick?-I dress a little and I knit a little.

1974. Did you hear the evidence which Mrs. Arcus gave to-day?- Yes.

1975. Do you do business in the same way that she described?- Much the same.

1976. Do you dress shawls for some of the knitters in Lerwick?- Yes.

1977. And you take ready money for that?-Yes.

1978. Do they sell the shawls direct to the merchants themselves?-Yes.

1979. Do you also dress shawls for knitters from the country?- Yes.

1980. Do you sell these shawls, or do you return them to the girls who bring them to you?-I sometimes sell them, and sometimes they sell them.

1981. When you sell them to the merchants, do you get ready money or lines, or do you get goods for the girls?-I get lines from those merchants who give lines, and those who give no lines mark them down in their books.

1982. Who gives you the lines?-Mr. Sinclair. Mr. Laurenson generally is the only other merchant I sell to and he marks them down in his own book. He does not give lines.

1983. You don't sell to any of the other merchants?-Sometimes I do.

1984. Do you sell to Mr. Johnston?-Not very much.

1985. Does he give you a line when you sell to him for a country girl?-Yes.

1986. Do you sell to Mr. Linklater?-Yes, occasionally. He does not give lines; he marks the articles down in his book.

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1987. How does he know the girl for whom the shawl has been sold, when he only marks it in the book?-I give in the girl's name to him, and she goes and asks for the amount that is marked in her name, and gets it.

1988. If she knows the amount?-I tell her the amount.

1989. Then she knows the amount, and that is sufficient to identify her?-Yes.

1990. Do these country girls sometimes ask you to get money for them rather than goods?-No; they have never asked me to do that.

1991. Do they sometimes get part of their payment in money?-I cannot tell about that. They always get a line from me, and I cannot tell how the merchants and they settle.

1992. Do you know whether lines are sometimes given for the goods which are sold by the knitters in town?-I cannot say anything about that.

1993. Or which are sold by yourself?-No; I don't know anything about that myself.

1994. You never took lines for the shawls you knitted yourself?- No; not for my own goods.

1995. Do you sometimes sell to strangers, or to people who are not in the trade?-No; I have never done that.

1996. I suppose you meet with people who knit a good deal, and have a number of transactions with them?-Yes.

1997. Do you know whether they prefer to sell to strangers, or to merchants in town?-Sometimes they require money, and at other times they require goods as well as money; and they would then just as well have the goods as the money.

1998. But if they want the money, can they not have it from the merchants if they ask for it?-I always got it when I asked it. For any others, I cannot say.

1999. Do you dress goods for any of the merchants?-No.

2000. Only for the knitters?-Yes.

2001. You are never employed by the merchants at all?-No.

2002. Can you tell me; why there is not a system of paying always in money for the hosiery?-Because it has not been a customary thing, and they never ask it.

2003. Would it not be just as convenient for all parties to pay in money?-I don't think it. I think we may just as well have the goods.

2004. But if you had the money, it would be better for the knitters, would it not; because they could buy what goods they wanted? They might have to hand the money back across the counter, but they would be able to make their own bargain for what they bought?-Yes; but they would get a less price for their shawls.

2005. How do you know that?-It is so stated.

2006. Who states it?-They generally say that if they get money, they will not get so much as in goods.

2007. Do you mean that the merchants say that?-Yes; when we sell shawls for money, they say they will not give so much for them in money as in goods.

2008. Who has told you that?-The merchants.

2009. Has that often been said to you?-Not often; but it has been said.

2011. Who has said it?-Mr. Sinclair: I sold shawl to him last night.

2012. And he told you last night that he would give you more in goods for it than he would give in money?-Yes, than he could give in money.

2013. What was the price of that shawl?-I got 15s. for it.

2014. Did you take that in goods?-Yes.

2015. Or in a line?-In goods.

2016. In goods that you took away at the time?-Yes.

2017. What would you have got if you had sold your shawl for money?-I cannot exactly say. He did not particularize that.

2018. You did not go into particulars, because you wanted the goods?-Yes.

2019. Do you sometimes sell goods that you get from the merchants?-No; for I always require them for myself.

2020. Is it the practice for some of the knitters to sell the goods they get?-I cannot say; I never saw it done.

2021. You never bought any goods from a knitter which she had got in that way?-No, never.

2022. You are always paid in cash for your own dressing?-Yes.

2023. Do you think the knitters generally would be content with lower prices if they got paid in cash?-I cannot speak for any one but myself.

2024. You don't know the feelings of the girls deal with you from the town?-I do not.

2025. Do you know how most of these girls are provided with their food?-I cannot say. Occasionally the girls don't require money.

2026. Is it not the case that a number of single women live in rooms in and knit for a living?-I cannot say, because I am not much acquainted through the place.

2027. You do not know the private circumstances of your customers?-I do not.

Lerwick, January 3, 1872, Mrs. ANDRINA MOUAT, examined.

2028. Where do you live?-I live in Girlsta, parish of Tingwall.

2029. Are you a married woman?-Yes

2030. Is your husband alive?-Yes, he is at Leith; but I have had nothing from him for five years. I live by my own knitting; and that is what has made me so anxious to come here.

2031 Have you any family?-I have only one son. He is sailing out of Leith.

2032. Do you knit with your own wool?-Yes.

2033. Where do you buy it?-I buy it mostly from my friends- some of it from my brother.

2034. Is your brother a farmer near where you live?-Yes.

2035. Do you pay him for the wool?-Yes.

2036. To whom do you sell your hosiery goods?-I always sold them to Mr. Spence before he went away. I made fancy stockings and knitted gloves, and things of that kind.

2037. You don't knit the fine hosiery; it is all stockings and gloves and mittens you do?-Yes, and men's frocks. I made them for Mr. Spence, but since he went away I have been very poorly off.

2038. He was a merchant in Lerwick?-Yes.

2039. Did he keep a shop here?-Yes.

2040. The same kind of shop as is kept by Mr. Sinclair and Mr. Linklater?-No. He had not so much goods in his shop, as Mr. Sinclair has, but he sometimes gave me money when I wanted it- either money or goods.

2041. Does his sister carry on the business for him now?-Yes.

2042. Do you sell to her?-No; she is not buying anything.

2043. How were you paid for your goods?-Just middling.

2044. Were you paid in money or in goods?-Either in money or goods.

2045. If you brought a lot of articles: and asked Mr. Spence to buy them, he would fix a price; and if the price suited you, you gave him the articles?-Yes.

2046. Did he pay you money across the counter?-Yes.

2047. Were you ever obliged to take goods from him?-Yes; many a time.

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2048. Did he tell you he would not give you money?-No; he did not say that.

2049. What did he say?-He just gave me anything I wanted- sometimes money and sometimes goods.

2050. He never told you that he did not want to give you money?-Sometimes he did so. Sometimes he was very unwilling to give money, but he did give it.

2051. Was that pretty often?-No; not very often. My articles were always good.

2052. Did you sometimes ask him to give you money when you did not get it?-Yes.

2053. Is it long since he left the business?-I have never sold anything to him since the month of July.

2054. Who do you sell to now?-I have sent what articles I have made since to my son in the south, and he has sold them in Leith.

2055. Do you get as good a price for them there as you used to get from Mr. Spence?-No.

2056. But your son sends you money for the goods you send to him?-Yes; he always sends me money, and his shipmates buy what I make.

2057. Do many women knit that sort of goods that you deal in- stockings and gloves?-A great many.

2058. Is it mostly that kind of knitting that is carried on in your part of the country at Girlsta?-Yes.

2059. They don't knit fine work there?-No.

2060. Who buys the sort of work they make?-Most of the merchants do so.

2061. Do the people in your part of the country generally get payment in goods?-Yes.

2062. Or in money?-No; they never ask for money.

2063. Why?-Because the country people are not needing it.

2064. Do they not need money?-Yes they need money; but when they get the goods the same they always ask the goods.

2065. You think there would no use getting money for your knitting, and just handing it back across the counter the next minute for goods?-I suppose that is what they think; but they would be better if they could get the money.

2066. Can they not get it?-Not very well.

2067. Why?-Because the merchants are not willing to give it.

2068. I thought you said the country people did not get money because they did not want it?-Well, sometimes there is no use of them getting it, and giving it back again to the merchant they are dealing with; they might just as well have the goods, because they have plenty of meal and other things to serve their ends, and they are not like us, who have to buy everything. We would be glad of the money sometimes to buy things that the merchant does not have, or to pay our rent with; but the country people have plenty of these things, and it is only goods they are wanting, and that is the reason why they take them.

2069. Then you have no reason to complain of this system of paying in goods?-We have to complain of it many a time.

2070. Why do you complain?-Because if we had money it could answer for other things, and in other ways than when we get goods; but we cannot get it.

2071. Is it a common subject of complaint in the country, that you cannot get money?-It is every one's complaint; and when we get articles, we are sorry to have to part with them for perhaps half-price.

2072. Do you sometimes sell the articles which you get at the shops?-Yes. I am in the habit of making very good things, and I am very sorry sometimes that I have to give them away at so low a price.

2073. But suppose you come into town and get goods in return for your knitting, have you sometimes to sell these goods again?-No; I have not done that.

2074. Is there anything more you wish to say?-No.

Lerwick, January 3, 1872, MARY ANN SINCLAIR, examined.

2075. You knit for Mr. Sinclair?-Yes.

2076. Do you knit with his wool?-Yes.

2077. Do you keep a pass-book?-No.

2078. You just settle for the work as you take it back each time?- Yes.

2079. Are you generally paid in money or in goods?-Part in both.

2080. Do you knit shawls or veils?-Mostly veils.

2081. How many veils will you take to him in a week?-I could not exactly say. There are four of us besides me.

2082. Do you all knit for Mr. Sinclair?-There is one who knits besides me, and another dresses.

2083. Does she dress only your own knitting, or does she take in other people's knitting to dress too?-She dresses what she gets to do for other people.

2084. Does she do a good deal in that way for other people?-Yes.

2085. You cannot tell me how many veils you take: to Mr. Sinclair in a week?-We might do three in week, each of us, if we were able to work constantly at it.

2086. Do you work at anything else?-Nothing else-only veils; but we are so often in trouble, that I could hardly tell you how many we do in a week. There are three sisters and one brother of us alive now: my father and mother are dead.

2087. Is your brother a fisherman?-No; he is in a shop.

2088. You are not a married woman?-No.

2089. How much will you get for your veils when you take a lot of them to Mr. Sinclair? Are they sold at 1s. each?-It is generally very fine veils that we knit, and we get 1s. 6d. each for them.

2090. How many do you take at a time to the shop?-Perhaps a dozen, or perhaps two dozen.

2091. If you take a dozen, that would be 18s. worth?-Yes.

2092. How much of that will you get in money?-Our rent is paid from the knitting. That, of course, is money.

2093. You have to get as much as will pay your rent?-Yes.

2094. How do you get your provisions?-We get money whenever we ask it, besides what is taken for our rent.

2095. Are you tenants of Mr Sinclair?-Yes.

2096. You have a house from him, and he keeps your rent off what you have to get for your knitting?-Yes; and we have sometimes to get as high as 5s. a week from him, and we always get it.

2097. That is, for your living?-Yes.

2098. Do you get as much money in payment for your veils as you require?-Yes; as much as we ask for.

2099. Will you manage to take a dozen veils to him in the course of a fortnight?-Yes; or perhaps a dozen in three weeks.

2100. You are speaking both of your sisters and yourself?-Yes.

2101. How much of that 18s. as a general thing, will you get in money?-I can hardly say. If we were to ask money weekly we would get it: but since our brother's wages were raised, we have not asked so often for money.

2102. That is to say, you have spent more of the produce of your knitting in goods-in clothing?-Yes.

2103. Have you ever had to sell any of the goods that you got at the shop?-No.

2104. Or tea?-No.

2105. You don't knit any for selling, and you never did?-No.

2106. Do you think you would be any better off if you got all the price of your knitting in money?-I don't think it, because if I got it in money I would just lay it down on the counter and get goods for it.

2107. That is to say, you would get the same quantity of goods that you get now?-Yes. Of course I would not take the money and go to another shop with it.

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2108. Mr. Sinclair recommended you to come here today?-Yes; he said he thought I should come.

2109. How much did you get for knitting your last shawl?-I think we got £2, 10s. for our last shawl. [<Mr. Sinclair>, £2, 15s.] Yes, it was £2, 15s.

2110. That was a remarkably large one, I suppose?-Yes it was very fine.

2111. It was knitted by you and your sisters?-Yes.

2112. How long ago was that?-It was in the month of April or May, I think.

2113. How much of that did you get in money?-It was just marked in to our account, and we got the money as we asked for it.

2114. You did not tell me before that was the way in which you dealt?-I thought I did. You asked me if I had a pass-book, and I said it was just marked into the book.

2115. I rather understood that a settlement was made with you each time you took in your work?-No, we have an account.

2116. And that £2, 15s. was marked into it?-Yes.

2117. You did not take any goods at that time?-I hardly think it; but I really forget.

2118. Did you get any money at that time?-I don't think it.

2119. Did you ask for money?-No; and it was merely because I did not ask for it that I did not get it.

<Adjourned>.

Lerwick: Thursday, January 4, 1872. <Present>-Mr. Guthrie.

ARTHUR LAURENSON, examined.

2120. You are a partner of the firm of Laurenson & Co., Shetland warehousemen and clothiers in Lerwick?-I am.

2121. That is the oldest house in that business in Shetland, is it not?-I believe it is.

2122. The other partner of the house is your brother-in-law, Mr. William Bruce Tulloch?-Yes.

2123. You succeeded your father in the business?-Yes. I was in business with him for a good many years before his death.

2124. Besides carrying on that business, you also act as a trustee or factor?-Yes; in bankruptcies. I am also treasurer for the Shetland Widows' Fund under Anderson's Trust.

2125. And in that capacity you have the management of a considerable income to be devoted to charitable purposes?-Yes; I am a member of the local committee. There are three other gentlemen on the committee. And I am also treasurer, and have been so for a long time. I was appointed by Mr. Anderson in his lifetime, and I have always been so since.

2126. In the Shetland hosiery business you get the goods from the women knitters, who I believe are of two classes: those who knit for you, and those who sell to you?-Yes. There are those who bring the article and just exchange it over the counter. The greater part of our business now consists in the exchanging of goods, rather than in the employing of women to knit for us. Some years ago we were more in that way than we are now. Our principal business now just consists in buying their own productions, or rather, I should say, in the exchanging of them.

2127. By using the word exchanging, what is it that you mean to imply?-I mean to make a difference between that and buying for actual cash. If I were using the word, buying, it might convey the idea that we pay cash down. When I say exchanging, I mean that they bring us the article, and we give them other articles in exchange for it.

2128. By that you mean to imply that the transaction is understood as a barter?-Precisely.

2129. What is the character of the stock that you keep?-Drapery articles altogether, and general soft goods. The only grocery goods we keep are tea and soap.

2130. And the exchanges which you make with your customers for their hosiery are of drapery goods, tea, and soap?-Yes.

2131. Are these purchases made chiefly from women who live in Lerwick, or from women who come from the country?-Part of both. We deal principally with women from the country. The Lerwick women only make fine goods, such as shawls and veils, as a rule, although some of them do make underclothing too.

2132. That practice of barter has, I understand, been of long continuance in Shetland?-Long before my memory. I suppose, as Mr. Walker humorously remarked in his evidence, it has probably prevailed since the days of Adam.

2133. Is any proportion of the payment now made in cash?- Sometimes it is; and that custom, I think, is a growing one. When I first came into the business with my father, it was, I may say, an unheard of thing to give any cash at all,-such a thing was not thought of or expected by the women; but now for a good many years-I should say for ten or twelve years-the custom has begun to give a certain portion of the price in cash, and it seems to be gradually increasing,-that is to say, each year we are paying more in cash than we did in the previous year.

2134. Is that because more cash is asked?-Perhaps it may be, and it may also be from a greater readiness on the part of the dealers to give it. I don't mean to say, by any means, that it is the rule to make cash payments; but I say that the custom of making occasional cash payments, at any rate, is getting more common.

2135. Are you speaking from your experience your own business, or do you speak generally?-I am speaking of my own experience, but I presume that will be the experience of others in the trade as well.

2136. Formerly people did not use to ask for money at all?-No. When I went first into the business it was never thought of.

2137. At that time was the trade one of purchase, or was it one of manufacturing for the merchant?-I think it was pure barter.

2138. It was barter in either case, but was the trade usually carried on by purchases from people who knitted their own wool?-I think in former times it was altogether that. It is only within the last twenty or thirty years that the women have been employed, so to speak, by the merchants. It was about 1840 or 1841 that the making of shawls began to get very common here; and about 1845 or 1846 there was a very great demand for them. After that the veil knitting commenced, about 1848 or 1849, and from 1852 to 1856 there was a very great trade done in veils. These are the dates, so far as I recollect them.

2139. Shawls and veils are the staple articles of the Lerwick women's manufacture?-Yes; and they also make country hosiery of different sorts.

2140. That is the coarser hosiery?-Not necessarily coarser, but stockings and fine underclothing for both ladies' and gentlemen's wear.

2141. Under the description of shawls I suppose you include the cloaks which are made?-Yes; opera-[Page 42] cloaks, mantles, and squares. There is a great variety of them made, in different styles.

2142. At present are you in the habit of giving cash whenever it is asked?-I am.

2143. Do you remember, during the last few years, of having refused to give money to any person who asked for it?-I have no recollection of doing so for a good many years back.

2144. Have the people in your shop any instructions on that point?-My assistants would not give cash without coming to me, because such a transaction has to be entered in the cash-book. If there was any cash to be paid, they would come to me for it, so that I might enter it. It would not be paid out of the ordinary shop-till, because we have to keep an account of it.

2145. But they would be at liberty to purchase hosiery and pay for it in goods without consulting you?-Either my brother-in-law or myself would fix the prices.

2146. Then none of your people have authority to purchase?- No; they would not purchase without consulting me or my brother-in-law.

2147. So that either of the partners must be in the shop, or must be consulted in every case of purchase?-Yes.

2148. Do you give the same answer with regard to cases in which parties employed by you are returning their work?-Perhaps any small sums of money, such as 6d. or 1s., they might get in my absence; but if it was anything larger that was desired, they would be asked to wait until either I or my brother-in-law came in.

2149. But in that case, if they wanted to take out the whole value of the article, they might get it in goods, in the absence of you and your brother-in-law?-Yes, they might.

2150. Does it depend upon the state of their account, whether they would get the whole value in goods or not?-No. Most of them have been long known to us, and even if they were in debt (which sometimes happens) to a small amount, it would not matter much, if they wanted anything. I may mention, as an instance illustrating that, that last night a girl called and asked me for some money to pay the police assessment which had been charged upon her father. She said her father was not able to pay it, and they had no money in the house, and she asked for money to pay it with. Money is often wanted in that way, and of course I gave it to her.

2151. Had she a pass-book with her?-No; she just came in with a small article of fancy knitting which she wanted to sell, and she sold it and got the cash for it.

2152. Did she get the full price in cash?-Yes. She told me what she wanted the money for. Of course I did not ask her or insist to know what the money was for, but she mentioned it incidentally.

2153. How much was the price of that article?-It was a small thing, 8s.-a pair of lace sleeves for ladies' under-dresses.

2154. Would you say that that was a transaction of a very usual kind?-No; I should not say it was very usual.

2155. But if that had been asked at any time during the last three or four years, would the same result have followed? Would she have got the money?-I think so, with

me, if the request had come from the same person, or from a person who had been long employed by us.

2156. That case you have mentioned was one of sale?-Yes.

2157. It was an article made with her own material?-Yes; it was her own material and her own article altogether. I have just mentioned it, as the latest thing of the kind that has occurred.

2158. Do you know a Mrs. Williamson who lives at the Asylum?-I think there are two Mrs. Williamsons in the Asylum: there is a Mrs. Williamson who has been there since the Asylum was opened, and there is another who has come there quite lately, within the last twelve months. If the question you are to put has anything to do with knitting, it will probably refer the last one. The first Mrs, Williamson is in very good circumstances, and I don't think she would be employing herself in that way.

2159. I speak of one who knits with her own wool, and knits fine articles.-I am sure to know her if she is an inmate of the Asylum, though I could not just identify her at present.

2160. Then you don't know whether she knits to you?-She does not knit to me.

2161. Or sells goods to you?-She may come into the shop to sell goods as any other woman does, but I have no recollection of anything of the kind.

2162. Is there another Mr. Laurenson in Lerwick?-There is a firm of R.B. Laurence & Co.

2163. Do they sell provisions?-I don't know.

2164. Do you sell bread?-I sell nothing except general drapery stock, and the other articles I have mentioned. There is a Mr. Laurence, a baker, and his sons are the firm of R. B. Laurence & Co.

2165. Does Mr. Laurence buy hosiery?-Not so far as I am aware. He was in business as a hosier some years ago but he is now only a grocer and baker.

2166. Did you buy a shawl for 80s., about three months ago, from a Mrs. Williamson who lives at the Asylum?-Not to my recollection. If there is anything particular about the transaction, that might enable me to remember it.

2167. You did not purchase such a shawl, and pay part of the price in bread?-No; I could not have done that. I may mention that the name of the firm of R. B. Laurence & Co. is generally pronounced by the people here in the same way as my own, they speak of them as Laurenson, although their names are Laurence.

2168. Have you sometimes paid large sums in cash for shawls?- Very often, in separate transactions. I have frequently paid cash down for particular shawls worth £2 or £2, 10s. I have given as much as £5 in cash for a single shawl; but that, of course, was very special article.

2169. Would you make any objection to paying so much in cash?-No; but I would be pretty sure the article was worth it.

2170. In the case you have just now referred to, was it necessary for the woman to make any particular representation as to her wanting the cash before she could get it, or was she asked to take the price in goods?-No; I did not ask her to do that. Probably when she produced the article, she said she wished to sell it for cash, and so the price was fixed.

2171. Does a demand of that kind for payment in cash affect the price for the shawl?-Certainly. We could not give so much in cash as we could give in goods; and if a cash tariff were adopted, there would have to be a general deduction made all round-a deduction equivalent to the ordinary retail profit in the drapery trade.

2172. Do the sellers of these hosiery goods to you understand that if they demand cash they must take a smaller price?-Yes, they understand that; and they would be quite prepared to take it.

2173. Is it quite understood that there are two prices for these articles-a cash price, and a price in goods?-Yes; I think that is quite understood. Of course, if a woman comes in with a shawl for which she is willing to take 20s. in goods, she would be equally willing to take 16s. or 17s. in cash, because the difference between the 16s. or 17s. in cash and the 20s. in goods represents the retail draper's profit, which is supposed to run from 15 to 20 or 25 per cent. on these articles. That is the case over all the kingdom.

2174. Would not the result to the woman be, that if she took the 17s. in cash she would only be able to buy 17s. worth of goods with it?-Well, that is true; but she might be requiring grocery goods or meal, or some kind of articles that we don't keep in our drapery shops. Of course there would be an advantage to her, because she might be requiring the cash in order to help her in paying her rent, or anything of that kind.

2175. In that way, does it not come to be a disadvantage to the women to take cash?-It cannot be a disadvantage if they require it for these other purposes. [Page 43] It would not answer them at all times to get drapery goods.

2176. Is it an advantage to you, as a dealer in hosiery, to pay the price of the hosiery in goods?-Of course it is an advantage to us, as retail drapers, to sell as much of these goods as possible.

2177. But is it any advantage to you, if by buying for cash you are to get the same profit upon your hosiery goods on a re-sale of them?-There is this to be considered: that if we were buying for cash exclusively, then we would only buy such things as we were actually requiring, either for orders which we had, or which we thought were likely to sell; but according to the present system, although I don't mean to defend it altogether, we might have a pretty large stock, and have really no orders, and no immediate prospect of selling them. At the same time, so long as it is a system of barter or exchange, we can quite easily give goods of one description over the counter in exchange for goods of another description,-for this reason, that these goods of another description, which are received in exchange, can be stored by us as well as our drapery goods. At such times we would not be willing to pay anything in cash.

2178. Then what you mean to say is, that the opportunity of selling your drapery goods is an inducement to you to increase your stock of hosiery although the market may be unfavourable?-Exactly; because we have already invested our cash in these drapery goods, and we may just as well have that cash lying in Shetland hosiery as in drapery goods, in many cases.

2179. If you did not pay in goods, would the result be that you might still purchase the hosiery, but at a much lower rate?-That would be one result of it; and another result would be, that when the Shetland hosiery trade was dead, as it very often is for many months, we would have then to give up buying altogether. At the same time, I don't say but what an entirely cash system would ultimately be advantageous to both parties,-both to us as dealers, and also to the women knitters.

2180. In what way do you think that that?-I think it would simplify the thing, and prevent a good many disagreeable occurrences. In fact the present system is a complicated, antiquated sort of thing; and I, for my own part, would be willing if some plan could be adopted for introducing a cash system altogether. It certainly would be simpler, and I have no doubt it would ultimately come to be as convenient to us all; but you will please to observe that the present system is just a continuance of an old traditional system that we who are now in the trade found existing when we came into it, and it is rather difficult to get it changed.

2181. Do you think it is any advantage for the women to be able to get 20s. in goods rather than 16s. of cash?-It think it would be better for the women to be always paid in cash.

2182. For what reason?-Because they would then have the cash at their own disposal, and they could do with it what they liked. They might buy their goods from me or from any other body, just as they pleased.

2183. Do you think they could manage their cash better?-I don't know, but at any rate they would be more independent. If they did not choose to deal with me, they could go to any other shop where they thought they could lay it out to better advantage.

2184. Is it the fact that they cannot get the price of their goods in cash just now?-I believe, as a general rule, that is quite true. I have heard the evidence of two or three of the girls who have been examined on previous days with regard to that.

2185. I am speaking now entirely of the purchase system. I will ask you something afterwards with regard to the system of knitting with the merchants' own wool; but you understand that you have hitherto been speaking about the system of purchasing?-Yes; hitherto I have been referring to the exchange of articles over the counter.

2186. Your general observations have applied to both systems?- Yes, to both.

2187. Speaking then, in the meantime, about the purchase system, there is now in point of fact a difficulty in getting cash?-There is no doubt of that, because it is the custom of the trade, and has all along been, that these hosiery articles should be paid for in goods. That is known and understood on both sides.

2188. Will you tell me exactly where the advantage to the woman lies who sells her hosiery for 20s. in goods rather than for 16s. in cash? Are these 20s. of goods worth more to her than 16s. in cash would be-I mean, apart altogether from the question as to whether she wants other goods than hosiery?-Is the money value of the 20s. worth of goods greater than 16s. in cash?-The money value of them cannot be greater, because the retail profit is included in that.

2189. Yes, but the money value to you is one thing, and the money value to the woman may be another?-I assume, as a general rule, that all the goods which the women take they are actually requiring.

2190. Is that the fact?-I heard some statements made here by some witnesses yesterday, and I suppose they were quite correct, since the women made them, but I was not aware of it before, that they had to take goods and re-sell them afterwards.

2191. You were not previously aware of the existence of such a practice?-No; I was not aware of it until I heard it deponed to yesterday.

2192. You say there are periods of depression in the Shetland trade?-Yes; for many months there is little or no demand for Shetland goods, and at such times our stocks lie over and accumulate.

2193. In such a period of depression I presume that your prices, whether in money or in goods, are lower than at other times?- They naturally tend downwards, as in all other trades, because in many cases we really don't want the goods. Having quite sufficient and more than sufficient of the article, we don't want any more of them; but very often we take them, just as you may say, to oblige the women, and give them tea for them, or things which they may actually be requiring, although we may have no prospect of selling these articles for a year or so.

2194. Is there not a difficulty in the trade also from the nature of the articles which are made?-There is a very great difficulty in that respect, owing to the want of uniformity in the articles, and the great variety of them. You can never get two shawls alike; you cannot even get a dozen pair of half-stockings alike. If you were to get an order for twenty dozen socks of a particular colour, size, and price, you would not be able to get that number of socks alike in Shetland.

2195. The result of that is, that you cannot give a large order?- We cannot undertake to execute it; and it is only such houses in the south as are acquainted with the Shetland trade, and who know that, when they give an order for a certain quantity of goods, they must get them varied in colour and in quality, and who make up their minds for that, and don't expect anything else it is such houses who generally deal in Shetland goods.

2196. Does that fact, and the want of knowledge of that fact, restrict the number of houses in the south with which you can deal?-There is no doubt of it. Suppose an English house, who had never done anything in Shetland goods before, were to send down an order for a certain quantity of goods, they would expect to get them as uniform as if they were sending that order to Leicester, or any hosiery district in the south.

2197. In what way does that affect the system of paying in goods?-There are limits to the demand. It affects the market. We don't have such a large market.

2198. And it increases the inducement to merchants to make their payments in the drapery goods which they sell, and upon which they have another profit?-Exactly.

2199. I suppose the reason for paying in goods is really, that you manage to make two profits: the profit upon the drapery, and then the profit upon the re-sale of the hosiery?-For the most part, we have to be content with one profit. No doubt, like all other men, we would be glad to make two profits if we could; but I think it is a rule in the Shetland hosiery trade, that [Page 44] the dealer is quite content if he gets the price for the hosiery goods which he would have paid for them in cash, even with a very good discount off; that is to say, with £10 worth of Shetland hosiery, for which he had paid that sum in goods, he would be willing to sell them for £10 in cash, and 5 per cent. off for cash. He would not expect to get a profit on the hosiery also.

2200. Do you mean to say that a lot of hosiery purchased for £10 you would sell to a merchant in the south for £10, and give him 5 per cent. discount besides?-Yes.

2201. Then you would make a loss?-No; because we have paid the £10 in goods at retail prices, and we have the retail profit on them, which is more that 5 per cent.

2202. You mean that you have a profit on the goods?-Yes; the goods amounting to £10, for which we have got the hosiery. Perhaps the profit on these goods is 15 per cent.; and if we sell the hosiery afterwards for £10, and take off 5 per cent. for cash, we still have 10 per cent. for our trouble.

2203. That comes to this: that, keeping it apart from your trade in goods, you make no profit upon the hosiery at all, but you will pay 5 per cent. discount to a wholesale merchant in the south for paying it promptly?-Yes; and I believe, in some cases where the dealers in Shetland don't have good connections in the south and good markets, they generally sell at a much lower price. I believe it is quite common in the Edinburgh auction-rooms for parcels of Shetland hosiery to be exposed for sale, and sold at a rate much lower than they could be sold for in Shetland. That, I suppose, is done by dealers who are pressed for cash; and they have to sell their hosiery stocks at any sacrifice, at what they can get for them, because they cannot get them sold in the regular market at a profit.

2204. Does it not seem to you that it would be a more reasonable way, in such a state of matters, to reduce the price of your hosiery?-It would be better to introduce a system of cash payments.

2205. But, whether there was a system of cash payments or of payment in goods, would it not look better in your books, and would it not be the natural way of dealing, to purchase the hosiery only at such figures as would enable you to make a profit upon it?-Yes; that would be better, decidedly. It might practically make very little difference to the dealer; it would just be taking it out of the one pocket and putting it into the other, but it would be more business-like, and a simpler plan.

2206. Is it not one result of that system, that as the merchant runs two risks,-a risk upon the hosiery and a risk (not so great, but still a risk) upon his goods,-he is obliged

to make a larger profit upon his goods than he otherwise would?-I believe that is so.

2207. So that the goods are really dearer to the retail purchaser here than they would be if another system were adopted?-I think

2208. You say you are quite ready to adopt a system of cash payments, and to carry it out if it were usual in the trade?-Quite ready.

2209. Is there any difficulty in a single house proceeding to act upon that system?-There has been no proposal made for it.

2210. Do you mean there has been no demand made for it by the sellers of hosiery?-I mean there has been no proposal made among the dealers in hosiery to adopt such a system; and it would be difficult for one house to begin to attempt it unless there was some plan agreed upon, and some tariff of prices. I think it would be necessary, in the first place, to have some scale fixed.

2211. Would the market not fix the prices just as it does in other trades?-By and by I have no doubt it would; but what I mean is, that at the beginning of the new plan, in the transition between the present state and a new system of cash payments there would require to be some sort of agreement.

2212. With regard to those women whom you pay for working, do you generally keep pass-books with them?-I don't think many of them have them now. In fact, within the last seven years we have not been very much in that branch of the Shetland hosiery trade. We still have a few knitting to us in that way, and I think some of them have pass-books.

2213. How many women do you employ in that way?-I could not say precisely, because for several years our shop-woman has attended to that altogether, and the books which I have brought with me are kept by her. I can give her name, and she will be able to give any information that may be wanted on that subject.

2214. What is her name?-Andrina Aitken.

2215. I suppose your books will show at once the number of people you employ in that way?-Yes, these books will show, but I cannot say from memory how many there are.

2216. Has not each woman whom you so employ a page in the ledger?-I think, for the most part, they just settle for each article as they bring it. If a girl or woman is knitting a shawl, she comes in with it; there is a price put upon it, and she settles up there and then for it. If there is a balance, whether for or against her, it is noted up as at that date. We don't keep long accounts with them.

2217. How is it noted?-It is noted in the book at the place where the work is marked as having been given out. The balance is stated there [produces book].

2218. What is that book?-We call it a work-book.

2219. Is it kept as a day-book from day to day?-Yes.

2220. Is that the only book you keep?-It is the only book used for that purpose.

2221. Therefore you keep accounts, because when a balance stands against a woman you have to look back to where the balance is?-Yes; and where work is given out again, the balance is marked against her, that balance being agreed upon between the shop-woman and her.

2222. Is there any index to the names of the women in that book?-No; the girl knows them all.

2223. I see that the entries on two pages of it serve for a month?- Yes; the entries from December 5 to January 2 are all on two pages. These contain all our transactions with that sort of people, and it shows that we have very few of them.

2224. I see here an entry: 'December 5-Barbara Hunter, 11/4 oz. black mohair. D. 1s.-retd.' Will you explain that entry?-D. means debtor. It means that the woman got supplies to the extent of 1s. The 11/4 oz. black mohair was the worsted which she got at that time to knit up. Then on the 21st she comes back and returns it. At that time there is this entry: December 21-Barbara Hunter, 11/4 oz. black mohair. D. 1s. 4d., D. 6d.

2225. What does 'retd.' mean in the first entry?-It means that the work was returned on a certain day. The return would be made on the 21st, when she got out the same quantity of additional stuff, and then the balance is carried forward.

2226. Are there any entries in your books showing how the D. 1s. or the D. 1s. 4d. was made up?-No; I could not even tell what it was for.

2227. But it was a balance upon goods supplied to her?-Yes. It may have been tea, or some small sums of cash, or anything. Our shop-girl would go over it with her, and they would agree upon it that this was the balance due at that time; and then, when she came back with the work she had got out on the 21st, there would be another balance.

2228. Here is another entry: 'December 15-Christina Sinclair, 2 oz. black mohair. D. 1s. 4d., D. 13s. 3d., D. 5s. 1d.-retd.' How does it happen that, under the same entry and in the same line, there are three separate sums?-The girl came on separate occasions and got these supplies, and they have been, entered separately. She has been back since then, because the work which she got out at that time has been returned.

2229. Then follows the entry: 'December 26 [Page 45]-Christian Sinclair, 2 oz. black mohair. D. 10d. (in pencil), D. 11s. 11d.' The 11s. 11d. would be the balance on the previous three debtor entries, and the 10d., I suppose, had been got subsequently?-I presume it had been quarter it pound of tea for 10d. Christina Sinclair lives in Hancliffe Lane.

2230. Does she support herself entirely by knitting?-She lives with her father. She knits a good deal on her own account, and comes and sells it to us. These had been some veils and other things, which she makes for us occasionally when she happens not to have worsted of her own.

2231. The 11s. 11d., I think you say, shows a balance upon goods got by her?-Yes; I presume it is the balance, after deducting what she got for that work.

2232. What would she probably get for the work bestowed by her upon 2 oz. black mohair?-I suppose that would make four or five veils. Perhaps she might get 5s. Then, besides these little things which are entered there, she might have got some things when she was personally present, and the last balance would be struck upon the whole.

2233. I understand you to state quite distinctly that this book is the only one in which entries are made of any transactions with workers employed by you?-The only one. As I said before, we do very little in that way now; and this represents the whole of it.

2234. Do your sales to these women not appear in your shop day-book?-No; these are the whole entries. If they get anything when they come with their work, there is no entry made of it at all.

2235. If a woman, either a knitter employed by you, or one who sells to you, comes to your shop and has a large sum of money to get, is it the practice that you do not pay her entirely in goods, but give her an advance in cash; or is it sometimes your practice to give her a line?-We don't give lines at all; but I may say that it is very seldom any of them have very much to get.

2236. If a woman has something to get and does not want goods, do you make an entry of any kind to her credit similar to those debtor entries against her?-I see here an entry: 'December 26- Ann Anderson, 2 oz. black mohair. D. 5d., Cr. 7s. 6d.' That 5d. has been got afterwards.

2237. Then she could have come at any time and got that 7s. 6d.?-Yes; and more if she had wanted it.

2238. That sum is probably standing to her credit yet?-Yes; she has that to get just now.

2239. If she had got it, in what way would it have been marked out?-It would have been marked returned, and another entry made of the new work which she had got.

2240. I show you an entry in another part of the same book: what does that mean?-It is a memorandum of the goods given to women to dress. These are the goods given to Mrs. John Gifford. They are marked down when they are given out, and when they are returned they are marked out. There are more dressers than one.

2241. Here is one entry: 'January 3-Mary Greig, Trondra, 9 oz. black. D. 8d., Cr. 7s.' Was that a country girl?-Yes.

2242. Is it not usual for country girls to take away all the value of their goods when they come in with them?-I think that is generally what they do; but sometimes, as in that case, the girl does not seem to have been requiring anything.

2243. You don't know whether that girl asked for money?-I don't know; but the shop-girl would be able to tell.

2244. You have no doubt that if she had asked for it, she would have got it?-If she had asked for it, she would have got it; but, as I have said before, it had been so long the custom not to pay money, that they did not ask it, not expecting to get it.

2245. Do you say that your profit upon your drapery goods is calculated at about 15 per cent.?-I should say about 15 to 25 per cent.; that is the ordinary retail profit over all.

2246. Supposing you were to make a profit upon your hosiery goods, what profit would you expect to get from your drapery goods?-I understand that in the south the profit in the drapery trade is generally estimated at 15 per cent. on an average.

2247. And you make it vary here, according to the different goods, at from 15 to 25 per cent.?-Yes.

2248. Is that in order to cover your risk upon the hosiery?-Yes; I should say so. It would be much better for us to sell for cash down, with a smaller price, than to sell at a higher nominal price, and to lie out of the money for perhaps a couple of years, and perhaps run the risk of making a bad debt with the hosiery. I may add that we sometimes do make bad debts to a pretty large amount. Some years ago I lost £150 by one customer.

2249. Was he a purchaser of hosiery?-Yes.

2250. Show me any entry in this book relating to a shawl made for you?-There [showing] is 7 oz. black, which was given to a woman for a shawl which she is at present making. Here is another, Mary Greig, who made a black shawl, and returned it.

2251. Does the book show how much was the payment usually got for the making of it?-She came back on 23d January, and she is credited with the amount. She had 2s. to get when she got the work to do.

2252. And she has now 7s.; but the difference between 2s. and 7s. does not show the payment to her?-No; because she might have got more goods at the time, and there would be nothing put down in the book then except the actual balance.

2253. You don't know what goods she got?-No; but I have no doubt the shop-girl will be able to tell.

2254. Can you tell me what payment would be made to a worker of that kind for such a shawl?-I think perhaps 10s. It depends a good deal on the size of thread and on the style of knitting. Of two shawls of the same size, and having the same weight of wool in them, one may be worth 2s. 6d. more for knitting than another, on account of the pattern the girl might put into it, and the style in which it was done.

2255. Then that shawl would be sent south, I presume?-We might sell it here.

2256. What do you consider the value of the material for that shawl, 9 oz.?-That black worsted would have cost us in England about 8s. a pound.

2257. Then the worsted would come to about 4s. 6d. as the value of the material?-Yes.

2258. And 10s. for the work: that would be 14s. 6d.?-Yes.

2259. And 6d. for dressing, or 15s. altogether?-Yes.

2260. At what price would that shawl be invoiced to a customer in the south?-It would depend upon whether it was to a wholesale house or to a retail customer. We have to sell these goods at a lower price to wholesale houses in the south, who have again to sell them, than we would sell them for to others.

2261. In that way there are two classes of customers?-Yes.

2262. Who are your principal correspondents in the south?-[The witness shows the names in a book.] This is the day-book, which we use exclusively for our transactions in hosiery with the south. That book has just been finished. The last entry is 6th November 1871, and since then our entries as to hosiery sent south have gone into our ordinary shop day-book: we have not provided a separate book for them.

2263. You say that you have two classes of customers, wholesale and retail?-Yes; we have wholesale customers, such as these houses whose names I have pointed out to you. We also sell to private persons, and of course we must make a difference. We must sell to these wholesale houses at a much less figure, because they have again to sell them perhaps to the very same retail customers.

2264. At what price would that shawl of Mary Greig's be invoiced to the south?-It is not away yet but I think I will be able to find some of the same [Page 46] kind. It is very difficult to say what it would be, because there is such a difference in the quality of the worsted, and the price of the raw material differs a good deal. For instance, here is black Pyrenees wool, costing about 8s. a pound, and here is black mohair wool, 27s. a pound. It would cost us roughly about 2s. an oz.; but that shawl, I should say, would be of Pyrenees wool, costing about 8s. a pound. That [showing an entry of a shawl invoiced to a house in London at 20s.] would be something like it. I may mention that an account like that won't be paid for eighteen months, and then it will be paid with a discount of 5 per cent.

2265. Is that a fair specimen of the average sales of shawls?-Yes.

2266. And the average difference between the cost for materials and workmanship?-Yes.

2267. Do you pay the freight?-The consignee pays the freight.

2268. Is this day-book a copy of your invoices which you send to these houses?-Yes. In some cases we copy the invoices in a letter-book, and then re-write them into this day-book. I can produce the letter-book if you wish to see it.

2269. Does not that difference between the price marked in the book and the price you have to pay for materials and workmanship show something in the shape of profit?-Yes, undoubtedly.

2270. Then how do you reconcile that with your previous statement, that there is really no profit upon your hosiery?-I don't think I meant to say that there really was not a profit. What I meant to say was, that, as a rule we would be very well pleased,

on an average of all our hosiery goods, just to get what we pay for them. Of course, if you take out a special article here and there, the rule might not hold good; but I think, on the whole, you will find the result to be as I stated.

2271. Do you make any distinction, in your statement with regard to profits, between those cases where an article has been made for you and those in which it has been purchased by you?-I think, as a rule, the articles which we purchase or exchange over the counter are generally sold by us just for what we have paid for them. The others we have a good deal more trouble about. The raw material has to be ordered, and the money paid for it pretty soon; and then it has to be given out, and these accounts kept, and the articles have to be dressed. In fact we have three or four times the trouble about articles of that description which we have with regard to articles that we buy in exchange.

2272. Do you make that profit upon the goods made to your order, by charging a higher price to your customer in the south, or by paying a smaller rate to the women who knit for you?-The rate we pay the work-women here depends on what the other dealers in town are paying. I suppose we all pay much about the same rates.

2273. But I don't see how the same articles if made by one of your own work-women, can be charged at a different price to your customer in the south from what it would be if it were purchased by you across the counter?-As I have said, we have much more trouble with it.

2274. But the customer in the south fixes the price; and you cannot give articles that are really the same in quality at a different price, in consequence of the way in which they have come into your hands?-No; but on some articles we must have less profit than on others, and we must just make the one balance the other.

2275. But your customer would object to take two identical articles at different prices?-No doubt he would; but such articles as these black shawls we never buy over the counter. In fact I don't think I ever did buy one in that way; they are always made to order. We bring in the raw material, and the women knit it up. The material of which these black shawls are made is not Shetland wool. The women don't have it. Of course they could get it if they chose to buy it in the shops: we would sell it to them just the same as anything else.

2276. Do you purchase stockings?-Yes.

2277. You don't have them made?-No; they are all bought over the counter.

2278. Are they generally paid for in goods?-Yes; I may say universally.

2279. Are they made by the people in the country rather than by those in Lerwick?-There are very few made in Lerwick; all the hosiery proper is made in the country districts. When I speak of the hosiery proper, I mean stockings.

2280. What do you call the other kind?-Under-clothing. Articles such as shawls, veils, neckties, and the like, we call fancy work. Then there is under-clothing-men's under shirts, gentlemen's drawers, ladies sleeve, ladies' under-dresses, ladies' drawers ladies' spencers, which are worn under the clothing.

2281. I see in your day-book a charge for half dozen white veils, 12s., that is, 2s. each: is not 2s. a high price for veils?-It depends very much on the quality.

2282. Would that be an average quality?-No; it is a good quality.

2283. Were these purchased or made to order?-I could not say as to that particular lot. The best veils may be specially made or they may be bought. We very often buy veils in the ordinary retail way over the counter, and give 2s. 6d. for them; but these would be particularly well knitted.

2284. Do you give so much as 2s. 6d. for veils?-Yes, for the finest quality.

2285. Then these 2s. veils were sent to a retail house?-Yes; but of course they are buying from us, and we are selling to them, and they get 5 per cent. off that.

2286. What might be the price of these veils to you?-Perhaps 18d. or 20d.

2287. Is there anything else that you wish to state about the hosiery trade?-Nothing that I recollect of, particularly; but I may perhaps be allowed to refer to some of the answers given to questions by the witnesses who were examined before the Commission in Edinburgh. In question 44,156, Mr. George Smith is asked, 'Who supplies them (the knitters) with the wool?'-and he replies, 'That is a very difficult question. They get it chiefly from the small farmers, and sometimes from the merchants?'-I don't see why Mr. Smith should have said that that was a difficult question. There was no difficulty in it whatever.

2288. Where do the knitters generally get their wool?-In the case of the country girls, their families sometimes have sheep running on the scattald, and the wool is their own property, and is spun by some member of the family.

2289. Are there people in the country who collect wool from a number of families and give it out to spin?-I believe, in some districts of the country, there are dealers who buy up the wool and sell it out again as wool. I was to say that the knitters can buy it from them also, or from their neighbours. These are the three ways in which they can get it.

2290. Is the greater part of the wool that is used in Shetland of native production?-Yes; the greater part of it is, except the Bradford and English manufactured wools, principally black mohair and alpaca.

2291. Is much of that sold to women who knit on their own account?-I do not know if there is much sold; but in my own case, if they came to me wanting it, and I had it in stock, they should have it, whether they paid for it in cash or got it put to their account.

2292. If a woman came to you and sold a shawl, and wanted part of the price of it in worsted, would she get it without any demur?-Certainly.

2293. Do you know whether objections are made by any of the merchants to that being done?-I have seen it stated in the evidence that there are such objections.

2294. But, apart from the evidence before this Commission, do you know from your own knowledge, or from the statements of people in Shetland, whether there has

been a difficulty in getting worsted for knitting in that way?-Yes, I have heard that.

2295. Do you know from what that difficulty arises?[Page 47]-I do not; unless it is because the dealer thinks that worsted is an article on which he does not have so much profit as on other goods, and is unwilling to give it.

2296. There has been no difficulty of that kind in your shop at any time?-No, none.

2297. Is there any reason why, in dealing with knitters, worsted should be called a money article or a ready-money article, which was only sold to them for money?-The Shetland worsted, which is generally spun in the north isles, in North Yell and Unst, is almost always bought and paid for in cash. It has always been the custom, at least for many years,-I should say for fifteen years,- that when the women come down from the north isles with worsted and sell it either to private persons or in the shops, they are paid for it in cash at the rate of 3d. or 31/2d. or 4d. per cut of nominally 100 threads, which in reality, when counted, runs to 80 or 90. I have seen a cut of worsted for which you paid 8d. supposed to be 100 threads, which when counted was only found to be 55; but that was an extreme case.

2298. But that wool is obtained by merchants or other persons who want it, from Shetland women coming mostly from the north isles?-Yes; where it is principally manufactured.

2299. Is the price of it always paid to them in cash?-As a rule, it is. Perhaps there may be exceptions, but, as a rule, it is paid in cash.

2300. Is that assigned in the trade as a reason why, when it is sold out to other women, it should be paid for by them in cash?-I should say that that was the reason, because there would be no profit on it otherwise. For instance worsted for which a dealer paid 31/2d. a cut would be sold by him at the same price; and if he gave it in exchange for goods, he might be out of his money for weeks or months.

2301. Does he not get more than 31/2d. for it when selling it?-I don't think it. There is a sort of fixed price for the various qualities of it.

2302. Does he not make a profit on retailing it?-No; I think not. He would either refuse to sell it at all, or give it at the price at which he bought it.

2303. Then his purchase of the worsted must have been made primarily for the use of the knitters employed by him?-Yes, I believe so.

2304. So that selling it to those women who knit on their own account would be a little out of his ordinary way of business?- Yes.

2305. He does not profess to get it for that purpose?-No. It is the raw material brought in by him or bought by him for his own uses.

2306. Is it wool or worsted you are speaking of?-Worsted. Before it is carded and spun we call it wool; after it is carded and spun we call it worsted.

2307. It is brought in the shape of worsted?-Yes.

2308. So that all you have been speaking of is really worsted?- Yes.

2309. Is much of that sent south from Shetland by the merchants in the shape of worsted?-Not much, I should say. It is more profitable, of course, for dealers and knitters to make it up, as all the raw material would come to would be comparatively trifling.

2310. Then you are not in the habit of sending it south in the shape of worsted?-No. In fact it is difficult to get. Sometimes we get an order for a small quantity for the south, for darning purposes. When a customer orders a dozen or two dozen socks, he will ask for some worsted along with them for that purpose; but it is not easy sometimes to get that for him. I was to refer to one or two other questions in the previous evidence. In question 44,289 Mr. Walker is asked, 'These merchants have no hold over them as being their tenants?'-and he replies, 'Not in the town, except in very few instances; not as a rule.' Now I don't know what instances he refers to. For my own part, I cannot imagine how any of us Lerwick dealers can have any hold on the Lerwick knitters, because they can come to us or any other body, just as they please.

2311. None of them are your tenants?-No; but even if they were, I don't think it would matter.

2312. If their rent were in arrear, would the merchant not have a hold over them?-He, as their landlord, would just have the same redress as any other landlord would have. Then the next question is, 'Is it considered a lucrative business?-Oh ! immensely so.'

2313. You have already made a statement with regard to that answer; at least you have explained what the profit is?-Yes; but he says, 'I know for a fact, that the worsted of a shawl which sells at about 30s. is worth from 2s. to 3s.' Now that is quite incorrect, because with the very lowest price of worsted the cheapest would be at least 4s. 6d.; but for a shawl selling at 30s. the worsted of it would certainly cost me 10s.

2314. Do you mean the worsted of any shawl that would sell for that in the south market or to a south country merchant?-Yes, or to any customer here. We sell a good many of these shawls to ladies in Lerwick, or to any people who come in to buy them; and any shawl that would sell for 30s. the worsted of it would cost 9s. or 10s.

2315. How much would the workmanship of a 30s. shawl come to?-Perhaps 12s., and sometimes more. Sometimes we give as high as 15s. for it. We paid 17s. 6d. last week for making a fine shawl. Then he says, A good deal of the worsted is now made in England, and brought down to Shetland.

2316. Is there much worsted imported from England?-Yes. Mr. Walker says further, 'The demand is so great for the Shetland goods, that it (the worsted) is made in Yorkshire, and brought down at 8s. a pound; and a quarter of a pound of that worsted will make a large shawl.' That is a mistake, because nothing less than half a pound of worsted of that quality could by any possibility make a shawl.

2317. Is 8s. per pound a correct statement of the price?-For some qualities it is. There is a great variety of qualities. The qualities of Pyrenees and mohair and alpaca

wools go by numbers, and according to fineness the numbers rise.

2318. Can you mention the various prices at present?-7s. and 8s. per pound for blacks and whites; 9s. and 10s. for scarlet and ingrained colours.

2319. That is for Yorkshire wool?-Yes, of the finer descriptions; and then mohair and alpaca will range from 20s. to 24s. and 30s.

2320. I thought you said 32s. before?-Yes; and I have no doubt some of the numbers are even higher.

2321. I suppose there is not much variety in the size of shawls used for opera-cloaks or dress purposes?-No, they are all made about a size; but the value does not depend so much upon the size as upon the style of the workmanship.

2322. It will also depend to some extent on the quality of the wool?-Yes, to some extent.

2323. But principally on the workmanship?-Yes, it depends in great measure on that; and that is the reason why there are constant disputes with the knitters. Two knitters may come in with two shawls made of the same material and the same size and yet the one will be 25 per cent. better than the other, on account of the work bestowed upon it, and the niceness of the pattern; but it is very difficult to get these girls to understand that they should be paid according to that.

2324. Can you show me any instance of a shawl made of Yorkshire wool for which you paid 20s.? That would be rather a fine quality, would it not?-Yes; that would be mohair or alpaca.

2325. But not the finest quality?-No, not the finest.

2326. We may take that as an average quality. You said it would take about half a pound of material to make the shawl; but you also said that the finer the wools are, the less thread it takes to make them. How much would it take to make a shawl of that kind?-Perhaps it would take 6 oz.

2327. That would be about 7s. 6d. for the material?-Yes; but a great deal depends on the way in which [Page 48] it is knitted. It is almost impossible to say, except with a very special article, what the knitter would get for it, because this is not like a uniform trade at all.

2328. Then you fix the price to the knitter according to the judgment of your eye?-Yes, after the work is brought back. Properly speaking, every shawl requires to be priced individually.

2329. Between what sums would you say that the price of the workmanship of a shawl made of that sort of stuff would vary?- That depends entirely on the workmanship itself. Some of the best knitters we have in town put very high prices on their work.

2330. I am assuming that it varies; but there must be a limit to it. Can you not give what would be about the average?-I will give an instance. About a fortnight ago I bought a shawl from a girl for 35s., made of common Yorkshire wool. It was her own

material, and she just came in with it, and sold it over the counter. The material of that shawl, for which I gave her 35s., had not cost her 4s. It was a half-square shawl. It is still lying in the shop, and I can produce it if it is desired. The whole value of that article depended on the workmanship contained in it.

2331. Is it a black or white shawl?-White. It is not even fine Shetland worsted, which is the most valuable sort of thing.

2332. Is fine Shetland worsted more valuable than the other worsted at 32s?-Yes, we can always get a better price; and indeed the article is much more valuable when made of fine white Shetland wool than of fine white English wool, because there is a hardness and coarseness in the English wool that is not in the Shetland.

2333. But you don't pay so much as 32s. per pound for Shetland wool in any case?-No, I doubt think we pay so much as that for it, but the Shetland wool is more rare. The supply of it is limited. You can get any quantity of mohair or alpaca, but you cannot get any quantity of fine Shetland wool.

2334. Do you purchase that quality of fine Shetland wool to any extent?-I buy some of it. I have paid as high as 6d. a cut of nominally 100 threads for it; but that was a rare article. 4d. per cut is the usual thing.

2335. How much is that per pound?-We don't reckon the Shetland worsted by the pound.

2336. But as you do so little business in giving out work, I suppose you don't purchase great quantities of the Shetland wool for your own use?-No.

2337. Is there any other part of the evidence you wish to refer to?-There is another question, 44,301, where Mr. Walker is asked, 'Is it all done through the middle-man?'-referring to the buying of woollen goods: he says, 'Through the merchants. Then, in considering the hosiery matter, when you leave the town, you come to the middle-men, merchants, or merchant factors, or merchant proprietors; in which case the knitters are their tenants. All worsted goods taken and sold in town are virtually taken surreptitiously or on the sly.' I wish to remark with regard to that, that I never heard of such a thing until I saw it here.

2338. Are there hosiery merchants and worsted merchants in the country?-Yes, here and there.

2339. Do they possess any hold over the knitters?-I suppose in some cases they will be factors for the proprietors, and these knitters will be living in family with the tenants who have the holdings.

2340. Do you know any instance of such hosiery merchants being proprietors in the country?-I don't know about them being proprietors.

2341. Or factors for proprietors?-I suppose Spence & Co., in Unst, are in that position.

2342. Are they hosiery merchants?-They deal extensively in hosiery; and I understand they are factors or lessees or the greater part of the island.

2343. But the other fish-curers generally are not hosiery merchants?-I think not, as a rule.

2344. Then you deny that, as a general rule, knitters are bound in any way to sell to dealers in the country?-I never heard of such a thing before especially this statement, that all worsted goods taken and sold in town are virtually taken surreptitiously. That may be true, but I never heard it till I read it in this evidence; and I don't believe it is true.

2345. Do you often send orders to the country?-Yes; we send orders to the merchants in the country for hosiery just the same as we order goods from the south, and the merchants in the country make them up.

2346. Do they have their profit on the hosiery in the first instance?-I suppose so. We pay them in cash.

2347. And you have a commission or a profit in your turn?-Yes, we must have that otherwise it would be no object for us to buy the articles.

2348. Is there any other point in the previous evidence which you wish to mention?-I don't think there is anything else.

2349. Is there any other correction you wish make upon that evidence, or upon the evidence which has been taken here, so far as you have heard it?-No. I heard the evidence of several of these knitting women, and I have no reason to doubt its general correctness.

2350. Is it the case that the knitters are more commonly in debt to the merchant than the other way,-that they are generally rather behind in their accounts with him?-In my own case, I don't think that is so, at least not to any extent.

2351. In a bad season do they not fall behind, and require credit to some extent from the merchant?-I don't think that obtains very much with the knitters. It would obtain more with the fishermen and heads of houses.

2352. But if a woman is depending entirely on knitting for her livelihood, and the prices of provisions are high, while at the same time the prices for knitted goods may happen to be low, is it usual for a merchant to make advances to her in goods or, in cash?- There being no system of cash payments, I would not say that I would make advances of cash to her.

2353. But would the merchant, in such a case, make advances to her in goods?-He probably would. We know most of these knitting girls, and we would not see them at a loss for anything they actually required. I believe most of the dealers would be ready to help them in that way.

2354. Does that come to be any inducement to the knitting women to sell their goods to particular merchants afterwards, or to submit to take their payments in goods when, in other circumstances, they would prefer to have them in cash?-I think, in many cases, if they were in debt to me, they would not scruple very much at walking off and dealing with some other body afterwards, and leaving my debt to take its chance; for they know there would be no legal proceedings taken-no summoning,

or anything of that kind. I never heard of any case in Lerwick where a knitter was summoned for any balance which she was due.

2355. Perhaps the balances generally are so small, that it is not worth the merchants' while to summon the women for them?-I daresay that is the case. I have been told that one of the witnesses yesterday, Mrs. Arcus, referred to the state of the trade in my late fathers time and said it was better then, because the women who made these goods were in the habit of getting meal and groceries from my father for them.

2356. Was that actually the case?-It was. For a great many years my father kept meal, barley, rice, sugar, soap, tea, and all sorts of provisions; but the consequence was, that when newer dealers came into the trade, and went more extensively into the drapery goods, then the knitters and people selling for drapery came more upon my father for groceries, on which there was a much smaller profit; and of course that put us to a great disadvantage. The consequence was, that we gradually gave up the grocery part of the trade. I believe that is the explanation of the statement, which I daresay was quite correct.

2357. Of course there are some women who live entirely by knitting? Can you explain how they supply themselves with food if they are paid entirely or almost entirely with goods? Have you turned your [Page 49] attention to that point at all?-No, I must say I was rather astonished to hear some of the evidence which has been given here, although, I have no doubt it was quite correct. It had not occurred to me that some of these women were under such conditions as it appears they are.

2358. However, you have not turned your attention to that point?-No, but I have no doubt that what they said was quite correct; and perhaps there is a grievance there which ought to be remedied. I show you an entry in my invoice-book of a dozen gentleman's drawers sold for 48s., which is exactly the price paid for them in goods. My customer does not pay for eighteen months, so that I lose the interest for that time; and there is also 5 per cent. off at the end of the eighteen months. The two next items are in precisely the same position. They are charged at the nominal prices which we have paid for them in goods.

2359. The long credit which you give, in that case, arises from the state of the market in London?-Yes; these London houses are generally long in paying.

2360. But cannot you get your customers here, from whom you buy the goods, to take less for them?-No, we don't require to do that. I believe that when a woman makes a pair of drawers, or anything else that kind, she cannot be paid for them with less than 4s.

2361. Is that an article in which you deal extensively?-Yes; we buy a good many of them, but it is an article on which we have no profit.

2362. A statement has been made in this inquiry, that the success of a merchant in Shetland consists in being able to accumulate such an amount of bad debts about him as thirls the whole families in a neighbourhood to him, and then he gets on: do you concur in that statement?-I think that statement must have been intended as a

burlesque. I cannot understand how any man could thrive by accumulating a large amount of bad debts. I read the statement at the time, but I could not understand it.

2363. It can only mean this: that the man has a number of debts which his debtors have difficulty in paying, but that they are in the course of earning money year after year and that they are compelled to spend entire earnings in is shop: do you think that is the case?-I can only say that in my own business I make a point of making as few debts as possible, and never any bad ones. To make bad debts I should consider a misfortune rather than a piece of good luck.

2364. But they may not be bad debts, although payment of them may be delayed for a long time. It is perhaps a misnomer, to call them bad debts?-Yes I should say so.

2365. I understand you were engaged at one time in the whaling agency business?-Yes, for some years. My brother-in-law and partner managed that part of the business; and he purposes to come forward and give some evidence, and produce books which he kept at that time. We went out of that trade last spring.

Lerwick, January 4, 1872, ROBERT SINCLAIR, examined.

2366. You are the principal partner of the firm of Robert Sinclair & Co., merchants in Lerwick?-I am the sole partner of that firm.

2367. Your stock, I understand, consists of drapery goods and tea?-Drapery, millinery, boots and shoes, tea, and various other articles. I also keep various kinds of groceries-not many; but there are tea, soap, soda, and blue.

2368. You do not keep provisions?-Not provisions.

2369. Do you keep sugar?-No; I do not sell sugar now.

2370. Besides that trade, you are employed in the purchase and sale of hosiery?-I am.

2371. Your hosiery is obtained in two ways: either women that knit upon your employment or from parties who come with their own goods and sell them to you?-They are principally the latter.

2372. How many women can you state, have been employed on an average during the last three years in knitting for you with worsted supplied by you?-I never was at the pains to reckon exactly the number of knitters I had. I should suppose there would be on an average from 80 to 100-sometimes more and sometimes fewer; but that is only a guess. I have books here which will show it exactly.

2373. Are those women who knit for you paid generally in money, or in goods; or is there an account between you?-There is always an account kept with the knitters, and they are paid in cash or in goods-principally in goods; but there is no objection to pay them in cash when they want it.

2374. Are your people instructed to pay in cash when cash is asked for?-I never gave any direct instructions to that effect; but occasionally they may pay in cash when they know a customer well. If it is advances that are wanted, they would require to know the character of the customer to whom the advances are made.

2375. Do you mean to say that the question whether a request for an advance is to be granted or not, depends upon the state of the customer's account at that time?-Exactly, or mostly that.

2376. Then, if a knitter has a considerable amount at her credit, and wants money, is it the rule in your shop that she will get an advance?-She will get an advance in money when she has it to get; but we don't call that an advance,-it is a debt; and it has been generally understood, as has been often stated, that it is goods which they are to get for their work. That rule, however, has often been departed from-more particularly lately.

2377. You say there is an understanding they are to be paid in goods, but that that understanding has been departed from?-Yes, often. But the last question put to me was a double one. With regard to the other part of it,-as to them having a large amount at their credit,-the fact is, that they seldom have anything at their credit, but when the goods come in, they have to be entered to their credit, to make up for advances which they received when they were knitting. That is the rule, but there are several exceptions to it.

2378. As a general rule, has a knitter got more goods from you than the value of her work?-Yes; she generally has got quite equal to the value of it, and frequently more.

2379. You say that she has either got more goods than the value of the hosiery which she brings, or she has got at least up to the value of the work returned?-Yes; generally.

2380. Have you formed any idea as to whether the kind of goods which you supply to your knitters consists to a greater extent of articles of ordinary dress, such as cotton, and dress stuffs, and boots and shoes, or of millinery, and the finer articles which you deal in?-They consist principally of strong usable wearing apparel, boots and shoes, and other things that are generally required for domestic purposes or for their own wear.

2381. You say that you have about 80 or 100 women engaged knitting to you?-I only guessed that. I think there must be more.

2382. Is the system of dealing with the whole of these, that an account is kept?-Yes.

2383. Is that account kept in a pass-book with the knitter?-Not always. When they want a pass-book, they get it. You can see from that book [producing work-book], who have pass-books and who have not.

2384. Has every knitter a separate page in your work-ledger?- Yes; the book speaks for itself.

2385. It may be convenient for both of us if you take the case of Jemima Sandison just now, whose passbook I have got here. Is that pass-book an exact copy of the page in her name in your ledger?-Yes; the entries in both are made, at the same time. She brings the pass-book when she wants any article and the entry is made in the

work-book at the same time as in the [Page 50] pass-book. Unless there is any error in summation or date, the one should be an exact transcript of the other.

2386. Is it generally known by you or your shopkeeper whether there is a sum at the credit of the worker, or whether the account stands the other way?-After they have gone on for a while, and when they come in with any work, of course we square up the books and examine them.

2387. In adding up Jemima Sandison's book, I find from November 11, 1870, to December 28, 1871, the amount of goods and cash supplied to her was £3, 5s. 3d.?-Yes; but there is something I may explain with regard to this particular case. All the work she has done does not appear here. If she wants to get wool or any other article, she can get it out of the shop on bringing goods for it, and that does not appear in the book. She sells the goods to us when she has made them, and gets either cash or goods for them according she wishes. That book does not show all our transactions with her.

2388. Some of them may be ready-money transactions?-Not ready-money, but private transactions, that do not appear in the books at all, because the book only contains the goods she gets from us, and for which she returns knitted work. She is paid for the knitting of these goods, and not for the whole value.

2389. How do you distinguish, in that case, between the goods that go into the pass-book and those which she gets, but which do not enter the pass-book?-There is no occasion to distinguish between them at all, because they are separate transactions.

2390. When she comes with a separate article to sell, how do you do?-Suppose a time when trade is dull, as Mr. Laurenson has explained, and we are not making falls (which is the principal thing this woman makes for us), we try to keep her in work by giving her out material, and she makes anything else with it that she likes. We do not enter that in the book at all. She makes it for herself. We may buy it from her, or she may go and sell it to another if she likes; or she, may have a private order for it, and sell it in that way. These transactions do not appear in the book.

2391. But when she comes to you, and you do happen to buy an article in that way from her, is she paid for it to a certain extent in goods?-Yes, if she wants them.

2392. These goods are not entered in the day-book?-Of course not.

2393. You just deliver there to her across the counter, in the same way as you would deliver them to any party who came in to make a ready-money transaction?-Yes.

2394. If she does not want exactly the value of goods which will pay for her shawl, or for any other article which she may have brought to you, do you enter the balance in any book?-No; we do not enter it in the book, except in the line-book. We give her a receipt for the balance, and we give her the balance in cash or in goods at any other time.

2395. If she wishes money for the balance, is it usual thing in your trade to pay it in money?-The fact is that we never refused her money when she asked it. She stated that in her evidence.

2396. That may have been the case with this particular woman, but is it the fact that any knitter who wants a balance of that kind in money is able to get it?-If she has bargained to take goods, and if the price we put on the article be such that we cannot give money on it without making a loss by it, then we don't give the money: we stick to the bargain. If the bargain has been such that it would allow us any little profit on it, then we give it all in money, if they want it in that way.

2397. The question whether she is to get money or goods for the balance, depends on the bargain which the woman has made?- Yes; decidedly.

2398. Can you tell me any case in which you have paid the whole price for hosiery goods in money?-I could tell you many cases of that kind, For instance, I could mention the case of Miss Gifford.

2399. What was the transaction you had with her?-My last transaction with her-indeed I have only had one for a long time-was for a shawl which bought from her; and paid all cash for it.

2400. When was that?-About three months ago.

2401. What was the price?-The price of the shawl was £4, and I gave her four £1 notes for it.

2402. Was not that a very valuable shawl?-Yes but I would rather have taken it and paid money for it, than I would have given barter for a thing that might lie on my hands until the moths eat it.

2403. The quality of the thing was so good, that you wanted to have it at any price?-Yes, and I could charge a small profit on it; but I cannot do that on the great bulk of the things I get.

2404. Did you pay for that in cash because it was an exceptional article?-I paid for it in cash because I wanted it. I would do the same for anything I wanted; but when goods are forced upon us, and goods asked for them, we cannot be expected to put our hands into the till and pay out cash for them.

2405. Are goods forced upon you?-Yes.

2406. Have you no option but to buy them?-No. That is not the meaning of my words. I do not mean that we are forced to buy them, in that sense. I mean, that people come in importuning us to buy goods which we do not want.

2407. You do buy them, however?-Sometimes, and sometimes not.

2408. Is it in consequence of the importunity of your customers that you buy them?-Sometimes, and sometimes not.

2409. But you say that sometimes you are forced by the importunity of your customers to buy their goods?-Yes; we may be induced to do it by an importunate

woman.

2410. And when the importunity is so great that you are constrained to buy them, are these the cases in which you pay in goods?-No; the people often don't want the cash. They don't ask for it. They come to us with the general understanding that the, trade is done in goods-I mean in barter.

2411. Do you say the general understanding is that the payment is to be in goods, and also that you have sometimes to buy goods because you are importuned to do so?-Decidedly. I say I do buy them sometimes, because I cannot get rid of the customer otherwise, but these are exceptional cases.

2412. Is it because of the importunity, or because it is the general custom, that the payment is in goods?-That has been a tradition from time immemorial.

2413. But you have assigned the fact of paying in goods to both of these causes, and I wish to know which of them it is that you really refer it to?-It is sometimes the one and sometimes the other.

2414. But you are not obliged to buy hosiery and pay with goods unless you like?-Not at all; nor for money either. What I stated was, that I would rather pay in cash for a good article which I can sell again, than purchase a thing on barter that I have a great risk in selling. That is the whole import and purpose of what I said.

2415. You instanced one transaction,-that which you had with Elizabeth Gifford?-Yes; and there is another girl, Catherine Brown, who is in Leith just now, from whom I bought a great number of shawls, and paid her cash down for them.

2416. Was that long ago?-It has gone over a number of years.

2417. Was your reason for paying the cash the same in that case: because the articles which you got from her were good?-Yes; they were prime articles.

2418. Is there any one else you wish to mention?-There are many cases in which I paid cash for hosiery articles, although I could not name the persons just now. They were people whose faces I knew, but I cannot recollect their names.

2419. Were these cases in which you paid the whole value in cash?-Yes.

2420. Did these transactions enter your books?-No; the cash was just paid for them at the time.

2421. Do you take no notice of the cash paid out in [Page 51] that way?-Not generally. I don't that there is any special entry in the cash-book showing what it had been paid for.

2422. Don't you take a receipt from such persons?-No, I never did.

2423. Then how do you know the price at which to sell these shawls?-Because I put the prices on the shawls myself.

2424. Do you mark them all at the time?-Yes.

2425. And you swear that no entry of such a payment enters into any of your books?-I swear that, to my knowledge, there is no memorandum taken of a cash

transaction carried through in that way. With regard Elizabeth Gifford, I may explain that I gave her a receipt for a shawl to be paid for in cash, and she came to my shop some time afterwards and got the cash.

2426. Then that cash entered your book?-Yes. Here is the entry [produces line-book]: 'C. M. 95. 1. 11.71. Paid in cash, 80s. £4.'

2427. How do you know that is the transaction?-Because it is the only transaction of the kind that is in the book, it is the only transaction in which £4 was paid in cash.

2428. Was that entry all made at one time?-The first part of it was made when she brought the shawl. The date when she got the line is not here.

2429. Then it was on 1st November 1871 that she got the money?-Yes.

2430. The entry made at first was 'C.M. 95. 80s. £4?'-Yes.

2431. And the figures '1. 11. 71,' and the words 'paid in cash,' were inserted when the money was given?-Yes

2432. There is no entry of the date of the issuing of the line at first?-No; the book was not being dated then.

2433. When did the book begin to be dated?-We have the date on the line itself, and therefore it is quite sufficient to enter the numbers of the lines in the book.

2434. But when did the book begin to be dated?-On 30th October.

2435. Then it must have been a few days before 30th October when the line was first given out?-Yes.

2436. To come back to Jemima Sandison's book the total amount supplied to her was £3, 5s. 31/2d. in period of thirteen months, and there was a balance of 16s. to begin with. The amount that appears to have been paid in cash during that time is 3s. 6d. on all these transaction: is that so?-It may be; but I have ready explained that the entries in the book do not represent all the cash which she got from me.

2437. She also appears to have got tea on thirty-seven different occasions, in quantities of 8d., 9d., and 10d. worth at the time?- Yes; that would be a quarter of a pound.

2438. The amount of tea altogether comes to 5d. or more than one-half of the total quantity of all that she got from you. If we assume that she got a amount of tea as part of the previous balance of 16s, there is thus only 8s. 6d. paid in cash, 30s. or more paid in tea, and the rest paid in goods. Can you give me any idea whether the amount of cash paid to this woman on the separate transactions you have been speaking of would be greater or less than the amount appearing in this book?-I could not swear as to what it was, because we are transacting business of that kind with her very frequently, and it is impossible to remember what amount of goods or of cash she got on these particular transactions. I should say that what the book gives about a fair average of what it might be upon the other sales as well, or it might be that it would rather exceed it; but I should wish to remark that she never was refused the cash that was asked for by her.

2439. Do you think the case of this woman Sandison may be taken as a fair specimen of the accounts which you keep with the other women employed by you?-No, there are exceptions; there are some who got a good deal more cash than she did.

2440. Was there any reason, in these other cases, for their getting more cash?-Of course they asked for more and perhaps they needed it. There are some who are equally dependent with her, and who have perhaps less chances of getting money otherwise. As I said, she sometimes makes to order, and gets cash from that source. If you will take the case of Mary Ann Sinclair and her sisters as it appears in the book, you will see that they got more cash than Sandison did.

2441. I see in Mary Ann Sinclair's account on 'September 30, 1868, cash 5s.; October 13, cash for meal 11s. 3d.; November 18, cash 1s.; November 23, to paid William Smith for meal 5s. 4d.; November. 27, cash 1s.' Do you give that as an average specimen of the amount of cash that was paid?-There may be exceptional cases; but I daresay, taking the whole thing, Sandison's pass-book may be regarded as a fair specimen of the way in which the thing has gone on.

2442. In that account of Mary Ann Sinclair's which you have just showed me there is an entry of 5s. 4d. paid to William Smith for meal: who is William Smith?-He is a grocer in town.

2443. Was that paid to him directly, or did the money pass through the hands of the woman Sinclair?-I generally gave her the money, and told her to go anywhere she liked with it; but in some cases, if it happened that I did not have the cash on the counter, or handy, she went to the same person that she used to deal with, or to any one she wanted to go to, and got what she required, and I paid the cash for it perhaps on the same day.

2444. In what way was that transaction carried out? Did you give her a line to go to Smith for the meal?-I don't think it. I have no recollection of doing it.

2445. Is that a common kind of entry in your book?-No.

2446. There is another entry of 11s. 3d, for meal: would that be paid to Smith or to the woman Sinclair?-I think it was paid to herself.

2447. Then why is it entered in your book as being for meal?- Very often we did that in order to distinguish the things she wanted the cash for, and to keep a check on them. For instance, they might come in and ask cash from me and they would receive it.

2448. But why should you wish to keep a check on them in a case like that?-I don't know.

2449. Had you any interest in the way in which the woman was to spend her money?-No; but if we paid cash to a person for one of these women, we marked it down as having been paid.

2450. Then when you put down this sum of 11s. 3d. for meal, did that mean that you had paid the money to Smith or to some other meal-dealer, or that you had paid

the money to Mary Ann Sinclair herself?-I cannot recollect.

2451. I only want you to explain, if possible, or to suggest an explanation if you don't remember, about how it happened that that entry was made for meal. If the woman got it in cash, would it not be simply marked down as cash?-I don't remember about that. She might have got the meal from Smith, and paid him the money at any time. She may have told us that she had to pay Smith an account, and asked us to pay it for her. That is the only explanation I can give of it. Sometimes she would ask to get a little meal; and as we did not have meal, we would tell her to go to anyone she liked and get it, and we would pay the party for it. I may say, at the same time, that I did not have a fraction upon that. There was no compact about in between me and the man who supplied her with the meal. We just paid her account to him in cash.

2452. You don't remember either of these payments?-No; I cannot remember them.

2453 Do you know whether such entries are frequent in your books?-They are not; there is no occasion for them being frequent.

2454. Does a woman often come and say to you, 'I want some money to pay for meal or some groceries, and I wish you would give me so much?'-No; I have no recollection of any other case than the one which [Page 52] has been referred to. There may have been cases in which, when selling an article, they may have asked for a few shillings for themselves, and where they may have mentioned what they wanted it for; but with regard to Mary Ann Sinclair's case, to the best of my recollection, this was just an account which I paid for her to a meal-dealer that she was owing it to.

2455. You say that some of your knitters don't have pass-books at all?-The majority of them have.

2456. In that case, the only account kept with them is the one entered in your work-book?-Yes; but whenever we settle, we carefully read over all the items to them and if they take any objection to them, of course they get some explanation.

2457. The work-book you have produced is the current one?- Yes.

2458. Is there any entry in it showing where a pass-book has been given?-Yes; it is generally marked in red pencil where there is a pass-book. There are not many pass-books; I don't think we have a dozen altogether; but the women are never refused a pass-book if they want it. It entails a great deal more trouble on us to keep them.

2459. When you come to settle one of these accounts where there is no pass-book, how do you proceed?-For instance, here is Elizabeth Hunter, from Trondra: she comes into town on September 2, and you find then a balance for articles brought in, which she takes in goods?-She takes more than she has to get.

2460. Are all these items read over to her at that time?-Every item is read over to every person when we settle with them. We always make a point of reading over the account in detail, and satisfying them about it. Sometimes it happens that they cannot remember about a particular thing, and some explanation is given to them, generally by one of the people the shop; and that satisfies them.

2461. Does it sometimes happen that the balance such a case is in favour of the knitter?-Yes; sometimes.

2462. Is it, then, the practice simply to carry the balance on to the new account, or does the woman receive any acknowledgment for the balance?-The balance generally the other way. I may say that we never take goods in advance. They generally go ahead, and we must keep a tight rein on some of them otherwise they would go deep enough. For instance here is a copy of the account of Elizabeth Robertson, who was examined before you on Monday. [Produces copy account.]

2463. Before going into that, I believe you think that in some parts of the previous evidence an erroneous impression has been produced to the effect that no worsted can be got in exchange for the knitted goods?-Yes; I can state that I myself with my own hands have given Elizabeth Robertson worsted in payment for shawls more than once. I have given her the greater part of the value of her shawls, or of the goods she had to sell, in worsted, although that does not appear in her account.

2464. That has occurred when she has brought articles to you for sale or exchange?-Yes.

2465. Do you say you have often given her the greater part of her work in worsted?-I have not often given her the greater part, but I have often given her part, and sometimes the greater part, in worsted. Those in my shop can bear testimony to the same effect, that they have given her worsted too. In fact we never refused to give Pyrenees wool for the knitted goods when we had it, except on rare occasions, when we had very little of it, and had to give it out ourselves for work that we required.

2466. I suppose you know that if you give them that worsted in return for their hosiery, they will bring it back to you?-They may, or they may not.

2467. Do they not bring it to somebody?-They may to somebody, but perhaps not to me. They may have an order for it from a lady in the south, or dispose of it in other ways. We do not ask them what they do with it, unless we give it out to them to make a special article with. The fact is, with regard to that kind of worsted we do scarcely anything in it, but we sell it to any knitter in order to accommodate them.

2468. Then you say you have given Pyrenees worsted to Elizabeth Robertson?-Yes.

2469. Have you ever given her the other kinds of worsted that come from Yorkshire?-That is the same thing.

2470. Is the Pyrenees and the Yorkshire worsted all the same?- No, the Pyrenees is one class. There is mohair worsted. I don't recollect whether I ever gave any of it. It is used, for knitting falls. 'The Pyrenees is generally made into shawls.

2471. Does Robertson generally make shawls-Yes, generally; but she makes falls too. I don't recollect giving her mohair; but I have given her Pyrenees often. She would get any kind when she asked for it; but mohair is a thing we never do sell, because we only bring it in for our own use

2472. Is it the highest priced of all?-Yes.

2473. Is it higher than the Shetland wool?-We don't sell the Shetland wool, except in rare, exceptional cases. The fine wool we never sell, because we have great difficulty in getting it. We never send it south; nor do we sell it in the shop as an article of sale, except on occasions when a person is very much in want of it for any particular purpose.

2474. For darning, for instance?-No, that kind of wool is not fit for darning; it is only the coarser kind that is used in that way.

2475. Then you don't regard the Shetland wool as an article of commerce?-No, it is a material we use for ourselves and we have very great difficulty in getting as much of it as we require. We pay cash for it; and if we were to sell it would put a stop to our trade.

2476. You heard the evidence of Mr. Laurenson about Shetland wool?-Yes; it is something different from my experience. If a lady or a retail dealer in the south orders a Shetland shawl, we don't send a shawl made of Shetland wool unless we know that they want that particular kind, but if we send one of Pyrenees wool, we tell them what it is made of and that if will not do, they can return it.

2477. With regard to the worsted, does the idea that knitters cannot purchase worsted from merchants in Lerwick arise from the fact that the merchants do not regard Shetland wool as an article of commerce?-That is my impression. They not only do not so regard it; but the fact is, if they made it an article of commerce, it would put a stop to their business.

2478. How so?-Because they cannot get sufficient material for their own use and also for sale.

2479. Do you mean that if you sold Shetland wool to any one who asked it, you would not have a sufficient supply for your own trade?-That is one reason; but there is another reason: because it would be like changing a shilling, for the people know the value of these things, and they would just pay me for the wool what I paid for it in cash.

2480. They can get the wool from the same dealers from whom you buy?-Yes, and of course the price of it is as well known to them as to me. Another thing is, that if I take a parcel of worsted of perhaps 600 or 700 cuts, a knitter who wants some of it won't be pleased unless she gets the very pick of it; and for the very pick of it she won't give me any more than I had to pay for the whole of it overhead.

2481. That is substantially what Mr. Laurenson said with regard to the reason for not selling Shetland wool. He does not sell it either?-None of the principal dealers sell it. Sometimes some of the wool is sold to grocers in town who don't deal in shawls, and the knitters buy it from them.

2482. But if the knitters ask for Shetland wool, and offer cash for it, is it usual to sell it?-No, except in very exceptional cases; and you will see that an exception has been made in the case of that girl Robertson.

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2483. You want to point that out?-Yes; I consider that we dealt with her in rather an exceptional way.

2484. I see '12 cuts worsted:' is that what you refer to?-There is more than that in the account. The very first thing is a balance on worsted from a previous account, of 2s.; then on December 16, 1865, she gets 12 and 16 cuts at the same time, but at different prices. The 16 cuts are charged at 3d. per cut, which is a kind of worsted we very seldom sell. Then July 5, 1866, there are 12 cuts; and in 1868 there are other sales of worsted to her.

2485. Is this a copy from your books of the account with Elizabeth Robertson?-Yes; exactly.

2486. The crosses on the side show where worsted has been given?-Yes.

2487. Do these entries refer to Shetland worsted?-I think mostly.

2488. But you say this is an exceptional case?-Yes; it was to favour her that I did it.

2489. Was there any particular reason for favouring her in that way?-It was done because I thought she was a needful person, and she pleaded for it.

2490. Was it that sort of wool that she was in the way of knitting?-It was that kind she wanted; and although I was not in the habit of selling it, I gave it to oblige her.

2491. Do these entries appear in the ordinary account which you kept with her as a knitter employed by you?-She was never employed by me specially.

2492. Did she always knit with her own wool?-Always with me. She did not knit specially to me, that I recollect of I have no recollection of ever employing her. [Shown account in work-book.] I see from this that she has knitted for me. She knitted three shawls for me in 1867. The others are shawls she knitted for herself, and sold in the shop. At 15, March 1870, she was due me £4, 16s. 31/2d.

2493. I see that between March 29 and December 28 she has paid off that balance with the exception about £1?-Yes. Then she said in her evidence that she would not have taken out so much in clothes, or half so much, if it had not been that she was compelled to take goods for her work. Now I would ask how that statement is consistent with the fact that for about twelve months she was due me that sum, mostly for clothes, when she was not asked to take them, but the reverse.

2494. She got them on credit?-Yes.

2495. Then this account of hers you happen to have, because she was knitting at that time for you?-I would not assign that is a reason for her getting the goods.

2496. But I am asking you the reason why you have this account?-Because it is in my books.

2497. I rather understood that the only women who had accounts entered in your books were those who were employed by you as knitters: is not that so?-Of course, when the women get into my debt, I must take note of what they bring to me with which to pay off their debt; and that must pass through my books. I do not take a note

of all the transactions over the counter; it is only when a woman runs into debt that anything appears in the books.

2498. Is this account taken from what you call the work-book?- No; it is entered first in our ledgers, and now it has been transferred to the work-book.

2499. Is the ledger a different book?-The work-book is a kind of compound between the two. It was entered first in the one, and then in the other.

2500. But it was because the woman was working for you that the account happened to be put in that form?-Of course. I think that was mostly the way in which the credit was got. She would just creep in and then, and she was in the habit of getting things that she asked for, and these were put into the book. That is the only way in which I can account for her getting them. But I would draw attention to the copy of her account, as showing that she got goods she needed them and it was a mere subterfuge for her to say that she got goods from the merchant although she did not knit for him.

2501. Is there anything further you wish to say with regard to the evidence of Elizabeth Robertson?-Nothing, except with regard to these two items of it.

2502. When she was under examination she handed me this line [showing line quoted in Elizabeth Robertson's evidence]; and I have also got a line in these

'C. Y. 92.-Credit bearer value in goods for 18s. 'R. SINCLAIR & CO. 'J.J.B. '22. 12. 71.'

Do you give out many of these lines in your business?-Yes, a good many.

2503. How is that?-It is not our wish to give lines, if the women would only take the value out at once; but when they have bargained to take goods for their work or for their hosiery, and they will not take them at the time, what are we to do?-We might enter them in a book, but they prefer to have a line, and come with it and get what they want marked on it later, whenever they want the goods.

2504. What is the meaning of the initial letters at the commencement of the line?-They are put there so that we may be able to identify the lines at a glance and they correspond with the same letters in the line-book, where a check is kept. The numbers begin under each initial letter, and run to 100 consecutively until that number is reached, and then we begin with another initial letter. For instance, after C. W. we have C. X.

2505. There are two letters: how do you explain that?-Because, when we get to the end of the alphabet we must distinguish; we could not begin with again.

2506. In introducing this system of notation you began with?- Yes, and went on to Z.

2507. You numbered these receipts or notes, or whatever they may be called, A 1, A 2, and so on up to A 100, and then you went through the alphabet with one letter until you came to Z 100?- Yes.

2508. When you began to take A A 1, and so on?-I think it was A B, until we came to the end of the alphabet again.

2509. Then you took BA, and so on to B Z, using the double letters BA, 100 times, and the double letters BC 100 times?-Yes.

2510. How long is it since this system was introduced?-I have no recollection how long it is since it began. It is not two years, I think; but it may be more.

2511. Does that mean that you have issued some 6000 or 8000 of these lines in two years?-I suppose so. It will just mean about that.

2512. Can you give me any idea, or do your books give any idea, within what time these lines are brought back to be liquidated?- Sometimes in two hours, and sometimes longer. When we take goods from the knitters, we generally, in order to prevent any mistake, give them a receipt for them in that form; and having other work to do when we are very busy, they take that in their pocket and go away, and then they look in again when we have a slack moment and get the value of it, sometimes on the very same day. I don't know how often it is on the same day, but it is very often.

2513. Are these lines only given to the people who sell you goods, or are they given also to your work-people?-There are very few of the work-people who got lines in that way. It is only when the people selling goods that they may get such a line if they want it.

2514. Can you tell me any of your work-people who have got lines in that way?-I cannot; but the work-book would show if such lines had been given.

2515. In what way does the work-book show it?-By an entry to the individual's debit. I think you will find very few of them.

2516. What do you call these things? Do you call them I O U's, or receipts, or lines; or what are they?-They are just vouchers for their value.

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2517. Is it a general practice in the trade in Lerwick to give these lines?-It is only within the last few years that it has been practised to any extent, and we would, much rather do away with them if we could.

2518. How could they be done away with?-Just by giving the people value for their goods when they bring them. That is the only way I know.

2519. Do you mean the value in cash?-The value in cash or in goods. If it cash tariff were introduced, which I suppose would be better for the whole of us, it would save us all this bother.

2520. Do you think it would be better to have a cash system introduced altogether?-It would be better for the trade, at any rate.

2521. But the nominal price paid to the knitters would in that case be less?-I think that, in some cases, not only the nominal but the real price would be less.

2522. Do you mean that the knitter would really get less value for her work?-I do mean that, as we have always endeavoured to deal on that principle,-to sell on cash terms, and to take the very least we could for the article in cash.

2523. You mean that you take the smallest profit you can on your goods?-Yes. Suppose for instance, a woman comes in with a shawl, the market value of which is 20s. that is the price I should expect to get, and would get, for it.

2524. Do you mean that is the market value in Lerwick?-No; it is the market value in the south. Suppose the value put upon it were £1, I would only get 20s. for it in the south.

2525. Do you sell your goods to retail or wholesale dealers?-I sell them wherever I can get them sold, but the greater part of them are sold wholesale; that is, we sell them wholesale to retail dealers.

2526. You sell them to retail dealers, so that you have only one price, for your goods going south?-Yes.

2527. You heard Mr. Laurenson state that there was sometimes it difference in the price which he charged, according as the sale was one to dealer, or to a dealer who sold retail?-I understood Mr. Laurenson to mean that he made a difference when he sold a shawl to a private customer, and when he sold a dozen or two to a retail dealer; and so do we.

2528. Is that the only difference you make in selling your goods?-Yes; and we think that is only fair the trade.

2529. I interrupted you when you were putting the case of a shawl worth 20s. What did you wish to say about that?-We fix our lowest rate of profits, and we give the people goods the same as if they had cash to lay down for them; and I can bring evidence to that effect if you want it.

2530. Do you mean that you fix your lowest rate of profit upon the hosiery goods you buy?-No; our lowest rate of profit on the goods we sell. A third way of explaining it is, that we treat as cash the goods which we buy. A shawl worth 20s. is reckoned by us as a £1 note would be reckoned,-with this difference, that if a man is laying down a £l note we would give him 5 per cent. discount when he bought our goods. We consider that the trouble we have with the shawls, and the time we lie out of our money, is worth 5 per cent.

2531. Then what you say comes to this: that upon your hosiery goods you make no profit at all?-Not when they are once sold; that is to say, when they are once bought, the profit lies in the profit we have upon the goods. That is the only profit we have in the matter.

2532. But upon the hosiery, looked at by itself, you do not make any profit at all?-No; I say that I make none, and I swear to that most emphatically.

2533. In other words, the profit you make upon your purchases of hosiery is only the profit you make upon your sales of goods, which are given in return for the hosiery?-Yes; in short, it is two sales for one profit.

2534. That is to say, you are obliged to take the hosiery at the market price in the south, in order to get payment for your drapery and other goods?-With regard to that, I am not obliged to take them, further than that is the only thing in the country that reckoned as a kind of payment.

2535. It is the only thing which your purchasers have to give you for your goods?-That is my meaning exactly.

2536. You were going to offer me some evidence of that?-I can give evidence of it afterwards. My own employees can prove it, also women who have been in my employment, and also people who have been purchasing both for cash and goods.

2537. What can they prove?-They can prove that there is no difference between the two prices, and that the price which I charged is the lowest price I can fix.

2538. You are prepared to give evidence of this fact, that the price you allow to the seller of hosiery in Shetland is the price you get from the buyer in the south?-Yes, I can prove that. At least I can prove that it is so on the whole, by comparison, the invoiced prices of the goods sent south with the general prices of goods bought in the country. Here is a list of them [producing trade list].

2539. Is this list what you send to your purchasing customers?- Yes; and if you compare these prices with the prices of similar goods bought at the counter of my shop, you will find that there is no difference. The question was put to me, whether there would be a difference between the nominal value a customer would receive under the present system and if a cash system were introduced. I say there would be a real difference, but ultimately the merchant would be no loser. The difference would lie in this: that if I were compelled to buy goods for cash, that is, if I could not barter them, I would have no profit by giving the same rate that I now give. That, I think, is plain from what I have already stated. Then I would require to buy them at a discount equivalent to the profit I now have on my goods, or else I could not carry on my trade; and that would be the same with whoever dealt in these articles. The cash price we can afford to give for Shetland goods here is just the value we pay for the goods that we give in exchange for them; and if we were to give more than that price, there would be an end of the trade.

2540. Do you not mean that it is the value you pay for the goods you give in exchange, plus your profit upon these goods?-I say the price we could afford to pay in cash is just the price we do pay cash, which is paid not to the knitter, but to the party in the south that we buy our goods from. Our goods cost us cash: that cash, thousands of pounds every year, would go into the hands of the knitters here; but in that case we would just give them that money, less the profit we have on the goods. That is speaking of the thing in a broad sense. There would be a real loss to the knitters in that case where they were fairly dealt with, because they could not get goods without a profit, and they in that case would have to put their hands into their pockets and give a few shillings more. For instance, suppose the case of a 20s. shawl: they get 20s. of real good value for it under the present system. If I were obliged to pay in cash, I suppose I could not give more than 16s. or 17s. for it; and if the individual wanted the very same thing from me which she can now get for the 20s.,

yet under the other system she would require to go to some other shop and purchase it, paying 3s. or 4s. more for it than she now does.

2541. Is this what it comes to: that if a cash system were introduced, the knitter would be worse off, because the merchant would require to take two profits instead of one?-He would only have one profit to take.

2542. But if it were a cash system, would he have to take two profits?-No, he would not take two profits.

2543. If there were a cash system, would not the [Page 55] buyer of the hosiery from the knitter require to make a profit upon the hosiery?-Decidedly.

2544. And further, would not the seller of the goods to her require to have a profit upon these goods as well?-Certainly.

2545. Therefore there would be two profits?-Yes; there would be two profits taken from the knitter, but not by me.

2546. But I am putting the case of the knitter, and in that case the buyer of the hosiery might be a different person altogether?-That is my meaning.

2547. The knitter would have to sell her hosiery at such a price that the hosiery merchant would make a profit on his re-sale, while she would have to buy the goods at such a price that the dealer from whom she bought them would make something like the present profit which you make upon them?-Yes. Suppose we were to purchase for cash, and the cash system were introduced, in all probability the drapers would be simply drapers, and not hosiers at all; or they might withdraw their capital from the drapery business and embark it in the hosiery business altogether.

2548. Then what you mean to make out is, that at present you are making only one profit?-I do mean to make that out, for it is true; and I am very thankful when I can get it.

2549. How do you prove that there is only one profit at present?- By looking at the prices at which the goods are bought and sold.

2550. Let us take a single instance: you have put in a wholesale trade list for 1870?-Yes; we have later ones, but that will be sufficient for the purpose. There is no difference on them.

2551. Is that list issued at the beginning of the year?-I should like that others proved that, and not me. You can get it from my employees, or from my books, or from people who buy from me.

2552. In what way do you suggest that it should be shown? By this wholesale trade list, and by taking a variety of instances from your books in which prices have been paid for the articles that are mentioned here?-Yes.

2553. How would that be shown in your books?-By entries to the knitters whom we deal with.

2554. We could not find that by the entries in the work-book, because they show it only in detail?-I am not speaking of the work-book just now.

2555. It could only be shown by the sales?-Yes; and of course that list has been prepared from the prices which we pay for the goods.

2556. Do you mean the prices to dealers, or prices to people who sell them over the counter to you?-I mean the prices that we pay to the people for them, and which I pay over to them.

2557. But I think you said that when you buy the goods over the counter, no record is kept of these prices?-No; but the people that we buy them from would tell you the prices they get for them. In some instances, where debts have been paid by means of these goods, there may be entries in the books which will show the prices.

2558. Is there any entry in your books at all of your purchases of hosiery? I rather understood you to say that there was no such entry?-I think I said that when goods were presented for sale, there was note taken of what was given for them; but when goods come from the north isles or from people who send them to us from a distance, we enter them in the books.

2559. Are there dealers in the north isles who send goods to you?-Either dealers or private individuals may send us falls or various other things, and the entries with regard to them will show the prices given for them.

2560. These transactions will appear in the day-book?-I think so.

2561.You think Mr. Sandison, your bookkeeper, would be better able to point these out than you?-He would be better able to lay his hand on them; but sometimes we buy from dealers and pay cash for them, and same thing applies in that case which Mr. Laurenson stated, that we charge a small percentage on these goods, because we pay in cash for them.

2562. You put in the trade list, and you also put in a copy invoice, which you have shown to me, containing the prices at which you have sold the goods there mentioned?-Yes. It shows that there is a certain discount allowed; but that discount does not come off the profits charged on the hosiery, but off the sales of goods I give for them.

2563. Do you calculate that there is a larger profit upon hosiery goods which are made by your own knitters than on those which you buy and sell in the way you have described?-That is it question I have sometimes asked myself; and, taking the thing altogether, I don't think there is much difference.

2564. Don't you allow a little for the extra trouble and risk you have with your knitters?-There is a certain market price that we cannot get beyond. We must take the price in the market. Unless one merchant was able to monopolize the trade altogether, and force up the prices, he would not get more than the market price of the goods.

2565. You have said that the footing on which you settle with your knitters and with those who sell to you is, that the bargain between you is that they are to take

goods?-That is the understanding. We do not make any formal bargain.

2566. Is that bargain made with the knitters whom you employ at the time when you give out the wool?-I have said already that we make no formal bargain, but it is generally understood that we pay them in kind. They know that, and consequently they very seldom ask for anything else. But we don't stick entirely to that.

2567. You sometimes give them cash?-Yes.

2568. Is it regarded as a great favour to pay them a considerable sum in cash?-I may give an instance. The general price paid for knitting a fall of Shetland yarn is about 1s. That is about the average price, although the coarser quality may be lower than that. The yarn for that fall costs us from 6d. to 7d. That is paid in cash; and the girl is paid part in cash and part in goods, or it may be all in goods. That brings up the cost to 19d.; but if it is wanted black we must pay freight south, in order to have it dyed, and freight back to Shetland. We also pay for the dyeing of it; and these things altogether come to about 11/2d. per fall-that is 1s. 81/2d.; and then there is dressing, 1d.

2569. When do you send it south for dyeing?-When it is made.

2570. And do you bring it back here to be dressed?-Yes; that is an additional expense upon it, which has never been pointed out.

2571. Could it not be dressed in the south?-No, it could not.

2572. It must come back here simply for the dressing?-Yes; we could not value it unless we got it back and sorted it, and knew the value of it.

2573. You don't know the value of it until it is dressed?-We do not ask ourselves the value before then. We know the average value of them pretty nearly; but we send them south, and get them back dyed, and then we must dress them. There are a number of them which may be damaged, either in the working or the dyeing, and that detracts from their value, and that very fall I am now referring to, when it comes to be sold, will not bring more than perhaps 2s. In that way you can calculate where our profit lies. There are cheaper falls that do not bring more than 18d., and sometimes even lower.

2574. Then I understand you to say that in every bargain with a knitter, and generally with a seller, of a shawl, the understanding is that they are to take the price in goods?-Yes; that has been so time out of mind: I remember a time about forty years ago, when it was different and when there were two prices on goods which they sold.

2575. There were two prices then-one for cash, and the other for goods?-Yes; perhaps from 20 to per cent. of difference. I remember hearing that question discussed at my father's fire when I was a mere youth. I have been told, although I do know it [Page 56] myself, because I was not in the trade then, a woman may have bought a piece of goods for 16d., when a party paying cash for it only paid 1s. The more intelligent of, the natives thought that was an iniquitous thing; but then it was always known and done avowedly, and the people yielded to it. They said it was not possible for them to take barter, and sell their goods at the same rate because there

was so much risk and outlay. That reason never appeared satisfactory to me; and it was not until I came behind the scenes, as it were, that I saw the reason for it was, that the value given for Shetland goods was far beyond what it really was worth in the market. Its real value in the market was about the same amount less than what was charged as an addition upon the goods. What I mean is that, supposing a woman came in with a pair of stockings, the real market price of which was 2s., but for which she wished 2s. 6d., the merchant, in order to secure a sale for his goods, would give her goods in exchange of the nominal value of 2s. 6d., but he would put 3d. a yard on the price of the goods which he gave in exchange. That explains how it is that a person knowing the value of the articles, seeing the purchase which the woman might have made, and hearing the price of it, might have said that they were about 25 per cent. too high, whereas in reality they were not so. She had merely been getting value for her goods, although she did not know it; and it would not have made any difference; although it had been as many pounds higher, while the relative proportions were kept up between the value of the two articles.

2576. Is that done now?-Not that I know of.

2577. If a woman puts a higher price on her goods, is it not the usual thing for a merchant to put a little additional on the price of the goods which he is to give her in exchange?-I don't know what other merchants do, but we never do it. Only the other day, a woman carried out two shawls which I could have bought if I had departed from our usual practice, but I thought they were priced too high. I could have sold the shawls at 1s. or 2s. lower, but I would not buy them these terms. We have one fixed price for cash and goods. I am not aware whether the practice I have mentioned exists now in the town; I don't think it does. When I commenced business I made it a point fix my price in that way, and I have always adhered that. I was told by some parties I would never do business in that manner; but I had some faith in common sense, and I hoped the people would come to see that they were as well dealt with in taking the real cash value and getting the real cash value; so that we never give a higher price than we consider the thing is worth in the market, and we do not give lower.

2578. You say your understanding is, that goods are to be taken in payment, but that cash is given to a small extent: do you not consider that to be a departure from the understanding?- Decidedly.

2579. You do that, as a favour to the knitter?-Yes; and I wish it to be distinctly understood, that in every case when I give 1s. of cash, I consider it is just 2d. out of my pocket.

2580. Would you not have that profit if the 1s. was spent in your shop?-Yes.

2581. With regard to the lines or receipts which you issue, can you say whether they are generally presented at your shop by the parties to whom they were originally given out?-They are made payable to the bearer, and they may not be presented by these parties.

2582. But, in point of fact, are they generally presented by the parties to whom they have been given out?-It is impossible to know who they have been given out to,

or who brings them back.

2583. Then what is the purpose of your keeping this register of them?-It is a check upon the lines. If we had no check of that kind, we would not know what lines were out.

2584. And you would not know what amount was lying out in that way?-No; that is one reason for keeping it. Another thing is, that if a line was lost, and its value paid to another person who had found it, we could see by this book when it was paid.

2585. Could it show to whom it was paid?-No.

2586. I suppose the lines themselves are destroyed when they have been settled for?-Yes.

2587. You have no means of telling from your books, whether they have been presented by the original creditor in them, or by another?-No.

2588. And you don't know about that from your own personal knowledge?-As regards my own personal knowledge, I know that, in the generality of cases, they are presented by the parties to whom they have been given originally.

2589. Does that lead you to conclude that this system of lines is not a new kind of currency that has been generally adopted in Shetland?-I never heard of that.

2590. Does one of these lines pass from hand to hand, in payment for what the creditor in it wants?-Not to my knowledge. It is only now or lately that I have ever heard of such a thing being done.

2591. You have not known of them being transferred to other hands, and being presented by some one from whom the knitter has obtained other goods or services?-There never was any such thing stated to me.

2592. Of course you pay the value of the line to any one who presents it?-Yes. There was a girl, Borthwick, examined here, who said she had to sell her tea at half-price, in order to get other things which she wanted. I spoke to her about it, and said I had never heard of such a thing being done before, and that she must be a great fool to do anything of the kind; for she had come to us and said that she wanted the money, she would have got it upon giving a small discount for it.

2593. Have you actually given money upon that discount when requested?-I have.

2594. That is to say, one of these lines has been presented to you and cash asked for it?-Yes; part cash. I have sometimes given cash on these lines, although it was goods that was bargained for.

2595. The lines bear to be payable in goods?-Yes; but when I saw that the person was really requiring the cash, and that it was not just a 'try-on,' as it were, I took 2d. off the 1s. and paid in cash.

2596. May that have occurred often?-No; very seldom.

2597. Has it been lately?-Yes. I was obliged to make that deduction, because, if I had not done so, it would have opened a door for a system which would have robbed

us of every penny of profit. If we were obliged to pay cash instead of goods, we would have no profit at all.

2598. But that has occurred sometimes?-I think it has only occurred twice in the whole of my transactions.

2599. When a discount is taken in that way, how is the entry made in the line-book?-The lines are entered when they are finally paid up. The way in which they are paid does not appear here at all.

2600. Then that discount will not appear in the book?-No; but I may say that I often give small sums of cash on these lines without taking a discount, where I think the person is really in need of it.

2601. I think you said these lines were very seldom given to women whom you employ to knit for you?-Very seldom, I think.

2602. Can you name any of these women who have got them?-I cannot; perhaps Mr. Sandison can. He is more in the way of settling with these people than I am.

2603. Have you any dealings in stockings and the commoner kinds of hosiery?-The price-list will show that.

2604. Is the system of dealing in these just the same as you have already described?-The same principle applies to all the trade.

2605. That kind of goods is generally brought in from the country, I understand?-Yes, generally.

2606. Is it the case that people coming in from the country take goods more readily than the town?-There are very few of the people from the country who ask for cash, but they are now beginning [Page 57] to do it. They think the Truck Commission will force us to give cash.

2607. What is their reason for wanting cash, if they are as well off with goods?-I suppose it is just for same reason, that we all want cash.

2608. But if they get goods, why should they not be content with that?-I don't know. We have no objection to give them cash, if they will only be content to take less of it, on the principle have already explained.

2609. Have you ever stated to the knitters who were coming to sell to you, that they had better take ready money and take less of it?- I have. It would very great deal of bother if they would do so.

2610. What have they said to that proposal?-They have never entered heartily into it. There was a case I may refer to, not of women employed to knit for us but of women from whom we bought shawls over the counter which corroborates what I have already said on that subject. I cannot now recall the names the parties, but I would know their faces at once.

2611. Were they women from Dunrossness?-Three girls came into my shop, each of them having a shawl to sell worth £1. At that time the noise had come up about cash

payments, and I said to them, 'Now, what would you take for these in money? I am not saying that I will give you money, but what would you take for them in money?' One of them said, 'Oh, I ken you will just be going to give us money.' I said, 'Why? Don't you think the goods you get cost us money?' She said, 'I ken that fine. I will give my 20s. shawl for 18s. 6d.' I said, I could not give her 18s. 6d. for it, and asked her if she would take 17s. She said, 'No,' and that it would be most unconscionable to take 3s. off the price of a shawl. I said, 'I don't think it, because when I sell the shawl again, I can only get 20s. for it, and then there is a discount of 5 per cent. taken off.

2612. I suppose that bit of trading came to nothing: they did not take money?-No; they did not money; but another one said, 'I would not sell my shawl for 18s. 6d. or 19s. either, for I see a plaid in your shop that I want for my shawl; and what good would it do me to sell you the shawl for 17s., and then take 3s. out of my pocket to pay you in addition, when you are willing to give me the plaid in exchange for the shawl?' That was her answer to me.

2613. Was one of these women Catherine Leslie?-I think so. Leslie was her surname, but her first name I cannot recollect.

2614. There were some payments made by you to Mary Ann Sinclair for meal. Have you often paid accounts to tradesmen for meal?-Not often for meal.

2615. Or for provisions?-Very seldom. We sometimes pay small sums for such things when the people want them.

2616. But you are not able to say whether these goods are paid for directly to the dealer or through the hands of the women?-We sometimes pay for them to the dealer. For instance, if a woman was due an account to a shoemaker or any other person, and told us to pay a part of it for them, we would do it.

2617. Does the tradesman come to your shop and get the payment?-No; we just settle with him. He may come to the shop for it, or he may not; but it is very seldom that such things happen-so seldom, as not to be worth mentioning. The case of Mary Ann Sinclair to which you referred was just a cash transaction.

2618. You remember that now?-I remember that it was a cash transaction. She had to get cash from us to pay her meal with; but the particulars of the transaction I cannot recollect.

2619. She wanted the meal?-Yes; she wanted it, and we did not have it.

2620. But there were two transactions of that kind which she was concerned; one in which she was paid 11s. 3d. for meal, and another in which the entry is, 'Paid William Smith for meal.' Do you recollect about these transactions?-She had to get her meal from some one; but I really cannot say what took place

2621. I want to know what you think about the way in which these women get their living. Have you anything to say about that?-If Mary Ann Sinclair, or any one of her sisters, had come and said, 'I want so much money for meal,' I would have gone to the counter and given her out the money, and she would have gone to any one she pleased for it; or she might have come when I was out, and she could not get the

money; or there might not have been money at the counter at the time; and in that case I would say 'Go over to William Smith and get half a boll of meal, and I will pay him again.' I don't think there was any great breach of honesty in that.

2622. I do not say there was; I only want to know your opinion about the way in which those women supply themselves with provisions. Some of them I find are entirely dependent on the proceeds of their knitting for getting supplies of food; is not that so?-Yes.

2623. Now, if they take all the payment for their knitting, or the greater part of it, in goods, I don't quite see as yet where the money comes from with which they pay for their living. Have you considered that point at all?-I have not. They have never complained to me about it.

2624. Don't they say, when they come to you and beg you to give them a little money rather than goods, that they must have something to live upon?-I never heard that yet. It is very seldom they ask for money.

2625. Many of them live with their parents, and are provided for in that way; and when a woman is married, her husband provides for her; but there are single women in Lerwick, are there not, who depend upon their knitting mostly or entirely for their living, and how do they manage if they are paid almost entirely in goods?- These are the cases I have just been explaining to you. For instance, there are the Sinclair girls.

2626. They come and beg for a little money from you in that way?-Yes.

2627. Are there any others?-There are many others who get a little money.

2628. Who are some of these others?-I really don't know that I can go into the matter more fully than I have done. There are several benevolent ladies in the town who buy knitting from these women. They are not bound to work for us; and these ladies, I suppose, pay them in cash. That is one of the ways in which it may be accounted for.

2629. Do you know whether the women prefer to sell to these ladies or to you?-They have never told me anything about that. They just sell their goods where they think they will get the best bargain; but there is this to be said about it, that if they had not some place like ours, they would not get rid of one half the goods they make. The greater part of our knitters are in the country.

2630. And they knit with their own wool?-Yes.

2631. They are mostly the daughters of labourers, or farmers, or fishermen?-Yes; and they spend their leisure hours in knitting.

2632. You have no knowledge of the fact that there is often a want of food among these knitting women?-I never heard that they were really in want.

2633. Have they not stated that as a reason for your giving them money?-No; they have been very reticent on that point if it is a fact. I should be very sorry to know that there were any poor persons starving when I could help them.

2634. I suppose the character of the Shetland people is such that they don't like to confess their poverty if they can help it?-That may be so. They may be too prudent on that point, for all I know; but I suppose there is a great variety of character here as everywhere else.

2635. Has this been a fair season in the knitting trade?-The season is getting over in some departments. It is generally in the fall that we sell most.

2636. I don't mean for the sales, but for your purchases?-Well, the busy season is getting over.

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2637. I see from your line-book that on December 13th you gave out about 20 of these acknowledgments; on the 14th, about 20 also; 15th, 18; 16th, 17; 17th, 38; 18th, 10; 20th, 24; and on the 21st, 29. Would that be a busy season of the year?-Yes; very busy.

2638. Perhaps during the rest of the year you were not giving out quite so many each day?-Perhaps not.

2639. The dates of payment are all entered in the book, showing how long the lines have been in currency?-Yes; these have not been long in currency.

2640. I see that a great number of them have been paid up on the very day they were issued?-Yes; it was a system which I adopted in order to prevent any mistake or trusting to memory when I purchase a parcel of hosiery from a woman. Instead of trusting to memory, I give her a receipt for it, and she takes it with her. She may go anywhere else she likes, and then she comes back and gets the value of the line from me; it may be on the same day or two days afterwards, or it may be weeks. The greater part of these lines need not have appeared in the book at all, because they were paid up immediately afterwards. We might have kept a memorandum of them in the shop, and the people might have come and got the value afterwards. I believe other merchants do that, but I thought it was better to give the people an acknowledgment for their goods at the moment they brought them in.

2641. Do these lines go mostly to women in the country or in the town?-Just to any person who brings in goods. There is no distinction.

2642. You cannot say that the one class of women get them more commonly than the other?-No; I cannot say that they do.

2643. Is there any other point you wish to speak to?-I wish to refer to a statement made by one of the previous witnesses, Catherine Borthwick. I was present when she said that she could get no cash, and also that there was a time when there was 5s. 6d. due to her, and she had asked me for 1s. which I did not give to her. I had no recollection of the transaction at the time, and I have none still; but on referring to her account, I cannot find any occasion on which she had 5s. 6d. to get when she came to settle. I now show her account, from which it appears that she did get cash.

2644. Do you remember whether her statement referred to a sale of goods or to money that was due to her for knitting?-I understood she referred to transactions she

had had in the shop with regard to her knitting. At least that was my impression at the time.

2645. But if it were a sale of goods that she spoke of, that would not be entered in your books at all?-No, not if it were a sale of goods.

2646. Is there any other point you wish to speakto?-I should wish to make a remark or two about the value of a Shetland shawl. It was stated before the last Commission that a Shetland shawl could be made for very little money. I heard Mr. Laurenson's evidence about that, and I was rather surprised to hear that a 30s. shawl could be made for so little as he stated, or anything approaching to it. It certainly has not been my experience. For a 30s. shawl the worsted would cost 10s.; and if Mr. Laurenson meant a real Shetland shawl, I should say it would cost 12s. at any rate. I consider that the prime cost of a Shetland shawl that would bring 30s. would be this: thirty-six cuts at 4d., 12s.; knitting, 14s.; dressing, 6d.-in all, 26s. 6d.

2647. The 30s. at which that shawl would sell in the south would be the price charged by the retail dealer there?-No. I don't know what the retail dealer's charge for it would be.

2648. Then the 30s. is your charge for it?-Yes.

2649. That is 3s. 6d. you would have on it?-Yes.

2650. Is not that a profit?-Well; it is not a very heavy one.

2651. But still there is a profit?-Did I ever say that we had no profit?

2652. I thought you rather made out that the only profit you had was on the goods you sold?-I am speaking here of the cash value of the thing. We don't get our wool for barter; the wool costs us cash

2653. You allow something for interest on the price of the wool?-Yes. I say that is what I would have to pay for a shawl of that value in cash if I were buying it, or if I were trying to get it made.

2654. You would pay 26s. 6d., and you would sell it at 30s.?- Yes.

2655. Do you not call the 3s. 6d. a profit?-I do; but then in that case there is nothing else for a profit.

2656. You are supposing that you pay the 26s. 6d. in cash? If you were paying for the shawl in goods, would you pay 26s. 6d., or anything more?-If I were paying for it in goods, I would pay 30s. There might 6d. less or 6d. more; but as far as my experience goes of this kind of goods, and selling them at a wholesale price, I could not expect to realize a higher price for them than I pay, taking discounts and all together.

2657. What is the kind of evidence you are to give me to prove that there is no profit on a 30s. shawl which you pay for in goods?-I have no evidence to offer as to that.

2658. Except your trade list?-That would be taking a wide view of the thing. It would embrace the whole trade. The case I have given is a special one in contradiction of the statement made, which was a false one that a Shetland shawl could be made at that price.

2659. The list enables you to say what you sell the articles for, and you leave me to find out the price you pay from particular cases?-Yes; and if an examination of my books would help you in that, they are open to you. I am also prepared to give you the names of a number of women who would be able to tell you what prices they get for their goods.

2660. Can you give me any particular kind of goods which you think would be a fair test of that?-You may take the winter shawls, white, brown, and grey, natural colours, and straight borders.

2661. Do you think that would be a fair test?-I think it would.

2662. But there are no entries in your books which will show at what price you bought these shawls?-There may be. If a woman brings in a shawl, and gets so much goods at the time, then the balance only might be marked down, and that would be no guide to you; but at other times the whole price is marked.

2663. That is, where there are credit balances with people who come to you with shawls?-Yes.

2664. Which book will show that?-The day-book or women's ledger.

2665. Is there anything else you wish to say?-I don't think there is anything else.

Lerwick, January 4, 1872, ROBERT LINKLATER, examined.

2666. You carry on business as a merchant in Lerwick?-Yes.

2667. You purchase hosiery, and you keep a stock of drapery goods, and tea, and other articles?-Yes. Tea is the only thing in the grocery line which I keep.

2668. Have you heard the evidence of the preceding witnesses?- Only of the last witness.

2669. Is the manner of conducting business in your establishment similar to that which has been described as being carried on in Mr. Sinclair's?-Very similar; there are some differences.

2670. You deal with knitters of two kinds-women who knit with your wool, and those who sell to you?-Yes.

2671. In both cases are the settlements usually made by means of goods which they take from you?-Yes, principally.

2672. In what proportion is money paid to women who knit with your wool?-I cannot say what the proportion may be.

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2673. But is there a much larger proportion of the prices taken in goods?-Yes, very much larger.

2674. Is it the general rule that it is to be paid in goods?-Yes, it is the understanding that goods are given out.

2675. And that any money that is paid is the exception?-Yes.

2676. Is the dealing with these women usually carried on by means of pass-books?-The greater number of the knitters whom I employ have pass-books.

2677. And these pass-books are transcripts of the accounts kept in your ledger?-Yes.

2678. You ledger, I presume, is kept on the principle of having a page for the account of each woman?-Yes; or sometimes a page for two.

2679. On the one side there are the entries of goods got by the woman, and on the other there are entered the payments due to her for knitting?-There is double money column which shows both the credit and debit on the same side.

2680. How many women do you generally employ to knit for you?-I could not say exactly; but I think there might be over 300.

2681. Are these scattered all over the island?-Yes, all over the country.

2682. Is it a subject of complaint with these women that they do not get payment for their work in money?-No; I have not heard much complaint about that.

2683. The understanding is, that the payment is to be in goods?- Yes, it is the understanding that goods are to be taken when the work is given out; but I give a good deal of money.

2681. Is it considered a matter of favour when a woman gets payment in money when she asks for it?-No, I don't think it.

2685. If a woman asks for money rather than goods, is it given to her as a matter of course?-As a matter of course.

2686. Is that done whenever she asks for money?-As far as my recollection goes, it is. The greater number of the knitters whom I employ live in the country, and they very seldom ask for money. When they come in with their work, I generally ask them what they want, and they select the goods which they require.

2687. Do you know Mrs. Jemima Brown or Tait?-Yes; her sister, Harriet Brown, is the only one I have in my books.

2688. Have you ever told Mrs. Tait, or any of her sisters, that you could not give them money, and that you never did it?-I don't remember doing that. I don't remember any money being asked by them.

2689. Is it likely you said that?-I don't think I said it. I don't think I would say it, if I had goods of hers in my hand.

2690. Did she knit with your wool?-Yes. I have no recollection of her asking for money and being refused.

2691. I suppose a knitter of that kind is not likely to ask for money unless there is a balance coming to her upon her account?-It is not likely, and I think there is rather a balance against her.

2692. Is it a probable thing that you may have refused to give her money?- I don't think I did so.

2693. May your shopman, Mr. Anderson, have done so?-Not so far as I know.

2694. Do you issue any kind of lines or acknowledgments for the balances upon sales made to you?-I give no lines.

2695. If a party comes and sells a shawl to you, and does not wish goods to the whole value of it, what is done?-I understand you to refer to goods bought over the counter; in that case I mark the balance down in a book. If they come with a shawl or any other article, and sell it over the counter, and if they don't wish goods to the whole value, I mark the balance down in any name that is given to me.

2696. In what way is that entered?-It is entered on the back of the day-book by itself.

2697. Is there a special place in the day-book for making entries of that kind?-Yes.

2698. They are put under the particular date?-Yes.

2699. And are these balances generally settled up within a short time afterwards?-Generally.

2700. The party comes back soon to you for goods?-Sometimes soon, and sometimes she delays a good while.

2701. Is it usual for a party who has a balance of that kind to ask to get it in cash?-No; that is not usual at all.

2702. When you buy a shawl in that way, do you consider it to be part of your bargain that the payment is to be taken in goods?- Yes; it is distinctly sold for goods in exchange, and paid for in that way.

2703. Is that because there is a distinct understanding to that effect prevailing among the people, or is it stated at the time when the bargain is made?-It is not stated at the time, but there is a distinct understanding that payment is to be taken in goods.

2704. Will you show me the way in which these balances are entered?-[Produces day-book.]. The entry is merely the name of the party and the amount left. I generally put the date upon the top of the page but not the date for each entry.

2705. Then all these entries at the end of the book are entries of balances due by you?-Yes.

2706. And when a party comes and gets the goods, the balance is marked as 'settled'?-Yes.

2707. Where there is a sum like 3s. 4d. or 7s. 101/2d. due, there must sometimes be a little difficulty in making it square exactly, is there not?-No difficulty whatever.

2708. Is there not a difficulty in getting the exact quantity of goods to answer to that balance?-No, I don't see any difficulty.

2709. The woman may want so many yards of cotton, or a pair of gloves, or a packet of tea, and she may bring up the sum to 7s. 6d. or 7s. 3d., there being 7s. 101/2d. due to her; in such a case, how do you square off the balance?-She always takes the full value of it when she comes to settle.

2710. If the goods she gets come to something more than the balance due to her, does she pay the rest in money?-If it comes to anything more, she either pays it in money, or she may have another piece of goods to sell.

2711. Suppose 7s. 101/2d. is the sum at her credit, and she takes various articles amounting to 7s. 7d., leaving 31/2d. over, might she not have some difficulty in selecting an article to cover that?-No, I don't find any difficulty in that at all.

2712. I suppose you or your shopman can suggest something very easily?-Well, there is always something required.

2713. Have you often been importuned by these women to pay them in money, because they could not supply themselves with the means of living unless they were paid for their work partly in cash?-No; there are many cases where cash is given.

2714. These are cases where the people were in circumstances to require it?-Yes.

2715. And I suppose you are acquainted with these cases?-Yes; I generally know the people who are actually requiring money when they ask for it.

2716. Do people often ask for money in that way?-Not often.

2717. Then there are few of them who are in circumstances to require money?-I should not say that. I think there are many of them who require money.

2718. Do you mean that many of them are in need of money payments for their knitting, in order to provide themselves with the necessaries of life?-In the town there are a good many who at particular seasons of the year have other ways of working outside as well as knitting.

2719. For these, do they get money payments?-Yes.

2720. Or they have friends with whom they live?-Yes; and in the country there are a great many who live with their parents.

2721. But there are some women who depend entirely upon their knitting for a living?-I believe there are.

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2722. You don't know any of them yourself?-I could not mark out any one.

2723. But when you do meet with a woman of that description, and have dealings with her, cash payments must sometimes be made?-Yes; it little cash.

2724. If she takes her goods from you and only little cash, how do you suppose she supplements her means of living?-Just in the way I have stated, by working outside at the proper season of the year.

2725. Is that in the fish-curing business?-There is fish-curing, but there is other work outside besides that.

2726. Do you agree with the preceding witness, that there are two prices for hosiery goods bought-a cash price, and a price when paid in goods?-I very seldom buy goods for cash.

2727. But if you were doing so, would you have two prices?-I would not give the same price in cash as in goods.

2728. Do you also agree with his statement, that where you buy a shawl or other Shetland hosiery for goods, you do not get any profit except the profit which you have upon the goods?-I would not say that.

2729. In pricing a shawl, do you allow a certain margin for your own profit?-There must be that; because we get a very great deal of bad stock, and a good many of the things lie on our hands for a considerable time before we can realize what they cost us, and therefore we must have a margin for profit.

2730. There has been a statement made, that a shawl which sells in the south for 30s. can be made in Shetland for 26s. 6d.; do you agree with that?-Yes; from about 25s. to 26s. 6d.

2731. You think that statement is about correct?-Yes.

2732. Is that the price you would give in cash for such a shawl?-I am not prepared to say that. Until a cash tariff comes in, I could not decidedly say what I would give for it.

2733. Is that because of the rarity of your dealings in cash?-It is not exactly that; I should think that there would be an ordinary profit.

2734. I am speaking of a shawl that would sell in the south for 30s.; would the price you give for that shawl in goods be 26s. 6d.?-No; would be nearer 30s. in goods, perhaps about 28s. 6d.

2735. And if you were to buy it for cash, the price would be from 25s. to 26s.?-Perhaps about 26s.

2736. Then, if a similar shawl were made by your own knitters, how would you calculate the cost of production? would you supply a certain amount of Shetland wool?-Yes.

2737. How much would it require?-I think it would require about 35 or 36 cuts at 4d.-12s.; 13s. for the knitting of the shawl, and 6d. for the dressing; making 25s. 6d. That is for a white shawl, without speaking of dyeing at all.

2738. Do you deal in the commoner hosiery?-Yes.

2739. Is the system pursued in that business the same as you have described?-Yes.

2740. There is no difference that you think worth referring to?- No.

2741. Do you agree generally with Mr. Sinclair on all the other points he has spoken to?-I do.

2742. You have pointed out some differences in answer to my questions with regard to several of the points, but you don't remember anything else on which you incline to differ from him?-No; I think there is very little in which I would be inclined to differ from him.

2743. Is there anything else you wish to state?-I should wish to make one explanation with regard to the evidence given in Edinburgh about the cost of the worsted for a 30s. shawl.

2744. That evidence has already been spoken to by Mr. Laurenson?-I did not hear his evidence.

2745. He stated that the worsted for a 30s. shawl would come to at least 10s.?-If it is Shetland wool, the worsted for a 30s. shawl would cost me about 12s.

2746. If a 30s. shawl is made with any other kind of wool, is there a difference in the cost of the wool?-There would be a difference of about 3s.

2747. The English wool would be about 3s. cheaper?-Yes.

2748. And the shawl would sell for how much?-I suppose for about that much less, or about 27s.

2749. A shawl exactly the same in other respects would be made out of English wool for 3s. less?-Yes; for 2s. or 3s. less.

2750. And it would also sell in the market for 2s. or 3s. less?- Yes.

2751. The knitting in that case would be paid at the same rate?- Yes.

2752. Do you buy much wool in Shetland?-We buy all the fine wool we can get. In fact, we cannot get supplied with as much Shetland wool as we want.

2753. You don't buy it to resell?-No; I just buy it for my own use.

2754. Is it the fact that some of your Shetland hosiery is sold without any profit at all?- There is some of it sold below cost price when it comes to be bad stock.

2755. Are gentlemen's drawers, for instance, sold without a profit?-I think they are sold at no reduction.

2756. Do you make any profit upon them?-Yes, I make a profit.

2757. You sell them south at a higher rate than you pay to the knitters for them?-Yes; at a shade higher, some of them.

2758. I have had evidence today from one gentleman that he bought them and sold them at a lower price. Do you think that is the case?-It is quite possible, and I have known instances of that with myself.

2759. Does that happen with you in some kinds of goods?-Yes; with certain kinds of goods which are produced in larger quantities than are required.

2760. But that over-production does not continue over a long period of time?-It does in the knitting trade with myself. I don't pay off any of the knitters; I keep them on.

2761. Can they not turn their attention to some other kinds of work when there is too much stock of a particular kind?-It is generally lacework, veils or shawls, that I give out for knitting.

2762. But when there is an over-production of that kind of goods, can the knitters not turn their hands to something else?-They do so occasionally.

2763. So that you have not an increasing stock of goods which you cannot sell at a profit?-Very often they cannot get the wool with which to make the coarser sort of goods. It is not to be got, and there is a very large proportion of the Shetland wool sent south, and sold as raw material.

2764. Then the women are restricted to the articles for which they have suitable wool?-Yes; both those who knit for themselves, and those who knit with the wool which we give out.

2765. That is to say, you have not always the kind of wool that you want?-No; we cannot get a sufficient quantity of fine Shetland wool; but I don't give out any wool for making coarse goods, only the lace goods. I don't give out wool for such things as men's underclothing and stockings.

2766. Have you anything else to say?-No; there is nothing more that occurs to me to say.

Lerwick, January 4, 1872, JAMES TULLOCH, examined.

2767. You are a merchant in Lerwick?-I am.

2768. You keep a drapery store?-Yes.

2769. Do you sell any other goods?-The only grocery goods I sell are tea and soap.

2770. Do you purchase hosiery?-My chief business in it is purchasing it. I have very few knitters employed.

2771. Do you pay them in money or goods?-It is the understanding that they are to be paid in goods; but I often give a few shillings when they ask for it, [Page 61] both when purchasing and when I employ the women to knit. I have only one or two persons knitting for me in Lerwick just now, and not more than three or four that I remember of in the country. My business in that way is mostly done by purchase.

2772. Do your knitters have pass-books?-No; the account with them is just kept in the day-book and ledger.

2773. You have an account in the ledger with each knitter?-Yes.

2774. Does it show what proportion of the payment to the knitter is made in cash?-No. In some cases the price is marked in and sometimes not.

2775. Then how do you know what you have paid if it is not marked?-The transaction is very often carried through without reference to the book at all, particularly in the case of a purchase.

2776. But I am speaking only of those knitters whom you employ. I am quite aware that in sales it generally a transaction that is finished at the time; but in the case of your knitters, how do you know how much is paid to them in cash?-I had many more knitters at one time than I have now, but I have given them up. With regard to the one who is knitting for me just now, I don't remember whether she ever asked me for any cash upon her knitting or not.

2777. Have you only one woman knitting for you just now?-I have only two, and one of them has had no knitting for some time. I don't remember of either of these two having ever asked me for money.

2778. They have an account in your books, and they take goods, and their account is balanced now and again?-Yes.

2779. Do you sell worsted?-No. For the last few months I have had a little of the Pyrenees wool to sell, and I have sold it.

2780. Is that extensively purchased by people who wish to knit?- There seems to be a good deal of it wrought into small articles at present. I have never wrought up any of it.

2781. Is it an article that is sold for cash?-Yes; but sometimes we give it out upon the work that is brought in.

2782. There is no difficulty made about giving it out upon a transaction of that sort?-No; not that kind of it. I never object to give Scotch wool.

2783. But you do object to give the Shetland wool that is purchased for cash?-Yes; we have a profit on the Pyrenees wool.

2784. Why is it called Pyrenees wool?-I don't know. It is sometimes called Scotch wool too.

2785. Is it the practice in your shop to give workers lines for a balance that is due upon goods sold?-Yes.

2786. What is the form of these lines?-I have one or two of them here. (Produces lines.) It is in this form:

'I O U 1s. 3d. in goods. JAMES TULLOCH 3. 1. 72.'

There is a private mark in the corner which is only known to myself, showing the amount; and there is also a private stamp on the corner, as a guarantee for the genuineness of the line.

2787. The other one which you produce is a blank form?-Yes. I keep some of them on hand, ready for filling up.

2788. Can your clerk issue them in your absence?-Yes; he knows the private mark too, and he puts it there.

2789. Do you keep a register of these notes?-No; they are just given out as they are required, and goods are given for them when they are brought in. Sometimes I have given goods for a note which the people said they had lost or torn; but it is only as a matter of convenience for them that they are given at all.

2790. You would rather give the goods to them at once?-Yes. Sometimes lines are given to them when we do not have a particular thing they want; and we also give them out sometimes when we are in a hurry.

2791. Have you ever been asked to give money in return for these lines instead of goods?-I cannot charge my memory just now with any case of that kind, but sometimes it may happen. The lines are only given out for goods purchased, and not for knitting; and several times I have given 5s., and 4s., and 3s., and 2s., and so on, in cash; but if they ask for much money on a shawl, the understanding then is that I shall get it at a little less.

2792. That is arranged at the time of the sale?-Yes.

2793. But suppose the sale is concluded, and one of these lines is given for the balance, do you then understand that the whole sum due is to be taken in goods?-Yes. The reason why I expect to get the shawl for a little less if large part of the price is wanted in money, is because I never consider that I realize above what I pay in goods for my hosiery, and very often there is a heavy discount off. I have heard some of the other evidence which seems to clash a little with that, but I can easily explain it.

2794. What can you explain?-The apparent discrepancy between the value received in goods, and what the articles realize in the market. The hosiery market is a very uneven thing.

2795. If there is anything you can explain on which Mr. Laurenson and Mr. Sinclair have differed, I shall be glad to hear it?-Of course it is not my business to try to reconcile their evidence, but I was about to say that the hosiery market in the south is very irregular. It is done to some extent by a kind of, I can hardly call it favouritism, but there are houses in England that if they begin to buy from one party, they will not afterwards buy from another. If they get a very long credit, they will give a higher price, and I know of persons they are constantly dealing with to whom they will give 9s. or 10s., for an article, while they would only offer 6s. or 7s. for it to another.

2796. Are you now referring to people in the south?-Yes, wholesale dealers. And just as we may happen to get into the good graces of a good customer, so prices vary.

2797. But every article has a different price of its own, I fancy? You cannot price a Shetland shawl without seeing it and judging of it both as to the material and the workmanship?-No; that is quite true.

2798. You cannot get twenty shawls of a certain size at the same price?-No; but we can perhaps select them out of a greater quantity.

2799. But you cannot get twenty shawls made to order exactly of the same value?-No.

2800. What is your reason for carrying on that system of paying in goods?-It has been of old date. It was the practice when I commenced to the trade; but my own impression is that if a money system were adopted, only a very few of the producers would accept of it, because they would, as a consequence and as a general rule, have to take 20 or 25 per cent. less in money than they would get in goods. We buy with the understanding that we are to realize what we pay in goods. As I have said, sometimes for a certain article, or in a good market, a good deal more may be realized; but then we have the risk of loss, and we have a heavy discount; and therefore we have to live by the profit on the goods we sell. If we were to pay in cash, then of course we must buy at a lower rate, so as to give us some profit on the shawl, and consequently if a woman were to come in with a shawl, and to agree that the price was to be 20s. worth of goods, it is not likely that, unless she was very hard up for money, she would take 15s. or 16s.

2801. Can you give me any instance in which you have paid a cash price for a shawl which was lower than what you were willing to give in goods?-I don't recollect any case of that kind just now, except one.

2802. How long ago was that?-Not very long; perhaps a few months.

2803. What were the circumstances of that transaction?-It was one of these fine shawls. I don't know what I would have offered for it, but the person said she would give it to me for £2 in money, and it was agreed that that was to be the bargain. When [Page 62] I saw the shawl, it did not turn out to be quite so good as I had expected. The woman had got £1 of money at the time when the bargain was made, and after that she had taken up some goods out of the shop, and the balance of the price was taken out in goods.

2804. The bargain was made in that case, before the shawl was knitted?-No, the shawl was knitted.

2805. I thought you said, it did not turn out to be quite so good as you expected?-No, it was not quite so good when I came to see it as I expected from hearing of it.

2806. Had you looked at the shawl before you made the bargain?-I had seen her knitting it. I may remark, that very often these goods turn out better than they look when they are in an undressed state, and sometimes much worse.

2807. Have you any objection to adopt a cash system the people are willing to agree to it?-Of course I would have no particular objection; but my own impression is, that a cash system, if adopted, would give a very great check to the sale of goods.

2808. Don't you think it would be better for the merchant?-I don't know. I think a merchant would never risk so much if he had to pay in cash, or push so hard as he does now.

2809. Would the merchant in that case not make sure of getting two profits instead of one?-No, he would not do that.

2810. He would have a profit on his hosiery, because he would buy it at a cash price, and sell it at a price which would pay him for his risk, would he not?-There much competition in the trade already that the price kept up to its utmost point. Indeed, it is kept above what the goods actually realize.

2811. But if a man was depending upon the profit he was to get on his hosiery, he would not pay more for it than he could afford?- Of course he would not; but just as in other businesses, opposition here is sometimes the life of trade, and sometimes it is the death of trade.

2812. How do you apply that principle here?-There is sometimes such a keen competition that people cut up one another.

2813. Do you think the competition, would be so keen that the cash prices for the hosiery would be forced up to the level of the goods prices that are paid now?-That would depend. Those who had the best markets would be able to give the best, price, and no doubt they might by that means be able to drive others comparatively out of the trade.

2814. Is it the case, that you generally send your shawls south at such a figure as leaves you no profit upon them?-Taking it all in all, I never have any profit on certain articles. When I have an opportunity of selling to a private person, or when I get private orders, I generally realize a profit, but when I sell to wholesale merchants taking the thing as a whole, I consider that I have never realized the full price of my goods from the hosiery which I have sold.

2815. Is that one of the reasons which lead you to continue the system of paying in goods?-Of course, the system is quite general.

2816. No doubt; but supposing it were not general, would that be a reason for continuing it in order that you might make a profit out of the goods you give for the hosiery?-Of course I cannot say exactly what it might be, further than that, as I have already stated, we had to pay in cash, we would have to buy at considerably lower rates, and I am not aware that there is such a demand in the south as to enable us to do that.

2817. But you say that at present you do not make a profit upon the goods sent south?-Yes; I say that there is no profit upon the goods sent south, taking it as a general thing. The profit I have is upon the goods which I sell in exchange for the hosiery which I buy.

2818. You say you generally buy shawls: you do not get them knitted for you?-No, I have very few knitted for me.

2819. Suppose you pay 25s. for a shawl, at what price will you invoice that to your southern customer?-Generally, I would just invoice it at about the same price. Sometimes I am obliged to put it lower, but when an article after dressing turns out to be better than I expected, then I may put a shilling or so upon it.

2820. Do you keep an invoice-book?-I keep no invoice-book, but only a day-book and ledger.

2821. The day-book shows the number of shawls you send south, and the prices at which they are invoiced?-Yes.

Lerwick, January 4, 1872, WILLIAM JOHNSTONE, examined.

2822. You are a merchant in Lerwick in the same line of business that is carried on by Mr. Robert Sinclair?-Yes, something similar

2823. You deal in the same articles, and purchase hosiery in the same way?-Yes.

2824. Do you also employ knitters?-Yes.

2825. How many of them do you employ?-I can hardly tell. I have very few just now. I have sometimes had as many as from 30 to 50, but I have not nearly so many at present. I don't think I have a dozen altogether just now.

2826. Do they mostly live in Lerwick?-Yes.

2827. Are these knitters so employed by you paid for their work by taking goods, or do you, sometimes pay them in cash?-They are generally paid by taking goods. If they ask for a little cash at any time, I will give it.

2828. Are their names entered in your books?-Yes.

2829. Has each of them an account in your ledger?-Yes; a small book which I keep for the purpose. [Produces book.] We generally settle for an article when they bring it in, but sometimes there may be a balance on one side or the other.

2830. Does this book show the amount of cash that is paid for the shawls brought in to you?-No. There are many transactions that are never entered here at all.

2831. But does the book show the amount of cash that is paid for shawls which are knitted to order with your own wool?-No; when I give out wool for the knitting of a shawl, no note of it appears in the book at all.

2832. What note do you take of it?-I merely take a memorandum on a piece of paper.

2833. Then you may have a lot of slips of that kind lying beside you?-No. I very likely burn them whenever the shawls are returned, and if I know the woman sufficiently well, I may give the wool to her without keeping any note of it of any kind.

2834. Do you trust to your memory for that?-Yes. I weigh the wool before it goes out.

2835. What proportion of the wages of these workers is paid by you in money?-I cannot say.

2836. Will there be a shilling in the pound paid money?-I cannot say, but I think there will be more than that.

2837. May there be 2s.?-I cannot say exactly. Perhaps if they come with a shawl for which they are to get 8s. or 10s., they may get 1s. or 2s. upon it, but if they did not ask it, they would not get it.

2838. The understanding is that you pay them goods?-Yes.

2839. Are you often asked to give some money?-Very seldom; but whenever they ask for money, they get it, or any other thing I have in the shop.

2840. Can you explain how women who knit for you support themselves if they only get soft goods and tea for their knitting?- There are very few of them who do not do other work. There may be a few who do nothing but knit, but the greater part of the girls and women who employ themselves at knitting have other work to do besides. Some of them sew slop shirts for the agents shops, and various other things.

2841. These are required for the men who go to the whale-fishing?-Yes. [Produces day-book.] The [Page 63] details of the goods sent south are all there. It is only the amount that is posted into the ledger.

2842. What would be the cost of producing this one dozen socks [showing]?-They were bought with barter for exactly the same value of goods as is charged for them there. I have also to be at the expense of dressing them and packing them, and then perhaps lying out of my money for twelve months.

2843. Then you dress them for nothing?-I must dress them for nothing.

2844. Is not that a loss to you?-Yes.

2845. And you must pay yourself for that out of the profit on the goods which you give for them?-Yes.

2846. Is that a common thing in your trade?-I believe it is. Of course there are some of the articles on which there is a profit.

2847. I see here 'One brown half hap shawl, 3s. 9d.:' would there be a profit upon that?-There would not be much; perhaps there would be 8d. on it.

2848. 'One large hap, 18s.:' would you have a profit on that?- Yes; I might have about 2s. That article was made specially to order.

2849. Was it made with, your own wool?-Yes.

2850. 'One white hap, 9s. 6d.?'-There might be about 1s. on that hap.

2851. Was it bought over the counter for goods?-I think that one was made upon an order; but it was paid for by me in goods.

2852. There is another one at 9s. 6d.?-That is one of the same size and of the same colour.

2853. Suppose that 9s. 6d. hap had not been made to order, but had been bought over the counter and had been settled for with goods, what profit do you suppose would have been upon it apart from the goods?-I cannot say.

2854. Was 9s. 6d. the price which you paid to the party selling, or was it somewhat less?-It was 8s. 6d., and I would have a profit of a shilling on it.

2855. That was when it was knitted for you?-Yes.

2856. But I am speaking of articles which were bought by you: what profit would you have upon such an article then?-I could not tell unless I knew the kind of goods

they were to take for it.

2857. But apart from the goods altogether, what would you give for a shawl that you would sell for 9s. 6d., if it was offered to you for sale?-Perhaps I might give 9s. 6d. worth or goods.

2858. Would that be the usual way of dealing?-Sometimes it is. It depends very much upon the quality of the article. Sometimes we pay a dear price for them, and at other times we get them pretty cheap.

2859. Do you say that you generally buy an article of that kind at the price payable in goods for which you sell it to the merchant in the south?-Very often we do.

2860. Therefore you take no profit off your hosiery at all?-In some cases we do not. We cannot get it; we are glad to get what we pay in goods for them.

2861. So that the fact that you get your goods disposed of, is the inducement which you have in buying an article over the counter?-Yes.

2862. Is that one of the reasons why this system of dealing in goods continues?-I believe that is the very reason of it, and the scarcity of money.

2863. Do you approve of the system, or would you rather have cash payments?-I would rather have cash payments.

2864. In that case would you not have two profits instead of one? You would make, sure of a profit on the hosiery, as you would be able to pay for it in cash?-Yes.

2865. And would you not have the same profit that you now have on the goods that you give for the hosiery?-I think we might.

2866. Would you not have a smaller profit upon them?-Of course, if we were selling for cash over the counter, we would try to cut the goods as low as we could.

2867. If you were selling your goods for cash over the counter instead of for hosiery, would you reduce your prices?-We could do that quite easily; because often we buy hosiery articles which lie on our hands for years and the moths get into them, and we get nothing for them at all.

2868. Therefore, in consequence of being paid in hosiery you must put a higher price upon the drapery goods and tea that you sell?-I do not put a higher price on them in consequence of that, because I generally charge the same price to those from whom I get hosiery as to those who pay me in cash.

2869. But if there was no such thing as paying hosiery with goods, you could sell your goods a little cheaper, because you must calculate upon a little loss on the hosiery?-Yes.

2870. So that both the customers who pay in hosiery, and those who pay in cash, are made to pay for a possible loss upon the hosiery?-Yes.

2871. In that way they are made to pay rather higher for their goods?-Yes.

2872. Does not that rather show that the system is a source of loss to the whole community?-There is not the slightest doubt about it, but what can we do until things

are put upon a better footing.

2873. You would be glad to pay in cash if you could get your goods disposed of?-I would be very glad. For one thing, it would save us a little trouble.

2874. There is a complicated system of bookkeeping entailed by the present system?-There is.

2875. Have you had any balances to settle on lines or acknowledgments or vouchers?-No; I do not give any lines. I have always been against it.

2876. Did you give any formerly?-I gave them very rarely, unless when I could not help it.

2877. That is to say when a person came to sell hosiery to you and she did not want to take the whole price out in goods, you gave her a line?-Yes; if there was a balance then they would want a line for it.

2878. Would they not have preferred money?-They never asked for money; at least very seldom.

2879. How long, is it since you ceased to give these lines?-I have not given any lines for the last two years, or nearly that time, and I just gave them occasionally.

2880. What was your reason for laying down that rule?-Because there was such a great deal of bother about it. At a time when you were busy they would come in and pop down their lines and that is another secret in the line business. Some of the people like to sell shawls and get a line for them and then they go away and give that line to some other person, and that person comes in and orders goods of different kinds and prices them at the lowest rate we can give them for. Then, when they have screwed us down to the lowest price, they throw their line down upon the counter the same as if it were a bank-note.

2881. They do so, after having bargained and bothered with you to get you to reduce your prices, on the footing that they were to pay you in cash?-Yes; and of course you cannot refuse the line when it is offered to you. You must just take it and say nothing.

2882. Was that one of the reasons why you gave up giving lines?- It was not exactly for that I gave it up, but it was one of the reasons, because it was a great annoyance and bother. They would come in with the lines perhaps on mail-day, and bother us then.

2883. But a person might come in with a shawl on mail-day, and wish to take the value of it in goods. What would you do then?-I might tell them to come back again, and they would do it.

2884. Would they not do that if they had a line?-They would take care of that. They would get the goods they wanted, and then they would pop the line in.

2885. Then you think you are under an obligation to serve the people whenever they choose, if they have a line of yours?-Yes.

2886. But if the people have bargained with you, and you had offered them goods at a somewhat lower price for cash, and if a line was then offered to you in the way you have mentioned, would you not refuse to take the line in exchange for the goods?-No, I would not. It would not be right to do it.

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2887. Would you not say,-If you are to pay with a line, you must take the goods at the ordinary price?-I never thought of doing that, and I don't think anybody would do it.

2888. You would not like to have the appearance of drawing back from your bargain?-No; it would not look very well.

2889. Have you heard any of the evidence that has been given to-day?-I was present when Mr. Laurenson was examined, and also during the first part of Mr. Sinclair's examination.

2890. Do you concur generally with the statements which Mr. Laurenson made with regard to the trade in Lerwick?-Yes; I think he gave a very just statement.

2891. You think what he said was generally correct?-I think so.

2892. Do you know how the women who live alone, and entirely by knitting, get their provisions?-I used to keep meal, but I don't do it now. I cannot do it, because it destroyed my place with moths.

2893. Do you know how these women supply themselves with meal now?-I cannot say.

2894. Most of them are likely employed at other work as well as at nitting?-Yes.

2895. But some of them will do nothing else?-There are very few who do nothing else, except those who are in bad health, and who are not able to work outside.

2896. Have you known any of these women taking goods from you and selling them again, in order to get money?-No; I never heard of any one doing that, so far as I know.

2897. But at the time when you gave I O U's they often exchanged them for money?-Yes; or gave them to some other body to come to my shop with them. These are the only cases where I knew of them being exchanged. I heard yesterday, when I was present, that yarn had been refused upon these lines, but I always gave them yarn when they asked it from me.

2898. Did you give them Shetland yarn?-I seldom had it for my own use, but I have often given them Pyrenees wool.

2899. I suppose the reason why the idea has arisen among the knitters that they cannot get wool in exchange for their work, is because Shetland wool is very difficult to get?-I suppose so.

2900. The merchants don't keep it for sale?-No; they cannot get enough of it. I may say that I supply the women with sugar and tea, and with paraffin oil when have it.

2901. I think you are the only soft goods merchant in Lerwick who keeps sugar?-I don't know. Perhaps there are more; but I keep sugar, tea, coffee, rice, and brimstone, which they need for dressing their shawls.

2902. Is it the case that your purchases of hosiery are more commonly paid in tea and sugar than in drapery goods?-The knitters who work to me generally take what tea and sugar they require. They also take drapery goods when they need them. When we buy hosiery over the counter, it is generally drapery goods that are paid for them; but they get tea also if they ask for it.

2903. The tea is made up in quarter-pound parcels?-Yes.

2904. Do you know of any case where it has been exchanged after being purchased from you?-No.

Lerwick, January 4, 1872, HUGH LINKLATER, examined.

2905. You are a merchant in Lerwick?-Yes.

2906. Is the business which you carry on similar to that of Mr. Laurenson?-No. I don't give out wool for people to knit. I only purchase a little over the counter, and I do very little of any kind in the fancy line.

2907. You do more in the coarser hosiery?-Yes.

2908. Do you deal largely in that business?-No, I don't do much in hosiery at all.

2909. What is your business?-Selling drapery goods.

2910. Do you sell them in the ordinary way for cash?-Yes, and I take a little hosiery when it is offered in exchange.

2911. But the bulk of your transactions are in cash?-Yes.

2912. Are you engaged in any other business?-No.

2913. Do you concur generally in the evidence which Mr. Laurenson gave, so far as the hosiery business is concerned?-I do. I think he gave a very fair statement of it.

2914. You do not wish to add anything to it?-No, for it is not much that I do in that line. I may say that I don't do any in fancy goods at all, I am not much acquainted with them.

2915. But you have a considerable trade in drapery goods and tea for cash?-Yes, or in exchange for goods. It is principally with country people that I deal.

2916. With small farmers and such like?-Yes.

2917. Do you find that they are generally ready and able to pay you in cash for the goods you sell?-There are some cases where I hate to lie out of it for a good while.

2918. But your general mode of dealing is in cash?-Yes; but if they come forward with an article which is suitable for my hosiery trade, I may take it and give them goods for it, the same as if they were to pay me in cash.

2919. Money payments are the rule in your shop, and hosiery the exception?-Yes.

2920. But when you are offered hosiery, is there a different price charged by you for your I make no difference. I buy their hosiery, such of it as I accept, the same as cash, and I expect to get a cash price for it.

2921. In selling hosiery, do you put a profit upon it?-By no means.

2922. You sell it at the price which you put upon it to the person who brought it?-Yes, so that I can get the price of my goods.

2923. You regard it merely as a currency in which you are paid for your proper drapery goods?-Yes.

Lerwick, January 4, 1872, JOHN MANSON, examined.

2924. You were at one time a fisherman at Dunrossness?-Yes.

2925. You are now employed on weekly wages by Mr. Harrison, fish merchant, Lerwick?-Yes.

2926. You cure his fish when they are landed in Bressay?-Yes.

2927. You are his superintendent there and have charge of all his men?-Yes.

2928. How many men are employed under you?-It is generally women and lads who are employed under me.

2929. Is Mr. Harrison a large trader in the home fishing?-Not in the home fishing; principally in the Faroe fishing.

2930. Are his fish from that fishery landed in Bressay?-Yes.

2931. How many people are generally employed there?-The numbers vary according to the demand for work. They may range from 80 to 60 hands daily for five months in the year, during the fish-curing season.

2932. Mr. Harrison has a store in Lerwick, where he sells all kinds of provisions and dry goods?-Yes, he has a provision shop and a clothier's shop; they are different shops.

2933. Do you and the other persons employed in his fish-curing establishment deal at these shops? Do you get your supplies for your families there?-Not generally, unless we choose to do so.

2934. But in point of fact, do you get many of your [Page 65] supplies there?-I buy the greater part of my groceries from that shop.

2935. Is there any obligation upon you to do so?-No.

2936. You have never been told that you ought to do that?-No.

2937. Do you deal at the shop for ready money?-Yes.

2938. You pay for the articles as you get them?-Yes.

2939. How are your wages paid to you?-In cash.

2940. Are you paid at the end of each week?-Yes; unless when the weather prevents us from getting across the Sound, which does not very often occur.

2941. When you or any of your family come over to make your market in Lerwick, and go to Mr. Harrison's shop, do you bring with you the money which has been paid to you in Bressay?-We are paid at Lerwick in Mr. Harrison's office, for our work; and if we choose to go into either of his shops we can do so. We get the cash at the office; and if we go to the shop, we pay that cash for the soft goods or groceries which we get, but we can take the money to any other shop we please.

2942. Is the office near the shop?-The office and the clothier's shop are connected they are both on the same premises.

2943. Do many of the people employed under you deal at these shops?-Not so far as I am aware. They do deal there in a certain way, but not in a compulsory way.

2944. Is there any system of pass-books carried on there?-Not so far as I am aware.

2945. You don't think any of them have pass books at the shop?- I don't think it. I may mention in passing, that very often when we get our wages, instead of being urged to buy from them, are cautioned to use our wages in the most economical way possible, and to go elsewhere if we think we can be better

2946. Who cautioned you in that way?-Mr. Harrison himself. I don't mention that as giving you an idea that there is any grievance in the way of our not getting as good remuneration for our money in these shops as we do elsewhere, but to show the independence of the service. We are in no way bound.

2947. I know that you have not come here because you have any complaint at all?-No; I have no complaint to make in that way.

2948. Do you find the supplies which you get in these shops to be quite satisfactory?-Quite satisfactory.

2949. Do you know anything with regard to the dealings at that store of men employed, in the Faroe fishing?-Yes, a little.

2950. Is that from your own personal knowledge, or merely from hearsay?-A little from my own personal knowledge. I know the way in which the men deal with regard to getting their outfit when the fishing commences.

2951. You know that they go to the store for their outfit and that is put down in a ledger account against each man?-Yes, each man has generally a private account for himself.

2952. The contract for the Faroe fishing is that the fisherman makes certain supplies for the ship, and he is to get one half of the take?-Yes.

2953. Is the price for the fish fixed at the beginning of the season or at the end?-At the end.

2954. And no fisherman knows the price he is to get until the settlement time comes round?-Not so far as the Faroe fishing is concerned.

2955. During the absence of the fisherman at the fishing, are his family generally supplied with goods from the employer's store?- Generally; if the family are in circumstances to require supplies. Plenty of them do not require them, but those who do are supplied in that way.

2956. Do you mean that they are supplied with goods?-They are supplied with goods and cash.

2957. How does it happen that some of them do not require supplies?-A few of them live in the country, and have little patches of land, and they do not require so much goods during the season as others.

2958. Do you know the way in which the business is conducted as between these fishermen and the store?-So far as I know, they get what they ask.

2959. Do they get what money they ask?-They get money or goods, whatever they ask.

2960. And an account runs, which is settled at the end of the year?-Yes.

2961. Is there any obligation on these Faroe fishermen to deal at the store?-Not so far as I am aware.

2962. Are they not obliged to deal there for their outfit?-It is generally understood that they will take their outfit there, because it is more like giving them an advance of money than anything else.

2963. What is the name of Mr. Harrison's store-keeper in Lerwick?-There is no special storekeeper; he has several shopkeepers.

2964. But who attends to the shop?-James Mouat is in the clothier's shop.

2965. Who gives out the stores to the fishermen for their outfit?- Mouat generally gives them anything in the way of soft goods, and Gilbert Harrison, junr. supplies them with what they require in the provision shop.

2966. However you have not much experience of that part of the business?-Not much.

2967. I suppose you don't know much about Dunrossness at present?-Not much just now; it is ten years since I was a regular resident there.

2968. Have you been there lately?-It is about twelve months since I was there last.

2969. Have you relations living there still?-Yes. I have brothers there.

2970. What was the reason for your leaving Dunrossness?- Because I thought I could better myself elsewhere.

2971. Had you a farm there?-Yes.

2972. Have you one here?-No.

2973. When you were at Dunrossness, were you bound to fish to any particular person?-No; I happened not to be bound at that time, but I was singular in that respect because there were not many who were not bound.

2974. Is it a common thing in Shetland for a fisherman not to be able to fish for any one he likes?-It is quite common where the landlord is also a fishcurer.

2975. Can you tell me any men who are so bound in any part of the islands?-I think that generally the tenants on the estates of Mr Grierson and Mr. Bruce are bound to fish for their landlords.

2976. You don't know any other case within your own knowledge where a fisherman has been checked for fishing to another than his landlord or tacksman?-No, not within my own knowledge.

2977. Nor for taking goods from a store other than that of his landlord, or employer?-No; I understand that is the case in other parts of Shetland, but only from report. I don't know it from personal knowledge.

<Adjourned>.

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Lerwick: Saturday, January 6, 1872. <Present>-Mr. Guthrie.

MALCOLM MALCOLMSON, examined

2978. Are you a fisherman at Channerwick?-I am.

2979. Do you hold land there?-My father holds land under Mr. Bruce of Simbister.

2980. Robert Mouat was formerly tacksman of Channerwick and Levenwick under Mr. Bruce?-Yes.

2981. He carried on a fish-curing business there up till last year?- Yes.

2982. During the time he held the tack, were the tenants there in use to fish for and deliver their fish to Mouat?-Yes.

2983. Was it supposed that there was an obligation on them to deliver their fish to him only?-Yes; they thought so.

2984. Was it the case that there was such an obligation?-It was not, but in their ignorance, they did not know otherwise.

2985. How do you know it was not the case?-Because afterwards, when he was put out of the place, Mr. Bruce, the proprietor, told them they never were bound to Mouat; only that if he gave them as high a price as was given in the country, and served them as well in every respect as they could be served anywhere else, why should they not fish to him as well as to another? If, however, Mouat came anything short of that, then they were under no obligation whatever, but they could put their produce where they pleased, and they had only to pay him their rent on a given day.

2986. When did Mr. Bruce tell you that?-In 1871.

2987. Had he never told you so before?-He never told the tenants that before. He had given a statement to Mouat before, but Mouat never revealed it to the tenantry until after his departure; and then it was known, and only then, how matters stood.

2988. To whom did Mr. Bruce make that statement? Was it in writing, or to some particular person?-I could not exactly answer that for I have never seen the statement myself. It is only from hearsay among the tenantry at large that I know about it.

2989. Have you heard that from many of the tenants?-Yes, from many.

2990. What is your father's name?-Malcom Malcolmson. He is unable to come here, unless it is absolutely necessary.

2991. Is he not in good health?-No; not at present.

2992. Was it the practice in Mouat's time to require the tenants to deliver their fish to him only?-Yes.

2993. Did he object to their selling them to others?-Yes.

2994. Did he turn out any people for doing so, or threaten to turn them out?-He threatened a few, and turned out one

2995. Who was that one?-Henry Sinclair, Levenwick.

2996. Was that a long time ago?-Yes; a few years ago. I don't remember the number of years in particular but it is a good while ago.

2997. You have given me a letter in these terms:

'MOUL, 18<th Jan>. 1869. 'Mr. Malcolm Malcolmson. 'Dear Sir,-I am sorrey to think that I shoud hav met to-day what I have, but you will be pleased to lok out for A place at Martamas 1869, 'ROBT. MOUAT, 'as I am goen to set your land.'

What had he met that day?-He had received intelligence from his storekeeper at Channerwick that Malcolm Malcolmson's son (that is myself) had given part of the fish of Thomas Jamieson's boat to another fish-merchant, Thomas Tulloch, in Sandwick parish.

2998. Does Tulloch live in Sandwick?-Yes, near Sand Lodge.

2999. He keeps a shop and cures fish there?-Yes.

3000. How do you know that that was the reason for this letter being written?-Because Mouat told my father himself in my presence.

3001. Was that before or after the letter was received?-It was after the letter was received, and when my father asked the reason why he was to give his land to another.

3002. Was your father put out of the farm at that time?-He was not.

3003. How did that happen?-Because he lost the use of one of his hands or of his right thumb, and Mouat had a sort of sympathy with him as being unable to earn his bread as he used to do before, and therefore he let him alone for a season until he could get round again, and regain perfect health and strength, but before that season rolled round, Mouat was out the place himself.

3004. Did you consider yourselves bound to take goods from Mouat's store?-We could not do anything else.

3005. Why?-Because we had no money to purchase them with from other stores. We received no money during the fishing season.

3006. Did you ever ask for advances of money during the fishing season?-Yes; but they were refused.

3007. Why?-Because he just would not give it. He gave no reason, except that he could not give it.

3008. But you would get any kind of goods you wanted?-Yes.

3009. What was the quality of the goods at Mouats' store?-They were of a very inferior quality to what we could purchase anywhere else in the island.

3010. Are you speaking just now from your own knowledge, or from the common understanding of the people about?-I am speaking from nothing else but my own knowledge.

3011. But are you a good judge of the quality of goods?-I cannot say that I am a very good judge, only I know well enough a bad article from a good one.

3012. What particular thing are you speaking of just now?-Say cottons, moleskins, and cloth.

3013. And what as to the provisions?-They were of inferior quality as well. We had meal from his store which he called his second flour. It was as dear, if not dearer, than we could purchase it anywhere else, and it was of such a quality that it could not be eaten by human beings.

3014. Then you did not eat it?-It had to be eaten for the support of life, while it existed; but had it not been for the provisions that came from other stores, and from people who had them to sell, Mouat's tenantry could not have been alive now, and I among the rest.

3015. How could they get provisions from other stores if they had no money to purchase them with?-They made a statement of how they were situated under Mouat, and how they could not receive any meal at all, and that they had to give all their fish to him; and the other shopkeepers felt such sympathy for them, that they gave them supplies to save their own lives and the lives of their families, and to put the men to the fishing. At the same time, when they gave them these supplies, they had no expectation whatever of receiving anything for them from a good many, because they were so poor that they could not give it.

3016. Do you think the storekeepers gave the fisher [Page 67] men credit, without any expectation of being repaid?-One of the shopkeepers told me so himself.

3017. Who was that?-James Smith, Hill Cottage, Sandwick parish.

Lerwick, January 6, 1872, WILLIAM MANSON, examined.

3018. Are you a fisherman at Channerwick, in Sandwick parish?- Yes.

3019. Do you hold a piece of land under Mr. Bruce of Simbister?-Yes.

3020. It was formerly included in the tack to Robert Mouat?-Yes.

3021. Were you bound to fish for Mouat?-Yes.

3022. Did you give your fish to any other merchant during the time of his tack?-Yes. In 1870, the year that Mouat failed in business, I gave my fish to James Smith, because I saw I could not live for want of meal, and therefore I and some others were determined to give our fish where we could get both meat and money; and for doing so, Mouat served me with a summons.

3023. Were Smith and Tulloch the only fish merchants in that neighbourhood besides Mouat?-Yes; they cure fish, but not in a large way.

3024. But they buy your fish, and sell you provisions and goods?- Yes.

3025. In consequence of selling your fish to Smith, did you receive a letter from Mouat?-Yes; I have lost that letter.

3026. Did it warn you that you were to leave your ground?-Yes.

3027. Did you also get a formal warning to quit?-I did. I have it. [Produces summons of removing.]

3028. This is a summons at the instance of Robert Mouat, residing in Lerwick, principal tenant under Robert Bruce, Esq. of Simbister, dated 29th September 1870, giving you warning to leave at Martinmas: was that summons served upon you by a sheriff officer?-Yes.

3029. Did you leave in consequence of it?-No; it was in the latter part of the harvest that I received it, which was a very inconvenient time for me to leave, and I went to Mouat and spoke to him about it. He told me that if I would promise to be an obedient tenant, and agree to fish for him the same as I had been doing before, and pay the expense of the summons, I could stay. I knew that it was then coming towards the end of his lease, and I agreed to do that. If I had thought he was to continue longer on the place, I would have left.

3030. Did you pay for the summons?-I did.

3031. You have handed me another letter in the following terms:

'MOUL, 1869, <Jan>. 18<th>. 'THOMAS JAMIESON. 'LAURANCE MALCOLMSON. 'WILLIAM MANSON. 'WILLIAM MOUAT.

'I this day duly give you notice to look out for A house at Martamas 1869, as I am not incline to keep such men as you for your preasent condick.

'ROBERT MOUAT.'

3032. What does that letter refer to?-It was sent to us because we had allowed Malcolm Malcolmson to give his share of the fish away to another merchant than Mouat.

3033. You understood Mouat to refer to Malcolmson having sold, his fish to Tulloch?-Yes.

3034. This letter was written at an earlier period than the warning you received yourself?-Yes, the year before.

3035. How do you know it was that particular act on your part which caused this letter to be written?-Because Mouat told me so himself.

3036. When did he tell you so?-That same year, just a few days after the letter was written

3037. How was it that you did not leave your ground at that time?-We just never minded him, but went on as we had been doing. I and the rest of the men fished for him, and that man fished for Thomas Tulloch as he had been doing, and Mouat never asked anything about it afterwards. He just annulled the letter, as it were.

3038. You have produced another summons of removing: what does it refer to?-It is the summons that was served upon another man, Thomas Jamieson, at the same time that the summons was served upon me, and for the same thing. He knew that I was coming here, and he wanted me to bring his summons also, that I might show it to you. He had also fished for James Smith in 1870.

3039. Have you anything to say about Mouat's shop?-It was very little worth.

3040. Did you get all your goods there?-Yes.

3041. Were you obliged to take them there?-We were because we could not get them anywhere else.

3042. Did Mouat tell you that you must take them from him?-He did not say that we must take them; but when we were fishing for him, and getting no money, we were obliged to go and take our goods from his shop. Although they had been double the price of what they were anywhere else, we had no other way of doing. We could not make a better of it.

3043. You think the quality of the articles you got there was not good?-It was not.

3044. The meal especially was bad?-Yes; the meal was worst.

3045. Was the tea good?-No; it was bad, and it was dear.

3046. For whom were you fishing last year?-For James Smith.

3047. Are you perfectly at liberty now to fish for any one you please?-Yes, we are at perfect liberty.

3048. Smith is not a tacksman?-No; he just takes our fish, and pays us well for them, as high as can be got in the place.

3049. Do you deal at Smith's shop?-Yes.

3050. And you settle with him annually?-Yes; I have just settled with him this week.

3051. Had you a balance to receive from him?-Yes; £4, 14s.

3052. That was your balance of the season's fishing, after deducting the price of the goods you had got during the season from his shop?-Yes.

3053. Is that a usual balance in a good season, or is it under or over?-It is just about the general thing.

3054. Was that paid to you in cash?-Yes.

3055. You paid your rent to Mr. Irvine, of Hay & Co.?-Yes.

3056. Have Hay & Co. any fish-curing places in that neighbourhood?-No, they have a place down at Dunrossness, but that is a long way from us.

3057. You are not expected to fish for them?-No; we have heard nothing about that yet.

Lerwick, January 6, 1872, ROBERT ANDERSON, examined.

3058. You are principal shopman to Mr. Robert Linklater, merchant, Lerwick?-Yes.

3059. I understand you desire to make some explanation with regard to the evidence of two women who were examined here?- Yes; of Margaret Tulloch, and of Mrs. Thomas Anderson, Margaret Tulloch said she refused to take worsted from us to knit, because she could not get cash for her work. I have to state that we refused to give her work because she kept it so very long; and when she was asked why she had kept it so long, she said she had so many lodgers, that she had scarcely any time for knitting. The last thing she had from us was a small handkerchief, the knitting of which was worth 1s. 6d., and which could easily be [Page 68] made in three days. She had it in hand for two days short of five months. Mrs. Anderson made the same remark, that she would not take worsted, because she could not get cash for her knitting. I have the same explanation to make with regard to her, that we refused her work because kept it too long. She got a little shawl to knit on 28d February 1870, and she returned it to use on 14th June. The knitting of it cost 2s.

3060. You find that from your work-book?-Yes. When we asked her why she kept the work so long, she replied that she had so much out-door work to do, that she had scarcely any time for knitting. Then there was one of the girls Brown, Mrs. Tait, who was examined the first day, and who said, I think, that I would not give her cash, but would only give it to my favourites. There are some sisters of that family, and the book was in name of one of the sisters. I only recollect her asking me once for a shilling, which I gave her.

3061. If she got cash, would it not appear in the book?-Yes.

3062. Did she sometimes deal with you in the way of selling her hosiery?-No.

3063. She always knitted for you?-Yes. On 2d July 1869 there is cash 1s. marked: that is the only time I recollect her asking it; and she got it, although I may have made the remark when handing it to her, that we were not in the habit of giving cash. I did not refuse it for all that, but in the act of handing it I may have made that remark.

3064. Mr. Linklater stated that there are about 300 people knitting for him: are the names of all these parties entered in your work-book in separate accounts?-Yes. [Produces work-book.]

3065. Will you show me the way, you make settlement with one of your workers?-Here [showing] is the case of Mary Henry, a country girl.

3066. Is that a good enough instance of it?-Yes. She brings in ten veils, and she has to get 1s. each for knitting them. That is entered to her credit. She will ask what she is to get, and we tell her. Then she will take whatever she wants at that time. She may have sent the veils in with another girl, and come in afterwards herself to get the goods.

3067. I see she has taken out 17s. 41/2d., worth in goods?-She had taken out the amount she had to get, and she brought in other ten veils afterwards, the date of which I find is not marked. Then she asked what she had to get, and she was told it was 4s. 111/2d. We would ask her if she was to settle for that, and she said yes, and we marked it settled.

3068. Was that 4s. 111/2d, which is marked as the balance due to her, paid in cash or got in goods?-It was got in goods entirely.

3069. The items of that do not appear here?-No. When we are busy we scarcely have time to enter all the items; but at other times, when we are not so busy, we enter them all.

3070. It is a rule in your business that you do not give lines for a balance of that kind?-Yes.

3071. You do not give them on a purchase of goods either?-No.

3072. Do the purchases of goods from parties who do not knit with your worsted appear in any of your books?-No; unless a balance is left, and it appears in the end of the day-book where I now point it out. [Showing.] On page 38 there is the account of Helen Arcus, our dresser.

3073. Is that Mrs. Arcus who has been examined?-No; she does not dress for us. That account of Helen Arcus is entirely for dressing.

3074. Is it settled by goods?-No. I wish to explain how we deal with her. She gets out a quantity of shawls and veils or neckties to dress. When they are finished, she brings them down to our hosiery shop where we keep our hosiery and she gets the amount marked on a bit of a line with which she goes to the other shop. I ask her what she wants and perhaps if the amount is 8s. 71/2d. she will ask for a quarter pound of tea for 10d. I then ask her what she wants next, and she says, 'I want 2s. or 3s. in cash.' There is then a balance left, which I mark in the book thus 'By 4s. 81/2d.,' which stands as a balance due to her. If she wants any cash in the interim between that time and the time when she brings down her dressing, she comes to the shop and gets cash, say 6d., or any goods she requires. She gets at the very least 5s. a week in cash all the year round. That does not appear in the book, but she gets whatever she asks.

3075. How do you balance the account when the time comes for doing that?-We add up the two sides of it.

3076. I see that each line in the account contains both debit and credit entries?-Yes, but there are two money columns at the end, and the entries are carried out to them according as they are debit or credit.

3077. How do you do with regard to sending goods south?-When we get orders for Shetland goods in the winter time, they go to our house in Edinburgh. We have already forwarded goods there, and they are kept in store; the orders received at that season are executed there, and a statement is sent down to us. This [producing document] is one of the statements which have been sent from Edinburgh for veils, and here [producing document] is another for shawls. I have brought a sample of each.

3078. The veils are numbered according to quality?-Yes. When we send them of different prices, there must be a different number, to let the people in the south know what the prices are.

3079. You fix the price here at which they are to be sold in Edinburgh?-Yes.

3080. That is the wholesale price?-Yes. Here is June 4: 4 dozen grey veils No. 1, 18s.-£3, 12s.; 4 dozen grey veils No. 6, 21s.- £4, 4s.; 3 dozen No. 7, 27s.-£4, 1s.

3081. Have these grey veils No. 1 been knitted for you by your own knitters?-The principal part of them; but we buy some.

3082. Show me one of the entries of the payment to a knitter for these veils?-I could scarcely show it for these identical veils.

3083. But for veils of the very same quality?-I should think this [showing] would be of the same quality: '10 veils, 9d.-Barbara Pottinger, Burra Isle.'

3084. Then the No. 1 veil which you sell at 1s. 6d. would cost 9d. for the knitting?-We pay 9d. for the knitting of it.

3085. You give out the worsted: what will that cost?-I should think for the coarsest, about 5d.

3086. Would that be the price you pay for it, or the price you would ask for it from a knitter?-It is the price we pay for it; it is Shetland wool.

3087. Which you don't sell?-Which we don't sell. We sell no kinds of wool.

3088. What does the veil cost you for dressing?-11/2d.

3089. Is there any other expense connected with?-There is not on that identical veil, but there is other expense connected with the trade.

3090. Have you to pay freight?-Not freight; but when we get a quantity of goods of that kind, perhaps one-half of them cannot be sold as they are. The colour is so uneven, that we have to send them south and dye a great part of them.

3091. Do you send one-half of each lot south?-Sometimes one-half, and sometimes more and sometimes less.

3092. What is the cost of dyeing?-We pay 1s. a dozen for dyeing; and there is the freight south and the freight back again, and we require to re-dress a great many of them.

3093. So that some of these veils may actually cost you 1s. 6d.?- Yes; and some of them cost less.

3094. What margin of profit does that leave?-I really cannot say. I think no Shetland merchant can tell the exact profit he has on any of his goods.

3095. But there are a number of incidental expenses of that kind, which bring the actual cost of the veils up to about 1s. 6d. apiece?-Yes.

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3096. May that be said with regard to other goods also?-It can be said of shawls.

3097. You think the expenses of that kind for sending south, and dyeing and re-dressing, often make the cost of production nearly equal to the selling price?-Yes; and in many cases more than the selling price.

3098. How much wool would there be in a dozen of these Shetland veils?-I should say there would be twenty-one cuts of Shetland wool in a dozen No. 1 veils at 18s.

3099. What is the price of that Shetland wool per cut?-3d. is the price for a fairish quality. Some of the veils turn out very bad from the 3d. worsted, while others turn out to be a little better.

3100. Therefore the worsted costs 5s. 3d., the knitting 9s., and the dressing 1s. 6d.: that leaves 2s. 3d. What proportion of these veils can go to the market without any dyeing or re-dressing?-I don't think there will be more than half of them. The worsted looks very well before it is given out to the knitter; but when it comes back, there are dark and light bars through it.

3101. Then upon one-half of them you have the expense of a double freight to Edinburgh, and also the expense of dyeing and of re-dressing?-Yes.

3102. But it is only a fraction of those sent south require to be re-dressed when they come back?-They all require to be re-dressed when they come back from the dyers.

3103. What dyers do you send them to?-P. & P. Campbell, Cockburn Street, Edinburgh.

3104. What is their charge for dyeing?-I think it 1s. 6d.; but they give 5 per cent. off at the end of the season.

3105. Coming to the English wool; I see there are four dozen black veils No. 5s. 33s., made with English wool: what quantity of wool is required to make dozen of these?-It requires about 3 oz. for a dozen, or about a quarter oz. to make a single veil.

3106. Do you sell that wool by the ounce or the pound?-We buy it by the pound, at 32s. 6d.

3107. Then 3 oz. would cost about 6s.?-Yes; a fraction over that. We don't give them to the knitters here; we give them to a person in the country, who gets them knitted for us. We pay 14s. for the knitting of them to that person in the country.

3108. Is there any particular reason for employing a party in the country for that kind of goods?-We think we can get them better done in that district of the country.

3109. Where is that?-In Unst.

3110. Who is your agent there?-It is a private person. I would rather not tell her name in public.

3111. What is the expense of dressing these veils?-1s. 6d. a dozen.

3112. Does the same proportion of them require dyeing as in the other case?-No; none of these require dyeing, because they are black.

3113. Then there is no expense for dyeing with regard to them?- Very seldom.

3114. Is that sum of 21s. 6d. the whole cost of production of these veils?-No.

3115. What additional cost is there?-There is about the same proportion of them both in the knitting and in the dressing that gets damaged, we cannot get the prices for them that we allow for the knitting.

3116. Do you mean that such a large proportion of them are destroyed in the knitting and the dressing, that you cannot sell them?-Yes; we cannot sell them at very much more than half-price.

3117. What proportion of them are so damaged?-I cannot say exactly; but I should think about the same proportion as in the other case.

3118. Therefore the high price you put upon these veils is intended to cover the loss incurred in that way?-Yes.

3319. The damage, I understand, occurs in the dressing?-Yes; and in the knitting too. There are a good many black lumps in the wool, and the people are very careless, and knit in the black lumps, and thus destroy the veils.

3120. Under what description do you sell these damaged veils?- As job lots; but I wish to state that the woman whom we employ in this way is a dealer, and we have to give the goods to her at a very great reduction. We have to give them to her at the wholesale price. The goods which we pay for the knitting are sold much cheaper to her than to others.

3121. You pay this woman in goods?-Yes; at wholesale prices. It is almost the same as cash, because we have to give the goods so much cheaper.

3122. Does she keep a shop?-No; but she deals in a small way. I think she has a room in which she has some small things. It is in one sense a shop, and in another it is not.

3123. Do you require as much as 11s. 6d. to cover what you lose on the job lots?-I think we do.

3124. Have you any books here which show an entry of a job lot of that kind?-I don't have them here.

3125. How does that appear in your books?-They are entered as so many dozen veils job.

3126. They are entered in that way in your day-book as sent south to your correspondent in Edinburgh?-Yes; there are a good many of the same kind of veils, which having to lie over the season get crushed, and are taken back and re-dressed,

and sent south again.

3127. But losses of that kind occur in all trades, I suppose?-I suppose so.

3128. You said you would charge for a job lot about half-price?- Less than half-price.

3129. Can you calculate how many job lots there would be out of say ten dozen of these black veils?-I have often taken one-half of them out for job lots.

3130. Do you say that, as a rule, there would be five dozen job lots in ten dozen black veils?-Very often there are that number.

3131. Would that be an average?-I think average is scarcely so high, but very near it.

3132. Then, of all the black veils No. 5 sent to your correspondent in Edinburgh, nearly one-half will be job lots?-Yes; of the one kind of veils-that is-the finest kind. There are very few of the cheaper veils jobbed in the same way,

3133. Why are there so many of them in these fine veils?-The worsted is so fine, that they get torn, and the slightest mistake injures them.

3134. Will you show me an entry of some veils of the medium quality?-Here [showing] is an entry of No. 7 veils at 24s.: these are Shetland wool.

3135. I would rather take a case where English wool was used?-I don't think there is any case of that kind there. No. 2 is the only one very near it of English wool.

3136. Here [showing] is an entry of four dozen black veils No. 2, 21s.: what would the cost of wool be there?-About 10s. 6d, per pound.

3137. What quantity of wool would be required for a dozen?-I think 1 oz. would make three veils.,

3138. Then 4 oz. would make a dozen; that is 2s. 71/2d. as the cost of wool for a dozen?-Yes.

3139. What would be the cost of knitting a dozen?-12s. in goods.

3140. And of dressing?-1s. 6d.

3141. Have you to dye these?-No; we don't dye them.

3142. Is there the same risk of loss from their being spoiled as in the other case?-Not quite the same; but there are a certain number of job lots there too.

3143. What proportion of job lots may there be in that sort of veil?-Generally from one-eighth to one-fourth of the whole.

3144. Do these sell at half-price, or more than half-price?- Generally about half-price-sometimes a shade less and sometimes a shade more, according to the state of the market.

3145. Then the price you charge for them, 21s. is calculated to cover the loss upon job lots?-Yes.

3146. There is thus a difference of nearly 5s. between the cost price and the selling price of these No. 2 veils: is it not the fact that that difference is allowed for profit?-It is the fact that it is not allowed for a profit: the profit is not so much.

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3147. But it is calculated so as to allow you a certain amount of profit?-Yes; a certain amount.

3148. That is not the actual profit receive; but the price is so calculated as to cover the loss upon job lots and to allow you a certain amount of profit as well?-Yes.

3149. In fact, so as to make it safe that you may get some profits- Yes.

3150. Is that not so with the prices, of all your hosiery goods?- With the lace goods that we get knitted it is the case. We only put out lace goods to be knitted; we buy all the other goods over the counter.

3151. What do you mean by lace goods?-Lace shawls and veils, principally, and neckties.

3152. Do you call all the open lace goods Shetland goods, whether they are made of English or Shetland wool?-Yes.

3153. This [showing] is an invoice of shawls?-Yes.

3154. Is there any material difference, with respect to the shawls, from the calculations with regard to the cost of production and profit which we have just made with respect to the veils?-I think it is very similar.

3155. It comes to something like the same thing?-Yes; but the difference is not quite so marked.

3156. You think there is not so much difference in the cost to you, in the case of shawls, as in the case of veils?-No; because we don't get job shawls, and we don't require to guard against that.

3157. Are there no job shawls at all?-It is extremely seldom that there are any.

3158. Therefore, in that case, you require to make the margin less?-Yes.

3159. What do you think would be the percentage of profit upon the lots of veils and shawls mentioned in this account [showing]?-I really could not say. I am quite sure that no person in the trade could tell that.

3160. You have never made an exact calculation of it?-Never.

3161. Can you give me an approximation to it? Will it be 10 per cent.?-Yes; it will be more.

3162. Will it be under 15?-I think it will be.

3163. That is not taking into consideration the fact that they are paid for in goods?-There is nothing like 15 per cent. in that view. I am taking the whole profit in every way connected with them.

3164. But the question I am asking is, whether, calculating the cost of production in money as I have done just now, and calculating the selling price in money, the profit realized upon these two invoices you have handed to me will amount to 10 or 15 per cent.?-I don't exactly understand the question.

3165. We have been calculating the cost of the article to you?- Yes; and the real cost to us, I would say the profit will be 15 per cent.

3166. Then, in addition to that, you sell goods to the parties who bring in the articles?-Not in addition to that.

3167. You don't mean to say that you give your goods in return for these articles at cost price?-No, we don't.

3168. You have a profit upon the goods?-Yes; but we don't have a separate profit of 15 per cent. on the hosiery.

3169. But the purpose of the calculations we have been going into just now is to show what the hosiery costs?-Yes; what is the cost to Mr. Linklater.

3170. How do you get at the actual cost?-I cannot get at it exactly. I really don't know what it is.

3171. But when you say you pay a woman 10s. for knitting, that is marked down in your book as the price paid to her for knitting, just in the same way as if it had been paid in money?-Yes; but I say that we don't have 15 per cent. of profit on these goods over and above the profit we have on the goods given to the knitter.

3172. But, setting aside in the meantime the fact that the women are paid in goods, and supposing that the 10s. entered in your book is paid to the knitter in cash, do you mean to say that your profit is not 10 or 15 per cent.?-If it was cash, I should say it was 10 or 15 per cent.,-on some things a little more, and on some things a little less.

3173. I am speaking of the hosiery exclusively at present; but in point of fact the 10s. that is entered in your book as the cost of knitting is invariably, or almost invariably, settled for by means of goods on the other side of the account?-Yes.

3174. Are these goods charged to the knitter at wholesale prices or at retail prices?-At retail prices.

3175. Then that retail price implies that there is a profit on the goods?-That is what I am saying; but I say that we don't have 15 per cent. profit on the shawls, and a profit on the goods besides. I say that if we were paying the actual cash for the knitting of the shawls, then we might have 15 per cent. of profit.

3176. Do you mean that if you were paying actual cash for the knitting of the shawls, you would allow smaller profit on your goods?-I do.

3177. Then when you said with regard to the grey veils No. 1, at 18s., that the cost of knitting was 9s. a dozen, that payment to the knitter was higher than if you paid her in cash?-Yes.

3178. How much higher?-I think that one would not be safe in that case to pay more than 7s. or 7s. 6d., but some knitters make rather better things than others. Of course that is only my own opinion, and it is a thing I have never discussed either one way or another.

3179. You don't sell the Shetland worsted?-No.

3180. And you say an average price for it is 3d. a cut?-Yes; fine worsted may be from 3d. to 6d. a cut.

3181. The payment for that is generally in goods?-No, it is generally in cash, but we do sometimes get it for goods.

3182. You pay for it generally in cash: how do you account for that deviation from your general practice in Shetland?-We buy a good lot of it from merchants, and there are a good many old women who spin for a living, who we think require the cash. There is also such a demand for it that we are very glad to get it for cash, when the market is generally overstocked with everything else.

3183. Is there much Shetland wool sold in the southern markets?-No; we only send very small quantities of it south, for darning purposes.

3184. Are you aware whether there are merchants in Shetland, either in Lerwick or in the country, who send Shetland wool to the southern markets?-I know it has been sent from Yell.

3185. To a large extent?-No; it is not produced to a large extent. All that is produced in Shetland is very trifling.

3186. How did it happen to be sent from Yell?-Because a hosiery merchant in the south, who was selling their goods, got an order for worsted, and it was sent to him. I only know or that one instance.

3187. Was it sent by a proprietor?-I am not sure. It was Mr. Pole of Greenbank who sent it. I rather think his father is proprietor of Greenbank. Mr. Pole is now at Mossbank.

3188. What is the cost per pound of that worsted which sells at 3d. per cut?-Ordinary good 3d. worsted should be about 20s. a pound.

3189. Therefore it is not so dear as the English worsted?-It is much dearer.

3190. But there is some of the English worsted high as 32s. a pound?-Yes; but we have bought Shetland wool at 96s.

3191. Is that the finest quality of Shetland worsted?-Yes

3192. How much is that per cut?-I think about 7d. We have paid 7d. a cut for it, and on weighing it out I have found there were 12 cuts to the ounce. A cut is 100 threads, and a reel is about a yard long, or scarcely so much.

3193. There will be a greater number of cuts in a pound of fine worsted than in a pound of coarse worsted?-Yes.

3194. So that the proportion between the price per [Page 71] cut and the price per pound will differ very much?-Yes

3195. In your trade is there any quantity of goods sold for cash?- Yes.

3196. Are these marked and sold at the same price as those which you give in return for hosiery?-Yes; they are marked at the same price, and generally sold at the same price. On rare occasions there is a slight discount given for ready cash.

3197. How much is that discount?-I should say about 1s. per £1.

3198. Why is that not allowed when the settlement with hosiery?-Because we consider that in our transactions throughout the year we do not realize for our hosiery goods the full price which we pay.

3199. Have you two shops?-Yes.

3200. In one of these is hosiery kept and bought?-In one of them hosiery is kept; it is only in bought that shop now on very rare occasions. When Mr. Linklater or I happen to be there, we may buy something, and send the customer to the other shop to settle for it.

3201. Then the buying of hosiery is only conducted in the drapery shop?-The settlement for hosiery is only conducted in the hosiery shop.

3202. As a rule, a person selling a shawl or veil would go to the drapery shop?-Yes; and if Mr. Linklater or I was not there, she would go to the other shop to see if we were there.

3203. How do you settle with them if the purchase is made in the hosiery shop?-Generally one of us goes across with them, and on other occasions we give a line to the other shop such as this: '12s. R. L.,'-just the sum and the initials, and they go to the other shop, where it is settled at once.

3204. That is in cases of purchase, and has nothing to do with your knitters?-Nothing; unless in the case of the dresser, who has to bring all the dressed goods to the other shop. She sometimes gets a similar line; at other times she just tells the amount. Of course we put every confidence in her; and whether she has a line or not, she is settled with all the same.

3205. Do you exchange a large quantity of tea for hosiery and knitted work?-Not a large quantity; only a small quantity.

3206. Was it larger formerly than it is now?-I don't think it.

3207. The principal dealing is in goods?-Yes; in goods. Of course when people ask for tea, they are never refused it; but we don't sell much.

3208. Do you give them tea for goods at the ordinary market price that it is got at in the other grocery shops in town?-I have no idea what their tea costs them at other places. One merchant does not know what another merchant's goods are sold for.

3209. At what prices do you sell your teas?-Generally at 9d. and 10d. per quarter.

3210. Have you only two qualities?-Yes.

3211. Is it always sold in quarter pounds?-No; it is sometimes sold in half ounces.

3212. It is just put up as the people ask for it?-Yes.

Lerwick, January 6, 1872, ROBERT SINCLAIR, recalled.

3213. Have you anything further to add to the evidence you previously gave?-I produce a list of names of parties who have sold goods to me, and they can be examined as to the prices they have got for their goods, that the range of prices may be ascertained. [Produces list.]

3214. I believe you also wish to explain something about the number of your knitters?-Yes; I made a mistake about that. I find from the index in our workers' book that the number is upwards of 300. I believe, however, that a great number of the knitters who appear in our books will also appear in the books of other merchants. They take work from two or perhaps three, at the same time; and consequently the aggregate number of knitters is not represented by the number that is found collectively in the books of the employers.

3215. You wish also to speak about Catherine Borthwick's evidence. She said she had never got any money from you; that she had asked you about two years ago for 1s,, when there was about 5s. 6d. due to her; that you refused it; and that she had never asked you for any since?-I have no evidence either to corroborate or to disprove that statement. I have not the least recollection of it; but I don't believe that it happened

3216. Is there anything in your books to contradict it?-Nothing.

3217. Then there is nothing for it but her statement, and your statement on the other side?-Quite so.

3218. In a large business like yours there might be a cash transaction at a time, apart from your books, which was settled for there and then?-Yes, it might have been; but it is a very unlikely thing that she asked me for 1s. in cash and I refused it unless I had very good grounds for doing so. She was generally behind in my books.

3219. But what she deponed to might have happened when she was behind?-Yes; I think it was very seldom, until I settled up with her, that she was not behind.

3220. In the work-book, I notice that dressing is occasionally charged against you on the credit side?-That is in the case where the knitter also dresses, and she is paid for that as well as for the knitting. We sometimes included both in the same payment, but not very often. Now we always separate them.

3221. When you were examined previously with regard to the cost of the wool in a shawl made of English wool, were you speaking of the price which you paid for the wool, or of the price at which you would retail it?-With regard to English or south-country wool, I may just repeat what I said before; that we really do very little in it, especially for fine shawls. I never charged 30s., or anything like it, for a shawl made of Pyrenees wool, because I did not consider that it was real Shetland goods.

3222. Then you deal in the real Shetland goods?-Yes, mostly. Occasionally, if I have to send a shawl of another kind to the south, I state that it is not handspun wool-that it is not the real Shetland wool.

3223. So that the great majority of your goods consists of Shetland wool; and in estimating the cost of production of a shawl, you estimated it at the price you paid for the wool?-Just so.

3224. And not at the retail price to a customer?-No; it was the cash price meant. There is one exception-that is, in the mohair falls-similar to those Mr. Anderson has been referring to, where, as rule, we pay a higher rate for knitting than that mentioned. These mohair falls are the only thing we deal in that is not Shetland.

3225. That is, the grey and black falls?-Yes. We never buy black wool; we always dye the falls after they are knitted.

3226. Are falls and veils the same thing?-We don't buy the mohair black; we think we get a more uniform shade of colour when we buy them in the piece.

3227. I understand you have two shops?-Yes.

3228. One of them is a shop where you only deal in drapery goods?-Yes; where we only deal for cash.

3229. There are no hosiery dealings carried on there?-No.

3230. Are the same prices charged for the drapery goods in the two shops?-There is a very small shade of difference on some things. Some things are exactly the same in both; on others there is a small difference. I should say that there is such a difference on calicoes. There are several things we sell in that shop, such as fancy goods and sewed articles, which are not kept in our hosiery shop at all; but winceys and stuff goods, such as camlets and satteens, and other things for dresses, are charged alike in both shops, so far as I remember.

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3231. Is there any difference made in the price of the tea?-We don't sell tea in the drapery shop. While on this subject I would call attention to one thing that was stated in Mr. Walker's evidence. He said that the merchants gave mostly flowers and ribands, and things of that description in exchange for the hosiery; while the fact is that flowers and ribands are just the kind of goods which I would avoid giving, if I could, because we do not realize a profit on them. In our cash shop we never have flowers or ribands, unless when we are obliged to have them for the accommodation of our customers; and we would rather want them. I was four years in the trade, so far as I recollect, before I had any flowers or ribands in stock at all, because I knew from former experience they were a thing which did not pay.

3232. What is the reason why these things do not pay?-They may pay some people in the south, who charge a higher rate for them; but we do not charge so high for them as in the south.

3233. How are you obliged to have them now?-Because the people will have them, and they have got into the habit of buying them at the ordinary rates. An ordinary retail profit put on any of these things won't pay us, because so many of the flowers are lost, crushed, or destroyed; and sometimes I have seen us have to throw a box of them from the pier. Another thing is that ribands go out of fashion. There are boxes of ribands standing in my shop, which I would sell for one-fourth of the cash I paid for them.

3234. Do you not keep these, goods because you find it necessary to have them in order to induce people to come to your shop with their hosiery goods?-By no means. They come without any inducement of that kind.

3235. But they want them when they are selling their hosiery?- We could do without them, for that part of it. There are many customers who come for them, as well as hosiery customers. When we want a particular article of hosiery, and have an order for it, we can arrange, and often do arrange, to buy it for cash; and the people may go and buy their goods where they like. That is frequently done when we have a standing order for an article; so that we do not keep these things as baits for the public at all.

3236. You buy a good deal of wool from the north isles?-Yes.

3237. I think you said you did not send any of it south?-No; I don't require to send it south.

3238. Are you aware of Shetland wool being bought and sent south in considerable quantities?-I was told by a south-country dealer that he had bought a considerable quantity of wool from Shetland; but that is all. I know about it. I have no personal knowledge of the thing being done.

3239. You don't understand that it is bought up by the proprietors or factors or middle-men?-I never heard anything about that, except from Mr. Walker's evidence; and it is a dream.

3240. You don't buy it yourself for any purpose of that kind?-No; there are none of the merchants who do that. There is one thing in my previous evidence which I wish to correct: I thought of it after I left here. In calculating the value of a 30s. shawl, I put down 14s. as the value of the knitting; but in that case I did not make the deduction I should have made for the percentage of the goods paid for it, which would increase the real profit to the dealer. As, however, in a great many instances, when we require a fine shawl of that kind, a good deal of it is paid in cash, I think that, taking it as a general thing, not more than 1s., 6d. would fall to be deducted for that from the figure I gave. In some cases the price is paid wholly in cash, especially for things of that kind. That sum of 1s. 6d. would therefore fall to be added to the profit if the article was paid in goods; but if paid in cash, then my statement was quite correct.

3241. Did you hear the evidence which has been given by Mr. Anderson with regard to the cost of making shawls and veils?-I did.

3242. It was mostly veils he spoke to, and the selling price of them: do you think his calculations that on subject were generally near the truth?-I believe they were perfectly correct, so far as my own experience goes, but I may say that my experience in that matter has been somewhat different from his, inasmuch, as for that class of wool, and knitting. I often pay a higher rate to good knitters. There is this; however, to be said in my case, that I do not have so many job lots, which compensates to a great extent for the difference; and another thing is that I do not charge such a high price for them as he stated, when sending them south. If I am selling to a private individual, I may but it is very seldom that I sell to private individuals.

3243. That may be accounted for in this way: that you sell more to wholesale customers, while I suppose Mr. Linklater's business in Edinburgh is really a retail business?-Yes; he has a very extensive establishment in Edinburgh.

3244. His own establishment there is a retail one; so that the prices Mr. Anderson was speaking of were probably retail prices?-I suppose so. I think if the one was balanced with the other, there would be found to be very little difference between Mr. Linklater's experience in the trade and my own. I wish it to be distinctly understood, that when I said we got no profit, on the goods except what we realized on the first purchase, I meant that we do not realize indeed we often don't realize so much-as the price we paid for them in goods. In particular cases, we may charge a shade over what the thing has actually cost us; but there are a great many articles for which we must charge less, and that much more than balances the other. If our customers in the south were private individuals or consumers, we could very easily pay the same rate in cash that we now pay in goods, but as we have to sell to retail dealers in a wholesale way, we cannot afford to do that, unless we were to rob the retail dealer of his profit altogether.

Lerwick, January 6, 1872, ISABELLA SINCLAIR, examined.

3245. You are the daughter of Mr. Sinclair, who has just been examined, and one of the assistants in shop?-Yes.

3246. Are you sometimes concerned in the purchase of hosiery goods?-No; I never purchase hosiery.

3247. You only sell in the shop?-Yes.

3248. Is it the case that the lines which are given out in your father's shop are generally brought back by the same parties to whom they are issued? Do you know who the lines are given to?-No; we keep no note of their names.

3249. But do you happen to know them?-I know several cases in which the lines have been brought back by the same parties to whom they were given out; and there have been other cases where I know that they have been given by that party to another party, just the same as sending them an errand.

3250. Do you know of any cases in which they have been brought back by people with whom they have been exchanged for money or for goods which could not be got in your father's shop?-No; they would never mention such a thing to us.

3251. And no such case has come within your knowledge?-I have heard vague reports of such things being done but nothing that I could, state positively. I know that if they had come to the shop and asked money for their lines, they would have got 10d., in the shilling for them from my father.

3252. Have you ever been asked for that?-Very seldom. There was one girl who came in a few nights ago and offered me a veil. My father happened to be in the back shop, and I went to him with it, and he said he would give her 1s. 4d. for the veil. I came back to the girl, and she said, 'Would I give her 1s. 4d. in money?' I said, 'Certainly not,' because the veil season was over; and also I did think that money [Page 73] and goods were the same thing. I said I would give here 1s. 1d. in money, and she asked if I would give her 1s. 2d. I said, 'No;' I would only give her 1s. 1d. and she took that and went away.

3253. Is that a usual sort of transaction?-No. I never heard them asking for money before; at least not asking for it in that way. I have heard them wanting to get the same price in money that they got in goods.

3254. Is that a common thing for them to ask?-Well, it is.

3255. Do you know anything about the work-book?-Yes.

3256. Do you sometimes settle the accounts in that book with the knitters?-Occasionally, when the clerk is out.

3257. Are the items in the account always read over to the knitter?-Yes.

3258. Is there any receipt or acknowledgment given when an account is settled?-Occasionally they take a line for the amount if the balance is in their favour, because sometimes the shop is so crowded that we don't have time to turn up the account.

3259. In that case the account is marked as settled in full?-Yes.

3260. In other cases the balance is carried to the next account simply, without any line?-Yes.

3261. Is the work-book kept in the shop, or in the office at the back?-We used to keep it in the shop, but they came and bothered us at the time we were writing, and we thought it better to keep it in the office. But we take the book into the front shop, and read the items over to them when we settle.

3262. If a woman comes with work and gets it entered in the work-book, and then wants a certain quantity of goods, do you communicate with the clerk at the back before giving out the goods, in order to see the state of her account?-Yes.

3263. Who enters the goods in the book?-The clerk, when he is present; or if he is not present, then any of us who retail the goods may enter them.

3264. Do you go into the back shop for the purpose of doing that?-I take down a note of the goods they get on a slip of paper.

3265. And the contents of that slip are entered into the book?- Yes, by the clerk.

3266. Then there may be a great number of these slips to enter in the course of the day?-They are handed to the clerk at once. If he is busy about anything else, any of us may take the book and mark the goods in ourselves.

3267. Are these slips preserved?-No.

3268. They are just destroyed when entered?-Yes. I have occasionally given them to the people themselves, if it was a case where they were getting goods for another person. If they had been sent an errand by any one, I have handed them their slip, in order to show the person who sent them what they had got.

3269. Is there anything else you wish to say?-I wish to say that in a very short time the Shetland wool will be entirely destroyed, because the breed of sheep is wearing out. The Cheviot wool is taking its place.

3270. You mean that the introduction of Cheviot sheep into Shetland is entirely destroying the breed of native sheep?-Yes.

3271. Do you do a good deal in purchasing wool from the Shetland people?-No; I don't purchase but I know the quality of it.

3272. Do you find from the qualities that pass through your hands, that the Shetland wool is not so good as it used to be?-Yes; it is deteriorating very much.

3273. You find it is becoming more like what you buy from the south?-Yes; there is a great difference upon it. There is more elasticity in the Shetland wool than in the Pyrenees wool.

3274. Do you buy the wool yourself?-No; it is spun and knitted by people.

3275. Do they bring it to you, or have you people who gather it in for you?-They bring it to us to the shop: and I have heard the people very often making complaints that they could not get wool at all from any source.

3276. How do you buy wool?-We do not buy wool at all.

3277. Do you buy Shetland worsted?-Yes.

3278. Do the spinners bring it to your shop and sell it?-Very seldom. We buy it mostly from merchants in the country-in Unst and Fetlar. When a spinner comes in with worsted, she generally wants ready money for it.

3279. When a woman comes with it or sends it, how is she paid?-She gets anything she asks for-either goods at wholesale prices, or the cash.

3280. When you buy worsted and give goods for it, you give them at the wholesale prices it is the same as cash?-Yes.

3281. Are there many merchants who deal in that kind of way?-I suppose most of them do so in the places where it is made. It is mostly in the north isles. Occasionally, I think, they do a little in Dunrossness.

3282. Is it bought in by a shopkeeper at Dunrossness?-I don't know how it is done. I simply know that there are some goods made there.

3283. But where do you get your worsted from?-We don't get worsted from any merchant in Dunrossness. I was merely stating where the worsted was spun.

3284. Do you get Shetland worsted from merchants in the north of the mainland as well as in the north isles?-Yes.

3285. Do you get any from Mossbank or Lunna?-No.

3286. Do you get any from Northmavine?-I think we get a little worsted from a merchant there. The books will show where it is got.

3287. Do you know about the prices paid for goods bought in the shop? I don't mean goods knitted you, but goods bought?-Yes.

3288. What do you generally pay for a dozen of men's hose?-I think about 20s.-sometimes more, but very seldom less. That is a thing very seldom sold now, except knickerbocker stockings.

3289. I see in an account five white lace shawls sold each. What would be the price of these if bought over the counter?-8s. in goods.

3290. If paid in cash, what would the price be?-About is 9d., I should say.

3291. Do you buy many of them for cash?-We sometimes buy the larger things for cash. I have been in the shop when large shawls were paid for in that way.

3292. In the same account I see twelve hap-shawls at 11s. 6d.: what would these be bought for across the counter?-It is very likely that 11s. 6d. would be paid for them in goods.

3293. In this account I see one hap-shawl entered at 14s., and then at 13s.: what does that mean?-It means that 14s., was paid for it, and it was sold for 13s. Perhaps it may have been slightly ill-coloured.

3294. In the wholesale trade list which has been given in, I see white, brown, and grey shawls, natural colours, charged 8s. 6d. to 18s.: do you know, from what you see in the shop, the prices at which these are generally bought over the counter?-They are just bought at the same prices at which they are invoiced, and which are put down there.

3295. When a shawl is brought to the shop and paid for in goods, is it ticketed for the south market?-Yes; the fine shawls are ticketed.

3296. Wrap or winter shawls, 8s. 6d.: would these be ticketed?- No.

3297. Why?-Because my father knows the prices so well; they are sold by measure.

3298. The prices at which they are charged do not depend so much on fancy?-No.

3299. Then the prices of these shawls are fixed afterwards?-Yes.

3300. How do you know that the prices which are charged for these shawls are the same as have been paid for them over the counter?-Because I have seen haps sold at the counter for 8s. 6d.; and afterwards, [Page 74] when they were ready for the market, they were charged at the same, or nearly the same, price.

3301. Don't you sometimes see them charged at a higher price?-I cannot say exactly, because I do not always notice what the prices are; but I know that I have sometimes seen the same prices charged. I have noticed that particularly in haps.

3302. There are grey and brown long shawls, 20s. to 24s. are these also haps?-Yes.

3303. Are they generally bought at from 20s. to 24s.?-Yes.

3304. And sold at the same prices?-Yes, I have noticed that.

3305. You have nothing to do with the pricing of them yourself?- Nothing at all. I merely see the tickets, and recognise the article. Perhaps there was something particular about it which led me to recognise it.

3306. How often has that happened?-I could not say.

3307. Has it happened a dozen times?-It has surely happened more than a dozen times. That is a very small number.

Lerwick, January 6, 1872, JOHN JAMES BRUCE, examined.

3308. Are you a shopman to Mr. Sinclair?-Yes.

3309. You are not the bookkeeper?-No.

3310. Do you know the prices at which hosiery goods are bought across the counter?-Yes.

3311. Do you also know the prices at which these same goods are invoiced to the southern market?-Yes.

3312. Is the price at which they are bought and the price at which they are sold the same, or different, on the ordinary run of goods?-They are charged to the wholesale or the retail dealer in the south at the same price as we pay for them in goods at the counter.

3313. Is that the invariable practice?-Yes.

3314. The goods, I understand, are not all ticketed when bought?-Fine shawls are generally ticketed, but haps and other goods are judged of afterwards, when being looked out in order to be sent to the market in the south.

3315. In the case of fine shawls, is it within your own knowledge that the ticket put upon them at the time of the purchase bears generally the same price as has been paid for them in goods?- Yes. Mr Sinclair puts up these goods himself for the market, and the ticket is put on them at the time of the purchase, in order to bring to his remembrance, when he is putting them up for the market, the price he paid for them at the counter.

3316. In all these cases there is only one valuation of the shawl, and it is made to the person who brings it to you for sale?-Yes.

3317. The ticket is put on them, and the invoice price is the same as the price on the ticket?-Yes, the same.

3318. Do you make no allowance, in that case, for the loss upon the dressing or the dyeing of the shawl?-When a girl comes with an article that is ill-coloured, she may ask a certain price for it; but we state that we cannot give her that price, owing to it being ill-coloured, and that it requires to be dyed. In that case we deduct the price of the dyeing from the price which is paid to her.

3319. Is that deduction made before the price is put on the ticket?-We don't ticket it then. It has to be sent south to the dyer, and to come back and to be dressed here.

3320. In that case you must make an estimate, because you cannot identify the shawl afterwards?-No; we just leave it to our own judgment afterwards.

3321. Then it appears that you don't invoice the goods at exactly the same price that is paid in every case?-We don't invoice them at the same price if we are selling them to private individuals; but when we sell them to a retail dealer, we invoice them at the same price.

3322. But you have said that very often you require to send them to the dyer, in which case they are not ticketed at the time you purchase them?-No; but the retail dealer must pay for the dyeing.

3323. But the goods are not always ticketed at the time they are bought?-No; not always. I did not say they were.

3324. Are they ticketed, as a rule, when they are bought?-The finest of the lace goods or shawls are ticketed.

3325. And veils?-No, not veils; but the fine lace shawls are generally ticketed.

3326. How is the invoice price of the veils fixed, if they are not ticketed when they are bought?-We can easily judge of the quality of a veil by looking at it, and we can tell what we paid for it. Of course, in fixing the price, we always refer to what we paid for it, and we know that at a glance by the quality of the work and the worsted.

3327. You cannot tell what you paid for a particular lot of veils, because you cannot identify them?-No.

3328. But you know by the quality what they likely to have cost you?-Yes.

3329. Is the price at which veils are sold generally the same as that at which they are bought?-Yes. Veils which have been bought across the counter are charged at the same price that we consider we paid for them.

3330. Are many of the shawls dyed?-A good many. Some are dyed on account of being ill-coloured. Perhaps we don't discover, at the time when they are taken in over the counter, that they are ill-coloured; we only find that out afterwards, and then we have to dye them. Sometimes we dye shawls, not on account of them being ill-coloured, but because we require them of a particular colour.

3331. Is that done with fine shawls?-Both with fine and coarse.

3332. But not with haps?-Sometimes with haps too. We dye haps scarlet and black.

3333. Therefore there is a considerable quantity of the shawl goods which it is not possible to ticket at the time when they are bought, because they have afterwards to be dyed-Yes, a considerable quantity.

3334. And, in that case, the price is fixed afterwards, according to your own notions of the quality?-Yes.

3335. Who fixes the invoice price of shawls when they are sent out finally to the market?-Mr. Sinclair himself. He takes that department.

3336. Do you know whether, in doing so, he takes into account the market price in the south?-Although he makes up the articles, they pass through my hands in packing, and I see the tickets. They generally have a ticket on them, in order to guide the clerk in checking them and entering them into the book.

3337. But you don't know the principle on which Mr. Sinclair values these shawls when they are invoiced?-He just judges of them in the same manner as he did at first when taking them in over the counter.

3338. What proportion of the shawls may be revalued in that way?-Will it be one-third or one-half of them?-They are all re-valued in that way, unless those which are ticketed.

3339. But what proportion of them are not ticketed at first?-I could not say.

3340. Is it not the case that very few of them are ticketed at first?-There are only the finest lace shawls that are ticketed at first.

3341. Therefore the bulk of the shawls are not ticketed then, but valued afterwards?-Yes; they are valued in the same manner at that time as they were when taken in at the counter.

3342. Are you in a position to state whether or not that valuation which is made when they are sent out exceeds the valuation which is put upon them when they are purchased for the market?-I have reason to believe from Mr. Sinclair's long experience in the trade, that he will know to a fraction what he paid for the [Page 75] shawls; and I can swear that they are not charged by him at a higher price than the price which was paid for them in goods at the counter. Of course deductions are made afterwards by the wholesale dealer, if he thinks the article is inferior.

3343. Do you issue the lines which are given out in the shop?-I very often issue lines. I perhaps issue more of them than any one else.

3344. Do you also serve customers who have lines?-Yes.

3345. Is it consistent with your knowledge, that the lines are generally brought back by the parties to whom they were originally given out?-They are generally brought back by the owner of the hosiery.

3346. Is it the party herself to whom the line has been given that usually brings it back?-Very often but sometimes they may send a line in by another party as a messenger.

3347. How do you know that?-Sometimes a line may be brought back an hour after it has been given out, by a different party, and they will perhaps make remark in order to let me know that they have been sent by the party to whom the line belonged.

3348. Are you aware that the lines are exchanged or sold by the parties to whom they were first issued?-I have heard something to that effect this very morning.

3349. But you have not known of that in your own experience?- No. It has not come under my notice, unless from report.

3350. Does the party bringing one of these lines for goods ever tell you that she had purchased it?-No. I don't remember an instance of that kind.

3351. You don't remember any particular case in which there had been a sale of the line for cash, or for other goods which you don't supply?-I say there was an instance this morning which came under my notice, in which a line had been exchanged, and in which the party had got cash for the line.

3352. From whom had the cash been got?-I could give the name of the party to whom the line belonged, but not of the other party.

3353. Was that an instance of a line being brought back by a person to whom it had not been originally issued?-No; it was merely a party in the shop who said that some time ago-she did not state the time-she had a line which she had given to another person, and had got cash for it. But at the same time she said that she did not ask cash from Mr. Sinclair, or she might have got it. She felt diffident in asking for cash, because she had brought her hosiery to the shop on the understanding that she was to take goods for it. The receipt she got had not been a cash transaction.

3354. Is that the only time, in your experience in the shop, that you have heard of these lines being exchanged for cash, or for other goods than those which Mr. Sinclair sells?-It is the only one I can point to in particular.

3355. But do you swear that you don't know that lines have been so exchanged?-No, I would not swear that. I said I have heard a vague report that on several occasions they have been exchanged, but I could not point to any other case than the one I have mentioned.

3356. Is cash ever given in your shop upon lines?-Yes, often. It is given on lines, even when the hosiery article has been taken in over the counter with understanding that the party was to take all goods for it.

3357. The lines bear that their value is to be given in goods but notwithstanding that you know that cash had been given on them?-Yes.

3358. How often?-I could not say how often, but I can point to one woman in particular who has got cash in that way. She stated that she was in need of it, and she got it even when the hosiery article was taken with the understanding that only goods were to be given for it.

3359. In that case, was any discount taken for cash?-No.

3360. Was the whole amount given in cash?-Yes, all cash. She said she required it to buy meal with.

3361. What was the amount of that line?-It was the case with that woman on several lines, not on one line in particular.

3362. Who was the woman?-I should prefer to give her name in private.

3363. What proportion of her line was given in cash?-I could not say what proportion, but she got the proportion she asked for. Of course, when giving money in that way, we considered it was a deduction from the profit on our goods.

3364. Then it was given as a sort of charity?-It might be considered as a sort of favour, because it was a deduction from our profit.

3365. Do you say that it was really a deduction from the profit?- Yes.

3366. But you said before, and I have been informed by other parties, that there is no profit at all upon the hosiery goods; so that if you pay the lines in cash, you take away all the profit you make upon a purchase of hosiery?-Yes; that is only if we charge the wholesale dealer the same price.

3367. But you say that, practically, the wholesale dealer is charged the same price?-Yes. Even should we pay the same price in cash as we get from the wholesale dealer, if we were sure that this party would come back to the shop with the money which we gave her and take our goods, it would not be a loss; but if she did not come back, then there would be a loss.

3368. In other words, the effect of the lines and of paying in goods is, that these sellers of hosiery are bound to take their goods at your shop, instead of another; and therein lies your profit?-Of course. We just have our profit on the goods. We have two sales for one profit.

3369. But you say that although you suspected, and had heard from rumour, that these lines were commonly exchanged for money or for other goods than you dealt in, you have known of no particular case except the one you have mentioned?-No.

3370. Have you known of cases where goods which had been delivered in return for hosiery had been exchanged by the women for other goods or for cash?-I could not point out any case.

3371. Did you ever hear of any case?-I could not point out any one.

3372. But did you ever hear of any such case?-I have heard that rumour, the same as I heard of the other thing.

3373. Have the women told you that themselves?-Yes; just speaking of it among the crowd in the shop.

3374. You don't remember the names of these women?-I do not.

3375. Have you any doubt at all that that is done?-No; I am led to believe that it is done.

3376. How are you led to believe that?-Because I have heard the vague report so often-not once, but several times.

3377. Does that report lead you to believe that it is done to any great extent?-I could not say to what extent.

3378. How does report speak of it?-Just that it was not uncommon. The report did not say that it was very common, but only that it was common.

3379. Do you swear that you cannot remember the names of any women who have done it?-I do.

3380. Or who have spoken to you about it?-None, except the one who has said it to-day

3381. Or that you have heard speak of it?-No.

3382. In the journal, or work-book, I see that there is sometimes a line entered. I do not mean merely that the balance is struck, but sometimes there are entries, 'To lines.' Can you explain that?- Sometimes the party that the account belongs to will have to pay another party so much, and she gives us instructions to mark a line for a certain amount in the book, and then give her that line to give to the other party, who comes back with it and gets the amount in goods.

3383. Then the line is granted to your knitters for the purpose of paying their debt to another?-Yes.

3384. Is that frequently done?-Not very often. [Page 76] It has happened occasionally. I have entered such lines myself in the work-book; and sometimes, although not very often, when looking over their account, instead of taking the balance that may be in their favour, they will take a line for it. I may say, however, that where hosiery has been taken from a person on the understanding that they were to take all goods for it, I have never known a case where cash was refused to them when they said they were in need of it.

3385. That just amounts to this: that Mr. Sinclair, in a case of that kind, throws away the whole of his profit?-Yes; it shows a charitable spirit in Mr. Sinclair.

3386. In the case of Mary Ann Sinclair, there was an entry in the journal of cash paid to William Smith for meal: can you explain how that was done?-I heard Mr. Sinclair's examination about that. His attention was directed to an entry of 'Cash, for meal,' he was asked why that was not entered merely cash. I cannot say whether the entry was in my writing or not, but I remember that girl coming into the shop and asking for cash, and she made a remark that it was for meal. I think that the entry is in my hand, and that I just put it down as she said it.

3387. The giving of that cash was a deviation from your usual practice?-Yes, these parties depend chiefly upon the knitting, and they get a larger supply of cash than the general workers. There are not many cases, I don't think we have a similar case in the town, where the parties depend entirely on their knitting. Our knitters belong chiefly to the country, and the knitting is with them an extra piece of work.

3388. In the same witness's account there was another entry of 'Cash, for meal:' do you explain that in the same way?-Yes; but of course they were at liberty to go to any shop for it they liked.

3389. Does the entry, 'To William Smith, for meal,' mean that you paid the money directly to Smith?-Sometimes we did. His account would show that the amount which he received from us was just the same as had been marked to the women. In his account he would state that he had given out so much meal to them.

3390. Has Mr. Smith an account with R. Sinclair & Co.?- Sometimes there was an account between them at that time.

3391. Was that account for supplies to work-people?-Sometimes it would be for such supplies along with Mr. Sinclair's personal account.

3392. Does Mr. Smith make frequent supplies to Mr. Sinclair's work-people?-No; it has not been done very frequently.

3393. To what class of work-people are these supplies made?- Chiefly to the party who has been already examined, Mary Ann Sinclair, and that has not been done of late. These girls have not been so dependent on their knitting lately, because they have got help from another quarter.

3394. Then this payment for meal, and that payment to W. Smith for meal, were really so much taken out of Mr. Sinclair's profit?- I think so, because their knitting was estimated at the goods price, not at the cash price.

3395. I see that in the same account there are other two entries of purchases of meal?-Yes, that was merely put down because the parties said they wanted meal, and for a considerable time they had just a weekly allowance.

3396. The entries of these two purchases of meal are really equivalent to entries of cash?-Yes; sometimes when it is said, 'Cash, for meal,' they got the cash into their own hands.

3397. And sometimes it was entered in the account with Mr. Smith?-Yes.

3398. Was that account of Mr. Smith's a personal account of Mr. Sinclair's?-I suppose it was just made out as an account of R. Sinclair & Co.

3399. What was the nature of the dealings with Smith? Have you seen his account?-I cannot remember. I saw the account when it was handed in, but I cannot say what was in it.

3400. You don't know about it personally?-No.

3401. Is there anything you wish to state on the subject of this inquiry?-I wish to state that, supposing a new system of cash payments is adopted, there will be a change, which I don't think will be altogether in favour of the worker. No doubt it would be to some extent.

3402. What difference would there be?-I shall suppose that a woman comes in with a shawl, say to-day, while the present system exists, and gets 20s. in goods. She

wants grey cotton, and she will get forty yards of it for her 20s. To-morrow she comes in, and the system is changed, and she must be paid in cash. Well, she gets the cash, and she requires the same kind of goods, but she thinks there is no need for going out of the shop, as the goods here are as cheap as anywhere else. Then she will get for her cash the usual discount of 5 per cent. That would be 16s. 91/2d., and she would only have then about thirty-three yards of cotton instead of forty yards.

3403. But in the case you have supposed, would not the cotton be sold cheaper, because the merchant would not require to put all his profit on the cotton, as you say he does now, but he would also put a profit on the hosiery; and therefore he could afford to sell the cotton at a smaller profit?-The merchant would not have two profits on his hosiery.

3404. If he was buying for cash, he would?-No, it would merely be embarking his capital a second time.

3405. If he were buying the shawl for 16s. in cash, would he not sell it for 20s., as he does just now?-Yes; he would embark that cash again.

3406. That allows a profit of 4s. upon the hosiery, perhaps under deductions for certain contingencies; but it certainly allows a profit which on your own statement, he does not have now. According to your own statement, there is no profit on the hosiery now, because it is bought for the same price in goods as it is sold for; but if he were paying 16s. in cash for it, there would then be a profit upon the hosiery of 3s. or 4s. Now, would not the fact that a profit is taken upon the hosiery enable him to sell his cotton goods with a somewhat less margin of profit than he does just now?-It might.

3407. Besides, the case which you have put just now implies that the woman wants something which Mr. Sinclair has in his shop?- Yes.

3408. It does not allow at all for a case in which she wants something different and in order to get which she might perhaps have to part with the goods at a loss?-Viewing it in the light I have stated would perhaps be a disadvantage to the knitter; but there would certainly be an advantage to her, as she would have cash with which to go and buy groceries or other things wherever she wanted,

3409. Then that would be an advantage?-It would be an advantage; but another disadvantage to her might be, that the merchant would not take her goods at all unless he actually wanted them and he had orders for them, and unless they were of good quality. There would thus be only one advantage against two disadvantages.

3410. But if one merchant did not take her goods, another would, if they were worth buying at all?-Perhaps he might; but I was only speaking about how the thing might act if such a system were introduced. There might be a second advantage, in this way: that more encouragement might be given to the trade in the south, as the cash system might be a means of producing better articles. The knitters might be induced to bestow more pains on the manufacture of their goods and then there would not be periods when the market was in a dead, dull kind of state, as it sometimes is now.

3411. Is it ever in a dead, dull kind of state?-Yes, at certain seasons it is.

3412. Is there ever a time when you refuse to take Shetland goods?-Yes; at this very season we cannot buy veils at all, because we have no market for them. The market is blocked up entirely. But if the manufacture was improved, and the goods were somewhat [Page 77] better than they are now, there might be a regular flow of goods into the market.

Lerwick, January 6, 1872, ROBERT SINCLAIR, recalled.

3413. Is there anything further you wish to say?-With regard to Mr. Bruce's evidence as to the account with Smith, I think he is mistaken in saying that there is any entry of that meal in any of Smith's accounts. I remember only one case where Miss Sinclair got her meal from Smith, and I went myself, either that day or the following day, to him with the money. That is the only case I know of; and I am almost sure there is no such thing as meal supplied to her entered in any contra account of Mr. Smith, because we paid the meal in cash at once. I know of no other person being supplied by Mr. Smith except her. Another thing is with regard to the number of shawls that are dyed. Mr. Bruce does not seem to recollect that the number of shawls dyed bears a very small proportion to the number of shawls we sell. It is only a fraction of them that are dyed. I don't think there is one out of eighty which requires to be dyed for selling south. With regard to the valuation of the shawls, the fact is, that although sometimes it happens that we detect a fault in the goods when we are buying them, and make a deduction for that from the price, yet in the majority of cases the faults are only detected after the goods are bought, and no deduction for that can be made from the price which we pay to the knitters. In all such cases we have to dye them for nothing.

3414. Do you mean that the fault is detected after the shawls are bought from you?-Not after they are bought from us, but after we have bought them; and consequently we have to dye them. Then when they are dyed, they very often, indeed generally, do not bring more than they would have brought if they had been white; but that is such a trifling thing, that it is not worth speaking about.

Lerwick, January 6, 1872, Mrs. ANN EUNSON, examined.

3415. You live in Lerwick?-Yes.

3416. You have come forward voluntarily to make a statement?- Yes.

3417. Nobody has sent you here?-No.

3418. Have you knitted for a long time to Mr. Linklater?-Yes, for a long time; I don't remember how long.

3419. What have you made?-Little hap-shawls.

3420. How have you been paid for them?-I have been well paid for them, according to what I sought.

3421. Did you get money or goods?-When I sought money I got it; but when I required anything which he had, I thought it was my duty to take it from him, and not

from another. He always gave me a little money when I asked it.

3422. How much would you get at a time?-I might not ask above 6d. at a time, but I would get it.

3423. How much would you make in a week by knitting?-It was just as I had time to sit at it.

3424. Did you do a good deal at it?-Not a great deal I made a good many haps for myself when I could. I am a widow. I had seven children, who are all dead, and I have supported myself entirely by my work.

3425. Have you supported yourself entirely by knitting?-Yes. I had no other work, except that of going for peats, or anything else I had to do.

3426. Were these your own peats?-Yes.

3427. Therefore you had no other means except by knitting?-No; except that for some time back I have had 1s. a week from the parochial board.

3428. Before you got that, did you support yourself entirely by knitting?-Yes; only at times I have got some things from friends.

3429. Did you get your meal and provisions from the proceeds of your knitting?-Yes.

3430. How did you manage that, when you were paid mostly in goods?-Often, when I had a little time, I made small shawls for myself; and when travelling merchants came to town, they would take my shawls and sell them for me for a little money.

3431. Did you do that because it was not the custom to give money for such things at the merchants' shops?-It was not the usual thing always to give money at the merchants shops. If they had given it, I might not have given my shawls to these travelling merchants,

3432. If you had got money from the merchants shops, you would have been as ready to sell your shawls to them as to these strangers?-Yes; but I sold some haps to Mr. Linklater, and got much the same from him as I got from them.

3433., Only you got it in goods?-Yes; but if had sought a little money, I would have got it.

3434. What was the price of the hap-shawls which you made?-I have got as high as 3s. and 4s. for them. I don't make the fine knitting.

3435. Do you ever make hose or stockings?-Yes.

3436. What do you get for them?-I don't make many stockings; I think I am better paid by making these little haps.

3437. Do you take any lodgers?-I don't take any now. I am in the Widows' Asylum; but before I went there, I took one or two.

3438. Did these lodgers help you in your living?-Yes, a little.

3439. Then you would get money in that way with which to purchase provisions?-Yes; but I could not get so much knitting made when I had lodgers.

3440. But the money you got from them would help you to buy meal and bread, and what you wanted to live upon?-No; I did not have above 6d. a week from my lodgers, and sometimes it was 1s.; but I got through with it, and now it is come to a conclusion.

3441. How old are you?-I think I am about seventy-two.

3442. You are still knitting a little?-Yes; my fingers are as clever as can be yet.

3448. You don't get money for your knitting now?-I get money from Mr. Linklater when I ask it.

3444. How often do you ask it?-I don't like to trouble him too much, but I know that he would give me what I sought; and many a time I have got it. He often supplied me when I required it, and when I had nothing in his hands to get.

Lerwick, January 6, 1872, JOHN JAMES BRUCE, recalled.

3445. I understand you wish to make some correction on your former evidence?-Yes; I find I made a mistake. On going back to the shop after giving my evidence, I found the same girl there whom I mentioned before, and I spoke to her about what I had said here. She said it was not a line that she had exchanged. She has an account in the book, and she had got a bonnet, and had given it to the other party. Of course it was to the same effect as if she had given a line. She had got goods from us, and had given them to another person for cash.

3446. Was all the rest of your statement correct?-Yes.

3447. Have you anything to say with regard to the proportion of goods which are re-dyed about which Mr. Sinclair made some explanation?-What I meant to say was, that all the goods not ticketed are re-valued, and that some of them are dyed,-these, of course, not being re-valued until they come back from the dyer. Only the finer qualities of goods are ticketed at the time they are taken from the customer.

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3448. So that the larger proportion of goods are, in point of fact, re-valued?-Yes. By being re-valued, I mean that they are judged of again in the same way that they were judged of, on being taken from the customer. I don't mean to say that a different price is put upon the article; it may be the same price.

Lerwick, January 6, 1872, ROBERT SINCLAIR, recalled.

3449. Is there anything you wish to add?-I may make one remark about that last point,-the valuation of the goods. Many years ago I had a partner, from which the firm took its name of Sinclair & Co. At that time we ticketed all the shawls that we bought, with the exception of the lower-priced ones. We found it a little inconvenient to be always doing that, and my partner and I, in order to test our own judgment with regard to these articles, entered the goods in a book at the ticketed value when we bought them. When we put them out to the dressing, of course the tickets were taken

off; but when they came back, we re-valued them according to our own judgment, without any reference to the entries we had made in the book; and I can declare on my oath that we never varied one per cent. on the things-we knew their value so well. When I came to see that I could judge of the values so well, I did not ticket the lower qualities of goods-only those of the value of which there could be any doubt.

Lerwick, January 6, 1872, MARGARET CLUNAS, examined.

3450. You are a native of Unst, and you have lived there until lately?-Yes.

3451. Are you in the habit of knitting?-Yes.

3452. For whom did you knit in Unst?-For Mr. Thomas Jamieson.

3453. Is he a merchant and purchaser of hosiery?-Yes.

3454. Did you knit with wool supplied by him?-Yes; generally.

3455. You sometimes knitted with worsted of your own?-Yes.

3456. How were you paid for what you knitted with his worsted?-The veils were 1s. when made with Scotch worsted, and 10d. when made with Shetland worsted, and for shawls of twenty-four scores we were paid 9s. for knitting.

3457. What do you mean by twenty-four scores?-That was the size of the shawl.

3458. Did he pay you in money when you knitted for him in that way?-No.

3459. Did you ever get any money from him?-No, I never got it, because it was a thing he never gave, and we never asked for it.

3460. Were you content to take the value in goods?-Sometimes, and sometimes not.

3461. When were you not content to do that?-When I could not fall in with the things I was wanting.

3462. Was that often?-Not very often; but sometimes he was out of things I wanted.

3463. When you wanted anything which you could not fall in with in his shop, what did you do?-Sometimes he sent for it to us, and sometimes not; and we had then to take just what things were there.

3464. Did you live with your father?-Yes.

3465. He kept you in food, so that you did not require to buy any food for yourself?-Only sometimes in the summer time chiefly.

3466. Did you work out in the summer time?-Yes, for day's wages.

3467. Then you did not require to knit for your living, but only for your clothing?-Only for our clothing; but of course we could not have got food for our knitting from that man, even if we had required it. He would not have given it.

3468. How much would you make in the week in Unst by knitting?-Perhaps 3s. or 4s., according to what we did.

3469. That was his value in goods?-Yes.

3470. Were you paid in the same way when you knitted with your own worsted?-Yes, we were generally paid in the same way.

3471. What kind of goods did you get from Mr Jamieson?- Cotton and winceys.

3472. Did you get tea?-He would sometimes refuse to give above a quarter pound of tea on a 9s. shawl he did not like to give much tea.

3473. Why?-He called it a money article, and he would not give it.

3474. How long is it since you left Unst?-It is about two or three months since I left it first, but I have been home again for some time.

3475. Did you come to Lerwick to knit?-No, I came to be a servant.

3476. Are you not knitting here now?-Yes, I am knitting at present.

3477. Are you out of a place?-Yes.

3478. Do you deal in the same way here as you did in Unst, or is there any difference?-There is a woman in Lerwick that I knit to, and she gets money for our goods, and is thus able to pay us in money.

3479. Who is that?-Miss Hutchison, Burn's Lane.

3480. Does she always pay you in money?-Yes; or if she has any little thing, which she has got, we can get it.

3481. Are there other merchants in Unst besides Mr. Jamieson who buy hosiery?-Yes.

3482. Who are they?-Mr. Alexander Sandison, at Uyea Sound.

3483. Where is Mr. Jamieson's place?-At Westing.

3484. How did you happen to have wool of your own to knit with?-We generally bought it from people who had wool.

3485. You got it from the neighbours?-Yes.

3486. What did you pay for fine Shetland worsted?-We bought the wool, and we spun it for ourselves.

3487. Did you ever sell the worsted that you spun?-Yes.

3488. What did you get for it?-3d. a cut.

3489. Was that from Mr. Jamieson?-Yes; or from Mr. Sandison, or any of them.

3490. Was that paid to you in money?-No.

3491. Was it always paid in goods?-Yes, but we would have got more money articles for the worsted than we could get for knitting.

3492. They would have given you tea for worsted?-Yes.

3493. Would they not have given cash for it?-We never asked it; but I believe if we had asked it, we would have got it for worsted.

3494. Then you did not ask money for your worsted, simply because you wanted the goods?-Yes

Lerwick, January 6, 1872, Mrs. ANDRINA ANDERSON or NICHOLSON, examined.

3495. You live in Lerwick?-Yes, at the Docks, but we call it Lerwick.

3496. Your husband is alive?-Yes.

3497. Do you sometimes knit?-I don't knit so much at present as I was accustomed to do, on account of my husband being at home; and I don't require to do it.

3498. Have you heard a good deal of the evidence which has been given here?-Yes; I came here for that purpose, but not to speak. I wished to hear the evidence which was given, because I had heard so much said on both sides of the subject.

3499. In the evidence you have heard, is there much that you differ from and wish to correct?-As I have [Page 79] had a good deal of knowledge with regard to the hosiery business and about the payment in goods, I should like to say what I know about that, and what I think would be a better plan to take, so far as my experience goes.

3500. You have heard a description given of the system as it exists,-how hosiery is paid for in goods or in lines?-I have not only heard it, but I have had experience of it for a long time. The first shawl I knitted was in 1840, and since then almost all that I have done has been in the hosiery line, either knitting or dressing.

3501. Has all your work been paid for by goods in an account?- Almost the whole of it has been paid in that way, that is, what I have done in Lerwick; but I have done something for Miss Hutchison. I have also sent some goods south to Mr. John White, and been paid for them in money.

3502. But all that you have done for the merchants in Lerwick has been paid for to you in goods?-I think the whole of it.

3503. You are speaking now of all the shops in Lerwick?-I don't have any particular statement to make about one more than another, because I have dealt with three or four different shops.

3504. Are you speaking now of articles which you have knitted with your own wool, or with the wool which was given out to you by merchants?-I chiefly knitted an article and sold it; but I was in the way of dressing for a good many years, and, I saw then how the people complained about getting goods for their work. Their complaints on that subject were very frequent, and in some cases I thought they had great reason to complain.

3505. Why was that?-Because the goods were charged so much more in some cases than what they could have been got for in ready money. I may tell you what first opened my mind to that point. I required a good deal of money at one time. I could not get it in the way we were then doing, and I then adopted the plan of trying to

dress for some of the hosiers, and getting money for it.

3506. How long ago was that?-I think it will be about sixteen years ago. Fourteen years past in July I went south and sold a Shetland shawl to Mr. Mackenzie, a Shetland warehouseman, in Princes Street, Edinburgh. He asked me what I wanted for the shawl, and I said 10s. He said he would give me 8s. I told him I could get 10s. in Lerwick for it, from the merchants there; and he said, 'But when I give you 8s., that is just as good to you as 10s. from them.' I had felt the truth of that, but I had never seen it properly before.

3507. Did he explain to you how 8s. in cash from him was equal to 10s. from the merchants in Lerwick?-He told me the profit was laid on the goods; and at that time, and before that time, I will declare it was.

3508. You mean that the goods were dearer in Lerwick than you could have bought them in the south?-Not only in the south, but dearer than we could have bought them in another shop in the town. We could have bought them cheaper in shops in Lerwick when we were not dealing in the hosiery business.

3509. Are there drapery shops now in Lerwick that do not deal in hosiery?-Yes.

3510. And is it the case that you can purchase the same goods at those shops at a lower price than you can at shops where the hosiery business is carried on?-Yes; I know that from experience, because I have the money in my hand, and I can go and purchase them cheaper elsewhere than I can do at some of these shops. I don't say at them all, but I know there are some of the drapery shops in Lerwick where they could be got cheaper. I will give a case of that. Last summer I had to buy a woollen shirt, and I went into a shop, and saw a piece that I thought would do. The merchant brought it down and said it was 1s. 8d. a yard. Another merchant had charged me 1s. 6d. for something of the same kind, and I told this merchant that the thing was too dear. He said, ' I will give it to you for 1s. 6d. a yard;' and I said, 'Well, I will give you 4s. 6d. for 31/4 yards of it;' and he gave it me. A day or two afterwards a woman came into my house and saw the goods, and said, 'That is the same as I have bought; what did you pay for that?'-I said I had paid money, because it is an understanding that some shops can give it for less with money than with hosiery. I told her I paid 4s. 6d. for 31/4 yards; and she then told me that she had paid 2s. of hosiery for a yard of it-6s. for 3, or, 6s. 6d. for 31/4 yards-just the quantity required.

3511. Have you any objection to give me the name of the woman and the names of the shops?-I could give the names, but I would prefer to do so privately. The stuff I bought is still in existence, and also what she bought, and they could be compared, to show that they are of the same quality. I did not do that with any intention of finding out the difference in prices; it just occurred accidentally, and I only give it as an instance, to prove that if we could get money for our hosiery goods it would be far better for us. I know that many a poor creature in Lerwick, if she could get money for her articles, even although she were to get less of it, could make more of it than she does now, by getting the money in her own hand, to be applied for any purpose she thought proper. I heard you ask one of the witnesses whether people would give them articles for less in money than in goods, and that was what made me think over it.

3512. Do you think they would be willing to do so?-I think so. I remember one time when Mr. Mackenzie-the same gentleman I have already mentioned-came down to Lerwick and stayed here for some time, and he gave money for the articles that were brought to him, but scarcely so much as his own customers in Lerwick will give you in goods; and that was the way he came to know that if he gave me 8s., he would pay me as well as some of those who paid me with 10s.

3513. Did you sell anything to him at that time?-I sold to him at the time I was south. I did not sell to him at Lerwick. I could not get in to see him there, because there were so many people who came with their work for the sake of getting money for it, although it was a less sum that he gave than the merchants here.

3514. How long ago was that?-It was when Mr. Harrison was dealing in the business. I think it will be about twenty-five years ago.

3515. Then the custom at that time was to deal in goods, as it is now?-Yes; and indeed the goods are rather a better price now than they were then. We could get scarcely any money articles at that time at all. I think that the articles are more reasonably priced now than they were at that time. I have seen us go into a shop then, and they would ask us what sort of goods we wanted for our knitting; and if they saw we wanted money article they would perhaps not take the goods at all.

3516. You say that you know many girls who would be much better off by being paid in money?-Yes, if what they tell me is true. They say that there are many purposes to which they would require to put money if they had it, but they cannot get it without doing something for it in some other way, as has been already explained. I have heard you put a question to some of them about their being compelled to sell their lines. I don't know any case of that kind, but I know that they have done that, or equivalent to it, by taking a piece of cotton out of the shops and selling it in order to serve the purpose they required the money for.

3517. I suppose some of them manage to live by taking in lodgers occasionally?-That is done only on very small scale in Lerwick.

3518. Do not people in the country sometimes come in and stay with them for a night or two?-Yes but it could scarcely be called a lodging-house as that is understood in the south.

3519. But people do come from the country for a night or two, and perhaps bring their own provisions with them?-There is very little of that can be done in Lerwick at present, because there have been so [Page 80] many people warned out of their farms in the country.

3520. Have you known many cases, within your own knowledge, of girls being in straits in consequence of that system of dealing?-Yes, I have had to supply them many a time with things. I bought some little things from a girl within the last week or two at a reduced price, which she took from me because I could give her the money. I did not require the article. I only bought it from her as a charity, and I would not have mentioned it unless you had asked me.

3521. Have you ever known of girls falling into evil courses in consequence of the want of money?-Perhaps if they had the inclination, they would have fallen into them any way. I think, on the whole, that if they had money, they would be able to save a good deal out of the expense for dress which they sometimes wear. They would then have their money, to do what they chose with it. Perhaps they might apply some of it for a religious purpose, or put it into a missionary box; or if they did not think of doing that, they might have an opportunity to put it into the savings bank, which Lerwick knitters have never yet had the pleasure doing.

3522. Is there no savings bank here?-There is a post-office savings bank; but I don't think there are many of the knitters who can get the blessing of putting cash into it for a rainy day, either to pay the doctor or anything else.

3523. You seem to think that the effect of the system is to lead them to spend more of their earnings on dress than they would otherwise do?-When I was young myself and unmarried, and when I was getting dresses instead of getting money articles for my work, I would not have thought much of putting a very expensive dress on; but when I got money I did not like to spend so much upon dress, because I prized the money so much more. I only judge others as I would judge myself; but I know that when I was paid only in goods for my knitting, I would be more ready to take an expensive dress than if I were to get money.

3524. I asked you a question just now which you did not answer quite distinctly: whether you had known of girls who were knitters falling into evil courses?-I cannot say about that.

3525. Do you think girls are led to fall into a bad way of living from the system which prevails here, and from being led by it to indulge more in dress than they ought to do, or from being in straits from want of food?-I cannot answer that question. I don't see why they should do that in consequence of the system; but what I mean is, that if they could get money for their goods, that would perhaps prevent them from spending all their earnings in dress, and expensive articles of that kind, and they would have something for other purposes which are as necessary, or more so.

3526. You said the prices differed at certain shops in town: would you give me an instance of that besides what you have mentioned? Suppose, for instance, that cotton is charged at 6d. a yard, is not that the common price for cotton that is given for hosiery?-Yes.

3527. Do you know whether that could be got cheaper at any other shop?-That particular thing does not vary so much just now as it used to do; but with regard to the dress pieces, and things of that kind, I know there are some shops that have a higher price marked on the articles than the other shops have on an article of the same appearance and, I think, of the same value.

3528. You know that from examining them in the shops?-I know it by going from shop to shop and purchasing the articles with money for myself.

3529. What is your husband's business?-He is a cooper.

3530. Have you bought Shetland worsted yourself?-I have.

3531. From merchants or from people?-Generally from country people.

3532. Do you always pay money for it?-Yes.

3533. Have you bought it from merchants too?-Yes.

3534. Do you always pay them money for it?-I have seen Mr. Sinclair sometimes supply me with some of it on work, although it was a money article and I felt obliged to him for it, because I sometimes could not get it from the country as well as he could.

3535. That was given you to work into things for yourself?-Yes.

3536. But the price was the same, in both cases?-Yes; of the Shetland worsted.

3537. And when you got it from the shop in that way, it was as a favour that you got it?-Yes.

3538. What would be the value of the Shetland worsted in a shawl that was worth 20s.?-I generally deal with Mr. John White in shawls that are worth more than that. I do not send many to him now.

3539. Do you get a high price for them from him?-No; I can get as much for them in Lerwick.

3540. What price do you get for these shawls?-From 28s. to 30s.; and I can go in with the same shawl to any of the shops in Lerwick and get the same price, only in goods. I don't say that Mr. White will give us any more for our shawls than the merchants here will give us in goods.

3541. Only you think that, if you get 30s. in cash from Mr. White, you could possibly buy what you want cheaper than you would get it from the merchants here in exchange for your hosiery?-Yes, that is what I mean to say.

3542. With regard to a shawl worth 30s., how much would you pay for the Shetland worsted that it is made of?-Perhaps about 9s. or 9s. 6d., or perhaps 8s. 6d. if I could buy it economically.

3543. About what quantity of worsted would there be in it?- About thirty-three cuts to that size of shawl.

3544. Would it be worth more than 8d. a cut?-No. Some people might charge more, but I generally get it for that.

3545. Then thirty-three cuts at 3d. a cut would be 8s. 3d. for the worsted?-Yes.

3546. How long would it take you to knit such a shawl?-It would take me a long time just now.

3547. Perhaps it is hardly possible to calculate how long it would take?-No.

3548. The worsted is the only expense you would have in making such a shawl?-Yes; I could dress it for myself.

3549. But if you did not, what would be the charge for dressing?- 6d.

3550. So that the payment for your labour on a shawl of that kind would be about 21s.?-Yes; but of course, if I was getting it knitted, I might get it done for about 12s. A knitter would make it for me for that sum if I were giving her the worsted.

3551. Have you ever dealt in that way giving out worsted to knitters, and getting shawls knitted for yourself?-Only on a very small scale. I knitted more to others when I was young.

3552. But you have given out some knitting to others?-Yes, perhaps part of a shawl; so that I calculate the whole cost would be about that.

3553. Therefore, if you were giving out a shawl to knit, it would cost you 8s. 9d. for the material and the dressing, and you would pay 12s. for the knitting-in all, 20s. 9d.; and you could sell it to Mr. White in cash for 9s. 3d. of profit?-I would not call it all profit, because sometimes I have a good deal to do before I can get the worsted wrought as good as I would like to put it into Mr. White's shawls, and then I have to lie out of my money until I can get a party to take it in. Besides, if I were putting it out to knitter, I would have to stand the risk of getting it done properly to my mind. There might be some faults in the shawl; and if there was anything of that kind, there must be an allowance made for that. I am not saying that I ever did that, I am only speaking of how it could be done.

3554. You are speaking of what you could do, and of what you know can be done, from your experience in giving out part of your own work?-Yes.

3555. Do you know anything about the stocking [Page 81] business-the cheaper and coarser kind of Shetland goods?-No; I have not much acquaintance with that. I may say, that while I think in Lerwick it would be far better for the people if they could get money for their work, yet the country people are not requiring the money quite so much, as they need the goods at any rate; but if, as a rule, a money system were once established, and the people were all to get money for the work, I think those who purchase the work would find the profit of it as well as those who have to sell it.

3556. Have you ever considered why this system of paying in goods is kept up?-Yes.

3557. What do you suppose to be the reason for it?-If I had had it in my power, I would perhaps have done the very same as the merchants have done, because they have got the good of it.

3558. How have they got the good of it?-Because I think they must have had a profit on it.

3559. On the hosiery?-Not so much on the hosiery as on the goods. Reason teaches me that there must be a profit somewhere, or else it would not have been carried on to such an extent.

3560. I suppose the present system of payment induces the people who sell hosiery to the merchants, to buy their goods from them rather than from another?-Certainly it does; because, when I go in with a shawl to a merchant, I consider that I have to take

the whole value of that shawl out in goods.

3561. It makes the merchants sure of their customers?-Yes.

3562. Is there anything else you wish to say?-I may mention, that I think the system of paying half in money and half in goods would not do. One party was asked whether she would be pleased to take one half in money, and the rest of the payment in goods. That may be a good enough plan if it were established and carried on throughout the year; but I remember that at one time one-half the value of a shawl was given in groceries, and that plan died away. The merchants kept groceries at that time, for the sake of getting hosiery with which to supply their orders. The merchants who did so were Mr. Harrison and Mr. Laurenson. As the season of the year came round when they did not have orders for their shawls, then, if they bought shawls, they had to lay them past until the market opened again; and there were very few groceries given out, because I understood they had more profit on their drapery goods. By and by the system of giving groceries died out altogether.

3563. Was that because they had a less profit on them than on the drapery?-I understood so. I remember Mrs. Harrison, the party with whom Mr. Mackenzie lodged, telling me that as soon as the country people began to knit, we, the town's people, would suffer very much. I could not understand very well what she meant at that time, but afterwards, when the country people supplied the merchants with the goods which they required, then they saw that these people from the country only required drapery, and they could get their orders supplied from the country. That led the merchants to pay for the hosiery only in drapery goods, and the Lerwick people had to comply with the same rule. It was when the country people came in to do the knitting that the supply of groceries died away, because the merchants could get their orders so much cheaper from the country people. They did not require the groceries like the town's people, because knitting was not the only thing which they had for their living.

3564. Do you think the ready-money system would be better for the merchants than the present?-It would be better for those who have very little profit on the goods they sell, but it would not be so good for those merchants who take a great deal of profit.

3565. Are there any of the merchants who take very little profit on their goods?-There are some who have less than others.

3566. And you think they would profit by a cash system?-I think, on the whole, they would.

3567. They would have no bad debts?-No; and they would not issue so many lines or have so many clerks; and there are a great many ways in which I think it would be better for them.

Lerwick, January 6, 1872, THOMAS NICHOLSON, examined.

3568. You are a draper and dealer in hosiery in Lerwick?-Yes, principally a draper. I don't do much in hosiery.

3569. You were formerly in the service of Robert Sinclair & Co.?-Yes.

3570. You have heard some of the evidence that has been given here?-Yes, some of it. I think Mrs. Nicholson and Mr. Johnstone are the only persons whose evidence I have heard throughout.

3571. Do you concur generally with what Mr. Johnstone said about the system of business here?-Yes. I also heard a good part of Mr. Laurenson's evidence, and I thought it gave a fair statement of the matter.

3572. Is there anything you wish to add with regard to the system of paying in goods?-I have nothing to add to what I believe has already been stated.

3573. Do you give lines?-Only a very few, when they are asked.

3574. Do you give them to people from whom you buy hosiery, or to those who knit for you?-Only to those from whom I buy hosiery. I don't give out any hosiery to knit at all.

3575. Is it understood in your trade, as well as in that of the other gentlemen who have been examined, that all purchases of hosiery are to be settled for in goods?-Yes, that is generally understood. It has always been the habit, and we have never got it altered yet.

3576. Do you think it would be expedient to have a change in that respect?-I believe it would, if it could only be got to work.

3577. What is the difficulty in the way of having another system?-We could not give so much in cash for the goods we buy.

3578. Do you think the people generally would not take cash?- Yes, I believe they would want goods. So far as I am concerned, they always take goods from me, and I have never heard them ask for cash. I deal both with country people and with people from Lerwick, and none of them ever asked me for it.

3579. Is it long since you left Mr. Sinclair's employment?-About two and a half years ago.

3580. There has been no important change made in the system of carrying on business either in your shop or in his during that time?-No.

3581. Do you do much in the coarser kinds of hosiery?-A little not a great deal. The stockings are generally done by the country people, and the finer work by the town's people.

3582. You buy the stockings from the country people?-Yes, I just exchange the one article for the other.

3583. You fix a nominal price at which you are to buy the stockings?-Yes; the price. I expect to get for them, as near as I can fix it.

3584. You don't expect to make a profit on them?-No; I would often be very thankful to get what I have paid for them.

3585. Then your profit is on the goods which you give in exchange?-Yes.

3586. Do you think you take a higher profit on your goods in consequence of accepting payment for them in hosiery rather than in cash?-No; the goods are all marked in plain figures. When I get cash I generally give off 21/2 or 33/4 cent.

3587. But don't you take a higher profit from all your customers because so much of your goods are paid for in hosiery?-No; if I did so, I would run the risk of losing my business; and in fact I would rather give up the hosiery altogether, because I don't think it [Page 82] pays very well, so much of it gets damaged, and the moths get into it.

3588. How long were you in Mr. Sinclair's shop?-For thirteen years.

3589. Were you acquainted both with the prices paid for hosiery goods and the prices obtained for them in the south?-Yes.

3590. Was more asked for them from the merchants in the south than was paid for them to the knitters in Lerwick?-No; we were always very thankful to get what we had given in goods for them.

3591. But if a cash price was paid for an article, was a higher price put upon it when it was sold south?-Yes; if we paid cash, we required a little more than we had paid. We could not have carried on the business without having a little profit on it.

3592. You do not give out any knitting at all?-Scarcely any. I think I have only two girls knitting for me at present.

3593. Do they get any part of their payment in cash?-Yes, whenever they ask it.

3594. But is it not the understanding that they shall be paid in goods?-Yes; it is generally understood that they shall get anything they want.

3595. How much are they in use to ask for in cash?-Probably a shilling now and then.

3596. Do they live by their knitting, or have they other means of support?-There is one party that does something for me who lives exclusively, or almost exclusively, by knitting; but almost all the girls have something else to do besides that.

3597. What is the name of the girl who lives almost exclusively by knitting?-I think one of them is Catherine Borthwick.

3598. Tea is one of the most common articles you give in exchange for the knitting?-Yes.

3599. Have you ever known of the goods you gave being exchanged for necessaries after you gave them?-No.

3600. Or of your lines being exchanged for necessaries or for cash?-I never knew of a case where that was done.

3601. Have you heard of such a thing being done?-I have heard of it; but I never knew of any of my lines, or any of the goods bought, from me, being exchanged.

3602. Are your lines generally brought back by the same parties to whom they were given out?-I think so; but I am not quite sure, because we just put on them

'Credit the bearer' so much.

3603. Have you a register of your lines?-Yes; I enter the number of the lines in a book.

3604. Was that a system which you adopted from Mr. Sinclair?-It was partly a system of my own. When I commenced on my own account, I adopted the system of keeping a check, the same as a bank chequebook.

3605. How many of these lines do you suppose you issue?-I don't do a great deal in that way. It is only for the accommodation of the parties that I give any at all. I would be quite prepared to settle with them at once if they liked.

3606. I suppose these lines are generally given for the balance upon a shawl, or anything that you buy?-Yes, for any little thing they are selling.

3607. Part of the price is taken in goods, and they take the balance in a line if they don't want the whole of it?-Yes; or perhaps a line may be taken for the whole of it, and they come and get tea and other articles as they want them.

3608. Is it generally long before they come back with these lines?-Some of them may be returned perhaps in a few days, and some of them in a few months. A country girl may keep a line beside her for perhaps a month or twelve months. I have known them keep them for three years, when I was in Mr. Sinclair's employment.

3609. Then the system of lines existed when you were with Mr. Sinclair?-Yes.

3610. But he had not a register of them at that time?-Not for all the lines: he had a check for them, but they were not all registered then.

3611. Are you aware of the fact that the knitters in Shetland are anxious to sell their goods to others than merchants, in order to get ready money for them?-I believe some of them are; but I never met with many who were anxious to sell their goods for cash.

Lerwick, January 6, 1872, ISABELLA SINCLAIR, recalled.

3612. Do you wish to add anything to your previous evidence?-I wish merely to say, that I have known cases where people have gone out with hosiery and sold it for money, and then come into our shop and bought what goods they required.

3613. Was that hosiery which had been offered to you before and was refused?-Yes.

3614. You had refused to buy it at the price they wanted?-Yes; at any price. I remember one case of that kind with regard to some half-stockings.

3615. When you refused to take them, the woman went and sold them elsewhere, and then came back to you with the money?- Yes.

3616. Was that long ago?-Yes, a good while ago. Of course there may have been other cases of that kind which I don't know about, but in that particular case the woman told me she had done it, I don't remember her name.

Lerwick, January 6, 1872, ROBERT SINCLAIR, recalled.

3617. Do you wish to add anything?-I should like to state something which struck me just now about a case where I saw lines given for money. It occurred in my own shop, and I believe it occurs oftener than we think; but there was one time when I detected it. A customer came into my shop and made some purchases, and at the same time another customer came in who I knew had got lines from the shop. The first person who was making the purchase was carrying through a cash transaction with me, and I expected to have been paid in money for it; but the other customer who had the lines took the other person aside and handed over the lines to her, and I was paid with them. I did not object to take the lines for their value, because the goods were charged at a fixed value for cash or line, but it certainly deprived me of the cash at that time.

3618. And it deprived you also of the profit which you would have had upon the goods that ought to have been given for the line?- Yes. I merely mention that as an instance in which cash was given for lines.

<Adjourned>.

[Page 83]

Lerwick: Monday, January 8, 1872. <Present>-Mr. Guthrie.

WILLIAM IRVINE, examined

3619. You are a partner of the firm of Hay & Co., merchants in Lerwick?-I am.

3620. You have been so for many years?-Yes.

3621. I presume you take a principal part in the management of the affairs of that firm?-I do.

3622. In consequence of hearing that this inquiry had been appointed to take place, you have prepared a written statement with regard to the system pursued in the fish-curing business in Shetland, which you now hand in?-Yes.

3623. It is a correct statement?-It is quite correct, to the best of my knowledge.

[The following statement was put in by the witness:-]

I have had many years' experience of Shetland business generally, and especially of the fish-curing trade. Most of the time I have been connected with my present partners, and we have curing stations and establishments at several parts of the islands. We also manage four estates in the country-two as factors for the proprietors, and two as lessees. For the first we only account for the rents collected, but for the other two we pay fixed tack-duties.

The tenants on one of the estates for which we act as factors are altogether free to fish where they choose, and to dispose of their farm produce as they think proper, and their rents are received in cash every year at Martinmas. The tenants on the other, which I believe is next the largest in Shetland, are also free (with the exception of the island of Whalsay, and Whalsay Skerries); and we seldom see them unless when they come to town to pay their rents. Some fish to one curer, and some to another, as they find convenient; and they are quite at liberty to dispose of all their

produce, such as cattle, ponies, hosiery, and the like, where they can obtain the best prices. We are not liable to the proprietor for bad debts on this estate either, but the rents are generally well paid, and very few of the tenants are in arrears.

In Whalsay there is only one curing station, and we pay the proprietor a yearly rent for the stores, booths, kelp-shores, and other privileges; and receive fish, oil, and kelp from the tenants, for which we settle at the current prices of the country. We have a factor there, with assistants, who manages for us, and supplies fishing materials and other necessaries to the men and their families during the year; and I usually go there myself soon after Martinmas, to square up accounts, pay the balance due the fishermen, and collect rents from the tenants. We also pay large sums of money at all our other country stations. In 1870, when north settling, I paid the men at Whalsay, after deducting their advances, £1222; and I find from a state prepared by the factor, that of fish, oil, and herrings received there that year, amounting to £2529, 15s. 1d., we paid the men £1584, 12s. 9d. in cash. We have not yet made up a similar account for 1871; but when settling there lately, after retaining their advances, I paid them no less than £1374. There are very few debts in the books there, and the people are considered to be in good circumstances.

Of this estate I can speak with confidence, as the management is more immediately in my department. There are 430 tenants on the lands-nearly all fishermen and sailors. When we strike out of the arrear list those tenants who have not had the opportunity of paying their rents for last year,-two who are old and infirm, and another who retains his balance for alleged improvements,-the amount due for the three years it has been in our hands is only £57, 13s. 1d. None of the tenants have been warned or sold out.

Shetland fishermen have been represented as ignorant and uneducated. This is a great mistake. They are as intelligent, shrewd, and capable of attending to their own interest as any similar class of men in Scotland. Many of them have sailed in all quarters of the world. Newspapers are now circulated all over the islands; and the Aberdeen, Leith, and Clyde Shipping Companies' powerful steamers bring mails with great regularity twice a week in summer, and once a week in winter; and in consequence of the frequent communication, all sorts of farm produce have largely increased in price. I have seen eggs selling in the islands at 11/2d. for sixteen,-now the price is 10d. per dozen; butter 6d., now 1s. and 1s. 2d. per pound; fat cattle £3 each, now £6 to £7; ponies 40s., now £6 to £10.

In our dealings with fishermen, they are charged the same prices for goods that we sell at for ready money to the public. We employ a number of carpenters and other tradesmen here, all of whom receive their wages in cash every Saturday night.

The Burra Islands are one of the properties which we hold in tack. We have two curing stations in the islands for convenience of the fishermen, and factors on the spot to receive the fish as they are landed from the boats. The fishings are prosecuted on the coasts in small boats in spring and summer, but the best of the men are employed out of the islands, and the fishings are now very unimportant. These men who fish out of the islands are employed in smacks belonging to Hay & Co., and

various other owners, and prosecute the fishing on the coasts of Faroe and elsewhere, from the end of March to the middle of August. Those who fish to us get the same as those who are employed by others. The tenants of these islands sell their cattle, ponies, hosiery, eggs, and all other produce (except the few fish caught on the coast), as they like, without let or hindrance. We have no shop in the islands, and the men employed by us get their supplies from our stores here and at Scalloway. Some years ago, after a time of bad crops and bad fishings, when we had to give them large quantities of meal for their support, and many of them were unable to pay rents, the islands were indebted the best part of £1000. We made an attempt at that time to get the young men to fish to us and assist their parents, and I think in two cases we imposed fines of 20s.; but it had a contrary effect to what we intended, and, so far as I remember, the money was given back. I do not mention that the men are confined to our stores. They can deal with any other curer or shopkeeper they choose, and all our fishermen over islands can do the same, and at settlement receive their season's earnings wholly in cash. I believe this is the general practice; and were it otherwise, there is the small-debt court, the sheriff court, and several lawyers here to help them to their rights.

On the other estate referred to of which we are lessees, the tenants who remain at home are nearly all employed in the ling fishing. Some go south sailing, and pay their rents in cash, and we never exercise any control over them; but as we pay the current price to the tenants who remain at home, we insist on getting their fish as a security for their rents, otherwise the improvident might squander their earnings, and in some bad years be unable to pay. We never interfere with any of the tenants' produce except fish, on this estate more than the others. They are left to dispose of it where they like.

We have other curing stations at different parts of the islands, and employ a number of men and boys [Page 84] from all quarters during the summer months, but after they settle, we have no transactions with them till another year comes round, when they return to our employment if they think they have been well served.

As already mentioned, we are engaged in the deep-sea cod fishing, and, like others, send vessels to fish at Faroe, Rockall, and Iceland. The crews are engaged on shares, and the fish are salted on board, and afterwards landed at the curing stations in a wet state. When ready for market, they are sold at the best price that can be obtained, and, after deducting expenses and other charges according to agreement, the proceeds are divided equally- one-half to the owners, and the other to the crew. Fishings of all kinds succeed best when the men are paid by shares. When they are secured on monthly wages, there is no inducement for exertion. The fishing season being short, the utmost activity is necessary; and when the weather is favourable, the men are often obliged to work day and night.

Shetland fishermen are not altogether dependent for their livelihood on the produce of the fishings. In most cases they have farms that can keep their families six to eight months, and with good crops many of them have no occasion to buy meal the year round. They cannot afford to use fresh beef, but, as a rule, most families can kill a pig; and on the whole, in ordinary seasons, I believe they have a much greater

abundance of the necessaries of life than a great many people of their class in the kingdom. They are, without doubt, more independent and less under control than mechanics and others (who are obliged to work under a master a stated number of hours every day), and consequently are more happy and contented. We have no international societies in Shetland. Some of the dwelling-houses are not what they should be, but a great improvement has taken place in this respect since the timber-duty was repealed; and, for my own part, I would ten times rather live a year in a Shetland cottage, surrounded by pure air, than week in one of the slums of London or Glasgow.

Preparations for the ling fishing commence early in spring. The men form themselves into crews, and appoint the most experienced man as skipper. If they have no boat of their own, one must be hired, or a new one built; but the lines in most cases belong to themselves, and they always find curers ready to supply them with what they want, on condition that they receive their fish.

No curer would be safe to make these advances, without the men engaging to deliver their fish-a new boat alone costing about £20 without lines, The price of the summer fish is seldom fixed until the end of the season, when the fish are sold for the south-country markets.

Fishermen are quite safe with this arrangement. They know the competition between curers all over the islands is so keen, that they are secure to get the highest possible price that the markets can afford. Any curer that can offer a little advantage to the fishermen over the others is certain to get more boats the following year; and this is carried so far, that men with limited capital, in their endeavours to obtain a large share of the trade by giving credit and gratuities, in one way and another leave nothing to themselves, and in the end come to grief. I have known crews to be engaged at fixed prices before the commencement of the fishing but as markets improved towards the end of the season, we were obliged to throw the agreement aside and pay the same as others, in order not to lose the men's services the following year. When the fishing season is over and the fish prepared for market, south-country dealers contract for it at prices free on board; and with them again there is competition, so that curers seldom fail to get the full value of the article.

People in the south, who have to pay perhaps 4s. to 7s. 6d. for a fresh cod or ling, are surprised to hear that the poor Shetland fishermen only get 6d. to 9d.; and we have had a great deal of clever writing on this subject lately, without much common sense. The shipping price of ling in the past season has been £23,-rather higher than usual,-and fishermen have been paid 8s. per cwt. wet, or about 9d. per fish. Although it has been rather a good year for curers, the following statement will show that fortunes are not rapidly accumulated in the trade:-

21/4 cwt. wet fish, cured ready for market, weigh only 1 cwt.-21/4 cwt. @ 8s. £0 18 0 Add cost of salt, hire of vats, tubs, tarpaulins, and other curing materials; also wages to men and boys splitting, washing, and drying; and expense of flitting from beaches-weighing and storing usually reckoned. . . 0 3 0 £1 1 0

21s. per cwt., or £21 per ton, leaving 40s. to the curer, out of which he has to pay store rent, weighing, shipping, skippers' fees, gratuities to fishermen, and to meet loss by small and damaged fish, and of interest-the sales being made at three months in October, and the men settled with in November; and further, when the risk of sales is also taken into account, the sum left to remunerate the curer for his season's work is not very large.

One great drawback on a Shetland business is fishermen's bad debts, and our chief study is to limit the supplies when we know the men to be improvident; but it is quite impossible to keep men clear when the fishing proves unsuccessful. There is no difficulty, however, when dealing with careful men.

At various stations round the islands near the fishing grounds, where there are natural beaches, the men have small huts to live in during the fishing season, and the crews assemble there about the middle of May to commence operations. The merchants or fish-curers have the necessary curing materials on the spot, and factors, splitters, and beach boys attending to receive and cure the fish; and, while the fishing is carried on, the men go to their respective homes every Saturday, taking with them small and unmerchantable fish for the use of their families-returning to the stations, with provisions for the week, every Monday. They generally make two or three trips during the week, according to the state of the weather, and weigh and deliver over the catch when they land. Their families get supplies from the factor's shop as required; but the men have opportunities weekly of seeing their accounts and can limit these supplies if they choose.

The Whalsay fishermen deliver their fish in summer, and live at small holms to seaward of the main island near the fishing ground, and a large boat is employed to remove their fish to the beach at Simbister to be dried. The men are thus enabled to make more voyages to the haaf than by landing each time at the curing-beach.

As settling time approaches, our managers in the country prepare by sending for the men, and reading over to them individually their private accounts, comparing and making up pass-books, where any are kept, and giving copies of the accounts when desired; and when we come to settle, each man knows exactly the amount of his season's expenditure.

If a ready-money system were adopted, and payments made in cash for each landing, I believe it would scarcely be practicable to carry it out. Large sums of money would require to be kept at these stations,-men with some knowledge of figures and accounts to be always present,-and half the fishermen's time would be taken up with the settlements. The money would then be carried home to their families, and in many cases at the end of the season there would be little left to pay rent and provide necessaries for the winter months, when there are no fishings, and no work except at their own farms. Such a mode of dealing would otherwise injure the men, as curers with small means would be driven out of the trade, and in some measure competition prevented.

From twenty-five to thirty years ago I had several opportunities of seeing how the fishings were conducted Barra and South Uist. At that time the fishermen were all

living in wretched hovels along the sea-coast, and the islands let for grazing cattle and in sheep farms. Very few of them were able to keep a cow, and they knew nothing of the luxuries of life, and could scarcely command a bare existence. Their chief living in winter [Page 85] and spring was potatoes not fit for pigs, and shell-fish, with any small fish they could catch in the bays. There were plenty of fish on the coast, but no middle-men with capital to encourage the men to work. In summer they prosecuted the fishing a little distance outside of the islands, where their buoys could be seen from the shore. Their boats were clumsy and unmanageable-some with sails and some without; and the lines were made by themselves out of hemp obtained on credit, and only lasted one year. They were set on the fishing ground at the commencement of the season, and seldom taken up to dry. Now, however, I understand large capital is embarked in the fishing trade in that quarter, and of late years it has been very prosperous, and the circumstances of the natives greatly improved.

In 1785 a Commissioner was sent by Government to inquire into the state of the fisheries in the Hebrides, and in his report to a committee of the House of Commons, on being asked 'whether he thought it would be benefit to the lower classes of people if any of the tacksmen or others were debarred by law from entering into a contract with these people for obtaining the pre-emption of their fish, etc., as specified in his report,' he answered, 'That, so far from thinking it would be a benefit to the people, he should think it would prove a material injury to them; for they have no other possible way of being supplied with the necessaries they want from distant markets but by the intervention of those persons who keep stores in the manner described in the report; neither have they in general any means of finding money to purchase boats and other necessary apparatus for fishing; and that, unless they were furnished by these storekeepers upon credit, very few of them could engage in the fisheries at all; and, in the present situation of that country, as they have no other possible way of paying the debts they thus contract but by the fish they catch, no person would furnish these upon credit unless they had the pre-emption of them: that it has been already stated in the report, that this kind of trade, though apparently very oppressive to the poor in all cases, affords but very little profit to the merchants; and that he knew several instances where the people who keep these stores, by acting in a disinterested manner, have contributed very essentially to promote the welfare of the country.'

Since that date the Shetland fisheries also have been largely extended by the introduction of capital and the opening of stores among the different islands, where the men can always obtain fishing materials and supplies for their families; but to the present day the answer still holds good: curers must have the pre-emption of the fish, as a security for payment.

In the evidence before the Truck Commission in Edinburgh lately, witnesses were examined who had little knowledge of Shetland business, and many of the statements were not only contrary to fact, but simply absurd. For instance, can any man of common sense imagine that a merchant would come to grief in consequence of not having enough of bad debts, and that if he could carry on until he had £2000 of bad debts, he would do a flourishing trade, 'because they keep it going in a circle, and it

never gets worse?' That was one of the extraordinary statements made to the Commission. Is it not clear that if a dealer with small means emptied his shop of goods to people who could not pay for them, then, as soon as the bills he had granted for these goods fell due, he might shut it up?

As already mentioned, the Shetland fishing trade has been largely developed by increased capital of late years, but in all time past it has been conducted on the same principles, with few modifications, as at present, and will be so, I think, in all time coming. If the islands and their fishing banks could be removed to near London, where the fish might be sold fresh at high prices, the fishermen would be greatly benefited; but as this is impossible, we must all submit to the inevitable. It is true, Government may attempt to change the trade by Act of Parliament; but in that case they will either have to remove the entire fishing population to some other and better country, or keep them at home as paupers, by annual grants for food and clothing.

We are not engaged in the hosiery trade; but I know it to be the most troublesome business in the islands, being conducted chiefly by barter. I think it could not be carried on very well to any extent otherwise. We would be quite ready to embark in it and buy for cash, if we could make a commission; but I do not believe it would pay the expenses and servants' wages. Giving goods in exchange, hosiers can afford to allow a much higher price for the articles than we could for cash, and therefore very little of the trade would come our way if we took it up.

Besides the fishing trade, we have acted a long time as agents for ships engaged in the Greenland and Davis' Straits whale and seal fishing. These vessels call here to complete their crews in February and March; and when they return, the men are either landed at Lerwick, or some other point of the islands as they pass south. When they go out, the men are engaged at the shipping office, and receive a month's wages in advance, in presence of the shipping master, and the agents are reimbursed when they send the accounts to the owners. When the ships return and the men are landed, they disperse without a moment's delay (in most cases) to their several homes, and come back to Lerwick to settle for their wages and first payment of oil-money, individually, as it suits their own convenience; and in the same way, a second time, to receive the balance of their oil-money and sign the ship's release. This may be better understood from the following correspondence that took place the past year between Hay & Co. and one of the Peterhead shipowners, in respect to a notice said to be issued by the Board of Trade, headed 'Truck System in Lerwick:'-

'PETERHEAD, 16<th March> 1871. 'R. KIDD <to> HAY & CO. 'I enclose you letter I have received from H.M. Customs as regards the engaging and paying of the men engaged in the Greenland fishing ships. You will know how to act in regard to this. You have likely received direct orders, and I only enclose it to keep you in mind of it.' The document to which Mr. Kidd's letter refers is given below.*

* 'TRUCK SYSTEM IN LERWICK. 'It appears from the returns and documents received by the Registrar-General of Seamen, that the indulgence granted by the Board of Trade under their special regulations, M. 2884/1864, to the owners and masters of sealing and whaling vessels, in respect to seamen engaged at Orkney and

Shetland, has in a great measure been abused, and the whole object of the regulations defeated by the agents employed by and representing the owners at Lerwick. The Board of Trade are informed that many of the Shetland seamen who should have been discharged before the Superintendent there, within a reasonable time after their being landed on the termination of a first or second voyage, remain undischarged and unpaid even into the currency of the succeeding year, and that some of the releases for 1870 still remain incomplete.

'It should be borne in mind that the exceptional regulations referred to were issued by the Board of Trade, with a view to the convenience of the owners and masters of this class of vessels, and the protection of the Shetland seamen; but as the latter intention seems to have been purposely frustrated, the Board of Trade direct you to inform the owners and masters of those vessels whose crews are engaged before you during the ensuing season, that unless they cause their agents to comply with the spirit as well as the letter of these regulations, and discharge the men within one month of their being landed, the Board will be necessitated either to render the regulations more stringent, or withdraw them altogether. If the latter alternative were adopted, the discharge of the Orkney and Shetland whaling crews would have to take place under the more rigid terms prescribed by the Merchant Shipping Act, 1854, which of all other vessels at ports in the United Kingdom.'

'CUSTOM HOUSE, PETERHEAD, '10<th March> 1871

'SIR,-The foregoing is a copy of directions just received from the Board of Trade, dated 7th March, regarding the faulty way in which seamen are discharged from Peterhead whaling vessels at Lerwick; and I now beg to call your attention thereto, requesting that you would instruct your agent at Lerwick to attend to the previous instructions issued, which were circulated among the masters and agents when they were issued. 'W.R. BALFOUR. 'Mr. R. KIDD, Merchant.'

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'LERWICK, 27<th March> 1871. 'HAY & CO. <to> R. KIDD.

'We are duly favoured with your's of 16th instant, enclosing a communication from the Board of Trade in reference to payment of wages to Shetlandmen on board of ships in the Greenland trade, and headed by the words, 'Truck in Lerwick,'-a cry raised by a stranger who has taken up his residence in Shetland, and is now endeavouring, by every means in his power, to make himself prominent both here and elsewhere.

'We utterly deny that we have ever 'purposely frustrated' the Board regulations in respect to the payment of these men; on the contrary, we have kept a clerk, whose time has been chiefly occupied in settling the wages in presence of the collector as they came to town one by one, according to their own convenience; and you know how far the commission we get from the ships can go towards his salary. Nobody can compel the men to come to town all at one time for their wages; and if the releases of 1870 are not yet completed, it is not our fault.

'Without attaching any blame to you, we consider the document referred to-if it is meant to apply to us-a gratuitous insult. The Greenland agency is no great object, and after this season we shall not put ourselves in a position to have it repeated.'

'PETERHEAD, 23<d March> 1871. 'R. KIDD <to> HAY & CO.

'I sent the document from the Board of Trade, in case you should not have received a copy. I am of opinion that the men will suffer more by this new order than the merchants, from the experience I have had here. Were I not to give some credit to some of our own men during the winter, their families would starve. I do not wonder you feel sore upon the subject of the report.'

'LERWICK, 27<th March> 1871. 'HAY & CO. <to> R. KIDD.

'We have yours of 23d instant. With respect to advances, our people are differently circumstanced from yours. The married men have all farms in the country, and the young men live with their friends there, and we never see them from the time they settle the one year until they come to town to engage the next; so during the winter they neither ask, nor would we give them any supplies if they did, as in all probability they would offer their services first to agents who held no claim against them. Of the twenty men engaged for the 'Mazinthien,' not one was due us a shilling, and their month's wages was paid to them in cash at the shipping office at the time they signed articles; and any advances their families may get during their absence is given on their monthly notes, which are the only authority we have for making the deduction from their wages when they return.

'A great deal of absurdity has been written lately on this subject by well-meaning people, but who were entirely ignorant of the whole matter, and ready to believe whatever was told them, without taking the trouble to ascertain whether it was true or false.'

'LERWICK, 22<d. May> 1871 'HAY & CO. <to> R. KIDD.

'Referring to your letter of 16th March, we now send you enclosed abstract account of payments to Shetlandmen on board vessels for which we have acted as agents during the past three seasons, 1869, 1870, and 1871, to show how far we have benefited by what the Board of Trade are pleased to call the 'Truck System in Lerwick.'

'We are almost inclined to suppose the document now referred to, received in your letter of the above date, was titled at Peterhead, as we can scarcely believe it would be issued from a public office in London before previous inquiry had been made on the subject.

'As to signing the releases at the Custom House, neither the owners nor agents of the ship can compel the men to come to Lerwick for their wages, otherwise than they find it convenient for themselves. It would save us much trouble if they would wait in town a few hours after the ship's arrival, and receive their wages all at once at the Custom House; or, when they happen to be landed at a distance from Lerwick, if they could arrange to meet together here for the purpose at the same time.

'While matters remain as at present, whether these releases are signed or not, we can only do as we have always done in time past: pay the men promptly when they call. The supplies mentioned in the account now enclosed consist mostly of meal given to the men's families to account of their half-pay notes, and on which the profits cannot pay cellar rents, and servants' wages receiving and delivering it; so that, beyond the 21/2 per cent. commission on the wages, we have no inducement to continue in the trade.'

The abstract account above referred to is given below.*

* ABSTRACT ACCOUNT of WAGES paid by HAY & CO., Lerwick, to Shetlandmen belonging to Ships engaged in the Greenland and Davis' Straits Seal and Whale Fishery, during the years 1869, 1870, and 1871:-

Name of Ship Men Amount of Supplies before Paid in Wages and Sailing, and to Cash Oil-Money family during the Man's Absence 1869 Labrador 20 £94 14 10 £4 3 9 £90 11 1 1869 Intrepid 28 355 0 21/2 71 19 51/2 283 0 9 1869 Alexander 21 272 19 8 31 14 11 241 4 9 Total 69 £722 14 81/2 £107 18 11/2 £614 16 7 1870 Labrador 21 £196 9 5 £7 18 0 £188 11 5 1870 Mazinthien16 226 18 0 49 7 1 177 10 11 1870 Eclipse 12 256 2 0 29 5 9 226 16 3 1870 Erik 30 562 0 6 66 17 41/2 495 3 11/2 Total 79 £1241 9 11 £153 8 21/2 £1088 1 1/2

1871 Labrador 25 £221 7 4 ..... £221 7 4 1871 Erik 26 138 2 5 £ 8 15 3 £129 7 2 1871 Eclipse# 1871 Mazinthein# 1871 Erik to D. Straits# 51 £359 9 9 £8 15 3 £350 14 6 1869 69 £722 14 81/2 £107 18 11/2 £614 16 7 1870 79 £1241 9 11 £153 8 21/2 £1088 1 81/2 1871 51 £359 9 9 £ 8 15 3 £350 14 6 199 £2323 14 41/2 £270 1 7 £2053 12 9 1/2 Average per man for the three years £11 13 6 £1 7 2 £10 6 4

Voyage not ended.

In conclusion, I have only to add, that Hay & Co. have given notice to their friends, the shipowners in Peterhead and Dundee, that they cannot continue any longer to act for them.

3624. You say in that statement that you manage four estates in the country: what are these estates?-There are two for which we act as factors-the estates of Lord Zetland, and Mr. Bruce of Simbister; and there are two of which we are lessees-the Burra islands, belonging to the Misses Scott of Scalloway, and the Gossaburgh estate, in Yell and Northmavine.

3625. You say that the tenants on the estate of Mr. Bruce of Simbister, with the exception of those on the island of Whalsay, and Whalsay Skerries, are free to fish for whom they like: what is the nature of the obligation under which the tenants in the island of Whalsay lie?-There is only one fish-curing establishment there, and the men could not conveniently fish out of the island. We have a place rented from the proprietor as a curing establishment, with booths and beaches, and all curing preparations made for receiving their fish; and it is an understood thing that the tenants are to deliver the fish to us at the current price of the country.

3626. That is not an obligation that enters into any written lease?-No; it is merely an understanding with the proprietor. We have no lease of the island.

3627. Is it a condition of the verbal tacks of the [Page 87] tenants, that they shall fish for you?-Yes; they are made to understand that they are to deliver their fish to us at the current price.

3628. That applies to the home fishing?-To the home fishing only. The Whalsay men are not engaged in any other fishing.

3629. They don't go to the Faroe fishing at all?-No.

3630. Is yours the only shop upon that island?-The only shop.

3631. Have you an establishment at the Out Skerries too?-Do you mean at the Skerries lying to the eastward, where the boats deliver their fish?

3632. Yes.-No, we have no establishment for supplying the people with goods; but we have beach boys and curing materials at the Skerries to the east of Whalsay.

3633. Is there not a firm who have an establishment there?-Yes, at Skerries; but that is a different Skerries, which lies farther out beyond where the lighthouse is. There is more than one curer there, but the Whalsay men don't deliver any of their fish at that place.

3634. It is at the Out Skerries where other firms have establishments-both shops and curing places?-Yes; but we have nothing there.

3635. Do the Whalsay people fish for these other firms at the Out Skerries?-No.

3636. Where do their fishermen come from?-From Lunnasting, Delting, Nesting, and other places.

3637. They are not inhabitants of the islands?-No.

3638. Then the establishment at Out Skerries is a temporary one?-No. I think one curer has an establishment there all the year round, and a factor; but the fishermen don't live there all the year round. They live in huts during the fishing, and go home to their families when the fishing is over.

3639. You say that some of the men fish to one curer and some to another, as they find convenient: in that statement do you refer to the Simbister estate, with the exception of Whalsay?-Yes, with the exception of Whalsay. It includes Whalsay also, so far as the cattle, ponies, hosiery, and other things are concerned. There is no restriction on them selling these where they like; it is simply the fish they take in the island that we expect to get.

3640. In Whalsay, are the fishermen expected to deal only in your store for their fishing materials and the supplies for their families?-That is quite optional. They can take their supplies from our store; and suppose they take most of them there, because it is more convenient for them than to go anywhere else.

3641. In point of fact they have no option, because there is no other shop in Whalsay?-There is not, but they can go to Lerwick, and they do go there sometimes. I think the note I have given in as to Burra answers that question.

3642. Is there any restriction on the establishment of other shops in Whalsay?-There is no means for any person opening a shop there. There is no shop, and no building, and no right to build in the island without the proprietor's liberty. There is only the one shop there.

3643. What is the population of the island?-I don't think the census of last year would show that, because it is mixed up with other parts of the parish.

3644. Have you any idea how many fishermen are employed by you in the island?-Yes, I can tell that. We have twenty-seven fully-manned boats, each with six men and boys. These are the fishermen; but there are tenants who are not fishermen, and fishermen who are not tenants.

3645. That would give a total of 162 fishermen employed by you, but some of them may be members of the same family?-Yes.

3646. Are there many tenants who are not fishermen?-Not very many.

3647. Have there been any applications for liberty to establish a new shop in the island of Whalsay?-No.

3648. You have never, in your capacity as factor for Mr. Bruce, received an application for ground for that purpose?-Never.

3649. Would you have any objection to grant such permission if it were asked?-Although I am acting as factor for Mr. Bruce, the granting or refusal of such an application would depend entirely upon the proprietor.

3650. I suppose you cannot tell whether he would refuse it or not?-I cannot tell. In fact we have the only curing establishment there. We have the beaches, and all the preparations for curing, and there could be no other establishment in Whalsay.

3651. I am not speaking of an establishment for fish-curing; but suppose a merchant wished to establish a shop there for the sale of provisions and soft goods, do you think he would meet with a refusal from Mr. Bruce?-I cannot answer that question.

3652. In Whalsay you are only factors for Mr. Bruce, not lessees of the island?-We are not lessees. I act as Mr. Bruce's factor.

3653. Yet, notwithstanding that, the islanders are bound to fish for any one to whom the proprietor lets the fish-curing establishment?-Yes; on the understanding with the curer, that he pays the same price as other curers in the country pay for the produce of the fishing.

3654. You pay rent to Mr. Bruce for your booths and curing establishment; and in consideration of that rent it is understood that the tenants are bound to deliver their fish to you?-Yes.

3655. Have the fishermen refused, in any cases within your experience, to fulfil that obligation? Have they smuggled their fish away, or endeavoured to evade that stipulation?-I understand that before we came to the island they smuggled a great part of their fish away to other curers, but, so far as I can learn, I don't think they

smuggle any of them away now. I believe we have got the whole procedure.

3656. How long is it since you got the island?-I think it is five or six years ago.

3657. Who was the merchant before?-The proprietor received their fish himself.

3658. Suppose a fisherman were to bring his fish to Lerwick, or take them to Skerries or any other station, and sell them, would the result be, that he would have to leave his farm?-I cannot say what the result would be if he were to do so, because we have never been aware of any single case where a fisherman went past us with his fish.

3659. But if he did so, would you consider yourselves entitled to remove him?-No, not to remove him; but we would consider ourselves entitled to complain to Mr. Bruce.

3660. And he would remove him?-If he thought proper.

3661. You say that in 1870, after deducting advances, you paid the men in that island £1222: would the number of men fishing for you at that time be about the same that you have now?-I think there were 155 in 1870.

3662. That sum of £1222 was the amount of cash balances due to them and paid to them at the end of the year?-Yes; and which, when paid, left them entirely clear in our books.

3663. Was their rent paid in account with you?-These were the payments to the fishermen. The tenants would pay their rents to me as factor separately out of that sum.

3664. But in what form are your accounts made up?-My factory accounts are kept entirely free from our fishing accounts.

3665. The payment of rent there would be made at the same time when you went to settle with your fishermen?-Yes.

3666. I presume you gave them a separate receipt for their rents, and entered the payment in a separate factory book?-Yes.

3667. Is the form of accounting with the fishermen in Whalsay the same as you use in your dealings with your other fishermen?- Quite the same.

3668. Have they pass-books at the shop?-Some of them have pass-books, and some have not.

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3669. I suppose that in the name of each fisherman, there is an account in the books kept at the shop?-Every fisherman has a page for himself.

3670. In it all the goods furnished to him or to his family are entered on the one side?-Yes.

3671. Is there a credit side to the account?-Yes. When we settle with him, we give him credit for his share of the fishing.

3672. Is there a separate fishing-book?-There is a book kept by the fish factor, in which he enters the fish as he receives them.

3673. He is a separate man from the shopman?-Yes; he keeps a separate book, in which the green fish as they are received are entered in name of the company or crew.

3674. Is a bargain made with the fishermen at the beginning of the year?-Sometimes, but not often. Where there is no bargain made with them, the general understanding is, that the men get what supplies they require, and that they get also the current price of the season for their fish.

3675. That is the current price at the end of the season?-Yes.

3676. Are they entitled to one-half of the take?-Not in this case. They get the whole of their take. It is a different agreement altogether from that which obtains in the case of the smacks that prosecute the cod fishing at Faroe. In this case the boat and lines belong to the men themselves, and the whole of their catch belongs to them. At the end of the season their catch is added up and divided, and, after any company expenses are taken off, the rest is divided among the men.

3677. How are they valued?-The fish are weighed green and measured, and the weight is entered in the factor's book. They deliver to us twice or thrice a week, and at the end of the season the whole is added up and converted into money.

3678. How do you estimate the money value then?-Just according to the price of the fish for the year.

3679. But the price you pay is for cured fish?-No; the price of cured fish is what we obtain for them when we sell them ready for market.

3680. Then the price paid to the men is the price for green fish?- Yes; a different thing altogether.

3681. Do you pay the men according to the price of green fish at the end of the season?-Yes, a certain price per cwt.

3682. How much will a cwt. of green fish weigh when cured?-It is reckoned that 21/4 cwt. of green fish will make 1 cwt. of dry fish.

3683. Then, in fixing the price of green fish at the end of the season, the principal consideration is what the price of cured fish may be?-Yes, the price which cured fish bring in the market.

3684. You ascertain the price of cured fish, and calculate from that what price you are to allow to the fishermen for the green fish throughout the season?-Yes.

3685. Is the sale of cured fish going on during the autumn and winter, or are your sales generally later?-The sales are generally, made in the months of September and October. The bulk of the ling is sold in these months.

3686. Would it not be equally convenient to fix the price of the green fish about the time when your sales are made?-It is about that time that the price of the green fish is

fixed, and we settle immediately afterwards.

3687. I understood your settlement was not made until later?-It is generally in November. In some cases we may settle in the beginning or December.

3688. But with some merchants the settling time is later, is it not?-They generally begin to settle about November, and I think they mostly all settle about November or December.

3689. I think some statements have been made to the effect that the settlement goes on as late in the year as February. I don't think those statements were made with reference to your firm, but rather had reference to others: do you know whether that is so?-I think we have settled with most of our fishermen now.

3690. But don't you know the practice of other firms?-It is sometimes not convenient to settle until further on in the season, and I think Mr. Bruce of Sumburgh has not settled yet. But there is a reason for that: he has been out of the country.

3691. In point of fact, is it not the usual practice that the settlement does not take place until January or February?-The settlements generally begin very soon after Martinmas, and continue until perhaps about the end of the year. In some cases they may as late as January or February.

3692. Is there any reason for that?-None; except that people cannot get all their work done at one time. They must take one district before another.

3693. Are your settlements later in some districts than they are at Whalsay?-In some districts they are later.

3694. They may be protracted up to the New Year?-Yes, frequently.

3695. Have you completed all your settlements now?-We have completed all our settlements, with the exception of Burra. We have not settled with the men there yet, but we shall commence to settle with them immediately.

3696. Are the fishermen consulted with regard to the fixing of the current price at the end of the season?-I think very seldom; but it is quite an easy matter to know that the merchant can afford to give after he has sold his fish, and every fish-curer is very anxious to give the highest possible price he can afford to the fisherman, for the sake of securing his services another year.

3697. But this rule cannot apply to Whalsay, because there the fishermen are bound to fish?-Yes; but we are bound to pay the fishermen there the same price as is paid by the other curers through the country. The curers very often pay a higher current price than they can afford, just from a desire to get the people's services in the following year.

3698. The fish-curers markets, I suppose, are over all the world?- Yes.

3699. Are they to a considerable extent in Spain?-Yes, for the cod. A great deal of the cod is sold there. The ling is sold in Leith, Glasgow, Ireland, and in London. There is not much of it goes to Spain.

3700. Is there any understanding among the fish-merchants in Shetland, after their sales have been made in September, as to what the current price is to be held to be?-That is scarcely necessary, because, when they have sold their dry fish, they know exactly how far they can go with their fishermen.

3701. Do you mean that each curer knows from his own sales?- Yes; each curer knows exactly. When we sold our fish this year at £23, we knew what we could pay our fishermen without losing money. We knew that we could not exceed 8s. per cwt.

3702. But, in point of fact, is there any communication between the Shetland fish-merchants on that subject?-It is quite possible that after the fish are sold, the fish-merchants may converse together on the subject if they happen to meet.

3703. Is a meeting held for the purpose of fixing the current price?-No.

3704. Has there ever been a practice of holding such meetings?- Not that I ever heard of.

3705. Is there any correspondence entered into between the fish-merchants for the purpose of ascertaining the average price?-I don't know that there is any correspondence entered into specially for that purpose; but it is quite possible that, when one curer is writing to another, the subject may be mentioned.

3706. Am I to understand you to say that there is no practice of meeting for the purpose of fixing the price, and that such a meeting never has been held, to your knowledge?-I cannot say what meetings have been held; but I am not aware of any meeting having ever been held for such a purpose. I have not attended any such meeting.

3707. Then is it quite correct to say, as you say [Page 89] here, that the price paid to the fishermen for their fish is the current price of the country?-Yes.

3708. Is it not rather the price which each fish-merchant estimates that he can afford to give?-The price which each fish-merchant pays makes the current price of the country; and, so far as I know, the price that the fish-curers in Shetland have got this year for dry fish has been £23 per. ton. They have all been sold at the same price to south-country merchants.

3709. You believe there has been no difference?-I don't think there has been any difference this year at all.

3710. But in one part of your statement you point out that the sum, left as remuneration to the curer for the season's work is not very large: does not that rather go to show that the fish-curer does not take into consideration so much the current price as the price which is actually paid to him for his fish?-It is the price that he receives for his fish which enables him to say exactly what price he can afford to pay to the fishermen. I think the curers this year have all been paid the same price for ling, and I believe it was considered a very high price.

3711. Is there generally much difference in the prices which different curers get?-Very seldom; sometimes 10s. or sometimes £1. If there is a great demand for fish, some merchants, by holding on later than others, may obtain an advance of that

amount, and in that case they might give their fishermen a little more. Perhaps they do so, and get more of them to fish for them another year.

3712. But the fishermen who are bound to fish for a particular merchant don't get the benefit of such an increased price?-There are not very many fishermen bound to fish, so far as I know; only a few cases.

3713. To return to Whalsay: you say there are very few debts in the books there, and that the people are considered to be in good circumstances?-There are almost no debts due to Hay & Co. there.

3714. Therefore, in settling, there is universally a balance in favour of the fishermen?-Universally the balance is in favour of the fishermen, and sometimes they are pretty large balances.

3715. Can you speak to the prices at which goods are sold in the shop at Whalsay? Is it the market price in Lerwick?-We charge the Lerwick prices at Whalsay, with a small addition to cover the expenses of transit.

3716. What may be the percentage of that addition?-I cannot say; it varies. Perhaps it would be 21/2 per cent. additional. The men being free, we are desirous sell as low as possible, in order to secure their custom, because they are very near Lerwick, and they can perhaps supply themselves elsewhere.

3717. You say in your statement, 'The Shetland fishermen have been represented as ignorant and uneducated. This is a great mistake. They are as intelligent, shrewd, and capable of attending to their own interest as any similar class of men in Scotland.' I have no doubt that is quite true; but do you think they are equally independent in character with other Scotchmen?-So far as I am able to judge, they are.

3718. Don't you think they are a little shy about speaking out their minds to their employers?-I cannot say what they do with others, but they speak pretty freely to us.

3719. Do you think the Whalsay men would tell you if they desired to be released from the condition in their tack obliging them to fish for you, or that they would strike if they felt it to be an obnoxious condition?-The Whalsay men have told me repeatedly that they are far better off at present than they have ever been in time past. They are not in debt to the fish-curer, and their rents are well paid.

3720. I presume you would not allow them to get very deep into your debt at the shop?-We have never had occasion to restrict their advances very much. We could not allow them to get very deep; but, as yet, we have not had occasion to restrict their advances.

3721. Are the advances made to the fishermen during the course of the season generally made by way of supplying them with goods at the shop?-They can get any supplies they want at the shop, or money either if they require it, during the course of the season.

3722. If they want money, to whom do they apply for it?-To the fish factor there.

3723. What is about the extent of advances made to the fishermen in the course of the year?-It varies very much. Some of them, I suppose, have not 10s in the whole course of the year,-perhaps they go and deal with some other person; while others may have £5 or £6, or more.

3724. You say that some have not 10s. of advances: do you mean money advances?-They get any money they want.

3725. But how much cash is advanced during the year by your fish factor in Whalsay?-I have stated how much the produce came to, and how much we paid in money at the end of the year. [Exhibits statement.]

3726. That brings out the amount of cash advanced during the year to be about £362?-Yes.

3727. So that the amount of advances in goods or on account would come to about £920?-Yes; that was in 1870. I believe the proportion of money is greater for the past year, because we paid them a larger sum of money.

3728. Would the amount of goods taken this year be less or greater than in the previous year?-I think the goods would be less this year, because the men, having made a very good fishing in the previous year, had less occasion to take supplies from the shop; and therefore I think we would be giving them more money in the course of this year than we did formerly.

3729. You think the result of the good fishing in the previous year would be, that the men dealt less at your shop?-They had no occasion to take so large supplies.

3730. How were they supplied with meal and other necessaries?- They had better crops, and did not require them.

3731. I thought you said that was owing to the good fishing?-To the good fishing and the good crops.

3732. You don't mean to say that they came oftener to Lerwick for their provisions?-I cannot say how often they came to Lerwick. They are quite at liberty to come here when they please.

3733. But the fact that there was a good fishing would lessen the amount of dealing at the shop?-There was a good fishing and a good crop; they had got a large sum of money in the previous year, and many of them very likely had that money beside them, except what they had lodged in bank; and they could buy for ready money at the shop instead of entering it in the book

3734 Then one effect of a good fishing is, that the men buy at your shop for ready money rather than by running up an account?-Yes, frequently

3735. Do you know whether many of the fishermen in Whalsay and elsewhere have large deposits in savings banks or other banks?-I believe there are very large sums at their credit in the Union Bank, which has been established longest here.

3736. Of course you have no personal knowledge of that?-No; but if you had power to command a sight of the bank books, I believe the sum would astonish you.

3737. There is no savings bank here except the post office savings bank?-No.

3738. The Burra men are employed by you in the home fishing, and those of them who choose in the Faroe fishing?-Yes.

3739. But in Burra, as in Whalsay, the men are bound to fish for you in the home fishing?-The men are bound to deliver us their home fish. That fishing, however, is carried on now only to a very small extent. Most of the men in Burra are otherwise employed.

3740. How many boats have you engaged in the home fishing from Burra?-They vary. There are a few boats that fish in spring, and there are a few men [Page 90] who stop at home all summer, and fish then; so that at one time there are a good number, and at another time not half so many.

3741. Are these Burra men under an obligation which forms part of their verbal tack?-The men who stop at home are under an obligation, at least it is an understood thing that they are to deliver their fish to us.

3742. Is there any written obligation to that effect?-No; but in point of fact they could deliver them nowhere else, because we have the stations on the islands.

3743. Could they not deliver them for salting and curing in Scalloway?-Yes; but Scalloway is such great distance from the curing stations, that they are much better off as they are.

3744. Are there no curing stations at Scalloway?-There are; but Scalloway is such a great distance from Burra, that the men could not go there every time they came from the fishing.

3745. Is the island of Trondra in your hands?-Yes; it belongs to the Earl of Zetland.

3746. Have you a curing station there?-No.

3747. Do the Trondra people deliver their fish at Burra or Scalloway?-I don't know if there are any Trondra people fishing for us. They deliver at Scalloway any fish they get.

3748. There is no obligation upon them to fish for you?-No.

3749. And, in point of fact, you think they don't do it?-We get none of their fish at Burra. It is possible they may deliver some to our men at Scalloway.

3750. Was there an obligation signed by some of the Burra men some years ago, binding them to fish for you?-Some years ago, after a series of bad crops and bad fishings, the islands had got largely in our debt, and in order to get the sons to help the fathers to pay their rents, which we were bound to pay for them every year, we got them to sign an obligation.

3751. Was that about eight years ago?-I think it would be about that time. It was about the time when we were getting a renewal of the lease. However, that obligation was found to be unworkable and was laid aside, and has never been acted on.

3752. What were its terms?-I cannot recollect very well. The fishers at home were to be bound to deliver their fish to us.

3753. Some of the men did sign it?-Some of them did sign it; but some of them refused, and it was laid aside.

3754. Does the document exist?-Very likely it does. It is probably somewhere in the office, if it has not been destroyed; but immediately after it was signed it became quite a dead letter.

3755. Were not some of the men fined for delivering some of their fish elsewhere?-I have made a statement about that; but it was not for delivering their fish elsewhere.

3756. What men were so fined?-I think there were one or two of them; but I don't remember their names.

3757. Was Peter Smith one of them?-Very possibly.

3758. Do you remember whether the money was returned to him?-I think it was, so far as I remember. I think any fines that were imposed were returned.

3759. You found that the exaction of this fine did not tend to make the men more willing to deliver their fish to you?-The fines were not imposed for not delivering their fish. The object of the fines was to compel the sons to assist the fathers.

3760. But the fine was imposed upon the father?-Yes.

3761. Then the obligation we have been speaking of was an obligation binding not only the tenant, but also the members of his family?-Yes. So far as I know, none of the tenants delivered any of their fish to us except what we get at present. Any of the tenants who are fishing in small boats on the coast deliver all their fish to us still.

3762. Are you aware of fish being smuggled to Scalloway, and sold to dealers there?-I am not.

3763. If that were the case would you consider that you were entitled to remove the men from their holdings in Burra?-There are only a very few men who engage in the home fishing now. The best of the fishermen are engaged fishing for other people at Faroe.

3764. It is only when a man actually does engage in the home fishing that he is obliged to deliver his fish to you?-Yes.

3765. If he chooses not to remain at home, or not to employ himself in that fishing, there is no obligation upon him?-No. If he chooses to remain at home, and employ himself fishing in small boats on the coast, there is an obligation on him to deliver his fish to us, but on all the other people there is no obligation, and most of them fish to other people out of the island. I have mentioned in my statement, that of the men engaged in the Faroe fishing, I think only about one-fourth are employed by Hay & Co.

3766. There is no allegation that the men are bound to engage to you in the Faroe fishing, and you say there is no obligation upon them to sell their farm produce to you?-We never interfere with the farm produce.

3767. Are you aware of cases in Shetland-I don't speak of your own dealings alone, but of your own dealings and those of other merchants-in which tenants are held bound in any way to sell their farm produce, their cattle, or their ponies, to fish-curers who are factors or tacksmen?-I am not aware of any such cases. It may be the case, but not within my knowledge.

3768. Is there any system of a kind of mortgage of the cattle in security for debts at the shops of fish-merchants?-It is quite possible that if man wants an advance he may promise to sell the merchant or the factor, or whoever he is, a cow or other animal at a certain season of the year, in order to repay him that advance; but I don't know of any other mortgage of that kind in the country.

3769. The mortgage may not be very much worth in law; but have you known cases in which a fish-merchant, being the sole or principal creditor of fisherman dealing at his store had so mortgaged his cattle, and that it was marked as belonging to the fish-merchant?-It is quite possible that may be done some cases, but the landlord has a preference over such cattle, so that such a mortgage would be of no value. A man may give a promise to sell a cow two or three months hence, and on that promise get an advance of a few pounds of money; but it depends entirely on the man's promise whether the money is paid or not, because the landlord can step in, if the tenant is in debt to him, and take his animal.

3770. That is, if the tenant owes the landlord anything and has not enough to pay the landlord's claim?-Yes.

3771. You don't know of any particular case of that sort?-I could not mention any particular case.

3772. And you don't know of fish-merchants or tacksmen who are in the habit, to a large extent, of squaring their debts in that way?-No; we don't do it.

3773. The fishermen in Burra are supplied with goods at your shop in Scalloway?-The statement I have given in contains an answer to that question. They not confined to deal at our stores. They can deal with any other curer or shopkeeper they choose.

3774. But, in point of fact, they generally deal at your shop in Scalloway?-They generally deal there, and in Lerwick too, if they want anything. If they want money, they generally come here.

3775. The Burra men deal at your shop on credit, and there is a settlement with them once a year?-Yes; the same as with the others.

3776. Is the book there kept in the same way as at Whalsay?-In the same way.

3777. Is it kept in the same way as the books for your other customers in Scalloway?-In the same way. Their supplies are charged against them at the end of the year, and we bring the book in here and settle with them.

3778. Is there a separate book for the Burra men at [Page 91] the Scalloway shop?-We keep a separate book for the Burra men's accounts in Lerwick.

3779. For their shop accounts?-For their shop accounts; and the fish factor has a separate book, which he marks the fish he receives from the men.

3780. What is the purpose of keeping a separate book for the Burra men here?-There are a good many names, and it is to keep them apart from others. At the end of the season we may be settling with them when the other books are in use in the office.

3781. You settle with the Burra men at Lerwick, and not at Scalloway?-Yes.

3782. But the shopkeeper at Scalloway sends in his accounts here before you settle with them?-Yes. The men call there and see the state of their account when they like, and then we get in a list of their debts to the shop. There is nothing entered to their credit there, but a list of the advances they have got from the shopkeeper at Scalloway is sent here.

3783. Their credits are all kept here?-Yes.

3784. Are your other fishermen in that quarter settled with here or at Scalloway?-They are settled here, for the most part.

3785. In this statement you have not told us anything about the amount of balances generally paid to the Burra men?-I have not, because we have not settled with them this year yet. I daresay, by looking over the books, I could tell you what we paid them last year and the years before. At this moment we are due the Burra people extremely little, because all the men who have been fishing in the smacks during the summer have been settled with, and got their money; and for the people who stopped at home and fished here, after we deduct their rents, we have very little money to pay them.

3786. You charge the rent in the account against them at Burra?- Yes.

3787. You do so because you are the tacksmen yourselves?-Yes.

3788. Then, in general, does any money pass at all in settling with the Burra men?-Yes; there are considerable sums in some cases.

3789. In settling with those of them who are Faroe fishers do you deduct the rent in their accounts also?-When any of the tenants are fishing in our smacks, we deduct the rent from what they have to receive.

3790. Do those men who fish at Faroe get their supplies at the Scalloway shop the same as the others?-They get their supplies there or here, as they find convenient.

3791. Have they generally an account in both shops?-Generally they have, except where we have occasion to restrict their advances.

3792. But if a man has an account in both shops, might there not be some difficulty in restricting his advance?-In that case we close the account at Scalloway, and give the man what he requires here; and then we can restrict his advances if we see it to be necessary.

3793. Have you often found it necessary, after bad fishing seasons, to make considerable advances to men in the way of provisions?- Yes, we have found that necessary, because the men could get supplies from nowhere else, and we were obliged to give them meal and other things in order to keep their families alive.

3794. Are you speaking of Burra and Whalsay, or of all your fishing stations?-Most of the shops that we have in the country are obliged to give large advances in the case of bad seasons. Three years ago the crops were very bad; the people had not seed to sow their land with; and we brought in a pretty large quantity of seed-corn and potatoes, which we supplied to the people in Yell.

3795. That was on the Gossaburgh estate, of which you are tacksmen?-Yes; and they have since then paid it up in full.

3796. Do you act in the same way with fishermen are not bound to fish for you?-If they were under any engagement-if they signed an obligation to deliver their fish to us-then we would do so.

3797. Whether they were on an estate under your management or not?-Yes.

3798. Have you sometimes made such engagements with them?- Occasionally we have.

3799. Was that with individual men?-Yes, with individual men when they wanted advances.

3800. That is to say, at the end of the fishing season, when you found on settling up that there was a balance against a man, and that he continued to want further supplies from your shop, you would enter into an engagement with him to fish to you next year?-Yes.

3801. Would that engagement be a verbal one?-Sometimes written and sometimes verbal.

3802. In that case the advances would be in the form of goods supplied at your shops?-Both money and goods. We would give him money if he asked for it.

3803. But the bulk of the advances would be in goods?-No. Money would frequently be given when they wanted a special advance.

3804. In a case of that kind, are your shopkeepers instructed to make the advance to the men in either way?-If a man wants an advance of £1 or £2 we make it to him ourselves, and the people when they want goods, go to the shop for them.

3805. At what time are these advances generally made?-During the winter or the spring seasons, before the fishing begins again.

3806. And during the autumn, before the settlement for the years fishing has come round?-Yes. They frequently get money during the summer.

3807. I suppose the settlement with your men in Lerwick takes place in the office and not in the shop?-Yes, in the office.

3808. When the men get their payments in money, are they at liberty to go where they like to spend them?-Yes; they get the money in their hands, and go away from us with it.

3809. Whether they are Burra men or Whalsay men or strangers?-Yes. We settle with the Whalsay men at Whalsay; but all the money that we give at the settlements here, the men go away with it out of the office.

3810. Is the settlement with the Whalsay men made in the shop?- No; they are settled with at the manor-house at Simbister.

3811. Where is the settlement made at Gossaburgh?-The settlement with the Yell tenants is made at the house of West Sandwick.

3812. Have you shops in Yell?-None.

3813. The fishermen there, however, are bound to deliver their fish to you?-Some of the Yell fishermen deliver their fish in summer at Fetlar, and others again deliver them at Northmavine.

3814. What is the extent of the Gossaburgh estate?-I suppose the rental is about £400 or £500, and I think the number of tenants is about 120.

3815. Are the whole of these men bound to fish to you alone?- Not the men sailing out of the country. It is only the men remaining at home and fishing there during the summer who are bound to fish to us.

3816. Who is the proprietor of the Gossaburgh estate?-Mrs. Henderson Robertson.

3817. In speaking of the rental, you refer to the rent paid by Messrs. Hay & Co. as lessees, which is about £500 a year?-Yes; I think it is between £400 and £500.

3818. What will the average rental of the holdings be?-Perhaps from 30s. to £5 or £6. There is one party who pays £65 or £70, but he is not a fisherman.

3819. What is the gross rental paid to you from the estate?-It will be seen from the valuation roll. I could not tell the gross rental off-hand, because it is a peculiar tack. We pay a certain fixed sum for it, and then we pay all the burdens on the estate, and it varies somewhat. It is more in one year than in another.

3820. Are the tacks under which you hold Burra and Gossaburgh in writing?-Yes, they are both written tacks.

3821. Do these tacks contain any reference to your [Page 92] rights with regard to fishing?-The tacks state that we are at liberty to let the lands, remove the tenants, and take new tenants, and that we are to pay certain sums for the ground. I don't remember whether there is anything specially mentioned about the fishings. I think in the Burra tack there is something about them it gives us right to all the fishings in the island. I am not sure that the original proprietor had not a Crown charter which gave him a right to the whole fishings, including oyster fishings and others; and I think we have the whole of these rights.

3822. Perhaps you will show me these two tacks, so that I may make an excerpt of any clause relating to the fishings?-I will do so. There is no clause in either lease relating to the obligation of the tenants to deliver their fish to the tacksmen.

3823. You say in your statement 'We have other curing stations at different parts of the islands, and employ a number of men and boys from all quarters during the summer months:' that refers to the home fishing?-To the home fishing solely.

3824. There are curing stations at places quite separate from any of the four properties you have been speaking of?-Yes.

3825. Where are they?-We have a curing station at Dunrossness; we have another station at Fetlar; and we cure to some extent at Scalloway, and also at Lerwick.

3826. At all of these stations have you shops from which you supply the men?-We have a shop at Scalloway, and another here. We have a factor at Fetlar, who supplies the fishermen with what they require; and we have a man at Dunrossness, who keeps supplies there also.

3827. At Dunrossness have you ever come into conflict with Mr. Bruce's people with regard to the sale of goods or the purchase of fish?-I think not.

3828. Is it understood there that you are to purchase from people who are not upon his lands?-We purchase from people who are not upon his lands, that is, from the Simbister or any other tenants, who are quite free.

3829. But not from the Sumburgh tenants?-They never offer us any of their fish, and we never ask them. We never interfere with Mr. Bruce's fishings.

3830. Do you ever purchase from the Quendale tenants?-No, I think not.

3831. You say fishings of all kinds succeed best when the men are paid by shares. When they are secured in monthly wages, there is no inducement for exertion. That is with reference to the Faroe fishing?-Yes.

3832. Do you form that opinion from your experience of both systems?-Yes, because on some occasions we have had to pay wages to the men; but that has been very seldom.

3833. I think in another part of your statement you say that, when an agreement to pay monthly wages has been made, the men sometimes, if the price has been high, have repudiated their bargain, and asked to be paid according to the current price at the end of the season?-Yes.

3834. Has that happened often?-No; very seldom. The men generally prefer to go on shares. There have been one or two occasions when we had to guarantee them monthly wages in order to induce them to go out to the fishing, but at the same time, if their share of the fish exceeded that monthly wage, they got it.

3835. Is it your opinion that it would be a wholesome change if the men were paid by wages, or that it is better for both parties that things should remain as they are?-I don't think it would be a good change to pay them by wages.

3836. Would it not tend to form more provident and careful habits among the fishermen if they knew exactly how much they were to receive?-I think it would be very much against the fishings if such a system were adopted. The men would not get nearly so many fish, and they would not earn so much money, if they were paid by wages, as they do at present. Some of the men who are fishing at the haaf earn as much £15 or £20 as during the summer, and they would not get any one to pay them wages of that amount.

3837. How much would that be per month?-Perhaps about £5 per month. No one would engage them at that figure.

3838. In the home fishing the boats generally belong to the men?-I think, for the most part, they do.

3839. Is it a common practice for the fish-curer to advance the money for a boat, or to supply the boat to the men and receive payment from them by instalments?-It is generally the understanding, that if a crew get a new boat, they pay up for it in three years. In some cases they are able to pay up for it in one year when there is a good fishing. I may mention one case in Dunrossness, the year before last, where six mem came to us and wanted a boat and lines. We gave them the advance, fitted them out, and supplied their families during the season, and at the end of the season they had earned with that boat and lines £200. The agreement was, that they were to pay for the boat in one year if they could; and if not, they were to get credit for three years. They paid up for this boat and lines clear, and had money to get at the end of the season.

3840. When an arrangement of that sort is entered into, is a certain sum deducted from the men's earnings at the end of the year in respect of the boat?-There is an account kept for the boat. If they pay one-third share the first year, it is taken off as a whole, and not taken off each individual.

3841. They are jointly and severally liable for the price of the boat?-Yes; they have a company account. The boat is charged to that account; and when they settle, there are two-thirds carried down to the debit of each man, and the rest is paid up.

3842. Then, in every case of that kind, there is a boat account separate from the accounts of the individual members of the crew?-Yes.

3843. And if any of the men have gone away from the country, or have got deep in debt before the boat is paid up, the other members of the crew remain liable for the whole amount?-They are liable in point of law, but it is very seldom they pay anything beyond their own share.

3844. When that comes to be paid out of the share of a man who has an individual account, is his share of what remains due on the boat generally entered to his debit in his own account each year?- No, not separately. We keep an account against the boat and the crew, and we give them credit for the whole of their fish when we come to settle with them. Then we take off one-third the price of the boat, along with the cost of any other supplies they may have had in company, and divide the balance and enter it to each separate man's credit, leaving two-thirds of the price of the boat at

the debit of the boat account.

3845. The balance that remains in favour of the men after that comes into their separate accounts?-Yes.

3846. So that the boat account has a priority in the settlement over the individual accounts of the men?-Yes.

3847. Where such a boat account exists, is it the case that the individual men are generally, or always, dealing at the shop of the merchant who advances the boat?-I cannot say. The men are at liberty to deal where they like. Getting an advance of a boat does not compel them to take their supplies from the same merchant.

3848. But is there any understanding or practice according to which the men do deal at the merchant's shop?-I cannot say. The men that we deal with are at liberty to take their supplies either from us or from any other shop in the country.

3849. Are your shopkeepers allowed to make any intimation to the men that they are expected to deal at your shop?-They are never told to do so, and they never do it, so far as I am aware.

3850. Would they be checked or reprimanded if they did it?-We never had occasion to reprimand them, because we never said a word about it ourselves. Our shopkeepers never did it by our orders, and I don't think they ever did it of their own accord.

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3851. In agreeing to open a boat account with men in that way, is any preference given to men who deal at your shops, or who undertake to deal there? Would you more readily agree to open an account with such men than with others who did not deal with you?-That is never taken into consideration at all.

3852. But when a boat account is opened, are they always expected to deliver their fish to you until it is paid off?-That is always part of the understanding, that they shall fish to us as long as they're due a balance on the boat.

3853. And when the balance is paid, then they are free?-Yes; they are at liberty to renew the agreement with us, or to go anywhere else they like.

3854. Do you find that, at the end of the period when the balance is paid off, the men are generally ready to continue to fish for you?-Sometimes they fish for us, and sometimes they shift and go to another curer.

3855. There is no general rule about that?-No.

3856. You say in your statement, that the men are quite safe with the arrangement to get the current price at the end of the season for their fish: 'They know the competition between curers all over the islands is so keen, that they are secured to get the highest possible, price that the markets can afford. Any curer that can offer a little advantage to the fishermen over the others is certain to get more boats the following year; and this is carried so far, that men with limited capital, in their endeavours to obtain a large share of the trade by giving credit and gratuities, in one

way and another leave nothing to themselves, and the end come to grief:' is that a common thing in the islands?-It is not common, but it does happen occasionally.

3857. Has that any connection with a statement which was made in the evidence given in Edinburgh, about the necessity which a merchant was under, to have a large amount of bad debts in order to succeed in business?-I daresay it has.

3858. I suppose that refers to the same sort of dealers men with limited capital, who push their business by giving the fishermen an advantage in that way, and who were said to come to grief from having too few bad debts?-Yes.

3859. Do you suppose the gentleman who gave evidence to that effect, and which you have criticised in another part of your statement, was referring to the same cases that you are there referring to?-I am not referring to any particular case in that statement. It is only afterwards that I mention evidence. In this case, I say that a man with small capital who gives too large advances to the fishermen, which they cannot repay, is very likely to be unable to pay his own creditors.

3860. When you speak of him giving too large advance, do you mean in the shape of supplies of going out of his shop?-Yes; and giving too many gratuities to the fishermen, so that they have all the profit, and he has none.

3861. What do you mean by gratuities to fishermen?-Fees, and other inducements to fish, besides the regular current price.

3862. Is that both in the home and Faroe fishing?-Not in the Faroe fishing. I refer to the home fishing only.

3863. Then in the home fishing there is sometimes an arrangement to give fees to the fishermen in addition to the current price?- Yes. For instance, the skipper of a boat, being the most experienced man of the crew, generally gets a small fee; and there are other gratuities paid, which differ at different stations.

3864. These gratuities are given in order to secure the fish of a large number of fishermen?-Yes.

3865. Have you cases in your mind at present, which these gratuities, and the excessive advances in goods, have led to the failure of people entering into the trade for the first time?-In making this statement I had particular cases before my mind; but such do happen occasionally through the islands.

3866. You don't think the existence of such cases inconsistent with your denial of Mr. Walker's statement with regard to bad debts?-I have referred to his statement on that subject, simply for the purpose of pointing out the absurdity of it.

3867. Of course if you speak of the debts as being absolutely bad debts, the statement is absurd, as you point out but suppose that a man starting business in Shetland gets a number of fishermen into his debt to a certain amount, has he not a hold, over these fishermen, so as to compel them to deliver their fish to him in future?-He has no hold over them whatever for that purpose. He has just this hold over them that if he chooses, he can go into the court with them and prosecute them; but after they have fished to him for some time, and find that they can get no further

supplies from him, they are very likely to go away and offer their services to some one else.

3868. But suppose that at the end of the season a merchant has 100 fishermen who are in debt to him to the extent of £2 or £3 or £4, and whom he can prosecute at once for recovery of that money, do you think the fishermen have no inducement to continue to deliver their fish to him, rather than allow him to prosecute?-It may induce some of them to do so, but some of them may be frightened and leave him, in case he were to prosecute them. We generally find that when a man gets into debt, to us, we never see him again.

3869. Do you mean in debt to that extent, or to larger extent?- When he gets into our debt to the extent of £6 or £8, he very soon leaves us, and we never see him again. In many cases they know very well that the prosecutor might have to pay the law expenses and would get no return.

3870. May that not arise from the fact that you deal more leniently with your debtors than other merchants?-I don't think we do. I think other merchants carry on their businesses on much the same principles as ourselves.

3871. Does it not strike you that the statement you are contradicting about the value of bad debts to a Shetland business, although it might be exaggerated in the terms which it is put, has nevertheless a certain amount of truth in it?-I know quite well, that if a man with small capital lays out that capital in buying goods to supply fishermen, and delivers these goods to the fishermen, and then has to pay for the goods and has nothing to pay them with, he must shut his shop and become bankrupt.

3872. But if he has sufficient money to carry on for a little,-or if he gets his bills renewed for a certain time, and manages to get the fishermen bound to him by the fact that they are in his debt, and by the fear of being prosecuted for that debt,-may he not have a very good season next year, and be able to get a large supply of fish, which he can sell at a profit, and so gradually make his way?- Fish are not like ready money. You may have a pretty large number of men fishing to you, but you cannot convert their fish into money until perhaps the end of twelve months. You only get your fish sold once a year, and you won't get any person in the south to give you goods on credit for twelve months. Besides, a fish-curer must always have a certain amount of debts standing in his books against fishermen, and stock which he cannot make available.

3873. Do you mean shop goods?-Yes, he must have shop goods, and he must have debts in his books to a pretty large amount before he can carry on extensively.

3874. I am assuming always that the man, although his capital may be limited, has a certain amount of capital which will carry him on for a couple of years?-Well, then the end would be sure to come.

3875. But he may manage to make a good business, and to carry it on successfully; if he gets a certain number of fishermen under an obligation to fish for him; or if he can induce them by offering premiums and gratuities to fish for him rather than for others,- can he not?-But in the meantime he is giving them supplies; and while they

may have got into his debt to the extent of £5 or £6 each man this year, on the understanding [Page 94] that they are to fish to him next year and pay off their debt, yet when he comes to settle with him he may find that they have not only not paid up their old debt, but that there is something more added to it, as he has been giving them supplies all the time.

3876. But, in a case of that sort the fish-merchant will probably try to keep the supplies which he gives to his people down to as low a point as possible; and if the season has been a good one for agricultural produce, they may not require very extensive supplies in the second season?-Perhaps so; but generally men who have got into debt the first year, require supplies afterwards; and if you stop the supplies at any time after the fishing has begun, the man stops work, and when one man in a boat's crew stops work it throws the whole idle.

3877. Therefore you think the fact of men getting into your debt has no effect in securing their services as fishermen to you for the future?-No. It is a certain way of throwing away money, and getting rid of their services.

3878. Have you had any experience as to the mode of settling with men who go to the herring fishing?-Yes.

3879. Is your firm engaged in that fishery?-It has been quite a failure here for the last two or three years.

3880. What is the mode of dealing with the fishermen there? Is it the same system that is pursued at Wick?-The herring fishing here, for the most part, is carried on in the same small open boats as are used at the haaf. At Wick they have large boats for the purpose. Here each man has a certain number of nets of his own, and they use their own boats and nets.

3881. When is the bargain made about the division of the produce; or are the men engaged upon wages?-For the past few years the herring fishing here has been so trifling, that scarcely any person took the trouble to make a bargain with the men about it. If they caught any herrings and delivered them, they generally made a bargain for them about the time they commenced.

3882. Were they to get so much per cran?-Yes.

3883. Is that the same practice that is followed at Wick?-The same practice, I think. At Uyea Sound I think there were as many as sixty small boats that went to that fishing; but for the last two or three years they have not cured a single cran of herrings, so that the thing was not worth our attention.

3884. Are you aware what the general arrangement between the fishermen and the curer in the herring fishing is-I don't speak of Shetland alone, but at other places?-I understand the boats and nets at Wick and other places belong to the fishermen; but the men there are largely indebted to the fish-curers, who have to make large advances to them before they can carry on the fishing.

3885. But the bargain made at the beginning of the season is for a price per cran?-Yes.

3886. And that is due when?-It is not settled, believe, until the end of the fishing.

3887. But the price is fixed at the beginning?-Yes.

3888. Would not that be a more advantageous arrangement for all parties in the home fishing or in the Faroe fishing than that which at present exists?-I don't think the fishermen here would agree to it. We have on several occasions made an agreement with individuals of both descriptions of crews, at the beginning of the season, to give them a certain price for their fish; and if it happened, as it frequently does, that the price rose towards the end of the season, we had, when we came to settle with them, to pay them at the increased price.

3889. You have already mentioned that; but, assuming that the fishermen would agree to it,-and I have no doubt you could compel them to agree to it if there was a bargain to that effect,- would it not be a more reasonable and wholesome arrangement altogether for both parties?-We would certainly be willing to agree to it, and I think the other fish-curers would, and take their chance.

3890. In that case you would take your chance of rise or fall in the market?-Yes.

3891. And there would be none of the fishermen but what would have some idea, as the season went on, of how much his earnings would be?-So they would; but if our fishermen had made such an arrangement, and they came to know that other men were getting higher price from other curers at the end of the season, it would make our men dissatisfied, and we would have to throw our agreement aside. If we did not do that, our men would leave us, and not fish for us another year.

3892. Do you mean that that arrangement could not be entered into by any individual fish-curer unless there was a general arrangement to do so among the curers in the islands?-Yes; the whole of the curers would require to agree to it.

3893. But, would it not be more advantageous all parties, on the whole? I think you say that in your opinion it would be?-We would be very well pleased to have a fixed agreement at the beginning of the season, and very well pleased also to pay the men altogether in cash when we settled with them. In that way we would keep clear of bad debts.

3894. Would not such an arrangement obviate the objection you have to a change on the ground that the fisherman's exertions would be less if he had no inducement to work,-because, if that arrangement were carried out, the fisherman would be induced to use all his exertions in order to get as large a take of fish as possible?-He has the same inducement now.

3895. That is so; but at present he does not know until the end of the season how much he is to get for his fishing during the year?- They are generally satisfied that they will get the full value of the article.

3896. But the policy of the Legislature in some other departments seems to be, that the working man shall know week by week how much his earnings are, and how much he is spending upon goods: could not that be done here?-No; it is impossible here, because one week, or one fortnight, or perhaps three weeks, may elapse in the

summer when a man does not earn one sixpence.

3897. But if there was some system of paying fixed price of so much per cran or so much per cwt. for fish delivered, the fisherman would be able to calculate more nearly what his income was going to be during the year than he is now, and be able to regulate his expenditure accordingly?-The price of fish has varied very little for many years, and a fisherman can know pretty nearly what he is earning. The following is a statement of the prices that have been paid for the last six years; from which you will see that the variation has been extremely small.

PRICES of Fresh Fish paid at Burra, compared with the Rates paid at other Stations in Shetland, for six years, 1865 to 1870 inclusive.

YEAR BURRA ISLANDS OTHER PLACES Spring Summer Summer Ling Cod Ling Cod Ling Cod s. d. s. d. s. d. s. d. s. d. s. d. 1865 7 0 7 0 7 0 7 0 7 6 6 6 1866 8 0 7 6 8 0 7 6 8 6 7 6 1867 6 0 7 0 6 0 6 0 6 0 6 0 1868 6 0 6 6 6 6 5 0 6 6 5 0 1869 7 0 6 6 7 0 6 6 7 0 6 6 1870 7 0 6 6 7 3 6 0 7 3 6 0

3898. Then, upon the whole of that matter we have been speaking of, you don't think the introduction of a system similar to that which prevails in the Wick herring fishing would be beneficial either to the one side or the other, although you would be willing to adopt it?-We would be quite ready to adopt it.

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3899. But, as a matter of opinion, you don't think it would be advantageous?-As far as my own opinion goes, I do not think it would be in any way advantageous either to the fish-curers or to the fishermen.

3900. You have a few sentences in your statement with regard to the hosiery trade, in which you say you don't believe it would pay the expenses and servants wages: is that your opinion?-Yes; if we were to buy for ready money.

3901. What is your reason for forming that opinion?-The people get so much higher prices for their articles when they take goods, that we could not buy for ready money and compete with the people in the trade.

3902. Do you deal in the same goods as those merchants who deal in hosiery?-Yes, to a certain extent, but not to such a large extent as them. They keep goods for the purpose of exchanging for hosiery, while we only keep some for supplying the fishermen.

3903. Are you in a position to say whether your prices for tea and soft goods are higher or lower than the prices of the persons who purchase hosiery?-I think tea and groceries and other things, sell for very much the same all over town.

3904. Is it the same thing with soft goods and cotton?-Yes, I think they are very much the same.

3905. If hosiery were paid for in cash, do you not think the people might come to your shop and buy goods to greater advantage than they get them for at present?-I suppose they would go to any place in town where they got the goods best and

cheapest. I have said in my statement, we would be quite ready to buy the hosiery ourselves for cash; but I believe we would get a very small portion of the trade, because, when the people were getting perhaps 1s. in cotton or in other things for an article, we could not afford to give them any more than 9d. or 10d. in cash, and therefore they would not come to us.

3906. But suppose they were to get 9d. or 10d. in cash, would they not be able to buy their cotton goods to greater advantage?-I don't think it. They could not go to the hosiers' shops and buy cotton goods marked at 1s. for anything less than that. They might perhaps get a small discount, but it would be very little.

3907. Does it not appear to you that the practice of paying in kind must raise the prices of the goods that are so given in exchange for hosiery?-There are a great many people both here and throughout the country engaged in the trade; and when the girls have articles to sell, I suppose they find out the shops where they can make the best bargain, and go there, so that there is competition amongst the hosiery merchants as well as in other trades.

3908. Do you think it is the case that the profit charged upon drapery goods in Lerwick is greater than it is in other places, in consequence of the practice of purchasing hosiery with goods?-I am unable to give an opinion upon that, because I cannot say what are the profits upon goods elsewhere; but I believe the difference between our prices and the prices charged by the hosiers for the same class of goods would be found to be very little if it was examined into.

3909. You are not aware that you sell cheaper, than the merchants who purchase hosiery?-I don't think we sell very much cheaper than they do.

3910. Do you think you sell any cheaper?-Not very much.

3911. Did the obligation which was entered into eight years ago by the Burra men refer to the home fishing only, or was there any obligation in it with regard to the Faroe fishing too?-I think it referred to the home fishing chiefly.

3912. And not to the Faroe fishing?-It speaks for itself.

3913. Can you show it to me?-I think I can. I have not seen it for several years, but it must be somewhere in the office. If I can get it, I will be ready to show it.

3914. Is it not the case that the supply of men for the Faroe fishing is now generally sufficient without any such obligation, and that sometimes there is an excess in the supply of men who are willing to go to that fishing?-No; on the contrary, the men are very scarce and it is difficult to get the smacks manned up. I question very much whether we shall be able to get them all manned up this year.

3915. What is the cause of their reluctance to go to that fishing?- They made a bad fishing last year, and they are very unwilling to go again.

3916. Did the liberty money or fines which were imposed in Burra apply at all to tenants refusing to go to the Faroe fishing?-I think not. These fines were imposed with the view of getting the sons to assist their parents who were in debt, and to enable them to pay their rents, by making their earnings come through our hands.

When the people went elsewhere, their earnings did not come through our hands, and we had not that check upon them.

3917. Are you quite certain the fines had nothing to do with the Faroe fishing at all?-It is many years since that I can scarcely say, and the Faroe fishing has not been carried on for many years. Perhaps that attempt was made by us about the time when the Faroe fishing commenced; but it was with the view of keeping the sons at home, and to enable their fathers to remain in the islands and to pay their rents, because the sons usually went away in summer, and remained a burden on their parents during the winter.

3918. Do you remember whether at any time there was a proposal on the part of the Burra islanders to rent the island from the landlord directly?-I heard there was such a proposal.

3919. In what form was the proposal made?-It never came through my hands; but I understand the men wrote to Mr. Mack, in Edinburgh, who acted for the proprietors, offering him a higher rent than we had paid before.

3920. How long ago was that?-I could not condescend on the number of years. It was about the time that our tack was out.

3921. That would be about the time when the obligation you spoke of was suggested or entered into?-I think it was perhaps about the same time.

3922. That offer was refused?-Yes. Mr. Mack knew very well, that while some of the tenants would pay their rent punctually, others, when left to themselves, would have nothing to pay it with when the rent time came round, and of course he would not treat with them. He thought it better to get a fixed sum, payable half-yearly, which the tenants could not guarantee him. The rent of Burra is paid by us half-yearly, one half at Whitsunday and the other half at Martinmas; while the tenants, of course, if they were left at liberty, would only pay once a year.

3923. Is it the usual practice in Shetland to pay rent only once a year?-Yes; to pay it at Martinmas,

3924. That arises from the fact that the tenants generally depend upon the produce of their fishing for the money with which to pay their rent?-Yes; they realize their earnings about that time.

3925. Is it the case that the inducement to your firm to lease Burra in the way you have explained, was mainly for securing to yourselves the service of the fishermen?-We had had a lease of Burra for a very long time, and had transactions with the people all along, and they were due us a very considerable sum. They are not due us so much now, but at that time they were due us a very heavy sum; and if we had given up the tack, much of that money would have been lost. That was one inducement to us to renew our lease.

3926. But did you expect to recoup yourselves merely by the rent payable by the fishermen, or by their being obliged to fish for you?-By their being able to pay their debts through the fishing.

3927. In other words, they would not have been so likely to have continued to fish for you if you had not remained the tacksmen?- If we had not remained the tacksmen, the island would have been let on tack to some one else, and they would have taken our place.

3928. Do you mean that a lease would probably have [Page 96] been given to some other fish-merchant?-Yes; there is no inducement to any one else to take a tack of Burra.

3929. Is that because it is the general practice in Shetland for the landlord or the tacksman to be entitled to receive the fish?-No; but the tack-duty of Burra is so near the gross rental, that there would be no inducement to a person to take the island on tack, and to collect the rents and pay them over to the proprietor.

3930. You say that very few people in Burra engage in the home fishing now?-Yes; comparatively few.

3931. So that the Burra islands cannot be so profitable an investment for your firm as formerly?-It is not.

3932. Does the gross rental from it exceed the tack-duty by any considerable sum?-No; only by a very small sum.

3933. How much?-Unless I had the rental here, I could not speak definitely; but I could show you the gross rental of Burra, and I can tell you the tack-duty afterwards.

3934. Can you do the same with regard to Gossaburgh?-Yes.

3935. Is there any practice in the home fishing of selling the smaller fish without passing them through the books; that is, the small fish caught near the shore at Scalloway, or elsewhere on the coast?-There are haddocks and small fish caught there; and through the winter the men just take them into Scalloway every day as they catch them, and sell them for goods or money as they choose.

3936. These transactions don't pass through your books?-No; we don't see what fish of that kind have been purchased, except from the factor's book at the end of the year. We then see how much fish he has purchased from all quarters.

3937. The factor purchases these fish, and pays for them in such goods as the men may want at the time?-Yes; on the spot.

3938. These are separate transactions, and are settled at once?- Yes.

3939. In that case, is the price for the fish higher or lower than in any of your other dealings with the fishermen?-I think that, within the last few years it has generally been less, where they settled at once, than it came to be at the end of the season, when we came to arrange the men's accounts.

3940. How does that happen?-Because generally at the end of the season the price comes up, and people buying fish on chance are not inclined to give the same price for them which they would give at the end of the season, when they know what they are worth. If we buy fish from the men just now, we cannot tell what they will realize in summer, when they are dry and sent to market.

3941. Then, if the fish-merchant were to pay for all his fish as they were delivered, would that have a tendency to make him more cautious about giving a high price to his fishermen?-I think it would.

3942. Do you think that men curing their own fish would be at a great disadvantage as compared with large curers?-I think they would, because they have no means for curing.

3943. You are aware, I suppose, that that is one of the statements made by the fishermen, when they come forward with complaints about the existing system: that they want to have liberty to cure their own fish, and dispose of them in the market as they please?- I have heard so. For some time, in Dunrossness, the men did cure their own fish, but they never could make them in a marketable state. They were always objectionable, and they never could bring so high a price in the market as fish prepared by regular curers. If each boat's crew were to cure their own fish, they would be at a great disadvantage, because they have not the means of curing them properly: they have no vats, no covers, no mats, and no qualified curers for the purpose. They would likely employ children for that purpose, and members of their own family.

3944. When the men cure their own fish, how is that generally done?-I suppose they cure them in turns, and turn them out on the beach until they are dried. They are often very insufficiently salted, or over-salted; and when they are dry, they are not fit for the market.

3945. In your operations you have a complete apparatus for the purpose?-Yes; and we require qualified men-people who understand the process of curing-to attend to them.

3946. Therefore, in your opinion, a fisherman curing his own fish would realize a much less price for them than you could give him?-Yes; and very often they would be altogether in an unmerchantable state.

3947. You are still factor on the Simbister estate?-Yes.

3948. Part of that estate, in the neighbourhood of Channerwick, was at one time let to Robert Mouat?-Yes.

3949. I believe he had right under his lease to receive delivery of all the fish caught by the tenants?-No. The lease expressly states, that if the fishermen deliver their fish to him, he is bound to pay them the current price of the country. The expression is, 'If the fishermen deliver them;' that is all that is said about it.

3950. Is the lease in your hands?-Yes.

3951. You will show it to me, in order that I may take an excerpt of that clause?-Yes.

3952. Do you remember the case of a John Leask, a fisherman at Channerwick, whom Mouat had threatened to turn out of his farm, and who came to you some time about March 1870 in consequence of that threat?-I don't remember that. I don't know the man; but it is possible he may have come to me. There were two or three of them

who come to me complaining about their treatment by Mouat. I showed them the clause in the tack, and told them that if they fished to him he was bound to pay them the current price of the country, but that I saw nothing in the tack to compel them to deliver their fish to him.

3953. Were you aware that for many years previously the tenants in that district had been under the idea that they were bound to fish for the tacksman?-I had no concern with it before I got the factorship, three years ago. It is only three years since I was appointed factor.

3954. Who was your predecessor?-Mr. Bruce generally settled with the tenants himself, or Mr. Spence.

3955. Is it consistent with your own knowledge that there was such an understanding upon that part of the Simbister estate?-The men told me that Mouat insisted on getting their fish; that is all I know about it.

3956. You don't know of it yourself, except from these applications which were made to you by the men?-No; I had nothing to do with Mouat or his tack previously.

3957. Did you communicate with Mouat in consequence of the statements the fishermen made to you?-I don't remember that I communicated with him in writing, but I may have told him that the men were complaining about being forced to fish to him.

3958. Did you also tell him that he was not entitled to require them to fish to him?-It is quite possible I told him that, but I had very few conversations with him on the subject.

3959. If there was such an understanding among the men, I suppose it would be naturally enough accounted for by the fact that in former times such obligations were usual or universal in Shetland?-Perhaps it would be.

3960. I presume such obligations were universal formerly?-I think that formerly more of the proprietors cured their own fish than is the case now.

3961. But in the old times it was part of the tenant's duty to deliver his fish to his landlord?-Yes.

3962. And I fancy, that although you say fishermen are generally free, yet any complaints that are made about them being bound arise from the remains of that old system still prevailing?- Perhaps so.

3963. There is no doubt that there was such an understanding and such an obligation formerly?-No.

3964. And in one or two cases there is such an obligation still?- Yes; but I think there are very few of the proprietors now who have any personal concern [Page 97] with their fishings. I think there are only two or three of them.

3965. Is Mr Bruce of Sumburgh one of the parties to whom you refer?-Yes.

3966. Does he purchase fish from the tenants on his estate?-He purchases fish over all. I suppose the free men can come to him and offer their fish as well as his own tenants.

3967. Does any other proprietor in Shetland deal in fish in the same way?-I think Mr. Grierson takes some part of his tenants' fish, but only a part.

3968. Are there any others?-I think in Unst, although the proprietors are not actually fish-curers, yet their tenants fish to parties whom they appoint.,

3969. Do you refer to Major Cameron?-Yes; and Edmonstone too. Spence & Co. are the principal fish-curers in Unst. They are lessees of Major Cameron's property, and, I think they receive fish from Mr. Edmonstone's tenants also.

. Is there anything further you wish to say with regard to the fishings?-With reference to Burra, some years ago there was a letter written to Mr. Mack, Edinburgh, who had the management of the property for the Misses Scott, and a copy of it was sent to us without a signature. It was a letter remarking, very strongly on the management of Burra at the time; and as there may be something said about it, I think it better to read it-

'COPY LETTER to Mr. Mack, dated the 5th April 1869.

'James S. Mack, Esq.

'MY DEAR SIR,-Having had occasion to visit Burra officially a few days ago, it was suggested to me to bring under your notice some of those grievances of which the people complain, so that on any renewal of the lease of the Islands taking place, you might be able stipulate more advantageously for the poor people.

'From the statements submitted to me, it would appear-

'1st, That every householder is bound to pay one pound sterling annually for every son who, being a common fisherman, ships in any Faroe-going fishing smack not belonging to the lessees or the agent of the North Sea Company, otherwise he must remove from the island or expel any such son from his home.

'2d, That every tenant is bound to uphold, at his own expense, his house and offices, and whenever required to remove, to leave them in a state of good repair without any indemnification.

'3d, That every fisherman is bound to deliver his fishings to the lessees at such a price as they may be disposed to give. While the price given is never <less> than one shilling per hundredweight <below> the average paid for green fish in the Islands; and in the case of herring, not less than five shillings per cran below the market price is a common thing.

'4th, That all oysters dredged must be delivered to the lessees at Scalloway, under the penalty of expulsion; from house and land; while the price paid in <goods> is one shilling per hundred, other merchants paying in money <two shillings and sixpence> per hundred. To evade this obligation a regular system of deception is practised most offensive to the moral sense, and, as a consequence, few of the oysters go into the

hands of the lessees.

'5th, And that every person on the Islands is bound not to sell any article to a neighbour, under the penalty of instant expulsion from the island. If, for example, you were living on the isle, any fisherman who sold you a tusk or cod incurred the penalty of expulsion. And as the system of barter is common in Shetland, if any woman got in exchange for her hosiery tea or sugar or meal from any merchant-as the lessees purchase no hosiery-she exposes her family to the loss of house and land and expulsion from the island if she is known to sell any of the goods she has received in return for her handiwork to any neighbour, however needful or anxious such neighbour may be to purchase for money the article thus obtained.

'These, as represented to me, form some of the grounds of complaint against the system adopted and enforced by the lessees, and, as grievances, they are felt all the more keenly because of the perfect contrast which is found to exist between the Burra people and surrounding Islanders.

'In Trondra, under the hands of your lessees as factors, the people can sell their labour and their goods to any buyer, so being they pay the stipulated rent.

'In Hildesay, Luija, and Havera the tenants fish, cure, and sell to the proprietor or others at the average price of the county, paying their rents in money.

'The natural result of all this is the production of a feeling of bondage most unfavourable in its influence towards the lessees themselves, and most pernicious in its influence over the tenants under them.

'Not only are the obligations under which the Burra people bend, introducing discord into families, restraining the energies of the fishermen, and tending to a deeply rooted aversion towards the lessees and their service, but producing systems of chicanery and deceit subversive of moral principle and destructive of all efforts in the proper training of the young.

'Having had these matters forced upon my attention, I am constrained to yield to the pressure, and submit them to your consideration-notwithstanding my great personal respect for the lessees-as requested, and that, in the hope that if you can now or hereafter mitigate the evil under which the tenants groan, in connection with the renewal of the lease, should such be contemplated, you will cordially do so, and thus confer upon them a lasting benefit.

'Before closing, I may add that a suggestion was made to submit the case to the consideration of the Fishery Board; but, as the constitution and functions of that board are unknown to me, I have deferred until obtaining any suggestion you may be pleased to make for the future guidance of the poor people who, through me, now solicit your sympathy and aid.

'Having fulfilled my promise to write you, I have to express the hope that this confidential communication may receive your kind consideration, while any suggestion you may make for the improvement of the circumstances of the people will be cordially welcomed by.'

That letter was sent to us to report upon, and we made some notes on it at the time, which I may read also-

'NOTES on a Letter of Complaint addressed to, Mr. Mack, S.S.C., Edinburgh, dated 5th April 1869, as to the Management of the Burra Islands under the present Tack.

'The writer of this letter, if he is stating honestly the reports that he has heard on his visits to Burra, seems to have considered it quite unnecessary to inquire whether they were true or false before committing them to paper; and apparently from a desire to make out a case of oppression, he has been ready to receive all that could help to it without separating the chaff from the wheat.

'The first head is, that every tenant is bound to pay £1 per annum for their sons who do not fish in vessels belonging to the tacksmen, or those of the Fishery Company under their management. In answer to this, it always been felt a great hardship to pay rent year after year for old men who were deeply indebted and earning little or nothing, but who had grown-up sons living, at home in idleness all winter and going out of the Islands to fish to strangers in summer. In order to get them to assist their parents, intimation was given at the commencement of the tack that such a charge would be made; but the result is, nothing has been recovered from them, and several of the Lerwick fishing vessels are manned up year after year with the best fishermen in Burra, and their fathers remain hopelessly in debt. Perhaps Mr Mack's correspondent would say, rather than impose such a condition on the young men, we should roup up their fathers and turn them out of the Islands as paupers, when the sons would be compelled by law to assist them?

'The second charge is, that the tenants are bound to uphold their houses at their own expense. This complaint, unlike the others, is quite correct, but the obligation is not felt by the tenants to be very oppressive. [Page 98] Had the proprietors to pay the expense the case would be different, and this, added to the public burdens, would pretty well exhaust the whole rents. Such things, however, are never considered by would-be philanthropists; and if matters are made easy for the tenants, landlords may starve. Burra is not the only place in Shetland, or out of it, where tenants are bound to uphold their own houses.

'Third, The tenants hold their farms on the express condition that they shall deliver their fish to the factors; but it is quite untrue that the price allowed 'is never <less> than one shilling per hundredweight below the average price paid for green fish in the Islands; and in the case of herring, not less than five shillings per cran below the market price is a common thing.' It is so far from the truth as scarcely to be worth denial; and if the author of this statement had been desirous to get at facts, he could without difficulty have discovered that his informant, was practising a deception on him, and that the Burra people had not this evil to groan under.

'The lessees have no hesitation in referring to the tenants, themselves and to all other parties in the locality to whom the circumstances are known. (See annexed note of the prices paid in Burra and throughout Shetland for the last four years.) As to the obligation on the tenants to deliver their fish to the factors-if they were free to cure and sell as they chose, who would advance them, with boats and fishing materials,

and support their families during the progress of the fishing? and would the proprietors get the rents paid half-yearly as at present? or would they not rather find the principal part of it standing as arrears in their books at the end of the first year of freedom? And in the event of a short fishing or bad crop (both frequent occurrences), without any one to assist them till the return of better seasons, is it not evident, at least to those who know about tenants in fishing districts, that the Burra people would soon be little better than paupers?

'Take the last year as an instance, when the heavy debt due by the tenants to the lessees was increased upwards of £200.

'Mr. Mack's correspondent should suggest a remedy for all these evils, to be inserted in the next lease; or, as he seems to hint that the Fishery Board may be induced to interfere and make things straight now, it might be well to place the Islands under his management for a year or two by way of trial. The lessees could have no objections if the balances due to them were paid.

'The oyster fishing is the fourth grievance, and the statements in it are as little in accordance with facts as the rest. A few years ago, when oysters came to be asked after for export, the scaaps in Burra being of limited extent, an attempt was made to preserve them for old men and others in the quarter who were unable to prosecute the spring fishings; but in the course of a year or two people came from Scalloway and other places and carried them away in boat-loads. Seeing this, the factors told the Burra folks as far as possible to secure the oysters for themselves, and they have since been selling them in large quantities here and there without let or hindrance, and it is said the supply is now about exhausted. The tack conveys right to the whole fishings of the islands; and had the matter been of any importance, the lessees might have interdicted strangers, and limited the fishing for the benefit of the tenants as first intended; but this cause of offence seems to be set at rest now for the remainder of the lease.

'The fifth statement appears to be, that people living in the Islands, not fishing themselves (suppose ministers or the schoolmasters, as these are the only parties in the Islands no way connected with the fishings), cannot get fish to purchase for their own use. This is quite absurd; no such restriction was ever heard of or imagined, either by proprietors; tacksmen, or tenants.

'And next, as to tea sellers, had not the Excise interfered to put down the practice, every other house in Burra would have been a shop in a small way to sell, not only tea, but other goods of a less harmless description that had not always passed through a custom-house. The tacksmen plead guilty to using their best endeavours to assist in shutting up these shops, but they deny that they have ever interfered with the Burra people directly or indirectly in the sale of their cattle, hosiery, or produce of any kind, except fish. Nor have they ever placed a shop in the Islands for sake of the tenants custom, as they might have done, but left them free to sell such produce and obtain their supplies where they liked.

'Trondra is referred to as a free island; but does Mr. Mack's correspondent suppose the people are in better circumstances on that account? And is he aware of

the amount of arrears due to the landlord? the tenants' earnings, in most cases, being spent as fast as they are made. If the tenants in the other islands mentioned are free also, it is not generally understood to be the case, and it happens at this very time two tenants from these <free> islands have taken farms, and are about to remove to the land of bondage-Burra.'

3971. Is it the case that no other shop than yours is allowed in Burra?-Yes.

3972. You say that if shops were allowed there, every other house would be used as a shop, and every person would set up for selling tea and other goods?-Yes. What I referred to there was, that the Burra people were in the habit of bringing home a quantity of uncustomed goods from Faroe, and going round the country and selling them elsewhere. We set our face against that, and endeavoured to put it down.

3973. Has there been a tendency to that in the Faroe fishing?-Not lately; because some of the people were severely punished for it.

3974. But formerly there was a tendency that way?-At first there was a good deal done in that way, but now I don't think there is anything.

3975. You are not aware whether there is any smuggling in the Shetland Islands at present?-Two or three years ago, there were some of the crews severely punished for that, and I don't think there is any smuggling going on now.

3976. That was one of your reasons for prohibiting shops in Burra?-Yes, it was one reason.

3977. But the effect of that prohibition is that the people have to go to Scalloway for goods?-They can go out of the island and get their goods where they like.

3978. Have you information at present from which you are able to state what proportion of the Burra islanders keep accounts with your shop in Scalloway?-Not at present. Their names may be in the books, but they may get very small supplies from us, and they can get supplies from other people as well.

3979. There are other shops in Scalloway?-Yes; there are several other shops there, and the men may take some goods from us and some from others.

3980. You say that now the oyster-beds there are really exhausted?-Yes. Oysters were got in pretty large quantities in Burra for a number of years, but now they are exhausted; they were taken up in such quantities and sent away.

3981. Are there any oysters got at Scalloway?-Very few. You can get a hundred or half a hundred occasionally.

3982. Are the men bound to deliver to your firm what oysters they take up?-No; they have not been doing it.

3983. Then they are free to dispose of the oysters to any person they like?-They are free to dispose of them, but there are so few to get now that it is no object to go in for that.

3984. Have there been no disputes about oysters there?-Not that I know of. The Scalloway people carried away a great many oysters from Burra.

3985. You have prepared a note showing the number of families in Burra, and also the total sums paid in cash to your fishermen at settlement at your other stations besides Whalsay?-Yes. The number of families in Burra is 108. There are 318 males on the island, and 867 females-in all 685. I may mention also that [Page 99] of the Burra men who go to the fishing, in summer in smacks, 19 went in vessels belonging to Hay & Co., and 73, in vessels belonging to other owners. The cash paid to fishermen at settlement at other stations besides Whalsay was as follows 1870, Fetlar & E. Yell, . . £138 19 3 " Dunrossness . . 521 13 111/2 " North Roe . . 539 9 01/2 1871, Fetlar & E. Yell, . . 310 6 61/2 " Dunrossness . . 395 19 3 " North Roe . . 757 17 01/2

In the statement which I gave in, I stated that the arrears of land-rent due on the Simbister estate were £57; but since the statement was prepared, that sum has been lessened by £8, which has been paid.

3986. Do you pay your balances to the Whalsay men by cheques on the Union Bank?-Not altogether. To some extent we pay them in notes and gold and silver.

3987. In 1870, you gave cheques to the amount of in sums of £5 and upwards?-Yes.

3988. Below that sum they would be paid in cash?-Yes. In the past year I gave cheques to the amount of £465.

3989. Some of these men, I suppose, would leave their money at the bank?-I daresay they did.

3990. Is there anything else that occurs to you to state with regard to the fishings?-Nothing.

3991. You are now out of the trade of engaging men for the Greenland whale fishery?-We are just about out of it.

3992. You have intimated to your correspondents in the south that you are not to act for them any longer in that matter?-Yes.

3993. Your commission there was 21/2 per cent. upon the wages and oil-money of each man, and that commission was paid to you by the shipowners?-Yes.

3994. Do you consider that that was an inadequate remuneration for the trouble you had with the men?-Yes. It was not only an inadequate remuneration, but we were supposed to be taking advantage of the men in settling with them, and that has led us to give up the agency. It was thought that we did not actually settle with them in cash, but that we gave them goods for their wages

3995. You have added to your written statement on this subject an abstract of your dealings for the last three years with the men engaged in some of these whaling vessels, which shows that during that period the average amount of wages and oil-money paid annually to each man was £11, 13s. 6d.; the supplies given to the man before sailing and to his family during his absence were on an average £1, 7s. 2d-leaving a balance of £10, 6s. 4d, which was paid in cash?-Yes. That balance was

actually paid to the men in cash, in presence of the marine superintendent, by one of our clerks. Perhaps I may be allowed to refer to the report made by Mr Hamilton to the Board of Trade on this subject, which was communicated to the previous Commissioners on Truck, and which is printed in the appendix to their report.

3996. Have you any explanation to make with regard to that report?-The only explanation I have to make is to contradict publicly the whole statements contained in it; and I hope the result of your examination here will prove to the author of report, and to others, that they should not hastily jump at conclusions, and condemn people unheard.

3997. Do you contradict the whole of the statements in that report, without exception?-Yes, I contradict them publicly, and I say that, they are not in accordance with the facts.

3998. The report says: 'Almost every fisherman in the islands is in debt to some shopkeeper:' is that incorrect?-It is not the case that the whole fishermen in the islands are in debt.

3999. Is it not the case that the majority of the fishermen employed by you are in debt to your shop?-It is not. In the case of Whalsay alone, I paid £1374 to the men when I settled with them. None of them are in debt, and they have usually large sums of money to get.

4000. That is to say, they are not in debt in December when they are settled with?-Yes; and during the next year, if they have occasion to get supplies from the shop while the fishing is going on, they get them, but they are not in debt, because they are getting fish daily; and their account, although not settled, is running in their favour. We would probably be in their debt if we were to settle with them at any time during the season.

4001. But before the spring fishing begins, do they not generally run up an amount of debt at the merchants shops?-Not generally. I think the men generally take money to pay for anything they want.

4002. Is it the case that cash payments at these shops are more frequent about this season of the year, when the men have had their settlements lately over, than they are subsequently?-I think so, because they have money to pay for the articles they buy.

4003. Will the returns made by your shopkeepers of sales at the shops, or the accounts kept with the fishermen, show that?-The shopman's cash-book would show what the daily drawings were.

4004. Do you mean the daily drawings in cash?-Yes, the money.

4005. And you think the daily drawings in cash are probably larger at this season than at other times?-I should think so, because the people have more money in their hands.

4006. Then, if there is any truth in this statement, it must apply, in ordinary seasons, to the period after the fishing has begun?-Yes, it must apply to that; but the

statement Mr. Hamilton makes, as to paying seamen's wages, is utterly untrue.

4007. It is true, I suppose, that agents are employed in Lerwick to secure the services of men for ships in the Greenland fishery?- Yes.

4008. Then the portion of that sentence which, I presume, you deny, is that the agents get little direct profit from their agency?- No; they do get little direct profit-only 21/2 per cent. on the wages and oil-money of the men.

4009. These agents are all shopkeepers, and most of them are proprietors of land themselves, or act land agents for others: is that so?-Yes, that is true.

4010. There are only three or four such agents in Lerwick- yourselves, while you continued to act in that way, Mr. Leask, Mr. Tait who has now retired, and Mr Tulloch, of A. Laurenson & Co.?-Yes; Mr Tait has been succeeded, I believe, by Messrs. Leisk and Sandison. There are no others that I know of.

4011. Mr. Hamilton says: 'The owners merely find the money to pay the wages of the men engaged. The agents manage everything else. The agents are, of course, interested in getting employment for those who are in their debt.' Is it the case, as a rule, that the men engaged for these Greenland voyages have been in debt?- No. It has been so difficult for many years now to get the men forward; that we have been very willing to take any man who would come, without regard to what part of the country he belonged to.

4012. But are the men so engaged frequently in debt to the shopkeeper who engages them?-No. I think you will see that from the copy of the letter which we wrote to one of the shipowners.

4013. Is it not true in point of fact, as stated here, that the agents supply the men's outfits?-We go to the custom-house with the men after they have been engaged, and we pay them their first month's advance in cash, and that first month's advance is repaid us by the owners of the ship. We cannot open an account in our books with any of these men unless we take the risk of the debt, because the terms of their agreement are that when they come back from their voyage, nothing is to be deducted from their wages except that first month's advance, and their monthly note, if they have one.

4014. But, as a matter of fact, are these men supplied with their outfit by the agent who engages them?-The men are quite at liberty to take their money, and get their outfit where they like.

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4015. Still, as a matter of fact, they are supplied with their outfit by the agent, are they not?-No. We have supplied them to a very small extent; the extract I have produced from our books shows the full amount we have supplied them with, not only for their outfit, but for their whole supplies during the season.

4016. Then, during the absence of these men do their families come to your shop frequently for supplies?-We cannot give them any supplies unless they have their monthly note, and if we give them any supplies, then we credit that note. If a man

leaves a monthly note to supply his family during his absence with one-half of his wages, then his family can get supplied to that extent.

4017. You supply them, if they wish, to the amount of that note?- Yes, either cash or in goods. Many of the people, if they are living in the country, take these monthly notes and hand them over to some of their friends in the country, who transmit them to Lerwick and get the money for them.

4018. In that case, these notes are not taken out in the shape of goods from your shop?-No.

4019. Are you aware whether these monthly notes are ever taken out in name of the agents?-It is very possible they may be, when the men want that to be done.

4020. Has that occurred in your dealings with them?-I think so. In some cases we get the monthly notes, and pay the value of them to the families as they become due, either in money or in goods.

4021. Whether is it more frequently in money or in goods that you have paid these notes to their families?-Some of the members of their families come into town with the monthly notes when they are due and they get the money.

4022. Or goods?-Or goods. If they want anything before the monthly note is due, they get goods, but it is very seldom that that is done. However, the result of our transactions with these men appears from the excerpt I have produced, which shows that the advances made did not come to 30s, while at settling we paid the men upwards of £10 each, in cash, taking them as a whole.

4023. When that sum of £10 is paid to them, is there a standing account against them at any of your shops?-No; the men are quite clear. For instance, in the case of the 'Labrador' for the past year, the men's wages and oil-money came, to £221, 7s. 4d., and we had not an account standing against any of them in our books.

4024. Do you state that in all cases referred to in that excerpt from your books, the sums stated as having been paid in cash were paid in full, and that at the time when they were paid there was no account due to your firm by the men?-Yes; there was not one farthing due when these sums were paid.

4025. Because it might very well happen that you had an account against them, although the cash was paid at the time in presence of the superintendent?-I understand what you mean, but the accounts will show that the men were all clear at the date of the payment.

4026. Is that at the date when the final releases were signed?-No. The final release is only signed when they get their second payment of oil-money. The second payment of oil-money is comparatively trifling, only a few shillings to each man; and they have before then been paid up their whole earnings to within 10s. or 15s. or 20s.

4027. Does the abstract account you have given in apply to the state of things at the date of the final discharge of the men?-I think it is taken from our books after the account of each ship was closed, except in the case of 1871, because we had not got their second payment of oil-money for that year, when the excerpt was made.

4028. Are all the accounts closed for 1870?-Yes.

4029. You mean that the men have got payment of the whole of their oil-money, including the second payment, for that year?- Yes; and we have now got the whole of their oil-money for 1871 also.

4030. Has the final release for 1871 be signed?-I suppose so; but I don't settle with the men personally. It is one of our clerks who does so. The part of the report to the Board of Trade which I wish particularly to refer to is this: 'It is true that the Board of Trade rules provide that "the balance to be paid to the man is the balance due on account of his voyage, deducting only such advances and allotments, as shall have been stipulated for in the agreement; and the value of such stores as may have been supplied to him personally during the voyage by the master." But no time is fixed for settlement, and the consequence is that it is the interest of the agent to delay it until he gets the man in debt to him again; and when he does pay to the man the balance of wages due to him before the superintendent, the man has no option but to hand it all back to the agent at once to whom he is indebted in an equal or greater amount; and I need hardly point out that it is clearly most important in the interests of the man, that he should not merely nominally, but actually receive his wages in cash, and be able to spend them as he likes.' That part of the report is not correct.'

4031. Is it not the case that the releases of the seamen are very frequently signed many months after the ship has arrived and discharged her men?-I have explained the reason for that in my statement. The men always go home whenever the ship arrives, and come back to settle as they find it convenient for themselves.

4032. But is it the case that it is often six or eight months afterwards before the settlement is made?-It is the case that the owners don't perhaps send down account of the oil that has been boiled until this time of the year, and sometimes after this time; but we pay the men before then nearly up to what we suppose the amount of oil will be. Any small sum that is left out is sometimes not paid until the ship comes out again in the following year.

4033. The time for engaging men for the Greenland voyage is in February or March?-Yes; in the end of February or beginning of March.

4034. And you state that in your business, as agents, there is no account running with any of these men during the period after the termination of the voyage, and before the last payment of oil-money?-There is no account running with them from the time when they settle finally until they engage again.

4035. Then, at the engagement, a new account is generally opened for the outfit?-No; we have nothing to enter against them when they engage again, but just the money we pay them at the custom-house. We charge them with the month's advance which we pay them there; that is the only entry we have against them. In one or two cases there may be more-perhaps a few shillings; but in the case of the 'Labrador,' which I have already referred to, we had not a sixpence marked against any man in the vessel.

4036. What is the main reason for taking the advance notes in name of the shipping agents?-I suppose the men prefer it, because it is just as convenient for them to hand the advance notes to the shipping agents as to any other one in Lerwick.

4037. But if the advance note is taken in the name of any of the man's friends, that would entitle them to get payment of so much of his wages from the shipping agent?-Yes; but the advance note must be addressed to an agent, because the owners of the ship are here to cash it, and the agent must pay it to somebody, either to the man's wife, or to any other one that she transfers it to.

4038. But what I asked was, whether these advance notes were not taken payable, not to wife, but to the shipping agent, himself?-I think not; it is either to the wife or to some of the man's friends.

4039. I understood you to say that sometimes they were made payable to the shipping agent?-They are payable by the shipping agent. It is the agent who has to pay them.

4040. But you say they are never made payable to him as well as by him, so that he has really the control over them, if they are handed to him?-He has [Page 101] the control over them He advances the money either to the wife or to any person that she sends for it.

4041. But, in point of fact, they are not made payable to him as well as by him?-They are made payable to his order.

4042. Do you say that these notes are not so taken by the shipping agent, that he gets the benefit of them and the control over them, and that the wife has no control over them whatever?-It is quite possible that may be done in some cases, but I cannot say.

4043. But that has not been done in your practice?-I shall send for one of the forms of these notes, and that will explain the matter better to you.

4044. I understand these advance notes and allotment notes are negotiable; at least they are indorsed by the seaman's wife as a receipt?-I suppose when they are brought to the merchant they are indorsed by her, and he pays the value of the note to anybody who brings it.

4045. Can the seaman himself indorse the note beforehand?-In many cases the seamen don't get any of these allotment notes at all, especially on these short voyages to Greenland.

4046. But on a long voyage, does the seaman in point of fact indorse the note?-A married man, I suppose, will take out these advance notes to his family.

4047. And he indorses them?-I think so; but not in every case.

4048. Does he, in some cases, indorse specially to the ship's agent?-Not to my knowledge; but I have not had that matter through my hands lately, and I cannot speak to it with certainty.

4049. Do you not attend to that part of your business yourself?- No; Mr. Goudie, one of our clerks does it.

4050. Then, the contradiction you have made of the statement in the report to the Board of Trade has been made on behalf of your firm?-Yes.

4051. You have no knowledge of the way in which other agents in Lerwick have dealt?-No; but I believe these agents, as well as ourselves, are very glad to get any men they can meet with to engage for the fishing. There is sometimes great difficulty experienced in manning the ships, and we cannot pick and choose.

4052. The commission of 21/2 per, cent. is matter of private bargain between you and the shipowners?-Yes.

4053. So that, if that is an insufficient remuneration, it might by private agreement be increased?-I suppose it might; but if the owners can get people to do their work for 21/2 per cent., they will not increase it.

4054. However, the principal thing you wish to state upon that point is, that at the time when you engage these men for a Greenland voyage, none of them are, in point of fact, in debt to your firm?-None of them. That is stated in one of the letters we wrote to one of the owners in Peterhead.

4055. There have been special regulations issued by the Board of Trade applicable to the discharge of seamen in Orkney and Shetland from the whalers, which are intended to allow a longer period for signing the release?-Yes.

4056. These regulations provide-'(1.) The agreement shall be entered into before the Superintendent of a Mercantile Marine office, and shall show the advance of wages made, and the allotments to be paid during the ship's absence; there shall also be a stipulation in regard to the travelling expenses of the men on their return home, in the event of their being taken past their own island. (2.) The master of the ship shall keep a separate store book for the Shetland and Orkney men, containing a distinct account for each of the men, in which, on the ship's return, he shall show the wages, and estimate the amount of oil and bone money, etc., to which they are respectively entitled; the account to be signed by himself and the seaman whom it concerns, in proof of its accuracy. At the foot of the account he shall state his opinion of the character of the man to enable the agent to prepare the certificate of discharge and character. (3.) When the men are landed the master shall deliver the book to the agent in order that the account of wages etc., may be prepared therefrom; and the balances due to the men shall be paid to them in the presence of the Superintendent at the Mercantile Marine Office, to whom the store book is to be produced by the agent. The balance to be paid to the man is to be the balance due on account of the voyage, deducting only such advances and allotments as shall have been stipulated for in the agreement, and the value of such stores as may have been, supplied to him personally during the voyage by the master'?-It has been found to be impossible to comply with that regulation about settling with the men when they are landed, because the moment they are landed they hurry to their homes, and only come back to Lerwick to settle as they find it convenient for themselves.

4057. And in point of fact the settlement is delayed for weeks?- Yes, for weeks, and sometimes for months.

4058. Are the balances contained in the statement you have produced the balances referred to in the regulation I have read?- They are the actual cash balances due to the men, and the actual amount paid to the men in cash.

4059. The deductions in the second column are supplies made by you in goods?-Yes.

4060. Is it not an infringement of the Merchant Shipping Act of 1864, to supply goods even to that limited extent?-These supplies may have been made on monthly notes; and there is nothing in the Merchant Shipping Act to prevent us from giving credit to men going to Greenland the same as to any person at home, provided they come back and pay us. We know them, and could trust them to come back; but I don't think that, in any case, we have given them any credit.

4061. If you did not give them credit, how did you find it necessary to deduct these supplies?-In that case the supplies may have been given under monthly allotment notes.

4062. What you mean is that the £1, 7s. 2d. which you state as the average of the deductions may have been paid either in cash or in goods?-Yes. I think I have explained that in the paper I have given in.

4063. You say in one of the letters you have quoted, that 'the supplies mentioned in the account consist mostly of meal, given to the men's families to account of their half pay notes, and on which the profits cannot pay cellar rents and servants' wages'?-When a half-pay note not due until the end of the month, and the wife sends in and wants some meal in the meantime, she gets the meal, and we deduct it from the half-pay notes when we pay them.

4064. Then the half-pay notes are not generally paid cash?-They are generally paid in cash, but before they are due we give them goods to account.

4065. Am I to understand that these notes are paid mostly in meal or mostly in cash?-They are paid partly in meal, and rest is paid in money when the notes are due. If a woman has 20s. of a half pay note, she gets perhaps 5s. in meal, and then she gets the rest of the money in full when it is due. The second column in the abstract I have produced, shows the actual goods advanced, and the actual money.

4066. Have you now got one of the forms of the advance note?- Yes [produces it]; that form is addressed to us.

4067. That is to say, you are to pay it?-Yes; and the woman, when she gets the money, signs her name on the back of the note.

4068. Is it not the case sometimes that in the lines issued to Lerwick seamen the order is to pay is in favour of the ship's agent himself?-Not that I know of.

4069. Has there been no indorsation by the seaman or his wife, in any case that you are aware of which was equivalent to an order to pay to the ship's agent

himself?-That could only have had the effect of reserving the agent's claim against the shipowner.

4070. No, it would enable him to retain the money which he would be bound to pay at settlement or at the end of the month when the allotment note became due to the wife or sister, or other relation [Page 102] of the seaman. Have you known any case of that kind?-There may have been such cases, but I have not been aware of them.

4071. The third article of these regulations by the Board of Trade goes on to say-'The superintendent is not to allow any deduction to be made in their account for stores supplied by the agent or by tradesmen to the seaman's family during the seaman's absence, nor is he to permit the insertion in the account of deductions for any transactions in money or goods that may have taken place before the commencement of the voyage.' I suppose that refers to the form of note now shown to me?-Yes. In fact he is not to allow anything to go into the settlement, except what is provided for in the agreement.

4072. Are these supplies, which are stated in the note, not an infringement of that rule of the Board of Trade?-No. As I mentioned already, I suppose the greater part of these supplies have been made on allotment notes.

4073. But although made on the allotment notes, yet they are supplies made by the agent to the seaman's family, and they are deducted from his wages at the end?-Yes; but these allotment notes are provided for to be included in the settlement with the seaman when he returns. They are made a legal claim against his wages.

4074. Does the rule not imply that the allotment notes are to he paid in money?-The man's family can get them either in money or in goods, as they choose. The woman may perhaps not wait until the end of the month to receive her £1, 2s. 6d. she may want a part of it in the early part of the month, or in the middle of the month; and she comes and gets either money or goods, as she chooses; and then at the end of the month she gets the balance.

4075. When she gets the goods in the middle of the month, she gets them on credit?-Yes; and she pays for them out of the £1, 2s. 6d. when she gets her allotment note settled; but I think that has occurred only to a very small extent. I think there are very few of the seamen who take these allotment notes at all. The young men don't require to take them; it is only the married men who require them.

4076. If it is the case that very few take them, then the whole of these supplies are not on allotment notes?-I think a good many of them have been given on allotment notes.

4077. But so far as they were not on allotment notes, in what way were the supplies furnished? Has it been upon accounts opened with the men for their outfit before starting?-I think that has very seldom been the case. They may occasionally get a few shillings worth when they go out; but we take care to give as little credit in that way as possible.

4078. Were the deductions you have stated here [showing] allowed by the superintendent in settling with these seamen?-No. These deductions, as I have said

already, are in the form of allotment notes.

4079. But you have told me that only some of them were in the form of allotment notes; in what way were the rest of the deductions made?-The superintendent does not allow any deductions, unless what are specially mentioned in the agreements. If these men got a few shillings of advance before they went away, it is possible that may have been included, they come back and pay it after the settlement at the custom-house.

4080. Then, this total of £10, 6s. 4d. [showing] paid in cash does not show the amount that was actually handed over in presence of the superintendent?-I think it does, or near about it.

4081. But not altogether to a penny?-Perhaps not so near as that, but I took the book and went over it carefully, and picked out all the cash the men had got, and all the goods, and separated them.

4082. In settling with the men before the superintendent, you are entitled to deduct the amount of allotment notes issued is that so?-Yes; and the first month's advance, and any advances the men may have had on board the vessel during the voyage.

4083. Does the £270, 1s., 7d., mentioned in your abstract of accounts, represent the whole of the deductions that were so allowed by the superintendent?-Perhaps not exactly the whole; I shall send for the book, and it will explain it better.

4084. There may have been something due for supplies furnished in addition to what was allowed by the superintendent, and for which the seaman settled with you after receiving his cash?- Perhaps that may have been so, but I have not been in the habit of settling with the men myself.

4085. Perhaps your clerk, who settled with the men, can explain it better, as he has been in the way of carrying through the transactions?-Yes.

4086. But what I understand you to say is, that you cannot state that sum of £1, 7s. 2d. represents the whole amount of advances which on an average each received from you?-The only thing I can state just now is, that out of an average of £11, 13s. 6d., which each man was entitled to receive each year over a period of three years, we only paid them £1, 7s. 2d. in goods

4087. But you cannot state that that £1, 7s. 2d. all fell under the category of deductions allowed by the regulations of the Board of Trade?-No; not unless I were to go over every man's account, and pick out what had been given to him under allotment notes.

4088. And you cannot state that the sum of £10, 6s. 4d. was the sum which actually passed in cash at the settlement before the superintendent?-It is the actual sum which passed into the men's hands in cash.

4089. Do you say that there was not a larger sum than that which passed between the men and your clerk before the superintendent at settlement, part of which was returned to you afterwards, in payment for supplies?-I don't know about that, because

I have not been in the habit of going up to the custom-house with the men; but I went over the books myself, and I found that £10, 6s. 4d. was the amount in cash which the men got out of the sum of £11, 13s. 6d., in whatever way it was paid to them.

4090. You cannot say whether it was paid before the superintendent or not?-No; I cannot say.

4091. Is there anything else you wish to state?-No; I think everything has been referred to.

Lerwick, January 8, 1872, JANET EXTER, examined.

4092. Where do you live?-At Satter, in Sandwick parish.

4093. Are you in the habit of knitting?-Yes.

4094. For whom?-For Mr. Robert Linklater. I knitted for him first.

4095. Does he supply you with wool?-He gives us worsted to knit.

4096. You don't knit with your own worsted?-No.

4097. What do you knit?-Mostly veils.

4098. How often you come to Lerwick with them?-Generally at the end of every month.

4099. Do you keep an account with Mr. Linklater?-We get no lines, and I have not a pass-book.

4100. Why have you not a pass-book?-Because he thought there was no use giving us a pass-book when he marked all the things down in his own book, and he would not give it.

4101. When you go to him with your veils, how are you paid?- Very poorly. We just get 8d. for a veil.

4102. How is that paid to you-in money or goods?-In goods. I have asked for a payment in money, but he would not give any. He gives us tea for 9d. and 10d. a quarter.

4103. Would you give your veils for less if you could get money for them?-Yes, for a little less.

4104. For how much less?-Not much.

4105. Are you not as well off getting the goods as you got money?-No; I would be better off with the money.

4106. Why? Do you not want to buy the articles [Page 103] which Mr. Linklater sells to you?-No. Sometimes we need a little meal.

4107. Have you no other means of getting meal than from your knitting?-No.

4108. Do you not work out of doors?-We work in the field and in the turnips.

4109. But it is yourself I am speaking of. Do you live with your father and mother?-Yes.

4110. Have they got a bit of ground?-Very little; a peerie (small) bit.

4111. But you think you would be better with money, and you want to buy meal with it?-Yes, I want to buy some meal. I dropped knitting to Mr. Linklater and went to Mr. Sinclair. I asked a little money from him, and I got 2s. or 3s. So far as I saw, there was more justice in him than in Mr. Linklater.

4112. If you were only paid for your knitting in dresses and goods of that sort, what did you do when you wanted to buy meal?-We had to take the goods home, and give the cotton and tea for the meal we wanted.

4113. To whom did you give the cotton and tea?-Just to any person who would give us meal for them.

4114. Is there a shop in your neighbourhood?-Yes.

4115. Have you given goods there in exchange for meal?-Yes, sometimes.

4116. Does the shopkeeper there take your goods from you in that way, in exchange for any articles you want?-Yes, sometimes, when we require anything.

4117. What is his name?-Mr. Gavin Henderson, at Ness, Sandwick.

4118. Is it a common thing for Mr. Henderson to take goods from you?-No.

4119. He generally wants to be paid in money?-Yes.

4120. Is that the only thing you have done with the goods except using them yourself?-No. When I met any person that I could get a little meal from in exchange for them, I have given them for that.

4121. Have you ever given away your goods to any other person than Mr. Henderson for money or meal?-Not very often.

4122. Have you ever done it?-Yes.

4123. To whom have you given them?-Just to any person thereabout.

4124. You have given them to any neighbour who wanted the goods, and happened to have meal?-Yes.

4125. When was that?-It was about two or three years back.

4126. You have not done it for the last two or three years?-No.

4127. How was that? Have you been better off?-Yes, a little; but not much.

4128. You have been getting some money from Mr. Sinclair during the last two or three years?-Yes; a shilling now and then.

4129. And that would help you?-Yes, it helped a little.

4130. How much do you get in a month for your knitting?-I will get a shilling and a sixpence at a time.

4131. But what is the value of your knitting? What are your earnings in a month?-I will make about eight or nine veils in a month; and when they are made of the finest worsted I get 16d. for them.

4132. Then you will be earning 12s. or 13s. in a month?-Yes.

4133. And you will get a shilling of that in cash now and then?- Yes.

4134. Do you spend the rest in dress?-Yes, and cotton.

4135. How much of that will you give away in the course of a year for meal and money?-I could not say.

4136. You will get about £6 or £7 worth of dress in the course of a year: do you require all that for your own use?-No, I don't require it all.

4137. You give some of it to the rest of your family?-Yes.

4138. Is that all you have got to say?-Yes.

Lerwick, January 8, 1872, JANE SANDISON; examined.

4139. You have come in from Sandwick parish to give some evidence about the way in which you are paid for your hosiery?- Yes.

4140. Do you knit for any person in town?-Yes; have knitted for Mr. Robert Linklater for four years.

4141. Do you knit with his wool?-Yes.

4142. And are you paid in goods?-Yes.

4143. Do you ever get money?-No.

4144. Have you ever asked for it?-I asked for it one time, and he said he expected money from me, and not I from him.

4145. That was for goods you were to get?-Yes.

4146. But you gave him hosiery instead of money, and you got his goods?-Yes.

4147. Have you ever disposed of any of the goods you got in that way, in order to provide yourself with provisions or to pay rent?- Yes.

4148. To whom have you sold them?-I have sold them to several persons for oil to see to knit.

4149. Do you burn oil in your lamps?-Yes.

4150. To whom did you sell them for oil?-To several persons.

4151. To neighbours?-Yes.

4152. Tell me anything you gave away in that way?-I have given tea.

4153. How much?-Sometimes two ounces for bottle of oil.

4154. When did you do that last?-Last year.

4155. Did you do it often?-Three times.

4156. Did you ever give away your goods for anything else?- Sometimes we gave them away for wool to make into worsted.

4157. Who did you buy wool from?-From any one that I could get it from.

4158. Give me the names of some of the people from whom you got oil and worsted in exchange for your goods?-I gave some tea to Mitchell Sandison for wool.

4159. Did you ever sell any of your soft goods in that way?-No.

4160. It was always tea?-Yes.

4161. Is it a common thing among the knitters in your quarter to give away tea for anything you want?-Yes; for anything we can get for it.

4162. Did you ever pay for meal with it?-No.

4163. Did you ever pay your rent with it?-No.

4164. Did you ever get money for tea?-No.

4165. It was just oil and wool that you got in exchange for it?- Yes.

Lerwick, January 8, 1872, JANE HALCROW, examined.

4166. You come from Sandwick parish?-Yes; from North Channerwick.

4167. Do you knit for Mr. Robert Linklater with his wool?-Yes.

4168. Are you paid in goods?-Yes,

4169. Did you ever ask for money?-Yes, once.

4170. Did you get it?-No.

4171. What did you want the money for?-I wanted it for several purposes. We might perhaps require to pay for our board if we were staying a night or two in town; and that was the purpose I wanted it for at that time.

4172. Did you want any of it for provisions to take home?-Yes.

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4173. Are you not content to get the goods you want in return for your hosiery?-We are not very well content sometimes.

4174. Why?-Because if we were getting the money, we might make more of it in some other shops.

4175. Did you ever get the money to make more of it?-We never got money from Mr. Linklater.

4176. But did you ever go to Lerwick with money in your pocket, and make more of it than when you came with hosiery?-Yes, often.

4177. What money was that? Had you earned it by working at other things than knitting?-Yes.

4178. How did you make more of it than you would have done by spending it in the hosiery shop?-I went to other shops where there were better articles.

4179. Where did you go?-Sometimes to Mr. George Tait's.

4180. Does he not buy hosiery?-No, he never buys hosiery.

4181. Where else did you go to?-To Mr. Thomas Nicholson.

4182. But he buys hosiery?-Sometimes; if it is very good.

4183. Tell me anything you bought at Mr. Tait's or Mr. Nicholson's which was cheaper than you would have got it for at the shops where you sold your hosiery?-It was only trifling things we bought out of their shops, because we never had money to buy things of great value from them.

4184. What were some of these trifling things?-Perhaps we were requiring neckties, or ribbons, or flowers; we might get them from them, but we scarcely ever went there to buy anything like dresses. I remember once buying a dress at Mr. George Tait's and I got a splendid bargain of it for money.

4185. Did you get it any cheaper than you would have got it from the shops where they buy hosiery?-Yes; he reduced the price because it was to be paid money.

4186. If you had offered money in Mr. Linklater's or Mr. Sinclair's shops; would you not have got the dress as cheap there?-I don't think it.

4187. Have you any reason to know that you would not?-Yes, I have reason to know that, because if we were buying anything out of their shops we would not get any reduction on the price

4188. Even although you were offering money?-Yes.

4189. Have you gone there with money?-Yes, I have gone with money, but very little. I scarcely ever go to their shops with money if I have it.

4190. Have you ever exchanged any of the goods that you got for your knitting?-No, I have never done that.

4191. You have always wanted them for your own use, or for the use of your family?-Yes.

4192. Have you taken goods from other people which they had got in exchange for their hosiery?-No.

4193. Have you known anybody who did so?-No; I cannot say any person who has done it.

4194. Is that all you came here to say?-I think a very proper thing would be that we should have a little money, if not the whole, for our knitting. It would be a good thing if we could get even the half of it in money.

4195. Did you ever try to get one-half in money?-I only asked for money once-it was a very trifling sum, only 6d.-and I was refused it.

4196. Was that when you had sold your knitting to Mr. Linklater?-No; I was knitting to him at that time with his own worsted.

4197. Did you ever sell anything that you had knitted with your own worsted?-Sometimes I would sell a little.

4198. Were you always paid in goods in the same way?-Yes, always in goods.

4199. Did you ever try to get payment of it in money?-No; because they always said they never gave money; so there was no use asking.

Mrs AGNES MALCOMSON or JOHNSTONE, examined.

4200. Do you live with your husband at Victoria Wharf, Lerwick?-Yes.

4201. Do you sometimes knit?-I do. I generally knit for myself and sell what I have made.

4202. To whom do you sell it?-I cannot mention any one of the merchants that I have sold to more than another. I sell it to any one.

4203. Do you sometimes sell to strangers?-I don't do much in that way.

4204. It is to the merchants in Lerwick that you sell principally?- Yes.

4205. And you get payment for your knitting by taking goods in the usual way?-Yes.

4206. Do you sometimes get a little money?-No, I never get any money.

4207. Have you asked for money, and been refused?-Yes, I have asked for money to pay for the dressing of shawls. It is generally half shawls that I knit.

4208. Have you not been able to get money when you asked for it?-I once got 6d. for that purpose, or rather it was thrown at me.

4209. What do you mean by that?-I mean that it was given in that sort of way.

4210. Would you rather be paid in money than in goods for your knitting?-Yes, much rather.

4211. If you could get money, would you be content to take a rather lower price for your work?-I would indeed.

4212. What is the price of the half shawls you knit?-They vary in price according to the quality of them.

4213. What is the ordinary price you get?-I have got 28s. for a half shawl, and I have got from that down to as low as 12s.

4214. Suppose you were selling a shawl for 16s. in goods, would you be content to take 14s. if you were paid for it in cash?-Yes, I would be quite content to do with that.

4215. Why?-Because I would be able to make more of the 14s. in cash than of the 16s. in goods.

4216. How would you do that?-I would go to the ready money shops, as we call them; and I would do as much with my 14s. in cash as I would do with my 16s. in goods.

4217. Where would you go in Lerwick to make as much of 14s. in cash as the 16s. worth of goods which you would get in one of the other shops?-I don't like to mention the names of these shops publicly, but I will give them privately. [Witness gives the names of two shops.]

4218. Are there more shops than one where you could do that?- Yes; there is one shop especially, but there are others also where I could make as much of 14s. as I could of 16s. in goods.

4219. Have you tried that often?-Not very often, because I have not had it in my power; but when I could do it I tried it.

4220. Have you sometimes, when you had ready money, gone to such a shop as Messrs. Hay & Co.'s?- Not very often.

4221. Have you ever gone there?-Long ago, when I was young, I went there very often, but I have not gone for many years.

4222. Then you cannot tell whether you could make more of your 14s. at a shop like that, than you could at Mr Linklater's or Mr Sinclair's?-I think I would make more in Messrs. Hay's if I had the cash than I would in Mr. Linklater's.

4223. Would you often find it convenient to have the money with which to buy provisions?-Yes, a person like me who has a family would often find it to be convenient. Those of us who have our husbands earnings to live upon are not limited to that; but I have to find the most part of the clothing out of my knitting, or out of my other industry.

4224. Do you employ your time in other ways as well as in knitting?-Yes. I keep a lodger occasionally. I have two or three children at school, and a [Page 105] baby at home to attend to, besides sometimes one, and sometimes two lodgers.

4225. And it would be handy for you to have the money with which to pay school fees?-Yes.

4226. Have you ever been obliged to exchange the goods you got for money for other things you were more in want of?-No; I have never been so hard pushed as that, but I know some people who have.

4227. Were these acquaintances of your own?-Yes; I know them quite well.

4228. Have you ever taken goods from them, and given them money or provisions in exchange?-Yes; I have given a few groceries occasionally, but very few. I have also bought groceries from a knitter, such as tea, which they had taken out in exchange for their work.

4229. How did you pay for that? Did you give the woman money for it?-Yes, I gave her money to help her through for a time.

4230. What was she to do with the money?-That was no business of mine; I don't know.

4231. Did she not tell you what she was to do with it?-No; she did not say, and I did not ask.

4232. Did she come and ask you to take the tea off her hands?- Yes.

4233. Who was that?-I will give the name privately. There was more than one of them. [Witness gives two names.]

4234. Then you think it would be better for the knitters that they should be paid in cash?-Yes, it would be better for all the Lerwick knitters especially.

4235. Why for the Lerwick knitters especially?-Because they are most dependent upon their knitting, especially in the winter season.

Lerwick, January 8, 1872, ROBERT MOUAT, examined.

4236. You are a blacksmith at Olnafirth Voe?-Yes.

4237. You get the principal part of your work from Messrs. Adie, and the fishermen and tenants in that district?-Yes.

4238. In dealing with Messrs. Adie, do you run an account with them?-No; I generally pay in cash for what I get in the shop.

4239. Are you aware whether the prices that you pay in cash are the same as are paid by the fishermen in the neighbourhood?-I am not quite sure about that, but I suppose so.

4240. Can you tell me the prices of any of the articles which you get from their shop? For instance, what do you pay for meal?- The meal that Messrs. Adie sell now is 1s. 5d. per peck, whereas I can get the same meal in Lerwick for 1s. 2d. now. Five months ago, when I lived in Lerwick, I could get it for 1s. 3d.

4241. What do you pay for tea?-There are three kinds of tea; we pay about 3s. 4d. per pound for one kind, about 4s. for another, and I think 3s. is about the lowest.

4242. Is there any other article that you get in any quantity in Messrs. Adie's shop?-I think these are the principal articles we get there.

4243. Do you deal for soft goods there?-A little.

4244. For boots?-No; I have not gone there for boots.

4245. What kind of soft goods do you get?-Winceys and cottons.

4246. Can you tell the prices which are charged for these things, compared with what you would get them for in Lerwick?-No.

4247. Is it commonly supposed that there is more than one price for goods at that shop? Have you heard the fishermen who settle up only once a year, complain that you get your goods cheaper than they did?-I have not heard them say so. It is not long since I went to that place, and I am not very well acquainted with the fishermen there yet.

4248. Where were you before?-I was born in Northmavine, and I was connected with the fishing there.

4249. How long is it since you ceased to fish there?-About fifteen years ago. After leaving Northmavine I came to Lerwick.

4250. Do the fishermen at Voe run an account at the store, which is settled at the end of the fishing season?-I think so.

4251. What reason have you for supposing that? Have they told you so?-They have not told me, but I have been aware of such cases since I went there.

4252. Does that mode of settlement affect you in your trade?-It affects me in this way, that I get a little more custom from the fishermen about the time when they settle, than I do during the rest of the year.

4253. Is that because they have money to pay you with?-Yes.

4254. Do you not give them credit in the rest of the year if they have work to do?-I give them some credit; but I have only been five months there.

<Adjourned>.

Lerwick: Tuesday, January 9, 1872. <Present>-Mr. Guthrie.

WILLIAM GOUDIE, examined.

4255. You are a fisherman at Toab, in Dunrossness, on the property of Mr. Bruce of Sumburgh?-I am.

4256. Are you under any obligation, by the terms on which you hold your land, to fish for any particular fish merchant?-Yes; we are under an obligation to fish for Mr. Bruce, younger of Sumburgh.

4257. Is that obligation part of a verbal contract or lease which you have with him?-It is generally known that we must not break that rule.

4258. You have no leases on the Sumburgh estate?-No; but we had an offer of a lease. The offer I had is here. [Produces paper.]

4259. The document you hand in is a printed copy of 'Rules for the better management of the Sumburgh estate?'-Yes.

4260. When did you get it?-Last year, at settlement, so far as I remember. That would be in the spring of 1871.

4261. When is your settling time?-There is not always one settling time. Some years it is later, and some years earlier.

4262. Have you settled this year yet?-No.

4263. Was anything said to you about that paper when it was handed to you?-No; it was just handed over to me in Mr. Bruce's office.

4264. Have you signed any copy of these rules?-No.

4265. You have not accepted them as binding upon you?-No.

4266. Do you prefer to continue to hold your land year by year?- No; we should like a lease.

4267. Have you any objection to these rules?-We [Page 106] thought they were not altogether so much on our side of the leaf, as we say, as we should like.

4268. You are not going to accept them?-I don't believe we shall.

4269. But under your present tenure, as you hold your land at present, you say you are bound to deliver all your fish to young Mr. Bruce?-Yes; the fresh fish.

4270. In what way are you so bound? Did you agree to any obligation of that kind?-No; but before I became a tenant, the rule had been issued that all his tenants had to give their fish to him in a fresh state.

4271. When did you become a tenant?-About five or six years ago; and the rule was in force before I came. I have broken the rule very little so that I have not been called in question.

4272. But you took your land knowing that that was a condition of your having it?-Yes.

4273. Have you had to pay any fines for delivering any of your fish to other parties?-No, I have paid none.

4274. Do you understand that such fines are to be levied if you fail to deliver your fish to Mr. Bruce?-I have not heard of any fines; but it has been reported that the tenants would be warned if they did so. I have heard that reported publicly: that they would be warned, or might be warned, on that account.

4275. Did you agree, when taking your lease that you would be liable to pay a fine if you delivered your fish to any other merchant?-No, I was never called upon to agree to that; but it was generally known that we had to give all our fish to him, fresh.

4276. Who told you that you were to give your fish to him?-That was known publicly all over the district before I became a tenant. I understood from my father and brothers and neighbours that they had had to do that, and I became a tenant on the same terms.

4277. Were your father and brothers tenants on the Sumburgh estate before you?-Yes; before I had land from Mr. Bruce.

4278. Before you took the land, were you living on the estate?-I had lived on the estate, for twenty-five years. I was born and brought up on it; then I was absent for eleven years, and then I came back to it. It was during the time I was absent that this rule came into force.

4279. Is there any obligation upon the tenants there to dispose of their cattle or other produce to any particular person?-Not so far as I know.

4280. There is no obligation upon them at all, except as to fish?- Not so far as I know.

4281. How are you paid for your fish?-We are paid so much per hundredweight of fresh fish, just as the price may be yearly. It is not always the same price.

4282. But there is one price for the whole fish of the year?-Yes, for the same kind of fish. There is one price for ling, and one price for saith.

4283. That price is fixed when?-Nearly the time when we settle. We don't know exactly what price we are to get until about that time.

4284. When is that?-It is not always in one month of the year. It has sometimes been as late as March before we settled for the fish we had caught in the previous spring. Sometimes it may have been a month earlier.

4285. Has it ever been earlier than February?-Not so far as I remember.

4286. When were the last of the fish delivered that were settled for at one of these settlements?-Last year, so far as I know, Mr. Bruce settled up for all the fish that had been weighed to him up to the time of the settlement,; at least, most of it was settled for then.

4287. That includes the small fish you catch in winter?-Yes.

4288. Are you bound to deliver them to him, the same as the large fish you get in summer?-Yes.

4289. Then it is both the haaf fishing you are speaking of just now and the small fishing in winter?-Yes. All the fish we catch where I live are ling, cod, tusk, and saith.

4290. But the fishing that you go to in summer is what you call the haaf fishing, or the summer fishing?-Yes; in a sense it is the haaf fishing, though the saith fishing is with us properly the haaf fishing. Some go farther off in bigger boats and with longer lines, and fish for ling and cod; while there are others, in smaller boats and nearer the shore, pursuing the saith fishing. That is the only difference between the kinds of fishing with us.

4291. But the obligation and the settlement for the price of the fish that you have been speaking of applies to both the haaf fishing and the fishing in the smaller boats near the shore?-It applies to all the fishing.

4292. There is no Faroe fishing there?-Some of the men go to it.

4293. But Mr. Bruce does not fit out boats for the Faroe fishing?- Not so far as I know.

4294. And you are under no obligation to him with regard to it?- No.

4295. You say you don't know of any case of fines being imposed for delivering fish to other merchants?-There is no case of that kind that I remember of.

4296. Do you know of any increase of rent being imposed upon that estate in consequence of liberty being given to fish for other merchants?-No. There was liberty asked and granted at one time, before most of those who are here were able to fish. That was under old Mr. Bruce.

4297. How long ago was that?-I don't remember the time. It was when I was a boy. Some of the other witnesses may know about it.

4298. Are you under any obligation to buy your goods from Mr. Bruce's shop?-Not strictly speaking.

4299. What do you mean by 'not strictly speaking?'-In one sense we are not bound, yet in another sense we are bound. There is no rule issued out that we must purchase our goods from there; but as we fish for Mr. Bruce, and have no ready money, we can hardly expect to run accounts with those who have no profit from us. That confines many of us to purchase our goods from his shop.

4300. Are there other stores in the neighbourhood from which you could get your supplies as good and as cheap?-Yes. Messrs. Hay & Co. have a store near us. Some things might not be equally good, but there are other things there which are as good and as cheap.

4301. What other stores are there in your neighbourhood?-There is no store exactly near us until we come to Mr. Gavin Henderson's.

4302. How far is his shop from your place?-It is above a mile.

4303. Is Messrs. Hay's within a mile?-Yes, it is less than that.

4304. Are there fishermen in the neighbourhood of Mr. Henderson's shop, and living on Mr. Bruce's estate?-Mr. Henderson's shop is not on Mr. Bruce's property.

4305. Has he no fishermen living beyond Henderson's shop?- There are some nearly as far north on the east side, but not so far north on the west side. Mr. Bruce's property extends a little farther north on the east side than on the west side of the island, and Mr. Henderson's place is on the west side.

4306. You live on the west side of Dunrossness?-Yes, rather; but we are on the south point, so it does not much matter.

4307. But are fishermen who live nearer to Mr. Henderson's store virtually bound, in the same way as you are to deal at Mr. Bruce's store?-The whole of Mr. Bruce's tenants are on equal terms,-all in equal bondage.

4308. But are there men for whom it would be more convenient to deal at Henderson's store, as they live nearer to it?-Yes.

4309. Are they in the habit of dealing at Mr. Bruce's store for the reasons you have stated?-So far as I know, they are.

4310. The same reason of a want of credit elsewhere, [Page 107] would apply to them as to you, and compel them to go to Mr. Bruce's store?-I don't say that they don't have credit; but we cannot expect to run a heavy account with a man who has no profit from us, when we are uncertain whether we will be able to clear that account or not. Therefore, as a rule, we do not run heavy accounts for such things as meal, for instance, when our crops are a failure, with any man except Mr. Bruce.

4311. That would be just as true of a man who was two miles nearer to Henderson's store than to Mr. Bruce's?-Yes.

4312. And for that reason he may find it necessary, and probably does find it necessary, to go to Mr. Bruce's store, and pass Henderson's, although it is much nearer?-Yes, he has that to do.

4313. Are you satisfied with the quality and the price of the articles which are sold at Mr. Bruce's store?-With the qualities we have no reason to grumble; with the prices we do.

4314. Is that a general feeling in the district?-It is over all, so far as I know.

4315. Have you compared the prices of any particular articles at that store with what you could get them for elsewhere?-I have compared some of them,-not many. For instance, I have tried to compare meal, to see what I lost by having it from Mr. Bruce's shop instead of from other places.

4316. What conclusion did you come to with regard to that?-I concluded in my own mind that the difference was not below 3s. on the boll of meal. It might be more, but I don't think it was less, in this way, that we have our meal weighed to us, not always, but generally, as 112 lbs. to the quarter boll.

4317. Of which store are you now speaking?-The store at Grutness, on Mr. Bruce's property. The meal is weighed at 32 lbs. to the lispund or quarter boll. Mr. Irvine, the storekeeper, told me there was a difference made when the lispunds and half-lispunds and pecks were summed up. I asked him whether there was a difference in the price between that and 35 lbs. to the quarter boll, and he said there was a difference; but I never knew what it was.

4318. Are you speaking just now of a difference in weight?- There is a difference in weight, besides the difference in price. He said he made a difference in the price on account of the short weight, but I never knew what that difference was.

4319. In what quantities do you buy your meal at Grutness store?-Sometimes in a boll, and sometimes in half a boll. Many of the men seldom get a boll, but take their meal in quarter bolls, and sometimes in an eighth of a boll, that is a peck, or 8 lbs.

4320. Is the boll you are speaking of the same as the boll by which you would buy in Lerwick, or at Hay's or at Henderson's shop?- When we get a boll unseparated, as it comes home, it is just the same, so far as I know; but when it is weighed out, 32 lbs. to the quarter boll, we are always under the impression that we lose on weight.

4321. How is that?-I cannot tell how it is.

4322. Why should there be a loss on weight if the meal is weighed out to you?-It is 32 lbs. to the quarter boll there, while in other places it is 35 lbs.

4323. Where is it 35 lbs?-In Lerwick, and, so far as I know, in Messrs. Hay's, at Dunrossness.

4324. Is the statement you are making just now, that you understand you get only 32 lbs. to the quarter boll at Grutness, while at other places you would get 35 lbs. to

the quarter boll?- Yes, I make that statement; but I also say that Mr. Irvine said there was a little difference made in the price for that. He said, that when it was summed up, so many lispunds being put into the boll, there was a difference made on the price to cover the difference between 32 and 35 lbs. to the quarter boll; but I never knew what that difference was.

4325. What is the price charged at Grutness for quarter boll of 32 lbs. of meal?-It is not always one price.

4326. What is it just now?-I don't know. I only had one boll last year, and he could not tell me the price of it. I never knew the price of his meal until a neighbour who settled with him before me came back; and then I tried to enter the price of my meal according to what that neighbour said he had paid for it at settlement.

4327. Then, in point of fact, you don't know anything about the price of meal there?-He tells us the price of it when we settle.

4328. But you have had no settlement this year yet?-No.

4329. Had you a settlement last year, in the course of which you became acquainted with the price of meal?-Yes.

4330. Was it charged at the same rate throughout the year previous to your last settlement?-Yes; one year's meal is always one price.

4331. Is there never a variation in the price of meal during the year to which the settlement applies?-Not so far as I have known.

4332. Can you tell the price at which you settled for your meal at last settlement?-I don't remember exactly, but there are men present who can tell that.

4333. Have you got any account of your last settlement?-I have an account, but, not knowing that it would be called for or required, it slipped past me.

4334. Were you not cited to bring all accounts, receipts, and pass-books?-Yes. I made a careful search for that account, but I could not find it. I have some accounts here, but I could never keep an exact account of how I stood with the shop, because I did not know the prices of the goods until the time came for settlement, or until I heard the prices from a neighbour who had been settled with. I then tried to enter the value of my goods, and to post up my account, before I appeared at the settlement; but when an unlearned man like me posts up his account in that way, he has but a poor chance.

4335. But don't you get an account of your dealings at the shop at the time when you are settled with?-We don't get a copy of our shop account.

4336. Do none of the men get a copy of their account at that time?-I cannot speak for others.

4337. Have you never had a pass-book?-No.

4338. Have you never asked for one?-Not so far as I remember.

4339. Then you have perfect reliance on the honesty of those who act for Mr. Bruce in his shop?-Not exactly. I mark down the articles myself which I receive, and I have compared that account with Mr. Bruce to see if the same articles were in his account when we settled. I could not until then, or until I had heard from a neighbour a day or two before what he had paid, enter the value of my articles; but I have compared the articles themselves with him, and found the accounts run pretty straight.

4340. You have some accounts relating to previous years with you? Let me see one of them as a specimen?-[Produces small note-book]

4341. Is this account made up by yourself?-It is account kept for my own satisfaction, to let me know whether there has been anything marked against me which I have not had.

4342. This is only a memorandum: was it taken at the time when the goods were got, or was it written up from memory?-When I came home from his shop to my own house, after I had received the goods, I marked them down. I had not the book with me when I received the goods from him; but I generally mark my account after I come home, or a little time after I get to my own house. But I do not receive any copy of an account from him of his own handiwork.

4343. Then that memorandum is merely a private note of your own, made as you got the articles?-Yes.

4344. It does not contain the prices?-No; I did not know the prices when I made those entries. I put the prices against some of them when I settled, and some of them by learning the prices from neighbours when they settled, while for some articles they told me the prices when I got them.

4345. Did you find that the quantities marked in [Page 108] your private memorandum were the same as those charged against you at the shop?-Pretty nearly. There was no difference worth mentioning.

4346. What opportunity had you of comparing them? Was the account at the shop read over to you, or did you read it yourself?- I read over what I had marked down, and he saw if it was the same as what he had. When I come in to settle, Mr. Irvine asks me, 'Have you an account, William?'-I say, 'Yes,' and he says, 'Will you read it over?'-I have asked him to read the account which was in his book, but he told me to read mine. When I read my account, he says, 'Yes, yes, yes,' checking off the articles as I mention them. The last time I read over my account in this way, there was one peck of meal entered against me which was not in my own. I said I would not swear I was right, and he said he would not swear he was right.

4347. In what way are you dissatisfied with the meal which you get at Grutness?-It is 3s. a boll dearer than we can get it elsewhere, because I have compared one year's account, which I have in this memorandum-book, with the market price in Lerwick, and I find that I am inside the limits of difference when I say that it is 3s. a boll dearer at least.

4348. I see that this memorandum-book of yours contains an account for several years back?-Yes.

4349. You get the prices for the goods at the time of settlement, and mark them in your memorandum-book at the time?-Yes; or from a neighbour who had settled before me, and who knew the price of his meal.

4350. Were the whole of these entries in your memorandum-book made about the time of settlement when the thing was fresh in your memory?-Yes, I could not have made them before because I did not know the prices until then.

4351. But it was done at the time or shortly thereafter, when you remembered the prices which were charged against you at settlement?-Yes.

4352. For what year is this account [showing]?-I think for 1869.

4353. The goods were supplied in 1868 and settled for in 1869?- Yes; about February or March 1869. I cannot say to a month.

4354. And you have compared the note of prices there with the prices in the books of a merchant in Lerwick for the same time?- Yes; at least he said his books were for the same time. I looked at my book and he looked in his, and he told me what the difference was. The merchant was Mr. John Leslie, Lerwick.

4355. Was it only meal that you compared in that way?-Nothing else. I am not sure of the barley meal; but I compared the oatmeal with him.

4356. I see from the book that during that year you got 61/2 lispunds of oatmeal which are all charged at 7s. a lispund?-Yes.

4357. When did you make your comparison with Mr. Leslie?- Last night.

4358. Is there any other article you get at the store which you think could be got cheaper elsewhere?-Yes; but I could not prove these things so distinctly, as I have not compared them.

4359. What articles are there that you have that belief about?- Mostly everything.

4360. In the obligation which you understand you are under to deliver your fish to Mr. Bruce, are your sons and the other members of your family included?-If they fish while living on his property, they must fish to him.

4361. Have you known any cases of tenants being challenged because their sons sold their fish to other parties than Mr. Bruce?-There are no cases of that kind which I can distinctly bring before you.

4362. Is there anything else you wish to state with regard to the way in which matters are conducted in the fishing trade?-No; but if I have liberty here to say anything in regard to Mr. Bruce himself, I should like to be allowed to say a word. Mr. Bruce has dealt with me and many other fishermen in a most honourable and gentlemanly way. He has helped us when could not help ourselves: whether he was in the knowledge that he would profit by it or not, is not for me to say; but he has often helped us when we required it.

4363. Do you think that under the present system of dealing you have the advantage in a bad season?-I believe we have in a very bad season.

4364. If you were not obliged to deliver your fish to the landlord, I suppose he in turn would not be so ready to advance you supplies from his store when you require them and are not able to pay for them?-We believe so.

4365. Is it common for fishermen in that district to be considerably in debt at the store after a bad season?-Yes, after a bad season.

4366. Do you generally get a balance in cash at settlement time, or is it often the case that by that time you have got the whole value of your fish paid to you in goods?-Some men have usually a good bit of money to take, while others have not much, just as they have had accounts at the shop, or have had money of their own with which they could purchase goods elsewhere. Some of them may have almost the whole value of their fishing to take in cash at settlement, while others who have families to provide for, and little land, and lean crops, have often very little to get, and are very often in the landlord's debt. However, in an ordinary year, they are not back much. At the present time, so far as I know, the bulk of the men are clear, and most of them, I believe, would have money to get.

4367. Are your boys obliged to act as beach boys to Mr. Bruce's curers?-Yes.

4368. Is that part of the obligation under which you hold your land?-I did not know that by experience until last year.

4369. How did you know it then?-My boy had the offer of a certain sum to work to another man; and when I told Mr. Irvine and Mr. Bruce, they were very angry that I should have done such a thing. Therefore, for fear I should be turned off, I did not allow my boy to take the wages which he had been offered, but kept him at home, and told Mr. Irvine and Mr. Bruce that I would keep him. I said I know I must be obedient, and my boy will work for you if you want him.

4370. Where did that conversation take place between you and Mr. Bruce and Mr. Irvine?-In Mr. Bruce's office,-the month or the day of the month I cannot state.

4371. Were you sent for, or were you there to settle?-It was before we settled,-perhaps in January.

4372. Were you sent for about it?-No; I wished to know if my boy should take the wages that he had been offered.

4373. Why did you wish to know that?-Because I did not expect they would give me the same amount of wages if he acted as a beach boy. At the same time, they do not pay the boys ill; they pay them tolerably well.

4374. But why did you go to see them? Had you been told before that your boy ought not to engage except to them?-I had known that.

4375. How did you know it?-It is publicly known that the proprietor will want the boys of the tenantry to work for him.

4376. Had your boy been engaged before then?-He had wrought as a beach boy the previous year.

4377. By whom had he been offered a higher wage in that month of January?-By Messrs. Hay's man at Dunrossness.

4378. What was he to work at?-He was to work among the fish at the livers or oil, as a beach boy to Messrs. Hay.

4379. What wages was he offered for that?-10s. for the season.

4380. When you got that offer, did you go to Mr. Bruce's office to see about it?-Not immediately; it was a while after.

4381. Had you any communication from Mr. Bruce or Mr. Irvine which led you to go to them about it?-No; but I knew that I was not safe to let him go to Messrs. Hay without telling them about it. The reason why I knew that was, because there had been a boy agreed by a man I was fishing with to go to the [Page 109] fishing, but the boy was kept back from the fishing, and the man had to look out for another boy. We had two boys and two of ourselves to make up our boat's crew; and the boy that my fellow-fisherman told me he had agreed with was kept back, and he had to go and search the parish for another to fill his place.

4382. Are cases of that kind common in the district?-Not very common, but they do happen sometimes.

4383. When you went to Mr. Bruce about that matter, did you tell him your boy had received an offer from Messrs. Hay & Co?- Yes.

4384. What was said to you?-I am scarcely prepared to state in public what was said to me.

4385. You are bound to state the truth.-I don't mind stating the truth; and if I have to go for the truth, let me go. Mr. Bruce said he did not believe that my boy had got that offer, and he was somewhat angry. I dreaded the consequences, because I might have no shelter if I went contradictory to his will, and I did not know where to go if I should be turned off.

4386. But Mr. Bruce only said he did not believe you: that was all he said?-Yes.

4387. How did he show his anger?-I saw it in his face, and I knew it by his voice and tone.

4388. Did he say anything to you about the boy?-He just said in an angry tone what I have stated. He said he did not believe he had got any such offer, and that it was all a fiction to pull money out of him.

4389. Did he say that you should not allow your boy to go?-No, he did not say that.

4390. What else did he say?-I remember nothing more that I could state.

4391. What was the end of it?-I told him I would not allow my boy to work to another man, but that while I was a tenant I had to be obedient, and I was determined to be obedient. There was no use for being troublesome and disobedient if I wished to

remain a tenant, and I did not allow my boy to go until I settled. I then asked them calmly if they wanted my boy. Mr. Irvine said 'Have you not agreed your boy to another party?' I said, 'No; I have kept my word that he should not work for any other man if you required him, seeing I am a tenant.' They then agreed my boy, and he worked for Mr. Bruce that year.

4392. What wages did he get?-He has not been settled with yet. I said it was perhaps better for them to state a certain wage for him; and Mr. Bruce said that he would not have less than £3, but he did not say how much more.

4393. When a boy acts as a beach boy in that way, how are his wages paid?-Generally the boy's wages are fixed before he begins to work, but Mr. Bruce does not fix their wages until they have wrought for a season. Then the factor sees how they have wrought, and what he thinks they are worth. That, I know, has been done.

4394. But how are they paid? Is it in goods or in money?-If they don't take goods from the shop, they are paid in money at settlement.

4395. They can either take goods in their own names at the shop, or they can be paid in money at the settling time?-Yes.

4396. Is it usually the case that a separate account is opened in name of a beach boy?-Yes.

4397. What is the usual age of a beach boy?-From 12 to 14 or 15, and so on.

4398. Do you know whether, at the time of settlement, a boy has usually any balance to receive in cash?-I should think that in general they have something.4399. But is it not the practice that an account is run, and the greater part of the wages is really settled for in goods?-I could not state that exactly; because my own boy wrought to them, and he had next to nothing from them. He received his wages in money at the settlement without a grumble and without a gloom.

4400. Had he no account at all?-I think he had a pocket knife.

4401. Are the wages of a beach boy generally handed over to his parents?-So far as I know, that depends partly on the boy. Generally his wages do very little more than purchase clothes for him, and anything else he may require.

4402. Then generally the balance against him will amount to nearly the whole amount of his wages, and there will be little to get out?-I should think so; but I cannot speak positively on that point.

4403. You do not know that from your own experience?-No.

4404. Is it usual for beach boys to have got more goods supplied to them during the season than the amount of their wages at settlement?-I can say nothing about that.

4405. Have you had anything to do with taking whales on the coast?-Yes, with driving whales ashore.

4406. Have the fishermen in your quarter anything to complain of about that?-When we get the whales flinched, and the blubber brought up above high water mark, it is sold, and the third part of the money is taken by the proprietor.

4407. Do you think the fishermen are entitled to get the whole?- We think so.

4408. Who sells the oil?-There is a note sent up to Lerwick to publish the sale. An auctioneer comes down and it is generally sold on the spot, and the third part of the money is deducted.

4409. Who receives the money in the first instance? Is it the auctioneer?-I don't know; but I should say it is the landlord.

4410. He accounts to the fishermen who are interested for their share of the proceeds?-Yes.

4411. Is there any obligation to spend the money you get on these occasions in the landlord's store?-No.

4412. You can do as you like with it?-Yes.

4413. Is there anything else you have got to say?-We all believe, so far as I am aware, that liberty alone will never remedy our case. Even suppose we had liberty, yet if we have no lease of our land, the landlord can do with the land as he pleases, and render our case worse than before.

4414. Then it is a lease that you want?-Yes, a lease of a proper kind; but if the land rent can be raised to any figure the landlord thinks proper, what can a lease do for us, or what can liberty do for us. It cannot remedy our case.

4415. Then what you want is, that the landlord may be prevented from raising his rent, and from turning you out of your farms?- From raising it above measure, or above its real value. Another thing is, that I can be turned out of my land at forty days warning, after I have prepared it for winter.

4416. If you make a bargain for a lease for a certain number of years, as they do in Scotland, then you could not be turned out until that lease expired?-That is what we need, and the land let at a reasonable figure.

4417. But that must depend upon the terms of your own contract?-That may be; but the landlord sees plainly that he may not have the power of the fishing; and if he has full power to rent the land as he pleases, and can lay on the land what should come from the fishing, then that would render our case more desperate still.

4418. Do you mean that you have to pay part of your land rent from the fishing?-Our rents depend solely on the fishing. Some men may have a cow or a horse to sell, to help them to pay their rent; while there may be ten who would have nothing of the kind to sell, except their fish. On Mr. Bruce's property, so far as I am aware, the bulk of the tenants have to pay their rents from their fishing.

4419. Do you mean that your farm does not pay its own rent from the crops which it yields?-Yes; we cannot afford to sell any crop with which to pay our rent. If we were to sell the crop for that purpose, we would be deprived of what we have to live upon.

The farms are very small, and we require the whole of the crops for our own use. In some years they have not been sufficient to keep us for half the year.

4420. Then the state of matters is, that you live principally by your fishing, and that your farm is an extra source of employment, or an extra means of [Page 110] living for part of the year?-Yes; some years, when there has been a good crop, it may serve us almost or altogether for the whole of the year; then the fishing pays the rent, and we may have some balance over to help us otherwise. In a poor year I have had experience of it, when our crops could only serve us for six months, and then we had to buy meal for the other six months. In that case the fishing had to do the best it could to pay both the land rent and the meal.

4421. Then your difficulty is, that you are both fishermen and farmers?-Yes; if the land was let at its real value, at what it was actually worth, and we had a lease of it, and were allowed at the same time to make the best of our fishing, we all believe that our circumstances would be improved.

4422. Suppose that were the case, there would then be no obligation upon you to deal at any shop, but you could go where you liked for your goods?-Yes; and we could make the best of our fishing at the same time.

4423. You could sell your fish to whom you pleased, making your own price?-Yes.

4424. Would it be any advantage to you to cure your own fish?- We believe it would; and we know it, because there are some of our neighbours who do it. There are people here who can speak to that.

4425. Don't you think the curing is better done when it is done upon a large scale, than when a fisherman cures his own fish upon the beach, with insufficient materials and apparatus, and perhaps not with the same skill as people who are engaged in doing that and nothing else?-With regard to the skill, none of them can show us how to cure fish better than we could do ourselves.

4426. None of whom?-None of those who now cure them, and who have the large fishings. We know how to cure them as well as they do. We see how they are curing them now, and many of us have cured fish before, so that we know quite well about it.

4427. Do you get as good a price for your fish when you cure them yourselves as when they are cured by fish-curers?-We have not had a chance to cure them ourselves.

4428. But you say you know about it by experience?-Yes. There are neighbours curing their own fish near where I live. Laurence Shewan is one.

4429. Is he a fisherman like yourself?-Yes.

4430. Does he cure his own fish?-Yes.

4431. How long has he done so?-I never remember him doing anything else. There are others who cure them besides him.

4432. Is he better off than his neighbours, in consequence of having liberty to cure his own fish?-There are other circumstances as well which doubtless render him

better off, but that must improve his circumstances too.

4433. Where does he live?-At Gord. John Shewan, Scatness, also cures his own fish himself. Laurence Shewan's fish were purchased this year by Mr. Gilbert Irvine, and put into Mr. Bruce's store; and I heard Mr. Irvine say that they were very good fish.

4434. Have you ever compared with any of your neighbours their profits by curing their own fish with you own takings by selling your fish green?-I have not; but there are other witnesses present who have done so.

Lerwick, January 9, 1872, LAURENCE SMITH, examined.

4435. Are you a fisherman at Trosswick, and a tenant of land under Mr. Bruce of Sumburgh?-Yes.

4436. How far is Trosswick from Toab, where William Goudie lives?-It is between two and three miles farther north.

4437. Have you heard the evidence which Goudie has given?- Yes. It is all correct, so far as I know.

4438. You have heard his description of the way in which the fish are delivered, and the way in which you hold your land, and the way in which you purchase goods at the shop at Dunrossness, and settle for them. Is that all correct?-It is.

4439. You deal in the same way with Mr. Bruce and his shopkeeper?-Yes. I have very little concern with the store at Grutness, because Mr. Bruce has another store at the place where I deliver my fish, which is called Voe.

4440. What is the shopkeeper's name there?-Henry Isbister.

4441. Is that shop near Boddam?-Yes, it is just at Boddam.

4442. Is that store managed in much the same way Goudie has described with regard to the store at Grutness?-No, not exactly in the same way. Most of the things which are kept there are much the same as in other places.

4443. Do you mean that the quality of the goods is the same?- Yes, it is much the same as elsewhere.

4444. And you don't complain of the prices there?-No, not of the things that I deal in myself.

4445. What are these-meal and tea?-No; I deal very little in these things there, because it has pleased God that I could mend myself in another way.

4446. In what way?-By going to another store.

4447. Then you are not obliged to deal with that store at all?-No, I am not obliged to go to that store unless I like.

4448. Is that because you have ready money with which to buy at another store?-Exactly.

4449. You have always got some money in your hands?-Yes.

4450. Do you sometimes buy in Lerwick?-Yes.

4451. But you also buy at Mr. Bruce's store at Voe?-Yes; some trifling things, such as rope or iron hoop, or the like of that; and these are sold at much the same prices there as I can get them for at other places.

4452. Do you pay for them in ready money?-No.

4453. They are put into your account and settled for at the end of the year?-Yes.

4454. Where do you get your provisions?-I get them sometimes at Gavin Henderson's, and sometimes at Lerwick.

4455. What do you pay for meal by the boll at Henderson's?-I could not exactly say, because I don't have to run an account for that. Generally I pay for it at once.

4456. Then, at settling time with Mr Bruce, do you generally get a large balance in cash?-Whether it is large or small, I get it in cash at the beginning of the year, at the settling time.

4457. Do you sometimes get advances in the course of the year while the fishing is going on?-Sometimes I do, if I require them.

4458. Have you often asked for advances of that kind?-I have.

4459. Have they ever been refused?-Never. I always got them when I had money coming to me.

4460. Do you mean that you always got them when he was due you money?-Yes. Sometimes, even if he had been due me a little money, he might not perhaps have had money beside him to supply me with; but when he had it I always got it, whether I had it to get or not.

4461. What has been the amount of money due to you for fish during the last two or three years?-I have a few receipts here which will show that. [Produces accounts.]

4462. This account [showing] is for 1870; and it contains rent, £6; roads, 4s. 6d.; poor-rate, 9s.: is that the tenant's half?-Yes.

4463. Then there is a charge, 'To share of rent of hill:' is that the scattald which you hold along with your neighbours?-Yes; and which the neighbouring landlord is not taking a rent for at all. It all runs scattald together.

4464. Is the neighbouring landlord Mr. Bruce of Simbister?-Yes.

4465. On his land, does the rent of the scattald come [Page 111] into the rent of the farms?-There is no rent paid for the scattald at all on his land. It is used in the same way by all the tenants.

4466. When was the additional payment charged against you first for scattald?-Two years ago.

4467. Then there is cash for kirk seats, 3s.: why do you pay your kirk seats through your landlord?-I have paid them all along through him.

4468. Then there is-To account in Boddam shop, 18s. 61/2d.; to account in Grutness shop, 1s. 9d.; and then on April 25, by cash, £6, 14s. 7d.: that shows that you had not settled until April 25th?- Yes.

4469. Are you often as late as that in settling?-No; that was the latest I ever knew.

4470. Was it your fault that the settlement was so late?-No; I should have liked to have settled sooner.

4471. Do you know any reason why you could not have settled sooner, even in November, when the fishing was over?-I don't know any reason for that, except that they did not want to do it. That is the only way in which I can account for it.

4472. Have you asked for a settlement to be made with you at that time?-I have not; because I thought there was no use doing it.

4473. There are entries here-by saith, by ling, by cod: were these for small fish caught during the winter?-There was a company of men who were pursuing the herring fishing; one part of the company were trying to prosecute the saith fishing for a time, until the others saw whether there were any herring to be got, and my proportion was one-twelfth share of the fish caught at the time.

4474. That was an extra thing altogether?-Yes; and each man's proportion was put in his account.

4475. Is the amount of cash paid you, £6, 14s. 7d., a usual sort of sum for you to get at settlement?-No; it is sometimes smaller. Sometimes it is nothing at all, and I have been in debt.

4476. Has that happened often?-Yes, it happened frequently for some years before that. I have no accounts for these years.

4477. I see that in 1865 there is marked a balance of £2, 1s. 5d. Was that a balance which was due by you the year before?-Yes.

4478. Then 1864 had been a bad year, and Mr. Bruce had advanced you money above the price of your fish for that year?- Yes.

4479. Was that money advanced to you after settlement?-No; it was a balance that had been carried over some years before.

4480. When that balance was existing, did you consider yourself obliged to deal in Mr. Bruce's shop rather than at another?-I was obliged so far to deal at his shop, because I could not think of going to another man and asking credit from him, when I saw no way of making provision to pay him. I could not expect any man to supply me in my necessity when I had no possible way of repaying him.

4481. But you were already in Mr. Bruce's debt?-Yes, at that time I was.

4482. Would you have been bound by that, supposing you had not been bound by the terms on which you held your land, to deliver your fish to Mr. Bruce, and to deal at his store?-No, I don't believe I would, if I had been at liberty to deal elsewhere at any other time.

4483. Have you ever paid any fines or liberty money for yourself or for any of your family?-None whatever.

4484. Have you understood that you were liable to pay such fines?-I understood that I was liable to pay a fine or to receive a warning if I did not fish for my landlord.

4485. But would you have been liable to pay anything besides being afraid of being removed?-I don't know anything about that.

4486. In 1865 you had got cash advances to the amount of £10, 7s. 2d., and your account at Mr. Bruce's store that year was only about 30s?-Yes.

4487. I suppose in that state of matters, you are pretty well content with the state of things as they are?-I might be well enough content with the state of things as they are, only I am bound to fish for him alone, and for no other man.

4488. But you are not bound to deal at his store?-No; I don't believe he compels any man to be bound to his store entirely.

4489. Is there really any compulsion, either direct or indirect, to deal at his store?-No; not so far as I know.

4490. Even although you are in his debt, you are not bound to deal at his store?-No; I don't believe he would oblige me to do that.

4491. But you have as much credit to deal at another man's store as at his,-I mean you get an account opened as readily at another man's store as at Mr. Bruce's?-Yes.

4492. When you are in debt to Mr. Bruce, is it as easy for you to open an account at Mr. Henderson's store, and to get goods on credit there, as to get goods Mr. Bruce's shop?-I might find it as easy, only I don't know whether Mr. Henderson would be inclined to give it to me.

4493. Do you think Mr. Henderson would not be as willing to give it to you as Mr. Bruce's man at Voe?-I think he would not, if he saw no way by which I was likely to pay him.

4494. Mr. Henderson, I understand, does not buy fish?-He does.

4495. But he knows that you would not be at liberty to sell your fish to him?-Yes, he knows that.

4496. Do you think you would get a better price for your fish if you were selling them to him?-I don't believe I would get any worse.

Lerwick, January 9, 1872, HENRY GILBERTSON, examined.

4497. You are a fisherman at Dunrossness?-I am.

4498. Have you a piece of ground of your own?-I am not a landholder. I live with my sister and brother-in-law.

4499. I have received a letter from Dunrossness, dated 30th December and signed Henry Gilbertson: was that letter written by you?-No. There is another person of that name living at Dunrossness.

4500. How do you distinguish yourself from him?-I am a fisherman, and he is a tailor.

4501. Is he a relation of yours?-He is my cousin.

4502. You have heard the evidence of William Goudie to-day: do you know from your own experience that it is in the main correct?-So far as my experience goes, I could not say that he has deviated a single word from the truth.

4503. Were you, when young, employed as a beach boy?-No. I would not go, because if they had bound me to that, I would have left the island, as I did.

4504. Did you leave in order to avoid being employed as a beach boy?-It was not exactly for that; but I was past being a beach boy before Mr. Bruce took the fishing.

4505. You have now come back there, and employ yourself as a fisherman in Mr. Bruce's boats?-Yes.

4506. Are you settled with at the end of the year?-Yes; in the same way as the landholders are settled with.

4507. Do you run an account at the store in the same way, also?- Yes, sometimes; but I am under no obligation to do so, because I am a man who can get credit at any place.

4508. Do you consider yourself at liberty to fish for any person you please to engage with?-Not at all. Although I sit as a lodger in my brother-in-law's house, I am under the same obligation to fish for Mr. Bruce as one who is a landholder.

4509. How is that?-Because if I did not do so, my brother-in-law would be warned out for my offence.

4510. How do you know that?-Because I have evidence to prove it in the case of a brother of my brother-in-law's, who dried a few hundredweight of fish for himself, and for that offence his father was warned out, and had to pay a fine of 31s. 6d. before he got liberty to sit.

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4511. What was his name?-James Harper, sen.

4512. Was that long ago?-Six or seven years ago. I could not say exactly to a season back or forward.

4513. Did you know of that case at the time from Harper himself?-Yes, I was acquainted with the circumstance, and the day before I came here the man told me he had to pay the money.

4514. So that has served you as a warning, since you came back to live with your brother-in-law, that you must fish to Mr. Bruce?- Yes.

4515. Do you think you would be better off if you were at liberty to deliver your fish to any merchant you liked?-I would.

4516. In what way?-Because I could make more of them.

4517. Would you get a larger price for your fish?-Yes. I would perhaps get a larger price; but then I would have a great advantage too by curing them for myself.

4518. Do you think that would really be a great advantage?- Decidedly; and I can prove it by the case of a man who has prosecuted the fishing with me this very season, Laurence Leslie. I was one of the crew with him.

4519. Don't you think he was particularly fortunate last year, and that very often your fish might be spoiled in curing, and would not bring so good a price?-We have all cured our fish before, and we never lost anything worth speaking of in that way.

4520. Where have you cured your fish before?-In the same place where I now live.

4521. Was that before these restrictions were laid upon the tenantry?-Yes; one year before and one year since the restrictions were laid on.

4522. Then you have done it since without being challenged?- Yes; but it was by their own good-will that they allowed me to do it.

4523. You had some favour shown you?-Yes.

4524. How did that happen?-They just told me they would not disturb me, as I was a young man, and could either stop or go as I thought fit.

4525. If you had been a tenant, you think you would not have had the same liberty?-No, I would not.

4526. You say you can get the same credit at any other store that you can get at Mr. Bruce's: do you mean that you can open an account and get your things without paying for them until the end of the season?-Yes.

4527. Can you do so at Gavin Henderson's store, for instance?- Yes; or in Lerwick.

4528. But does the merchant with whom you would open an account of that sort not know that you fish for Mr. Bruce, that you are bound to deliver all your fish to him, and that you may at the same time be running an account at his shop which would have a preference at settlement over any account you might open in Lerwick or at Henderson's?-I generally give them to understand how I am circumstanced, and they advance me accordingly.

4529. Do you generally have a large balance in cash to receive when settling with Mr. Bruce?-I have only prosecuted the fishing there for three years; I have settled for two of these years, and for this one I have not settled yet.

4530. Do you get an account when you settle with him?-Yes; I have got a copy of it for one year. [Produces it.]

4531. Do you get that as a matter of course when you are settling with Mr. Bruce?-I asked for it, and he did not refuse to give it to me.

4532. This account is for the settlement which took place in April last?-Yes.

4533. It shows-June 27, 1870, to cash for self, £1; Sept. 16, to cash for self, £1; Dec. 22, to amount to credit of Paul Smith: what does that mean?-It was a small sum I advanced a brother-in-law of mine to help him to pay his rent. It was entered from my

account into his, and was the same as cash.

4534. Jan. 6, to cash for self, 10s.; to fine for swine, 2s. 6d.: what was that fine for?-The landlord has a law that if you allow your swine to go at large, and the officer for that purpose catches them outside your house loose, he imposes a fine of 2s. 6d. upon you for each offence.

4535. Is that law in the regulations of lease, or is it just an understood thing?-It is understood to be a law that he has made.

4536. But you are not a landholder?-No; but the swine belonged to me.

4537. Then there is, to a ticket and medal for 1871, 3s.: that is for the Fishermen's Society?-Yes.

4538. March 15, to account per Henry Gilbertson, 3s. 4d.: what was that?-That was a small balance that was advanced by him for me to the other Henry Gilbertson.

4539. To 11/2 bushels salt from Scatness, 1s. 6d., by amount from boat's account, £19, 4s. 31/2d.: that was the amount of your earnings?-Yes.

4540. How many others were there in the boat?-There were six.

4541. Then, to account in Grutness, £3, 8s. 21/2d., to cash, £10, 15s. 81/2d.; in all £19, 4s. 31/2d.: that was the whole of your account for that year?-Yes.

4542. Have you anything to say about the prices of the things you get at Grutness store?-They are rather above the figure usually paid for the same things in other parts of the country.

4543. Have you compared the prices there with the prices at which you can get the same articles elsewhere?-Yes; for instance of meal.

4544. Have you bought meal there?-Yes.

4545. Was it entered in the account you have shown me?-Yes; but all my account at the shop, whatever it was for, was entered in that account in one slump sum, so that the price cannot be distinguished from that. There are no details given there of the shop account.

4546. Were the details of that account read over to you?-Yes; or I read it over.

4547. Did you find it to be correct?-Yes, generally.

4548. But you think the meal was charged higher than it could be got for elsewhere?-I am sure of it.

4549. Do you remember what price it was charged at?-Yes.

4550. Did you take a note of it at the time?-I took a note of the quantity at the time; but I did not know the price until settlement.

4551. Have you a pass-book at the store?-[Produces pass-book.] That is what I keep for myself. These [showing] are the entries for 1870, the year to which the account applies. When I knew the price of an article when I received it from the store, I put it down in ink; but I did not know the price of the meal, and I put it down in pencil when

I came to settle.

4552. Here [showing] is half boll oatmeal, 11s?-Yes; and these are the ranging prices in Lerwick for the same year: March 1870, per boll oatmeal, 17s. 9d. May, 18s. 6d.; July, 20s.; August, 21s.

4553. Where did you get these?-I got them from a merchant in Lerwick this morning, Mr. John Robertson, sen. The note containing them is in his own handwriting.

4554. Did he refer to his books before telling you what the prices were?-Yes, he turned up his accounts for that year.

4555. And these are the prices at which he told you he sold meal here?-Yes.

4556. For cash or for credit?-I cannot say.

4557. Have you ever been directed by Mr. Bruce or Mr. Irvine to look after men who were supposed to be selling their fish to other curers?-I have.

4558. You shake your head in a very serious way at that: did you not like the job?-I did not.

4559. When was it that you were told to do that?-At last settlement.

4560. That would be in April 1870?-Yes.

4561. Were there some men who were supposed to be inclined to sell their fish to some others?-Yes.

4562. Was any particular man named to you, or was it just a general direction to look after them?-There was just a general direction given to us to inform them of any men who did so.

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4563. Did you keep a lookout for that?-No; I have not gone to look yet.

4564. Have you seen any of the men endeavouring to sell their fish to other people-to Messrs. Hay & Co. for instance, or to Mr. Gavin Henderson?-I have seen them selling to Messrs. Hay & Co.

4565. Were these the small fish caught in the winter, or were they part of the catch of the boats that went to the summer fishing and the haaf fishing?-They were the small fish caught in the winter. I never saw any of the summer fish sold by any of Mr. Bruce's tenants to Messrs. Hay & Co.

4566. I suppose there is a greater inclination to sell the small fish caught in the winter for ready money than the summer fish?-Yes.

4567. Why are the men readier to do that?-Because, when they sell their fish to Messrs. Hay & Co., the merchant knows what he intends to give for them; and daily and nightly, when the fish have been delivered, they go to Hay & Co.'s store and get the value for them, and there is no more about it.

4568. They settle for them at once?-Yes,

4569. In money or in goods?-Generally in goods; but Messrs. Hay's man will give them a shilling or so; whereas, if they had to go to Mr. Bruce's store with them, they would not know what they were to get until the settlement, neither would they get the goods at so low a figure.

4570. They get the goods cheaper at Hay & Co.'s?-Yes, a little.

4571. Is there any other article than meal the price of which you have compared with what it could be got for at other stores?-Not particularly, because I have not had much dealings at the store, as I generally dealt with other merchants.

4572. Is there anything else you wish to add to what you have said or to what the other men have said?-Nothing particular.

Lerwick, January 9, 1872, JOHN HARPER, examined.

4573. Are you a fisherman at Lingord, Dunrossness?-I am.

4574. Do you hold land there under Mr Bruce of Sumburgh?- Yes.

4575. Do you hold it subject to the condition of delivering your fish to Mr. Bruce in the same way that the other men have spoken to?-Yes.

4576. You have heard the evidence of William Goudie, Laurence Smith, and Henry Gilbertson?-Yes.

4577. Have they described correctly the way in which you deal at Mr. Bruce's shop for goods?-Quite correctly, so far as my experience goes.

4578. Do you deal in the same way?-Yes; but I deal very little there.

4579. Where do you get your goods?-I get them at different places, but my chief dealings are at Gavin Henderson's. I have also some dealings at Mr. Bruce's store at Boddam, kept by Henry Isbister, which is close beside where I live.

4580. Do you generally receive a large balance at the end of the year in cash?-Yes, I am always paid in cash.

4581. How much of a balance in cash did you get last year?-I cannot remember exactly; and I have no copy of my account.

4582. Was it £5 or £6, or more?-I think it was £5 or £6, and the rest of my earnings went to pay my land rent and shop accounts.

4583. Have you made any comparison as to the prices of goods at the Boddam shop and the prices at which you could get them elsewhere?-I have not made a strict comparison, but the Boddam shop and the other shops do not differ much in most things.

4584. Have you anything to add to what has been said by the other witnesses?-We would be very happy to have the liberty of curing our fish ourselves.

4585. Have you tried that?-Yes; I have tried it in former times before I was taken under Mr. Bruce.

4586. Where was that?-At the same place where I am fishing yet.

4587. You had your liberty then?-Yes.

4588. Do you think that in those days you made a larger profit on your fish than you do now?-I did; but there would be a difficulty in doing that now, unless we had the power of using the beaches to dry our fish on. If we did not have that power, we could make nothing of it at all

4589. In those days the price of fish would be quite different from what it is now? It would be much lower when you used to cure your own fish?-In the former part of the time when I used to cure them it was lower than it is now, and indeed it was rather lower all through. I don't know exactly what those that cured their own fish this year have got for dried fish, but I think I got 10s. 6d. per cwt. of dried saith of my own curing during the last year when I cured them.

4590. What is the price now for cured fish?-I have heard that it is 12s.

4591. I suppose there was not much difference in those days in the price of cured fish?-No; but it did differ according to seasons. Every season was not exactly alike.

4592. Would that be twelve years ago?-Yes.

4593. In what way have you calculated that you would make more profit upon the fish of your own curing than is paid to you by Mr. Bruce?-I have just made a calculation in my own mind according to the quantity of fish I caught then and what I catch now. It is merely a calculation of my own, and I do not say it is exactly correct.

4594. Did you make that calculation lately?-No; only I have always been of that opinion since I was obliged to deliver my fish to Mr. Bruce.

4595. Have you not made a note of the value of your green fish, the expense of materials for curing, and the value of the labour that you would require to put upon them, in order to ascertain whether you would get as much for your cured fish as you do for your green, or more?-I have paid some attention to that matter; but of course, in any case where a man dries his fish for himself, he must expect to have a little more work than he has when delivering them green. There would thus be extra expense for my own labour.

4596. There would also be the price for salt, and other things required, in the curing?-Yes; we would have to calculate all these things.

4597. Would you not be at a disadvantage from not having vats and other apparatus suitable for curing?-There would be rather a disadvantage in that way now, but there was not such a disadvantage formerly, because we had these things; and when we were stopped from curing for ourselves, we had to dispose of them as we had no use for them.

4598. Did each fisherman commonly possess these things?-Yes, at that time.

4599. Or was it each boat's crew who owned these implements?- Yes.

4600. Each boat's crew had a supply of apparatus for curing their fishing?-Yes, for their own use. They generally had a vat and other instruments according to what they required.

4601. Do you think they were as skilful in the use of these instruments as the curers are now?-I don't think they were very much behind, because the curer who cures the fish we catch now was formerly a fisherman, as I am myself. Further than the experience of years may have taught him, he knew nothing better about it than I did, for I cured fish when I was a beach boy, and I was also the head in it all through, until I was stopped from curing.

4602. In forming that opinion with regard to the profit which you would have by curing your own fish, have you taken into account the risk of having your own fish spoiled in the curing?-Of course we must run that risk.

4603. Then you might gain something in one year, but in another you might lose to some extent in the [Page 114] curing?-That is quite possible; but still, in the experience I formerly had, the loss was nothing to speak of.

4604. For how many years did you cure your own fish?-For a good many, perhaps five years. There is one thing I should like to state which has not been mentioned already; but I don't exactly know how far it will fall within your inquiry. That is about the days' works which are required from us in addition to our land rent.

4605. What do you mean by days' works?-It is labour imposed upon the tenants by the landlord. They must work three days' work in summer. We don't exactly work these days' works in summer where we live; but we are bound to carry a boat of peats to those who live near Sumburgh, which stands in place of our three days in summer. Then we have to work three days in harvest, and three days in vore (<i.e.> spring). Thirty hours, if I remember right, is what they exact; and we get nothing for it, not even a supply of victuals. We have to carry our victuals with us when we are to do our work there.

4606. Is not that really part of the rent which you pay for your land?-We don't suppose so, because our land is valued, and we have to pay for it in cash, or it is taken off our account.

4607. You mean that you have to pay your rent in cash, and to give the days' works besides?-Yes; and we have to pay a poultry fowl for each merk of land.

4608. Is not that really just part of your bargain for the land?-It is the way we have done hitherto.

4609. If you were agreed, would not the landlord commute these services and payments into a money payment. You might make a bargain to give him so much money, and thus get rid of these things?-I have never disputed these things; but I believe they have been spoken of to him, and he does not appear willing to relieve us of the burden, which we think is rather hard one.

Lerwick, January 9, 1872, GEORGE LESLIE, examined.

4610. Are you a fisherman and tenant under Mr. Bruce at Mill of Garth, Dunrossness?-I am a fisherman, but not exactly a tenant.

4611. You don't hold land?-It is much the same. The land is held in my father's name, and I live with him.

4612. Are you bound to fish to Mr. Bruce, as being one of your father's family?-Yes.

4613. You have heard the evidence of William Goudie and the other witnesses from Dunrossness. Do you think it is generally correct?-I think it is generally correct; but Laurence Smith did not appear to know much about the shop at Boddam, except for ropes and iron, and so on, which is much about the same price as elsewhere.

4614. Can you say anything more about that shop than he did?- The tea, cotton, canvas, and moleskins are all much higher there than at Henderson's. I have no note of the price at Henderson's; but I have notes of the prices at Boddam in my pass-books.

4615. What is the price of moleskins at the Boddam shop?-I don't know if I have the price of any moleskins here.

4616. Is this [showing] your pass-book at the Boddam store?- Yes.

4617. Is it kept by the shopkeeper there?-It is kept by Isbister. I took it back and forward every time I got goods, and had them entered there. That book is for 1868.

4618. I see it is for Hans Leslie, and not for George Leslie. Is your father's name Hans?-Yes.

4619. This book only comes down to February 1869. Have you not kept a pass-book since then?-Yes; but it is not settled yet.

4620. Is that account from March 1867 to February 1869 [showing] not settled?-Yes, it is settled; but the account for 1870 is not settled yet. I have it in another pass-book, because this one had fallen aside.

4621. And you have now another one in the hands of the shopkeeper?-Yes.

4622. Do you know the prices which were charged against you for goods in 1870?-No. I have seen them in the pass-book when I had it at home; but don't remember what they were.

4623. But the settlement for 1870 is past?-Yes; it was 1871 I was thinking of.

4624. But there is nothing in this book for 1870?-No. This [producing another book] is the book for 1870 up till the settlement of 1871.

4625. Have you no pass-book in your possession later than that?- No.

4626. Show me some of the things in that book which are charged higher to you than you could have got them elsewhere?-I say that tea and cotton are generally charged higher. I have had very little cotton from that shop, but I have asked the prices, and found them much higher than at Henderson's, so that I took what cotton I wanted from Henderson's shop, and not from the shop at Boddam.

4627. Were you quite at liberty to deal at Henderson's shop if you liked?-Yes; we were at liberty in the way that some of the other men have described. If we did not have the prospect of paying what we were due, then we did not want to run into debt to a number of men.

4628. Have you generally ready money that you can go to Henderson's with?-No.

4629. What is the reason of that? Is it on account of the long settlement?-That is a thing which has something to do with it, and sometimes I have not had money to get at settlement; but when I asked for an advance from Mr. Bruce, I always got it.

4630. I see from this book that cotton is 1s. a yard at the Boddam shop: I suppose that was the price then?-It has sometimes been 1s., and it has sometimes been higher.

4631. I see there is tea at 10d. a quarter: is that the best tea they sell at that store?-They seldom have any but one sort.

4632. Do you generally get all the articles you want at the Boddam shop?-Yes.

4633. Would you like to have a greater number of things to choose from than there are there?-No. We do not take anything there except what we cannot do without. We wish rather to take it at another place.

4634. Only you cannot always get credit at another place?-I never was refused credit, only I did not like to run a heavy account with another man who was having no profit but upon his goods.

4635. Would you have been more ready to deal with Henderson if you had been at liberty to sell your fish to him too?-Yes.

4636. Is there a fair price charged for soap at the Boddam shop?- There is not very much difference of price upon it. The soap generally is pretty fair at Boddam.

4637. I see here an entry of 11/2 lines, 3s. 5d.: are these lines for your fishings?-Yes.

4638. Is the price of lines there as moderate as at other places?- The lines differ in quality. Sometimes we have them as good there as in other places, and at other times not so good.

4639. But what about the price of them? Are they as cheap there as at other places?-If the quality is as good, they are. [Produces another pass-book.]

4640. Is this the book in which you enter the fish as they are delivered?-Yes.

4641. Who enters them there?-Myself. It is example of how we mark down the fish. That book contained an account which I had running with Gavin Henderson in 1867, and I afterwards used it as a fish book with Mr. Bruce.

4642. You enter the fish in this book, and Mr. Bruce's factor enters them in a book of his own besides?-Yes.

4643. Do all the boats' crews keep books in which they enter their fish in the same way?-So far as I know they do.

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4644. Is that the only way you have of checking the amount of fish you get?-Yes.

4645. At the end of the year you see the quantity you have delivered as it is entered in the landlord's book, and you see that you get credit for it in your account

with Mr. Bruce?-Yes.

Lerwick, January 9, 1872, ROBERT HALCROW, examined.

4646. You are a fisherman at Lasettar, in Dunrossness, and you hold land from Mr. Bruce of Sumburgh?-Yes.

4647. You are bound to deliver your fish to his factor, and you settle at the end of the year in the same way as William Goudie and the other men have described?-Yes.

4648. You have heard all their evidence?-Yes.

4649. Is there anything you wish to add to it or correct in it?- Nothing.

4650. Do you know anything about the knitting which is done by the women in Dunrossness?-There is a little knitting done in my family. It might be more agreeable to some people to be paid in cash than in goods; but others again say that if they did not get the same price in cash for their hosiery as they get in truck, they would not be gainers.

4651. Do they want the goods they get for the hosiery?-Yes; and they might not get the same price for their knitting in money as they get for it in barter.

4652. Do you know the price which they get in goods from the merchants in Lerwick?-Yes.

4653. Would they not get the same goods at a lower price in money, at any of the shops in your neighbourhood?-I am not aware of that.

4654. You have never heard them say that?-No. With regard to the evidence which has been given by the other men, I may be allowed to say that perhaps I have had a little more experience than some of them, but the statements which they have given have just been what I would have made myself.

4655. How long have you been on the property?-For eleven or twelve years.

4656. Did you receive a notice, when young Mr. Bruce became tacksman, that you were expected to fish for him?-I did not receive any notice; but I was missed; he passed over me.

4657. Why was that?-I was taking in uncultivated ground to build a house upon, and I did not pay rent then.

4658. Were you aware that a notice of that kind was given to the tenants?-Yes.

4659. Is there any one here who received that notice?-I don't think any one received the notice individually, but there was a public notice that they were bound to fish for Mr. Bruce, and that they would be removed if they did not do so.

4660. How was that notice given?-By a bill placed in a public place for the tenants at large to see.

4661. Did you see it?-No, I did not see it. With regard to the Boddam shop, I have had dealings there, and also with Gavin Henderson; but there are things I require which are not kept in the Boddam shop at all.

4662. What articles do you want that you cannot get there?-I want some kind of clothing which they do not keep, and several other things; but the things they have, such as tea, tobacco, cotton and canvas, I find to be somewhat dearer than at Mr. Henderson's or in Lerwick.

4663. How much dearer is the tobacco?-It will be a penny or twopence a quarter lb.

4664. Have you bought tobacco at both places?-Yes.

4665. What have you to say with regard to the tea?-It is from 4d. to 8d. dearer per pound.

4666. Have you tried it at both places also?-Yes.

4667. Do you think you get the same quality at both?-It is the same quality. I have had to pay sometimes 9d. and sometimes 10d. per quarter for tea at the Boddam shop; and when I went to Mr. Henderson's shop, I got the same tea for 8d.

4668. So far as you could judge, was the tea at both places of the same quality?-Yes, so far as I could judge, it was. Then for the cotton I would pay 2d., and sometimes more than that, per yard more in the Boddam shop than in Gavin Henderson's, or at other places.

4669. But if the prices are so much higher at the Boddam shop than elsewhere, why do you go there when you say you are not obliged in any way to take goods from the Boddam shop? Why do you not go to Gavin Henderson's for them?-I am obliged to go to the Boddam shop and take my goods there if I have no money in my pocket to buy them elsewhere.

4670. Does that often happen?-Perhaps not very often with me, but it happens as a general thing among many of the men. I believe there are as many men who have to go to Mr. Bruce's store, and take their goods there, in consequence of the want of money to pay for them at other places, as there are who can go and open accounts with other merchants and pay them yearly.

4671. Is there anything else you can say about that?-There is nothing more concerning that; but I have one thing more to say concerning our bondage, or our liberty, in fishing to Mr. Bruce. I have never had any help in paying rent or purchasing meal for my living, or such things as I required for clothing, except from what I could earn myself. I have sometimes had little clear money to get, and sometimes I have been from £2 to £6 behind in my accounts with Mr. Bruce, but he never charged me anything for that. I was fishing to him, and obedient to him, and he never interfered with me until my earnings paid up my debt account; but he would give me supplies although was in his debt, and if I got money from him, even when I was in his debt, I was at perfect liberty to go where I liked for the goods I wanted. If I ran up an account at any other shop, he gave me money and I settled it; and then at settlement time, if I had any money remaining to come to me, I got it in cash after he had deducted the value of any goods I might have got from his store.

4672. But when you were in his debt at the end of the year, in the way you have stated, were you obliged to go to his store for your provisions, and your supplies of cotton and clothing?-I would be obliged to do so, unless I could work at any other trade, or do any other thing during the winter by which I could earn money to purchase things at other stores. I may work outside, or do a little mason work, in order to get some money; and he will not bind me so much as if he were to see me earning nothing, but he would allow me to keep that money, and go to other stores with it, and purchase what I required. If I have a cow or a horse to sell, I can sell it, and he will never inquire or push me for the balance. I can get my money for it, and go to other stores for my meal and several things.

4673. If you sell a beast off your farm, while you are in debt to him, he does not object to you applying the price as you like?-He has made no objection; but when a man is in debt to him, he expects to get the first offer of it.

4674. He expects that a man who is in his debt will offer his cow or his pony to him first?-Yes, he looks for that; he has always expected it.

4675. When that is done, who fixes the price?-He will state his price; and if the owner is dissatisfied with it, he will give him a chance of offering it at public sale.

4676. And when it is offered at public sale, what is done then?- The sale is generally in Mr. Bruce's own hand, and the purchaser gives him the money; and then the owner who disposes of the animal will go to him if he is in want of supplies, and he will probably get them.

4677. Are there sales in your district at certain times?-Yes.

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4678. Where do these take place?-At Dunrossness, near the church; twice a year, in the spring, and in the fall.

4679. Is it at these sales that you have a chance of selling your beasts, if you do not agree with Mr. Bruce about the price?-Yes.

4680. And at these sales is there perfect liberty to any person to bid?-Yes.

4681. You can sell them to any person who bids a higher price than the laird offers?-Yes; but the conditions of sale are that the purchaser has to pay the money to Mr. Bruce.

4682. Is that one of the conditions and articles of roup which are read over at the commencement of the sale?-Yes.

4683. Does that condition apply to every lot that is sold, or only to lots that belong to men that are in Mr. Bruce's debt?-It applies to every lot that is sold. On all the properties there, on Simbister, and Mr. Grierson's estate and Sumburgh estate the cattle are called in; people who have cattle to sell are asked to bring them in to the sale.

4684. But nobody is obliged to expose their cattle at these sales unless they please?-There have been cases where we were obliged to dispose of them: for

instance, if a man was very deeply in debt, he would be so far forced to bring his cattle and sell them; and the money went into Mr. Bruce's hands, and was put to the man's credit.

4685. You mean that it was credited to the man's account that was settled at the end of the year?-Yes. When young Mr. Bruce first began to take charge of the Sumburgh estate he wished to have all the tenants clear; and for that purpose he published a sale, and forced one of the tenants to bring his effects there, in order that his debts might be paid off. At the sale, Mr. Bruce himself appeared and gave a far higher price than the current price for the material which was being sold, in order to bring the man out of debt.

4686. Who was that man?-Malcolm Irvine, Lasettar. That is the only case of that kind I am acquainted with; but I believe there are more cases of the same kind throughout the parish, where Mr. Bruce paid a higher price for the articles than the market value of them, in order to bring the men out of debt. Of course, that was a favour to the men.

4687. Then, these sales are always fair transactions?-I think they are fair, so far as we can discern, because they do not differ in any way from other sales throughout the island. The terms and conditions of roup are the same at them all.

4688. Is there anything else you wish to say?-There is only forty days' warning given before Martinmas. No doubt that may be well enough for tenants in a town like Lerwick, who hold nothing except a room to live in, but it is very disagreeable for a tenant holding a small piece of land as we do. As soon as our crop is taken in, we must start work immediately, and prepare the land for next season. We have to make provision for manure, and collect our peats, and prepare stuff for thatching our houses, and perhaps by Martinmas we have expended from £6 to £10 worth of labour and expense on our little farms. In that case, it is a very hard thing for us to be turned out of our holdings after receiving only forty days' notice, and perhaps only getting £1, or £2, for all that labour. Now, what I would suggest that instead of that short notice we should be entitled to receive a longer notice, perhaps six or nine months before the term, that we are to be turned out.

4689. Do you think you would be more at liberty to dispose of your fish, and to deal at any shop you pleased, if you were entitled to that longer warning?-I don't think the warning would alter anything with regard to that; but if I knew that I was to be turned out at Martinmas, I would probably start fishing earlier, and I might have a larger price to get for them instead of working upon my land.

4690. But you can be punished more easily by your landlord for selling your fish to another man, when he can turn you out on forty days' warning, than if he could only do it on six or eight months' warning?-I think it would be much the same with regard to that.

4691. You don't think that would make any difference as to the fishing?-It might make a little difference, because if I received my warning in March, and knew that I was to leave at Martinmas, if I saw that I was to have a better price for my fish from another, I would not fish to my landlord at all; but I would go to any man I would get

the best price from.

4692. Do you think you would be better off if you had your fish paid for as they are delivered?-I don't think that would serve me any better. It would serve young men who are not landholders better; but I don't think it would serve landholders better than to allow the price to lie, and to settle once in a season, because sometimes our crops are so scanty that we have only perhaps two parts or three-fourths of a regular supply of meal for our living; and if I got the price of my fish paid to me every time when I came ashore, or on the Saturday night, we might perhaps live comfortably for awhile, but then at Martinmas, when our rents were due, and our fishing earnings were spent, we would be in a hard case, because where would our rents come from?

4693. Do you think you would be likely to spend your earnings as you got them?-In some cases that would be so, because occasionally we have to live on a very small allowance of provisions, perhaps one-half or three-fourths, and we suffer from that. I think it is better if the money for our fishing is preserved for a time in our landlord's hands; because, in the first place, we like to have our rents paid.

4694. Would it be any advantage to you to have the price of your fish fixed at the beginning of the season?-It might and it might not, because here in Shetland we are paid for our fish according to a currency. The principal curers in the country arrange what the price is to be, and, so far as I know, they have it in their own power to make the currency whatever they think fit.

4695. Do you think the current price is fairly fixed?-I cannot judge of that, nor can any one outside, because I don't know what has been realized for the fish in the south. It is a matter which rests upon their own conscience, whether the merchants fix a fair current price or not.

4696. But you think they have the fixing of it?-Yes, they do fix it.

4697. Do you think it right that they should have the fixing of it, and that you should have nothing to say to it, when it is according to that price that you are paid?-We have no experience in the matter, or else we should have a voice in it.

4698. If you were at liberty to cure and sell your own fish, would you not have something to say in fixing the market price at which the fish were to be paid?-I think we would.

4699. Supposing the price of your fish were settled at the beginning of the season, and that you knew then what it was to be, do you think you would manage your purchases during the season better than you do now, according as you took a large or a small quantity of fish?-I don't think so.

4700. If you were only taking a small take of fish, you would see, as the season went on, that you could not have a large balance at the end of the year?-I don't think that would matter much for me. It might do for a family in which there were two or three men but for a man who held a certain tack of land, and had to support a family, I don't think it would be any advantage. In my case, there is only myself earning anything, and it takes the greater part of my fishing, year by year, to pay for my meal and land rent.

4701. I suppose what you mean is, that you are obliged to live at a certain rate of expenditure, and that you cannot reduce that rate any lower, however poor your fishing may be?-No, I cannot.

4702. So that you must take the bad years and the good years, and make up in a good year for what you have gone behind in a bad one?-Yes, that is what I mean.

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4703. Therefore the present system suits you as well as any other?-It does.

4704. You could not economize more, although you knew what you were to receive at the end of the year?-I don't see that I could.

4705. And you could not manage your money any better, although you had it in your hands, and could spend it in Lerwick, or in any other store, except that at Boddam?-I don't see that I could. I have not taken any meal from Mr. Bruce now for three years, but I have taken a good deal of things out of his stores.

4706. Have you got your meal from your own ground?-No. During the past season I had to buy very little; but since I came to the place I am now in, I have sometimes had to buy seven, and eight, and nine months' provisions, besides what my own labour upon my farm could yield.

4707. Where did you buy your meal then?-At that time I had some from Mr. Bruce, and some from other places.

4708. But I am talking of the last three years, when you did not buy any of it from Mr. Bruce?-I have had it from Lerwick, and also from a store at Sand Lodge. Lebidden is the name of the place where the store is.

4709. Whose store is that?-Thomas Tullochs's.

4710. Why did you buy it from these stores rather than from the store at Boddam?-Because I could get it cheaper; I would pay some money for it at these other stores.

4711. What did you get it for there?-I don't recollect the price.

4712. I suppose the price varied?-Yes.

4713. And you got it at that price by paying it at the time you got it?-Yes; I got it at as low a price as it could be got anywhere. Besides, I took weaker qualities of grain as being cheaper than what Mr. Bruce had, such as second flour or third flour, and so on, when Mr. Bruce, would have had nothing but barleymeal and oatmeal.

4714. Does he only keep one quality of meal at Boddam store?- He keeps more than one quality, because he has had grain from his own farm to supply his fishermen and tenants with; and he has also had Orkney meal there, which was cheaper than Scotch meal.

4715. But you say that you could get weaker qualities than what Mr. Bruce kept. Do you mean that the qualities were inferior?- Yes.

4716. Were they inferior to any that Mr. Bruce had?-Not to what grew on his own farm, but to any that he had at that time, or what he generally kept.

4717. But I am talking of the last three years during which you have had none from Mr. Bruce. Were the qualities at the other stores inferior to what Mr. Bruce kept?-When I was having none from Mr. Bruce I did not know exactly what qualities he had.

4718. But you knew that what you were getting was cheaper than what you could get at his store?-Yes, I knew that.

4719. Is there anything more you wish to say?-No; I think that is all.

Lerwick, January 9, 1872, LAURENCE SMITH, recalled.

4720. I believe you saw the bill, which was put up when Mr. Bruce came, to which the witness Halcrow referred?-Yes, I saw it. There was a man sent round among the tenants with a letter, and he read it to them.

4721. Who was the man?-He is dead: it was John Harper, Virkie.

4722. To whom was the letter addressed?-To the tenants generally. Sometimes when he came to a town, he called the tenants together and read it to them; and when he met one of the tenants by himself, he just read it over to him.

4723. Were the tenants called together at Trosswick, where you live?-Yes.

4724. Was the letter read over to the whole of them at once?- Yes.

4725. Did you hear it?-Yes.

4726. Do you remember its terms?-I do not; but the letter was from old Mr. Bruce, and the substance of it was, that he had given us over into the hands of his son.

4727. As tacksman?-He did not say whether it was as tacksman or not, but he said that the penalty of our not fishing to him would be that we should get our warning.

4728. Was it stated in the letter that young Mr. Bruce was setting up as a fish-curer?-I could not exactly say, but it was known to the tenants that he was going to do so.

Lerwick, January 9, 1872, HENRY GILBERTSON, recalled.

4729. I believe you were at Fair Isle three weeks ago?-Yes; three or four weeks ago, with a smack belonging to Mr. Bruce.

4730. Was that for the purpose of delivering supplies of provisions to the people on the island?-It was for the purpose of landing two men on the island, one of whom was to be a farmer, and the other was a mason to build dykes.

4731. Had you been there before?-Never.

4732. Did you meet with any of the people while you were there, and talk with them about the way in which their shop was supplied?-Yes, I met almost all of them, and I got some information about how they deal at the shop, because they inquired at me at what prices the articles were sold in Shetland.

4733. Are the people there supplied with provisions and goods from the shop at Dunrossness?-No; there is a shop on the island which is supplied from the shop at Dunrossness.

4734. Do you know anything: about the prices of goods at the shop on Fair Isle?-There was a man belonging to the island-I don't know his name-who told me that he had paid 1s. 4d. per quarter for tobacco. There was a general complaint that the prices were above the currency charged in Shetland.

4735. Did the people seem to think that there was a better way in which they could be supplied?-Yes; they seemed to think that if they had their liberty to sell their fish, to the best advantage, they could supply themselves from Orkney or Shetland with goods at a cheaper rate than they could get them for in Mr. Bruce's store in Fair Isle.

4736. Do you think anybody would be willing to go to Fair Isle to buy fish and sell goods?-There were plenty would do so if they had the chance. Mr. James Smith, of Hill Cottage, Sandwick parish, used to go there, but he was stopped from doing so by Mr. Bruce when he bought the island.

4737. Did the people on the island speak as if they were worse used than they had been formerly?-They spoke as if they got their articles cheaper from Mr. Smith than they could get them now.

4738. How long were you on the island?-I was there for eight days, and I was in almost every house.

Lerwick, January 9, 1872, HANS SMITH, examined.

4739. You are the master of a smack which sometimes visits Fair Isle for Mr. Bruce?-Yes.

4740. Do you take a quantity of goods to the shop there from the shop at Dunrossness?-Yes, sometimes from the shop at Dunrossness, and sometimes the [Page 118] goods are ordered from the south; and we get them from the steamer at Lerwick, and take them direct to the island.

4741. Do you know anything about the prices at which these goods are charged at the shop on the island?-No; I could not speak positively about that.

4742. Do you know whether the people on the island are satisfied with the supplies which you take to them?-They are satisfied with them so far; but they object to the price realized for their fish as being lower than what is paid in Shetland. I think that is about the only thing they object to. Of course they also think that the prices for the goods are dear; but still they are not so much dissatisfied with that.

4743. I suppose it involves a little expense to get the goods carried from the mainland to Fair Isle?-Of course it does.

4744. There is a risk from the weather in taking them there?-Yes; there is a risk of damage, and there is not a safe harbour there.

4745. Does any one trade to Fair Isle except your smack?-No, not regularly. There are some people who go in occasionally, but there are no others who go very often

from Shetland. There is one boat belonging to James Rendall, of Westray, in Orkney, that goes occasionally.

4746. Is it within your knowledge that other traders are not allowed to go to Fair Isle to sell their goods there?-Yes; I believe the people are not allowed to buy from them. They do not exactly stop them; but I think they tried to do it.

4747. Have you known that being done at any time when you were at the island?-I think I have been there twice when James Rendall was there; and he chiefly sold in the night time when I was asleep, and I did not know what was going on.

4748. Why was that?-I don't know. I never asked him why he did it. The people are scarcely allowed either to sell to him or buy from him.

4749. Was it not because the factor forbade him to sell to the people at all that he dealt with them during the night?-Of course the factor forbade him from dealing with them, and he would have noticed if Rendall had dealt with them in the day time. I don't think the people were so much stopped from buying from him as they were stopped from selling to him. They were not allowed to sell any cattle or horse, or anything they had, to him.

4750. How do you know that?-Because I saw it myself. I have heard the factor and the people talking about it, and I know they were not allowed to sell.

4751. Have you heard the factor forbidding them to sell their cattle to Rendall?-Yes; they have told me themselves that it was £2 of a fine if they sold anything to him.

4752. Whom have you heard the factor forbidding to sell to Rendall?-I have heard the factor talking to lots of them about it. There was one, Thomas Wilson for instance; he was forbidden.

4753. Do you know that he wished to sell cattle to Rendall?-Yes; I know that he had a cow last year for which Rendall offered him £5, 10s. on the island, and he was afraid to sell her to him. The factor told him he had better not sell her.

4754. Was it in your presence that he told him so?-Yes; and Wilson came over to Shetland with us; I don't remember what he got for the cow here, but I think it was £4, 1s.

4755. You brought the cow over to Shetland yourself?-Yes.

4756. Who was the factor?-Jerome Wilson.

4757. Did he tell Thomas Wilson that he must not sell his cow because he was in arrear of rent, or in debt?-No; he was not in debt; he had some cash to get at the time of settlement.

4758. How do you know that?-Because he told me himself. I went home with him to his house, when he settled last summer,-I think in June or July.

4759. Do you know of your own knowledge that the cow afterwards sold for £4, 1s. in Shetland?-I think that was what it sold for.

4760. Did you see it sold?-No; but Thomas Wilson told me about it. I was at the sale that day. I was not present when the cow was sold, but Wilson told me about it at night.

4761. Do you buy hosiery from the Fair Isle people?-The factor, Mr. Wilson, buys it for Mr. Bruce.

4762. Do you sometimes bring it over here?-Yes.

4763. You don't know anything about the way in which the people are paid for it?-I don't know.

4764. Is Jerome Wilson likely to be in Shetland soon?-I don't know whether he is or not, but I don't think it. He just buys up the hosiery, and then sends it over to Mr. Bruce. I think the people get goods chiefly for it; but I am not sure. I have seen it sold, and seen them getting goods for it.

4765. Have you seen anybody else buying it on the island? Have you ever bought any of it?-No; not much.

4766. But you have bought a little?-I have bought a pair of stockings; that was all.

4767. Did you pay cash for them?-Yes.

4768. What do the people do with their money in Fair Isle?-I am sure I don't know; they have not much to do with it there.

4769. They cannot purchase goods with it?-They can purchase goods; because when we are going in with the smack, they are always going out and in, and they are glad to get as much money as possible. There are none of the people out of the island just now that I know of.

4770. When will you be going back to it?-Not until the month of April, or the 1st of May.

Lerwick, January 9, 1872, ROBERT MALCOLMSON, examined.

4771. You are a fisherman and tenant on Mr. Bruce's lands at Northtown of Exnaboe?-I am.

4772. You have heard the evidence of William Goudie and Laurence Smith?-Yes.

4773. Does it give a fair account of the way in which you deal in fish and purchase goods with Mr. Bruce of Sumburgh?-Yes, it gives an accurate account of it, so far as my experience goes.

4774. Were you a beach boy when you were young?-Not to Mr. Bruce. At that time the men had their liberty and cured their fish for themselves.

4775. Do you know anything about the way in which beach boys are dealt with now?-No.

4776. None of your family or friends are beach boys?-None.

4777. Have you known of any case in which a man was turned out, or threatened to be turned out of his ground for selling his fish to another than the proprietor?-Yes; I

know one case. That was the case of Thomas Harper, James Harper's son, who was referred to before.

4778. That was a good many years ago?-Yes.

4779. Is there anything you wish to add to what has been said by the other men?-Nothing, so far as I remember.

4780. Do you think you would make any more of your fish if you were allowed to cure them for yourself?-We generally think so.

4781. Have you ever made any calculation about that?-According to hearsay from other quarters, and contrasting our case with theirs, we have a rough idea that we would make more on the whole.

4782. Do you think there is any disadvantage to the men in having such long settlements as you have at Dunrossness?-In some cases there is.

4783. Do you think it would be better for you to be paid for your fish as they are delivered?-In some cases that would do very well, but in other cases it would not. Some men and some families would, so to speak, go beyond their income; and at the end of the season, when their rent was due, they would have nothing to [Page 119] give to their landlord. They would not have saved any money for the rent.

4784. But is it not the case that fishermen nowadays save a good deal of money?-Some do, and some do not.

4785. Have not a good many of your friends large deposits in the bank?-No; that is not the case with many.

4786. Are you sure of that?-I would not be positive; but so far as I know, it is not the case.

4787. I suppose a man does not speak very much about his bank account down about Dunrossness, when he has one?-No; but I don't think it is very common for them there to have one.

4788. Do you know anything about the price of meal at the shop where you deal?-I have an idea of it, but only at settling time.

4789. At which shop do you deal?-At Grutness store.

4790. Do you run up a large account in the course of the year?- Generally I do.

4791. Does your account take off most of the price of your fish?- Yes, the most of it.

4792. You only get a small balance at the end of the year?-Yes, if I have it to get; but if not, Mr. Bruce is kind enough to make me a small advance as I need it.

4793. Of course that is on the footing that you are to fish to him next year?-We understand so.

4794. Do you think you would get your meal cheaper at another store than at Grutness, if you had liberty to deal at another store?- I think so, according to what other people say.

4795. Have you inquired the price of meal at Messrs. Hay's shop there?-I have not inquired about it myself.

4796. What do you pay for your meal at Grutness store?-It varies according to the quality and the current price of meal.

4797. Do you pay the same price for it all the year round?-Yes.

4798. Is that generally the price which prevails at the end of the year at settling time, or is it an average of the prices that have prevailed during the whole year?-When it all comes to be summed up, it is generally a little in advance, on the whole, of what we could buy meal for at another shop,-for instance, at Hay and Co.'s.

4799. Is the quality of it as good as you could get at Hay & Co.'s?-The quality is good.

4800. Is there anything else you want to add to the statements of the other witnesses?-No.

Lerwick, January 9, 1872, THOMAS AITKEN, examined.

4801. You are a fisherman at Eastshore, in Dunrossness?-Yes.

4802. Are you a tenant of land under Mr. Bruce?-I am only tenant of a room, not of any land. I hold a house there.

4803. Are you bound in any way to fish for Mr. Bruce?-Yes; I signed an agreement to fish for him when he took the fishing in his own hand at Grutness, eleven or twelve years ago.

4804. Were you a landholder at that time?-No; but I was living in my father's house, and I was bound to fish for Mr. Bruce like the rest.

4805. What was the document you were asked to sign?-The general tenor of his statement was, that he was to give the current price, and I was bound to fish for him while I was living on his estate.

4806. Have you any objection to adhere to that bargain?-I am of the opinion that, if I had had my freedom, I might have made a little more from my fish than I have done.

4807. But would you not have your freedom simply by removing to another place?-Not in Dunrossness.

4808. You mean not on his land?-No, nor on Mr. Grierson's land. I would be bound to fish for Grierson under the same rules if I were to remove to his property.

4809. Do you live with your father still?-No; my father is an old man, and he has ceased to hold land.

4810. Do you consider yourself still bound to fish for Mr. Bruce, even although your father does not hold any land from him?-Yes; I consider I am bound while I am living on his estate.

4811. Have you any copy of the agreement which you signed?- No.

4812. Where did you sign it?-In the shop at Grutness.

4813. Who asked you to sign it?-Mr. Bruce's factor, or his farmer who was in Sumburgh at that time who was sent round among the tenants with a letter from old Mr. Bruce, intimating to them that his son was to take the district into his own hands, that they were to fish for him, and that any one refusing to fish was to leave.

4814. That is the letter which Laurence Smith has spoken of?- Yes.

4815. But did you sign anything?-Yes, I signed a paper, stating that I would rather stay and fish for him than that I would flit.

4816. Was that after the letter had been sent round among the tenants?-Yes.

4817. How long after?-A few days perhaps,-not more.

4818. Were you asked to go to the shop and sign it?-Yes.

4819. Were any others asked to sign it?-I believe there were.

4820. Was it the factor who asked you to sign it?-Yes. Gilbert Irvine was the factor; he asked me to sign it, and I signed to him. The paper was there, ready for us to sign.

4821. Was it read over to you?-Yes.

4822. What was the substance of it?-The substance of it was just what I have stated-that if we would fish to Mr. Bruce on these terms, we could stay on the land; and if not, then we would have to go.

4823. Were there many people who signed it at the same time with you?-No.

4824. Was there anybody else who signed it at the same time?-I could not exactly say. I don't think there was anybody in the house when I signed it, but there were a great many names to it before I went in.

4825. Was it signed by landholders only, or by those who had merely a room?-There were very few at that time who merely held a room. There are not many yet who do so; but the document was signed generally by the fishermen who fished there.

4826. Was the thing you signed an obligation to fish for Mr. Bruce so long as you occupied a room or a house on his ground?-Yes; I so understood it.

4827. But if you ceased to occupy that house or room you would be free?-Yes; and we could go to another place.

4828. You settle every year in the spring?-Yes.

4829. Do you generally have a balance in your favour?-Not very often. I have no land, and therefore I have to rely upon my own fishing, or what work I can do for him when I am called upon to work.

4830. Are you bound to work for Mr. Bruce as well as to fish for him?-I am not bound to work for him; but if I am in debt to him, of course he will call me out to work.

4831. But he will pay you for it?-Yes; but I am not quite satisfied with that pay. It is only a penny for one hour's work.

4832. Does that go into your account?-Yes.

4833. Have you got any pass-book at the shop?-No; I have no pass-book there. I see the articles which I receive from him entered into his book, and I told the price of most of the things when they supplied to me; but the principal thing which I get from the store is meal, and I never know the price of it until the day when I come to settle, or until I hear it from any person who has settled before me for the same year.

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4834. Do you know what price you paid for it at last settlement?- I paid the same price for it as the other witnesses you have examined-22s. for Scotch oatmeal, and 20s. for barley-meal.

4835. Do you think you could have got your meal cheaper than that elsewhere?-Yes, I am under that impression.

4836. Have you asked the price of it elsewhere?-Yes; Mr. Hay's factor at Dunrossness had meal which was cheaper at that time.,

4837. That was in the spring of last year?-Yes.

4838. How much cheaper was it?-I cannot remember exactly; but if I had had money, I could have purchased it cheaper at many places besides that.

4839. Did you not get advances of money in the course of the year from Mr. Bruce?-Yes.

4840. Could you not have got as much as you asked?-I did not want to ask more than I thought I could stand to. I did not want to get far in debt to him.

4841. Did you get a balance at last settlement paid to you in money?-Yes; if I had a balance at the end of the year, it was paid to me in money.

4842. But did you get a balance last year?-I was about clear then.

4843. You were not much more than clear?-No.

4844. Do you remember how much you got at that time?-I asked for £1 of advance from him at the settlement, and he gave it to me.

4845. Do you mean £1 more than the balance due to you?-Yes.

4846. Were you in debt at the previous settlement in 1870?-Yes.

4847. Were you also in debt in 1869?-Yes.

4848. Was the balance also on the wrong side for you in 1868?-I don't think it.

4849. Do you think you had something to get in 1868?-If I remember right I had.

4850. Do you remember how you stood in 1867?-I think that I was clear.

4851. But you had not much to get?-No.

4852. You are a married man and have a family?-Yes.

4853. Is there anything you wish to add to what you have heard the previous witnesses say?-Nothing further than just that I am not satisfied with my wages.

4854. Have you not something to say yourself in fixing your charges?-No.

4855. How is that? You need not work unless you know what wages you are to get beforehand?-No; but there is no general work there to work at. Mr. Bruce is the only man who has work to do and when a man is in necessity he must work.

4856. Can you not get land of your own?-No; I am not able to hold any land, because my family are sickly, and are not able to work upon it.

Lerwick, January 9, 1872, HANS MAINLAND, examined.

4857. You are a fisherman at Northtown of Exnaboe, on the land of Mr Bruce of Sumburgh?-I am.

4858. Have you heard the evidence of the previous witnesses?- Yes.

4859. Has it generally been a correct description of your way of dealing with the shop at Sumburgh, and with Mr. Bruce for your fish?-So far as regards the store, I have never been obliged to take anything from it. I always went and bought my goods for ready money from any place where I could get them cheapest.

4860. Why was that?-Because as a general rule, I heard the people complaining that they were obliged to take their goods from the store, and that they were dearer there than they could be got elsewhere.

4861. Had you any difficulty in getting the balance due to you at the settlement at the end of the year in cash?-No.

4862. You always got money?-Yes.

4863. Was money also advanced to you in the course of the year before settlement, if you wanted it?-Yes, if I asked for it.

4864. What amount might you get advanced before settlement?- If I had asked it, I would have got perhaps £10 or £20. Of course I had a little money in Mr. Bruce's hands, so that I was not requiring to draw any money from him that was not due to me.

4865. Is there anything you wish to add to the evidence which has been given already?-There is one thing I should like to say with regard to the present law on the subject of leases. Mr. Bruce has the power of turning out men who have made a great many improvements on his estate, and perhaps, they may be turned out without receiving any compensation whatever. I am one of those who have done it great deal for it. I have expended upwards of £100 worth of labour and material on his ground.

4866. Before laying out that expense could you not have made an arrangement with the landlord that he should repay you for it if you were turned off?-So far as I am aware, he has never been prepared to give any rules or regulations to that effect.

4867. Has he not offered you a lease?-He has offered us a lease; but I don't think there is any party in Shetland who would accept of it.

4868. Have you ever applied for a different lease?-I have never applied for a lease at all. There was no use doing so, so far as I knew. But I think that when a party lays out money in improvements on master's estate he ought to be paid for it.

4869. But a man who lays out money upon another man's, land knows quite well before he begins that he will not be paid for it, and he takes the risk of the landlord being kind enough and able to repay him part of these expenses. It may very well be that the landlord is a poor enough man as well as the tenant, and that he cannot afford to put improvements upon his land; and yet the tenant goes and spends a lot of money on it, expecting the landlord to repay him for improvements which the landlord himself would not have made, if he had had the land in his own hands?-That may be quite true; but so far as I have understood, Mr. Bruce has always taken a great interest in having improvements made upon his land.

4870. That, however, is hardly a question into which I can enter here unless you think it has some bearing upon the system of payments at the shop, or the system of payments for the fish?-It has no bearing upon these questions at all, so far as I am aware, except perhaps in this way, that for four months in the winter season the fishermen are lying at home to a great extent, idle. The fishing commences about 1st May, and it finishes in the end of August. Then they have to gather in their summer crops; and during the winter season, and the early part of the spring, they have very little to do; while a person of an active turn of mind does not like to remain idle for such a length of time. They want to be doing something, and they will engage to any one who has work to give them.

4871. Have you anything more to say about that?-I have nothing more to say except this, that when person is a tenant at will, and liable to be removed after having made improvements on the estate of any proprietor, he ought to receive compensation for these improvements.

4872. Would it be possible for fishermen in Shetland to carry on the business of fishermen alone without being tenants?-Not so far as my judgment goes.

4873. Why?-Because the small earnings from the fishing could not support him, neither could the land itself support him in the way it is laid down present.

4874. And I suppose, if the holdings of land were larger, a man would have no time to attend to the fishing?-No, he would not. If the holdings were larger, of course the men would have to occupy the whole of their time with the ground.

4875. Don't you think that, with an improved system of agriculture, you would find enough occupation on [Page 121] holdings of the present size for the whole year?-Not in my opinion; they are too small for that.

4876. Not even by following out the rules and regulations which Mr. Bruce has offered you?-No.

Lerwick, January 9, 1872, ADAM LESLIE, jun., examined.

4877. You are a fisherman at Toab, in Dunrossness?-I am.

4878. Have you heard the evidence of the previous witnesses?- Yes.

4879. Does it fairly describe the system under which you hold your land and fish for Mr. Bruce of Sumburgh, and the way in which you deal at his shop?-Yes, I think it does.

4880. Is there any addition you wish to make to the evidence which has been given, or any correction upon it?-No.

4881. Have you a pass-book at the shop?-No.

4882. Do you deal at the shop at Grutness for the goods you want for your family?-In part I do.

4883. Do you find that, at the end of the year, you have generally a balance in your favour, or is it against you?-I cannot say that it is much against me.

4884. Do you get payment of that balance in money?-Yes.

4885. Do you also get advances in money, in the course of the year before settlement, if you want them?-Yes; whenever I ask for them. Our place is far away from the bank, and sometimes Mr. Bruce may have run out of money by so many people having gone and asked it from him; but if I go to him and ask him for money, and he does not have it, he tells me when to come back and get it.

4886. In that case, when you get the money, do you spend it generally at Mr. Bruce's shop, or do you go and deal at some other store with it?-I generally go to some other store.

4887. Do you find that you get your goods cheaper at another store than at his?-I am under that impression, but I never compared his goods with those of other merchants.

Lerwick, January 9, 1872, GEORGE WILLIAMSON, examined

4888. You are a fisherman at Eastshore, Dunrossness, and a tenant on Mr Bruce's land?-I am.

4889. You have been there for thirteen years?-Yes.

4890. Do you remember a time when the fishermen got their freedom there?-That was before I came to the place.

4891. Were they understood formerly to be bound?-Yes, in old times they were bound; but, just about time when I came there, old Mr. Bruce gave them their liberty, and they were all free.

4892. Was there an understanding previously, that they were bound to fish only to him, or to his tacksmen?-Yes: but, two or three years before I came they got their liberty.

4893. Was there any payment made for that?-Each landholder had to pay 15s. a year for his freedom.

4894. Was that just an addition to their rent?-Yes.

4895. The rents were raised, and the fishermen had liberty to do as they liked about their fish?-Yes.

4896. From whom did you learn that?-It was given out by Mr. Bruce, and by all the tenants.

4897. But you said you were not there at the time?-I was not.

4898. Then you learned that when you came from common report?-Yes, just from common report.

4899. Was your father a landholder there?-No. I removed from Mr. Bruce of Simbister's ground to that place.

4900. Have you held your ground at the same rent for the thirteen years you have been there?-No. The rent has been raised a good deal since I came, in addition to the 15s.

4901. During all your time have you been free to deliver your fish to any person you chose?-I was free to do so until twelve years back, when I became bound to deliver my fish to Mr. John Bruce.

4902. That was by the letter which has been spoken of already?- Yes.

4903. You have heard the evidence of William Goudie, and the other men who have been examined?-Yes.

4904. Was it generally correct as to the way in which you deal about your fish?-So far as I could judge, I have not heard a wrong statement made to-day; and there has been nothing left for me to add to it.

4905. You agree with them that you can get money when you ask for it?-Yes.

4906. Is the bulk of the price of your fish paid to you in money or in goods?-I take goods according as I require them. I have meal and other things; and whatever is over, after paying my account at the shop and my rent, is cheerfully paid to me, the same as I would pay it to my son. There is not a freer man at paying money to his tenants than Mr. Bruce is. I have been £6 in debt, and asked him for advances, and he has given them to me.

4907. Was that after settlement?-Yes.

4908. And, of course, that was given to you on the understanding that you were to be fishing for him next year?-Yes; I was fishing for him by sea, and working for him by land.

4909. If you had not been fishing for him, would you have got an advance of that sort?-But I was fishing for him, so that I cannot tell that.

Lerwick, January 9, 1872, JAMES FLAWES, examined.

4910. You are a fisherman, and tenant under Mr. Grierson at Rennesta, near Quendale?-I am.

4911. Are you under any obligation to deliver your fish to Mr Grierson?-Yes.

4912. Is he a fish-merchant and fish-curer?-He is a fish-merchant, and he has men under him for curing his fish.

4913. Is your obligation a written one, or is it part of a verbal lease of your land?-When young Mr. Grierson got the fishing, he read out a statement to his tenantry at large, in the schoolroom at Quendale.

4914. How long ago was that?-Twelve years ago. That statement which he read gave the tenantry to understand that he was to become their fish-merchant, or the man they were to deliver their fish to; and that they were all bound to give him every tail of their fish from end to end of the season, as long as they held their land under him. If they did not do that, they knew the consequences: they would be turned out.

4915. Was that all stated to you in the schoolroom on that occasion?-Yes; it was all read off by Mr. Grierson himself.

4916. Were you present?-Yes.

4917. Did he state that you would be paid for your fish according to the current price at the time of settlement?-Yes; that was stated also at that time.

4918. Was it stated how that current price was to be ascertained?-It was to be the currency of the country, particularly the prices paid by three or four merchants who dealt in the same kind of fish that he received from his tenants.

4919. Did Mr. Grierson name the four merchants whose prices were to rule?-The four merchants who generally agree together are Mr. John Robertson, [Page 122] Messrs. Hay, Mr. Bruce of Sumburgh, and Mr. Grierson.

4920. How do you know that these merchants agree together as to the prices?-Because the tenants of the whole of them generally get the same price for their fish.

4921. Do not all the tenants in Shetland generally get the same price for their fish each season?-No; there is a difference.

4922. Do you know that the tenants of these four parties always get one price?-Yes; generally it is the same price that is given to them all.

4923. Do you know that the tenants on other estates get a different price?-Yes, I know that.

4924. Can you mention any case in which that has happened?- Yes. There are a few merchants in Sandwick parish who get fish from a few boats there-James Smith, James Mouat, and Thomas Tulloch-and they always give a little higher.

4925. Do these merchants keep shops as well?-Yes, they have shops too.

4926. Do the men who fish for them deal at their shops?-I understand they do.

4927. Can you tell me how much Tulloch and Smith have paid for their fish?-In some years they give 6d. per cwt. more than Mr. Grierson and the other merchants I have mentioned, and for some kinds of fish 9d. more.

4928. What price did you receive for your fish at last settlement?-Last year, I think, we got 7s. for ling, or 7s. 3d., I could not exactly say which; 5s. 6d. for cod, and 3s. 6d. for saith.

4929. Do you know how much the fishermen got from Tulloch and Smith?-I could not exactly say, but they got a little more.

4930. You knew that at the time?-Yes, I knew it at the time from the fishermen who were giving their fish to them.

4931. Do you know how much more they got?-I think it was 9d. more on some fish, and 6d. more on others. It might be a little more; but, I think, I am safe to say that.

4932. Do you know anything about the prices of goods at the stores of Tulloch and Smith?-No. I never bought anything from them.

4933. Young Mr. Grierson, whom you mentioned as having taken the fishing in 1861, is now the proprietor of the estate?-Yes.

4934. Does the obligation which was then imposed upon you extend to the sons of his tenants, as well as to the tenants themselves?-It extends to all.

4935. Do you know of any case in which any man upon the land has delivered his fish to another fishcurer than Mr. Grierson, and has been challenged or turned out for that?-I know one.

4936. Who was that?-Thomas Johnston, Garth, Quendale, son of John Johnston. He was out of a chance of fishing for Mr. Grierson at his station, but he got a chance to fish for Messrs. Hay, and because he went and fished for them, he could not come back to his father's house, but had to remain all winter and vore (<i.e.> spring) with the man he fished for. Then he came back next spring and fished for Mr. Grierson again.

4937. Who prevented him from coming back to his father's house, if he had chosen to do so?-He was told by Mr. Grierson, that if he went and fished for another person, he would have to stop away, and that if he came back, it would be his father's warning.

4938. How long ago was that?-I don't recollect exactly; perhaps two or three years ago.

4939. How do you know that that warning would have been given to John Johnston?-Because it was part of the arrangement with Mr. Grierson from the very outset.

4940. But how do you know that Thomas Johnston was told he must leave the land and that his father would be turned out if he came back?-Because he told me so himself, and he evidenced it by staying away.

4941. Was it not more convenient for him to live near the station where he was fishing for Hay & Co., than to remain in his father's house?-He had to leave his own house and go away down to the west voe to fish.

4942. But was it not more convenient for himself to go there?- Yes, it was handier for him to live near the place where he was fishing.

4943. Are you sure that was not the reason why he left his father's house?-But the man he fished for did not live at that station: his house was away upon the west side.

4944. Was he not upon Mr. Grierson's land?-No, not that man.

4945. Do you know the case of any other man being challenged or threatened because he sold his fish to another fish merchant than Mr. Grierson?-Yes, I know of another case-James Shewan on the ground of Brough, belonging to Mr. Grierson's estate.

4946. How long is it since that case happened?-It was last year.

4947. What do you know about it?-Shewan did not have a chance of fishing at home for Mr. Grierson, and he also took a chance at the ness with Messrs. Hay & Co. They fished from the west voe then.

4948. What was the consequence?-The consequence was that Shewan had to pay £1 of liberty money.

4949. When was that?-This year.

4950. Was it before last settlement?-No; it was at this settlement.

4951. Is the settlement over at Quendale for last season?-Almost. There were a few boats not settled with when we came up.

4952. How do you know that Shewan had to pay liberty money this year? Did he tell you that he had had to pay it?-Yes.

4953. Did you see him pay it?-I did not.

4954. Was it added to his account when settling?-I cannot tell you whether it was included in the settlement, or whether he had paid it some months before.

4955. When did he tell you about it?-He told me when he had settled.

4956. How long ago is that?-It is not very long; perhaps it week or two since.

4957. Is James Shewan a tenant of Mr. Grierson's?-Yes.

4958. Was it not it part of his bargain, on taking his land, that he should deliver his fish to his landlord?-Yes.

4959. And was not that £1 which he paid just a penalty for breach of contract?-Yes; but then he did not have a chance of fishing for Mr. Grierson. There were no men on Mr. Grierson's estate who could fill up a boat with him, the men that he had previously been going with having joined another crew; and therefore he had to go to some other place where he could earn something.

4960. Were Mr. Grierson's crews all filled up at that time?-Yes.

4961. Could Shewan not have brought his share of his boat's fish to Mr. Grierson and delivered them to him, although the rest of the men were fishing for Hay and

Co.?-He might have done that; but I don't know very well about it.

4962. That would have been very inconvenient I suppose?-Yes, very.

4963. Do you know of any other case of the same kind?- No.

4964. Or of any case of a person being told that he must fish entirely to Mr. Grierson without being threatened?-We knew quite well from the statement which was made to us before, that if any one transgressed the rule, the penalty would just be our forty days warning.

4965. Do you deal at the Quendale store?-Yes.

4966. Who is the storekeeper there?-Ogilvy Jamieson.

4967. Is the shop at a convenient place for your people and for most of the fishermen round about?-Yes, it is very convenient.

4968. Does Jamieson receive your fish as well as attend to the shop?-Yes. There is a factor under [Page 123] him who receives the fish, but Jamieson is over all, both over the shop and the fish.

4969. What is the name of the factor who receives the fish?-It is sometimes one man and sometimes another.

4970. Do you run an account at the shop?-Yes.

4971. Are you expected to deal there, or have you freedom to deal where you like for what you want for your families?-We are quite at liberty to deal anywhere we choose, if we had only the means in our possession to do it.

4972. How is that you have not the means?-Because we have not got the money.

4973. Does Mr. Grierson advance you money in the course of the year before settlement when you ask for it?-He does.

4974. Can you not take that money and deal with it at any other store that suits you better than Mr. Grierson's?-We do that very often.

4975. Then, how is it that you say you have not the means of dealing where you choose?-What I mean by that is, that we don't have the chance to do it so often as we would like to do it; and we don't like to be always running to him for money for the small things we require. It is only in particular cases when we require a pound or so to help us that we ask it from him.

4976. What other shops are there convenient for you?-The only shop that I can make better out of than Mr. Grierson's in our district is Mr. Gavin Henderson's at Scousborough.

4977. Is that near Dunrossness kirk?-It is to the north and west of it.

4978. Do you prefer to go to Henderson's store because the goods are cheaper and better there?-Yes.

4979. Are they both cheaper and better?-We generally think so.

4980. Can you give me any particular case in which you have found them to be so?-I have never made an exact comparison of the things to find out the precise difference; but when we are to buy a suit of clothes for instance, we think we can make as good bargain at Henderson's shop as we can do at any shop in Shetland.

4981. Have you bought a suit of clothes both at that shop and at Mr. Grierson's?-I have never bought a full suit of clothes at Mr. Grierson's, but I have done so at Gavin Henderson's.

4982. What is the price of meal at Quendale store?-I could not tell exactly, because I have not had any there during the last two years, my little farm having supplied me with all I wanted.

4983. What is the price of tea at the two stores?-The prices of tea at both these stores are much the same. There are three different prices of tea at the two stores, but we rather think that Henderson's tea is generally better for the prices charged than Mr. Grierson's is.

4984. Have you tried the moleskins also?-Yes; and if I were buying with ready money out of Grierson's shop, I don't think the difference between them would be worth mentioning.

4985. But is there a difference according as you buy with ready money or pay at the settlement?-Yes. If I buy a pair of trousers for ready money, I get them down 1d. per yard. The cloth is marked 3s. per yard, and I get 1d. off the yard. Then if I buy a shirt of 3 yards, and if I pay ready money for it, I get reduction of 1d. per yard on 9d. or 10d.

4986. Do you get your goods cheaper at Henderson's shop even with that discount?-Yes. If I go to Henderson's shop without the money, he will not take any more for the goods than he would do even if I had the money with me.

4987. Will he give you the goods as cheap as at Grierson's?-Yes; as cheap as if I had bought them at Grierson's with ready money.

4988. Is there any other reason why you would prefer not to deal at Mr. Grierson's shop for your goods?-We would have no great objection to deal at his shop if we were paid a little better for our fish. It is our opinion that we are not paid for our fish altogether as we might be.

4989. But you get the currency of the country?-Yes; and we sign for that.

4990. Do you think you should get more than the currency of the country?-We cannot exactly judge of the state of the market, but from what we hear and from what we see in the papers, we think the merchants take rather too much profit, and that we would be a little better if we received the money for the sale of our fish ourselves.

4991. Do you think you would be better off if you had a price fixed for your fish at so much per cwt. at the beginning of the season?-That would depend upon circumstances.

4992. Taking a number of years together, do you think you could make a better bargain for yourselves in that way?-I think so. The three men I mentioned in Sandwick parish generally give an agreement to state something like what they will give, and they seem to stand by it pretty well whatever the price may be.

4993. Would the fishermen not object to that sort of arrangement?-I don't know. I don't think the fishermen in general would object to any agreement by which they might know what they were working for during the season, although I really cannot say that they could make any more decided efforts for catching fish than they do under present circumstances.

4994. But even although the price were fixed at the beginning of the season, the fishermen would still have an inducement to exert themselves as much as possible in order that they might have a large catch?-They would; but I say that I don't know how they could exert themselves to do more than they do already.

4995. Still, they would have exactly the same reason for exertion?-Yes.

4996. Do you think if the price were fixed at the beginning of the season, and it turned out that the current price of fish was much higher than that fixed with the men at the commencement, they would try to get out of their bargain, and demand the higher price that was current?-There comes the difficulty. We who catch the fish would always like to get as high a price for them as we can; but if we make an agreement, we must stand by it. However, if the merchants could afford to give 6d. or 1s. more according to the state of the markets, and did not give it, we would rather look down upon them for taking such a large price, and not giving us part of the advantage of it.

4997. But you ought to recollect that in another year you might have made a bargain for the same price, and the price received by the fish-curers might be less, so that there would be a loss to them?-Yes; but, I think the men in general would be prepared to run the risk of the rise and fall in the markets in that way, or, if they made a bargain, they would stick to it.

4998. Have you known any case in which men engaged to fish on such terms, and finding the price higher than that which they had bargained for, asked that higher price from the fish-curer?-I cannot say that I have known any case.

4999. You don't know whether that has ever occurred in Shetland?-No, I don't know anything about that.

5000. Do you know anything about the employment of beach boys?-A little. I had a boy employed this year at the beach.

5001. Is there considered to be an obligation upon the Quendale tenants to allow their sons to be employed as beach boys?-Yes, whenever called for.

5002. Is that obligation enforced?-Yes, it is just the same as with all the rest. The landlord says, 'If I call for your son to cure fish for me, and you object to it, then I can lay whatever penalty I choose upon you, and either remove you or impose a fine.'

5003. Do you know of any case where that has occurred?-No; because the tenants know exactly what the consequences would be, and they are frightened to do anything in opposition to their landlord's wishes. We are all poor people together, and not very well able to bear fines or removals.

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5004. What are the wages for a beach boy?-An active beach boy for his first year at Quendale will get 30s. for about five months in the year. That is his whole wage.

5005. Could he get more in any other employment in Shetland?- In some cases Messrs. Hay's factor would give more for beach boys than they would get beside us.

5006. What is the age of a boy who would get that wage?-From twelve to fourteen or sixteen years; and if a boy goes two or three years to the beach, his wages are raised every year.

5007. How are their wages paid?-If they take goods from the shop, these are marked down against them.

5008. Are they marked down in the father's account, or in a separate account in the boy's own name?-In a separate account in the boy's own name.

5009. Has your son been long in that employment?-I have only had one of my sons at it for one year.

5010. Is he to be employed this year again in the same way?-Yes.

5011. Had he a balance in his favour when he was settled with?- He has not been settled with yet. He was employed for the year which has just come to an end; but I don't think he will have very much to get, as he had no clothes to speak of when he began, and he was very glad of the chance of winning a little, so that he might get a suit of clothes.

5012. Has it been a common case within the last two or three years for the fishermen who are employed in the way you have described to have a balance in their favour at settlement, or have they usually had balance against them?-During the last two or three years a good many of Mr. Grierson's fishermen have had a very good balance to come to them to account, but I and some others have been behind and could not get clear.

5013. Are there many of that sort?-There are few.

5014. Is it worse for a man of that kind to leave and get free of his obligation to fish than for a man that has cash to receive to do so?-Under Mr. Grierson's arrangement there is no difference between the two kinds of men as regards getting their liberty to fish to any other man, because none of them have any such liberty.

5015. The obligation to fish depends on the holding of land; it does not depend on the amount of debt due to Mr. Grierson?-No, it does not depend upon that.

5016. Are there many men there who fish for Mr. Grierson and who do not hold land?-Yes, there are a good few.

5017. Are they under any obligation to fish for him?-They are all under one obligation from head to foot.

5018. How does that happen in the case of men who do not hold land?-Because they are all on Mr. Grierson's ground.

5019. Would the party they live with be warned if they were not to fish for him?-That was in his first arrangement.

5020. Is that arrangement still in force?-I never knew of any alteration being made upon it.

5021. Have you been told anything about that obligation since it was read over to you in 1861?-No; there have been no cases in which it has been broken except the two I have mentioned, and we saw what happened.

5022. But you have not been spoken to about it at all?-No.

5023. Or reminded about it?-No, we have never been reminded about it; but we signed then to fish for Mr. Grierson, and we have heard of no other arrangement.

5024. How do you supply yourselves with fishing materials?-We generally take them from Mr. Grierson's shop.

5025. Are you under any sort of obligation to take them from there?-We are just under the same sort of obligation to take them from his shop as we are to take anything, because we generally cannot get them anywhere else. We never ask money to go and get them anywhere else, although it is our opinion that if we could go elsewhere, we would get them a little cheaper-that is, our fishing lines.

5026. Where would you go for them?-We could buy them in some shops in Lerwick a little cheaper.

5027. But you would have a long way to carry them if you were to buy them here?-Yes; but we don't think much of our travel sometimes when we can make good bargain.

5028. Have you anything more to say about the state of matters in your neighbourhood?-I have nothing more to say at present; only, if I am at liberty to do so, I should like to say on Mr. Grierson's behalf that, as a landlord, he has been very favourable to me and to many of the tenants. He has supplied us with goods and helped us, when we were not very well able to help ourselves; and he has continued to do that in my case to the present time. If I am in debt to him, he never charges me for that debt; but I am at liberty to sell any animal off my farm if I choose, without him asking anything about it.

5029. Are you a little behind just now?-I am a good bit behind just now.

5030. But you could still get an advance of money if you needed it?-Yes. The shopkeeper told me when I was settling, that if I wanted from 1s. to £1, I could get it from him any time I asked for it.

5031. Do you get all your things at his shop?-Not altogether. When I have a little money beside me, I can get them from any quarter. The fact is that I sometimes go there with money, and get the things cheaper than if I were getting them on credit. For instance, if I ask for a quarter pound of stick tobacco, I will get it for 1s. if I pay for it with money; while if it is marked down to me, it will be 1s. 1d. Now, we do think that is very unreasonable, as they have a profit both on our fish and on our goods, and we are very much dissatisfied about it.

Lerwick, January 9, 1872, GEORGE GOUDIE, examined.

5032. You are a fisherman and tenant on the estate of Mr. Grierson of Quendale?-Yes; at Garth.

5033. Have you heard the evidence of James Flawes?-Yes.

5034. Is it generally a correct statement of the obligation you are under to fish to Mr. Grierson, and of the way in which you settle for your fish?-So far as I know, it is.

5035. Do you get money paid to you when you want it in the course of the season?-Yes.

5036. But is the greater part of the price of your fish got out in goods from Mr. Grierson's shop?-Yes, the greater part.

5037. What balance did you receive at last settlement?-I had no balance to receive. It was against me.

5038. Had most of the men a balance against them at last settlement?-I suppose the greater part of them had.

5039. Have you got a note of your settlement?-No.

5040. Did you get any receipt or pass-book or account?-No.

5041. Is your account read over to you at the settlement?-Yes, if we want to have it read. The shop account, if we want it, will be read over to us.

5042. If it is not read over, how do you know whether it is correctly charged or not?-The men who do not keep a note of their accounts for themselves cannot know whether they are correct or not even by hearing them read over.

5043. Are you generally content to trust to the shopkeeper for the accuracy of your account?-Yes.

5044. Do you know anything about the quality of the meal that is sold there, and the price of it?-Yes.

5045. Have you been getting meal from the shop [Page 125] during the last year or two?-Yes. Mr. Grierson's meal last year was from 2s. to 3s. per boll above what Mr. Gavin Henderson charged for his.

5046. Was the quality of Henderson's meal as good?-Yes; quite as good.

5047. Have you tried them both in your own house?-Yes.

5048. What was the price of the one and of the other?-Mr. Grierson's bear-meal was 14s. per boll-that is Shetland grain; and Gavin Henderson charged 12. for Shetland meal also.

5049. Does Mr Grierson's shopkeeper charge the same price for meal all through the year?-Yes; for the same kind of meal.

5050. All the meal of the same kind in your account is charged at the same rate throughout the year?-Yes.

5051. But at Gavin Henderson's, it is charged to you according to the price at the time you buy it: the price varying at different periods of the same year?-Yes, it varies a little; but Mr. Grierson's meal also varies when the price elsewhere varies.

5052. Then you may have meal charged at different rates in the same account?-Yes.

5053. Is there any other article, the price of which you have compared with what you could get it for elsewhere?-Yes, there is tobacco. If we buy a single ounce we pay 31/2d., and 2 oz. 6d., at Quendale store. In Gavin Henderson's we can get a single ounce for 3d., and 2 oz. are charged 6d. also.

5054. Is there anything else you can speak to?-No, I don't think there is anything else.

5055. Is there anything else you wish to say in addition to what James Flawes has said?-No.

Lerwick, January 9, 1872, CHARLES EUNSON, examined.

5056. You are a fisherman, and a tenant of Mr. Grierson's at Waterbru?-I am.

5057. Is that near Quendale?-It is about a mile and a half away.

5058. Have you heard the evidence of James Flawes and George Goudie?-Yes.

5059. Is it generally correct with regard to the system of dealing at the shop and for your fish?-I think so.

5060. Is there anything you wish to add to it?-Nothing with respect to that; but I had a little experience once with regard to liberty money. Before the time when Mr. Grierson and Mr. Bruce took the fishings into their own hands-for they were both in company when they started with that-we had enjoyed our liberty all along, and had never been obliged to fish for our proprietors; but at that time we were taken in hand along with the rest of Mr. Grierson's tenants, and we had to fish for them. That lasted only for three years, and then the contract was broken, and each started on his own account.

5061. Was that before or after the statement which was made by Mr. Grierson at Quendale?-It was three years after it. When the contract was broken, Mr. Grierson had no place handy for us to land our fish at and deliver them to him, as we lived farther from Quendale than the rest of his tenants; and therefore at that time again we got our liberty and fished for whom we chose. He exacted nothing for that, and

things went on in that way, I think, for three years; but at the end of that time Mr. Grierson took a station at Voe, on the east side of the parish, where he had had no place previously, and he told us that we would be obliged to deliver our fish to him, like the rest of his tenants. During the three years before we were put under that obligation, we had been fishing at the Ness, and had been at considerable trouble and expense in forcing a beach, and making other things right for curing our own fish. We were unwilling to lose the whole of that, and we applied to Mr. Grierson to allow us to continue to fish at the Ness; and he told us that if we paid three guineas of liberty money, he would allow us to fish there. We offered to pay that liberty money for one season, but it was a bad season; there were not many fish, and the price was low; and we went to Mr Grierson and asked him if he would take our fish. He consented to take them in a dry state; and he deducted 6d. per cwt. for the three guineas for every cwt. we delivered to him; so the result was that we had to pay him about £1 and upwards.

5062. In what year was that?-It is four years ago; it must have been in 1867.

5063. Then these fish would be settled for at the annual settlement?-Yes.

5064. Did you get any account of that year's settlement?-No; I would have got it if I had asked for it, but I never asked it.

5065. Who did you settle with that year?-With Mr. Grierson himself.

5066. You did not settle with Mr. Jamieson?-No; he had not come to the place at that time. There was another man there in the place which Mr. Jamieson now has, but we did not settle with him.

5067. Do you know anything about the price or quality of the meal at Quendale store as compared with other places?-It is a great deal better now than it used to be eleven or twelve years ago; it was not very satisfactory then, but it is not so bad now. The difference between the meal there and at other places is still something, but not so much so as it was.

5068. Do you get meal there?-Yes, frequently; and frequently at other places.

5069. I suppose you get it there, or at other places, according to the state of your account at the time?-Yes; or rather according to my interest. Mr. Grierson has never refused to give me anything reasonable that I asked him. He has been very generous in that way all along.

5070. Have you any boys on the beach?-I have one boy who has been engaged this year for the first time for Mr. Grierson.

5071. Had you any desire to have him engaged elsewhere?-I would not have minded much if he had never gone to the beach at all; it is not a very good berth for a boy. In the previous year they asked me if I would allow him to go to the beach, and I said I would rather not, as I required his services myself; but this season they asked me for him again. Perhaps they would not have taken him against my will, but Mr Grierson might have thought I was rather obstinate if I refused again, and so I let him go. I did not like to refuse when Mr. Grierson asked me.

Lerwick, January 9, 1872, LAURENCE LESLIE, examined.

5072. You are a fisherman, and a tenant on Mr. Grierson's land at Hillwill?-I am only a fisherman, but I pay a little rent along with my father.

5073. Are you any relation of the witness Laurence Leslie who was previously examined?-No.

5074. You have heard the evidence of the previous witnesses from Quendale?-Yes.

5075. Is it generally correct?-I think it is.

5076. Is there anything you could add to it?-I don't think so.

5077. Although you are not a tenant, do you consider yourself bound to fish to Mr. Grierson?-Yes, I am bound to do so.

5078. You could be free from that obligation, however, by leaving the ground?-Yes.

5079. Do you run an account in your own name at Mr. Grierson's shop?-No. I get a little from the shop sometimes, but I buy what I want where I think most convenient.

5080. Do you get payment in money from Mr. Grierson?-Yes.

5081. Can you get all your payment in money from him if you like?-Yes.

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5082. Do you get that money in the course of the year, or at the end of the season?-Just when we settle once a year.

5083. You don't get advances in the course of the year?-No; I don't seek any before the end of the year.

5084. Then you have always cash in hand?-Yes.

5085. You are a little ahead of the world?-Yes.

5086. Have you any beach boys in your family?-No; but I was a beach boy myself about fifteen years ago.

5087. That was before there was any obligation on the Quendale people to fish for their landlord?-Yes.

5088. At that time how was the arrangement made with beach boys?-I wrought for five months, and I got 10s.

5089. Was that paid to you in goods or in money at the settlement?-I got it in money at the settlement.

5090. Was that the usual way of settling at that time?-Yes.

5091. Is it the usual way still that a beach boy gets payment of his wages in money?-I believe so.

5092. Does he not run an account at the store?-I don't know anything about that myself.

5093. Have you anything to add to what the other men have said?-My wife sent up a shawl to a sister of mine in Lerwick to have it sold, and she sold it to Laurenson & Co. I came up to Lerwick some time afterwards, in the course of the spring, to take down a boat, and I went to the shop to get payment of the shawl. I was not requiring cottons or drapery goods, but I was requiring a pair of trousers; and when I went to the shop, I was shown a piece of tweed which I fixed upon to take, but the merchant refused to give me the cloth for the shawl, because it was a money article, and I had to take soft goods and other things which were of no use to me.

5094. Would he not have given you the cloth in exchange for the shawl at a somewhat higher rate than he would have given it to you for cash?-He would not give it to me at all, and I had to take the cottons and stuff that were of very little use to me.

5095. Did you take these home?-No.

5096. Have you had any other dealings of that sort?-No.

Lerwick, January 9, 1872, JOHN BURGESS, examined.

5097. You are a fisherman, and a tenant under Mr. Grierson at Hillwill?-Yes.

5098. Have you heard the evidence that has been given by James Flawes and the other witnesses from Quendale, with regard to Mr. Grierson's fishing business, and their dealings at his shop?-Yes. 5099. Is that evidence correct, so far as you know?-Yes,

5100. Have you anything to add to it?-Nothing.

5101. Do you know anything about the engagement of beach boys?-Yes.

5102. Are there some of them in your family?-Yes; I have had a son employed as a beach boy for two years. His wages for the first year were 30s., and for the second year, 35s.

5103. Was that wage fixed at the commencement of the year or at settlement time?-It was not fixed until settlement. I did not know what he was working for until then.

5104. Was he running an account at the time in the shop books?- A small one. It was very little he was requiring, and he got the balance in money.

5105. Was there any obligation on him to go as beach boy to Mr. Grierson?-Yes.

5106. Could you not have engaged him anywhere else?-No; I wanted to keep him at home beside myself, because I was requiring him, but Mr Jamieson told me he was requiring him at the beach, and I must just let him go; and therefore I preferred to put up with a little hardship to myself and my family, and allowed him to go to the beach.

5107. When did Mr. Jamieson tell you that?-When he came and asked me to allow my boy to go.

5108. Was that before the commencement of the first year which he served?-Yes.

5109. Did you make any objection when Mr. Jamieson asked you for him?-Yes, I objected a little. I said I would be glad to keep him at home; but Mr. Jamieson said I would better just let him go, and I did so, without any more hesitation.

5110. Do you know anything about the difference in the price of meal at Mr. Grierson's store, and at others?-No; I have had very little to do with the store.

5111. Do you not deal there?-I deal for a few small things, but very little.

5112. Do you buy most of your provisions and other things from other stores?-Yes, for the most part.

5113. Where do you get them?-From Mr. Henderson's.

5114. Are you quite at liberty to go there for them-Yes.

5115. Can you get advances of money from Mr. Grierson in the course of the year for the purpose of buying goods at Henderson's and other stores?-Yes. If I was asking for advances, I would get them; but I don't ask for any until settling time, and then I get the balance, whatever it is, freely.

5116. Have you an account against you at that time?-Yes.

5117. Have you any pass-book?-No, I don't keep any pass-book.

5118. Is your account read over to you at settlement time?-Yes.

5119. And you see that it is correct?-Yes; so far as my judgment leads me.

5120. But you say you don't get many goods at the store: is that because you can get them cheaper elsewhere?-Perhaps that is sometimes the reason, and sometimes I don't require the things which are there. I always take my fishing materials, lines and hooks, and other things of that kind, from the store.

5121. Are these things reasonably priced?-We suppose they are much the same as in other places in the neighbourhood.

Lerwick, January 9, 1872, HENRY LESLIE, examined.

5122. You are a fisherman, and a tenant under Grierson at Gord?-I am.

5123. You have heard the evidence of Flawes and the others?- Yes.

5124. Do you agree with it, so far as you know?-Yes.

5125. You know the facts which have been stated by them to be true?-Yes.

5126. Have you been a long time a tenant on that estate?-Yes; for fifty years at any rate.

5127. At the commencement of that period, were you free to fish to any one you liked?-No; there has always been a bond on that estate to fish to Mr. Grierson, or to any one to whom the fish were let. That has been the case all my time, and I have been more than sixty years there.

5128. Have you fished to anybody else during any part of that time?-No; it was always to him. There were three years when Mr. Bruce and Mr Grierson were in

company together.

5129. But before that you were not free?-No; I never knew a time when we were free all the time I have been there.

5130. Who did you fish to before that?-To Mr. Grierson and to his father. I fished to the present Mr. Grierson's grandfather, and I was at the beach to him.

5131. Was he a fish-curer and fish-merchant also?-Yes.

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5132. Was that property ever set in tack to a fish-merchant?-Yes; but that was before my day.

5133. Has the obligation to fish always been a part of the condition on which you held your land?-Yes.

5134. Were you present at the time when young Mr. Grierson intimated to the tenants that he was taking the fishing into his own hands?-Yes; I and every man and boy on the estate were all assembled in the same room, and we all heard the same agreement read

5135. Was not that the beginning of the present state of things under which you are now bound to fish?-Yes.

5136. Then you were free before that?-No, we were not free; but we wrought upon a different scale.

5137. Were you bound at that time to fish for Mr. Grierson?-Yes.

5138. Is there anything you wish to add to the statement which the other men have made about the present state of things?-I have nothing to add to what the other Quendale men have stated.

5139. Have you been getting meal from Mr. Grierson's store?- No; I have got none there for the last two years. I required none during that time.

5140. Have you had plenty to supply you from your own ground?-Yes; or I had bought it at a roup when other people were going out.

Lerwick, January 9, 1872, PETER MOUAT SANDISON, examined.

5141. You are inspector of poor in the parish of Fetlar and North Yell?-I am.

5142. You were formerly engaged in the fish-curing trade?-I was, for a considerable time.

5143. Have you heard the evidence of any of the witnesses who have been examined here to-day?-I have.

5144. Was the mode of paying for fish, and the way in which the accounts of the fishermen were settled at the end of the year, much the same in Yell when you were engaged in the business as you have heard described?-Yes, the settlement was much the same.

5145. Was it made about the same season of the year?-It was generally made about 20th November on towards the end of the year.

5146. Does the fisherman who is employed there by a merchant usually open an account in that merchant's books for provisions and soft goods and other things which he wants for his family?- Yes, he does, almost invariably.

5147. In your experience, is that account pretty nearly even on the two sides, or is there a balance due on the one side or on the other at the end of the year?-That, of course, depends a great deal upon the party who is running the account. There is a difference in men as well as in merchants and fish-curers. Some have larger families and require a great deal more supplies than others. Some have smaller families, and the produce of their own farms can serve them for a longer period in the year than others. From various causes the amount of their supplies is very different; but for the last three years I should say there have been only about 20 to 25 per cent of them who have not had money to get at settlement.

5148. It has been said that it is an important thing for the success of a merchant to get his fishermen into debt to him, so that he may secure their services for the succeeding year: would you consider that a safe policy to pursue on the part of a merchant?-I was a fish-curer and merchant for twelve years myself, and I am always considered it to be the best policy to have clear men

5149. Did you find that, as a rule, the best men were clear in your books?-Decidedly. I never found that debt afforded me any hold whatever upon a man.

5150. Then you found the case to be rather the reverse of what I have stated?-Yes; and the reason why I think it was the reverse is, that no man was in debt who could help it, and generally a man who was in debt was found to be an extravagant, careless man, or there was something wrong with him. Whenever a man got a certain depth into debt, he did not care how much deeper he went; and if I refused him further supplies at the shop, then he just went to another merchant.

5151. Or he might go south?-Occasionally he did, but not often. These kind of men don't go south.

5152. But if he went to another man, you could charge him for your debt?-Yes; my only recourse was to summon him; but what was the use of doing that. I would only have lost the expense of my summons, because he had nothing that I could take from him; or if he had anything, his landlord generally came in with his right of hypothec.

5153. Could you not arrest the proceeds of his fishing in the hands of the other merchant to whom he had gone?-No; I think that is not legal. I have tried it, but I could not succeed. A considerable number of the men who left me one year went to another fishcurer, who happened to be their own proprietor. He had not been curing fish previously. I summoned several of them; and with one of them especially I had a case in court in Lerwick for a considerable time. It was ultimately decided that the merchant, as proprietor, should pay the expense to which I had been at; but as to the account, I did not get one penny of it. I got my expenses and nothing more. I give it

up as hopeless case.

5154. Had these fishermen been obliged to leave your service and go to fish for their proprietor?-Yes; at that time they were obliged to do so.

5155. He had regarded it as part of the obligation under which they held their land that they should fish for him?-He had not been carrying on the fishing previously; and he allowed the men to fish for me, or, least, for the firm which I was conducting; but when he took the fishing into his own hands, he required his men to fish for himself.

5156. I suppose he agreed to pay the expenses of the case you mentioned because he felt it was some hardship to you to deprive you of the services of these men?-It was his lawyer and mine, I think, who agreed together about the expenses.

5157. Was the proprietor to whom you refer Mr. Henderson?-No.

5158. Was it Mr M'Queen?-No.

5159. Was he a proprietor in Yell?-Yes.

5160. How many fishermen did you generally employ?-At one time I employed 90.

5161. Would the whole of these men have accounts in your shop books?-Yes.

5162. Can you give me some idea of what amount of the proceeds of their fishing would be paid for by their account for goods?- The lowest amount that I ever had in an account for goods, when I settled with a man, was 21/2d. for a whole twelvemonth-the man got the rest in cash; and the highest, if I remember right, was somewhere about £10. 10s.

5163. What balance would remain due to that man?-Some years, of course, he would be in debt; but in other years he would have something to get.

5164. Was it a very good year in which the man had taken ten guineas worth from your shop, or was that about the average amount of their shop accounts?-I am talking about the average accounts for the twelve years during which I was carrying on the business. In the last year when I carried on the business on my own account, the most money I paid to any man for fish was £22.

5165. What would be the amount of that man's contra account for goods?-I think about six guineas.

5166. Would that be a fair specimen of the accounts?-No; that was an extra year. There was an extra quantity of fish taken, and an extra price paid for them; and that man's boat, I think, was the highest fished boat an the whole station.

5167. But would that be a fair specimen of the amount of goods which a man took throughout the season?-No.

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5168. Do you think it would be more, or less, an average?-It would be more than the average. I should say that about £3, 10s. would be a pretty fair average in our quarter, taking young men, tenants, and non-tenants all together.

5169. Is it the practice in the trade in Yell to give the fisherman a state of his account at the end of the year?-No; it is not the practice.

5170. Or a pass-book?-We always wanted them to keep a pass-book, but they would very seldom do it. They could not be troubled with it. Sometimes they would take a pass-book and bring it for a few times, and then, perhaps, they would not bring it again for month.

5171. Does that arise from their own carelessness; or is it from a notion that the shopkeeper cannot be troubled entering the goods in a book as they are got, because he is too busy to do so?-I never knew that to be the case; but I have heard many of the men say they had confidence in their merchant, and that they would not be bothered to keep a pass-book.

5172. When that was the case, did you, at the settlement, read over the accounts to the fishermen item by item?-Yes, in most cases; but some men won't be at the bother of even hearing their accounts read over. They just say, 'We know you won't cheat us,' and they hear the sum-total.

5173. Then it is their own fault if they do not know what their account contains?-Of course it is.

5174. Is it the men who make the settlement with you, or their wives?-The men, generally.

5175. Then they don't know what they have got out of the shop, if it is their wives who have been dealing there?-Probably not; but there is a whole day given to the settlement with these men, and they have plenty of time to examine into their accounts if they think there anything wrong.

5176. Did you do anything in hosiery?-I did.

5177. When you bought hosiery goods, did you usually send them to the south?-Yes.

5178. Did you send any to merchants in Lerwick?-I generally sent knitted goods to the south; and the worsted I sent to Lerwick.

5179. You bought worsted yourself?-Yes; yarn made by the country people themselves with their own wool.

5180. What is the usual price for Shetland worsted?-From 2d. to 7d. per cut.

5181. That comes to how much per pound?-We never take it by the pound; we always take it by the cut. 7d. a cut would, I suppose, be about 2s. 6d. per ounce, or 40s. per pound.

5182. Would not that be very fine?-Yes.

5183. Would it be the finest Shetland worsted that is made?-I think it is. I have never bought any finer than that, and I have not been aware of any being bought finer.

5184. Then you sold that to merchants in Lerwick at some per centage of profit to yourself?-Not one cent. I never, in all my experience, got a cent for worsted beyond what I paid for it, and I never asked it.

5185. Do you think the worsted you have mentioned is the finest and dearest worsted that is sold out of the island to any merchant?-I do.

5186. Did you ever know of any worsted being sold out of Yell as high as 80s. or 90s. per pound?-I may be making a mistake the weight. I was guessing 4 cuts to the ounce; but perhaps I may be below the mark. The 7d. worsted I know is very fine; but never weighed it, and I may be making an unintentional mistake in that respect.

5187. The 7d. worsted might be lighter than you suppose, and therefore a pound of it might be more expensive?-Yes.

5188. Is it a common thing to have worsted so fine as that?-No; it is the exception.

5189. The average will be a good deal lower?-I should think 3d. would be about the average.

5190. In dealing with people in Yell, you keep an account with the fisherman?-Yes.

5191. Is there any separate account kept for supplies with the wife and family?-Yes; there are separate accounts kept with them. I don't suppose there are many families in the north in which each member, after arriving at a certain age does not keep a separate account.

5192. Is that in consequence of their being employed in the fish trade, or from their having hosiery of their own making to dispose of?-I don't think it is; but the husband or father is generally at the fishing, and he supplies the heavy goods that are required for the family-meal and such like-so far as he is able. Then the wife has wool, which she either spins into worsted, or perhaps may sell. She comes to the merchant herself with it and makes her own bargain. Perhaps she may be due a little when she comes with this day's supplies for stuff that she has been buying, and anything she is due may be put to her own account; the next day she may have a little over, and that is credited to her account. Then the girls, as soon as they are able to knit, go to the shop on their own account too with their knitting and with their spinning, and the merchant upon his responsibility opens an account with them, if he thinks proper; and they go on with these accounts until perhaps they are married.

5193. Then hosiery is generally paid for in Yell with goods?- There is seldom anything asked for except goods.

5194. The account for goods is added up on the one side, and the account for hosiery on the other, and it is squared up now and then?-The value of the hosiery is generally given in goods at the time when the hosiery is sold.

5195. In Yell the hosiery is always sold; it is not made to order?- No; there is no making to order in Yell.

5196. Is there a separate book kept for those dealings with the females from that in which you enter your dealings with the fishermen?-I think in most cases there is a

separate book. At any rate I kept a separate book, but I cannot speak for others.

5197. It has been said that that book is called the women's book: is that so?-That was the name I gave to it.

5198. But you don't know whether other merchants give it that name?-No; but I gave it that name because I had no other entries in it except the accounts had against women.

5199. I understand it was only the home-fishing that you engaged?-Yes.

5200. You had nothing to do with the Faroe fishing?-No.

5201. Do you think it would be any advantage for the merchants or for the fishermen if the price to be given for the fish were fixed at the commencement of the fishing season?-I think that would be an advantage to the merchants, but not for the fishermen.

5202. How would the merchants benefit by that?-Because they would then have no bargain to make with the fishermen.

5203. They would have to make a bargain at the commencement of the year?-Yes; but suppose the bargain were to be, that the fish were to be paid for at 8s. per cwt.; in that case the fishermen would require to own his own boat and his own lines, and furnish them himself, and the fish-curer or merchant would have no risk and no loss, but would just pay exactly for what he got. But in the case as it at present stands, the merchant has to furnish the boat and lines, and salt, and everything connected with the fishing, and he has the chance in North Yell, as is very often the case, of losing £5 or £10 or £15 worth of lines in one day in the deep water. The lines are often left there, and the men cannot get them.

5204. In what why does the merchant furnish the boat to the men?-He buys the boat, and hires it, as well as the lines, to six men.

5205. What is the amount of the hire?-£6 per season for boat and lines.

5206. And that sum is deducted from the credit side of the fisherman's account?-Yes. The six men come forward to me as a fish-curer, and they wish me to [Page 129] employ them for the fishing. I do so, and I give them a boat which, if it is a new boat ready for sea, will cost £20. I also give them new lines, which, along with the boat, will cost altogether from £35 to £40. They agree to pay me £6 of hire for that for the time they use it, and to deliver the fish caught by them with these lines and in that boat to me. No price is fixed for the fish, but it is the general understanding that they are to be paid at the highest currency of the country. Well, they go to the fishing, and perhaps the very first day, as I have known to be the case, they may have lost £15 worth of lines; and as soon as they come ashore, they come to me, and I have to give them other £15 worth.

5207. Do they not pay for the lines they have lost in that case?- Not one penny; I take the risk. The sum which I charge covers all risk, and that is all I get.

5208. Then the fishermen have not much inducement to be careful of the lines or of the boat?-Oh yes; because if they lose lines, they lose fish; and if they lose the boat, they stand a chance of losing their own lives. I have not been a fisherman myself, but I should fancy that no fisherman would willingly lose lines if he could help it.

5209. Is it not the case that fishermen sometimes buy the boat from the curer, and pay for it by instalments running over a certain number of years?-Not in Yell.

5210. You have had no experience of that system of dealing?-I cannot say that I have.

5211. Do you think it is of great importance to a fish-curer here to have fishermen bound to fish for him? Does it tend greatly to ensure his success in the fishing trade?-I don't know very well how to answer that question. I had fishermen bound to me during the period of my lease-about sixty of them I suppose.

5212. Was that a lease which you held of an estate in Yell?-Yes; Major Cameron's.

5213. Did you lease the whole of Major Cameron's property in North and Mid Yell?-Yes.

5214. Were these men all bound to fish for you?-They were leased over to my brother, and I wrought out the business for him, but the men were never compelled in any way. About one-third of them were south-going men, and I should think about one-sixth of them fished to others.

5915. You did not enforce the obligation which you understood them to be under?-No; I never enforced it in any case but one.

5216. Had you always enough men to man your boats with?-We had men belonging to other proprietors, and other proprietors had men belonging to us, and none of us ever enforced that obligation except in one case, and that was merely in order that we might put out a boat to sea. There were five men engaged for the boat, and we could not get another free man, so we had to take one.

5217. Was that long since?-Yes; it was in 1855. But I know of men who have been offered this year and last year to get their money every Saturday night, or every day when they landed fish, and they would not accept it. These were men who were thoroughly clear.

5218. Was it wages they were offered, or a price for the fish they delivered?-A price for the fish they delivered. Suppose they delivered 20 cwt. of fish to me, I would pay them for these fish.

5219. How was the price to be fixed in that case?-It would be fixed at once.

5220. Would it be fixed at the beginning of the year?-Yes.

5221. Is it long since you proposed that arrangement to any man?-It was at the settlement of 1870.

5222. Did you offer to pay certain men in that way at that time?-I did not do it, because I was not in the fishing at that time, but I was present when it was offered. It

was the parties for whom I was curing fish at that time who offered the money.

5223. Was that Spence & Co.?-Yes.

5224. The offer was made to men in Yell?-Yes.

5225. And the men declined that offer?-Yes; they declined taking it. They said if they had as much money as would carry them through the year, they would rather not take any more, but that they could trust to the merchants.

5226. Was that offer made to many men?-To all their men in Yell. There were 30 boats, with six men in each boat, and that offer was made to the whole of them at Cullivoe. The same offer was repeated this year, and they still would not accept of it. They accept of not take their cash until the end of the year.

5227. Was that because they wanted to have something at the end of the year with which to pay their rent?-I suppose that would be one of their reasons; but they were afraid that if they got their cash every Saturday, or every fortnight, or every month, they would spend it carelessly and thoughtlessly, whereas they did not have the money, they could not spend it.

5228. Are there any leases in Yell now?-Scarcely any.

5229. Have there been leases introduced lately?-No; but there have been some offered-on Major Cameron's estate, and on Mr. Irvine's.

5230. Do these leases contain any conditions as to fishing?-No.

5231. Were the conditions such as would interfere with fishing, or do you know anything about that?-Mr. Irvine's leases were not such as to interfere with the fishing in any way, and I think there were three persons who accepted them. With regard to the other leases, I do not say they were such as would interfere with the fishings. There was a certain amount of work required to be done on the farms during the year, but I think all that was required could have been done when there was no fishing being prosecuted. At that season, what I would call the fishing was not going on.

5232. But the tenants have not accepted that offer?-There are two on Major Cameron's property who are under lease, I believe, or who understand they are under leases. I am not aware if the lease has ever been signed; I think not.

5233. The poor-rates in your parish, I understand are not so high as in some parts of Shetland?-I suppose not. They are 3s. for 1872-1s. 6d. on the proprietor and 1s. 6d. on the tenant.

5234. Can you say, from your experience as an inspector of poor, that pauperism is promoted in any degree by the system which prevails of settling only once a year?-No; I should not say it was increased in any way by that.

5235. Does not that system of long settlements induce people to be a little careless about their money, and improvident?-There are a certain class who, if they had money, would spend it. That class are pretty well looked after by the fish-curer; they are only allowed advances in such small proportions as enable them to get through

the year, and to be as little in arrear as possible at the end. If these same parties had the money in their hands, I am certain it would not last them so long as it does in the fish-curer's hands.

5236. That is to say, he will only allow them a certain amount of supplies from the shop?-Yes; so much a week or a fortnight.

5237. Or cash if they want it, but to a limited extent?-Yes; I should think that cash would be given to a free man.

5238. But not to a bound fisherman?-Not unless it was for a necessary purpose-to purchase something, for instance, which the merchant cannot supply.

5239. If a man is bound to fish to a proprietor or tacksman in Yell, is that man bound to deal at the shop of his employer?-By no means.

5240. By a free man, do you mean one who is not in debt?-Yes. I don't mean to say that cash would be absolutely refused even to a man who was in debt, but it would not be given to him unless it was for a necessary purpose.

5241. Can you explain how beach boys are generally employed in Yell?-Yes, I ought to have a pretty good idea of it.

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5242. Is an account opened at the shop at the same time that the engagement is made in the beach boy's name, from which he can get supplies if he wishes them?-Yes, sometimes.

5243. So that when he becomes a beach boy, he is virtually independent of his father?-Not always. The fish-curer would prefer not to open an account with him until the end of the season, because generally, when a beach boy gets an account opened, he will overrun it if he possibly can. Therefore we prefer not to open an account with the boys themselves, but to deal with their fathers, which we very often do. In the case, however, of an orphan boy, or a boy who has got extravagant or helpless parents, we open an account with himself.

5244. Is there any difficulty in procuring the services of beach boys?-I never knew of any difficulty. I have cured fish since 1859, and I never had power over one, and I never wanted to have it.

5245. You had not power over them even where you had the fishermen bound to you?-No; they have not been bound for the last seven years while I have been curing.

5246. Is it seven years since those fishermen on Major Cameron's estate were bound?-Yes.

5247. At that time did the obligation apply to their families?-No.

5248. Then the boys were not obliged to be engaged to you as beach boys?-No; we took any boy who was most convenient for ourselves, without taking into consideration whose tenant his father was.

5249. It has been said that there is an inclination on the part of the fish merchant to get the beach boys into his debt, so as to secure their services in the following year: is there any foundation for that statement?-I have heard it said, but I never could believe it was the case.

5250. Are the boys always quite ready to engage for that work?- They are always very anxious to engage for it, because always before they enter on hard labour they are able to take a turn on the beach, and they get something for that.

5251. But what they get for it is generally settled for in goods at the end of the year?-No, not generally. If a boy runs an account himself, it is settled in goods; but if it is an account with his father, it is settled in cash.

5252. May the proportion of the boys who have an account of their own be about one-half or about one-third of them?-I should say that for the last three years three-fourths of them have got an account of their own; but then they were not boys. Although they get the name of boys, they were old men and women.

5253. You mean that women are employed in that part of the work?-Yes.

5254. What are their wages?-In 1870 the parties under my control had from £4, 10s. down to 35s. according to age and ability; and in 1871 the people employed were all boys except one man: the boys had from 25s. to 35s., and the man had £3.

5255. Are you still in the fish-curing business?-Yes; I cure their fish for Spence & Co.

5256. Have you a shop now?-No.

5257. Then you simply manage their curing business?-I merely dry their fish for them.

5258. And the persons you have spoken of just now are still employed by you for the purpose of curing?-Yes.

5259. How are their wages paid?-As I was curing Spence & Co.'s fish, if they chose to go to Spence Co.'s at Uyea Sound in Unst, they got supplies there in an account, but only about one-fourth of them did so. The others got their supplies perhaps in the neighbouring shops. I cannot say where they got them, but they got cash from Spence & Co. at settling time.

5260. Was that cash advanced during the season, or was it all paid at settlement?-It was all paid settlement. If they asked for an advance, they would get it, but I was not aware of any being advanced.

5261. But such advances as were made by Spence and Co. were made by taking goods from their shop?-Yes, so far as I know. I also bought kelp for Spence & Co.

5262. Is there much done in kelp there?-Yes, good deal.

5263. What is the nature of that trade? Do you employ a number of people to gather the sea-weed?-It is women who do that. They form themselves into companies of two or three or four; they gather the seaweed and make the kelp, and then bring it

to a merchant to sell. I had a lease of Major Cameron's kelpshores, but I transferred that lease to Spence & Co, and afterwards I bought the kelp and delivered it over to them.

5264. Did the women pay anything to the proprietor for leave to collect the sea-weed?-No; but I paid 20s. a ton, or rather Spence & Co. did.

5265. You paid that money for the exclusive right of purchasing from these women?-For the exclusive right of manufacturing kelp., We can employ people to collect it if we choose, but we think it better just to allow the women to do it themselves, without being forced in any way; and then we paid them 4s. per cwt. in cash for it, while we paid 20s. a ton to the proprietor and taxes.

5266. What taxes are there on the kelp?-Poor-rates, both as proprietor and tenant.

5267. Then 4s. per cwt. is the whole payment which these women receive for gathering the kelp and manufacturing it?-Yes.

5268. They manufacture it and bring it to you?-Yes.

5269. Are they paid entirely in cash?-They have been paid almost entirely in cash this year, but not altogether.

5270. They have the option of running an account for it at the shop?-Yes, if they choose to do so; but if they ask cash, they get it.

5271. Are you aware of any restriction being imposed upon tenants in Yell with regard to the disposing of their cattle or other stock on their ground?-I have known an instance or two of that during my experience in North Yell, but very seldom.

5272. Has that been done when they have been in debt to the merchant?-Yes; if they were in debt, almost beyond redemption.

5273. Then the merchant has interfered as a creditor merely?-Not the merchant, but the proprietor.

5274. Was it for his rent that he interfered?-Yes.

5275. In these cases was the proprietor a merchant as well?-Yes, in some cases.

5276. And he has interfered both for his rent, and for the account due to him as a merchant?-I cannot say about him being a merchant. I always understood it was done for rent. I have known of cattle being taken according to law for a shop account.

5277. You mean that they were poinded?-Yes, by a Sheriff's warrant.

5278. But is there any practice in Yell of a man marking his cattle as belonging to a merchant to whom he is in debt?-No; I never knew that done.

5279. Or coming under an obligation not to sell them to any one except that merchant?-I could quite believe that a tenant would offer his cow or his pony, or whatever it might be, to the proprietor; but I am not aware of any one being compelled to do so in North Yell. I have myself marked a cow of a defaulting tenant when I was acting as my brother's agent, and as lessee of Major Cameron's property, but that was for the rent.

5280. Did you mark it and allow it to remain on the ground?- Yes; I allowed it to continue in the tenant's hands until I might think fit to remove it.

5281. Was that man in debt to you as well?-He was in debt as a tenant only for rent.

5282. Was he not also in debt for goods supplied?-No; because he was not a fisherman; he was a sailor.

5283. Would you give a higher price for kelp than 4s. a cwt. if the women had taken payment of it in goods?-No; there was an understanding at one time that parties would get 6d. less if they took it in cash, [Page 131] but for the last two years, in my experience with Spence & Co., and formerly with myself, the women have been quite at liberty to take cash or goods, and 4s. was the price. According to the terms of my lease, I was bound to pay nothing less than 4s. to the parties who made it.

Lerwick, January 9, 1872, JAMES BROWN, examined.

5284. You are a tenant under Mr. Bruce of Sumburgh at Toab, Dunrossness, and you fish for him?-Yes.

5285. You have heard the evidence that was given by William Goudie and the other fishermen to-day?-Yes.

5286. Do you know it to be correct with regard to the system of fishing there, and the obligation to fish for Mr. Bruce of Sumburgh?-Yes; so far as I can remember, it is correct.

5287. Did it happen some time ago that you had sold fish to another than Mr. Bruce?-It was supposed so.

5288. What was done in consequence?-My house was offered to be let to another tenant. It was publicly advertised at Messrs. Hay's shop at Dunrossness.

5289. The you see the ticket put up?-No, I did not see it.

5290. But you knew of it?-Yes.

5291. And in consequence of what you heard about it, did you go to Mr. Bruce?-Yes.

5292. What did you say? Did you ask why your farm was to be let?-Yes. He told me before I had time to speak that he was forced to offer my house to another tenant. I said there was surely a cause for that, and he said that the cause was that I was selling fish to another man.

5293. To whom did he say you were selling fish?-To Robert Leslie.

5294. Was that the case?-No; I proved it not to be the case. I told him I would bring proof of that if he required it, but I was never called upon to do so.

5295. You satisfied Mr. Bruce that he was under a mistake, and you still hold the same ground?-Yes.

5296. Had you reason to believe that you would really have been turned out of your ground for selling your fish to another than Mr. Bruce if you had done so?-I had every cause to think so.

5297. Why?-Because at the commencement, when he took the fishing into his own lands, there was a letter read in my hearing, to the effect that we were to deliver our fish to him.

5298. Is that the letter which Laurence Smith spoke of to-day?- Yes, the same letter. It was read by John Harper in my hearing.

5299. Do you know whether the meal is dearer at Grutness store than you can get it elsewhere?-Yes; I have got a little there.

5300. Have you bought it cheaper elsewhere?-Yes; I have bought it in Lerwick, and I found it cheaper there than at the store. It was in 1869 that I bought a boll of meal at Lerwick, and I paid £1, 3s. for it, while their meal that season was 24s.

5301. Was there any difference in the weight of the boll at Grutness?-I could not prove that. I had a running account there, and I sometimes got a boll, sometimes half a boll, and sometimes a peck; but when I came to settle, it was all run up into bolls, and I paid 24s. a boll for it.

5302. Had you any reason to suppose that you did not get the same weight in a boll from the store that you got anywhere else?-I made an objection to that, and I was told there was a little deduction made when I got 32 lbs. for a quarter boll instead of 35 lbs, but what that difference was I never knew.

5303. Who told you that?-Gilbert Irvine, the factor.

5304. Did he tell you that he only gave you 32 lbs. for a quarter boll?-I saw the weight myself. What we call a quarter boll is 35 lbs, and what is called a lispund is 32 lbs.; so that there should be a difference between what we call boll weight, and 32 lbs. for the quarter boll.

5305. Then you suspect or believe that you only got a lispund instead of a quarter boll?-Yes; I am under that impression, whether I am correct or not.

5306. Had you not the means of satisfying yourself about that?- Perhaps I might if I had inquired, but I never made any strict inquiry about it.

Lerwick, January 9, 1872, HENRY SINCLAIR, examined.

5307. You are a tenant on the Simbister estate at Levenwick?- Yes; and I was formerly bound under a tacks-master.

5308. That was Robert Mouat?-Yes.

5309. You were bound to fish for him?-Yes.

5310. Who told you that you were so bound?-He told me himself.

5311. Did anybody else tell you that?-No.

5312. Was it understood in the neighbourhood that you were bound to give all your fish to him?-Yes; all my neighbours understood the same.

5313. Did you at any time deliver your fish to another?-Not one tail. I delivered them all to him during his tack.

5314. Was there one time when he gave you warning to leave?- On one occasion, when we had a good fishing, he sent away 7 cwt. of wet fish and kept it off us. My son was fishing with me at the time, and he went to Mouat; and they rather cast out about it at Mouat's house, and he told my son then that we should not be allowed to sit.

5315. Then it was because of a quarrel about the quantity of fish entered in the fish-book that you got your warning?-Yes.

5316. You were not warned out because you gave your fish to another dealer?-No; that was not the cause of it. Then, Mouat would not give me half of the land to sit in, in case my son sat beside me.

5317. Do you mean that he wanted your son to fish for him?-No; he thought that because they had cast out, if I got any land at all, my son would stay beside me; and that upset my son and made him lose his senses, so that he is now in the Asylum.

5318. How did that upset your son?-Because he was of a quick spirit, and he was grieved that we should have been put out of the land.

5319. But you were not put out of the land?-We were. I went to the sea, and Mouat took my wife to a piece of the hill-side and showed her there where we should build our house on a piece of the open hill.

5320. Did you build your house there?-Yes. He said that if we would not build our house there, we might lie at the back of a dyke.

5321. Did you fish for him after that?-Yes.

5322. Were you bound to do so?-My son would not fish, but I was still upon the land, and I just fished for him.

5323. Did you get your provisions at Mouat's store at Sandwick?-Yes; I could do nothing else than go to him, and he has brought me to poverty.

5324. Did you get your meal and other things there?-Yes; I had to go there for them all.

5325. Did you run an account with him, and settle it when you settled for your fish at the end of the year?-Yes.

5326. Had you ever a balance to get in money?-I had money in his hands when I was put out of the land.

5327. Up till the time when Mouat left the place, were you getting money from him year by year?-I was just getting out of the shop what I required, for I never got into debt to him.

5328. If anything was over did you get it in money [Page 132] at the settlement?-No; but the worst thing he did was he last time when he was going about

looking for cattle which he could pick out and put away.

5329. Did he pick out any from you?-Yes. He took the last one I had, and he promised to give me a cow for it next week, but it has never come yet.

5330. Did you get any meal at Mouat's store?-The greater part of it was fit for nothing but the pigs.

5331. Could you have got it better at any other place near you?- Yes; but we could not get money from him, and therefore we had to take the meal from his store.

5332. Would he never advance you money for your fish?-No. 5333. You are not under that obligation now, but you can fish for anybody you like?-I am not fishing now; I am too old.

5334. But the people thereabout can fish for anybody they like?- Yes.

<Adjourned.>

Brae: Wednesday, January 10, 1872. <Present>-Mr. Guthrie.

JAMES HAY, examined

5335. Are you a fisherman at Mossbank?-I am a fisherman, but I have not been at Mossbank. I live at a place called Firth, about a mile from Mossbank, to the south and east of it.

5336. Have you a bit of land there?-Yes; a small farm.

5337. Who do you fish for?-Mr. Thomas Adie. I go to the ling-fishing in the summer time.

5338. What bargain do you make with Mr. Adie about selling your fish to him?-I have never had any bargain made when I commenced to fish

5339. You just make up a boat's crew, and you are paid for your fish at the end of the season according to the current rate?-Yes

5340. Is it the understanding with all the boats' crews that they are to be paid at the current rate?-Yes.

5341. When is the price of your fish paid to you? At Martinmas when we settle.

5342. Have you an account in Mr. Adie's books for supplies to

yourself and your family in the meantime?-Yes.

5343. Do you deal at his shop for all your provisions and your purchases of cotton and other things?-I do, for the principal part of what I need, but not altogether.

5344. How far do you live from Mr. Adie's nearest shop?-About 71/2 miles; his shop is at Voe.

5345. Do you always go there for what you want-Yes; generally I do that, unless sometimes, when I am needing some small things, I may go to another: but I am not bound to go to his shop unless I choose to go.

5346. Then why do you go so far?-Because I generally fish to Mr. Adie, and I have the greatest part of my dealings with him. I have not been accustomed to shift very much, unless it might be an inconvenience to me, and sometimes I have gone to another shop.

5347. How long have you fished for him?-For about fourteen or fifteen years.

5348. When you settle in November or December, have you generally a balance of cash to receive?-Sometimes I have and sometimes not.

5349. Does that depend upon the season?-Yes.

5350. When it has been a good season, you have generally something to receive?-Yes.

5351. How much did you get at last settlement in cash?-I think I got about £19 in money.

5352. What was the amount of your account for goods furnished at the shop?-I had more things in Mr. Adie's hands then than my summer's winnings; I had cattle in to sell.

5353. Had you sold cattle to Mr. Adie as well as your fish?-Yes. I had sold a young stot and a cow; I think they came to about £8.

5354. Were they sold at a public auction?-Yes.

5355. And bought by Mr. Adie there?-Mr. Adie. became good to pay me for them. I could not say exactly who was the purchaser.

5356. The price of these animals was included in the £19 you got in cash?-Yes; I paid my shop account, and then I got that money.

5357. Then, deducting the price you got for your cattle, there is £11 remaining as the price you got for your fish?-Yes; but I owned the boat myself, and I had the other men's hires to get in.

5358. Were these accounted for to you through Adie's books?- Yes. There were five of these hires to be paid; there were six of us in the boat altogether.

5359. What would be their share of the hire?-I think the hire of a boat is 50s.

5360. Then each of them would pay about 8s. 6d.?-Yes.

5361. So that would be 44s. off for boat-hire, leaving little less than £9 as the price of your fish, after deducting your shop account?-No; my share of the summer winning was more than that.

5362. But I am asking you what you got in cash at settlement?-I think it was about £19, or perhaps a little more.

5363. And £8 was taken off for the cow and about 44s. for the boat-hire?-The price of the cow and stot and my summer's earnings were all summed up together, and came to a certain amount; what I had got from Mr. Adie came to a certain amount too, and when I paid that off I had about £19 to get in clear money.

5364. But after taking the price of the cow and the value of the boat-hire off the £19, there would be something like £9 remaining: was that £9 due to you for anything besides your fish? Was anything due to you by Mr. Adie, except the price of the cow and the boat hire, and the price of your fish?-I don't remember anything else.

5365. Then £9 would be something like the price of your fish?-I don't remember.

5366. Have you a pass-book?-I have one but I have not brought it with me.

5367. How much was your shop account?-I think it was about £17.

5368. Then your fish would be worth about £26 altogether: was that the value of your take of fish last year?-No; my fish did not come to that. I think my sixth share came to about £18; but then, as I owned boat of my own, and had the expense of her to pay I was paid a little more than the others, so that I might have more than £18 to get.

5369. How do you square up your account at the shop and your account for fish at the end of the year?-At the end of the year I may have more things put into Mr. Adie's hands than my fishing. For instance last year I had that cow and stot, and perhaps some other things, and these and my fishing are all put together to my credit. Then my out-takes and things I have been requiring from Mr. Adie are put too, and the amount they come to is stated to me.

5370. Is that read over to you, or have you got it [Page 133] already in your pass-book?-Sometimes I have a passbook, and sometimes I don't require one. Sometimes I don't fash with it; that is the truth.

5371. Why is that?-I thought there was very little need for it, because Mr. Adie and I never disputed about these things, and when I had a pass-book I was not very particular about keeping it.

5372. Do you get money advanced to you in the course of the season if you want it?-I never was refused it when I asked for it.

5373. Is there generally something due to you for fish at the end of the season?-Sometimes I have been due Mr. Adie, and sometimes I have had a little in his hand; but, taking one time with another, we are generally square, and I am happy to say we are square in the meantime.

5374. Is there anything you think could be mended in that way of settling your accounts?-I don't know, I am sure.

5375. Was there anything particular you came here to-day to say about it?-There is one thing I would say, that we fishermen never know what we are to have when we commence our fishing. We work away as if we were blind. We don't know what the price is to be until the time of settlement, and then we must just take what currency is given, and we can get no further, and can make no more for ourselves.

5376. Do you think you could make any better arrangement than that?-I don't know, I am sure.

5377. Do you think you would be better off if you made a bargain for a fixed price to be paid to you at the delivery of your fish?-I might be better off with that in one season, and I might be worse off in others; but if I made my bargain for that, I could not grumble, although the fish could be paid better. At settlement I must stand by my bargain. Then, if the price of fish was less, the merchant might lose; so that I don't know which way would be best.

5378. But in that way you would know what you were working for?-Yes; and I would have no reason to grumble if I had made a bargain, even although I could have made a better thing of it in another way.

5379. Have you ever been asked to make a bargain of that kind?- No.

5380. Have you ever proposed it yourself?-I have turned it over, and said that it was a hard thing for a poor fisherman like me to fish and not know what I was fishing for, when other seamen knew what they were working for; but I never came to any conclusion about it.

5381. Do you think, if you were paid in that way in the course of the season as the fishing went on, you could make a better use of your money by purchasing your goods at other places than Mr. Adie's shop?-I could not say much about that.

5382. Could you buy your goods as well and as cheaply nearer home?-I don't think it, because the merchants appear to be all much about the same in our neighbourhood. They have all one price for their articles.

5353. Are the merchants about you all engaged in the fishing business as well as in the shop business?-Not all of them; but some of them are. Mr. Pole engaged in it; he is the principal merchant near us.

5384. Are there some of them who are not engaged the fishing business at all?-There is Robert Murray at Swinister; he is not much engaged in it. His shop about half a mile from where I live.

5385. Would you be as well served there, and as cheaply, as you are at Mr. Adie's and at Mr. Pole's?-I don't think would be any better.

5386. Would it be any advantage to you to have your money at your own command?-I might think so. A man is always glad to have some money to lay his hands upon.

5387. In answering my question in that way, do you mean to say that your money is not at your own disposal?-What I have to get when I settle I get without a word, and it is at my own disposal; but I would not like to take money from a man when I was due him anything. I would like always to pay my debts; and what I had over when I would know was my own, and I would make the best of it that I could.

5388. Does that mean that what money you get before settlement is not your own, and is not at your own disposal?-When I was standing in need of anything and wanted a little money, which I did not have myself, I could go to Mr. Adie when I was fishing for him, and ask him for £1 or £2, and he would give it to me, and then when I settled I would pay it back to him.

5389. That is to say, it would be charged against you at settlement?-Yes.

5390. But do you mean to say that if you get £1 or £2 in that way, you would not be at liberty to spend it as you pleased, and to buy goods with it at any shop you liked?-No. I could go where I liked with it, if I got it from him, because, of course, I would pay it back to him again, and he would not care what use I made of it.

5391. Would you rather have more cash advanced to you during the season than you have in an ordinary way at present, and not get all your goods at Voe?-I could not exactly say about that; I might. If I was paying down cash for the goods, I might get them a little cheaper than by marking them down.

5392. Would you get them cheaper for cash at Mr. Adie's own shop at Voe?-Well, money is a thing that every person is always glad to get hold of; and he might give me 1d. or 2d. down upon an article for ready money, which I would not get if he were to mark it down in his book.

5393. Do you know that you get a discount of 5 per cent. there for cash?-I have got it before. I have got 5 per cent. discount when I settled.

5394. Was that on goods that were entered in your account?-Yes; I have got that. I am not perfectly sure if I will get it this year, but I know that I have got it before.

5395. If you get that when you settle at the end of the year, would you get anything more if you were to pay in cash?-I am not able to say.

5396. You just think you would like to have your money in your hand as you deliver your fish: is that the notion you have?-I don't know whether it would be better to get it in my hand then, or to wait until I got it all at once at the conclusion.

5397. Are there some advantages in both ways of dealing?-I believe there are.

5398. Perhaps you would spend it too fast if you had it in your own hands?-I don't know about that. I would not like to spend it if I had it, unless it was for something that I really required to spend it on.

5399. Are you under any obligation to go to Mr. Adie's shop for the goods you want in the course of the year?-None that I am aware of.

5400. You have never been told it of course; but is it a great deal more convenient for you to go there than to deal at another shop?-No; it is not more convenient. I could go to it shop somewhat nearer; but still I don't think I would be any better; and as it has always been my custom to go there, I just continue to go.

5401. Is it only because it is your custom to go, or is it because you are in the way of delivering your fish to Mr. Adie, that you go to his store?-Mr. Adie has been very obliging to me many times by helping me when I could not help myself, and therefore I always felt a warm heart towards him, and went to his store.

5402. But is it the way with fishermen here, that they got to the shop of the man that they sell their fish to?-I am not able to speak to that except for myself.

5403. Do you not know what your neighbours do? It depends on the circumstances that my neighbours are in. If they are indebted to the man they are fishing to, of course they will go to that man, and perhaps have very little to go to him with.

5404. Are those neighbours of yours who are so indebted also likely to engage to fish for the same merchant during the following season?-Yes. When man is short of money, and has not enough with [Page 134] which to pay his land rent, he may go to the man he is fishing to, and he will help him with what he requires, but the understanding in that case is that he will serve him at the fishing for the rising year. That is generally the way it is done.

5405. Do you mean that when a man gets advances at a merchant's shop, it is understood that he must fish to him in the coming year?-Yes; that is generally understood.

5406. Have you had to do that yourself?-No; I have never been so hard up as that in my time.

5407. You have never been behind at the settlement?-Not very often. Sometimes I have been, and I have got advances from Mr. Adie without a word; but I was intending to fish for him in the coming year before I asked them.

5408. And you would make as good a bargain with him as with any other fishmaster?-I have always thought so.

5409. So that you did not fish to him because you were under any compulsion?-No.

5410. Were you under any obligation to do it because you were in his debt?-No. I have never been so deep in his debt but what, if I had it to do, I could have made some effort to get myself clear.

5411. Therefore the answer you previously gave only meant that there might be some men among your neighbours so far in debt that they were obliged to fish to a particular merchant?-Yes; when he supplied them with goods.

5412. Do you think there are many of those men among your neighbours?-I have no doubt there are more that way than there are the other way.

5413. Do you think that arises from the length of time that passes before you can get your money, or is there anything else you can think of that might mend that state of matters?-I cannot say.

5414. Is there anything else you want to tell me about the way in which dealings are carried on here?-No.

5415. You know you are on your oath, and you bound to speak the truth, and nobody can hurt you for anything you say to-day?-I trust that I shall say nothing but the truth, so far as I know.

5416. From whom do you hold your land and house?-From Mr. Bell of Lunna.

5417. Are you not bound by the terms of your lease to fish for any particular person?-No; he did not bind me to do that. I got liberty to serve myself and to fish for

any one I pleased when I took the land from him; only if I went to Skerries I would have had to fish for John Robertson, who had a tack of Mr. Bell's land; but if I fished in any other way, he did not stop me from fishing for any person.

5418. But if you went to Skerries, and fished there during the summer, you would be bound by your bargain to fish for Mr. Robertson?-Yes.

5419. How do you know that that is an obligation upon you?-I was told so by the proprietor when I took the land.

5420. Was that told you by Mr. Bell himself?-Yes.

5421. Did he tell you at the same time, that if you fished elsewhere than at Skerries, you were at perfect liberty to fish for any one you liked?-Yes. He told me I was not bound to fish for Mr Robertson unless I fished at Skerries; but that if I fished at Skerries I must fish for him.

5422. Are there people in your neighbourhood who go to fish at Skerries?-There is one boat which generally fishes there.

5423. But they might go elsewhere if they chose?-I cannot say for that.

5424. Do you know of any person who has been threatened or turned off his ground on the estate of Lunna in your neighbourhood for refusing to fish to a particular person?-I do not.

5425. Are the fishermen there all free?-About us they are, so far as I know: that is about Firth, a mile from Mossbank. There are some of Mr. Bell's tenants who have fished along with me, and there was nothing said to them any more than to me because they did not fish at Skerries.

Brae, January 10, 1872, ANDREW TULLOCH, examined.

5426. Where do you live?-In a town called Brough, near Mossbank.

5427. Whom do you fish for?-I have been fishing for myself for two years, and my fish have been sold to Mr. Leask and delivered at Lerwick.

5428. Do you cure for yourself?-Yes; I get a man to cure my fish.

5429. Do you engage a man to cure the whole fish of your boat's crew?-Yes; it is a small boat. There are three men and two boys in the crew.

5430. Do you think you make more of your fish in that way than if you delivered them green to a fishcurer?-I think so.

5431. Does Mr. Leask buy them from you cured?-Yes.

5432. He also cures fish himself?-Yes.

5433. When is the price fixed for your fish?-I think it was on 1st November last that we were paid.

5434. You take all your fish to Lerwick at once, once a year, and you get your money paid to you at the time?-Yes.

5435. Is it paid to you in cash?-Yes.

5436. Do you deal at any shop of Mr. Leask's?-No. I commonly deal at Mossbank, at Messrs. Pole, Hoseason, & Co.'s shop.

5437. Do you deal for cash?-Yes.

5438. You pay ready money for what you get?-Yes. Sometimes I take things on credit too; but I am not compelled to do it. I need not do it unless I choose.

5439. Then you are perfectly free to fish for anybody you like, or for yourself if you prefer it?-Yes; and I think it is the best way to fish for myself.

5440. Is that a common thing in your neighbourhood?-It is not.

5441. Why don't the men in your neighbourhood adopt that system if it is the best way?-I don't know. I think for myself, and I suppose other people do the same.

5442. On whose ground are you?-I am on ground belonging to the estate of Busta.

5443. Are the fishermen on the Busta estate all free?-Yes.

5444. There is no tacksman over them, but the fishermen as a rule fish to anybody they like?-I suppose they do; at least, so far as I know, that is the case.

5445. In what way do you think you make more of the fish by curing them yourself than by selling them green?-When I cure them or get them cured for myself, and sell them, I think I can get the turn upon them; and I get cash, which enables me to buy my goods where I can get them cheapest.

5446. Do you get goods cheaper at the shop at Mossbank by paying cash than if you were getting them on credit?-No.

5447. Do you pay the same price for goods there in cash as if they were to be settled for at the end of the year?-Yes.

5448. Have you tried both ways?-Yes.

5449. How long is it since you began to cure your own fish?-It is only two years ago.

5450. How much did you make during the last two years for each man's share?-For the last year we had £8, 13s. each.

5451. Do you think that was more than the average of men who fished for other people?-Yes; taking the price of green fish, I think it was.

5452. Do you know what any of your neighbours got for their green fish?-They got 8s. for ling, and 6s. 6d. for cod and tusk. These were the prices I heard.

5453. Were you fishing during the whole season?-Yes.

5454. How many cwts. of cured fish did you take to Mr. Leask?-I think we had thirty odd cwt. of cured fish; one part of that was ling, and one part was tusk and cod. We had about nineteen cwt. of ling and we sold them at £23.

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5455. When you say that the price for ling is 8s. a cwt., that is the price for green ling?-Yes.

5456. And 21/4 -cwt. of green ling make one cwt. dry?-Yes; that is what the fish-curers calculate upon.

5457. So that nineteen cwt. of cured fish would have been something less than forty-three cwt. green, and you got £23 for that?-Yes.

5458. But from that price you must allow something for the expense of curing?-Yes; it would be from £2 to £2, 10s. per ton for curing.

5459. So that you made some profit by selling your fish in that way?-Yes.

5460. Do you think that, when you cure for yourself, you have any benefit by having the money in your hands to buy goods with where you please?-I think so.

5461. Do you buy cheaper when you have the money in your hands?-Yes; we can buy cheaper in Lerwick than we can do elsewhere.

5462. Do you often buy things at Lerwick?-Some times I do.

5463. I thought you said you bought generally at Mossbank?- Some things I buy at Mossbank; but I buy at several places.

5464. If you were fishing for a particular fish-merchant, would you buy more at his shop than you do when you are fishing for yourself?-That is the general way.

5465. What is the reason for that?-Because a great many of the men have not money to go anywhere else.

5466. And therefore they are induced to go where they can get credit?-Yes.

5467. You think that is not such a good way of doing as curing for yourself, and having the money in your own hands?-It is not; but, at the same time, even when I was fishing to a particular fish-curer, I endeavoured to keep my credit; and if I had asked money from him to go on with, I would have got money as well as goods.

5468. It would not have been refused; but I suppose you would have got more advanced to you in goods than in money?-I could not say that.

5469. Suppose that in July, about the middle of the season, when about half of your fish had been caught, you wanted supplies: would you generally be allowed in the fish-merchant's shop to get any quantity of goods you liked on credit?-Yes.

5470. And would you at that time be advanced any amount of money that you chose to ask?-Yes; on a moderate scale. I could get money as well as goods.

5471. Suppose you were likely to get £20 as the amount of your fish account at the end of the season and that one half of the season was over, would they allow you to run up an account at the fish-merchant's shop to the amount of £10 or £12 to the end of July?-I don't know. I never tried the experiment.

5472. But you know the practice among your neighbours and in the shops where you deal: do you think there would be any objection to allow an account to run up to

£10 or £15 for shop goods?-I don't think there would. .

5473. Would there be any objection to advancing you £10 or £15 in money?-I could not say that.

5474. Was that ever tried by anybody you know?-No; I never tried it myself, and I never heard of it being tried, and therefore I cannot say whether it would be allowed or not.

5475. But you have no doubt you would get £12 or £15 in goods?-I have little doubt that I would,-that is, if I were fishing for that particular fish-curer.

5476. What fish-curer were you employed by last?-When I was last employed by any one, it was Mr. Pole, Mossbank.

5477. At that time did you deal at his shop for your supplies?- Yes; for the most part. I dealt more with him then than I have done since.

5478. Your account was settled, at the end of the year?-Yes.

5479. What kind of account had you generally at settling time for supplies to your family?-I cannot recollect exactly how much it was; but sometimes it may have been £3 or £4.

5480. Then you will not be spending so much as that in the shop now?-No; I have not had occasion to do it for the last two years.

5481. Were you under any sort of obligation to deal at Mr. Pole's shop more than at another shop when you were fishing for him?- Not a bit. They did not prevent me from going anywhere I chose. When I chose to ask anything in their shop, I took it at their own price; but if I did not like it, they did not compel me to take it.

5482. Is there anything else you want to say on the subject of this inquiry?-For my part, I have little to say, because I am not so much concerned in it as some men are. I have my freedom and my liberty.

5483. You think that some other men are more interested in these matters than you?-Yes.

5484. In what way are they interested?-Owing to their circumstances; some of them have families, and they must go to the fish-curer and be supplied by him. They get most of their payment in goods, and they cannot get money.

5485. How can they not get money? Is it because they run up an account at the merchant's shop?-Yes.

5486. But they will get money if they ask it?-Yes; they might get money too.

5487. Why is it that they do not get money?-I don't know. What I mean is, that if they run up an account at the shop, they cannot have money of their own with which to buy things cheaper elsewhere.

5488. What makes them run up an account for goods? Is it because they cannot get money easily?-Very likely it is.

5489. But you say they would get money if they asked it?-If they were to ask for money, I don't see any reason why they should not get it as well as goods.

5490. And to the same amount?-I cannot say for that.

5492. Do you mean that the money which they would get if they were asking for it in the course of the fishing season would be regarded as a loan, and not as a payment for their fishing?-No.

5492. Suppose a man were to ask a fish-curer for an advance of money in July, would not that advance of money in July, would not that advance be looked upon as if he were asking for a loan of money?-No; that is not generally the way they would do. If I were fishing to a fish-curer, and giving him my fish, and if I were to ask for some money, it would just go to my account in the same way as if I was taking out goods until the fish were sold at the end of the year when I settled, and my fish would pay for that money as well as for the goods.

5493. But would it not be considered a favour to give money in that way?-I don't think so.

5494. Do you think the fish-curer would be bound to give you money if you asked for it in the beginning of the season?-Yes.

5495. And would he be as ready to give it to you as he would be to give you goods?-No; I don't think he could be expected to do that. However, I cannot say much upon that subject, because I never asked for much money,

5496. Did you think it would be asking a favour to ask for money?-I cannot say.

5497. Did you think the merchant would rather give you goods?- Of course he would expect us to take the goods, from the way of dealing which prevails.

5498. Do you mean that the practice is for the men to get goods advances rather than cash advances during the season and before the settlement?-That depends upon the circumstances of the men who are fishing. Sometimes they require money to pay their rent with, and that is generally advanced to them in money; but when they require goods they usually take them from the fish-curer by whom they are employed.

5499. Do you mean that they don't get money unless it is required by them for some particular purpose?-No; unless they have money to get on their own earnings. If they have money over at settlement time, they will get it in cash when the account is balanced.

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5500. Of course they get it at settlement time; but before then can they get money from the man who employs them, unless for some particular purpose?-No.

5501. Any advances that are made then are made in goods?-Yes; unless they are required in money.

Brae, January 10, 1872, JOHN HENDERSON, examined.

5502. You are a fisherman at Mossbank?-I am.

5503. On whose land do you live?-On Sheriff Bell's.

5504. Are you bound to fish to any particular merchant?-No; not unless I go to the Skerries.

5505. Who do you fish for just now?-For Mr. Pole.

5506. Are you settled with at the end of the year like the other men?-Yes.

5507. Do you deal at Mr. Pole's shop?-Very little.

5508. Where else do you go for your articles?-To any shop where I think I can get them cheapest and best.

5509. You are quite at liberty to go where you please?-I am.

5510. You can deal at Lerwick or at Voe, without running any chance of losing your engagement for the next season?-I can.

5511. Have you generally a good lot of cash to get from Messrs. Pole, Hoseason, & Co., at the end of the year?-I have generally the principal part of my earning to get.

5512. Why don't you deal more at Mr. Pole's store?-Because, when I have money, and can go anywhere else, I can perhaps get my goods a little cheaper.

5513. Is it not handy for you to deal at the Mossbank shop?-It is handy, but it is no great hardship for me to go anywhere else if I think I can get my things a little cheaper.

5514. Can you tell me any articles that are cheaper in the one place than in the other?-Meal, for instance, is always higher in Mossbank than it is in Lerwick. Taking the meal from Mossbank at the retail price, there will be a difference of perhaps 8s. or 9s. per sack on that, and on buying a sack in Lerwick for cash. The sack is 280 lbs. weight, or 2 bolls, and that is a difference of 4s. or 4s. 6d. per boll.

5515. When did you try that?-I have tried it now for a good few years.

5516. Is that the difference if you buy it wholesale,-a sack at a time?-Yes.

5517. If you were buying a sack at Mr. Pole's store, how much would you pay for it?-I have never been under the necessity of buying a sack there. What meal I have bought at their shop has always been in small quantities: perhaps about a quarter boll weekly.

5518. What is the price of a quarter boll?-It is different prices: sometimes higher and sometimes lower.

5519. What did you pay for it last?-I have not had a quarter boll of meal from Mossbank this year at all, because last year we thought it too dear, and therefore we gave up taking it.

5520. Tell me any particular time when you bought meal at Mossbank, and found that at the same time, or within a short time after it or before it, you could have got the same meal in Lerwick for less money?-Not the past summer, but the summer before, I had meal from Mossbank, taking it in small portions as it was required, such

as a quarter boll weekly; and at the same date, when I was getting these small portions, I got meal from Lerwick to my own house for about 10s. of difference on the sack,-only the meal that I bought from Lerwick was a whole sack, and ready money was given for it, while the meal bought from Mossbank was in small portions, and it was got on credit until the time of settlement.

5521. Do you think that difference was not accounted for by the difference between wholesale and retail prices?-For instance, would you not have got the two bolls at Mossbank, if you had bought that quantity there, as cheaply as you got them at Lerwick?-No; there would have been 5s. of difference if I had bought two bolls there.

5522. But there would be the expense of carrying the meal from Lerwick: that would be worth something?-That was 8d., and the shipping of it 2d.

5523. Is there any other article you think you have an advantage on in the same way?-Yes; there are different articles. For instance, lines are one principal thing we require, and for my sixth share, I would have nineteen lines in my bundle.

5524. Do you buy your own lines?-I do.

5525. Is it the practice with men fishing for Pole, Hoseason, & Co. to do so?-Some of them do, and some do not; some of them have lines of their own; some buy them and pay for them by instalments; and others hire them. Last year I went to Lerwick and bought my own lines; and my nineteen lines, when they were ready to go to sea, cost me £2, 1s. I heard some of the men who were in the boat say that their portion of the lines, of the same quantity, cost them 51s. or 52s.; that would be paid for at settlement.

5526. Could they have got them cheaper at Mossbank if they had paid for them there in cash?-I could not say for that, because I never inquired into it.

5527. Is there anything else you can mention which you can buy cheaper elsewhere than you can at Mossbank?-If a man has ready money, he will always get little discount wherever he may purchase his goods.

5528. Then I suppose it is the fault of the men themselves that they do not get their ready money from Pole, Hoseason, & Co., and use it as they like?-Mr. Pole won't refuse money to any man who has it to get; or if he knows he is an honest man, he will give him an advance of money, although he does not have it earned.

5529. But if a man could carry on to the end of the year, he would get all the price of his fish in cash?-Every penny.

5530. And then he could do with it as he pleased, and buy where he chose?-Yes; he could go to any place that was cheapest.

5531. Have you heard the evidence of James Hay and Andrew Tulloch?-Yes.

5532. Do you think that what they stated about the system of things here was generally correct?-I cannot say that there was much wrong in what they said; but I think there would not be a better plan than ready money if it could be obtained.

5533. Would not all the fishermen get ready money if they contracted to have a fixed price for their fish, to be paid to them as the fish were delivered?-They would. There is no fish-merchant who would not pay them the value of their fish in money if they have it to get; but how can they get it in money if they take it out in goods? They cannot expect that.

5534. But if the men made a bargain that they were to be paid in money for their fish every time they were delivered, they would not take it out in goods then?-No; they would have money.

5535. Is that ever done? Is the bargain ever made for a fixed price at the beginning of the season to be paid according to the weight of fish when it is delivered and every time it is delivered?-No; I never had that bargain, and I never heard of it.

5536. Have you ever heard of any different bargain from the common one of settling at the end of the year?-Yes; there is sometimes a difference in the bargains with regard to the lines, when men have lines of their own, and do not require to hire them.

5537. But in all those cases the settlement is at the end of the year

5538. Have you heard of any bargain for settling at another time than at the end of the year, and in a different way?-No.

5539. Did you ever know of men agreeing to fish for wages?-Not in the ling-fishing.

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5540. Do you think free men would agree to that?-I don't know: some of them might.

5541. Would you agree to it?-I would just as soon run my own chance.

Brae, January 10, 1872, GILBERT BLANCE, examined.

5542. You are a fisherman at Mid Garth?-Yes; in the immediate neighbourhood of Mossbank.

5543. Do you hold land under Mr. Bell?-No; the landlord under whom I held is dead, and the property is now under trustees. Mr. Sievwright, writer, Lerwick, is the factor for it.

5544. Are you under any obligation to fish to a particular fish-curer?-No.

5545. You can fish for anybody you please?-Yes.

5546. For whom do you fish?-For Messrs. Pole, Hoseason, & Co.,

5547. Do you deal at their shop for all your goods?-Yes.

5548. Do you find that you have generally a balance to receive in cash at the settlement?-No; I have generally had a balance against me. I have never had a balance in cash to receive except in two special years. One of these was one year when they were paying 8s. per cwt. for the green fish; and the other was the past year, when they were also paying 8s.

5549. Do you think you are as well served at Messrs. Pole, Hoseason, & Co.'s shop as you would be if you took your money and spent it where you pleased?-I don't know much about the difference in that respect.

5550. Have you ever made any comparison between the prices which you pay for your goods at their shop, and what you would pay for them elsewhere?-No, I have never tried that.

5551. What is generally the amount of the balance against you at the end of the year?-It may range from £17 to £5.

5552. Do you get any payments in cash in the course of the year?-No; very seldom. When men are in debt there are no payments in cash; but if I need a little money, I can call upon them for that assistance.

5553. Do you mean when you want money for rent, or anything of that sort?-Yes, for rent.

5554. Do you consider that you are under any obligation to engage to fish for them in consequence of being in debt in that way?-I consider myself obliged to fish to them so long as I am indebted to them.

5555. Have you ever thought of engaging to fish for another company, or attempted to do so?-I have thought of it, but I did not think it was giving them fair play to offer my services to fish for another when I was indebted to them.

5556. Do you know many men, who are fishing to them, and who are indebted to them in the same way?-Yes; there are different men I know who are indebted to them, perhaps not to so large an extent, but still to some extent.

5557. Do they consider it fair to continue to fish to the merchants to whom they are in debt rather than to engage with another?-We hear them say very little about that.

5558. They don't complain?-No; we don't hear them complain much.

5559. Do you think you would get a better price for your fish if you were to engage with any one else?-We might make better bargains with other men, but we cannot attempt to do that in our present way of fishing.

5560. Is that because in the present way of fishing no price is fixed?-Yes; no price is fixed until the end of the year.

5561. Do you think the price fixed at the end of the year ought sometimes to be higher than it is?-We sometimes do think that, because, as has been already stated by the witnesses, although we are fishing for the whole season, we don't know what we are to obtain for our fish. That depends upon the market which the merchant has to make for the fish before he can pay the value of them. The price will range from 8s. to 4s. 6d., according to the markets they make.

5562. The fishermen, I understand, have nothing to do with fixing the price?-Nothing whatever.

5563. Have you ever cured your own fish?-No.

5564. Nor sold them?-No.

5565. Have you any reason to believe that the current price as fixed by the fish-merchants is not the fair value of the fish throughout the season?-Some of the fishermen think they don't get so much for their fish as they ought to get, but perhaps that may be a mistake on the part of the men.

5566. We are all apt to be a little discontented; but do you think there is any reason for that belief more than the natural tendency of the men to discontent?-I cannot say whether there is any real ground for that belief or not.

5567. You cannot tell any case in which you thought you got less for your fish than you ought to have got?-I could not mention any particular instance of that, because we never see the account of sales which the merchants make of the fish.

5568. Do you know when the fish sales take place?-I think it is some time about the month of November.

5569. How soon after that are you told what you are to get for your take?-When we come to settle, either on the last of November or the first of December..

5570. You heard the evidence of the previous witnesses: do you think it was generally correct?-I think it was very correct, so far as I know.

5571. Has your experience with regard to the system of dealing been the same as was described by them?-It has been the same as the last witness described.

5572. But you don't know whether you got goods dearer at Pole, Hoseason, & Co.'s shop than you could get them elsewhere?-No, I don't know anything about that, because all we require, such as meal, lines, calico, and other things, comes from their shop.

5573. What price do you pay for meal?-We don't usually buy meal in wholesale, as the last witness did, but probably in pecks or two pecks or lispunds.

5574. Do you keep a pass-book?-No.

5575. Why not?-Because we trust to the honesty of the merchants.

5576. Do they not want you to take a pass-book?-They would have no objection to us having one, but many of us are not good arithmeticians, and we could not make much of them although we had them.

5577. When you were out fishing, have you sometimes sold your fish to others than Pole, Hoseason, & Co.?-I have not been in the habit of doing that.

5578. Is it sometimes done?-Perhaps it is by some individuals.

5579. What is their reason for doing that?-I cannot say what their reason may be, unless it is to have immediate supplies.

5580. Or money?-Yes, or money; but it is commonly for something such as refreshments which they wish to take on their way to or coming from the

fishing-ground.

5581. Where do you usually meet the people who buy your fish from you in that way?-Sometimes they are met in the course of our fishing operations at the land's end.

5582. On the land?-No; on the sea in a little boat. They will take any small portion of fish we may give them, and hand us refreshments in return.

5583. Do you get a larger sum for your fish in that way?-No; I never knew of any larger sum that was given in that way than the country currency.

5584. Is that practice what you call smuggling the fish?-I suppose so.

5585. Do you think it is much done?-It is not much done now. Formerly it was done to some extent, but not to any great extent.

5586. I suppose there were some factors or merchants in the country who did it good deal in buying fish on the sly in that way at one time?-I believe there was at one time, but not so much now.

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5587. Did they give a higher price for the fish than the fish-curers give?-Yes.

5588. Was it a higher price than the currency?-Yes.

5589. Are there it few of these men still?-Yes.

5590. They do come from Lerwick?-No; they are just people living in the country.

5591. Do they buy the fish either green or cured?-They will take them more readily green than cured, because they cure them for themselves. The factor who buys generally cures for himself.

5592. Is the man who buys fish in that way generally a merchant who keeps a shop himself somewhere?-Generally he has a small bit of a shop.

Brae, January 10, 1872, THOMAS MOUNTFORD ADIE, examined.

5593. You are a fish-merchant, and the principal partner of the firm of T.M. Adie & Co. Voe?-Yes, the business is conducted in my own name, but my sons have an interest in it.

5594. Do you employ a great number of fishermen?-Yes, a large number.

5595. Are the contracts which you enter into with them different in some of their details?-As a rule they are much the same.

5596. Although there may be some difference, the general rule is, that in the home fishing the fisherman delivers his fish to you at a price that is fixed at the end of the season?-Yes.

5597. Have you tried to arrange with your fishermen for dealings upon any different system from that?-I have not.

5598. Have you not on one or two occasions made different arrangements?-On one or two occasions I have made contracts with some of them for a fixed price.

5599. That price being fixed at the beginning of the season?-Yes.

5600. Has that generally turned out well?-It did not turn out well in these cases. The price advanced in the course of the season, and I had to pay the men the advanced price in order to satisfy them.

5601. Would the men have been discontented otherwise?-Yes.

5602. Is it long since that happened?-It is several years now; perhaps 12 or 14 years ago.

5603. Do you think it would be any advantage for the curer or the fishermen if that system were generally adopted?-My impression is, that the fishermen would suffer, for this reason, that fish in the summer season are always sold at a less price, and any one buying green fish must calculate what he can give for them according to the value of the article then. By delaying the settlement till the end of the season, the fishermen take the chance of the price either rising or falling, but the probability is that it will rise, because salt fish usually sell better in the winter season than in summer.

5604. So that if the price were fixed at the beginning of the year, you think it would generally be fixed too low?-Yes.

5605. But both the fishermen and the master would take into account at the beginning of the season the probability of the price rising in winter, and the fact that it generally does rise then, would they not?-It is scarcely likely that that would be much taken into account; because when a man buys an article he buys it at the price of the day, and not at what the price of it may become. There is no doubt that would be a more satisfactory way of dealing if it could be done but I don't see how it could be adopted, because no curer could offer to buy fish offhand at a price that would satisfy the fishermen.

5606. Is the probability that the fishermen would be discontented your principal reason for objecting to that system?-Yes.

5607. If it could be carried out, would it simplify your own business?-Yes, it would simplify my business very much. If the men had boats, and lines of their own, and did not need any advance, but had all their money to take, and I could pay it at the end of the week, it would simplify matters very much indeed.

5608. Under that system, however there would be difficulty in advancing the men?-We could not give advances to them at all; and if we did not make advances, they could not go to the fishing.

5609. Is the system generally followed in your establishment, that of advancing boats and lines to the fishermen?-Yes, whenever it is needed. There are solitary cases where men buy their own boats, having money laid past; but that is very rare.

5610. When they do so, do they pay the price by instalments, or do they pay down the money?-They pay for them by instalments on a particular principle of payment which has been adopted for the purpose. That principle is this: The boat is built by any carpenter the men choose to employ; the price is paid for it, and that is charged to their account. There is generally a hire of £2, 10s. paid every year for a six-oared boat; that is placed to the credit of the boat yearly, to enable the men to pay up for their boat, so that they may really have it of their own, because I consider it would be better for me if they had them. When the men buy their boats, I give them 3d. per, cwt. additional for each cwt. of fish caught to go to the credit of their boat until it is paid; and when once the boat is their own, they get that additional price into their own private accounts, and it is paid to them in cash whenever the price of the boat is paid up.

5611. Do you mean that you give 3d. per cwt. higher to these men than you give to men who hire a boat?-Yes.

5612. And you give that to a man who has a boat of his own to begin with?-If he has a boat of his own, he gets the 3d.

5613. Then, when you charge for boat-hire, you charge 3d. per cwt. in addition on the price of the fish?-No, we don't charge that, but they get 3d. per cwt. less. For instance, the price this year for ling was 8s. The crew gets settled for that; and if they had been buying the boat, we put 3d. per cwt. to the credit of the account for the boat, in order to enable them to acquire it for themselves.

5614. And you would give the same advantage to man who possessed his own boat originally?-Yes; if he possessed his own boat, he would be better entitled to it, because then I would be running no risk. In the other case, the men might lose the boat, and then I would have nothing to get for it.

5615. But when you charge the boat-hire, the men are obliged to take a smaller price for their fish in addition to having the hire to pay for it?-Yes, and even in that case we are worse off, because the boats cost much more than the amount of the hire will cover. We are better off giving them the 3d. to enable them to get a boat of their own.

5616. I suppose when the boat is their own the men take better care of it, and it will last longer?-Yes, very commonly.

5617. And I suppose they take better care of it even before it becomes their own?-Generally they do, although I have some men who take very great care of their materials even when they are hiring them. There are great differences in men in that way.

5618. Is that a system you have adopted yourself, in order to induce the men to become the owners of their own boats?-Yes, I don't know any other curer who uses it.

5619. That shows that you have no interest in having the men hiring out a boat from you?-No; very far from it.

5620. How long does it generally take for a man to pay off a boat when he buys it in that way?-Buying it in that way, if their fishing was anything good, the boat's crew would clear it in about five fishing seasons.

5621. It would then become their joint property?-Yes.

5622. How long does a boat generally last?-The [Page 139] greatest length of time they are used for is 12 years; but very often they give them up when they are 6 or 7 years old. Perhaps the boat is not good, and they won't risk it any longer.

5623. In that case, do they generally begin a new arrangement for the purchase of another boat?-Yes, for the purchase of a boat, if it is their own. If it is a hired boat, then it is thrown on the curer's hands to provide them with another.

5624. What is the usual rate for a boat-hire throughout Shetland? -I think £2, 10s. is a pretty general hire over all for such boats.

5625. I understand you settle with your own men yearly about December?-We commence settling about 12th November, and it takes us a considerable time to get over the whole of our men.

5626. Has each man dealing with you a pass-book?-No, not all, but the greater part of them have.

5627. But you wish them to have pass-books?-Yes; I should be very glad for them all to have passbooks, if they would only keep them regularly. When it is a careful man, his book is kept regularly, and there is very little trouble with him in taking down his account.

5628. I understand each fisherman employed by you has an account in your ledger, in which each year is balanced at the settling time?-Yes.

5629. That account on the one side contains the debt which he has incurred for furnishings to the boat, boat-hire, and the amount of his shop account, if he has one?-Yes; the boat-hires are generally kept under the head of a company account in name of the master of the boat, as for instance, Thomas Robertson & Co.

5630. Then you have two ledger accounts for your men-one for the boat's crew, and one for the account of each individual?-Yes; we very frequently have these accounts entered in the same ledger; but where the men are fishing at one of our stations, such as Papa, the company account is settled in the station ledger, which can always be referred to.

5631. But in that case the individual man has an account in another ledger?-He has his account in our general ledger at Voe.

5632. The boat-hire is generally charged in the company account; that is to say, all the members of the company are liable for the boat-hire?-Yes.

5633. Do a large proportion of the men whom you employ in fishing have shop accounts at your store?-Yes, a large number of them; in fact, the most of them have accounts with us more or less.

5634. That is, apart from the mere outfit which they require for going to the fishing, they are supplied with goods for their families, both soft goods and provisions?-Yes.

5635. Are these transactions generally carried on upon a system of credit?-Yes, it is credit for the most part; but some men who have money just pay down the money for what they want, and it is not entered in our books.

5636. Are you in the habit of giving a discount when they pay down money?-Yes, if the amount is worth discounting.

5637. Can you say what is the average amount of fisherman's share for the take of fish in any one year?-I was making a calculation of it this morning, and I think that, taking all the fishermen we have employed just now, their takes of fish for the whole year would average about £12, 5s.

5638. Are you able to say what deductions would fall to be made from that sum in the case of an ordinary fisherman?-There would be deducted from it specially his proportion of the boat-hire, and the yearly payment or hire for his lines. Some of them pay a yearly payment on their lines, while others hire them. There will be about 22s. deducted for that, and that is the only special charge that has to be deducted, except what he has got for his living.

5639. Are these special charges due by the individual fishermen or by the boat's crew?-For the lines in all my boats they are due by each individual, but the boat hire is due by them as a company.

5640. You spoke of the lines being got by the men either on hire or by making a yearly payment?-Yes, a yearly payment equal to the hire which they would pay if they were hiring the lines. For instance, the pay for the hire of one of these fishing lines is 8d. a year; but instead of taking that as hire, we credit it yearly to the men, and so soon as it has liquidated the value of the lines they become the fisherman's own property; whereas, if a man gets his outfit and goes to the fishing this season, and does not feel inclined to go another year, then he has only paid the hire, and the lines must be returned to me.

5641. But if a man begins to make a yearly payment by way of purchasing the lines, he is obliged to go on?-He is not obliged to go on if he chooses to give up the fishing altogether; but even in that case it is an advantage to them to have the lines, because they can always make use of the old ones in some way or other.

5642. In the case of hired lines and of that sort of purchase by instalments, where does the risk lie?-The risk lies with the fisherman in both cases.

5643. If the hired lines are lost, he pays for them?-Yes.

5644. And if they are lost while he is buying them, he pays for them also?-Of course; but if he is hiring a boat, and it is lost at sea, he is not liable for that boat.

5645. But he would be liable for the lines in that case?-Yes.

5646. I don't quite see the distinction between the two cases of hiring lines and buying them by instalments in the way you have described. Does it not come to be the same thing to the fisherman in the end in both cases?-No; if he continues to hire them, then, when the lines are unfit for prosecuting the fishing any longer, he must return them to me, and I can make something out of these old lines-perhaps 6d. a line; whereas, if he has been buying them by instalments, they belong to the man himself; and if the lines are of good quality, and he has taken care of them, he may be able to use them for a season or two after the whole payments have been made for them. I have some fishermen who have used their lines at the deep-sea fishing in that way for two seasons after the usual yearly payment has completed the value of them.

5647. The deductions you have now mentioned apply to every case, but at settlement there may be other deductions for the amount of furnishings supplied to the men during the season?- Yes.

5648. Is that the only other deduction which falls to be made in the ordinary case?-Yes. If the man has been running an account, of course that must be deducted.

5649. Are you in a position to say what the ordinary amount of a fisherman's account at your shop will be in the course of a season?-Perhaps the ordinary amount will be from £4 to £5. Some of them will be a great deal more than that; whereas there are some men fishing to me who won't have 3s. worth out of my shop in the course of a season.

5650. The amount differs according to the individual?-Yes, and according to his needs.

5651. Is there a large proportion of your fishermen who close the year somewhat in your debt?-Yes, a considerable number, but not nearly so many as there were some years ago.

5652. Has that been in consequence of a succession of good years?-I think so, but there has been a great change in the habits of the people. I think they are generally more careful now than they were.

5653. Are you able to say from your own observation whether men who are so much in your debt deal more at your shop than others?-With some of the men who fish for me, the greatest difficulty I have is to prevent them from dealing,-not to get them to buy goods, but to get them not to buy them. Of course there are black sheep in every flock, and I have men who, after receiving considerable supplies from my shop, and when I have found it quite unreasonable to allow them to go further, turned round upon me and said, 'Well, if you won't give me what I want I will go to [Page 140] some other body and fish for them.' Of course these are exceptions.

5654. They say that to you when they are considerably in your debt?-Yes; and when they think there is no chance of getting any more.

5655. Then it is not an advantage to a fish merchant or to any merchant, as has been alleged, to have a number of people in his debt?-Certainly not. The best fishermen are those who are not in debt. It is a very sad thing to have to settle with a man who has no money coming to him.

5656. Can you get as many fishermen to engage with you as you want, although they should not be in your debt?-Yes; I can get a man to fish for me more readily who is not in my debt than one who is in my debt. A man who is in my debt will, make all the excuses and trouble in the world, but with a man who is not in debt there is no trouble at all. He sees his way clearly, and it is for the purpose of saving something for his family that he goes to the fishing.

5657. Is it a common subject of complaint with your fishermen, that the price of the fish is not settled till the end of the year?- They do speak of that sometimes; and yet, since the question was mooted in consequence of reports being circulated through the country with regard to the investigation, which you are now prosecuting, they are all up in arms for fear any change should be made.

5658. Have they come to you objecting to any change being made?-Yes, a great number of them have done so.

5659. On what grounds?-Because they think that a change could not be made for the better. For instance, if an arrangement was made to pay them for their fish every week, three-fourths of them could not go to the fishing at all, because they have neither boats nor lines, nor could they get the necessary supplies to enable them to go. Then the price which they would receive for the fish would necessarily be smaller. They have had experience of that at the fishing stations where there was competition, this one trying to barter or smuggle a few fish, and the other smuggling a few fish. They get the very highest price for them which is given at that time; but then at settlement, even with some of my men who have sold a few fish, I have had to pay up the difference between the price they received at the station and the current price which was being paid at the end of the season.

5660. That was only in the case where a higher current price was given at the end of the season than was paid for the fish while the season was running on?-Yes.

5661. Have you been often asked to pay a difference of that sort?-I do it voluntarily.

5662. Was that for fish which you did not get at all?-No, not for what I did not get; that I had nothing to do with.

5663. But you did not get smuggled fish?-Yes, there are smuggled fish sold to me. My boats sell smuggled fish to another curer, and boats belonging to another curer sell fish to my factor.

5664. But why should you pay the difference to your own men upon any fish which they have smuggled to other curers?-It is not upon fish they have smuggled that I pay the difference, but there is a system among my fishermen of having what is called a bucht line. That is a line of his own, the fish caught by which are sold by him in order to supply himself with any small article he requires during the fishing. They settle for these fish at the fishing station; and if the price which is given at the settlement is larger than what they have got at the station, I pay them up the difference.

5665. Is that bucht a device for having a little cash in hand?-A bucht is the term which they give to one of these fishing lines.

5666. But is it a device for having some special wants supplied during the course of the season, and before the settlement comes round?-It is just a fancy they have; because if all their fish went one way, and they asked the money, they would get it. It is merely a thing that has been practised among them for many years, and the practice has been allowed to continue.

5667. Is that a practice in your business only, or is it generally done in Shetland?-It is only done by some. There are many of our men who do not do it, but some of them do it.

5668. Can you give me any idea of the amount of cash paid in advances to the fishermen in the course of the year and before settlement? Do you pay a large sum in that way at your stations?-I should fancy that over the whole of my fishings £200 would cover the whole amount that is paid in advances during the season.

5669. Your fishings are at Voe, Papa Stour, Stenness, and the Skerries?-Yes.

5670. At each of these places you have a factor and a shop for supplying goods?-Yes; we must have a store.

5671. Are these stores kept open all the year round?-At Papa and the Skerries they are: at Stenness the store is only kept during the summer fishing season.

5672. And the shop there only supplies the fishermen with what they need for their own personal use, and not with what they require for their families?-Just so; but sometimes those men who have their families in the neighbourhood get a little for them also,-a little tea, and such as that.

5673. You say the amount of the shop account will be from £4 or £5 on an average; so that, after making other deductions, that will leave something like £4 or £5 payable in cash to an ordinary man at the end of an ordinary season?-Yes; but there are a great many of them who have a great deal more than that to get.

5674. Of course the amount differs according to the seasons, and according to the individual; but do you think that would be a fair average?-I should say that about £6 might be taken as an average of the amount paid in cash.

5675. Does that apply to all your stations?-Yes, to them all.

5676. What is the number of fishermen upon your books altogether?-I should fancy about 400.

5677. Are these all employed in the summer fishing?-Yes.

5678. Is there any reason why the whole price of a man's fish should not be paid to him in money?-The only reason is that he has already got part of it in goods. Of course we cannot pay for it in goods and in cash also.

5679. But is there any reason why he should take it in goods unless he likes?-None whatever, unless he likes. There is no compulsion put upon any of the men.

5680. Don't you think he would be better off if he got the money, and paid for the goods in cash as he wanted them?-It is quite possible that he might fancy so; but I

cannot see that it would make much difference. We always deduct the 5 per cent. from the goods the men have got, the same as if they were purchasing them for cash.

5681. So that you make no difference between cash payments, and paying for them in account in that way?-None in that respect.

5682. Why is it that you give that amount back in the form of a discount, instead of charging your goods originally at the same price?-Of course if a man buys a quarter of a pound of tea, or half a pound of tobacco we cannot take a discount off that; but we put the whole of the transactions together at the end of the season, and a discount is then allowed. If he bought the whole over the counter, he would pay the price down at once; but he has an advantage by these small items being added together, and the discount taken off, which he would not have if he paid for the articles separately.

5683. So that you really give a larger discount upon your credit dealings than, upon your cash dealings?-Yes; the fisherman has a greater advantage by having a discount upon these small purchases when they are all taken together, than he would have if he were paying for them separately. The discount upon two ounces of tobacco or a quarter pound of tea would be a mere bagatelle; but when the whole of his purchases [Page 141] in the course of the year are added together and the 5 per cent. taken off the whole, it comes to something. With our fishermen, as a rule, I consider that these accounts are perfectly good, and the same as if a man were purchasing for cash.

5684. What do you mean by saying that they are perfectly good?- I believe we are safe in making these advances to the men.

5685. That is because you have a security?-We have no security.

5686. Have you not the security of the fish?-Yes, we have that security, if he catches the fish.

5687. Is it upon that principle that you fix the prices at which you sell your shop goods?-Yes, generally. Of course, if we calculated upon it being really a bad account, we would require to charge larger percentage in order to cover the risk; but we would rather get clear of a man of that kind.

5688. Do you mean that, when a man is an unsafe customer, you put a different price on the goods which he buys?-I don't put a different price on them; but I try to give him as little as I can, although there are some of these men whom it is very troublesome to put off without giving them something.,

5689. Is there a competition for employment among the men to be taken on as fishermen for the summer season?-Yes, considerable.

5690. Are there men sufficient to man any number of boats you wish?-Well, I might be too greedy, wish more than I could manage; but I have found no difficulty hitherto in manning as many boats as we could reasonably manage.

5691. You supply your men with groceries as well as soft goods?-Yes; groceries, soft goods, and meal.

5692. In fixing the prices of these goods, both the groceries and soft goods, do you allow it margin for profit, just the same as any merchant would do in Lerwick, or Wick, or any other town?-I should fancy it is much the same. Of course, groceries being an article of daily use, we charge a less percentage on them than we do on soft goods. Very often soft goods lie on our shelves for a considerable time, and get damaged, and become unsaleable.

5693. But I suppose that would be the principle on which the retail price would be fixed if you deal in only one kind of these articles, or if you were selling them in any other place than Shetland?-Of course; that is the principle on which business is conducted anywhere. I think that goods, for instance soft goods, are sold by us in retail fully as low as they are in the shops in the south; even as cheap as they are retailed in Edinburgh. That is easily accounted for; because they have much larger rents to pay in Edinburgh than we have here.

5694. Do you say the same with regard to provisions?-I think there is not much difference on provisions; only the difference for freight and insurance. Of course, at a place like Voe, the transport of bulky goods comes to be very expensive. For instance, at this season of the year, we cannot get a sack of meal from Aberdeen to my house under 5s.

5695. The meal generally is imported about the end the season?- Yes, generally.

5696. Did you hear the evidence that was given today by some of the witnesses about the price of meal?-Yes.

5697. Are you in a position to say whether the price of meal at Voe is higher than at Lerwick, or about the same?-It is higher than at Lerwick as a matter of course, because we have considerable more expense in bringing it here. We have to bring it up to Brae by water, then cart it across the isthmus, and bring it to my house in boats. When the weather is bad, we have to cart it all the way.

5698. Therefore the price of meal with you is considerably higher?-Yes; and of any bulky article which requires a considerable deal of handling and expense of transport.

5699. What do you suppose the difference is between the price of meal at Voe and the price at Lerwick?-I should fancy about 2s. per boll

5700. Will the difference be that throughout the year?-I think so; but sometimes in the spring we manage to get a vessel to bring it in direct; and then we can sell it as cheap as they do at Lerwick.

5701. Have your men ever made any complaint to you about the price being higher than it ought to be?-No.

5702. Is the price stated to them at the time when they get the meal, or is it generally fixed at settling time?-They know the price of every article when they buy it

5703. Do you calculate that the profit upon your provisions and soft goods, or the profit upon your fish sales, is the greater?-I cannot say.

5704. Have you the same percentage of profit upon both?-No; on the fish sales it is only 5 per cent.

5705. Is that just a commission?-Yes.

5706. That is to say, the payment to the men for the fish, the cost of fitting them out when you do so, and of your curing establishments, will come up to within 5 per cent. of what you sell them for to your buyers in the south?-Yes; and then we have to run the risk of the payments. The fish are all sold on three months bill. Our fishermen are all settled with this year, and I have not touched a sixpence for any of our fish yet.

5707. Does the 5 per cent. cover that risk?-Yes. Of course, if we discounted these bills, that would run off with 11/4 per cent. of it, but we just wait until the bills are due.

5708. Then, if you were under the necessity of paying your fishermen entirely in cash, and did not carry on your shop business, would you be obliged to charge a higher profit upon your fish, or to pay the fishermen less for the fish?-If I had no shop at all, and merely traded in fish, I would require to deal more in them than I do, in order to make a living out of it.

5709. But you can afford to take a smaller commission on your fish than you would otherwise do, by reason of the fact that you are carrying on another business at the same time?-Yes.

5710. You are making two profits, although one of them may be a very small one?-The one profit is entirely at the option of the fisherman. He is not obliged to buy the goods unless he chooses.

5711. Perhaps not, but he would likely require to pay that profit to another merchant, or certainly to pay some profit, and you would expect some of that to come to you?-Yes; every one expects some profit. I employ a good many hands about Voe curing fish. These are invariably settled with in cash, if they are able to do without any supplies during the week, but they are always settled with at the end of the week.

5712. Theirs is a weekly payment?-Yes.

5713. But they get supplies during the week?-Sometimes we are obliged to give them something, otherwise they could not work.

5714. And that is deducted from their weekly pay?-Yes. At the stations the curers are generally engaged at a sum for the season.

5715. In what form are the supplies given at your shop deducted from the weekly payments at Voe?-For instance, if the girls working at the fish have earned 5s. a week, and if they have got 2s. worth of goods, they have only 3s. to get.,

5716. But in what way is it noted that they have got that advance in goods?-We keep an account of it in our book.

5717. Is there a ledger account for each worker?-We have what we term a jot ledger for these weekly accounts. We do not carry them into our regular working books.

5718. How many people are employed in that way?-I have known as high as sixty; they will run from thirty to sixty.

5719. Do those people ever ask you for cash in the course of the week?-Sometimes they do but not very often. The length of time between the pays is so very short that they don't require it, but if they are in need of cash they get it.

5720. Do they prefer to take their advances in goods?-They prefer to take their payment at the end of the week.

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5721. But when they require goods in the course the week, do you give them to them?-Yes; goods and cash are much the same thing to them; for if we gave them money, they would just turn round and buy the goods. If they went anywhere else, they must lose a day's work in going to it.

5722. I suppose that is one reason why the system of fish-curers having stores for shop goods exists, because their shops are at such inconvenient distances from each other?-Yes; the people would lose so much time in travelling to other places in order to get their goods, that we require to keep shops for them. If their time is of any value to them at all, the fact that they have a shop on the spot far more than compensates them for any difference they may pay in price.

5723. But if there were no such shops as yours, would there not be a class of dealers throughout the island who would provide the goods that the people want?-I don't know; perhaps there might be such.

5724. Does a fisherman not incline rather to deal with the employer to whom he delivers his fish, than with another?-I think so. The fishermen and their employers are generally on a friendly footing, and the man is satisfied that the curer he is fishing to will do as fairly to him as possible if he is a deserving man. I consider he gets every advantage that he could naturally expect, and it is an object with the fish-curers in every way to encourage steady careful men.

5725. Will you give me a note of the number of men employed by you, of the total amount of cash paid to them, and of the total amount of their shop accounts for 1870, and also for 1867?-Yes. I found, on looking over my books last night, that the total amount of cash paid at the present settlement was £2015. That includes the Faroe fishing too. With regard to the employment of curers at the stations for a specific sum, I may mention that it would not do to pay them weekly, because for several weeks, and perhaps longer, if it is bad weather, these curers will have nothing to do at all. At the home fishing stations they are paid by a fixed sum yearly; and the reason for that is, that if we were to pay them weekly, they would be quite pleased for two or three weeks if they had nothing to do; but if it came a fine week, and there was a great quantity of work, they would throw everything up and go home, and our fishing might be left to perish.

5726. Are you engaged in the Faroe fishing to a great extent?-Not to a great extent; but I have five vessels.

5727. In that case, the arrangement with the men is somewhat different?-Yes, quite different; the men get half the fish, and they are paid the current price for the dry fish.

5728. You cure all the fish, and they get half the price of the dried fish?-Yes.

5729. So that the calculation is somewhat similar?-Yes. There is 5 per cent. taken off for selling and risk before the division takes place.

5730. When is the Faroe fishing at an end?-As rule, it is at an end in August.

5731. When are the fish completely cured?-It is sometimes nearly the end of September before they are cured.

5732. Is the division made then?-No; the owner of the vessel sells all the fish, and the division is not made until the settlement.

5733. In the case of a man who engages with you for the Faroe fishing, is it usual for an account to be opened in his name in the same way as with the others?-Yes; we are obliged to supply him with an outfit. The principle of that agreement is, that the men get one-half the value of the fish after deducting curing, and the expenses of converting the fish into cash. They are also allowed 8 lbs. of biscuit per week; the other provisions they have to furnish for themselves.

5734. These supplies are all entered to the man's debit in your book?-Yes.

5735. Is it usual for you to supply his family during his absence with goods on credit in the same way?-Yes; we are very often obliged to do that in order to keep them from starving.

5736. Is that done on a larger scale than in home fishing?-No; I don't think it is done on such a large scale, for the greater number of the hands going to the Faroe fishing are young men without families.

5737. In the Faroe fishing you have not only the 5 per cent. for selling, but you have the profit on one-half of the fish?-That is sometimes a very small profit, for the vessels will sometimes be £100 in debt in the course of a year.

5738. But that depends on the luck of the voyage?-Yes; we have one-half of the fish for the vessel.

5739. You supply the vessel entirely, and the men have nothing to supply except their fishing lines?-Yes; nothing except their fishing lines-2 lines, or 21/2, for hauling the fish with.

5740. Are these lines supplied by you as part of the outfit?-We have to put them on board the vessel, and then any of the men who require them can get them. Sometimes the men have lines of their own, and don't require to take them from us.

5741. I understand you were engaged at one time in the hosiery trade?-Yes.

5742. You used to buy the hosiery in the same way in which it is now bought in Lerwick?-Yes; always paid in goods, I gave that business up in 1870.

5743. Was there any profit made upon that trade?-No; the only profit I ever made by the hosiery was if we had any profit on the goods that we bartered for them. We never could realize the price, as a whole, which I had paid for the hosiery, and consequently we were obliged to give it up. We had very great difficulty in selling it.

5744. Did you sell your hosiery goods south?-I sent them south, and I had really to take anything they would give us for them.

5745. You do something in that way still, do you not?-Yes, occasionally. The principal thing we do is in purchasing goods from other merchants for sending them south when we get an order. Then we purchase what kinds of goods suit us.

5746. Do you buy them in Lerwick?-Yes, and in the country too.

5747. But you don't buy from the knitters yourself?-I don't buy from them. Sometimes they will make us buy them whether we will or not. We cannot get clear of them sometimes, but we don't want to buy them.

5748. Are the knitters anxious to get paid in money for their hosiery?-I don't know. Very likely they have been so long accustomed to getting goods for them, that they never think of asking such a thing as money.

5749. Do you think they would take a less price for hosiery if they were paid in money?-I don't think it.

5750. I suppose they want the goods in the country, and they think they get a profit by taking them?-Yes; for instance, if they have a pair of socks to sell, they won't sell them under 8d., and if you offer them 6d. in cash it is no object for them to take it. They would rather have 8d. worth of goods. In that way they are better off by getting the goods, because if they got 6d. in cash they would just lay it out in buying 6d. worth of goods.

5751. Do you employ beach boys extensively?-Yes, a good many; not at Voe, but at Papa Stour, Stenness, and Skerries.

5752. What is the usual wage for a beach boy?-The usual wage now is from £2 to £3, 10s. for boys.

5753. What is it for women?-Women don't usually work there. If we require to employ women on an emergency, then they are employed at the station at so much per day. There is no regular wage for them.

5754. Do the beach boys get accounts opened in their names at your shop?-We are obliged to do that in order to supply them with food. Sometimes we have to give them shoes and clothing to cover them.

5755. Do they generally get a balance of cash at the [Page 143] end of the year?-Yes; where they are careful, they have a considerable balance to get. Some of them will even have more than half their wages to get in cash.

5756. Are you tacksman of any estate or an owner of land in Shetland?-I am not tacksman of anything but the Skerries Islands. Mr. Bruce of Simbister is the proprietor.

5757. Are there any people living on these islands permanently all the year round?-Yes.

5758. Are they bound to fish for you?-Yes; and they have no wish to change.

5759. You pay rent to Mr. Bruce, and you take the risk of their payments?-Yes.

5760. In that case their rent enters your account as deduction against the men?-Yes. I manage Lady Nicholson's property in Papa, more as a factor for her than as a tacksman.

5761. Are the fishermen there free to fish to anybody they please?-Yes.

5762. But in point of fact they fish to you?-They all fish to me, for the very simple reason that there is no other one there for them to fish to.

5763. Do any of them cure their own fish, or try to do it?-There is only one native crew who cure their own fish at Papa.

5764. They prefer to do so, and you make no objection?-None whatever; and when their fish are cured, they just deliver them to my man there, and we buy them cured at the current price for cured fish.

5765. Do you think these men make as much of their fish as the other men do?-They do; but they have a great deal of labour with it. When the season is bad, it requires a great deal of attention from the whole of these men to attend to a few fish, and to get them dried, and perhaps it will be well on in September before they get over with it. They also run a risk their fish being spoiled.

5766. I suppose some fish are necessarily damaged in the course of curing?-Yes; it is a very important thing to be particular about that. They get damaged with rain, and they get damaged with sand and with the sea-breeze, and they require a great deal of attention.

5767. Is the rent which you pay for Skerries calculated so as to allow you a profit upon the rents of the sub-tenants?-No; I pay £110 of tack duty, and the gross rental from the tenants is only £68, I virtually pay the difference just for the station-that is, station rent for the store and premises which are put up there.

5768. Is it not also for the privilege of having these fishermen to fish for you?-I believe I could make more of these lands if I had them as grazing ground, without any fishermen there at all. There is only one of the Skerries I hold now; one of them has been sold to the Lighthouse Commissioners.

5769. If you could make more of the island as grazing ground, why don't you turn it into that?-If I were to do so, what could I make of the men? There are fourteen families, and if I turned them adrift it would be a fearful thing.

5770. Is it difficult for men to get land in Shetland?-It is very difficult now; there are so many requiring it, that almost every place is taken up. I have boats that go from the mainland to fish at the Skerries with the natives.

5771. Then it is useful as a station for them?-Yes.

5772. Is there anything else you wish to state with regard to the system of carrying on business, or with reference to the evidence that has been laid before the Commission previously?-Not so far as I am aware.

Brae, January 10, 1872, CHARLES YOUNG, examined

5773. What are you?-I am a fisherman at Stenness.

5774. How long have you been there?-For twenty years.

5775. Do you hold land there?-No.

5776. For whom do you fish?-For Mr. John Anderson, Hillswick.

5777. Do you go to the home fishing?-Yes.

5778. How far is Stenness from Hillswick?-About three miles. I do not live at Stenness. I live in the south part of North Mavine, at Manaster, about twelve miles from Stenness.

5779. Do you go to Stenness merely for the fishing?-Yes.

5780. Has Mr. Anderson a station there?-Yes; only in summer and harvest.

5781. Has Mr. Adie also a station at Stenness?-Yes.

5782. How long have you fished for Mr. Anderson?-I have fished for about seventeen years for Anderson Brothers. I fished for two years at Ollaberry, and I fished for the time I have mentioned for Anderson & Co.

5783. How are you paid for your fish? Do you get most of your payment in goods or in cash at settling time?-I have got most in cash.

5784. What is the time for settling?-The settling time commences about 12th November, but for some years we have generally settled from 26th to 27th November.

5785. Do you generally get your supplies during the fishing season from Mr Anderson at Stenness?-Yes.

5786. Where is your family supplied? -I do not require much supplies for my family, I can buy them at any shop in the neighbourhood.

5787. Is there any shop at Manaster from which your family are supplied?-No. The most part of my dealing has been with Mr. Anderson, but I sometimes deal with Mr. Inkster at Brae, or any shop I may have occasion to go to.

5788. Are your family generally supplied by Mr. Anderson at Hillswick?-No; not as a general rule.

5789. Do you run an account with Mr. Anderson?-Yes.

5790. The two sides are balanced at the end of the year in November, and you generally get a good part of your payment in cash?-Yes.

5791. Do you get advances in money during the fishing season?- Not unless I require them; but if require them, I can get them.

5792. Do you ask for them as a favour?-No.

5793. Do you want the money for some particular purpose when you ask for it?-Yes.

5794. Do you always get it when you ask it?-Yes. I asked for £5 this year, about the beginning of the fishing, and I got it without any difficulty.

5795. Do you also get any reasonable quantity of goods you want?-Yes.

5796. Are the goods supplied to you at Stenness or at Hillswick?- To a certain extent at Stenness, and for the greater part at Hillswick.

5797. Do you go there for them?-Yes.

5798. Do you get both meal and clothing there?-Yes; I generally get them there in the summer season for the fishing.

5799. Is the meal there of good quality and reasonable price?- Yes; it is about the same as in other parts of the country.

5800. Would you have any advantage if you were going to another dealer for your meal and clothing?-I don't think I could have any.

5801. You think you get your goods as good and as cheap as you could desire?-Yes; they are as good and as cheap, there as at any other part of the island.

5802. Or at Stenness?-Yes; it is not much clothing they have at that place. It is only a temporary place, where they keep supplies for the men during the fishing season.

5803. Then the way in which you deal is very much the same as has been described by the witnesses from [Page 144] Mossbank?-Yes; I cannot say there is much difference.

5804. You are not obliged to fish for any person in particular?- No.

5805. You are a free man?-Yes.

5806. Do you generally get a balance in cash at the end of the year?-Yes.

5807. Would you rather be paid all at once in cash?-Yes.

5808. Why don't you manage to get that done?-I can hardly say; circumstances won't allow it. Sometimes the reason for it arises from the way in which we are placed as a crew of men. The curers will sometimes object to give it to one man in a boat's crew, unless all the men were alike.

5809. And all the men would not wish it in cash?-There are not many who would not wish for it in cash.

5810. Why could not the whole of the boat's crew get it in cash?- Because some of the men have got behind, and they cannot manage to go on throughout the rest of the season unless they get supplies from the curer.

5811. They are in the curer's debt at the commencement?-Yes, or perhaps they might be free men; but they have no opportunity of supplying themselves with

anything until the end of the fishing.

5812. Therefore, when there are one or two men in boat's crew who are in that position, the curer objects to give cash payments to the others?-I cannot say that, because I have not seen it asked by the rest; but we have been conforming to the old practice that has been going on of fishing to the curers, and being paid by them at the end of the season.

5813. Do you want any change in the system?-The only change I would want in the system would be to know what I was working for. I should like to see a change in that respect.

5814. Would you like to have a price fixed at the beginning of the year?-Yes; before I commenced to fish, because according to the system we are proceeding on now we might go to the fishing, and at the end of the fishing season or at the end of the year when they settle with us, the merchants could pay us if they liked with 2s. a cwt.

5815. Do they not come under an obligation to pay you what is the current price at the end of the season?-It is not very often that we enter into engagements of any kind. The men who are free men generally fish for them, and they just fish upon an understanding that they are to be paid the country currency.

5816. But it is understood that they are to be paid the country currency?-Yes.

5817. And you would be entitled to get the country currency in any case?-Yes; but if the fish were going down as low as they might do, we would still only get the currency.

5818. Do you mean that the fish are sometimes higher earlier in the season than they are at the end?-No; what I mean is that the price varies very much. I have seen the price 4s. 6d. a cwt. in some years, and 8s. in other years; and if the price were to go below 4s. 6d., we would still only be paid according to that. But if we had a fixed price before we went to sea at all, I think that would be better. If there had been an average price fixed at the commencement of the season while I have been fishing, I would have been better satisfied in my own mind, because I would have known what I was working for. In that way the curer would have the advantage in some years, and in other years we might have the advantage.

5819. Do you think there would be any difficulty in getting the fishermen to stick to their bargain, if there was an arrangement of that kind made at the beginning of the season?-I fear there might be some difficulty with some of them.

5820. Some of them might think that if the price were to rise, they ought to get the full value of that rise?-I don't think any reasonable man could expect that, if he had made a fixed bargain to be paid so much.

5821. But you say that some of the men would make a difficulty about an arrangement of that kind; what do you mean by that?- The only difficulty I see would be a want of means to supply what they require in order to fit them for the fishing; but I think the difficulty might be got over.

5822. Do you mean that the men would get under weigh even if there was a fixed price?-I think so.

5823. When would you have that fixed price paid?-For my own part I would not care although we were not paid until the same time when we are paid at present. If it were paid weekly, I don't know how that system might work.

5824. Do you think that all the fishermen would like to have a price fixed in the beginning of the season?-I cannot say that the whole would like to have it, but for my own part I should like it and I know there are others besides me.

5825. Do you think there would be no difficulty in getting credit from the fish-curer in the same way as at present, if there was a fixed price?-No; the time for fixing the price might be the only thing that would be altered, and the settlement would still remain in November. We would then have a fixed price, and would know what we were working for.

5826. You have no objection to the system of advances?-I cannot say that I have.

5827. Are you quite at liberty to engage with any fish-curer you please, and to engage to fish for him through the season?-Yes.

5828. Has every fisherman the same liberty?-Every one, so far as I know, in this place.

5829. Even although he is in debt to the fish-curer?-No; in that case the fish-curer expects him to fish for him until his debt is paid. That is generally looked for, and in some instances I know that they had to agree to do it.

5830. Do you know that they wished to fish for another curer, but that they were obliged to fish to the man to whom they were in debt?-They did not wish to fish to another curer, but that fish-curer wished them to sign an agreement to fish to him for the rising season.

5831. Did they agree to do that?-Yes. They did not say anything about leaving the fish-curer, but only he wished them to agree.

5832. At what time of the year was that?-I have seen it done in the month of November, and also in December.

5833. Did the fish-curer ask them to do that at a time when they were wanting further advances of goods or money?-Yes, advances of money.

5834. And it was in order that he might have some security for these advances that he asked them to sign the agreement?-Yes.

5835. Is that a common thing?-I cannot say it is a common thing in my experience, but I have known it done in two or three different cases.

5836. Where was that?-At Hillswick.

5837. Have you known it done anywhere else?-No.

5838. Who were the men with whom it was done?-One man who told me twice over about it was Hugh Phillip; it happened with him in two different years.

5839. Has it happened with anybody else to your knowledge?- No.

5840. Was it not quite fair that a man should be expected to work for the curer until his debt was paid?-Yes.

5841. How does a man get into such an amount of debt as that? Is it from dealing with the shop?-I cannot say that the shop accounts are the cause of it, but it may arise from the circumstances of his family. The fishing here is the only thing a man has to depend upon, and sometimes, when it turns out bad year, he perhaps has taken a greater amount of supply from the shop for his family than usual.

5842. Was Phillip's account for shop goods?-It was for an advance of rent.

5843. That was what he was taking the money for but was he in debt before for shop goods?-Yes.

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Brae, January 10, 1872, WILLIAM GREEN, examined.

5844. You live at Sullem?-Yes.

5845. Are you a boat-skipper?-Yes.

5846. Where do you fish?-At Stenness.

5847. To whom do you deliver your fish?-To Mr. Adie.

5848. Have you done that long?-For six years.

5849. Do you settle with him at the end of the season?-Yes.

5850. Did you hear Mr Adie's evidence to-day?-I did.

5851. Did it give a fair account of the way in which the settlement is made?-Yes.

5852. Are you one of the men who generally have a balance in your favour at the end of the year?-Yes.

5853. Would it be an advantage to you to have a shorter settlement?-I don't think so.

5854. Why?-Because we fish during the year and at the year's end we settle with him.

5855. Are you quite content with the settlement as it is?-For my part I am.

5856. Do you deal with Mr. Adie's store at Voe to any great extent?-Yes.

5857. Do you take your goods from Voe to Sullem?-Yes.

5858. Is not that a long way to carry them?-It is.

5859. Could you not get them as good nearer home?-We could get them much the same but not better. If I want goods, Mr. Adie will either send them to me, or I may sometimes get the chance of a boat coming my way.

5860. How far is it from Sullem to Voe?-Perhaps from eight to nine miles.

5861. Are there shops nearer to you than that?-Yes; there is a shop at Brae, and there is also a shop to the northward.

5862. Can you get goods as cheap at these shops as at Mr. Adie's?-Much the same.

5863. Do you deal as much at these shops as at Mr. Adie's?-No; I deal more with Mr. Adie than with them.

5864. Is that because you have an account with Mr. Adie?-Yes.

5865. Do you know whether there is any difference between the prices in the shop at Voe and at other places?-I see no great difference. I have tried other places; and if there was any difference at all, it would be that I could get an article at Mr. Adie's perhaps a little cheaper than at other places.

5866. Then the only disadvantage you have in dealing at Voe is the distance?-Yes.

5867. And the only advantage you have is that you have an open account there?-Yes.

5868. Is that the only reason why you deal there-The boat we fish in belongs to Mr. Adie; we hire it from him.

5869. Is that any reason for dealing at Voe?-No but we fish to Mr. Adie, and we get goods from him as we require them, and at the year's end we make a settlement.

5870. There is a convenience in making a settlement at the end of the time, because you have not to pay for the goods in the meantime?-Yes.

5871. But if you got your cash every month or every six weeks, as you wanted it, would that not save you the trouble of going to Voe for your goods?-It might.

5872. Would you not consider that a great advantage?-No, not a great advantage.

5873. Do you think it is handier to make a settlement once a year and go to Voe for your goods?-Yes.

5874. Are you obliged in any way to go there unless you please to do so?-No, we are not obliged.

5875. How much do you generally get in cash at the year's end?- That varies according to the fishing. I have seen us get £8 or £9 after deducting our accounts.

5876. Do you require that money to pay your rent and other things that you want to buy?-Yes.

Brae, January 10, 1872, WILLIAM POLE, examined.

5877. You are managing partner at Mossbank of the firm of Pole, Hoseason & Co, merchants and fish-curers?-Yes.

5878. You have other places in Shetland?-Yes. We have one in North Yell, at Greenbank; we have also two fishing stations-one at Feideland, and the other at Gloup. Feideland is at the extreme end of Northmavine, and Gloup is at the farthest north part of Yell.

5879. Have you heard the evidence of Mr. Adie?-Yes.

5880. Is the way in which you carry on your business at Mossbank substantially the same?-Yes, substantially the same. One difference is that we don't give discount on the fishermen's accounts in the way Mr. Adie seems to do.

5881. Is there any other difference that occurs to you?-The fishermen pay for their lines in some cases by three yearly instalments, and in the event of fisherman leaving us we are not bound to take back the lines from him, as Mr. Adie said. But that is quite a trifling difference.

5882. What proportion of dried fish do you estimate to be produced from the green fish, in settling with your men?-It takes 21/4 cwt. of green fish to make 1 cwt. of dry in the case of ling; and in the case of tusk it takes more.

5883. Is that a universal calculation in Shetland?-In some years it is a little less, and in some years a little more.

5884. Is that not a fixed standard? Is there a fresh calculation made every year as to the quantity of dried fish produced out of so much green?-There can be if it is wished.

5885. Do you not always go upon the footing that 21/4 cwt. of green fish make 1 cwt. of dry?-No; we can make a calculation in order to get at the quantity of green fish which it takes to make 1 cwt. of dry.

5886. On what principle do you act in settling with the fishermen?-In settling with them we pay them the current price paid in the country.

5887. But you calculate that current price on a certain principle with regard to the quantity of dry fish produced out of green?- Yes.

5888. In settling with them, do you always go upon the footing that 21/4 cwt. of green make 1 cwt. of dry, or does that enter into the settlement with the fishermen at all?-Of course that enters into the calculation; but then we can know exactly what quantity of green fish it takes to make 1 cwt. of dry. It is generally about 21/4 cwt. It may be a few pounds less some years, but it is very seldom more than 21/4 cwt. We always reckon upon it taking 21/4 cwt. green of ling to make 1 cwt. of dry; but then the price which we pay to the fishermen depends altogether upon the price which we get from the fish dry, and we pay them the current price paid in the country.

5889. How is that current price ascertained? Is it by the sales of each fish-curer, or by the sales of all the firms in Shetland?- Fish-curers have generally to pay the same price, whether they get the same price or not; but there is not often any great difference between the price got by one curer and that got by another. For instance, we reckon, one 21/4 cwt. green fish to 1 cwt. dry: that, at 8s. a cwt., comes to 18s., and we pay the fishermen for the cwt. of dry fish. Then the actual cost of curing is reckoned at about 2s. 6d. per cwt. dry. That does not include waste of curing utensils and management; so that the actual cost of curing the fish would be nearly £3 a ton, or 3s. a cwt.

5890. You may sell these fish for about 23s.?-Yes; but there is more to be taken into the calculation than that. We get £6 from each boat for the hire of the boat and the lines; but that sum cannot cover the cost to us, and therefore we have a loss upon the boat and lines, which has to come off the fish also.

5891. Is that loss universal?-I think it is, because there is no more paid for the boats now than was paid twenty years ago, when a boat wore half as long again [Page 146] as it does now, and when lines that run for two or three seasons would run for five or six seasons.

5892. Is that difference caused by deterioration in the quality of the articles?-No; it is caused by the boats going further out to the fishing. They require larger boats and larger sails, and then the lines are getting more used and more worn.

5893. I was asking you how the current price is ascertained at the end of the year?-It is just ascertained in the same way as the current price of any other commodity in any other place would be ascertained.

5894. Do you correspond with other fish-curers in order to find out the price?-Yes.

5895. Is there any meeting of fish-curers held at Lerwick or elsewhere for the purpose of fixing the price?-Not that I am aware of; not in the case of the haaf fishing.

5896. Is there any in the case of the Faroe fishing?-I am not sure about that; but I never attended one.

5897. Have you been asked to attend one?-No.

5898. Is there any rule with regard to the fixing of price current in the Faroe fishing? Do not the fishermen there get one-half the proceeds of the fishing, whatever the price may be, without reference to a price current?-It is always expected that the crew of one vessel will get the same as the crew of another.

5899. Do you mean the same as the crew of another employed by the same merchant?-No; by different merchants. That is always expected, and there is seldom any difference, although it does happen occasionally.

5900. Therefore you have heard of a meeting for the purpose of fixing a price current for the Faroe fishing?-I heard of such a thing taking place once, but not oftener; and I think it was only attended by three or four individuals. I think that was a year or two ago, but I am not certain about the time. Indeed, I am not certain about the thing; it only occurs to me that I heard about it.

5901. But the current price for the ordinary ling fishing can be easily enough ascertained, because you meet one another, and in your correspondence you may mention it incidentally?-Yes.

5902. Does it sometimes happen that the fishermen to one firm complain that they have not got so large price as their neighbours?-That has happened in my experience once or twice.

5903. Does that account in any degree for the desire which some fishermen seem to have for a price to be fixed before the season begins?-I don't think so.

5904. Do you think fishermen would be better off if a price were so fixed?-I do not.

5905. Why?-Because I think, under the present system, they are getting the very utmost the fish are worth to any merchant.

5906. But would it not be better for the fishermen? Would they not work as well, or better, if they knew the price they were to get?-I am not very sure about that; I cannot see in what respect they could possibly be better than they are.

5907. In your curing establishment do you employ beach boys at a fixed rate per annum?-Yes.

5908. Do they open an account in your shop-books in the same way as a fisherman who is engaged to fish to you for the season?- Yes, in much the same way. We engage them about this time of the year, and they require a few trifles about this time. Then, before they commence work on the beach, they require some clothing-perhaps some oilskins and boots or shoes. Then they require meal to keep them going through the season, and they are settled with at the end.

5909. What is the amount of the balance generally paid to a beach boy at settlement time in cash?-From 10s. to 30s.

5910. Out of wages amounting to from £2 to £3, 10s.?-Yes; we very seldom pay a boy more than £3.

5911. Have you any difficulty in getting beach boys?-We do find a considerable difficulty sometimes.

5912. Is the supply not equal to the demand?-Not in our case. For the past year for instance, it has not.

5913. How does that happen? Are their wages too low, or have they any other employment nowadays?-Nowadays the boys are being employed at the fishing sooner than they used to be.

5914. Are there many people employed in your curing establishment as day workers?-Yes; they are chiefly women, but there are a few boys and a few old people.

5915. How are they paid?-By the day.

5916. When are they paid?-Whenever they wish

5917. Is there a weekly pay-day with them?-There may be, if they wish; but sometimes, for their convenience, we do not settle weekly. The settlement may run for three, four, five, or six weeks, or perhaps whole season.

5918. How many days will these women be employed in the course of the season? Is it anything like constant employment?- Yes; at least during the summer. From the end of May till the end of September we will employ on an average about twenty women daily at Mossbank, and about ten at Greenbank.

5919. Do these women run an account at your shop for goods?- Yes.

5920. Is a considerable amount of their wages paid to them in goods?-Yes, a considerable part.

5921. Is there any understanding or rule that they shall take part of their wages in goods?-There is no such understanding.

5922. They are quite at liberty with regard to that-Yes.

5923. Will they get cash if they ask for it?-Yes, if they have it to get; but it is a convenience for them to get their goods from our shop. It saves them the trouble of going a greater distance for them.

5924. Is there no other shop there?-Not close by. The nearest shop is about a mile off, I think.

5925. Is there any expectation or understanding, when these women are engaged, that they shall open an account and take their wages, or the greater part of them, in goods at your shop?-No, there is no understanding; but we have every reason to believe that they will come to us, because they cannot manage otherwise.

5926. Are the goods which they take generally provisions or soft goods?-Chiefly provisions, but some soft goods too.

5927. In engaging these women, do you give any preference to those who deal at your shop?-No; but they mostly all deal there.

5928. Has each of them a ledger account in her own name with you?-Yes.

5929. Have they generally pass-books, or do they prefer to do without them?-They can get a passbook if they like, but they seldom do it.

5930. Are you a landed proprietor?-I am to small extent.

5931. Are any members of your firm owners of land?-No; not owners.

5932. Or tacksmen?-I am a tacksman of some; and we, as a firm, are factors for one or two small properties.

5933. Are any other members of the firm tacksmen or proprietors of land?-Not tacksmen.

5934. Or proprietors?-No. Mr. Hoseason, I think, is proprietor of one-fifth part of a rental of £3.

5935. On the land which you hold as owner or tacksman, are there many of the tenants who are fishermen and are employed by your firm?-Yes, there are a great many fishermen.

5936. Are they under any obligation to fish for you, and not for another?-Yes; we expect them fish for us in preference.

5937. That is part of the contract which they enter into for their ground?-Yes; but it is also understood that we are to give them the current price of the country.

5938. What are the properties of which you are tacksman?- Aywick, in East Yell.

5939. What is the number of fishermen on that property?-There are only four or five of them who fish to us. There are a good many others, but they do not [Page 147] fish to us. Some of these men go to the whale fishing, and we are not interested in it.

5940. They are not bound to fish for you if they go to the whale fishing or to the Faroe fishing?-No; not unless we require them. If we require them, they will give us the preference willingly.

5941. Is it part of the arrangement or understanding, that you are entitled to prevent them from going to the whale fishing or to the Faroe fishing if you please?-No; they are at perfect liberty to go to the whale fishing if they prefer it.

5942. But if they engage in the home fishing they are bound to fish to you?-Yes, if we wish it.

5943. What other properties are held in tack by you?-Sandwick, in North Yell.

5944. How many men are upon it?-There are seven or eight families, the heads of which are all fishermen, and they fish to us. There is another small property called Sellafirth, in North Yell, on which I think there are four or five men. We are also factors for George Hoseason of Basta, in North Yell.

5945. Are the men there bound to fish to you?-They all fish to us. They are not bound to do so; only, it is understood that they are to fish to us.

5946. How many of them may there be?-I think six or seven. These are all the properties of which we are tacksmen.

5947. Of what properties are you proprietor?-I am proprietor of small place in Delting, at Mossbank.

5948. Are there many fishermen on it?-No; only three or four.

5949. Are they also expected to fish for you?-No; there is only one of them, I think, who fishes for us.

5950. Are those fishermen in North Yell who fish for you, and who live on the land you have mentioned, in the habit of dealing at your shop at Gloup?-Yes; to a small extent.

5951. Are your books kept there?-No; Greenbank is the principal place where they are kept. Gloup is fishing station in connection with Greenbank.

5952. The shop accounts at Greenbank are balanced in the same way against the price of the fish?-Yes.

5953. Perhaps you will make up a similar statement to that which Mr. Adie has promised with regard to the amount of the shop accounts and the indebtedness of the men?-Yes. The systems pursued at Mossbank and Greenbank are a little different. At Greenbank we hire both boat and lines to the men; while at Mossbank the men almost all buy their lines, and hire the boat only.

5954. How many accounts do you keep at both places?-I think about 120 or 130 altogether, for the ling fishing.

5955. Are you engaged in the Faroe fishing?-Yes, to a small extent.

5956. Your dealing with regard to it is similar to what Mr. Adie has described?-Yes, quite the same.

5957. The men who go to that fishing deal at your shop in the same way as those who go to the home fishing?-Yes.

5958. Do they generally incur as large a shop account as the men who engage in the home fishing?-Not generally.

5959. Is that because they are young men?-Yes.

5960. But those who have families are in pretty much the same condition as the home fishers?-Yes; there is not any material difference as to the amount of their shop accounts.

5961. Is there anything you would like to add to what Mr. Adie has said?-No; I think everything I have to say has been stated already.

5962. You are not engaged in the hosiery business?-Only to a very small extent; we do not turn over £100 of hosiery in a year. There is one thing I should like to say about the difference in the price of our meal and the price of meal at Lerwick. I have heard it said that we average 8s. or 10s. higher than the price there. I may explain, in the first place, that there was a mistake with regard to the actual amount of difference; but at that very time the witness spoke of there was a considerable difference caused by a sudden rise in the price of meal in the market. At that time the meal rose several shillings on the sack. Parties who had their meal in before the rise could sell it without any increase of the price, if they thought fit; but we happened to bring in meal the very week the rise came on, so that we had to sell it at an advanced price.

5963. What was it?-I don't recollect exactly, but recollect that it was pretty considerable. The usual difference between the price of our meal and the price of meal in Lerwick is from 1s. 6d. to 2s. per boll

5964. Was the difference as much as 5s.?-No, it was not so much as that; but, from the cause I have mentioned, it may have been considerable. I made an arrangement with a party in Lerwick this year to send us weekly a price current of the meal in Lerwick, because sometimes our people do complain that they are charged more than they could get it for at Lerwick, and I wish to know how we really act in that way. I should be glad to send that price current for your inspection.

5965. Do you wish the prices in it to be compared with the prices at your own shop?-Yes.

5966. How are the prices at your shop to be ascertained?-Our books can show them.

5967. Are all the sales of meal entered in your books at the time they take place?-Not all; but when meal is given on credit, the price is entered in the ledger account opposite the name of the party.

5968. You have not got your books here?-No. I was not cited to attend to-day; but I wished to be examined, and I came forward.

5969. In what way do you arrange your ledger? Have you an account in it for each boat's crew?-Yes.

5970. Is there also a ledger account for each individual?-Yes.

5971. In that ledger account do you enter on the one side all his outfit and all the goods supplied to his family or to himself out of your shop, while on the other side are entered the proceeds of his fishing, and everything else that may be due to him?-Yes.

5972. In the case of the properties of which you are tacksman or proprietor, the rent, I presume, goes into the debit side of the man's account?-Yes.

5973. Is there anything else you wish to say?-No.

Brae, January 10, 1872, Rev. DUNCAN MILLER, examined.

5974. You are a clergyman of the United Presbyterian Church at Mossbank?-I am.

5975. You have been there for a number of years?-Yes; this is my fourteenth year.

5976. You are well acquainted with many of the fishermen and with their families?-Yes.

5977. You are aware of the system which exists, of the payments for the fishermen's catch being settled at long intervals, and of accounts being run for shop goods with the merchants who buy their fish?-Yes. I think it is necessary to make a distinction with regard to the long accounts, because what I suppose is called the winter fishing is paid for immediately on the fish being landed.

5978. These are the small fish taken in the winter time?-Yes.

5979. But for the summer fishing there are these long settlements I refer to?-Yes.

5980. Have you formed any opinion as to the effects of that system upon the habits and character of the people?-I have.

5981. What conclusion have you arrived at on that matter?-I have arrived at the conclusion that these effects are very injurious. I think the men are brought to depend too much upon the shop and too much upon [Page 148] the merchant, and that in consequence they rely too little upon themselves. One result of the system therefore is, that there is a want of prudence amongst the men generally. I think the pass-book system affords a fatal facility for men getting into debt, and that many rush into it in that way who think very little of the debt they incur. Besides, I think the present system fosters, and has a natural tendency to produce a deceitful character in the people. For example, they are bound by their agreement to deliver their fish to the factor of the merchant for whom they fish, and the result is pretty much as has been stated in the examinations to-day, that a good many smuggle away their fish. They think the men who purchase them-I believe they are called yaggers-give them, a higher price, in many cases, than they would get from their employers, and therefore they dispose of fish which really belong to the proprietor of their boats; and all that is done in an underhand way.

5982. Have you any knowledge about these yaggers or factors who come about the country purchasing fish?-I have no knowledge of them except from the fishermen's own statements.

5983. Do you understand them to be strangers travelling about the country?-I understand them to be men-many of them, at least,- who have boats of their own. They have perhaps a single boat upon a station, and that gives them a right to be upon that station; and then they can buy as many fish as they please from the men belonging to other boats and other proprietors.

5984. Are they men who cure for themselves?-Yes; they cure for themselves to a small extent, and increase their means by purchasing from other boats.

5985. Do they occasionally reside in Shetland?-Yes.

5986. Are they fishermen themselves?-Yes; they are what are called small merchants. Possibly they are not able to furnish out a large fleet of boats, but they get one; and that one is little better than an excuse for giving them a right to be there, and to make purchases.

5987. Is the opinion you have arrived at with regard to the habits of improvidence that prevail among the fishermen the result of your own experience of particular cases.?-It is the result of general impressions, from a comparison of a multitude of individual cases that have come under my notice.

5988. Do the fishermen or their families with whom you come into contact, complain or make you aware that they run into debt to the shop to a larger extent than they ought to do?-Yes; many of them do.

5989. Do you find, as a rule, that the ordinary fisherman is in debt to his shop more than he is fairly able to pay at the end of his fishing season?-I think in my own neighbourhood that is probably the case, but of course Mr. Pole is more able to speak to that than I am. I don't know the state of their books, but I have a general impression that that is often the case. I think the majority of the fishermen round Mossbank are deeper in debt than they can hope to pay in one year.

5990. Would your opinion on that point be altered by discovering from the books, or from the fishermen themselves, that a considerable sum was paid to them annually in cash at settlement?-I cannot say for the present how they stand, but I have known when there was hardly a fisherman who was not in debt.

5991. Was that after a bad year?-No; it was for a succession of years. I remember about ten years ago of a very large home fishing in the way of sillock taking, when a couple of men in a boat were realizing upwards of £2 in a night. At that time a great many of them got themselves out of debt who were perhaps about £20, or from £20 to £30, involved, and I presume they have not been so much in debt since. I cannot say exactly how long that was ago but I think it was perhaps eight or ten years.

5992. You spoke of the men being too much dependent upon the fish-curer under the present system: would you explain, in what way that dependence is evidenced?-It is evidenced in a variety of ways. There is one way in which it is pretty evident, viz.

that they never think of making any provision for the future. They know when they go to the work, that if their character is such that they can be expected to pay, or if they have property of such an amount as will pay their debt, they can get goods; and it is a kind of maxim, 'Well, there is plenty of pens and ink, and they can mark that down.' I have known that answer returned by men when they were accused of running too far into debt.

5993. Does that indicate a want of self-dependence?-Yes; a want of self-dependence, and too great a dependence upon the shop.

5994. It does not prove that they are under the control of the shopkeeper?-They are under his control.

5995. A man who is deeply in debt to a shopkeeper is of course under the control of his creditor to, certain extent; but in what way does that operate against the fishermen?-I think they become dispirited. They never think of paying their debt, and it paralyzes their energies.

5996. Do you think a fisherman who is in debt in that way is induced to engage for the season with the fish-curer on disadvantageous terms, or that he is induced to continue his dealings at the merchant's shop, when he might do better for himself otherwise?-Yes, I think that when he forms an engagement in that way his energies are paralyzed in prosecuting his calling, and that he will not fish with the same energy as if he were free men. He knows that whatever amount he may earn at the fishing, still his debt will hang about his neck. He will not be able to pay it. But I am not quite sure that I apprehend your question. I am speaking rather of the way in which the fact of a man being in debt paralyzes his energies.

5997. I was rather anxious to see how the fact of him being in debt operated to put him under the control of a fish-merchant so as to induce him to make a worse bargain than he would otherwise do, or to continue dealing at the merchant's shop, and to get his payment in goods, while he might be doing better with ready money?-The way in which I would understand the system operates injuriously in that case is, that if man is in debt to a merchant, the merchant, if he wishes the man to fish, has no more to do than to say to him, 'I will roup you off: you will be without the possibility of holding land, and your cows will be taken. You will get no manure; you cannot cultivate your land profitably without it, and you will just have to begin the world again a new man.' Now a man with a family, and probably a pretty large family, cannot afford to do that.

5998. Is there a feeling among the fishermen that they are in any way under an obligation, either a tacit understanding or an actual obligation-to deal at the fish-curer's shop for their goods?- There is a tacit understanding, at least, that they must do that; but I believe that is induced by the circumstance, that for large portion of the year their money is in the merchants' hands, and that again affords the kind of facility for running into debt which I have spoken of.

5999. Do you think that makes them incur larger debts than they otherwise would do?-I think so.

6000. Can you suggest any remedy for this state of things?-The remedy I would suggest is this: that the payments be as prompt as possible, and that they be cash payments. I am quite ready to state how I think the cash payments would operate. At present the fishermen's money is all in the merchants' hands; but he is requiring goods in the meantime, and he has no money to procure them with, and therefore he goes to the merchant and procures his goods. The merchant is under no constraint,-he can put his own price on the articles which he sells; and of course, where there is a credit system like the present, there are a large number of defaulters. These defaulters do not pay their own debts; but the merchant must live notwithstanding, and therefore the honest men have to pay for the defaulters. The merchant could not carry on his business unless [Page 149] that were done. He must have his losses covered; and system of that sort tells very heavily upon the public, because the merchant must charge a large margin of profit. Now I think the ready-money system would be more favourable for both parties,-because, suppose I were a merchant and dealing in ready money, I might turn over my capital three times a year, and I might have a profit every time, or three several profits; but if my money is lying out in debts, then it is perfectly clear that I must have as large a profit upon one turnover of my capital as under the other system, I would have upon the three, only I might have a little more trouble in turning it over three times instead of once. That is the reason why I think it would be beneficial to the merchant. On the other hand, I think it would be beneficial to the fishermen, because if the merchant turns over his capital three times, and has a profit on each time, then the profit which he could afford to charge would be less, and the men would get their goods cheaper.

6001. Are you in a position to state, as a matter of opinion, from your own experience, that the prices charged at the shops of these merchants are higher than they are at others where that system does not prevail?-I am not personally cognisant of that. I have bought some things at the shops here, and I thought they were charged higher; but I get my goods from Edinburgh-half a year's provisions at a time-so that I cannot testify from personal experience as to the difference in that respect.

6002. Is it not a very common thing in Shetland for families to get their supplies from Edinburgh?-I don't think it is general.

6003. I don't mean the families of fishermen; but is it not a common thing for people of a higher class to get their supplies from the south?-Yes, from Edinburgh or Aberdeen; but in my own case there is reason for sending to Edinburgh, over and above any difference in price. There are many articles I require which are not to be had here, and I have to send south before I can get such articles as are suitable for me.

6004. Have you anything to say with regard to the system pursued in the hosiery business here?-I don't think it is conducted with that amount of discrimination which it ought to be conducted with. In my neighbourhood there is very little done in hosiery; but the hosiery goods are just like a penny piece,-you know what they are; it does not matter whether the article is good or bad,-there is just a fixed price for it. That being the case, people don't put themselves to much trouble in order to procure a good article.

6005. Do you think the women would be better off if they were to get payment for their goods in cash?-I think so. I think it would be beneficial to have transactions in cash in hosiery as well as in everything else.

6006. Do you know any cases of women who have been making hosiery, and who have been in distress for want of money although they were able to get goods for their hosiery?-I know that they prefer money. I cannot say about their having been in distress. Many persons have come to my wife and have brought hosiery goods because they would get money from her for them. They often require money for purposes that goods will not answer, and in such cases they frequently come to Mrs. Miller and endeavour to get her to buy them.

6007. Is it a common thing in Shetland, that the women would rather go to a private party and get money for their goods than take them to a merchant?-Yes; there are a great many purposes for which money is required. Suppose a parent wished to pay his child's school fees, or anything of that sort, of course cotton goods would not pay for that; only the money would do. But the hosiery is a very unimportant branch of business in our neighbourhood.

<Adjourned>

Hillswick, Northmaven: Thursday, January 11, 1872. <Present>-Mr. Guthrie.

WILLIAM BLANCE, examined.

6008. You are a fisherman at Ollaberry?-I am.

6009. Have you a piece of land there?-Yes.

6010. Who is your landlord?-Mr. Anderson of Hillswick.

6011. For whom do you fish?-For Mr. Adie. I have fished for him in the summer season for the last six years.

6012. Are you at perfect liberty to fish for any person you like?-I have had that liberty since I came to Ollaberry.

6013. Have you not always had it?-Before that time I was south. It is only within the last six years I have been going to the fishing.

6014. Are the people at Ollaberry at liberty to fish for any person they like?-I don't know whether I can answer that question.

6015. Why?-Because I should like to speak only of my own experience. I have not been bound myself, and another man might tell me a true statement, or he might tell me a false statement.

6016. Then your own experience is that a man is free?-I have been free for the last six years while I have been at the Faroe fishing. During that time I have had my freedom

6017. Was it because you went to the Faroe fishing that you had your freedom?-I could not go to the ling-fishing.

6018. Why?-For certain reasons of my own. My own bodily ability was one.

6019. Does it require a stronger man to go to the ling-fishing than to the Faroe fishing?-It requires healthy people, I suppose.

6020. Are healthy people required more in the ling fishing than in the Faroe fishing?-Yes.

6021. Do you know whether your neighbours at Ollaberry are at liberty to fish to any person they please in the ling fishing?-They are supposed to fish for their landlord.

6022. Do you understand that that is a part of the bargain under which they hold their ground?-I don't know; but I believe it is, from hearsay.

6023. Were you told so yourself when you took your ground?-My landlord told me he wished my fish, and I told him I could not give them to him.

6024. And you went to the Faroe fishing instead?-Yes.

6025. Do you consider that if you went to the home fishing you would be at liberty to engage with any fish-merchant who offered you a good wage?-[No answer.]

6026. Why do you hesitate to answer that question? You must have some idea about it?-I would not consider myself at liberty until I inquired at my land-master.

6027. Is that the way with the other fishermen at Ollaberry too: have they told you that that is the obligation under which they lie?-They might have told me, but I forget.

6028. Do you believe that it is the obligation under which they lie?- If you hesitate to answer that question, I must ask you the reason why you hesitate so [Page 150] much?-Well, I believe it is the understanding that they must fish to the master.

6029. When did you receive your citation to come here?-On 9th January.

6030. Have you spoken to any one on the subject since?-Yes.

6031. To whom?-I could not read the writing, and I asked a man to read it for me.

6032. Who was that man?-Mr. William Irvine.

6033. Is he Mr. Anderson's shopkeeper at Ollaberry?-Yes.

6034. Did you go to the shop for the purpose of asking him to read it to you?-I had other errands besides that.

6035. But you were at the shop, and you asked him?-Yes.

6036. Did he read it to you?-Yes.

6037. Did you say anything to him about it?-I told him I did not understand it, and I would like if he would explain it.

6038. Did he explain it?-Yes.

6039. What did he tell you about it?-He said I need not be afraid to go, and that I should tell the truth.

6040. Was that all that passed?-I don't remember anything else.

6041. Had you much conversation on the subject?-Oh no.

6042. Did he tell you what you would be asked about?-The special thing he told me I would be asked about would be what had taken place between me and himself.

6043. What did he tell you about that?-He told me to take any books with me, as I was requested to take pass-books or documents.

6044. Did he tell you that the principal thing you would be asked about would be your dealings with the man you were fishing to?- Yes.

6045. That is Mr Adie?-Yes.

6046. Did he tell you you would be asked anything about your dealings with your landlord?-No; he told me nothing about that. I asked him if there was any use taking my land receipt, and he said he did not think there was. That was all that passed about it.

6047. Was that all that passed between you about anything?-All that I remember.

6048. I am asking you these questions, only because you hesitated so much in some of your answers. You said the people at Ollaberry were under an obligation to fish for their landlord?- As I supposed.

6049. In point of fact, do all the men there who go to the home fishing fish for Mr. Anderson?-I cannot say whether all of them do it.

6050. Do you know whether most of them do it?-I cannot tell.

6051. Are you acquainted with all the people in Ollaberry?-No; I have only been four years there. I am a stranger on that side, so that I don't know many of the people.

6052. Do you know most of the people within a mile or two of you?-I don't think I do. I could not mention them by name.

6053. But you have spoken to most of them?-I think I have.

6054. Do they all fish for Mr. Anderson in the home fishing?-[No answer.]

6055. Do you know, or do you not? If you do not know, say so?- I believe they do; but I don't know.

6056. Have you ever known any man who wished to engage to another fish-curer, or to cure his own fish, or sell his fish as he pleased, during the season in Ollaberry?-No; there are none of the men who do that.

6057. Do you keep a shop account with Mr. Adie at Voe?-My dealings are there, for the most part.

6058. Is there any shop of Mr. Adie's nearer to your house than Voe?-I cannot say.

6059. How far is it to Voe from your house?-I have heard it called thirteen miles; but I don't know.

6060. Are you married?-Yes.

6061. Have you a family?-Yes.

6062. Where do you buy your provisions?-I buy provisions in Voe, or in any other shop, just as suits my convenience.

6063. Do you sometimes buy them at the Ollaberry shop?- Sometimes.

6064. Anywhere else besides Voe?-Yes, I buy sometimes at other places. I have bought something at Mr. Anderson's shop at Hillswick.

6065. Anywhere else?-Yes, I have had some things elsewhere too.

6066. Where?-At Usiness, at Mr. Gilbert Nicholson's.

6067. Has he a shop of his own there?-Yes; shop is his own, so far as I know.

6068. But you get most of your provisions at Voe, and you keep an account in Mr. Adie's books all the year round, which is settled about the end of the year?-Yes.

6069. Is the settlement always before the New Year, or is it sometimes later?-Sometimes it is later, but it is generally before.

6070. Have you got a pass-book?-Yes. [Produces it.]

6071. Have you generally a balance of cash to get at the end of the year from Mr. Adie?-No.

6072. Are you generally in his debt to some extent at the end of the year?-Yes.

6073. How much were you in debt last settlement?-It was for something over £7.

6074. Have you always been in his debt?-Not always.

6075. How long is it since you had a balance to get?-I am not sure, but I think it is four years ago.

6076. I see from your pass-book that you have got a number of sums of cash paid to you. There are 16s., 8s., 2s. 6d. twice, 9d., 1s. 2d., and 3s. in cash, between December 23, 1870, and November 27, 1871: did you always get these advances of cash to account of the fishing that was going on during this season?-I always got the cash when I asked it.

6077. Did you get these advances to account of the fishing that was going on last season?-I was at the fishing last year.

6078. And you were delivering fish to Mr. Adie at the time you got that cash?-Yes.

6079. You were also to some extent in his debt?-Yes.

6080. Did he give you cash when you asked for it?-Yes.

6081. Did you get cash from him with which to pay your rent?-A little: £2.

6082. That is not marked in your pass-book?-No.

6083. Did you get it since the last entry was made in your book?- I got it before January. That is not all my account.

6084. Have you another book?-No.

6085. But there are some things which you have got which are not put in here?-Yes; I have gone to the shop when I did not have my book, and I have got what I asked.

6086. What goods you got in that way when you did not have your pass-book were all put down in Mr. Adie's book, and you remembered about them when you came to settle?-Sometimes, and sometimes not.

6087. If you did not remember them, did you trust to the honesty of the shopkeeper?-Yes.

6088. Is your account read over to you at settling time?-Yes, if I ask it to be done.

6089. Do you generally ask it?-Sometimes I do not, if I am in a hurry to get home.

6090. Then you have perfect confidence in their honesty?-I always think it would do more harm to them than to me if they were not honest.

6091. Does Mr. Anderson send any smacks to the Faroe fishing?-

Not to my knowledge.

6092. Do you consider yourself under any obligation to ship in Mr. Adie's smacks for Faroe?-I do.

6093. Is that because you are in his debt?-Yes.

6094. Are there many other men who go in smacks for the same reason?-I cannot answer that.

6095. Have you ever heard any of your shipmates say they were in Mr. Adie's debt, and that they could not ship with anybody else?- Not so far as I remember.

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6096. Do you know whether, in point of fact, many of them are in debt to Mr. Adie?-I don't know.

6097. Have you ever heard that they were?-I don't remember.

6098. When are you told the price you are to get for your fish at the Faroe fishing? Is it at the settling time?-We are told some time before, but not long.

6099. You leave the selling of the fish in the hands of the merchant entirely?-Yes.

6100. Is it the bargain that you are to be paid according to the current price at the end of the year for your half of the fish?-Yes.

6101. Before bringing out your half, there is a deduction of 5 per cent. for commission?-I don't know about that. I have heard of it, but I cannot say anything about it. I forget about these matters.

6102. Do you understand the bargain you make, and the way in which the settlement is made for your fish?-We get one half of the fish, and have to pay for salt and for the drying of the fish.

6103. Do you know of any other deductions that are made from your earnings?-Yes; there is a deduction made for part of the bait with which the fish are caught.

6104. Is there not something for lines?-We generally buy our own lines.

6105. Are these set down as part of your account in the shop?- Yes.

6106. But not in the pass-book?-Perhaps not.

6107. The book you have produced is for your own family requirements?-I generally take the book with me; and when I have it, I mark into it what I get out of the shop.

6108. Is it the boat's crew, or is it you individually, who are liable for the lines?-Every man takes lines for himself, if he chooses.

6109. Do you fish any when you come home from the Faroe fishing?-I fish a little, but nothing that can do me any good towards selling. I get no selling fish.

6110. You only fish for your own use, then?-Yes.

6111. In a small boat of your own?-Yes; or sometimes on the stones.

6112. Do you never sell any of the fish that you catch when you come home from Faroe?-No; I have not sold any for the last four years, so far as I remember.

6113. Would it not be easier for you to get your shop goods at Ollaberry, rather than to bring them fourteen miles from Voe?-If I want it, I can get anything sent down to Ollaberry.

6114. How far is it from your house to the shop at Ollaberry?- About half a mile.

6115. Do you get things there as good as at Voe?-Yes.

6116. And as cheap?-Yes, so far as I can judge.

6117. Would you get them always at Ollaberry if you were not fishing for Mr. Adie?-I cannot answer that.

6118. If you were not fishing for Mr. Adie, would you take the trouble of going to Voe every week or every month, as you wanted, to bring meal or tea or anything you wanted to buy?- No, I would not.

6119. Do you get your meal at Voe?-Yes; most that we use comes from there.

6120. I see it is not entered in your pass-book?-No; because the meal has generally been sent in my absence, and I carry the book about with me.

6121. How is it sent?-I have got some of it sent from Aberdeen to Ollaberry direct.

6122. How much was there of it at a time?-I don't remember.

6123. Was there a quantity sent at the same time to other people besides you?-No; it was only for myself and my family. I got a boll, or a sack, or whatever I wished Mr. Adie to send for.

6124. Mr. Adie got it sent from Aberdeen to you?-Yes, because I could get it cheaper from Aberdeen than from his own store. The money, of course, was his.

6125. Are there any other men fishing for Mr. Adie at Ollaberry?-I don't think there are.

6126. How did the meal come to Ollaberry from Aberdeen?-It came by the steamboat to Lerwick; and there are two vessels that come north, either of which it might have come by,-either the little steamboat or a packet which ran there.

6127. What did you pay for that meal?-I cannot say.

6128. Is it settled for yet?-My account is squared up.

6129. Was it this year you got it?-Yes; but I have got it in previous years in the same way.

6130. Do you know what you paid for it before?-I don't remember.

6131. When was your account squared up?-Fourteen days ago.

6132. It was not squared up in your pass-book then?-No, I had it with me; but I wanted to get home soon, and I did not ask Mr. Adie to look over the pass-book.

6133. You saw there was a balance against you then?-Yes.

6134. Did you not ask the price of the meal you had got?-No.

6135. Did you not hear it mentioned?-No.

6136. Are there any people in your house who knit?-Yes; my wife knits.

6137. Where does she sell her hosiery?-She sells it at Ollaberry, or Lochend, or at Hillswick, whichever place is most convenient. She buys the wool, and spins it herself. The articles which she knits are not very fine, and she sells them to any person who will buy them.

6138. Is she paid in goods or in money?-Generally in goods.

6139. Does she sometimes get money?-No; she seldom asks for it.

6140. Why does she not ask for it? Does she not want it?-No, not so far as I know.

6141. Has she an account in these shops?-She has an account in some of them. She has an account with Mr. Laurenson at Lochend.

6142. Anywhere else?-I don't know.

6143. Is that an account in your own name, or in hers?-It is an account of her own, so far as I know.

6144. Is it quite a separate dealing from anything you have to do with?-Yes.

6145. Have you ever had to pay your wife's account at Mr. Laurenson's?-No.

6146. Has she ever got money from that account for her hosiery to pay for your rent or for anything you wanted to buy?-No.

6147. Is it the practice not to sell hosiery for money in your neighbourhood?-I cannot say. I know that the general thing is goods.

6148. When is your wife's account with Mr. Laurenson settled?- It is settled when she is able to pay it.

6149. Has she generally something to pay for what she gets, or has she a balance in her favour?-It is seldom she has a balance in her favour.

6150. If she has such a balance, is it settled in goods?-I cannot answer that. If she wanted money she might get it, for anything that I know.

6151. Do you pay a subscription to the Shipwrecked Mariners' Society?-Yes; 8s. a year.

6152. Have you ever lost any lines or a boat?-No.

6153. Have you ever had anything to receive from the Society?- Yes; I was once sent home when I was shipwrecked.

6154. Was that all you have had to get from it?-Yes.

6155. Do you know of any people who have been turned out of their land in Shetland?-Not in our district.

6156. Do you know of any who have been turned out elsewhere?-Yes; Mr. Walker turned out some Delting, on Major Cameron's estate.

6157. What was that for?-Because he wanted the land. Some of them were very anxious to sit if they could have done so, but I suppose they could not comply with his terms.

6158. Were these men fishermen?-Yes.

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6159. He did not want their service as fishermen?-Not to my knowledge.

6160. Do you know of any man who has been turned out of his ground for refusing to fish, or for selling his fish away from his landlord or tacksmaster?-Not that I remember of.

6161. Does your wife sell any eggs?-Yes.

6162. Anything else off your farm?-She has nothing else to sell.

6163. Where are your eggs sold?-We generally sell them in Ollaberry to Mr. Irvine.

6164. Have you an account there?-Yes.

6165. Is it settled at the end of the year?-If I am able to settle it; but if I am not able to settle, then it just stands.

6166. Are your eggs put down to your account?-No.

6167. Are you paid for them in cash?-Yes, if I want it.

6168. How do you pay your account there, if you never get money from Mr. Adie at Voe?-Generally in this part of the world we are not confined to one thing. People in this country have sometimes different ways of getting money.

6169. Do you follow some other trade?-Yes; I sometimes sew as a tailor.

6170. And you make a little money in that way?-Yes.

6171. Are you paid in money for your tailoring work?-Generally.

6172. Is that done for your neighbours?-Yes; but I generally work for Mr. Adie and I am paid in money for that.

6173. Do you go to Voe to work, or do you go there for it and take it home?-I take it home.

6174. Does the payment for that work go into your account with Mr. Adie?-If I don't want it paid to me, it goes into the account; but if I want money, I get it.

6175. When you want money to settle your account with Mr. Irvine at Ollaberry, is that where you get it?-Not always.

6176. You get it from a party for whom you have made a coat or trousers?-Yes.

6177. You say that your eggs don't go into the account with Mr. Irvine: are you always paid for them in cash?-Not always. We sometimes take goods for them; but if we wanted them to go in to our credit, they would go.

6178. Do you always take goods for them?-Generally.

6179. What is the price of your eggs?-For the last year or two they have generally been 6d.

6180. Can you sell them anywhere you like?-Yes.

6181. Could you sell them at Mossbank or at Brae if you could get a better price there?-So far as I know, we could.

6182. Nobody would make any objection to that?-Not so far as I know.

Hillswick, Northmavine, January 11, 1872, THOMAS THOMASON, examined.

6183. You are a fisherman at Eshaness?-Yes; and I fish at the fishing station at Stenness.

6184. Have you a boat of your own?-I have a share of a boat.

6185. Who do you fish for?-I have fished for Mr. Anderson for a while, but I might fish to any one I choose. I have fished for Mr. Anderson for a number of years.

6186. Have you a bit of land?-Yes, on Tangwick estate-Mrs. Cheyne's.

6187. Who is the factor there?-Mr. Gifford of Busta.

6188. Are you quite at liberty to engage to fish with any merchant you please?-Yes, any one. I am at perfect freedom to fish to any man, and I have always been so.

6189. Do you keep an account with Mr. Anderson at Hillswick?- Yes; I always keep my own account myself.

6190. Have you a pass-book?-No.

6191. You have an account in his books?-I generally have.

6192. Do you generally get your supplies and provisions from him?-I do; but I buy my provisions where I think I can get them cheapest. I am not bound to get my provisions from him.

6193. Do you find they are as good at Hillswick as you can get them anywhere else in the country?-I find that I cannot get much profit or advantage by going even to Lerwick to buy my goods, more than by buying them at Hillswick. I could not get so much profit as would pay me for my trouble.

6194. Have you bought meal at both places?-I generally buy very little meal.

6195. Do you get enough meal off your own ground to serve you?-Generally I do. I have a pretty good farm-just as much as will hold us in meal.

6196. How far do you live from Hillswick?-About four English miles.

6197. When you go to Stenness, do you get your supplies there?- Yes; the supplies that are required for the fishing.

6198. You keep an account for these with Mr. Anderson at Hillswick?-Yes.

6199. And that is balanced every year?-Yes; I settle once a year-perhaps in November.

6200. Have you generally a balance to get in cash?-Generally I have.

6201. How much did you get last year?-I don't know; the amount differs yearly.

6202. But how much had you to get last year?-I don't know. Perhaps I had £20 to get from him.

6203. Was that the balance which was due to you?-Yes; I suppose I got £20 of cash from him last year.

6204. Was that the whole price of your fish, or was it the balance which you got in cash?-It was the balance I got in cash.

6205. Do you think many of your neighbours got much?-I don't know, for I don't interfere with any man's accounts.

6206. Are you a skipper?-Yes.

6207. Have you any idea whether any of your men are as well off at the end of the year as you are?-I think so.

6208. Are most of them as well off?-I think so.

6209. You don't hear them talking about having balance against them?-No, I don't hear much about that. It does not lie in my way to interfere with it.

6210. Do you think the fishermen are better off now than they used to be long ago?-I think they are a great deal better off. I know I am much better off than ever my father was.

6211. How does that happen?-Because my father was a bound man, and had to fish at a very low price before he could be a tenant; but being a free man, I pay my rent on a day, and I serve any man I choose, and make the best bargain for myself that I can.

6212. Would you be better off if you knew before settling time what you were to get for your fish at the end of the year?-I know the price of the fish about settling time.

6213. But you don't know it until settling time?-No. I might be worse off if I knew it sooner, because I might get a lower figure, as the merchant could not be sure then what he would get for his fish. The price of fish in the south varies yearly.

6214. Who fixes the price at the end of the season?-I am not able to answer that exactly.

6215. What is your bargain about it?-I have had no particular bargains with the fish-curer; but there is an understanding that I have to get the highest currency of the country.

6216. Do you know how that is settled?-I don't; or if I have heard it, I did not understand.

6217. You don't know how it is found out what the highest currency is?-No; I cannot answer that exactly.

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6218. Who tells you what it is?-It is publicly known at settlement what is to be paid for the fish. We know what every man pays, and what the dry fish can realize.

6219. Is Hillswick the nearest shop you can go to for your goods?-It is the nearest shop that I can go to to get good goods. There are small articles sold nearer, but Hillswick is the only shop.

6220. Did anybody tell you to come here to-day to give evidence?-Nobody told me; but I heard that this was the day on which the evidence was to be given.

6221. Who told you that?-I don't remember now who told me. I think there was a lad from Hillswick who told me about it two days back.

6222. What was his name?-Arthur Sandison.

6223. What does he do?-He is the shopkeeper here for Mr. Anderson.

6224. And he told you to come here?-He told me this was the day when the evidence was to be taken, and that it was to be a public meeting. I understood something concerning it, and I came here voluntarily. There was no man who instigated me to come.

6225. Did Sandison not tell you that you had better come?-I don't remember him saying that I had better come or not; but, however, no man instigated me to come. I

did not require to be cross-questioned to come; I just came freely of my own consent.

6226. You said the fishermen are better off now than they used to be: can you tell me any difference there is upon their condition?-I told you already that they were bound men before, but they are not so now with me.

6227. Is there anything else in which they are better off?-Yes; I think a free man is better in every point of view than a bound man.

6228. Do you think the men get a better price for their fish now?- I think they are getting double now for their fish what they were getting about fifty years back, or perhaps forty years.

6229. Do you know that from your father?-No; I know it from my uncle's accounts. He was a factor at Stenness; and I see from his accounts what the price at Stenness was then, and I know what it is now, and can see the improvement.

6230. Have you got his accounts?-I have. I have looked into them at home.

6231. What kind of accounts are they?-Factor's accounts.

6232. Do they show the price of the fish, or just the quantities delivered?-They show the price paid to the fishermen, and also the price of meal and other articles.

6233. What was the price of fish in those accounts?-It was as low as 4s. per cwt. for green fish.

6234. And it is now about double?-Yes.

6235. Do you remember the price of meal then?-Meal was sometimes very high. I remember seeing meal charged at 12s. per lispund of 32 lbs. This season it has been 5s. 4d.

6236. But sometimes it is higher?-Yes; the price of meal varies continually, just as it does in the south market. I don't think there is much advantage on that score.

6237. You don't think there is much difference on the price of meal, but on the price of fish there is a great difference?-Yes.

6238. Is there anything else you are able to tell me about the subject of this inquiry?-I don't think so.

6239. Have you any boys engaged at fish-curing work?-I had one boy engaged at it during the past season. He was in Mr. Adie's service at Stenness.

6240. Mr. Adie keeps a shop there during the fishing season?- Yes; to supply the fishermen with any necessaries during the time of the fishing.

6241. Does your boy keep an account at that shop?-He has only been employed for one season, and I kept his account and settled for him myself. He is quite a young boy-only thirteen years of age.

6242. Do you think it is better for you to do that than to allow him to have an account of his own?-He is not capable of keeping accounts yet. He has had no education for that.

6243. Had he no separate account in Mr. Adie's shop?-It was a mere trifle.

6244. Was he paid his balance?-Yes; it was paid at once in cash. Mr. Adie paid it to me.

6245. Is that a usual way of doing with the beach boys?-I think every one who had cash to get got it at once, and the man who was careful would get his cash at once. If I had £50 to get from the fish-curer, I would get it handed to me at once. I say that from my own personal experience; and that is always so with careful men.

6246. Then you are a successful man, and I daresay you have a large balance at your bank account?-I have too large a family to have a large balance there. I require a great deal of money for my family.

6247. Have you ever gone to the Faroe fishing?-I have only been a ling fisher.

Hillswick, Northmavine, January 11, 1872, HENRY WILLIAMSON, examined.

6248. What are you?-I am a fisherman at Stenness.

6249. Do you hold some land on Mrs. Cheyne's estate?-Stenness is the station where we fish; and the farms we hold under crop, and where we live, are near it, at Tangwick.

6250. Your land is on the Busta estate, and you pay your rent to Mr. Gifford?-Yes.

6251. Are you free to fish to anybody you like?-Yes.

6252. For whom do you generally fish?-I have fished for Mr. Anderson for twenty-three years back.

6253. Do you get your goods at Mr. Anderson's shop at Hillswick?-Yes, for the most part, or anywhere else I choose.

6254. Is there any other shop in the neighbourhood where you get goods?-Yes, occasionally. There is a shop at Ollaberry; and there is a store of Mr. Adie's at Stenness, kept by a factor during the fishing season.

6255. Are there also some small shops in the country?-Yes.

6256. Do you sometimes get goods from them?-Yes; if I require them, and if it is convenient for me.

6257. But most of your dealings are at Hillswick?-Yes, because it is near hand.

6258. Is it as handy a place for you as any?-Yes.

6259. Do you keep an account there?-Yes.

6260. Is it settled at the end of the year, when you settle for your fish?-Yes.

6261. Have you generally a balance to get at the end of the year in cash?-Yes, for the most part I have.

6262. How much?-It varies very much, according to the fishing. We had a good season this year, and consequently we had a good return.

6263. But sometimes you have a balance against you?-I have not had that for some time back. When the fishing is good, of course a careful man will be able to save money.

6264. Is it five or six years since the balance was on the wrong side for you?-It is between twelve and twenty years since I was due anything; but I found no difference in the man I was serving, when I required money in advance then, than I do now when I have money of my own to get.

6265. Do you get cash in the fishing season when you ask for it?- Yes; whenever I asked for it, even when I had to ask for it in advance, I got it.

6266. Are you quite satisfied with the goods you get at the shop?- I am quite satisfied both with the qualities I receive, and with what is charged for the goods I require.

6267. Would it do you any good to have the price of your fish fixed at the beginning of the year, so that you would know what you were to get for them?-I am convinced that it would be a great disadvantage to the fishermen at large in Shetland; and that was partly [Page 154] what brought me here, when I heard there was to be a meeting. I knew little about it until I came here, but I thought I was called upon to come and give you my views upon it truly. I think the present system in Shetland has done better for the fishermen than any new system would do which could be brought in; and I think I know about it, because I have been at the ling-fishing for fifty-four years.

6268. Have you always had your price fixed according to the currency at the end of the year?-Yes. We only know our price some time before settling time, and I suppose we are paid according to the current price which rules in the south market.

6269. Do you think the price is always fairly enough fixed according to the sales which the fish-merchants have made?-I think so.

6270. Do other people not think so?-I don't know. I hear very little said about that; and as to that, I would not regard much what others said. I would have more regard to my own views.

6271. But have you heard complaints made about that?-I have no doubt I have heard them. It is a very common thing for us to hear people complaining.

6272. Is it the men who are bound to fish that are more apt to complain?-No doubt it is; but I am quite convinced, as I have already said, that any change in the system will not benefit the labouring men.

6273. Why?-Because I think they are fully as well served now as they could be. Those who are not able to pay at the time for what goods they require are dealt fairly with, and are never brought to a stand.

6274. Then you think it is an advantage for the fishermen, in a bad season, to be able to get an advance in order to carry them through until the following year?-I know it is, because, although I have never been one farthing in debt, yet there are many men with families who I know, if it had not been for the kindness of the

merchant or his factor in giving them advances, would never have been able to carry through, because they had no means of their own, and their families did not support them.

6275. Are there many men you have known of that kind who have been carried through the season by the advances of the fish-merchant?-A great many in some seasons, but not at present. These have been fine years for Shetland.

6276. But some seasons ago, when the fishings and the crops were not so good, were there many such men?-About twenty years ago there were plenty of them.

6277. Were there many of them five years ago?-I don't know that there were so many of them then. There was a bad season a short time ago; but it is turned twenty years now since there were such bad times in Shetland, and the people were carried through then chiefly by the kindness of the merchants for whom they worked.

6278. They got advances on their accounts just in the same way as you would get your cash paid to you, if the merchant were due it to you?-Yes; and not only that, but I know that the curers often paid their rents for them in cash in advance, although I did not have much experience of that myself.

6279. Were these advances generally made in money, or in articles which the men wanted out of the shop?-Generally in goods.

6280. When a man wanted food or provisions, I suppose he would generally get them advanced to him out of the fish-merchant's shop?-Yes; or any place where it would be most convenient.

6281. But you say that in these bad years, when a man was behind, it was the fish-merchant who carried him through?-It was. They were carried through merely by the agency of the fish-curer.

6282. Did the fish-curer carry them through by giving them money with which to pay their rent?-No; the curers brought in sufficient meal to serve their purposes.

6283. And that meal was sold at the merchants' shops, and put to the account of the men?-Yes.

6284. Was that done with clothing too?-Yes, clothing, and whatever they required to get.

6285. But all that was done by these merchants in the confidence that the men would pay them, if they were able, by the next year's fishing?-No doubt they were repaid in some cases, but in some cases the repayment was very slow. That depended altogether upon whether the times turned out favourable.

6286. Do you know any of the men who were helped through in that way?-I have no doubt I know them, but I have no interest to say much about them. I don't want to enter into that matter at all. I am getting well advanced in life, and I don't want to speak about my neighbours' affairs.

6287. Were there many of your neighbours who were carried through in that sort of way?-There were a great many of them who required supplies.

6288. Did it take a great many years to carry some of them through, and to enable them to pay up what had been advanced to them?-I cannot tell how their accounts may be standing at present.

6289. Then you only suppose that some of them may have been able to pay up their debt in the course of the following year?-I know they did so; and I might take myself as a specimen of that.

6290. But you said that you have not required any advance for many years back?-Certainly.

6291. Do you think that within the last ten or fifteen years there have been many men who have required to be carried through in that way?-I don't know. Probably there may have been, but I have not been requiring that for myself.

6292. But you have been speaking about your neighbours, and you say it is an altered time with them?-It is, even within the time you have mentioned.

6293. Do you think some of them, within that time, may not have been able to pay their arrears in the course of next season?-I cannot exactly say.

6294. But you have said so?-Well, it would rather appear so.

6295. You think they may have been so much in debt, that it required more than one year for them to pay it up?-It is very probable that may have been the case.

6296. Have you any boys engaged on the beach?-No.

6297. Do any of your family knit?-Yes; they are always working away at it.

6298. Where do they sell their hosiery?-At different shops.

6299. Do they go to Lerwick with it?-Sometimes.

6300. Are they paid for it in goods?-I don't know. I don't inquire much about it.

6301. Have they got accounts of their own?-Yes; they keep their own accounts.

6302. Do they help you to keep the family?-I am not requiring it. I can keep my wife and myself; and my two daughters knit to provide themselves with what they want. I never inquire whether they get part cash for what they sell or knit.

6303. Do they clothe themselves by their own knitting?-Yes.

6304. Do they never help you to buy provisions for the family at all?-They work very hard at it, but I do not require them to bring any food into the house. I can buy it myself.

6305. Did anybody tell you to come here to-day?-No; I came to Hillswick on an errand to Mr. Anderson's shop, and I heard that the meeting was to take place to-day. Mr. Sutherland also told me about it.

6306. When did you hear about it first?-I can't exactly say. I heard about it some time in the course of yesterday, but I cannot say who told me. I told then that there was to be a meeting on Thursday at the school-house.

6307. Do you not remember who told you?-No.

6308. Were you told about it at Stenness?-Yes; I was told about it in the place where I live.

6309. But you don't remember who first mentioned it?-I do not.

6310. Are you sure you don't remember?-Yes; [Page 155] I can't remember exactly who told me, for I just heard the story among the public.

6311. Was that among the public at Stenness?-Yes.

6312. Was there not some one from Hillswick who brought the news to you?-There may have been, for anything I know.

6313. Was it some of your own family who told you-No. I heard it down at the station, where the boats come in from the sea.

6314. Was Mr. Sandison there?-Arthur Sandison was at Stenness on Tuesday.

6315. Did you see him then?-I did. There were some affairs that he and I had to manage, because he is Mr. Anderson's factor in summer, and I have to do with curing fish for Mr. Anderson in winter.

6316. Did Sandison tell you about the meeting?-No.

6317. Are you sure of that?-Yes.

6318. Did you not speak to him about it on Tuesday?-I don't remember whether we said much about that, or anything about that at all. There are various things that I may have exchanged words about with him which I don't remember.

6319. Then you may have been speaking to him about it on Tuesday?-No; I had not heard any word about it on Tuesday.

6320. Are you able to say that Sandison did not speak to you about it on Tuesday?-I don't recollect him speaking about it at all.

6321. Do you swear that you did not speak to Sandison on Tuesday about this meeting?-I would not be safe to answer, because my memory might not hold good. Recollection gets short when age comes on, and I would not care for swearing to that.

6322. You say it was only yesterday that you heard about the meeting?-Yes.

6323. Can you swear you did not hear of it before yesterday?-I swear that I don't recollect of hearing about it before yesterday.

6324. Is it possible you may have been speaking to Sandison about it?-I may have done so; but if I did, I have completely forgotten about it.

6325. Do any of your family work at kelp?-Yes; my daughters work at it.

6326. What do they get for that?-I suppose the price varies.

6327. Do they gather the sea-weed and make the kelp themselves, and sell it?-Yes.

6328. What do they get for it per cwt.?-I cannot tell. I think the price is £4 or £4, 10s. per ton; but I am not very sure.

6329. Do you know how that is paid to them?-They are paid in cash if they ask for it.

6330. But they have accounts of their own?-Yes.

6331. Who do they sell it to?-I think they sell it to Mr. Anderson.

6332. And it will be settled for when they settle their accounts?-I believe so.

6333. Do you know if there is any difference in the price of kelp, according as it is paid in goods or in cash?-I don't know, for I have never inquired about that.

6334. You said that a number of your neighbours had been carried through by the fish-merchant when they were in arrear from the badness of the season, and you also said that you knew a great number who had been so carried through?-Yes, a good many.

6335. Have you any objection to tell me their names?-I don't know whether I could call their names to recollection.

6336. I asked you to tell me their names in private, and you objected to do so; but I now ask you upon your oath whether you remember the names of any such men?-I don't think I could tell any of their names now. I would know their names quite well at the time when they were getting what they were requiring, but I cannot name any of them now.

6337. Is that because you don't remember them?-Yes.

Hillswick, Northmavine, January 11, 1872, Mrs. MARY HUGHSON, examined.

6338. Are you the wife of Andrew Hughson, a fisherman and tenant here?-Yes; he is a tenant to Mr. Gifford on the Busta estate.

6339. Where do you live?-At Hillswick.

6340. Is your husband a fisherman?-He is a day labourer for the most part, and does land-work. He has been at the fishing, but not lately.

6341. Is he too old to go to the fishing now?-No; but he has been used to work on the land.

6342. Are you in the habit of knitting?-Very little.

6343. Do you knit any at all?-I knit for the family.

6344. Don't you sell your hosiery?-I have not sold much here. It is not very long since we came from Lerwick.

6345. Did you use to sell it there?-Sometimes.

6346. Were you always paid for it in goods?-Yes.

6347. Did you want to get cash for it?-No, I never asked cash.

6348. Do any of your daughters knit hosiery here?-Yes; and they sell it in Lerwick, as they were born there.

6349. Do they always go to Lerwick with it?-No; they sometimes sell it to Mr. Anderson at Hillswick.

6350. Do they always get goods for it?-Yes.

6351. Do they want cash?-They don't ask for it; it is not the custom.

6352. Are they quite content to take the price in the goods they want?-I suppose so.

6353. Do they also work at kelp?-Yes, in some way, we all work at kelp.

6354. How do you sell it?-We get 4s. 6d. per cwt. for it from Mr. Anderson.

6355. How are you paid for it?-We are paid in whatever we may ask for, in meal or tea, or goods of any kind.

6356. The way in which the kelp trade is carried on is, that you gather the kelp yourselves, and burn it and sell it?-Yes.

6357. Have you to pay for the privilege of gathering it?-We pay nothing.

6358. Can you sell it to any person you like?-There is no person buying it here except Mr. Anderson.

6359. How do you settle about your kelp? Have you an account in Mr. Anderson's books?-We get what we want, and pay for these goods with the kelp, and then anything we take out additional goes into the account for another year.

6360. Do you only settle once a year?-Yes.

6361. Do you always get 4s. 6d. a cwt. for it?-Yes; I got 5s. per cwt. some years ago, but the price is lower now.

6362. How long, in the course of the year, do you work at the kelp?-We work at it while the season is dry-from Whitsunday till the 1st August.

6363. During that time how many cwts. will you and your daughters gather?-Some years less, and some years more. We will sometimes have about £2 worth.

6364. That will be about half a ton?-Yes.

6365. Did you take the price of that in goods?-We took some part of it in clothes, and some part in meal or tea, or just what we required of money articles.

6366. What do you mean by money articles?-Groceries, or meal or bread, or anything of that kind.

6367. Why do you call them money articles?-Because it is not often that they are got for hosiery or anything of that sort.

6368. Is it a common way of speaking here, to call groceries money articles because they are not given for hosiery?-Tea is sometimes given for hosiery, and bread and meal. They will give a certain quantity of these money articles for hosiery if they

are asked for.

6369. Is there a less price given for the hosiery if it is paid in money, or in money articles?-I don't know; I never asked or received money, for hosiery either here or elsewhere.

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6370. Is there a different price for kelp according as it is paid in money or in goods?-I have heard it said that it is 4s. in money, or 4s. 6d. in goods.

6371. Have you always got the price of it in goods?-Yes.

6372. Did you never get money for your kelp at all?-No; I never asked money, and I never got it.

6373. When is the kelp settled for?-We settle for it when we sell it.

6374. Do you sell it all in a lump at the end, or at different times during the season?-Perhaps we sell it every time we burn it, and we settle for it then.

6375. Do you go to the shop and say how much you have?-Yes. We tell the merchant how much we have, and he takes us in and pays us for it then.

6376. Is there anything marked into a book about it?-Nothing. We get payment for it when we sell it. If we are due anything to the merchant, he takes it off the price, and then we get the balance in whatever way we want.

6377. Do you take the whole value of it at the same time?- Sometimes, and sometimes not.

6378. How do you know whether you are due anything at the time?-We ascertain that from the books.

6379. Is there an account in your name in Mr. Anderson's books?-Yes; and if there is anything over at the end of the season, we get it.

6380. Is it paid to you in cash at the end of the season?-Yes; if there is anything due at the end of the season, we get it in cash.

6381. Have you ever got any cash from him at the end of the season?-I never asked it, because I just cleared off with him; and perhaps there was nothing due to me.

6382. Do you think you would be any better if you were paid in cash?-I don't know. I am getting so far on in years, that it is not much cash I would have to get now.

6383. Do you and your daughters agree to keep the same account?-Yes; the account is generally in my name.

6384. Who does your husband work for?-He has been at the fishing, and he has been doing land-work for different people. He was working last summer to an Orkney man, who was over here at the building of the church.

6385. Does he work at farm-work, or how?-He just works at day-work, or lime-work, or anything he can get.

6386. Is he a stone-mason?-He is just a day labourer; he is not a mason.

6387. Do you keep an account at the shop at Hillswick for all your provisions and all the soft goods you want?-I have no account there just now.

6388. But you say that you are paid for your kelp by being settled with in an account?-Yes; we are paid off then for what is due to us, and there is no other account kept until the following year.

6389. You say you have never asked to be paid in money: is it all the same to you whether you are paid in money or in goods?-It is all the same.

6390. Do you swear that it is all the same to you?-It has been the custom to pay in goods, and there is no other place we could go to where we could get the money, besides if we got the money, we would just give it back into the shop that was handiest.

6391. Did you tell any person that you were afraid to come here today?-No, I was not afraid to come.

6392. Did you get any advice from any person about speaking the truth when you came here?-No.

6393. Are you sure about that?-I came to speak the truth when I swore to do it.

6394. But before you came, did you say anything to any one about being afraid to come, and were you advised to speak the truth?-I know to speak the truth.

6395. But did you say anything to any person about being afraid to come here?-I cannot recollect. I said to Mr. Sutherland that I wondered there were no other women asked to come besides me because there are plenty in the place. Mr. Sutherland asked me if I got money for anything; and I said I never did, and that I never asked it either for knitting or for kelp. I told him that if I had asked it I did not know what might have been done; but I never did ask it, and Mr. Anderson knows himself that I never asked money for knitting. But when I was asked to come here, I was nowise afraid to come and tell the truth.

6396. Did you say to any one that you did not like to come, for fear of the merchant?-No, I did not say I was afraid for the merchant.

6397. What did you say about the merchant?-I said I did not know why other people should not come as well as me, and that I wondered why no other women were summoned but myself.

6398. Did Mr. Sutherland advise you to speak the truth when you come, and not be afraid?-I spoke to Mr. Sutherland, and told him I did not know where I had to come.

6399. Did Mr. Anderson speak to you about coming here this morning? Did you see him to-day?-Yes, I saw him, and I spoke to him here.

6400. What did he say to you?-Mr. Anderson told me to bring my pass-book, whatever state it was in; but it has not been used for some years.

6401. Was that it pass-book for the kelp?-Yes, it was it pass-book for the goods that were used for the family.

6402. Had you a pass-book some years ago?-Yes; it is in the house.

6403. But you don't enter your purchases in that pass-book now?-No.

6404. Do you generally buy what you want at Mr. Anderson's shop?-Yes.

6405. What do you buy there?-Meal or tea, or whatever I am needing.

6406. How do you pay for that? Do you pay in money?- Sometimes in money and sometimes in knitted things or in work which my husband does.

6407. Does your husband work for Mr. Anderson?-Sometimes.

6408. When he works a day's work to him, does he get his money for it, or is it put down in the account?-It is put down in the account.

6409. But you said you had no account?-Well, I have no account.

6410. Has your husband an account?-Yes; when I said I had no account, I meant that I had no account for kelp and hosiery, but there is an account in my husband's name.

6411. And when he works for Mr. Anderson, his day's work is put down in the account?-Yes.

6412. What does he work at?-Stone-work, or any other kind of house-building.

6413. Is that account settled in money or goods?-In goods. I don't believe he has ready money to get; he is due something.

6414. Is he generally due something?-Yes; he has been due something for a while.

6415. Is it generally for Mr. Anderson that he works?-Only sometimes.

6416. When he works for other people, is he paid in money?- Yes; when he works for Mr. Sutherland, or any man who has no shop, he gets ready money.

6417. But if he works for any one who has a shop, is he paid in goods?-He does not work for any one who has a shop, except Mr. Anderson.

6418. And he is not paid in money for that because he is due Mr. Anderson an account?-His work is put into the account, and he gets what he needs for the house.

6419. How many years has he been in that position?-I cannot say; I have not been settling for him.

6420. Has he been working in this neighbourhood for a number of years?-Yes; we came here from Lerwick about 1858.

6421. When did you begin to get into debt?-I cannot say, because my husband was at the fishing then.

6422 Is it long since he got into debt?-It is some years; but I cannot say how many, because I have not been settling his account.

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6423. Is his account settled every year?-Yes.

6424. At what time?-About Martinmas or the 1st November, just at the time when the fishermen are settled with.

6425. Do you know that there is generally a balance against your husband at the end of the year?-Yes.

6426. How much will that balance be?-I cannot say.

6427. Although there is that balance, you can still get what you want from the shop in the way of provisions or clothing?-Yes; when he is working for Mr. Anderson.

6428. Is he at liberty to work for any person here who will give him the highest wage?-Yes.

6429. There is no interference with him in respect to that?-No.

6430. Then it was your husband's pass-book that Mr. Anderson referred to when you came here today?-Yes; I told him I did not have it, but he said I should have brought it.

6431. But it is a good many years since anything was put into that pass-book?-It is.

6432. Is it your fault that the things were not entered?-He was not working for Mr. Anderson for some time about the time when the book was stopped. We were buying our meal and other things at some other place and we were not keeping regular accounts then.

6433. Why did you not put your things into the pass-book when you began again to deal at Hillswick? Could you not be bothered?-I don't know.

6434. Did you ask for a pass-book then?-No.

6435. Is your husband here?-No; he is off fishing at the long lines to-day.

6436. Is he one of a boat's crew there?-Yes.

6437. How many are there in that boat's crew?-I think there are four.

6438. Have they gone to fish on their own account?-Yes; they are just trying to get some fish for the house.

6439. He is not going to sell them?-No; he has not been in the habit of doing that.

6440. Are all the fish he catches in winter used for your own house?-Yes.

Hillswick, Northmavine, January 11, 1872, EUPHEMIA PETERSON, examined.

6441. Do you live at Hillswick with your father and mother?- Yes.

6442. Is your father a fisherman?-Yes.

6443. Has he a bit of land?-Yes.

6444. Do you sometimes knit?-Yes; it is not very much I knit; the most of it is for my father and brother.

6445. Do you sometimes sell your knitting?-Sometimes.

6446. Where do you sell it?-At a place called Hillyard, on the other side of Roeness Hill, to Laurence Smith.

6447. How are you paid for it?-I get perhaps 16d. or 18d. for a spencer.

6448. Do you get that in money?-No; in goods.

6449. What kind of goods?-Cotton.

6450. How many spencers will you take to Mr. Smith at a time?- Sometimes I only take one. I had three spencers with me the last time I went, at 16d. apiece.

6451. That was 4s. What did you get for that?-I bought 41/2 yards of white cotton; nothing else.

6452. Was that all you were to get for the 4s., or are you to go back again?-No; I just got it all in cotton.

6453. You had not an account there?-No.

6454. Was it common white cotton you got?-Yes.

6455. Do you remember what was the price of it per yard?-I don't remember.

6456. How long is that ago?-It is about three weeks ago, or perhaps more.

6457. Was the cotton a thing which you wanted at the time?-Yes.

6458. What did you do with it?-I made petticoats and other things with it.

6459. Was it fine cotton?-It was sheeting cotton.

6460. Do you never get money for your knitting at any time?-No; I never asked money for it.

6461. Do you knit with your own worsted?-Yes.

6462. Do you make the worsted yourself out of the wool of your own sheep?-Yes.

6463. Do you work at kelp?-I have been at it three times, but I am not working at it now.

6464. Did you sell the kelp yourself?-No. I wrought last with Maria Sandison, and we got 4s. 6d. a cwt. for it from Mr. Anderson.

6465. Were you paid by Mr. Anderson for the kelp you had made, or did Maria Sandison get the money for you?-She got it.

6466. Then you don't know how the price was settled?-No.

6467. Did you get money for your share of it?-Yes. I got 2s. 6d. one time; at another time I got 3s.; and I don't recollect what I got the other time.

6468. Did you get that money from Maria?-I got a line for it. I did not get any money, but I got goods for the line.

6469. I thought you said you got money?-They will give money if we ask for it, but I did not ask for the money.

6470. What did you ask for?-I took goods for it-cotton.

6471. Did you want the cotton?-Yes.

6472. Did you get the money from Maria Sandison?-No. She gave me a note, and I took it to the merchant.

6473. What was the note?-Just a bit of paper with some writing put down upon it.

6474. Was it signed by anybody?-It would be signed by the shopkeeper.

6475. And you took that to the shop and got what you wanted?- Yes.

6476. How much did you get?-I don't remember.

6477. How long ago is that?-I don't remember.

6478. Did you ever get any money for your kelp at all?-I never got any money; I never asked it.

6479. Why do you say that you never asked it?-Because I was just needing the cotton, and I took it.

6480. But why do you say that you never asked for it? Do you mean that you would have got it if you had asked?-Yes; I might have got it.

6481. How do you know?-There are some who have got it when they asked for it, but I never did.

6482. Do most of the women get money for their kelp?-I cannot say.

6483. What does your father do with his eggs?-He sells them.

6484. Have you a great quantity of eggs to sell?-Yes; in summer we have a good many.

6485. How many will you have in a week?-I cannot say.

6486. Do you generally take them to sell?-Sometimes.

6487. How many will you take at a time?-Perhaps a dozen or half a dozen.

6488. What do you get for them?-We sometimes get 6d. a dozen, but we have got 7d. We got that in the past summer.

6489. Do you get money for that?-We never take it in money; we just take in goods.

6490. Is that the way all the people hereabout do with their eggs?-I think it is the way that most of them do with them.

6491. Where do you take them to?-Sometimes to Mr. Anderson's, and sometimes to Laurence Smith's.

6492. Is Smith's farther away than Anderson's?-Yes; it is about two miles from us.,

6493. Do you get the same price from both places?-I got a halfpenny more from Laurence Smith.

6494. But the price was paid to you at both places in goods?-Yes.

6495. What kind of goods do you get for your eggs?-I cannot say; sometimes we take tea.

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6496. Do you just get the goods when you go, or is there an account kept?-We just get them when we go. We have no account at all.

6497. Is your father here to-day?-Yes.

Hillswick, Northmavine, January 11, 1872, JOHN ANDERSON, examined.

6498. You are a merchant and fish-curer in Hillswick?-I am.

6499. And you are the proprietor of the estate of Ollaberry?-No; I am only tacksman.

6500. Is Ollaberry in Northmavine parish?-Yes.

6501. Your brother, I understand, is proprietor of that estate?- Yes.

6502. Do you carry on business at Hillswick under a firm or in your own name?-In my own name.

6503. I presume the way in which you arrange for the payment of your fishermen is similar to that which prevails in other parts of Shetland-viz. that the fisherman engages to fish for you for the season at the summer fishing, and to receive payment for his fish in winter at the price then current after the sales have been made? -Yes.

6504. Is it the case also that the way in which you keep accounts with your fishermen is that a ledger account is opened in name of each man, in which the entries on one side consist of advances made to him for the purpose of outfit and lines, boat-hire when the boat is not his own, or for the price of the boat if he is buying it by instalments?-Yes.

6505. And on the other side is entered the price of his fish, and anything else that may be due to him by you?-Yes.

6506. Is there any further explanation you desire to make about the way in which these arrangements entered into and carried out between you and your fishermen?-I think that is all, except the inducement I have held out to fishermen to buy their own boats and lines. My practice for several years past has been that when they bought their own boats and lines, and were free of debt, I allowed them 6d. a cwt. extra on their fish.

6507. That is to say, that a fisherman who hires his boat, or one who is paying up the price of his boat by instalments, or who is in debt, is paid for his fish 6d. a cwt. less than one who is not in your books for boat-hire or for the price of his boat?-Yes.

6508. Is that intended as an inducement to a man to get clear of his boat-hire or of debts of that sort?-Yes, it was so intended by me.

6509. How long has that system been in operation?-I think since 1864.

6510. Have many of the fishermen got clear of their debts in consequence of that inducement, so far as you can judge by your experience?-I think so.

6511. You think that system has had a beneficial effect?-I think so, judging from the diminution of the debts. I have taken the last four years, and struck an average with regard to that.

6512. You have made a calculation applying to the last four years, showing what?-Showing the degree in which the fishermen have reduced their debts. I don't have that calculation with me here.

6513. Was it made for your own private use?-Yes. I wanted to see whether I was correct in giving the fishermen that advantage, and I found that the average amount to which the fishermen were in debt was £13 each year.

6514. Was that an average only of those who were in debt?-Yes.

6515. And your calculation showed that the average debt of each fisherman was £13 this year?-Not this year, but taking the average for four years.

6516. I understood it was entered into for the purpose of comparison with the period before the system you have now mentioned was introduced?-No. The calculation I made was for the purpose of satisfying myself whether I was correct in giving that 6d. per cwt. in advance extra.

6517. Then do you find that the fishermen who are in your debt now were indebted to you to the amount of £13 on an average?- Yes.

6518. Are you of opinion that that is a less amount of debt per man than existed before that system introduced?-I am.

6519. Did you enter into any calculation over period of years before the introduction of the system, in order to compare it with the state of matters during the last four years, or have you made that comparison just from your general knowledge?-Just from my general knowledge. I did not make the calculation so accurately for the previous period as for the last four years.

6520. But you are clearly of opinion that the amount of debt before that system was introduced was greater than it is now?-I am clearly of that opinion.

6521. How many of the men do you calculate are now in your debt to that average extent?-I am not able to answer that question exactly.

6522. Can you not give an approximation to the number?-I am afraid not.

6523. How many men do you employ altogether in the ling and cod fishing in summer?-I have no cod fishing,-only ling fishing, in which I think I employ about 120 or 130 men.

6524. Is that at Hillswick, or at all your stations?-At Hillswick.

6525. But you have stations at other places?-Hillswick is the business place, but we have fishing stations at different places-at Roeness Voe, Hillyard, Hamnavoe, and Stenness.

6526. Have you none at Ollaberry?-Only in winter time. We get some fish there in winter-principally small fish, cod, and some ling.

6527. You said that you don't send men to the cod fishing?-No.

6528. How do you distinguish between the cod fishing proper and the cod which you get in winter?-There are different names for the different kinds of fishing. The Faroe fishing is a different thing from the home fishing.

6529. But some people subdivide the summer fishing into more than one kind?-There is cod fished for in the voes near the coast during the winter, but they are generally a smaller size than the Faroe cod.

6530. Is that what you call the winter fishing?-Yes.

6531. Was that what you spoke of just now when you said you did not send men to the cod fishing?-I meant I did not send men to the Faroe fishing.

6532. Then by the ling fishing you mean the summer fishing?- Yes.

6533. And in that the men catch cod and tusk?-Very few; and what they get are thin and of an inferior quality.

6534. But ling is the staple fish that is caught at that time?-Yes.

6535. Your accounts with your men are settled annually in November or December?-Yes.

6536. Do you find that the majority of your men have then a cash balance to receive, or are they in arrear?-I am afraid I must acknowledge that the majority of them are in arrear.

6537. Do you think the system of paying at such a long interval of time has any effect in causing the men to be so deeply in your debt?-I don't think so.

6538. Do you think it is their own choice or their own habits that is the occasion of it?-I daresay there are various causes that contribute to it. There may be some improvidence among them; there may be afflictions among them of various kinds. There may be men getting married, and getting families; and it is a sore time with them when their children are small.

6539. Have you ever considered whether a system of shorter payments could be introduced in your business which might encourage habits of economy and foresight, and lead the men to keep out of debt?-I have given that point some careful consideration.

6540. You have already said that you introduced a [Page 159] system of giving a premium to your men who were free of debt?- Yes.

6541. But has any other plan for bringing about the end occurred to you?-I don't think there is any other.

6542. Are you aware that the men sometimes express a wish that they should know the price of fish earlier in the season than is the case at present?-Yes. That has been expressed to me sometimes by the men themselves.

6543. Do you think that would have any beneficial effect?-I don't think it. In the winter fishing we have paid for the fish as soon as the men came on shore with them, but I was not aware that they saved any of that cash in consequence of receiving it at once, any more than they would have done if it had been put to account.

6544. Is the winter fishing generally paid in cash?-Yes if the men require it.

6545. Is it more commonly paid for in cash at the time of delivery than is the case in the other fisheries?-The men have the choice of getting cash or goods, just as they like, for their winter fish.

6546. I rather understand they have the choice of getting cash or goods in the other fishings as well at any time if they like: is not that so?-I think not. I think they would not get cash unless they were clear men, or unless we had good cause to know that they were really in necessity for something.

6547. But during the course of the summer fishing are they allowed advances in goods as they require them?-Yes.

6548. Even though they should be to some extent in your debt?- Yes.

6549. If a man is clear at the end of a season, and is fishing for you during the following season, is it usual to give him advances in cash to account of his fishing as often as they are asked?-Yes.

6550. Is it ever the case that a man who is in that position gets some payents in cash throughout the season, and is paid the whole balance in cash at the end, and has no account at your shop at all?-I think not. I have never been aware of any case of that kind.

6551. Is that because the man necessarily has to apply to you for an outfit for the fishing at the beginning of the year, such as lines or boats; or is it because he may have an account for necessaries to his family?-He is not obliged to get his outfit or his necessaries from me unless he likes. There is no obligation upon him.

6552. But, in point of fact, he generally does get an outfit from you?-Yes; we are always glad to get them to buy an outfit from us.

6553. Whether he gets a boat or not, I suppose the general rule is that he takes his outfit from you?-Yes; that is the general practice.

6554. Is a man expected to do that when he is engaged to fish for you?-I certainly would expect it but he is under no obligation whatever.

6555. If a man were engaging with you to fish for the summer, and getting his outfit elsewhere, say at Lerwick, would that make any difference in the way in which you would deal with him afterwards?-None whatever.

6556. Would he be just as likely to get an engagement from you in the following year, and as good a price for his fish?-Yes.

6557. I understand you have the largest shop in this parish?-I am scarcely able to answer that, but I suppose it is the largest in this district. Messrs. Hay & Co., at North Roe have an extensive business also.

6558. Is North Roe as populous a district as Hillswick?-Yes.

6559. Then there is the shop of Mr. Adie at Voe?-Yes; that is a larger business than mine.

6560. And Pole, Hoseason, & Co. at Mossbank?-Yes.

6561. Do these shops rank in size along with yours?-Yes; and Hay & Co.'s shop at North Roe.

6562. But there are smaller shops throughout the country not kept by fish-curers?-Yes. Mr. Peter Robertson, Sullem, and Mr. Gilbert Nicholson, Ollaberry, are not fish-curers. Mr. Nicholson has been engaged in that business to, but not on his own account.

6563. Do these shopkeepers sometimes buy fish?-I think so. I think Mr. Nicholson buys cured fish in the winter, near the sea.

6564. Is it a common opinion that there is a good deal of smuggling of fish by fishermen during the fishing season?-I believe it is.

6565. Is that done for the purpose of getting payment in ready money; or is the inducement for it, that they get a larger price by disposing of their fish, in that way?-I don't think the payment of ready money is the inducement, because for many years past it has been my practice to send out money to the factor, with which to pay the men for whatever fish they wanted to sell,-that is to say, to clear any little bits of debt they had to pay at the station.

6566. But the men that you spoke of are bound by their engagement at the beginning of the year to deliver all their fish to you?-That is an understood thing, I believe; but I don't think it has ever been acted upon.

6567. Are they at liberty to sell their fish to others?-They generally take that liberty.

6568. So that only those fish go into the account which are weighed by your factor?-Yes.

6569. Do your factors at these fishing stations pay ready money for any large quantity of fish that is delivered to them?-I don't think there are any large quantities paid for in ready money. I believe the men generally give fish in that way to procure supplies. Perhaps they might think my goods were not equal to Mr. Adie's or those of other merchants, and they might give a few fish in that way to these merchants in order to get money with which to clear off their little bits of accounts there.

6570. That is to say, a man fishing for Mr. Adie might sell a few fish to your factor in that way, or one of your men might sell to Mr. Adie just in the same way, in order to get a little money for his present needs?-Yes.

6571. Can you give me any idea from your books to what extent that sort of ready-money payment goes on during the summer season?-I could scarcely say. I should think that perhaps £5 or £6 would cover the whole of that for the entire season, because there are some of the men fishing to me who will ask the factor to give them a pound in cash or so just at the end of the season.

6572. Therefore they don't require to smuggle the fish so much as one might suppose?-No.

6573. Do you consider that the tenants on the Ollaberry estate are obliged by the terms of their leases to fish to you only?-I do not; although I think I have it in my power to compel them to fish if I wished to do so.

6574. Do you think you have that in your power by the terms of their leases?-I think there is only man who has a lease at present.

6575. Or by the terms of the contract under which they sit on the land?-I think that is understood.

6576. That is a part of their bargain?-It is not part of their bargain, but I think it is understood.

6577. When a man is in your debt in the way you have spoken of, do you think he has a stronger inducement to deal at your shop for the goods he requires, and to agree to fish for you during the following season, than another man who is not in debt?-I am not very sure about that.

6578. I suppose you would consider it fair that man who is in your debt should deliver his fish to you rather than to another, in order that he might pay off your debt?-Certainly.

6579. And also that he should take his supplies from your shop, so far as necessary?-Yes, I would expect that.

6580. Is it also the feeling among the men generally, that they are inclined to deal with a person who has advanced them money or goods in a bad season? [Page 160]-I think they would have no objection to deal in that way.

6581. You I would probably have rather to keep them within limits in their dealing, for fear they should get too much?-Yes, I think that is quite right.

6582. Perhaps they have no credit elsewhere?-I daresay they might have credit elsewhere too. Probably they might have other things, such as produce of different kinds from their farms with which to clear off their small accounts in other quarters, and which might not come my way.

6583. Do you not deal considerably in farm produce yourself?- Yes; in cattle and other things.

6584. Do you send them south?-Yes.

6585. Do you purchase these generally for cash, or do your purchases in that way enter the accounts of the men who fish for you?-That just depends on the way the men want them. I make a practice of purchasing all stock for cash; but if they wanted it entered in their accounts, I do so.

6586. Are these purchases generally made at periodical sales?- Yes, we have two sales in the year at Ollaberry; but I purchase a good many cattle and horses just at any place where I can get them through the parish.

6587. Suppose you made purchases of that kind from a man who owed you a certain amount in your books, would these purchases enter your books to his credit, or would they be paid in cash?- That will depend upon our bargain. If a man said to me, I have a cow to sell, and one part of the price I want to go to pay my rent, and the other part I want put into my account, I would do that for him. I have done that frequently, although the man was in my debt.

6588. You said there were 120 fishermen in your books at Hillswick?-That was a mere random guess; I could not speak to it positively.

6589. Have you a number of men in your books at other places?- Yes, at Ollaberry; but that shop is under a different firm Anderson & Co.

6590. Is that shop kept by Mr. Irvine?-Yes.

6591. Do you take the principal oversight of the business there?-I do.

6592. Then, when you spoke of the fishermen on the Ollaberry estate being obliged to fish to you, I suppose you meant that they were bound to fish for that firm?-Yes.

6593. Is there any other station besides Ollaberry where you have a shop and fishermen upon your books?-No other station, except the fishing stations I have already mentioned.

6594. These are not permanent establishments, but are only kept up for the summer season?-There is a man who takes winter fish at Stenness and at Hamnavoe.

6595. But there are not so many men residing there?-No.

6596. And it is only from those who reside on the spot there that you receive fish in winter?-Yes.

6597. How many men may be engaged in the fishing at the Ollaberry station, and who are entered in your books as employed by you?-Probably between 50 and 60.

6598. Then you may have about 300 fishermen the summer fishing, including the other stations you have mentioned?-I think scarcely so many.

6599. One of the books which you have produced here is a woman's book?-Yes.

6600. That has relation to hosiery and kelp?-Yes.

6601. You have not brought any books relating to the fishing business, but I suppose you will be ready to show them if you are asked?-Certainly.

6602. In what way do you engage your beach boys?-Some of them are engaged about December, but perhaps it is the spring before we get them all. We engage them for an annual fee,-that is to say, a fee for three months in summer, or for summer and harvest. The rates we pay them vary from about 45s. to £10 for time summer and harvest.

6603. Do those to whom you pay £10 have charge of the curing?- Yes; I have given the whole range.

6604. There are two classes of them-the beach-boys proper, and the men who are skilled at the work?-Yes; and the man who has charge of the curing.

6605. Are both those classes settled with at the end of the year?- Yes.

6606. Do the men employed in the curing get payment before the end of the year?-No.

6607. I believe at some establishments the men employed are paid by weekly wages?-I am not aware of that.

6608. Do you open an account with them in the same way as with the other people employed by you?-Yes.

6609. And if they want supplies they get them at your shop?-Yes.

6610. Do you find that the amount of debt upon these accounts is greater or less than in the case of ordinary fishermen?-We generally strive not to allow them to get into debt.

6611. I don't mean the amount of debt above their salary, but the amount of debt they incur for furnishings in the course of the year: is that greater or less than the amount due to them for their fee?-I think it is generally less, taking the whole cases together. There may be some cases where they fall behind little, but there are others again who have money to get.

6612. Have they generally a considerable balance to receive in money at the end of the year?-No; when boy has paid for his clothes and provisions, he will not have very much to receive.

6613. Does a beach boy generally require an outfit of clothing at the beginning?-Yes.

6614. Is it the sons of your fishermen whom you generally employ as beach boys?-Very often, but not necessarily; I just engage any one I can get.

6615. Is there a sufficient supply of them?-There has always been hitherto.

6616. When a boy who is engaged for the first year gets more goods than the amount of his fee, does he usually engage to work for you in the same employment next year?-No.

6617. You are aware, I suppose that that has been alleged as the commencement of the system of debt which is said to prevail in Shetland?-I am perfectly aware of that.

6618. Is it not consistent with your experience that a boy who overdraws his account in that way continues to serve you as a beach boy?-I am sorry to say it is not, because sometimes he goes elsewhere and leaves a balance standing.

6619. Is that a frequent thing?-I cannot say it is a very frequent thing. I am glad to say that a great amount of honesty prevails among the people generally.

6620. But is it not quite possible that he might go elsewhere and pay his account to you from the wages he receives elsewhere?-It is quite possible.

6621. Does that ever happen?-I think it has happened with me.

6622. Is a boy free to do that if he chooses?-Perfectly free.

6623. But, in point of fact, do the majority of boys who are so engaged, and who overdraw their accounts during the first year, remain in your service and work on until their account is paid up?-I could scarcely say that that is so with the majority.

6624. But many of them do?-Many of them do, I think.

6625. Do they generally get further into your books, or do they very often clear off their debt as they grow older and get larger wages?-I think they often clear off their debt.

6626. Is it boy at the commencement likely, from his circumstances, to incur a larger debt in the first year than after a year or two, in proportion to his earnings?-I think not. It depends, however, a great deal upon the parents. If a boy has poor parents, who cannot afford to give him much clothing the first year, to keep him warm, he must get these things from me and perhaps he may fall behind, and yet be a very honest boy.

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6627. But what I was pointing at is this, that a boy may require some outfit at the beginning of his career, and that he would probably incur some debt?-That is true in some cases, but not in all. A boy has been at the beach, and then he goes to the haaf; perhaps the first year or two he will require to fall a little behind; but if he is an honest, provident lad, he will soon clear off that.

6628. I understand you are a purchaser of kelp to some extent?- Yes.

6629. Have you heard the evidence that has been given to-day on that subject?-Yes.

6630. Was that evidence correct with regard to the manner in which the kelp is paid for; or do you wish to make any correction or addition to it?-It was perfectly correct, so far as the prices go. 4s. is the cash price, and 4s. 6d. is the goods price which we pay for it.

6631. You pay for it either in cash or goods?-Yes.

6632. In which way do you make the greater part of your payments for kelp?-I should think the greater part would be in goods

6633. Is that because you allow a higher price in goods, and the people prefer taking that higher price?-Certainly. I have no doubt they prefer it; otherwise they would not take it in that way

6634 I suppose if they got it in cash, they could not spend it very easily anywhere else than in your own store?-There are various shops round about where they could go to.

6635. Has that difference in the price of kelp been of long continuance?-I think there has not been very much difference on it for several years.

6636 But has it been long the practice to give an advanced price if payment is taken in goods?-Yes; that has always been the case during my experience. There have always been two prices, at least at Hillswick.

6637. Have you any lease of the kelp shores?-Yes; all round from Roeness Voe to Mavisgrind, on the Busta estate.

6638 Do you generally employ women, or allow any women to gather kelp and burn it?-Yes; sometimes men do it also.

6639. But they are not at liberty to gather it for any one except yourself?-No; that is quite understood.

6640. Have you to pay a lordship to the landlord for the kelp?- Yes; 15s. per ton.

6641. You do something in the hosiery business also, and you have brought your women's book to show how that business is conducted?-Yes.

6642. Is the hosiery always paid in goods?-Not always.

6643. Have you any idea what amount is usually paid in cash?- There is very little cash paid. Our general practice is, not to pay cash for hosiery, but to give goods only.

6644. Is that because you consider you have a very small profit on the hosiery?-Yes.

6645. What percentage do you calculate you have upon it?-I am afraid my experience has been, that I have never had any profit upon it. I have a profit on the goods, but not on the hosiery.

6646. Do you sell your hosiery generally to firms in Edinburgh or Glasgow?-In London, Edinburgh, Glasgow, or any place where we can get it sold.

6647. But you sell it direct to retail houses in these places, and not through Lerwick merchants?-Yes.

6648. Do you employ women to knit for you, and give out wool to them?-No.

6649. Yours is exclusively a purchase business?-Yes.

6650. Do you make a bargain for the article, whatever it may be, on the understanding that the woman is to take goods for it?-Yes, that is the understanding; but still I have paid cash in a good many cases.

6651. If you want a very fine article for any particular purpose, do you then sometimes agree to pay in cash?-Yes; if they wanted cash for that, we would give it.

6652. Would you give a lower rate in cash than in goods?-Yes.

6653. What difference might there be?-I cannot tell.

6654. Will it be 2s. or 3s. in the pound?-I should think so.

6655. Are you often asked to give cash for hosiery?-No.

6656. Do the people who bring it generally want goods?-Yes, they want goods; but the practice may arise too from their knowing that the understanding is, that they only get goods for the hosiery.

6657. In the case of a woman not wanting the goods at the time, is the article she brings entered to her account, or how is it dealt with?-It is entered to her account.

6658. She has a ledger account of her own in your books?-Yes.

6659. Or a pass-book?-Yes; many of them have pass-books.

6660. When a young woman begins to knit in that way, and to deal with you, does her account generally run on for a succession of years?-Yes, very often.

6661. Is it in what you call the women's book that these accounts are entered?-Yes.

6662. The goods supplied to them, I presume, are mostly soft goods?-Yes; soft goods and groceries.

6663. Do you give the same value in groceries hosiery as in soft goods?-No; not the same value.

6664. Is it part of the bargain at the beginning, whether the payment is to be taken in groceries or in soft goods?-There is no agreement of that sort.

6665. If a woman asks for groceries, what do you do?-We just give them to her.

6666. But you say you don't give the same value in groceries as in soft goods?-Not exactly the same value.

6667. Do you mean that when she gets groceries, you give them to her at a higher price?-Yes.

6668. You add something to the price for which you would sell them to a cash customer?-Yes.

6669. Or to a fisherman who keeps an account?-Yes.

6670. A fisherman keeping an account would get his groceries at a different price from a seller of hosiery?-Yes.

6671. Do you not think that a cash system for all these matters would be simpler and more convenient for all parties concerned?-I don't see that there would be any gain to the purchaser. Suppose a woman came in with hosiery of the value of 5s. and got cash for it, she would require to go either to my shop or to some other shop with it for her goods.

6672. But if she had cash, she might purchase her goods in Lerwick or in Edinburgh, or possibly, if the trade were not in so few hands, there might be a greater competition?-There might.

6673. And she could lay out her cash in the way that was most to her own advantage?-That might be so; but then I would not give her so much in cash for her hosiery, so that I don't see where her gain would be.

6674. Is it mostly in provisions or in goods that the hosiery is paid?-I should say that it is mostly in goods.

6675. Is the account which a woman, knitting in that way, runs up entirely distinct from the account kept by her parents?-Quite distinct.

6676. If she is living in family with her father, is he considered responsible for her debt if the balance is against her?-No.

6677. Have you known any case of such a debt being enforced against the father?-I am not aware of any, and I don't think it could be enforced against him.

6678. Or demanded from him?-I don't think it could be demanded either, legally. But the necessity does not exist for girls buying groceries. These are generally bought by the father or brothers; and the girl is left free to have her knitting to clothe herself with. It is all the wages she gets.

6679. Show me the way in which the women's book is kept?- [Produces women's book]

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6680. Each woman has her name entered there, and on one side of the account are entered the articles which she gets?-Yes.

6681. I see that some women make home-spun tweed?-Yes

6682. Do you purchase a quantity of that also?-Yes.

6683. Is it also paid for in goods?-No; it is paid for in cash if required.

6684. But at a cash price?-Yes.

6685. In this case [showing] it was entered in the book?-Yes.

6686. Was that because the party wanted goods, or was there any particular reason for it?-She was not sure when she gave the tweed, whether she might require the whole of it in goods. She wanted meal, I think, and some other goods.

6687. Are your dealings in cloth with the people the country very extensive?-I buy a good deal of it occasionally, when the trade is brisk.

6688. Is it paid for regularly in cash?-Yes.

6689. Do your purchases of it not appear in this book?-There may be some of them there.

6690. But are the majority of your purchases of that sort of cloth entered here?-Possibly they may appear in the men's ledger more frequently, unless when the cloth is bought over the counter.

6691. If it is paid for in cash, why does it appear in any ledger?- What is paid for cash does not appear in any ledger.

6692. Does it not appear in your day-book?-No, it does not enter our day-book. We just buy it the same as we buy any hosiery. For instance, if a girl brings it in, she may require the value of it in goods; that is a separate transaction, finished at once, and there is no more trace of it.

6693. Is the cloth almost all of the same quality?-It is all very much the same.

6694. Do you ticket each web at the time when you take it in?- Yes.

6695. Then I understand you to say, that the great bulk of your dealings in cloth are cash transactions?-Yes, I think the bulk of them, or they are settled for at the time in goods.

6696. Is tea a very usual article for the knitters to take out their payments in?-I think it is. They often take tea.

6697. Have you known any cases in which the goods or tea so obtained for hosiery were sold or disposed of for cash?-I think I have not.

6698. It is probably not so necessary for them to do so when they can get provisions for their hosiery, as when they are only paid in soft goods?-Perhaps not; but it is not very likely I would learn that that was done, even if it was the case.

6699. When a woman has sold you some hosiery goods or cloth, and does not want goods in exchange to the full value at the time, is it the practice in your shop to issue any line or acknowledgment for the balance?-I believe that is done occasionally.

6700. Is the line in the form of an order to credit the bearer with so much in goods?-Yes.

6701. Are these lines or vouchers generally brought back by the party to whom they were given?-I think so.

6702. Are they ever brought back by another?-I think not; because we know all the people, and they could not impose on us in that way.

6703. But if the party to whom the line was issued had handed it over for a consideration to another party, that would be no imposition upon you?-No; but still we would know whether it was done or not, that is to say, we would suspect something amiss. If it was presented by another person than one of the woman's own family, we would naturally suppose there was something suspicious about it.

6704. Do these lines bear to be payable to any particular person?- Yes; we always mention in them the name of the person who has sold us the goods. However, it is perhaps right to state that that is not very much practised in our shop.

6705. I think you said there were not many little shops in this district?-There are a few. Arthur Harrison has a shop within two miles of me; Laurence Smith has a shop within three miles; and Jack Anderson has a shop within five miles to the westward.

6706. Are all these on the Busta estate?-Yes. Jack Anderson rents a booth belonging to Ollaberry.

6707. Is there any difficulty or any obstruction placed in the way of small shopkeepers getting premises and carrying on their business in this district?-There seems not to have been any lately. When I took a lease of Hillswick, I thought I had an understanding that Mr. Cheyne was not to put up other places of business in the district, but there was no sort of agreement about it and that understanding has not been acted upon.

6708. Do you refer to shops or fish-curing establishments?-Not fish-curing establishments; there is no restriction upon them.

6709. Any person may set up a business of that sort?-I think so.

6710. You have been present and heard the whole of the evidence that has been given to-day: is there any part of it with regard to which you wish to make any statement or contradiction?-There is nothing that I am aware of.

6711. Are you an agent for the Shipwrecked Mariners' Society?-I am.

6712. Do most of your fishermen subscribe to that society?-A good many of them do.

6713. Is their annual subscription debited to them in their account?-Yes, very frequently.

6714. When they have anything to get from the society, how is that payment settled with them?-That I daresay depends very much upon their own wishes.

6715. Does it depend to any extent on the fact, whether or not they are indebted to you at the time?-I don't think it does generally.

6716. But it may sometimes?-It may sometimes.

6717. That is to say, supposing a man who loses his boat has a sum to receive in cash from the society, which passes through your hands, it may be written down to square off your account?-No. It may be entered to his credit in the account; but I think, if the matter was searched into, it would be found that in that case it was to square off for some boat he had got before, and which he had not paid for.

6718. And not his ordinary shop account?-No.

6719. Therefore, you say that you would retain the money if he was in debt to you for a boat?-Yes.

6720. But you would not retain it if he was only in debt to you for shop goods?-I think not.

6721. What is your reason for making that distinction?-I think it is nothing but simple justice to myself. It would certainly be very unreasonable for a man to get

remuneration for a boat from the Shipwrecked Fishermen's Society while the same boat was standing unpaid for in my books.

6722. Would the same principle not apply to the case of an account which a man owed to you?-No doubt the man would be entitled to pay me that account; but I would certainly consider it a great hardship if I had to pay that money over to a man who had an account standing due in my books for the very boat for the loss of which the money was given.

6723. Have you ever had any dispute with the fishermen about the payment of that money, or any complaints that it was not settled for in cash?-I don't think I have, within my recollection. I think there was one man who said something about it at one time; but after I had showed to him what I considered to be the justice of the matter, I fancied he was satisfied, and never heard any more about it.

6724. What is the other book you have brought with you?-It is a boat-book, merely for entries relating to the boats.

6725. How are the boat-builders paid? Do they run accounts with you in the same way as the fishermen?-I think so.

6726. Are they paid by weekly wages?-No; they are paid so much for building a boat.

6727. What does their contract generally amount to?-We furnish the wood, and merely pay them for [Page 163] their work. I think we generally pay £3 for the work on a six-oared boat.

6728. When you enter into a contract for the building of a boat, does the man open an account, or is it generally the case that he has an account already running?-The builder I employ generally has an account running.

6729. Are his family and himself supplied with goods from your shop from time to time?-Only occasionally. I think the boats are paid for mostly in cash. Probably he would get a few pounds from me if he was requiring them, and then he would come and build boats for me afterwards.

6730. Are the boat-builders a class of men by themselves, who work at nothing else?-Yes.

6731. Do they travel about the country?-Yes.

6732. Are they not employed by you all the year round?-No.

6733. Then, they generally get an advance of money from you before they begin work for you?-I don't say generally, but I say the particular builder I employ has done that sometimes.

6734. So that, when his boat is finished, he has generally nothing to get?-No; he has something to get still, because he is building more than one at a time.

6735. But during the time he is building them, he has an account at your shop for necessaries to his family?-Yes.

6736. What is the other book you have there?-It is a ledger for the purpose of entering anything into-goods supplied to a family.

6737. Are these the families of your fishermen?-Yes; or it may be others that we intend to have short accounts.

6738. But these accounts are only for goods supplied: there is nothing entered that is due to them?-No.

6739. The other side of the account is not in this book at all?-No.

6740. And the fishermen's ledger is quite different?-Yes.

6741. It is a large book?-Yes.

6742. Is there a separate ledger for beach boys and men employed in fish-curing?-Yes.

6743. Is there also a separate ledger for the kelp women?-No; their accounts are entered in the women's book unless they are paid right off.

6744. Show me the account of one of these kelp women in the women's book: take Mrs. Hughson?-I don't think she ever had anything to get, and therefore we would not enter her name in the book.

6745. Take Maria Sandison, who was spoken of today?-I think her account was kept on a slip of paper or in a small book, until they got it squared off, and then it was entered.

6746. I see there is nothing about kelp in her account?-No, I fancy it was just paid off at the time.

6747. Is there anything else you wish to say?-It has been asserted that the fish-curers paid no cash, and that scarcely a coin passed between the curer and the fisherman. That was said before the Truck Commissioners in Edinburgh. Now, I would wish to show what amount of cash I have paid since I began to settle this year. I think the cash I paid during the settling time in November and December last amounted to £1006.

6748. What was it in previous years?-I cannot tell for every year; but I know that for the whole year, in 1866, I paid £1811 in cash, and in 1870 I paid £2040. I think the highest I paid to one man this season was £24, 7s. 9d. in cash at settlement.

6749. Was that much higher than the average?-It must have been higher. Perhaps I may be allowed to say also, that I think the great bar to improvement in Shetland is the want of leases. In my opinion, a Land Bill for Shetland-an Act somewhat resembling the Irish Land Bill-would be very useful, by which all improvements could be held to belong to the tenant instead of to the proprietor; because as soon as a tenant here begins to improve his farm, he is very likely to have his rent raised upon him.

6750. Have you known cases in which the rent has been raised upon an improving tenant?-Yes. I am not prepared just now to give names, but I think I have met with

several cases of that kind.

6751. What is the bar to the introduction of a system of leases in Shetland, which, you say, would greatly improve the country?- There seems to be an unwillingness on the part of the proprietors to give lease. I have known several parties who have asked for leases and have not got them.

6752. Has the unwillingness of the proprietors to give leases anything to do with the fishing?-I don't think it.

6753. On some properties are not yearly tenants under an obligation to fish, which might be interfered with, or which might not be so easily enforceable, there were leases?-That shows the necessity granting leases.

6754. But is not the objection of proprietors to grant leases due to some extent to the fact, that it would be less easy to enforce the obligation to fish if leases existed?-Perhaps it is, but even on those estates where there is no such obligation leases are not granted.

6755. Is there a general desire on the part of fishermen-farmers in Shetland to have leases?-I cannot say that exactly. I think there is such desire in many cases, but then they fear that their rent would be raised if a lease were granted.

6756. Have there been any cases of leases being granted or offered in which ground has been given for that apprehension?-I think so, although I could not name them just now.

6757. Have there been any attempts made recently in Shetland to introduce leases on a larger scale than they at present exist?- Not within my knowledge. With regard to the Ollaberry property, I find there are only 33 out of 71 tenants who fish either to Anderson & Co. or to me.

6758. Are you aware whether the other 38 tenants fish at all?- There are some of them who do not fish, but there are others of them who do, and who are ling fishers. The man Blance who was examined goes to Faroe and I think another man too.

6759. Do many of them go to Faroe?-No; not many.

6760. They are not obliged to engage with any particular person at the Faroe fishing?-No.

6761. In the evidence to which you have referred as having been given in Edinburgh, there is a statement that leases were offered on a large estate in Delting or in Yell, but that the bulk of the tenants would not accept of them: do you know the reason of that?-Because, I suspect, they were suspicious of the factor.

6762. The statement was, 'Ten years was mentioned as the minimum length of the lease, because the people were frightened to take leases; but when any one came and asked for a longer lease, I gave it to him. No one would take a longer lease than fourteen years, and I have given none longer than fourteen.' Can you suggest any other reason than that you have named for the tenants declining leases on these estates?-I think it must have been because under the leases, all improvements were

to be held to belong to the landlord.

6763. But they belong to the landlord at present?-True; but what I mean is, that that is the great bar to improvements in Shetland.

6764. Do you think it is possible for a man to improve his land much who is employed for four or five months in the year fishing?-I think it is. His time in winter is almost thrown away at present; but if he had the security of getting the value of his labour at the end of his lease or on removing, I think he would work actively and improve his land. There are many, I know, who have regretted that they could not spend their time in that way.

6765. Is it not possible for a tenant who wants to improve his land to make some contract with his landlord on the subject?-I have never been aware of any case where that has been done.

6766. Have you the management of the Ollaberry estate in your own hands?-Yes.

6767. Have you made any effort to induce the people [Page 164] there to take leases, or offered them compensation for improvements?-I have not offered them compensation. I could not do that; but I have told them that the understanding on which they held their lands was this-that if they made improvements, either in cultivating the land, keeping up their fences, or repairing their houses, their rents would not be raised during my lease.

6768. You have only a lease of Ollaberry?-Yes, for nineteen years.

6769. Has your intimation to the tenants, that their rents would not be raised if they improved their holdings, had a beneficial effect?-I think it has in some cases; that is to say, they have kept up their fences very well, and I know some parties who have added to their cultivated ground.

6770. Do you think that has been done to a greater extent than would have been the case if you had held out no such inducement to them?-I would fancy so.

6771. Is there any other suggestion or statement you wish to make?-I think not.

Hillswick, Northmavine, January 11, 1872, PETER PETERSON, examined.

6772. Are you a fisherman at Hillswick?-Not present. I am at Hillyar now. I live at Hillswick, but I am not fishing there.

6773. Have you got any land?-Yes; a small piece in Hillswick from Mr. Gifford.

6774. For whom do you fish?-For Mr. Laurence Smith at Hillyar at present.

6775. Is he a large curer?-No; he has only two boats fishing for him. I have been fishing for him two years now.

6776. For whom did you fish before?-For Mr. Anderson.

6777. Why did you leave off fishing for him?-I got into debt, and was refused supplies from him; and, as I could not do without supplies for my family, I went to another man.

6778. Why would you not pay your debt to Mr. Anderson?-I did not make a sufficient fishing to pay it, and I had no great means to work on either: I had no boat.

6779. What was the amount of your debt?-£17, 9s. 5d.

6780. And when it came to that amount, he refused you supplies?-Yes.

6781. At what time of the year was that?-In the summer time, during the fishing season.

6782. Did you settle with him at the end of that season?-Yes.

6783. Did you clear off what was due by you at that settlement, or was there still something due to Mr. Anderson?-£17, 9s. 5d. was the debt I left when I went away from him. I continued to fish the season out, and left him when the season was done.

6784. But you made a settlement at the end of the season?-Yes.

6785. What was the result of that settlement?-He made out that I was due him £17, 9s. 5d, and he summoned me for it.

6786. Did you ask him how much was due at the time when he stopped the supplies?-No.

6787. Then, the sum you have mentioned was due after he had allowed you credit for all the fish of that season?-Yes.

6788. So that, at the time when he stopped the supplies, there would be a larger sum than that due by you?-There may have been.

6789. Were you asked to engage to fish to him after that?-No.

6790. What was his reason for summoning you?-I don't know. I was not asked to fish to him again, so that I had to look out for myself some other way, and I went to Smith and got supplies from him.

6791. Was there a decree against you in the action in which Mr Anderson summoned you?-No, I have not got any yet.

6792. Was the case not decided against you?-I don't think it. At least I left it unsettled in the hands of Mr. Spence, the lawyer, when I left the town.

6793. Is the case not at an end yet?-I don't know. Mr. Spence was to give me notice but I have got none yet.

6794. What was the nature of your defence in that case?-I was not able to pay, and therefore I was forced to appear in Lerwick before the court. Very likely, if I had been in a good boat the last season I fished for him, I would have done somewhat better.

6795. But was the debt really due for which you were summoned?-I did not have any pass-book, and got no copy of my account, so that I could not say whether it was due or not.

6796. Did you ever ask for a pass-book?-I have asked for copies of my account.

6797. Did you get them?-At one time I got a copy of my account for nine years.

6798. Had your debt been running on increasing for nine years?- It was always increasing.

6799. Have you got these accounts here, or are they in your lawyer's hands?-They are in Mr. Spence's hands in Lerwick.

6800. How often did you ask for them before you got the accounts for the nine years?-I asked for them when I was summoned.

6801. Had you ever asked for them before?-Yes; I had asked for them sometimes, but not every year.

6802. Did you always get them when you asked for them?-No; I got none until I got the whole at one time.

6803. Why did you not get them when you asked for them?-I don't know; I never was refused them, but I did not get them.

6804. Were you just put off?-Yes.

6805. Did you fish for Mr. Anderson all the time these accounts were running up?-Yes. The commencement of the debt was when I lost a fleet of lines by bad weather. There might have been a little due before that, but it was very little.

6806. How much do you call a fleet of lines?-Just what the boat carries. A boat takes 108 lines, and we lost them all except eighteen. The weather prevented us from taking any more in.

6807. Were these lines hired from Mr. Anderson?-Yes.

6808. Are the fishermen always liable for hired lines which they lose?-Yes. If they lose lines which they have hired, they have to pay for them.

6809. What is the value of these lines?-The price is about 2s. 8d. per line for new lines when they are ready for sea.

6810. Then a fleet of 108 lines would cost about £8 or £10?-I never give any consideration to what the cost of them might be. There were some of them old and some of them new; but I think 2s. 8d. was about the price for new lines about that time. The price varies at different times.

6811. Is not each man of the boat's crew liable for his share of the lines?-Yes. If there are five men in a boat, then the lines belong to these men, and they have each to pay their share of the hire for the season.

6812. In that way, you would be liable only for one-fifth of the value of the lines?-Yes; only for one-fifth that year.

6813. And that was the beginning of your debt?-Yes; but it was always going on, as I had a small family, and they were needing bread. Then interest was charged, and such as that.

6814. Was there any interest charged upon that account?-Yes.

6815. Are you sure of that?-Yes. It is marked down in the copies that I got.

6816. Did you ever know any man who got the whole of his accounts for nine years at once except yourself?-No.

6817. Did you ever know a man who asked for them?-No.

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6818. Did you ever know a man who was nine years in debt to a fish-merchant, with the debt always increasing, except yourself?- I could not positively say. I could not pick out any particular man; but very likely there are some who have been in the same position.

6819. During the time your debt was increasing, did you continue to fish every year for Mr. Anderson?-I was fishing for him the whole time.

6820. Did you, during that time, sell any of your fish to other merchants?-I did. The last year I was fishing for him I sold some fish to others, in order to keep my family alive.

6821. Who did you sell them to that year?-To Mr. Adie's factor.

6822. Was that what you call smuggling fish?-Yes. It was necessity that made me do it, in order to save my family.

6823. Was any objection made to your selling them?-No. I told that in court the same as I am telling it to you, and there was nothing said to me for doing it. I was obliged to do it.

6824. Was it not quite a fair thing for Mr. Anderson to do to summon you for the debt you were due him?-He did summon me for it; and when I asked him how it was to be paid, he wanted me either to pay it down at once or get cautioners for it, but I could not do either of these things. I perhaps I might have got a cautioner, but the money I did not have.

6825. Is it usual for a fisherman to get a cautioner when he is a little in debt?-I don't know; some of them have got one.

6826. But if the man continues to fish for the merchant to whom the debt is due, is he required to get a cautioner?-No. It is only when he goes away from the merchant that he is asked for a cautioner.

6827. Were you bound in any way to fish for Mr. Anderson, or for any one else, during these nine years?-I suppose I was, from the way I was in debt to him; but, instead of getting out of debt, the debt always increased.

6828. Whose fault was that?-I don't know. It was not my fault. As I have said, the last season I fished for Mr. Anderson I did not have a boat fit to go to sea with; but very likely, if I had had a good boat that season, as it was a good year's fishing, I might have got the debt somewhat reduced. Therefore it was not my fault. I got a boat from him, but ought to have got one that was fit to go to sea.

6829. Had you not your choice of boat?-I had no choice of a boat for that season.

6830. Where do you get the supplies for your family now?-From Laurence Smith, the man I fish to.

6831. Do you settle with him every year?-Yes; I have settled with him two years now.

6832. Had you something to get in cash last year?-Yes. The first year I fished for Laurence Smith I had 28s. to get, after paying for the things I had got from him during the season. This year, when I settled with him, I was clear. I had nothing to get, or very little.

6833. Were these two good fishing years?-They were very good; but the fishing is not the same with all the boats. They are not always equal in the same year.

6834. What was the price of meal at these two stores you have been dealing with?-It is just up and down, according to the market-less in one year than another. I think that last year it was about 21s. per boll in Mr. Smith's store.

6835. Are you told the price at the time you buy the meal?-Yes.

6836. Is the quality of the meal you get there as good as at Mr. Anderson's?-Yes, it is equally good. Meal and flour are just the same at the one place as at the other.

6837. Could you get better meal or flour anywhere else?-I don't know. We would, no doubt, get a different quality in Lerwick, if we were dealing there.

6838. Have you tried it there?-No.

6839. Are you obliged to take your provisions from the shop of the merchant you fish for?-I don't know about that. I have asked Mr. Smith at different times for a few shillings until the end of the twelvemonth.

6840. Have you got it?-Yes; I got it, but I never asked for any money to buy meal with, because he brought up stores there to supply his customers.

6842. But is it understood among the fishermen here that they ought to take their stores, or part of them, both provisions and clothing, from the merchant to whom they sell their fish?-That is generally the way in which they take there.

6842. Are they generally obliged to do that?-No; I don't think they are obliged to do it.

6843. Can they get cash from the merchants with which to buy their goods in other places?-I don't know. If the merchant has meal and other things which they are requiring, and can sell them as cheap and as good as they can get them at any other place then, of course, they don't need to ask money from him.

6844. But they generally do get their provisions from the merchant's shop, and nowhere else?-Yes.

6845. Did you ever ask for cash with which to go and buy your provisions from another store?-No; but I got an allowance from Mr. Smith with which to go to Mr. Anderson's factor if he (Mr. Smith) did not have the things I wanted.

6846. When was that?-I got it in both years when was fishing for Mr. Smith.

6847. Was that a general allowance or was it given to you on some particular occasion, when you wanted something?-If there was anything I required for the fishing, which Mr. Smith did not have, then I got leave from him to sell fish to another merchant, so that I might buy it, or I got cash from him with which to buy it from another.

6848. That, I suppose, was when you wanted any kind of clothing which he did not keep?-Yes; or a bit of meat, or butter or meal, if he did not have it. Then he gave us money to buy it with from Mr. Anderson's, or allowed us to go and sell fish to Mr. Anderson and to purchase it.

6849. Did you often do that?-Not often.

6850. Your daughter was examined to-day?-Yes.

6851. She works at the kelp?-Yes, a little. She is young yet, and has not done much to it.

6852. She also knits a little?-Yes. The most she has knitted has been for people belonging to the family, stockings and other things that we were requiring for ourselves.

6853. She also sells your eggs?-Yes.

6854. When she sells these things, are they paid for in money or in goods?-We are generally requiring some stores for the house: soap or soda, or a little tea or sugar; and they are got in that way.

6855. Does she always sell her hosiery for goods?-Yes; I suppose she never asked anything else for it.

6856. Do you sell the eggs yourself, or are they usually sold by your daughter?-They are generally sold by her.

6857. Has she a book of her own in which they are entered?-She has no book. They are generally paid for at once.

6858. How are you paid for your winter fishing?-We were generally paid for every haul as we brought it ashore, but we cannot do that now. We have to salt our fish ourselves in the winter fishing; and when we have got as many as two or three cwt. we send them over to Mr. Laurenson, and sell them to him.

6859. Then you are paid for them on account now?-Yes; we cannot settle for them now every time we come ashore. We salt so much, and sell it off, and then we begin to salt again; but before, when we sold our fish green, we settled for every haul of fish as they came ashore.

6860. Did you do that with Mr. Anderson too?-Yes, as long as I fished to him.

6861. Did you get cash for that?-No; I cannot say that I ever got cash.

6862. Did you ask for it?-Yes; we asked for cash [Page 166] several times, but we only got a small line, saying we had delivered so many fish.

6863. Have you got any of these lines this year?-No.

6864. What did you do with these lines?-When we came back with the line, we got anything we required for it.

6865. Did the line name any particular sum of money?-Yes. The haul was divided between four men, and every man got his haul marked down on a separate line, with his name on it.

Hillswick, Northmavine, January 11, 1872, ANDREW ANDERSON, examined.

6866. Are you a fisherman at Hillyar?-I am.

6867. Do you live there?-Yes.

6868. Who do you fish for?-I have fished for Laurence Smith for the last two years.

6869. Who did you fish for before?-I fished for different men, for Mr. Inkster, Mr. Anderson, Mr. Williamson, and now for Mr. Smith.

6870. Who did you fish for last before Mr. Smith?-For Gideon Williamson, or James Williamson, his uncle.

6871. Is your fishing paid for every year in the winter?-Yes.

6872. Do you generally get a payment in cash at settlement?-I have been a poor man, and very unfortunate, and I never had much cash to get; but sometimes I did get some, and sometimes not.

6873. What was the reason why you did not get it?-A poor man sometimes did not have it to get.

6874. Were you generally in debt to the merchants?-Sometimes I was a good deal in their debt and sometimes not, just as the season turned out. In some years I cleared off all my debt, and in other years I was a good bit behind.

6875. How long have you been in debt?-I have been in debt now for a good while, I cannot tell for how many years; and when I could not pay my debt, then I could not get my supplies, and that was what made me shift from man to man.

6876. Have you shifted often for that reason?-I have shifted twice because I was in debt.

6877. When did you shift first because you were in debt?-I cannot tell how long it is ago.

6878. Who did you shift from then?-From Mr. Anderson to Mr. Williamson.

6879. You were in debt to Mr. Anderson at that time?-Yes.

6880. And you could get no more supplies?-I could not get the supply that I asked for, and for that cause I left.

6881. When your supplies were stopped, did you go on fishing for Mr. Anderson until the end of the season?-I had not commenced then, and my family required meat, and I had no money to buy it with.

6882. Why were your supplies stopped? Was it because you were in debt?-Mr. Anderson never said anything about that; but when I asked for bread, he said they would not give it until fishing time.

6883. How much were you in debt at that time?-I don't recollect.

6884. Had your debt been running on for a number of years?- Not for a great many years; but I was a good bit in debt to him, although I don't recollect how much, as I had no pass-book, and no copy of my account.

6885. Was it ten years ago since that happened?-I cannot say rightly, because I was away from him for a while, and then I had to go back again, and afterwards I left him again.

6886. How much were you due him? Was it as much as £10?-I don't think it was so much as that, but I don't remember.

6887. Was it not quite reasonable that he should ask you for payment of your debt?-Certainly; but I had no money, and I could not give it. He had a right to ask for his debt, as everybody has; and I had a right to pay it, if I had been able.

6888. Did you leave Williamson because you were in his debt too?-No; the old man died, and then this man broke. I was serving him after that, but he was not able to give me my supplies, either clothes or meal, and therefore I left him.

6889. Were you in his debt?-I was due him a little.

6890. But you did not leave him because you were in his debt?- No; it was only because he could not give me supplies.

6891. And you get your supplies now from Mr. Smith?-Yes; I have got them from him for the last two years, when I have been fishing for him.

6892. Do you generally get a balance in cash at the end of the year?-No; I have not settled with him this year, and I don't know yet what I am to get.

6893. Had you a balance to get last year?-No; I was nearly clear with him.

6894. But there was a balance against you?-Yes; but it was not much-a mere trifle.

6895. Do you get cash from him during the season if you want it?-No; I will get anything he has in his shop to supply me with, either meat or anything else; but cash is seldom to be got.

6896. Why is that?-I don't know. I suppose it is because the man has not got much himself. Cash is not often very plentiful with him.

6897. Have you often asked for cash?-Not often. I may have asked for a shilling or two at a time. I could get anything else he had in his shop, but money was a thing that was seldom or never got.

Hillswick, Northmavine, January 11, 1872, LAURENCE PETERSON, examined.

6898. You are a fisherman, and the son of a previous witness?-I am.

6899. Whom do you fish for?-I fished first for Mr. Anderson for two years.

6900. Whom do you fish for now?-For Mr. Joseph Leask, Lerwick, at the Faroe fishing.

6901. When did you give over going to the home-fishing?-In 1868.

6902. You fished for Mr. Anderson then?-Yes.

6903. Had you an account in his shop?-Yes.

6904. When you settled up at the end of the year, had you a balance to receive in cash?-Yes; in both years when I fished for him.

6905. Did you get money in the course of the season if you wanted it?-No.

6906. Did you ask for it?-Yes.

6907. Was it refused to you?-Yes.

6908. Why?-I don't know.

6909. But you got as much goods as you wanted?-Yes.

6910. What was the balance you received in cash at the end of these years?-I don't remember how much it was the first year; but in the second year I had 10s. to get.

6911. In the Faroe fishing you are paid at the end of the year too?-Yes.

6912. Are you paid in cash?-Yes; if we want it, we are paid in cash.

6913. Have you an account in Mr. Leask's shop?-Yes. I have an account the whole time, from the time I go out until I come back and go again.

6914. Is that account closed when you come back from the fishing?-Yes; I have no account after that.

6915. Is that because you live at a distance from Lerwick during the winter?-I suppose that is the reason.

6916. What is your account for?-For tea, coffee, butter, pork, and such things as that.

6917. Have you got a pass-book?-No, I asked for [Page 167] one in 1870, but they refused to mark anything into a pass-book, and I never asked for it again.

6918. Who refused it?-The people in the shop; and they did not give a pass-book to any one more than to me.

6919. Was it refused to you in Mr. Leask's shop in Lerwick?- Yes.

6920. Did they give you any reason for refusing?-They thought it too much bother, I suppose. I knew of no other reason.

6921. Were the things you got for your own use at the fishing?- Yes.

6922. Did you take them all to the fishing with you?-Yes; we buy cloth and all other things for ourselves. We are only supplied with bread.

6923. What you got from the shop was what you call small stores?-Yes.

6924. Did you get anything from Mr. Leask's shop except your small stores and your outfit?-Yes; I bought some meal and took it home.

6925. Did you do that more than once?-I bought some for myself, and I bought some when I went out first in spring, and sent it home.

6926. Were these the things that you wanted to have entered in the pass-book?-Yes; these things of my own small stores and clothes, and anything I required.

6927. Did you get these articles at many different times in the course of the year, or did you just get them once or twice when you came home?-I got them twice.

6928. How often does your boat generally come home from the Faroe fishing in the course of the season?-We generally make two voyages; last year we made three.

6929. And you would be getting something additional each time you came home?-Yes. All we require is small stores for every voyage.

6930. What amount of the price of your fish did you get at settling time in these two years when you were at the Faroe fishing?-Last year I got an account for £17, and this year it was £22.

6931. That was the whole price of your fish?-Yes.

6932. But how much had you to get in money at the end of the year on the whole of your account?-I had £16 odds to get last year, and this year I had £10.

6933. Was that all paid to you in money at the settlement?-If I had liked to take it all in money I could have got it, but I did not take it all. I left some money in the book in Mr. Leask's shop.

6934. Then your account is still standing in his book?-Yes.

6935. What was your reason for sending meal home to your people from Lerwick?-I suppose the reason was, because they could not get a supply at home from Mr. Anderson, whom they were serving.

6936. Was that about the time when your father left off fishing for him?-Yes, that was about the time.

6937. Did you ever work as a beach boy here?-No; I was always at school before I went to the fishing.

Hillswick, Northmavine, January 11, 1872, JOHN SANDISON, examined.

6938. Are you a fisherman?-I am.

6939. Have you got some land?-Yes; I live on a farm in Hillswick along with my father. The land we have belongs to the Busta estate.

6940. Do you go to the home fishing?-Yes.

6941. For whom do you fish?-For Mr. Anderson. I have fished for him and his brother for upwards of twenty years. I went to the fishing when I was a little boy. I never was at the beach.

6942. Do you settle every year for your fishing?-Yes; about the middle of November.

6943. You have an account of your own in Mr. Anderson's ledger?-Yes.

6944. Do you get supplies of goods from his shop?-Yes.

6945. Do you get your goods anywhere else?-Yes, occasionally.

6946. Where?-Perhaps from Laurence Smith or from Arthur Harrison, just as may suit my convenience.

6947. What quantity do you get at these different shops? Do you get more at one than at another?-Yes; I get most from Mr. Anderson's.

6948. Do you get the same kind of goods there as at Smith's and Harrison's?-Yes, much the same.

6949. Then what is your reason for going to them?-I have had little employment from Smith for the last two years, which led me to take a few supplies from him.

6950. Did you fish for him?-No; I was employed by him at other kinds of work-principally boat-building during the winter and spring.

6951. Have you an account with Mr. Smith for boat-building?- Yes.

6952. Do you take goods in settlement of that account?-Yes; but it is just because I think it right myself. I am in no way compelled to do so.

6953. But you keep an account with Smith, and the goods you get are put on one side of it, and the amount of your payment for boat-building is put on the other?-Yes; until the time of settlement.

6954. What is the time of settlement for boat-building?-Much about the same time as for the other-some time in November or December.

6955. Do you get money whenever you ask it for your boat-building?-Yes; if I was to ask for money, I would get it.

6956. Do you get money during the season from Mr. Anderson for your fishing when you ask for it?-Yes; I never was refused money at any time.

6957. Did you ever ask for it except at settling time?-Yes.

6958. How much did you ask for?-Small sums.

6959. You said the reason why you went to Laurence Smith for some of your goods was, because you were employed by him: is it a general sort of understanding that when a man is employed by a merchant, he deals with him for his goods?-To a certain extent it is.

6960. He is not altogether bound to do it?-No, not in my experience.

6961. But is it thought fair and proper that he should take a certain quantity of his goods from that merchant?-If a merchant gives a man employment, and he has the goods as good and as cheap as they can be got elsewhere, it is generally thought that

the man should take his goods from him.

6962. Would it not be better to get your payments in cash at shorter periods, rather than to have the whole of your money paid to you at the end of the year?-I don't know.

6963. Do you not forget what quantity of goods you have got from the merchant in the course of the year?-Oh no. We can easily remember what goods we have had; and besides, we generally keep accounts of our own; at least I do so.

6964. Have you got a pass-book in which are entered all the goods you receive from Mr. Anderson?-Yes [produces pass-book].

6965. How long have you kept that passbook?-I think it is from 1865 or 1866 to the present time.

6966. Is that just a copy of the account that is entered in Mr. Anderson's book?-Yes.

6967. I see here an entry of a payment to Mr. Inkster: what was that for?-I asked Mr. Anderson to make it.

6968. Were you in Mr. Anderson's debt at the time?-I don't think I was.

6969. Is there any entry here showing how you are settled with at the end of the year?-Yes [showing]; the balance in 1870 was £14, 8s. 7d.

6970. You live with your father?-Yes.

6971. And you take meal from Mr. Anderson for the supply of your father's family?-Yes, at times, when they require it.

6972. Is the meal which you get there of good [Page 168] quality?-Yes; it is the same as we can get anywhere else in the country.

6973. Have you compared the price of the meal which you get there with the prices at which you can get it elsewhere?-Yes.

6974. Have you got meal from Lerwick?-Yes; and when the cost of carriage came to be added to it, it was much the same price as at Mr. Anderson's.

6975. Have you tried that more than once?-Yes.

6976. Is the flour of good quality?-Yes; the flour is not bad, and the price is just about the same as at Lerwick after adding something for carriage.

Hillswick, Northmavine, January 11, 1872, LAURENCE ANDERSON, examined.

6977. Are you a fisherman?-Yes; I have been a fisherman for some time.

6978. Have you got any land, or do you live with your father?-I am living with my father.

6979. Who do you fish for?-I have fished for Laurence Smith for three years.

6980. Do you settle with him every year in winter?-Yes.

6981. Have you an account with him for the articles which you get from his shop?-Yes.

6982. Have you generally a balance to get in cash at the end of the year?-Yes. If there is anything coming to me then, I get it.

6983. When did you settle with him last?-I settled for last year about two months ago.

6984. How much was due to you then?-I was due him a little; but it was not much.

6985. Were you due him anything when you settled for the year before?-I was.

6986. And the year before that?-No; the year before that I was clear. I had something to get the year before.

6987. When you have anything to get at the end of the year, is it paid to you in money?-No; I have not got any money.

6988. When there was a balance due to you three years ago, did you not get it in money?-No, I did not ask it.

6989. It was left standing, and was carried into the next account?-Yes.

6990. And you got goods for it as you required them?-Yes.

6991. Is it a usual thing for the men here to get their balances in money?-No; they don't get them in money.

6992. How do they get them?-They get supplies, and perhaps they may get a little money.

6993. Given after settlement?-Yes.

6994. Have you a pass-book?-Yes [produces it].

6995. That book commences in 1870. Had you no pass-book before?-No.

6996. Would you not be better to be paid in cash for the whole of what was due to you?-Yes; but I have never got the cash.

6997. But could you not have got it in cash, instead of taking all these goods, if you had liked?-No. I have been a poor man now for the time that is past, and I have never had the money, and I could not get it.

6998. You required to get supplies and you could not pay for them in money?-Yes. I always got what wanted from this man; he did not keep anything back, but the money I did not have to get. I did not have money, and I could not get it.

6999. Did you begin to work as a beach boy?-Yes. I was two years at Hillyar fishing station first, and then at Ollaberry.

7000. Was that for Mr. Anderson?-No; it was for Mr. George Henry.

7001. What did you get as a beach boy?-I got 20s. the first year; and I was there three months.

7002. Was that as long ago as ten years?-Yes, it will be ten years since I first went to it.

7003. How was that 20s. paid to you?-I just got what I required from him at the time.

7004. Had you any money to get at the end of the first year?-No, not at the end of the first year; but the second year I had 10s. to get, and I got it.

7005. How many years were you a beach boy?-Five years.

7006. During that time you always had an account with your employer?-Yes.

7007. Were you always with the same employer?-No; I was two years with Mr. Henry, and three years with Mr. Anderson.

7008. Had you always a little balance of money to get at the end of the year from Mr. Anderson?-No. The first year I was clear; the second year I was due very little, but the third year I was due something. Then, the first year I was at the haaf, I fished for Mr. Anderson.

7009. Could you have gone to fish for anybody else that year if you had liked?-Yes; but I made a bargain that year to fish for him.

7010. Was it because you were in his debt that you made a bargain to fish for him?-Yes. I had nothing for supplies, and I got my supplies the first year from him.

7011. Would you have got your supplies from Mr. Anderson and still have been at liberty to engage with anybody else for the haaf?-No.

7012. Why?-I did not engage with any other body that year.

7013. But would you have been at liberty to have done that if you had liked?-I don't know. If I had been clear with Mr. Anderson, I might have had my liberty.

7014. You thought you were not at liberty because, you were not clear?-Yes.

7015. Were you told you were not at liberty to engage with anybody after you had got your supplies from Mr. Anderson?-No.

7016. You just wanted the supplies, and you went and engaged yourself to him?-Yes. Of course, I had to get my supplies, and I just got them from the man that I was to engage with.

7017. But nobody asked you to engage for the haaf?-Yes.

7018. Is it usual for men to be engaged for the haaf fishing so early as November?-Yes; most of them are engaged then.

7019. Although the haaf fishing does not begin until six months afterwards?-Yes.

7020. What is their reason for engaging so early in the season?- Most of time, when they are settling up, engage for a new year. They make up their crews then.

7021 Is it more convenient for the men to make up their crews then?-Yes.

7022. Why?-Because they know then who are to go together in the rising year.

7023 Do they get supplies more readily from the merchants if they make up their crews at that time and engage to fish for the following year?-Yes, when they are in debt.

7024. Is that one reason why the men sometimes make up their crews and make their engagements so soon?-I don't know, but I believe there is something in that.

7025. Was that the reason why you engaged so early that first year when you went to the fishing?-It was because I was in debt that year when I left the beach.

7026. Have you been in debt in other years?-Yes. I was in debt to Mr. Anderson at settling time for the first year I fished for him. I left him because I was in debt, and could not get supplies.

7027. In what year was that?-I think it is about six years ago

7028. What was the amount of your debt?-I believe it was about £5 odds.

7029. Is it a usual thing for a man to leave the service of a merchant because he is in his debt?-I don't know; but I could not get supplies from him, [Page 169] and as I had to get them somewhere, I went to another merchant for them.

7030. Have you paid up that £5?-I have not.

7031. Have you been asked to do so?-I was summoned once.

7032. Did you go to court about it?-I did not.

7033. Did you hear nothing more about it?-Of course, I paid a little of it after I got the summons.

7034. How much did you pay then?-About 12s.

7035. How long ago is that?-It will be three years ago now.

7036. Are you going to pay the rest of it?-I don't know. I would never have refused to pay it if I had been able to pay.

7037. Do you live with your father?-Yes; but my father is a poor man, and I am the same, and I have not made much money.

7038. Is it a common thing for a man to leave the employment of a merchant when he is a little bit in his debt, and cannot get supplies?-Of course I had to leave Mr. Anderson.

7039. But is that a common thing?-I don't know.

7040. Have you known many men who have done it?-No; there are not many that I know of. I could not live, and for that reason I had to leave Mr. Anderson. I gave myself up to fish for him next season if he wanted it, but he told me as much as that he would not have me, and that I must look out for myself, and I did so.

7041. When was that?-Three years ago.

7042. Did you offer to go back to him then?-I offered to stay with him, and I went and asked for a little supply, but he would not grant it, and for that reason I had to

leave him.

7043. Was the reason why he would not accept you, because you could not work without supply, or was there any other reason?-I cannot say exactly what the reason was.

7044. What did he say about it?-He told me that I was to make the best of myself that I could, and did so. I left him and fished for the merchant I am now with.

7045. You were a little above £5 in debt then?-Yes; between £5 and £6.

7046. Had you been as much in debt for years before?-No. I had never been in debt before I went to Mr. Anderson. I was three years with him at the fish-curing; and I was a little behind the first year I went to the haaf, but it was not a great deal.

Hillswick, Northmavine, January 11, 1872, ALEXANDER SANDISON, examined.

7047. You are the father of a previous witness?-I am.

7048. Did you hear the evidence which your son gave?-Yes.

7049. Do you settle for your fishing at the end of the year in the same way that he does?-When I was going to the fishing I did.

7050. You don't go to the fishing now?-No; I have not gone for the last three years. I am too old.

7051. For whom did you fish when you were at it?-The last time I was at the fishing it was for Mr. Anderson.

7052. Had you generally a balance in cash to get at the end of the year?-Occasionally.

7053. Was there oftener a balance to get, or a balance against you?-There was oftener a balance to get if the seasons turned out good, or if anything occurred to make them good; but when anything took place to render the season a bad one then there was something due and it was put against me.

7054. When you were in debt to Mr. Anderson, was there any necessity for you to engage to him for the following year?-No.

7055. Might you have engaged to anybody you liked?-Yes. I had my freedom; there was no compulsion.

7056. Did you generally engage to him?-Yes.

7057. Was there any other person to whom you could have sold your fish?-Yes; provided it had been necessary for me to have done so; but I saw no occasion for it.

7058. You never wished to do that?-No; not in the least.

7059. Do you think it would be any advantage to the fishermen to have a price fixed for their fish at the beginning of the season, so that they might know what they were to get?-In some seasons it might be, but with the fall and rise in the markets it is so uncertain. It might be a gain or it might be a loss; they could not tell until the time came for settlement.

7060. I suppose the fishermen have nothing to do with fixing the price of the fish?-No; it has not been customary for them to have anything to do with that.

7061. It has been the practice to leave it altogether to the fish merchant?-Yes; so far as ever I knew.

7062. Are there any complaints about the way in which the price is fixed?-There certainly are some men who make it grievance of it; but they are men who would not be satisfied if the thing were done in any other way.

7063. What do you think about it yourself?-I cannot say.

7064. Have you no opinion about it at all?-Very little. It does not concern me much. I have got too old now to be able to do anything in the way of changing it.

7065. Do any of your family knit?-Yes; but that is it thing I don't interfere with.

7066. Is it usual for the father of a family not to interfere with his wife and daughters' account for hosiery?-They manage their own affairs and their accounts themselves and we never interfere with them in any way.

7067. Do they sometimes help to keep the house?-Yes; in every way they can.

7068. But do they sometimes help with their hosiery to provide for the house?-Yes; occasionally, when it falls in their way.

7069. In this part of the country I understand they get provisions for their hosiery?-Yes; to a certain extent, when required.

7070. But you have nothing to do with their accounts or their books?-No; I have no concern with them. They see their own books and are satisfied with them.

7071. Does a man's wife keep her own book for hosiery and settle it herself?-Yes.

7072. Is it the same with the eggs?-Yes.

7073. The wife takes the eggs and sells them, and puts them into her own account?-Yes. She takes them away and brings back any stuff she wishes to get for them. That is the usual practice, and it has been so all my days.

7074. How are the people paid for their eggs? Are they paid in goods?-If they choose they get bread, tea, sugar, or anything else they want; or if they are not pleased to take that, they can get the price.

7075. Would it not be better to get the money for them?-It might be, if there was any need for it; but if they are requiring the goods, I don't see any use for taking the price and going to another shop with it.

7076. Then, with regard to the fishing, you say that the man who has money to get will get it, but the man who does not have it to get will not get it?-I fished last for Mr. Anderson, that is three years ago, and I have seen me have a good deal to get; but a man who had no cash due to him could not get it. I have been a little in debt sometimes, it was not much, but I could not get any cash until I paid off my debt. I could have got anything I wanted out of the shop, provided it was in small quantities; and I should have been sorry to look for anything more until the book was clear.

When that was done, then I could get it to my satisfaction.

7077. When your book was not clear, would you have considered yourself bound to go to fish for Mr. Anderson until it was clear?- Yes.

7078. You thought it was fair that you should fish for him until your debt was paid?-Yes.

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7079. Did it often happen, in the course of your experience, that you were a little behind in that way?-Yes.

7080. And at such times you always thought it right to go to fish for him?-Yes; so that I might clear it off by my fishing.

7081. Were you ever objected to for selling your fish away from Mr. Anderson?-No.

7082. Did you not require to do that sometimes, in order to get a little cash?-No.

7083. Do you think the fishermen are as well off now as they used to be long ago, or are they better off?-They are much better off now than they were in my young days, because at that time married men who had families only got from 4s. to 6s. for their fish; while young men who were not married, and did not require it so much, got 7s. or 6s. 6d. or 6s. Now they get an equal price, and I think 6s. or 7s. is a good price. When the fishing turns out to be successful, it pays them very well.

7084. Have you always been satisfied with the quality of the things which you got from your fish-merchant's store?-Yes.

7085. Did you get anything at all at any other store when you were fishing?-No; but I was only a short time at the fishing. I was at sea for fifty years, sailing to Davis Straits and all round the globe, and I only gave that up when I could not go any longer.

7086. How many years were you fishing at the haaf?-Only four years.

7087. You were a sailor in the merchant service before that?- Yes.

7088. Did you go to Greenland too?-Yes; I went twenty-seven voyages to Davis Straits.

7089. Where did you ship for that?-From Lerwick.

7090. Who engaged you there?-There were various agents. I generally engaged with Mr. Hay. I think I went ten or twelve voyages for him.

7091. When did you last go to the whale fishing?-I think it was about 1850 or 1851.

7092. How were the men's wages paid then?-It was by so much per month and an allowance of oil-money besides.

7093. Did you get an advance when you shipped?-Yes.

7094. And did you get an outfit from the agent who engaged you?-If you required it, it was there for you; and if not, you got your advance, and could take it where you

pleased.

7095. Did you generally get your outfit from the agent in Lerwick who engaged you?-Yes.

7096. When you came back from your Greenland voyage, in what way did you settle?-Those who lived at a distance would get £2 or £3 if the voyage had been good, and they had money to get; and then they would go home and come back at Martinmas to settle with the agent. There was an account kept against them in the book which they had to settle at that time.

7097. What quantity of goods did you generally have in your account with the agent at Lerwick?-The greatest part of them were sea-going clothes.

7098. You did not generally get supplies from him for your families?-No; not very often.

7099. In those times did you ever get your outfit from any person except the agent who engaged you?-No; we always got it from the agent who engaged us. We could change the agent if we thought we could make any better of it, but they were nearly all about the same.

<Adjourned>.

Hillswick, Northmaven: Friday, January 12, 1872. <Present>-Mr. Guthrie.

DAVID GREIG, examined.

7100. You have been for a long time in the employment of Messrs. Hay & Co.?-I have been with them for nearly twenty-three years-first in their Lerwick house, and I have been manager for them at North Roe for ten years.

7101. North Roe is part of the Gossaburgh estate?-Yes.

7102. Do you manage the fishings on that estate in Northmaven parish, as well as those in Yell?-There is a separate management in Yell, so far as the rents are concerned. In Yell there is part of the estate on the west side of the island, and part on the east side. I have nothing to do with the fishermen on the east side, only with those on the west side.

7103. The fishermen on the west side deliver their fish where?- At Feideland.

7104. That is one of your stations?-Yes.

7105. You have prepared a note of the tenants or holdings upon the estate, in which the number is stated to be 56: is that in this parish only, or in Yell also?-These are the farms or holdings in this parish.

7106. Are they entirely under your management?-Yes.

7107. The note also states that the gross rental last year was £193, 7s. 6d., of which £17 is for Hay & Co., and the gross rental charged to tenants is £176, 7s. 6d.?-Yes.

7108. The £17 is allowed for land held by Hay & Co. themselves?-Yes; land and islands belonging to the estate on which they graze.

7109. Do you know the amount of the tack duty payable by Hay & Co. for that estate?-Not exactly. I think it is somewhere about £130 or £140; but then they have to pay all public burdens, and they have no claim against the proprietor for repairs on the property. They do all the repairs at their own expense, and keep up the property.

7110. So that it is not calculated that upon the rents payable by the fishermen, Hay & Co. have any surplus?-I don't think it. When the expense of management is taken off, I don't think they will have anything.

7111. I understand the fishermen hold their land subject to the condition of fishing during summer for Hay & Co.?-It is usually understood so.

7112. And I presume that is the advantage which Hay & Co. chiefly derive from their tack?-It was with a view to that that they entered into it.

7113. What is the average rent payable by each fisherman?-The average rental charged to fishermen is 3 guineas for each holding. The highest is £6, and the lowest is £2, 7s. I may say that the rents on that estate have not been altered for over 50 years, while other estates have been raised very considerably. The land there is, I think, much cheaper than it is throughout Shetland generally.

7114. Do you think the rents would bear an increase?-In comparison with other places, a very considerable increase.

7115. How many of the tenants fished last year in the summer fishing at North Roe?-Thirty-three.

7116. Of the rest, how many were unfit for fishing, and how many were engaged in other fishings?-I think there were three tenants fishing to other curers.

7117. In the summer fishing?-Yes; there were two at Faroe and two or three, two at least, sailing south. Others were employed as fish-curers and tradesmen, and in other capacities.

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7118. There were three fishing for other curers: was that by permission or sufferance?-By sufferance, not by permission.

7119. No objection was taken to them doing so?-No; and no consequences have followed.

7120. Was that about an average number of men fishing for other curers, or was it greater or less than usual?-I think there have been fewer in some years; and in some years I think there have been none at all.

7121. You employed nine deep-sea boats at North Roe?-Yes, in this parish.

7122. And you had also some crews from Yell?-Yes; there were four deep-sea boats from Yell.

7123. There were also some small boats?-Yes.

7124. What distinction is there between the small boats and the large ones?-There is no difference in the fishings to which they go. They fish for the same sort of fish; but the small boats do not carry so large a crew, and the boats themselves are not so large. Generally these small boats belong to the men themselves; the large boats are hired from Messrs. Hay & Co.

7125. Is the boat hire the same with you as in other places?-No; it is less. In some places they charge 50s. and as high as £3; but in our case it has never been above 48s.

7126. That includes the lease of the boat for the season?-Yes.

7127. What else?-Nothing but the material belonging to the boat: she is made seaworthy, and everything belonging to the boat is supplied,-sails, oars, cordage, compass, and everything else.

7128. How are the lines provided?-The lines are given to the men, on their own account, at the usual selling price, and they are allowed to pay for them in three years.

7129. Are there any other articles which are furnished to the men as part of their outfit for the summer fishing?-I don't think there is anything else. Of course they have their sea clothing, and provisions and things of that kind, to get when they engage for the fishing.

7130. Are all these usually or invariably supplied by Hay & Co. from their shop?-No; not invariably. I have known one or two cases where the parties have sent to Lerwick and bought their goods there; but those parties who have done so have found it was not a profitable thing, and have come back to me again.

7131. I suppose the carriage was expensive?-There was the carriage and the inconvenience of sending for them, and they had no profit by doing it.

7132. Do you mean that the price at Lerwick was as high as at North Roe?-Yes; we generally endeavour to charge about the Lerwick prices, only adding something for the carriage.

7133. How many fishermen were employed by you last year altogether?-There were 98 altogether; 28 from Yell and 70 from Northmaven, in 16 boats.

7134. Have you made any note from your books of the total amount of the earnings of these men?-I think that last year it was approximately about £1220.

7135. Is that the total amount of their earnings from fishing, or does it include sums due to the men from any other source?-That is their earnings from the fishing alone.

7136. It does not include any stock that may have been purchased from them, or their payment for any other sort of work which they may have done for you?-No. It is taken from the book in which I keep the private accounts against Hay & Co. I have to charge them with that sum for the fish bought and paid for, in the ordinary course of business.

7137. Have you got your books here?-Yes. I was not called upon by my citation to bring them, but I have brought them.

7138. You were not called upon by your citation to bring them, because it was thought that, in consequence of the distance you had to come, it might cause you an unreasonable amount of inconvenience. Is it from these books that you have made up this statement?-Not from this book [showing]. It has been made up from the statement kept in a private ledger with Hay & Co. It could, however, be got from the books I have brought by going over the accounts.

7139. You have also made a note of the average earnings of the men?-Yes. It will be a little over £12.

7140. Does that apply only to the 98 men you have mentioned?- Yes.

7141. Or does it also include the earnings of the boys and men employed in curing?-No; it does not include that. It is merely the fishermen.

7142. You say in your note that it includes men and boys?-Yes; there is a fee'd boy in each boat, and he is included in the general average. The fees are paid to the boys by the fishermen off their earnings.

7143. Of the 98, how many will be boys so fee'd?-There were 8 in North Roe, and 3 in Yell; that is 11 fee'd boys out of the 98.

7144. What is the amount of the fee of each boy?-I think from £2 to 50s.; and then they have an allowance to carry two lines or buchts, and they get the fish caught by them. They take their chance of the fishing of these two lines.

7145. Do they sell these fish to you?-Yes.

7146. Will the takes from these lines be anything like equal to the fees paid to the boys?-I think in or two cases this year, the lads' fishing was more than their fee.

7147. Have the men themselves private lines of that kind?-I don't think so.

7148. I was told elsewhere that such a practice sometimes existed?-Perhaps it may, but I don't think it exists in this part of the country.

7149. Then, from £1220 as the earnings of the fishing, I suppose you would deduct £18 or £20 for the nine boys?-Yes, or about £20 or £25; I think that would be enough. That would leave the average for the men much higher than I have put it there.

7150. It would leave about £13, 8s. 6d. as the average earnings of the men?-Yes.

7151. How much was the cash paid at settlement?-£553 and £170 additional approximately for rent.

7152. That was entered in account to the credit of the men?-Yes; that is taken off their fishings.

7153. So that the average amount paid in cash would be about £8?-Yes; and if you deduct about £2 for each man for boat hire and provisions through the year, then the difference between the £8 and what is paid at the stations would give what is supplied to their families during the season.

7154. Adding about £2 for the amount of boat hire, lines, and the supplies at the fishing station, that makes the £10, and the balance of £3, 8s. 6d. consists of supplies to the families during the year?-Yes.

7155. Are most of these men's families resident near your shop at North Roe?-I think the farthest distant is about three miles; and these are very few, only about half-a-dozen families. The rest are all quite near.

7156. Do the families have many cash transactions at your shop in addition to those that enter the account?-I think so.

7157. Have you any idea what becomes of the remainder of the money that is paid in cash at the end of the year?-I have often to transmit cash to Hay & Co. which has been received at the shop through the year, being returned to it for purchases.

7158. That shows that there is a considerable amount of the cash spent in your shop after being paid to the men at settlement?- Yes.

7159. Have you any notion of what that might amount to in a single year?-It varies very much.

7160. Would it be £100 or £200?-No; I don't think it is so much as that.

7161. Are there other shops in your neighbourhood where the men and their families are in the habit of dealing for their groceries?- They deal at several other shops. There is one small shop, Mr. John Inkster's, quite near ours. The next is Mr. Laurenson's, about three miles off; and the people sometimes go to Ollaberry and Hillswick.

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7162. You have reason to believe that some of their cash receipts go to these shops?-I think that is sometimes the case, and some of their payments again come back to me-I mean that some of those who are receiving cash from Mr. Laurenson and others come back to me in turn.

7163. Can you say how many of the 98 men whom you employ are in debt to Hay & Co. at the end of the season?-I don't think there are six overdrawn accounts.

7164. But that has been after a favourable year?-Yes; it has been a very favourable year, and that is a smaller number than usual.

7165. Do you find that men who are in your debt are generally inclined to fish for you in the following year?-I have never had any difficulty in that way.

7166. Do they generally come to you as a matter of course and engage for the following season?-As a rule, I have endeavoured to keep the men out of debt as much as possible and I have always found it to be the best principle.

7167. But do the men who are in your debt generally come to you to fish for the following year, in order to wipe off their debt?-I don't think that in my ten years experience a single man has left the employment in consequence of being in debt.

7168. Have you in some years had a much larger number than six men in your debt at settlement?-Yes. I could not give the exact numbers; but there have been much larger numbers than that.

7169. Perhaps three or four times as many?-I should think so.

7170. The greater number of the men at the station?-No; but perhaps one-half of them may have been in debt in an unfavourable year.

7171. Was that long ago?-We had a turn of unfavourable years I think four or five years ago.

7172. Did their indebtedness sometimes run over a series of years?-In two or three cases it has done so.

7173. But not in many cases?-No. I can only think of three cases just now.

7174. Did these men continue to fish for you until their debt was cleared off?-Yes.

7175. Do you remember the amount of the largest debt of that kind you have ever had in your books?-No; I have never had occasion to take that out. My inventory is taken in the month of May, when half the year is gone, and when half the debts are incurred, and then they have got considerable supplies for the rising season.

7176. Do you purchase kelp?-Yes.

7177. Are there two prices paid to the women for it?-Yes. For the past two or three years the price has been 4s. 6d. in goods or 4s. in cash, with a royalty course to the proprietor.

7178. You have to pay a royalty to the proprietor besides what you pay to the women?-Messrs. Hay & Co. are the lessees of the shores, and they reserve that right to themselves, the same as if they were the proprietors.

7179. Is there a royalty paid by the gatherers to Hay & Co.?-It is taken off the price; because if the shores belonged to anybody else they would have to pay it.

7180. Who would have to pay it?-Hay & Co. I think it is generally understood that the buyer of the kelp shall pay the royalty to the proprietor.

7181. But Hay & Co. are not both proprietors and lessees?-They are in the same position as the proprietor, and they buy the kelp too.

7182. How does the royalty enter your accounts?-It does not appear in the accounts at all. The price paid to the makers is just 4s. 6d. in goods or 4s. in cash.

7183. Do you mean that an ordinary lessee would have to pay a royalty to the proprietor in addition to the cost of the purchase of the kelp?-I mean that if Hay & Co. were not buying the kelp themselves, but were letting the shores to some other party, that party would be accountable to Hay & Co. for the royalty.

7184. Therefore you don't allow for any royalty as forming part of the tack duty payable by Hay & Co. to the proprietor?-No. I think it is understood or expressed in their lease that they should have the kelp shores.

7185. Then the profit made on sales of kelp by Hay & Co. is larger than that of other lessees by the amount of the royalty usually paid by them?-Yes.

7186. Why do you fix a different price in goods and in cash for kelp?-Because I think the utmost value is given for the kelp which they are warranted in giving, when it is paid for in goods, and they have a profit on the goods; but when it is paid for in cash they cannot be expected to receive the kelp and give the full value for it without having any profit on it.

7187. Is there no profit on the kelp which you buy at 4s. per cwt. in cash?-Yes; there is a profit upon that; but if we paid 4s. 6d. in cash for it, then there would be no profit.

7188. But you give them 4s. 6d. worth of goods for because you have a profit on the goods?-Yes.

7189. Is there no profit on the kelp when it is bought at 4s. 6d.?- There would not be any, taking the royalty into consideration.

7190. How many tons of kelp do you sell?-I only took a note of it for last year, when there were twelve tons.

7191. At what rate was it sold?-I did not get the account sales, but I understood the price paid in Shetland, free on board, was £5, 10s. per ton.

7192. That is 5s. 6d. per cwt. Will it take 1s. per cwt. to put it on board ship?-No.

7193. Where is it shipped?-The kelp I take is shipped in one of Hay & Co.'s vessels, carried to Simbister, landed there, and re-shipped again.

7194. By free on board, do you mean free on board at Simbister?-Yes.

7195. You think that shipment and re-shipment would not cost 1s. per cwt.?-I don't think it would.

7196. Therefore there would be some margin of profit upon the kelp bought at 4s. 6d. and sold at 5s. 6d.?-If you buy the kelp at 4s. 6d. and pay 1s. of royalty, then it is actually costing you 5s. 6d., and there is no margin left for the expense of receiving and shipping and transhipping again.

7197. But I understood you to say that there was no royalty actually paid by Hay & Co.?-Neither there is; but they have the same right to receive that royalty, or to calculate upon that royalty as if it were paid, they being in the position of proprietors of the property.

7198. You have said that the amount of cash paid to the fishermen at settlement was about £553, and that the average amount due by each man for goods to his family would be £3, 8s. 6d.: would there be no cash advances to them during the season?-Yes.

7199. These would be included in that sum?-Yes.

7200. Would the amount of these advances be material?-I am not prepared to say how much they would be. It would depend upon the necessities of the man. I think in

one case they amounted to £12, 9s. 6d.

7201. Was that sum paid in cash before settlement?-Yes.

7202. That would be nearly the amount of his total earnings?-It would be nearly the amount of the average earnings; but that man had very high earnings.

7203. I believe you have made some calculation as to the total amount of summer fish bought: what is it?-During the ten years I have been manager at North Roe, there have been summer fish bought to the value of about £7000; and during the same time the cash paid at settlement has been about £4420. That includes the rents of tenants who have fished; but it does not include the cash advanced to them through the year, which in some years has been pretty considerable. The following is a statement for the last four years, of the value of the fishings, and the amount paid in cash at settlement: Cash Paid at Value of Fishings. Settlement. 1868 About £400 £290 1869 704 335 1870 1003 540 1871 1220 723

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7204. Is there any winter fishing at North Roe?-There is what we call home fishing for nine months of the year in small boats.

7205. But the proper home fishing terminates about August or September?-The haaf fishing terminates about 12th August. After that the men immediately resume fishing in their small boats, and continue it until the middle of May next year.

7206. Are these the small boats you mentioned before as belonging to the men themselves?-Yes.

7207. I think you said that of these there were only two at North Roe?-That was in the summer time; but almost every man on the property has a share of a small boat for the winter fishing.

7208. Are these boats generally purchased from Hay & Co.?-I think since I came there they have generally been purchased from them, but not altogether.

7209. Are they paid for by instalments?-Our bargain for them is, that they are to be paid in three years, and during these three years they stand in separate account in my books.

7210. Is there a separate boat book?-They are entered in the general ledger, but kept in a separate account; and at the expiry of the three years, if it is not paid off, it ought properly to be put to the man's private account, and to become part of his shop account. That is the rule, although, in some cases, I have not carried it out to the extent of carrying it to the man's private account at the close of three years.

7211. Do you generally find that that boat account is paid off within the three years?-No; it is frequently continued longer.

7212. In what way are the fish disposed of that are taken in that small-boat fishing in winter?-They are sold when the men come ashore. I tell the men what price will be paid; and if they agree to take that price, receive the fish and pay for them every time they are delivered.

7213. Is that paid to them in cash?-They are at liberty to take cash, or to buy goods, or do anything they like; but we never leave these transactions unsettled.

7214. In point of fact, is it generally cash that passes, or do the men take what goods they want at the shop?-In many cases, I think in most cases, if the fishing is small, perhaps they want as much, or pretty near the value, when they come ashore, out of the shop in goods for their houses; but if they have been having a few days' successful fishing, then they take the cash when they don't require the goods. They are not asked to take the goods; and they are not required to do it in any way.

7215. Are they bound to sell these fish to you in the same way as their summer fish?-I think that is understood; but there have been many exceptions that I have known.

7216. Are there more exceptions in the case of this small-boat fishing than of the summer fishing?-I think so.

7217. Have you any note or book here, showing the amount of the transactions with regard to this small-boat fishing?-No. I have offered the men, when they came ashore, to pay them for their haul, and then they could go where they liked with the money; but they said, 'What is the use of doing that?-We want so-and-so from the shop, and we would just have to give the money back again.'

7218. How is it ascertained at the shop what amount the men have to get in goods for their fish? Do you take a note of it at the time?-Yes; and I enter it in the fish book.

7219. And from that note you know how much the man has to receive in goods?-Yes; or how much he has to receive in cash.

7220. But he takes the goods if he chooses to go to the shop at the time?-Yes.

7221. What amount of transactions of that kind may there be in the course of a year?-Last year I think it was only about £56.

7222. Was that the whole value of the fish so purchased?-Yes; but I think in some years since I came there it has been over £100.

7223. It is only the North Roe men you are speaking of now?- Yes.

7224. The Yell men don't deliver their fish to you in that way?- No; not generally.

7225. Then that sum would be paid to about 33 men?-I think there are more than that who engage in the winter fishing. Some of the men who go to the Faroe fishing, and some also who go south, employ their time in winter in that way.

7226. That would make it a very small sum that is paid to the men for their winter fishing?-Yes; it is very small.

7227. So that it rather seems the winter fishing is hardly worth taking into account in your general transactions?-It is not.

7228. Do Messrs. Hay & Co. purchase cattle to any extent for the purpose of selling them?-They have an island, the island of Uyea, where they graze for their own purposes.

7229. Is that in Unst?-No; it is in this parish. I buy the cattle for that island yearly.

7230. Is it simply for grazing purposes there that you buy the cattle?-For no other purpose.

7231. Are they bought at public sales?-Generally they are.

7232. Do these cattle enter the accounts of the fishermen?-Yes, mostly. They pass through their accounts; but I could show cases where they received the cash again immediately.

7233. Are they not settled for at the annual settlement?-Yes; or they get cash for them at any time they want.

7234. Are these cattle often taken from men who are in arrear with their accounts?-No; they are never taken from the people who are in arrears. If a man was in arrears, he might be asked to bring his cow to the public sale if he was to dispose of her; and then we might buy her or not.

7235. There is said to be a system in Shetland of marking the horns of cattle when the merchant or landlord has a debt against a fisherman tenant: can you explain what the practice is with regard to that?-I believe such a practice does exist; but in my own experience I have never set any value upon it at all, and never practised it at North Roe.

7236. What do you understand the practice to be?-I understand that if any one has a claim against a tenant, either proprietor or merchant or any other party, they consider that if their mark or initials or brand is put upon the horns of the animal, it then becomes their property, even in cases where the animal has not been removed from the possession of the original owner. That is how I understand it has been done in my neighbourhood.

7237. Do you understand that it is usual for the creditor to remove the cattle so marked from the premises of the debtor, and to keep them in his byre or yard for some time, and afterwards to return them upon loan, that removal being understood to be the badge of possession or the sign of the transference of the property?-Yes. I did that myself in one case, but it was not a direct case of that kind. The debtor was the owner of the cow, but another party had the cow in his possession; there was an intermediate party in the matter. I bought it from the man, putting a value upon it, and removed it.

7238. Charging the price to his credit in his account with you?- Yes. I removed it to my own byre and kept it there for some time, and then, as I was not wanting it very much, I gave it back to the poor man who had it originally; but the man I gave it back to was not the debtor at all.

7239. In what way was that third party in possession of it?-I don't know. I think he had reared the animal. There is such a system as giving a calf, if you have too many and don't want it, to another man, and he brings it up; and when the calf comes to be sold, one-half of the proceeds belongs to the original owner.

7240. Then you think this beast may have been in the possession of the party on some such footing as [Page 174] that?-I think it is possible it may have been in that way.

7241. If that was so, your debtor would only be the proprietor of one-half of it in reality?-No; there was something peculiar in this case, because the debtor was the sole owner of the beast.

7242. Then that was not such a case as you have mentioned?-No.

7243. May the possessor of the animal have been another creditor of your debtor who had it?-No; he was not.

7244. Is it possible that he may have hired it from your debtor?-I don't think it.

7245. You think he had it simply in loan?-Yes.

7246. When cattle are taken to market in that way by a creditor, do you know, from the general understanding of the country, how the price is fixed?-In many cases I think there is no price fixed at all.

7247. The animal is just taken generally for security of the debt?-Yes, in the meantime, until it is sold, and then the proceeds go to the party who put on the mark.

7248. These sales, I understand, take place at fixed places in each district, and at certain times in the year?-Yes, in May and October.

7249. They are conducted by public auction?-Yes.

7250. At these auctions does the creditor generally appear and bid for the marked cattle?-I don't think it. It would not avail for him to do so.

7251. Why?-Because any other party at the auction could buy them.

7252. But is the bidding perfectly fair?-Perfectly fair on all occasions.

7253. You do not know that any suspicion exists that any one of the public may not bid, or runs any risk of the displeasure of some powerful neighbour by bidding for cattle that are so marked?-No. I would bid in such at case myself, and I have explained to the country people that if the auctioneer refused a bid from anybody, they could have an action against him for refusing it.

7254. You are now speaking of your own practice, but do you not know that such fear of bidding against a merchant-creditor exists in other parts of the country?-I never heard of such thing, and I do not think it does exist.

7255. Have you known merchants buying in cattle so marked at sales?-There is nothing of the kind practised in our quarter, and I have never observed anything of the kind at sales elsewhere.

7256. Are you aware whether many of the fishermen at your station keep accounts at any of the banks?-I know that some of the men in our neighbourhood do have accounts in the banks for I have transacted such business for some of them.

7257. Is it the case that when a man who has a bank account wants a little money, he prefers to apply to the merchant for an advance to account of his next year's fishing, or of the present year's fishing, if it is during the fishing season, rather than to take it from the bank with which he has the account?-I believe it is. This year I sent £11 for a tenant to be lodged in one of the banks in Lerwick, and when I handed him the deposit receipt, he said, 'Perhaps it will not be long before I want some of this again.' I said to him, 'I think you had better not take any of it out, but let it stand in the bank; and if you want to keep you going until next year, you can get it from me rather than disturb your bank account.'

7258. That was a case in which you were on such terms with the fisherman, and had such confidence in him, that you were ready to make him the advance?-Yes.

7259. But do you know whether it is the practice for fishermen who have funds in the bank privately, to exert themselves somewhat in order to get advances from an unwilling merchant, rather than disturb their own bank account?-I have heard of such a case in our own neighbourhood.

7260. But don't you know of any such cases in your own experience?-No.

7261. Do you know whether it is the practice at all?-I don't know that it is the practice.

7262. Do merchants or shopkeepers who are in the fish trade act as bankers to their men to any extent in this part of the country?- I cannot speak to anything of that kind being done of my own knowledge.

7263. Do none of the fishermen keep money lying in your hands: do they not leave it with you at the settlement?-Very seldom.

7264. Are you an agent for the Shipwrecked Mariners' Society?- No; Hay & Co. are agents in Lerwick for that society, and I send to them for any tickets want.

7265. Do the annual subscriptions enter the accounts of your fishermen at North Roe?-Yes.

7266. When payments are to be made to the men on account of the society, how are these made?-I have never had a case of the kind. There has been only one case where a fisherman had to get money, and he went down to Hay & Co. at Lerwick, and got it himself direct.

7267. Would there be any difficulty, in consequence of the want of banks in the district, in introducing a cash system of payments in a parish like this: I mean the system of paying in cash for fish at more frequent periods, and paying in cash for shop purchases, and also paying in cash for hosiery?-There would certainly a great disadvantage in doing so, in consequence of the want of a bank in our neighbourhood, because there was a cash system of payments, we would have to get larger sums of money from the bank; and to fetch money from the bank, in order to make those payments, would be rather a risky thing, seeing that we must either convey it by special messenger from Lerwick, or by the steamer.

7268. I suppose, however, that if a cash system were common in the country, a branch bank would probably be established at some convenient place?-I don't know about that; I think that, having three banks already in Lerwick, they would hardly be likely to send a bank farther north this way. I don't think the business would pay them to do so.

7269. Are you a member of the parochial board the parish?-I am.

7270. Are you aware whether many persons who are members of the families of fishermen-tenants or crofter-fishermen are supported by the board?-I know several cases of that kind.

7271. Are these persons members of the families of fishermen who have considerable incomes from fishing and from land?-I don't think so. I think that in cases where their children are able to support them they are bound to do so.

7272. But is there an inclination among the people here to get support from the poor's roll to a greater extent than existed some years ago?-I think that feeling is on the increase in the parish, and I think the present poor law tends to increase the feeling.

7273. Do you know what is the usual allowance given to paupers in this parish?-As far as I can recollect, I think it ranges from 1s. 6d. to 15s. a month.

Hillswick, Northmavine, January 12, 1872, MORGAN LAURENSON, examined.

7274. You are a merchant at Lochend?-I am.

7275. Do you deal both in drapery goods and provisions?-Yes; but principally in drapery.

7276. Do you employ any fishermen?-A few; but I only engage in that trade to a small extent.

7277. How many boats do you send out to summer fishing?-I had three boats last year, two large and one small.

7278. Are you a landholder or tacksman?-No.

7279. You engage any fishermen in the neighbourhood who are willing to make a contract with you?-Yes.

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7280. You have no men who are bound to fish for you?-None.

7281. Do you run accounts with the men in the way which has been described by the previous witness and settle with them yearly?-Yes.

7282. Do you find that the balances are generally in the fishermen's favour, or against them?-For the last two years they have generally been in their favour. In former years they were not generally so; they were often against them.

7283. Do fishermen continue for any length of time to fish for you without changing, or do you find that you have different fishermen in your employment in

different years?-I have not been very long in the business, only since 1865. I am a new tenant comparatively; but for the past five years, ever since I commenced to have a boat, I have not had many changes.

7284. You must have had fifteen or sixteen fishermen in your employment during that time?-Yes.

7285. Have they generally been the same men throughout?-Yes. Perhaps a man in each boat has gone away to another fish-curer; but generally they have been the same.

7286. Do you think the fact of a man having an account in your books is generally an inducement to him to continue in your employment for the next year?-I could not say that it is so in all cases.

7287. But in some cases it may have that effect?-Yes; in a few cases.

7288. Does a fisherman get accommodation from you, in the shape of supplies of goods more readily if he fishes for you, and agrees to continue to fish, than if he were not in your employment?-Yes.

7289. Are the fishermen generally in a condition to require that accommodation?-Most of them are.

7290. A man may not require it every year, but in the course of half-a-dozen years he is pretty likely, as a general rule, to be in want of some accommodation of that sort?-Yes; that is the case with most of them.

7291. Do you deal in hosiery to a considerable extent?-Yes.

7292. Do you buy it, or do you give out wool to knitters?-I buy it chiefly. We give out wool to those who have not got wool of their own; but many of our knitters, I may say the greater number of them, have their own wool.

7293. The knitting in this district, I understand, is more of the coarser kinds of worsted?-Yes; the finer underclothing is made here, not fancy goods. At least, fancy goods are made only to a very small extent.

7294. But both in the case of knitters employed by you and of people who sell you their goods manufactured with their own wool, is the payment made at your counter in goods or in cash?- Invariably in goods.

7295. Are you often asked to give a portion of the price in cash?- No; very seldom.

7296. Do the knitters run accounts with you?-Yes.

7297. And these are squared up every now and then in your books? -Yes. As a rule, we never run long accounts. The accounts are squared up at short intervals, and the women get a bill at the counter if there is a balance in their favour. They get a note of their purchases in their hands; and my usual mode is, to enter the balance in a bill, which they hold until they return with some other stuff and pay it. I find it is the best plan to keep the accounts short.

7298. At settlement do they get a note?-They get a receipt for the amount paid, and if they have a balance to receive, that is paid in goods over the counter.

7299. If they don't want the goods at the time, how is that arranged?-It is very rarely that they don't take the full value; but if they do not, what remains over is left as a balance, and it is usually carried into a new account. Sometimes they want it on a line, stating that the balance amounts to so much, and that I shall pay it.

7300. Is that line given in the form of an I O U, or of a bill?-I have given it in the form of an I O U, but very rarely. I generally put the name of the party on the line, because in some cases they have lost the lines, and then come back to me, when it was not entered in the book, and asked the value of them. I did not wish to allow them to suffer for that; but as I was afraid that another party might get the line and bring it in, I always put the name on it. 7301. You put the name on it in order to prevent the value of it from being demanded by any person except the one to whom it was granted at first?-Yes. I generally enter the lines in a book now, so that I may be kept safe.

7302. Have you a list of the lines which you issue?-For some time past, I have entered them in a book when they were given out.

7303. But you have no separate register for such lines?-No.

7304. Is there any reason why cash is not asked in these transactions for hosiery?-It is understood that we are not prepared generally to give any cash; but in the case of a regular knitter who wanted some part of her payment in cash, I have never refused, so far as I recollect, to give her what she asked. However, it was usually a comparatively small sum that was asked in that way.

7305. Do you sometimes buy articles all for cash, making special bargains for them?-Occasionally, if it is anything special.

7306. In that case, is a lower price given in cash than would have been given in goods?-Yes, because in ordinary transactions I have a profit only on the goods sold. I may state, however, that the women are unwilling to take cash. I remember that on one occasion, when I was changing from one place of business to another, I had no goods, and I offered the knitters cash for their hosiery, at such a price as would give me a reasonable profit, but they objected to take it. For instance, in the case of gentlemen's undershirts, the usual price given may be from 4s. to 4s. 6d. I have offered to give them in the one case 3s. 8d., and in the other 4s. in cash, but they have invariably refused. They would rather leave it, and get such goods as they wanted, than take a lower price in cash, and that has got to be the rule. They are very fond of getting the highest nominal value; and I can show from my books that, as a rule, I give the full price for each article which we charge in selling them, and have only a profit on the goods we give in exchange.

7307. Do you sell your goods south?-Yes.

7308. Are you prepared to show that just now?-Yes. [Produces book.] This [showing] is the sales book, containing copies of the invoices.

7309. The women in their accounts are charged with the wool as got by them?-Yes.

7310. Are they credited again with the knitted goods as got by you?-Yes.

7311. Therefore, in that way the wool is really given out by you to them, to be knitted as by persons in your employment?-No, they are not employed by me, but I expect the women to bring back the goods to me, as we don't sell wool, because it is rather difficult to get. With regard to the prices, I show here an entry in a copy invoice, under date Sept. 14, 1871 of half a dozen girls' polkas at 15s., 7s. 6d., and I also show an entry in my women's ledger of 'by one doz. girls' polkas, 14s. 4d.,' on January 27, 1870.

7312. Was there any material difference in the price of polkas within that period of 18 months?-No. I also show an entry under date February 18, 1870, of 1/3 doz. girls' polkas at 15s., 5s. In addition to the price entered in the women's ledger, there is the price of re-dressing, which is about 6d. a dozen, and there are boxes required in which to send them away, for which we do not get any return.

7313. Do you swear that these girls' polkas are a fair sample of the other articles in which you deal, with regard to the expense of production to you and the invoice price to your customer in the south?-Yes. I may state that we have a very strong desire to give encouragement to good knitters, by giving them the highest prices.

7314. Can you mention any case in which you have [Page 176] sold hosiery at a profit?-No, except in small orders, or retail orders from private parties. In such cases, I consider it fair to charge a small profit on the goods, in order to protect my other customers who buy largely from me. That is the only case in which there is any profit.

7315. Do you purchase worsted to any great extent?-Not worsted, but wool,-the raw material from the farmers in the district.

7316. Is that spun and made up by persons employed by you?- Yes. I do that for the purpose of finding employment for women who have no way of their own to earn a livelihood.

7317. Do you use that wool for your own trade, or do you sell it as worsted to merchants elsewhere?-We cannot get enough of it. It is entirely for our own trade that it is made up, with very rare exceptions.

7318. Do you make up all qualities of it, or is it simply the coarser kind of wool required for the underclothing department?-The softest wool is made up for underclothing, and the coarser is made into tweeds.

7319. But you do not make any of the finer kinds of worsted for fancy work?-Nothing, except to a very trifling extent. Our knitters don't knit that kind of work.

7320. What is the rate of payment for spinning?-The girls to whom I sell it, card, spin, and knit it usually.

7321. Then the entry you showed me was an entry of wools?- Yes. They would be to sell the worsted once they had spun it, but they can turn it to more account by

knitting.

7322. There is nobody in your employment merely for spinning?- I cannot say there is. Occasionally we get a woman to spin for us; but they don't like to do that, as it is not profitable.

7323. The way in which you deal with these spinners and knitters is, that you generally sell the wool to them?-Yes.

7324. And they bring it, and sell it back to you when made into articles of hosiery?-Yes.

7325. Is that the invariable practice?-Yes; some of them have offered to take the wool, and make it 'halvers.' The practice among the people themselves is, that a party who has wool gives it to a neighbour who has none; she knits two pieces of goods, one of which belongs to the owner of the wool, and the other is kept by the knitter for her trouble. I objected to that system, because I did not think it encouraged them to make the most of their material, and they did not, perhaps, give fair attention to the improvement the knitting. If they buy 4s. worth of wool, and if girl knits well, she may turn 10s. or 12s. out of that; in some cases more; so that there is more encouragement to them by knitting the wool themselves, than by selling it.

7326. I suppose you sometimes buy articles which have been made by knitters with their own wool, spun by themselves, and which has not originally been purchased from you?-Yes; a great many of the articles of hosiery are purchased by us in that way.

7327. On whose property is your shop?-On the Busta estate.

7328. How long have you held your shop there?-Since 1864,- seven years.

7329. Was there a shop in existence at Lochend before you opened yours?-There had been a shop there for a long time.

7330. In the same premises?-Yes; but it has been considerably enlarged.

7331. Where were you before?-At Ollaberry. I had the business place there now occupied by Mr. Anderson's firm.

7332. You left that when they took it into their own hands?-Yes.

7333. Had you any difficulty in getting a shop in which to carry on your business in this district cannot say that I had. I was offered this place by the Busta trustees. It was in a state of dilapidation when I took it, and they offered it to me on condition that I would make the necessary repairs on it for myself.

7334. Was any difficulty stated about giving you the shop on account of interfering with the business of the other merchants in the district?-No.

7335. Do you sometimes buy fish from the fishermen who are employed by Messrs. Anderson & Co. or by Messrs. Hay & Co.; I mean odd hauls now and then?-I cannot say that I buy any from Messrs. Hay Co.'s fishermen, because they would hardly sell to me on account of the inconvenience.

7336. But are you aware whether the practice exists of the fishermen employed by you selling occasionally to the factors of other merchants, and the fishermen of other merchants selling occasionally to you or your factors?-I think that practice exists only to it very small extent.

7337. But you have detected that practice to certain extent?-I cannot say that I have; there have been very few fish bought from such men.

7338. Was that done because the men did not get cash advances from the parties for when they fished regularly?-I don't think it was. I think it was merely done from a notion on the part of the men.

7339. Did they get merely the same price which they would have got from their own employer?-I think they got the same price in all cases.

7340. Then why should they not deliver their fish as usual in the ordinary way?-I cannot say. They perhaps think it is a privilege to sell to any one who will buy from them-although that is not the rule. It is understood that they are not at liberty, as a rule, to do so, but yet they do it, although it has been very rarely in my experience.

7341. When they sell their fish in that way, are these transactions for ready money?-Not always. They may sell them in order to pay some goods which they have got before. If they were selling them to me, they might bring them in order to pay some account which they had at my shop.

7342. Are there many fishermen dealing at your shop on credit who fish to other merchants?-Occasionally there are a few.

7343. You have accounts with them?-Yes; with a few.

7344. Are these accounts settled annually, at the ordinary settling time, as a rule; or is there any rule, about the period for settlement?-There is a rule that they shall settle annually after the settlement with their own curers, and at that time they usually bring part of the cash which has been paid to them.

7345. Do you sometimes find that these accounts are not settled at that time?-Sometimes I do.

7346. Are you a loser to any extent by the failure of the fishermen to settle accounts of that kind?-I consider that I am, in some cases.

7347. But these debts sometimes run over a period of years?-In cases where the parties are poor they do.

7348. Have there been offers made to you by fishermen who are in these circumstances, and who are in your debt, to settle their accounts by engaging to fish for you during the fishing season?- No; I cannot say that there have been any offers made to me of that sort.

7349. You have not taken on a fisherman who was in your debt in that way?-No.

7350. Do you not know of any case in which you have taken on a man who was in your debt, simply with the view of allowing him to pay it off?-With the fishermen on

the Busta estate I have done so.

7351. Were these men who had incurred a debt to you while they were fishing for another merchant?-In one instance that was the case; but I find, as a rule, that a party who is in debt is not one who is likely to be ready to offer his services. The fact that he is in debt is no inducement to make him fish for you, but rather the contrary.

7352. Do you think that, as a rule, he will continue to fish for his former employer?-Yes.

7353. But the fact probably is, that if he is in debt to you in that way, he is also in debt to [Page 177] his own employer?-I believe that is generally the case.

7354. Have you known any case of a fisherman changing his employer because he was so deeply in debt to him, that that employer would not advance him any more goods?-I have in my own transactions had to refuse advances to a fisherman, because I knew he was getting into debt deeper than he could pay. I refused to advance him any longer, and left him at liberty to do the best he could for himself.

7355. Did he leave you at the end of the season?-Yes.

7356. And at the beginning of it new season, did he go to another employer?-Yes.

7357. In that case how have you secured your debt?-I gave him perhaps a year, and then I had to press him for the amount.

7358. Did you take him to court?-Yes; I took him to court, because he refused to pay what I believed he was able to pay.

7359. Have you ever in such a case succeeded in getting any part of your debt settled by his new employer?-Yes.

7360. How was that done? Did you, at the beginning of the fishing season, get the new employer to make an advance to the fisherman to account of your debt?-In the case I am referring to, the employer at the end of the fishing season made a payment to me, as an instalment on the debt.

7361. Was that done by arrangement with the fisherman?-Yes; the fisherman went to his new employer and got his line or security for a part, indeed for the whole amount, to be paid in three instalments, in three years, because I thought it better to part with the man when he was getting too deeply into debt, and perhaps the change in going to another employer would lead him to better himself.

7362. Was he likely to better himself in such circumstances?-It chanced that he got into a good fishing boat, and he did better himself.

7363. But that was just a chance, was it not?-Yes, I should think so.

7364. Was it the man who wished to go to another employer when his supplies were stopped by you, or was it you who wished him to change?-He could not do without advances, and he would not give me security to cover my risk in giving him any.

7365. But the new employer, in employing the fisherman, took exactly the same risk which you refused, and I suppose gave him supplies?-Not to the same extent. It was only after the man had been at sea at one season at the fishing for his new employer, and had earned a fair earning, that he paid me one-third of his account, and became good for the balance to be paid at the end of the next two seasons.

7366. Did that merchant become good for the whole balance of your account?-I don't know whether it was legally or formally gone into, but it was understood he would see that the man paid me.

7367. Was that a single case, or has it occurred oftener with you?-That has been the only case in my experience.

7368. Who was the merchant?-Mr. Greig, the manager for Messrs. Hay & Co.

7369. Are you aware whether that case is of ordinary occurrence in transactions between fish-curers, when fisherman leaves the employment of one and goes to that of another?-I think it has been an understood thing among them; at least some time ago, when I was more in connection with the larger concerns of Hillswick and Ollaberry, it was understood that when a fisherman ran away from his responsibility, after getting into debt, his new employer, if he was taken up by another curer in the district, would be morally liable to pay the balance for the man, if it was reasonable. I don't know whether that is the practice now or not.

7870. Was there just a general understanding that the new employer should make some kind of arrangement about it, the particulars being settled in each case, or was there a rule that he should become responsible for the whole debt, or for a specific proportion of the debt?-I think it was understood that it would be fair for the new employer to become accountable for the whole debt, if it was reasonable, or for such a proportion of it as he would undertake to pay for the man.

7871. Were you in the employment of Mr. Anderson at Hillswick?-I was a partner in the business at Ollaberry. I was in the employment of Mr. Gideon Anderson for years before, and then I was manager at Ollaberry, until I went to Lochend.

7372. Before you left Ollaberry you had not been in business for yourself, but you were merely manager for Anderson or Anderson & Co.?-The firm was Anderson Brothers & Laurenson, and I was a member of that firm.

7373. Before you left the firm, did that understanding which you have described exist among the fishing curers in this neighbourhood?-Yes.

7374. In your experience, was it generally acted upon?-I think it was. I may mention that I did not have to do with the fishermen in the summer season, while I managed the business at Ollaberry for seven years. I had only to do with the winter fishing. In the summer they fished for Hillswick, and I had nothing further than ordinary transactions with the fishermen then. It was chiefly the hosiery trade and the winter fishing that I knew about.

7375. But you were, to some extent, acquainted with the transactions which took place in the summer fishing?-Yes.

7376. And in describing this understanding, you are speaking from your general knowledge of the system pursued?-Yes.

7377. With what merchants, in this part of Shetland, did that understanding exist, and was acted upon? Did it extend to Messrs. Hay at North Roe; you have mentioned an instance in which it was acted upon with them?-That was in my own experience since.

7378. But did the understanding extend to them at that time?- Messrs. Hay & Co. had not a station there then: it was another firm.

7379. To whom did that understanding extend?-To Messrs. Adie, Mr. Inkster at Brae and to the firm of Anderson at Hillswick.

7380. Did it extend to the Mossbank people?-I cannot say. The fishermen were not very likely to remove from here to Mossbank, or from Mossbank to here.

7381. Did it extend to fishing stations in Yell?-I don't think so.

7382. Or further south to Reawick?-Not to my knowledge.

7383. The fishermen, you think, do not move about so far as that?-No. Perhaps I may be allowed to say with regard to the special case of a fisherman that I mentioned, that there was no previous arrangement between Mr. Greig and me about a general collection of debts from the men. I was merely pressing the debtor for payment, and Mr. Greig came forward as a friend.

7384. Do you mean that the understanding or practice which you have referred to does not exist so far as the Messrs. Hay are concerned?-There is no such understanding betwixt me and Messrs. Hay.

7385. And you have said that you did not refer to them when you spoke of the practice existing at a former time, when you were in a different firm?-No; I do not include them. With regard to another previous statement I wish also to say, that so far from wishing my customers to get into debt, I have had a notice signed to the effect that I would not give credit to knitters beyond four months, and then I reduced it to two months. That shows that it is against our interest, instead of being for our interest, to let them get into debt.

Hillswick, Northmavine, January 12, 1872, ANDREW RATTER, examined.

7386. You are a fisherman at North Roe?-I am.

7387. Are you a tenant of Messrs. Hay there?-Yes.

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7388. What balance was paid to you last year at settlement?-£5, 15s.

7389. Is that about the ordinary sum you have to get in a fair season?-Yes.

7390. How much was your account for furnishings for your family?-Between £3 and £4.

7391. Is that about an ordinary thing too?-I think some of the men take more than that.

7392. Do you generally deal at Messrs. Hay's shop at North Roe for all the things you want in the way of provisions and clothing?-Yes.

7393. Do you deal anywhere else?-Very little.

7394. Where else: at Lochend?-No; I don't deal at Lochend.

7395. Do you deal any at Lerwick?-No; I don't deal anywhere to any great extent except at North Roe.

7396. Is it usual for the men there to deal chiefly with Messrs. Hay?-Yes; so far as I know.

7397. Is there no other shop convenient for them?-Not very convenient.

7398. Are the articles you get very satisfactory in quality?-Yes; I have always found them so.

7399. What do you pay for your tea?-From 8d. to 10d. a quarter.

7400. What do you pay for your meal just now?-It varies in price, according to the seasons. I could not exactly say what the meal is just now, because I am not buying any at present. The last I bought was in the summer, when I went to the fishing, and I think paid 5s. 4d. per lispund of 32 lbs. for it.

7401. Is it by lispund weight you generally buy it?-It is sometimes by lispund weight, and sometimes by boll weight.

7402. What is the price of a boll?-22s.

7403. Have you ever fished for other fish-curers than Messrs. Hay & Co.?-Yes; I fished for the late James Peterson at North Roe. That was before Messrs. Hay got the shop there.

7404. Since Messrs. Hay have had a place there, have you ever fished for any other merchants?-No.

7405. Have you ever sold your fish to other curers?-No.

7406. Not your small fish?-No.

7407. Have you never sold a single fish to anybody except Messrs. Hay & Co.?-I recollect selling perhaps a cwt. or two through the winter to Mr. Inkster at North Roe.

7408. Were you paid in cash for them?-Yes.

7409. Did Mr. Greig find any fault with you for doing so?-No.

7410. Did he know of it?-Yes; I made no secret of it. I did it openly.

7411. Is it understood that you are at liberty to sell your fish in winter to anybody you like?-No.

7412. But you sometimes take the liberty of doing it?-Yes.

7413. Why did you prefer to sell your fish at that time to Mr. Inkster rather than to Mr. Greig?-I had perhaps a small account with Inkster at the time and he preferred the fish rather than cash.

7414. Does he cure fish himself?-Yes; a little.

7415. Do you go to the Faroe fishing?-No.

7416. Do you pay your rent to Messrs. Hay & Co.?-Yes.

7417. Is it settled along with your account with them?-Yes.

Hillswick, Northmavine, January 12, 1872, JANE HALCROW, examined.

7418. You live with your mother near Hillswick?-I do.

7419. Is she a widow?-Yes.

7420. Has your mother a piece of land?-Yes.

7421. How do you work it: do you manage it for her?-No.

7422. Do you get a man to work it for you?-No, we work it ourselves.

7423. Do you live with your mother alone, or is there anybody else in the house?-There is a servant.

7424. Is your land on the Busta estate?-Yes.

7425. Do you do a good deal in knitting?-Not a great deal, but I do some.

7426. Where do you sell it?-At different shops; generally at Hillswick, and sometimes I sell it in Lerwick, and sometimes at Ollaberry.

7427. What makes you go to Lerwick and Ollaberry with your work?-I cannot say.

7428. Do you just go there when you want to go?-Yes.

7429. Do you get a better price there for your knitting than you do at Hillswick?-No; it is just about the same.

7430. How are you paid for it?-Generally in goods.

7431. Do you sometimes get a little money?-It is not much money that I get, but I get stamps when I ask them.

7432. What do you knit?-Principally ladies' slips or spencers.

7433. What is the price of them?-From 1s. 6d. to 1s. 8d.: perhaps we may get as much as 2s. when they are good.

7434. That is the price of them in goods?-Yes.

7435. Did you ever sell any of them for all money?-No.

7436. Why?-I never asked it.

7437. Would you rather have had money?-Yes; sometimes.

7438. Then why did you not ask it?-Because I was generally needing the goods.

7439. But you said you would sometimes rather have had the money: why did you not ask it then? Was it because the practice is not to give money for hosiery?-I suppose it was.

7440. Did you not ask it because you would not get it?-I knew that if I had asked it I might have got a little.

7441. Would you prefer to get some money for your hosiery whenever you take it to sell?-Yes.

7442. Do you think you would get less money for it than you get in goods?-I don't know.

7443. Who do you sell it to in Lerwick?-Mr. Sinclair.

7444. Do you keep an account with him?-No.

7445. Do you keep an account at any of the shops?-Yes; I sometimes keep an account at Hillswick with Mr. Anderson.

7446. How often do you settle it?-Sometimes at the end of the year, and sometimes oftener.

7447. Is there anything entered in that account as having been sold by you except hosiery?-No.

7448. Are there no eggs?-No; we sell eggs, but they are never put into our account; they are just paid for at the time.

7449. Do you get money for them?-Yes; if it is asked.

7450. Do you often ask for money?-Not very often.

7451. Why do you not ask for it?-Because we are commonly taking tea.

7452. Do you want the tea?-Yes.

7453. How many eggs would you sell in a month in summer? Three or four dozen?-We might.

7454. What do you get for the dozen?-6d.

7455. Do you always take the price of it in tea?-Not always, but generally.

7456. Do you ever sell them anywhere else except Hillswick?- No.

7457. Are the goods which you get in payment for your hosiery put on the other side of your account, in order to settle it?-Yes; when the hosiery is not paid up.

7458. Do you sometimes get your hosiery paid up at the time?- Yes, generally.

7459. But you said you had an account: is that account for goods supplied to your family?-No; it is sometimes for cotton.

7460. Is that for your own dress?-Yes.

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7461. Is your hosiery always paid for in dresses and clothing for yourself?-Generally.

7462. Do you pay your account altogether in hosiery?-Yes.

7463. You never pay money for what you want?-No.

7464. Do you deal for cotton and dresses anywhere else than at Hillswick?-No.

7465. Do you got these things as good and as cheap there as you could get them elsewhere?-I suppose I do.

7466. Have you never tried them elsewhere?-Yes; I have got them in Lerwick from Mr Sinclair.

7467. Were the goods you got there of the same quality, or were they better or worse than at Mr. Anderson's?-They were just about the same, I suppose.

Hillswick, Northmavine, January 12, 1872, Rev. JAMES R. SUTHERLAND, examined.

7468. You are the minister of the parish of Northmaven?-I am.

7469. How long have you been so?-Since November 1848.

7470. You are, I presume, intimately acquainted with the condition of the people in your parish?-Perfectly so-as much as any minister can be.

7471. And you know the system which prevails, and which has been described in the evidence yesterday and to-day, with regard to the payment for fish in account with the fish-curer, and also with regard to hosiery?-Yes; I am acquainted with that generally.

7472. You have not been cited to attend here to-day?-No.

7473. But I understand you are willing and desirous to make some statement with regard to the effects of that system upon the habits of the people?-I am perfectly willing.

7474. Do you think the system of long payments which exists here is a wholesome one as regards the habits of the fishermen?-I think it is most ruinous. I think I have had very good opportunities of judging of the effect of the system upon the people, being intimately acquainted with them, and having received the statements in private of a great many of them; and I cannot conceive any system which could be more ruinous in a moral point of view, apart altogether from its effect upon them in a pecuniary way. In my opinion, the independence of the people is wholly destroyed. There is scarcely a man I know, with very few exceptions, who is not in terror, and terror that I could scarcely describe, of the merchant to whom he is indebted, and I believe that three-fourths of the whole of my parishioners are in debt to some merchant or other, and thoroughly under their control.

7475. What is your ground for saying that so many your own parishioners are in debt?-I know it from their own lips.

7476. Do you speak of the present time?-Yes, of the present time. There are a few exceptions to that, some of which I could point out, but not many.

7477. Do you consider that the state of indebtedness is greater at the present time, or less, than it has been generally throughout your experience in the parish?-I don't see any improvement in that respect, taking the whole population. There might be one here and one there who have got free of debt this year, because it has been an exceptionally good year in cattle; but, taking them as the same state of serfdom as they were twenty-three years ago, when I came here.

7478. Your ground for that statement, I understand, is the information you have received from the people themselves?-Yes.

7479. Do you think the people generally who make these statements to you are to be relied upon?-Generally, I think so, because I am exceedingly well acquainted with many of their circumstances, and I know those who are comparatively independent. I speak only of that independence which we might expect from such it population. There are many of them who are in a position which we would call pretty comfortable. I know that from having the management of their affairs privately; but I don't believe that, for the last fifteen or twenty years, the people who are in such circumstances have increased in number, or have increased the amount of the savings which are at their credit in places that I know.

7480. That statement you have now made refers to the better-off class among them?-Yes; to the better-off class, but they are very few compared with the rest.

7481. You think those who are not so well off may be two-thirds or three-fourths of your parishioners?-I may say that there are three-fourths of them who are not in these comfortable circumstances.

7482. With regard to the larger portion of your parishioners who are indebted, your information is derived from their own statements, and you say that you think generally these statements are reliable?-Perfectly so; at least as much so as such statements can be expected to be; but I have my information from other sources than the people themselves. I have it from those who are above them in station, and who know their circumstances as well as I know them myself.

7483. I suppose a man comes to you as a clergyman, and as one who is likely to sympathize with him when he is in difficulty about his affairs?-Yes.

7484. Has that often happened in your experience?-Yes; and in such cases this is what I do-Generally there are two or three elders in the parish, who are very respectable and very independent, and I privately consult these men as to whether the statements which have been made to me by the people are true. I have found that I have been oftener deceived in thinking that a man had something saved, when he had nothing, than the other way.

7485. It was stated, I think, in the evidence previously given, that many Shetland people are pretty well off, and have accounts in the bank, although they don't look as if they were worth anything, and pretend that they have nothing, being afraid to let it be known that they have money; and a story has been told of a man begging hard to

borrow money with which to buy a cow, and going to his minister for the money: are you acquainted with that story?-I am acquainted with the story. I believe it has been attributed to me; it did not happen with me, but the minister with whom it happened told me about it in his own house. I was there when the thing took place.

7486. Does that story not lead to a suspicion that the complaints which are often made to you, and which you say are the grounds upon which you have arrived at the conclusion you have stated as to the circumstances of a large proportion of your parishioners, may be somewhat exaggerated by the parties?-No. That case occurred in a parish containing between 900 and 1000 people, and it was only a single case out of that population. It was the only case which the parish minister, who is still alive, was able to tell me had ever happened to him. One case out of nearly 1000 people is not many, but I do know cases something like that. I know people who have some pounds laid by in certain places, and they come to me by stealth to get me to transact business on their account with regard to these small sums. And why do they do that by stealth? It is for fear of the merchant and for fear of the laird.

7487. Why is a man who has a little money by him afraid of the merchant and of the laird?-That is just one of the evils of this truck system, and this system of not dealing in ready money on all occasions. I don't speak in favour of the population generally, more than I would do in favour of the merchant, or of the heritor, were it not for the truth. That is one of the consequences of the system, and to that extent I think it is very demoralizing.

7488. You think it is demoralizing that the system [Page 180] should lead a man to conceal the amount of his means in the way you have related?-Yes; and it leads to more than that.

7489. Do you think that arises from the system of payment in goods, and the system of running accounts?-Exactly.

7490. How is it the result of that system?-My opinion is, that with the merchant and such men, it is a case of diamond cut diamond. The fisherman who has an account with the merchant imagines that the merchant is taking an undue profit, and that it is from him, and therefore he sets himself to do everything he can against the merchant. I don't approve of the way in which the men act in order to counteract the merchant; but that is an effect of the system, because the man believes that the merchant is taking too large profit from him, and using him otherwise not in proper way.

7491. Is it a general impression among the people with whom you come in contact, that the merchant has too large profits?-I will give you an illustration, and that will serve for the whole. There was a gentleman examined to-day to whose evidence I listened with great pleasure, Mr. Morgan Laurenson. I do not mean that what I am now to state should tell against him, but it is rather in his favour; at least so far as I am to use it. At the time he left Ollaberry, there were very considerable sums of money due to him, certainly much more than I would have entrusted to a population such as the general Shetland population. He had to leave rather more suddenly than he expected, and he had not time to collect his debts. A man from Ollaberry came

over to me, and I said, 'Are you sorry that Mr. Laurenson is going away from you?'-He said no. I asked if it was true that the people about Ollaberry were due him several hundreds of pounds?-He said, 'No; not we. He has had plenty out of us, he has had his profits which might make up for all that.' I said, ' Then you are not sorry?' and he said, 'I am not sorry for it at all.' That is just a consequence of that sort of dealing.

7492. Was that man a type of the ordinary Shetlander?-Yes. What he said to me was an instance of what results from this mode of proceeding, and I give it as an illustration.

7493. Was he not an unusual kind of man who said that?-No; his opinions are those which are privately held by nine-tenths of the whole population of Shetland.

7494. Do they tell you so?-Yes, they tell me so, and I know their sentiments quite well upon the subject.

7495. But Mr. Laurenson was only a partner of the firm, and the whole of these debts would not be due to him individually?-I understood he had certain debts that were due to himself, such as for hosiery; at any rate it was in his name that the thing was stated.

7496. You think therefore that the system leads to species of suspicion and a tendency to deceive?-Yes, and if you will allow me, I will give you another illustration. There was a poor sailor lad who died it few years ago, and a sum of about £5 or £6 was sent through by the Board of Trade as having belonged to him. The Board of Trade, for reasons which they are not ashamed to own, take very good care about the payments that they shall be made generally through the minister of the parish. This poor lad had left a widowed father at home in this parish with a number of children exceedingly helpless. I am not sure but that the father was on the Parochial Board; if he was not, I think he ought to have been, but I think he was. When the news came that his boy had been drowned, the man came to me a distance of eight miles to consult me, and he was very anxious about the way in which he was to get the money through the Board of Trade. His great care was that the merchant should not know anything about it, and for that purpose he came to me in the dark. He had a little boy, perhaps ten or twelve years old, whom he sent over after the arrival of every post, but always in the dark. The boy had come so far, that I asked him where he had come from. He told me where he lived, so many miles distant, but he said he had been told not to come until it was dark. I asked him why. He said, 'Because they would know of it in the shop.' At last the man came over himself in order to sign the documents, and he told me that the merchant had already been at him to give him the money. Now a system which produces such a mode of cheating one another must be immoral.

7497. But I suppose the merchant was entitled to be paid for his debt?-I'm only giving that as an illustration showing how destructive the system is to the morality of the common people, and I have only brought in the merchant because I could not give the illustration without mentioning him.

7498. But you are speaking rather against the people at present than against the merchant?-I am to tell the truth whatever will be its effects.

7499. Did you advise the man not to pay the merchant?-I had nothing to do with advising him. I gave him no advice whatever; it was not part of my duty. I was merely employed by the Board of Trade to hand over the money to him, and I did no more in the way of advising him what to do with it than the Board of Trade would have done. If he had asked me whether he should pay his debts, I would have told him that every man should pay his debts.

7500. But did you advise him not to pay the merchant?-I did no such thing.

7501. You left him to do as he liked with regard to that?- Distinctly.

7502. Did you know anything about the nature of the account which the merchant had against him?-Nothing whatever.

7503. Did you know that the account was due by him to the merchant?-He told me he was afraid of the merchant which led me to conclude at once that he had an account with him, but I knew nothing more about it than that.

7504. You only inferred that he might have an account, and you did not inquire further?-Quite so.

7505. Are you quite sure about that?-Perfectly sure. I knew nothing about the nature of the account, or the amount of the account, or what it was for, or anything about it.

7506. How long is it since that case happened?-It may have been three or four years ago, I cannot be sure of the time.

7507. Do you say that in that case the account was paid?-I don't know anything about that. The man only told me afterwards that the merchant made him give it up. I knew nothing further about it than that.

7508. You heard the evidence or the witnesses who were examined yesterday?-I did.

7509. Do you think that, generally speaking, they gave a correct description of their circumstances, and of the system on which they carry on their dealings?-My opinion is that generally they did not. From their private statements to me, it was my opinion-I only hold it as an opinion-that they, under terror and under influence, did not give the statements here which they ought to have given, and which they had given to me in private.

7510. That is only an opinion which you have formed from your experience of the statements of the people generally?-Yes; and from conversations which I have had with these witnesses.

7511. One of the witnesses, Mrs. Hughson, was examined with regard to statements made by her on a different occasion, and which were rather different from the statements she made here: did she make any different statement to you at any time from what she made here yesterday?-Unless compelled, I would decline to say anything that would criminate myself or her; but give it as my opinion generally that the witnesses, without naming any of them, gave a statement which I won't call

untruthful, but which I say was not at statement in accordance with what my convictions are that they should have given, and I know the reason why.

7512. We don't in courts of law take a general [Page 181] statement of that kind in contradiction of the veracity of witnesses. It is only a matter of opinion; and although in this inquiry the legal rules of evidence have not been so very strictly observed as in courts of law, yet I think it is right to ask you whether on any occasion Mrs. Hughson made a different statement to you than that she made here?-With all respect to you and the office you hold, I must decline to answer that question, because I consider it is a question that might lead to consequences that I am not at all disposed for the general good to be subjected to. You asked me the question whether I approved generally of the evidence, and I said no, I did not, but I declined to particularise any individual person. But I will give you an illustration of the terror that is over the people, and I won't say that that woman is not included among those that are under that influence. I put a question to one man concerning a very important matter in relation to what I am to state to-day, and when I asked him to answer that question, the woman of the house, a married woman, seized me by the arms and exclaimed, 'Will that give offence to the merchant?-If it gives offence to the merchant, then we won't open our mouths.' That occurred only within the last ten days, and the same dread and terror are over the whole community around Hillswick with very few exceptions.

7513. What induces you to think that?-It is because they are all in debt to the shop, less or more.

7514. If you were told that these men were not in debt, or that the majority of them were not in debt, which may perhaps be proved in this inquiry before it is finished, to what would you attribute that terror then?-I cannot be told that; it cannot be proved against the facts that I know with regard to the people.

7515. I am not saying anything about the facts, but I am merely supposing the case that it is proved that the majority of the people are not so much in debt as you say: how then would you account for that terror?-I would say that if they were not very much in debt, then that feeling would not exist. There would then be a very different feeling among the people.

7516. May it be the case that that feeling arises from the certainty in the minds of these people that in the future they may yet require to run into debt to the merchant as they have done in the past?-There is no doubt that to a certain extent that feeling would operate, and they know, or at least they fear, and they have stated so to me that the moment they said anything that would give offence to the merchant, their credit would be stopped at once.

7517. Has the number of shops which exist in the district anything to do with that feeling?-How many shops are there, may I ask?

7518. That is what I want you to tell me. Do you think that if the shops were multiplied, and credit to be obtained at a greater number of shops that feeling would not exist to the same extent?- I would not be in favour of a multiplication of shops for the purpose of getting them the means of credit. I would be in favour of having free

trade and giving no credit at all. If the number of shops were multiplied in the way of free trade, then a wholesome competition would be introduced, which I think would be an advantage. But you asked me a question about how many shops there are. Beginning at this part of the district, there is one at Hillswick, and then there is one at Brae, and another at Olnafirth.

7519. Is there a shop at Brae?-Yes; a very considerable place of business, one of the best in the country. Any other shops that may exist in the district are commonly called peerie (<i.e.> small) shops. They are very poor lads who have them, and what is more, they are generally selling to one or other of these three big shops.

7520. What do they sell to the large shops?-If I were one of the large shopkeepers, I would get a lad to open up a shop here and take fish for me or to sell to me, and I would send him down goods. The lad is apparently the merchant himself, but in reality he is selling for another.

7521. Do you know any case of that sort?-Yes; I have known it all my life.

7522. Do you know the individuals who are so connected with the larger shops?-Yes. If I go west to Stenness I find a man selling there, and if I ask him who he is selling for, he says, 'I am not the merchant, I am selling for so and so.' I go to another one who is apparently selling for himself, whereas it is well known that in reality he is not selling for himself, but for another party. It is no benefit for the population to have shops of that kind among them, because there is no competition at all.

7523. Do they all sell for the larger merchants?-Yes; they are just their menials or servants. I saw one of them examined yesterday.

7524. Do you know whether, in consequence of the cash payments here, tea or other goods pass from hand to hand among the people instead of money?-I am not aware of that. I only know about the purchases from the shops. I do not know what the people do with the articles after they get them.

7525. Is there any other way in which you think the present system is injurious, or any other point on which you desire to make any statement?-Besides being injurious in a moral point of view, the system is also injurious by leading the husband and wife to have separate accounts and separate transactions, and the children too. The house, instead of being united, is in reality divided against itself. Every member of the family has a separate interest; in that way mutual dependence is destroyed, and that affection which ought to subsist between children and parents has in a great measure disappeared from Shetland. A boy gets an account of his own when he is a mere child, or at least in boyhood, and as he grows up he thinks he has only himself to provide for. He has not that dependence or respect or affection for his parents which will lead him, when old age comes to them, to provide for them. I don't know any more prejudicial effect that any system can have upon the community than to see the rising generation growing up and their fathers neglected and despised, as they are in many cases here. That feeling is produced very much among the young people by the nature of their early training.

7526. Do you find that the parents are generally neglected by their children, and that there is a difficulty in enforcing their obligation to aliment their parents?-Yes; I find that very much, and any one who is connected with the country must see it as well.

7527. Have you found that in the course of your ordinary ministerial experience, or as a member of the Parochial Board?- I have not been at the Parochial Board for years, but I am well acquainted with the state of the poor who are on the roll. I will give a case which occurred in this neighbourhood as an illustration of what I mean. There was a woman who was on the Parochial Board; she belonged originally to a very decent and respectable family; her father was a small proprietor, but in the course of her life she became very poor, and I am not sure that she was not sometimes half demented. She had, I believe, three daughters in this parish, they are still in the parish, grown up, and two of them I think are mothers of families. None of them attended to their mother, and she had to be taken by the Parochial Board and boarded with the mother of the girl who was examined before me. She was kept there, and she died there, and not one of her three daughters who lived in the same parish ever came to the house where she was lying to ask how their mother was. She died and was buried, and not one of them came to look upon her face in the coffin or at her grave.

7528. How far were the houses of those daughters from the place where their mother lived?-I cannot tell exactly where they lived. I think one of them lived about half-way between this and Lochend, about six or seven miles from the place; another lived near North Roe. I cannot be sure where the third one lived; but the fact I have stated is one which is well known in the district.

7529. To what do you attribute that heartlessness [Page 182] on the part of the daughters?-I consider it arose from their early training produced by the system of credit.

7530. Is it not usually the case among the labouring classes, that the children of a family, the daughters and the sons as well, are virtually independent as soon as they begin to work for themselves?-Where?

7531. In the agricultural districts of Scotland for instance?-No; they are different altogether. I know about the agricultural districts very well, and the children there, when they grow up and go to service, the boys to herd cattle and the girls to be servants, are away for half a year, and then they come home to school But in this country, if a boy came home and went to school, he would have to pay for himself. I was once a schoolmaster in one of the agricultural districts for about four years, and, so far as I know, the children there when they came home were not made to pay for their own schooling or for their maintenance, but they just entered into the family again the same as they were before they went out. They would be away for perhaps half a year, and then they came back again, not to lounge about idle, but to be with their parents and to cherish and nourish them. That was the result of my four years' experience of teaching in a large parochial establishment.

7532. What becomes of the earnings of the children in these agricultural districts? Are they not at liberty to do with their earnings as they please?-Certainly; and there is no doubt they expend them upon clothing and things of that kind, just as they require them.

7533. And just as they do here?-No; it is very different here. They have all got accounts here, and these boys are all in debt. I have seldom met with a boy at the beach who was not in debt at the end of the service When I asked a boy what was the state of matters with him, he generally told me that he was due something to the merchant, but no such thing can take place with the children in the south. They get no credit, no books, no accounts.

7534. We had at specimen of that yesterday where a man told us he had been a boy at the beach, and that he had incurred debt while he was very young?-Yes; and it is impossible that it could be otherwise. Look at the little fee they get. They have to maintain themselves, and I would like to know how they can do that without being in debt.

7535. Do you think that sufficiently accounts for instances of heartlessness such as you have mentioned just now? Might such things not happen in any district with particular individuals?-It might happen to a certain extent, but not so generally as it does here.

7536. Do you say that the instance you have mentioned is only one of many instances of similar conduct?-It is only one of many that could be produced.

7537. Is there any other point to which you wish to speak?-Yes. I may say that I have read over carefully the evidence that was taken in Edinburgh, and that I concur entirely with the evidence given there by Mr. George Smith, Mr. John Walker, and Mr. Edmonstone of Buness. If there is any part of that evidence with which I don't agree, it is very trifling indeed. In Mr. Walker's evidence, this question was put to him:-' 44,368. But the greater portion of that is not paid in coin?' I want to qualify the answer which he made to that question. I think there has been a mistake of the printer there, and perhaps the next sentence qualifies it. If the next sentence is a qualification, then I agree with the whole of the answer, so far as my knowledge goes of the country. The question and the answer read thus:-'But the greater portion of that is not paid in coin?-Not a fraction of it.' I would not go so far as to say that not a fraction of it is paid in coin; but the next sentence is, 'If a man gets £1 or £2 out at the end of the season, it is an extraordinary thing;' and if that is taken as a qualification of the first part of the answer, then I agree with it entirely, as well as with the rest of Mr. Walker's evidence.

7538. Do you agree with this statement in answer to question 44,364: 'The eggs are the woman's part, she looks after the eggs and butter, and considers them her peculiar share'?-I concur with that entirely.

7539. Do you know whether it is the practice of the district that the woman generally has a separate account for the butter and eggs?- That is the case, so far as I know.

7540. Does she take the proceeds of the eggs and butter?-Yes. I sometimes met a little girl going along to the shop with some eggs, and she would tell me that she was going to the shop with them. I would meet her again coming back, and among other things she would have a little bag with her in which there would be some hard biscuits and tea. That would be what she was carrying back in exchange for the eggs.

7541. But these goods would go into the common stock for the maintenance of the family?-Yes; but I am told by the people that these articles do not form part of the husband's account.

7542. Still it does not make any separation between the interests of the husband and wife if the proceeds of the butter and eggs go for the maintenance of the family, just as the husband's earnings do?-But there is a separation, and I will give an illustration of it. Suppose a husband had to go to church with a dirty shirt, and he would say to his wife, 'You might have had a clean shirt for me to-day, my dear, to go to church with;' and she would reply, 'My butter and my eggs were not sufficient to get soap and soda; and therefore you must go to church with the shirt you have on,' that shows a separate interest between them. I give that, not as an actual case, but as a supposition which, sufficiently answers your question, and I think it goes to show a separate interest.

7543. Is there any other point to which you refer?-Yes. Mr. Smith says, in his evidence, that barter is hurtful to the independence of the people very much; with that I entirely agree. He says again, 'It destroys the independence of the people very much; they get careless.' I entirely agree with that else and can give illustrations of it. The next question is 'Does it encourage extravagance?-I should think it does, very much; they don't know the value of money.' There never was greater truth written than that, and Mr. Smith deserves great credit for stating it.

7544. Can you give me any illustration of that?-I know a case where a poor man and his family came in and took possession of from £70 to £90-I don't know the exact sum by the death of a brother. They got a book in the shop; the money never came into their hands at all, but so long as it lasted the book ran on, and I don't believe it was twelve months when the whole was exhausted, and they were in misery. That showed that they did not know the value of money. I will give another illustration which is worse than that. Another man came into possession of £230 or by the death of a relative in England. He got the money into his hands, and came to consult me as to what he should do with it. I said, 'When you have got so much money, you should lay it out and get 5 per cent. for it; and if you get that, then the interest will pay the rent of your land, and with your own labour and that of your wife and daughters, you may keep the amount all the days of your life, and you can hand down the £230 to your children.' He said, 'I am determined to do everything you have advised, and that money shall go down to my children, so far as I am concerned.' Twelve months had not passed over when that man had to be rouped out, and left the neighbourhood without any means; which proves what Mr. Smith said, that they don't know the value of money.

7545. How did that man spend it?-I don't know, but it was all gone.

7546. Do you find that the women dress more expensively here than they do in other places?-I think very much more so.

7547. Do you think that a woman who knits, and who has a separate account of her own in the women's book, is induced to spend more of her earnings on dress than she would otherwise do?-Yes; arising from the fact that, to a great extent at least, they can only get clothing for their knitting.

7548. It is quite true that in Lerwick only soft [Page 183] goods are given for knitting; but in this district there is a difference, and provisions are also given in exchange for it?-There may be a little provisions given but I can assure you, from my knowledge of the people, that that is not a general thing. It is in cottons and soft goods generally that the hosiery is paid for.

7549. But do the women dress more expensively than they need to do?-I think so; and they are influenced to do that by the way in which the system is carried on. There are things kept in the shops to catch their fancy, and when they take their knitting in they are shown some dresses, and they fix upon one. They have already told you that they get no money; and they have told me that they can get no money although they were to ask for it. Now, a girl in the south may dress very well, and servants there do dress very respectably; but I know servants in the south who don't make more money in the course of a year than a woman makes here by knitting, and yet they have considerable sums the bank, while that is not the case here.

7550. You say the women go into the shops, and are induced to buy by having goods exposed to them in that way: how do you know that?-I know it by them telling me how they get them, both here and at Lerwick.

7551. Have you asked them how they happened to have so many fine dresses?-I asked a man, who had a very industrious family of daughters, where they got this fine thing and the next fine thing, and he told me.

7552. You are now speaking of a particular case?-Yes. He said they are very industrious, and when they have got a certain quantity of work done they go to Lerwick with it; and they go into this shop and see this fine thing, and go into the next shop and see the next fine thing. I said, 'Do they get any money?' and he said, 'Not one single farthing.' When I asked him why, he said: 'I don't know; but they want it, and I have to give them money to take them into Lerwick.'

7553. You were speaking of a system of terrorism which prevails, or is alleged to prevail, here: if that terrorism exists, how do you account for witnesses coming forward and speaking at all?-But what have they said?

7554. We had two or three men who were not cited?-I saw one man here who was not by any means a representative of the ordinary tenants. He was not a representative of the class among whom he lives.

7555. Have you seen many fishermen here during the last day or two?-Not very many.

7556. I have been a little at it loss myself to know why fewer people have appeared here than at other places with even less population. Can you give me any explanation of it?-They told me beforehand that they dursn't come, and that they would not come; and I will give you an illustration. I went into the house of a man who had been complaining to me about his debts at the shops, and about the misery he was in; and when I got the notice to see what witnesses would come forward and give evidence, I said to myself, 'This man who has complained so much to me will surely come forward.' I went to him, and in presence of his family I asked whether he would give evidence before you. I did not tell him to do so, but said, 'If you are willing now to state your grievances, you have an opportunity of doing so.' The man stood up and trembled, and said, ''Mr. Sutherland, it is the truth that you have said! It is the truth that we are crushed; but I am in such a position with the merchant that I dare not do it.' I went to another man, and said, 'You have been crying about your miseries: will you come forward and state them now?' He said, 'Yes, I will come forward and state them.' I said, 'You are not in debt, are you?'-'Yes, I am in debt.' 'How much are you in debt?' 'I am in debt £13 down at the shop;' and this man had not thirteen placks. Then, to show that what Mr. Smith said about the system destroying their idea of the value of money was true, I turned to the wife and said, 'Have you £13 of debt?-and she said, 'Is that all?-that's nothing.' I mention that to show the woman's appreciation of the value of debt.

7557. Is that the way in which you account for the small attendance on this occasion on the part of the fishermen, and their apparent want of interest in it?-Yes; I attribute it to that wholly and to nothing else.

7558. I must say that although the meeting here has been intimated throughout the parish, yet I believe it has been somewhat less extensively intimated, in consequence of the distance of the place from Lerwick, than it would otherwise have been. Is not that sufficient to account for the absence of the men?-No; there have been people here from North Roe, and from Stenness, and from Ollaberry.

7559. But these were cited?-They may have been, but all the people knew about it quite well. Again, I sent for three or four parties who lived not two miles from the schoolhouse, and had them over with me, and said, 'You have complained bitterly about your condition before: will you come now and give information about it?' They said, 'We will do it;' but two or three days afterwards one of them came back and said he would not do it, as it would just make their case worse.

7560. I believe you have taken a great interest in this matter yourself?-I have only taken an interest in it for the welfare of the poor people of this country.

7561. But you have long held strong opinions as to the distress prevailing in Shetland?-I have; and when an opportunity was given to me, I have always condemned the system which existed.

7562. When you received the circular from me, which was sent to all the merchants and clergymen throughout the country, you replied that you were willing to come forward as a witness, and you sent me a list of witnesses?-I did.

7563. Since then you have been taking some trouble in the matter, and have been speaking to people about coming forward and giving evidence?-Yes; and I did everything I could to get them to come forward. All I wanted was to get them to come here and tell the truth, whatever it might be. If you will allow me will give another illustration of the terrorism which exists. If I buy corn or straw from any person in this neighbourhood for my horse or my cows, I would only get it delivered to me in the dark, because the people are afraid the merchants would know about it. I always get it in the dark, and I pay down the money for it at once.

7564. Do you swear that you never got corn delivered to you except in the dark which you have purchased for your horse and cows?-I have sworn already to the fact. There is no person in Hillswick who will sell corn and bring it to me except in the dark. If the people live at a distance, then it is different. There is a man who lives outside the dyke at Hillswick, Harry Gilbertson, who has a little straw, and he will sometimes bring some of it to me, but he is not one of the persons to whom I am referring. It is those living within the dyke of Hillswick who would not bring corn to me except in the dark.

7565. Are your dealings in corn numerous?-Not very numerous; but some years there is a good deal of it.

7566. Have you to buy the corn you require in small quantities?-I cannot get it except in small quantities; just what the people can spare to me.

7567. You have given me in private the name of one party who sold corn to you and delivered it in the dark?-Yes; and there are many others.

7568. Do you deal, or have you dealt, with any of the shops in this neighbourhood?-For many years I have not dealt with any of them, except when I happened to be out of goods. I get my goods twice a-year from the south, but when I am out of any particular article I purchase it here.

7569. Is it a common practice with the families of clergymen and others in the same position in Shetland to get their supplies from the south?-So far as I know, it is.

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7570. Why is that done?-I cannot afford to buy articles here; they are too dear for me. My stipend would not afford to pay for them.

7571. Do you know if the same reason operates in the case of your fellow-clergymen?-I don't know, but they have often spoken about it. In the first place, I hold the goods to be, as might be expected, inferior in quality, to the goods I would like. I don't blame the merchants for not having goods of better quality, because their customers perhaps would not be in the way of buying them; but I could not afford to buy from the merchants here in consequence of the tremendous percentage which they charge upon their goods.

7572. In speaking of the apprehension which exists in the district, I understand you to refer merely to the state of mind of the people with whom you have come in contact. You don't know of anything on the part of the merchants which justifies that

apprehension?-I don't want to go into that. I only say that that feeling is produced among the people by the state of their accounts, and by the fact that they are in debt to the merchant. I don't know that the merchant does anything to produce it. I am not accusing him at all.

7573. You are not accusing him of actively bringing about that state of terror?-No; I only say it is the system which brings it about. I don't refer to any one merchant more than another; it is the system I object to.

7574. Are you aware whether legal proceedings are frequent in cases where people are in debt to the merchants?-I have known several cases of that kind.

7575. Are they frequent in proportion to the indebtedness of the people?-I don't think that, taking the whole accounts that are due they are so frequent or half so frequent as they would require to be, in order to correct this evil.

7576. You think that, if decree was taken oftener against people who are in debt, the thing would be little mended?-I think it would tend that way; at least it would be the beginning of the end of it.

7577. Do you think the merchants may be too tender to their customers?-No doubt of it, and that for the purposes which are explained by the gentlemen whose evidence I agree with. I condemn the system altogether, apart from the men who carry it on. I don't care who the men are; I defy men to be any better than what I find around me, but the system would make them what they are on both sides.

7578. Have you ever had accounts yourself with any of the merchants here?-Not for many years. I might have small accounts for things which had been got from the shop when I was in the south; but, during the first and second years when I was here, I had large accounts to pay, because I had everything to buy from them, and I did not know about how things were conducted in this part of the country.

7579. With reference to parties who are in debt to the merchants, we had a witness yesterday who stated that he had been sued for a debt: had you any intercourse with that man in the way of advising him with regard to the conduct of his case?-None whatever. He was summoned, and the proceedings were going on before ever I heard of it. He and another person came to me, but I refused to give them any advice, and told them to go and get a lawyer to defend themselves. It was very natural for them, in their circumstances, to come and consult the clergyman, and ask him what they should do, but I refused to interfere.

7580. Have you had any dealings with men with regard to payments from the Shipwrecked Mariners' Society, or any society of that kind?-I know something about that. In one case, I remember, there was a considerable loss at sea; more than one boat was wrecked, and a great many men perished, and there was a great deal of sympathy excited in the south.

7581. When was that?-It was a good many years ago-about the time I came here, or a little after. A great deal of sympathy was excited in the south, as is generally the case, and a considerable amount of money was collected for the widows and orphans, and handed over to the merchant who was principally concerned in the fishery. One

of the widows lived beside a minister to whom she came and complained about the way in which the money was dealt with. The people knew the amount which had been collected, and her share was £6 odds. The minister wrote to the merchant whose boats had been lost, saying that the widow was dying for want, and asking whether he would send her her share of the money that had been collected I believe the answer he got back from the merchant was, 'The first time you come near this, come in and I shall show you the £6 odds marked to her late husband's credit.' Is it for that purpose that charity is given in the south?

7582. Do you think that was a misappropriation the money, or was it not a legal right of the merchant that he should have his debt paid?-That, I suppose would depend upon the purpose for which the subscription was made. The money was collected by the benevolent in the south for the purpose of aiding the widows and children of the men who had been lost, and not to be paid in liquidation of the merchant's account due by the dead husband.

7583. That might raise a nice legal question?-It might; but I want this to go out to the world, so that the eyes of the people in the south may be opened to how their charity is applied: I can give more cases the same kind.

7584. That was not a case where the money came from the Shipwrecked Mariners' Society?-No; it was a private subscription. I knew another case where several boats were lost, and where very great sympathy, as in the first case, was excited, and a considerable sum of money was collected. As it happens, the money fell into the hands of the merchant who had owned the boats. It was distributed according to the judgment of the merchant and of the clergyman, but the clergyman was never consulted about the distribution or allocation of a single penny, and, so far as he was ever able to find out., it was kept in the shop. That is case which I know about, because I was the clergyman.

7585. How long ago was that?-I have noted it being in 1849. My own contribution to the fund was one guinea; and I ask, is it for this that the benevolent are to give their contributions for Shetland?

7586. Perhaps the benevolent might be of opinion that the fairest way of doing would be to pay the debts of the deceased, if the widows and children were liable for them?-I am not speaking of the legality of the thing, or how the case might stand in law, but I am speaking of the purpose for which I gave my contribution of one guinea; and I know that I would not have given one farthing for such a purpose as that money was applied to.

7587. A subscription of that kind might be regarded as an alimentary debt, not attachable by creditors?-That is my opinion. Another case happened, in which a contribution was made in favour of a very old man, to whose house an accident had happened. £3, 10s. was contributed for that man, to which I gave 10s.; and I was always hearing that that sum had not been applied in the way in which I at least had intended that it should be; but in case they might have been telling me what was not true, I went to the man in order to be sure that anything I might state here was quite correct.

7588. How long was that after the subscription had been collected?-It is perhaps two or three years since it was collected, but it is only a week ago since I went to the man.

7589. Did you go to him with a view to this inquiry?-It was after I got the notice that the meetings were to be held that I went to him. I went in to the man and said, 'John, did you ever get any of that money?'-He stood up and said, 'I went and said that I was starving and had nothing to eat, and I got one lispund of meal and two ounces of tea, and that is all the reckoning I ever got for it.'

7590. Who collected the money in that case?-My money was paid to the merchant at Hillswick.

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7591. Do you mean Mr. Anderson?-It was given over to that establishment, I know. I said, 'Is that all you have got, John?' 'Yes.' 'And where did the money go?' 'The money went to the credit of my son-in-law, Andrew Thomason.'

7592. Was Andrew Thomason supporting the old man at that time?-The old man is on the Parochial Board now; but Thomason himself had been in the utmost misery for at least a couple of years.

7593. Did you say anything to the son-in-law about that?-He was the first person I met when I went to see the old man; and when I met him, I said, 'What was done with the £3, 10s.?' or whatever was the amount. He said he could not say. I said, 'Did John get the money?' He replied, 'Oh, yes; surely he did.' I said, 'Will you swear that?' and he said, 'Oh, swearing is a different thing.' I then told him I must see John; but he said, 'You cannot see him; he is in such a state without clothes that he is not fit to be seen,' and he ran off to John; but I was as able to run as he was, and I was in and had a hold of John's hand before the son-in-law could get a hold of him. It was the wife of that man Thomason who, as I mentioned, seized me by the arm, and said, 'Oh, sir, will that give offence to the merchant.'

7594. Where do these persons live?-At Hillswick.

7595. Is the old man able to come here to be examined?-He is 85 years of age, and I don't believe he would be able.

7596. Is there anything else you wish to say?-I have noted a case in connection with the Shipwrecked Mariners' Society which I may be allowed to give. A man here had a boat which was either wrecked or broken, or so destroyed as to be useless. He had paid into the Shipwrecked Mariners' Society for three years, and he applied to the agent here to get his proportion of what was to be given for the boat. The man's statement to me was, that for a while he asked whether he had anything to get from the Society, either to procure a new boat or to repair the old one. He was told that he had 30s. to get; but the merchant, who was also the agent, said to him, 'I have put it to the credit of your account.' I want to make that statement in order that it may go forth to the world whether the Shipwrecked Mariners' Society choose to allow their payments to go in liquidation of such debts. That may be the case, but I hold a strong opinion that the Society meant to do no such thing.

7597. It has been explained that such a payment of the Shipwrecked Mariners' Society has been put to the man's account, but that it was only done in a case where the account was due for the boat which had been lost. Is it not quite a natural thing that the merchant, in the case that is supposed, might very fairly put the money to the account of the boat which had been lost, and then supply it new boat upon credit in the same way as he had supplied the old one?-But the man has no boat. What I mean by giving this evidence is, in order that the Shipwrecked Mariners' Society may understand how the money which they pay is applied by their agents here. If they think it is it right appropriation of the money, then, of course, I have no fault to find with it.

7598. Do you know whether there is any rule of the Society prohibiting such a use of the money?-I don't know; but if it was a right transaction, then it is quite right that it should be known.

7599. Did you hear the evidence given by Mr. Greig this morning?-I did.

7600. He said something about marking the horns of cattle for a debt: are you acquainted with the existence of such it practice?-I am. I have seen the cattle driven down to a place in my own neighbourhood, and kept there for a night and marked.

7601. Do you think there is any objection to that practice? Is there any reason why a man should not secure his debt by taking possession of the cattle of his debtor?-I hold that there ought to be no such seizure, and no such clandestine way of securing a man's debt. There are processes of law open to a man for securing his debt, if he chooses to avail himself of them.

7602. But the thing is done with the consent of the debtor?-That may be said, but my opinion is, that the debtor is not in a position to refuse; and in cases where it is done, it is done not only for the purpose of securing the man himself, but to keep the cattle from falling into the hands of another man to whom a debt is due.

7603. Are you speaking of cases which you know?-Yes. Suppose I have cattle, and I am due you an account, and you give me provisions at your shop, perhaps another man, to whom I am also in debt, won't be so liberal, and I will tell you to come and mark my cattle and let the other man whistle. That is the way in which it is done. Now, such a practice is most immoral in its effects.

7604. In what way?-Because this man cheats the other one. I should have made a fair failure, and then both men would have got a share of the balance I could pay.

7605. Do you know whether the price credited to the debtor in such a case is generally a fair price?-I have no means of knowing that.

7606. Is the price ascertained by a public sale?-It may be in some cases, but I know in many cases it is not.

7607. Do you think that, for the introduction of ready-money system, a multiplication of banks would be necessary?-I don't think it.

7608. Does not the fact that banks only exist in Lerwick act as a bar to the introduction of such a system?-No; I think that difficulty could easily be met. For

instance, the Union Bank at Lerwick had their principal institution at the top of the town; but when opposition came, they opened small shop in the principal street in Lerwick, and they have now two offices there, a small one and a large one. Now, if the credit system were put an end to, for the sake of both parties, both merchants and people, there would soon be a small bank opened at Hillswick, if it should be nowhere else.

7609. How do people do with regard to banking just now?-The banking is very easily conducted, so far as I know, because the people have little money in their hands.

7610. Don't you know that many fishermen have large accounts in the bank in Lerwick already?-I know that some of the fishermen have a little there; but I know that the large accounts are not in the banks. I know from their statements where they get 5 per cent. for their money, and that is not from the bank.

7611. Where do they get that?-I won't mention any particular place, but they get it from the merchants in Shetland.

7612. Are there many men who are in a position have accounts of that kind with the merchants?-Several of them of the better class have told me about that themselves.

7613. Are these the one-fourth or one-third of the whole whom you mentioned, or a part of them?-They don't make one-fourth of the whole. The parties who could have such accounts would not perhaps come to one-sixth of the whole. Of course, I am speaking generally when I give that proportion.

7614. Do you mean that it is only one-sixth of the one-third who are well-doing, that have such accounts?-I should say it would not be more than one-sixth of the one-third who had them.

7615. Are there many public-houses in your parish?-No; properly speaking, there are no public-houses at all. There are shops where spirits are sold, but there is no public-house. At Hillswick, for instance, there is a shop with a back-shop to which the men go round and get whisky.

7616. But not to be consumed on the premises?-I never was there; but I understand the men do drink in that back place. I know that from their own statements to me.

7617. Does each merchant who keeps a shop and cures fish, have a grocer's licence?-No; I think there are licences in North Roe and Ollaberry as well as here. I may give a statement with regard to whisky [Page 186] since it has been mentioned. I hold in my hand the account of a fisherman for goods supplied to him at the shop; and I find that, during the six months over which it extends, the value of the whisky supplied was 14s. 10d. The way in which it came into my hands was this: A gentleman in the south was responsible for the account, and when it was sent to him, he was so horrified about it that he sent it from Edinburgh to me to inquire into, and I saw the people.

7618. How long was that since?-I think it is about three years ago. I sent the account to a merchant in the south to analyze it, so that I might report to the gentleman. I got back an analysis of it, with this written upon it: 'This account cannot be made payable in any court of law;' and the grounds for that opinion were stated to be, that there had been nothing weighed and nothing measured in the account, and they held that no account could be made payable in law that was neither measured nor weighed.

7619. Have you a copy of that account?-No; but I can give the name of the party in Edinburgh who got it. What I mention it for, is to show that there was 14s. 10d. charged for <aqua> in six months in various small sums. There was also a large sum paid in cash; and I was so struck with that, as the man was not married, that I went to another person who was acquainted with the manner in which business was carried on in Shetland, and asked him what was meant by so much cash being paid. He said, 'Oh, that is money which is borrowed in the one shop and drunk in the other.' That is the explanation I got, whether it was true or not.

7620. But that was the explanation of a third party who had no concern with the account?-Yes. When I sent the document to the gentleman in Edinburgh, he said he would pay that amount, but he would pay no more; and after that he sent me £5 a-year, from which I make payments to the man every month.

7621. In this account there is £1, 14s. 10d. and £1, 14s. 2d. in cash which you say was also spent in whisky?-I was only told about that by a party who said he knew about the same thing having been done. In this account there is 2s. 6d. entered for sweeties, verifying what was said in some of the evidence, that sweeties were given to make up the balance. With regard to whisky, I may explain that I had some whisky tested by a qualified party, which I believe was sold in the shops at 9d. per gill. The profit upon that, on being tested, was found to be 55 per cent. I also had tea sent and tested, for which the people had paid 3s. per pound, and the proper judge, to whom I sent it, sent me word that it was exactly 2s. tea, there being 50 per cent. of profit charged upon it.

7622. Who tested the tea?-A tea merchant in Aberdeen.

7623. Who tested the whisky?-A spirit-dealer also in Aberdeen. I sent these articles to be tested in order to show the enormous prices which are charged by these merchants. I have no interest in the matter myself, except that my poor parishioners should not pay more than they ought to pay, and also that an end might be put to a system which is injurious both to merchants and people.

7624. What remedy would you propose for the existing state of matters, and for the evils which are alleged to exist?-My remedy would be to declare the present truck system to be penal.

7625. What would you desire to be penal?-The truck system.

7626. But the truck system, properly so called, is penal; and the question in this inquiry is, whether other things are to be included within the operation of the Acts which apply to the truck system?-Well, I mean that this system of carrying on

business in Shetland should be declared to be penal.

7627. Do you mean that you would make it penal to give long credit for shop goods?-I would make it penal to give any credit at all, and I would admit either party to give evidence against the other party for infringement of that statute, and would be to make all debts so incurred irrecoverable by any process of law. These three things are what I think would form a remedy for the present state of matters. At the same time, I am just as convinced that the merchant ought to live, and must live, and have a reasonable profit, as I am that the people should not pay more for their articles than they are worth.

Hillswick, Northmavine, January 12, 1872, JAMES BRUCE, examined.

7628. You are the schoolmaster of this parish, and inspector of poor?-I am.

7629. How long have you been inspector of poor?-For twenty-two years.

7630. I understand the number of paupers in this parish is fifty-three?-Yes; exclusive of dependants. I now exhibit an abstract of the accounts for all the time I have been in the office of inspector, which I keep for any own satisfaction and the satisfaction the Board.

7631. Do you think the amount of pauperism in the parish has diminished or increased in your experience?-I think it has kept very much about the same some years back.

7632. Do you think that pauperism is increased or affected in any way by habits arising from the system of protracted credit which exists in the parish, or have you formed any opinion at all upon the subject?-I have formed no opinion upon that, but I know that the Poor-Law has acted very injuriously upon the parish by increasing the expenses.

7633. That is to say, it has acted injuriously as regards those who pay the assessment, whatever it may have done with regard to the condition of the paupers themselves?-Yes. For a long time after the passing of the Act, we kept on the old system of quartering and paying the paupers through the session fund, and so on, and the heritors generally contributed a certain amount yearly to meet any balance due.

7634. I presume the payments made to the paupers are made in money?-Yes; all in money, except clothing, which is taken round to them.

7635. How long has that system prevailed?-Since the Poor-Law came into operation in the parish.

7636. Since 1845?-Not since 1845; nor for several years afterward. The legal assessment, I think, came on in 1861.

7637. You say that all clothing to the paupers is furnished by the inspector?-Yes; furnished by myself.

7638. Where is it purchased?-At any of the shops in the district, generally where the paupers live. Anything that is required for paupers in North Roe I generally purchase from Mr. Greig.

7639. In this district where is it purchased?-Generally at Hillswick, from Mr. Anderson.

7640. Is there any other place except these two shops where it is purchased?-Yes; at Ollaberry and Lochend from Mr. Laurenson.

7641. You purchase it yourself and deliver it to the paupers?- Yes.

7642. When their allowances are due in money, are they paid in money?-Yes; they call up for it-all those who are round me. At North Roe I send a cheque to Mr. Greig previous to the time for the amount to be distributed.

7643. If a pauper is unable to come here, how is his allowance conveyed to him?-They generally send their tickets, and I send the money by any person who can convey it. It is paid on tickets.

7644. What kind of ticket?-It is just an account of the allowances given to the paupers, and it is authorized by the Board of Supervision. It is the receipt for the money. The pauper keeps the ticket in his own possession, and whenever I get the ticket I pay the money, and mark it on the back. The pauper comes himself, if able and if not he sends the ticket.

7645. Was the allowance never paid by means of orders for meal? -Previous to the legal assessment [Page 187] coming into operation in the parish in 1861, it was sometimes paid in that way, and sometimes in cash.

7646. Has it ever been paid by an order for meal or food since then?-Not to my recollection, except it may be in the case of the applicants for casual relief, or applicants coming to me seeking relief before the meeting of the Board. In that case, sometimes, but not often, I would give an order for a little meal. I generally do that when I have not sufficient confidence in the economy of the party, and when I think the allowance may be put to some other use than the purchase of meal or necessaries.

7647. Has it never been paid to paupers regularly on the roll by means of an order upon the shop?-No; not since the Act came into operation in the parish.

7648. Are you quite sure of that?-I think I am perfectly sure, so far as my recollection goes.

7649. Have any of the paupers on the roll ever asked you to give them a line or an order on the shop for meal or other requirements?-No; not to my recollection. They always get their cash.

7650. Have you ever had occasion to transact business with paupers, or to make payment of their allowances at the shop at Hillswick, or at any of the shops in the neighbourhood?-No; I don't practise that at all.

7651. Has it ever been done?- Very seldom, I think.

7652. But it may have been done?-At the last month's pay there were two poor women living about five miles from this, who, I knew, could not come themselves, and I was doubtful that they might not get a person to come for them; therefore I sent

word to them to send their ticket to Mr. Anderson and get the money. That was only done on one occasion.

7653. That is the only occasion within your recollection?-Yes. Mr. Anderson generally draws the money for me from the bank; and when I run out of change, I send down the pauper to him with a note for money; but that does not often happen. It is simply when I am out of change.

7654. Mr. Anderson merely acts as your banker?-Yes.

7655. He draws the money as the chairman of the Board?-Yes; and it is handy for me, because I get the small change from him that I require.

7656. How often does it happen in the course of a year that you give an order of that sort?-I could not say how often it happens. I only remember one other instance of it just now, besides the one I have referred to. The person called here, and I did not have the change; and as the person was going to Hillswick, I gave a note on Mr. Anderson to give the money. But it is not at all a common practice.

[The sitting was here adjourned till the evening.]

Hillswick, Northmavine, January 12, 1872, ARTHUR HARRISON, examined.

7657. You are a merchant at Hillswick?-Yes, at Urrafirth.

7658. You were for some years in the employment of Mr. Anderson at Hillswick?-Yes.

7659. And you are now in business on your own account at Urrafirth?-Yes.

7660. Do you employ any fishermen?-No.

7661. Are you in business in the drapery and provision line?-No; I only deal in groceries.

7662. Do you not keep any soft goods at all?-Yes; I have a few pieces of cotton.

7663. You are just beginning business?-Yes.

7664. Had you any difficulty in getting shop accommodation?- Yes, a little.

7665. In what way? Was it not easy to find a shop in this parish?-No; it was not easy.

7666. How so?-The heritor did not wish to give it to me; and I had a lease saying that I was not to commence business.

7667. You had a lease of what?-Of a bit of ground which I held.

7668. Was it a lease of the premises you now possess?-Yes.

7669. When did you take that lease?-Fourteen years ago.

7670. You have lived there for fourteen years, and had a piece of ground?-Yes.

7671. And the lease prohibited you from carrying on any shop business?-Yes; but the heritor allowed me to cure fish, and to keep a little to supply the people whom I

employed.

7672. In what way did you employ them?-I employed them, and paid them every Saturday night.

7673. In what business?-In curing fish-drying Faroe cod. I don't buy the cod; I cure it for Mr. Adie.

7674. Is that your principal occupation?-Yes.

7675. And the landlord agreed to allow you to keep small shop for supplying provisions to these men?-Yes.

7676. Is that all you are doing now?-Yes.

7677. Did you receive a letter from the Busta trustees, forbidding you to carry on a shop business there, or stating that you could not be allowed to hold the premises for the purpose of doing so?-No, I received no letter; but in my lease it is stated that I am not to carry on anything but the curing business.

7678. But you had that fourteen years ago?-Yes.

7679. Have you had any communication with the Busta trustees, or with any one of them, on the subject since you took your lease?- Yes.

7680. With whom?-With Mr. Gifford and Mr. Hay.

7681. Was that communication in writing?-No; it was personally with them at Busta.

7682. Did you apply to them for leave to carry on a more extensive business in the way of a shop?-No; I did not apply for anything more than what I got.

7683. What was it you went to see them about?-I went to ask for liberty to cure fish, and keep a small store.

7684. When did you do so?-About November 1869.

7685. Was that shortly after you left Mr. Anderson's employment?-No; it was before.

7686. Did they grant you that permission?-Yes; latterly it was granted.

7687. But it was not granted to you at first?-No.

7688. For what reason?-I don't know for what reason.

7689. Did they not assign a reason for not granting you that permission?-Yes. I think they said it was too near Hillswick.

7690. What was the meaning of that?-That the starting of another business there might reduce the value of Hillswick, and therefore it would not pay such a rent.

7691. Did you understand from that, that in granting Mr. Anderson a lease of the premises at Hillswick, they had become bound not to allow any other shops to be opened in the district?-No; they did not say anything like that.

7692. Was it with Mr. Gifford this conversation took place?-Yes.

7693. Was it implied that they had some reason for not interfering with Mr. Anderson's business?-Yes; at least the reason he gave was not so much that it would interfere with Mr. Anderson's business, as that it would bring down the rent of Hillswick, and would not advance the property anything.

7694. Do you mean that if you were to open a shop there, the necessary result would be that Mr. Anderson would require to have his rent reduced?-Yes; that is likely to have been what was meant.

7695. How long after that was it when you got permission to open your present shop?-I don't know exactly how long it was. Perhaps it may have been a month or two after it was spoken of first. I then got [Page 188] liberty to cure the fish and keep provisions for the men I employed; that was all.

7696. But only for the men you employed?-That was all the liberty I got.

7697. Are you not allowed to sell to anybody except the people you employ?-I never asked any more liberty than that.

7698. When you first went to ask for that permission, had you made arrangements to cure fish for Mr. Adie?-No.

7699. Had you made the arrangement by the second time you went?-Yes.

7700. Did you say to Mr. Gifford, when you went the second time, that you had made such an arrangement?-Yes; I told him I had got the offer of fish to cure.

7701. Was he more ready to grant your application on that occasion?-Yes. He said I could take the work.

7702. Had you spoken to Mr. Anderson about the matter in the interval?-I don't remember; perhaps I might.

7703. You were trying to set up your business at that time?-Yes.

7704. Don't you remember whether you applied to Mr. Anderson with regard to that matter at all?-Yes. I believe I told him then what had passed between me and Mr. Gifford at first.

7705. Did Mr. Anderson then agree to withdraw any objection he might have to it?-He did not say anything about that.

7706. In what way did you come to make an arrangement with Mr. Adie?-He had been told that I intended to commence curing fish, and he offered me some to cure.

7707. Was it through Mr. Anderson that that was done?-I don't know.

7708. Did the offer from Mr. Adie come to you through Mr. Anderson?-No. He wrote me directly and I replied accepting his offer, and then I went and saw him at Voe.

7709. Do you buy the fish from Mr. Adie's boatmen?-No; I buy no fish.

7710. They are delivered to you by Mr. Adie's boatmen on his account, and you cure them for Mr. Adie, employing your own people and receiving a contract price for the curing?-Yes.

7711. How long had you been in Mr. Anderson's service before that time?-Upwards of twenty years.

7712. All the time as a shopman?-Not all the time, but perhaps for eighteen years as a shopman.

7713. Why did you leave his employment?-There was some difference between us, and we thought it best to part.

7714. Was there a quarrel about money matters, or anything of that kind?-No; there was no great quarrel.

7715. After you were refused that permission in the first instance by the Busta trustees, did Mr. Anderson agree in any way not to object to you having the shop, provided your sales were limited to the men whom you employed yourself?-No; Mr. Anderson never objected to me, nor in my presence; I did not hear him objecting.

7716. Did you know of him objecting?-I could not say that I knew of it.

7717. Did you think he was objecting?-Yes.

7718. What made you think that: was it what Mr. Gifford said?-I think it was.

7719. Do you think Mr. Anderson would have less objection to it when he knew it was Mr. Adie who was concerned in the business?-I took no thought of that.

7720. Do you know that Mr. Adie had interfered on your behalf with Mr. Gifford?-Not to my knowledge.

7721. Did you ask him to do so?-No.

7722. Have you any reason to suppose that he interfered on your behalf with Mr. Anderson?-Yes. He wrote to Mr. Anderson about me, inquiring why had left, and asking for testimonials.

7723. Was that before he wrote to you making the offer?-It was when I was asking goods from him. I don't remember exactly whether it was before or after.

7724. Do you sell the goods for Mr. Adie, or do you sell them on your own account?-I sell them on my own account.

7725. Do you get them from Mr. Adie at wholesale prices?-Yes.

7726. At least you get them from him at a lower rate than that at which you sell them?-Yes.

7727. Was it before or after you got leave from the Busta people to open the shop that Mr. Adie wrote to Mr. Anderson?-I cannot say exactly when it was, but it was before I got the goods from Mr. Adie.

7728. Was it before you had got permission to open the shop that you applied to Mr. Adie for the goods?-No; I had got permission before I applied for the goods.

7729. Then it was after you had got permission open the shop that Mr. Adie wrote to Mr. Anderson?-Very likely it was but I don't know. I did not know about him having written until some time afterwards, when he told me.

7730. When you arranged with Mr. Adie about the fish-curing, was anything said about you having a shop from which to supply the people with goods?-No.

7731. Are you sure of that?-Yes. I wrote to him, and I never said anything about that.

7732. But you went to see him after that?-Yes; it was only then I spoke about the goods.

7733. Was it on your way home from Voe that you called at Busta and saw Mr. Gifford about the shop the second time?-No; it was before I went to Voe.

7734. Was it on your way to Voe?-I don't remember. Perhaps it may have been on a different day altogether.

7735. But it was before you went to Voe, and after you had got the letter from Mr. Adie?-Yes.

7736. You don't know from Mr. Adie or Mr. Anderson whether there had been any letters between them about you until after you were at Voe that time?-I don't know.

7737. Do you think there was any such letter?-I don't know of any, but there may have been.

7738. How did you know of the other letter first: did you see it?- No.

7739. Who told you of it?-Mr, Adie.

7740. Was that at another time when you called upon him?-No; it was the first time-the time when I went to him and asked for goods. He told me then that he had written to Mr. Anderson and got his reply.

7741. That is not what you told me before: did you not say before, that you thought it was after you had asked for the goods that Mr. Adie wrote to Mr. Anderson?-It was after I had agreed for the fish.

7742. Then the first time you saw Mr. Adie was at Voe before you opened the shop, and when you went to ask for goods?-Yes.

7743. And when you were at Voe at that time Mr. Adie told you he had written to Mr. Anderson, and had received a reply from him containing a certificate?-Yes.

7744. Did Mr. Adie tell you at the same time that he had seen Mr. Gifford?-I cannot say.

7745. What department did you manage in Mr. Anderson's shop?-I was fish-curer and factor for the summer time at Stenness.

7746. Do you know William Inkster?-Yes.

7747. Do you remember three or four years ago when he left Mr. Adie and came to fish to Mr Anderson?-Yes.

7748. Did you know that he did that because Mr. Adie had refused him supplies on account of a debt?-No; I did not know that.

7749. Did you know that he was in Mr. Adie's debt at that time?- Yes.

7750. Do you know that Mr. Anderson took over the debt?-Yes.

7751. Is it a common thing here for a fish-merchant to take over the debt of a fisherman who leaves another employer and comes to him?-Yes.

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7752. Have you heard of that frequently among the fishermen?- Yes. It has been the practice so long as I can remember, except some time after Mr. Anderson came here, when it was not done. Then, a fisherman who had got an advance from one merchant, would go to another and leave his balance unpaid, and therefore the old system was renewed again.

7753. Do you know the nature of the arrangement which was made when the system was renewed?-I do not.

7754. Do you know what the arrangement is?-I never saw the arrangement.

7755. I don't suppose it was in writing?-I could not say.

7756. Do you know what the practice generally is now in such cases?-Yes. The merchant generally pays the man's balance before giving him anything.

7757. That is to say, the new employer pays the man's balance before agreeing with him to fish for him for the season?-Yes.

7758. Is the whole balance paid, or only a part of it?-That is just as they can arrange.

7759. Is there a rule that a man is not to be taken by new employer without his balance being paid to the old one?-I think that is generally understood now.

7760. Do you know over what district that arrangement prevails? Do you know what fish-merchants do that?-I think it extends no further than to the men fishing at Stenness, and from Voe to Hillswick.

7761. Does that include Messrs. Adie, Mr. Anderson, and Mr. Inkster?-Yes.

7762. Were you aware that that was always done when you were in Mr. Anderson's employment?-No, it was not always done, but it was practised before I came into Mr. Anderson's employment at all.

7763. But when you were in Mr. Anderson's employment, was it not always done?-No, not always.

7764. You mean that the arrangement ceased for a while, and was renewed?-Yes.

7765. How long is it since it was renewed?-I cannot tell.

7766. Was it before William Inkster came to Mr. Anderson?- Yes, some time before that.

7767. Did you know that it was done in other cases besides Inkster's?-Yes.

7768. Was it done in many cases?-I don't remember of many.

7769. Was it commonly known among the fishermen that there was such a rule?-Yes, latterly, I believe, it was generally known.

Hillswick, Northmavine, January 12, 1872, JOHN ANDERSON (recalled).

7770. You showed me some of your books yesterday, in which I saw the name of William Inkster, Stenness and you explained to me that a large sum of money, upwards of £40, which stood against him in your books when he began to fish at the beginning of last year, was the continuation of a balance that had been against him for some years previously: is that so?-Yes. I would rather not mention names, unless you think it necessary, because I make it a rule with my shopmen that they are never to mention any man's balance, whether it is due by him or not, on pain of being turned off.

7771. You told me that this large balance consisted partly of an account which Inkster had incurred to Mr. Adie at Voe, and which you had taken over when the man began to fish for you?-Yes.

7772. What was the amount of the original debt which you took over from Mr. Adie?-I think it came to about £20.

7773. Inkster left Mr. Adie, I understand, in consequence of his supplies being stopped?-I don't know the reason exactly.

7774. But he came to fish for you?-Yes.

7775. How did it happen that you undertook his debt at the end of the first season he fished for you?-It was in consequence of an agreement that exists between Mr. Adie, Mr. Inkster of Brae, and me, with reference to each other's fishermen.

7776. What is the nature of that agreement?-It was entered into just to protect ourselves from those men who want to escape from paying their debts. I think we're bound to each other not to take the men without making some arrangement to see that their debts shall be paid.

7777. Do you undertake to pay the whole debt, or only a part of it, according to circumstances?-It is the whole debt.

7778. Was this a verbal arrangement?-No.

7779. Was it reduced to writing?-Yes.

7780. Have you got it?-I have not. I rather think I got a copy sent to me at one time but I think Mr. Adie has the extended agreement.

7781. Have you got a copy of it now?-I have not.

7782. Have you lost it?-No. It is very likely among my papers, but I cannot say. It is a long time since I came across it.

7783. Has this arrangement been of long standing? Do you remember the date of it?-I cannot exactly say the date. I think it must be from five to nine years since it was entered into, but I cannot speak accurately as to the date.

7784. Has the arrangement been acted upon?-Yes.

7785. When a fisherman leaves one master, and goes to another of those three, the debt due to the former master is generally paid by the new one?-Yes.

7786. You showed me in your invoice book an entry of the last purchase of oatmeal you had made from Messrs. Glenny, Aberdeen, for the purposes of your business, as follows:-'1871 June 19. 50 sacks oatmeal, sacks 50s., £100'?-Yes. The 50s. is the price of the sacks, to be returned or kept.

7787. A sack of oatmeal consists of 280 lbs.?-Yes.

7788. What is the selling price of a lispund?-5s. 4d.

7789. Has that been the price for some time?-It has been the price during the last season.

7790. You also showed me an invoice of flour from Messrs. J. & J. Tod, Dalkeith:-'1871. October 2. 2 sacks extra superfine flour, at 44s., £4, 8s.;' and another invoice, containing these entries:- 'October 19. 2 sacks No. 2 flour, at 45s., £4, 10s., 1 sack oatmeal, £2'?-Yes. The sacks in these invoices are charged separately.

7791. What is the selling price of the flour?-6s. 6d. per lispund. Flour is also sold by the lispund here.

7792. Both the flour and the oatmeal in the invoice of October 19 were intended for the purposes of your business?-Yes. Besides the invoice price, there are freight and charges to be taken into account. The freight and landing would be 2s. per sack for the oatmeal. That is the steamer's freight to Lerwick, and then it is brought by a small packet which comes round by Roenesshill when she has anything like a cargo. The small packet charges 1s. 6d. per sack; it is double freight coming round the hill; so that probably the freight and landing charges will be 3s. 6d. per sack.

7793. Are these all the charges?-I think so. There would also be insurance charged against me; it is at my risk when shipped. It was not insured in this case, but still that ought to be reckoned, because I ran the risk. I don't know the rate of insurance. I have paid as high as 35s. per cent. of insurance from Leith, but I have got it much cheaper insured in Glasgow-I think 7s. 6d. per cent.

7794. Is that for goods in general, or for any particular kind of goods?-Just for general goods.

7795. You heard the evidence that was given this morning?-Yes.

7796. Is there any statement you have heard from any of the witnesses which you wish to correct, or anything you wish to say in addition to what you said yesterday?-Yes. I think I would be inclined to differ from [Page 190] the description which Mr. Sutherland gave of the people. My experience of them has been very different.

7797. You would be disposed to give the Shetland people a better character than he gave them?-I think so. I think they can bear favourable comparison with any people of the same class that I have come across in other parts of the world.

7798. In respect of frugality?-Yes.

7799. And foresight?-Yes; and activity in business.

7800. And for their moral virtues?-Yes.

7801. Is it not the case that a considerable part of the year is spent in comparative idleness by the Shetland fishermen?-I believe it is, but that perhaps does not arise from any unwillingness on their part to work.

7802. From what does it arise?-From want of employment.

7803. Have they not their land?-They have their land, but, as I observed before, there is a bar to improvement there.

7804. Would it not be possible to introduce a more extensive system of winter fishing than that which exists now?-I don't think it.

7805. It seems a little peculiar, does it not, that the summer fishing should be prosecuted in the big boats, and that only the small boats should be sent out in winter?-They prosecute the fishing in the big boats in winter too, when the weather permits.

7806. But they don't go so far to sea in winter as in summer?-No; they don't go so far.

7807. I understood it was principally the small boats that went out in winter?-That is true, but on several occasions they employ the big boats too. But the smaller boats, when the weather permits, are much handier and lighter to manage.

7808. Are they safer?-They are equally safe when the weather permits.

7809. But would they not be able to go greater distances to sea with the big boats?-It would not matter much what size of boat they had if they were caught at sea by a gale.

7810. Is it not the case that on the east coast of Scotland the fishing is prosecuted for nine or ten months in the year; and that the fishermen there, who are a very comfortable class, have no occupation except that of fishermen? I am not asking you at present about any separation between fishing and agriculture, but don't you think it would be possible to prosecute the fishing in Shetland to the same extent, and for the same length of time, as it is prosecuted on the east coast of Scotland?-I don't think it.

7811. Is that owing to the weather?-It is owing to the weather, and the great exposure to the Atlantic, and the great swell that comes in from it. A very light puff of wind raises a tremendous sea in winter, that scarcely any boat could live in.

7812. In some parts of Shetland, where there is not so much exposure, is not the winter fishing prosecuted to some extent?- Yes.

7813. And to a greater extent than it is here?-Yes; that is done about Yell Sound, for instance. They are protected there on almost all sides.

7814. Here you are exposed to westerly gales which do not affect the fishermen on the east coast?-That is so.

7815. Is that the principal reason why the fishing is not prosecuted here so much in winter?-That is partly the reason.

7816. Is there any other reason why the winter fishing does not succeed here?-Yes. Every experienced fisherman knows that it is only at certain seasons of the year that the ling come over the ground in any quantities; and that is, I think, from, say the month of April or May to September. That has been the case for generations.

7817. Ling is your staple fish here, upon which the success of the fishing depends?-Yes; altogether.

7818. Would it not be worth while to prosecute the fishing in winter for the purpose of taking cod and haddock and other fish?-I don't think it.

7819. Would it not pay without the ling?-No; the other fish would not be got in sufficient quantities.

7820. Would they not be got in the same quantities, as on the east coast of Scotland?-No. The ground here for one thing is not so extensive. On the east coast of Scotland, you can have a range of perhaps, ten or twenty or thirty miles from every port, which you have not got here.

7821. How have you not got that range here?-The island is not so big altogether; and there are only certain tracks of ground that the men can fish on.

7822. It is on certain banks only that the fish caught?-Yes.

7823. And the banks here are not so extensive as on the east coast?-They are not.

7824. Has any attempt ever been made to introduce a more extensive winter fishing?-I don't think there is a more active class of men anywhere than there is to the westward here. They have small holdings, but they are constantly prepared to go off to sea when the weather offers, and they do prosecute the fishing often.

7825. Have you anything further to state?-With regard to the debts of the men, I may say that in 1864 I gave them to understand that unless those who were in debt reduced their balances in the former year, I could not help them again with their rent; and, except in exceptional cases, I have invariably acted upon that rule since.

7826. You mean that when they came to you at rent time for a cash payment in order to help them to pay their rents, you could not help them with that unless their former balance was reduced?- Quite so.

7827. You mentioned in a former part of your examination that a certain amount of cash had been paid at last settlement?-Yes.

7828. That would be in November?-Yes; in November and December.

7829. Did the whole of that pass to the fishermen, or was any rent included in it?-That was what I paid to the people when I was settling. There might be others besides fishermen, but I did not distinguish between them.

7830. Do any of the rents of the Busta estate pass through your hands?-No.

7831. But the rents to be paid to the factor would probably, where due by fishermen, be paid out of these payments by you?-I think so; but not necessarily in every case.

7832. Have you any arrangement with the factor about the rents of your fishermen?-None at all.

7833. That is quite an independent concern?-Quite.

7834. I think you have prepared some statement with regard to the amount of debts due by your fishermen during the last four or five years?-Yes. I have prepared the following statement, showing the number of men in debt, the total amount of their debts, and the average amount due by each, taking it as a whole:- No. of Men Total Year. in debt. amount of Average. debt. 1868 74 £1044 £14, 2s. 1869 79 1017 13 1870 72 942 13 1871 64 782 12, 4s.

7835. That shows that eight men had wiped off their debt altogether between 1870 and 1871?-Yes. That will prove, I think, that they are not quite so black as they have been painted. They are improving a little. The largest balance was £49, 14s. 21/2d. in 1868, which was reduced to £41, 9s. 9d. in 1871.

7836. The amount of indebtedness at Ollaberry is not included in these figures?-No. The figures I have now given apply only to the Hillswick men, who number about 125.* Four of the indebted men have left since, and are not clear of debt. That would reduce the amount by about £50 in all of the years except the first.

* In a note subsequently received from Mr. Anderson, he says: 'I find, in going over my books, that instead of 125 men, as I believed fished for me last year, I have actually 147. These I find are made up by fee'd men, and several crews who cured and dried their own fish, and from whom I purchased their fish so dried at the end of the season.

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Hillswick, Northmavine, January 12, 1872, ARTHUR SANDISON, examined.

7837. You are a shopman and bookkeeper in Mr. Anderson's establishment at Hillswick?-I am.

7838. You are in the course of making up, at my request, a return from ledger D and ledger V, which are books containing the ledger accounts of the individual fishermen employed at Hillswick?- Yes.

7839. Do both these books contain the accounts of the individual men?-Yes. Ledger D contains the accounts both of the crews and private accounts of the men; and ledger V contains some private accounts.

7840. In proceeding to make up the list, you are taking the names of the last fifty fishermen as they appear in the ledger, and you are inserting in the return the various particulars which have been furnished to you?-Yes.

7841. The return which you are preparing, and which you are to send me, will be correctly taken from Mr. Anderson's books?- Yes, so far as I am able to do it.

7842. Is there any other person here who wishes to be examined? (No answer.) Then I adjourn the sittings at this place until further notice.

<Adjourned>.

Brae: Saturday, January 13, 1872. <Present>-Mr. Guthrie

MAGNUS JOHNSTON, examined.

7843. You keep a shop at Tofts, about a mile from Mossbank?- Yes; I think it is rather more than a mile from Mossbank.

7844. What do you deal in?-Tea, tobacco, sugar and I buy fish too.

7845. Do you cure them yourself?-Yes.

7846. How many boats have you fishing for you?-I have no boats of my own; I just buy a little fish in the winter time, and I cure the men's fish in Feideland in summer. I cure at the fishing-station for Andrew Tulloch, who was examined the other day.

7847. From what fishermen do you buy your fish?-I buy them from any man who comes along, and wants to sell fish to me.

7848. Is that in the winter time only, or in the summer as well?- In the winter only. I am a seaman myself, and I have followed the sea since I was a child, but I stayed at home this year; and in the summer season I cured Tulloch's fish, while the wife and the bairns and I have commenced to sell a little tea and sugar and tobacco, and to buy fish from the small fishing boats in winter.

7849. Is that the way which people hereabout usually take to start a shop business?-I think it is.

7850. Do you keep accounts with the men that you buy the fish from?-No.

7851. Do you pay for them in cash?-Yes; always in cash.

7852. And then they buy some provisions from you?-Yes; if they like.

7853. Are these paid for in cash too?-Yes.

7854. I suppose you find it very uphill work competing with the big shops?-I don't know. I am a kind of rough and ready sailor man, and I don't take much thought about that; it does not give me much concern.

7855. Do the men prefer to deal with the big shops in it general way?-I cannot say as to that.

7856. Do you drive a good business with any of the men besides those who sell their fish to you?-No; some of the neighbours may buy a few provisions from us, but

not many. A woman may sell her eggs to us, and get provisions for them.

7857. Where do you get your tea?-From Bremner & Grant, Aberdeen.

7858. Do they send their traveller round the country soliciting orders?-Sometimes. He has not been round this winter, and I get my tea when I write for it.

7859. Do you keep pass-books for the business which you do with your customers?-Sometimes, but not many. I think my girl keeps a pass-book sometimes, but I am no scribe myself, and I cannot keep books.

7860. You never were a fisherman?-Not in the home fishing, but I have been at the Faroe fishing as master.

7861. When was that?-About four or five years ago.

7862. Whose vessel were you in?-The late Mr. Hoseason's. I have not been at Faroe since then.

7863. You went from Mossbank then?-Yes; I was one year in a schooner for Mr. Adie too.

7864. Had you the same arrangement then about the fish which exists now, that the men get one-half of the fish, for which they are paid the current price at the end of the season?-Yes.

7865. Did you at that time live where you are now?-Yes; and when I went to the Faroe fishing. Some time after I got married I lived in Northmaven, but now for nine years past at Martinmas I have lived at Tofts.

7866. When you went to the Faroe fishing, did you get your supplies from Pole, Hoseason, & Company, when you were employed by them?-No; I generally took my supplies in tea and sugar and other things from Braidwood & Fowler, Sandport Street, Leith. We are friendly yet, and they always send me some present at Christmas.

7867. Then you are rather better off than most of the men?-Yes; in some ways I am.

7868. At least you had sense to get your provisions where you pleased?-Yes; and I had something left by my friends, besides what I earned myself. When I was at the Faroe fishing, I did not think they got fair-play.

7869. Who did not get fair-play?-Not even myself, or any of the men. I knew the fish had been selling at a higher rate than the men got the benefit of; at least I was told so.

7870. Do you think the men were not to blame for that, by making a bargain which left them entirely at the discretion of the merchant? The merchant could fix any price he liked, could he not?-He could. But if I get the loan of a man's boat with which to go to the fishing, and if I engage for one-half of the fish, then, I think, it would only be fair-play to divide the fish in halves, and for the merchant to take one-half, and give me the other.

7871. But you said the men sometimes felt that the price which they got for their fish at the end of the season was lower than it ought to have been, and I was asking you whether you did not think the men had themselves to blame for that. They did not reserve any power to themselves about fixing the price, but left it entirely to the merchants?-Yes.

7872. Then your idea is, that they would have been wiser to have kept some power about that in their own hands?-Yes.

7873. How could they manage that?-They engaged for one-half at the Faroe fishing, and the owners of the vessels ought to have sold the fish conscientiously, and to have given the men the benefit of their half, after taking off curing and other expenses.

7874. But you say the men thought the owners did not always fix the price conscientiously?-I thought so myself.

7875. How would you manage it so that the men could make sure of getting a fair price at the end of the season?-I would let the men stand the chance of the markets so far as the fixing of the price is concerned.

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7876. But is not that the bargain that is made now, that they get the market price at the end of the season?-I believe it is, but it was not so then.

7877. What was the difference in the arrangement then?-I cannot say. They engaged for one-half of the fish at that time, but I know that sometimes they did not get the benefit of the market price.

7878. Do you think they get the benefit of the market price now?-I cannot say, for I have not been at Faroe for five years.

7879. At that time did most of the men who were sailing with you run accounts with the merchant for their outfit and supplies?- Yes.

7880. Had they generally a balance to get in cash settling time?- Yes.

7881. Did you know any men who were behind, and had a balance against them at the end of the year?-I cannot say whether there were any in that position.

7882. You were not in that position yourself?-Never.

7883. What was the reason why the men generally dealt with the merchants who employed them at the fishing?-Perhaps the men did not have money at the time with which to go and buy the articles from any other party, and the man who owned the vessel ready to supply them. That was the way in which it was done, so far as I know.

7884. I suppose some of them had been supplied with goods before they went away to the fishing?-I think so.

7885. And it was a common enough thing for an account to be standing against them when they settled?-I believe it was.

7886. Do you think any of them would have engaged with another merchant in preference for the fishing if they had not had that account?-I cannot say as to that.

7887. Was there any obligation on them to engage with the merchant who supplied them with their goods?-Not so far as I know.

7888. Except that they thought it fair to go and fish for him in order that he might have some security for his advances?-Of course.

7889. How long is it since you opened your shop?-About twenty-one or twenty-two months.

7890. On whose land is it?-The proprietor, Mr. Robert Hoseason, is in New Zealand.

7891. Is it under the management of Pole, Hoseason, & Co.?-No. Mr. Sievwright, writer in Lerwick, is the agent. Mr. John White and Mr. Cheyne, Edinburgh, are the agents, and they have Mr. Sievwright under them.

7892. Had you any difficulty in getting a place in which to open your business?-No; I had been living there before.

7893. But was any objection made to your opening the shop?-No; there could be none, because I have a lease of the place.

7894. For what length of time is your lease?-For ten years.

7895. Do you know whether there is a difficulty in getting premises for shops in other parts of the district?-I cannot say, because I never tried.

7896. What is the price of your meal just now?-The fact is, we have none.

7897. Do you not sell meal?-Yes, I sell it. My meal is 16d. a peck all through the year.

7898. Is that higher or lower than the price at the Mossbank shop?-I think it is 1d. below it.

7899. Is your meal of the same quality as the meal there?-I think so. I get my meal from Aberdeen.

7900. Is it better than the meal sold at Mossbank?-I could not say that.

7901. Do you get it from Bremner & Grant?-Yes, and sometimes I get it from Tulloch. I generally get it by the sack or boll; and if any person takes a sack or boll from me, I give it at what it cost me, adding something for freight.

7902. You sell it at 16d. per peck; how much is that per boll?- There are about 17 pecks to the boll, but you will not get a boll to weigh out 17 pecks. There should be 171/2 in it, but weighing out pecks and half pecks the boll will not weigh out so much as 17.

7903. Are most of the people about Mossbank employed by Pole, Hoseason, & Co. at the fishing?-Yes most of them.

7904. Is there anybody there who fishes for one else?-James Hay fishes for Mr. Adie, Voe. That is all I know.

7905. Does he go to Voe to fish?-No; he fishes at Feideland Station.

7906. With that exception, will all the people within two or three miles of Mossbank be fishing for Pole, Hoseason, & Co.?-Yes; I think most of them.

7907. Or within five miles?-I could not say for five miles; but I think most of them will.

7908. Do most of them deal at Pole, Hoseason, & Co.'s shop?-I believe they do.

7909. Very few of them come to you?-Occasionally they do, but not to any great extent.

7910. Do you think you would have a greater number of customers if you were employing boats yourself for the fishing?- I cannot say; perhaps I might.

7911. Have you not thought of turning your attention that way?- Not as yet.

7912. How is it that the men are at liberty to sell fish to you if they are engaged to Pole, Hoseason & Co.?-They are engaged in the summer time with the large boats, because the large boats belong to Pole, Hoseason, & Co.; but the small boats which they use in the winter time belong to the men themselves, and it is more convenient for the men living in the neighbourhood of my house to sell their fish to me than to Pole, Hoseason, & Co. It would be better for them to sell their fish to me 6d. per cwt. cheaper than to go to Mossbank with them. The boats are their own, and the men are not in debt to Pole, Hoseason, & Co., and therefore they can do with these fish as they please.

7913. Do you also buy fish from men who are in debt to Pole, Hoseason, & Co.?-I don't know whether they are in debt to them or not. I take fish from every one who brings them to me.

7914. Do you buy many fish during the winter season in that way?-Not a large quantity. Perhaps. I might have about 11/2 or 2 tons of dry fish in the spring; that would be about the amount of it.

7915. Are these worth about £20 a ton?-No; I got £17, 10s. last year for them.

7916. Then these fish don't sell so well as the summer cured fish?-No; some of them are very small.

7917. Do the men about you not think it would be more profitable for themselves to cure their own fish?-They could not manage it, because they have no cellars or stores in which to keep salt, or convenient beaches on which to dry the fish.

7918. Did not the men formerly cure their own fish in Shetland to some extent?-I don't know.

7919. Don't they try to do it still?-Some of them do it still in Shetland; but in the winter time they must have a booth for the purpose of salting their fish and keeping them.

7920. Do you sell soft goods in your shop as well as provisions?- No. We sometimes had a bit of white cotton last year for making oil cloths, or the like of that, but we have none now.

7921. Do you think the men about you are not able to purchase from you so much as they would otherwise do from want of having money in their pockets?-That is a thing I cannot say anything about, because I never know what any man has in his pocket. We never talk about that. I might have my ideas on the subject, but I could not speak positively about it.

7922. It is your ideas I want to know, and what, you feel in your own experience. What is your opinion on the subject?-I believe it might be better, for the men if they were allowed to buy or not as they thought proper.

7923. But do you think the extent of your dealings, is less than it would be if the men had ready money payments?-I could not say for that.

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7924. Supposing you provided as good an article as Pole, Hoseason, & Co., would the men come to you in greater numbers if they were paid in cash shorter periods?-I could not say. They just come to as their own minds lead them, but I believe they would still go to Pole, Hoseason, & Co.'s shop, even although they had money.

7925. But don't you think they are prevented from coming to you by their want of money?-They may be in some cases.

7926. You say you have your own ideas about that: what are they?-I believe it might be the idea of man that he might get a better article if he could come to me for it, or go to Pole Hoseason, & Co.'s shop, just as he liked.

7927. But suppose a man does want to come to you, and I suppose some of your friends would be very glad to deal with you, do you know that they are sometimes in want of money, and thus prevented from coming?-I don't know.

7928. Do the men not prefer to go to a place where they can get what they want on credit?-I don't know about that either.

7929. Have you never been told that?-No.

7930. Have you never suspected it?-No. I think they just go where they please themselves. Perhaps they might get a better bargain from another man than from me, and yet they might come to me or go past me.

7931. Are you quite content with the system of long settlements which goes on at Pole, Hoseason, & Co.'s, and that the men should run accounts there?-No, I am not satisfied with that. I think it would be better for the people to have no accounts at all.

7932. Do you mean that it would be better for their own sakes?- Yes.

7933. What would be the advantage to them?-For my own part, if I had no money, but if I might go to a shop and take out more goods than perhaps I ought to do, without regard to whether I would be able to pay them or not; whereas if a man did

not have that liberty, but went into a shop with few pence in his pocket, he might make it spin out better, or more to his own advantage.

7934. Do you think he might get his meal cheaper by going to another shop and paying for it in cash?-He might, or he might take better care of his money, and manage to spin it out more.

7935. I suppose a merchant like yourself, if you were giving long credit in that way, would require little more profit on your goods?-Of course.

7936. But you can afford to sell cheaper because you are paid in cash?-Yes; and I think it would be better for the public in general if all payments were made in cash.

7937. Do you employ some men in your curing business?-No; I just do it with my own family. Sometimes I get a little boy to help me for a while, but that is all.

7938. When you were employed in the Faroe fishing, did you get cash from the merchant in the course of season, when you happened to come home, whenever you wanted it?-Yes.

7939. Could your wife get cash?-She did not require it, and she did not ask it.

7940. Is there any sort of feeling that people don't like to ask for cash before the settlement?-That might have been the case with some, but it was not with me, because I did not need the cash until it was due.

7941. Then generally you did not ask for it until it was due?-No.

7942. Do you think there is much money among the people in your neighbourhood during the summer time?-I don't think there is much.

7943. Is it generally spent soon after settling time?-Yes.

7944. Do you find that your cash transactions are greater at one season of the year than at another?-I cannot say that. I have only been one year in business, and I have not made any calculation about that.

Brae, January 13, 1872, ARTHUR THOMAS JAMIESON, examined.

7945. You are the son of Jacob Jamieson, residing at Brae?-Yes.

7946. You were employed by me on Wednesday last to go to Mossbank, and to purchase some articles from the shop of Messrs. Pole, Hoseason, & Co., there?-Yes.

7947. You went there and purchased these articles without saying who they were for?-Yes:

7948. You have brought to me half a pound of sugar, for which you paid 3d.?-Yes.

7949. A quarter lb. of tea for which you paid 81/2d.?-Yes.

7950. A quarter lb. of tea for which you paid 7d.?-Yes.

7951. And 4 lbs. of oatmeal for which you paid 81/2d.?-Yes.

7952. You have now delivered these articles over to the clerk?-I have.

7953. Were these all the articles you purchased?-Yes.

7954. Are they exactly in the same state now as when you bought them?-Yes.

7955. They are contained in the same parcels as when they were put up in the shop?-Yes.

7956. Have you any reason to believe that the prices which you paid for the articles are different from those which are charged for the same qualities of articles at other times in that shop?-There is no difference, so far as I know.

Brae, January 13, 1872, JAMES BROWN, examined.

7957. Have you a shop?-Yes; a small one.

7958. Where?-At Brough, in North Delting, about two miles from Mossbank.

7959. What do you deal in?-Groceries; nothing else.

7960. On whose land is your shop?-Mr. Gifford's of Busta.

7961. How long have you had it?-The shop has been going on for about ten years.

7962. Were you at any time forbidden, either verbally or by your lease, to have a shop on that ground?-No; I was told to go on.

7963. Was there a shop there before you went?-Yes; they always used to keep some small articles there for sale.

7964. Do your customers generally pay you in ready money?- Yes; I deal all in ready money; and I buy fish for cash. I am a fisherman myself, and I buy few fish from others as I have a chance, paying money for them, and my family cure them.

7965. Is it the summer fishing you go to?-I am at home all the year round at the sea-side, and I fish there, but they are generally small fish I take.

7966. You don't go to the haaf?-No.

7967. Have you a boat's crew?-No. My father and a boy go along with me.

7968. Are you able to cure both your own fish and the fish which you buy from other men?-Yes.

7969. What quantity do you buy from other men?-It varies in different years. When there are plenty of small cod in the Sound, I may have 11/2 ton during the season, while in other seasons I may have only the half of that.

7970. Is it only the small fish you buy?-If bigger fish were offered to me I would buy them, but there are no bigger fish caught along the shores.

7971. Do you not buy fish in the summer time?-Yes.

7972. Do you buy fish brought in by the large boats at that time?- No; the men take them to the stations.

7973. Do they not bring any of the big fish to Mossbank in the summer?-No; they are sold at the stations.

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7974. Do you never go there to buy fish?-No; I am content with the home fishing.

7975. Are the men bound to sell the small fish they get in the winter to any particular merchant?-They sell these fish to any one they like. There is no restriction upon them for that. Messrs. Pole, Hoseason, & Co. never say anything about it.

7976. Do you run any accounts in your shop?-Scarcely any. There may be 1s. or an ounce of tobacco or any small thing of that kind, marked down.

7977. Are you often asked to give credit for a short time?-Very often.

7978. The men are not always in possession of ready money?- No; they are very often out of money.

7979. At what period of the year are they best off for money?- About our place in the winter time if it is good, and if they are catching a few cod, that is just about as good a time for them as any.

7980. Do they not also have a good deal of cash after settling time?-After settling time they have always a little.

7981. Is your trade better at that time than at other periods of the year?-When it is good weather, and anything doing at the fishing, or when the men have come from Feideland with the money which they had got at settlement, they trade more at my shop, as a rule, than at other times.

7982. Is June and July a good time for your shop?-Not very good; because most of the men are away at the fishing. There may be two or three boats manned by old men at home; but, with the exception of what they bring in from the Sound, I have nothing else to depend upon.

7983. Are not the men's wives and families at home, and requiring provisions?-Yes; and I may have the chance of a few dozen eggs, or any produce of that sort.

7984. That is for buying, but I mean for selling: is June and July a good season for the selling of your goods?-No; it is the worst time of the year for me.

7985. Why is that?-Because the men are all away at the fishing.

7986. But their wives are left, and they require something to keep them alive?-They are always working in what is called the kelp, and they go to Mr. Pole with that, so that I have no chance of buying it. I might have a chance of it, but I don't think it would pay me, as I don't know anything about it.

7987. Don't you think that if you had the chance of buying as much kelp as you liked in the summer time you might drive a better trade at your shop?-I might do a little better; but Messrs. Pole, Hoseason, & Co. have the shores contracted for, so that they must get the kelp. They pay so much to Mr. Gifford for the shores, and in return for that they are entitled to the kelp, and they must have it.

7988. Do they pay in ready money for the kelp?-They make no scruple to give ready money for it, if a somewhat lower price is taken.

7989. But the people generally take goods for it?-Yes; they generally take the price in goods, or if they ask money, they will receive 6d. less per cwt., which I think is not unfair.

7990. If it was paid in ready money, I suppose you would have a chance of getting some of the custom of these kelp-gatherers?- Yes; if every man had his freedom to go where he liked, I would have a chance.

7991. Then I suppose the reason why sales are larger in winter and less in summer is, that the people have not ready money to go to your shop for the goods they want?-No; the men are all at the ling fishing in the summer time and all the chance I have is in the winter time, when they are at home fishing in the small boats.

7992. But even although they were at home in summer, they would not have ready money with which to come to you?-No. A man might not have ready money continually, unless he was paid every day for his catch.

7993. Would it not be better for your business if the men were paid every day or every week for their fish?-I don't think it would be any better for me unless I was out at the fishing station.

7994. But their families would have the money, and they might come to you with it?-They might.

7995. The men don't take their wives and children to the fishing station?-No.

7996. But I suppose the wives and children have very little money when the men are away at the stations?-Very little.

7997. Is that the reason why they get their supplies from the merchant's shop?-Yes.

7998. Only if they had the money they might go with it to another dealer, from whom they might get their articles cheaper?-They might.

7999. Do you sell your meal any cheaper than it is sold at the Mossbank shop?-No. I don't see that I can sell it any cheaper than Mr. Pole can.

8000. What is the price of your meal just now?-I deal very little in that. I only sell a few groceries-such as tea, tobacco, sugar, soap, soda, spice, pepper, and things of that kind. I might also have a sack or two of meal about the beginning of August, when it is most required.

8001. Where do you buy your meal?-For the most part in Lerwick, but I send south for a little of it.

8002. Do you think it would be better for the people in the country if a ready money system were introduced?-I think so. I think it would be better for the big merchants also to pay in money. I have had that idea all along, that it would be better both for the merchants and the people to pay in cash.

8003. Why would it be better for the people?-Because they would have the cash to please themselves with, and to go where they liked.

8004. If they could please themselves, do you think they might be able to buy cheaper?-Yes.

8005. If you were getting a large ready-money business, do you think you could sell cheaper than you do now?-I cannot say.

8006. But if a ready-money system were introduced you would try to do that?-Yes, I would and I think I would be able to do so, because the money is in hands and out of hands and there are no bad debts.

Brae, January 13, 1872, Rev. JAMES FRASER, examined.

8007. You have been a clergyman at Sullem for twenty-four years?-I have.

8008. You have an intimate acquaintance with the people who live about you, and, among others, with the fishermen?-Yes.

8009. You also know the system of payment and of credit purchases which exists in the district?-I do.

8010. Are you prepared to give any opinion as to the effect of that system upon the circumstances and character of the people?- Yes, I think the effect of it, to some extent, is not very good. It is rather an extensive subject to embrace within one answer, because there are a considerable number of people who are free and independent; they can make their own terms; but there are a great number of people who act on the credit system. That system has gone on, I daresay, from time immemorial, and it has become a great evil in the community, fraught with consequences of different descriptions that are evil.

8011. Are there many of the people whom you would describe as not being free to make their own bargains?-Of course there is hardly any person free to make his own bargain who has no ready money, and who is always in debt; and however well they may be dealt with by the fish-curers,-and I don't know of any case of wrong dealing in that respect-still the people are placed at a disadvantage. I believe the whole community are placed at a disadvantage in consequence of that, because, from the great amount of bad debts, the merchant must charge a higher percentage of profit upon his goods.

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8012. In saying that there is a great amount of bad debts, do you mean that there is a large proportion of debts in the merchants books which are never paid?-That is what I mean.

8013. Do you not mean that some of them are only very long delayed, and are liquidated only when a good fishing season comes?-Both statements are true. There are some of them which are very long delayed, and others which are delayed for ever, and never paid at all.

8014. You think that both these causes oblige the merchants to charge a higher price for goods than they otherwise would do?- Decidedly; but there is a greater evil than that still. Sometime in the course of Providence, an accident occurs, and families

are left destitute, and the merchant has the disagreeable alternative of either losing his own debt, or putting the law in force and driving the families to extremity. That, however, is never done; but in such a case there might be an appeal to public benevolence in order to save human life, and that appeal is always responded to.

8015. What is the peculiarity in that case which you wish to point out?-The peculiarity in that case is, that I should wish the people to be placed in such circumstances that an appeal of that kind would not need to be made.

8016. Do you think such an appeal would be unnecessary if the credit system did not exist?-It would be unnecessary to a certain extent; but, at the same time, I can hardly see how to get rid of the credit system. I believe the merchants themselves feel it to be a much more trying thing, or at least fully as trying a thing, as I do. I look at it from one point of view, and they suffer from it from another.

8017. Is it within your own knowledge that a large portion of the people here are in a state of permanent indebtedness to the merchants?-I don't know to what extent they may be in a state of permanent indebtedness. I believe that a great number of them are very seldom clear, but of course there is a large proportion of the community who are clear from year to year.

8018. Do you mean that there is a large proportion of the men who are clear once in a year?-There are a great number who are always clear. There are number of the people who have never been in debt, and I believe never will be.

8019. But you are speaking of those who are in debt: what may be the proportion who are in that position?-I could not give an accurate answer as to the extent to which a state of permanent indebtedness prevails; but I know that it prevails to a much larger extent than is good for the community.

8020. Do you think it prevails to a larger extent here than in other districts of the country?-I don't think so.

8021. I meant than in other parts of Scotland, not of Shetland?-I am not very well acquainted with the extent to which a credit system prevails in Scotland.

8022. But you think it prevails to such an extent here as to be injurious to the independence of the people?-I think so; at least to the independence of some of the people.

8023. Do you think it tends to injure their truthfulness?-I don't know to what extent it will do that; but I think that, to some extent, when a man gets into arrears beyond what he is able to meet, he is apt to lose heart, and to come short of what he might otherwise do to clear himself.

8024. Have you known cases of that description?-I don't know to what extent cases of that description may prevail, but I know that there are a good many people who are living this year on their next year's earnings, and perhaps on the earnings of a year or two in advance of that.

8025. These are cases within your own knowledge, in which you have derived your information from the parties you speak of?- Yes.

8026. They have admitted it to you?-Yes, in one way or another. I have gained some of my knowledge from the merchants themselves, and some from the people.

8027. I suppose that sometimes, in the course of your ministrations, you have occasion to inquire a little into the circumstances of the men?-Yes, sometimes.

8028. In a letter which you wrote in reply to circular received from me, you gave an opinion about some proposed method of improvement which had for its object a separation between fishing and farming?-I have heard such a thing proposed. It has been discussed in the public press.

8029. Do you think the fishing could be carried on here apart from farming?-I do not. I think the fishermen could not live without their farms.

8030. Are they in a different position from the fishermen on the east coast of Scotland, in Aberdeenshire or Banffshire, who have no farms, and who live very comfortably, as I understand, by fishing alone?-I think they are in a very different position from these fishermen. One reason for that is, that there are frequent seasons occurring when there are no fish on the Shetland coast. Another reason is, that Shetland is very far from the market; and even although fish could be got, they could not be brought to market at a season when an adequate return could be got for them.

8031. But the curing might proceed in winter as it does in summer?-It might, but the fishermen would not be able, as a rule to keep themselves alive in winter by fishing alone.

8032. Do you mean that they would be much more interrupted by the weather in winter than in summer?-They would be much more interrupted by the weather, and they would have less chance of fish.

8033. Are you aware whether winter fishing has been tried in Shetland on a large scale?-Yes; not on a large scale, but it has been tried pretty extensively. I know that from my own experience. I tried it myself from the time when I could handle a boat oar, until I was twenty-seven years of age. During that time I was at the fishing every day, summer and winter, when it was fishing weather, and living in the midst of the ocean; and I have no hesitation in saying that if fishermen had been dependent on fishing alone, they would have died from sheer want, leaving their families out of the question altogether.

8034. But at that time were there any appliances for sending out large boats such as are now sent out in summer, and for curing the fish when brought home?-Yes, there were appliances for curing the fish when brought home; and little boats are much more handy about the Shetland coast than large boats at that season of the year.

8035. Do you think, as regards the hosiery trade, that it would be expedient for cash to be paid instead of goods as at present?- Sometimes it would be a convenience to the people to get cash, but generally speaking, I believe it would make very little difference. For instance, if a woman goes into a merchant's shop with so much hosiery, and she wants so much goods which the merchant can supply, she may just as well get them from him as from anybody else.

8036. But supposing the woman did not want goods?-Supposing she wants money, it would certainly be more convenient for her to get the money.

8037. Is it the case, so far as you know, that the people are often in want of money, and cannot get it?-I have not been aware of any particular case in which a little money was wanted and could not be got; but, as a general rule, money has never been paid for hosiery in Shetland.

8038. Are you of opinion that cases of hardship are not likely to occur in consequence of the want of money?-I could not give a positive answer to that question. I have heard the women complain more of there being two prices than of any difficulty in getting money.

8039. The two prices you refer to are the cash price and the price in goods?-Yes.

8040. What is their complaint with regard to that?-They think hosiery is sold at a disadvantage, when goods are so much dearer because bought with hosiery. That is the principal cause of complaint that I have heard of.

8041. Is it understood that the goods are dearer, because they are bought with hosiery?-That is generally [Page 196] understood; at least in some places. There are some merchants who make it all one price together; the same when hosiery is paid for the goods as when they are paid for in cash.

8042. Is that not the case with all?-It is not universally the case,

8043. Therefore there are not only two prices for hosiery, but there are two prices for goods bought with hosiery?-Yes; in some places there are.

8044. Are you aware of that from your, own knowledge, or is it merely from a complaint among the women?-It is a complaint among the women, and I think there is justice in it.

8045. That is, if it exists?-Yes; and I think it does exist in some places.

8046. Are you aware from your own knowledge that it does exist?-I think I am pretty certain of it.

8047. Do you think a system of credit payments and of paying for hosiery by goods has the effect of raising the prices of goods upon the whole community?-I don't think the hosiery has any effect of that description at all, so far as I know, but I think the credit system must have that effect in a greater or less degree. Under that system I think the credit which is most hopelessly given is in meal. The fish-curer often finds himself in the greatest difficulty with a family who are perhaps in want, and have no means to purchase meal. In that case he is frequently obliged, out of compassion, to give out meal for which he hardly expects to receive anything; or if he does, it is a long time before it comes.

8048. In such a case is the fisherman not under a sort of obligation to fish for that merchant during the next year, and until his debt is liquidated?-I think he is under such an obligation, but in some cases it takes a long fishing before the debt is liquidated.

8049. Do you think it is wholesome for a man to be under such a permanent obligation to fish for the same party?-I don't think it is wholesome for either party. But there is no help for it.

8050. Does that produce a spirit of submission and dependence on the part of the fishermen towards the merchant?-I don't know, but to some extent it must.

8051. Have you known any case in which that became very evident?-I cannot say. I could not name any particular case.

8052. You have not been struck by that in the course of your experience?-No. I have a considerable amount of acquaintance both here and in the north part of the islands of Shetland, and I cannot say that I have been struck with any such spirit of dependence. In the nature of things, however, it must exist more or less. But, in my opinion, the better way to get rid of it would be for the people to grow their own meal, and require less of it to be supplied to them.

8053. Do you mean that it would be an advantage if they required to purchase less meal than they do now?-Yes. I cannot see how the system can be got rid of, unless the people are able to cultivate their land, and grow their own meal.

8054. Therefore you are inclined to recommend a system of agricultural improvement as the best thing for Shetland?-Yes.

8055. Could that be effected without a separation between the fishing and the farming?-I think so. I think if people were placed in such security that they knew they were working for themselves, so that they could spend every day or every hour that they had leisure in improving their small crofts of land, they might grow half as much again as they do at present.

8056. Even upon their small holdings?-Yes; upon the greater number of their small holdings.

8057. And with spade labour?-Yes, with the spade, and the pick and shovel, such as the men can manage for themselves.

8058. Is not that a very antiquated way of cultivating the ground?-It may be antiquated, but I don't think there is any better way coming into operation.

8059. Is there not ploughing?-Ploughing won't because, if the ground of which these small crofts is composed is not broken up with the pick, it is of very little consequence to plough it. I could show examples of that in different parts of Shetland. Land ploughed is not half the value of land trenched, and the fisherman might trench a bit of land during winter for himself, and in the course of a few years grow all that he required, or the next thing to it, without costing the proprietor or anybody else anything.

8060. Would he grow a much heavier crop on land cultivated in that way with the spade, than a large farmer would if he ploughed his fields?-Yes, a much larger crop than a large farmer would if he ploughed that same field. I have not the slightest doubt of that.

8061. Are you speaking now from your own observation of both systems in Shetland?-I am.

8062. Do you know cases where an intelligent and active small crofter, cultivating in the way you have described with the spade, has grown heavier crops than a farmer, equally active and equally intelligent, has grown with plough cultivation?-Yes, upon the same kind of ground.

8063. Was that in this neighbourhood?-Yes.

8064. And the circumstances in both cases being exactly the same, except the difference between spade and plough cultivation?-I think the difference in that case would certainly be in favour of the larger cultivator; because I think the agricultural intelligence should be in favour of a man who works with the plough.

8065. You think the intelligence was perhaps superior in that case?-I think it was superior, and the crop inferior.

8066. Is that a thing which you have frequently observed?-Not very frequently, because land is not very frequently cultivated in the way I have mentioned, as the parties cultivating it, or who should cultivate it, don't have any security. They don't know who they are working for. There is a man pretty near me (Mr Gifford knows him), who has been cultivating in the way I have mentioned, and there is another man pretty near here who is cultivating in the way that you speak of, and there is no comparison whatever between the crops.

8067. Then is the remedy you suggest, a system of lease-holding?-Yes.

8068. Is there any reason why that does not exist in Shetland already?-I don't know any particular reason for it.

8069. Have the tenants in many places not been offered leases?-In some cases they have been offered leases, and I believe they have refused them, but I don't know for what reason.

8070. Have you any observation to make upon the subject of fixing the price of the fishermen's catch at the end of the season?-I have no observation to make on that subject, for I am not able to see how far it would be to the advantage of the fisherman to fix the price beforehand. I don't think it would be an advantage to him; indeed, I think the fisherman would be greater loser by a fixed price than he is just now.

8071. Is that because he would still have to obtain his supplies on credit?-Not so much that; but for one thing, the merchant's or fish-curer's knowledge of what the market is likely to be, is ahead of that of the fisherman; and I think it holds good more or less, by common sense, that the merchant should try to secure safety for himself in the bargain which he makes. The probability therefore is, that the fisherman would suffer more in that case than he does at present.

8072. You think the merchant has better means of foreseeing the course of the markets than the fishermen?-I think so; and although I believe the merchants hereabouts would generally give the men all the advantage they could, I cannot see how it would be possible that by fixing the price beforehand the fisherman would be

the gainer.

8073. Is there any reason to suppose that the fishermen have not a sufficient voice in fixing what the current price is to be at the end of the season?-I don't think the fishermen have any voice in that at all, and I don't know how far the merchant or fish-curer [Page 197] has either. It must be regulated by the south-country markets.

8074. Would it be any advantage to the fishermen in your neighbourhood to have periodical payments up to a certain amount of their catch, leaving the balance to be fixed, and the price also, or a portion of it to be fixed at the end of the season?-I don't think that would be any advantage, and there is one disadvantage which would certainly follow such a system. There are some men who will take care of their money, pay it to them when you like; but those who take least care of it would spend it as they got it, and the merchants having paid ready money to them, there would be nobody who would advance anything to them when they wished to pay their land-rent or other debts.

8075. Are these careless men not equally apt, under the present system, to take too much in goods, and to exhaust their earnings too early?-Perhaps they are, but there is some check upon them under the present system, whereas if they got the money in their own hands there would be none.

8076. What is the check upon them?-The merchant himself will be a check, if a man is running an account which he is not likely to meet. I am not able to say how far the system you have suggested would be an advantage to the people. It might be an advantage, but I cannot see it.*

* The following letter was afterwards addressed to the Commissioner by Mr. Fraser:- SULLAM, 18<th January> 1872. W. GUTHRIE, Esq. SIR,-You will perhaps allow me to supplement the evidence gave at Brae the other day by a few notes. I did not bring out all I wished to say on the credit system. It would require more time than could than be allowed to one witness, and more writing than I would like to trouble you with now, to explain it fully.

Credit has become almost a necessity in Shetland in the present condition of the islands and it has gone on so long that the moral ton of society has suffered in consequence of it. The present fish-curers and merchants have not created the system; it existed before them, and they have taken it up as a necessary evil.

Shetland fisherman may be divided into three classes. The first class are free men. They have never been in debt, and hope never to be. The second class, under the present circumstances, come in debt, but they don't like it, and get out of it as soon as they can. The third class do not seem to have any particular dislike to it. When the Commissioner asked me at Brae if I had known men lose their independence by coming in debt, or something like that, I had this class in my mind, and I was puzzled what to say. I think the loss must have been sustained long, long ago, for they have always appeared to me as a party who never had anything of the sort to lose.

The moral evils of the system to this class need not be mentioned. I will name one or two of its physical effects.

1. It largely increases pauperism, by raising a false standard by which to regulate one's expenditure. When one of this class falls from earning, he is fit only for the Parochial Board.

2. In case of a boat accident, or in a season like 1869, the prospect is most appalling. In that year the crop was very largely a failure; many of the people had gone as deep in debt as they could go; and but for the aid sent by the Society of Friends, some of the people would assuredly have died, and a still larger number could not have sown their ground. The timely aid sent by the Friends and those whom they enlisted with them in their benevolent work, prevented both these consequences.

There are not a few families in Shetland-bereaved families, I mean-supported by funds supplied by the benevolence of south country ladies and gentlemen, who otherwise must have starved, or fall with a crushing weight upon the Parochial Boards.

Now, for all this, so far as I know, there is only one remedy- the improvement of the soil. The people are cultivating just the same ground their <great-grandfathers> did, and most of the ground now cultivated has never rested in the memory of living man, or perhaps as long before. New earth is made to supply the yearly waste, and thus the ground in the neighbourhood of a few small farms is so robbed as to be rendered useless for generations, unless it happens to have earth enough to allow of laying down the surface, and a proprietor or factor who binds the people to do it.

There is, in general, plenty of unreclaimed land lying close by these small farms which might be broken up and brought under crop, and some of the old allowed to rest. In some places there are plenty of stones to hedge in a small croft of land where grass might be sown, but nothing is done. That unreclaimed land is made to do duty by keeping life in a few cows-two, or more. During the summer season, the merchant supplies the meal as long as he can, and so things continue its they are. No man who may receive a forty days', or even a six months', warning, is likely to exert himself to bring more ground under crop. The thing wanted is leasehold of the property by the tenant. But I am told the tenants will not take a lease. It may be so; but before the statement be admitted as true, the sort of lease offered them would require to be seen. There are leases offered which no man of common sense would take. There is property in Shetland, and plenty of it, that in a 19 years lease could be made 50 per cent. better than it is, and be a better bargain then, than now. And all this might be done without costing the proprietor one shilling. Let him give it lease on reasonable terms.

There is just one thing more I would like to state. I am referring to the evidence given last year before the Commissioner in Edinburgh, it was then stated by Mr. Walker, that the hills were doing the people no good, and therefore he had taken them from them. The latter part of this statement is true, but on the former part of it I would beg to say, the native sheep reared on these hills supply material for knitting, and the female part of the population are clad almost entirely from that source alone. Then the female members of the house generally provide during the winter months

warm underclothing for the fisherman, without which he could not pursue his hazardous occupation. Bedclothes are also largely supplied from the same source. Leave all these to be supplied by the fisherman from his scanty earnings, and it requires no prophet to foretell the result.

To say that the hills were doing the people no good, either manifests great ignorance of the subject, or something worse.-I am, Sir, your most obedient servant, James Fraser.

Brae, January 13, 1872, THOMAS GIFFORD, examined,

8077. You are the factor on the estate of Busta?-I am.

8078. I believe that is the largest estate in Shetland?-I believe it is.

8079. What is the rental?-£2700.

8080. Are there any leases on the estate?-Yes, there are a good many.

8081. Are these of the small holdings or of the large holdings only?-There are leases of both.

8082. Do the majority of the fishermen tenants have leases?-Not the majority.

8083. Or a considerable number?-I could hardly say there are a considerable number; only a small number, I think.

8084. I understand that the tenants on the Busta estate are entirely free to fish for any person with whom they may choose to engage?-Yes; and a great many of them go south and follow different employments,

8085. How many large mercantile establishments or shops are there on the Busta property which are held by fish-curers?-Four. There is one at Voe, one at Brae, one at Hillswick, and one at Lochend (Mr. Laurenson's).

8086. I presume these are all the large establishments of that kind in the district of Delting and Northmaven, except the shop at Mossbank?-No; Messrs. Hay & Company have one at North Roe, at the very farthest extremity of Northmaven, and then there are fishing stations at Stenness and Feideland.

8087. But at these stations the fishermen are all employed by one or other of the merchants whose places of business you have enumerated?-Yes.

8088. And all these merchants hold their shops under the Busta trustees?-Yes.

8089. Have they all leases?-Yes.

8090. Can you tell me from recollection what the rents of these shops are?-The shops are not separately rented; they are let along with farms in every case.

8091. The merchants are not tacksmen of any tenants, but they have farms?-Yes; merely their own farms.

8092. Is there any prohibition to sub-let on these farms?-Yes; in every case.

8093. What are the rents of these four parties?-£327 for the four.

8094. In the district from Busta extending to the march of the Gossaburgh property at North Roe, is the greater part of the land under your management?-Yes.

8095. The greater part of it belongs to the Busta estate?-Yes; three-fourths of it perhaps.

8096. Is there any understanding with the four merchants you have mentioned, that no other shops than theirs shall be opened upon your property?-No, a shop can be opened at any place.

8097. Have you objected in any case to the opening of shops, lest it should interfere with the business of these lessees?-I have not. There are several shops that have been opened lately.

8098. Were these small shops?-Yes; there was one you passed at the head of the voe going to Hillswick.

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8099. Is that Arthur Harrison's?-Yes; and there is one opposite it again, on the Roenessvoe side.

8100. Is there any apprehension on the part of the Busta trustees lest the rent paid by the larger establishments should be reduced by the opening of smaller shops?-None.

8101. Is it not the case that some difficulty was put in the way of Harrison opening his shop?-I believe something was said about it, but there was no reality in it.

8102. There was an objection made to it at first, was there not?- Yes; I believe there was some objection made, but there is nothing in the lease that could prevent it in any way.

8103. Nothing in what lease?-Nothing in Mr. Anderson's lease binding us to refuse, and nothing in any lease on the Busta property.

8104. Is there not an obligation in some of the leases of the tenants that no shops are to be opened on their holdings?-They are not allowed to open shops unless they ask permission. That is only to be done with the consent of the trustees.

8105. You say that Harrison was refused permission at first, but that shortly afterwards he was granted permission to open his shop?-I did not refuse him permission at first. Some other parties objected to him getting it, and said that no shops could be opened within a certain distance of Hillswick.

8106. Was it Mr. Anderson who objected?-Yes, I believe he did object.

8107. Was that by letter, or personally?-I don't think he objected to me by letter. He may have mentioned it to the trustees, or their agent, but his lease had been got some considerable time before Harrison thought of opening the shop, so that he knew he could not stop it.

8108. But he did object notwithstanding?-Yes; I think he objected at first when he was taking his lease. I think he wished it to be put in that way.

8109. The hesitation which existed about giving Harrison the lease, or the delay in agreeing to give him his lease, was due, I suppose, to Mr. Anderson's objection?-Harrison has got a lease.

8110. He has got it now, but it was refused, or at least delayed, when he first applied for it, was it not?-No; Harrison was only permitted to sell lately, but he had his lease before.

8111. But was not the permission to sell refused at first in consequence of Mr. Anderson objecting to it?-There was something said about it, but it was not practically refused.

8112. Had you had any communication with Mr. Adie before finally giving Harrison permission to sell?-None whatever.

8113. Neither verbally nor by letter?-Neither verbally nor by letter.

8114. Did you understand that Harrison was going to cure fish for Mr. Adie?-Yes; I understood he was going to cure fish for Mr. Adie, or any other body he could get them to cure for.

8115. And he informed you that he had made a contract with Mr. Adie for curing fish at the time when you granted the permission?-I think he went from Busta to Lerwick, and spoke to Mr. Harrison and some other fish-curers, and I believe he expected to get some from Mr. Harrison, and some from Mr. Adie; but so far as I am aware, he has only got them from Mr. Adie. But he was quite open to take them from any party he could make the best bargain with.

8116. Had you any letter from Mr. Anderson objecting to Harrison opening a shop?-No, so far as I am aware.

8117. You think he only wrote to some of the other trustees?-I am not aware that he has written a letter about it since he got his lease. I think he objected to it about the time he took his lease.

8118. But not at the time when Harrison was wanting to sell?- No; I think at the time when Mr. Anderson took his lease he wished it mentioned that no other party should be allowed to sell within four miles of him, but that was not entered in the lease.

8119. Then do you mean that no objection was made by Mr. Anderson to Harrison being allowed to sell goods at the time when he (Harrison) was applying for that permission?-There is no doubt Mr. Anderson may have objected to him, or to any other party, doing so, but he could not do it in any way so as to affect Harrison.

8120. Was that because the power of granting or refusing permission lay entirely with you?-I suppose so.

8121. But, in point of fact, did Mr. Anderson make no objection to you or to any of the Busta trustees, so far as you know, to Harrison being allowed to sell?-I am not aware whether he made any application to the trustees, or their agent. I know that he mentioned the matter more than once but that is all I know.

8122. He said that he thought Harrison should not get permission?-Yes; that is all he did. I am not aware that he wrote to the trustees on the subject after he got his lease.

8123. But he mentioned it to you when you met him personally?- Yes; he mentioned it more than once.

8124. And that was about the time when Harrison was applying for leave to open his shop?-Yes.

8125. I presume there is no understanding between the Busta trustees and any of the merchants whose establishments are upon the estate that these merchants are responsible for the rents of the men?-There is no understanding of the kind. There is not a single tenant on the Busta estate, out of the whole 480 on it, or out of the 530 with whom I have to do that any of the merchants is liable for, even as a cautioner. That used to be the case some time before but it has not been so for a long time.

8126. Do you know, in the course of your dealings with the tenants, whether there is any arrangement between the merchants you have named, or any of them, to the effect that when a man ceases to fish for one and has a debt due to him, the merchant who engages him must undertake that debt?-There is no such arrangement that I am aware of. Some years ago, I believe, that was done by some parties, but I don't think it is done by any of them now. I refer to the practice of a merchant when he engages men taking over the debt or part of the debt which they are due to their old employer.

8127. You don't know about that?-Yes, I know about it. I know that there was such an arrangement some years ago.

8128. I suppose if Mr. Anderson told you it not given up, you would be quite prepared to believe that that arrangement still exists?-I believe it was given up, because in most of the cases when a merchant took over a debt in that way, very little of the old debt was paid. I have known parties take over with debts of £15 and £20 standing against them, and these debts never were reduced.

8129. Had you any concern with that arrangement yourself?- None whatever. I merely heard of it.

8130. I believe most of the merchants or fish-curers are also dealers in cattle?-I believe they are, to some extent.

8131. They purchase them both privately and at the periodical sales which are held for each estate?-Yes.

8132. Would you describe shortly the nature of the sales that are held? They are held twice a-year, are they not?-Yes, twice a-year for the Busta and Ollaberry tenants, and they are sometimes held at North Roe for the Gossaburgh tenants. But there are always sales at Ollaberry and Mavisgrind, generally at the end of October, for the tenants cattle.

8133. What is the reason for having sales for these particular estates?-Merely to give the tenants the advantage of having their cattle sold. I am not aware any other reason than that. At the Busta sale cattle belonging to other parties are taken in, as

well as cattle belonging to the tenants, although it is only for the benefit of the tenants on the estate that the sales are held.

8134. At these sales, are many of the cattle purchased [Page 199] by the merchants?-A good many. With reference to my former statement, that £327 is the rent of the four shops, I wish to explain that that is much short of what it should be. It is nearly £450 for the four; and my explanation of that is, that Mr. Adie has got a large park in connection with his premises, and Mr. Inkster and Mr. Anderson have the same at Brae and Hillswick, and they all require to buy extensively for their parks.

8135. Are you acquainted with the practice in this country of a creditor marking cattle, and holding them as a kind of security for debt?-Yes.

8136. Is that a common thing here?-I don't know if it is common; but I have known several cases where it has been done.

8137. I suppose that where a merchant does that it is not held to interfere with the landlord's hypothec or his rent?-No. The rents are generally paid before the merchants interfere in any way with the cattle.

8138. But when a merchant interferes with cattle in that way, or purchases them in at a sale, he buys them of course subject to the landlord's right?-If he buys them at a sale, he buys them direct off, and pays the money for them; but if he secures the animal privately, it generally remains with the party until it is taken away. In a transaction of that kind, the animal is priced, and it is removed at a convenient time for both parties. It does not come to a public sale at all.

8139. The animal, in that case, is retained by the tenant?-It is marked and priced and retained by the tenant, and taken over by the purchaser when he wants it.

8140. The cattle are priced the time they are pledged, or marked as it were?-I believe they are.

8141. Is that an arrangement between the merchant and the tenant?-Entirely.

8142. And they arrange the price between themselves, or does the merchant put the price on the cattle?-I think it is a mutual arrangement, because there is much competition for cattle, that the merchant must do that.

8143. Do you think there is any understanding between the merchants, that when a marked beast is exposed at any one of these periodical sales, the other merchants shall not bid against the merchant for whom the animal has been marked, but that it shall be knocked down to him?-I believe that very few of the marked animals are ever exposed at the sales, but I have known them exposed in some cases. I have known cattle being marked in that way, or pledged to Mr. Inkster at Brae; and if brought to the sale, they would have been entered in his name or in the name of the party who brought them, and the sellers would have got the full price.

8144. But more commonly, cattle that are so marked are taken over by the merchant himself privately?-Yes. I have known no other cases of parties bringing them to the sale, except Mr. Inkster.

8145. If a merchant does take over a beast in that way privately, I suppose you would still hold him responsible for the rent, if still unpaid, to the extent of the value of that beast, and if the period of your hypothec had not expired?-Certainly.

8146. Do you often have occasion to arrange with merchants in that sort of way?-No, very seldom. The rents are very generally paid up.

8147. Do you think the introduction of a system of short settlements, if it could be effected, would improve the character of the people on the Busta estate?-I believe it would.

8148. You would be in favour of such a system?-Certainly I would.

8149. From what you know of the country and of the people, do you think such a system would be practicable?-I don't know if it would be practicable in some cases. With regard to the fishermen, I don't think a short-settlement system would be practicable.

8150. Is that because the men are so much in need of advances at the beginning of the season?-Yes; they cannot get on until they receive advances. There would be no fishing at all if there were no advances.

8151. But under another system would advances be impracticable?-I don't know what that other system might be.

8152. Suppose the agreement was that the fishermen were to receive a bounty at the beginning of the season, which would enable them to equip themselves, and that the price for the fish was fixed at the end, so that the men would have the advantage of any rise that might take place, would that system be a better one than the present, in your opinion?-They would not have the advantage of the rise if the price were fixed.

8153. I am not supposing the price to be fixed. I am supposing the man to get a bounty which would be calculated very considerably within the probable value of his catch of fish for the season, and that the settlement was made at the end according to the market price when the fisherman would get anything additional that might be due?-I am not aware how that system might work.

8154. Have you any knowledge of the system adopted at Wick with regard to the herring fishery?-Yes. I know something about it.

8155. Is there not some system of that kind followed there?-I could not say just now.

8156. Do you think the system of paying for hosiery in goods is a good one?-No; I think it is a very bad system. I think the hosiery should be paid for in money, and the goods sold at the same price.

8157. Do you think the system has a bad effect in the separation of interests it creates between the different members of the same family?-I think it has a bad effect in this way, that some parties would be more careful if they had their money, whereas at the present time they don't have the chance of that.

8158. Does the same objection apply to the long settlements with the fishermen which you make with regard to the system of paying for the hosiery?-Yes. There is often a long settlement in the payment for the hosiery too. There is an account run for the payment of hosiery with many of the women. That would not signify so much if they were paid in cash when the settlement comes; but I am not aware that that is done, except perhaps in a few cases.

8159. Do you think women are induced under the present system to take more articles of dress than they require?-Not of dress.

8160. But they take anything they require unless money?-Some of them take provisions, and meal, and tea.

8161. In your part of the country, are provisions given for hosiery as well as goods?-Yes, and I know that hereabout a little cash is given too, but in very exceptional cases.*

*Mr. Gifford handed in the following statement, showing the number of holdings on the Busta and other estates under his charge and the amount of rent-

<No. of holdings on Busta. No. of holdings on other properties.>

Under £1 29 Under £1 2 " 2 38 " 2 2 " 3 53 " 3 5 " 4 83 " 4 4 " 5 101 " 5 8 " 6 92 " 6 9 " 7 86 " 7 8 " 8 19 " 8 4 " 9 11 " 9 4 " 10 2 " 12 2 " 12 7 " 14 1 " 14 4 Larger holdings 1 Larger holdings 5 50 480 Total rental, £2701 13 8 Total rental, £344 2 0

Brae, January 13, 1872, Mrs. CHRISTIAN JOHNSTON, examined.

8162. Are you the wife of a fisherman in Muckle Roe?-My husband was a fisherman once, but he does not fish now.

8163. Do you knit or weave?-I both knit and make gray cloth.

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8164. Do you sell both these articles at Brae or in Lerwick?-I sell them to any person that I get the wool from. I don't have wool of my own.

8165. By whom are you generally employed?-I have made some gray cloth for Mr. Anderson and some for Mr. Adie.

8166. Is it mostly gray cloth that you make?-Yes.

8167. Do you go to the shops and get the wool when you are out of it?-Yes.

8168. Do you buy it, or is it given to you?-We buy it.

8169. When you go back with it, are you paid for the work which you have put upon it?-We buy the wool, and then they buy the cloth from us again.

8170. What do you pay for the wool?-I bought 28 lbs. of it, and it was 1s. a lb.

8171. Do you spin it yourself?-Yes.

8172. How do you make the cloth?-There are men on the islands called wabsters who weave it.

8173. Then you spin the wool and take it to the wabsters to weave?-Yes.

8174. Do you pay for the wool when you get it at first?-We cannot pay for the wool until we get the cloth.

8175. Is it put down in your account?-Yes.

8176. And you are charged 1s. for it?-Yes.

8177. Do you take your web back to the merchant, or does the wabster take it to him?-I take the web and dress it, and go to the merchant with it.

8178. Who pays the wabster?-The merchant of course; it comes off what I have to get.

8179. Is the wabster paid at the time when he does the work, or when you come back from the merchant?-I pay him when I come back from the merchant after I have sold the cloth.

8180. How much cloth would you make out of 28 lbs. of wool?-I made 27 yards out of it.

8181. You make about a yard of cloth out of a pound of wool?- Yes; that is generally the way of it when it is ordinary wool.

8182. What is the price put upon the cloth when you take it back to the merchant?-That is just as the price stands; sometimes the price is up and sometimes not.

8183. But you spoke of a particular time when you got 28 lbs. of wool: was that long ago?-I got it in Christmas week, and I went back with it in the month of April.

8184. What did you get for it?-I got 2s. a yard.

8185. That would be 1s. a yard, for your work and the wabster?- Yes.

8186. Is that about an ordinary price?-It was the price that was given then.

8187. Do you sometimes get more than that?-Yes; if the price is up. I have got as high as 3s. 5d. for it.

8188. Was that long ago?-It is a few years since; I cannot recollect exactly.

8189. How are you paid for the cloth: do you get money for it?- Some pay in money and some not.

8190. Where do you get money?-I have got money in Mr. Adie's.

8191. Did you get money at that time when you went in April?- No.

8192. Why?-I don't know.

8193. What did you get?-I had just to take anything that was in the shop

8194. Were you told that you would not get money?-Yes.

8195. Did you want money?-Of course, I wanted a little.

8196. How much did you ask for?-I asked for the wabster's money. It was rather more than 6s.

8197. Did you get it?-Yes.

8198. Did you say you had to pay the wabster?-Yes; he was an old man, and I had to pay him.

8199. Why did you not get the rest in money?-The merchant made an objection that he would not.

8200. Why?-I don't know why.

8201. Did he say the bargain was that was to be paid in goods?- No, he could not say that.

8202. Why? Had you agreed upon a price before?-No.

8203. You were just to take the price that was the market price when you brought the cloth back?-Yes.

8204. Did you offer to take a less price if he gave the money?-He would give no money at all.

8205. Are you ever paid in money for your cloth?-Yes. I have been paid in money for some cloth.

8206. Is it a general thing in the country to pay in money, or to pay in goods?-When people have wool of their own, they make a difference.

8207. How would they make a difference?-Because if the wool had belonged to me I could have gone to any other merchant and sold it, but the wool was his.

8208. Was not the wool your own in this case?-If I had been able to pay for the wool when I took out, then it would have been my own.

8209. You mean that you got the wool on credit?-Yes.

8210. You had bought the wool, but you had not paid for it?-Yes.

8211. It was entered against you at 1s. a pound?-Yes.

8212. Then the wool was your own, although you might be owing Mr. Adie money for the price?-It was not Mr. Adie that that wool belonged to: it was Mr. Anderson that I got it from.

8213. And he would not give you the money at all?-He would not.

8214. Why did you not take it to somebody else and sell it for, money? If you had done that, you could then have sent the 28s. to Mr. Anderson, which you were due to him for the wool: did you not think of doing that?-No; I did not think of doing it.

8215. Could you have done that?-I might; I don't know; I never asked.

8216. Do you think Mr. Anderson would have objected, or would he have allowed you to take the cloth away again after you had brought it?-I cannot say because I never asked about that.

8217. Did you ever ask money before with which to pay the wabster?-Yes.

8218. Did you get it?-I have got money before from Mr. Anderson himself,-money to pay the wabster.

8219. Did you get as much as you wanted for that purpose?-Yes; just for the wabster.

8220. But not for your own work?-No.

8221. You had to take what was due you for your own work in goods?-Yes.

8222. I suppose you always wanted these goods for your own use?-We are always needing goods.

8223. But were you quite content to take the goods in place of money?-Yes, sometimes.

8224. You would rather have had the money sometimes?-Yes.

8225. But was it not the rule in the trade, and was it not the bargain made with you, that you were to take goods, and not to seek money?-No; there was no bargain made about it.

8226. Is it not the understanding in the trade that the cloth is to be paid for in goods and not in money?-I don't know.

8227. Have you made any cloth since that?-Yes. I made a piece for Mr Adie, but I got the money for it.

8228. Did you get money for the whole value?-Yes.

8229. Or was it just what you required for the wabster?-No; I got money for all that I had to get.

8230. Did you get the wool on that occasion from Mr. Adie?- Yes.

8231. He just charged you for the wool and gave you the whole balance for your work in money?-Yes.

8232. What quantity was there of that?-I don't recollect; we are always getting something out of the shop.

8233. Then you did not get the whole price of your work at that time in money?-No; I had got something out of the shop before that I was needing.

8234. You were due an account at the shop?-Yes.

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8235. Was that account as much as the value of the cloth?-No.

8236. You had something over to get?-Yes.

8237. Did you get what was over in money?-Yes, I got £1.

8238. Was that lately?-It was before Christmas.

8239. Do you keep an account with Mr. Adie at Voe?-No, I keep no account.

8240. But you had an account at the time when you settled for that cloth?-Yes.

8241. How long had that account been running?-For about two years.

8242. Did you go and get the wool and make the cloth in order to settle up that account?-Yes.

8243. Was your husband fishing at the time when you were due that account?-No; it was my own account.

8244. Is it a usual thing for a woman, when she is making cloth in that way, to have an account of her own with the merchant?-Yes.

8245. She gets the goods she wants and then settles for them when she brings the cloth?-Yes.

8246. How often do you settle when you have an account running in that way?-It is not often that I make the cloth, for I have very little time in which to make it.

8247. Do you ever knit?-I knit very little except what is required for my own family.

8248. Do any of your daughters help you in making the cloth or in knitting?-Yes.

8249. You all work at it?-Yes.

8250. Have you separate accounts, or do you all keep the same account with the merchant for your cloth?-We all keep the same account. We have no separate accounts.

8251. Do you think you would be better off if you got the whole payment of your cloth in money?-We might be better, but we are always needing something from the merchant.

8252. You don't think you could buy your goods any cheaper if you had money?-I don't know.

Brae, January 13, 1872, MRS GRACE WILLIAMSON, examined.

8253. Do you live in Muckle Roe?-Yes.

8254. Do you knit and also make cloth?-Yes.

8255. Have you heard what Mrs. Johnston said just now?-Yes.

8256. Have you the same way of dealing about your cloth which she has described?-No. I do not make any cloth except with what little wool I have of my own, and I sell it. I am paid for it just at the price which is going.

8257. Are you paid for it in money or in goods?-I get the price either in goods or in money, either way I choose to ask it.

8258. Do you generally get the same price for your cloth if you take it in money?-Yes. I sold a piece this winter to Mr. Adie, and I got the same in money for it as I would have got in goods.

8259. How much did you sell?-I sold about 30 yards.

8260. What was the price of it?-3s. 1d.

8261. Was the price higher then than it was in April?-Yes.

8262. Was your cloth better than Mrs. Johnston's?-I do not know.

8263. Was that paid to you altogether in money?-No; I took some goods.

8264. Had you an account at the shop at that time?-No. I never had any kind of credit in the shop before. I did not mark anything.

8265. Had you got anything before from the shop at all?-No.

8266. You just took some goods at the time when you took in the cloth?-Yes.

8267. What was the price of the goods you bought?-I can scarcely recollect.

8268. Was it £2 or £3?-No; I think it was something more than £1, but I cannot recollect.

8269. And you got the rest in money?-Yes.

8270. That would be £3 or £4 you would get in money?-I don't recollect what it was. My husband was along with me, and I did not keep an account for myself.

8271. Was it your husband that took in the cloth?-He and I were together.

8272. Have you always continued dealing in the same manner, getting what you wanted in goods, and as much as you required in money?-Yes, of course. Mr. Inkster is the only merchant we have any credit with.

8273. Have you an account with Mr. Inkster?-Yes.

8274. Does your husband fish for him?-Yes.

8275. And do you sell cloth to him too?-Yes; I sold some last year to him.

8276. Have you a book with him?-No; we don't keep any account ourselves. The things are entered in the book which he keeps himself.

8277. Have you an account with him in your own name as well as your husband?-I don't have any account in my name. One account serves for us both.

8278. Is it customary in these parts for one account to do for both husband and wife?-I don't know about any one except myself.

8279. Do you knit any?-A little but the cloth is the most that I do.

8280. Do you get money for your cloth at Mr. Inkster's place if you want it?-Yes, we get money if we ask for it.

8281. Have you generally a balance to get at the end of the year when you settle?-Yes.

8282. That balance is for your husband's fish and for your cloth?-Yes.

8283. That is to say, what you have to get for your fish and your cloth is a good deal more than you have to pay for things you have got out of the shop?-Of course it is.

8284. And you have to pay your rent out of that balance?-Yes.

8285. Have you always been in the habit of getting money for your wabster?-Yes; when we require money and ask for it we get it.

8286. Would you have got as much money two or three years ago as you got the last time you went with cloth?-No; cloth was not so high last year as it was then.

8287. But suppose you had, two or three years ago, taken a web that was worth £4, would you have got £2 or £3 in money on the price of it?-Yes, if I had asked for it I would have got it.

8288. Would you have got that five years ago if you had been selling it at that time?-I don't know about five years ago. I don't recollect.

8289. Did you ever get as much money before as you got on that last occasion?-Yes; but we took goods when we required them. There were some years ago when we were getting a bigger price. Mr. Anderson gave 3s. 8d. out-takes (<i.e.> in goods), and 3s. 5d. in money; but I don't recollect how long ago that was.

8290. Then there were two prices for your cloth?-Yes.

8291. Did you ever sell £4 worth of cloth four or five years ago?- I don't think it.

8292. Did you ever sell £2 worth?-I think so.

8293. Did you ever get one-half or three-fourths of that in money?-I cannot recollect; it was always my husband who went with it, and he would recollect better.

8294. Did you ever get above 5s. in money for your wabster before this time?-Yes; we have got more than that, if we asked for it.

8295. How much more?-I cannot say exactly. We just got what we asked, unless the price was all the lower.

8296. Did you ever get 10s. in cash before?-Yes.

8297. Did you ever get 15s. in cash?-Yes.

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8298. Or £1?-Yes: I have got that too, if I had to get, and if I was not taking out goods.

8299. If you got £1, how much would be the price of the web which you took in?-I could not say unless I recollected exactly what number of yards there were.

8300. But you said you never sold as much as £4 worth before?-I don't mind about that. I may have done it, but I don't recollect.

8301. Do you ever mind of selling £3 worth?-Yes.

8302. Did you ever get £1 in cash out of that?-Yes; I would have got £1 out of that.

8303. But did you get it?-Well, we have got it, but I cannot mind the time exactly.

8304. Do you think it has been easier to get cash for your webs during the last year than it was before?-It may have been; but we were always needing goods, and it is just as well for us to take goods when we are needing them, as to get money and go anywhere else farther off. Of course, if we did not get goods here at a reasonable price, we might get them farther off.

8305. I suppose you know that you want the goods yourself?- Yes.

8306. And you know that the merchant would rather sell you the goods than give you money?-I cannot say that I ever saw any case with any merchant I ever dealt with where he would not give us the money if we had asked for it. I never was much in debt to any merchant.

8307. But it was mostly your husband that took the goods in?- Yes. I never was much in with any merchant, and therefore I could go to any place where thought I could get most for my work.

Brae, January 13, 1872, MARGARET WILLIAMSON, examined.

8308. Do you live in Muckle Roe?-Yes.

8309. Do you knit or make cloth?-I knit mostly, but I make some cloth too. I knit men's shirts and women's sleeves.

8310. Do you knit with your own wool?-I have to buy some but I have some of my own too.

8311. The wool was not given out to you to knit?-No.

8312. Where do you sell what you knit?-For the last three years I have sold it in Lerwick.

8313. Do you always go to Lerwick with it?-Yes, with all that I knit.

8314. Do you always get goods for your knitting?-Yes; I get goods, because I can get nothing else.

8315. Do you want to get money?-I hardly ever ask for money. I asked for a penny the last time out of 35s., and they refused to give it to me. I bought all that I could buy out of the work I had taken in and when it came to the last penny I asked for it, but they would not give it. That was at Mr. Linklater's.

8316. What did he say he would give it in: sweeties?-No; they would not keep any sweeties for fear of having to give them.

8317. What did they give you?-They gave me the penny at length, but they said we must take goods.

8318. Did you need all these goods for your own use?-I needed them all at that time, but I don't need them all now. If I knit any, I need hardly any goods now.

8319. If you were knitting now, you would rather have the money?-Yes; because I am needing hardly anything else.

8320. Do you live with your parents?-Yes.

8321. I suppose you would like to help them a little in keeping the house if you could get money for your knitting?-Yes; because my father is an old man, and is very sickly, and he is not able to keep the house as he used to do.

8322. Is it the case that you cannot help him because you cannot get money for your knitting?-Yes; I cannot help him in that way.

8323. Have you ever given away any of the goods you have got to your neighbours for money or for provisions?-No; I kept them all to myself.

8324. Do you sell the cloth you make in the same way that Mrs. Johnston and Mrs. Williamson have stated?-Yes.

8325. You get some wool from the merchant?-Yes.

8326. And that is set down against your name in an account?- Yes; until the cloth is brought back to the shop.

8327. When the cloth is brought back, the price the wool is deducted?-Yes.

8328. Do you get the balance in money?-Yes always in money, if I like to take it in money.

8329. Do you sometimes take it in goods?-I generally take it in money, because I am not needing goods.

8330. Do you think you would get a bigger price if you took it in goods?-Sometimes it is all the same. This year it is all the same whether you take money or goods.

8331. But some years it is different?-Yes, a little.

8332. Does the merchant tell you generally that he would rather you were to take the price out in goods?-No. The most of the cloth which I have made has been for Mr. Adie, and he gives me the money just soon as the goods.

Brae, January 13, 1872, GIDEON WILLIAMSON, examined.

8333. Are you a fisherman in Muckle Roe?-I am.

8334. Have you a piece of land there?-Yes.

8335. Whom do you fish for generally?-For Inkster. I have fished for him for five years.

8336. Do you settle every year in the spring?-We settle at Hallowmas for the twelve months.

8337. Do you always deal in Mr. Inkster's shop-Yes; I deal oftenest there.

8338. What do you go for elsewhere?-It is very trifling. My dealings are mostly with him.

8339. Is that because you fish for him?-Yes.

8340. Have you an account?-Yes.

8341. Are you obliged to deal on credit?-Yes, sometimes I am, because I must have supplies.

8342. Is that the reason why you go to his shop?-No. I would just as soon deal with him, if I had money, as I would go elsewhere.

8343. Is there any other place hereabout where you could deal?- Yes; but I would just as soon deal with Mr. Inkster as with any other man.

8344. Are you generally behind at the settlement?-Sometimes I am a little.

8345. But sometimes you have a balance to get in cash?- Sometimes; but sometimes the seasons are so bad that I have to go to him for a little supplies.

8346. I suppose that is the reason why you continue to fish for him? If you owe him a little money, you don't like to go and fish for another man?-I don't see what I could get by fishing for another; I pay him the same for his goods, and he pays me the same for my fish as another would do.

8347. Are his goods of as good a quality as in other shops?-Yes.

8348. Have you known any fishermen who have left one employer and gone to fish for another?-No; not that I could point out.

8349. A man generally continues to fish for the same merchant?- Yes; unless it may be a man who changes and goes south.

8350. But if he remains in the same place, does he generally go on fishing for the same merchant for years?-Yes; but I have heard of some of them shifting.

8351. What do they shift for generally?-They may shift to get chances in boats belonging to other curers.

8352. They think they may be better off perhaps by getting into another crew?-Yes.

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8353. Do men sometimes want to shift to another crew or another master, and are prevented from doing so because they are in debt?-I have never tried that.

8354. Do you know whether that is ever the case?-I could not answer that question, because I would not like to say anything I was not sure about.

8355. I suppose you would not think of leaving Mr. Inkster so long as you were in his debt?-Even if I was clear with him, I see no good I could do to myself by leaving him. If I ask him for money, I get it, just the same as out-takes; and I get out-takes from him, just the same as if I was paying down ready money for them.

8356. Do you think you would be any better off if you had not to run such a long account?-I don't know. A poor man generally can have very little until it comes perhaps to the twelvemonth's end; and if it were not that we have sometimes a beast to sell, or something like that, we would have very little to live on throughout the year, because the fishing time is only for about three months in the summer.

8357. You think if you were settled with at shorter periods, you would not have enough to carry you through the year?-Yes.

8358. And you could not settle with the merchant at the end, because the account you have to pay is bigger than what you have to get?-Yes.

8359. Is that sometimes the case?-Yes; because for some years there has been a good deal of bread to get in consequence of lean crops, and that brings the poor fishermen very much down.

Brae, January 13, 1872, JOHN WOOD, examined.

8360. Are you a fisherman in Muckle Roe?-I am.

8361. Do you fish for Mr. Inkster?-Yes.

8362. Have you heard what Gideon Williamson said?-Yes.

8363. Is your way of dealing the same as he has described?-Yes; the very same.

8364. Have you anything different to say?-No.

8365. How long have you fished for Mr. Inkster?-Nine years.

8366. Have you ever wished to change?-No.

8367. Do you always get your supplies from him?-Yes.

8368. Are you generally somewhat behind at the end of the year?-Sometimes.

8369. Who did you fish for before?-Mr. Anderson.

8370. Why did you leave him?-Because it was more convenient for us where we lived to fish for Mr. Inkster.

8371. Were you clear with Mr. Anderson when you left him?- Very nearly. I think I was due him £1 or so.

8372. When did you pay that up?-Mr. Inkster paid it up for me. He sent it to Mr. Anderson at the end of the season.

8373. Is that a usual thing to do when a man has shifted?-Yes,

8374. His new employer pays up the whole of his debt?-Yes.

8375. Have you heard of that being done often?-Yes; I have heard of it being done.

Brae, January 13, 1872, GILBERT SCOLLAY, examined.

8376. You are a tenant on the Busta estate?-Yes.

8377. Do you fish any?-No.

8378. I understand you have come here to say something about your line of life and its bearing upon this inquiry: what is it?-My principal means of living is that I get an annuity for keeping some pauper lunatics belonging to several parishes, Delting and Tingwall, and so forth.

8379. What have you got to say about that?-At the time when I commenced to do that, I unfortunately was not clear with the man who now supplies me.

8380. Who is that?-Mr. Thomas Adie.

8381. Had you been a fisherman before?-No; I had been a sawyer for many years.

8382. Had you kept an account at Voe?-Yes.

8383. Were you behind with it?-Yes, a little.

8384. How much?-I could not exactly say, but it was a good deal.

8385. Was it £20?-Perhaps more at times, and sometimes less; but we will say it was that.

8386. What have you to say about it?-I want to speak about the way of supply, and the prices of provisions and other things; I never had my money at command.

8387. How long ago is it since you had that debt?-It is perhaps ten years ago since I commenced with one pauper, and then I got another one. I gave Mr. Adie leave to draw my money with which to settle my accounts, and I got supplies from him.

8388. Where do you draw your money from?-From the parishes that I had got the lunatics from.

8389. Was it because you were due Mr. Adie money when you left that you gave him leave to draw your money?-It was not that altogether. It was quite right, when I was due him an account, that he should be paid for it, but he drew my money from the parishes and supplied me with meal. Perhaps I required ten or twelve sacks a year. I do not get it all from him now. If I had had the use of my money, I might have tried to settle the old account with Mr. Adie and have got my meal where I liked, but I could not do that. With the money I could have got my articles at cost price. I asked my money from Mr. Adie, but he refused to give it me some years ago.

8390. He refused to give it you because you had made an arrangement with him that he was to draw the money?-Yes; not to lay it out, but only to draw it for me.

8391. Was it not the arrangement that he was to draw it for you in order that he might pay his own debt?-We never had any arrangement of that kind, but that was perhaps considered to be the arrangement both by him and me. I would have done that willingly.

8392. Have you squared up your accounts with Mr. Adie at any time?-It is a good while since I was able to do that without injuring me otherwise; but Adie having the use of my money, I got my things from him.

8393. What was the account for which was due to Mr. Adie?-For meal principally, and clothing.

8394. Have you got an account?-Yes; it is in Mr. Adie's book at Voe.

8395. Have you gone over every year at settling time and squared up your account, and seen how much you were due to him, or how much he was due to you, at the end of the year?-Sometimes I did and sometimes not. I knew that I was not able to meet

that account, because I did not have the use of my money. If I wanted a dozen sacks of meal, I was always told that there was 2s. a sack as commission for the risk of getting it, and ultimately I wrote to the meal dealers in the south, and I found that there was a difference of 10s. on the sack of meal; that, upon 12 sacks, would have been a saving of £6 alone.

8396. Did you give Mr. Adie an order to the inspector to pay the money to him which was due to you?-Yes, I told Mr. Adie to draw it for me, and I signed an order that he was to draw it.

8397. And he has drawn it ever since?-Yes.

8398. Was that for the money which you were to get from Delting parish?-Yes.

8399. Is Mr. Adie a member of the Parochial Board of that parish?-Yes.

8400. Is he the chairman?-I don't know.

8401. Who is the inspector of that parish?-Mr. Louttit.

8402. What do you think can be done for you?-I made my complaint to Mr. Adie lately about the state of these things; but it is not my wish to mention the names of any parties. It is only the practice that I object to.

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8403. What practice do you refer to?-This truck system, and the enormous prices that are charged.

8404. What have you to say about the prices? You have told me that you can save £6 on 12 sacks of meal by dealing south?-Yes, by dealing with Tod Brothers. I wrote to them about it, and they answered me.

8405. Have you got their answer?-No, I have not got it, but I remember it quite well.

8406. How long ago was that?-Just two or three years since.

8407. What was the price of Mr. Adie's meal at that time?-It was 34s. per sack for Indian corn meal.

8408. What was the price of Messrs. Tod Brothers'?-22s.

8409. That was it difference of 12s. per sack?-Yes, but it left me to pay the freight, which would be about 2s. 6d.

8410. Could you have got the meal brought up here for 2s. 6d.?- Yes, or whatever the 'Queen of the Isles' charged.

8411. How many sacks of Indian corn meal would you require in it year?-Perhaps about a dozen sacks.

8412. Do you feed the lunatics on that meal?-No, not the lunatics, but my own family, and sometimes the lunatics too.

8413. Have you made any comparison between the prices charged at Mr. Adie's shop and elsewhere?-Yes. I could buy it at Mr. Robertson's store, at Vidlin, for 27s.; that, upon 12 sacks, would make it difference 4s. between the two places.

8414. Could you not have got your meal from Mr. Robertson's store?-I got some of it, because I kept a party from Lunnasting, and I got part of my supplies there.

8415. Did you get your supplies for that lunatic from Lunnasting?-Occasionally, when I asked them.

8416. Had you an account there?-Yes; I could either get money or anything that I wanted which was due. I could not have done that with Mr. Adie; and therefore I have never been able to get clear of my debt to him.

8417. Did you bring your supplies all the way from Mr. Robertson's store to where you lived?-Yes.

8418. Was that because you kept a lunatic pauper from that parish?-Yes. I took advantage of that, because I could get my goods cheaper there but I could have got money as well, and have gone to any other place with it. If I had had money to get from Mr. Adie, I would have got it from him too with good will, but I never had it to get, and it is that which has kept me deeper and deeper in spite of all I could do.

8419. Could you not have gone to the Parochial Board of Delting, and got your money whenever you pleased, instead of letting Mr. Adie draw it?-I might have got it, but Mr. Adie at one settlement made up a line, and I was compelled to sign it, that he was to draw all the money which I had to get for the lunatic from that parish. I signed it because he wrote me a letter saying I was to come down and pay my account, and then to transfer my custom, which I was not able to do without leaving me destitute.

8420. Have you got that letter?-No.

8421. What did you do with it?-I just destroyed it carelessly.

8422. How long ago was that?-I could not exactly say. If I state it incorrectly, it is not done willingly, but it may have been three years since. At the same time I asked Mr. Adie to give me the use of my money, and to keep some of it in order to pay the old account, but he did not do it, and that is the main cause why I am so far behind. I could have had my account with him paid by the profits I could have saved from dealing in the south; I am perfectly sure of that.

8423. But if you wanted your money, why could you not have gone to the Parochial Board and told them to pay you, and not to regard Mr. Adie's orders about it?-What would have become of what I was due to Mr. Adie if I had got the money from the Parochial Board? It was my duty, and I had to pay it to him. At that very time Mr. Adie told his shopman not to supply me unless I came to his shop with cash.

8424. But you wanted to stop going to him because you thought you could get your supplies cheaper elsewhere?-If I had got my supplies in the south, I could have paid him something yearly and lived better. I was making my complaint to Mr. Adie lately, and he promised (and no man was ever deceived in anything that Mr. Adie ever promised, neither was I) that for the future I should get my things at cash price. So

far as I am concerned, I have no cause of complaint now; but that has been the cause why I am in debt.

8425. How long ago was that arrangement made about getting your things at cash price?-It may be two or three months ago, and I have got a part of the debt realized since. I have no reason to doubt Mr. Adie's word, or that of any of his sons.

8426. You have one lunatic from Delting, and you have another from Lunnasting?-Yes. I have not got a lunatic from Lunnasting, but a pauper that I keep at a separate house.

8427. But in consequence of having that pauper you get some supplies at Vidlin?-Yes.

8428. Who pays you for the keep of that pauper?-The inspector, Mr. John Anderson, of Lunnasting.

8429. Was there any arrangement made when you got that pauper, that you were to take supplies at Vidlin?-None whatever; it is by my own will that I go there. I can get money, or anything I like; but when I find it convenient, and that the goods are cheaper there than elsewhere, I go and take them.

8430. Are Vidlin and Voe the only places where you get supplies?-Yes; I have dealt with Mr. Adie for thirty years; and I have no cause of complaint against him, except the enormous price which he generally charges for his goods.

8431. Is there any other article which you could name besides meal which is charged at an enormous price?-This place is farther north, and the goods here should be charged a shade dearer, because there is more expense in bringing them.

8432. But can you mention any one article, such as cotton or cloth, which is dearer here than at Lerwick?-You can make a better bargain in Lerwick than in the north.

8433. Have you done that frequently?-Yes.

8434. You only keep three paupers?-Yes.

Brae, January 13, 1872, JAMES ROBERTSON, examined.

8435. Are you a fisherman in Muckle Roe?-I was a fisherman at one time, but I am not fishing now; I am too old to go to sea.

8436. Has it always been the practice of the fishermen there to deal with the merchants they sell their fish to?-Yes; for forty years back. I have been about thirty years in the fishing.

8437. Have you been at the Faroe fishing?-No; I always went to the ling fishing.

8438. Did you always keep an account with the merchant who employed you?-Yes.

8439. Did you always fish for the same merchant?-Yes, for John Anderson & Co. and for Mr. Leisk, who was there before them.

8440. You always had an account at Hillswick?-Yes.

8441. Did you always go to Hillswick for your supplies?-No; only twice a year. I went for my fishing gear before the season began, and then at the end of the season I went again to settle.

8442. Did you get supplies then?-Yes, if I needed them.

8443. Did you always get the balance in cash when it was due?- Very often it was not due, and I could not expect a thing which was not due.

8444. Why was it not due?-Because of the bad [Page 205] fishings, and of the meal being very dear then; much more so than it is now.

8445. Did you always get more supplies than the value of your fish?-No, I did not do that always.

8446. But generally?-No, not at any time; I always tried to deal so as not to be in debt.

8447. But you said there was seldom anything to get at settling?- There was very seldom any cash that I had to take, because they were lean fishings.

8448. And because you had got supplies up to the value of your fish?-No; but I did not ask for any supplies beyond what I required for the fishing, and perhaps a little meal for my family, which they could not do without.

8449. But the price of that was generally as much you had to get at settlement?-It was.

8450. Was it ever more?-Not very often.

8451. Did you ever think of changing from one employer to another?-No, I did not think of that, because I did not see any good it could do me.

8452. Do you think you would not have got a better price?-No.

8453. And you would not have got better supplies from another merchant?-The only merchant I ever dealt with was Mr. Inkster, because his shop is nearest to me, and I always found his goods as cheap as any other man's.

8454. Would it not have been far more convenient for you to have got all your goods from Mr. Inkster's, instead of carrying them from Hillswick?-Yes; but with regard to lines and hooks, and such things as we require for the fishing, we could not get them from Mr. Inkster, because we were bound to go for them to the man that we fished for.

8455. How long is it since you gave up fishing?-About eight years ago.

8456. You continued to go to the merchant for whom you fished until that time?-Yes.

8457. Did you never think of fishing for Mr. Inkster?-No, because the men I fished with in the boat wanted to go to Mr. Anderson, and I did not want to make discord in the boat's crew.

8458. Have you heard the evidence of the other witnesses from Muckle Roe, Gideon Williamson and John Wood?-Yes.

8459. Is there anything additional that you want to say?-No.

8460. Do you think the fishermen are generally quite free to engage to fish to any employer they like?-They are quite right to engage to any man that would give the best bargain and the best agreement, and that is the thing they should do.

8461. But they would just get as good a bargain from one merchant as from another?-Yes, equally the same because it appears that one fish merchant won't pay more for his fish than another does.

8462. So that the fishermen would have no advantage in changing?-No.

8463. They cannot better themselves by shifting?-They cannot.

8464. Has that been your experience since you have been a fisherman?-It has been my experience all my life, and many besides me have found the same thing.

8465. They would like to better to themselves, but they could not?-That is the very thing.

8466. Do you think they would be better by curing their own fish?-They have no chance of curing their own fish, because those who do so have to find booths for them until the crafts come to take away the cured fish. Besides, poor men like fishermen cannot do that.

8467. They have to buy salt for the curing, and that costs a lot of money?-Yes.

8468. So that they are obliged to give their fish green to the merchant?-Yes.

8469. Have you ever known men to make any attempt to cure fish for themselves?-I have.

8470. Have they not been any better off in that way?-If the fish-curers had been agreeable to them doing that, they would have made a little off it. They would have saved, perhaps, a few pounds on the ton, but they could not find booths in which to put their fish at the season when they require to be housed. They had to pay cellar rent to the parties to whom the booths belonged.

8471. Could they sell their fish at as good a price as the curers could?-No. They could not seek out for purchasers in the south country as the curers can do, and they were obliged to sell their fish to the Shetland merchants and at the price which was current here.

8472. Don't you think the men would be better off if they could get payment for their fish earlier in the season, and could go and deal at any store they liked for their goods?-I don't know that that would be any advantage to them, because they know by experience that their earnings are very small, and they could not afford to take them in that way. They must try to save their earnings for their rents, and for the maintenance of their families.

8473. But if they got their money in their hand, instead of running an account, would they not make a better use of it?-I don't know. Some of them might be inclined to do so and some not.

8474. Might they not buy their goods cheaper if they had the money to pay for them?-Some of them might, but some of them might spend their money very carelessly.

8475. Did you hear what Gilbert Scollay said about getting meal cheaper in the south than it can be got here?-We all know that that is the case.

8476. Have any of you tried to get it in that way?-No.

8477. Why?-From want of knowledge. We don't know where to go in order to find the cheapest market for meal.

8478. But Gilbert Scollay found out where to go and he would have told you?-Gilbert Scollay might have done that, but we never like to deal in the kind of meal which he bought.

8479. You could have got any sort of meal if you had asked it?- Yes, he would have got any sort.

8480. And so would you if you had gone to the right quarter. Don't you think if a lot of you now were to agree to buy meal from a man in the south, and were getting the price of your fish in cash, so that you could pay for the meal in cash, you would be able to make a better thing of it?-There is no mistake about that.

8481. What is to hinder a boat's crew or two from agreeing to bring their own meal from the south?-The fish-curer must supply them with money before they could do that.

8482. Will not the curer advance money to the men if they want it?-It would just be at his own option.

8483. Do you think the fish-curer would not give you the money before the end of the season?-I don't know, I never asked it, and what a man has not asked he cannot speak to at all.

8484. Do you think he would be likely to do it?-The merchants might do it to some, and to some they would not. They could not be expected to do it to a man who was indebted to them; but if a man was clear with them, they might have no objections to advance the money.

8485. I suppose it would not be easy to find a boat's crew where some of the men were not in debt?-I think there are a good few boats' crews of that kind.

8486. Could not a boat's crew, where none of the men were in debt, get their money in that way?-Certainly they could if they wished it.

8487. And they could import their meal from the south if they found it any cheaper?-Perhaps they could.

8488. Do any of your people knit or weave?-They do.

8489. Are they paid for their work in the way which Mrs. Williamson and Mrs. Johnston have described?-Yes.

8490. They are paid mostly in goods?-They can take either goods or money, because they are not in debt to any man.

8491. Do you keep an account with any merchant?-No; I keep the family accounts.

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8492. Do you keep them all in one?-Yes.

8493. Is that a common way at Muckle Roe?-I think it is, and I think it is the best way.

8494. Have you sometimes taken their webs to sell to the merchants?-Yes, I have sometimes done so.

8495. Have you ever got money for a web?-Yes, if I wanted it.

8496. But did you ever get it?-I have. I have got £4 at a time, when the web was worth it.

8497. Was that long ago?-It was this very year.

8498. Did you get it all in money?-Yes.

8499. Was that at Voe?-No, it was at Brae from Mr. Inkster.

8500. Did you ever get as much money before for any web?-No, I don't think so.

8501. Were you paid mostly in goods before?-No, not altogether in goods. If I did not require the goods, I could have it in money, because if I was not in debt to them they were obliged to pay me the money.

8502. Were they always obliged to pay money for webs?-Yes, to men who were clear with them, and who would not take their wool from them.

8503. But a man who was not clear would not get all money?- No, he could not expect it.

8504. The price of his cloth would be put to his account?-Yes.

8505. And he might get a little money if he wanted it?-Yes. I never knew a merchant to refuse a man a little money if he was in need of it.

8506. But the man had to tell the merchant that he was in need of it?-Yes, if he was in need, he had to explain that to him.

8507. If a man was in debt to a merchant, and wanted to get money for his web, could he not take it to another merchant?-Yes; but it would not be very fair to do so. A man who is in debt to another ought always to pay his debt when he can.

8508. But he might pay it at another time and he might be wanting the money for his own immediate needs?-Such cases as that might occur, but not very often.

8509. You think the people round about you don't often do that?- I don't think they do.

Brae, January 13, 1872, PETER BLANCH, examined.

8510. Are you a fisherman and farmer near Brae?-Yes, about a mile or a mile and a half north from this.

8511. Have you a good bit of land?-Yes, just about as big as most of the people have hereabouts-a small allotment.

8512. Have you got a brother in Ollaberry?-I have a brother-in- law there, and a cousin, William Blanch.

8513. Have you been present to-day?-Not all the time. I have been here for about an hour.

8514. Have you heard the description which has been given of how the fishermen are settled with for their accounts?-Yes. I was present at the first meeting which was held at Brae.

8515. Do you settle in the same way as you have heard described?-Yes, much in the same way; but I am a Faroe fisherman, and I have been so for the last twelve years.

8516. Are you a skipper?-Yes.

8517. Who do you ship with?-I have been employed by Mr. Adie's firm for the last five years. Before that I went out from Lerwick. I went for Mr. Sutherland, and then for Mr. George Reid Tait.

8518. You settle every year in the winter?-Yes, or sometimes twice in one year, but not often.

8519. You get supplies, as a rule, from the merchant in whose smack you go to the fishing?-Yes, we get that if we require them.

8520. But, as a rule, do you get your supplies from that merchant?-As a rule we do, but there are exceptions. For my own part, I have never been under the necessity of taking out supplies unless I chose; but, generally speaking, I have taken them out, especially stores required for our own use in the vessel.

8521. And when anything is required for the man's family at home during the season, is it generally got from the same merchant?-It may be. In most cases,, I think, that would be the case; but, for my own part, was not bound to do that, because at the time of settlement I had always something to take, and I could deal where I chose.

8522. You say you were not bound to do it: is it common for men to feel that they are bound to do that?-Of course. If I was employed by a curer or a merchant, and had been in the habit of dealing with another before I was employed by him, I would consider it something like a duty, in a moral point of view, to put my money into his shop, and I have done so, although I have never been obligated to do it.

8523. Are some of the men obligated to do that?-I think they are obligated, for this reason, that they could scarcely help themselves. Perhaps they had not the money to

purchase their goods elsewhere, and they were bound for that reason from a selfish motive.

8524. You think they could not get credit elsewhere?-Yes. Some of them I know could not get it elsewhere. Perhaps some of them could.

8525. But the merchant who employs men at the Faroe fishing is generally ready to give credit to a man who is in these circumstances, and who does not have money?-Of course he does. He understands he has that to do. They make advances, perhaps before, but as soon as the men engage to go to the fishing. It may be about this time, or it may be a month previous to this, when they make the engagement to go.

8526. And they made an advance then either in cash or in out-takes?-I don't think they will likely give much cash. They may give 8s. or 10s. in cash, but unless they know the man is to be depended upon I don't think they will give much more. They may give man until he has made some earning by his fishing; but unless it is a case where they know it can be paid back again by the man otherwise, they will not give it. He may pay it out of his stock for instance, he may have some other means. For my own part, of course, I was always so far able to pay my account, and I never had need to ask for money. I can only speak to that from personal experience; but I have known men who sailed with me for eight or nine years, and I know they have got a little money, perhaps 10s. or £1, at a time when they required it.

8527. Although they were bound?-I did not know about their being bound. I would not say much about that. I daresay some of them would be bound, and some of them were not.

8528. Have you ever known men being bound when, they engaged to a merchant?-No. I may have heard about it, but I could not show it by proof.

8529. Have you heard of men who are obligated, as you said, to engage with it particular merchant for the fishing because they were in his debt?-No; I could not say definitely as to that.

8530. Have you had an idea or it notion that a man might have engaged for that reason?-Yes; I have had that idea, and I have been told so by men themselves, but these men are not here, and I could not say that it was actually the case. For my own part, I have never been in these circumstances.

8531. Have you ever considered whether you would be better under any other arrangement than making settlement at the end of the year for the Faroe fishing?-I have considered that matter, and I have often thought that we might have been better than we are under the present state of matters. That may have been partly our own blame, in consequence of the want of information among the fishermen; but I have often thought, and I think so still, that we don't have that fair play which we ought to have. I think the present system is almost, if not altogether, a one-sided arrangement for the merchant. That is my opinion with regard to the Faroe fishing, and the ling fishers say the [Page 207] same. We don't know what we are to get until the end of the season. We go and toil away and catch fish if we can, but we don't know what we

are to get for them until the time of settlement. There is an arrangement made between the fish-curers or merchants, and by that time they have made up their minds, and have fixed upon certain price, while we under our agreement have just to take what they please to give us. Our understanding is that the crew get one-half of the nett, and the fish-merchant or curer gets the other half for his vessel. Of course, the salt and the expenses of curing deducted, and the master's and mate's extra, and the score money.

8532. There are some deductions before you come to the nett?- Yes; we don't get one half of the gross; we only get one-half of the nett. There is allowance for salt and curing, which is generally £2, 10s., and I think it could be done cheaper, but that may be our own blame. Then there is the master's extra and the mate's extra, which is a fee of so much per ton to each, according as the agreement is made.

8533. What other deduction is there?-There is score-money, and there may be the expense of bringing the fish to market.

8534. Is that a deduction, or does it not come off the merchant's half of the nett?-I don't know exactly how that is done. We never see the account sales of the fish, although we ought to see them, but that may be our own blame too.

8535. You don't know whether the merchant gets commission of 5 per cent?-I have been told so by one merchant that I was employed by, Mr. Grierson. I never was told that by any other merchant for whom I was employed, but Mr. Grierson told me that was actually so in his case.

8536. You are a skipper, and you actually don't know how the deductions are made which come off before the nett produce is halved?-Of course I have asked about these things, and I have been told that there were no other deductions taken off beyond what have mentioned.

8537. Do you have nothing to do with the making of these deductions yourself?-No.

8538. You have nothing to do with the weighing of the fish, nor with the selling of them?-No; nor with making a market for them.

8539. But you think you might be more fairly dealt with than you are?-I think we might. I don't know whether that is altogether the merchant's blame, but think we could have a fairer understanding, for two reasons: In the first place, we ought to have an understanding when we start or engage that we are to have a certain fixed price for our fish, the same as the Englishmen have. They know what they are to get before their fish are caught.

8540. Where do these Englishmen fish?-They are in smacks that come from London and Grimsby and Hull and Berwick, and they fish for curers in Shetland, and land their fish here.

8541. Have these men all an agreement for a fixed price?-So far as I understand, they have. At least I have been told so by themselves.

8542. These men have a fixed agreement with the curers here to whom they sell?-Yes. Of course, their men are not paid in the same way as we are. The men on

board these vessels, except the masters, are paid by weekly wages.

8543. And the master makes a bargain with the merchant here about the fish?-I rather think it is the owner who makes the bargain.

8544. Do you know the nature of the bargain they make?-I cannot say that I know definitely. I know the merchant here agrees to pay them a fixed price when the fish are landed in a dry state. They are salted on board the vessels, and they get £10, £11, or £12 a ton for salted fish when landed. They know they are to get that before the fish are caught, and they cannot expect anything more. Now; I say we ought to have something like that, and then we would know what we were actually working for. It might be that in that way we would get less than we do present, but we would have a fair understanding. If we lost in one year, we might gain in another.

8545. Do you think the men in Shetland, generally speaking, would be inclined to consent to a bargain of that sort? Would they not grumble very much if the price rose considerably before the end of the season?-It would only be parties who were dull of apprehension that would be likely to grumble. It would not be the intelligent men. For my part, and so far as my experience goes, I don't think a man of intelligence and experience would have a right to grumble in that case and I don't think he would do so. There are a great many I have spoken to, and reasoned the matter with, who, I don't think, would grumble.

8546. Do you think the fishermen, under such a system, would have the same advantage at the beginning of the season in making a bargain as the masters would have? Would the masters not be likely to know better what the market price was likely to be towards the end of the season, and thus be able to make a calculation as to the price more in their own favour?-The merchants ought, from their position, to have more information as to the probable state of the market, and, a rule, they do have more information; but I believe there are not a few masters of Faroe fishing vessels who could make as good a market, or nearly as good a market, as the curers could.

8547. You think they have all the information necessary to guide them in making a good bargain in the beginning of the season, or just as much as the curers have?-Yes. A curer would just be as likely to make a mistake in his arrangements as I would be. The market is so fluctuating that it is possible a curer may go and make a loss. He might possibly make an arrangement with another merchant to sell his fish at a certain fixed price, and there is a possibility of the fish rising after that, and of course I would stand the same chance.

8548. Do you say that in the English vessels the fish is salted before it is put on shore?-Yes.

8549. Is that the case in your smacks also?-Yes; we are always bound to do that. We could not keep the fish otherwise. When fishing on the coast of Faroe or Iceland, or elsewhere, we cannot help ourselves; we must salt them in order to save them.

8550. Is the salt put on board the vessel, and supplied by the fish-curer at starting?-Yes.

8551. You said you thought 50s. a ton was rather too high a charge for salting and curing: is that your opinion?-I am inclined to think so. I know the price of salt as well as the curers do. I have been in the habit of buying salt at Liverpool more than two or three times, and I know what I have paid for it, buying it with ready money. The last cargo of salt which I brought here cost 7s. per ton, when ready to leave Liverpool, and the freight here would be 10s. Then there would be 1s. per ton for landing, at least. Then there would be 2s. for wastage and they might take off 1s. or 2s. more for cellar rent. That would be 22s.

8552. Would that be the total cost of the salt delivered in Shetland?-It might vary; but that is what I paid for it the last time I bought a cargo.

8553. Do you think 22s. is a liberal calculation for it?-I think so. Then the people have to be paid for curing, that is, washing and drying the fish, and I think they generally pay at least 12s. per ton, or in some cases more, for that. I have never cured fish myself, but I have been told by curers that that is about the expense.

8554. That would be 12s. for the workpeople employed at the curing; but you would also require some allowance for implements and sheds and booths?-No doubt an allowance would require to be made for that too. In some cases a man may be curing fish where he has to provide a booth for himself, and he has to get covering from the fish-curer or merchant. That, however, would only be a trifle.,

8555. Would 3s. a ton be too much for that?-As rule, I think it would not.

8556. Would it be too little?-I think it would not be too little; I think it would fully meet it.

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8557. Would there be any other expense for the curing of the fish?-Not so far as the curing is concerned.

8558. You say the charge for curing is 50s.?-Yes. I have paid my share of it at that rate, and I have sometimes paid for it at the rate of 52s. 6d., but it has been less than 50s. in my experience. At one time it was 45s., but of late years it has never been less than 50s.

8559. The calculation which you have made comes so that you think the fish-curer makes a profit of 13s. per ton upon the curing: is that your opinion?-My opinion is just exactly as I have stated it. It is possible I may be wrong in some of the items, because in some cases the merchant may have to give the curer more. It may be a late season, or a wet season, and in order to get the fish dried and ready for market it is possible they might encourage the curer, by giving him 1s. or 2s. more.

8560. The expense might be more than 37s. a ton in some cases?-It might be.

8561. But you think that 37s. a ton is a fair enough calculation, so far as you can make it, for the usual expenses of salting and curing?-I think so.

8562. Do you think fishermen could cure for themselves upon a small scale?-It might not be easy to get a crew together which could do that, but I think it could be

done. I do not see why the master of a Faroe fishing vessel could not get a man to cure his fish as well as another man. There are often beaches that he could get the use of for the time being, and I think it is quite possible they could get their fish cured, but there may be some difficulty about it. It might be that every person would not be able to do it.

8563. You do not know whether that has been tried?-I do not. For my own part, I never attempted it.

8564. Do you think the system of running accounts among the Faroe fishermen you have met with has led them to incur too large amounts of debt?-I am inclined to think so.

8565. Is that one of your reasons for wishing to have a price fixed at the beginning of the year?-That would be one of the special reasons, but it is not the whole reason. I have another reason for that, which is, that as the system exists now, if the merchant makes a good bargain or a good market for his fish, and the man he sells them to does not fail before the price is payable, the merchant never loses, because he never pays the price to us before then which he can afford to pay. He is always secure; but if he had a fixed price to pay for the fish; he might lose as quick as I would. That is my main reason for objecting to this system. I would like to have the thing altered so that there might be something like fair play, and that if I lose, I lose, and that if I gain, I gain. I am not saying that the merchant is not paying me a fair price now. He may be paying me all he can afford to pay, but I don't know that.

8566. But by the system you propose, the price might be lower than is sufficient for your labour?-I would have to take my chance of that. In my experience I have had to contend with three all but total failures at the fishing, and of course our labour and time went for almost nothing. But that was not the owner's blame; we could not help it, and no more could he.

8567. Is there any other plan for the payment of fish that has occurred to you? How would it do, for instance, if a certain part of the price per cwt. were arranged to be paid on delivery of the green fish, and that the rest, whatever it might be, should be paid at settlement according to the current price?-I could scarcely speak with regard to green fish, because my experience has been in salted fish, and I would only like to speak about that with which I have been myself more immediately connected. But speaking with regard to salted fish only, what you have suggested would be a far better way, because I would then have a chance of seeing my fish weighed out. I don't think the merchant has cheated me out of a ton or half a ton of fish, but I have not had the chance of seeing my fish weighed when I was there. Each vessel's catch is kept and cured separately; but when we come to deliver the fish, if we had a chance of seeing it weighed then, and got a certain figure for it, that would be exactly the way in which these Englishmen deal. They see their fish weighed, and they know what they are getting for each ton or each cwt. of it, and they have nothing more to expect. But we don't do that; we get the dried fish price.

8568. Do you know how much green fish makes a cwt. of dry?-I know that about 21/4 cwt. is the general rate allowed in the ling fishing for green fish, but if it is good

fish it will not require so much as that I have helped to cure myself, but it may be as much as that with bad fish. As to salted fish, I could not say definitely what is the proportion.

8569. There is no such calculation required in the Faroe fishing?- No; it does not come so immediately under my notice. I never saw my fish weighed dry; I have seen them occasionally weighed wet, but not often.

8570. Are they occasionally weighed wet in the Faroe fishing?- Sometimes, not often. It is done perhaps on shore or on board, as it happens. Suppose we land them at a different station from what we intended, they are counted out and weighed when sold, and then the owner or fish-curer will know what they can turn out when dry. That is the reason why they are weighed.

8571. Then there must be a calculation made in that case?-There is, but I do not know exactly what it is.

8572. To go back to your calculation about the expense of curing fish, can you tell me how much salt is required to cure a ton of fish?-We generally reckon upon a ton of salt to a ton of dry fish. If the salt is well cared for it will do a little more but we generally reckon upon that as an average.

8573. Is the salt which the fish get all put on them before they are put on shore?-Yes; it is all put on. There is none put on afterwards, except it may be in the case of a few fish which are likely to give way, or when we get fish and have not enough salt, but that is a case of emergency and an exception-not the rule. As a rule, we cure our fish and put all the salt on them they require.

8574. Have you any knowledge of the system of payment in the ling fishing?-Only from what I have heard about it. I have been at it only once when I was a lad; and I cannot say much about it from experience.

8575. Do you think your neighbours are generally quite at liberty to deal with any merchant they please in the ling fishing?-I believe they are at perfect liberty so far as any man is concerned who could stand in a position like me, and be able to pay his way at any time; but I think a man who could not pay his way, and who was always in debt, would not be at liberty to go where he chose. I am not sure that even he would not be at liberty to use his own judgment, and deal where he liked; but I don't know that he would be looked well upon if he went to another. That is to say, if he was in debt £10 or £20 to a merchant, I don't think the merchant would look well upon it if the man went to another merchant to whom he owed nothing, and fished for him. At least that is what they have told me, and what I have known; but, of course, a man who can pay his way, and who is not bound to fish for a certain individual, can do as he likes. There are fishermen in other parts of the country who are bound to fish for their landowner or their factor, but that does not exist here.

8576. Is there anything else you wish to state?-I don't think there is anything about any matter with which I am immediately connected. We used to make a little Shetland cloth, but I could only corroborate the evidence that has been already given about that. I have never been under the necessity of selling it to a particular party, and I

have got the money for it when I asked it. I don't know that the same price is always given in money as when it is taken in goods; but if I needed money, and asked for it, I always got it.

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8577. Then you have no objection to the practice which exists with regard to the hosiery trade?-No; I would not say anything about that.

8578. Have you any objection to what is done in the cloth trade?- It is the cloth trade I mean. Of course the knitting is a thing that I am not immediately connected with; there is not much done in that way with me. I know, however, that in some cases, although perhaps not in all, where women have been knitting hosiery, and they have got a certain price for an article, yet by buying tea or groceries, which are reckoned as money articles, they would have to pay more for them. They would have to pay 2d. or 11/2d. more upon a 1/4 lb. of tea, because it was being paid for by hosiery; but I think I would have preferred a different way of dealing with them. I think, if I had been in a position like that, I would have given them less for their hosiery, and sold the articles to them at a fixed price. It would just have come to the very same thing with the merchants.

8579. You think that would have been a wiser course for the merchants to take?-Yes. I remember on one occasion when I brought two or three articles of hosiery to a merchant, I got a certain sum put upon them; but when I got a little tea from him, he said he had to make the tea 2d. more per quarter, because it was paid for in hosiery. I said to him I would not deal in that way if I were him, but that I would give a little less for the hosiery, and I would charge a fixed price for my tea, or whatever other articles I was selling; but he said, 'We must all do that, because if I were to say that I would not give a woman so much for her hosiery, she would go to another merchant with it, and they would give her a higher price, and lay it on their goods;' which I have no doubt they do.

8580. Therefore you did not convince the hosiery merchant?-I convinced him so far, that I got my price. I would not pay the price he charged, and would have taken my article of hosiery back rather than pay it.

8581. Did that take place some years ago?-Yes; it is not less than six years ago.

Brae, January 13, 1872, THOMAS ROBERTSON, examined.

8582. Have you been a fisherman here all your life?-Not all my life; but I have been for a number of years.

8583. You hold a bit of ground at Weathersta?-Yes.

8584. Who do you fish for?-For Mr Adie, Voe.

8585. Do you settle with him every year?-Yes.

8586. Do you generally get some of your balance in cash?-Yes. If I have a balance to get I get it, but I always got money when I asked it, whether I had it to get or not.

8587. Do you get money advanced to you in the course of the year?-Yes; whenever I ask it.

8588. Did you get that ten years ago if you asked for it?-I did.

8589. Was that the practice then?-Yes; but I never asked for money unless I required it.

8590. You wanted goods oftener?-Yes.

8591. How far is it from Voe to your place?-About three miles.

8592. Is Mr. Adie's the nearest shop to you?-No. Brae is nearer than Voe.

8593. But you dealt at Voe, because you were fishing for Mr. Adie?-I dealt some at Brae too; but mostly at Voe.

8594. Was that because you had an account there?-Yes.

8595. And it was more convenient for you sometimes to deal upon credit?-Yes.

8596. I suppose you would get a larger advance in goods at that shop than you would have got if you were to ask money?-I don't know; I only asked for goods when I was needing them.

8597. But if you had asked money with which to go and buy your goods elsewhere, would you have got it?-I cannot say, for I never asked it.

8598. Have you heard the evidence of Robertson and Wood, and the other fishermen who have been examined to-day?-Yes.

8599. Have you anything different to say from what they said about the system of dealing among the fishermen here?-No.

8600. Have you known fishermen changing from one employment to another?-I have.

8601. Have you done that yourself?-No.

8602. You have always fished for Mr. Adie?-Yes.

8603. What is the general reason for the men shifting?-I don't know. I suppose it is because they think they will be better.

8604. How are they better, when the same price is always paid at the end of the year by all the curers?-I cannot see where they can be better by shifting from one man to another; I never felt that I would be any better to do so.

8605. I understand all the merchants hereabout pay the same current price for fish?-Yes. Mr. Adie proposed a stated agreement to me for fishing herring. The herrings in Shetland then were 7s. a cran, and he agreed that he would give us 8s. a cran; but we have only got 8s. a cran for two years. The price varies with the agreement in each year; sometimes we get 13s. a cran, sometimes 10s., and sometimes 12s.-just up and down.

8606. Do you generally go to the herring fishing every year?-Yes.

8607. At what season of the year do you go?-August and September; after we are done with the ling fishing.

8608. And the bargain for the herring fishing is that you are to get so much a cran?-Yes; that was the agreement we had with Mr. Adie when we took our nets.

8609. Do you hire nets from him for that fishing?-No, we buy them, and they are put into our accounts.

8610. Have you paid off the price of these nets now?-Yes.

8611. How long did it take you to pay them?-I could not say exactly, but I think it took us between 8 and 9 years to pay for them all, because we had lean fishings.

8612. You mean that the herring fishing was poor?-Yes.

8613. Did you get them paid off at last?-Yes.

8614. Is the price for the herrings paid down whenever you deliver them?-No.

8615. Do you keep an account for the herring fishing separate from the account for the ling fishing?-Yes.

8616. Do you get goods to the other side of that account too?-No; they are all in the same account.

8617. Your goods are kept in an account at Voe?-Yes.

8618. And the price of the herrings is entered to your credit when you settle?-Yes.

8619. Do you keep a pass-book?-Yes.

8620. Have you got it now?-No; I don't have it, because we think there is no use keeping it after the end of the season. Once we find the pass-book to be correct, we think it is of no farther use, and when I brought it home I suppose the bairns tore it up.

8621. When you square up your account at the end of the year, do you go and look at all the items in Mr. Adie's book?-Yes.

8622. Are they read over to you?-Yes; I compare them with the items in my book, and I see that they are all correct.

8623. Is it mostly goods or cash that you get in the course of the year?-It is goods for the most part but I get a good part of cash too.

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Brae, January 13, 1872, JOHN RATTER, examined.

8624. You are a fisherman at Weathersta?-Yes.

8625. Do you fish for Mr. Adie?-Yes.

8626. Have you heard what Thomas Robertson has said?-Yes.

8627. Does it all apply to your case as well as his?-Exactly.

8628. How long have you fished for Mr. Adie?-Six years.

8629. Where did you fish before?-I did not fish for any one before, except going for a fee to the ling fishing.

8630. Do you go to the herring fishing also?-Yes.

8631. And you are paid for it in the same way as Robertson?- Yes.

8632. You get a fixed price for the herring?-Yes.

8633. Have you anything to add to what he has said?-No.

Brae, January 13, 1872, GILBERT SCOLLAY, recalled.

8634. Is there anything further you wish to say?-I forgot that I had my pass-book with Mr. Adie for this year with me. It shows the goods I am getting now. [Produces book.]

8635. I thought you were getting your goods at cash price now?- Yes; I had a promise of them at cash price.

8636. I see there is tea, 5d.?-That is for 2 oz. of tea.

8637. Then you are not getting them for cash price yet?-I have no doubt that when I settle with Mr. Adie he will square that up. I have his promise for it, and I have no doubt that he will do it. I wish further to say, that this truck system or compulsory barter is a great cause of pauperism, as it makes the poor careless and the rich fearless; because, should the head of the family die, the creditor will probably take the effects left, and consequently leave the widow and fatherless children, if any, on the parish. Another thing is, that when the merchants have it in their power to price both their goods and mine, they clearly see that I must sell, and off it must go at whatever they say is the value, and I must take their goods at the value they are pleased to put upon them, and I-if I am in debt-dare not grumble.

8638. What goods have you had to sell upon which they have put their own price?-For one thing, I have been a carrier of hosiery to different places.

8639. Who have you carried hosiery for?-Perhaps for my wife or others, and the value of the stockings was made to be 10d., or 8d., or 7d. If I took tea, and the value of the stockings was 10d., I could only get 9d. worth. If I took cotton goods I would get the full value, but not if I took tea. Then, if under this system a man gets into debt, it is more in appearance than in reality; and should that man ask money from the apparent creditor, the old account will be shaken at him as a scarecrow, and he is generally told to pay his credit and transfer his custom, and that consequently nails him to the old plan. As to the difference in the price of meal, what deceived me in that line was, that I and others were often told that they only charged 2s. per sack as a commission, which would have been £10 per 100 sacks; but at last, when I wrote to some of the meal dealers in the south, I found it was more like £50 per 100 sacks-that is 10s. per sack instead of 2s.

Brae, January 13, 1872, WILLIAM ADIE, examined.

8640. You are a son of Mr. T.M. Adie, who has been already examined?-I am. I am a partner of the business carried on at Voe, although it is carried on in my father's name. I have been a partner for seven or eight years.

8641. Are you aware of any arrangement existing between Messrs. Adie, Anderson, and Inkster, to this effect, that when a fisherman who is in debt to one of these curers goes to another, the new employer undertakes the debt incurred to the former employer?- There was an arrangement of that sort entered into.

8642. Has it been acted upon to a certain extent?-Yes; I think it has been pretty well carried out.

8643. Was it reduced to writing?-Yes; I think the original document is in our possession. I will send it to you.* A principal object or inducement for having that document drawn up was, that a great many of our fishermen were in the habit of settling at the end of the season, and getting advances for rent, or of goods, on the understanding that they were to fish, or go in a boat of ours to the fishing, in the following season; and then they left and went to Mr. Anderson, and took similar advances from him.

8644. Did you find that a man who got into arrears in your books, and to whom you were obliged to refuse supplies on account of his debt being too large, was apt to go to another merchant and engage with him for the following season?-In some cases perhaps they did so, but not as a rule.

8645. But did you not find that when a man's debt got so large that you had to refuse him supplies, and he was not likely to pay it, he went away to another merchant instead of continuing to fish for you?-Sometimes; but most of the men, when they are in debt in that way, save as much as possible, and keep under expenses, in order to assist in getting the debt cleared off.

8646. You see when a man is trying to keep down expenses, and you help him as far as possible?-Yes.

8647. Do you remember of one William Inkster leaving you in that way a good many years ago?-Yes.

8648. And Mr. Anderson paid the whole of his debt to you under that agreement?-Yes; Mr. Anderson paid his debt.

8649. Have other cases occurred of a similar kind?-Yes; I think we have paid Mr. Anderson some accounts for some of his men, and he has paid us.

8650. Is it the full debt that is paid in these cases, or only a proportion of it, or do you make a compromise?-Sometimes we make a compromise.

8651. Was there any understanding when you took the lease of your premises at Voe, that no shop should be permitted on the Busta estate near you?-I cannot speak positively on that matter. I don't know the terms of the lease exactly. I think there was a stipulation in the last lease, with regard to the pasture ground, that no business should be carried on upon it.

8652. Do you mean no fish-curing business?-No shop. There was a talk at one time of having a [Page 211] public-house put up there; and I think it was with reference to that that the stipulation was put in. That was in the lease of the park or enclosed property.

8653. Has your firm a grocer's licence?-Yes.

8654. I understand there is no public-house in the neighbourhood?-No; we have a spirit licence.

8655. Have you a public-house licence as well?-Yes.

8656. That business is carried on, of course, in different premises from your other business?-No; they are carried on in the same premises.

8657. Is there not a different door to the place where you sell the spirits?-No; we are quite at liberty to sell spirits there, but not to consume them on the premises.

8658. Then you have no licence at all to consume on the premises?-No.

8659. And the licence you have is not a public house licence?- No.

8660. You have been present to-day and heard the evidence: is there any observation you wish to make upon it?-I don't know that there is. I think most of the things which have been referred to were explained by my father. There is something, however, with reference to the curing of the fish which I may refer to. That matter has scarcely been gone into as it should have been. For instance, it has been stated that a ton of salt will cure a ton of fish in one of the Faroe vessels, but it never does so. At one time, I believe, it would have cured a ton of fish, but there is a fearful extravagance and waste of salt going on in these vessels now. There are tons of salt which are wasted among ballast, and in other ways, so that we never turn out a ton of dry fish for a ton of salt.

8661. You heard the calculation made by Blanch on that subject?-Yes. Salt costs us a great deal more than he mentioned; we don't have salt in our cellars under 27s. or 27s. 6d., and there is the cost of shipping again into the vessels and wastage.

8662. He allowed 2s. a ton for waste?-Yes, in landing, but not in shipping; 2s. a ton will not cover the waste both in landing and shipping; and then the cost of labour is very much higher than it used to be.

8663. Is 12s. a ton an insufficient allowance for labour?-It is.

8664. Have you made a calculation of that at any time for the purposes of your business?-We can scarcely get an accurate calculation made, but I am certain it is more than he stated. There are different parcels of fish landed from different vessels to be cured, and we cannot keep an accurate account of the time expended on each parcel.

8665. But take a single ton of fish: is 12s. more than the ordinary cost of curing it?-No; it is considerably less than the cost. I am perfectly certain of that.

8666. Is 50s. per ton, the ordinary deduction charged off fishermen for the Faroe fishing, very much above the actual cost?-I don't think it is 6d. over the actual cost.

8667. Does that include anything for superintendence?-Of course, it includes the allowance for our utensils, and the cost of beaches and superintendence. Then Blanch said there was a deduction of 5 per cent, but it is not 5 per cent. that is deducted. There is generally £1 per ton deducted for expenses in realizing the fish and storage, and so on.

8668. Is that £1 per ton on the cured fish?-Yes; that is known all over the country to be the ordinary rate of charge.

8669. That comes to nearly 5 per cent.?-Yes; sometimes it is a little more than 5 per cent, and sometimes it is not so much.

8670. Are these all the deductions that are made before the division of the proceeds of the cured fish?-Yes; there is the curing, and the master and the mate's extra, and the score-money.

8671. What is score-money?-The men are paid so much for each score of fish they individually draw.

8672. That is to say, each man counts the fish which he gets with his own lines?-Yes, and he gets 6d. a score for them.

8673. That is a sort of premium upon industry?-Yes; that is deducted from the gross, and paid to the individual fisherman.

8674. Is there any other deduction in favour of either the merchant or the men?-I am not aware of any. There are some payments for bait which are deducted too. That is charged against the vessel's fishing, and deducted from the gross.

8675. Is there any expense for lines, or do the men furnish their own lines?-The men furnish their lines in the Faroe fishing.

8676. Is the price of these lines charged against the fishing, or against the men individually?-Against the men individually. Each man gets his own lines, and they are charged in his individual account. There is a stock of lines generally kept by the master on board the vessel, and they are supplied by him to the men on board.

8677. These stores on board the vessel go to the individual account of the men?-Yes, stores of all kinds. We supply them with 8 lbs. of bread per man per week, and they find their own small stores.

8678. These they generally purchase in your shop?-Yes.

8679. And they are put to their account?-Yes.

* The agreement referred to was afterwards sent in, and was in the following terms:-'We, Gideon Anderson, of Ollaberry; John Anderson, Hillswick; James Inkster, Brae; and Thomas M. Adie, Voe; considering the very disastrous consequences likely to ensue to ourselves, and ultimately to our fishermen, from the reckless system of giving them advances which has been for some time practised, and knowing that such

system is farther followed from the fact that if any of us refused their demands, however absurd, they turned to another, who gave them what they wanted; we have resolved to do away with such in future, so that each of us may be able to exercise his own judgment as to the propriety of what advances he may make to his fishermen;' and the parties agreed and bound themselves, so long as they continued as fishcurers in the same localities, 'not to tamper with or engage each other's fishermen, or allow our boat-skippers or men to do so, or to make advances of rents to them on their cattle, sheep, or ponies, or under any circumstances whatever, unless they produce a certificate from any of us whom they last fished for, to the effect that he is clear of debt and all other obligations existing therefrom, or in connection with the fishing,' under a penalty of £5, to be paid to the poor of the parish.

In a letter with reference to this agreement Mr. T. M. Adie says:- 'The only way in which it has ever had to be acted on is, that occasionally some man would like to be in a boat more convenient for him, when any of us whom he had fished for gave him a note stating that he was under no obligation, or if he was due a balance, the curer he went to paid it for him. On some occasions we had found that a worthless fellow would get what he actually needed advanced to him, and then, if any fancied want was not supplied, he would leave the boat, and the rest of the crew lost their fishing for want of a man in his stead, and it tended to keep down advances in goods so that men had, more money to get.'

Brae, January 13, 1872, CHARLES NICHOLSON, examined.

8680. Where do you live?-In North Delting.

8681. Are you a fisherman?-I am.

8682. Who do you fish for?-Messrs. Pole, Hoseason, & Co.

8683. How far do you live from Mossbank?-About a mile.

8684. How long have you fished for Pole, Hoseason, & Co.?-Five years.

8685. Do you keep an account at the Mossbank shop?-Yes.

8686. Do you make a settlement at the end of the year?-Yes.

8687. Do you get any money at settlement?-Yes, I get my rent.

8688. Who do you pay your rent to?-Mr. John Robertson. I live on the Lunna estate; Sheriff Bell is the proprietor.

8689. Do you get any more money from Pole, Hoseason, & Co., besides your rent?-No more money, as I don't have it to get.

8690. Is that because you are in debt?-Yes.

8691. How far are you behind?-I was behind £3 at the last settlement, but I have been as much behind as £13.

8692. Are you always behind in your accounts?-Yes.

8693. And you always go to fish for Pole, Hoseason, & Co., in the hope of paying them off?-Yes.

8694. Are you at liberty to fish for any other merchant?-No.

8695. Why?-Because I am in debt, and I cannot pay my debt, therefore I am obliged to fish for Mr. Pole.

8696. If you were to go to fish for another merchant and get paid by him in money, could you not pay off your debt to Pole, Hoseason, & Co.?-I might, but I don't see what good that would do. I get the same price for my fish from Mr. Pole as I would get from any other body.

8697. But don't you think you run up a bigger account when you are dealing with Pole, Hoseason, & Co., than you would do if you were getting your cash in hand?-Yes; if I had cash to purchase my meal, which is the principal thing I require, I would get it cheaper elsewhere.

8698. What is the price of meal at Mossbank just now?-I cannot say rightly.

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8699. When did you know last? Have you made your settlement this year?-Yes.

8700. Don't you know what you were charged for meal then?- No.

8701. Do you ask the price of your meal as you buy it?- Sometimes; but we must take it, whatever it is, because we have no money to purchase it with elsewhere.

8702. Whose fault is that?-I don't know.

8703. Is it the merchant's fault?-I cannot say that is.

8704. Do you think Messrs. Pole Hoseason, & Co. charge too high for their goods?-Yes; if we had money we could get them cheaper in Lerwick.

8705. But I suppose you would have money if you could save as much as would keep you for one year?-Yes.

8706. If you could manage that, you would not run into the merchant's debt at all, but you would have all your cash to get at settlement?-Yes, if we had as much as would once clear us off.

8707. Can you not manage to do that?-No. I have a small family, and there is a great quantity of bread to buy, and clothes and everything. I have nothing but what I can earn by the fishing.

8708. What kind of bread do you buy?-Oatmeal and flour.

8709. Are there many men who are in debt at Mossbank in the same way as you?-I believe there are a few, but I cannot say.

8710. Do you want to go to fish for any other merchant?-No; I don't see any good that that would do to me.

8711. Is there anything else you wish to say?-Nothing.

8712. Was there anything else you wanted to say when you came here?-No.

Brae, January 13, 1872, PETER BLANCH, recalled.

8713. Do you wish to add anything to your former evidence?- About the cost of fish-curing, I said I was not speaking exactly from my own experience with regard to the sum paid, but I know that we have never used more than a ton of salt to a ton of fish on the average. I wish also to say that I have been told more than once by parties who have cured fish for Mr. Adie and others, that they only paid 12s. per ton of fish for the labour of curing. I also say that I have paid 1s. for landing salt at Lerwick, and nothing more, and I allow 2s. for wastage. These are things which Mr. William Adie thought I had no doubt exaggerated, but I am conscious of the fact that I told nothing but the truth.

8714. Was 12s. per ton a price which was paid under contract?- Yes.

8715. Who are the parties who told you about that?-Arthur Harrison was the last one I spoke to. I landed fish to be cured by him, and he told me so. There was another man who told me the same thing about five years ago, John Henry, Sandsting, in Walls. With regard to the price paid for lines, I wish also to say that we have to furnish our own lines in the Faroe fishing. You were asking me if I thought there was a possibility of our bettering ourselves. I thought there was, and that was one of the ways in which I thought we might do so. I have always thought that the owner, when he provided a vessel, ought also to provide the material for the catching of the fish; but instead of that we have to provide our own lines, and supply other lines if we happen to lose them, at a very dear price. We 21/2 lines for each man, and we pay 2s. 6d. for what I know the merchants buy at 2s. or 1s. 6d.

8716. Could you not buy your lines at another shop if you chose?-Yes; we could do that.

8717. Is it part of the arrangement that you are to take these lines from the owner of the vessel?-I don't know that it is part of the arrangement, but I don't think they would like it very well if we went to another; still I don't know that we would be prevented.

8718. Do not the men sometimes hire the lines?-No; never in my experience in the Faroe fishing.

Brae, January 13, 1872, JOHN NICHOLSON, examined.

8719. Where do you come from?-North Delting.

8720. Who do you fish for?-Messrs Pole, Hoseason, & Co.

8721. Have you heard the evidence of Charles Nicholson?-Yes; and I would like to say about the price of our fish, that I don't think it is very right that the men should have to go to the fishing at the beginning of the season, and don't know what they are to get until they come to settle.

8722. Do you think you ought to have your price fixed at the beginning of the season?-Yes.

8723. Have you ever asked for that?-No; we have never asked for it.

8724. Why?-Because some of the crew are for it and others are against it, and we could not get the thing rightly settled up amongst ourselves.

8725. How long have you fished for Pole, Hoseason, & Co?-I have fished there for about fourteen years, both before and after Mr. Pole came to Mossbank.

8726. Where do you buy your goods?-From Mr. Pole.

8727. Anywhere else?-No.

8728. Do you never go to any other shop in the neighbourhood?- Not very often.

8729. Why is that?-Because sometimes I don't have ready money to go with.

8730. If you had ready money would you go anywhere else?-Yes.

8731. Why?-Because I could get my goods cheaper and better.

8732. Are you not satisfied with the quality of the goods at the Mossbank shop?-No. There are some of the articles there which are inferior to other people's, and dearer too.

8733. What articles are inferior?-Tea and sugar and meal.

8734. Where could you get them better?-In Lerwick.

8735. That is a long way to go for them?-Yes; but a man must take some trouble upon himself when he gets them cheaper and better.

8736. What are you paying at Mossbank store for these things just now?-Tea is 3s. per lb., sugar is 5d., and meal is 50s.

8737. When did you buy any of these three articles in Lerwick?- About a month ago.

8738. What did you get them for?-I got tea for 2s. 4d., sugar for 4d., and meal for 32s.

8739. What is the price of meal now?- About 48s. but it was 50s. in summer, and I bought a sack, or two bolls, at 32s. in Lerwick.

8740. What quantity of meal did you buy at Mossbank last, for which you paid 48s.?-I got it out in lesser quantities. They don't like to give very much at one time, and I had to take it in less quantities than I could get it in Lerwick.

8741. Were you in debt to the shop at the time?-A little; not very much.

8742. And they would not give it to you because you were in debt?-No.

8743. Was it by the lispund you bought it at Mossbank?-Yes; I paid 5s. 8d. per lispund for it, but about the end of July it was 6s. We generally take it by the quarter boll there.

8744. There are 32 lbs. to the lispund, and 280 lbs. in the sack?- Yes.

8745. Was the quality of the articles you bought in Lerwick, at the price you have mentioned, as good as what you got at Mossbank at the prices which [Page 213] say

are charged there?-If there was any difference, they were better.

8746. But you had to carry them to Mossbank?-I had. The meal came by the steamer, and I had to pay 8d. for that.

8747. Can you not get cash from Pole, Hoseason, Co. when you require it, and go and buy your supplies in Lerwick?-Yes; what I require for the fishing, but not otherwise.

8748. You cannot get what you require for your family?-No.

8749. How did you happen to have money when you went and bought the meal in Lerwick?-I had it from my small boat fishing in the winter, and I saved the money.

Brae, January 13, 1872, WILLIAM ADIE (recalled), examined.

8750. Is there anything further in what Blanch has said to which you wish to refer?-Yes; he said that 12s. was the contract price for curing our fish: that is false. We paid 13s. for curing fish at Urrafirth, by Arthur Harrison.

8751. Was that your contract price for the fish cured by him this year?-He has cured none for us this year. He only cured a few fish for us in the fall, and he got more than that for them.

8752. Then that was the contract price in 1870?-Yes, for curing alone. Then we had to pay 3s. a ton for landing and shipping these fish from Voe to Urrafirth, and 3s. to Voe again; so that the curing of the fish would cost us about £1.

8753. Why do you pay so heavy freights? Can you not have the fish landed at Urrafirth in the first place?-No. We send them there as a convenience for ourselves, but the men are bound to land them at Voe, and we have to remove them at our own expense. We have no storage at Urrafirth for them, and they have to be removed to our own stores again.

8754. Why do you carry your fish to Urrafirth to be cured?- Because we have not sufficient accommodation for them all at Voe when we have a large take of fish.

8755. Then you have to send your surplus fish all that way to be cured?-Yes.

8756. Does it not arise in that way that you have a loss upon these fish?-Yes, we have a loss upon the fish when we cure them by contract.

8757. These fish will cost you more than 50s. for curing?-Yes, they cost us considerably more.

8758. But that will be recouped by your other profit?-Yes; but of course we must pay that extra out of our own pockets.

8759. But it does not follow that you have a loss upon the total proceeds of the fish?-No, we would not need to have that.

8760. The profit you calculate upon obtaining from the sale of your fish is sufficient to cover an occasional loss of that sort, and is calculated accordingly?- Yes. Of course, the extra charge on the curing at Urrafirth won't come to nearly the £1 per ton which we have for storage and commission on the fish.

8761. Is there any one else who wishes to be examined?- [No answer.] Then I adjourn the inquiry here until further notice.

[<Adjourned.>]

Brae, January 13, 1872, JAMES GARRIOCH, examined.

8762. You are shopkeeper to Messrs. Hay & Co. at their shop in the island of Fetlar?-I am.

8763. How long have you been there?-Three years past on 1st December. Before that I was a store-keeper with them in Lerwick.

8764. Was that establishment in Lerwick the one from which both Faroe fishers and home fishers got their supplies for the season, and their outfit for the fishing?-Yes; and Messrs. Hay's country shops were also supplied from that shop for the most part.

8765. I understand the supplies for the country shops are sent down to you with invoices of the prices at which you are to sell them?-That is done with some shops belonging to Messrs. Hay, but with others it is not. To some of them the goods are sent down at cost price, and the shopkeeper fixes what prices he thinks right. That is what is done at Fetlar.

8766. I see from the books you have produced, that on September 25 oatmeal was 5s. 3d.: is that per lispund?-That is for a quarter-boll.

8767. Do you not sell by the lispund?-Sometimes we do, just as the parties want it.

8768. A quarter-boll would be 3 lbs. more than a lispund?-Yes.

8769. And 5s. 3d. per quarter-boll would be for 35 lbs.?-Yes.

8770. Have you the invoice showing at what price that was invoiced to you from Lerwick?-I have not.

8771. Do you remember how much it was invoiced at?-No. It was not a fixed thing for the whole season; it varies.

8772. When did you get your supplies of meal last summer?-It comes from Aberdeen almost weekly or fortnightly during the time the fishing continues.

8773. You do not sell much meal in Fetlar after the fishing is over?-No; the people then have their crops to depend upon.

8774. When do you begin to sell the greatest quantity of goods at your store?-About April; we begin to be much busier then. From September until April the people are depending for the most part upon their own crop, but sometimes they do take a little meal from us.

8775. Was 5s. 3d. per quarter-boll the selling price for meal during the whole season?-No; it differs greatly. Sometimes you will see it is more, and sometimes less.

8776. I see that it is 5s. 3d. in September, and 5s. 9d. in July?- Yes; I expect that would be about the dearest time.

8777. I see an entry of oatmeal, 22s. 8d., in August?-That would be for a boll.

8778. Do you sell a boll at the same price, proportionally, as a quarter-boll?-Just the same.

8779. You do not make a difference for the retail?-None whatever.

8780. Do Messrs. Hay hold Fetlar, or any part of it, under tack?- Not so far as I am aware.

8781. Are the fishermen there bound to fish for them in any way?-I don't think they are; at least not to my knowledge. They have tenants there; at least they are not tenants exactly, but Messrs. Hay are factors for the Earl of Zetland. I don't know how Lord Zetland's tenants do, but I don't think they are bound.

8782. At any rate they are not bound by their tacks in any way?- Not so far as I am aware,

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8783. Is it mostly Lord Zetland's tenants who fish for Messrs. Hay in Fetlar?-I think not.

8784. Do some of Lady Nicholson's tenants fish for them also?- Yes; I should think about half-and-half.

8785. Are there any other proprietors in Fetlar than Lord Zetland and Lady Nicholson?-Not for the fishermen. There are other proprietors in the island, but none of their tenants fish.

8786. I see here, under date June 1, 1871, an entry against George Gaunson, 'Cash for penalty per current account, £4, 2s. 2d.:' what does that mean?-He was summoned to court for some wrecked timber that he was in possession of, and that was his penalty, which was paid by me for him.

8787. You entered that to his debit?-Yes. What meant by 'current account' is, that I paid the money at Lerwick, and it was charged to me at current account, and I gave Hay & Co. credit for it in my book at Fetlar.

8788. How many tons of dry fish did you sell from Fetlar last year?-We sold the following quantities for 1871:

Tons. Cwt. Qrs. Lbs. Ling, 32 2 3 11 Tusk, 5 2 1 22 Cod, 3 16 3 17 Saith, 0 18 2 15

8789. Had you only ten boats' crews fishing for you last season?- There were eleven boats.

8790. Did they contain sixty-six men, or were some of them smaller boats?-Some of them were smaller boats, with only five men. For instance, in Laurence Donaldson's boat, although there were only six men, there were five shares, because two boys count for a share.

8791. How many women and boys had you employed in curing at Fetlar?-We had eight men and boys-no women.

8792. Have the beach boys got accounts in the ledger also?-Yes. They are all in one place. [Shows.]

8793. The first is Laurence Brown. His fee was 10s., and, after debiting his out-takes, he received 7s. 31/2d. in cash in full?-Yes.

8794. The next is John Sinclair, jun.; after debiting his out-takes, he received 8s. 4d. in cash?-Yes.

8795. The next is John Coutts, who received 9s. 6d.?-Yes.

8796. The next is James Laurenson; his fee was only 5s., and he received 14s. 11/2d. in cash?-Yes.

8797. The next is Arthur James Tulloch; his fee was 16s., and he received 6s. 21/2d.?-Yes; he was only employed during part of the season. I think I had eight besides him.

8798. The next is Peter Sinclair; he had a fee of 10s., and, after deducting his out-takes, he received 6d. in cash in full, but he had received 19s. 6d. in cash during the season?-Yes.

8799. The next is George Laurenson; his fee was £4 and he received £1, 14s. 6d. in cash at settlement, and sundry small sums in cash have been paid to him in the course of the year?- Yes. He was a young lad, about sixteen years of age, I think.

8800. The next is Robert Johnston; his fee was 15s., and he received 7s. 1d. in cash at settlement, having received 5s. 4d. in cash during the season?-Yes.

8801. The next is George Donaldson; his fee was 10s. and he received 9s. 1d. in cash at settlement?-Yes.

8802. He seems to have got a number of loaves and biscuit?-Yes. His supplies were almost entirely for food.

8803. There are also the accounts of two men here; one of them is Magnus Brown. Is he one of your principal curers?-Yes.

8804. His fee, called beach-fee was £8, 5s., and he received 17s. 41/2d. in cash at settlement?-Yes. He received £1 at the commencement, and the next entry is 6s. 9d. paid for purchase at sale. That was purchase at a sale of wreck, which was paid for him by me, and was the same as cash. Including that purchase at the sale, he received about 30s. in cash in the course of the season.

8805. The next is Arthur N. Henderson: was the other beach-man?-Yes.

8806. His fee was £5; he received £1, 6s. 3d. in cash at settlement, and 4s. 6d. was paid to him during the season?-Yes.

8807. Were these all your beach people?-Yes.

8808. Why are they not paid weekly wages?-They could have it in that way if they wanted it. It would be all the same to us; I don't see any difference.

8809. Why do they not want it?-I don't think there is any particular reason, except that they don't wish it in that way.

8810. Do you think they would rather have it settled for at the end of the year?-I think so.

8811. Are not the people that Messrs. Hay employ in the curing at Lerwick paid weekly wages?-Yes.

8812. But at all the stations, I suppose, they are paid by beach fees?-Yes; and these are paid at the end of the year.

8813. The books which you keep at Fetlar are, first, the wet fish book, in which each boat's crew has the amount of each delivery of fish entered?-Yes.

8814. Then you have another fish book showing the amount of dry fish shipped by your different vessels?-Yes; that book [showing] is for the season of 1871.

8815. Do you begin to ship so early as June?-Yes. The men generally catch a few fish in winter now, and these are shipped first. The wet fish that are caught in winter are not in the book I have brought.

8816. Have you a separate book for your winter fish?-Yes.

8817. What quantity of winter fish do you generally sell?-I cannot say exactly; but for about two years I have had only about 2 or 21/2 tons of dry fish. They are cured along with the first fish caught in the spring, and sent down.

8818. Then the shipment on June 6th of 4 tons 7 cwt. of ling will include some summer fish as well?-Yes, spring fish.

8819. The only other book you keep is the ledger?-Yes, and the goods account book-a book for the goods and the expenses on the fish-curing.

8820. How do you keep your goods account book?-I enter every invoice as it comes from Lerwick, and against them I enter my returns.

8821. All your sales of goods are entered under the names of the parties to whom they are sold?-Yes.

8822. And that is the only entry of sales you make?-Yes. We don't enter what we get ready money for.

8823. You do not keep a waste day-book?-No.

8824. How do you balance the accounts with your fishermen?- The ledger will show.

8825. Is that done by you, or by some one from, Lerwick?- Always by some one from Lerwick.

8826. How long does it generally take to get all your fishermen settled with?-Not long; I think about three days.

8827. Some one comes from Lerwick, and the fishermen come to the office and are settled with in his presence and in yours?-Yes.

8828. Are the accounts read over to the men, or do they generally have a pass-book?-They are generally read over. Some carry a pass-book, and some do not.

8829. Are they always read over?-I don't think they are always read over. Generally I read them, over before the men come up to settle, so as to have them added up and ready.

8830. The ledger is written up from day to day as the goods are taken out?-Yes, perhaps twice or thrice, in a day.

8831. And the fisherman signs at settlement?-Yes.

8832. He signs also when there is a balance against him, which sometimes happens?-Yes.

8833. Have Messrs. Hay & Co. a spirit licence for the sale of whisky?-No.

8834. Do you not sell whisky at till?-No, not unless a man asks me to order it for him; and that [Page 215] goes into the current account at Lerwick, and is a separate thing altogether from the ordinary dealings.

8835. Is there no public-house in the island?-None.

8836. Do you buy hosiery at the store in Fetlar?-None.

8837. Are there any entries in this book [showing] relating to the purchase of kelp?-The parties who work the kelp have accounts in the book, and the kelp is credited to them there.

8838. How many people are employed gathering kelp in Fetlar?- There is no one regularly employed, only those who are ready to make it.

8839. Have Messrs. Hay & Co. a tack of the kelp shores?-No; it is done by any one who wishes to make it.

8840. And the entries are made to the credit of the women who gather it and burn it?-Yes.

8841. From how many of them have you made purchases during last year?-Only from about half a dozen. I have only purchased about 28 cwt. of it.

8842. What is the price paid for it?-4s. 6d. a cwt.

8843. Is that generally taken out in goods?-No.

8844. Do you pay 4s. 6d. when it is paid in cash?-Just the same; I make no difference.

8845. Do you not have two prices for it as they have in some places?-No; it is all the same to me whether they take money or goods. I should like them to take the goods, no doubt, but I don't compel them.

8846. In Robina Fraser's account I see that she has got more money than she has given kelp for: why was that?-She made a promise to work more, but she has not done it yet.

8847. Have you ever tried to send out a number of men to the winter fishing in large boats from Fetlar?-No.

8848. Do you consider that would be impracticable?-I think so. The coast is rather tempestuous, with heavy tides, and I don't think they would make anything of it.

8849. Do you purchase cattle and other farm stock for Messrs. Hay?-I purchase fat cattle at Martinmas, but only from the people privately. I bought eleven last Martinmas.

8850. Are these generally credited to the sellers in the ledger, or are they paid for in cash?-They are paid for in cash at the time when the cattle are taken away.

8851. Do any of these purchases appear in the ledger?-No.

8852. Are the rents on Lord Zetland's property in Fetlar collected by you?-No, they are generally collected by the man who comes up to settle with the fishermen.

8853. Are separate receipts given for them?-Yes.

8854. Does he also settle for the cattle?-No, I generally settle for the cattle myself.

8855. So that the cattle do not enter the rent account?-Sometimes they do. Sometimes they wish me to send on the amount to Hay & Co, to be credited in the next account.

8856. Of the eleven cattle which you purchased last year, would some be settled for in that way?-Yes. I cannot say how many, but I think four.

8857. You have no books showing that?-None here.

8858. They will be in the possession of Messrs. Hay; or have you a cattle-book?-No; I don't have one.

8859. Do the purchases of cattle pass through your current account with Hay & Co.?-Yes.

8860. Have you a private account of your own?-My account is in the ledger, but we have a current account besides that. That current account contains whatever comes from Lerwick, charged at the Lerwick retail prices, and then all my returns of money or anything are put to the current account.

Mid Yell, January 17, 1872, GEORGE GAUNSON, examined.

8861. You are a fisherman in Fetlar, and a tenant on Lord Zetland's property?-I am.

8862. Are you at liberty to fish for any one you please?-I don't know; we get as good a price from Messrs. Hay as we would get from any one else, and we fish for them.

8863. Is there any one else on the island who would buy your fish?-There is only one man on the east side, Jerome Brown, who takes a little besides Messrs. Hay's people.

8864. But you don't know whether you are at liberty to fish for Brown or not?-I don't know.

8865. Did you make any arrangement about fishing when you took your land?-I did not.

8866. How long have you held it?-I think I have been 28 or 30 years in the island.

8867. Have you fished every year during that period?-Sometimes I fished, and sometimes I was at sea.

8868. But when you have been at home you have always fished, and sold your fish to Messrs. Hay at the current price at the end of the season?-Yes.

8869. Have you generally found that you had balance in your favour at the end of the season?-Yes, very often; but it did not matter, because when I wanted anything, whether money or goods or meal, I always got it. Very often we had no money for the house, but we always got supplies from them.

8870. Where do you sell your cattle and your eggs, and other farm stock?-We sell them just wherever we can get any person to buy them. There are cattle dealers and other persons who come about buying them.

8871. Do you sell oftener to them or to Messrs. Hay?-It makes very little difference; when we have any cattle to sell, whenever any one comes round he gets them.

8872. Did you ever sell a beast to anybody but Messrs. Hay?- Yes; many a time. I have sold some horses to lots of people who were going about. I have sold some to Mr. Thomas Williamson, in Yell. I think he got the last one I sold; it was in February. It was a little horse.

8873. Who have you sold your cattle to?-Sometimes to Messrs. Hay's people, and sometimes to any other people who came round asking for them.

8874. Did you ever sell them to anybody except Messrs. Hay?-I have.

8875. When?-Some time before this.

8876. How long ago?-Last year I had none but the horse.

8877. Do you sell one or two beasts every year?-No; some years I sell none at all, and some years only one.

8878. Where do you sell your eggs?-Just anywhere that we can get the best price for them.

8879. Do you sell them generally to Messrs. Hay?-No; sometimes not.

8880. Is there anybody else in Fetlar who buys eggs?-Yes; Mr. William Tulloch buys some.

8881. Has he a small shop?-It is not a great deal of a shop that he has. He deals in cottons and such as that, and he buys eggs. I get 6d. a dozen for them sometimes, and sometimes perhaps 7d.

8882. Did you sell most of your eggs last year to Mr. Tulloch or to Mr. Garrioch?-I could not say. I don't deal much in that way myself.

8883. You leave that to your wife?-Yes.

8884. Do you always get your supplies from Hay Co.?-Yes. I never deal with Tulloch or Brown, and there is no other shop in the island that is worth going into.

8885. But are there any other shops at all except Tulloch's and Brown's?-I daresay some woman would sell some things sometimes, but they would not be of any account.

8886. Do you know where Tulloch and Brown, and that woman you speak of, get the goods they sell don't know.

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8887. Do you generally get a good quality of stuff from Hay & Co., at a fair price?-Yes; they are very fair prices.

8888. Have you ever got goods at Lerwick?-Yes.

8889. Do you find the goods supplied at Hay & Co.'s shop in Fetlar to be as good and as cheap its those you get in Lerwick?- Yes; I have no reason to complain about that.

8890. What was the price of meal that you have been buying lately?-It is much the same as we get it at in Lerwick; sometimes it little higher and sometimes a little cheaper. I think last season it was generally about 20s. per boll for oatmeal; but I don't remember about that particularly.

8891. Do you have to keep up your own houses and your own fences?-Yes; the house I am living in was built when I came to it, and it is the same yet; we have to keep it in good order.

8892. The landlord does not do that for you?-I don't know; but the last time something was done to the house it was put down to Lord Zetland's account.

8893. Are most of the tenants on Lord Zetland's property in Fetlar fishing for Messrs. Hay?-I suppose most of them do.

8894. Do they generally understand that they are under any obligation to fish for them?-I don't think so; but it would make very little difference fishing for any other body, when we would get the same price from them.

8895. You don't think of curing your own fish, then?-No.

8896. Where do the Fetlar people sell their hosiery?-Generally in Lerwick; they go down there with it. My family do not knit much, because they have no wool, unless they get some to buy.

8897. What is paid for wool?-Sometimes it is 2s. per lb. for fine wool, sometimes 1s. 6d., and so on.

8898. Do you get that from your neighbours?-There are not many neighbours near us who have any sheep.

8899. Where do you buy it, then?-Sometimes we go to Lerwick and buy it, and sometimes in Yell.

8900. Is there no shop in Fetlar where you can buy it?-No.

8901. Where do you buy it in Lerwick?-I don't know; I do not buy it myself. They buy it just at any place where they can get it best.

8902. To whom do you pay your rent?-To Hay & Co.

8903. Is it deducted from your account when you settle?-Yes.

8904. Have you ever tried the winter fishing?-No; they don't do much in that with us. They might catch some in winter, but not many. They have generally a long way to go to seek them, and it requires particularly good weather to go out with the little boats.

8905. Have you not large enough boats for the winter fishing?- No.

8906. Do you think you could do anything if you had large decked boats?-I don't know; they have never tried them there. They might do something with them, but I don't think they would pay very well.

8907. Have your rents been raised lately?-No; they were raised a little about eight or nine years ago.

8908. Was there any different arrangement made at that time about the fishing?-No.

8909. Have you ever known any man in Fetlar who had to pay liberty money for freedom to sell his fish to another than the tacksman or factor?-No.

8910. And no man in your time has been put out of his ground for fishing to another?-No; I never heard of anything of the kind in Fetlar, either on Lord Zetland's or Lady Nicholson's ground.

Mid Yell, January 17, 1872, WILLIAM STEWART, examined.

8911. You are a tenant and fisherman at Seafield, Mid Yell?- Yes. Kirkabister is the town I live in.

8912. Who is your landlord?-Mrs. Budge.

8913. To whom do you sell your fish now?-I have sold them this year to Mr. Thomas Williamson.

8914. Who did you sell them to last year?-To Mr. Laurence Williamson, Linkshouse.

8915. Why did you leave him?-Because Mr. Sievwright, Mrs. Budge's factor, wished us to do it.

8916. Did you get a letter from him about the fishing?-Yes.

8917. Have you got it?-Yes. [Produces the following letter]:

'<Lerwick>, 22<d Nov>. 1870. 'WILLIAM, I now write, as I promised, to explain what I expect the Seafield tenants to do in regard to fishing, that you may

communicate the same to them.

'The business premises at Seafield cannot be allowed to remain vacant, and consequently unprofitable while it is clear they must do so unless the tenants fish to the tenant of these premises. The Seafield tenants, therefore, must fish to Mr. Thomas Williamson upon fair and reasonable terms, and I understand he is quite prepared to meet them on such terms. I believe he will, in every respect, do you justice; and so long as he does so, you have no reason to complain. But should it happen that he fails to treat you fairly and honourably (of which I have no fear), you can let me know, and matters will soon be put right. You and the tenants, however, must not act towards Mr. Williamson in a selfish or hard way either, for it is quite as possible for you to do so to him as it is for him to do so to you. Both he and you all must work together, heartily and agreeably; and if you do so, I have no fear, humanly speaking, that the result will be success to both.-I am, yours faithfully, W. SIEVWRIGHT. 'William Stewart, Kirkabister, Seafield, Mid Yell.'

8918. Is that the only letter you have got on the subject?-The only one.

8919. Have you a written tack?-No.

8920. You hold your land from year to year?-Yes.

8921. Have you, since you received that letter, fished for Mr. Thomas Williamson?-Yes, in the spring and summer.

8922. And in winter?-In winter there was not a great deal doing.

8923. But what fish you did catch, what did you do with them?-I believe we sometimes went to Mr. Laurence Williamson and sometimes to Mr. Thomas Williamson with them, just as it suited.

8924. When you received that letter, had you made any arrangement to fish for the following year?-No.

8925. Had you not arranged to fish for Mr Laurence Williamson?-No, not for myself.

8926. Nor for any one else?-No. There were none of our boat's crew who had made any arrangement with Laurence Williamson, so far as I know; but the other boat's crew I think had made some sort of arrangement. There are only two boats' crews that belong to Mrs. Budge's property.

8927. How many tenants are there on her property?-I think there were formerly 23, but now there are only either 21 or 22.

8928. Mr. Sievwright speaks in his letter about the business premises at Seafield: what do you understand by that?-The shop and the station.

8929. Are there a merchant's shop and a curing station at Seafield?-Yes.

8930. Were they not let previously to the time when that letter was written?-No.

8931. Do you get the same price from Mr. Thomas Williamson that Mr. Laurence Williamson used to give you?-Yes.

8932. That was the current price at the end of the year?-Yes.

8933. But you have got your goods from him instead of buying them from Laurence Williamson?-For myself I did; but I think some of the men bought their goods from Lerwick.

8934. Were these men paid in cash?-Yes.

8935. Was Mr. Thomas Williamson's shop [Page 217]the nearest place to your house where you could get goods?-Yes.

8936. Did you take your goods from him before you fished for him?-Sometimes. I had a sort of running account at his shop. I was doing bits of jobs for him, and sometimes I got money, and sometimes I took some of his goods.

8937. But you did not do so much with him before as after you got that letter?-No; the principal part of my dealing was for the fishing.

8938. But you did not buy so many goods from him before last winter?-Certainly not.

8939. Did you buy from Mr. Laurence Williamson then?-I did, because I was keeping a running account with him then.

8940. Do you keep a running account with him now?-I was forced to do that, because I was not clear with him when I went to fish for Mr. Thomas Williamson.

8941. Were you therefore forced to keep a running account with him?-I was not in any way forced, but the account was not cleared up, because I did not have the means.

8942. Have you added to it since then?-Not much.

8943. But it is not paid up?-It is not; I have never been able to do it.

8944. Do you ever sell any beasts off your ground?-I sold one at 1st May last year, at the sale.

8945. Who was the purchaser?-Mr. Thomas Williamson.

8946. Was that at a sale at Mid Yell for the whole country?-The sale to which I went was at Cullivoe for North Yell.

8947. Had you promised Mr. Thomas Williamson the beast before you went?-No. When I went I was at liberty to sell it to any one I liked, but he bought the beast at the roup.

8948. Did anybody else bid for it?-No.

8949. Was it marked?-No. It never was entered into the bill of sale at the roup.

8950. But were the horns of the beast marked at any time?-I don't know.

8951. Why was it not entered in the bill of sale?-I made an agreement with Williamson just to take it away at the price I fixed. He said he would give what I asked for it. I asked £5, and I sent the beast home, and he gave me that for it.

8952. That took place in the first season you fished for Mr. Thomas Williamson?-Yes.

8953. By that time, I suppose, he had a little account against you?-I don't think it would be much. About that time the spring fishing was finished, and I don't think there was very much either way between us. I don't think I had much to give him, or that he had much to give me.

8954. Have you a pass-book?-No.

8955. How was the price of that beast paid?-It was remitted to Mr. Sievwright for my previous year's rent.

8956. Why had you not paid it before?-Because I had not the means.

8957. Had Mr. Sievwright been asking you for your rent before?- Yes. When he was here at Hallowmas I offered him the beast, and he told me to keep her until any time when I was aware that cattle would be at the best price.

8958. Did he say anything to you about selling it?-No. I just sold it to Mr. Williamson, and he remitted the money to Mr. Sievwright.

8959. Was that arranged between you and Mr. Sievwright, or between you and Mr. Williamson?-It was arranged between Mr. Williamson and me that he was to send on the money.

8960. Did Williamson ask you to agree to that arrangement?-No; I asked him to do it for me, because he was in the habit of writing to Mr. Sievwright oftener than me.

8961. Had you paid your rent through Mr. Williamson before, or have you done it since?-No.

8962. Have you paid your rent that was due at November?-I have not paid it yet. I intended to be in Lerwick before this time, but I have not been able to get.

8963. Have you settled with Mr. Williamson for the last year's fishing?-Yes. I think I had £6, 14s. to get, and I got it in cash.

8964. Did none of that go to pay your rent?-It is lying yet to go. I have it in my possession, because I have not seen Mr. Sievwright since.

8965. What price do you pay for meal at Seafield?-I think the first I got was 22s. 6d. I think the last was much about the same, but there might be a difference of 6d. or so.

8966. Was it of good quality?-It was very good.

8967. Where does your wife sell her eggs?-Anywhere that she can get the best tea, from Lerwick north to Seafield.

8968. Does she always sell them for tea?-For tea, or any small thing she can get.

8969. Are these sales settled for at the time?-Yes; they are settled right away.

8970. How much tea will she get for a dozen eggs?-I cannot tell, because I leave all these matters to her.

8971. Where does she sell her knitting?-She does not do much of that.

8972. Has she an account of her own?-No; she never had.

8973. Is there any kelp gathered here?-Very little.

8974. Who buys it?-Mr Thomas Williamson has bought some for a year or two back but I don't think he bought any last year. My eldest daughter was employed for two years in working at it in the summer time, and I think she had an account for it; but I don't know much about that.

8975. Were you at one time a tenant in Whalsay?-Yes.

8976. When did you leave it?-In 1862.

8977. Up till that time you were a tenant under Mr. Bruce of Simbister?-Yes.

8978. What rent did you pay there?-The rent I always paid for my ground was 26s.

8979. Did you fish for Mr. Bruce at that time?-Yes, for the late Mr. William Bruce.

8980. And you had an account with him at the shop in Whalsay?- Yes.

8981. How did you pay your rent?-Generally by fishing.

8982. Was it put into your account?-Yes. The thing was carried on on a very strange system. Our land was put in to us at a low rent, and our fish were taken from us at as low a value. The prices for the fish never varied, either for the spring or summer.

8983. Do you mean that they were the same every year?-They were. Whatever they might be in the markets, they were all the same to us.

8984. Had you never the benefit of a rise in the market at all?- Never.

8985. Did you not object to that?-We just had to content ourselves with it, or leave the place.

8986. It was part of your bargain for your land, that you were to give your fish at a certain rate?-Yes; there were so much of the fish taken off for the land. That was the first of the fishing. We got 3s. 4d. cwt. for ling, 2s. 6d. for tusk, and 20d. for cod, and so much of each kind of fish was taken off until the land was paid for; and then the prices were raised to 4s., I think, for ling, 3s. 2d. for tusk, and 2s. 6d. for cod, for all the rest of the summer fishing.

8987. Did you get these prices for a number of years?-I think for the thirteen years that I was on the station they never varied one halfpenny for the summer fishing. The prices for the winter fishing varied little. Sometimes we would sell the small cod as low as 2s. 6d., and at other times at 3s.

8988. Did you sell the winter fishing for payment at the time, or did it go into the account too?-It was never put into the account at all; we just got what we required for it. It was ready payment; but it was very rarely that we got money for the winter fishing.

8989. Did you know at the time that the prices you [Page 218] were paid at the latter part of the season were lower than the market price of the fish?-We knew that but it was just the bargain.

8990. Was that the system with all the tenants in that time?-With every one.

8991. When did that system cease?-I think it ceased about a year after I came here about 1863.

8992. Why did you leave Whalsay?-There was new division of the land, and I did not consider that I was getting a good farm. I was personally acquainted with Mr. Budge, who was leaving the island then and coming to this property, and I came along with him.

Mid Yell, January 17, 1872, LAURENCE WILLIAMSON, examined.

8993. You are a merchant in this neighbourhood?-Yes; at Linkshouse, Mid Yell.

8994. Have you been long in business there?-Nearly eight years.

8995. On whose property are your premises?-The late Robert Nevin Spence's property.

8996. Are there many tenants on it?-There are a few, but I could not tell the number exactly.

8997. Are they engaged in fishing?-Some of them are.

8998. Are they at liberty to fish to any one they please?-Yes.

8999. You were engaged in the fish-curing business to a certain extent?-Yes. I do very little in it now.

9000. Your business has been considerably reduced?-Yes.

9001. Has that been since Mr. Sievwright wrote the letter which was produced by the last witness?-Yes. Mrs. Budge's tenants were the men that I had fishing to me and when they went away I could not fill up my boats.

9002. Had you made arrangements with any men for the fishing of last season when they were taken away?-Yes. It was rather too late when they let me know they were going.

9003. How do you mean that they were too late?-They commonly make up their boats' crews about Hallowmas or Martinmas, at the time of settlement, and one of the crews had agreed to fish for me for the rising season, not knowing then that they were to be taken away. Of course they had to leave me, because they knew, or at least they believed, they would be differently dealt with if they did not leave.

9004. Did you make any objection to them leaving after having struck a bargain with you?-Yes, I slightly objected to it; but, of course, I could not help it.

9005. In what way did you object?-The men who formed that boat's crew had signed a sort of written agreement that they were to fish for me in the rising year, on the same terms as they had agreed with me before. Sometimes they don't have a

written agreement, only a verbal one, but on this occasion there was written agreement entered into.

9006. I suppose a verbal agreement is the usual way of arranging for the season's fishing?-Yes, generally.

9007. Did these men happen to have a written agreement?-Yes; we had a little bit form drawn up and agreed to.

9008. Had you any reason for having a written agreement at that time?-I was rather doubtful in my own mind that they would be leaving me, or rather that they would be forced to leave.

9009. Was that because there had been some talk about Mr. Thomas Williamson getting these fishermen?-The talk was not about Mr. Thomas Williamson at that time, but about Mr. Magnus Mouat. I think his name was mentioned when the talk commenced about the men leaving.

9010. But you did not insist in your objection to your agreement with the men being departed from?-No.

9011. Was that for fear of injuring the men?-Yes. Of course I saw that I could not legally hold them.

9012. Why? If they had agreed to fish for you, were they not bound to fulfil their bargain?-I thought I could not legally hold them, and I just let them go.

9013. Were you not afraid of them suffering for it if they fulfilled their bargain with you?-They must have suffered for it too.

9014. Did you make any representation on the subject to Mr. Sievwright?-No. The only communication I had was with the men themselves.

9015. How many men did you lose in that way?-Twelve.

9016. Were some of these men in your debt at the time?-Some of them were. They had a sort of running account.

9017. Have you any men fishing for you this year at all?-For the rising year I believe we will have two or three boats' crews.

9018. Had you any last year?-We had two. I and another man are in a sort of company, and we had two boats last year-one each.

9019. Did you find that the fact of Mrs. Budge's tenants leaving you and going across the water materially affected your business in the shop?-I cannot say that it injured it very much.

9020. But it would make some difference?-I don't think it made a great deal.

9021. Were not their accounts taken away from you?-There are a good many of them who deal with me still, but not to the same extent.

9022. From what quarter did you get your fishermen who engaged with you for the rising season?-From the parish of North Yell. That is the next parish to this.

9023. How far do they live from you?-Some of them are 10 miles from here.

9024. What estates are they on?-I could hardly tell, except about some of them.

9025. Have any of these men accounts for supplies in your shop?-Yes; perhaps 4 or 5 of them.

9026. For whom were they fishing last year?-Some of them fished for Pole, Hoseason, & Co, and some for Spence & Co.

9027. Do you know why they are leaving these merchants?-I cannot say.

9028. Have you offered them better terms?-I don't think so. They hardly ever say what they have been getting before. We just make them an offer, and if they accept it we come to an understanding.

9029. Do you know whether any of them were indebted, at last settlement, to Pole, Hoseason, & Co., or Spence & Co.?-I cannot say.

9030. Are these men nearer to Greenbank than to you?-Yes, a great deal.

9031. Are your accounts with fishermen kept in a ledger?-I keep them in a sort of shop ledger. Each boat's crew has a company account, and each man has private account. [Produces ledger.]

9032. Your fish-book is a separate book?-Yes; with columns showing the weight of the fish delivered.

9033. What are these pages which you have turned down in your ledger?-They contain the account of William Stewart, who has just been examined.

9034. I see that for 1869 the balance of his account carried forward was £10, 0s. 41/2d., the total of his out-takes at the end of 1869, including that balance was £17, 8s. 11d. The balance due by him then was £6, 19s., after allowing £10, 9s. 11d. for his fish, which was reduced by half of skipper's fee £1, being a balance of £5, 19s. carried to the year 1870?-Yes.

9035. Then in 1870 there is an entry of 13s. 11/2d. account at North Yell: what does that mean?-That is for some small things he got there. We cure our fish there.

9036. The amount of his account at the settlement of 1870 was £17, 6s. 01/2d., and the amount of his fishing was £14, 18s. 41/2d., leaving a balance of £2, 7s. 8d. There is it deduction of 17s. 6d.: what was that for?-It was for a man who went off for Stewart.

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9037. Then there is it check for 19s.?-That was a check he gave me for that sum.

9038. The balance which is left is £2, 6s. 2d.?-Yes.

9039. On January 4, 1871, there are-spirits 2s. 21/2d., and on November 18 and November 29 there are additional supplies to the amount of 11s. 6d., making the balance now due £2, 19s. 101/2d?-Yes.

9040. Are these all the supplies that you have given him since he ceased to fish for you?-Yes. These are all that have been entered in the book.

9041. But he may have got others and paid for them in cash?- Yes.

9042. And he would get goods in payment for his winter fishing?-He has not been at the winter fishing this year.

9043. Or at the spring fishing last year?-He was at the spring fishing for Mr. Thomas Williamson.

9044. What men have you engaged for the rising year?-The engagement has been made partly with my partner in North Yell, and I don't know the names of them yet.

9045. But you know which men have opened accounts with you from North Yell?-Yes. There is Charles More, Gutcher, North Yell; he has got supplies to the amount of 19s. 8d.; and Thomas Brown, who has got supplies to the amount of 17s.

9046. Are these men bound to you now by written engagement?- No, it is merely verbal. Their boat's crew is made up.

9047. Who is your partner in North Yell?-Arthur Nicholson; he has a shop of his own at Gutcher.

9048. Has he boats of his own besides those he has in company with you?-No; but we have never been rightly in company. He has been doing my work in North Yell, and getting a fee for it, and our fish have been thrown together, and sold together.

9049. Is this [showing] the only book you keep?-It is the only book I keep for accounts. I keep an invoice-book and it fish-book also.

9050. Do you keep a day-book?-I keep a book for scrawling things into, until they are posted up in the ledger.

9051. Do you buy kelp?-No.

9052. Do you buy hosiery?-A little sometimes.

9053. Do you pay for it in the way that is usual in the country, by goods across the counter?-Yes, mostly.

9054. Do you give out wool to knit?-I sometimes give out worsted, and I pay for the knitting of it in the same way.

9055. Have you a knitters' book, or are the knitters' accounts kept in the ledger?-I keep a book for women's accounts.

9056. Is that book used entirely for sales of hosiery?-No. We don't do a great deal in hosiery. We buy few haps and small shawls, but the principal thing we buy is worsted. I buy a good deal in the course year from the spinners, and I sell it chiefly in Lerwick to the merchants there. I sell most of it to Mr. Robert Linklater. I invoice it to the merchants, and I take a note of the quantities when I send them away.

9057. When did you send away the last?-I suppose it would be about a couple of months ago.

9058. At what price did you send it out?-We get 3d. per cut for very fine, and 21/2d. and 2d. for the coarsest.

9059. You sell to the merchants as a sort of wholesale dealer?- Yes.

9060. The price per pound of that worsted varies according to the quality?-Yes.

9061. It does not correspond with the price per cut in any way?- No. Of course the finer the worsted the finer the thread is.

9062. You do not calculate the price of that worsted, by the pound at all?-No. We just judge of the fineness or the thickness of it.

9063. The names of the men who were fishing for you in 1871 are entered in the ledger?-Yes.

9064. Had you generally more than two boats previous to last year?-Yes. We sometimes had four, but that was the most I ever had. This [showing] is the company account for one of the boats, Basil Ramsay & Co., and then there are the private accounts of the men.

9065. In Basil Ramsay's private account, the entry 'to cash to rent' on November 17, 1869, referred to cash advanced to him for the purpose of paying his rent?-Yes. He was at that time £2, 11s. 61/2d. in my debt upon the settlement of the previous year. After a bad year I have to advance money to the fishermen in that way, in order to prevent them from being turned out.

9066. Here [showing] is an account of Janet Sinclair, Herra: who is she?-She keeps a small shop of her own, and sells things for me at Herra and buys worsted for me.

9067. Have you many women employed in that way selling goods for you?-Only that one.

9068. In another account there is meal 3s.-that would be half a lispund-in August 1871: was that the selling price at the time?- Very likely it was.

9069. There is also flour 1s. 2d. on the same date: how much was that?-8 lbs., or a peck.

9070. Where do you get your supplies of meal and flour?-Chiefly from Lerwick, from R. & C. Robertson.

9071. Would you consider yourself likely to drive a much larger business if you had a number of fishermen in your employment?- I don't know. Of course there would be more men and more stir and more traffic, and I would likely turn over more goods, because if the men could buy as cheaply from me they would not go anywhere else.

9072. Have you ever had any difficulty in getting the men from another merchant to fish for you in consequence of them being in debt to that other merchant-I never tried that.

9073. But have you found that men had difficulty in engaging with you on that account?-No.

9074. Have you ever been asked by any merchant to undertake the debt due to him by any man whom you employed?-I have never been asked by the merchant, but I have been asked by the men for a little money to clear off their account with another merchant when I engaged them.

9075. Have you been asked to be a security for them?-No. I have only given them cash.

9076. When did you do that last?-It is five years ago. There was a boat's crew who left Pole, Hoseason, & Co. at that time and came over to me. That was Basil Ramsay's boat.

9077. And you advanced them money with which to pay their debt to Pole, Hoseason, & Co.?-Yes; there was a little advance required.

9078. Do you suppose you will have that to do with the boats' crews you have engaged this year?-I don't think so.

9079. Do you know whether they are clear?-I don't know.

9080. How do you ascertain the current price at the end of the year for settling with your men?-We know what the fish cost, and we know what they sell for. We know what the wet fish turn out dry. We can make a calculation of that from the quantity of green fish delivered to us and from the quantity of dry fish which we have to sell.

9081. How much was the proportion in your settlement last year?-I cannot tell exactly what it was last year, but on an average it is 2 cwt. 14 lbs. to 2 cwt. 20 lbs. of wet fish to 1 cwt. of dry fish.

9082. Do you make the allowance according to the proportion you ascertain in each year to exist between your total weight of dry fish and your total weight of green fish?-Yes; there are calculations of that kind made. I don't do it personally, but I believe some of the big curers do it, and then we pay after them.

9083. Do all the large curers agree upon a certain average for each year?-No; they don't make each other acquainted with that. They just pay according to what they sell the fish for, and they give the fishermen the benefit of the rise or fall in the market.

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9084. I am not talking of the average of the current price; I am talking of the average weight of the dry fish as against the green. Does each merchant make his own calculation with regard to that?-I suppose so. I have made calculations in some years, and in others I have not.

9085. How do you take it when you do not make it calculation?-I wait until I see what is current, and then I pay the same.

9086. That is for the money price, but the current price depends on the proportion of dry fish to green?-Yes.

9087. You find out what the large curers have been selling for or have been allowing their men, and you give the same?-Yes.

9088. Are you aware whether all the large curers give the same current price or does it vary with the different houses?-In North Yell, Spence & Co. have some fishermen, and Pole, Hoseason, & Co. have some. We hear what their men are paid, and then our men are paid the same.

9089. Do Pole Hoseason, & Co, and Spence & Co., so far as you know, always pay the same rate?-Yes.

9090. Do you know how their current rate is fixed, or how it is ascertained what the men are to get?-I suppose they just make a calculation in the way I have mentioned.

9091. But you don't know anything about it except that you hear what they pay?-No. I make a calculation for myself to see whether it is over or under, but we tell our men that we will give the current price stated for these parties if they will come and fish for us.

9092. Is your bargain with regard to boat hire the price of lines, and so on, the same with your men as Pole, Hoseason, & Co. have with their men?-Sometimes it varies a little; it is not always fixed. Sometimes we give the men half-a-year's hire off, as an encouragement. They are what are called freemen, and we have to give them some inducement before they will come to us.

9093. What is the usual hire in Yell?-The hire is divided into two. It is £6: £2, 8s. for the boat, and £3, 12s. for the lines.

9094. Is that charged against the boat in the company account?- It is just made up in the balance with the men, and settled for by them. They always carry pass-books.

9095. Then that does not enter the company account?-No.

9096. What is entered in the company account?-It is just the goods got for the supply of the men during the fishing season at the fishing station. [Shows one account.] The North Yell account is an account kept at the station in a pass-book. The boat's hire is estimated before the earnings are divided into six; we make a balance sheet of it, which is added up, and then we place each man's balance to his account.

9097. When you make a deduction from the boat hire as an inducement for the men to fish for you, do you mean that instead of £2, 8s. you charge them only £1, 4s.?-Sometimes we take more off than that. Perhaps on a £6 hire we will take off £3.

9098. Is not that a very liberal deduction?-Yes.

9099. You cannot have much profit on your boats when you do that?-There is no profit on the boats whatever.

9100. What profit do you get on hiring out boats at all?-We get no benefit from that. We only get little benefit from the fish and from the goods sold.

9101. Is it usual to allow so large a deduction from the boat hire?-I cannot say what is done by any one but myself. We have not been in the habit of doing it much. We sometimes take a little off the hire of the boat, in order to make it as moderate for the men as possible.

9102. Are you doing that just now in order to induce fishermen to come to you?-Yes. They come and say they will fish for us if we will give them the currency, and perhaps half the hire down, or the whole hire down.

9103. So that the deduction on the boat hire is really a premium for them coming to fish for you?-Exactly.

Mid Yell, January 17, 1872, ROBERT SMITH, examined.

9104. You are now a fisherman and tenant at Burravoe, on the land of Mr. Henderson?-I am.

9105. Were you formerly resident on the island of Samphray?- Yes. I was there for 35 years.

9106. For whom did you fish when you were there?-For Mr. Robert Hoseason, and his son-in-law James Hoseason, all that time.

9107. Did the island belong to them?-Half of it did, and the other half belonged to Lord Zetland. I lived on Mr. Hoseason's half.

9108. Were you bound to fish for them at that time?-Yes.

9109. Did you ever sell your fish to any one else?-No; we had no occasion to do so, because we got the same payment from him as from another.

9110. Did you never sell your winter fish to another?-No.

9111. Where did you get your supplies at that time?-From Mr. Hoseason at Mossbank.

9112. You kept an account with him, and settled at the end of the year?-Yes, every year.

9113. Had you generally anything to get at the settlement?- Sometimes we had a few pounds to get, and sometimes we could not afford to pay the balance.

9114. You never dealt anywhere else at all?-No; there was no one else near hand that we could have gone to.

9115. Did you never think of going to Lerwick?-No; we went very often to Lerwick, but not in the way of dealing. It was always from Mr. Hoseason that we got what we wanted when he was employing

9116. When you left Samphray you came to Burravoe?-Yes.

9117. Why did you leave?-Because Samphray was thrown waste and made into a park for sheep and cattle.

9118. You have since lived at Burravoe and fished for Mr. Henderson?-Yes.

9119. You have been a skipper of his?-Yes.

9120. Are you to fish for him next year?-I don't know if I will be able to go; I am getting too old. I have been at the fishing every year since 1820.

9121. Is it the bargain with you at Burravoe that you are to fish for your landlord?-Yes.

9122. But you will not be put out of your land if you give up fishing altogether?-No, not that I know of. I have no thought of that at the present time; at least I have no knowledge of it.

9123. Have you spoken to Mr. Henderson about not fishing for him next year?-I have not. I have not made a settlement yet.

9124. Did he not tell you that he would not remove you this year?-No, he has not told me that; but I expect that he will not remove me if I can pay my rent. He has been very kind to me.

9125. Are you sure that he did not tell you that you might remain this year?-I am sure he did not, but he told me that he would not throw me off while I was able to do anything. That is all the security I have.

9126. What do you mean by doing anything?-Any employment that he may put me to, or anything in the way of fishing if I am able to go to it.

9127. Does not the payment of your rent depend upon your fishing?-Sometimes it does; but if I have a cow to dispose of and he requires it, he takes it. If he does not require it, I am at liberty to dispose of it to any one that I can sell it to.

9128. When he takes it, how do you settle about the price?-It generally goes into my account.

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9129. But who fixes the price that is put upon it?-I do. I ask him if he will give me so much for it, and if I can get a better price elsewhere I can sell it there.

9130. Did you ever sell a cow to anybody else than Mr. Henderson?-Yes. I have not sold cows, but I have sold young stots. About three years ago I sold three young stots-one to Mr. Joseph Leask, Lerwick, and another to a man who came round; I don't know his name.

9131. Did not Mr. Henderson want these?-No. He engaged for one, and then when the man came about asking if he could get beasts to buy, Mr. Henderson told him to call upon us for them.

9132. Did Mr. Leask and the other man pay the money down to you for the beasts they bought?-Yes; it was sent from Lerwick to me.

9133. Were you due rent to Mr. Henderson at that time, or any account for goods?-Perhaps I was; it was very seldom that I was not due him an account.

9134. Why was that?-Because the fishing often did not turn out well.

9135. Did you ever go to any one except Mr. Henderson for your goods since you went to live at Burravoe?-If Mr. Henderson did not have what we wanted, then we would go to another for it.

Mid Yell, January 17, 1872, ANDREW BLANCE, examined.

9136. Are you a fisherman, living at Burravoe?-Yes. I am a fisherman, but part of my time has been employed in the seal and whale fishing.

9137. Have you any land at Burravoe?-Yes, I occupy some land there under Mr. M'Queen.

9138. Have you ever been at the summer fishing?-Yes; I was at the ling fishing for two years, one year for Mr. William Williamson, who has lately left Ulsta, and the other year for Mr. Henderson.

9139. When you were at Ulsta did you run an account for what you wanted from Mr. Williamson?-Yes, a small account. If he had any small things that I wanted, and if I saw that I could get them a bargain, I took them from him.

9140. That account was settled at the end of the year?-Yes.

9141. And you got the other things you wanted at Burravoe or Lerwick, or wherever you liked?-Yes.

9142. Where did you get most of your goods?-At Lerwick.

9143. Did you find it more profitable to get them there?-I don't know that it was more profitable; but for a long time the most of my accounts have been in Lerwick.

9144. How often have you been at the seal and whale fishing?-I have been there every year for, I think, the last fifteen or fourteen years.

9145. Is that the reason why most of your accounts are in Lerwick?-I suppose it is.

9146. It is handier for you to have them there when you go to the whale fishing?-Yes.

9147. What agent do you generally engage with for that fishing?- Messrs. Hay & Co. I have always engaged through them, except one season when I was engaged for six weeks by Mr. Leask. That was for the sealing voyage in 1867.

9148. When do you generally go to Lerwick to engage for the whaling?-About the end of February or beginning of March.

9149. Do you go straight to Messrs. Hay's office and tell them you want an engagement?-No, I don't go straight there; but I have always found them very favourable towards me, and therefore I have always been inclined to go out from them.

9150. Do you get your outfit supplied there?-Yes, if I require it.

9151. Do you require a new outfit for the whaling every year?- We always require something new.

9152. Do you also require supplies for your family while you are away at the fishing, such as meal, tea, flour, and things of that sort, and clothing?-Yes.

9153. Where do you keep your account for these things?-With Messrs. Hay & Co.

9154. You always get an advance paid down to you when you are first engaged?-Yes; we get our first month's advance, and then we get a half-pay ticket.

9155. Do you always get a half-pay ticket?-Yes, those who require it.

9156. But do you always get it?-Yes; I have got it ever since it came up. I think it is only four or five years since it came to be used in Shetland.

9157. Were there no allotment tickets in use before four or five years ago?-No, not in Shetland. I never saw them before that time.

9158. Do you leave your allotment ticket with your wife?-We can leave it with any one we choose. I have generally left it with Messrs. Hay.

9159. Did you write anything upon it when you left it with them?-No.

9160. Is the allotment ticket an order to pay to you?-Yes, or to any name which is signed on it.

9161. Was it generally taken in your own name?-I had to mention the name of some person to be filled into the note, and the name of any person that I wanted to draw the money was signed there.

9162. What name did you generally give to be entered in the note?-I forget; but I think the name of Mr. William Robertson, in Messrs. Hay's shop, has been upon it.

9163. Was that done last year?-Yes.

9164. Was his name on it in 1870 also?-I cannot exactly say.

9165. But last year you know that it was?-Yes.

9166. And he was to draw the money on your half-pay allotment ticket?-Yes; he has the ticket, and while he keeps it he knows that no person can be drawing the money. They know that the money is lying, but I don't think Mr. Robertson has drawn the halfpay for me ever since the system commenced.

9167. Was the purpose of giving the allotment ticket to Mr. Robertson, that Messrs. Hay might give your family credit for goods in your absence; or was it a sort of security?-It was a sort of security; but I had no fear about them providing for my family, even although they had not got the ticket.

9168. You think they would have made the advances at any rate?-Yes. They never refused either goods or money.

9169. But still the allotment ticket was a sort of security to them?-Yes.

9170. When you return from your voyage do you generally go straight home or do you take your wages at Lerwick?-I take my wages at Lerwick.

9171. Before you come home?-Yes, if possible.

9172. Do you go up and settle before the shipping-master or superintendent?-Yes, I must do that.

9173. That did not use to be done at Lerwick?-It did not.

9174. Why has it been done lately?-I don't know.

9175. Was it not because it was not easy to get the Shetland men to wait for a settlement-they were so anxious to get home?- Perhaps it was. I and several others have to go to the North Isles and it is not every day we can get there. Staying one day in Lerwick might make us stay half a dozen, or perhaps a dozen, days; and therefore if we see a chance to get home whenever we land we are glad to take it.

9176. Then you go back when you find it convenient?-Yes.

9177. And you go before Mr. Gatherer the superintendent, and receive your wages in cash?-Yes; but many a time we have the chance of getting our money before we leave Lerwick if we could only wait another day.

9178. When you have an account standing in Messrs. Hay's books, how do you settle it?-We go back to the shop from the shipping office and pay the money.

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9179. How long has that been done?-I suppose for the last four or five years.

9180. Before that, you had a settlement at the office, and only got the balance in cash?-Yes.

9181. Is there any deduction made now from the cash you receive at the superintendent's office?-Nothing except the advance of our first month's wages, and the amount drawn under allotment tickets.

9182. But when you give an allotment ticket in the way you have mentioned, how do you do: do you get your half-pay handed over to you in cash?-Yes, if it is not drawn.

9183. Is it sometimes drawn?-No; my half-pay has not been drawn, so far as I recollect. [Produces four accounts of wages.]

9184. Who is William Manson, agent for master?-He is Messrs. Hay's clerk.

9185. The only deduction here is for stores in the ship, and your advance, and the fees?-That is all.

9186. Then in that year, 1870, you got the balance of £16, 3s. 6d. paid to you?-Yes.

9187. What was the amount of your account at Hay & Co.'s?-I don't remember in that year.

9188. Here [showing] is your account for 1871 when you had a balance of £19, 2s. to receive: do you remember the amount of your account, that year?-I do not.

9189. How much ready cash did you bring home with you when you had settled on 25th July?-I am not quite sure, but I think it was about £16.

9190. Then your account for the season would only be about £3?- That was all.

9191. Would that be the whole of the supplies you got for your family that year?-Yes; it was short voyage.

9192. Had you also a short and a very successful voyage last year?-Yes.

9193. You have not got your final payment of oil-money for 1871?-No.

9194. Have you got it for 1870?-Yes.

9195. Was that settled for before the superintendent, Mr. Gatherer?-Yes, it was paid at the custom-house. I think I got an account of wages for that too, but I could not say exactly. The oil on which the money was paid was 42 tons. The first payment of oil-money was upon 150 tons, making 192 altogether.

9196. Was the whole of that paid at the custom house?-Yes.

9197. Are you quite sure about that?-I am sure enough.

9198. And are you sure you got an account of the second payment of oil-money, although you have not got it now?-I am not sure about that. I think I got an account of wages for that too but I cannot say.

9199. How did you manage to keep the accounts of wages you have produced, when you did not keep the account for the last payment of oil-money?-Because I got these accounts of wages when I was going home, but at the time when I got the account for the last payment I was going away.

9200. Is your last payment of oil-money generally made to you when you are shipping in the following year?-I never get it until I am going away next year, and therefore it is easy to see how I may have lost the papers which I got then.

9201. Have you any accounts running with Messrs. Hay between the end of one whaling voyage and the beginning of another?- Very often I have. If I require anything I send to Messrs. Hay for it, or to any other man in Lerwick.

9202. Do you also get advances of cash from them when you want them?-Yes.

9203. Do you generally settle with Messrs. Hay at the time when you are engaged for the next year's voyage?-No. I settle with them at the time when I get paid.

9204. But you don't get your second payment of oil-money until you are going away for a new voyage?-I get it whenever it comes; but I told you that last year I did not get it until I was going away.

9205. Did that never happen before?-It has happened before.

9206. You have produced a receipt granted by you to Mr. Leask for £1, 5s. 3d. in 1867: how does that receipt happen to be in your possession?-That was a short voyage, only six weeks, in the 'Polynia' of Dundee and there were no half-pay tickets. I got an advance from him, and when I paid the money again at the end of the voyage the receipt was handed back to me.

9207. Was that advance given to you in cash?-No, I got my first month's advance in cash, and then I got that advance in goods.

9208. Was that for your own outfit, or for your family?-I think it was for my own outfit.

9209. Have you got payments of that kind frequently from the agents who have engaged you?-No; that was the only one.

9210. Did you get your first month's advance in addition to this?- Yes.

9211. Did you get it in cash or in goods?-I got it in a line to be cashed a day or two after we sailed. I gave the line to Mr. Leask's man, and got the principal part of it in money. Then they drew the money from the shipowner after I left.

9212. You took your first month's advance partly in money and partly in goods?-Yes, I think that was the way of it.

9213. And you got £1, 5s. 3d. in goods in addition to that?-Yes.

9214. Why did you want that amount of goods?-I have wanted three times that amount, according to circumstances. For one voyage I would require that amount, if I had not a good stock.

9215. Why did you not get the whole of your first month's advance in goods when you say you were requiring them?-Perhaps I was requiring money for some other purpose. I had perhaps to send part of it home.

9216. Why did you not take the whole of your month's advance in goods, and then get that advance in cash?-Perhaps I got more than that in cash. That advance was only 25s., and I had £2, 10s. per month.

9217. Did you get the whole payment of your wages for that voyage before you left?-Yes, except the second payment of oil-money. That second payment is made after the oil is boiled. There is a calculation made when we come home with regard to the whole amount of oil that is in the ship, and when we arrive we are paid a proportion of that. Then, when the oil is boiled; they see what it actually amounts to and we are paid the balance of our oil-money.

9218. Then on this voyage in 1867, which you made for Mr. Leask, you were advanced at sailing the whole amount of your wages and the first payment your oil-money?-Yes.

9219. And all that you had to get afterwards was your last payment of oil-money?-Yes.

9220. You got the whole of the amount in cash or goods?-Yes.

9221. But mostly in goods?-I could not say that it was mostly in goods, because, except the £1, 5s. 3d. and perhaps 10s. of my first month's advance I do not think I got more goods from them. I am not sure; about that; but I cannot say that I got more.

Mid Yell, January 17, 1872, JOHN JOHNSTON, examined.

9222. You hold some land now from Mr. M'Queen at Burravoe?- Yes.

9223. Do you fish for Mr. Henderson?-No; I fish for Mr. Adie at the Out Skerries.

9224. Were you formerly a tenant on the Lunna estate?-Yes. I left it seven years ago because Sheriff Bell's tenantry there were handed over to Mr. Robertson, and were bound to fish for him. He and I had disputed at one time, and I was not very well satisfied about fishing for him. I was paying my land rent to the Sheriff, and I thought that when a man was [Page 223] paying his land rent he ought to have freedom to fish to the best advantage for himself that he could.

9225. Where did you engage to fish that season?-At the Skerries, to Mr. Adie.

9226. You thought you could make a better thing of it by fishing for Mr. Adie, and you went to him?-Yes.

9227. What happened in consequence of that?-Nothing happened, except that I must either be bound to fish for Mr. Robertson or leave the property.

9228. Were you told that you must leave the property?-Yes; the Sheriff himself told me that.

9229. Was Mr. Robertson his factor or his tacksman?-His tacksman.

9230. To whom did you pay your rent at Lunna?-To Mr. Robertson when he came to be tacksman, but the Sheriff before that.

9231. Who first told you that you were to leave your ground at Lunna?-The Sheriff himself.

9232. When was that?-The year before I left. That was nine years ago.

9233. Was that when you had first engaged with Mr. Adie?-No. I fished for two years for Mr. Robertson after that, after I removed to Yell.

9234. Then why did you leave Lunna? I thought you told me it was because you engaged with Mr. Adie that you were turned out of your ground there?-No; it was not because I engaged with Mr. Adie. It was because I would not fish for Mr. Robertson.

9235. Why did you fish for Mr. Robertson for two years after that, although you were not bound?-We were fishing then at our own freedom.

9236. Were you asked to sign any obligation to fish for Mr. Robertson?-No.

9237. How did you intimate that you were not going to be bound to fish for him? Had you a conversation with Mr. Bell on the subject?-Yes. At the time when Mr. Bell's tenants were handed over to Mr. Robertson, I was in the merchant service; but they made a statement then that the tenants were to be bound to fish for him.

9238. Who made the statement?-Mr. Bell and Mr. Robertson made it after I came home. For the last ten years I have been at the ling fishing. The first winter I came home I caught some cod, small and big, and I salted them, and went down to Lerwick and sold them to Messrs. Hay. Mr. Robertson got word of that, and got an account from Messrs. Hay of the cod that I had sold. He handed that to the Sheriff, who came to Lunnasting; and I was called up and found fault with for not selling the fish to Mr. Robertson as tacksman. He asked me my reason for that; and I said that I had signed no agreement to fish for him; that I was due him nothing; and that I did not see why I

could not sell my fish to any man I liked. Bell said very little to that; but he gave me to understand that after that I was either to leave the property, or to pay £1 of a fine if I sold my fish to any other person.

9239. Was that a written notice?-Yes.

9240. Have you got it now?-No, I have lost it.

9241. Did you pay the fine?-Yes.

9242. Did you not try to get off with it?-No.

9243. Did you think you were legally bound to pay it?-No; and that was the reason why I would not stay upon his property. If I could have got a 'downsitting' handy that suited me at the time, I would not have paid it, because I did not think it right.

9244. Did you fish for Mr. Robertson after that?-Yes, for two years.

9245. How did you happen to fish for him?-We just made a kind of agreement with him, first for two years; but still we were not satisfied, and as we did not wish to be bound to fish for him, we stopped.

9246. Did anything more pass between you and Mr. Robertson or Mr. Bell, about leaving the ground or about being bound to fish?- No.

9247. Then how did you come at last to leave Lunna? Did you give them notice that you were going, or did they give you notice to quit?-I was on the look-out after that for some other place, because I was determined, after paying that £1, which I was not due to shift to a convenient place at the first opportunity.

9248. You got a place at Burravoe; and since then have you been at liberty to fish for any person you pleased?-Yes.

9249. Do you get your supplies at Mr. Adie's store at Skerries?- Yes; our sea stock, and all that we require during the fishing season

9250. When you are at home, where do you get your supplies?- Sometimes from Lerwick, and sometimes we get something from Mr. Adie when we settle.

9251. Do you bring home supplies with you from Skerries?-No, we never settle at Skerries; we settle at Voe in Mr. Adie's office.

9252. Have you an account at Voe as well as at Skerries?-Yes. Our Skerries account for the fishing season is always handed over to Voe, and it is all settled there.

9253. Do you sometimes bring a large supply of provisions home from Voe?-Sometimes, and sometimes not. When we think we can make a better of it, we will send to Lerwick for them.

9254. Have you not to bring them a good bit by land when you get them from Voe?-Yes.

9255. Why do you take the trouble to carry your supplies so far as that?-We have no particular reason for it, only we are there at any rate, and we can get them there as good a bargain as we can get them in Lerwick and nearer us, and it saves us the

freight.

9256. How often do you go to Voe in the course the year?-Once a year.

9257. When you go there to settle, are you asked to take some goods home with you?-Not at all, unless we require them ourselves.

9258. Of course you are not obliged to do it unless you like; but don't they ask you whether you want any goods?-Yes, they will do that. Sometimes Mr. Adie's shop people will ask if we are requiring anything.

9259. Is that before you settle or afterwards?-It is generally after we have settled.

9260. Does that supply go into the next year's account?-If we are requiring the cash we have got, either for paying the land-master or any other purpose, they will let the goods stand until next account.

9261. But sometimes you got goods before settlement, and they went into the past year's account if you did not want the cash?- No. Since we fished for Mr. Adie, there were no goods we got at that time which went into the past year's account. They always went into the rising year's account, unless they were paid for in cash.

9262. Sometimes you paid them in cash?-Yes.

9263. And in that case they would not enter any account?-No. I generally pay all my goods with cash, so far as I can.

9264. Do you find them cheaper when they are paid for in that way?-Yes.

9265. And that is what you do generally when you go to Lerwick?-Yes.

9266. Have you generally had a balance to get from Mr. Adie at the end of the year since you fished for him?-Yes, always.

9267. Could you get the same goods that you get at Voe as cheap nearer home, and as good?-I cannot say.

9268. Is there any difference in quality between Mr. Adie's goods and those you get at Burravoe or at Lerwick?-I cannot say that there is. There is often a great difference in the quality of goods, even although they are sold at one price, and as being the same quality.

9269. Where have you found that?-I have bought tea on different occasions at one place, and at the same price, and have found differences in the quality. I don't think that was due so much to the people selling it, as to the chest decaying. I have sometimes found it good and sometimes bad in every place I have had it from.

9270. Do you take goods from Mr. Henderson's shop at Burravoe?-I have had very few goods from him. I never had any meal or tea from him. All I have got has been a few nails or anything I required for my boats.

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Mid Yell, January 17, 1872, ARTHUR ANDERSON, examined.

9271. You are a fisherman at Burravoe, on Mr. M'Queen's property?-I am.

9272. Were you formerly a tenant and fisherman at Lunna?-Yes. I was not very long a tenant, but I was a fisherman. I left it 7 years ago at Martinmas, at the same time as Johnston.

9273. Had you been bound there to fish for Mr. Robertson?-I did fish for him; but while I was a young man, and unmarried, they could not compel me.

9274. Had you some land there afterwards?-Yes. I had some for two years before I left.

9275. Were you told then that you were bound to fish for Mr. Robertson?-Yes. The Sheriff told me that at the same time that he told Johnston.

9276. Were you both together at the time?-No.

9277. Had you both been sent for at the same time?-There was a meeting in a place near Lunna, and the whole tenantry were told that they were to be under one control, and to fish for Mr. Robertson. I think that meeting was held in the schoolroom. I think both Sheriff Bell and Mr. Robertson were present.

9278. Did Mr. Bell tell you that he expected you all to fish for Mr. Robertson?-Yes.

9279. What else did he say?-I was not very old then, and I don't remember.

9280. Why did you leave Lunna?-I was in a double family, and I thought the place I was in was too small for the whole of us; therefore I thought I would try to look out for some place in which to live.

9281. You did not leave it because you wanted your freedom?- Not altogether.

9282. Had you been fined for selling your fish anywhere else?- No.

9283. Do you know any other man in Lunna who was fined for that except Johnston?-I don't remember of any.

9284. Who do you fish for now?-For Mr. Adie, the same as Johnston does.

9285. Do you deal in the same way as he described?-Yes.

9286. How do you get your supplies, for your family?-Sometimes Mr. Adie will send us meal for our families from Aberdeen or from Leith, and we will pay the freight. It is not easy for him to send it to us from his place at Voe, but he will send it from these other places if we ask him.

9287. Do these supplies go to your account?-Yes.

9288. Do you ever get supplies anywhere else?-Sometimes in Skerries, where we fish.

9289. These go into the same account, and are settled for at Voe?-Yes.

9290. Do you bring goods from Voe at settling time when you want them?-We always bring something.

9291. Are you asked if you want goods when you go there to settle?-Yes; they will ask us if we desire anything.

9292. But you need not take them unless you like?-No.

9293. Do you get any goods at Burravoe?-Not very much. We don't run very large accounts there.

9294. Mr. Henderson's shop is not very far from where you live?-It is not very far.

9295. Would it not be handier for you to get your goods there?- We don't run very large accounts with him. I might get my goods from him if I was fishing for him, but when I am not putting any fish or any produce his way I don't ask anything.

9296. Could you not get the money for your fish, and buy your goods where it was most convenient for you?-We might.

9297. Did you never think of doing that?-No.

9298. Why?-I don't know.

9299. Do you think Mr. Henderson will charge higher prices from those who do not fish for him?-I cannot say.

9300. You never were afraid of that?-No.

Mid Yell, January 17, 1872, GILBERT ROBERTSON, examined.

9301. You are a fisherman and tenant at Hamnavoe on Mr. M'Queen's property?-I am.

9302. You are an elder of the Established Church in South Yell parish?-Yes.

9303. How long have you been at Hamnavoe?-All my life. I am 56 years of age, and I was born on the property.

9304. Were you formerly bound to fish to the tacksman on the property?-No; I have had liberty all my time to fish for any one I liked, except for three years, when my landlord, the late Mr. Robert Bruce, required us to fish for him. He succeeded to the property about 1853, and it was in 1857 or 1858 that he required our services.

9305. You have been a skipper for a number of years?-For two years, but not for the last two years. I was two years at the whale fishing in 1868 and 1869. In 1868 I engaged with Messrs. Hay, and in 1869 I engaged with Mr. George Reid Tait. I got my first month's advance laid down at the custom-house, and when I came back I got the rest at the custom-house. If I was due a small thing to the agent I went to him and paid it.

9306. Did you get an outfit?-Only a small thing. I had some things myself, and it was only a few things that I required from the agents. Anything that I required for my family I got from Robertson & Co. I have had an account with them for a long time. I have had as much as £7, 3s. from them in a year.

9307. Why did you deal with them?-I found them to be good men. They always try to advance people as far as they can, and especially people who strive to pay them back again.

9308. Have you ever fished in the ling fishing?-Yes; I have been there for the last two years. The year before last I fished for Mr. Henderson, Burravoe, and last year I fished for William Jack Williamson at Ulsta.

9309. Did you run accounts with them?-Very little.

9310. Was that because you dealt with R. & C. Robertson?-Yes.

9311. Do most of the men deal with the merchants they fish for?- They do, because they have no money of their own, and they require their fishing to pay for what they get.

9312. Do they get their out-takes on credit?-Yes, until the fishing is done, and then they clear it off. I had no dealings with these two merchants except for my living in the summer time-meal and tea and sugar.

9313. Were these for your company account?-Yes.

9314. Do you think you get your supplies cheaper from R. & C. Robertson than you would get them from the merchants you fish for?-I think so.

9315. And better, or at least as good?-Yes. If I send to Messrs. Robertson for a sack of meal, I get it at the Lerwick price, with the addition of the freight, but when the meal comes to a merchant in the North Isles, he has to take a little profit on it besides.

9316. Are any of the merchants here supplied with their meal from R. & C. Robertson?-I cannot say.

9317. Because if they are not they might possibly get their supplies from the south, and land them here cheap as Messrs. Robertson can land them at Lerwick?-They might. I believe Mr. Henderson, Burravoe, fetches his meal from the south occasionally.

9318. And as easily as the Robertsons can fetch it to Lerwick?- Yes; he has just the freight between Lerwick and Burravoe to pay.

9319. But he might bring it by a sailing vessel from Aberdeen?- He might, but it always comes by the steamer.

9320. Do you know as a fact that the price at Lerwick is less than the price you would be charged meal at Burravoe?-It is a little less.

9321. Do you also find that the quality of the meal better there?- It is sometimes as good in Lerwick at a price of 2s., or 2s. 6d., or 3s. cheaper at Burravoe than it is in the North Isles. I have bought flour lately from [Page 225] Messrs. Robertson at 16s. or 18s. a boll, and have bought it as low as 14s. 6d.

9322. Have you bought any meal during the last year?-No; I did not require it.

9323. But before that you found a difference of 2s. on the flour, and 3s. or 4s. on the sack of meal?-Yes.

9324. Have you bought provisions or supplies from Mr. Henderson, Burravoe, lately?-Not for a long time. Perhaps I might buy a 1/4 lb. of tea or something like that,

if I was at his door; but I paid for it then, and there was no account.

9325. You say you have been quite free to fish for any one you pleased except during three years: did Mr. M'Queen ever forbid you to fish for Mr. Henderson?-Once. I think that was about three years ago; but he (Mr. M'Queen) came to see that that would not do and it was never more spoken of.

9326. Did you fish that year for Mr. Henderson?-No. I went to Greenland; but in the following year I fished for him.

9327. Did you go to Greenland because Mr. M'Queen asked you to do so?-It was almost because of him telling me not to fish for Mr. Henderson.

9328. But you did not like to be interfered with?-No. If I paid my rent to my landlord at the end of the season, I liked to be at liberty to go where I pleased. With regard to the winter fishing, it does not matter much, because they will pay ready money for it whenever we bring in the fish.

9329. Don't you think it would be better if the people here were paid ready money for everything, instead of running such long accounts, and settling only once year?-It might, but I don't know how things would go then. If we were to pay ready money for everything that we got from the merchants, it might not come to answer very well.

9330. Why is that?-Because if I were taking anything to a merchant to sell, such as hosiery, and asking ready money for it, I would not get so much as if I were to let the price lie in his hands for some time.

9331. But don't you think the merchant would sell his goods cheaper to you if you were paying him in ready money?-I believe he would do that.

9332. Don't you think the people would manage their affairs better if they had the money in their own hands?-I think so; because if a man does a day's work, and is not paid for it until the end of five or six months, he is not likely to do so well with it as if the money was paid down to him at once and he could go where he liked with it, to make the best bargain for himself in buying things.

9333. Is it not a great trouble to keep in mind all the things that you have got to your credit-a day's work now, and your fish again, and a beast, perhaps which you have sold, and then to recollect all the outtakes you have had besides?-Yes. I have sold few beasts now for several years, but I always got the money paid down to me on the day when I sold them.

9334. You think that is handier than getting them put down into an account?-Yes.

Mid Yell, January 17, 1872, JOSEPH LEASK POLE, examined.

9335. Are you a partner of the firm of Pole, Hoseason, & Co.?-I am not a partner.

9336. Are you the manager at Greenbank?-Yes.

9337. You were cited to bring some books?-I was and I have brought the only book which can give any information as to our intromissions with fishermen. Our principal books are kept at Mossbank, because that is the head-quarters of the firm.

9338. What books do you keep at Greenbank?-We only keep a ledger into which the account of each fisherman who has one is entered.

9339. Are there some fishermen whom you employ at Greenbank who do not open accounts?-I don't know if there are any; there may be one or two.

9340. In that account at Greenbank do you enter on the one side all the out-takes of the fishermen, and on the other the sums which are due to them for fish or any other matters?-No. The ledger I have with me shows merely the shop accounts of the fishermen. The ledger you refer to is kept at Mossbank.

9341. Are all the balances made at Mossbank?-Yes.

9342. Do the men go there for settlement?-No, they settle at Greenbank; but my brother settles with them, and he brings the book over with him and takes it back with him when he goes to Mossbank again.

9343. What quantity of fish did you sell from Greenbank last year?-About 54 tons of dry fish.

9344. What number of boats had you engaged to produce that quantity?-We had 14 boats altogether. One boat had three men fishing in it, another had four, and the rest had six apiece.

9345. Then the only book you have at Greenbank the ledger containing the accounts for shop goods furnished to your men?- That is the only book we keep there.

9346. Is there a woman's book besides?-No; we don't keep a woman's book at Greenbank.

9347. Do you purchase kelp?-Yes, we do; and we enter it in the kelp-book by itself.

9348. Is not that a sort of woman's book?-No.

9349. Is it not women mostly whom you employ at that?-It is women mostly, indeed altogether, who are employed in making the kelp at Greenbank.

9350. What quantity of kelp did you sell last year?-I think only about nine tons.

9351. What price do you allow to women for kelp?-We have two prices for kelp: 4s. in goods, and 3s. 6d. in cash.

9352. Is that a lower price than on the mainland?-I am not aware that it is, but I cannot speak as to that.

9353. Then, of course, you have a fish-book?-It is kept at Mossbank.

9354. How do your factors mark down the fish at landing?-There is a book kept at Gloup, which is the station in summer, and the factor marks the fish there. Then, as soon as the season is over, the amount is added up and sent to Mossbank to be entered in the fish-book.

9355. It is merely the amount of fish that is added up in the book at Gloup?-Yes.

9356. And the balance is made in a separate book at Mossbank?- Yes; in a ledger by itself, which is kept there.

9357. In that book the total goods supplied at Greenbank are entered in a slump sum?-Yes. The fishermen keep their shop account in one part of our business premises, and their slump account, as it were, in another part.

9358. That is to say, that at Greenbank they check their shop account?-Yes.

9359. Do they come to check it generally themselves, or do they have pass-books?-Some of them get pass-books, and others do not.

9360. If they have no pass-book, how do they check it?-I suppose they check it from their own memory.

9361. Do they come for that purpose before settling time?-No; they generally come about settling time.

9362. Do they not settle at Mossbank?-No; we settle with all our Greenbank fishermen at Greenbank.

9363. Are your books brought from Mossbank for that purpose?- Yes. As I said before, the principal of our business brings them along with him when he comes to settle with the men, and he takes them back with him when he goes back.

9364. Is it at that time that the totals of the shop accounts at Greenbank are entered into the principal ledger?-Yes; and the fisherman gets a note of the amount of his account from me. He settles with me for that, and takes the note in to my brother, who settles the whole account.

9365. Have you also a day-book at Greenbank?-Yes.

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9366. Is that for cash transactions, or do the whole of your transactions first pass into it before being carried into the ledger?-Almost all our transactions pass through it.

9367. What transactions do not pass through it?-If I happened to be posting my ledger at the time when a person was getting anything to be marked down, I might mark it straight into the ledger without putting it through the day-book, in order to save the trouble of posting.

9368. Do most of the fishermen whom you employ at Greenbank and Gloup reside within a short distance of these places?-No; they are scattered over the parish of North Yell, and a few of them are in this parish.

9369. Your brother, when examined at Brae, mentioned the properties which belonged to the members of the firm, and of which he was tacksman, but I forget whether he mentioned if there were any properties of which members of the firm are tacksmen: are there any such?-My brother is tacksman of Mr. Walker's property in North Yell, and Pole, Hoseason, Co. are factors for George Hoseason of Basta, in North Yell, also. I think the number of tenants on Mr. Walker's estate might be fourteen, and the number on George Hoseason's may be nine or ten.

9370. Are these men bound to fish to you by the terms on which they hold their land?-They are not bound by any written or special engagement, but it is understood that they will fish to us, and most of them do so.

9371. Are they bound to fish for you in the Faroe fishing?-No; we have no Faroe fishing in connection with Greenbank at all.

9372. But you have at Mossbank?-Yes.

9373. If one of these men were to go to the Faroe fishing, would you consider yourself entitled to the first offer of his services in one of your smacks?-We would.

9374. Then there is an understanding to that effect?-It is understood that these men will fish to us if we require them.

9375. In point of fact, do any men on these properties in North Yell engage for the Faroe fishing with any other merchants?- There are very few, if who go from North Yell to the Faroe fishing now. It is principally young men who go there. I cannot at this moment recollect any one who goes to Faroe from the north district.

9376. The day-book and ledger and fish-book are, I understand, the only books which are used at Greenbank and Gloup?-At Gloup we have a sort of wastebook, in which any goods are entered which are bought by anybody during the season when we have goods there.

9377. But that is merely for the purpose of being carried into the permanent ledger at Greenbank or at Mossbank?-At Greenbank. These accounts, of course, are settled for at Gloup before the men leave there.

9378. Are these company accounts?-Some are company accounts and some are private accounts.

9379. Can a man have his private supplies at Gloup while he is residing there as well as his company supplies?-Yes.

9380. Have you a publican's licence for the premises at Greenbank?-No; we have a certificate for getting a licence if we wish to take it out, but we have not taken it out for years. I don't care for selling liquor, and therefore I do not take it out.

9381. How do the men get supplies of that kind: is there a public-house in the district?-No.

9382. Therefore they must buy in a stock of spirits when they want them?-I suppose so; but they very temperate class altogether. I don't think they use much liquor.

9383. Do they not require it at the station and when they are going to fish?-At the station we allowed to keep a small quantity of liquor, with which to supply our fishermen during the season.

9384. Is that under the Excise regulations?-I understand it is. It is my brother who takes charge of these matters; but I understand the Excise permit us to have a small quantity, for the purpose of supplying our fishermen only.

9385. Are your supplies of provisions and soft goods at Greenbank furnished from Mossbank, or do you get them direct from the wholesale merchants?-Generally we get them direct from the wholesale merchants.

9386. Are they landed in Yell?-Yes.

9387. But I suppose they are invoiced to the firm at Mossbank?- Yes.

9388. From whom do you get your principal supplies of meal and flour?-I should prefer to give the names privately. [Writes the names of two firms.]

9389. I see in your ledger the account of Lawrence Danielson, Houlland: is that a fisherman?-Yes.

9390. I observe that cash is sometimes entered in his account: does he come to you when he wants a small advance of cash for any immediate need?-Yes.

9391. Are applications of that kind common, or does a man generally get on without cash until settlement?-Occasionally a man may require a little advance in cash, but, as a general rule, any cash which we give out is at the time when the fishermen settle. After man has settled his account, he perhaps does not have as much money as he requires, and he may wish small advance, and it is generally given to him. He may also get a trifle occasionally at other times in the season, but it is generally about that time that the bulk of advances in cash are made.

9392. Do you square off your accounts in the ledger after settlement?-No; before the settlement.

9393. Then the entry here on November 27th, 'By Mossbank ledger, so much,' means what?-It means that the account there was transferred to the Mossbank ledger.

9394. And that indicates the amount which the man was entitled to receive in cash, unless there was something standing against him in the Mossbank ledger as well?-Certainly; there might be a balance against him there.

9395. 'By amount of Gloup account, £1, 13s: 11d.:' was that entirely for his supplies at Gloup during the fishing season?-That was for the amount of his private account at Gloup; and that account, as I have said, is settled between him and our factor at Gloup, and is entered here.

9396. I see entries of meal, 1s. 5d. and 5s. 8d.: what quantity of meal would that be which is charged 5s. 8d.?-It would be a lispund, or four pecks.

9397. What is the quantity charged 1s. 5d.?-One peck, or eight lbs.

9398. Was that the selling price of your meal last summer?-Yes, by the peck.

9399. Do you charge less when a larger quantity is taken?-Yes; we charge sometimes 1s. or 1s. 3d. and sometimes as much as 2s. less per boll. The price per boll would be somewhere about 25s. or 26s. when the lispund was at 5s. 8d.

9400. What did you sell meal at per boll last summer?-It is very rarely that I sell bolls at Greenbank. Generally when a quantity of that kind is required, we order it

direct from the south, and it is charged to the men at Mossbank.

9401. Do you purchase hosiery at Greenbank?-We do very little in that way.

9402. I see one woman credited in the ledger with shawl: is that an exceptional transaction?-Yes, most exceptional transaction. We used to do a good deal in hosiery, but we found it was a very bad speculation, and so we gave it up. We were losing money by it every year: we would have been in the debtors' prison, I suppose, if we had continued to go on with that trade.

9403. Are the women's accounts for kelp kept in the same book?-Yes; if a woman is to be credited with kelp it is entered there.

9404. Do you purchase wool?-No; but we have some sheep: at least I had the management of some sheep this season, and I sold the wool for behoof of the party who owned the sheep.

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9405. When you employ people to work for you, are they paid at the time, or at the settlement?-We sometimes pay them at the time, and sometimes at settlement.

9406. Are people employed in curing fish always paid at settlement?-Not wholly. We have a class of hands who are paid by beach fees, and another class whom we employ as day labourers, and we pay these either daily, weekly, or monthly, or whenever they like.

9407. Or at settlement, if they have an account?-Not necessarily. Some of them may have an account, and yet be paid daily.

9408. I see in the ledger that one woman is credited on July 1st, 'By work in full, 7s. 7d.,' and the account is made up: that work, I suppose, only went into the account. What kind of work would it be?-It was dressing worsted.

9409. Then, on January 14, there is, 'By work, 3s. 2d.:' was that dressing worsted also?-So far as I recollect, it was.

9410. I see here a special entry, 'By dressing, 3s. 9d?'-That is the same thing only differently expressed. That woman dresses any little worsted we may buy.

9411. Was that hosiery goods?-No; it was the worsted itself, the yarn.

9412. Do you buy the yarn ready made, or do you give the wool out to be spun?-We buy it ready spun and dress it, and send it south.

9413. You don't get it made up?-We do not.

9414. But the dressing here is paid for on the same principle of accounting which you adopt in your transactions with the fishermen?-Just in the same way.

9415. And you just settle for it at the end of the year?-Not at the end of the year; just whenever the woman likes.

9416. I see that this balance has been made at March 31, and another balance is made in April, and another in July?-Yes.

9417. Are the sales of fish transacted by you at Greenbank, or through the firm at Mossbank?-Through the firm at Mossbank entirely.

9418. Are you generally acquainted with the transactions in that department?-No. I may happen to know occasionally about some things; but I don't know particularly, as a general rule.

9419. Do you know the price at which the fish were sold last year?-I have an idea about what it was, but I could not say the exact figure.

9420. Do you know to whom they were sold? Were any of them sent to Spain?-I am not aware that any were sent to Spain. I don't think there were any sent abroad at all. I think they were all sold in Scotland and Shetland.

9421. Who buys from you in Shetland?-Mr. Joseph Leask at Lerwick; he is a very large fishbuyer.

9422. Why do you not sell your fish direct to the south?-I suppose we find it to be an advantage to sell to him. The Greenbank fish were all sold to him last year, and I believe some were sold from Mossbank too, but I could not say the exact amount.

9423. Can you explain how the current price of the season is ascertained, according to which you settle with your fishermen?- I cannot explain it exactly; but I believe some of the curers may correspond with one another about what they consider to be a fair price.

9424. Did you sell last year at the same price as your neighbours, Spence & Co.?-I don't know.

9425. If there is a difference in the price obtained by two or three neighbouring firms for their fish, do you strike an average in order to deal with your fishermen, or how is it that the fishermen are settled with?-I am not aware that there is any average struck. I think, as a general rule, the fishermen are paid to the full extent of the highest price realized by the large curers.

9426. Suppose you were selling 10s. or £1 a ton cheaper than your nearest neighbours, in consequence perhaps of having to sell earlier, or when the market was in a depressed state?-Such it thing occurs sometimes.

9427. Would you in that case settle with your fishermen according to the price obtained by the other party?-Certainly.

9428. Is that an invariable rule?-In my experience it has been the rule.

9429. Is that because the fishermen are sure to find out who got the highest price and would be dissatisfied, or is it part of the understanding that it is the highest current price according to which they are to be paid?-I believe the fishermen generally understand that they are to be paid according to the highest price.

9430. Then if a merchant is specially fortunate and gets a price much higher than the ordinary prices of the year, does that regulate the whole prices throughout Shetland so far as the fishermen are concerned?-I should say not; but I think that is a thing that very rarely happens. I think the principal curers, so far as I know, get much

about the same price for their fish. There may be a slight variation here and there, but it small.

9431. They will get pretty much the same, I fancy, if they sell in Shetland to one gentleman or two?-Yes; but I am not aware that they all do that.

9432. Do you ever sell any fish for exportation to Spain?-I cannot say that we have ever sold any for that purpose. No doubt some of the fish we have sold may have gone to Spain indirectly.

9433. But you have not sent them there on your own account?- No.

9434. I presume the bulk of the transactions at Greenbank are credit transactions, and enter the ledger?-No. We do a great deal in cash payments.

9435. Is that with fishermen?-In some cases with our own fishermen, and in other cases with other people. We do a considerable business across the counter for ready money. I should say that in our shop business we sell as much goods for cash and butter and eggs, and so forth, as we do for fish.

9436. Are these cash transactions, as they may be called, speaking generally, with the same parties, or with different parties from those whose names appear in the book as having got goods which are set against their fish?-In some cases they would be with the same parties, and in other cases with others. For example, it is generally women that we buy yarn from, and it is very often women who bring us eggs and butter.

9437. Do you settle the whole of these transactions at the time?- Yes, as a general rule.

9438. But these women may have an account which enters the women's book?-We keep no women's book.

9439. Then when a woman does deal with you that way, she settles her transactions at once?-Generally at once.

9440. When you sell a quarter lb. of tea, or a lispund of meal, or a bit of cotton over the counter in a ready money transaction, is the same price charged as if it were entering the book?-Exactly the same, in all cases.

9441. Does it not follow from that that your profit upon the transactions which enter the book and are settled for at the end of the year is much less than what you make upon the cash transactions?-If we were to make no bad debts, it would not be much less. It would be much the same.

9442. Would it not be less in this way, that you might turn your money over twice before these accounts were settled, and you would either have the interest for the year or you might make another profit?-True; but the rate of interest is so exceedingly small at present, that the money is worth scarcely anything at all.

9443. I suppose it is a consideration in that matter that if you lose the interest upon the money that is invested in goods, you gain by the interest upon the money that is not paid to the men until the end of the season?-There is not much gain there,

because we have often to pay the fishermen their money some months before we receive it.

9444. When are your fish sales made?-Towards the end of September or beginning of October, and they are generally made on a three months bill.

9445. That is on a bill payable in January, and the [Page 228] men are settled with in December?-In the end of November or 1st of December.

9446. So that the men are paid a month before you receive the proceeds of your fish sales?-Yes, a month or two.

9447. In that way, therefore you do not stand upon an equality with the men in the matter of interest, but on all these credit sales of goods you are losing interest?-Looking at it in that way, that would be so.

9448. I should have thought it not unreasonable that you should have a discount for these cash payments: why have you not?-I believe the reason is, that there is a great difficulty in having two prices for your goods-I mean honestly.

9449. You think the people would complain?-Not only would the people complain, but I am afraid your own conscience would cry out sometimes.

9450. Why should your conscience cry out if you are really equalizing the two classes of buyers?-The buyer who does not pay until November has the advantage of having his money in hand, and of getting an advance made to him on credit; whereas the buyer who pays you in March or in April for the same goods which the other man does not pay for until November, gives you his money six or eight or ten months sooner, and you have the advantage of having the money in your pocket, and you could make of it, as the case may be: is not that so?-Yes. A discount might be taken off if we could decide upon a certain percentage to take off for cash; but I believe the reason we have never done anything in that way is, that if you once begin to make an alteration, there is a great difficulty in fixing your prices, and a difficulty in sticking to an exact rate. Perhaps you will allow me to illustrate what I mean. Suppose I go into a shop and ask for a cloth jacket, and the jacket is brought down. I am well acquainted with the price of these goods, but I have plenty of impudence, and I beat down the price until the seller consents to give me the jacket at 3s. less than he asked at first. Then my brother, who is a quiet man, goes in and asks for jacket exactly the same. Perhaps he gets five per cent. taken off, which would be 1s. 6d., and he pays cash for it. That would be 1s. 6d. of an advantage to me, and I consider that it would be unfair and dishonest to him.

9451. But you get out of that difficulty by raising the price a little to everybody?-We do not. We just price our goods at what we consider to be a living profit, and we do not sell them at less than that to anybody.

9452. Are not your prices fixed, in the first instance, at such a figure as you calculate would cover the risk of bad debts upon your credit transactions, and also the loss of interest upon the money?-I cannot say that they are. We try to make as few bad debts as possible, and I cannot say that the prices are fixed with a view to that at all.

9453. Are the goods invoiced to you at Greenbank from Mossbank?-They are all invoiced from Mossbank.

9454. At the cost price, or at the price at which you are to sell them?-At the retail price.

9455. Have you known many cases of fishermen leaving your employment and going to other merchants?-No; as a general rule, fishermen continue in our employment for a very long time. No doubt there exceptions.

9456. I suppose there is a difficulty sometimes in man changing because of its disarranging the boat's crew?-In some cases there is.

9457. Do you know of any cases in which single men have come to you from other employers within the last half-dozen years?-I cannot speak for the last half-dozen years. I can only speak particularly for two years.

9458. Within that time have you got many men coming to you from other merchants?-There have been a few.

9459. Have these men generally been clear of debt to their former employers when they came to you?-So far as I know, they have.

9460. They have not asked you to undertake, their debts, or to advance them money with which to pay their debts to their former employers?-No. I have no case of that kind in my mind at present.

9461. Does any arrangement exist between you and any other fish-merchant, to the effect that a man leaving the one merchant and seeking employment with the other shall have his debt cleared off by the new employer?-There is no such arrangement between us and any other employer.

9462. Do you know of any case in which that has been done?-I cannot say that I do. Such a thing might have occurred, but there is no case of that sort which has come within my own knowledge.

Mid Yell, January 17, 1872, THOMAS WILLIAMSON, examined.

9463. You are a merchant and fish-curer at Seafield?-I am. I have been there for a short time. I commenced with the fishing in 1871, and I commenced for myself there as a merchant on 20th May 1870.

9464. Where had you been before?-I was shopman for one year before to the man who had the place previously-Magnus Mouat.

9465. Before that where had you been?-In 1867 and 1868 I was in Robert Mouat's shop at Coningsburgh as his shopman, but he took charge of the shop chiefly himself. I was not quite two years there.

9466. I understand the men in that neighbourhood were under an obligation to fish to Mouat, who was the tacksman of the property?-I cannot say about that. I did not know anything about their private matters.

9467. Do you mean to say that you were shopman to Mouat for two years and did not know that?-I did not know their private affairs, whether they were bound or not. I saw the men fishing, but I could not say whether they were under an obligation to fish for him more than for any other one.

9468. Did you not know of any cases in which men were threatened or ejected for not fishing for him, or for selling their fish to other merchants?-I was not aware of that at the time I was there.

9469. Were the men's accounts with Mouat settled annually in the same way as they are in other places in Shetland?-Yes, during the time I was there.

9470. Had you anything to do with settling these accounts?-No; he settled with the men himself.

9471. Did you keep the books in which the goods taken from the shop were entered?-Yes; the daybook.

9472. Do you remember anything about the prices charged there?-They varied, just as they did at other places.

9473. Were you aware at the time that the prices charged in Mouat's shop were much higher than those at other places?- I cannot say that they were higher for a country shop.

9474. Were they dearer than are charged in this neighbourhood now?-I cannot say that they were for the groceries; but indeed they would require to have been dearer, because he had to take his goods overland at a heavy expense from Lerwick. It was pretty expensive keeping a horse and cart for that purpose, and taking his goods down on a winter day. When he did not do that, he had either to employ a sloop for himself, or a big six-oared boat.

9475. But you have to do that in many places in Shetland?-They do that throughout the mainland, in Quendale and other places.

9476. Did the men about Coningsburgh ever complain to you of the quality of the goods sold in Mouat's store?-Of course I might have heard a man complain, just as parties will do when buying goods. Some customers will always complain. They may perhaps despise the thing, and yet at the same time they like very well to take it, but they pretend not to want it in [Page 229] order to get it a little reduced in price. I don't think the goods were any dearer or any worse than in most country shops in Shetland, because they came from the south country, and from the same men from whom most country merchants in Shetland purchase.

9477. Did Mouat buy from a merchant in Aberdeen?-He got most of his soft goods from Mr. D. L. Shirras there.

9478. Where did he get his meal and flour?-Sometimes from Macduff in Banffshire, and sometimes from Tod Brothers, Stockbridge.

9479. Who was his merchant at Macduff?-I forget; I think it was Messrs. Laing. He had one cargo from them during the time I was there. I think Mr. Adie, Voe, had some

in the vessel at the same time.

9480. Was the cargo landed at Coningsburgh?-Some of it, and some at other places, just as the party got orders for it.

9481. Did the cargo belong to Mouat, or was it a joint concern?-I cannot say.

9482. Where did he get his flour?-He did not get very much flour during the time I was there, except for house use.

9483. Where did he get his tea and groceries?-From Mackintosh & Co. Glasgow, and from Bremner & Grant, Aberdeen.

9484. Did you ever know of any of Mouat's men getting money at the settlement?-Yes; those who had it to get got it, the year I was there.

9485. Were they sometimes paid by receipts or lines?-I cannot say how they were paid. The men, as they came out of the place where they had been settling, spoke about being paid.

9486. But you don't know whether they got cash?-No; they might have got a cheque on the bank. I only saw the entry in the ledger, of cash being paid in full.

9487. Your department was merely to sell in the shop?-Yes; and I was oftener travelling. I travelled a good deal buying up stock for him.

9488. Where were your principal purchases of stock made?-In winter they were chiefly at the Walls Martinmas sale.

9489. Was that in the neighbourhood of Coningsburgh?-No, it was in the west side of Shetland; but Mouat would perhaps buy a beast or two in the neighbourhood of Coningsburgh as he had orders for them.

9490. How were these cattle settled for?-Those that I bought were paid in money at the time. I cannot tell how he paid for those he bought himself.

9491. Were these cattle sent out of the country?-Some of them were, and others were re-sold in the country.

9492. Do you really think that upon the whole the stock of goods in Mouat's shop was as fair in quality as is usual in Shetland?-I could not say any other. The goods might have been lying for some time, and I could not tell what strength was in them, but they looked very well. They just looked like any goods that you would see brought into a country shop.

9493. I understand you have taken Mrs. Budge's premises at Seafield for curing and salting your fish?-Yes. Of course we had an understanding when we took them, that we were to have the men on equal terms with what they would get from another, but there was no more agreement about it. There is scarcely any man who could keep the premises there and carry on business in them without the privilege of having the men to fish for him. It would hardly have been fair to have made them fish for me unless they were as well served as by fishing for another; but I told them that I did not want any of them to fish for me unless they came voluntarily.

9494. Do you mean that the premises are inconveniently situated for such a business?-Of course. They lie so far inland that we require to have a push like that.

9495. And in order to get men to deliver their fish there, it is necessary that they should be under some sort of obligation?- We thought that unless the men had something to do at the place, it would not be worth keeping it. Of course you cannot very easily force a business there, without a few men that you can depend upon.

9496. Do you mean to force a business in the way of fish-curing, or in the way of selling goods or provisions?-Of course it would require a man with more capital than I have to force a business so far inland.

9497. But which do you mean; the fish-curing business, or the general business?-I mean the general business.

9498. I suppose the drapery and provision business depends very much on the success of the fish-curing business?-Yes. There is nothing else to depend upon. There are no works or anything like that in the neighbourhood.

9499. Do the men who are employed by you in the fishing live near your shop?-Yes.

9500. But you say that for fish-curing this is not a very convenient place, because it is too far inland?-I say it is not convenient for driving a business, unless you have some means to depend upon in the fishing or such like. There are not many people round about who could purchase goods over the counter, so that the business cannot be carried on in that way.

9501. But do you suppose that in any part of Shetland a good business over the counter could be carried on unless there were fishermen employed by the merchants?-Yes. I know places in Shetland where they do carry on a good business over the counter without having fishermen. For instance, they could do so in Unst.

9502. Don't merchants who try to establish a business find it exceedingly difficult to get on in the neighbourhood of a large merchant who has a number of fishermen employed, unless they have fishermen of their own?-No doubt but then there are some places a good distance from these large fish-curers where they could drive a very good business over the counter. Of course they could not make a large business of it, because there is not a large business to be done in Shetland.

9503. But they could make something if they were far enough away from the large fish-curers?-Yes.

9504. Still at any place I suppose it is an advantage for a merchant to be a fish-curer?-I don't know as to that. I cannot say much for it this year. Last year was my first year at it, and I had two boats.

9505. Did you not make a good thing of your fishing last year?- They did very well in the way of fishing, but I lost a good few lines and I had to pay most in cash. I paid the men cash down, and when they do not take their goods in return we make very little by the fish.

9506. Did the men not run accounts with you as they would do with another fish-curer?-No doubt some of them did, but some of them did not.

9507. Had they all cash to receive at the end of the year?-Yes.

9508. Was there not one of them who was in debt to you at the settlement?-Not one. The lowest had about £6 to get.

9509. Then you would not make so much of them as some merchants do?-I don't know as to that. I don't expect that I would make anything.

9510. Did you not expect to drive a fair business at Seafield?- Hardly, upon that footing.

9511. Are you not satisfied with your first year's trial here?- Sometimes we must be doing, although we are not satisfied with everything that comes across us. Sometimes we must just endure it, and hope for better success in another year.

9512. How do you account for your shop business not being larger last year?-The men were in pretty good circumstances, and perhaps they found that they could get their things a little cheaper in Lerwick, and they ran accounts there. Of course I could not sell so cheap as they do in Lerwick, because I was buying most of my goods there. I got part of my goods from the south, and part from Mr. Leask.

9513. Did you hear Mr. Laurence Williamson's evidence?-Yes.

9514. Do you make the same bargain with your fishermen about boats and lines and other things as he described?-The captain of the boat got something extra from me.

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9515. But did you give as much off the boat hire as a premium to the men?-No; but of course it came to the same thing. I got £4 for the boat and lines. Laurence Williamson charged £6, and of course I charged £6 too, but I gave the lines free to the captain of the boat, and £1, 6s., which is equal to £2.

9516. Do any of the men in your experience buy their boats and lines?-They do in other places but not on this island, so far as I am aware.

9517. And that is always a debt against a boat's crew at starting?- Yes. In Dunrossness the crew buy their boat and lines, and I believe in Whalsay too.

9518. Have you engaged your boats for next year?-Of course it was understood when I bought my new boats last year, that the men would continue to fish for me; and this year they have not said anything against continuing to fish.

9519. Therefore you will have the same two boats' crews of Mrs. Budge's tenants?-I hope so.

9520. It was an understanding between you and Mr. Sievwright when you took the premises that these men were to fish for you?- Yes.

9521. Was that understanding put into writing?-No.

9522. Have you any lease of the premises?-No. I have them taken from year to year.

9523. But it was understood in conversation between you and Mr. Sievwright that the men should fish for you?-Yes, that the men should fish on the same terms to me as they would to another person; but still I don't want any of the men who do not come to me voluntarily.

9524. Still you had no objection to the landlord bidding them fish for you?-None whatever.

9525. Were you aware of the letter being written which has been produced to-day?-Yes. I did not see it before it was sent, but I saw it in the hands of the man who produced it.

9526. Did you know it was to be written?-No. I did not know whether Mr. Sievwright was to ask them or to write to them.

9527. But it was quite understood between you and Mr. Sievwright that there was such an arrangement?-Yes, of course I spoke to Mr. Sievwright about it.

9528. And your rent was fixed on that footing?-No; my rent was fixed before that matter was spoken of. I spoke to Mrs. Budge first about it, and she advised me to try it, and said she thought the men would have no objection to fish for me more than to any other party.

9529. Had the premises been unlet for some time?-Yes.

9530. Magnus Mouat had them for two years before you?-Yes.

9531. Had they been unlet before that?-Yes, they were never let before.

9532. Why did Mouat leave?-He did not do very much in the place. He is in Unst now.

9533. Would you pay the same rent for your premises if that understanding did not exist about the men fishing for you?-No, I would not keep them at all.

9534. Why?-Because I could have nothing to do in them. I would have nobody buying anything from me.

9535. And you would have no men to fish for you?-No.

9536. Is that because you cannot get free men to fish for you, or is it because they prefer to fish for the big fish-curers?-When the men are engaged to the big fish-curers, if I were to go and ask them to come and fish for me then I would require to give them a better bargain than they have with the merchants by whom they are employed now, and if I were to do that it would take away all the profit I would have on the fish, and I would have to work for nothing. Therefore I would be as well to want them.

9537. How do you fix the current price at the end of the year?- That is a thing I am hardly able to tell.

9538. How did you manage to ascertain it last year?-My bargain with the men was to give them the current price of the country, and accordingly I did so. I ascertained what the big fish-curers were giving, and I regulated my price by theirs.

9539. You did not settle until you ascertained what price they were getting?-No, I settled just at the general time.

9540. But after you had found out what the large fish-curers were getting?-Yes.

9541. Did you sell to Mr. Leask?-Yes.

9542. Have you any difficulty in getting men employed by the large fish-curers because they are bound to them too?-No, it is not exactly that; but I have not so much money as these fish-curers, and if the men make two or three small fishings, the curers can help them with money or goods, while I could not afford to do that.

9543. You have not the means of carrying them through?-Of course I have not. Men who have been long in business and who have plenty of capital can manage to do the thing in different ways; and small shops like mine need not try to fight against the great.

9544. It was only the balances you paid in cash this year?-Yes; but some of the men had £7 or £8 before settlement time came, and some had before they went to the fishing at all.

9545. Then their accounts at the shop would be rather small on the whole: what would you say was about the average?-They ran from 5s. to £9.

9546. Did they get that in goods?-They could take it either in cash or in goods. When they did not want to take the goods, they got cash if I had it; and if I did not have it at the time, they had just to wait until I could make some shift to get it for them.

9547. Do you buy hosiery?-Very little. If I can get a little good worsted-yarn, that is all I buy.

9548. Who do you sell the yarn to?-All I have done in that is a mere trifle, as I have not been long in the business; but perhaps I take a parcel to Lerwick, and hawk it through the shops, and get goods in exchange which I want for my own business.

9549. Is it understood that you are to take the price out in goods?-Yes. Of course I may meet with a private individual who may buy a few good cuts of worsted from me for cash.

9550. Is the worsted you get generally of good quality?-It is generally thick worsted, worth 2d. or 3d. a cut.

9551. That is not the very finest Shetland worsted?-No. There is some of it as high as 6d. a cut.

9552. Do the merchants re-sell the worsted at the same price or do they charge a profit upon it?-I cannot say much about that; only I know that all that worsted and hosiery is a bad spec. to meddle with. If it lies any time it gets spoiled, and it is very

difficult to get a market even for the best quality of it in the south.

Mid Yell, January 17, 1872, GILBERT GILBERTSON, examined.

9553. You are a fisherman and tenant at Harra, Mid Yell?-Yes.

9554. Is that on the Gossaburgh estate?-No, it is on Mr. Hay's own property.

9555. Are you free to fish for anybody you like?-I have been so in time past, and I am so now, so far as I know.

9556. Have you ever fished for any person except Hay & Co.?- Yes. I fished five years for Mr. Sandison at Cullivoe, two for Mr. Henderson, and one for Mr. Williamson at Ulsta.

9557. Where do you get your supplies?-Generally from the merchant for whom I am fishing. We don't have means to get them anywhere else.

9558. Are you generally a little bit in arrear end of the year?-No; I always manage to have something over to help to pay the land rent.

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9559. Do you pay your rent to Hay & Co.?-Yes, to the man whom they send up to make the settlement. They send a man every year to West Sandwick.

9560. Are you fishing for them just now?-No; the last one I fished for was Mr. Williamson. I have made no arrangement for the present year.

9561. Where are you getting your supplies for the incoming year?-We are shifting along the best way we can. We have some corn and potatoes of our own.

9562. Is not the time past for making up the boats' crews?-No; sometimes it is done before now, but sometimes it is as late as the month of April.

9563. Are there many men near you who have not made any arrangement for this year?-There are a good few, principally those who fished along with me last year.

9564. Then I suppose you are quite at liberty to go and fish for anybody you please?-So far as I know, I am.

9565. Have you no account running anywhere just now?-No.

9566. Are you not in debt to anybody?-I may be about 1s. or 2s. in debt at the shop at Linkshouse, but that is all.

9567. If you engage to fish for Mr. Leask at Ulsta, will you open an account at his shop at once?-I should like to be as long as possible in opening an account.

9568. But I suppose you won't get through the summer without doing so?-No. Of course I could not get through the summer without a little supplies.

9569. Do you think it would be an advantage to you if you could get your fish paid earlier in the season?-It would be an advantage in some respects. If I was not fishing for the proprietor, and if he wanted his rent at Martinmas and I did not settle with the fishcurer, then the proprietor might come upon me for the rent before I had money to

pay him, and put me to expenses for that.

9570. Don't the proprietors generally wait for your rent till after the settlement?-In some cases they do, but not always.

9571. Have you known cases where they would not wait until after settlement?-I have not known any but in some cases they would like to have the money as soon as it is due.

9572. Have you known any case in which the fishcurer would not advance money for the rent when the proprietor was needing it?-I never knew that.

9573. Does the fish-curer generally advance you money for that purpose?-Yes, if there is money coming to me at the settlement.

9574. Have you known a fish-curer giving a line to the proprietor for the rent?-Yes. I have got an order from one of our curers to the proprietor himself. I have got an order from Mr. Henderson to Messrs. Hay, and it was accepted the same as cash. That was last year; the order was for about £5. It was a stamped order on the bank. It was only for part of my rent, and I had to shift for the rest somewhere else.

9575. Was it a cheque for the whole balance due to you?-Yes.

9576. Did you get it at settling time?-I got it at the time when Messrs. Hay settled, but I did not get an account from Mr. Henderson until after that.

9577. Then there was more due to you by Mr. Henderson than that?-A trifle. He took care to keep on the right side.

9578. Then you think it would not be of much difference to you to have an earlier payment?-I don't know. It might suit a temperate man very well who could manage his own affairs; but for the man who required all his pence, I don't think it would suit very well.

9579. Don't you think it would be better if you were to be paid so much, perhaps every week or every month, during the course of the fishing, and then to be paid the balance according to the actual price at the end of the season?-I think that would be a very good plan, so far as I can see. It would keep the men from turning into debt, and it would enable them to go to the best market; whereas we who have no money are compelled to take our supplies from the fish-curer.

9580. Do you think that is often a loss to you?-I am certain it is, because his prices must be a little higher in consequence.

9581. Have you felt that yourself?-I felt it last year.

9582. Then anything would be an improvement which would enable you to keep out of debt and deal where you pleased?-Yes; if we had the means of dealing where we pleased, then we would be enabled to go to the best market.

9583. Have you compared the goods you have got from the merchants for whom you were fishing with those you could get elsewhere?-Yes. Last summer we were paying 1s. 3d. per peck for the flour which we were getting from Mr. Williamson at

Ulsta, and there was as good flour in Messrs. Hay's at Feideland at 1s. 1d.

9584. Have you ever made any other comparison of that kind?- No. Sometimes when we found the tea or sugar to be bad, we would try where we could get it best; but we could not run an account at these places, in case we might not be able to pay it from our fishing.

Mid Yell, January 17, 1872, HUGH HUGHSON, examined.

9585. You are a merchant at Gossaburgh?-Yes.

9586. Do you cure fish?-A few.

9587. How many boats had you last year?-I had no boats at all. I deal altogether in ready money. I pay ready cash for all that is brought to me, but I only do in that way on a small scale. I have no bondmen, and I wish for no bondmen.

9588. Do you pay for the fish as they are delivered?-Yes; cash down.

9589. Do you purchase generally from men who are fishing promiscuously along the coast?-Yes.

9590. Do you buy from men who are engaged to other merchants?-No. There are it few small boats that fish along the shore, and when they come along the shore with their fish I buy them.

9591. How do you fix the price of the green fish which you buy from them?-I fix it from the merchants' price. Supposing I can get £20 in cash for dry fish, I consider that I can give about 7s. per cwt. for the same fish green, calculating 21/4 of green to 1 cwt. of dry.

9592. Do you think that kind of business might be carried on on a large scale?-I think it could; and am sure it would be much better for the men. I have been twelve years in the country, and I have found that by paying ready money I have got more custom.

9593. Have you no credit transactions at all?-Yes. I try to oblige people at times when they want goods.

9594. But you have no security in the shape of fish which you are to receive?-No.

9595. In fact you have no security at all except their honesty?- No. I now produce my fish-book, which contains entries of the fish as they are landed, and the prices which I pay for them.

9596. Do you find that the existence of long credits prevents you from driving as large a business as you might otherwise do?-The islands have groaned under the system of long credits for many years.

9597. But do you find that it interferes with your driving a larger business?-I have no command over men, and I do not wish to have, but I always find that when there is any money going I get my fair share of it; and I think if every one did the same, they would get a fair proportion of business.

9598. If the men could not get credit from the larger fish-curers, do you think they would be ready to deliver their fish to you for ready money at the current price?-I think they would. I believe I would be able to [Page 232] buy £100 worth for every £20 worth I buy now, if the men could not get supplies on credit elsewhere.

9599. Do you think the introduction of a cash system of that kind would greatly injure the men, and make them unable to get through the winter?-I think the introduction of a cash system into the islands would not do very well for the poor men, because they must often have £2 or £3 of supplies from the curers before they can begin work. What they complain of is, that the merchants charge them a little as commission upon the money which they pay for the goods.

9600. But instead of getting supplies as they do now, they would be paid for their fish every time they delivered them, and then they could purchase goods as they pleased with the cash?-Yes; but there are many men at present who have no means, and who must come to me and ask me for a few pounds at a time with which to pay their rents. If I refuse them that assistance they could not carry through at all. They could not wait until they got money from their fishing; they would become paupers; and therefore they require advances.

9601. Do you buy any fish in winter and spring?-Yes; I buy a good few in winter when I can get them.

9602. But not enough to keep a man going with his family?-No. I made some money in Australia, and that is what keeps me going.

9603. But the men do not catch enough fish in winter and spring to keep their wives and families?-No. There are sometimes weeks when they can get none at all, the weather is often so stormy.

9604. If you have been in Australia, you know that there are storms elsewhere as well as here?-In Scotland they fish along the coast, but they have better boats and there are vessels always passing, while here there are currents from the Gulf Stream which would frighten any man.

9605. You think they have not so good boats here?-They have not, but they work them wonderfully, and they sometimes frighten me when I come across them.

9606. Have you any idea why it is that these men come to you for credit instead of going to the merchants to whom they sell their fish?-Of course they cannot all deal in one place.

9607. But would they not get their credit much easier from the merchant who is to receive their fish?-They might get it from him, but perhaps they might have the same reason that the man had when he was courting; one man might like me whilst others might not. They might take fancies of that kind.

9608. Do you sell your goods at a lower price than the large merchants?-I cannot say I do. I sell as low as I can, and if I was not selling reasonably low I could not carry on at all.

Mid Yell, January 17, 1872, GEORGE WILLIAMSON examined.

9609. You are a fisherman at Mid Yell?-Yes. I go to the whaling and sealing.

9610. You hold a bit of land here?-Yes.

9611. Do you also go to the ling fishing?-Yes, when I am at home any time; but I generally go to the whaling.

9612. Do you go to Lerwick for an engagement?-Yes. I generally engage through Messrs. Hay.

9613. Do you get your month's wages in advance?-Yes; it is paid down in cash at the Custom House.

9614. You also get an allotment note?-Yes. I leave it with Messrs. Hay, and then they supply my family with what they require.

9615. Does your wife live at Mid Yell when you are away?-Yes.

9616. How does she get her supplies from Lerwick?-She sends an order down to them, and they send her up what she requires by the steamer.

9617. Is that the only account you keep?-That the only account I keep with them; but I keep some accounts with other men.

9618. Do you keep an account with the merchant for whom you go to the ling fishing afterwards?-Yes.

9619. When you come home from Greenland you settle with Messrs. Hay at the Custom House?-Yes, as soon as I come home.

9620. You did not use to do that formerly?-No; we always used to settle in the office.

9621. When you settled in the office, the amount of your account was deducted from what you were to get?-Yes; but what money we had to get was paid down to us in cash.

9622. But now you get all your money except what you have got in the ship, and the first month's advance?-Yes.

9623. And with the balance you walk down to Hay & Co.'s office and pay off their account?-Yes.

9624. I suppose you just go down with the clerk who has been along with you at the Custom House?-Yes.

9625. Do you always pay off their account on the same day that you are settled with?-Yes; but it only two years since we began to be paid in that way.

9626. Have you been at the whale fishing every year for some time back?-I have been eleven voyages at it but from 1852 I have been in the south as well as at Greenland, and I have been at the ling fishing too, and all sorts of trades.

9627. When is your last payment of oil-money generally settled for?-When the oil has been boiled at Dundee or Peterhead, and they know how much there is of it, the money is sent on to Lerwick. If we are there to receive it we will get it as soon as it

comes and if not, it will lie until we come.

9628. Do you get it at the Custom House or Messrs. Hay's office?-If we like, we get it at the Custom House; but this year I would not go there and I got it at the office. It was at night, and we could not get access to the Custom House; but as I wanted to get clear. I was just paid at the office.

9629. Is your first payment of wages and oil-money after you come home generally made before you leave Lerwick and come to Yell?-It is now. They are very strict about that. They like you to settle up before you leave the town.

9630. What amount of cash do you generally get as the first payment on a Greenland voyage?-It depends on what kind of voyage we make. Sometimes we have very little to get. Last year I had somewhere about £10 or £12 to get for wages and the first payment of oil-money. I had taken £2, 5s. of out-takes from Messrs. Hay besides my first month's advance. That was for supplies to my family at home while I was away. I was only absent for six weeks.

9631. What ship were you in?-The 'Labrador' of London. We made a good voyage.

Mid Yell, January 17, 1872, DANIEL MORE, examined.

9632. You are a fisherman and tenant at Cunningster?-I am a fisherman, but not a tenant. I have got a house of my own.

9633. How long have you been there?-About two months-since Martinmas. I was at Basta before, and at Colvister, and at Basta before that.

9634. Why have you changed so often? Could you not get a bit of ground to sit upon?-I was twenty-two years at first in Basta, and then I lost my health, and I began some little business in groceries. The landlord of the ground was Mr. George Hoseason, but the tacksman was his half-brother, Mr. Hoseason of Mossbank. He thought I was doing too well in my grocery business, and taking away too much from their shop, and he put me away from there.

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9635. How did you know that he put you away for that reason?- Because they told me that.

9636. How long is it since that occurred?-About twelve years ago.

9637. Where did you go next?-To Colvister, where I was under Mr. William Henderson of Gloup, brother of Mr. George Henderson of Burravoe. I had a small shop there.

9638. Why did you leave that?-I left because I was not a fisherman. Mr. Henderson wanted me to go to the fishing; but as I would not he got another in my place, and thought he would make better of it.

9639. Is it usual for a proprietor to turn away a man who does not fish?-Yes. I paid £1 more than every man who fished every year since I left the fishing, except to Mr. Hoseason of Basta.

9640. Did you pay that to Mr. Henderson while you were at Colvister?-Yes.

9641. How long were you there?-Eight years.

9642. Did you pay £8 of additional rent to him during that time?- Yes. The other tenants paid £4 for the same amount of land that I paid £5 for.

9643. Did he tell you that that was because you did not fish?- Yes.

9644. Did he tell you that when you took the ground?-No; he did not say very much about it at that time.

9645. But he told you afterwards that you must pay £1 a year more if you did not fish?-Yes.

9646. Why did you leave?-I did not leave until he warned me.

9647. Why did he warn you?-Because he wanted a skipper for a boat.

9648. Where have you been since?-I was on Basta for three years.

9649. Where are you now?-On Major Cameron's property, under Mr. Walker. I have no shop there; but I have a house and a bit of ground, which I bought with money I had saved. I am not doing anything at present.

9650. Have you known many men who have been turned out of their holdings because they did not fish?-I have known a few in Yell. The proprietors of the land, if they did not fish for them, would turn them out.

9651. Is that a common understanding among the people?-Yes.

9659. Is there anything else you want to say about it?-Nothing particular, but that I know I have been harshly handled because they thought I made a living by selling some groceries and one thing and another. They did not like it very well, and in that way they turned me out of both places.

Mid Yell, January 17, 1872, JOHN S. HOUSTON, examined.

9653. You are parochial schoolmaster of North Yell?-I am.

9654. You have had considerable experience in the management of property?-Yes, and in dividing runrig lands.

9655. How long have you been in the country?-Between 15 and 16 years.

9656. Have you had experience as to the relations existing between proprietors of land and fish-merchants in Shetland?- A little.

9657. Would you explain the nature of the arrangements that have been made in former times, and which are now made, by which the rent of the proprietor is paid through or by the fish-merchant?-When I came to Shetland, Major Cameron's property in Yell was let to Mr. Sandison as tacksman; but when the Major came from India, the lease had expired, and he appointed me to take charge of his property. Frequently at rent time the parties had not received their money for fish, and as a necessary consequence they got lines from their curer, the sums in which were placed to their credit by Major Cameron. The sum of these lines when all was over

was sent to the fish-curer, the party who gave the lines, and a cheque on the bank was given for them.

9658. Was that merely a practice resorted to for the convenience of the fishermen and the proprietor, or was there an understanding with the fish-curer that he should make these advances?-It was a convenience for all parties.

9659. You are not aware that there was any understanding between the fish-curer and the proprietor to that effect?-There was an understanding between Major Cameron and Mr. Sandison.

9660. Was Mr. Sandison the fish-curer you have referred to?- Yes, Sandison Brothers. There was an understanding that any of Major Cameron's tenants who were what might be called reckless or careless, should not be allowed to overdraw their earnings, but that something should be left for their rent.

9661. Was Mr. Sandison a tenant of Major Cameron's in his fishcuring premises?-Yes.

9662. Were these lines always in the same form?-Generally they were the same. I have plenty of them at home.*

9663. Are you aware of a similar practice having existed on any other estate?-I believe it has existed but I cannot speak so positively about it on other estates. I may say that similar lines have also been given to Major Cameron and myself from another curer in North Yell, Mr. William Pole, jun. before he became a partner of the Mossbank firm.

9664. Had he premises from Major Cameron also?-No; he had his father's premises. With regard to these lines, I may state that, although there was no understanding on the subject, Major Cameron made it a practice not to come to his tenants asking for their rents until he was pretty sure that everything was nearly cut-and-dry for him.

9665. Do you think it is a general practice in Shetland for the landlord to fix his rent day so as to be convenient for the fishermen?-I think it is. They fix it after settlement. Mr. Walker, the first year he was factor for Major Cameron, came nearly close to his time, 11th November, but since then he has not done so.

9666. You are not aware whether that practice of giving lines exists in Yell now?-It does exist. I myself have paid rents by orders for cattle bought from Major Cameron's tenants.

9667. Have you had much intercourse with the fishermen in your district of the country?-Yes; I often hear their conversations.

9668. Do you know generally the way in which business is conducted in the fish trade?-I think I do.

9669. Are you aware that much complaint exists with regard to the way in which the current price for fish is fixed at the end of the season?-The fishermen, as a general rule always complain.

9670. What are the grounds of their complaint?-I think the reason why they complain is, that they believe the curers never give them so large a price as they should do. There is a sort of jealousy abroad amongst all the fishermen, which perhaps originated in formerdays, but which is still rankling in their bosoms.

9671. A jealousy of whom?-A jealousy of the fish-curers, that they don't give them fair play.

9672. Have you seen any cases where you thought they did not get fair play?-Not for some time past.

9673. Are you able to form an opinion upon the question whether the fishermen are justified in complaining of the manner in which the current price is fixed?-I think, as a general rule, they are not. I know practically, from curers books that I had access to, that the current price is fairly fixed.

9674. Have you been employed as an [Page 234] accountant?- No; but I have had confidence placed in me, and I have seen their books.

9675. Have you any means of knowing whether there are more prices than one for the fish, according to the market to which they are sent?-I am aware that each curer does not receive the same price. There are exceptions to the rule. Some send their fish direct to the foreign market, and some sell to a home firm, who require something for their risk and trouble.

9676. Do you think the present system of distant payments for the fish could be altered, and a better one introduced?-I don't well see how it could be altered for the benefit of the fishermen.

9677. Is that on account of the bad seasons which occur occasionally?-Not altogether on account of the bad season, but it suits them better. Many of them prefer to leave their money with their curer until they require it for their rents.

9678. They prefer him to act as their banker?-Exactly.

9679. Is it not the case that many fishermen who ask advances from their curers before the fishing season begins, or during its course, are really capitalists with considerable sums in the bank?-I am not aware of any case of that kind, but I know plenty of fishermen who have money in the bank. I should say that the system would perhaps be more healthy if the fishermen were paid when the fishing was over. That would remove many grievances now complained of.

9680. Do you think they should be paid in July or August?-In the end of August.

9681. But if they were paid then they might get a lower price than the fish-merchants eventually got?-They would have to be paid at a rate by which the curer would be certain to be safe as his fish had not gone to market, and they did not know what they would realize; but the same holds good on the coast of Scotland in the herring fishing.

9682. Would the fishermen, so far as you know them, be content with a system of that sort?-I cannot say; I rather think not.

9683. Do you think they would like to have the chance of a larger price?-They would engage just now for the next season if they were satisfied that they would realize 1s. more than the market would afford them at Martinmas.

9684. But they would not engage otherwise?-No.

9685. Do you think they would endeavour to get quit of such a bargain if the price at Martinmas should turn out to be higher than what they had agreed for the commencement of the season?- Attempts are made of that nature in their dealings in the selling of cattle.

9686. Are cattle sometimes sold according to a current price at a later period?-Cattle are sometimes bought during the spring. If not bought then, they are sold by auction at fixed sales in May, and in the mainland they have a Martinmas sale for fat cattle.

9687. But they are sometimes sold before these sales?-They are sold in spring to parties going through the district seeking cattle to buy; and during the last season the prices were so very high at the spring sales, that I know parties who had sold their cattle before, and then came back upon the purchaser asking him for the currency of the sale, although their animals had been sold months before.

9688. Did they get what they asked?-In one case they did.

9689. Was that from a proprietor?-No.

9690. Does the practice of marking the horns of cattle exist in Yell?-It does.

9691. In what circumstances is that done?-If a tenant becomes indebted to me and cannot pay me in cash, he offers me one of his cattle and to make sure of it I cut the initials of my name on its horns.

9692. Are you assuming that you are the landlord?-It does not matter whether I am the landlord or not. I may be a merchant, and it is the merchants who do it; the landlord does not require to do it, because the hypothec protects him.

9693. But the merchant takes his chance of the landlord's hypothec interfering with him?-Yes.

9694. If a merchant marks a beast in that way, is it generally exposed at the next periodical sale?-Sometimes it is, but sometimes it is taken away at a price fixed upon at the time. If not, it is sold, and the merchant gets his money.

9695. Do you think the debtor in that case has perfect freedom in fixing the price?-Both parties fix it.

9696. But do you think the debtor is under no constraint?-None. Arbitration would decide it.

9697. Arbitration might decide it, but is arbitration resorted to?- Sometimes. A person understood to be qualified puts a value upon the cattle, or the currency at which such animals are selling at that time is taken.

9698. It has been alleged that when merchants got people deeply in debt they mark their cattle, and they can take them at any price they choose: is that so?-I have never seen a case of that kind. Such a practice may have existed 20 or 30 years ago, but I am entirely ignorant of it. I may further state something which was not exactly implied in your questions, but which in the south is generally misunderstood. As a general rule, the fishermen get one-third of the selling price of the fish. Fish dry in 5-9ths-that is 21/4 cwt. of green fish make 1 cwt. dry, fit for the market,-and it is understood that the curer pays one-third; but when the price may be £20 and upwards, he pays more than one-third of the selling prices. When the price is £14 or £15 he can only afford to pay one-third, the expenses being the same per ton for curing at the high price as at the low price. Suppose he sells his fish at £20 per ton, he pays his fishermen £7; 21/4 times 7 are £15, 15s. The curing of that ton of fish costs him £2, 10s., that is £18, 5s., leaving him £1, 15s. to pay for his salt, to transport them to his store, and ship them on board a vessel, and to pay their freight to Leith. Hence it follows that the fish-curer has very little profit indeed.

9699. Upon what data is that conclusion of yours rounded?-Upon facts which I know with regard to the prices paid by curers.

9700. Do you know the price of the salt and the expenses of curing, through the curers themselves?-The fixed price for curing has always been 50s.

9701. That is the price which they charge?-That is the price which a party would charge a curer for curing his fish.

9702. That would be for salting and curing?-They would salt them, but the salt belongs to the curer.

9703. But the price of the salt is included in the 50s.?-No. I have my information from a curer of long standing, but who is not now in the trade.

9704. Have you any information to give with regard to the obligations of fishermen upon other estates in Shetland to fish for the landlords?-I have had a good deal to do with the property of Simbister, on which there were no tenants bound to fish, except those belonging to the Coningsburgh district, who were under tack to Mouat. Their leases bound them to do so; but, on the expiry of that lease, Mr. Bruce did not intend to let any of his lands again after that fashion. To my knowledge he refused to let them to a party who would have been a good tenant.

9705. Is there any other point falling within this inquiry upon which you are prepared to make any statement?-The only other statement I should wish to make would be a sort of qualification as to why the fishermen are generally dissatisfied with the prices they get. It is understood that they get one-third, or a little more when the prices are high, and if that is the understanding they argue that they ought to see the bills of sale. They say, 'Why not lay down to us when you settle, the document according to which you have sold your fish; we don't know what you have sold them at, we only have that from hearsay.' That is the only reason why I think the fishermen actually complain.

9706. Do you see any reason why they should not see the bills of sale?-I think they are entitled to see them.

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9707. Are they not really partners with the curer?-They are; for they are risking the market as well as the curer.

9708. Have you read the evidence that was given before this Commission in Edinburgh?-I have; and the only observation I would make upon it is, that I am not a believer in it generally. Facts are stated as existing many years ago, but which are not applicable to the present day, as a general rule, throughout Shetland.

9709. Do you think the condition of Shetland has improved during the sixteen years you have lived in it?-Yes; especially during the last five, and more especially during the last three years. The prices of cattle have been so high that a tenant could pay his rent at once with an animal, when he could not do that before. The price of fish has also improved.

9710. These, however, may be transient facts?-They may be.

9711. Prices may fall?-They may.

9712. Is there any permanent cause operating to improve the condition of Shetland?-There is more direct communication with the south. Purchasers come into it now and buy directly, instead of buying through natives resident here acting as their agents, and who perhaps might charge something extra for their own trouble, and that had to come off the people. There is one part of Mr. Walker's evidence which I consider to be perfectly true, where he referred to the giving of credit to children or almost children. I believe that to be an injurious practice, because children are initiated into the system of getting credit when they are eleven or twelve years old, and it never ceases with them unless they leave home. It may in certain cases cease; but as a general rule it does not, and I think it is like learning them to smoke tobacco, or anything of that sort.

9713. Is there any other point in Mr. Walker's evidence, or the evidence given in Edinburgh, which you consider to be true?-The evidence given in Edinburgh contained a great many facts highly coloured, and I may add somewhat exaggerated.

9714. Do you think the present state of the hosiery trade is a wholesome one?-No. I consider the hosiery trade, as a whole, to be a morally unhealthy one as it present exists.

9715. Is that because of the facilities which offers for the younger members of the family to get into debt?-It is not that. I speak particularly of Yell, where yarn is produced; the merchants have to lay a higher price on their goods when they give them for yarn than they would do for cash, or for any other article brought to them which was worth its value in cash.

9716. Do they put a higher price upon the goods which they sell for yarn?-They must do it.

9717. Is not that high price charged in all other sales as well as in sales which they make for yarn?-No; the country merchants here have two prices.

9718. You heard the evidence of Mr. Pole to-day, in which he said they had only one price for all their goods?-Yes. Mr. Pole seems to have adopted a new system. I know they had two prices some time ago.

9719. You are aware that two prices did exist there?-Yes, and in many other places.

9720. You believe that to be unwholesome?-I do.

9721. Does it create a bad feeling towards the merchant?-I think the practice is morally wrong. To meet these things, many females come, not with 100 threads in each cut, but with from 90 down to 80, obliging the merchant to count the yarn which he buys from certain parties in whom he has not implicit confidence.

9722. Of course that encourages deception?-Yes. With regard to the trade in yarn, the merchant buys it according to its quality. If he is to sell it in Lerwick, he employs a party for the purpose, who receives a percentage for selling it. The merchant has also to pay freight, and he has to lay these things upon his goods.

9723. Are you aware that in Lerwick the practice of the merchants is not to sell worsted at all, but merely to purchase what they want for their own use?-I am not aware of that. I know there are merchants in Lerwick who do sell worsted, but they could scarcely be called <bona fide> hosiery merchants. They are generally people who sell for some one in the country, sometimes as a favour, and sometimes for commission.

9724. These are not hosiery shops?-No; they are sometimes grocers.

9725. I fancy that a party selling yarn may more readily take it to a grocer if she wants provisions rather than dry goods, as she will not get provisions in Lerwick from the merchants?-The grocer won't buy it unless he requires it for family use, but he will take it from a merchant as a favour, and sell it for him.

9726. But I have been informed by many merchants in Lerwick that they always purchase Shetland worsted for money; and as they require all they can get and more for their own use, they do not sell it again at all; so that, according to that information, any person going from Yell to Lerwick and selling worsted, could get the highest cash price for it from one of the hosiery merchants: is that not consistent with your knowledge of the matter?-I am aware that cash has been given. I have known a firm that dealt with a Lerwick hosiery merchant to a very large extent, and perhaps received £90 in cash for hosiery and yarn in one season. That, however, I looked upon as an exception.

9727. You heard the evidence of William Stewart with regard to Whalsay?-Yes.

9728. You were employed by the late Mr. Bruce to divide the toons there?-Yes. He wished to abolish the run-rig system, and to place his tenants on a money-paying system-to fish for whom they chose, and to pay him a rent. I was employed to make the division, and I divided every toon in the island, except one.

9729. At that time did you find that the system which Stewart described was either prevailing, or had been prevailing shortly before?-It was just dying out.**

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9730. Does any other person wish to be examined, or to make any statement? [No answer.] Then I adjourn the sittings here until further notice.

*The witness afterwards forwarded a number of these lines. They were in similar terms to the following:-

'CULLIVOE, 8<th Dec>. 1864. '£7, 0s. 7d.

'Mr. HOUSTON,-Please credit A.B. in rent account the sum of seven pounds and sevenpence, and charge to account of ' SANDISON BROTHERS.'

**Mr. Houston afterwards submitted the following remarks by way of supplement to his evidence;-The collecting of rents and <arrears> of long standing, and the dividing and renting of farms, and other unavoidable accompaniments, placed me as a temporary link between landlord and tenant, and tended to give me a knowledge of Shetland affairs in general, as existing between landlord and tenant, between fish-curer and fishermen, and between merchant and customer. Although the dividing and letting of farms may not be considered relevant to the present inquiry into the truck system, I hold a <decidedly opposite opinion>. No doubt poverty is the foundation upon which the truck system has been reared, and may justly be called its <foster> parent; and the origin may be traced, very clearly too, to the subdividing of farms, it being the interest of the landlord-curer to accommodate as many fishermen as possible. In many districts, and on small properties where the landlord is storekeeper and curer, that system is still upheld, and <fostered> with pious care; while on many of the larger properties the proprietors are endeavouring to abolish it. The islands being over-populated, and the farms so insignificantly small, it follows as a result that the inhabitants have to depend on external aid, and throw themselves, although reluctantly it may be, into the arms of a system which, however honestly conducted, has a tendency to hamper their movements, to bereave them of independence, and to plunge parents and their children into debt, out of which they may never be able to extricate themselves. There is an antidote, but its application would require to be a work of <time>.

<Fishcurer and Fishermen>.

In my evidence I stated that at present I considered fishermen were generally well treated, and received as high a price as the curer could well afford; but at same time I <do not> consider the curer is acting judiciously. Under the present arrangement of prices, I can only view the curer and his fishermen in the light of a joint-stock company. The curer supplies boats and lines directly or indirectly. The fishermen give their labour and risk their lives, and when the summer fishing closes, the part the fishermen play in the speculation terminates. The curer prepares the fish for the market, disposes of them, and receives the cash. As the price to be paid to the fishermen is regulated by the market price, I consider it the bounden duty of the curer to lay before the fishermen, at settling, the <missive of sale>, that document

being the common property of <both parties>, and more especially as three-fourths at least of the cash realized is understood to belong to the men. <That>, however, <is not the practice>; and hence the fishermen, naturally jealous, and still wincing under the scars of former years, are never satisfied; and I consider the curer in acting thus is reprehensible, and the fishermen justified in complaining, even when the curer is a sufferer. Were it made penal on the part of the curer to treat the bargain so, there would be less injustice done to himself, and less suspicion thrown around his integrity. Since the truck uproar has spread its wings on the Shetland blast, and breathed offensively in the faces even of Her Majesty's Government, it has been suggested by strangers that curers should pay their fishermen each time fish was delivered. That mode would not be advantageous to the fishermen. It would suit their interests better to be paid at the close of the fishing, on the same principle as is done by those engaged in the seal trade. At every station during the summer fishing there is a 'beach price,' and if that price was paid for the summer's catch at the close of the fishing it would put the fishermen in a position of buying with <cash> instead of being dependent on their curer's store for months after the fishing had closed. The residue of the price, which would be a mere trifle, would be paid them when the fish was sold, and the price known, on the same principle as 'oil-money' in the seal trade. I have no doubt whatever but such a mode, if adopted, would tend to put a stop to the present and <necessary> facilities of drawing so largely upon the curer's store. The fisherman who has neither money nor <credit> must go to his curer's store, as he has no other alternative; but were he put in possession of his earnings at the close of the fishing, <truck> for a time would disappear from his individual horizon. I may mention that the hosier referred to in my evidence as having paid £90 in cash in a year to a party in the country for hosiery and yarn was Mr. Robert Linklater, Lerwick; and I may further state that I have known Mr. Robert Sinclair give £15 once on a £20 transaction of hosiery, etc.

BALTASOUND, UNST: FRIDAY, JANUARY 19, 1872.

<Present>-MR. GUTHRIE.

JOAN OGILVY, examined.

9731. Have you been in the habit of knitting with your own worsted?-Yes; at times with my own worsted, and at times with worsted from other people.

9732. When you knit with your own worsted, do you spin it yourself?-No; sometimes I buy it, and sometimes other people spin it for me; but it is not much that I do in that way. The most I have made has been for other people.

9733. Do you not spin at all?-No; my mother spins a little and I have knitted that and sold the hosiery.

9734. At what shops do you buy worsted here?-I have not bought any, except a little, once, at John Johnston's shop. I paid 3d. a cut for it in cash.

9735. Do they not give you worsted unless you pay for it in money?-I never asked it.

9736. Have you never asked for worsted when you were selling your hosiery?-No.

9737. Are you generally paid for your hosiery in goods?-Yes, goods or other articles which I require such as tea and meal, and other things.

9738. Do you sell most of your knitting to Mrs. Spence?-No. I have sold nothing to her, except one half-shawl. I have sold a few veils to John Johnston. They are very fine veils that I knit, and I get 1s. 6d. for each of them.

9739. Are you always paid for them in goods?-No. I have got cash. I knit superior articles, and I have sometimes got as much as 30s. for knitting one silk shawl. That was not the price of the shawl: it was merely for the knitting.

9740. But when you sell a shawl made by yourself, what do you get for it?-I sold one worsted shawl in May in John Johnston's shop, for which I got 19s. 6d. I did not ask for any cash, because it was not the custom to give it.

9741. Is it the custom here to pay for hosiery in nothing but goods?-I get cash at times.

9742. Are your shawls generally worth about 20s.?-No; I have sold half-shawls at 16s., and others at 15s. and 14s.

9743. What was the largest sum you ever got in money when you sold a shawl of that value?-15s.; that was the whole price of it, but that was some years back, and I sold it to a lady.

9744. But when you sold to a merchant have you ever got the whole price in money?-No; I never asked it.

9745. Do you get a higher price for your work when you take it in goods than when you get money for it?-I don't think so.

9746. You said you sold a shawl in May last for 19s. 6d., and got the price all in goods. Suppose you had asked payment for that shawl in money, would you have asked the same price for it?- Yes, but I would not have got it. They would not have give cash for it.

9747. Would you not have got 2s. 6d. less in money?-I did not ask for it in that way.

9748. Would you have sold that shawl for 17s. if you had got money?-I think so.

9749. Would you rather have had the 17s. in money than the 19s. 6d. in goods?-I don't think I would have been any better.

9750. Did you want the goods?-Yes.

9751. Would you not have got them cheaper if you had had the cash in your hand to pay for them?-I might have got them a little cheaper.

9752. Do you think you would always be willing to sell your hosiery goods a little cheaper if you were paid in cash instead of in goods?-I don't think I would. The price is low enough, even with the goods payment.

9753. When you get the worsted given out to you, are you paid in money or in goods for knitting it?-Sometimes in money and sometimes in goods, just as I ask it.

9754. For whom do you knit in that way?-I have knitted some for Mrs. Spence. I knit fine silk for her, not Shetland worsted. I got 30s. for knitting one shawl for her, and 25s. for another; but these were very fine ones, and of large size. It took me a long time to work them. She paid me for these in cash.

9755. Did she hand you over the money, or did she send you down to the shop for it?-She gave me the money with her own hand.

9756. Did she do so in both cases?-Yes; part of it, and part I took a little goods for, just as suited myself.

9757. How much of the 30s. did she hand you over in cash?-I cannot say exactly now, because it is more than a year ago.

9758. Did she give you a half of it in cash?-More than that.

9759. How did you get the rest in goods? Did you go to the shop for them?-No. They were brought from Lerwick for me. They were women's cloth jackets.

9760. Were you to sell these in your own shop?-I have no shop.

9761. Did you not sell groceries?-No. I had a little goods at one time to sell for a man in Lerwick, but I have none now. I gave out hosiery to the girls, and when they brought it back I served them with the goods which I had got from the man in Lerwick.

9762. Who was he?-Peter Edward Petrie.

9763. Does he deal in hosiery?-Yes.

9764. And does he deal in groceries in Lerwick?-He has given up his shop, but he dealt there at one time in soft goods and tea.

9765. How much cash did you get from Mrs. [Page 237] Spence for the 25s. shawl?-I don't remember; it is two years ago.

9766. Have you sold some things to Mrs. Spence since?-No; but I have always knitted some things for her. The last was a fine worsted shawl. I took it to her about a month ago. I think the price would be 12s., but I have not settled with her yet.

9767. Do you keep an account with her?-She keeps an account for me herself.

9768. Have you not got any part of the price of that shawl?-The price is not settled, but I have got some goods for it.

9769. Do you sometimes take a line from her?-No; I have had no lines from her.

9770. Is that because there is an account for you in her books, and you don't need them?-I suppose so.

9771. When you want goods do you go to the shop and get them?-Yes, I get them from her.

9772. Does she attend in the shop?-I believe she does at times, but she does not keep the things there which she supplies to us. The things for the knitting come from Lerwick.

9773. She just enters these things against you in your account, and then she enters in your favour the shawls which you make, and she balances now and then?-Yes.

9774. How often do you settle your account with her?-Not often. I have not had a great deal of goods from her.

9775. Have you got any money at all from her for what you have knitted?-Yes; but I could not say how much, because I did not think of keeping an account of it.

9776. Will you knit £2 or £3 worth to her in the course of a year?-I did that when I was knitting for her, and perhaps it little more.

9777. How much of that would you get in money?-I would get it all from her if I asked it. I have got £2 a time from her.

9778. Was that for knitting, or for a shawl that you were selling?- It was for knitting.

9779. Did you want the money to pay your rent?-Yes, partly, and partly for other things.

9780. Do you know that Mrs. Spence always gives you goods for your knitting which she gets from Lerwick?-Yes, when I ask them; but when I ask for cash I get it.

9781. But you do not often ask for cash?-I have oftener asked cash from her than from any other person and she always gave it to me because she knew I could not do without it.

9782. Are you a finer knitter than ordinary?-Yes. I make very good articles.

9783. Do you sometimes knit a shawl for a special order?-Yes.

9784. Do you sometimes make a bargain then that you are to be paid in cash for it?-Yes.

9785. Do you think the price is less when you make bargain that you are to be paid in money than when you take it out in goods?- No, it is not less.

9786. Would you not sell a shawl for it less price if you knew you were to get it in money than if you knew you were only to be paid in goods?-I might have 1s. less, but not much less.

9787. Have you never got a line from Mrs. Spence, or from any shop here?-No. I have got no lines since the late Mrs. Dr. Edmonstone died. I knitted for her, and sometimes I got cash from her, and sometimes lines for goods on the shop.

9788. But that was some time ago?-Yes.

9789. Do you sometimes knit for John Johnston?-Yes. I get worsted from him to knit, and I take it back to him again. I have got 10s. from him for knitting a shawl of 27 scores: that is an ordinary size. I got none of that in money. I never asked it from him. He keeps a shop, and therefore I don't ask him for money.

9790. Then why do you ask Mrs. Spence for money? Is it because she does not keep a shop?-She only keeps soft goods.

9791. And you are not always wanting soft goods?-No.

9792. Do you do anything besides knitting?-I work at the harvest, and at other kinds of work. I have it very small farm of my own.

Baltasound, Unst, January 19, 1872, Mrs. JANET ROBERTSON, examined.

9793. Are you in the habit of knitting?-Yes.

9794. Do you knit with your own worsted?-No; the worsted is given out to me.

9795. Who do you generally knit for?-Mrs. Spence.

9796. Do you do a great deal of fine work for her?-Yes.

9797. How do you receive payment?-In goods and money. I get money when I want it, but it is generally in goods. I get supplies in the shop upon a line which Mrs. Spence gives me. I take the line to the shop at once and get what goods or provisions I require.

9798. Does Mrs. Spence take the shawl from you and give you a line in her own house, which is beside the shop?-Yes.

9799. Then you go with the line into the shop and get what goods you want?-Yes. The line is addressed to Messrs. Spence & Co., and signed by her, and the which is due is written upon it.

9800. Is that always the way in which you are paid?-Yes.

9801. How often do you go with work to Mrs. Spence?-Perhaps once a month; just when my work is finished.

9802. Have you generally 15s. or 20s. to get?-Perhaps from 10s. to 12s.

9803. How much do you get for knitting a shawl of fine worsted?-The highest is 12s. There are thirty-three cuts of worsted given out to me for knitting a shawl of 30 scores. I think the price of the worsted is 3d. or 4d. a cut, but I never bought any myself.

9804. When you do not get provisions or groceries, but take soft goods for your knitting, do you go to the shop for them, or do you get them from Mrs. Spence herself?-I get them from the shop.

9805. Have you knitted for any person except Mrs. Spence?-I have done a little for John Johnston; but I am paid in the same way there, in goods.

9806. Do you get no lines there?-No.

9807. You just take the article to the shop and get the goods you want?-Yes.

9808. How do you manage when you are to pay your rent?-I have no rent to pay. I have a house of my own.

9809. Do you keep an account with any of the shops?-No.

9810. Do you always get your provisions from Spence & Co.'s at Haroldswick?-Yes.

9811. What do you pay for tea?-10d. and 1s. per quarter.

9812. What do you pay for your meal?-1s. 4d. a peck. It is 1s. 5d. just now.

9813. What do you pay for a half-loaf?-5d.

9814. Is that brought from Lerwick?-Yes.

9815. What do you pay for unbleached cotton?-10d.; but I have not bought it for some time back. There is some of it at 6d., but not of such a good quality. The cotton at 6d. is half-bleached. I bought that half-bleached cotton in summer, and I am sure I paid 6d. a yard for it.

Baltasound, Unst, January 19, 1872, JOHN LAURENSON, examined.

9816. You are a fisherman at Burrafirth?-I am.

9817. You hold a bit of land there?-Yes, from Mr. Edmonstone of Buness.

9818. What rent do you pay?-£5.

9819. Are you bound to fish for any person in particular?- [Page 238] Not that I know of, but I fish for Spence & Co. I have fished for them since they commenced business, and before that to Mr. David Edmonstone, when he was carrying on business in that way.

9820. Have you fished for any other person in Unst?-Yes. I fished first for the late Mr. Thomas Edmonstone of Buness, and then for Mr. Samuel Hunter.

9821. Have you always been free to fish for any person you chose?-I don't think so. When I was a tenant to the late Mr. Edmonstone of Buness I fished for him, and when Mr. Hunter got a tack of the land I fished for him, but I could not tell exactly whether I was free to fish for any other person or not.

9822. You don't know what would have happened to you if you had sold your fish to anybody else?-I do not.

9823. But now you can fish for any person you please?-I believe I can.

9824. Is there any other person except Spence & Co. to whom you can sell your fish here?-There is no one in our quarter except Mr. John Johnston. He does a little in the fish way, but we don't sell any to him.

9825. Do most of the people hereabout fish for Spence & Co., and settle with them every winter?-Yes.

9826. Have you settled with them for last year?-Yes, I settled about 10th January at Haroldswick.

9827. Have you a pass-book?-No.

9828. Have you an account in their books?-Yes.

9829. Is that read over to you, or do you know the balance yourself?-It is read over on the day of settlement.

9830. Have you a note of the articles you have got?-No.

9831. Then how do you know that your account is correct?-I have never found anything wrong with regard to the articles which I had got, and I was quite satisfied they were all correct.

9832. Did you remember that you had got all the articles, and the price of them, when they were read over to you?-Yes.

9833. Did you order them?-Yes; I either got them myself or some member of my family brought them home.

9834. But are you sure that you can recollect perfectly well both the articles you got, and the quantities, and the prices?-Yes; when the account is read over to me I can.

9835. When you get a thing out of the shop, do you always know the price of it?-Yes.

9836. You ask the price, and you are told what it is at the time when you buy it?-Yes.

9837. Do you get all your supplies there?-Yes; unless perhaps a very little which we may buy from some other shop.

9838. Do you sometimes buy at Johnston's shop?-Yes, but very little.

9839. Do you pay for that at the time?-Yes.

9840. You have not an account with Johnston?-No.

9841. I suppose most of your neighbours have an account with Spence & Co. and get the most of their supplies from them?-Yes.

9842. Do none of them deal with other shops in the district?-I am not able to say what they do.

9843. What was the price of meal at Spence & Co.'s shop during the past year?-1s. 5d. per 8 lbs. I think it was the same price for almost the whole year. I rather think it was 1s. 4d. once, but I cannot say.

9844. Have you got meal from any other shop?-Yes, from Mr. Isbister. The price there was 1s. 4d.

9845. Did you pay for that in cash?-Yes.

9846. Was the meal of the same quality?-Yes.

9847. Do you buy any soft goods from Spence & Co.'s shop?- Yes, I buy white cotton for making oilskin clothes and shirts. We pay from 41/2d. to 8d., according to the quality of the cotton. It is generally unbleached cotton that we buy.

9848. Do you oil it and make it waterproof yourself?-Yes.

9849. Who do you pay your rent to?-To Spence & Co. They pay it to Mr. Edmonstone for me.

9850. Do you mean that it is put down in your account with them against you?-Yes.

9851. How do they pay it to Mr. Edmonstone?-In cash, I suppose; but I don't know anything about that.

9852. They don't give you a line to Mr. Edmonstone?-No.

9853. Do you get receipts for your rent?-Yes, if we ask for them.

9854. But you don't generally ask for them?-No.

9855. Have you generally a balance to get at the end of the year, or is the balance against you?-The balance is against me at present, and it has been against me since the first year of the company in consequence of bad fishings and bad crops.

9856. What boat hire do you pay?-£2, 14s. for the boat, or 9s. per man. I buy my own lines. I get them at fishing time, and they are marked into the account. The price is from 2s. 3d. to 3s. per line, according to the weight of the lines. I require ten ground lines and a line for a buoy rope.

9857. Does each man require that number?-Yes.

9858. Do you pay about 24s. for the ten lines?-Yes; and then we have to furnish these lines with smaller lines and hooks. If they are all new, the cost of lines and hooks will be about 30s. per man for what we call a weight of lines.

9859. How do you settle for them?-We settle for them along with all the rest of our accounts on the day of settlement. The whole account is read over and summed up together, and then the rent is brought forward, and the whole dealings put in. Our earnings are placed on the credit side of the page, and then balance is struck in our favour, or against us, as case may be.

9860. Are all the lines charged against you one year?-Yes.

9861. When you buy the lines at the beginning of the fishing season, there is no arrangement that the price of them is to be charged against, the next three years, and that you are to pay them by instalments?-No.

9862. Do you return the lines at the end of the season?-No; we keep them. They will perhaps serve for three seasons; or if the lines are really good, they may do for four.

9863. Then you will have nothing to pay for lines the second year if you have paid them up in the first year?-If we have paid them up we have nothing to pay afterwards.

9864. Do you usually manage to pay up your lines in the first year?-We generally pay what we can when we settle. What we have over from the fishing is just put to the payment of the whole that we are due.

9865. Are there any other fishing expenses excepting the boats and lines?-Yes; the hooks and tomes, or small lines, have always to be put in repair.

9866. Do you pay for them?-Yes; we buy the whole of them, and we repair the tomes and hooks ourselves.

9867. Then that is not an additional expense?-No.

9868. Do you ever get any cash advanced to you from Spence & Co.?-At times I get a few shillings.

9869. How long is it since you began to fish for them?-I have fished for Mr. Spence since 1857, and for Spence & Co. in 1868, 1869, 1870, and 1871.

9870. Have you ever got anything more than four shillings in cash?-No, not in cash.

9871. Have you any taxes or poor-rates to pay?-Yes; the poor-rates are charged by Mr. White, the inspector and collector, and they are paid in cash.

9872. Do you draw that from your account with the company, or how do you raise the cash for it?-I get a little cash from the company to pay my poor-rates.

9873. Do you sell any stock off your farm?-Yes, when I have a cow I sell it. I cannot sell one every year; I have not so many as that.

9874. Have you no other beasts but cows?-No.

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9875. Who did you sell your last cow to?-The last I sold to the company; it was a three-year-old quey. It was taken to the sale in May 1871, and I got 9s., which was put to my account. I got no money.

9876. Did you ever get money for any of the stock you have sold during the last five years?-No.

9877. Were they always put into your account?-Yes.

9878. Did you always sell them to Spence & Co.?-I sold them to Mr. David Edmonstone. I sold nothing to the company except that quey.

9879. Why did you sell them to Mr. Edmonstone?-They were put down towards my rent.

9880. Then you did not pay your rent at that time through Spence & Co.?-No; I was not fishing for them then. I sold a fat cow to Mr. David Edmonstone since I began to fish for Spence, to pay a balance which I was due him. These are all the cattle I have had to sell.

9881. Have you not sold any other stock except these two cattle for the last five or six years?-No.

9882. Is there any other way you have of getting money except by selling your stock and your fish?-No.

9883. Then you will not have much money passing through your hands?-No, very little.

9884. Will you have £1 in your hands in the course of a year?-I could hardly say, because I don't take particular note of how many twopences or sixpences pass through my hands.

9885. But will you have £1 at a time?-No; I have not had £1 at a time.

9886. Have you had 10s.?-Yes; I have had that.

9887. Do you sometimes sell your winter fish?-Yes.

9888. Do you get money for them?-Yes, if we ask it.

9889. Who do you sell them to?-To Spence & Co.

9890. Are you generally paid in money for your winter fish?-A little money and some goods.

9891. But these are settled for at the time?-They do not enter your account at all.

9892. Would you get the whole price of your winter fish in cash if you asked for it?-I believe I would; but I could not say, because I have never asked the whole of it in that way.

9893. Why have you never asked it?-Because I thought the goods were just the same from their shop as from any other place, and I did not think of asking them for money with which to go to any other place and purchase goods.

9894. Did you think you would not have got it all if you had asked for it in cash?-I cannot say, because I never did ask it; but I think I would have got it if I had asked them, so far as I know.

9895. Are you quite content to go on in this way without getting your money into your own hands?-I should like to get all my own money into my own hands if I could.

9896. You say you think you could have got the money for your winter fish if you had asked it?-I think I could.

9897. Then why did you not ask for it if you would like to have your money?-For the reason I have mentioned: that I thought the goods were the same in their shop as in any other place and therefore I did not ask it.

9898. Then why do you want the money?-Because if I had the money, I would perhaps buy my goods somewhere else, if I thought I could get them cheaper or better.

9899. Have you any fault to find with the quality of the goods you get at their shop?-Sometimes I think the meal is not very good. Flour was sometimes 1s. 3d., and it was not very good.

9900. Did you ever try any other flour?-Yes; I got a little from other places. It was not very much that I could buy, but I got flour at other shops which was of superior quality.

9901. What did you pay for it?-About 1s. 4d or 1s. 5d.

9902. Then that was it little dearer than the flour you got at the company's shop?-Yes; I got it at Mr. Johnston's.

9903. Would you not have got as good flour at the company's shop if you had paid a higher price for it?-Yes; they had good flour at 1s. 6d.

9904. But you cannot complain of them giving you a worse quality of flour at a lower price?-No.

9905. Was the meal the same as you get at any place for the same sum?-It was 1d. per peck higher last summer.

9906. And you said it was not quite so good as you would like?- That was the flour.

9907. I thought you said so about the meal also?-There were some weeks when the meal was really good, and some weeks when it was not so good.

9908. How did you get the money with which to purchase flour at Johnston's?-We sold a few eggs or a little butter, and got it in that way.

9909. You did not pay for it in money, but in eggs or butter?- Yes.

9910. Is that it common way of selling your eggs and butter?- Yes.

9911. You do not get money for them?-No.

9912. Why did you not take the eggs and butter to Spence & Co.'s shop?-Because we sometimes thought of trying another place.

9913. Why did you not take your money for the winter fishing and buy your provisions at another place if you thought you could get them better?-Our earnings from it were very small; and for all the money we had to get, it was not worth while to take it from Spence & Co.'s shop and go to any other place with it, even although we might have got our goods it little cheaper. I think all my winter fishing only came to about 30s.

9914. How far do you live from the company's shop?-Nearly two miles.

9915. Is Johnston's shop nearer to you?-Very little.

9916. Is there any other shop nearer?-No.

9917. Have you ever been asked to fish for any other person than Spence & Co. since they began business?-No.

Baltasound, Unst, January 19, 1872, MAGNUS HENDERSON, examined.

9918. You are a proprietor near Haroldswick?-Yes, a small proprietor.

9919. You have been resident in Unst all your life?-Yes.

9920. You were at one time engaged in the fishing yourself, and you know the system that is practised here?-Yes, so far.

9921. I presume the system of annual settlements has been one of long continuance here?-Yes.

9922. The fishermen have also for a long time combined the calling of farming with that of fishing?-Yes.

9923. They fish for about four months in the year, and are engaged on their farms for the rest of the time?-Yes.

9924. How has the rent been usually paid to the landlord during the last twenty or thirty years?-Very often the tenants have fished for the landlord; and of course at the end of the year, when their accounts were made up, the rent was taken into account along with other matters.

9925. When they did not fish for their landlord, has there been any arrangement between the landlord and the fish-merchant for the payment of the rent?-Yes. In some cases, I suppose, the fish-curers are bound to pay the rent to the landlord for the tenants who fish for them.

9926. Are you aware whether there has been a written arrangement of that kind between the landlord and the fish-merchants?-I am not aware of that.

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9927. Of course, when the fish-merchant happens to be the tacksman, that is it different case?-It is.

9928. But where the fish-merchant is not the tacksman, is it the practice that he generally settles with the landlord for the rent?-I think so, or he becomes accountable to the landlord for the amount of the rent.

9929. Do you know whether the rent has been paid by means of lines handed to the fishermen or tenants, or whether the merchant just hands a cheque to the landlord for the amount of rent due by all the fishermen?-I am not prepared to answer that.

9930. Has it been it universal practice in Unst, or anything like a universal practice, for fishermen to deal at the shops kept by the landlord or merchant for whom they fished?-That has generally been the practice.

9931. Is there any understanding that they shall go to that shop for their supplies?-There is such an understanding, but they are not compelled to do so. Of course if a man is in debt, and has no means with which to go to another shop, he is very thankful to get his supplies from the merchant, and he has to get them on credit.

9932. And when he gets them on credit, the merchant is safe to get paid by the fish if the men deliver their fish to him?-He gives them credit, and he must take his chance of being paid when the fish are delivered.

9933. I suppose a fisherman here does not wish very often to change his residence and his place of fishing?-Not very often.

9934. But if he did happen to do so would not the fact of him having an account with the merchant in the place prevent him from shifting his quarters?-I don't know that it would.

9935. He might have an account standing against him here, and would he not be bound to pay it?-Yes. He ought to pay it before he shifted to another employer.

9936. And the merchant might raise an action against him if he were to remove?-Yes, and if he could not pay his debt.

9937. Is that it thing of frequent occurrence?-No.

9938. Do you think that men are prevented from shifting to other places, by the fact that they are in debt?-I don't know that they are. I have not known any case of that within my own experience.

9939. Have you known cases where a man wanted to engage with another merchant in the island, or in the neighbouring islands, and who was unable to do so in consequence of being in debt to his former employer?-No such case has come under my notice.

9940. Do you know whether it is usual, when a man does engage with a new employer in that way, that the new employer takes over and becomes responsible for any debt that has been standing in the former employer's books?-They very often do that, but I don't know if it is a general rule.

9941. Have you known cases of that sort occurring?-Yes.

9942. Pretty often?-Not very often, but I have known of some.

9943. Is that done at the request of the fishermen, or is it an arrangement between the merchants?-I should think it was arranged partly with the fishermen and partly with the merchants.

9944. You think the fisherman has no objection to it?-No.

9945. Do you think the condition and the character of the fishermen in this district would be improved if cash payments were the rule instead of these long settlements?-I could not say. I have no doubt some would manage their affairs better if there were cash payments, but some would manage them worse. There are differences in the character of the men here, as everywhere else.

9946. Do you not think that relying on the merchant for supplies if a bad season comes, makes these fishermen a little more careless in running up accounts?-In [som]e cases it does.

9947. They feel that the merchant is anxious to employ them, and that if a bad season comes, and their debt is not beyond all bounds, they are safe to get supplies for the season?-Yes; perhaps some of them look too much to that.

9948. Is it a common complaint that the fishermen do not know the price they are to get for their fish until the end of the season?- Yes, they do not generally make any arrangement for the price before then.

9949. Do you think that is a reasonable complaint?-I don't know. I think that if the thing is conducted on just principles it is a good thing for both parties, because the fishermen have the same chance of being, benefited by a rising market as the merchant; but it been a general thing to make no arrangement as to price until the fish are sold.

9950. Have you known any cases in which the price has been fixed at the beginning of the season?-I cannot say that I have known any particular case of that kind.

9951. Do you think the fishermen would agree to an arrangement fixing the price at the beginning of the season?-I think some of them would; but perhaps some of them would rather allow it to continue in the old way.

9952. Do you think they would not like to fish for so much weekly wages, and so much additional at the end of the season according to the market price?-I don't think they would. I think they would be better satisfied to be paid in proportion to the amount of fish they catch.

9953. Would it be possible to pay them in proportion to the amount of fish they catch, and also to pay them at shorter times?- It would be possible enough to do it, if they came to an agreement as to the price per cwt. for green fish. If that were done, it would be at the option of the fish-curers and the fishermen to make an arrangement for paying at shorter periods.

9954. If they got their money in hand in that way, do you not think that would lead them to be more independent than they are at present?-It ought to do.

9955. Don't you think the settlement with the fishermen is delayed too long after the fishing season is over?-I have no doubt it is delayed long enough; but perhaps sometimes it is a long time before the merchants get paid for their fish, and that may prevent them from making the settlement earlier.

9956. Do you mean that the settlement is delayed until the merchant realizes the price of his fish?-I understand that is very often the case.

9957. So that, in that view, the merchant is really to some extent trading on the fishermen's capital?-Yes, while it is in his possession; but very often he has not a long time of it, because I understand he generally sells his fish on credit, and it is some time before he is paid.

9958. But a man who sells upon credit in that way requires some capital to enable him to carry on his business?-Yes.

9959. And in this case it is really the fishermen's capital that is being traded upon; that is to say, the fisherman has not received payment for his fish, and that money which he ought to have received for his fish is in the hands of the merchant?-But very often a fisherman has taken up the amount of his fishing before the settlement.

9960. He may have done so in goods?-Yes.

9961. Is that the case with most of them?-It is the case with a good many, and some of them perhaps have overdrawn their account.

9962. Then in that case the merchant is really advancing the price of the fish in goods beforehand?-Yes.

9963. Would it not be as easy for the merchant, and better for the fishermen to make the same advance to them in the course of the season in cash?-I suppose so.

9964. Only the merchant has a profit on the goods under the present system?-Of course he has.

9965. And in that case the merchant gets his upon the goods, but the fisherman gets no interest on [Page 241] the money which he lies out of until settlement?-Of course not.

9966. Therefore the merchant has the benefit both of the interest on the fishermen's capital in his hand, and, in addition to that, the profit upon the goods furnished to the fishermen?-Yes.

9967. And besides that, he is safe not to lose upon the transactions of the year, not having the price fixed until his sales are realized?-Yes. The only chance by which a merchant sometimes loses is, that he advances a man further than the man's earnings can meet.

9968. But he can do that or not, as he pleases?-Of course; but there are sometimes cases where the fisherman requires a certain amount of supplies. He cannot do without them, and if the fishing is short then he is not able to meet them.

9969. Does it not strike you as being rather a one-sided transaction, the fisherman gets no interest on his capital, which is in the merchant's hands in the shape of the price of his fish?-It is not very long there.

9970. It is there for four or five months, and in the meantime the merchant is making a profit on the goods?-If the merchant could turn over the fish when he gets them he might be able to pay the men at once, but there is generally a long time between the time when the fisherman delivers his fish and when they are brought to market and the money paid. The fish take a long time to cure, and the summer is often done before much of the fish can be sent to market. Then the merchant generally sells at two or three months' credit to the buyer, and it is that time before he can realize his money.

9971. Do you know whether the merchants in Unst are in the habit of dealing much in stock?-I don't know; there is generally a sale once a year for the cattle, and any one who wishes to go to the sale is at liberty to go. If any one wishes to dispose of his stock privately to any one else, he is quite at liberty to do so.

9972. Who are the largest purchasers at the sales?-I cannot say, for I have not been always there.

9973. Who conducts them?-An auctioneer from Lerwick, Mr. Henry.

9974. Do you think a ready-money system would be any improvement as regards the fishermen?-I think it would. In fact a ready-money system in anything would be an improvement over barter: at least it ought to be, but whether it would or not I cannot say.

9975. Do you think that, in point of fact, the present system is one of barter?-Yes.

9976. I suppose very little money passes into the hands of the fishermen in the course of the year?-There is sometimes a good deal. If a fisherman has money to get he always gets it, so far as I am aware.

9977. That is to say, if he has a balance at the end of the year he will get that?-Yes; and I presume that if a man has not a balance he cannot well ask for anything.

Baltasound, Unst, January 19, 1872, ALEXANDER SANDISON, examined.

9978. You are one of the partners of the firm of Spence & Co., and you have been so since the formation of the company in 1868?- Yes.

9979. Formerly you carried on business in your own name?-Yes, in company with Messrs. Hay & Co. of Lerwick, at Uyea Sound.

9980. Was that a separate partnership from Messrs. Hay & Co.?- Yes. I was manager there, and had a share of the business. It was entirely distinct from their Lerwick business.

9981. In 1868 you entered into partnership with some other gentlemen who had been carrying on a similar business in the island of Unst?-Yes.

9982. And at that time, I understand, you took a lease from Major Cameron of all his property in the island?-Almost the whole of it. There was some of it on lease before, which we don't have.

9983. You have all his property, exclusive of the large farms held on lease before?-Yes. We had two or three small farms let to us on lease as well.

9984. Was that arrangement with Major Cameron embodied in a written lease?-Yes.

9985. Have you got it here?-No. We have a copy of it at Baltasound.

9986. By the terms of that lease, I understand there was no obligation upon the tenants to fish for your firm?-No.

9987. And it was intimated to them at the time that they were at perfect liberty to deliver their fish to any person?-I don't know if it was intimated to them specially at the time; but I think Mr. Walker told them so at one time when we wished him to meet the tenants both in the north and south end of the island.

9988. What was the occasion of that meeting?-Just to explain to them the nature of the improvements, and the connection between us as the tenants and them as the sub-tenants.

9989. The tenants under that lease pay their rents to you directly?-Yes.

9990. And they have no concern with the proprietor?-None.

9991. You are responsible for the rent stipulated by you to be paid?-Yes; for rent, poor-rates, and taxes affecting the tenant.

9992. It is part of your arrangement with the landlord that you shall superintend, and endeavour to get the tenants to carry out certain improvements upon the estate?-Yes; we are bound under the lease to carry out certain improvements.

9993. And a division of the lands has also taken place under that arrangement?-Yes.

9994. Have you proceeded with these improvements to a considerable extent?-Yes. We have got on remarkably well with them; better than I expected when we first took it on. It has been a very uphill job.

9995. Do you find that that improved system of farming is compatible with the men continuing the occupation of fishermen?-I think it is, on the small farms, because the fisherman has a very great deal of spare time in winter, which in former times he did not profitably employ, and he can do it now on his farm to great advantage.

9996. Do you think it would not be possible in Shetland for the men to follow the occupation of fishermen all the year round?-I have given that subject most earnest thought. At one time I thought it might, but latterly I have come to the conclusion that it is not possible. In the first place, we have no fresh fish market here, and it is impossible to get the fish into the south market in a fresh state when they would command a high price. Then, in the winter time the weather is so broken, and the seas round this coast so boisterous, that it is almost impossible to go to the deep sea in boats; and the fish that are caught near the shores in the sounds and bays are in such limited quantity that they would not be nearly sufficient to meet the man's daily wants. From the farm, however, he has sufficient potatoes and milk for his family; and even on the smallest farms he has, I should say, six months meal on the average.

9997. But if the fishermen were supplied with a different kind of boats, such as are used in other parts of Scotland, say of 32 feet keel, such as are used at Wick, could they not go to sea in winter?-I am afraid our fishermen would not take very kindly to these boats.

9998. Perhaps not at first, but would they not do so after a certain period of apprenticeship?-I think I would back six of our men against six of the Wick men in their respective boats, and I would expect our men to come on shore when the Wick men would be drowned. I think the Wick boats are much too heavy in a sea, and they are much more in danger of filling than our light skiffs are. I remember on one occasion, on the north of Unst, when some of our boats were out, and a gentleman's yacht was near them dredging shells, he thought they could never come ashore, and kindly ran down among them, thinking to render the assistance [Page 242] but when he reached them he found they were far drier than he was. He came in with some of his bulwarks washed away, while they got safe ashore.

9999. Don't you think the weather is just as severe where these Wick and Buckie boats fish as it is in this quarter?-I believe it is as severe, but I don't know if the tides and currents are as rapid and strong, because they have a longer stretch of coast. Off any land end, the current is very strong and the sea runs very high, and I think that nearly three-fourths of all the accidents that have occurred in Shetland have occurred in crossing these springs of tide,-strong currents going right against the wind, just inland, as off the point of Unst, or the point of Sumburgh. It is not on the ocean that our boats would be lost, but in taking the land and crossing the tides near headlands.

10,000. If it were not for these dangerous tide-ways, would it be possible for the men to go off to the haaf in winter if they had proper boats for the purpose?-They could go off a certain distance, but the day is very short here, and I don't think they

would have much chance with the long lines in a day of about eight hours.

10,001. Has any attempt been made to introduce an extensive system of winter fishing here?-I don't think any attempt has ever been made, except in the spring on the west side at Scalloway and east at Fetlar, where there are spawning beds apparently for the ling. They come nearer into the land there in March and April, and some attempts have been made at these places with our ordinary boats.

10,002. But these are partial attempts, and have not been continued?-They are conducted every year, but some years they are very unsuccessful.

10,003. In settling with your fishermen, I understand you settle with them at the different stations, at Uyea Sound, Baltasound, and Haroldswick, quite separately?-At Uyea Sound the settlements are quite distinct; at Baltasound and Haroldswick they are combined. Some crews are settled for at Haroldswick, but there is only one set of books at Baltasound.

10,004. Can you give me a general idea from recollection, to what extent your fishermen are settled with in goods in the course of the year? Will it be to the extent of one-fourth or one half of their earnings?-Some men may take out not one-fourth, some may take one-fourth, some a half, and some more than the whole.

10,005. Have you ever thought of striking an average?-I have looked into my cash books several times in past years, and when I have summed up the amount of green fish received at the price agreed on and paid, I found that, as a general rule, at settling time I paid in cash, either in rent, which is cash, or cash given into the hands of the fishermen, fully two-thirds of the entire amount of fish coming into my hands.

10,006. Do you think it would be possible to introduce any system by which the settlement should not be made at such long intervals?-I have considered the matter seriously since the Truck Commission was first spoken about, and I have come to the settled conviction that it would be very much for the curer to pay monthly in cash.

10,007. Would that payment be according to the quantity of fish delivered, or by way of wages, or partially both?-There are two reasons why I think wages would not do. In the first place, the fishermen would not like to take wages, because if they make a good fishing they would not get so much as they do now; and, in the second place, I am sorry to say that with the greater part of them, if they got wages they would not fish half so much.

10,008. Then what system would you suggest?-I think the right system is just to fix a price at the beginning of the year of so much per cwt. for green fish, and pay it monthly or fortnightly in cash as may be agreed upon.

10,009. Do you think it likely from your experience, that the fishermen would agree to that?-Two years ago in North Yell, when I settled with the fishermen there, I urged the men to take cash payments, because we had no store there, and it was an inconvenience for us to send goods. We had to employ a man and pay him, which cost us something; but I found that they all declined my proposal. In the same year, 1870, I tried to engage our fishermen in the south of Unst and in Yell at a fixed price, and I did so. Every fisherman who went out in the south end of Unst and Yell that year was

engaged at 7s, per cwt. I made that bargain in December in writing; but when settling time came we could afford to pay them 7s. 3d., and I did so, according to the previous practice. I might have pocketed £30 by that transaction, but if I had done so the fishermen would have thought I had treated them dishonestly.

10,010. Were they going to grumble?-I have no doubt some of them would have grumbled if they had not got the additional price. I would not say that all of them would have grumbled, because there are some of our fishermen who are very intelligent and very reasonable men, and who would have understood the thing, and said that a bargain was a bargain.

10,011. Did you pay down the 7s. 3d. in consequence of any representation made by them?-No; I did it quite spontaneously.

10,012. Then it was you who did not stick to the bargain?-It was; I improved the bargain for them.

10,013. Suppose it had been the other way, what would have taken place?-I would not have asked the fishermen to agree to take a less price. No doubt there are fishermen who have been in my employ for many years, who, if they knew I was losing by the fish, would not have asked the money; but others would take all they could get, whether it paid me or not.

10,014. But, upon the whole, you think that if that system were introduced by a large firm, there is reasonable prospect of it being carried out?-So far as the fish-curer is concerned, there would be a certain profit to him.

10,015. But do you think it would be practicable so far as both fishermen and fish-curer are concerned?-I think it would pauperize a number of the fishermen because there are a great number of them in debt, and in the transition from the one system to the other they would require to pay up their debts, so far as their means would go, and their dealings would be less.

10,016. Do you think the fishermen under that new system would not be able to get credit to a certain extent?-I don't see how some of them could. For instance, take the year 1869. In 1868 the fishings were almost a failure. Our total catch in Unst and Yell amounted £1607, which could not average much over £4, 10s. to each fisherman. That year we imported meal and flour to the amount of £1824, cost price per invoice; we paid in cash for rents to Major Cameron, Mr. Edmonstone, Lord Zetland, and others, £1600; and we expended on fishing-boats and fish-curing materials £780,-being a gross amount of outlay of £4223 against the fishing, the return for which, as said, was only £1607.

10,017. Does that return apply to your establishment at Uyea Sound only?-It applies to our entire business in Unst and Yell.

10,018. Besides £1607 from fish, have you any idea what income the fishermen would receive that year from other sources, such as for sales of stock?-Yes. We can produce the rolls of cattle sales, which show what cattle were sold in the spring; and we would have a good idea what amount of fat cattle were sold in the rest of the year.

10,019. In whose custody are these sale rolls?-We have them; we conduct the sales. Then, in the year 1869 the crops were lost, which made 1870 a very trying year on this island, and more especially to Spence & Co. We imported that year about £2300 worth of meal and oatseed, and £173 of potatoes; and we paid the same amount of cash in rents.

10,020. Were these importations distributed among the fishermen and others at your different shops in the island?-Yes, among the fishermen; but we had to supply many who were not fishermen, or see them starving around us.

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10,021. That importation of meal, and the sale of it on credit, would, I presume, leave the bulk of the fishermen considerably in debt?-That year it would; except those who had saved some money.

10,022. But with those who were in debt, that further credit would have the effect of leaving them much more in debt than they were before?-Of course; very much more.

10,023. Is that now in the course of being paid off?-Yes; it is coming back to us very fast, in consequence of more successful fishings and better crops.

10,024. Do you not consider that the necessity under which you lay of importing the meal, and advancing it upon credit to the fishermen, was the result of the system, which has been prevailing here, of long settlements, and the undue amount of credit which has been allowed to the men?-I have here a letter which I wrote in 1860, and which represents my views on that subject, and I may as well read an extract from it 'If we don't give unlimited advances, we are told the fishermen will be taken from us. I have now been nearly twelve months in this place (that was after I came first to Uyea), and have closely watched the system pursued by proprietors and others, and certainly agree with you that it is it bad one; but I know I have no right to make any remarks or trouble you with my views on that subject, further than to state that I cannot see any good that will result from burdening the tenants with debt to the fish-curers. It has been my desire, ever since I knew anything about Shetland tenantry, to see them raised in the social scale, and made thoroughly independent, both of proprietors, fish-curers, and others, and I have felt deeply interested in the -- properties, no doubt from being more in contact with them; but when the poor among them are in terror of the proprietors alike, and bound by forced advances to different fish-curers, alas for liberty! and more offered to any fish-curer who will advance more on them. This is not calculated to raise any tenant in self-respect.'

10,025. You speak in that letter of 'forced advances:' what were these?-What I meant by that was this: the proprietor's ground officer or agent in the island, for the time being, told the tenant that he might fish for me this year. I found that he had only £2 or £3 to get, and the ground officer told that tenant that if he did not go to me and get an advance for his rent, he would take him from me and give him to any other man who would advance the rent. That looked very like forced advances.

10,026. That, however, was in 1860?-Yes.

10,027. Was that a common practice in those times?-I believe that 13 years ago truck existed ten times as much as it does now.

10,028. But in 1860 was it a common thing for a proprietor's ground officer to threaten to remove a tenant unless he could get his rent from the fish-curer?-Yes; to threaten to remove him from the ground unless he could pay his rent, or to move him from a fish-curer who would not give him an advance for that purpose, to some other fish-curer who would do so.

10,029. Have you known instances of fishermen who were treated in that way?-Yes. I was referring to cases of that kind when I was writing that letter. It was my own experience at the time when I was at Uyea Sound as a fish-curer trying to engage any men who came to me. Many came to me and fell into debt, because I found that many of them required more from the shop than their fishing amounted to; and then I advanced rent after rent, until I saw that I was advancing to my own ruin.

10,030. After advancing rent in that way, have you been informed that they were to be transferred to another fish-curer unless their rent was still advanced by you?-Yes; in more cases than one.

10,031. Were you so informed by the landlord, or by his factor?- It was generally by the tenant himself, when he came seeking the money.

10,032. Were you ever informed of it by the landlord or any one representing him?-No.

10,033. Had you any reason to believe the story which the fishermen told you?-Yes. I believed them, because I knew of the men being taken away sometimes.

10,034. Was that after they had made such statements to you, and although they were in your debt?-Yes.

10,035. Were you able in these cases to make any arrangement with the new employer to pay up their debt?-In some cases we did that, but in other cases we did not; oftener we made no arrangement.

10,036. Why did you not try to secure your debt by arrestment?- Because the proprietor's right of hypothec would cover the man's whole effects.

10,037. But you might have arrested the money in the hands of the new employer?-He might probably have advanced more than the man might catch in the season before he commenced; so that there was nothing to arrest.

10,038. Did you never try to secure your debt in that way?-I have tried it, but have been unsuccessful.

10,039. Have you, within the last 12 years, met with cases of that sort, in which the proprietor endeavoured to coerce you to pay his rent?-Yes. I have had cases where the tenants came asking me for money, and I told them I could not advance them any further. They would then go away, and come back and tell me that the proprietor's agent or ground officer had informed them that they must get their rent, and that must pay it; and that if I did not do that, they would not be allowed to fish for me.

10,040. Did that system continue until 1868?-No; it prevailed principally under the ground officership of Mr. Sinclair, who acted for Mrs. Mouat, in Unst.

10,041. You did not find that system in existence on other estates?-I only came in contact with the tenants on that property.

10,042. Did no other tenants fish for you up till 1868?-No; except Lord Zetland's.

10,043. Have you been obliged in that way to pay rents for Lord Zetland's tenants also?-No, not for Lord Zetland's.

10,044. Only for the late Mrs. Mouat's?-Yes.

10,045. Did that practice cease when the estates passed to Major Cameron?-They only passed to him at her death last year.

10,046. That was after you had got your lease of the estates?- Yes.

10,047. And since you have had the lease, of course, your control over the tenants has been direct?-Yes.

10,048. And no forced advance of that kind could be required?- No; but, of course whatever the tenant might earn at the fishing, we had still to pay his rent. That was one advance we could not get clear of. The rent was due, and we were responsible for it to the proprietor. The great drawback in the trade is the debts, and the advances given that are never repaid.

10,049. Is it not in your own power to stop your advances whenever you think the debtor is unable to pay more?-No doubt; but suppose a family in the month of January who have no food in the house: there are eight children and a wife, and an aged mother, perhaps, we stop giving them supplies of meal, you can easily guess the consequences.

10,050. If you were to stop their supplies, might they not obtain them by having recourse to some other merchant or fish-curer?- Yes; but it would be upon the same principle-upon credit again.

10,051. And you would lose your debt?-We would lose our debt, and credit, and everything.

10,052. How would you provide for the transition from that state of things to a system in which the payments would be monthly?- I think it would take greater penetration and wisdom than I can boast of, to solve such a ticklish point of political economy. I am afraid pauperism would first increase.

10,053. But would it not be better for the men in the long run?-I don't think it would be any better for the man who has plenty of money now, and a good many of them have that. Such a man comes and buys from us if he wants; and if he does not want, he goes where he likes. If he has got a cow to sell, and we can give him as good a price as another, he will perhaps sell to but he is quite his own master as to where he will [Page 244] sell. But a man with a very small amount of stock, and no credit, and no cash, and no crop after February, would be in a very difficult position until the month of June, when he began to fish.

10,054. Can men during these eight months not get some sort of wages for labour?-The only kind of work in Unst is at the chromate ore quarries; but they can only employ a very limited number of men compared with the population, and those who work in the quarries in winter generally work in summer also. Their men are usually employed for the whole year and there is no room for the fishermen to be employed there.

10,055. Have you any interest in these chromate quarries?-No.

10,056. Is it not your opinion, from the facts you have stated, that the population of the island is rather greater than it is able to maintain?-I think that if the inhabitants of the island were to work the ground they have, they could take food enough out of Unst to feed the 2800 or 3000 inhabitants that are in it.

10,057. Would it not be one effect of the improvements which are being carried out under the management of your firm, to enable the parties to tide over the transition period between the present credit system and the cash system?-Perhaps I may be too sanguine; but my hope is, that if we succeed in carrying through the improvements which have been begun, in six years' time every tenant on the island will be independent of every man, and then he may make his bargain as he likes.

10,058. Do you calculate that it will take six years to wipe out existing debts?-Yes; and that will require renewed exertion on the part of every man. I don't think the idleness of the winter will do it; I think we all want a stimulus.

10,059. Does it not occur to you that this want of energy arises in a great degree from the feeling which the people have, that at the worst they will get credit from the merchant?-There is no doubt that has a very bad effect upon them.

10,060. So that the removal of that sense of dependence might be the very stimulus you desiderate?-It might.

10,061. And your own system of monthly payments would probably be the very best way to apply that stimulus?-I believe it would; and I believe that with average years of fishing, if we could employ the population for six months in winter at profitable wages, we might get into the money system more easily.

10,062. In what way would you suggest employing them for six months at profitable wages?-I don't know; I am afraid the winter fishing cannot be improved.

10,063. And there is no other kind of employment in which wages can be given?-No; unless Government would improve the fishing harbours-that would be a very good way or by giving us more roads. This system, which has obtained so long in Shetland, seems to be natural to the soil; for when the roads were made, the whole of them, except the one in Unst, were made under the superintendence of a captain of the Navy and a captain of the Royal Engineers; and we could not do without credit-I suppose you would call it truck-although the cash was being paid every month. We had to appoint a contractor in every district to supply the workers with meal, and the officer in charge of the roads granted checks to the men.

10,064. Was not that done in consequence of the absence of shops in the district?-No; they had to go to the shop in the district and get the meal. In every district where the works were being carried on we had a contractor engaged to supply meal to the workers.

10,065. Do you mean a man keeping a shop?-We selected a man in the district, and the officer in charge passed orders on him for meal to A, B, or C, and he deducted that from their wages every month, and paid them the balance in cash.

10,066. How long is it since these roads were made?-In 1849 and 1850. It was after the failure of the potatoes in 1847.

10,067. Were the funds for making these roads obtained from Government?-No; Government only gave the superintendence of a staff of sappers and miners.

10,068. Was the work done by local assessment?-No; the money was raised for relieving the destitution in Shetland by the Edinburgh Board, of which Mr Skene was secretary.

10,069. Then that was really an enterprise undertaken for the relief of a temporary destitution?-Yes.

10,070. And the meal was distributed by way of relieving pressing want?-Yes.

10,071. You said you were in possession of the sale rolls of all the sales for some years back?-Almost them all. It was I who first started sales in the North Isles. I began them at Cullivoe when I was there. There never had been any sales until I got the lease of the property from Major Cameron.

10,072. Could you give me a note of the principal purchasers at the sales during the last two or three years in Unst?-I could; but the principal purchasers at the sales for the last two or three years have been ourselves and Mr. Jeffrey, a farmer and cattle-dealer. At the last sales, I suppose, we bought two-thirds of the whole cattle sold.

10,073. Were these generally purchased in order to liquidate an existing debt?-No; a great many of the men-those who have most cattle to sell-have always most cash to get. That has been my experience. A poor man is generally poor every way, and he generally gets into the worst fishing-boat.

10,074. How does that happen?-He has begun poor, and been unfortunate, and, some may think, unlucky.

10,075. But why should he get into the worst fishing-boat?-There is no assignable reason for that, but very often you will find that certain men who have been unfortunate just keep together.

10,076. But the fact of a man being unfortunate perhaps arises from him not being so good a fisherman or so good a man of business as the others?-Yes. He just gets into association with men of the same class as himself, on the principle of birds of a feather.

10,077. But, I presume, you very often do purchase either privately or at these sales, cattle from some of your debtors, and enter them in your account?-Very often. A great many of the cattle purchased at the sales are not paid for until I settle with the men in my district. Some men-not tenants of ours at all, but tenants of Lord Zetland-have been asked to come and take the money after the sale, but have said, 'I am not at all requiring it just now; I only want my money once a year.' They have said that to me more than once this year, so that I could not get clear of the money for the cattle which I bought.

10,078. Were these men running an account with you?-Very little. They come perhaps once a month and see how the account stands, and get perhaps a pound or so in cash.

10,079. A statement was made in Edinburgh to the effect that when a merchant bought a beast from some of his debtors in that way, he had really the fixing of the price himself?-That is a very serious mistake; I must say that twenty years ago that was the case, but I think the first break to that in the North Isles was, as I have already said, my commencing a cattle sale. The very year I commenced the cattle sale, as I can prove by documentary evidence, the price of cattle rose fully one-fourth, and ever since there has been an auctioneer appointed to conduct the sales in Yell and in Unst. I have invariably told every tenant in my district, that if they could do any better with any produce-such as butter, eggs, cows, or fish-than by bringing them to me, they were quite at liberty to do so. I said that to them over and over again.

10,080. Why did you tell them that so often?-Because I had an opportunity of telling it to them every time they came with their produce and asked the price. A man might come with a jar of butter one day, another jar a few days afterwards.

10,081. But did they not know without being told, that they might go where they thought they could get a better price?-I thought they did; but they might [Page 245] think that as we stood in the relation to them of landlord, as well as fish-curer and merchant, we might force them in some way; and I wanted to do away with that impression, both as to the fishing and as to the purchase of produce, because, whatever control we might have had the power of exercising over them, we did not wish it to be exercised, or to have it felt that there was such a power in our hands.

10,082. In point of fact, I suppose that by far the greater number of the fishermen in this island sell their fish to you?-Yes. There is only one boat that does not fish for us-Mr. John Johnston's.

10,083. Are there not some of the crews at the winter fishing who do not fish for you?-I cannot speak so well about the winter fishing, because it is carried on in small boats, and the men take their fish anywhere they like.

10,084. Do they sell their winter fish to you for ready money?- Yes, for ready money, or for goods if they want them, whichever they like. We buy in North Yell just now all winter, and pay the cash just as the men want it, or give them goods.

10,085. There is no Faroe fishing carried on by your firm?-No.

10,086. About how many tenants are there altogether on the estate that you hold in tack on this island?-I think about 150.

10,087. About how many of them are engaged in fishing in your boats?-The whole of them, I think, who do fish for us.

10,088. Do you buy a large quantity of kelp?-I buy almost all that is bought in the islands.

10,089. How many women are employed at that?-They vary very much, because they just do it as they like themselves.

10,090. Is there a separate rent charged in your lease for the kelp shores?-It is included in the whole rent.

10,091. Do you pay a higher rent to Major Cameron under your lease than you receive from the fishermen?-Yes; we pay about £200 more than we receive, but that is for the scattalds and kelp shores, which the tenants have the use of on certain conditions.

10,092. Do you think the scattalds and kelp shores alone are worth that increased rent?-I have often wished that we had never entered into that lease, but when we have entered into it we must try to make the best of it.

10,093. Then you think the scattalds and kelp shores are not worth so much?-They might be worth that if they were taken from the tenants and developed into sheep-walks, but they are not worth that to us.

10,094. Have you not the power of making them into sheep-walks for yourselves?-Yes; but we have not done so.

10,095. The tenants still have the use of them upon certain conditions?-Yes.

10,096. Do they largely avail themselves of that right upon making that payment?-I am sorry to say that we lose about £100 a year by them.

10,097. Do you mean that you do not collect £100 a year which you are entitled to?-I say that when we have charged every tenant under us the full amount of scattald charges, we are £100 short of the rent under the lease, as our books will show.

10,098. Is that loss upon the rents and scattald charges, or upon the scattald charges only?-It is upon the rents and the scattald united. In short, we charge the tenants £1000 for rent and scattald charges, and we pay Major Cameron £1100.

10,099. The kelp is gathered by the women upon these shores and burned by them, and bought by you at so much per ton?-Yes.

10,100. Is the settlement for the kelp generally managed by way of accounts in your books in each woman's name?-No. They generally settled with at the time when they bring the kelp. We may have supplied them with meal or other necessaries while they were preparing the kelp, but as soon as they have prepared the settlement is at once made.

10,101. These supplies are entered in a ledger account under the woman's name during the time the kelp is being prepared?-Yes.

10,102. And then the amount of kelp is entered at the close of that account as settling it?-Yes.

10,103. How many women are so employed?-Perhaps about 120 or 130. I think we have made about 40 tons of kelp from Unst, but we get a good deal from Yell too I think about 20 tons.

10,104. Does the number of women you have given include those in Yell?-No; I think there may be about that number in Unst.

10,105. What price per cwt. do you pay for the kelp?-It is 4s. this year.

10,106. Is it the same price, whether paid in goods or in cash?- There used to be a practice of giving from 4d. to 6d. less in cash than in goods. The reason for that was, that the price allowed was generally the extreme value of the article; but for the last two years we have got 5s. per ton more for kelp, and we have made no difference on the price to the women whether it was taken in cash or in goods. That was the case more especially last year. Almost all that we got from Yell was paid in cash, and paid at the same rate of 4s.

10,107. Did the women take the price in cash or in goods?-They took it almost all in goods, except those from Yell. They could only come over at times when they had about a ton or two ready, and they took back what goods they wanted, and the balance in cash.

10,108. How do you arrange with your beach boys?-We have one man engaged who cures for us by the ton. He finds the hands; we do not employ them.

10,109. You do all your curing by contract?-Yes.

10,110. And you have nothing to do with the payment of the persons employed at it?-I often pay them when the man who has the contract gives me an order to pay. He gives them a line to me to pay them so much and I do so.

10,111. Is that payment made at the shop at Uyea Sound?-Yes,

10,112. Is it made in goods or in cash?-It is just as the case may be. Of course, if the man has taken anything it is deducted; but if he has not taken anything he gets his cash.

10,113. Have the people who are employed in the curing got accounts in your books in their own names?-Yes.

10,114. Do you mean the men employed under the contractor?- Yes; they have their own accounts.

10,115. Do you know how much wages they receive from the contractor?-Not until he gives me an order at the end of the season, and then they are paid. They are paid as soon as the work is over.

10,116. But during the season they are running an account in your books and getting supplies?-Yes, but to as limited an extent as possible. We don't like to give them goods; we rather like to give them money at the end of the season, because if we are liberal in that way, they generally overdraw their accounts.

10,117. But the line you speak of, which you receive from the contractor, is only given at the end of the season?-Yes.

10,118. He does not give them lines when they want supplies?- No.

10,119. Why does he not pay them himself?-At one time, some years ago, I used to give the curer cash to pay his men; but I found I was minus any advances I had given to them in the course of the season, because they did not come back to square up when they got their cash, and yet it was necessary for me to give them some things in order to let the work go on.

10,120. Could you not leave it to the contractor to make these advances?-It is quite optional. There is nothing compulsory in this arrangement at all.

10,121. The men don't need to come to your shop for the advances unless they like?-Not at all. I don't want them; I would as soon pay them in money as goods.

10,122. And the contractor could do so?-Yes. He does so in some cases. I suppose those who bring orders to me are those who want it in that way. Very likely the contractor pays some that I never see at all.

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10,123. Do you suppose that the whole payments he makes are not made through you?-I don't know that they are. There is no arrangement to that effect.

10,124. What is the contract price per ton for curing?-16s., and we supply the implements and materials, and the beach. That is just for his work, putting them from the shores to the beach; and we take them from there to the shipping port.

10,125. In settling with your fishermen, what allowance do you make for the cost of curing the fish per ton of dry fish?-We deduct that from the price we have got for the fish, in estimating what we are to pay our fishermen. That sum includes expense of curing, cost of salt and materials, and removing the fish to the port

where they are to be delivered.

10,126. What other deductions do you make before fixing the sum that is to be divided between you and the fishermen?-We generally make no other deductions. We expect that the £3 should cover everything but I don't know that it does so now, because wages are much higher than they used to be.

10,127. What was the current price paid to fishermen here last year?-8s.

10,128. What was the price of dry fish per ton?-The current price was £23.

10,129. Deducting £3, that would leave £20: was that the sum on which you calculated the division between you and the fishermen?-Yes.

10,130. How do you calculate the price for the green fish?-We calculate 21/4 cwt. of green fish for 1 cwt. dry.

10,131. That would only be 18s. per cwt?-Yes; but we give skipper's fees, and a great deal of perquisites to the crew, which will come to another shilling. The men have lines of their own, and the skipper always gets a fee.

10,132. Then the 2s. extra is intended to cover that?-Yes, and our profit.

10,133. Do you allow yourselves a commission?-Yes; and I think we require it. The hire we take for the boat never covers the price of the boat. I may say that, in my experience, boats which originally cost £20 stand us in £32 when they are worn out, after we have got credit for all the hires charged on them. There is therefore a considerable loss on boats. The hire cannot nearly meet current expenses, much less pay for the original price.

10,134. How do you mean that the boat stood you in £32?-I give sails every second year, and a new sail costs about £2, 10s. Then there is the carpenter's work every year in repairing the boat, and there are oars and everything to be kept up. Taking these things into consideration, the result of the debtor and creditor account of some our boats was that they cost £20 originally, and when worn out they had cost £32.

10,135. What was the hire of these boats?-48s. a year-8s. a man. That was credited to the boat.

10,136. What is the life of a boat?-It is sometimes only a year.

10,137. But that is when she is lost?-No; we sometimes build what appears to be a very good boat, and the carpenter says she is first-class; but when the fishermen take her to sea they find she is very bad, and they throw her on our hands, and we cannot use her.

10,138. Does that often happen?-Very often.

10,139. Then the hiring of boats is a very unprofitable business?- It is; indeed I should be very glad if the fishermen would buy their own boats; and if the Government would assist them in that, it would be a very good thing. The life of a good boat may be about twelve years.

10,140. Is it not an exceptional case where the boat is thrown up at the end of the year?-No, it is very common at the end of one year or two years.

10,141. But when a boat is a good one at first, and pleases the fishermen, she is calculated to last for twelve years?-Yes, and she may last a little longer with increased repairs.

10,142. And the calculation that a boat when worn out costs you £32 is based upon the supposition that she does last for about that period?-Yes; but the £32 is perhaps an exceptional case: that was the highest I ever had in my experience.

10,143. Is the current price of fish according to which you pay your men ascertained by communication with other merchants in Shetland, or is it the actual price, which you get upon your own sales?-There is generally a communication

among the curers as to what they think should be the price. Every man states his own opinion freely.

10,144. And communicates the amount of his own sales to his neighbours?-I don't know that he communicates his sales, but he states his idea with regard, to what the price should be.

10,145. Do you sell mostly in this country, or in Spain?-It is chiefly ling that we sell, and they go to the west of Scotland and Ireland. We ship them direct to the Clyde, to merchants in Glasgow and Greenock.

10,146. Have you ever shipped any to Spain?-No.

10,147. Do you know whether the fish shipped there are picked fish?-I understand they are all picked.

10,148. Is a higher price obtained for them than for those sold in this country?-I suppose so; it is chiefly cod that are sent there.

10,149. The men, I understand, have nothing to with fixing the current price of fish?-No.

10,150. Do they sometimes complain that they have not?-I have offered to the fishermen, not since Spence & Co. commenced, but I did repeatedly before, to cure for them at 5 per cent., and furnish everything.

10,151. Were they to sell the fish themselves?-I was to act as their salesman, and disclose all to them if they would give me 5 per cent.

10,152. But they did not agree to that?-No; they thought the safer way was to go on as we had been doing. The fish-curers don't have that love and affection for one another which was described in the evidence in Edinburgh. There is plenty of opposition among them.

10,153. Except at the time when they are fixing the current price?-I cannot say that there is any better agreement then. I cannot agree at all with that part of the evidence which was given before.

10,154. But you always do agree about that to a certain extent?- No; we sometimes do not agree, and we have angry disputations in our letters. We say the price should be a certain thing in our opinion, and Spence & Co. have not agreed with all the fish-curers yet, for we give 10s. per 100 cwts. as an encouragement or bounty, and something to help the men to pay things they have in company at the station; but none of the other curers have given that, and they have been very hard upon us about it. We have given 2s. per. ton more for every ton of green fish we have received than any other curer in Shetland, so that we don't always agree.

10,155. Will you give me a note of your fish sales last year, and the prices?-I will do so privately. [Hands them in.]

10,156. You have now produced to me the lease between Major Cameron and your firm for twelve years up till Martinmas 1880: are all the stipulations about improvements contained in it?-Yes; they are to be, pointed out specially from year to

year, but the arrangement is, that there is to be so much expended every year upon improvements.

10,157. But were the regulations for the tenantry separate from this lease and issued to them?-No; the rules and regulations for the sub-tenants are appended to the lease.

10,158. Were these made known to the tenants?-Yes; they were given to them in a different form. They are amended rules to those which were first issued by Mr. Walker.

10,159. Any tenants not complying with these regulations may be removed by you?-Yes; they will get their leases unless they comply with them, and we can remove them at any time.

10,160. What is the length of the holdings of these who comply with these regulations?-It is the same as our own lease, twelve years from 1868.

10,161. How many of the tenants have adopted these [Page 247] regulations?-I should say that, to a greater or less extent, they have all made a fair commencement in the improvements and rotation of cropping.

10,162. But you have absolute power to remove them if they do not comply with that?-We have. The property is absolutely let to us, and we can absolutely turn them out if they do not comply with the regulations. The lease is clear enough upon that point.

10,163. Have you had occasion to exercise that power?-Not in any case.

10,164. Have you threatened to do so?-Not so far as is known to me.

10,165. There is no obligation on the tenants, under this lease, either to fish for you or to sell the produce of their farms to your firm?-No; it is long since I read the lease, but I don't think there is anything of that sort in it.

10,166. In point of fact, is there any understanding on the part of the tenants that they are bound to do so?-No.

10,167. You have told them that they are under no such obligation?-Yes.

10,168. But, in point of fact, most of them do sell their fish to you?-They do.

10,169. And, in point of fact, most of them do sell their eggs and butter to you?-I think the great bulk of them do, but I cannot tell so well about the butter and eggs. We buy fully as much now at Uyea Sound as we did in any season before the company commenced.

10,170. And a number of the tenants also run accounts for shop goods with your shops?-Yes; I think most of them do so.

10,171. Do you think that having this lease is a facility to you in carrying on your business?-I rather think that in one sense it is the reverse, because at first it was so unpopular among the tenants, in consequence of dividing the farms in the first instance, and setting them on to work and cultivate and drain and clear the ground of

stones, and to introduce a rotation of cropping, that it placed us as traders in the island to a great disadvantage, and created an unhappy feeling between the tenants and ourselves. I can say that for the last four years, I have spent about one-thirteenth of my time among them, just going from tenant to tenant three or four times every year, in the south parish.

10,172. Over what portion of the island does this lease extend?-It includes nearly one-half of the island. I have been compelled in some cases to use hard measures with the tenants to get them to alter the crop which they had put in, and to bring the land into rotation. That looked a very severe thing to them; but we stood between two fires, as it were.

10,173. You think it would be profitable for them in the end?-I have no doubt it will, and a good many of them are seeing that now.

10,174. But although this lease does not contain an express condition that the tenants are to fish for you, it gives you a power of ejecting them?-Of course it does.

10,175. And the tenants are aware of that?-Yes.

10,176. And of course they may feel a little more unwilling to deal with another party or to fish for him in consequence?-That may be. I don't know what their private feelings may be, but the lease gives us it stronger power than that: it reserves the peats, and what could they do without peats? We have absolute power in that respect, if we choose to put it in force, but I hope never to see that done. We can refuse them peats altogether and scattald altogether, and we can shut them up altogether, but I hope I will never live to see that day.

10,177. In short, you can do anything you please with the tenants, except deprive any one of his holding who complies with these rules and regulations?-Yes.

10,178. The only security he has is to comply with them?-Yes.

10,179. As to the peats and scattalds, he has no security at all?- None.

10,180. You spoke of a bounty of 2s. per ton which you allowed your fishermen at settlement: does that not correspond with the present which is made at settlement at other places by way of drinking money?-They say in other places that they give nothing of that kind, but it would correspond with that.

10,181. Do you give the men anything besides as a gratuity at settling time?-No; we give nothing in the way of drink money. They get what is called a midsummer bottle: that is an old custom, and it still continues among all the fishermen.

10,182. Have you had a good deal to do in the hosiery trade?- Yes, I have bought a good deal of it.

10,183. I understand you buy a quantity of worsted from the spinners in Unst and sell it south?-Yes; I generally sell it in Lerwick.

10,184. At what rates do you generally buy the worsted?-We never like to buy anything coarser than we can give 3d. per cut for.

10,185. The weight of that, I suppose, varies?-The weight of what we give 3d. per cut for would be about 6 cuts to the ounce.

10,186. That would be 24s. per lb.?-Yes; but the number of ounces is not a criterion, because the less the weight the higher the price. We have given as high as 7d. per cut for worsted, and that should weigh 14 cuts of 100 threads to the ounce. That would be 8s. 2d. per ounce, or more than £7 per lb.

10,187. Is not that a very high price?-Yes; but we would give cash for any amount of that kind of worsted we could get, or for worsted at 6d. for 12 cuts to the ounce, but very few can spin that. It is a very fine thread.

10,188. Have you known much worsted sold at the rate of £7, 12s. per lb.?-No, not very much, because there are very few who can spin it so fine. It is just like a cobweb.

10,189. What quantity of worsted of that sort would it take to make a shawl of the ordinary size? About 40 cuts?-That would be a small shawl. I have put as high as 70 cuts of that fine worsted into a shawl; but that was a large shawl. The usual size is 25 to 30 scores, made out of 3d. worsted.

10,190. The score refers to the size of the shawl?-Yes; twenty scores is twenty threads or twenty stitches of the needle across from side to side.

10,191. Is the size of the shawl generally measured by the score or by the yard?-It is generally measured by the score when the girl commences to knit it.

10,192. Then a shawl of that size would take 40 cuts of that fine worsted?-No; a 21/4 yard shawl would take 60 cuts of that fine worsted.

10,193. The worsted of such a shawl would cost £1, 15s?-Yes.

10,194. Can you give me any idea what the knitting of that shawl is generally put in at?-The knitting of shawl of that kind should be 25s. to 30s.

10,195. Are these shawls made in Unst?-Yes; I have got a shawl made in Unst that cost £4, and some that cost £3, and between £3 and £4.

10,196. Would the knitting cost as much in Lerwick?-I don't know. I generally think, as a rule, that the knitter ought to get as much for her work as the price of the worsted.

10,197. But it is somewhat less than the price of the worsted in these fine shawls?-Yes.

10,198. Suppose a shawl of which the worsted cost you 35s. and the knitting 25s.-that is £3 altogether: what would that be invoiced for to the merchant in the south?-Perhaps I am not able to give very good information upon that point, because I have always found these shawls to be a part of my stock which it was very difficult to dispose of.

10,199. Do you mean the fine shawls?-No. I have generally got shawls of that sort made upon an order from gentlemen who happen to come down here, and I usually charge them the cost of the work and dressing, and so on; but I have found it a very

difficult thing to sell hosiery.

10,200. Is the 25s. which the knitter gets paid to her in money or in goods?-Almost always in goods.

10,201. And you have been calculating now upon the footing that that price was to be paid in goods?-Yes; but if I got an order for the shawl, I would not care whether it was to be paid for in goods or in cash.

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10,202. That is because if you had got the order you would receive a cash payment?-Yes.

10,203. Whereas, if you were selling it to a merchant, you might have to take goods from him for the value?-It is not exactly that, but I might not get it sold at all. My object in dealing in hosiery is more to oblige my customers than because it is an article on which make a profit. A great bulk of the shawls which sell for about 30s. are made from 3d. worsted. That would be 7s. 6d. for the worsted, and the knitting would be 8s. or 9s. in goods, then there would be 6d. for dressing, and that would be about the cost of an ordinary shawl.

10,204. How much would that sell for in the market?-I don't know. I have tried most of the best hosiers who deal in shawls, and I always lost them.

10,205. Do you invoice shawls to Edinburgh?-Yes, pretty often; but I tried to get out of it because we lost a good deal by it. I suppose these wholesale buyers in the south do their largest trade with the merchants in Lerwick, and they don't like to buy from the country people in case it might operate against their own interests.*

*Mr. Sandison afterwards wrote the following letter in supplement of his evidence:-

'I much regret you could not make your examination in Unst more exhaustive.

'Witnesses were asked the effects of the present system on the morals of the people. I am of opinion their morals will compare very favourably with any other county in Scotland; and I will say for my countrymen, that for intelligence and common sense they are superior to many of the same class elsewhere.

'From careful observation and considerable experience, I have come to think that the increase of small shops acts injuriously on the poorest of the people, leading to the practice of deceit between man and wife, mother and child, as well as between class and class. Many families of the poor and indebted fishermen sell their farm produce, butter, eggs, etc., and even meal and corn, out of their own crop, to some of these small shops for trifling luxuries of no real benefit; and, worst of all, most of these small shops sell spirits surreptitiously, it is believed, to a greater extent than the licensed dealer. As a rule, in my experience, the man who sells his produce in quantity to the large buyer or fish-curer is independent, and has cash in hand and bank; while the man who dribbles away his produce through these shops, only giving his summer fish to the fish-curer, is in debt and poverty. While one man can take up £4 to £6 for the one article of butter, in cash at settlement, the other, with as many

milch cows, has nothing. The monopoly said to exist here has not reduced these shops; there are fourteen shops in Unst.

'The interests of the small dealer is <only one,-his own>. The interests of the fish-curer and larger dealer is the people's as much as his own, he must supply all their necessary wants, pay rents, and carry them through with food, at least in unsuccessful seasons; their independence is his gain, their poverty his ruin, by incurring debts, in many cases never paid. This is bad; but in my opinion it is not this, nor barter, call it truck if you like, that has kept Shetland so far behind, but the utter neglect of the soil, and slovenly farming, for the last 100 years. I don't think 100 acres have been added to the cultivated ground by tenant crofters, while in that time the population has increased more than one-third; in place of adding, I am sorry to say that in many cases there has been a most destructive system of reducing going on, by delving down hill for ages until the tops of many fields are wasted to the rock. I have seen places where considerable extents was lost in this way; and for draining and clearing out stones, that was unthought of. For this state of matters, both proprietors and tenants are to blame. Proprietors, in my opinion, have been far too careless of their poperty, not heeding how the crofter farmed, if the rent was paid; and the naturally indolent man reduced more so, by neglecting to increase and improve his farm during the long winter, when he could do little else. Then the breeding and rearing of cattle has been utterly neglected by the small tenants: we have made a right start with that in this island now.

'In all my experience I find the best farmer (I speak of the crofters) is never the worst fisher, and is generally out of debt; while the bad and slovenly farmer, though an extra good fisherman, often falls behind, indeed generally so. Of late I have come to the conclusion that the time spent at the winter fishing is a loss to the crofter, as I do think he can be more profitably employed on his farm, at least until he puts it in proper order. Not to enlarge, I consider the land question a more serious one than the truck for Shetland. Get our crofter fishermen to feel and take an interest in the soil they cultivate; induce them to habits of constant activity on their land, when not fully employed at fishing; get them, by whatever way, to take a pleasure in rendering the waste places of their farm productive of food for man and beast; give them better houses; let them have every reasonable encouragement from their proprietors, with patient continuous oversight by those competent to give direction and advice: I would hope for more from this than all the 'Truck Acts' in the world.

'In place of putting shackles on the fish-curers, who are trying to develop that one branch of our industry, they ought to be encouraged. Much capital is invested in it; and when as much has been done to develop the land as is being done to develop the deep sea, I am sure we will require no 'Truck Act.'

'I would like to say a word on the Rev. Mr. Smith's evidence to price and quality of the goods sold in Unst, but may take another time for that: enough to say just now, that he has yet to try mine.'

Baltasound, Unst, January 19, 1872, PETER JOHNSTON, examined.

10,206. You are registrar of this parish, and you live at Balliasta?-Yes.

10,207. You were formerly a fisherman, and you are acquainted with the way in which the fishing trade is carried on?-Yes. I was acquainted with it when I was at the fishing. It is ten years ago since I left it.

10,208. When you were a fisherman, was there liberty for every man to fish to any one he liked to engage with?-Yes.

10,209. Was there no restriction at all?-No.

10,210. What estate did you live upon?-On the estate of Buness.

10,211. No one there was bound to fish for his landlord or tacksman?-No. When the late Mr. Edmonstone had the fishing himself, I fished for him.

10,212. Were you bound to fish for him?-I was willing to fish for him in preference to any other, because he was my landlord.

10,213. But were you bound to fish for him?-No, he did not hold me bound.

10,214. Might you have engaged to fish for any one else, without any fear of being turned out of your farm?-I might.

10,215. Was that generally the case throughout the country?-I believe it was, so far as I can remember. What it was long before that I don't know.

10,216. You are not engaged in fishing now, or in any business?- No. I have a farm from Mr. Edmonstone.

10,217. Do you deal at the shop at Haroldswick or Balta Sound?- I just deal anywhere I find convenient, because I pay in ready money.

10,218. You don't keep an account?-No.

10,219. Do you prefer that way of dealing?-I do.

10,220. Do you get better bargains in that way?-It may be that there is not much difference, but still have the privilege of choosing where I am to deal.

10,221. Where do you deal in your ready-money transactions?- Chiefly with Spence & Co. at Balta Sound.

10,222. What do you pay there for meal?-I am not, in the way of buying meal. I get it from my own farm.

10,223. What do you pay there for soft goods?-I have not had any lately.

10,224. Do you go to Lerwick for them?-No; but sometimes I send to Lerwick for some tea and other articles.

10,225. Why do you not get your tea from Spence & Co?-I get it sometimes from them, and sometimes from others.

10,226. Why do you send so far as Lerwick for it?-Because we might get it a little cheaper there. We can get very good tea at Lerwick for 2s. 6d. a lb., while the cheapest here is about 3s. or 2s. 8d.

10,227. Is the 2s. 6d. tea that you get in Lerwick as good as the 3s. tea which you get here, or better?-I think it is much about the same.

10,228. Is there anything else you send to Lerwick for?-No.

10,229. What else do you get from Spence & Co.?-Any small thing I require-principally tobacco. I get twist tobacco for 31/2d. an ounce.

10,230. What else do you get?-Nothing worth mentioning.

10,231. Then you buy nothing from Spence & Co. that is worth mentioning except tea and tobacco?-I sometimes buy a little sugar. It is fine white sugar at 6d. a lb. I have also bought sugar from Mr. William Johnston. It was of the same price and quality. I have never got it from Lerwick.

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Baltasound, Unst, January 19, 1872, WILLIAM GILBERT MOUAT, examined.

10,232. You are a partner of the firm of Spence & Co?-I am.

10,233. You manage their business at Baltasound along with Mr. Thomson?-Yes.

10,234. You were in business on your own account for a good many years before the formation of that company?-Yes, for eighteen years at Baltasound. I was not extensively in the fishing then, but I had a shop.

10,235. Were you present during the examination of Mr. Sandison?-Yes.

10,236. Do you concur generally in what he said?-Yes; I don't think I could correct or add anything to it, for I think he has given just such a statement as I would have given myself.

10,237. Do you entertain the same opinion about the possibility of an improved mode of conducting business here?-I do.

10,238. You have arrived at the same conclusion with regard to the expediency of a monthly pay if it could be introduced?-Yes; fortnightly or monthly.

10,239. You settle with the fishermen at Baltasound?-Yes; I have settled with the greater number of them there for the last four years.

10,240. In 1867, before the formation of the firm, had you fishermen in your own employment here?-Yes.

10,241. Before 1868 Mr. John Spence carried on business at Haroldswick as a fish-curer?-Yes.

10,242. And, I understand, the accounts of both the Haroldswick fishermen and the Baltasound fishermen are now kept in your books at Baltasound?-Yes. They are transferred from what is called the Haroldswick fisherman's ledger to the general ledger. We enter the amount of advances at Haroldswick into the general fishing ledger, and give the men credit in that ledger for the amount of their fishings.

10,243. Does that general fishing ledger show the amount of balances due at the beginning of each year as well as at the end?- Yes. [Produces fisherman's ledger.]

10,244. Are the shop accounts entered in this book in full, or is the summation merely transferred from another book?-These accounts [showing] are just taken from what we call the fisherman's ledger at Haroldswick, containing the fishermen's accounts for the season.

10,245. How do you do with the fishermen who deal in the shop at Baltasound?-We have a shop ledger in which the details of their transactions are entered. Here [showing], and for eighteen pages back, you will find the Baltasound fishermen. Then here [showing] is the account for the rent, which we pay for the men to the Earl of Zetland. I collect Lord Zetland's rents here for Messrs. George and Arthur James Hay, the factors, and remit them to them when collected.

10,246. Have you the shop ledger?-Yes. [Produces it.]

10,247. Each fisherman has his account separately kept in it?- Yes.

10,248. I suppose few of them care to keep passbooks?-Some of them keep pass-books over the whole season, but others of them do not. Here [showing account in shop ledger] is a sample of the transactions for this season. The amount of that account is carried into the ledger, but the credits due to the man do not appear in the shop ledger.

10,249. Do you generally find the men applying to you for cash early in the year, before the fishing begins?-Not often. If they are requiring a few shillings they may ask for it, and get it, but I cannot say that they ever ask for much.

10,250. I see here an entry on January 5, 'To biscuit, 1s. 2d.:' what quantity of biscuit would that be?-I suppose it would be 4 lbs. of what are called cabin biscuit.

10,251. 'Tobacco, 1s. 1d?' -That would be a 1/4 lb. at 31/2d. an ounce and the man got 1d. off by taking a quantity.

10,252. 'Tea, 11d.,:' is that the best quality of tea?-Yes. We have cheaper tea than that at 8d. and 10d.

10,253. Are Shetland people, I understand, are very particular about their tea?-Yes; and they are very good judges of it.

10,254. I see another entry on October, 28 ' To meal, 2s. 10d.?'- That would be 16 lbs., or half a lispund.

10,255. On October 5 the meal was 5s, 9d., so that there had been a fall between that date and October 28?-Yes. There is often a rise and fall in the price of meal.

10,256. Where do you get your meal?-Generally from Aberdeen, from Glenny & Cruickshank, and Mr. Mess, and Mr. Walker, and Mr. Tulloch, all in Aberdeen. We generally get our flour from Messrs. Tod, Stockbridge.

10,257. I see an entry, 'To meal per meal-book:' is that a separate book which you keep for meal?-Yes; it is a book we generally keep in the cellar, where the meal is weighed out. The meal is marked there at the time the people get it, and then it is entered as a whole in the ledger.

10,258. That is done to save repetition of entries in the lodger?- Yes. This [showing] is one of the accounts referred to by Mr. Sandison, kept by six men on the station as a company, and it is in that account that we give them credit for 2s. per 20 weighs. We put it to their credit there, and then charge the men only for the balance in their accounts.

10,259. How is that credited in their account?-It has not been done yet. The crew have not settled.

10,260. But how would it be entered?-Just for an allowance.

10,261. You take the whole quantity of fish delivered, and calculate what the allowance is upon that?-Yes; on the quantities delivered of cod, tusk, and ling. We don't allow it upon the saith.

10,262. Is the saith an inferior item in the season's fishing?-It has been rather low for some years back until this year, but it has been rather better.

10,263. I see, under January 12, in Andrew Mouat's account, 'Paraffin oil, 5d.' How much oil was that?-About 51/2 gills, I suppose.

10,264. What is the selling price of paraffin oil at your store?-2s. a gallon.

10,265. How many gills are in a gallon?-32.

10,266. So that the price which Mouat paid for his oil was a little more than 2s. 6d. a gallon?- Yes, but the bottles are not all alike. Some may hold 6 gills, and some only 51/2. We generally fill the bottle for 5d. when they bring it to us.

10,267. Where do you get your paraffin oil?-From Young's Paraffin Light Co.

10,268. Do you generally import it once a year or so in the beginning of winter?-No; we generally get 1 or 2 or 3 casks by the steamer now and then, as we require it.

10,269. When did you last get a supply of oil from that company?-I don't know if we had any last season at all; because we got 3 or 4 casks early in the spring, which served us throughout the season.

10,270. What was the price of it?-I think the last we bought from Young & Co. was 1s. 5d. or 1s. 6d.-I think 1s. 5d. per gallon; but then there is double freight to pay on it.

10,271. Where do Young & Co. deliver it?-At Granton.

10,272. What is the freight from there?-I think it is nearly 2d. per gallon; but we have had the oil much dearer from Young & Co. than 1s. 5d.

10,273. Have you ever got any from Rowatt & Son?-We have had oil from a person named Williamson, but not direct. I think the last we got from him was through an agent in Leith.

10,274. Where is Williamson's place?-I cannot say; only saw the name on the cask. We got it from Mr. J.B. Leask.

10,275. Do either of these books which you have produced contain the accounts of persons employed in your curing business?-Yes.

10,276. Do you contract for curing at Baltasound [Page 250] and Haroldswick?-No; we employ the people ourselves; and their accounts are entered generally in the Baltasound book.

10,277. I see an account of Thomas Mouat, beach boy, February 17, 1870, 'To Baltasound shop account £2, 0s. 3d., by fee £1, 10s., by balance to account, 10s. 3d.,' which is carried to next account, and he is charged 6d of interest on it. Then November 17, 'To Baltasound shop account £1, 10s. 8d., by beach fee £1, 15s., by balance to account 6s. 5d.' Has he been working for you this year?-No.

10,278. Has that balance of 6s. 5d. been settled?-No.

10,279. Where is the boy now?-He is working as a blacksmith.

10,280. Do you charge these boys interest when they are in debt?-Yes, we have done so; but only for the last two years.

10,281. Has that been with the view of reducing their balance?-It will rather increase them.

10,282. But has it been done in order to lead them to incur less debt?-I wish it would; but in many cases I believe they cannot help themselves. It is not their wish to incur debt

10,283. Does it generally happen that a beach boy is in your debt at the end of the season?-Not generally.

10,284. I see that John Miller has a balance of 4s. against him in 1870, and a balance of 9d. to get in 1871?-Yes.

10,285. Robert Gardiner has a balance of £1, 19s., against him in 1870. Has he not settled that yet?-No; he is in Glasgow.

10,286. Thomas Abernethy, beach boy, got a fee of £2. 10s., and 15s. for drying fish for 30 days, and he had to receive a balance of 1s. 01/2d. at the end of the year?-Yes.

10,287. John Jamieson, beach boy, had a beach fee of £2, 5s., 39 days drying fish at 5d.-16s. 3d. and there is a balance of 11s. 11d. against him upon his shop account?-Yes.

10,288. Nicol Thomson had a beach fee of £1, and he had a balance of 5s. 3d. against him for 1870, and has since got supplies to the amount of 5s. 61/2d?-Yes. He was only employed for part of the season.

10,289. Was he working for you last year?-No.

10,290. John Harrison has a balance in his favour of 2s. 101/2d.?- Yes.

10,291. Archibald Thomson, in 1870, had a balance against him of 17s. He settled again the day before yesterday, and got a balance in cash of £2, 6s. 31/2 d?-Yes. He was a fisherman last year. 10,292. He had £9, 1s. to get for his fish?-Yes; and he had

credit with another boat. He went with one boat for a time in place of another man who was laid up.

10,293. In the account of Charles Sandison, fish-curer, his shop account at Uyea Sound was £3, 2s. 11d. in 1870, and £3, 11s. 101/2d. at Baltasound, and there also a balance of rent of 11s. 6d. charged against him. The balance against him at November 12, 1869, and carried to new account, is £4, 5s. 31/2d. The interest on that is 4s. 3d., and the balance against him on March 18, 1871, was £9, 8s. 51/2d.?-Yes.

10,294. He has since put in £6, 3s. 9d. and £1 to his credit, the first being the price of a cow, and the other a payment made by his son, or carried from his son's account into his?-Yes, by his order.

10,295. That was done with the view of reducing his debt?-Yes; the son was living with the father, and it was done to reduce his father's debt.

10,296. This account has not been settled yet?-No, and this year's rent has not been debited to the account. We have not yet taken it out of the land ledger.

10,297. Has he been working for you?-No. He is an old man, and I think his son intends to take the farm, and to join him.

10,298. There is £4, 12s. 6d. of rent debited to him in 1870. To whom was that rent payable?-To Spence & Co. That is one of the farms included in their lease.

10,299. In the account of Thomas Peterson he is credited with a beach fee of £5, and he had a balance against him in 1869 in 6s. 101/2d. The balance in his favour at settling in 1871 was 1s. 41/2d., but in that year he had been fishing, not regularly, but occasionally, with certain boats?-Yes. He has been fishing regularly this year, but his account is not settled yet.

10,300. This account [showing] contains the total beach fees paid by you in 1869 and 1870, being £91, 12s. 8d. in 1869 and £115, 12s. 8d. in 1870?-Yes.

10,301. What are the entries on page 251?-That is a page which I am using as a cash-book in settling up with the men at the present settlement.

10,302. It shows the amount paid in cash to each man?-Yes.

10,303. The total is £162, 10s. 21/2d., which been paid to thirty-two men?-Yes.

10,304. That does not show the men whose balances were the other way?-No.

10,305. Would there be a larger number whose balances were the other way?-There would be great deal more money out, whether the number of men were larger or not.

10,306. Have you any dealings in hosiery at your shop?-We do very little in that way.

10,307. When you do deal with a woman for hosiery, do you open an account in her name?-Sometimes. Of course if she gets worsted from our shop we have to debit her with it, and see that she returns it.

10,308. Does she generally take out goods for the amount of her knitting?-Sometimes.

10 309. Have you a special book for these accounts?-No, not now.

10,310. Did you use to have a woman's book for them?-Yes; we had a small ledger when we commenced. It was not exactly a woman's book, but the hosiery accounts were generally kept in it.

10,311. Did it contain accounts for butter and eggs?-No; we did not keep accounts for them. Of course if a man comes in with 16 or 20 or 30 or 40 lbs. of butter, that goes to his credit if he wishes it to be settled for in that way.

10,312. You do not take any share in the management of the shop at Haroldswick?-I sometimes take a little.

10,313. I have been told to-day that Mrs. Spence's hosiery purchases are settled for with goods got in the shop there?-Yes.

10,314. Are Mrs. Spence's purchases of hosiery and worsted made by her on account of the firm?-No. She generally sells for herself what hosiery she buys.

10,315. Then, when the hosiery is paid for by means of goods supplied from the shop at Haroldswick, how does that enter the books of the firm?-She is just debited with the amount paid to so and so.

10,316. Are these goods debited to her at cost price?-No, at retail price.

10,317. And the firm has no connection with the purchase or sale of that hosiery?-No.

10,318. Where do you get your supplies of tea?-We get them from different places.

10,319. Do you get any from R. & C. Robertson, Lerwick?-No, I don't think we have got 20 lbs. of tea from them since we commenced business in 1868. We get our tea from Aberdeen, Glasgow, and London.

Baltasound, Unst, January 19, 1872, WILLIAM WILLIAMSON, examined.

10,320. You are a fisherman at Snarravoe, and hold a bit of land on Lord Zetland's property?-Yes.

10,321. To whom do you pay your rent?-To Mr. Mouat, the commissioner for Mr. Hay, and Mr. Hay is the commissioner for the Earl.

10,322. Does Mr. Mouat enter the rent in your account?-Yes.

10,323. Do you fish for Spence & Co?-Yes. I have fished for them since they became a company, and before that I fished for Hay & Co.

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10,324. Are you quite at liberty to fish for any person you please?-I suppose I am.

10,325. And to deal at any shop you please?-Yes.

10,326. Do you generally deal in Spence & Co.'s shop?-Yes, because I find I am as well served there as I would be at any other place. 10.327. Snarravoe is in the south of the island, and you go to the shop at Uyeasound?-Yes.

10,328. Is that the nearest shop to you?-There are some small shops nearer, but I find that I am as well served at that shop as I would be at any other shop I could go to. I have very little dealings in any other shop.

10,329. Do you keep a pass-book?-I had a passbook at one time, but it was not kept regularly, and I don't have one now. I found that the keeping of it made very little difference.

10,330. Were you ever employed in fishing at a fixed price for the whole fish taken during the season?-Yes; but we were generally paid it little more than the fixed price.

10,331. When were you engaged in that way?-About a year or two years ago by Spence & Co. We engaged at 7s., and we were paid it few pence more-I think 3d. more.

10,332. Did you ask for that?-No; they gave it freely, because the fish turned out a little better than they expected at the time when we made the engagement for the fishing.

10,333. If they had turned out a little worse, would the men have taken less for their fish?-No doubt they would have looked for their bargain; but it would have been just in them to have taken it little less in that case, as well as to get a little more when the price was high.

10,334. Do you think the men in this district would be content to have a bargain of that sort as a rule?-I don't know; because sometimes the markets go up, and the men may get a little more for their fish if the price is settled at the end of the season.

10,335. Therefore you think it is better to have the price fixed at the end of the season, when you see how the markets have turned out?-Sometimes it would be.

10,336. But if the markets were to fall towards the end of the year, might the fisherman not gain something if he had engaged at a fixed price?-He would; and that was the kind of engagements we had in the herring fishing in Hay & Co.'s time.

10,337. Have you gone to the herring fishing?-Yes, but we were always paid a little more than we agreed for. We were paid 10s. or 11s., or more, per cran.

10,338. Were you always successful at it?-Only sometimes. That fishing has been a failure for the last few years.

10,339. But you had no arrangement there except to get so much per cran for all the herrings you took?-That was all.

10,340. Were you running an account in the shop while the fishing was going on?-Yes.

10,341. Don't you think you would be better off to have your money paid down once a month or so, as the fish are delivered, and be able to pay for your purchases as

you get them?-I don't know. I suppose the goods are all the same price, whether I pay for them when I get them or not.

10,342. Don't you think you would be able to buy your goods cheaper if you could pay for them at the time?-I don't know.

Baltasound, Unst, January 19, 1872, PETER SMITH, examined.

10,343. Are you a fisherman at Westing?-I was formerly a fisherman, but it is about twenty years ago since I gave it up. I am now curing fish for Messrs. Spence & Co. at Westing.

10,344. Do you cure by contract?-Yes. I get 10s. per ton of dry fish for my trouble.

10,345. Do you employ a number of beach boys and men in the curing?-Yes; about eight. They get fees varying from 30s. up to above

10,346. Do you keep a book in which you enter the payments you make to them?-No. I do not keep any book except a pass-book, in which I enter the fish that are delivered to me.

10,347. Are the wages of these boys paid by you?-Not wholly by me, but I pay them in part.

10,348. But you are their employer, and are liable to them for their wages?-Yes.

10,349. Do they take part of their wages in goods from the shop?-When they want them in that way, they get a line for their money to the shop.

10,350. Do you give them a line when they want goods?-Yes. I give them a line stating the amount that Mr. Sandison is to give them, either in goods or in money.

10,351. Is that entered against you in the books at Uyea Sound?- Yes.

10,352. Before paying them their wages, do you ascertain how much has been taken out by them in that way?-No.

10,353. Then how is the balance of their wages settled? Is it paid directly by the company?-It is paid by the company. I state in my line what fee I give them; and what they may give them over and above that I cannot tell. I am not responsible for that.

10,354. The line you give to the company does not state so much money, 5s. or 10s., that is to be allowed to them in goods or in cash, at a particular time, but it simply states the fee that you have agreed to give them at the end of the year?-It states the balance they have not actually got from me. If they want a certain amount at any time, I give them a line; or if they ask the money from me, then I give it to them, and they get a line to Mr. Sandison for the balance.

10,355. Do you sometimes give them money yourself?-Yes; when they ask for money they get it.

10,356. But more commonly they get a line to Mr. Sandison for goods?-More commonly for the greater share of it.

10,357. How many lines do they get in the course of a year? Is it one or more?-Generally one at the end of the season, when the fish have been dried.

10,358. Then how do they get their goods in the course of the season?-I cannot tell as to that, for I don't know.

10,359. But how does Mr. Sandison know how far to give them credit in the course of the season, before he gets the line from you, which you say you give him at the end?-Mr. Sandison no doubt knows what the amount of a beach fee will be; but I cannot say as to that. I am not responsible for any excess he may give them.

10,360. Then all you do with regard to these out-takes at the shop is to give the boy a line at the end of the season, telling Mr. Sandison what the agreed-on fee was?-Yes, and what balance I have not already paid him.

10,361. And in that line you make no mention of what he has got at the shop, because you don't know?-No.

10,362. In that way of working, is there not a risk of the boy asking more at the end of the season than is really due to him, and of your overpaying him?-Mr. Sandison might overpay him, but I could not.

10,363. Why?-Because I fix the fee, and I know what I have given him, and then I only give a line to Mr. Sandison to pay the balance.

10,364. But he might have got the whole amount of his fee in out-takes from Mr. Sandison, before you gave him payment in cash at the end of the season?-He might; but I am generally well acquainted with the boys, and have confidence in them that they will not run an account of that kind.

10,365. Suppose a boy were to come to you in July, and asked for 5s. in cash, would you be likely to give it to him?-Yes, I would give it.

10,366. Might it not happen that at that very time he had run up an account in the shop for £2 or £3?-If he did so, I would expect Mr. Sandison to make me acquainted with it.

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10,367. Did Mr. Sandison ever give you intimation that a particular boy was in debt to such an amount?-No.

10,368. So that these boys can get a cash advance from you, and credit at the shop at Uyea Sound at the same time?-Yes, if they choose. That might be done for a certain time, but I don't think it could go on very long without being known.

10,369. I suppose it is not very likely that you would give him much money?-He could get it all in money if he asked for it when the work is done, but not before.

10,370. But you would not pay him the money until you had ascertained the amount of his account at the shop?-I never asked that.

10,371. Is your work done about September?-Yes.

10,372. Suppose in September a boy were to come and ask you for the whole of his fee in money, would you pay it down to him?-I have done that.

10,373. Did he tell you that he had no account at the shop?-Yes; and that proved to be the case.

10,374. Has that happened often?-Not often. It has happened once with regard to the whole, and oftener with regard to a part.

10,375. Have you an account at Uyea Sound for supplies to yourself?-Yes.

10,376. The contract price of your curing is entered in that account against your supplies?-Yes; and I am paid the balance in cash.

10,377. And out of that balance you have to pay any balances that are due to the beach boys?-Yes.

10,378. How much money will you require to get at the end of the season, in order to settle with your beach boys?-Generally the money which the beach boys get from me is paid to them during the season.

10,379. When do you settle at the shop?-In December or January. I have not settled yet for last year.

10,380. Therefore you have not settled with the beach boys?-All the beach boys are all settled with in November.

10,381. How much money did you require last November in order to settle with them?-It is Mr. Sandison who settles with them at the end of the season, and I don't know how much money they had to get.

10,382. Do you generally have the same beach boys for some years in succession?-Yes. I have had some for six years, and some for shorter periods.

10,383. What proportion of your payment for curing do you get in money? Do you get most of it at the end of the season?- Sometimes. In some years we have to buy a good deal of meal and other things; but in a year such as the present, when we have had a good crop, I get the most of it in money. Besides, I can get money any time when I ask for it. I have never been refused it within the last twenty years.

Baltasound, Unst, January 19, 1872, JAMES HARPER, examined.

10,384. You are a fisherman to Messrs. Spence & Co. at Haroldswick?-Yes. I fish at Norwick, but the books are at Haroldswick.

10,385. Have you a bit of land from Spence & Co?-Yes.

10,386. You pay your rent to them, and deal with them at their shop at Haroldswick?-Yes, I get all my goods there.

10,387. Do you deal anywhere else?-No.

10,388. Why?-For want of money.

10,389. How do you want money?-Because I don't have it.

10,390. Have you had bad seasons?-I never was in debt before I came to Spence. & Co.

10,391. How did you get into debt with them?-From bad seasons in the first place, and from overpriced goods. Meal is over-priced, for one thing. My father has dealt twelve years with ready money; and I have seen the advantage he has got by it, and what I have lost.

10,392. Who is your father?-William Harper: he is a fisherman too; he has been master of a boat for about forty years to Mr. Spence.

10,393. How do you know that the meal is over-priced which you get from Messrs. Spence's shop?-The first meal I got from Spence & Co. was one boll, when I began to fish for them four years ago. My father got one half of the sack, and I got the other: I was charged 27s., and he was charged 24s. 6d.

10,394. Why was that?-I had nothing to give Spence & Co., but my father had ready money. That was in the spring before I commenced to fish.

10,395. You did not settle for the meal until the end of the year?- No.

10,396. Consequently they were long in getting their money from you?-Yes.

10,397. Was it not quite fair that they should get little more for lying out of their money all that time?-Yes; but 2s. 6d. was too much to charge for interest. That was only on meal, but I could make more profit on groceries and soft goods too.

10,398. Have you anything more to say about the meal?-That is the only thing I can recollect about it.

10,399. Have you bought your meal in the same way ever since?- Yes, until last year, when I had as much as could supply myself.

10,400. How many bolls had you to buy in the course of the year?-From 4 to 6.

10,401. Do you think you lost 2s. 6d. a boll on each of these?-I have no doubt I did, for want of ready money.

10,402. What have you to say about the other things?-That was somewhat further back, but at any rate I have been out of pocket with Spence & Co. ever since commenced with them. I was a skipper where I was before, and got a skipper's fee; but the fee which I got from Spence & Co. is not so much as I got formerly. I fished for John Johnston for 11 years. For the first two years I was only a young fellow, and was to be paid according to my fishing. After that, I got promise of £4 of skipper's fee, and when he saw I was getting on so well he always gave me £5 afterwards. Then I was forced-at least I believed I was forced, although I know now that I was not-to go to Spence & Co. from John Johnston, because he got his warning and could not keep me, but had to sell his boats or boat.

10,403. When was that?-In 1867 or 1868. He had two boats, and he sold the one I was fishing in.

10,404. How were you forced to leave him?-Because Spence & Co. got a tack from Mr walker, and I and all the north parish understood that I had to leave my employer and go to them.

10,405. Were you not told that you were quite at liberty to fish either to Spence & Co. or to any other person?-I was never told that until I heard Mr. Sandison say it. I don't think it was told in the north of the island; at least I was not told about it.

10,406. Were you ever told that you had to fish for Spence & Co?-That was rather hinted at.

10,407. Who hinted it?-Mr. Mouat. I was rather hot-tempered, and so was he, and when we were both hot he gave me a hint about that.

10,408. Was that in 1868?-I think so.

10,409. I suppose you conveyed the hint to a good number of others?-Yes. I sat down and wrote a letter to Mr. Walker, telling him what had been said; and I got an answer from him, saying I was to work according to the rules I had in my lease, and that no one could interfere.

10,410. Is there anything more you have to say?-There is nothing particular; but I may say that there are a good many skippers here, and a good many poor men, who will never be asked to come forward, and will never get the chance.

10,411. They may come forward if they like?-They don't care about coming forward, and there are some of them whose stories are far worse than mine.

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Baltasound, Unst, January 19, 1872, CHARLES GRAY, examined.

10,412. You are a mason at Balliasta?-Yes.

10,413. Have you been working lately in the chromate of iron quarries?-Not for the last few years. I think it is six years since I was there.

10,414. How were the wages paid at these quarries when you were working at them?-Mr. Mouat was superintending then.

10,415. When did he cease to superintend?-I think it is only about a year back, or two years.

10,416. Was there a change in the company then?-Yes. There was a new company formed then, and new people to work the quarries.

10,417. Who was working the quarries when you were employed there?-There were different agents during the time I was there; but Mr. Mouat was superintendent.

10,418. You don't know who the company were?-I think the company were just the proprietors.

10,419. Were your wages paid to you in cash?-Yes; we got them in cash from the cashier, the late Mr. Charles Mouat,-not the present Mr. Mouat.

10,420. Where were they paid to you?-Sometimes at his house, and sometimes at the vestry, which was a public place.

10,421. But always in cash?-Yes, always in cash, since there was a cashier appointed.

10,422. Did you not sometimes get lines?-No; I never got lines. I cannot say for others, but I never got one.

10,423. Did you never see a line?-Not to my recollection.

10,424. Did you ever hear of lines being given?-I did hear about that, but I could not vouch for it being true.

10,425. What did you hear about it?-That some parties had got lines for part of their wages.

10,426. What were they to do with the lines?-I don't know.

10,427. What did you understand they were to do with them?-I understood the line was to be paid at the place where it was sent to.

10,428. Was that at the shop?-Yes.

10,429. And to be paid in goods?-I did not know that.

10,430. Did you not know whether there was any practice of that sort?-No, I did not know about it myself.

10,431. Have you heard that there was?-Yes; but it is a long time back.

10,432. I understood you had been employed there lately?-No.

10,433. Who is paymaster there now?-Mr. Gardner. I think the men are paid at his house.

10,434. The company have no shop?-No.

10,435. And Mr. Gardner has no connection with any shop?- None whatever.

Baltasound, Unst, January 19, 1872, GILBERT WILLIAMSON, examined.

10,436. Did you receive a citation some days ago to attend here?- There was a citation handed to me not bearing my name.

10,437. It bore the name of Peter Williamson, storekeeper, Haroldswick?-Yes.

10,438. Is there any person named Williamson who is a storekeeper at Haroldswick except yourself?-No.

10,439. Did you not know that that citation was intended for you?-I could not certify that it was.

10,440. Had you any doubt that it was?-I had some doubt.

10,441. How could you possibly have any doubt when there is no other person of that name there who is a storekeeper?-Because my name in the register is Gilbert, not Peter.

10,442. Did you think that was a sufficient excuse for not attending this Court?-Yes.

10,443. Did you receive a citation to-day?-From a boy.

10,444. From a messenger from me?-Yes.

10,445. Did he tell you he had been sent from here?-He said he got it from Mr. White.

10,446. In reply to that, you wrote saying that you did not think that was intended for you either?-No.

10,447. Or that you received it too late, and that you did not know whether you were bound to come?-Yes. I took witnesses to see what time it was when I got it.

10,448. Are you the principal storekeeper to Spence & Co. at Haroldswick?-Yes.

10,449. Have you anything to do with the purchases of hosiery which are made at that shop?-We don't deal in it.

10,450. At the shop you do not; but Mrs. John Spence, who is not able to attend here to-day, has some dealings in hosiery?-We never see her buy hosiery in the shop, to my knowledge.

10,451. Do you not know that she buys hosiery in her house?-I hear that she buys hosiery, but I never saw her do so.

10,452. Have you ever received lines from her directing you to supply goods to parties from whom she has bought hosiery?-I have received lines from her to supply value for so much, but not stating that it was for hosiery. It might have been for anything.

10,453. Have you any of these lines?-No, I have none.

10,454. In what form are they drawn?-Suppose it was to Ursula Johnston, the line would be, Pay to Ursula Johnston the value of 2s., and it is signed J. Spence.

10,455. Do you always honour these lines by supplying the party named in them with goods up to the value of the sum named in the line?-Yes, with whatever they ask for.

10,456. Do you receive many of them?-Sometimes we receive a few, but not very many; at least I do not consider it very many.

10,457. What would you consider very many?-100 in a week; I would consider that very many.

10,458. How many is it that you do receive?-I never counted them.

10,459. Would there be twenty in a week?-Sometimes not one half of that, sometimes more, and some weeks none at all.

10,460. Is that according as the business is brisk, or the reverse?- So far as I know, it is. I am under the conviction that for a month I have had no advances to pay at all.

10,461. Is there any other way in which parties who sell hosiery to Mrs. Spence, or who you have reason to believe sell hosiery to her, are paid out of the shop?-I don't quite understand the question.

10,462. Have you any other transactions with Mrs. Spence?- None with her.

10,463. Do you know whether any other parties who sell hosiery to Mrs. Spence have accounts at the shop-I could not certify as to that.

10,464. Have you got any of these lines?-I have none of them on my person.

10,465. Have you any of them in the shop?-Yes.

10,466. Were they left there by parties to whom you had supplied goods?-Yes.

10,467. Did you read the citation which was sent to you?-Yes.

10,468. Did you see that you were required to bring with you specimens of lines given or received by any party connected with the company in the purchase of hosiery?-I saw that written there.

10,469. Why did you not bring them?-Because they were not mine to bring.

10,470. Whose were they?-Spence & Co.'s.

10,471. Why did you not ask leave to bring them?-Because the members of the firm were all here.

10,472. Could you not have brought them with you, and asked leave of the partners of the firm here to produce them?-That never occurred to my mind.

10,473. Do you make the same answer with regard to the citation to produce all papers, books, and accounts, [Page 254] showing the nature of the company's dealings with fishermen or knitters?- Yes.

10,474. You could not bring these here without asking leave of the members of the firm to produce them-I could not ask their leave, because they were here.

10,475. Could you not have brought the books here and asked permission then to produce them?-I did not think it was right for me to remove them from the office until I had asked leave to do so. There is one of the books here, the fisherman's ledger, which has been spoken to by Mr. Mouat.

10,476. How was that book brought here?-Mr. Mouat sent for it.

10,477. Why did you come here yourself without asking leave of the members of the firm?-Because I was summoned.

10,478. Was it not just as necessary for you to ask leave to come yourself as to ask leave to bring the books?-No, I came when I was sent for.

10,479. Let me recommend you in future to pay more attention to a legal citation when it is served upon you, or you will get into trouble. I cannot allow you any expenses for attending here, in consequence of the way in which you have behaved.

*The following specimen of the lines issued by Mrs. Spence was afterwards produced:-'Haroldswick, 13th Novr. 1871 Messrs. Spence & Co. pay Andrina Boyne the sum of one shilling. 1s. J. SPENCE' The line is crossed, 'Entd. G.W.'

Baltasound, Unst, January 19, 1872, ALEXANDER SANDISON (recalled), examined.

10,480. Are you agent at Uyea Sound for the Shipwrecked Mariners' Fund?-I was agent, but there are no members now.

10,481. Have the men ceased to subscribe?-Yes. I think I have not sent up a return for five or six years, not having anything to send.

10,482. Are any of the members of your firm agents in Unst for the Society?-No.

10,483. Do you know anything of a man named Jamieson who was formerly at Uyea Sound, and who was warned out by your firm?- That would be Thomas Jamieson who was at Uyea Sound until three years ago.

10,484. Was he removed from that place shortly after you took your lease?-About a year after.

10,485. He had a shop there?-Yes.

10,486. Is there any stipulation in the lease about shops on the property?-It is so long since I read it that I don't recollect.

10,487. Have you any letters on that subject from Mr. Walker or from Major Cameron?-I cannot tax my memory with receiving any.

10,488. Is it understood that no shops should be opened upon the estate?-That was the understanding.

10,489. And was it in following out that understanding that Jamieson was removed?-Yes.

10,490. Do you know whether a man named John Johnston was removed at Haroldswick in carrying out the same understanding?-I believe he was. He has now a shop near the same place where he was before, on an adjacent estate.

10,491. He removed to Lord Zetland's land?-Yes.

10,492. Is that the case in which the shop was removed bodily across the road?-I believe so, but I cannot speak to that from seeing it.

10,493. I fancy the understanding you mention proceeds upon the footing that you ought, in consideration of the rent you pay to Major Cameron, to have the monopoly of the shop business in the island, so far as he can give it to you?-Yes; that no doubt was the intention.

10,494. And that would be one of the considerations upon which you pay so high a rent?-Yes. I may state that one strong reason why we took the lease at first was, that we believed it was depopulation and sheep farming that was meant, by what we saw taking place in other places; and we also were under the impression that the small tenants could not exist without the scattalds, or if they should have them to pay for;

and while, of course, I do not say there was not some selfish design, because we expected to make a living, we also hoped to see them make a living, and we were to try to improve them if we could. However it ends, that was really our design, and the number of small shops which existed stood in the way of that. I have known cases where I would not give luxuries to a man who was in debt, but he would come and get fishing lines from me, which he said he needed, and he has sold them to other shops in order to supply himself with superfluities. I know one case in which I gave a woman a quarter of a boll of meal, when I would not give her either tea or sugar, and she went and disposed of a portion of the meal to a neighbour in order to get tea, she being then irrecoverably in debt.

10,495. Then you mean to imply that this monopoly was secured partly to save yourselves from debts of that sort, and partly to keep the people in their holdings?-Yes; to keep them from being turned out of the island.

10,496. But also partly to prevent them, when they got into your debt, from spending their money and their produce elsewhere?- Exactly. I may mention that North Yell we had only three fishing boats this year, and when I settled with them I paid them over £200 in cash. We had no store there, except a small one at the beach or fishing station, to supply them with the necessaries they wanted and the fishing materials. We don't cure by contract there, but by beach men, splitters, and boys; and I paid every one in cash as being the simplest and shortest way.

10,497. Is there any arrangement between your firm and any other firm or fish-curer, by which you take over the debts of men who change their service?-There is no arrangement. We try to do that if we can, but we find it rather uphill work.

10,498. Have you ever succeeded in getting a merchant who has engaged a man that formerly fished to you, and who left in your debt, to pay up the man's debt?-Since the company was formed we have had no experience of that, and it would be scarcely possible for me tax my memory just now with cases which had occurred before; but I have no doubt there were cases, in which I tried to do that, whether I succeeded or not.

10,499 If a man left Mr. Mouat, for instance, and was in his debt and came to you, would you pay up the debt which he was due to Mr. Mouat?-Yes; but it was only a peradventure; there was no standing rule on the matter, that I am aware of.

Baltasound, Unst, January 19, 1872, THOMAS ANDERSON, examined.

10,500. You are a fisherman at Haroldswick, and you have fished for some years for Spence & Co?-Yes.

10,501. You have been running accounts with them: during that period, and taking your supplies from them?-Yes; the whole or nearly the whole of my supplies.

10,502. Before that where did you get your supplies?-I had more money to work upon then, and I got my supplies from John Johnston and from Mr. Mouat at Baltasound, and sometimes from Mr. Spence.

10 503 Did you pay them generally in cash?-Yes.

10,504. How does it happen that you have not been paying in cash during the last four years?-Because have a small family, and I have more responsibility.

10,505. Your expenses have been increased, and have not the cash in hand?-Yes.

10,506. Was it for that reason that you were obliged to run accounts at the shop at Haroldswick?-Yes.

10,507. Do you think you are as well served in respect of quality and price of goods as you were formerly?-I get the same quality of goods, but not at the same price. If I were taking cloth or cotton, or any other [Page 255] kind of goods, and paying cash for them, I would get them 2s. 6d. per £ cheaper than if I were having them marked down for a twelvemonth.

10,508. Have you tried both ways within the last two years, to any great extent?-I have not paid cash to any great extent within that time.

10,509. But you have bought perhaps £2 or £3 worth in the course of the year?-Yes.

10,510. Did you get a discount for cash?-Yes.

10,511. Can you tell me the cash price and the credit price for meal?-Not exactly; but I know that if I was buying a boll of meal for cash, I would get it 1s. 6d. or 2s. cheaper than if I was having it marked down for a twelvemonth. I have also got cotton 1/2d. or 1d. per yard cheaper when paying for it in cash than if it had been marked down. If I had cash to the amount of £20 in the course of a year, I am certain I could save £2 upon it at any rate.

10,512. If you were paid for your fish every month as they were delivered, do you think you would be able to pay in cash, and so pay off your debt?-I think I would, if there were good fishing years.

10,513. If you had a bad season again, where would you get your supplies?-We are not to be looking for bad seasons always.

10,514. Nor for good seasons always?-No.

10,515. You have had several good seasons now, have you not?- Yes.

10,516. How do you sell your winter and spring fish?-We can get cash or goods for them.

10,517. How much will you make for your winter and spring fish in an ordinary year: may it be £4 or £5?-Sometimes it may be as much as that, but not generally.

10,518. Could you not make more if you had larger boats?-We have never tried that; but I don't think it.

Baltasound, Unst, January 19, 1872, JAMES HAY, examined.

10,519. You are a merchant in Haroldswick?-I was. I sold groceries and some soft goods; but I have given up that business now and turned farmer.

10,520. Were you engaged in fish-curing?-A little. I had one boat at one time but not now.

10,521. With what class of people was your business chiefly done?-Just with the neighbours,-tenants and fishermen.

10,522. Was it a ready-money business generally?-It was that system I liked. I ran some accounts; but I rather liked ready money.

10,523. You were not extensively engaged in fishcuring, and in that way you had no security for long accounts?-No.

10,524. Was that the only reason why you preferred a ready-money system?-I preferred it, thinking the system would work better once it had had a fair beginning.

10,525. Did you find that it worked fairly well with you?-I had not enough experience of it to say that, because the other system had been so long in existence that it was difficult to make an exception.

10,526. You mean that the credit system has prevailed so long, and is so deeply rooted in Shetland, that it was difficult to carry on business in any other way-Yes.

10,527. Have you formed any conclusions on that subject which you are now prepared to state?-My own conviction is, that if a ready-money system was once in operation, and had a fair start, it would work better than the present system.

10,528. But how are you prepared to give it a start?-I think that if the men were paid their money monthly or fortnightly, that would make them feel their independence better. Perhaps they would husband their means better; and if there were those among them who were careless about it, they would be taught a lesson when the year was done, which would serve as a warning for them in time to come. There might, however, be a difficulty in beginning such a system. I can remember, and others present will remember it too, two or three years of bad fishing, followed by a year of blight, when the man who wrought most anxiously and was honest-hearted could not meet the demands upon him. At such times, if there was no qualification or mitigation of the ready-money system, perhaps the men might get into difficulty.

10,529. But do you not think that with that system of fortnightly payments a respectable fisherman and tenant would get credit just as easily as he gets it now?-I believe he would.

10,530. From a greater number of persons, and on more advantageous terms?-I think he would.

10,531. Do you think there would be more places open to respectable fishermen, at which they could get credit if it was absolutely required in a bad season?-Yes.

10,532. I suppose in a bad season now no merchant would give credit to the fishermen unless he was secure of their services for next season?-I should suppose so.

10,533. Therefore the fishermen, as a rule, are shut up to the one shop?-Yes, it comes to that.

10,534. Where fishermen were paid monthly or fortnightly, and you knew a man to be a respectable man, would you, as a merchant, have any hesitation in a bad season in giving him a reasonable amount of credit for the support of his family?-I would have no hesitation in doing that at all, and I have done it.

10,535. Even under the old system?-Yes, under the old system. I have done so, from a charitable feeling for the men in their necessities.

10,536. Did you think that in such cases you were likely to be repaid?-In some cases I saw the urgency of the case, and I gave the man supplies from sympathy, whether I might be paid for them or not.

10,537. But do you think you would be more likely to obtain repayment if there was an open system, and the whole country was not monopolized by one or two great firms?-I think so; because if the men were paid their money I think they would feel more independent, and they would, so to say, eke out that money in the most economical way, and thus be better off.

10,538. Probably, also, they would not be encouraged to run so very much into debt with any merchant as they are at present?- I think they would not. If the system were altered, and cash payments introduced, I think the men would feel that they could not ask credit to such a large extent as they do now, except in cases of urgent necessity.

10,539. So that, if these very large accounts were not incurred, the ordinary merchants, fairly competing, would not run so much risk?-I think so.

10,540. Do you think the large credits given by the fish-curing firms tend to increase the risk to the small merchant in the country who does not engage in fishcuring?-It may do so. I know that after the years of bad fishing, followed by a year of blight which I have mentioned, or emergencies like that, the merchants, such as Spence & Co., and others, had to lay out a great deal of money from the urgent necessity of the case, and to supply families who were almost starving.

10,541. Has it been your experience that it is difficult for small merchants to begin business and to succeed in Shetland?-I cannot say that I have had much experience of that.

10,542. Are you aware that some merchants have lately been obliged to give up their business in Unst, in consequence of the monopoly which had been obtained by a single firm?-I have heard that stated; but I had a lease of the place where I lived, and that did not apply to me.

10,543. You gave up business voluntarily?-Yes. I found a farm necessary for my family, and I thought I would be better with it.

10,544. Do you think there has been a great improvement in the condition of the people within the last twenty or thirty years?-I think there has been.

10,545. Have they got more money in their hands?-I believe the present year has been a very good one [Page 256] for them; but there were some seasons, a few years back, when it was different. A great deal depends upon the returns from the fishing.

10,546. But, apart from the variableness of seasons-because the seasons have always been variable-and taking the state of Shetland now and twenty or thirty years ago, do you think there has been an improvement for the better?-I cannot say there has been much in the way of improvement. Perhaps there has been some.

10,547. Are the people more independent now than they were then?-I cannot say as to that.

10,548. Do you think they are as dependent now as ever?-I cannot say; the thing is so much fluctuating, because it depends upon a year or two of failure in fishing and blight, and that brings them down.

10,549. About twenty or thirty years ago were not many of the people bound to fish for their landlords or tacksmen?-I think they were. That was the case twenty years ago fully more than it is now.

10,550. At that time they were actually bound by the conditions under which they held their land?-I understand so.

10,551. But now they are told they are free?-Yes. They know now that they are at liberty to fish to whom they please; but I don't know if that was the general notion before.

10,552. That is, that they will not be turned out of their land if they comply with certain regulations on certain estate

10,553. But suppose Mr. Johnston were to start half a dozen boats, would he get them manned?-I don't know whether he would get so many as that, but he might.

10,554. Suppose you were to start half a dozen boats, could you get them manned?-I cannot say.

10,555. Has anybody tried that within the last half dozen years?-I am not aware that it has been tried. I believe the men understood that they were bound to fish for the merchants who supplied them with boats, and who gave them supplies for their families, and they did not like to make a change. But now, when the men know that they have their liberty so far, I suppose they would be inclined to go to the merchant who offered them the highest price for their fish.

Baltasound, Unst, January 19, 1872, JOHN SPENCE, examined.

10,556. You are the senior partner of the firm of Spence & Co?-I am.

10,557. You have heard the evidence which has been given by Mr. Sandison and Mr. Mouat?-Yes.

10,558. Is there anything which you wish to explain further, or to add to their evidence?-Perhaps I may be allowed to read a letter which I wrote some time ago, and which shows my views and the company's views with regard to the state of

matters. It is a letter which was written by me to the other members of the company, and it is dated 29th January 1870. It is as follows:

'Dear Sirs,-I have often spoken to you about adopting a cash system in all our dealings with the people but none of you seemed to think it would do. I of course would not press it in the meantime, though I am always more convinced that it would be a much better system than the present, and we should be gainers by it to a very great extent, if wrought as it should be; and, depend upon it, it will have to come in, and that not long to the time, whether we will or not; so I would advise you to consider over it more than you have done. It will take no more capital, but even less than the present system does.

'If after further consideration, you still think it would not do, could it not then be possible that the price of fish could be fixed at the commencement of the fishing? Be assured that we will be forced into this, whether we will or not; and certainly it would be the proper way. The price of everything else that we deal in is generally fixed or agreed upon when the transaction is made, and why not do so with fish? We do it with winter fish, and what is to hinder us to do it with the summer ones? In no other part of the world that we know of is there such a system as we have. Look at the herring-curers south: I believe herrings would never keep at such a high price were it not that the price is fixed at the first. If we were to do the same with our fish, I have not the least hesitation in saying that we should have them all away and into cash as fast as they could be dried, because we should never keep them on hand when we could get a safe price for them; and the fact that we had got a certain price before we could be safe, would prompt us the more to seek to obtain it, and buyers would come to terms more quickly; indeed, the moment we agreed with the fishermen, we could at same time almost enter into a contract with a buyer or buyers for all our catch. It is often seen what a disagreeable thing it is to keep a large parcel of fish hanging on in the face of a fluctuating market, the chance being oftener against us than in our favour; and fish, in particular, being such a perishing article, the risk is very often great. Many other things could be brought in in support of our fixing the price of green fish when the fishing begins. If you do not think we could begin to it alone, it could only be a trial to correspond with all the other curers, and see if they would not join with Hay & Co., Adie, Anderson, Pole & Hoseason, and any other you know of, and make the proposal. Have a meeting of all the curers, say at Voe, or wherever it might be thought best, and try the thing. I am fully persuaded that circumstances, and that not long to the time, will compel us to it, if not to the cash system.

'Notice around you even and see how things are tending, and see how opposition is creeping in-of course against us. The old system we keep is the cause of it, to a good extent at least. Mr. Sandison should correspond with some of the other curers; or could you not ask Mr. Adie to come to Unst? I think we often spoke of doing that before. I suppose he is friendly enough to us. I am almost sure he would join us in the movement, and Pole & Hoseason would do it, also Mr. Henderson. I trust you will give this matter your consideration, if it should come no further. Shetland is behind it long long way, and a new kind of political economy is needed for it; and why should we not make the trial?- When we formed into a company, everybody was made to

understand that there would be improvements in many things- which I hope there is-but we should go forward, and not stand still.'

The whole of us, as a company, were very anxious to adopt this system, but there were a great many difficulties that came in our way which we could scarcely control.

10,559. Were these difficulties raised on the part of the men?- Not exactly. The men were anxious for the change, but they were misled and influenced, and we could not get a fair start. With regard to the old system of what may be called truck, I have looked into my books about forty years ago, and I see that it was the habit of all the fishermen then to prefer putting their produce into the hands of the dealers, and leaving it there till the end of the year for settlement. That has been altered by various things. I object to the great number of small dealers, because I don't think they develop the resources of the island to such a degree as they might; but if a large firm or firms, with the tenants in their own hands, and who are possessed of capital were to set about doing that, the resources of the island could be far more easily developed.

10,560. Would a large firm of that kind, engaged in fish-curing, not make a fair profit, and carry on business in a satisfactory way, if it left the supply of shop goods, draperies, and provisions to other dealers? Is it impossible in Shetland to separate between the fish merchant's business and that of the drapery or provision dealer?-I think it is perfectly possible; and I think it would be the proper plan, that the fish-curing and dealing [Page 257] should be perfectly distinct; but then there would require to be special arrangements made for that purpose, in order to get it into working order for the benefit of all classes.

10,561. I suppose that at the summer stations, however, it is quite necessary that the fish-curer should keep a supply of provisions for his men?-Yes.

10,562. But when the men are in their own homes, would it not be quite possible for them to get their supplies from the ordinary shops supported by private enterprise throughout the country, without having recourse to the man who was employing them?- Of course it would; and if that system was honestly carried out the men would benefit by it, but if the trade was carried on by small shops, looking only to pounds, shillings, and pence, that would do the people injury.

10,563. In what way?-Because it would increase the number of small shops; and, as I say, these cannot develop the resources of the island as they ought to do. They would only be drawing means from the people which they could not apply in a proper way. For instance, take the herring fishing: Messrs. Hay & Co. are the principal herring-curers, and no small dealer could carry on that business in the way they do. They are carrying it on just now at a very heavy sacrifice, year after year, in the expectation that the herring will come; but if Messrs. Hay & Co. were to give up the business, and it were to fall into the hands of small dealers, there would be nobody to receive herrings when they did come.

10,564. Is not the herring fishing carried on only from Lerwick?- It is sometimes carried on from here, when there are herrings on the coast.

10,565. But could not the fish-merchant make his arrangements so as to derive a sufficient profit from the sale of his fish without depending upon the profit that is derived from the sale of his goods?-It would be perfectly possible to make an arrangement of that kind; but the case of Shetland requires special arrangements in consequence of its peculiar position. If the fish could be sent off fresh to the market whenever the men came on shore with them, and we had no more outlays upon them, then there might be a profit; but, as things are now, we must lay in heavy stocks for the incoming year.

10,566. Heavy stocks of what?-Of fishing materials and salt. Spence & Co. must now order perhaps 150 tons of salt; and if we did not make arrangements with the men, that would become a loss.

10,567. But you could make arrangements with the men as early as you please, although the men were not dealing with your shop?- We expect the preference, because I hold, and can prove in various ways, that the arrangement made with Mr. Walker was with a good intention. I think co-operation in the Shetland Islands is far more beneficial than competition. Competition between two poor merchants does not do any good, but an immense deal of injury; and I think that, before it cash system is entered into, a full and thorough investigation should be made by the proprietors and the principal dealers, in order to see how it can be made to work best for the general good. The change can be made without injury to any one, but it must be done a certain way, and that can only be found out by such a special investigation as I have referred to. Shetland is far behind, and I think the adoption of a cash system would be the means of increasing the number of dealers who would draw away the people's means and be a bar against developing the resources of the country in a proper way. Some of these dealers would be rubbed; the people would be poorer; and no dealer even with capital would be inclined to go into the field in such circumstances. If they did, it would need to be under some sort of protective system; or if a dealer with capital came forward he would have every chance of obtaining a monopoly, and he might do great mischief.

10,568. Is there not a monopoly at present?-No, we don't want it. We only ask the fishermen to give us the preference, and any man who has cash to get can get it at any time he likes.

10,569. I don't doubt that; but is there any competition in the shop trade in Unst just now?-There is no monopoly.

10,570. Is there not a monopoly on Major Cameron's estate at least?-It is not a monopoly. I say that what we aimed at was rather co-operation; and if we got a fair chance there was a prospect of the fishermen, if they had money, participating along with us.

10,571. Is there any further statement you wish to make?-I should like the men, if possible, to find boats for themselves. It is not our fault that they don't own them.

10,572. Do you encourage them to buy their boats?-Yes.

10,573. Have you not succeeded in that?-Since we have formed the company, we have had a great deal to contend with, and I have been in ill health, and so many enemies have been created against us, that with bad years we have found it difficult to go on; but I hold, and can prove in various ways, that the arrangement we made was for the good of the tenants.

10,574. But in what way has the opposition excited against you prevented the men from buying their boats?-Any change in Shetland, whether for good or ill, is sure to create opposition.

10,575. Has the opposition you have met with been among the fishermen?-No. If they are taken in hand properly, and made to understand matters, I have always found them quite reasonable, but they have been badly influenced.

10,576. Has that influence been exercised by rival merchants?-It has arisen perhaps from want of knowledge, and from parties not knowing how such business should be carried on. It would be our aim to allow the men to receive cash for what they earn, but there are many difficulties which can only be rectified by proprietors and us and the tenants together.

10,577. Do you mean that the proprietor should place the fishermen altogether into your hands?-If the motive is good, I think that should be the case. At least we should prefer to have the tenants to transact with us.

10,578. But would it not be far better that the tenants should stand on their own legs, and not be so entirely dependent on the large companies?-It would be better; but that should be gone into with great caution.

10,579. Don't you think the fishermen are less independent now, when there is only one large firm in Unst to whom they can deliver their fish, than they were when there were three competing merchants?-They may be in the meantime, but that always tends to harm.

10,580. What tends to harm?-Too much competition, because the country is too poor for it. It would be far better for the proprietors to take the men into their own hands to fish than to allow them to go to number of small dealers.*

*Mr. Spence afterwards wrote the following letter to the Commissioner:- 'Lest it may have been thought that in giving my evidence before you I had approved of a monopoly, I now beg to send a written explanation of what I meant, as I afterwards said to you I would 'There is nothing in a dealing way I so much dislike as a monopoly. What I wished to be understood was, that no number of small dealers, however willing, working as they do, can improve Shetland as it would really need; but that in order to develop the resources of the country thoroughly, it must be done by quite different means. There is no doubt but that a change is needed, but it should be merged into with caution, or it will do harm to some class. Shetland appears to be so far behind, that the people must serve an apprenticeship, as it were, to any change for their good. It occurred to me that some good might be done by all the dealers in Unst amalgamating, and by their united capitals and efforts carrying on business and the fishings on at sort of co-operative system; but it did not seem to be in accordance

with a free-trade system, and was never tried, though, if properly conducted, I have no doubt it could have done some good. 'In reference to the cash system, you would see in the letter I read, and left with you, the views I have held. We have hitherto, for various reasons found some difficulty in adopting it fully, but we trust, ere long, to get it fairly introduced. One hindrance to us getting it fairly wrought, is owing to the way we are bound to the proprietors for the fishermen's rents. This also appears to those who do not know the nature of the business, to be a monopoly; because while we are thus bound we are compelled to a certain extent, to restrict such men who, from extravagant habits or other causes, cannot preserve their rents. It cannot be supposed that to such [Page 258] men we can hand over money-perhaps to be made a bad use of; and then, when rent time comes, have nothing to get from them, and often not having got any rent for boats and fishing materials. This is one thing in which there is great room for improvement in Shetland. 'As a member of a firm having the principal business in this land, I would beg to state that our mode of dealing seems to be greatly misunderstood by many; and it would be most desirable that an impartial investigation into the books and transactions of every other dealer in the island should be made, when, I have no doubt, matters would look something different. With regard to the fishermen, they are not bound to fish, and they were never told so. I, for one, have urged upon them to improve their farms, so as to enable them to be independent of fishing, which I consider to be a most dangerous employment in such small boats. We pay them cash whenever they want it and have it to get. We do not monopolize our dealings. Could a proper investigation be made in other shops, I can venture to say that, on the whole, we sell cheaper than any other. Besides the other dealers in the island, the steamer runs twice a week in summer, and once in winter, from Lerwick to here; and if the people wish to avail themselves of it, they can get their supplies as easily from there as here. A public roup, advertised all over Shetland, is held once every year for the sale of cattle and ponies, where there is perfect freedom to buy and sell. There are many things we do for the people which are not generally known. I shall only mention one thing, to show what we have to combat with. 1868 and 1869 the fishings were small, and the crops so blighted, that seed and meal had to be imported, and given out on credit to a great many, or else they would have starved. The effects of these two years tell against both the men and us for some time, but such occur occasionally; and it is dealers, standing as we do, that feel it most. We hold, as you are aware, a lease of a large portion of this island, and we are bound to see certain improvements carried out, which, being new here, raises a hostile spirit against us by those who are not inclined to see our island made better. We try to introduce any other improvements that can be thought of, feeling assured that if we can get them accomplished, the people will be in much better circumstances than they are. While we are pressing these improvements, small dealers draw away the means of the people, preventing both them and us from getting so fast on as we would otherwise do; and while we are using all reasonable means to try to get the indolent not to sell what, of their own farm produce, they really need themselves, as is sometimes done, the report is often got up that we want to monopolize the business of the island, when there is nothing of the kind ever thought of by us.'

Baltasound, Unst, January 19, 1872, PETER NICHOLSON, examined.

10,581. You are a fisherman and tenant farmer at Haroldswick?-I am.

10,582. You hold land under Mr. Edmonstone of Buness?-Yes.

10,583. And you fish for Spence & Co?-I fished for Mr. Spence, but not for Spence & Co. I have not fished any for three years.

10,584. Do you devote yourself entirely to your farm now?-Yes.

10,585. Why did you give up the fishing?-Because I did not like the sea.

10,586. Were you quite content to fish for Spence & Co. if you had continued at the fishing?-I would have been.

10,587. Where do you get your supplies now?-From Spence & Co. and other places, just where I can make the best bargain.

10,588. Do you work at anything besides your own farm?-Yes, I do day's work back and forward.

10,589. Do you get your day's pay at the time?-Yes; if I ask it, I get it.

10,590. But you do not always ask it?-Sometimes I do not; sometimes it will be two or three days, or a week, or a month, before I get it.

10,591. Who do you work for mostly?-For Mr. Spence.

10,592. Do you keep an account at his shop?-Not much. If I want anything I pay the money for it.

10,593. But you have an account sometimes?-No, I never keep one.

10,594. Is there not an account in your name in his books?-Not very much. I never keep a note of that myself.

10,595. But there is something in his books against you?-Yes.

10,596. And sometimes your day's pay is entered in that book too?-No. I get money for my day's wages when I have asked for it, or if I am working for some time it is entered in the book until I get it, but all the money I have to get is given to me when I ask for it.

10,597. Then you just keep an account the same as fisherman does?-Much the same.

10,598. Only what is put down in your case is a day's pay or a month's pay for work, instead of the price of fish?-Yes.

10,599. Have you been going on in that way for three years?-Yes.

10,600. Do you settle every year?-Yes, once a year, in January or February. I have not settled for last year yet.

10,601. Was there a balance against you at last settlement?-Yes, about 10s. or 12s.

10,602. Therefore you had no money to get?-I had money to get. It is now that I have about 10s. or 12s. against me; but if I wanted goods, and paid the money, I always got them.

10,603. Do you get some money now and then?-Yes, I always get it when I ask it.

10,604. But you don't like to ask for much when you have an account running against you?-No. I just get as much as keeps me.

10,605. Where do you sell the stock off your farm?-I sell them to any man who gives me most for them, but it is few or none that I sell on this island. There are parties who come into the island to buy them, and usually sell to them.

10,606. Why don't you get your day's work paid to you at the time?-I would get it if I asked it.

10,607. Why don't you ask it?-Perhaps because I am not needing it at the time.

10,608. Where do you get your supplies from besides Spence & Co.'s?-At Mr. Johnston's.

10,609. Do you pay the same price there?-Much about it.

10,610. Is there any difference?-Not very much.

10,611. Is there any difference at all?-I don't know; I have never seen much difference.

10,612. Is the price of meal the same at the two places?-I always bought meal in bolls, and paid so much per boll. I bought some from a farmer at Haroldswick, not from Spence & Co., and I paid him 21s. per boll for meal off his own farm. I have not bought any from Mr. Spence this year.

10,613. Is there no oatmeal in your account?-No.

10,614. Was there a balance in your favour at the last settlement after you stopped fishing?-Yes; I think I had £12 to get. I think my shop account for goods that year was about £4.

10,615. Who is the farmer from whom you got that meal?-Mr. Hugh Inkster. I gave him money for it when I bought it.

10,616. Where did you get the 21s?-I got it from some ponies that I sold, and from some money that I had saved before I left the fishing.

10,617. Did you sell these ponies to Spence & Co.?-I sold one to William Manson, and another to Charleson, who comes from Yell Sound.

10,618. Do you sometimes buy your goods elsewhere than from Spence & Co. and Johnston?-I sometimes get them from Lerwick.

10,619. Do you get them cheaper there?-Very little. I never send for them unless I am going there myself.

10,620. Did you ever fish for any one else than Spence & Co?- Yes; I fished for the late Mr. Samuel D. Hunter, Lerwick.

10,621. Were you paid by him in the same way every year?-Yes.

10,622. You never were obliged to fish for any particular person?-No.

10,623. And you never were obliged to take your goods from any particular shop?-No.

Baltasound, Unst, January 19, 1872, DAVID EDMONSTONE, examined.

10,624. What are you?-I am factor on the Buness estate, and a farmer.

10,625. I understand you have had a great deal of experience of business in Shetland?-Yes. I was nine years in business as a fish-merchant, and I have lived in Shetland all my life, with the exception of a year or two.

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10,626. Were you the writer of a letter which was quoted in the evidence given in Edinburgh, Q. 44,511-Yes.

10,627. Do you still retain the same opinions as are stated in that letter?-I do.

10,628. Do you think it is a correct statement at this time, that the people do not receive in money one-fiftieth of their earnings?-In the way I look at it, I think that statement is correct, because I hold that when there is only a settlement once a year, in January or February, and the man gets his balance then, that is not a cash payment in any sense of the word.

10,629. You mean that it is only a cash payment so far as the balance is handed over to him?-Yes; and that he has not got cash for fish or any other produce during the season.

10,630. You don't doubt, I suppose, that a fisherman can get an advance of cash during the season if he wants it?-No, I don't doubt that.

10,631. Do you think that advances or payments of that nature in the course of the fishing season ought to be made compulsory, or to be required by law?-Yes, I have long thought so.

10,632. Do you think that would be practicable in the fishing business?-I think so most decidedly, so far as my experience goes.

10,633. Have you any opinion to give with regard to the system of combining land-holding with fishing in Shetland?-I think they must be combined to a certain extent. I have thought a good deal and I don't think a man can earn a sufficient livelihood by fishing alone, because the weather in the winter time is so stormy that they cannot often get out for many days, and sometimes for weeks.

10,634. Would that difficulty not be removed to some extent if larger boats were introduced, and the men were trained to the use of them?-I think not. From the strong currents which run round the shore, I think larger boats are not adapted to the coast. In fact, I believe a good Shetland boat, well manned, would go through what a much larger one would not go through.

10,635. Do you know that to be the opinion of the best seamen in Shetland?-I believe it is. For instance, the large boats used in the neighbourhood of Lerwick for herrings have often been lost when the common six-oared boats came safely. These large boats are more unwieldy and more difficult to handle than the small ones.

10,636. At what period are the rents on the Buness estate paid?- At Martinmas.

10,637. Is it necessary to fix the payment at that period, from a consideration of the settling time between the merchants and the fishermen?-Yes. It has always been the habit to pay the rents at Martinmas.

10,638. It is universal in Shetland, I understand, to pay the rents only once a year?-Yes; the tenants have their holdings from Martinmas to Martinmas.

10,639. Can you explain why that arrangement has been made? Is it from anything connected with the fishing?-I think so. The men would then have an opportunity of completing their fishing and getting all the sales made which they have to make, and then they are supposed to be in funds. I suppose that is the reason, but I don't know.

10,640. Is it usual for the proprietor to enter into any arrangement with the fish-curer for the payment of his rents?-We do that on the Buness estate, and I should like to explain the reason of it. The tenants have all been told that they are at perfect liberty to fish to whom they like; but after they have engaged to fish to a certain curer, we wish them to bring a guarantee from their curer or curers for the rent of the year on which they have entered, and during which they are to fish. One reason for that-in fact the only reason-is, that the men do not get money payments, and therefore a great number of them will be induced to run a heavy account at the shop, and when we collect the rents at Martinmas we would have nothing to get. If the men were paid in money, daily or weekly or fortnightly, then we would make no such arrangement, but would collect the rents directly from the men.

10,641. Then, in fact, that arrangement is made in order to limit the credit which the fish-merchant gives to his men?-Yes; and to secure that we are to get part of that money.

10,642. But it has the effect of limiting their credit?-Yes.

10,643. Are you aware whether that is a usual arrangement in Shetland?-I don't know. The Buness estate was in tack or lease to tacksmen for twelve or fourteen years before 1868, first to Mr. Hunter of Lerwick, and then to myself. Under that arrangement we paid a certain amount for the estate, and made the best we could of it.

10,644. You took the risk of the tenants paying their rents?-Yes, the entire risk.

10,645. Did Mr. Hunter and you employ most of the men as fishermen?-Yes, most of them.

10,646. Do you think the effect of the present system is to stunt trade, and keep other shops down except those of the fish-curers?-I think so.

10,647. Did you hear the evidence which Mr. Spence gave on that subject?-Yes.

10,648. Do you agree with his opinion that it would be better to have one large monopolist than a number of small shops?-No, I don't agree with that.

10,649. You think that competition would be wholesome?-I think so, if there were cash payments.

10,650. Have you any reasons, within your own experience, for maintaining that opinion with regard to Shetland?-I think, from my own experience, that the people would be very much more independent if they had cash in their hands. They are not entrusted with cash just now, as a general rule. I know they get their balances paid; but they are not entrusted with cash, and therefore they are not independent. They are like schoolboys; they lean upon other people, and I don't think that is a good system. When a bad year comes, they expect that the fish-curer has to advance them meal; and they will tell him that if he won't do it, they won't fish for him again. In that way he must do it; in fact they think he is bound to do it. They have no self-reliance or independence.

10,651. Could they get supplies in any other way if the curer did not advance them meal?-There are very few tenants who have not stock of their own-cattle and horses.

10,652. But these are liable to the landlord for their rent?-Yes; and they are liable to be sold for supplies to themselves.

10,653. Do you think that even in a bad year their stock might carry them through?-I think so, in most cases.

10,654. Is there any restriction on the Buness estate upon the opening of new shops?-None whatever.

10,655. Do you think it is possible for a shopkeeper to prosper in Shetland who is not engaged in the fishcuring business?-I think so.

10,656. Even under the present system?-Yes; because there is a good deal of money among the people, irrespective of the fishing. They have their produce, and they are not compelled to go with it all to the fishcurer. There are several shops in this island, the keepers of which, I believe, are doing very well.

10,657. Do you know anything as to the season at which these shops have the largest sale?-I do not.

10,658. Would it be a fair inference, from what you know of the state of things here, to say that the receipts of these shops are much larger in the spring, when the men have got a little cash at settlement, than they are at other periods of the year?-I daresay they are. I cannot speak of that from my own experience; but I believe that these shops advance a number of the fishermen who are fishing, perhaps, to Spence & Co. or others, and take the chance of getting payment when the men receive their money.

10,659. But that is a chance which comes to nothing, or falls altogether, if the men happen to have run up a large account at Spence & Co.'s shop?-Necessarily so.

10,660. So that these dealers run a considerable risk in giving credit at all?-Yes.

10,661. Do you think a large firm, which is engaged both in the shop business and in the fish-curing business, [Page 260] has a great hold over the fishermen, so as to secure their services for the fishing season?-That depends entirely upon the place and the circumstances. If the firm has control over the men, from having a lease of the lands on which they live, they must necessarily have a great influence over them.

10,662. But may such a control not be obtained merely by them having, a number of the men in debt?-I believe it may.

10,663. Are you aware of such control having been exercised by fish-merchants in Shetland?-I have heard about it, but it is not within my own knowledge. My own experience has been that indebted men and bound men are the most difficult men to deal with, and that a clear independent man is the man easiest to deal with in every way.

10,664. Is there any other general statement which you wish to make with regard to the state of Shetland?-I don't remember any. I would mention with regard to the Buness estate, that we have offered leases to a great number of the tenants, but they don't seem inclined to take them.

10,665. Are you acquainted with the rules which have been laid down on the neighbouring estate of Major Cameron?-Yes.

10,666. Do you know how far the tenants have been adopting them?-I believe they are working into them gradually.

10,667. The lease in that case is rather a short one, is it not?-I think it is too short for an agricultural lease, especially with the obligations they are under.

10,668. Do you mean with regard to peats and scattalds?-No; I mean especially the obligations they are under with regard to improvements.

10,669. There are obligations to make certain improvements, and to uphold and improve the houses?-I believe so.

10,670. Do you think these obligations are a reason why the rules and regulations have not been more generally complied with?-I don't know. Of course it is very difficult to get a people who have been accustomed to a particular system, and who are wedded to their old ideas, to change; but I think the people here are now beginning to see, after two or three years' trial, that it is to be for their own advantage, and that they will go on with it.

10,671. The leases which you offered on the Buness estate were, I suppose, intended to introduce a similar system of improvements?-Yes; but the tenants always seem to think that if they sign a lease for fourteen or nineteen years they are binding themselves. They would wish to be free to go any year they like, but to have the proprietor bound not to turn them off. That, in my experience, is the reason why leases are not popular as a general rule.

10,672. Can you give any information as to the ordinary diet of a Shetland fisherman and his family?-I believe they live very much better than the same class in England or in Scotland, or I should perhaps say more expensively.

10,673. What distinction do you draw between these two things?- They use a great deal of tea and biscuit and loaf, which the same class in Scotland don't use.

10,674. I thought that loaves were generally unattainable in some parts of Shetland?-They are not so in this island.

10,675. Have they not to be brought from Lerwick?-Yes, but they are brought in great quantities.

10,676. Is not oatmeal the staple article of food?-They use it to a great extent; but I don't think they use it in the form in which it ought to be used. I don't think that too much tea and very little bread is good for the working man.

10,677. In what form is the oatmeal mostly used?-I suppose it is used in bread, but I don't know exactly. I don't think, as it general rule, they use porridge, which is the most economical way of using oatmeal.

10,678. Is a large quantity of fish used for the diet of the fishermen?-I believe there is in summer time, and also when it can be got in winter.

10,679. Would you say that that is the principal article of diet along with the oatmeal?-I should say that fish and potatoes were the principal articles of diet.

10,680. Is butcher meat sometimes used by them?-I believe it is very seldom.

10,681. But with fish, potatoes, meal, bread, and biscuits, the population of the island are supplied to a sufficient extent?-Yes.

10,682. And they are more than amply supplied with tea?-I think so.

10,683. Has there been an improvement on the houses within your time?-I think there has. We tried to make the houses, when we were building new ones, better than the old ones were.

10,684. Are new houses upon the estates here generally built by the proprietor?-Always, except when sometimes a man takes a small bit of hill or scattald, and then he will make a small house for himself.

10,685. Is that often done?-Not often.

10,686. Is that the origin of many of the houses now existing?-In some parts of Shetland I think it is, but I don't think it is to a large extent in Unst.

10,687. In Unst the houses are more commonly built by the proprietors?-Yes; because there are not in Unst a great proportion of what are called offsets-places which have been taken in from the bill.

10,688. The island has been longer under cultivation?-I think so.

10,689. Then you cannot speak generally of the character of the house accommodation throughout Shetland?-I cannot.

10,690. Would you think that here it is rather better than in other places?-I think so. Unst houses are generally built 28 feet by 12, and about 7 feet high and they contain two rooms. They are built with stone and clay, harled with lime, and covered

with thatch and turf.

10,691. In Unst I suppose the houses now have generally chimneys?-Yes, mostly-one in each house.

10,692. Is it in the middle?-No, it is at one end and many of them have still an open fire at the kitchen end, sometimes in the middle, and sometimes at the gable; but we have built chimneys to some of the tenants in both ends.

10,693. Where there is an open fire, what is the exit for the smoke?-It goes through holes in the thatch left there for the purpose. These holes are left for air, and to allow the smoke to go out.

10,694. Was that the ordinary character of the Shetland houses until lately?-I think so.

10,695. There were no chimneys?-No.

10,696. Are the windows generally glazed now?-Yes; but in many of the old houses they had no windows.

10,697. Do some of these houses still exist in Unst?-I don't know any now, but there may be some for anything I know.

10,698. Are there any in other parts of Shetland?-I have seen them in more remote parts of Northmaven, but that may be a year or two ago.

10,699. You cannot say whether that is a common style of house in other parts of Shetland?-I cannot.

10,700. Have you any observations to make upon the printed evidence that was given in Edinburgh?-I think not.

Baltasound, Unst, January 19, 1872, Rev. WILLIAM SMITH, examined.

10,701. You have been for some time the clergyman of this parish?-For nearly three years.

10,702. During that time you have been a good deal among the people, and you are acquainted with the system that prevails of long payments of wages, and of running accounts?-I am acquainted with that from conversations with the men.

10,703. Have you formed any opinion as to the effect of that system on the character of the people in general?-[Page 261] I have. I think the present system has a very deteriorating effect upon the character of the people generally. I quite agree with what Mr. Edmonstone has said in that respect. There seems to be a great want of self-reliance, owing to the present system.

10,704. The men are in the habit of looking to the merchants to help them through bad season?-Yes, they are in the habit of looking to the merchants and others.

10,705. And I suppose they are not generally disappointed in that reliance?-Not so far as I am aware.

10,706. But you consider that that is not a wholesome thing?-I think it is not. I have had experience of the same class of people, living under a different system, and I have formed a decided opinion in favour of the cash system of payments as compared with the credit system which is carried on here.

10,707. Was your experience in that matter in Orkney?-Yes; among the same class of people.

10,708. Were the employments of the people of the same character there?-Their employments were similar, to a certain extent. Further, I find very often a want of ready cash among the people, and complaints are often made to me of a want of money for payment of school fees and other matters. I found, in speaking to one of the present proprietors, that his uncle had at one time from £500 to £600 of savings deposited in his hands by his tenantry, but now, so far as is known, there is little or nothing of that kind.

10,709. Do you think there is no saving?-I don't hear of it.

10,710. May it not be that the savings are deposited in another quarter?-It may be, unknown to me, and I have no doubt there is money in possession of many of the people, but of course they endeavour to keep that secret as far as possible; and I think there is a want of confidence between the tenantry and proprietors generally, owing to the present system.

10,711. How has the present system produced a want of confidence between the people and the proprietors?-The cause of that has been already explained in great measure by previous witnesses. There is, as has been already remarked, a monopoly here. There are small traders to whom their money would go, and they don't do what is proper, I think, to the firm who employs them. I have met them bringing goods from these small traders, which they were morally bound to have got from the larger merchants when their names were upon the books of these merchants. Hence there is an endeavour at concealment very often as to what they really have, and a want of proper faith.

10,712. Do you mean that a person who is indebted to one of the larger merchants is tempted to sell some of his stock to other people?-I don't say that he is tempted, but that such cases have often happened.

10,713. You mean that a man often sells his stock, or anything he has to sell, such as butter and eggs, to a small merchant, rather than to the large one to whom he is indebted?-Exactly.

10,714. Does he get money from the small merchant in that case?-I don't know that he does; but the impression is generally prevalent, that they may get goods of the same class from the smaller merchant at a lower price, and I think the present credit system does not enable the merchants who are in business here, to sell articles with the same profit as merchants do elsewhere. I find from my own experience that I can supply myself with the same goods at a less cost by bringing them from a considerable distance south, and by paying the expenses of the carriage, than I can buy them here. I think it would work better for all parties, both proprietors,

fish-curers, and tenants, if such a system of money payments as has been suggested could be introduced.

10,715. Can you state whether it is universally the case, that persons in Shetland in the rank of clergyman or small proprietor do obtain their supplies out of Shetland?-That is invariably the practice, so far as I am aware.

10,716. Is that in consequence of a difference in price and quality, or only in consequence of a difference in the price of the goods?- It is in consequence of a difference both in quality and price.

10,717. Do you speak as to that matter from your own experience?-I do.

10,718. Is there any other matter which you are prepared to speak about with reference to this inquiry?-There is one thing to which Mr. Edmonstone referred which I think is of some importance. I think that if proprietors were letting their holdings directly to the tenants, the tenants and proprietors coming into contact as they do elsewhere, and the proprietor evincing in that way a greater interest in his tenantry, the result might be a considerable benefit. For one thing, there might be an improved class of dwellings. I find a great want of proper arrangement in the dwellings here, and a proper division of the sexes, and to that I attribute in a great measure the amount of illegitimacy and immorality which prevails. I don't think the houses which are occupied by the common class of people here are equal to these occupied by people of the same rank of life in other parts of the country. I have seen several houses here which are at present without windows, unless a pane of glass let into the roof may be called such. At the same time, I think the people themselves might do a very great deal towards improving their dwellings, provided they were receiving weekly or monthly wages, as the case might be, in prosecuting the fishing, and if they were encouraged to exercise greater self-reliance.

10,719. Have you known cases in which parties have been led into debt greater than they could liquidate, by the present system of long settlements?-I have. I have come personally into contact with such cases.

10,720. Have the people consulted you in their difficulties?-They have; and I am aware personally of fishermen having contracted debts which their survivors could not possibly liquidate. In the case of men who have lost their lives by accident, I have known that the firm by whom these men were employed have lost considerably: that, I had reason to believe was in consequence of the present system; and it was almost beyond the power of the widows and children to liquidate the debt which had been contracted.

10,721. In such a case, is there no system of insurance existing, by which the Shipwrecked Mariners' Fund or some other society, comes to the aid of these widows and children?-I regret that there is not. I am aware that the men have been encouraged to contribute by the agents of the Shipwrecked Mariners' Society, but they have not availed themselves of it as I think they ought to have done.

10,722. Are there no agents for that Society in the island?-There are two or three of them, two at least. One is in the merchants' office and one is not; there may be

others.

10,723. But the men don't take advantage of that?-They do not, to the extent which they ought.

10,724. So that, in the case of a boat accident of that sort, resort must be had, if the widows are destitute, either to poor-law relief or to public subscriptions?-Exactly.

10,725 In another part of Shetland I have had some evidence given with regard to the appropriation of such subscriptions to pay debts due by the fishermen who were lost. Are you aware of any such cases having occurred in Unst?-I have been applied to in that way when I was in charge of funds, but I have refused to make use of the funds for that purpose, because I did not think that, conscientiously, it was my duty to appropriate them in that way.

10,726. You mean that you have been asked to apply funds so subscribed to liquidate a debt due to the fish-merchant?-I have.

10,727. But your opinion was that the subscribers had not intended the fund to be applied for such a purpose?-Certainly it was.

10,728. Is there any further statement you wish to make?-I should wish to remark that if a cash system were introduced, it would not only have a beneficial effect generally upon the community, but it would apply to [Page 262] all transactions between the merchants and the people generally, so that no negotiations between the merchants and people should take place unless in cash. I mean to say, that where widows are paid annuities, and where pensioners receive their quarterly or half-yearly allowances, these should be paid in cash. I don't attribute the fact that they are not paid in cash at present to any design upon the part of the merchants at all, but I think it is the result of a system which has been long continued here, and which I think is very much to be regretted.

10,729. Do you mean that any custom prevails according to which annuities of that kind are not paid in cash?-Such a custom does prevail.

10,730. What sort of annuities do you refer to?-I refer to annuities allowed to widows by Anderson's Trust, founded by the late Mr. Anderson, M.P., and I refer to allowances which are paid by the Inland Revenue to pensioners under the paymaster for the northern district of Inverness. I believe that such pensioners do receive payment of their pensions in goods. Of course that may be done by consent of the pensioners themselves. I don't say that it is done by design of the merchants, but I am aware that it does take place.

10,731. Who is the agent in these cases through whom the funds are payable?-The collecting supervisor of Excise at Lerwick.

10,732. Through what channel does he pay the annuities which you refer to in Unst?-Through the merchants, as a convenience to himself.

10,733. He remits the money to the merchants, and the annuities are taken out in goods?-Exactly.

10,734. Are they credited in the accounts which are run by the annuitants?-The annuities are very often taken out to nearly the full extent of what they have to receive before their money comes.

10,735. Are you in possession of that information from the annuitants themselves?-I am. I think it is part of the general system which prevails, to pay in that way. The people have gradually drifted into it, and seem to look upon it as something quite natural and reasonable. They have not been accustomed to anything else. I have also met in with cases of men receiving payment of days' wages by lines upon the shop, instead of receiving a payment in cash and attribute that to the very same thing.

10,736. In these cases where days' wages were paid in goods, were the men working for a farmer, or to the shopkeeper himself?-No, they were working for contractors upon buildings.

10,737. Is it the case that there is sometimes considerable difficulty in making such payments in cash in Shetland from the scarcity of silver money?-I have no doubt there is often some difficulty in that way but I am never at a loss for silver money if I have to make any payments to labourers or others, because I can get a cheque cashed in silver by any small merchant to the extent of £15 or £20 at almost any time. At least I have met with such cases. I have not applied to the larger merchants for cash on such occasions, but I have been offered silver to that extent by a small merchant.

10,738. Would there be any difficulty in getting change of a pound at a large merchant's shop?-Yes, I have met with such a difficulty.

10,739. Why?-From the want of silver.

10,740. Is that because they transact their business to such a large amount by barter?-Yes; I attribute the want of silver, to a large extent, to that.

10,741. Are you expressing that opinion from a single instance, or from a variety of cases?-From repeated instances happening within my own experience in which I have not been able to get change. I have not been able to get change at a large shop, but very frequently I have got it at the smaller shops. The general opinion is that a greater amount of the silver coin is to be found with these smaller merchants than at the larger shops, and in that opinion I quite concur.

10,742. Are you speaking now of what you know to be the general opinion, or of what you have found to be the case in your general experience?-I am speaking of what I know to be the case from my own experience.

10,743. Have you formed any opinion as to the effect of this system upon the truthfulness and uprightness of the Shetland character?-I have formed the opinion that it has a very bad effect indeed upon the straightforwardness and truthfulness of the character of the people in this part of Shetland, for of course I have, had no experience elsewhere. I have found among the younger portion of the population generally a desire or at least a tendency, not to be so straightforward as one would wish.

10,744. How does that arise from the system?-I think it arises from it in this way?-Very often a fisherman or his wife may be taking their produce to a small merchant, under the impression that they will get a better bargain there than from a larger merchant; and there is a general desire to conceal what their possessions may be. I have found by experience that I have been imposed upon in one or two instances with regard to that.

10,745. But do you think that has occurred in more instances than would have occurred in any other parish in Scotland?-I do think so. I think that one great evil of the present system arises from the people not feeling the value of what they purchase, because they get it on credit here, and are led to use what the same class of people do not use elsewhere. For instance, they use a great deal of tea and fine flour, and fancy biscuits and preserves, and other things of that kind. I think that has a very deleterious effect upon the people themselves, because it encourages prodigality, and the same earnings would go much further if laid out on different and more wholesome fare.

10,746. Do you think they take these things because they get them on credit?-They get them on credit; and my belief is, they do not feel it so much as if they were paying ready money for them.

10,747. You mean they do not feel it except once a year?-Yes; and I believe they would think more about it if they had to pay for them in ready cash.

10,748. Your knowledge with regard to the payment of annuities and pensions. I presume arises from the fact that you have in many cases to sign a certificate before the annuitant or pensioner is entitled to receive payment?-Yes.

10,749. You have to certify that the parties are living, and that you know them?-Yes.

10,750. Is there any other thing you wish to add?-Not that I remember just now.

Baltasound, Unst, January 19, 1872, ROBERT GRAY, examined.

10,751. Are you a fisherman here?-I am. I fish to Mr. Sandison at the station.

10,752. Where do you live?-I live at Snarravoe.

10,753. You have heard the evidence to-day, and you desire to come forward and make some statement yourself with regard to the advances of meal you have received from Messrs. Spence & Co?-Yes. I wish to say that if I had not been advanced by them in two bad years, I must have starved with my family, because, I did not have the means with which to buy supplies.

10,754. Were you in debt to Spence & Co. at the beginning of the two bad years?-Yes.

10,755. And you continued to fish for them?-Yes.

10,756. Have you got further into debt during late years, or have you cleared any of your debt off?-I have got a little out of debt, because I had some cattle to spare, and I had a bigger fishing; but at the time when I had nothing with which to support

my family they supported us and paid my rent too.

10,757. On whose property do you live?-On Major Cameron's property.

10,758. Then you paid your rent to him?-I paid my rent to him until Spence & Co. took me into their service.

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10,759. Who did you fish for formerly?-Captain Cameron kept the fishing when he was alive, and I fished for him, and at other times I just fished for the man that I got the best bargain from.

10,760. But at one time Captain Cameron held you bound to fish for himself?-Yes.

10,761. You now take your supplies from Spence & Co?-Yes; and I could not be better supplied than I have been by them.

10,762. You don't deal anywhere else?-No, except for any small thing which I require; and if I have a penny or so I go into any shop and buy.

10,763. Do you get any cash in the course of the year?-I get it when I ask for it.

10,764. How much have you asked for?-I never could ask for much because I was in debt, and I am in debt yet; but when I asked for a little, I got it at any time.

10,765. I suppose you have some money passing through your hands at times?-It is not very much. I went south some years ago and I had no money, and I wrote to those people to supply my family while was south, and they gave them what they required. 10,766. Is that all you wish to say?-Yes.

Baltasound, Unst, January 19, 1872, ALEXANDER SANDISON, recalled.

10,767. Do you wish to say anything further?-Yes. The reason why the big shops have no change is, that they are daily paying for produce and advances to their fishermen, and change is very much wanted. I have often had to issue small checks for want of change promising to pay them when I got the change.

10,768. Is there any other person here who wishes to give evidence or to make any statement? [No answer] Then I adjourn the sitting here until further notice.

<Adjourned>.

UYEASOUND: SATURDAY, JANUARY 20, 1872

CHARLES WILLIAMSON, examined.

10,769. You are a fisherman at Cullivoe in North Yell?-Yes.

10,770. How long have you lived there?-I have lived for four years at Gutcher.

10,771. Where were you before?-At Mid Yell.

10,772. Have you been a fisherman in Yell all your life?-No; I have been south at sea half the time, and at the whale fishing.

10,773. Do you do much in the winter fishing?-A good deal.

10,774. You do a good deal more at that than your neighbours?- Yes, a good deal.

10,775. How much will you make for a winter and spring fishing, before the regular haaf fishing begins?-Last winter I made about £12, and in the spring £6.

10,776. Have you made a good fishing of it this winter season, so far as it is gone?-Yes, very good.

10,777. Do you sell your fish as you land them?-No, I salt them as I land them.

10,778. Will you make as good a fishing of it this season as you did last season?-I hope I shall. I have every prospect of doing so.

10,779. You carry on that winter fishing with a small boat?-Yes, with a small four-oared boat which I work with my two boys.

10,780. You think you make a great deal more in the winter and spring than any of your neighbours?-Yes, I have always done that, because I devote my time to it exclusively.

10,781. In fact you are more industrious and courageous?-I think I have been that.

10,782. Do you think it would be possible for a man here to live by fishing all the year round?-I am living by it myself.

10,783. Have you not a piece of ground?-I have a small piece of ground, but it can do very little for me, because I am paying about £12 of rent and rates. I have to buy all my livelihood in the course of the year from my fishing.

10,784. You do not depend much upon your ground?-No.

10,785. Not so much as most of the tenants round about you?-I do not.

10,786. Is that because the rent you pay is higher than is paid by others?-I have a better house than others, and that makes the land higher.

10,787. Do you think that if you had large boats here, such as they have on the east coast, the fishing might be carried on all the winter?-Not the Faroe fishing, or the fishing which is carried on in the summer time. The deep-sea fishing could not be carried on in winter, because there is such a heavy current.

10,788. Do you think that even with the large boats, in which you have a shelter for two or three of the men, it would not be possible to carry on that fishing?-With the large boats we could hardly work the lines in the way we work them now.

10,789. Have you thought of trying that?-I have, and I am thinking of trying it now.

10,790. You are going to make an experiment about it this season?-Yes; I am thinking about trying it now with a large boat, such as are used along the Scotch coast. If I had a boat like theirs, I think I could fish all March and all April and May.

10,791. Do you know whether anything of that kind has been tried before in Shetland?-There has been no attempt made in a boat like that.

10,792. But you believe there may be a fair chance of doing a good business with it?-I should think there is.

10,793. Do you think you could not go out to the haaf with a boat like that in winter as you do in summer?-We would trust more to her if she were decked over.

10,794. Do you think you could manage to get out to the deep sea with such a boat as that in winter?-Yes, we could manage to get there; but the difficulty would be to manage the sailing in of our lines. The way we do just now is to haul them in.

10,795. You mean the difficulty is to take in your lines with the boat sailing?-Yes; the same as they do on the Scotch coast.

10,796. Your practice in Shetland is to haul in your lines while rowing, and never to haul them in while sailing?-Yes; we sometimes set them while sailing.

10,797. But you believe you could learn to haul them in while sailing also?-Yes.

10,798. Are the lines you use of the same kind and the same length as are used on the east coast?-The lines we use are 42 fathoms to the length of line, and we use hundred of these lines.

10,799. Is it long since you were at the whaling?-I think the last year I was there was 1864.

10,800. How were you engaged that year?-I was engaged in Mr. Tait's office, in Lerwick.

10,801. Did you get your outfit from him?-I got my advance; I did not need an outfit.

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10,802. Had you been there before?-Yes, often.

10,803. Had you an account with Mr. Tait that year?-Yes, I had several accounts.

10,804. Was that for your own supplies at home?-Yes; they required a little while I was away.

10,805. I suppose you always had an account with the agent who engaged you for the fishing?-Yes.

10,806. At that time I believe these accounts were generally settled in the agent's office and the amount of your account was deducted from the payment of your wages and the first payment of oil-money?-Yes.

10,807. And you settled the final payment of oil-money at any time that suited you when you were in Lerwick?-Yes.

10,808. Was the settlement of your account made when you landed from the ship?-Yes; if we chose to make it there and then, we could do so.

10,809. But it was very often later?-Yes, pretty often. I cannot say how much it was later. If I came into Lerwick, and the packet was ready to leave, so that I had not time to carry through a settlement then, I would go home, and then I would return in

about a fortnight or so, and have a settlement made.

10,810. How was the second payment of oil-money made to you? Was it in cash?-Yes, generally it was in cash.

10,811. Did you sometimes get it in goods?-If I wanted goods I could get them, but I was commonly paid in cash.

10,812. When you were to settle for your first payment, I suppose you generally had some small account standing?-Yes.

10,813. Where was it settled?-In the office.

10,814. Was the office beside the shop?-Yes.

10,815. Was it always with Mr. Tait that you engaged for the whale fishing?-No; I have been out for Mr. Leask too.

10,816. Did both of these gentlemen have their offices in the shop?-Yes.

10,817. When you went into the shop were you generally asked if you wanted anything?-Yes; commonly we were asked that.

10,818. Was that before the settlement or after it?-It was after we had done settling, and when we had money coming to us.

10,819. Had your money been paid to you before that?-No.

10,820. But when you found out the total that was due to you, you were asked whether you wanted any goods?-Yes.

10,821. And you would generally take something else?-I did not take very much myself. I always got the money.

10,822. When you went to settle for your final balance, were you also asked whether you wanted anything?-It was always when I came down again to go to Greenland, or to go south, that I got it.

10,823. At that time you would want some supplies to be sent home?-Yes.

10,824. And if you wanted anything of that kind, it would be set down against your next account?-No, it was set down against the second payment of oil-money, if we had so much coming to us.

10,825. What you have been describing was the ordinary practice during all the years you were at the whale fishing, both for Mr. Leask and Mr. Tait?-Yes, and for Messrs. Hay also.

10,826. Did you sometimes engage with Messrs. Hay?-Yes.

10,827. Do you think it would be better to have your fishing paid by monthly payments, according to the quantity delivered, and at a price fixed at the beginning of the season, rather than to have the long accounts you have now?-I don't know that, upon the whole, it would be any better for myself; and I can only speak for myself. Those whom I have been serving for the last three years have given me money whenever I wanted it.

10,828. But don't you think you would have the money more under your own command if you were paid monthly or fortnightly?-I could not say that I would have it more under my own command, because they give it to me whenever I ask for it.

10,829. I suppose the merchants are always very glad to get you to fish for them?-I suppose they are.

10,830. Are you not about the best fisherman in the islands?-I have heard that said since I started.

10,831 And I suppose you have generally a balance to get at the end of the year above the supplies you have got?-Yes, sometimes.

10,832. Who do you fish for?-Spence & Co.; I have done so for the last three years.

10,833. Do you get all your supplies at Uyea Sound?-Yes, except occasionally when I send down for anything to Lerwick.

10,834. Do you think you get any advantage in price or quality by sending to Lerwick for your goods?-I do not.

10,835. I suppose you get all money if you ask for it?-Yes. 10 836. And you don't require to take any supplies from Spence & Co. unless you wish?-No; I only take meal and oil-cloth, and the like of that.

10,837. But you might get all your pay in money if you wished, and be able to buy your goods anywhere else?-Yes, I could get every cent of my money if I wanted it.

10,838. Is it entirely of your own choice that you deal in the shop?-Entirely.

10,839. Where is it that boats are most commonly lost on the coast of Shetland? Is it at sea or in the sounds?-It is when we come in towards the land. We fish fifty or sixty miles dead off the land, and we will come in within ten or twelve miles of the land before we get into any danger. Then we come in upon the tides.

10,840. Therefore, if you were out at the haaf in your large boats, these boats might live through any storm?-Yes; a large boat could keep outside and not require to come in to involve herself in the tides, but when we have a small boat we are forced to come in.

10,841. A man cannot stay outside in these small boats?-No; the weather is always getting worse, and the sea getting higher and higher on them, and they must run for the laud.

10,842. But with a larger boat you might run out to sea in a storm?-Yes.

10,483. Do you do that sometimes with your small boats, and escape?-Yes.

10,484. You think that is often a better course to take than running for the land in a storm?-Yes; the summer breezes are not very long.

10,845. But do you do that in a winter storm?-In winter we do not go very far off the land in our small boats.

10,846. But in a winter storm with one of the large boats you are to try, you think you may run off to sea and be comparatively safe?- I think so.

<Adjourned>.

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LERWICK: MONDAY, JANUARY 22, 1872

WILLIAM ROBERTSON, examined.

10,847. You are cashier and principal clerk to Mr. Joseph Leask, merchant, shipowner, and agent in Lerwick?-I am.

10,848. You have been for nineteen years in his business, during which time you have been employed in shipping and discharging seamen, engaging and settling with fishermen, and employing and paying hundreds of labouring people?-I have.

10,849. You are also fully acquainted with the barter system as it prevails in Shetland?-I am.

10,850. I understand you desire to be examined with regard to the Report furnished to the Board of Trade in September 1870 by Mr. Hamilton, as well as on certain questions and answers in the Report of the Commission, of which you have given me a list?-I do.

10,851. Will you give me, in the first place, a general description of Mr. Leask's business? He is, I believe, a proprietor of land to some extent in Shetland?-Yes, and he is also a pretty large proprietor of house property in town.

10,852. What estates does he hold?-He has estates in West and South Yell, Ulsta and Coppister.

10,853. Has Ulsta been long in his possession?-I think about ten years, but I could not exactly say.

10,854. What is the extent of his estates in Yell?-There are about fifty tenants on the Yell property, and the annual value is upwards of £200.

10,855. I understand that in Yell Mr. Leask now carries on the fishing to a considerable extent?-He has only commenced in the past season to carry out the fishing in Yell on his own account.

10,856. Has he a station and shop there?-He has now. He commenced them at the beginning of this year at Ulsta. The shopkeeper is William Hughson.

10,857. How many boats were employed there last year?-Four.

10,858. Are the fishermen bound to fish for the proprietor?-They are not bound to fish. They requested Mr. Leask to employ them last year, and it was at their own request he did so.

10,859. Who was the fish-curer at that station previously?- William Jack Williamson, and James Johnston. Williamson lived at Ulsta, and Johnston at West Yell

Sound.

10,860. Was the request you have mentioned from the fishermen to Mr. Leask to employ them a written one?-No; it was verbal.

10,861. How was it conveyed to you?-By the people themselves.

10,862. By how many of them?-By about half dozen or thereby; I cannot state the number exactly.

10,863. Did they come to Lerwick for the purpose?-They always come to Lerwick in November to settle their rent accounts; and in November 1870 a few of them requested Mr. Leask to build boats for them, and they would fish to him rather than to Johnston and Williamson.

10,864. Had Williamson given up business at that time?-No.

10,865. Had he still a shop and curing station at Ulsta?-Yes.

10,866. In consequence of the request made to you by the men, what steps were taken to take over the business at Ulsta?-The business was not taken over at all. Mr. Leask simply built boats for three crews, and employed three masters to obtain crews at Ulsta and West Yell. One boat belonged to Ulsta, and the other two to West Yell.

10,867. Did Mr. Williamson hold premises from Mr. Leask on the Ulsta estate?-Yes.

10,868. He paid rent for them, but he had no lease?-No.

10,869. Did he receive notice that his tenure was at an end?-Yes; he received notice of that verbally two years or year and a half before he had to leave.

10,870. Had he received it before the verbal requisition was made by the fishermen to Mr. Leask that he should take them into his service?-I think so; but I could not be sure.

10,871. Was it in the contemplation of Mr. Leask to commence business there himself, at the time when he gave Williamson the first notice to leave?-I am not quite sure. I think he was not sure about it himself, whether he would commence business there on his own account, or let the premises to another party. The matter had not been fully considered; but I think Mr. Leask had it in contemplation to make some change, because the Yell people were not altogether satisfied with the state of matters at that time.

10,872. And the requisition made by the six fishermen had the effect of bringing him to a decision?-I suppose it had; at any rate it helped. The men were all of opinion that they would be better served by Mr. Leask, than by any person whom he might send there.

10,873. Were the fishermen under any obligation to fish for Williamson?-I don't think they were bound.

10,874. Was there any understanding when he took his premises, that the fishermen on that estate should fish for him?-No. Mr. Williamson was on the estate before Mr. Leask bought it; and after Mr. Leask bought it the men were at liberty to

go wherever they pleased, either to fish at home or to go to Greenland, or to go south, or anywhere they liked. They were not bound in any way.

10,875. But when they did go to the home fishing, were they at liberty to sell their fish to any one they chose?-The boats belonged to Williamson, and of course they would be bound to give him the fish.

10,876. But were they at liberty to go in the boats of any other fish-curer?-Yes; they were at perfect liberty to fish for whom they pleased, so far as the landlord was concerned.

10,877. Was there any written lease of the premises to Williamson at any time?-He never had any written lease, so far as I am aware.

10,878. If there had been a written lease at the time when Mr. Leask bought the property, you would have been aware of it?-I think so.

10,879. It would have come into your hands along with the other writings relative to the estate?-Yes.

10,880. Either before or after the application of the West Yell tenants to Mr. Leask, was any intimation made to the rest of the tenants on that estate, or to the whole of them, that he (Mr. Leask) was about to open a shop there himself, and to receive fish?-The men who made the representation to Mr. Leask were given to understand that he would build boats for them; and when they went home they spread the report that Mr. Leask intended to do that.

10,881. Was any written intimation made to the tenants to that effect?-None that I know of.

10,882. Or any verbal intimation other than you have now mentioned?-The masters of the boats were to go and engage their own crews. We appointed masters, and they went among the tenants to engage whom they could get.

10,883. What instructions were given to the masters?-They were engaged on the same terms as usual, and they were to be paid in the same way.

10,884. But what instructions were given to them about telling the tenants?-There were no special instructions given at all.

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10,885. Were they desired to inform the tenants that Mr. Leask was undertaking the fishing himself, and that he expected the tenants to engage in his boats' crews?-At that time Mr. Leask could get more men amongst his tenants than he could employ, and there was no need for any pressure. More men were anxious to go than he had boats for at that time.

10,886. Had you any correspondence with Mr. Williamson about him leaving Ulsta?-Yes, a very long correspondence, and rather an amusing one. He implored Mr. Leask to allow him to remain for another year, as his business was so extensive that he could not wind it up in so short a time.

10,887. What was Mr. Leask's objection to allow him to remain?-He required the premises as a dwellinghouse for the incoming man, William Hughson; and of course it would not do to have opposition.

10,888. But he had made no arrangements for that at the time when Williamson was requested to prepare for removal?-He had not.

10,889. Then when was the correspondence? Was it when Williamson first got the notice or afterwards?-It was not until long afterwards. I think Williamson was of opinion that Mr. Leask would not remove him, and he trusted to that until the very last. I think he had some idea of getting the new premises, notwithstanding what had passed.

10,890. Were new premises built?-Yes, they were built last year. They were begun in June and only completed in December 1871.

10,891. Was Williamson still carrying on the fishing in 1871 while these new premises were being built?-Yes. He was fishing and carrying on the business the same as before.

10,892. How many men had he fishing for him last year at Ulsta?-I think he had about the same number of boats that he had formerly.

10,893. And he still had the same premises?-He occupied the same premises all along. The premises which Mr. Leask is occupying now for business purposes are altogether new. Williamson continued to occupy the old premises until November 1871, when he had to leave.

10,894. Where did he manage to get fishermen when Mr. Leask had put on three new boats?-I think he got some from Mr. M'Queen's estate, and also some of Mr. Leask's own tenants.

10,895. Does Mr. Leask intend to put on a larger number of boats this year?-I think he intends to put on one or two more.

10,896. But the boats' crews that he employed last year had formerly been in the employment of Williamson and Johnston?- Yes.

10,897. Is Johnston still carrying on business?-Yes, he is carrying on business at Sound, in West Yell, where he has a small property.

10,898. Do you know how many boats he has?-I think he has two but I am not sure. Some of Mr. Leask's tenants fished for Johnston last year also.

10,899. Will Mr. Leask's tenants be allowed to fish for Johnston and Williamson in future?-I don't think they would do so if Mr. Leask would give them employment.

10,900. But will they be allowed to fish for any other than Mr. Leask?-I don't think Mr. Leask would force any one to fish for him.

10,901. The tenants have received no intimation to the contrary?- No.

10,902. And no hint?-No hint whatever. In fact, there were tenants applying in November last for new boats, and requesting Mr. Leask to build new boats for them,

because there are a good many men who would like to be employed by him, in preference to being employed by Johnston or any other body.

10,903. Do you know whether many of the men were in debt to Williamson when he left Ulsta?-I don't know.

10,904. Was that one of the reasons why Williamson was anxious not to quit in a hurry?-He alleged that reason; but I am of opinion that there were not many of them in debt.

10,905. Did he ask you to relieve him of any of these debts?- Never.

10,906. Do you suppose he has any chance of recovering any debts that may exist now?-Certainly he has. The men have all got effects of some kind or another, so that he may easily take them into court and recover what they are due him. They are all in very good circumstances; there are none of them who could not pay their debts.

10,907. Has Mr. Leask any property in Sandsting?-Yes; he has the property of Sand and Inner Sand. There are between 40 and 50 tenants upon it.

10,908. Are most of them engaged in the summer fishing?-A good many of them are. Some of them fish for Garriock & Co., and some for Mr. Leask, and I think some for Charles Nicholson.

10,909. Is that property in the south side of the parish?-Yes; it is near Reawick.

10,910. Has Mr. Leask any station in that district?-No.

10,911. Then where do they fish for him?-They go in some of his vessels to the Faroe fishing. He has no home-fishing station in Sandsting.

10,912. Are they at liberty to go to the home fishing or to the Faroe fishing for anybody they like?-Yes. They are under no obligation to fish for Mr. Leask. They can go where they like, and they have always done so.

10,913. Do they hold their land as yearly tenants?-Yes.

10,912. What other property has Mr. Leask?-South Whiteness, to the north-west of Scalloway, in the parish of Tingwall. I think there are about seventeen or eighteen tenants on that property. They fish principally for Mr. Leask in the Faroe fishing, and in the spring fishing, which occupies about a month or a little more.

10,915. Then they are not generally engaged in the home fishing?-No; they are generally engaged in the Faroe fishing.

10,916. How many of them may have gone to that fishing last year?-There may have been above a dozen.

10,917. These men, I presume, have accounts at Mr. Leask's shop at Lerwick?-Yes.

10,918. Is there any stipulation made with them that they shall man his Faroe smacks?-None. They are not bound at all. They may go where they please and engage themselves with whoever they please.

10,919. Has Mr. Leask any other properties in Shetland?-He has some small properties in other places-in Quarff, North Roe, and Aithsting. He has two tenants in Quarff, three in Aithsting, and one in North Roe. These tenants do not fish for Mr. Leask at all, and never have done so, or been asked to do so.

10,920. Then Mr. Leask's business consists in sending smacks to the Faroe fishing?-Yes.

10,921. And in sending boats to the summer fishing?-Now it does, but not formerly. It was only last year that he commenced the home fishing at Ulsta.

10,922. Has he commenced that business anywhere else?-No. Ulsta is the only summer-fishing station that he has.

10,923. Mr. Leask is also engaged in the whale fishing, both as an owner of ships and as an agent?-Yes.

10,924. I believe it is specially with regard to the agency business that you wish to make some statement?-Yes. I wish to make a statement with regard to Mr. Hamilton's Report to the Board of Trade in November 1870. Some of it is so utterly absurd that I should like to have it contradicted. He says, 'I ought to mention that the truck system, in an open or disguised form, prevails in Shetland to an extent which, I believe, is unknown in any other part of the United Kingdom.' Now, that I deny <in toto>; and I think I will be able to prove before I am done that it is not correct. 'And makes its depressing influence felt in all the ramifications of the industrial and social life of the natives.'

10,925. He says, 'Almost every fisherman in the islands is in debt to some shopkeeper; and not only is [Page 267] the head of the family in debt, but frequently his wife also, and other members of his family, down to children of twelve or fourteen years of age, for whom the shopkeeper opens separate accounts in his books.' Is that the case?-There may be some cases of that, but it is not general. I deny that almost every fisherman in the islands is in debt. Then he says, 'These fishermen, for the most part, also rent small farms of from three to four acres.' That also I deny Mr. Leask has about 120 tenants, and I think the average quantity of land they hold is about twelve acres of enclosed ground, besides common.

10,926. What is the amount of their rent?-The rent is something less than 10s. an acre, on the average. Some have as much as twenty-three acres, and in some cases they have about seven. The rental I have given is for the enclosed ground within the township; and in addition to that, the people have extensive commons.

10,927. On Mr. Leask's estates are the scattalds still left to the people without any payment?-Yes, except in Yell, where they have to pay 6d. per annum for every sheep. They also pay something for ponies, but nothing for cattle.

10,928. I omitted to ask whether Mr. Leask has the management of any properties except his own?-No.

10,929. He is not tacksman of any property, and he holds no property in lease?-No. I may mention that he has an assignation of the rents of a small property in Mid Yell,

in security for debt. The rents are paid regularly, and he has nothing to do with the tenants except to draw their rent at the term.

10,930. Then what you deny in that sentence of Mr. Hamilton's Report is merely his statement as to the extent of the holdings of the men?-Yes. I hold they are three or four times larger than he says.

10,931. In the same sentence he adds, 'And it is from them (that is, the fishermen) and from their sons that the crews of the whaling vessels are mainly drawn.' Is that the case?-I don't deny that at all. It is quite true.

10,932. Is it also true that there are no whaling vessels belonging to Lerwick-that they belong principally to Dundee, Peterhead, and Hull, and that the owners of these vessels engage large portions of their crews at Lerwick through agents?-Yes.

10,933. Is it also true that these agents get little direct profit from their agency?-They get 21/2 per cent. commission on the gross wages paid through them.

10,934. Do you consider that an adequate remuneration?-It is not nearly an adequate remuneration for the amount of trouble they have; but it has been the practice to pay that, and there is so much competition amongst the agents that it has brought it down. I believe it was formerly 5 per cent.

10,935. I believe there are only three or four agents in Lerwick, and that the commission is fixed by mutual agreement between them and the shipowners?-Yes. It has always been 21/2 per cent. within my recollection.

10,936. Is it the competition that prevents the commission from being raised to such a figure as would be a sufficient remuneration in itself?-Yes.

10,937. The agents are engaged in business as shopkeepers and outfitters?-Yes.

10,938. Then it is the case that they have little direct profit from their agency; and Mr. Hamilton goes on to say, 'Their chief profit arises from what they can make out of the earnings of the men.' Is that statement correct?-I think some of them make very little profit indeed from the men. They sell their goods as cheap, if not cheaper, than other shopkeepers do; they give credit to the men, and sometimes they lose a good deal of it through bad debts when there is a bad voyage.

10,939. Is a bad voyage in the whaling a thing of frequent occurrence?-It is very frequent, especially in the seal fishing.

10,940. Then Mr. Hamilton says, 'Many of the men engaged are utterly unable, without the assistance of the agents, to provide themselves with the clothing necessary for the voyage?'-That is often the case with young hands. They come here without any clothing, and require perhaps from £5 to £6 worth in order to fit them out for the Greenland voyage. The wages for young hands are about £1 a month, and 1s. per tun of oil. When they have no success, they are back in about a month and a half; that is only 30s. they have to get, and that is all the agent has for his advance.

10,941. You are speaking now of the sealing voyage?-Yes. It only occupies about five or six weeks with the steamers.

10,942. But when a man goes on a sealing voyage of that kind, is he taken for the whaling voyage afterwards?-Sometimes, but sometimes not.

10,943. Do many of them only go to the sealing voyage?-Yes. Last year the majority bargained for the sealing voyage only, and did not go on the whaling voyage. Some of them re-engaged again, but many of them did not.

10,944. But, as a rule, do one-half of them engage for a second voyage after the sealing voyage was over?-I should say they do.

10,945. And many of them, I suppose, engage for a whaling voyage, who have not been at the sealing voyage at the commencement of the season?-That is sometimes the case.

10,946. How many men have you engaged for the last four or five years for the sealing voyages?-I could not say exactly for the last four or five years, but last year we engaged 207 for the sealing voyage, and 80 for the whaling, or 287 altogether.

10,947. Is not that an unusual proportion between the sealing and whaling voyages?-Yes. In former years we used to engage more for the whaling, and fewer for the sealing; but last year the owners took it into their heads to engage the men only for the sealing, and discharge them at the end of that voyage; and then, when the vessels were going to the whaling, they re-engaged only such men as they wanted.

10,948. What was their reason for that?-I suppose they were trying to economize. I don't know whether they economized or not, but it must have been with that view they tried it.

10,949 Are the crews larger in the sealing voyages than in the whaling?-They are. I should say that ten men fewer per ship are required for the whaling than for the sealing

10,950. How many ships would these represent?-Seven for the sealing, and four for the whaling.

10,951. So that you had three ships fewer under your care for the whaling than for the sealing last year?-Yes.

10,952 How did that happen? Did the ships not go to the whaling?-The 'Esquimaux' did not call here for men last year. The 'Victor' did not go at all to the whaling, and the third one remained at the sealing the whole season.

10,953. Then, in one ship the men you engaged would be employed through the whole season for the sealing?-Yes. That vessel tried whaling for a short time but I suppose it did not succeed.

10,954. You say that when a young man goes to the sealing at first, he incurs a larger debt for outfit than the whole amount of his wages?-Very often he does.

10,955. So that the merchant who engages him is often a serious loser, having no security in the shape of wages?-He risks his goods on the success of the voyage, and when the voyage is unsuccessful, he comes out a very serious loser occasionally.

10,956. But the man remains in his debt and may pay it up in a subsequent year?-Very often he does not. When a man gets into debt, we generally lose him. He goes to some other agent, or he goes south.

10,957. Is he more likely to go to another agent when he is in debt?-Yes. We very seldom get a man back again who is in debt to us.

10,958. How does that affect Mr. Hamilton's statement?-He says, 'The agents are, of course, interested in getting employment for those who are in their debt.' Now we very seldom or never get them employed again when they once get into debt, and therefore it is our interest not to allow them to get into debt, if possible.

10,959. But you would be very glad to get employment for such a man if you could?-If we could get him employment we would be very glad; but they take [Page 268] very good care not to allow us to catch them. Of course, there are some of them who pay their debts, but that is the exception. I am now referring to the young hands-those who get into debt on their first voyage.

10,960. When a man of older standing gets into debt, is he more likely to pay up in a subsequent year?-Yes. A man whose family is settled here is more likely to pay up.

10,961. Of course, in his case, you are not only interested in getting employment for him, but he also is anxious to get employment through you?-Yes, it is a mutual accommodation; but there are very few of the old hands in debt. It is principally among the young men who make unsuccessful voyages that anything of that kind happens. Then we come to a very serious mistake which Mr. Hamilton makes. He says, 'Even those men who are able to pay for their own outfit, and who might be able to obtain it at a cheaper rate from some other shopkeepers, are practically debarred from doing so; for any man who carried his custom to any other shop than to that of the agent employing him, would run the risk of being a marked man, not only with that particular agent, but also with all the others, among whom the news of his contumacy would soon spread; and as there are more men than there are berths, he would probably never get any employment again.' Now, it is nonsense to say, that there are often more men than berths. We have often had to go and search for men, and ships have frequently had to go on their voyages short of men. That has often occurred within the last nineteen years to my knowledge. I have seen vessels lying here for day after day, when we were searching for hands and could not get them, and after all they had to leave short-handed.

10,962. Did that occur last year or the year before?-No; it has not occurred for it year or two, but five years ago it occurred in the case of the 'Jan Mayen.' The first year she was a steamer, which was five years ago, she had to go short-handed, because the men were so scarce.

10,963. Do you know of any other ships which have had to go to the fishing short-handed?-They have gone short-handed, although I could not just remember them. I know that in 1854 or 1855 a number of them were short-handed.

10,964. Was there any particular reason why that was the case in 1854 and 1855?-There were more ships than men. I believe the Russian war was the principal

cause of it.

10,965. Had a number of Shetland men gone into the navy at that time?-They had gone south, not perhaps into the navy; but there was it great demand for men in the merchant trade. For the last two or three years, also, the men have not been in excess. When the ships were done, the men were generally done too, so that they were about equally matched.

10,966. You refer to the statement in the Report: 'Any man who carried his custom to any other shop than to that of the agent employing him, would run the risk of being a marked man?'- Yes; I deny that most emphatically.

10,967. Is it the case that the men generally get what outfit they require at the shop of the merchant engaging them?-It is generally the case, but we engage plenty of men who go elsewhere to buy their goods. They are good men, and we are glad to get them back again. We never care a straw about whether they buy goods from us or not.

10,968. Are these men who have money of their own?-Yes. We give them their first month's advance in money, and they can go where they like.

10,969. What proportion of the men spend their month's advance elsewhere?-I don't think there is large proportion of them who do that. We generally find that we get on pretty well with the men, and that they prefer buying their goods from us. They tell us, but I don't know for the truth of it, that they get better value in our place than they get elsewhere.

10,970. Suppose a man gets his outfit from another agent, or from another shop, and comes back to you next year, is there any note kept of him having done so?-Never. There are several men who do that regularly, and we never quarrel them for it. They are good men and we don't like to lose sight of them for the sake of their custom. We always like to get hold a good man whether we get his custom or not and therefore we never quarrel with them on that account.

10,971. Suppose a man is in your debt at the beginning of the year, is he likely to go and get his supplies from another shop?-I could not say about that; but debt does not constitute any hold over him at all.

10,972. Do you know any case of a man in your debt at the beginning of the year having gone and got his supplies from another merchant?-I believe he would take part from us and part from others.

10,973. But do you know any case of that kind where the man went to another merchant for his supplies?-I could not point to any case.

10,974. Does any communication take place between different shipping agents with regard to the men who are in debt?-Not now. Formerly we used to hand our accounts from one to the other.

10,975. Did you exchange lists of the indebted men?-There were lists given for the other agents to try to recover the debts for us if possible.

10,976. Was that done with the view of obtaining payment from the agent by whom the men were engaged of a debt due to another merchant incurred in previous years?-Yes; but it was only done with the man's consent. Sometimes we recovered it, and sometimes not.

10,977. When you say that it was done with the man's consent, do you mean that at settling time the agent, who was aware that you were a creditor of the man, would arrange with him to hand over part of his wages to his former creditor?-Quite so, if the man was willing to do so.

10,978. The agent might advise him to do that, but not compel him?-He never could compel him. He would simply ask him if he chose to pay the claim; and if he chose not to pay it, there was no compulsion whatever.

10,979. Did you ever know of a man refusing to do that?-Very often.

10,980. In that case I presume that since the Merchant Shipping Act of 1854, there were no means compelling payment?-None; except, of course, that he could be taken to the Small Debt Court.

10,981. And there was no security, no lien on the men's wages?- None whatever. There never was that at any time. It was purely with his own consent if the money was used for paying another agent's account,

10,982. How long is it since these lists were interchanged between the agents in Lerwick?-It was previous to 1854. Perhaps there may have been some handed since then; one agent may have handed his accounts to another, in order to get recovery of them.

10,983. You say you have been nineteen years with Mr. Leask, and therefore these lists must have been interchanged within your time?-Yes; I was first employed in 1853.

10,984. Do you say that there have been no lists of that kind exchanged, and no information communicated with regard to the men's debts, since 1853 or 1854?-I don't remember any since 1854: there may have been, but I don't remember handing any lists or receiving any lists since that time.

10,985. Or receiving any information at all with regard to the debts of the men?-Not since the Merchant Shipping Act of 1854.

10,986. Why do you fix that date?-Because at that date it became compulsory to have the men shipped and discharged before the shipping master.

10,987. Has that always been done since 1854?-Not always. It was done I think, in 1854 and 1855, and it was not done again until 1867. In that year it commenced again, and the wages were all paid down in presence of the shipping master.

10,988. But if the Act was not observed with regard to the payment of wages in presence of the shipping master, how did it interfere with the passing of these lists?-The practice was given up.

10,989. At that time was it the practice for the men [Page 269] to receive payment of their wages at the agent's office?-Yes.

10,990. Was that done during all the period from 1854 down to 1867?-Yes, but not including 1867.

10,991. Can you say that, during that period you retained no portion of any man's wages for debt of another agent?-It is quite possible we may have done so, but I don't recollect.

10,992. I suppose your books will show whether any portion of a man's wages was so retained?-Yes.

10,993. Do you remember any case in which that was done?-I don't remember any particular case, but it is quite possible; in fact, it is even probable.

10,994. Do you think that some retentions of that kind took place every year?-I don't think so. Of course, if a man gave an order on Mr Leask to pay a debt or an account for him, he was bound to pay it if the man had funds in his hand. I have seen that done- that a seaman gave a special order in favour of another agent or another party.

10,995. Is that done frequently?-Not very often, but it is done sometimes.

10,996. Is it done by the man of his own accord?-Decidedly.

10,997. But probably at the request of the other agent?-I don't know about that. For instance, instead of getting money from the seaman, he might get an order on the agent, the same as he might get an order on the bank.

10,998. But the other agent who was the creditor of the seaman does not know necessarily that you have money belonging to the man in your hands as agent?-Not unless the man tells him.

10,999. Do you not still pass lists each year from one agent to another, stating the sums which are due to you by the men?-No.

11,000. I do not speak merely of seamen indebted to you; but do you not pass lists of all seamen whom you engage for the whaling?-Not at all. We have no occasion to do that, because it could serve no purpose whatever.

11,001. Why?-Because an agent who had a seaman in his books as a debtor would know at once whether that man was engaged by another agent in a particular year.

11,002. Is it the practice for one agent to be allowed to inspect the lists or books of another, in order to ascertain what seamen have been engaged?-I never did that or saw it done.

11,003. I suppose there are means of finding out in a small place like Lerwick what seamen in a particular year have been engaged?-We sometimes found it out in the Shipping Office. Whenever we wanted to see where a man was, we went there.

11,004. Can you state distinctly that in every case where such an order is presented for payment of a seaman's debt, it is presented without any previous

communication between the agents?-I suppose it always is, but I don't know. The one agent has no interest whatever in recovering debts for the other; he gets no

remuneration for it.

11,005. If that is the case, why does he not refuse to honour the order?-I would not dishonour the order if the man had funds in our hands.

11,006. But the Merchant Shipping Act requires that all wages shall be paid, not in that way, not in obedience to any order, but in the presence of the shipping master in hard cash?-That is true; but it still allows a man to pay his debts.

11,007. Should not the agent leave him to pay his debts himself, and so obey the law?-It is merely as an accommodation to the seaman that we pay his debt for him, and we trust to his honesty that he will repay it to us.

11,008. But still, on the part both of the agent and of the seaman, is not that an infringement of the law?-No, it is not an infringement.

11,009. Does not the law require the whole wages, without any deductions other than those specified in the Act to be paid over in presence of the shipping master?-Yes, and that is always done.

11,010. If that is so, how is it possible, for you in obedience to such an order to retain the man's wages?-I do not retain them. The man comes back and repays his debt.

11,011. Then that is not retention in obedience to an order?-It is not retention: there has been no retention since 1867. Every man, since then has got his money in the Shipping Office, and those who had accounts in the shop came back and paid them.

11,012. Then how did it happen that you spoke of these orders being implemented?-I was referring to the period before 1867.

11,013. Your statement now is, that no such orders have been given, or acted upon since 1867?-They may have been given, but there have been no deductions from the seaman's wages since then, except the captain's account, the first month's advance, and the allotments. With these exceptions, the whole money was paid down to the seaman in the Shipping Office, and when he had an account in the shop he came and paid it.

11,014. Will your books show that?-Yes.

11,015. In what way do, your books prove it?-I request that the shipping master be called upon to prove it.

11,016. To prove what?-To prove that the men get their wages in money in the Shipping Office.

11,017. I intend to call Mr. Gatherer to prove that but you have come forward in order to contradict Mr. Hamilton's report, and the question I asked is, in what way do your books prove that no such orders have been honoured since 1867?-Mr. Gatherer

will prove that since 1867 the men have got their wages paid down to them in money.

11,018. Am I to record that your books do not prove that?-They do not prove that. I want the shipping master to prove it.

11,019 Then your books will not prove that all the wages have been paid to the men in cash, and that no sum has been retained in obedience to a seaman's order?-That can be proved by the shipping master.

11,020. But your books do not prove it?-We have accounts with the seamen, and when they get their wages, they invariably come back and settle these accounts. We do not retain anything; we invariably pay them the whole money that is due to them, and they can either come back or not as they choose.

11,021. Who is it that hands over the money to the men on behalf of Mr. Leask in presence of the shipping master?-It is generally Mr. Andrew Jamieson, and sometimes myself. One of us attends at the Shipping Office along with the men, and hands over their cash to them in presence of the shipping master.

11,022. Do you generally find that a seaman comes down to your office immediately after he has been paid, and settles any account that he is due?-We generally find that that is the case; in fact, always when they have accounts they come down and settle them.

11,023. Have you known any exceptions to that rule?-I have only known one man who tried not to come down and settle his account.

11,024. Who was he?-He was a lad belonging to Lunnasting, named Robert Grains. He declined to come down and settle his account but he afterwards came on the same day. I think that occurred two years ago.

11,025. When was he asked to come?-I suppose he never was asked particularly; but it is understood that every man has to pay his debt when he is able.

11,026. But you say that he declined?-I believe he declined on the ground that he required the money. I don't know whether he was asked to come or whether he merely said of his own accord that he would not be able to pay his account just now, as he required the money.

11,027. Was that done in your presence?-No; it was in Mr. Jamieson's.

11,028. Did you see the man when he came back to the office?-I don't remember seeing him. It was Mr. Jamieson who told me of the circumstance.

11,029. When a man comes down to settle after receiving [Page 270] his money at the Shipping Office does he hand over the whole money into your hands, or does he merely settle the amount of his account?-He sometimes does the one way and sometimes the other.

11,030. Sometimes he may hand over the whole money for you to settle with him?-Yes; and at other times he asks what he is due.

11,031. When he hands over the whole money to you, does it ever happen that the accounts of another shipping agent are settled at the same time in your office-It has not happened since 1867.

11,032. Is there anything in the state of the law to prevent that from being done if the man has got his cash at the Shipping Office?-I don't think there is.

11,033. Then why has it never been done since 1867?-I don't know; it has just happened so.

11,034. Was that done regularly previous to 1867?-A few instances might have occurred, but it was not very general practice at all.

11,035. In what way before that time did you know that a man was owing another agent unless you had the sum intimated to you by that agent, or had lists exchanged?-The agent very likely ascertained when the man was to settle and came along.

11,036. He had ascertained where the man was employed?-Yes, in what ship.

11,037. Did he do that by means of information obtained at the Custom House?-Possibly he might.

11,038. Was it not by information obtained from the agent who employed the man?-It was possibly from the Custom House, or from some other party.

11,039. But it might have been from the agent who engaged the man?-It is quite possible.

11,040. Was it not a regular practice to give information of that sort?-No.

11,041. Was such an arrangement made more commonly when the man was pretty deep in debt?-Yes.

11,042. The agent in whose books he had run up a considerable debt would look sharper after him, and would make inquiries at the other agent by whom he was employed?-Yes.

11,043. So that at least to that extent there was regular system of communication between the agents?-It was not done to any great extent; it was merely trifling. There were not so many men in debt as to make it a common practice.

11,044. It might come to something considerable where several hundreds of men were engaged in the whale fishing?-Yes; but when they were divided among four agents there would not be many.

11,045. But last year you engaged 280 men yourselves?-Yes.

11,046. And in some years the number of men employed in the sealing and whaling would be greater?-Yes. I think we employed about 500 in 1853.

11,047. So that among 500 men employed by you it was very probable that a considerable number should be in your debt?-I don't think there were many of them indebted at all. Last year there were very few indeed.

11,048. But in past years there may have been a very considerable number when you had 500 or 600 men engaged?-When the fishing proved a failure the debts would be very considerable.

11,049. In going through Mr. Hamilton's Report, you have omitted a sentence in which he says: 'It is quite common for allotments of wages to be made out in favour of the agents, or, in other words, for the agent to undertake to pay to himself part of the seaman's wages.' Is it quite common for the allotment notes to be made out in favour of the agents?-Yes, it was quite common.

11,050. Is it sometimes done still?-We have never done it in Mr. Leask's office but I believe it has been done elsewhere.

11,051. Why was it never done in Mr. Leask's office?-We just trusted to the men's honesty.

11,052. Have you never taken an allotment note, in which the party to whom it was payable was, not Mr. Leask, but some one in his office?-We never took out allotment notes at all.

11,053. When you engage a man, does he not generally take an allotment note?-Not generally.

11,054. Does he do it at all?-Not at all.

11,055. He gets his supplies from you without any allotment note?-Yes; without us having any guarantee at all. We have advanced both goods and money, to great extent, without any allotment note.

11,056. But in these cases you were aware that he had no allotment note?-We have never issued any allotment notes for the last six years, except, perhaps, in a very rare case. We may have given one or so.

11,057. Of course, you would not have advanced him the money had there been an allotment note left in the hands of his with or other relations, which they were entitled to draw from you?-We would have advanced money to parties whom we knew.

11,058. Have you frequently given money to a seaman's family during his absence?-Yes.

11,059. But more frequently supplies?-Not more frequently. It was just as they wished it. If they wished supplies they got them, but we did not wish them to take them.

11,060. What further observation have you to make on Mr. Hamilton's Report?-Towards the end he says that the men employed are not free agents. I deny that. I say they are free agents, and that they are at perfect liberty, so far as my experience goes. They can engage with whoever they please, and take their supplies anywhere they please.

11,061. In denying that statement, do you intend your denial to be applicable both to the men who are in your debt and to those who are clear?-Decidedly. The debt

constitutes no hold whatever over the men.

11,062. Even where the man has a family, and is resident in Shetland?-Yes, even then.

11,063. And even where he is a tenant of Mr. Leask, if that happens to be the case?-Yes. Even in that case he may go where he pleases. I never yet saw Mr. Leask compel a man in any way. Then Mr. Hamilton says: 'While the men employed are not free agents, however fair an employer may desire to be, he cannot treat them as if they were; and if, on the other hand, the employer wishes to make all he can out of those he employs, and to take every advantage of their dependent position, he has unlimited opportunity of appropriating to himself all the results of their labour.' That also I deny. There is an insinuation there that the employers do not do what is right; and I think the word 'appropriating' does not look very well; but it is not correct. The Shetland people, in general, are pretty well able to take care of themselves, and they are sharp enough in settling, to look out that they have got fair play.

11,064. And even to take care that the prices charged for goods are not unreasonably high?-Yes; they take very good care of that.

11,065. Have you many disputes as to the prices of goods at settling time?-Very few indeed.

11,066. Does that arise from the fact that your charges are very moderate, or from the fact that the Shetlanders don't pay much attention to that matter?-They pay great attention to it, and an article is always priced before they buy it. I am quite sure that our prices are not higher than those of others; at least so far as my experience goes.

11,067. There is another statement in Mr. Hamilton's Report, to which you have not referred,-that there is no time fixed for settlement with the men who go to the seal and whale fishing?- That is quite correct; but it is our interest to get the work of settlement done as speedily as possible.

11,068. In what way is it your interest?-To get the work off our hands. We could settle with a dozen men nearly in the same time that we can with two or three; and if they would all come and get settled with in one or two days, that would be so much less trouble to us.

11,069. Is it the case that the men, after being discharged from the ship and before settlement, continue to run accounts with you to any extent?-Very seldom.

11,070. Does it happen to some extent?-Only to a very small extent. They seldom buy anything after they have landed. Here [showing] is a crew of 27 men [Page 271] landed from the 'Esquimaux' on 28th April 1870, and they were all paid off by 14th May, or in about two weeks.

11,071. That was for a sealing voyage. Did these men engage again for the whaling?-I believe some of them did.

11,072. Were others going south?-Some of them went south, I daresay, and a good number of them went to the home fishing.

11,073. Have you had any case of as early a discharge in the case of a whaling voyage?-Here [showing] is the crew of the 'Polynia' last year. Nineteen men were landed on 26th October, and they were all paid off and discharged by 29th November, or in about a month. When the men don't come to be discharged, it is entirely their own fault, not ours. We can't compel them to come. We wish them to come as soon as possible and to settle; but sometimes they don't find it convenient. Some of them may live 20 or 30 miles from Lerwick, and they don't care about coming until they have to come deal about some other business.

11,074. Is it not often more than a month before they are discharged?-Perhaps it is. Two or three of them may stay away till the end of the year, but that is the men's fault, not the agent's. Mr. Hamilton says in the same paragraph: 'When he (the agent) does pay to the man the balance of wages due to him before the superintendent, the man has no option but to hand it all back to the agent at once, to whom he is indebted in an equal or greater amount.' I deny that. The man he may hand it back or not, as he chooses, but if he is an honest man he will pay his debt.

11,075. But you don't deny that in most cases there is a debt due to the shop?-In most cases they have an account with the shop, but in some cases it is very small.

11,076. Can you give me an idea from your books what is the average amount of the debts due by the men engaged in the Greenland fishing?-I could not do that just now; but I can state that, in 1865,-which was before we were compelled to settle with them in the Custom House, we paid to the men of the 'Camperdown'-42 men-£1120, 12s. 3d. in cash; and out of that number Mr. Leask had only one tenant.

11,077. That would be about £25 apiece?-Yes, on an average; but some of these men had upwards of £50 to get. One of them had £54, 18s. 5d. to get, and he got it in cash.

11,078. Was that a very successful year?-Yes; and the following year was somewhat similar to it.

11,079. What would be the amount of goods supplied to these men at starting, or to their families during their absence?-About £400 for the whole crew.

11,080. That would be about £9 apiece for the 42 men?-Yes, about that.

11,081. Would that be the average amount of a Greenlandman's account for the season?-No; it would be much more than the average. Less than the half of that would be nearer the average.

11,082. But the amount of receipts due upon that voyage was considerably above the average?-Yes; it was it very exceptional voyage.

11,083. Was it twice as much as usual?-Yes; perhaps about that.

11,084. Do you mean that £4 or £5 is the average amount of the account due by a seaman engaged in the whaling?-I never made any calculation about it but I should think it would be somewhere about that.

11,085. In what way are your accounts with these men kept? Is there an account kept in the name of each man?-Yes. [Produces book.] There [showing] is the account I have been referring to of the 'Camperdown.'

11,086. You have a ledger for each ship?-Yes.

11,087. And this account shows the whole transactions for 1865?-Yes.

11,088. This [showing] is the account of Hercules Hunter, Lerwick, who was engaged in the seal fishing of 1865 at 50s. per month, and 2s. 6d. per ton of oil-money; 2s. 6d. per 1000 skins, and 2s. 6d. per ton of bone?-Yes.

11,089. The first entry on March 4, 1865, consists of two advances of 20s. each to account of his first month's pay, and 3s. as his subscription to the Shipwrecked Mariners' Fund, for which Mr. Leask was agent?-Yes.

11,090. The next entry is half of note to Mr. Hay for rent, £1, 18s. 11/2d. Had Mr. Leask undertaken to pay his rent?-Yes.

11,091. The following entries, to the amount of £2, 0s. 31/2d., are for outfit at starting, consisting both of clothing and private stores?-Yes.

11,092. Then follows-insurance, 5s. 10d.: what is that?-The insurance is on the outfit, and it is charged over and above the month's advance. The advance is made by the owner of the ship; and what is over that is at risk, which is covered by insurance. We get it done for them, and they refund the premium.

11,093 Do you employ a broker to effect an insurance on all your advances of that kind?-Yes.

11,094. Then the 5s. 10d. is the amount of insurance paid by you upon the sum of £3, 10s., which was the amount of cash and goods advanced to this man at the time of, or after, his sailing?-Yes.

11,095. There is also a balance of the old debt: was that not included in the insurance?-No.

11,096. On April 27 the man returns from his voyage and receives a payment in cash of 20s., with certain additional supplies; and on 28th April you enter to his credit the sum of £30, 8s. 4d. for wages, oil-money, and skin-money due to him upon that voyage?-Yes; that is the first payment.

11,097. His account runs on from 2d May till 4th December of the same year, when it is settled, during which time he has been upon a whaling voyage?-Yes.

11,098. At the commencement of that voyage on 2d May he receives £5 in cash?-Yes; that is to account of oil-money.

11,099. On 8th May he receives £5 in cash; on 16th May, £3; November 1, 3s.; November 18, 2s.; and on November 1 also there is £1, 16s. entered as having been paid at Dundee: that would be advanced by the shipowners there?-Yes.

11,100. On November 22d he receives £8 in cash, and a balance was paid on December 4 of £18, 8s.?-Yes.

11,101. The rest of the debits in that account consist of supplies for himself during the voyage in the captain's account and supplies to his family of meal, sugar, soap, tea, and other items; and the total amount of his credit for wages, oil-money, bone-money, for the two voyages, was £58, 19s. 2d.?-Yes.

11,102. In that case the settlement took place in December?-Yes, the final settlement.

11,103. The whaling voyage would come to an end in November?-Yes, not sooner; so that the man had only been at home about a month when he was settled with.

11,104. But during all that time you had in your hands the proceeds of his first successful sealing voyage?-Yes, except what he had got. I think he got £19 in cash out of the £30, besides his goods up to the 16th May.

11,105. And the balance of £11 remained in your hands as a security for the advances he was getting up to the settlement in December?-Yes.

11,106. Then, on November 20, he was credited with the additional sums due for the whaling voyage, amounting to £28, 4s. 10d.; so that, in addition to supplying him with goods, upon which you had your profit you were, during all that time acting as his banker?-No; he had got £19 to account by 16th May.

11,107. But to the extent of £11 you were acting as his banker?- Yes.

11,108. And he was not getting interest for it?-I think he should have paid interest.

11,109. Not when you had £11 of his in your hands?-No; but we charged him no interest when we advanced him more.

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11,110. But you charged insurance upon the goods he got, and you had your profit upon the goods?-Yes; but we had to lie out of the money, for some time. We might have lain out of that money for eight or nine months.

11,111. Had you sold him these goods at a cash price, and not at a credit price?-At a cash price; we have only one price. We make no difference between cash and credit.

11,112. Was the oil-money that is credited to the man on 20th November the first payment of oil-money?-It was the first payment of oil-money for the Davis Straits voyage.

11,113. When was the second payment of oil-money made?-It is credited on 19th February 1866.

11,114. It only amounted to 15s.?-Yes. I don't believe that we had received the first money at the time when we paid the man, so that we had no money on hand.

11,115. Take the case, now, of a man living in the country, George Georgeson in Walls. He receives, in like manner, on 4th March, £2, 13s. in cash, and he gets supplies, and is debited with insurance in the same way. On April 27 he has the same amount to receive for the sealing voyage, and on May 17 he gets £12,10s. in cash; on

September 9, £1 per order: was that an allotment note?-It was money to account.

11,116. It would be advanced to his wife upon the security of the voyage?-Yes.

11,117. On November 20 there is £5; and £1, 6s. for cash at Dundee and Aberdeen. He is credited with the same amount of wages as Hunter, and on December 4 he is credited with second payment for the sealing voyage £3, 15s. Then, on December 26, he receives £28, 2s. 6d. in cash; and the rest of his debits consist of supplies to his family in sugar, tea, aqua, canvas, and other small article, but to a very small extent. I suppose the supplies taken out in that way by people living out of Lerwick are usually less than in the case of those who live in town?-Yes. It costs them both expense and trouble to get them from Lerwick.

11,118. There is also the case of James Twatt, Sandness, who is debited on March 4 with £2, 3s. to advance; and then on March 4 and 9 he gets supplies to the amount of £3, 38. 71/2d., upon which there is charged 6s. 51/2d. of insurance. On April 27, on his return from the sealing voyage he gets 20s. in cash, and he is credited with £20, 10s., for wages, oil-money, and skin-money?-Yes; I think he was only at the sealing voyage.

11,119. Then, on May 27, he gets £7 in cash; July 10, 15s.; September 11, £2; and on December 4 he is credited with second payment for sealing voyage, £2, 5s. On March 6 he receives 2s. in cash; and on the same date he is settled with, by receiving £3, 1s. 3d. in cash. The total proceeds of that voyage to him were £22, 15s.?-Yes.

11,120. How many ships had you in 1865?-I think we had seven.

11,121. Were they all as fortunate as this one?-No, none of the others were so fortunate.

11,122. Was 1866 as good a year for the 'Camperdown'?-Yes.

11,123. I see that in that year Adam Moar had £36, 2s. upon the two voyages; of that he got in cash at starting, and the amount of the Shipwrecked Mariners' ticket, 33s.; on May 2, cash 40s.; having been credited on that date with the proceeds of the sealing voyage, £21, 9s. 6d.; May 8, cash 10s.; May 17, cash 32s.; May 19, cash 6d.; August 16, cash 8s.; and on June 22, 1866, there is an entry to G.R. Tait's account, £3, 2s. 10d.: was that a previous account due to Mr. Tait, which you had paid for the man?-Yes.

11,124. Then, on August 16, there is cash 8s.; October 22, cash £6, captain's account £1, 7s. 6d.; cash at Dundee for travelling charge, £1, 6s. I thought the engagement was, that when the men were carried past Lerwick, their travelling expenses home were paid to them?-That is generally the case.

11,125. Then why is that sum charged against the man?-It has been something additional; it was advanced besides what was paid by the owner.

11,126. On October 23 he is credited with the proceeds of the whaling voyage, and on October 31 his account is settled by a cash payment of £4; the difference between the previous cash payments and this balance being made up of supplies to himself and the family-Yes.

11,127. The second payment on both voyages was made on January 1, 1867, and he got £4, 8s. 1d. in cash?-Yes; that was when he came in to settle.

11,128. Was 1867 a good year for the 'Camperdown'?-Yes; both 1867 and 1868 were pretty fair years for her, but not so good as the former years.

11,129. Have you anything to show the state of accounts in 1870 or 1871?-Yes. [Produces book for 1871.] It is not the case that we do not keep accounts with the men, because we pay them in presence of the shipping master, and then they pay their accounts to us.

11,130. Do you keep your accounts now in a different way from what you did when the book was current upon which I have been examining you?-No; they are kept quite in the same way.

11,131. I see that the account for 1871, which you have produced, is not yet settled?-No; it is for the 'Polynia,' another ship.

11,132. Why have you selected these two ships?-Because the one was previous to the compulsory settlement at the Custom House, and the other was not.

11,133. Have you not had the 'Camperdown' since?-Yes.

11,134. Were the ''Camperdown' and 'Polynia' the best paying ships in this year?-The 'Camperdown' was, but not the 'Polynia.'

11,135. And the 'Polynia' was not the most successful ship since 1868?-No, nor before.

11,136. Take the account of Peter Blance, Yell. His wages were 20s. per month, 1s. per ton of oil, and 2s. per thousand seal-skins?-Yes, he was a young hand.

11,137. He gets an advance at first of 4s. as a payment to the Shipwrecked Mariners' Fund; then he gets an outfit, £3, 2s., upon which 2s. 1d. of insurance is charged. On April 17 he receives in cash 5s., and at that date he is in your debt for £1, 7s. 8d., after crediting him with wages, oil-money, and skin-money?-Yes.

11,138. That balance is carried on to a new account in which there appear certain supplies, and he is credited with his share of the summer fishing, and also with the second payment of oil and skin money, and another item of 2s, making up £16, 1s. 3d.; and also with the second payment of oil and skin money, and another item of 2s. making up £16, 1s. 3d.?-Yes.

11,139. On November 29, there is entered to balance rent account, £12, 14s. 8d. Is Blance one Leask's tenants?-His mother was a tenant of Mr. Leask.

11,140. Then the £12,14s. 8d. was applied to square off that account?-Yes; it was put to his mother's credit.

11,141. The sum due to Blance on April 17, on the sealing voyage, was £3, 14s. 4d.?-Yes, that was the money paid to him at the Custom House, before the shipping master.

11,142. When was it transferred to your hands?-He would come down to the office and pay it back. I cannot say exactly at what hour he came, but he would come on the same day.

11,143. Then the £12, 14s. 8d., which was due for rent, was transferred by you to the rent account?-Yes, by his own order.

11,144. Was it done at your request?-It was at his mother's request.

11,145. How old is Blance?-He is about 20.

11,146. Had you had any correspondence with his mother about transferring that money to her amount his mother had been in arrear, or some time. She was a widow, and Mr. Leask had been rather obliging her by allowing her to remain where she was for some years, when she was not able to pay any rent. Then when her son was grown up, and was able to pay the debt, he did so.

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11,147. Here [showing] is the account of William Johnston, jun., Yell: was he another young hand?-Yes; he was in the same position as Blance. Both their fathers were drowned a few years ago, and their mothers lived in Yell.

11,148. In May, the balance against him was £4, 14s. 11d., and that includes the balance from a previous fish ledger, of £3, 1s. 6d.?-Yes; he was at the Faroe fishing and was rather unfortunate.

11,149. That is carried into a new account in May, and after allowing him his share of the summer ling fishing, £14, 13s. 9d., and his second payment of oil-money, the balance carried to the rent ledger against him is £8, 17s. 11d.?-Yes.

11,150. That was for his mother's rent in the same way as in the case of Blance?-Yes; these are the only two cases of the kind in Mr. Leask's transactions with his tenants.

11,151. Here [showing] is the account of Magnus Arthur, Yell: was he also a young hand?-Yes.

11,152. Last year he got advances to the amount of 19s. 10d., on which 1s. 7d. of insurance was charged; afterwards, on April 17, he received in cash 5s., and £1, 16s. 11d. at settlement in November; the amount on his receipts from wages, oil-money, and skin-money, being £4, 19s. 10d.?-Yes.

11,153. I see that in the case of Hugh Arthur, Nesting, the amount due to him in wages, oil-money, and skin-money, was £7, 15s. 6d., in April 1871; and the account at his debit for previous advances was £7, 11s. 8d., part of which consisted of a payment of £2, 5s. upon an advance note in favour of J. Dalzell?-Yes.

11,154. That sum of £7, 15s. 6d. was paid, I presume, before the superintendent at the Custom House?-Yes, after deducting the £2, 5s., the master's account, and the shipping master's fees.

11,155. And then Arthur walked down to your office and paid the amount of his account?-Yes, he came down and settled the account he was due to Mr. Leask for advances.

11,156. Is that done universally by the men when there is an account due by them?-Yes, after receiving their money they walk back to the office and pay their accounts.

11,157. Do they generally accompany you down to the office or the clerk who sees them paid?-One of us sometimes accompanies them to the office but we don't wait for them; they come back when they please.

11,158. Do you always desire them to come down to the office and settle their accounts when they leave the shipping master's office?-Of course, they understand they have to pay their accounts. We don't require to tell them that. The men are very honest on the whole, and don't require to be asked to pay what they are due.

11,159. Except in the case of a man like Robert Grains?-That is the only exception I have known since 1867.

11,160. I suppose if any of them showed a reluctance to settle their account at the time, then either you or the clerk who attended at the shipping master's office would remind them of it and ask them to come down to your shop to settle?-Except in that one case, I never saw even the least hint of that.

11,161. There is generally a second payment due to the men for oil-money?-Invariably.

11,162. Where is that second payment of oil-money settled?-In the agent's office now.

11,163. Why is it not also paid before the shipping master?- Because it creates a great amount of trouble to go there with every man to make the settlement. It entails an immense amount of labour.

11,164. Then the final settlement of accounts between you and the seamen does not take place until the second payment becomes due?-No.

11,165. And generally the actual settlement is some time after it becomes due?-Yes, a short time after.

11,166. Does it generally take place at the time when the men are engaging for their next year's voyage?-No. We are so busy then that we could not take time to settle their balances. There may be a few cases of that kind, but very few.

11,167. But with men from the North Isles, is it not the case that the settlement for the second payment takes place when they come in to arrange for the next year's voyage?-Yes.

11,168. And when they take supplies at that time, are these put into the account for the rising year?-Yes, if they take supplies after they engage.

11,169. They don't go into the account on which the oil-money has been paid?-That account has been previously settled.

11,172. But I am putting the case of a man wife receives his final payment of oil-money at the same time that he engages for the voyage of the rising year?-He receives his oil-money, if he wishes it, in cash, and if he wishes an advance on the rising year, he gets it besides.

11,171. In point of fact, what is generally done?-We pay the second payment of oil-money in cash; and then afterwards, if the man wishes any advance, and if it is a person we know, we will trust him with it.

11,172. But he is entitled to his advance in any case?-He is not entitled to get goods unless we choose to give them to him.

11,173. Is that advance always paid in money?-It is always paid in money if they wish it. All they are entitled to is one month's advance, and that they are entitled to receive in money.

11,174. But when a man engages for the whale fishing, and asks for his first month's pay in advance, is it the case that, in point of fact, he generally gets it in cash, or does he generally take it in goods?-We always give advance notes at the shipping office, stamped notes payable three days after the ship leaves, provided the men go in the ship.

11,175. Then you don't give either goods or money until after the man is actually away?-Yes. When man is engaged he gets his clothes to take with him, and if he wishes to give us his advance note we will cash it afterwards.

11,176. Do you give him his clothes in addition to the amount of his advance note?-If he wishes it.

11,177. But I see in all the entries I have been looking at, that the advance note is entered to his debit?-We debit him with what he receives, and he gives us back the advance note.

11,178. Here, for instance, is an entry of cash 30s. that actually paid to the man in cash?-Yes. He asks us to give him what money he requires, and he leaves his advance note with us. If he wants to get 40s. or 45s., he would get it; but if he says that he only wants 30s., we don't give him more than he requires.

11,179. A man who engages in that way has perhaps to get the amount of his last payment of oil-money for the previous year, and also cash for his advance?-Yes. That may happen very often, and it does happen. He first gets his payment of oil-money, and after he re-engages he gets his advance.

11,180. If a man in these circumstances wants a supply of meal or clothing or anything to be sent to his family, does that appear in your books, or is it paid for in money out of the monthly sums which his family may have to receive?-The whole of these things are kept in one account.

11,181. But suppose he buys meal at that time, will that enter your books at all?-Anything that he does not pay for will be entered.

11,182. But he may pay for it out of that very cash which is entered here as having been received by him?-He may do so; but we don't mark down anything that is paid for.

11,183. When a man has his oil-money to receive, and is taking his month's advance at the same time, is it not usual to ask him if he wants any supplies for his family?-I don't know that it is. We don't obtrude questions of that kind upon them.

11,184. Does he not often take supplies for his family?-Very often.

11,185. And these are paid for in cash out of the cash he is so receiving from you?-Very often.

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11,186. But you say you don't obtrude questions about his wants upon him at that particular time?-No. We never engage a man to be paid in goods at all. We engage every man to be paid in money; and if he is paid in goods it is his own fault.

11,187. But, in point of fact, a man often does take goods, at that time?-Very often. We make it, a point to give them as cheap or cheaper than they could get them elsewhere.

11,188. Therefore although there is an entry in your books of oil-money being paid to a man at a certain date, and of a payment of 30s. or £2 being made to him at the same time, on account of his first month's advance, it may happen, and it does happen, that that money is paid back into your till for goods supplied the time?-A part of it may be; but the place where the cash is kept, and the place where the goods are sold, are two separate places, so that the things must be kept quite distinct. The shop is on the ground floor opening from the street, and the office is up a lane on the second floor, where we have also a warehouse or general store for drapery goods. A man, when he gets his money in the office, may go and buy drapery goods on the second floor, or he may go down stairs and buy provisions. We don't know what he does.

11,189. You do know, in point of fact, that he often does spend his money there and then?-I have no doubt he does.

11,190. But you are not aware that he is often asked if he wants anything at the time?-I am not aware of that. It is not done now at any rate.

11,191. Do you know whether it was the practice, before the evidence was given in Edinburgh last year, to ask a man on such occasions what goods he would take?-Our shopmen might have done so. Every shopman is keen to sell as much as he can; and when he is aware of a man getting plenty of money, he would likely ask him, 'Are you going to buy anything?'

11,192. You have now handed in to me the abstract from which you previously spoke, with regard to the 'Camperdown's' voyages in 1865, which shows a total of

£1537, 10s. 3d. for the men's earnings for both the sealing and whaling that year, and a total amount of cash paid to them, both during the season and at the end, of £1120, 12s. 3d., leaving a balance of £416, 18s. for goods sold?-Yes.

11,193. Do you think that shows about the average proportion of goods and cash received by each man during each year?-I should say that it does.

11,194. Was that not an unusually favourable season for the whaling?-For most of the vessels it was.

11,195. But were not these voyages of the 'Camperdown' very considerably above the average with respect to the earnings of the men?-They were above the average.

11,196. Do you also say that the accounts incurred by the men that year were above the average?-I should certainly say so. They bought more than they otherwise would or could have done.

11,197. Why should that be so? The men did not know at the commencement of the season whether the fishing was to be a successful one or not?-The greater quantity of the goods are bought after the sealing voyage, when they have earned a considerable sum of money.

11,198. Then the sealing voyage that year was unusually successful?-Yes. The principal part of the earnings were from it; and it was after it that the greater portion, or a great portion, of the accounts were contracted.

11,199. And you think the fact of the sealing voyage being unusually successful led the men or their families to incur larger accounts to you than they would otherwise have done?-I should certainly say so; because when the men's earnings are small, we have to restrict them. In this case, however, they had plenty of means, and we did not refuse them what they wanted.

11,200. With regard to the sum due at the end of the season, and paid in cash before the superintendent, what proportion of it should you say was refunded immediately in payment of accounts due at the shop?-I suppose about one-fourth, calculating from the case I have given.

11,201. I think if you look at the books which you have showed me, you will find that many of the accounts show that a much larger sum would require to be repaid. That may have been the proportion for a special ship, but it does not follow that that is a fair criterion?-I took that book simply because it came first to hand. I did not take it specially; but of course, it will show more goods sold, in proportion to the amount of earning than any other book we have got.

11,202. But can you not tell me what proportion of the money paid before the superintendent the man has to come down to and hand over to you in payment of his account?-The men, when they are landed, and before settlement, often get sums in cash to account, and sometimes pretty heavy sums, before they get their money at the Shipping Office.

11,203. But you would not do that if the men were in debt to you for goods?-No, not if they were in debt.

11,204. So that if a man has to refund money to you out of what he gets before the shipping master, that will, in the general case, be in payment of goods which he has got?-Yes, generally.

11,205. It must be so, because you would not advance him money if he was in your debt?-No; but the men generally are not in our debt. When they are in debt, it is the exception, especially in the whaling trade.

11,206. Then if a man is in your debt, and has to refund you money which he receives before the shipping master, that must be for goods?-Yes, for goods alone, if he is in debt; but we don't like him to be in debt. If he be in debt, it must be for goods. We would not care about allowing a man to get into debt for cash, although it may sometimes be the case, because Mr. Leask is very accommodating in the way of giving advances.

11,207. But the answer you give is, that about one-fourth of the sums which have been received by the men before the shipping master is repaid to you by them in settling their accounts for goods?-I said that I thought about one-fourth represented the goods sold; but, in many cases the men have got advances in money to account over and above the goods they have bought; so that the money paid over to the agent after the settlement before the shipping master, will be more than one-fourth. I should say that it would be one-third, and that would cover the sums of money paid to account from the date of landing to the date of settlement. It is quite a common thing for the men to get money as soon as they land, and before settlement; and that of course, increases the account against the men, which they have to pay after receiving their money before the shipping master.

11,208. Still you don't give that as an exact statement but merely as a guess?-It is merely an approximation, as nearly as I can guess it to be and I have a very good idea.

11,209. You say the men always go down of their own accord to pay the money, because they are honest men?-Yes, invariably. They don't require to be asked to do so.

11,210. Has it not been the case that at certain times within the last 3 or 4 years, and since the regulations of 1868 were enacted by the Board of Trade, you and your clerks have endeavoured to settle with the men before leaving the Custom House?-I think in the first year that was done. We simply paid them over the balance which they had to receive, after deducting their accounts. Perhaps it was partly done in the second year; but since then the shipping master has been more rigid, and we have had to pay the whole.

11,211. Did the shipping master interfere about that?-He always interfered, and he would not allow any reckoning in the Shipping Office at all

11,212. Since then the men have invariably come down to your office and settled with you immediately after they had received their money in the Shipping Office?-Yes, on the same day, and without any exception, unless in the one case I mentioned, and that man came on the same day also after some reflection.

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11,213. You still keep your ledger accounts in the same form as if there were no such payment of cash in the Shipping Office?-Yes, we adhere to the same form that we used before.

11,214. So that your books do not show, without calculation, what amount of cash was transferred before the shipping master?-They show the account exactly as it is, irrespective of the settlement before the shipping master.

11,215. In that way, is it not the case that the transference of the cash before the shipping master is merely form in order to comply with the Act?-I don't think so; because, if a man chooses to keep the money, he may do so. The account is kept merely to show the man's earnings, and how these earnings have been disposed of. It would be more simple, perhaps, to debit the men with the goods they get, and then to credit the cash after the settlement; but the form we use has always been adopted, and we still adhere to it. I don't think it is an evasion of the Act at all.

11,216. The men are not all settled with on the same day?-No.

11,217. Perhaps you may settle with half a dozen at time?-Yes. I remember of settling with nineteen on one day last year, but I think that is the largest number; but we could have settled with more if they had come forward.

11,218. Of course, if the men were all settled with as they land from the ships, perhaps to the number of 40 at a time, it would be more easy for them to go away without paying their debts?-Of course it would, but it is no great trouble to them to come and pay their debts.

11,219. But there would be great difficulty for you or your clerk in looking after them on the way down from the Shipping Office to the shop?-I don't think so. It is the work of a moment to take their money from them, because we can see at a glance what is due.

11,220. How far is Mr. Leask's office from the Shipping Office?- It may be about a couple of hundred yards, but I could not say exactly. Mr. Leask's office is in the town, and the Custom House is in Fort Charlotte which is to the north of the town.

11,221. You say you settled with nineteen men in one day: did these men all go up at one time before the superintendent?-All that were there at the time went before the superintendent.

11,222. But the ordinary number with whom you settle on the same day will be much less?-Yes; sometimes there may be eight or ten, and sometimes only one.

11,223. So that if they really require looking after, there will not be much difficulty in looking after them from the Custom House to the office?-We never require to look after them at all; they come of themselves.

11,224. But suppose the case that they did require it; it would not be very difficult to look after them, when there are only one or two, or even eight or ten?-We should not take the trouble to do that. If they chose to swindle us, we should just apply to the

Small Debt Court. We would not be inclined to act the part of sheriff-officer ourselves. Mr. Hamilton says in his Report, 'Almost every fisherman in the islands is in debt to some shopkeeper, and not only is the head of the family in debt, but frequently his wife also, and other members of his family, down to children of 12 or 14 years of age, for whom the shopkeeper opens separate accounts in his books'-I don't think that is the case. Some of them may perhaps have accounts, but I don't think every is indebted to some shopkeeper.

11,225. Still that is a common thing?-Quite a common thing.

11,226. Does it occur in your books as well as in those of other firms, that separate accounts are opened for the wife and for the children?-Never for the wife; but, of course, an account is opened for the children when we are employing them.

11,227. Have you any transactions in hosiery?-We have transactions in barter for what Mr. Walker calls the hosiery improper or incidental. We do a great deal in that way in the coarser sort of work stockings, frocks, and so on. We barter goods for them, or rather I should say we take them instead of money.

11,228. You don't keep, accounts with regard to these transactions?-No.

11,229. Every transaction is separate and distinct?-Yes, it is simple barter. The people come with their goods instead of money, and we give them, goods in exchange for them.

11,230. A married woman may come with her knitting and sell it in that way for goods?-Yes.

11,231. But you don't keep an account with her?-No; we don't keep separate accounts with a man and his wife.

11,232. If she gives the hosiery in that way, and does not want any goods, may it be put down to the husband's account?-We don't care about taking hosiery at all. We simply take the hosiery instead of money, because the people come wanting to buy goods, and very often they have nothing to give for them except their hosiery. We frequently take the hosiery from them at a great disadvantage.

11,233. Do you frequently open accounts with the children of a family when they are in your employment?-I should not call them children, but grown-up young people-boys of from 12 years of age and upwards, who are employed in the fish-curing.

11,234. Do you employ many boys in your establishment at Lerwick?-Yes. I now produce a list of all the people employed by Mr. Leask in that way. There are about 60 of them altogether, including persons of 12 to upwards of 50.

11,235. For how many months in the year are these persons employed?-I should say that on an average taking one thing with another, curing the fish and turning them over, they are employed for about five months in the year, from May to December; but they are only employed at intervals, not regularly. They are employed regularly for part of May and for June, July, August, and September, and sometimes part of October. After that we have to employ them occasionally in turning the fish.

11,236. When you employ one of these persons at the beginning of the year, is it the ordinary practice to open an account in his name in the ledger?-We don't care about opening accounts with them at all. We prefer to settle with them every Saturday.

11,237. What is the nature of the engagement with them? Is it for weekly wages, or for a fee?-It is for weekly wages. We pay them from 7d. a day upwards; 1s. a day is the regular wage for a woman working among the fish, or for a strong boy.

11,238. In your establishment in Lerwick, is any payment made by way of beach fees?-No; we pay all by daily or weekly wages, and Saturday evening is the pay.

11,239. Do all these parties take payment in cash every Saturday?-We prefer to pay them in cash; but, of course, if they have taken supplies or provisions during the week we must be paid for them. Some of them do take supplies, because they could not live without them.

11,240. When they take supplies in that way, are their names entered each week in the day-book?-Not in the day-book, but in a book which we keep for the purpose, what we call our work-book.

11,241. In what way is it kept?-We simply charge them with what provisions they get.

11,242. Is there a ledger account in that work-book for each person?-Yes.

11,243. In it the provisions which they get are entered, and I suppose also soft goods if they get any?-They very seldom take soft goods; it is only provisions. These are entered in the book as they are got, and the account is settled on the Saturday evening, except in one or two extravagant cases where the people are in debt. In that case, we simply put their work to their credit, and don't balance at all until the end of the season.

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11,244. If you don't make a balance until the end of the season, may you not have some difficulty in restricting their supplies within proper limits?-Of course, we can always tell how they stand, because we are keeping a check upon their accounts, but sometimes we find it pretty hard to keep such people in check. We far rather prefer paying cash on the Saturday evening than having accounts.

11,245. But you don't always do that?-No, we cannot do it because the people cannot live without supplies as a general rule; perhaps there may be some exceptions.

11,246. But in the majority of cases you say the people have accounts?-Yes.

11,247. In the list you have given in, there are the names of about eighty people: are these all the people employed in your curing establishments?-No; there are a good many employed incidentally besides these. The names I have given are only those of the people are employed most regularly.

11,248. How are these people paid who are employed incidentally?-We never employ any one to work for goods. The understanding is that they are to be paid in money; and they are paid in money, unless they have supplied themselves with articles from the shop, for which, of course, we must be paid.

11,249. In what way are the engagements with these parties made?-When they ask for employment we tell them to go to the superintendent, and if he requires them he takes them and fixes their wages. He very likely tries them for a day, or perhaps for a week, to see how they are to get on, and then he tells them what their wages are to be.

11,250. In what way is the understanding expressed to them that they are to be paid in cash at the end of each week?-They know very well they will get their wages in cash, unless they take stuff from the shop before the end of the week. It is cash that is always the understanding. We don't wish them to take goods at all, and we prefer that they should not take any.

11,251. Do they ever get cash in the course of the week?-Very often.

11,252. To what extent?-Of course their wages are not a great deal, and it cannot be to a great extent. They sometimes get 1s. perhaps during the week; sometimes more and sometimes less.

11,253. But they always get goods when they want them so long as they are in your employ?-Not always. In one or two cases we have had to refuse goods.

11,254. Is not that really a payment of their wages in goods if they choose to take them all in goods?-I don't think so, because we don't wish them to take all in goods.

11,255. But, in fact, you don't pay them the money?-In such a case we don't pay them the money.

11,256. If there is any money left to receive at the end of the week, how do you pay it?-If they choose to go to the shop and take goods, we must pay ourselves for these goods. They cannot expect to get both goods and money too; but what we pay is money, and if they choose to take goods, that is their own fault.

11,257. But in fact, they are not paid in money?-I think that, in fact, they are paid in money, because they may get the money from the office and take it back again to the shop, as they do in some cases.

11,258. Do they sometimes get the money at the office?-Yes, and sometimes they pay it back into the shop; but, of course we deduct the amount of the accounts from what they have to receive.

11,259. I suppose it is very seldom that they get the money in the office and pay it back to the shop?-That is done in a good many cases.

11,260. Why do they do that if they have an account?-Because if they have a balance to get it is paid to them in money, and very likely what money they get is spent by them in the shop.

11,261. Do you mean that when they are settled with the end of the week they get the balance they have receive in money and spend it in the shop?-Yes, they very often, do that. If they require to spend it at all, they very likely spend it where they know they can get the best value.

11,262. Of the eighty people mentioned in the list you have handed in, how many may there be under fifteen years of age?-There are very few under fifteen; think only two or three.

11,263. Are all the rest of the males under eighteen or twenty?- Not all. The carpenters, of course, are married men and have families; but most of the people in the list are women; we have very few boys.

11,264. Have the carpenters, the sailmakers and riggers all credit accounts with you?-Yes.

11,265. Out of the fish-curers, nineteen appear to be males?-Yes, men and boys. I think there are four men, and the others are all grown-up lads, except two or three young boys.

11,266. And the women may be of all ages?-Yes. With regard to the weekly settlement with them, what I said had reference to those living in the town; but we have about twenty living in Whiteness, eight or ten miles distant, and these are only paid monthly.

11,267. Where do they get their supplies?-They live with their own families, and they don't require to buy provisions like people living in town; but if they need anything they come to us for it.

11,268. I understand Mr. Leask is extensively engaged in the Faroe fishing?-Yes; he owned eight fishing vessels that went to Faroe last year. He did not have so many in previous years.

11,269. Has he an interest in any others as a partner of any company?-He has no interest in any others, but he acted as agent for other two.

11,270. What is the nature of the engagement that is made with the fishermen who go to Faroe?-The Faroe fishing is a joint speculation between the owner of the vessel and the crew. The owner supplies the ship, thoroughly equipped for the voyage, and furnishes sufficient salt to cure the fish, with all other necessary materials; and he also supplies the crew, with one pound of bread per day.

11,271. Does he supply all the lines required?-That is a different affair. What I have mentioned is his portion of the supplies-the ship and one pound of bread per man per day, and the salt; but the salt is deducted from the proceeds of the fishing as part of the expenses of curing. The owner also supplies the men with what advances they require in the way of lines, hooks, clothes, and stores.

11,272. These, however, are not supplied by the owner, but merely advanced by him?-Yes. All that the owner supplies is the ship, equipped for sea and biscuit at the rate of one pound per man per day. The men supply themselves with small stores, such as tea, coffee, butcher-meat, and anything they require. They also furnish lines

and hooks, and what clothing they require. The owner puts the salt on board; generally about 20 tons, and sometimes as high as 30 tons, according to the size of the vessel.

11,273. What proportion does the salt put on board bear to the total capacity of the vessel?-One ton of salt is expected to cure one ton of fish.

11,274. Do you not put on board a larger supply of salt in order to allow for waste?-We generally put as much salt as the vessel can stow, after being filled up with water-casks, oil-casks, bread, ballast, and so on.

11,275. What are the oil-casks for?-To preserve the livers of the fish. They are put into these casks, and made into oil after the vessel has returned.

11,276. Are the lines, and hooks, and small stores, which are supplied by the men, generally taken from the merchant as outfitter?-Yes.

11,277. And they are charged against the men in their accounts?- Yes.

11,278. At the end of the season, when the men come to settle, how is the arrangement with them carried out?-The men, of course, get all the money due to them.

11,279. What number of men may there be on board one of these smacks?-With one vessel we have had crew of 18, and with another we have had a crew of 11. The crews vary between these numbers; and of [Page 277] these men, perhaps two-thirds are what are called full-shares-men; perhaps one-sixth will be half-shares-men, and the other sixth quarter-shares-men. I now show the account of the 'Anaconda' for last year.

11,280. I see that the vessel's proportion of the fish was one half: that goes to the owner?-Yes.

11,281. How many men were in the crew?-Sixteen.

11,282. Of these, 13 had full shares and were called shares-men?-Yes.

11,283. John Isbister had a three-quarter share?-Yes. He would perhaps be an ordinary seaman, not an able seamen. The able seamen have full shares, and the others have less, according to their quality.

11,284. I see that three men had three-quarter shares, while one had as low as a half?-Yes; in some cases they have only been on one voyage. The smacks generally make two voyages, and sometimes three. Perhaps after the first voyage, a boy or a man may be ill, and has to leave, and his proportion of the fish is ascertained at the time when he leaves.

11,285. Are the hooks, and lines, and outfit, supplied to the men, deducted from their own account, or from the account of the crew?-They are deducted in each man's own private account; each man has his own account, separate from the account of the crew. There is one account kept for what has been got on behalf of the company, and then everything else is put into the account for the men.

11,286. There is a statement made out for each ship annually, showing the gross fish and oil, and also the charge, consisting of various things?-Yes.

11,287. But the gross fish and oil, as entered here [showing], must appear somewhere else in detail?-We have another book in which we put the amount of the weight. The skipper knows the number of the fish, but he cannot tell their weight until they are dried. When they are cured, the amount of the fish is entered in the book.

11,288. And the estimate made of each man's share is made after weighing the dry fish?-Yes; or after selling the dry fish. The fish are weighed in the store, and then sold, perhaps in October or November; and as soon as the price is ascertained, the account is made up.

11,289. In the case of the 'Caroline' in 1870, the statement shows £481, 0s. 3d. as the total proceeds of the sale of her fish?-Yes.

11,290. The first thing you do after having ascertained the total proceeds of the sale of the fish is to deduct from that the charges?-Yes.

11,291. You charge these as curing 281/6 tons at 50s. per ton, dry fish, £70, 8s. 4d.?-Yes; that includes the salt.

11,292. 'Removing to Lerwick, 5s.-£7, 0s. 10d.?'-Yes; the fish were at Whiteness and had to be brought here.

11,293. 'Master's fee, 6s. 3d. per ton?'-Yes. I should explain that the masters generally have 10s. per ton, and the mates 2s. 6d.; but in this case the master and the mate agreed to go equal, and divide the extras together, so that instead of 10s. and 2s. 6d., they had 6s. 3d. each.

11,294. That was £8, 16s. 11/2d. to each?-Yes.

11,295. The second mate's extra of 1s. 6d. came to £2, 2s. 3d., and then the score money is charged at £24, 19s. 6d.: what is that?- The men have 6d. for every score of fish they catch, as an encouragement to them to do their utmost. That sum is taken off the gross, and is divided among the men according to the number of scores each has taken.

11,296. The next entry is, 'Bait at Shetland £6, and Faroe £5, 2s. 8d.?'-Yes; the master employs people to get bait for him here and at Faroe.

11,297. He does so at the expense of the whole partnership?-Yes.

11,298. These charges being deducted; there remains £347, 14s. 7d., the vessel's proportion of which is £173, 17s. 4d., and the rest is divided among the crew according to their different shares?- Yes.

11,299. Is the charge of 50s. per ton for curing, a uniform charge?-In some years it is higher. It has cost us as much as 55s., but 50s. is the uniform rate.

11,300. Is that charge according to an agreement made at the beginning of the season with the men?-The agreement at the commencement of the season is, that all

necessary expenses shall be deducted.

11,301. Then, if the merchant finds that the expense curing is greater than 50s., is he entitled to increase that charge in the final account with the men?-Yes. The men are only entitled to one half of the net proceeds of the speculation.

11,302. Are your agreements with the men, at the commencement of the season, in writing or in printing?-They are in writing, never in printing.

11,303. But you do enter into a written agreement which each man signs?-Sometimes, and sometimes not. Sometimes the agreement does not bind them at all. We can get no damages from them if they choose to break through it; it is simply a moral agreement, not a legal one at all.

11,304. What is the use of having an agreement if it is not binding?-Just to show their proportion of the speculation, and f or the sake of making up the half-yearly returns for the Board of Trade.

11,305. Have you a regular form of agreement?-I cannot say that it is uniform; it has to be altered in some years.

11,306. Do you write out one annually for each smack?-No; it is all one agreement, which is applicable to the whole of them; there is no difference whatever. I shall send one of these agreements.

<Adjourned>.

SCALLOWAY; TUESDAY, JANUARY 23, 1872

GILBERT TULLOCH, examined.

11,307. Are you the shopkeeper at Scalloway for Messrs. Hay & Co.?-I am.

11,308. They have a curing establishment here, and buy a quantity of fish?-Yes.

11,309. They also have a shop in which goods of all descriptions are sold?-Yes, all that are generally sold to fishermen.

11,310. Have you the entire management of their business here?- Yes.

11,311. You take delivery of the fish from the men, and enter the quantities received in the fishing book?-I settle with the men for the fish as I receive them, and I charge the amount against my employers.

11,312. You are now speaking of the winter fishing?-Yes.

11,313. In that fishing each transaction is separate and distinct?- Yes. The men are paid over the counter as they deliver the fish, for all that we purchase in Scalloway. They don't go into any account at all. Where the fish are delivered at other places, they are settled for at Lerwick.

11,314. Then with the regular summer fishing you have nothing to do?-No; Messrs. Hay have curers at the islands for that.

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11,315. They have factors at Burra and other places who receive the fish, and the settlement for them takes place at Lerwick?- Yes.

11,316. Your duties consist in managing the business the shop, and selling the goods there, and in purchasing fish or oil which the men voluntarily bring to you?-Yes.

11,317. You have nothing to do with the men who are engaged to fish in the home fishing?-Nothing.

11,318. When you take delivery of a quantity of fish from the men, is no part of that entered in your books?-If the men have taken up advances before, then these enter the books; and that is done occasionally.

11,319. But when it does enter your books, it is entered as a separate transaction at the time in the fisherman's account in the ledger?-Yes.

11,320. That is to say, you have a ledger for the shop transactions in which each man has an account?-Yes; and if he wishes any part of his fish to go to his account, to help in clearing it off, I enter it there.

11,321. But when you put it to his account, the quantity of fish delivered at the particular time is stated, with the price, and the sum is put into the money column?-Yes.

11,322. Have you many transactions of that kind with the men at Burra?-Yes; principally in winter.

11,323. In spring and summer do they sometimes come to you with fish?-They deliver them at the stations, and they are settled for at Lerwick, with Messrs. Hay.

11,324. But do they sometimes endeavour to carry out transaction with you for ready money or for goods?-Occasionally; when they require it, they will come to us with a few fish, to get groceries or any things they want. They are not prohibited from doing that if they wish it.

11,325. Messrs. Hay do not forbid them, when they are engaged for the season, to come to you for any supplies they may want, and to give their fish in exchange?-That is not forbidden, so far as I am aware.

11,326. And in these transactions with fishermen, from whatever place they come, is the payment generally made in goods or in money?-Part in both. They get what goods they want, and their balance is paid in cash. I cannot say that more is paid in goods or in cash.

11,327. Is not the great bulk of the fish paid for by out-takes?- Generally.

11,328. About how many men are entered in your ledger with whom you deal in that way?-I could not say exactly. They come from different places, and could not state the exact number.

11,329. They are not merely the men who are employed by Messrs. Hay for the summer fishing, but many others besides?- Yes.

11,330. Will you have 100 of these accounts in your ledger?-I could not say exactly.

11,331. Is there it separate ledger kept for the Burra men?-Yes.

11,332. Do they keep all their accounts here?-They keep accounts with me for all their dealings here, but they deal both here and in Lerwick.

11,333. In what season of the year do you make settlement with the men who have accounts in the way you have described?-The Burra men all settle at Lerwick. They only get their advances from me, and they settle at the end of the year with my employers.

11,334. Is a note of their advances handed in to Lerwick?-Yes.

11,335. Do you settle here with others than Burra men who deal with you?-No; they are all settled with at Lerwick. The whole of the accounts are settled there, unless any man wishes to pay any provisions he has had himself. He has it in his option to pay these things to me if he likes; but that is only done in very rare cases.

11,336. Do you sometimes pay money for fish here?-Sometimes.

11,337. In what cases does that occur?-In the case of it neutral man who is not connected with the Lerwick business.

11,338. Then it is only the men who are in the regular employment of Messrs. Hay who settle at Lerwick?-Yes.

11,339. When you have a customer who fishes independently, or for another firm, and who runs an account in your book, he settles with you here?-Yes. He keeps an account with me, and I settle with him.

11,340. At what season of the year is that done?-It is generally at the end of the year, at the usual settling time in Shetland.

11,341. How many men of that description do you suppose there may be in your books,-men who either sell their own fish all the year round, or sell their fish to you cured?-There are very few of them.

11,342. Most of your customers are in the regular employment of Hay & Co.?-Yes.

11,343. And most of them, I suppose, including the Burra men, are bound by agreement for the year to deliver their fish to that firm?-They are not bound by agreement, so far as I know.

11,344. But they are engaged for the summer to fish for the firm, in the boats of Messrs. Hay?-They are.

11,345. The bulk of the accounts kept in your shop will be with such men?-Yes.

11,346. You were not asked to bring your books?-No.

11,347. Can you give me any idea of the amount of cash you pay to these few men with whom you settle here?-I could not give an exact account of it. I have bought

about £100 worth of fish, ling and cod, since May last up to this date.

11,348. Are you the largest purchaser of fish in that way in Scalloway?-I could not say; there are other fish-buyers here.

11,349. There are other parties who buy fish in the same way, and some other parties who employ boats of their own for the summer fishing?-There are a few, but not many.

11,350. Mr. Nicholson has some?-Yes.

11,351. And Mr. Tait has one?-I suppose he has but he does not do much in that way.

11,352. Is the amount you have stated the ordinary amount which you purchase during the same period each year?-It is sometimes more and sometimes less. It just depends on the success of the fishing.

11,353. How much of that would be purchased in the summer and autumn?-Not much in the summer. The greater part will be purchased in winter.

11,354. In summer the men are delivering their fish at Burra, so that less fish are brought to you at that time?-Yes.

11,355. Are your supplies of goods got from Lerwick from Messrs. Hay?-Some come from Lerwick, and some come direct from the south.

11,356. Are they invoiced to you at wholesale price, or at the price at which you are expected to sell them?-They are invoiced at the wholesale price and I fix the retail price myself.

11,357 What price do you pay for fish to the neutral man who brings them to you in that way?-It is not always the same; sometimes it is more and sometimes less.

11,358. What has been the price this season?-It depends upon the size of the fish we get. For ling and large cod I paid 6s. a cwt up to the commencement of this year, and since then I have paid 7s.

11,359. Do you generally pay that in money?-No; part in goods, and part in money.

11,360. Do your books show in what proportion the payments consist of money, and in what proportion of goods?-We keep no account of what is paid directly over the counter. I charge my employers with the amount of fish which I purchase from these men, and settle with the men at once as I get them.

11,361. Are the fish brought to the counter?-No, they are weighed in the store. There are people there for that purpose.

11,362. When you are weighing them and taking delivery of them, do you ask the man what he wants?-Yes. He gets whatever goods he wants.

11,363. Then when you have taken delivery you go with him to the shop, and give him either goods or money?-Yes; we give him the goods, and then the balance in cash.

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11,364. If it is not convenient for you to go yourself, suppose you have a shopman who will act in the shop in your stead?-We have a man for weighing, the fish, and he comes up with the account of the fish he has got, and then we settle with the men according to the weight which he gives in to us.

11,365. Does the man who takes in the fish enter their weight in any book at the time?-No; he marks it down upon a board, or anything, and comes up to the shop as soon as he has weighed for a boat's crew, and gives in the weight. We enter that in our book, and pay the price to the men.

11,366. Does the man who weighs the fish always come up to the shop?-Yes.

11,367. He does not send a note of the weight he always comes himself?-No, he always comes himself.

11,368. Do you ever pay the price altogether in cash-Sometimes; if the men want no goods we pay it in cash.

11,369. Is that a usual thing?-It is not usual; but sometimes it is the case.

11,370. Is there any particular reason for paying it all in cash when that is done?-If the party wants no goods, then he gets the cash.

11,371. Or if he wants the cash for any particular purpose?-Yes.

11,372. I suppose he will generally tell you if he wants the cash for any particular reason?-Sometimes he does.

11,373. And you make no objection to giving it to him?-No, not if he wants it.

11,374. Do you give him the same price in cash as in goods?- Quite the same; it makes no difference; we have a fixed price.

11,375. Is it entirely in the choice of the men whether they take goods or cash?-Yes.

11,376. But is it not part of the system that the payment is for the most part taken in goods?-That depends upon the parties themselves.

11,377. Do you mean to say, that if the fishermen were all to combine and ask for their payment in cash, they would get it, or would that necessitate any change in your system of carrying on business?-I suppose they would get it; but we might not have enough cash to pay out such large sums as that. We are not near any bank, and we might not have sufficient cash in hand for all that we required, if the payment was wholly in cash.

11,378. Would you find it inconvenient to pay for these fish altogether in cash?-Yes, unless my employers were to give me sufficient cash to meet their demands.

11,379. Your arrangements are made upon the footing, I suppose, that the bulk of the payments are to be taken in goods?-That is understood, although there is no arrangement made about it.

11,380. There is no arrangement made with the men, but it is understood that a great proportion of the transactions are to be settled for in goods?-If the men get as good articles from us as they can get from any other party, I don't see why they should not take payments in that way.

11,381. It might very well happen, I suppose, that even if you did pay in cash, the man would take his cash and spend it at your shop?-Yes; and sometimes that is done.

11,382. But, in point of fact, your business arrangements are made upon the footing that the great amount of the fish sales are to be paid for in goods?-There is no arrangement at all.

11,383. But your own business arrangements are made on that footing? You don't keep a sufficient supply of cash to meet the requirements of a ready-money trade?-No, that has not been the practice.

11,384. Then is it not an exceptional case, and a mere favour to the fisherman, to pay him in money?-It is in his own option to take either goods or money. If he wants the goods he gets them, and if not we pay him in cash.

11,385. But is it not the case that a man is not paid in cash unless he expressly asks for it?-He is not paid in cash unless he wishes it. He gets whatever goods he requires, and the balance is paid over to him in cash.

11,386. The first thing settled between you, after fixing the price, is what goods the man is to take?-Yes.

11,387. And after that, if there is any balance over, it is paid to him in cash?-Yes.

11,388. But, as a rule, he takes out his goods first?-Yes.

11,389. Do you suppose that three-fourths of the value of the fish sold are paid for in goods?-I could hardly say. We never keep any account of that.

11,390. What is the usual quantity of fish brought to you at one time in winter from one boat?-It varies very much.

11,391. Will it be two or three cwts.?-Sometimes more, and sometimes less.

11,392. Would five cwt. be a good catch for it day in winter?- Yes, it would be a good catch.

11,393. Are there many ling caught in winter?-Not many. There are very few tusk caught then. They are chiefly cod, and some ling. There are three classes of cod. There is a large class, and a small class, and a middle size, and the price is different. The price for small cod is now 5s. per cwt., but the large cod that can be sent to Spain are always paid for higher. The price for them is 7s. now.

11,394. Suppose a man were bringing five cwt. of cod to you, he would get, I suppose, about 30s. for it, if it were equally composed of large and small cod?-Yes. That would be divided among the men in the boat,-say three or four men.

11,395. That would be about 7s. 6d. each?-Yes, supposing the price to be at the rate you have mentioned.

11,396. Would it be usual for the man to get the whole of that 7s. 6d. in goods?-That would depend upon himself. Perhaps he might require two-thirds of it in goods, and the other third in cash.

11,397. Would 2s. 6d. be about the largest sum would get in money upon such a catch of fish?-It might be more or less.

11,398. But he would sometimes get it all in goods, I suppose?- Sometimes.

11,399. Do you remember any case in which he got it all in cash?-There have been several cases of that kind. I was looking in the shop books before I came here, and I picked up some papers in the shop showing how much cash they get. [The witness handed in papers containing the following accounts:-

<Robert Goodlad>.

11s. 71/2d. Tea, 1s. 4d.; sugar, 21/2d., £0 1 61/2 Loaf, 4d.; sugar, 11/2d. 0 0 51/2 Soap, 21/2d., sulphur, 11/2d., 0 0 4 Soda, 11/2d.; cotton, 1s. 6d. 0 1 71/2 Cotton, 0 0 3 Porter, 5d.; biscuit, 3d.; cash, 6s. 9d., 0 7 5 £0 11 71/2

<Thomas Goodlad>. 11s. 71/2d. Tea, 1s. 4d.; sugar, 61/2d.; £0 1 101/2 Tobacco, 8d.; oatmeal, 1s. 3d., 0 1 11 Soap, 21/2d.; sund. 51/2d., 0 0 8 Cotton, 11d., 0 0 11 £0 5 41/2 Cash, 0 6 3 £0 11 71/2

<William Pottinger>. 8s. 3d. Tobacco, £0 1 0 Tea, 0 0 8 Cash, 0 6 7 £0 8 3

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<Laurence Smith>. 8s. 3d. Oatmeal, 1s. 101/2d.; tobacco, 6d. £0 2 41/2 Stamps. 2d.; paper, 21/2d., 0 0 41/2 Soap and sod, 4d.; sugar, 21/2d., 0 0 61/2 Shoe-brush, 6d, 0 0 6 Handkf., 10d.; loaf, 4d.; syrup, 3d., 0 1 5 Soda and thd., 11/2d. 0 0 11/2 Acct., 1s.; cash, 1s. 11d., 0 2 11

<P. Lesslie>. 17s. 5d. Rum, 6d.; cash, 1s., £0 1 6 Do. 9d.; tea, 1s. 2d., 0 1 11 Tea, 1s. 2d.; sugar, 6d., 0 1 8 £0 5 1 Cash, . . 0 12 4 £0 17 5]

These are notes made at the time when the settlement was made with the men.

11,400. Do you remember when these settlements took place?- No. I merely found these papers in the shop, and brought them here. It may have been about three or four weeks ago, or it may have been longer.

11,401. Has there not been a much larger amount of cash paid in these cases than is usual in such transactions?-It is larger than in some cases.

11,402. And you might have found other slips or notes in which the whole amount was taken out in goods?-I don't know about that. But that is the way in which we settle, and the fish are afterwards charged to my employers.

11,403. Is it not often the case that there is not more than 1s. paid in cash on a transaction of 8s. or 10s.?-Sometimes that is the case.

11,404. Is it not oftener under 1s. than over it?-I could hardly say about that.

11,405. Is it not oftener under 1s. 6d. than over it?-I should say that it is.

11,406. Can you say that, in half the cases that occur, there is a cash balance paid at all?-No. I would not say that there was so little cash paid as that.

11,407. But you could not say to the contrary?-I could not say either the one way or the other.

11,408. In the case of a separate and distinct sale of fish, such as we have been speaking of, the price is paid in full, and there are no deductions of any kind to be made?-None.

11,409. The boats and the lines are the men's?-Yes, unless some of them may have got credit for their boats and lines.

11,410. Do you hire out boats for the winter fishing?-No; the men have boats of their own.

11,411. But they may have got the lines at your shop, and they may be standing against them there?-Yes, either standing against them, or they may have settled for them with Hay & Co.

11,412. In that case you may retain the price of the winter fish to meet the price of the lines or boat?-Yes, if the men wish that to be done.

11,413. Or if you have a heavy debt against the men, you may retain the price of the fish whether the men choose or not?-That is never done by me.

11,414. Has there never been an arrangement or understanding by which a portion of the fish delivered to you in that way is retained on account of the lines or boats supplied to the men?-No, not in winter.

11,415. Have either you or Messrs. Hay & Co. any interest at all in the boats used in the winter or spring fishing?-I have none. I have only a share of one herring boat. I receive a salary from Messrs. Hay.

11,416. Have Messrs. Hay any interest in the boats used in the winter fishing?-No; the boats belong to the men, and they have them on their own account.

11,417. Have you an interest in several of the boats engaged in the summer fishing?-No. As I have said, I have only one share of a herring boat.

11,418. You have no share in any of the smacks that go to the Faroe fishing?-No.

11,419. Are you not part-owner of some boats employed in the summer fishing?-No.

11,420. Were you ever so?-No. I have never had any share of any boat except the herring boat that I have a share in now.

11,421. Have you the management of Messrs. Hay's curing establishment here?-Yes.

11,422. There is a large curing establishment here, with beaches?-Yes.

11,423. How many people are employed there in the fishing season?-It depends on the success of the fishing in the summer, and the amount of fish we get.

11,424. How many were employed last year?-I could not say exactly. Perhaps about ten or a dozen were employed about the beaches at Scalloway.

11,425. Had you the superintendence of the beaches at Burra?- No; there were men appointed for that.

11,426. With regard to the ten or a dozen employed at Scalloway, were those men, women and boys?-Yes.

11,427. Were they paid weekly wages?-Yes. They were paid every Saturday, either by me or at the shop.

11,428. Were they paid in money every Saturday?-No, they had to get supplies during the week; and at the end of the week any balance they had was paid in cash.

11,429. Was there generally a balance due?-It was very rarely that there was. They had generally to get supplies to the full amount of their wages.

11,430. Is payment made to them in the shop at the counter?- Yes. Their advances are entered against them in the book, and then their wages are placed to their credit and if they have anything to get it is given to them.

11,431. Is there a separate ledger account for each of these parties?-Yes, every one has an account, and when he gets advances these are put to that account.

11,432. Can you say that any money ever passes at any settlement with these beach people?-Sometimes there has been a little, but not a great deal.

11,433. Will their average wages be 8s. or 9s. a week?-Not so much. In summer the women get 10d. a day, and in winter 1s. We have a few people employed in winter, but not so many as in summer.

11,434. Are you engaged in the hosiery business at all?-No.

11,435. Do you purchase any quantity of butter and eggs from the people in the district?-Not a great quantity. There are no cattle in the village to give butter, but I buy a small quantity from people in the district.

11,436. Is that paid for in goods?-Yes.

11,437. Do the Burra people bring butter and eggs to you sometimes?-Very little. They sometimes bring a few eggs in summer, and they always get goods in return for them.

11,438. Do the Burra people bring all their eggs to you?-No; they are at liberty to sell them to any person they choose.

11,439. When settling time comes, what have you to do with the men who have accounts in your books?-I send in a note of each man's account to Messrs. Hay, at Lerwick.

11,440. Has the man checked his account in any way before you send it in?-If they choose, they can get their accounts read over to them. Some of them have pass-books, while others have only their accounts read over.

11,441. Do they all get them read over to there?-Generally they do. If they have any doubt about their account, they get it read over; but I have very few disputes of that sort with them.

11,442. Is it the general practice to read over the accounts to the men?-If they wish it.

11,443. But do they generally wish it?-Some of them do, and some do not.

11,444. I suppose the majority do not?-Yes.

11,445. Are they rather careless about these things?-Yes.

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11,446. Suppose you read over a man's account to him, and he objects to any of the items, how could he get that corrected?- Sometimes a man may forget, and he would come to recollect afterwards; but it is very seldom that that occurs with us.

11,447. If he has not a pass-book, has he any means of checking his account at all?-Yes; by his own memory.

11,448. But when you have an entry in your own book, and he says it is wrong, do you correct that entry according to his memory?- No; we would not do that.

11,449. You try to convince him that he is in error?-Yes, and we generally succeed.

11,450. Do you always succeed?-I would say so but we have had very few cases of that sort.

11,451. Don't you think it would be much better if the men would all take pass-books?-Yes; it would prevent any doubt about these matters.

11,452. But I suppose it would give you a good deal more trouble?-It would.

11,453. Is there anything to hinder you from paying ready money when you are settling the price of fish as they are delivered?-If the law was that, we would have to do it the same as others.

11,454. But is there anything to prevent you from doing it, although there is no law on the subject?-There is nothing to prevent us.

11,455. Would it not facilitate your business a good deal?-Yes.

11,456. You could carry on your business with less trouble to yourself ,-only the men might perhaps spend the money at another shop, instead of yours?-Yes.

11,457. Is the price paid for winter fish, when they are bought by you in small quantities, less than is usually paid for summer fish #at settling-time?-No, it is the same price.

11,458. Have you the management of the oyster fishing here?- There are very few of them caught. I have not the management of that, but I sometimes buy a few.

11,459. Do you sometimes buy lobsters?-Not many.

11,460. Are they all paid for in goods in the same manner, and to the same extent, that you have mentioned?-Yes, just in the same way as the others.

Scalloway, January 22, 1872, LAURENCE MONCRIEFF, examined.

11,461. You are a baker and provision merchant in Scalloway?-I am.

11,462. You are not a fish-merchant at all?-No.

11,463. Do you purchase hosiery to some extent?-I purchase fancy hosiery to a small extent,-principally veils and shawls, and things of that kind.

11,464. Do you usually pay for it in goods from your shop?-Yes.

11,465. Do you pay for it to any extent in money?-No. I never give money for hosiery.

11,466. Is it always understood that people selling hosiery at your shop are to take goods in exchange?-That is always understood.

11,467. Are you often asked for money?-No. It is always the understanding that they are to take goods but I have been asked once or twice for money.

11,468. Do you employ any people to knit with your wool?-Yes.

11,469. Are they paid in the same way?-Yes.

11,470. Are they employed entirely in knitting, or do they sometimes work at other things?-Some of them depend entirely, or almost entirely, on knitting; but when they require money for their rent or for any particular article which they cannot get for knitting, then, I suppose they have to work at something else.

11,471. Or perhaps they sell their knitting to a shop where they can get what they want although you do not deal in it?-Yes.

11,472. They may go to Lerwick and sell it for soft goods?-They may; but I keep a small assortment of soft goods.

11,473. Therefore they can get most of the articles they want in your shop?-Yes.

11,474. If they cannot get the articles they want are you aware whether they have sometimes been obliged to sell the goods they have got for hosiery, in order to procure what they want?-A case or two of that kind has come before me. I remember one occasion, when I gave a woman some provisions for some soap or something, when she was in a difficulty for the provisions; but that is the only case of the kind that I remember clearly about. Perhaps there may have been more.

11,475. What was the nature of that case?-I suppose she had bartered her knitting for the soap in some place. She was requiring provisions, and could not get them, and she exchanged the soap to me for provisions.

11,476. Was that long ago?-It is some time ago but I don't remember the exact time.

11,477. Did that case strike you as being in any way peculiar or extraordinary?-No. Very few of the hosiery dealers keep provisions, so that at the time the woman had no

other way of getting them.

11,478. What price did you give the woman for the soap which she sold to you?-I think I gave her as near my own selling price as I could. It was a small quantity only that she offered to me and it was not worth making any difference upon it. That is generally what I do in cases of that kind which happen to come before me.

11,479. Do you generally give them as near as possible your own selling price for the soap?-Yes.

11,480. Just enough to allow yourself a little commission for your trouble?-No, I don't think I could have any commission on the like of that; at least I don't make a practice of charging a commission in cases of that kind. I don't like to do it if it can be avoided, but in cases of great necessity I sometimes find it my duty to do so.

11,481. You sometimes find it your duty to relieve people's necessities in that way?-Yes, sometimes, if I can manage it.

11,482. But don't you give them a lower price than that which they have nominally purchased the soap for?-I don't think I do that.

11,483. Do you not buy the soap so as to make some little profit upon it when you re-sell it?-The amount of the transactions in that way is so small that I can hardly say. I try to avoid doing it at all; and unless in a case of extreme necessity, I would not do it. It is merely in a case where it is required in order to save life that I do anything of the kind.

11,484. How many women do you usually employ in knitting with your own wool?-I have had very few employed for some time back, perhaps only two or three.

11,485. Do they keep accounts with you for what they want?- Very few of them. I just pay them at the time; but I have a few accounts that I run with some of them.

11,486. Are these accounts both with women who knit with your wool, and with women who knit with their own wool and sell their goods to you?-It is principally with those who knit with my wool that I have accounts.

11,487. What was the name of the person from whom you bought the soap on the occasion you have mentioned?-I think it was either Margaret or Catherine Irvine.

11,488. Was that a very exceptional case?-I should think so.

11,489. Have you not frequently bought from women the goods which they had got in shops at Lerwick?-No, not frequently. That is the only case I remember of distinctly. I remember something being said about the women bringing goods for sale at other times, but I have no distinct recollection about that. It would hardly do for me to make a practice of that, because I have to live and support my family by my profits.

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11,490. But if the women were disposed to sell the goods to you at such a price as would enable you to derive a profit on your re-sale of them, that would be quite

legitimate and fair?-Yes; but they could not do that.

11,491. Why?-Because it would cause them a considerable loss. I suppose the goods are priced at an advance before they get them, and they could not afford to sell them to me at a less price than they had paid for them themselves.

11,492. You said you had heard of other cases being mentioned, in which women had offered their goods for sale: what have you heard about that?-I have heard some of my family speaking about the women getting their goods exchanged for provisions, or something of that kind.

11,493. Is your shop generally attended by yourself, or by some of your family?-It is generally attended by mny brother-in-law; he is not here.

11,494. Can you say that he has not bought goods in that way from knitters?-I think not. I don't think he would do that without letting me know about it.

11,495. Do you know of any person here who purchases goods in that way from women who have got them for their hosiery?- There may be such persons but I am not aware of any one who makes a trade of it, or who could make a trade of it. There may be some who do that in order to oblige a woman or to relieve her necessities, but I don't think they could make a practice of it. I have heard of Mrs. Tait doing it in that way.

11,496. Would you show me where you keep your accounts with these women?-Yes. [Produces book.] It is only a small part of that book which I use for that purpose. This [showing] is an account of a woman who dresses for me. Besides what is entered to her account, she is sometimes paid by goods which do not appear in the book at all.

11,497. I see here an entry: 'To amount from line:' do you give lines?-I sometimes give a line to her when I do not care about entering it in the book. I should like better to pay her at once what I was due to her, if I could possibly do so.

11,498. What was the purpose of giving the line?-Just as a security.

11,499. She did not want the goods at the time, and you did not want to open an account?-No.

11,500. You would rather that these women would take the goods at once than have the trouble of keeping an account with them?- Yes.

11,501. What was the form of the line you gave?-It was just a credit note, bearing the name of the party and the amount for which they had to get credit from me.

11,502. Is the amount of that note understood to be paid in goods or in money?-It is never understood to be paid in money. I could not give the same price in money as I could give in goods.

11,503. Does the line express whether it is to be paid in goods or in money?-No.

11,504. Do you issue many of these lines?-Not many; very few require them. They generally take out goods to the full amount at once.

11,505. How did you happen to enter that line in your book?-The woman was getting fully more work from me than she could take out in goods at once, and she preferred to continue working for me and to get things for her family as she required them.

11,506. I see that the bulk of the entries in these accounts are for provisions?-Yes, and for such other goods as we keep-tea, sugar, loaves, butter, meal, flour, soda and other things.

11,507. Where do you get your supplies of worsted?-Principally from Edinburgh or Leith.

11,508. Do you buy any Shetland worsted?-No; I cannot get it to buy.

11,509. Have you tried to get it and found it difficult?-Not often. It was only last spring that I began the hosiery trade at all.

11,510. Do you import all your worsted direct from Edinburgh, or do you get any of it through the Lerwick houses?-I get it all from a wholesale house in Edinburgh.

11,511. What is the quality of the worsted you get from there?-It is generally the finest quality, but not mohair. I don't deal in mohair at all. We generally use two qualities for veils, and these qualities are distinguished by numbers, but I don't remember the numbers just now. I buy it by the pound, and I think it costs me from 5s. to 8s. per pound.

11,512. Do you sell the worsted to knitters?-Yes, when I have an extra supply of it.

11,513. Are you paid for it in hosiery articles or in cash?-In either way; I give it for either when I do sell it. When they have a quantity of hosiery to sell, I prefer them to take an assortment of goods, because provisions are a thing that most people have very little profit upon. If they take the whole price in meal or in anything of that kind, I would not have much profit upon it.

11,514. You would rather have them to take some of the price in soft goods?-Not in soft goods, but in an assortment of groceries.

11,515. When a woman brings her hosiery to you first fix the price, and then, I suppose, you ask her what she wants?-Yes.

11,516. When you come down to a balance of 1d. or 2d, how do you settle that?-If they want nothing else, I often give them the balance in cash. It is the understanding that they are to take the price for their hosiery in goods, but still I don't hesitate to give them 1d. or 2d., or any small thing in money.

11,517. You may give them a penny, or a postage stamp, or a package of sweeties, or anything of that sort?-Yes.

11,518. Have you any accounts with fishermen?-No; they generally run their accounts at the places where they are employed. I would not like to run the risk of supplying them. I think those who are getting the benefit of their fishing ought to run the risk of giving them what supplies they want. I deal with a good many of them in ready money for bread and provisions; not to a very large extent but just in a general

way.

11,519. Do you find that they always have ready money with which to pay you for provisions and bread?-Most of those who deal with me have.

11,520. Do you think businesses such as yours would be improved if the fishermen were paid in ready money for the fish they take?-It is possible they might.

11,521. Don't you think you would have a better chance of succeeding in business if the fishermen did not have such long credits?-It is very likely.

11,522. They would have more ready money in their hands throughout the year?-Some of them would.

11,523. At what season of the year have you the largest receipts in your ready money business?-In summer and harvest, I think; but I attribute that more to the weather than to anything else. The country people cannot get to the place in all weathers; they have often to come by sea, and then if they leave home at all it is generally just as easy for them to get to Lerwick as to go to Scalloway.

11,524. Still I don't see how that accounts for your ready money business being larger in summer and harvest than at other periods of the year?-The boats can come from the west side and from the islands in summer more readily than they can in winter, when, perhaps, they cannot get away for weeks. It is chiefly upon people in the country that my business depends. The village of Scalloway is small, and the business from it is also small, so that it is only when the weather is suitable that my customers from the country cannot in to deal with me.

11,525. Do you have a larger amount of business from your immediate neighbours in the spring than at other seasons?-No, I have not noticed that. The business is so mixed up that I can hardly say.

11,526. You don't think the fishermen round about you come to deal with you to a larger extent after settling time in spring than at other periods of the year?-I am not aware of that.

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Scalloway, January 22, 1872, CLEMENTINA GREIG, examined.

11,527. You live at Braehead, Scalloway, with your sister?-Yes.

11,528. Your mother died about two years ago a very old woman?-Yes; she was 95.

11,529. Have you supported yourself for a long time by knitting?-Yes; I began to knit thirty-three years ago, and since then I have not earned a sixpence by anything else, except my own family work. My mother also depended on me.

11,530. What kind of knitting do you do?-Shawls and veils.

11,531. Have you ever got any money for your work?-I have sold several shawls and veils to gentlemen who were travelling through the country in July and August, and got money for them; but I never got a penny in all my life from any of the merchants in Lerwick. I was the first individual in Scalloway who commenced to knit,

and I have taught many of the people here.

11,532. Do you knit with your own wool, or with worsted that is given out to you?-On several occasions, within the last three years, I have bought some Scotch worsted; but before that I always spun the wool myself, and sold my own goods. I never knitted a shawl or a veil for a merchant in my life.

11,533. Did you think it better to knit with your own material?-I think it paid a little better when we got a price for it, but it was very seldom that a sufficient price was given. For shawls that I used to get £1 for from gentlemen in the south, the merchants never offered me more than 17s. or 18s., and that was paid in goods.

11,534. Who did you knit most to?-To Mr. Robert Sinclair. I scarcely ever sold a shawl to any other merchant than him.

11,535. Have you sometimes asked him for money?-Yes. Two years ago, when my mother was dying, and my sister was brought in with a broken limb, I took a shawl to Lerwick, in order to get a doctor. I went to Mr. Sinclair with the shawl, and he asked what I wanted. I said I was selling it in a case of necessity, and that I wanted 18s., and he offered me 17s. I asked him, if he would give me a little money if I sold it to him for 17s., but he said he would not, and he rejected it. I sold the same shawl, when I came back, to Mr. Garriock, Reawick, and I got £1 for it in money from him.

11,536. Does Mr. Garriock buy shawls for sale?-No. He told me he had got an order from some ladies for such work; and generally when he gets an order he buys one or two of these things from me, and sends them off to his friends, but he is not a merchant.

11,537. The shawl which you sold for £1 would be a large fine shawl?-Yes. I have got as high as 25s. in money for them.

11,538. How long does it take you to make such a shawl?-When I spin the wool myself it takes me a month, but with clean worsted I will make it in about three weeks.

11,539. How many cuts does it take to make a shawl of that sort?-It takes 32 cuts of Shetland worsted to make a shawl of about 22 or 23 scores, 21/2 yards square.

11,540. Where do you buy the wool that you spin?-I often buy it in the shops in Lerwick when they have it to sell.

11,541. Do some of the merchants in Lerwick sell the wool?- Yes, when it comes in. The poor people who bring it from the country sell it for meal and goods, and the merchants send it out again. I have bought it from Mr. George Laurenson for the last six or seven years. He gets the best of it from Unst. His shop is in Lerwick, beside Mr. Sinclair's.

11,542. Do you buy that wool by the lb.?-Yes; we pay 1s. 6d. for the finest wool, and half pound of that makes a shawl. It will produce 32 or 33 cuts, and make such a shawl as I sold for £1. I last bought wool from Mr. Laurenson in July of last year. I got 11/2 lbs. at that time at 1s. 6d. a lb. When I am busy I buy some Scotch worsted and knit it too.

11,543. Is the Scotch worsted what is called Pyrenees wool?-Yes.

11,544. Where do you buy it?-From Mr. Sinclair but when we sell him a shawl he will not give us worsted back upon the shawl.

11,545. Not even Scotch worsted?-No. I must pay the money for worsted, whether it is Scotch or Shetland. The Scotch worsted sells by the oz., at 10d. or 1s., according to the fineness of thread. It takes 6 oz. of that worsted to make a shawl for which I will get £1.

11,546. Have you bought any Shetland worsted?-I have always bought the wool and spun it myself.

11,547. How long will the spinning of half-a-pound take?-It will take me a week to spin it sitting very close at it and sleeping very little.

11,548. Would it be cheaper to buy the Scotch worsted?-Yes; but articles made of it do not sell so well. The Shetland worsted is preferred, as being much better.

11,549. Do you think you will have a larger profit on a shawl, the wool for which you have been a week in spinning, and in knitting which you have been employed another four weeks, than on a shawl which you make of Scotch worsted?-Yes.

11,550. When you buy the Scotch worsted and make a shawl of it, how long will it take you to knit it?-I will make it in less than three weeks.

11,551. What will be the difference in the price which you get for the shawl at the end of that time?-When I have sold a shawl made of Scotch worsted to gentleman or lady who happened to be in the country in July or August I have got as much for it as for one made of Shetland worsted, because the one is as fine as the other, but they prefer the Shetland thread to the Scotch thread. The merchants in Lerwick will not buy a Scotch shawl from me. They put out worsted of that kind to be knitted for themselves, but they will not buy such things from us. They will only buy the real Shetland work.

11,552. Have you ever done any knitting in silk?-No.

11,553. Is it as a favour that the merchants sell you worsted when they do sell it?-No. They are quite willing to sell it if we have money to pay for it.

11,554. Have you asked for worsted in return for your hosiery?- Yes. I asked it from a Mr. Sinclair, and he would not give it. I have asked that both from himself and from some of the men in his shop, and they said it was not a customary thing, and they could not give it.

11,555. Have you ever offered to take a lower price for your knitting if you were paid in money?-Yes. In the case I have mentioned, I offered to take a less price if they would give me 1s. or 2s. in money; but they refused, and I took home my shawl, and did not sell it to them.

11,556. In that case did you ask for the whole price in money?- No; I only asked him if he would give me a little money upon it. The price I asked for the shawl was 18s., and I offered to give it to him for 17s. if he would give me some money.

11,557. Did he price the shawl at 20s.?-No; he priced it at 17s. I priced it at £1 and I got that for it when I took it home.

11,558. Have you ever been obliged to exchange any of the goods you got from the hosiery merchants?-I never exchanged anything for provisions, because when parties came to the country in July and August, I would often get two or three shawls sold to them for money.

11,559. Do you know that people who knit have sometimes been obliged to exchange soft goods for provisions?-I believe there are some who have been under the necessity of doing that.

11,560. Do you know any people who make a practice of buying goods from women in that way?-No, I don't know any one who makes a practice of it.

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11,561. Are there not some people who go about the country hawking goods, which they have bought from the women?-I believe there are; but I do not know their names, because I have never been in the habit of dealing with them.

Scalloway, January 22, 1872, EUPHEMIA RUSSELL, examined.

11,562. You live with your mother at Blackness, Scalloway?- Yes.

11,563. Your mother is an old-woman and bedridden?-Yes; she is seventy-two.

11,564. Do you support yourself by knitting?-Yes, or by out-door work when knitting cannot be sold for money.

11,565. Would you give your whole time to knitting if you could get money for your work?-Yes.

11,566. How long are you obliged to go to out-door work in the year? Two or three months every year?-Yes; if it was all put together, it would be two or three months.

11,567. Do you just go to that when you want money?-Yes.

11,568. Is it in the fields or the fish that you work?-Sometimes in the fields and sometimes at the fish.

11,569. For how long have you been in the habit of knitting?-For about twenty-five years.

11,570. Have you often been paid in money for it?-Never, except on an occasion when a stranger was passing, or when Mr. Garriock would take my work. He has sold several shawls for me.

11,571. Did you hear what Clementina Greig said about the quantity of worsted required for a shawl?-Yes; I agree with her evidence about that.

11,572. Have you bought wool yourself?-Yes; I have bought wool from Widow Nicholson, who lives near here, and also from James Williamson, when he had a little to spare. I paid 1s. 6d. for his wool, and 1s. 4d. for hers; but that was not used entirely for shawls. I took the best of it for shawls, and the rest was used for other

purposes.

11,573. Did you spin that wool yourself?-Yes. When my mother was in health she spun it; but I spin it for myself now.

11,574. Do you take as long to spin it as Clementina Greig said?- Yes, quite as long.

11,575. Do you sometimes get a little money for your hosiery?- Not from the merchants in Lerwick. I never ask for it there, because it is not the custom to give it.

11,576. Do you keep an account with any of these merchants?- No. I just sell my goods right off, and settle for them at once.

11,577. Have you ever sold them any hosiery made of Scotch worsted?-No. I never made with that Scotch worsted; I always made my own worsted.

11,578. Have you ever had occasion to exchange any of the goods which you got from the merchants for your hosiery?-I have exchanged tea for meal with the country people round about, but nothing else. I took more tea from the merchant than I intended to use myself, and I have given it in exchange for meal several times.

11,579. Do you generally take a quantity of tea from Mr. Sinclair?-Yes. When Mr. Sinclair bought my goods, as he always did when I offered them to him, he never refused to give me anything in his shop that asked from him, except worsted. I once asked worsted from him, and I did not get it.

11,580. But you got everything except worsted or money?-Yes.

11,581. Have you lately taken more tea than you required, and exchanged it for meal?-I have not done it this year, because I sold a shawl to Mr. Garriock, which supplied me with money in the meantime, and paid my rent and some other little things besides.

11,582. When you want money, do you generally get it in that way?-When I want money, I usually give a shawl to Mr. Garriock, who will sell it for me when he has the chance. If he cannot get the shawl sold at the time when we need the money, we go to out-door work; but Mr. Garriock is kind enough to let the shawl lie until he can get it sold for us.

11,583. But one way in which you get money is by selling the tea which you have got in exchange for your hosiery?-I have never sold tea for money-only for meal.

11,584. But when you have no meal, and no money with which to buy it, that is the way you take to get it?-Yes

Scalloway, January 22, 1872, MARY COUTTS, examined.

11,585. You and your sister have lived for a long time in Scalloway with your father and aunt?-Yes.

11,586. Are they old people?-Yes.

11,587 Have you and your sister been their chief support by your knitting?-Yes, and by other work as well.

11,588. What kind of knitting have you done?-Shawls and veils.

11,589. Do you knit with your own wool, or have you got it out from the merchants?-The most of it belonged to the Lerwick merchants. I knitted it and took it to them.

11,590. How were you paid for your work?-In tea and goods.

11,591. Did you ever get money?-No.

11,592. Did you ever ask for it?-Yes.

11,593. Did you never get 6d. at a time?-I have got 3d., but that was the most. I once asked 1s. from Mr. Robert Linklater, to pay for mending my boots; but it was refused. That was about eight years ago.

11,594. And I suppose that did not encourage you to ask it again?-It did not. We ceased to knit for him.

11,595. Did you ask for money from anybody else?-Yes.

11,596. Did you get a little?-Nothing except a mere trifle, perhaps 11/2d. or 2d. from Mr. Sinclair.

11,597. Was that merely a balance that you had to get on your knitting?-No.

11,598. Have you an account there?-Yes. There is an account in his books.

11,599 All your knitting goes into that account and all your out-takes go into it too?-Yes.

11,600. You are just paid in goods, with 1d. or 2d. in cash now and then?-Yes.

11,601. How do you get your provisions, such as meal and potatoes?-We give tea to the farmers, and get meal and potatoes for it. We have sometimes to go to the west side, to Walls and Sandness, for that. Our aunt Elizabeth Coutts, has done that for us. She has not been to Walls and Sandness for the last two years, but she went regularly before. It was only for our own house, not for other people, that she took the tea there and got the meal and potatoes in exchange.

11,602. During the last two years how have you got your meal and provisions?-We have knitted for Mr. Moncrieff last year.

11,603. And therefore you did not need to barter your tea?-No.

11,604. Did you get the full price for your tea from the farmers?- I suppose we did sometimes, but I could not say. They did not weigh out the meat and potatoes which they gave in exchange; they merely gave a little for the tea which my aunt gave them. I have known her go as far as Papa Stour, twenty-four miles away, to make these exchanges. That was where most of her friends were.

11,605. Have you often had to barter your goods for less than they were worth?-Sometimes, if there had been 21/2 yards of cotton lying and a peck of meal came in, we would give it for the meal. The cotton would be worth 6d. it yard, or 15d.; and the meal would be [Page 285] worth 1s. I remember doing that about three years

ago; but we frequently sold the goods for less than they had cost us in Lerwick.

11,606. Do you make fine shawls?-Yes.

11,607. How much do you get for knitting a shawl of 21/2 yards square?-10s. 6d.; and I have got as high 6s. from Mr Moncrieff, but the worsted was his own.

11,608. What was the cause of that difference between 10s. 6d. and 16s.?-The finer the worsted is, the more we get for knitting it.

11,609. How many cuts of Shetland worsted would it take to make such a shawl?-About 34 or 35. The shawl I got 16s. for took about 7 oz. of Scotch worsted.

11,610. How long would it take you to make it?-My sister and I are not in very good health, and we do not work very steadily, but it would be some weeks from the time we got the worsted until we returned it.

11,611. Do you know what these shawls would sell for?-No,

11,612. Have you never sold a shawl of that kind yourself?-I have sold shawls to Mr. Sinclair of our own spinning, and got 18s., 19s., and 20s. for them.

11,613. Were these shawls very much the same as that which you got 16s. for?-No, they were not so fine.

11,614. Would they be much the same as those you got 10s. 6d. for knitting?-Yes; they were quite as fine.

11,615. And you would sell them for 18s. or 20s. in goods?-Yes.

11,616. What would the wool of one of those shawls you sold to Mr. Sinclair cost you?-It would cost 1s. 6d. per lb., and 1/2 lb. would make one of them.

11,617. That would be 9d. for the wool. How long would the spinning take you in the way you work?-Perhaps more than a week. We have to go to the hill for our peats and turf, and that takes up part of our time.

11,618. Which do you think pays you best,-getting 10s. 6d. for knitting the shawl, or spinning your own wool and selling it?- Spinning our own wool pays best.

11,619. Do you sell your shawls yourself?-Sometimes; but our aunt generally goes with them.

11 620. Have you asked for money yourself and been refused it?-Yes; I was only refused it once.

11,621. What was the largest sum of money you ever got from the merchants?-3d. or 4d.

11,622. Did your aunt sometimes succeed better in getting money than you did?-Sometimes. When visitors were here she would; she always sold them to them.

11,623. But when she sold to a merchant, has she often got more money than you have mentioned just now?-No; when she sold to the merchants, and did not want to take goods for the whole, she took a line. It was from Mr. Sinclair that she got lines, and when we wanted goods we took back the line and got them. We once got lines

from Mr. Tulloch also. We only got goods for them, not cash.

Scalloway, January 22, 1872, ISABELLA HENDERSON, examined.

11,624. You live in Scalloway with your father and sister?-Yes.

11,625. Is your father an old man?-Yes. He is between sixty and seventy years old. He is not fit to work much, but he goes to sea occasionally in fine weather.

11,626. Do you and your sister chiefly support the family by your knitting and other work?-Yes.

11,627. Do you require cash sometimes for your rent and provisions?-Yes.

11,628. Have you a little bit of ground?-Yes. We have a small bit from the farmers during the season for potatoes.

11,629. Where do you generally sell your veils?-We just sell them to any of the merchants. We make them chiefly with our own wool, but sometimes we get worsted given out to us from Mr. Sinclair and Mr. Arthur Laurenson.

11,630. Have you accounts with these merchants?-Yes. We always had accounts when we got out worsted from them.

11,631. When you knit for them with their worsted, are you paid in goods?-Yes.

11,632. And also when you sell an article of your own?-Yes.

11,633. Have you ever got any money from them?-No.

11,634. Have you ever asked for it?-Yes. It is some time ago, but I asked once or twice, and was refused. After that I was accustomed to get nothing but tea or soft goods, or anything else they had in the shop, and I did not ask for money again.

11,635. Did they ever ask you to take a less price when you asked for money?-No.

11,636. Did they never offer to give you money if you would take less for your goods?-No

11,637. Have you ever had to exchange your goods for provisions?-Often. I have done that with several people. Sometimes, when I sold my veils, I would have to take a line from Mr. Sinclair; and if I knew any person who was requiring such goods as Mr. Sinclair kept, I would sell the line to them, and they would go to Lerwick with it and get what they wanted.

11,638. Who have you bartered your lines with in that way?-I am not inclined to tell their names, because it was done to me as a favour, and they did not wish it to be made known. I may say, however, that I have given the soft goods to Mrs. Tait in Charles Nicholson's shop.

11,639. Was Mrs. Tait always ready to take your goods?-She was not very ready, but when she saw it was necessary, she would do it out of kindness.

11,640. When you dispose of your goods in that way, do you generally get the full value for them?-Not always.

11,641. You have to take a little off them in order to get what you want?-Yes.

11,642. Do you do that several times in the year?-I do it very often.

11,643. Do you know that other knitters have to do the same thing?-Very likely they do. I believe there are others who have to do it besides me.

11,644. Have you often given away your lines in the way you have mentioned?-Yes, very often.

11,645. Do you make a practice of it?-Yes, I have had to do it.

11,646. Do you get a great number of lines in the course of the year?-Sometimes; not a great many. I just get them as I require them.

11,647. What do you get for the lines when you part with them in the way you have mentioned?-I have got money, and sometimes provisions.

11,648. Have you got money for a line lately?-Yes, in harvest. It was a line for 7s.

11,649. Did you get 7s. in money for it?-Yes; but when the people came to take the goods, if they did not get them to their own mind, I had to make up whatever loss they had upon them.

11,650. Was that the bargain, that if they did not get their satisfaction in goods, you were to give them back some of the money?-No, not the money. I was just to give them something in addition. Of course, they could not expect the money back from me.

11,651. Did you give them anything back?-They have not sought for it yet, and I cannot say whether they will ask for anything or not.

11,652. Have you always got the full amount of the line in money, when you gave it in that way?-No; not altogether.

11,653. Have you sometimes given it for less than the sum named in it?-Yes.

11,654. For 6d. or 1s. less?-That just depended on the amount of the line. I could not say particularly.

11,655. Did you get the full value for all the lines [Page 286] which you parted with last harvest?-Yes, I got the full value for them, but it was as a favour to me that I got it.

11,656. Can you mention any case in which you got less for a line than the sum that was named in it?-I could not remember any particular case where that happened with a line; but I have often suffered a good deal of loss by the soft goods. On one occasion I lost 1s. 6d. upon 6s. 6d.

11,657. Did you get 6s. 6d. worth of soft goods, and give them away for 5s.?-Yes.

11,658. Did you get 5s. in money?-No; not altogether in money, but partly in meal. They said the cost price of the articles would be 5s, and they gave me that value for them.

11,659. Have you ever given anything back, when the people that you gave the lines to were not able to satisfy themselves at the shop?-Yes, once. I gave them the worth of 1s. in other goods that I had got from the shop.

11,660. What was the value of that line?-I cannot say. The lines I have got have run between 3s. and 10s.; but I could not say the exact amount of that particular line.

11,661. Do you know any people who make a trade of buying goods from the knitters, and selling them through the country?-I could not say that any person makes a trade of it. I don't think any person would like to do that.

11,662. Are there not some women who hawk goods through the country, which they have got in that way?-I know there are and I have done that myself more than once.

11,663. What have you done more than once?-Taken the soft goods which I got at Lerwick, and gone through the country and sold them. The last time I did that was three years past in spring, and I had done it before.

11,664. Was it in a bad year when you did that?-Yes.

11,665. And you wanted potatoes?-Yes.

11,666. Had you to travel far in order to get them?-Between two and three miles.

11,667. Had you tried often before you got your goods sold?-Not often. Of course, I had spoken to the people before I took the goods to them. I did not go out on the chance of selling them.

11,668. Were the goods taken as a favour to you, and not in the ordinary way of business?-Yes, it was done quite as a favour.

11,669. But do you know any person who travels through the country regularly, and hawks goods which have been bought from the knitters?-I don't know any person particularly who has done that.

11,670. Have you ever heard that such things were done?-I cannot say that I have.

Scalloway, January 22, 1872, Mrs. ANN LEASK or INKSTER, examined.

11,671. You live in Scalloway?-I do.

11,672. Have you sometimes knitted hosiery goods for sale?-Yes; I have knitted some for Mr. Sinclair.

11,673. Have you been paid for them in money or in goods?- When I knitted goods for sale I was paid for them in money. I knitted some for Dr. Hamilton, Bressay, and I was paid money for them. He had got an order for them from the south.

11,674. But when you sold them to merchants, you were paid in goods?-Yes; I never asked them for any money, because I did not require it. I always took what I required in cottons, cloth, and so on. Besides, I knew it was not the practice to give money.

11,675. Did you sell your own knitting?-No. I knitted for Mr. Sinclair, except what I got orders to knit from the south.

11,676. Have you an aunt who knits also?-Yes.

11,677. Does she sometimes sell shawls made with her own worsted?-She did formerly, but she does not do so now.

11,678. Do you think the merchants make any profit by the shawls they buy?-I cannot say; perhaps they do.

11,679. They say they sell them to the merchants in the south at exactly the same rate as they buy them here. Do you know of any case where a merchant has sold a shawl at a great profit?-No.

11,680. Do you know of a merchant buying a shawl from you for 15s. or 16s., and then selling it within a few minutes after that for double the money?-No. I do not remember any case of that kind.

11,681. Did you ever hear of such a case?-Not so far as I recollect.

11,682. Did you or your aunt ever sell a shawl at 15s., or about that price, which was sold immediately afterwards, in the same shop, to a gentleman for about twice the money?-I never saw that done. My aunt may have done so for anything I know, for I was not always with her. I was in service for some time, and I cannot answer for what she may have done at that time. My aunt's name is Ann Williamson; she lives in Scalloway.

Scalloway, January 22, 1872, Mrs. ELIZABETH IRVINE or SMITH, examined.

11,683. You live in Scalloway?-Yes.

11,684. Have you been in the habit of knitting?-Yes, a little. I have knitted for several people, but chiefly for Mr. Sinclair. I have knitted for him for eleven years, and I keep an account with him.

11,685. Do you get what goods you want out of his shop?-Yes. I asked for work from him when I was in great need, and I got supplies and worsted, and whatever I asked from him.

11,686. Has that system of dealing been going on for eleven years?-Yes.

11,687. Have you always got your supplies from his shop?-I always got what I asked.

11,688. Have you got money from him when you wanted it?-Yes. The first I got was 2s., and the last I got was 10s.

11,689. What was that for?-I just got it on the work I was doing.

11,690. When did you get the 10s.?-It was before you came to Shetland; I cannot tell how many weeks it was ago. I sent off a score of veils to my sister-in-law in Lerwick, and told her to ask a few shillings for me. She did so, and Mr. Sinclair gave her 10s.

11,691. Had she to ask more than once for the money?-No; she just took in the veils, and he gave her the money, so far as I am aware.

11,692. Did you tell her to say what you wanted the money for?-I did not.

11,693. Had you ever got as much money as that before?-No; but whatever money I asked I got, from 6d. upwards.

11,694. Have you ever asked for a sixpence or a shilling?-I have asked for it many a time and got it and I generally got a little more than I asked.

11,695. Was 2s. the next largest sum you got before the 10s.?- No, I had got 3s., and 4s. 6d., and so on.

11,696. Did you want that money to pay your rent with?-I have a pension of 11s. a quarter from the Merchant Seamen's Fund, and that pays my rent The pension is paid to me in Lerwick by Mr. Stewart.

11,697. Do you always get payment of that yourself when you go to Lerwick?-Yes, except sometimes when I cannot go, and then I send a paper to my brother in Lerwick, and he gets the money for me. My brother is in Mr. Harrison's store.

11,698. Did you ever have occasion to barter any of the goods you got for provisions?-I never did that except once when a woman took a quarter of a pound of tea from me and gave me milk for it, as I had not [Page 287] the money at the time. She was well satisfied with Mr. Sinclair's tea., and told me to get it from him. It was the same to her as money.

Scalloway, January 22, 1872, JOHN THOMSON, examined.

11,699. You are a shopkeeper and grocer at Sandsound in the parish of Sandsting?-Yes, in a small way.

11,700. How far is that from here?-About 10 miles when we go by land, but it is a little shorter when we go by boat.

11,701. On whose property is your shop?-On the property of Mr. Greig of Reawick, and Mr. Umphray is trustee for it.

11,702. How far are you from Reawick?-About 3 miles.

11,703. Do you do anything in the fishing?-A little. I buy fish in winter and spring, but not in summer. I don't have the chance of buying any in summer. The place is a little inland, and there is not much fishing carried on there, except in bad weather in winter and spring when the men go to fish in the bays.

11,704. Do you cure the fish yourself?-Yes.

11,705. How much may you buy in the course of a winter and spring?-In some years I have bought as much as nearly 7 tons of dry fish, cod and ling, and in other years as low as 2 tons.

11,706. Do you settle with the men for these fish when they are delivered to you?-Yes.

11,707. Do they take the price in money or in goods?-I give them money unless they want goods, but if they want goods they get them.

11,708. Do you ask them if they want anything?-Sometimes, and at other times if they don't ask for goods I give them the price.

11,709. You deal both in groceries and soft goods?-Yes, but very little in soft goods, except at times.

11,710. Do some of the men run accounts with you?-Some of them do until about 1st April when they are going to Faroe or to the south; but with others settle just at the time when they get the goods or when they give me their fish. That is done either way as the men prefer it themselves.

11,711. Do you run accounts with the fishermen for supplies at other seasons of the year?-Sometimes, when they are a little hard up in the summer time, I give them a little supply either of meal or tea, or anything else, to oblige them; but I don't like to do that to a great extent. I cannot do it very well.

11,712. Do the fishermen generally go for their supplies in summer to the larger merchants?-Yes; those who go to the Faroe fishing generally do so.

11,713. Why is that?-Because when they are out at the fishing for the larger merchants, it is better for them to take their supplies at their shops.

11,714. But why could they not deal with you as well?-The larger merchants are more able to give them credit as they are fishing for them. In summer and harvest I generally sell, for cash when I can get it, and I am not very able to give long credits.

11,715. Do you do much business for cash in summer and harvest?-Not much; about £2 or £3 a week is generally the most.

11,716. And I suppose the men and their families generally have to go to the large merchants where they can get credit at that season?-At that season of the year they do.

11,717. Do you think you would have a better business if the men were paid for their fish as they were delivered?-I suppose I might.

11,718. They would not require to get credit then?-No; but the men who go to Faroe in the smacks have to make long voyages, and they could not be paid in that way.

11,719. But there are a number of men at the haaf in your district, are there not?-No, not in my district. There is scarcely a boat in my parish. The boats which go to that fishing are farther north-at Northmaven and Sandness.

11,720. Then the Faroe fishermen in your parish are only home twice in the summer?-Yes; they generally come home twice, once in June, and then about the beginning of harvest but some do not return until September.

11,721. Therefore they could not, in that case, be paid at the delivery of their fish, so as to have cash to deal with a merchant who is not employing them?-They could

not.

11,722. Do you think you would have a better chance of business if they were settled with when they came home from Faroe, instead of having to wait for a good many months for a settlement?-I don't know. It takes so long a time to get the fish dried, that I don't think they could very well be settled with when they came home.

11,723. They might be settled with then if they were paid according to the weight of the fish when they were landed?- Yes; but I could not say whether I would do any better business in that case or not.

11,724. Do you think you would do a better business if you had some boats of your own?-Yes.

11,725. Why?-Because I would be getting more fish.

11,726. But would you do a better business in your provisions and goods?-Yes, I might be a small bit better.

11,727. Would that be because the men would come to you for supplies?-Yes; and then I would have more fish too.

11,728. Are the men at liberty to sell as many fish as they please to you in winter and spring?-Yes, at any time of the year.

11,729. Then you could engage a boat's crew in your district without any restriction?-Yes; there are no bound men there.

11,730. Are there many merchants in the parish of Sandsting who do about the same extent of business as you?-I think most of them do more business than me, because it is longer since they commenced, and they are better in the way of it.

11,731. Do you mean that they have got a larger connection?- Yes; and a better locality.

11,732. Are most of them engaged in buying fish?-No; there are scarcely any of them about me who are in the fishing trade, except Messrs. Garriock & Co. They have almost all the fishing business in that part of the country.

11,733. Have they the largest shop business too?-Yes.

11,734. Whom do you sell your fish to?-To Mr. Harrison generally. We sell them to him as soon as they are dried at the end of the year.

11,735. Are you paid for them in cash?-Yes, if we want cash.

11,736. If you don't want cash, do you take goods for your shop?-Yes, if we want them; but if we want cash he gives it at any time either in advance or at settling time.

11,737. But he does supply goods in a wholesale way to merchants?-Yes; he sometimes supplies me with little meal and tea, and general groceries.

11,738. Do you not get all your supplies from him?-No, not the whole of them. I think I get as much from Glasgow as from him; generally from two houses there.

11,739. What do you get from Glasgow?-Tea and sugar and coffee, and general groceries.

11,740. Do you also get the same articles from Harrison & Sons?-Yes.

11,741. Do you pay the same price to both?-They are nearly all about the same price, except that the goods from Glasgow may be about a halfpenny per pound less.

11,742. Is that after allowing for freight?-No; it is taking them at cost price.

11,743. Do you write for these things to Glasgow direct?-Yes, when I get them from there.

11,744. When do you order them from there?-My [Page 288] dealings in that way are not always at the one time. Sometimes in the spring I order them fortnightly, and sometimes monthly, and sometimes at longer intervals. They are sent to Lerwick in the steamboat, and brought across to Scalloway by carts, and I come here with a boat for them. I think it is about six weeks since I got any tea from Glasgow, and it is a month since I got some other stuff.

11,745. Did you come from Sandsound to Scalloway for the tea?- No; I took it out the north road Weisdale and all overland.

11,746. Did you come to Scalloway on purpose for that?-No; the north carts took it out.

11,747. Do you think the tea which you got in that way cost you more when it was delivered than the tea you got from Harrison & Sons?-No. I think that, taking it on the whole, and after paying the freight it would come to just about the same.

11,748. Were the qualities the same?-Yes, as near as I could judge.

11,749. Do you sell both kinds of tea at the same price?-Yes, at 8d.

11,750. How much of your fish that you sell to Harrison & Sons will be paid for in goods?-About one half as near as I can judge.

11,751. Do you receive the other half in cash?-Yes.

11,752. Was that the case last year?-Yes.

11,753. When do you settle with Harrison & Sons?-I settled with them last year on 1st October for the fish which I had got in the previous winter and spring.

11,754. Do many of the shops in your parish deal with Harrison & Sons in the same way?-I think none of them do. None of the other merchants there sell fish to them, so far as I am aware.

Scalloway, January 22, 1872, AGNES TAIT, examined.

11,755. You live in Scalloway?-Yes.

11,756. Do you live alone?-Yes.

11,757. Do you support yourself entirely by knitting?-Yes; I cannot work at anything else. I knit fine shawls and veils. I have knitted for the last six months to Mr.

Moncrieff with his worsted, and I have been paid in goods. Before that I knitted with my own worsted, and I sold my work to any merchant in Lerwick, generally to Mr. Sinclair. I never asked any money from him, because we knew that it was the rule that we would not get it. I wanted it for many purposes; but I would not have got it even though I had asked it.

11,758. But you could not get on without some money, I suppose?- No. I sent some shawls and veils south for money with which to pay my rent.

11,759. Did you get enough money from them for all that you wanted?-I was often at a loss for money, and then I had to sell tea and other things which I had got in Lerwick for my hosiery. I sold tea and soft goods to any neighbour who was kind enough to take them.

11,760. Such as Mrs. Tait?-No, I never sold any to Mrs. Tait.

11,761. Did you sell your things often in that way?-Yes, very often.

11,762. Every month?-I don't think I did it every month.

11,763. Did you do it two or three times every year?-Yes; oftener than that.

11,764. How much goods did you sell in that way?-If I sold a shawl for about 18s. I would get 18s. worth of goods, and of that a good deal was tea-perhaps one pound or a pound and a half.

11,765. Would you sell all that tea?-Yes.

11,766. And something else besides?-I don't recollect of selling anything else except the tea.

11,767. Did you always bring home some tea from Lerwick in order to sell it?-Yes.

11,768. And did you always find some of your neighbours ready to buy it?-Yes; there were always some of them kind enough to buy it from me.

11,769. Did you sell it at the full price that it had cost you?-Yes.

11,770. You did not sell it under its value?-No.

11,771. You did that very often, because you had no other way of getting money?-Yes.

11,772. Do you ever get any lines from the merchants in Lerwick?-No.

11,773. Do you always settle for your hosiery articles at once?- Yes.

11,774. Would you rather have money than be paid for your work in the way you have mentioned?-Yes, I would rather have money; but we knew that we would not get it, and therefore we never asked it.

11,775. Do you think you could make a better use of the money than you do of the goods?-Yes, a great deal better.

11,776. You think you could turn it to better account?-Yes.

11,777. Do you think you take more out in soft goods than you require?-We often take out things which we are not requiring. We cannot get anything else and therefore we have just to take out the goods.

11,778. Can you mention anything which you have taken out when you were not requiring it?-No. I afterwards sold it; I did not keep it.

11,779. What are the goods you have sold?-Cottons.

11,780. Anything else?-No; but I have not sold any cotton for the last twelve months.

11,781. Did you ever sell cotton or any other goods under the price you paid for them?-No, I generally got the value. I did not sell these things about Scalloway; I went up occasionally to see some friends of mine in the west side of Sandsting, and I took the goods with me.

Scalloway, January 22, 1872, WILLIAM HARCUS, examined.

11,782. You are a merchant in Scalloway?-Yes; I have a small business here. I have carried on business as a merchant here for between four and five years.

11,783. Have you many transactions with the fishermen here?-I have, in buying and selling groceries and general goods, but not in curing fish.

11,784. Do you run any accounts with fishermen?-No; unless perhaps for a few days, until they come back again to settle. It could not be said that I do credit trade. It is professedly a cash trade.

11,785. Have you any disadvantages in carrying on your trade from the system of barter which prevails in Shetland?-Perhaps if the whole trade were done in cash, there might be some advantages in some respects-that is to say, if there was money always coming to the fishermen at the end of the season, or when the settlement takes place.

11,786. If that were so, you think a merchant carrying on a cash business would be able to increase his receipts?-I think so.

11,787. Is it your opinion, from your own experience, that a ready-money business is limited by the want of money in the hands of the fishermen and tenants in the district?-I think it is. I think if there was money there would be more trade done in a ready-money way than there is.

11,788. Are you aware that very little money, compared with the amount of their earnings, passes into the hands of the fishermen?-I have no means of knowing that exactly; but I don't see much money, among the fishermen. What money we get is principally from sailors returning from the south, and, of course, a little from the fishermen after settling time.

11,789. Do you find that your business is larger after settling time than at other times?-Last year it was larger, because there was a good Faroe fishing. This year I don't think there has been any difference.

11,790. Do your books show that there is a larger [Page 289] cash business done after settling time?-No, my books don't show that. I don't enter cash transactions in them.

11,791. How do you know that the business was larger at that time?-Just by noticing the daily or weekly drawings.

11,792. Did you keep notes of your weekly drawings?-I did at one time, but I have been so busy lately, and so much away from home, that I have not got that attended to.

11,793. How long is it since you kept notes of your weekly drawings which would show whether your business increased or not in the spring?-I think it was only in the first year that I was in business that I did so; but I can recollect pretty well about the average amount of my weekly drawings. In a small business like mine we can depend a good deal upon the memory for that.

11,794. And so far as your recollection serves you, you think your weekly drawings were larger at that period?-Yes. When there has been a good fishing, and the men have something to get at the settlement our drawings are usually larger after that.

11,795. Do you think that shows that the men prefer, when they have money in their hands, to deal with you rather than to deal with the fish merchant who employs them?-I don't think it does; at least I could not say that it does, because the fish merchant who employs them might be having a larger cash return at that time too.

11,796. At all events you may fairly entertain the opinion that you would have a better chance among the fishermen if a cash system were general?-I think so.

11,797. If, for example, the fishermen were paid by weekly, or fortnightly, or monthly payments, for their fish delivered during the summer, do you think you would be more likely to obtain an additional share of their custom?-If that were possible, I might; but I don't think it would be possible to pay them at such short periods, because it would occupy so much time. The fishermen would have to come in and wait perhaps whole days before they could be settled with, and I don't think that would be a good plan for them at all.

11,798. If a note of the fish is taken at the time when they are delivered, would there be any difficulty in settling at the same time?-I never considered that; but I think there would be a difficulty in settling with the fishermen every day when they landed their fish.

11,799. In winter and spring they are settled with every time they deliver fish?-Yes; but the quantity delivered then is comparatively small. Sometimes in summer the fishermen are working ten or twelve miles away from where the curer is, and of course, to come in and be settled with every week, or even every month, would be a great hardship. They might lose very good days when they could be more profitably employed at the fishing. I think quarterly or half-yearly settlements would be as much as could be managed.

11,800. You have not had any experience yourself in settling with fishermen, either before you began business here or since?-No. I have a few men fishing lobsters, but they are not worth speaking about. I think there are only three crews' of them, and I settle always with them when they bring up their fish; but the trade is so small that there is no difficulty in settling with them then.

11,801. How long does that fishing last?-It is only carried on during the winter; and it was arranged that they should come fortnightly with the lobsters, and settle fortnightly, when the weather would permit them.

11,802. Do you do anything in the oyster fishery?-I did at one time, and I still do a little, but there are very few to be had.

11,803. How are they paid for?-In cash when I buy them.

11,804. Do you know what is the practice of other buyers-I would rather that they should state that themselves. I think Mr. Nicholson buys for cash, but I am not certain. He is present.

11,805. When you settle for your lobsters, where is the payment made?-In my shop.

11,806. In that case do the men generally spend part of the cash there and then?-They sometimes spend part of it.

11,807. Do they not spend part of it generally?-Yes; but I lay down the money on the counter, and they take it up. They have the choice either of spending it or taking it away.

11,808. Are accounts kept with any of these men?-With one of them who superintends the bringing home of the oysters, there is an account kept.

11,809. How often is that account settled?-Just whenever he wants a settlement. He always gets money with him to disburse for current expenses, and he is permitted to take from that whatever he wants for his own use; and if he requires more money, then there is a settlement.

11,810. Do you mean that you settle with him whenever he wants a new advance?-No. He always has some money of mine in his hands, and he has authority to use that both in paying the men who are fishing for me, and for his own use.

11,811. But when that money is exhausted he comes and gets a new supply?-He settles for that money, and what he has taken for his own use is put to his own account, and his own account is settled whenever he wishes to see how we stand. That is done frequently; and I have the book here which is kept with him. [Produces pass-book.] This [showing] is the cash he gets for the general account, £7, 13s. 4d., and then £10, and then £3, 17s. 2d. At that time he was in a different trade; he was collecting shell-fish. Then he buys produce, and the account is balanced at the end of October, when he has £5 still on hand to give me. Here [showing] the account balanced again, and he had £2 still on hand.

11,812. You keep that pass-book with that man; but not with the other fishermen whom he employs?-No. They just get their money.

11,813. Where are these men employed?-In St. Magnus Bay.

11,814. That is a long way from here?-Yes.

11,815. These are not the men that are paid in your shop?-The men who bring the oysters are paid in the shop, and sometimes one of these men may come along with the other man to help him to bring home the lobsters, and then they are all paid in the shop.

11,816. But not the others who do not come?-No. The man who has charge of the fishing for me takes the money with him to pay them when he goes back.

11,817. I understood you to say that when the men came with oysters and lobsters to the shop, and were paid, they generally took away some supplies from the shop?-They generally do but they are not asked to do it.

11,818. Do they appear to think it a fair and proper thing that they should do so?-I think they do. I have heard them remark that they ought to spend the money where they get it.

11,819. Is that a common sort of feeling among the men?-Yes, it is a common feeling in the country.

11,820. In short, they apologize if they don't spend the money in the shop where they get it?-Something like that I should not say, that they apologize, but sometimes they tell me what they want the money for, and they say they have to take it away. Of course, they are not asked to leave it.

11,821. But there seems to be a kind of understanding that they are to spend part of their earnings in the shop?-The people seem to have the opinion that they ought to do that.

11,822. And I suppose the merchant has some feeling of the same kind also?-I never ask them to spend the money in the shop; but, of course, we are glad to get what money we can.

11,823. I suppose they don't require to be asked to spend some of it?-No.

11,824. Are you engaged in the hosiery trade at all?-I once bought a little, just to try the trade, but I gave it up. My experience of it was that it would not pay. Being the only one about here who gave [Page 290] meal for the hosiery, it was principally meal that was taken, and I found no profit on it.

11,825. Then that would lead you to form the opinion that it would not pay unless soft goods were taken in return for the hosiery?- Unless goods were taken on which a heavy profit was got, I did not see that it could pay me; but I tried the trade for so short a time that I could hardly say I gave a fair trial, or that I could speak so well about it as one who had tried it for years.

11,826. Do you not think it would be a more expedient system if hosiery goods were paid in cash, according to prices regulated by the demand, and that the merchants should make a fair profit upon the hosiery itself?-That is my opinion. I believe that everything ought to be paid for in cash, at a fair price to allow a profit.

11,827. Have you had many cases coming under your observation in which women have been unable to obtain the necessaries of life without bartering away the goods they have obtained for their hosiery?-I have known few cases of that kind.

11,828. Have you been induced to purchase goods from these women?-No.

11,829. Have you known parties who have done so?-No. They have been offered in my shop, but I have never bought any of them.

11,830. Have they been frequently offered?- Not very frequently; but I have no doubt, if I had begun to buy them, they would have been offered more frequently.

11,831. Do women generally expect to get the full price for the goods which they offer?-I just refused to buy them. I never came to the question of price at all, because if I had begun to buy goods in that way, my trade would have degenerated entirely into an agency for that sort of barter.

11,832. Are you aware whether there are parties in the country whose principal trade consists in purchasing goods from such women and selling them again?-I am not aware of any.

11,833. You don't know whether there are hawkers or pedlars who live in that way?-I don't know. I think it is only right for me to say that it takes a long time to settle with Shetland men owing to them not being able to read accounts, and that may account for the fact that they settle so seldom. I believe that if crew were to settle every three months, it might take them a whole day to carry through that settlement.

11,834. Is that from defective education in arithmetic?-Yes, from defective education.

11,835. Shetland men generally seem a very intelligent and well-educated class of men for their rank of life?-Some of them are.

11,836. Do you think they are further back in arithmetic than in other branches of education?-I think so.

11,837. How do you account for that?-I cannot account for it.

11,838. In what way have you ascertained that fact?-In settling with the few men that I have had dealings with.

11,839. Don't you think that if pass-books were kept regularly the settlement would become a shorter process than it is?-Yes; but many of them would not be able to read the pass-books, and of course they would be of little use to them. Still, a great many now can read them, because the boys are being better educated, and I think the country is getting ripe for a new system. I think it right you add that pass-books, as a matter of course, should be given to every one having accounts.

11,840. But suppose the parties having accounts don't choose to bring pass-books with them, and neglect to keep them up, are they not themselves to blame?-Yes; the merchants cannot help that.

11,841. Don't you think it would be as easy for the fishermen to have the price of their fish entered in the fish book at the time they are delivered, and the calculation of the whole value made at that time: the amount of each take of fish is entered in the fish book when it is landed?-I suppose so, but I have no experience of that.

11,842. Might the price not be entered as easily?-I should think so; but that will be a question for those who are engaged in the trade. I can see no reason why it should not be done; but I understand the custom of the country is to fix the price afterwards at the end of the season.

11,843. But the price might be fixed according to the current price at the end of the season?-I have had no experience on that matter, and I cannot say.*

11,844. If you don't drive a credit trade, I suppose you don't keep any books except a day-book?-I just keep a day-book and ledger, for the wholesale trade. There are no retail transactions that pass through my books at all. The ledger contains the names of those I deal with in the south.

11,845. Are the prices at which you sell provisions higher or lower than those at which they are sold in the neighbouring shops?-It would be impossible for me to say exactly; but I think they are about the same.

11,846. What is the retail price of meal just now in your shop?-It is 141/2d. per peck.

11,847. And of flour?-There are two kinds, one at 1s. and on at 13d. Meal is always 1/2d. peck dearer in Scalloway than in Lerwick, on account of the cartage.

11,848. Is there no meal brought here by sea?-Very little.

11,849. Have you many business transactions with the inhabitants of Burra?-Yes, some.

11,850. Do some of the men purchase at your shop the supplies they require for their families?-Yes, occasionally.

11,851. Do they do so for ready money, or upon credit?-Either for ready money or for eggs.

11,852. Do they sell all their eggs to you?-I don't know. I think they sell to all the grocers in the village.

11,853. In what way are their eggs paid for?-The eggs are generally paid for in barter at one price, and [Page 291] in cash at another price; but, for the last three months, I have bought them at the barter price for cash. The present price is 9d. per dozen, whether paid for in goods or cash, but they are very seldom sold for cash.

11,854. What is the kind of goods generally taken in exchange for eggs?-Everything we sell-tea, sugar, meal, bread, and soft goods.

11,855. Do you export a number of the eggs you buy?-Yes. They are sent south by the steamer.

11,856. Have there been any whales driven in here, while you have been resident in Scalloway?-There was one shoal of whales driven into the bay below this place since I came here. They were sold by auction. Mr. Garriock, of Reawick, managed the sale. The parties concerned in the capture got two-thirds of the proceeds of the oil as their share.

11,857. Are you aware that complaints are made with regard to the landlord's claim to have one-third of the oil?-Yes; there have been complaints made. I had a share in the whales that were driven ashore, and I wrote to the Board of Trade about it, but it seemed they could do nothing; at least they did not choose to do anything in the matter.

11,858. Were the whales of the bottle-nosed kind?-No. They are known by the name of caain, or driving whales.

11,859. Did the Board of Trade decline to interfere on the ground that the Crown had no interest in the kind of whale that was driven ashore?-Yes; they said the Crown had no interest in that kind of whales. We thought, as the Government claim the foreshores and beaches, the proprietors had no right to claim any share of the oil, because the blubber is never taken above high-water mark Most of the whales were killed at sea, and dragged ashore, and we thought the fishermen should have the same right to beach whales as to beach cod or ling, or anything else under the Act regulating the fishings.

11,860. Did you obtain any information at that time, as to the grounds upon which the landlords' claim for one-third of the whales was based?-I did not ascertain that they had any claim for it, other than the custom of the country, in the same way as they claim right to bind the fishermen to fish for them, and to no other. The Board of Trade did not say that the landlords had any right to claim the whales; they advised me to go to law and see; but I did not think it advisable to incur the expense of raising an action on my own account.

11,861. Have you found your trade hampered in any degree by the fishermen feeling under an obligation to deal for their supplies with the merchants by whom they are employed?-I have said already, that if the fishermen were paid oftener, more money would be circulated, and trade would be more divided; but it would all depend upon whether the fishermen were in debt or not, because we could not expect the fish-curers to pay those men who were in debt to them.

11,862. Have you found fishermen representing to you that they would purchase goods at your shop if they were not obliged to go where they could get credit?-I have occasionally heard such things here, but not very often.

11,863. Perhaps you have suspected that oftener than it has been expressed to you?-Yes.

11,864. A man does not always speak about his reasons for dealing with a particular merchant?-I don't think he does; but I don't think it fair if I pay ready

money for such things as I buy, such as oysters and winkles, that others should not do the same to a greater extent than they do. I don't mean to say that they should cash for everything, but I think they should settle oftener.

11,865. You think the fishermen should be able to have a little money in their hands at times, instead of having it only once a year, in January?-I think so.

11,866. And even then, I suppose, they don't always have to get money?-I don't think they have.

11,867. Do you think that, upon the whole, your payments to fishermen are repaid to you?-Not at once. They may take the money home and come with it again, but it is not handed over to me at the time when the men get it. I have paid £40 in one week for shell-fish, without drawing more than £10.

11,868. Do your books show that?-No.

11,869. These were all cash transactions?-Yes.

11,870. But I suppose you may sometimes have paid £40 out in a week and drawn £30 of it back?-No. I never drew £30.

* Mr. Harcus afterwards sent a letter in which he said-

'Finding that exception has been taken by certain of my neighbours to a part of my evidence before the Truck Commission, I wish to say in explanation, that when the question was put whether I would approve in all cases of daily or weekly settlements, several difficulties occurred to my mind, and the want of proficiency in arithmetic among the fishermen was one of them, and not the only one, as is being attempted to be made to appear. I hope my words will bear out this idea. If my memory serves me right I gave as one difficulty the great distance between the fishing-ground and curer's headquarters; and I was having in consideration the extra expense that would be incurred if provision were made at out-stations for daily or weekly settlements, and the probability of an extra hand being required whose wages would have to come off the fisherman.

'With regard to my statements as to the proportion of Shetland fishermen who would be able to settle quickly by having pass-books, I was considering that it would be the duty of the men to divide their own shares, and to make all calculations ready for entering in their several pass-books, and that where there were boys forming part of a crew, and having fractional shares, very few indeed of the men could divide such shares. I think I also stated that I was speaking of those I had dealt with; but, of course, I could not be understood to speak of anything further than my experience went.

'I was also having in view that should a crew only require a few minutes to settle, yet if many crews came up at one time, as the tides and nature of the fishing would necessitate, some of them would have to wait several hours, which time could not possibly be spared, as during the busy part of the season the men can only allow themselves from four to five hours out of the twenty-four for sleep. Neither do I think that pass-books can expedite settlement much as some say. They can do little more

than save the time required to head a printed form of account, say three or four minutes for each crew; but of course, are indispensable for other purposes.

'It will be seen from my evidence that the oftener curers settle with their men the better for my trade; and therefore, wishing to guard against having my mind influenced by selfish motive, I stated honestly what objections to daily or weekly settlements occurred to my mind at the moment.

'I trust it will be seen from my evidence as to my own practice that I approve of making settlements as often as practicable, in order to teach the people self-reliance and provident habits, and also to give them a chance to lay out their earnings to the best advantage.

' I have no wish to disparage this people. On the contrary, I think they deserve very great praise for being what they are under very unfavourable circumstances, and if this were the proper place I would have great pleasure in saying a good deal on this point; but though their general intelligence is perhaps superior to that of the same class in any other part of the country, I have not met with much proficiency in arithmetic among old and middle-aged men especially; and it is not difficult to see from the evidence the small amount of their experience in handling accounts, and the want of inducements to cultivate the art of book-keeping.'

Scalloway, January 22, 1872, Rev. NICOL NICOLSON, examined.

11,871. You are a clergyman of the Independent Church in Scalloway?-I am. I have been twenty-two years here, first as missionary, and afterwards as pastor of a church.

11,872. Are your people mostly engaged in fishing?-Some of them are.

11,873. I suppose you are intimately acquainted with the condition of the fishing population of this district?-It appears to me by this time that I am not so well acquainted with it as I thought, because I have been hearing things coming out that I did not understand to be the case before the evidence was given.

11,874. Were you aware of the fact that very few fishermen received a large part of their earnings in money?-I understood that all of them who were out of debt got money from the merchants when they wanted it. I was once a fisherman myself, and that was the way in which I was dealt with. I did not think that in any of the shops here the men who had cash in the merchant's hands, and who were in necessity for it would not have got it.

11,875. Do you not think it would be better for the fishermen to be paid for their fish more frequently than once a year?-There are certain boats that deliver their fish weekly, and certainly it would be better for the men in them to be paid weekly; but there are a great many of the fishermen employed in smacks, from which they do not come ashore weekly, nor monthly.

11,876. Do you mean that the Faroe fishermen cannot be paid at short intervals?-I mean that those who fit out smacks and agree with men to fish on board of them for the season, cannot bring about a settlement with them until the end of the season.

11,877. But would it not be expedient for a man who is engaged in the home fishing, and who comes ashore every two or three days, to have his money paid to him at shorter intervals than those at which he now gets it, so that he might use it at his own discretion?-It has come under my observation that many crews who were ready to fish had no boat nor lines until they went to a merchant who would supply them with them, and then they made an agreement with that merchant to fish for him. They are in debt before they begin, and how can they be paid until the merchant sees his boat and lines clear?-Until they are cleared, he cannot afford to pay the men.

11,878. But in other trades, merchants frequently have to pay weekly wages to the men they employ, and take their risk of the market?-They take their risk of the market as it is; but if a merchant has due to him the whole value of the boat and lines, he cannot pay money down to the men and allow them to go away with it. He must keep it until he gets paid, or else he will be a poor man.

11,879. Would it not be within the power of the fishermen to purchase their own boats and lines?-They should do that, but I don't find them doing it. I know of only one man here who has done it.

11,880. Do you think it is impossible for the ordinary run of fishermen to make as much money as would pay for their boat and lines?-Most of the fishermen hereabout can never do it, owing to the way they live and the small fishings they make. They are not very fit to go out except in fine weather; and then they have to maintain themselves on shore in coarse weather.

11,881. How does the way in which they live prevent [Page 292] them from being able to purchase boats and lines?-They are poor men; they have no capital; and they are neither fed nor clothed in such a way as to enable them to carry on the fishing properly. If any man will give them credit for a boat and lines they just hang on with him, and never make money, or catch fish from which money can be made. I know a number of boats that seem to do very little all the year round. The crews are mostly old, worn-out men, and some of them are perhaps not very provident at home. I never saw them fed and clothed like regular fishermen; and you cannot expect them to go to sea properly.

11,882. What do you mean when you say that they are not fed and clothed like regular fishermen?-I mean like fishermen on the coast of Scotland, or in any other place.

11,883. Have you had some experience among fishermen on the coast of Scotland or elsewhere than here?-Not on the coast of Scotland, further than that I have gone among them, and spoken with them, and seen how they get on. I have seen them go off almost every day in winter, unless when there was a very extra breeze of wind.

11,884. Have they better boats in these places?-Yes; they have good boats, and they are well-clad, well-fed, healthy men; while there are men going on board the boats here who I believe, these other men would not take on board with them, owing to their want of strength.

11,885. You are not speaking of the ordinary run of Shetland fishermen just now?-I am speaking of the Scalloway men. I understand that in some of the islands, such as Burra, there are a class of very good men; but here there are no men staying ashore, except young boys and old men. All the rest go into the merchant service. A few go to Faroe, but only a few.

11,886. It is among these people who live in Scalloway that your experience chiefly lies?-Yes; it is to them I refer when I speak of the people about here.

11,887. So that when you are speaking about the advantages or disadvantages of a change, your remarks rather apply to the people of Scalloway than to the Shetland fishermen in general?-I say that most of the fishermen with whom I am acquainted in Scalloway, except one boat's crew, are such men as never do make earnings. They cannot get their boat and lines except on credit, and the merchants who give them out on credit require to keep what little fish they catch until these are paid, while the poor men are always asking for further advances on which to live. Therefore the men cannot have any money; and I don't blame the merchants, because the men still continue indebted to them.

11,888. Do you entertain that opinion with regard to other fishermen, strong young men, who are able to make better fishings than those you are now speaking of?-I believe there are such men in Burra, and perhaps even in Trondra, but I don't know any such men in Scalloway who are inclined to go to the fishing. Strong young men there go elsewhere.

11,889. Could these strong young men in Burra and Trondra purchase their own boats?-I think they could.

11,890. And that you consider would be an advantage to any fisherman?-Yes, it would be an advantage but I question whether many of the young men in Burra would confine themselves to boat fishing.

11,891. Do you think the system of being paid only once a year has the effect of producing improvident habits among the men?-I don't know. I was once a fisherman myself, and paid once a year, and I liked it well enough, for if I wanted money sooner I got it; but if I could do without it, I was pleased to get a larger sum at one time, and have it in reserve.

11,892. There is no doubt that, to many men, it may be an advantage to get a large sum paid at once; but, looking at the generality of the people that you live among, do you not think it would be better for them to have their money in their hand, paid to them every fortnight or every month? May they not, under the present system, run up larger accounts with the merchant who supplies them than they can afford to pay?-I am not aware that money is forthcoming at all from the fishing carried on in these boats. I have already said that I don't think the boats are fished so as to clear money, and consequently the men cannot have money. They are generally very poor and in debt.

11,893. Do you mean that almost all, the men in Scalloway are so?-All the fishermen that are in the boats, except one boat's crew that stands on a different

footing from the others.

11,894. Do you ascribe that to the system which prevails here, or to any fault on the part of the men?-I can scarcely ascribe it to the fault of the men; I would say it was their misfortune. They are old and some of them infirm, and they cannot fish like stout, healthy men.

11,895. Have many cases come under your observation in which women who knit have been in distress for want of food in consequence of the way in which the hosiery is paid for?- I have not generally heard them blame the hosiery system for it exactly, but just the want of general employment.

11,896. I suppose most of the women here knit more or less?- Yes; I believe the greater part of them do.

11,897. And I suppose you are aware that knitting is almost invariably paid for in goods and not in money?-In listening to the examinations here to-day, I have heard conflicting accounts about that. One woman said they got no money, and another said she got as high as 6s. and 8s. at a time.

11,898. But even that woman admitted that the rule was to pay in goods, although she got money when she asked for it?-I believe it is the rule to pay in goods.

11,899. Have you had any experience as to the effect of that upon the female portion of the population?-I think most of them that I am acquainted with act very judiciously notwithstanding.

11,900. They are able to keep themselves notwithstanding that they do not get payment for their labour except in goods?-Of course they do keep themselves; but they are not so well off as they would require to be. If they could get part of the payment in cash, it would no doubt be a great advantage to them.

11,901. Do you think they would make a good use of the money if they had it?-There may be exceptions, but generally, I think, they are a provident people.

11,902. Do you think the women who are paid in goods for their hosiery sometimes get things which they do not need, simply because they are asked to take shop goods in payment instead of money?-I am not personally aware of that. I heard one woman say to-day that she sometimes had a good deal of things lying on hand; but I don't know of that being the case from my own experience.

11,903. The people have not complained to you with regard to it?-They have not. Some of them have said to me they would like to have money, while others have said they were quite well satisfied with goods.

11,904. Is there any other statement you can make with regard to the subject of this inquiry?-I am not aware that there is. I may say that I am in no way obliged either to the hosiery merchants or to the fishcurers. My living comes quite from another quarter; but I must say, when I am asked, that I believe we have honest men in both departments of business, both as buyers of hosiery and as curers of fish. I don't think any country will produce men of better principles, so far as my knowledge goes.

11,905. Does it follow from that that the system which they work is a good one?-No; I would not say that. I should like to see a better system brought in, if it could work; and I believe the merchants themselves would be glad to see a ready-money system introduced if it were possible; but the difficulty is to see how it can be got to act. We have hosiery merchants here, such as Mr. Harcus, who have tried it, and who have had to give it up, because they found it would not work.

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Scalloway, January 22, 1872, CHARLES NICHOLSON, examined.

11,906. You are a merchant in Scalloway?-I have been. I retired from business a year ago. My son, Gideon Nicholson, my daughter, Mrs. Tait, and another daughter's husband, David Dalgleish, succeeded me.

11,907. How long were you in business in Scalloway before you retired?-About 25 years.

11,908. Were you engaged in business both as a fishcurer and as a draper and general merchant?-Yes.

11,909. How many boats did you generally employ in the haaf fishing?-About ten or twelve boats for the ling fishing in the summer time. In some years the numbers differed.

11,910. Were these boats generally manned from Scalloway and the district round about?-No, there were very few of them from Scalloway. There were some from Maywick, parish of Bigton, about twelve miles south, and some from the island of Havera.

11,911. Had you a fishing station there?-The fish could not be cured there, as there was not a beach for that purpose, and they had all to be brought to Burra to be cured. For the last two or three years they have been brought to Scalloway, and cured on beaches here.

11,912. Were you tacksman of any properties in that district?- No, I never was tacksman; but the proprietor, Mr. Bruce of Simbister, held me accountable for the rents of the fishermen employed by me. He holds us accountable for them yet. It is in Messrs. Hay's hands just now, because Mr. Bruce does not act for himself.

11,913. In what way do you arrange about the rents of the fishermen whom you employ?-I have seen that when a fisherman was £10 or £20 in my debt I still considered that I had to pay his rent for him to the proprietor. I have paid the proprietor from £60 to £80 a year when the fishermen were perhaps due me £100 or £200.

11,914. Was that done under an obligation which had been undertaken by you to the proprietor?-No; I never undertook the thing, but I always did it for the poor men.

11,915. Was there a kind of understanding between you and the fishermen that you should advance the money for their rent?- There was not much understanding about it, but I always did it, and it is done at the present time.

11,916. Is that done for the accommodation of the proprietor, or for the accommodation of the men?-It accommodates both parties. Many of the men could not pay their rent themselves, and what were they to do if it was not paid for them?-Their corn and crop would have to be taken from them, and they would have had to come to me for more meal next summer. Therefore it was better for me to allow them to keep their crops and to pay their rents for them.

11,917. In what way is the payment made? Is it done by you handing the money to the men with which to go and pay their rent themselves, or do you put it down against them in their account, and send the proprietor a cheque for the sum?-Often before the time when it should be settled I pay it to Mr. Bruce or to Messrs. Hay.

11,918. Do you often pay the whole rent of the men in your employment, to Mr. Bruce, in one sum?-Yes, or rather to Mr. Bruce's factor. When the men had anything particular to say to their proprietor they would come along to me for the cash, and take it to him; but with regard to the body of the men, I never put them to that trouble. It was some trouble for them to go from Scalloway to Lerwick, and then to travel home age in.

11,919. Do you get separate receipts for all the men, and give them to them at settlement?-Yes.

11,920. Is the rent generally paid on their account before settlement?-Very often it is, or about that time. The term for the payment of their rent is at Martinmas, upon 11th November, and it is generally same time after that before we commence to settle with the fishermen. We must know what price we are to get in the market for the fish before we know what we are to give them, or how we are to settle with them.

11,921. What sum did you pay to the proprietor in that way during the last two or three years you were in business?-I should say that about £60, or from £60 to £70, would be about the usual thing.

11,922. Would the amount of each man's rent be about £4 or £5?-Yes, perhaps some higher, and some a little lower.

11,923. Then perhaps twelve or fifteen men would have their rents paid in that way?-Yes.

11,924. But that would only be a portion of the men you were employing?-Yes.

11,925. If you had ten or twelve boats, you would have fifty or sixty men employed in them?-No. Some of them are small boats that fish close to the shore, with perhaps three men in them, or two men and two boys.

11,926. Then you might employ perhaps thirty men and boys altogether?-Yes.

11,927. Would one half of these men not be tenants at all?-Most of them were tenants of Mr. Bruce.

11,928. Were they under any obligation to fish for you?-No.

11,929. Could they have engaged with any other person if they had liked?-Yes.

11,930. Have you objected to pay the rent for any one of these men when he was considerably in your debt?-No. If I paid for one, I paid for all. I have paid rent for a man who was between £20 and £30 in my debt.

11,931. Does the landlord give you any return for these advances which you make to him?-No.

11,932. Is it not a considerable advantage to him to have his rent made secure in that way?-There is no doubt about it.

11,933. But don't you get anything from him even in the shape of a favour?-No; I never asked it, and never got it.

11,934. Have you any fishing station on Mr. Bruce's property?- No. The fishermen on the island of Havera cure their fish in the island, and that is on his property, but I have no concern with anything else.

11,935. Do they cure their fish themselves, and sell them to you?-They cure them on the island, and send them to Scalloway, and I sell them for them.

11,936. Have they an arrangement peculiar to themselves about their fish?-No, there is no peculiar arrangement. Their fish have always been under their own command, and I could not sell them without their consent, and I have lost considerably by that.

11,937. In selling their fish do you act as their agent?-Yes.

11,938. Do you charge a commission for that?-I never had so much good sense as to ask a commission; I did it for nothing.

11,939. You sold them for them, and I suppose they took a quantity of goods from you when they wanted them?-Yes. They took lines and hooks, and bread and clothes, and such things as they required.

11,940. Did they get all their supplies from you?-I think they got the most part of them from me.

11,941. How many people live at Havera?-I think there are four families, but I am not sure.

11,942. Do the other people on Mr. Bruce's estate who fish for you, and whose rent you pay, deal entirely in your shop for their supplies?-I think the most part of them do.

11,943. Is that one reason why you pay their rents for them?-I suppose so.

11,944. Do you find that these men are generally in your debt at settlement?-Only some of them. There are some of the men who have always plenty of money to get, but there are others who have commonly been behind.

11,945. Are more than one half of them commonly behind?-No. There are more than one half of them who always have money to get.

11,946. Still there are some of them who are usually a good bit behind?-Yes; but I hope they will get and be able to pay it off. Some of them are men whose [Page 294]

sons are willing now to pay for their fathers, and it is a great matter to see that.

11,947. The debts you refer to have been incurred for supplies of hooks and lines, and meal and other things required for the family?-Yes; chiefly for meal. Of course, they get hooks and lines also but they require a great deal of bread and meal.

11,948. Do those men who fish for you own their own boats, or do the boats belong to you?-The boats are all their own.

11,949. Are you not a boat-owner?-Not with these men.

11,950. Have you some boats here?-Yes; I had too many, and got very little profit from them.

11,951. The boats you had at Scalloway were hired out by you?- Yes; it got the name of hire, but I never received it. The nominal hire is 5s. per man. If it carries three men it is 15s. and if four men, £1. That is for three or four months in the year.

11,952. These are small boats?-Yes.

11,953. Is that the kind of boat that is commonly in use in Scalloway?-Yes.

11,954. Are there none of the six-oared boats in use here?-There are none in use here just now. Even in summer it is the small boats that are used here. They fish near the shore and the small boats are more handy than the big ones.

11,955. Then there is no haaf fishing from Scalloway?-No.

11,956. Are all the fish that you cure, the produce of that inshore fishing?-No; I have vessels that go to Faroe.

11,957. But you have no deep-sea fishing for ling?-No. I should not say that I never get the hire, because in some few cases I have got a little for it.

11,958. Then is it the case that you must look to the profit you make from the fish for the only remuneration you get for the use of these boats?-It would have been better for me if I had bought few or no fish in Scalloway, because the people here cannot get so much as will keep them alive. As has already been stated, the men in Scalloway are old men, who are not able to fish much.

11,959. How many tons of fish did you sell from that part of your fishing last year?-I am not able to answer that exactly just now, but there are commonly from 20 to 25 tons that come from Dunrossness.

11,960. And as much from Scalloway?-No; all that are got here is a mere trifle, and then we buy some in winter and spring from different quarters.

11,961. Do you also buy some in summer from other places too?- A few lots, not much.

11,962. Do the Burra men come and sell you a few lots in summer?-As little as possible.

11,963. Do you not like to buy from them?-I don't like to see men leaving their masters. My men might do the same.

11,964. I suppose your men do sell to other people's factors occasionally?-I don't think there are many men among them who don't do that.

11,965. Is it when they want a little ready money that they do that?-They can get it from me when they ask for it.

11,966. Perhaps, if a man is a little in your debt, he will not care to come and ask you for ready money?-There are men who are due me £5 and £10 and £15, and I just pay him for his fish over the counter when he brings them.

11,967. That is for the winter and spring fishing?-Yes. I would be happy if he could make as much from his fish as would keep him alive, but the worst of it is that these men cannot do that.

11,968. When you pay them money over the counter for their fish, do they generally pay some of it over the counter for supplies?- Yes; if they can buy articles as cheap from me as from another, they always do that. I have seldom seen them do anything else; but if they want a little money for any particular purpose, they can get it for that purpose.

11,969. They may need it for rent, and they will perhaps take it away to pay to their landlord?-That is not very often the case. If they have a house from another proprietor I very often have to pay the rent for them.

11,970. Do you lay out a good deal of money in that way?-Rather too much.

11,971. Do you sometimes pay other debts that are due by the men as well as their rent?-I suppose most of their debts are with me, except their rents.

11,972. Therefore most of their money matters are transacted through you?-I think so.

11,973. In fact, you are a sort of banker for the place?-I don't know that; it is very little that I get to bank.

11,974. When a man is well to do and has a balance to receive, does he sometimes leave it in your hands?-If they thought I was ill off for money they would do that. One year I lost about £200 on the price of ling, and rather than see me ill off for money one and another of them who had money came and offered it to me.

11,975. Do you mean that they left what was due to them on their fishing in your hands?-Yes; and they offered me besides money which they had laid up in former years, if it could do me any good and keep me going on.

11,976. Do you not think the men would be much wiser to take their own money and spend it as they wanted? Would they not understand the value of the money better in that way, and take better care of it?-They take their money at the end of every season.

11,977. But in the meantime they have spent perhaps three-fourths or four-fifths of all their earnings?-Of course they have been lifting their lines and hooks and everything of that sort, but they have never wanted money when they asked for it, even although they had nothing in my hands. Sometimes they asked for it to buy a

cow or some particular thing, and they sometimes got as much from me as £4 or £5.

11,978. But you don't give it to them unless they want something particular, and mention to you what it is?-No.

11,979. Do you think it is a good system for men to leave all their affairs in your hands?-I don't know; I did not want them to do so unless they liked.

11,980. Would not the merchant require to be a very honest man when he is so much trusted?-He would indeed.

11,981. And a man who was disposed to deceive the fishermen who trusted him would have very ample opportunities to do so?- He would.

11,982. I suppose that has been done in a few exceptional cases in Shetland?-No doubt it has.

11,983. Do you think a fisherman who lives under that system is an independent person?-A man who has plenty of money to serve his purpose is as independent a man, or he should be, as any.

11,984. Do you think the fishermen have plenty of money to serve their purposes?-Not in general; but there are a few who have it.

11,985. Do you think they might all have it?-I don't think so.

11,986. Is that owing to bad seasons, or owing to a bad system, or what?-It is sometimes owing to all these things together.

11,987. I suppose all the men you employ, and some others besides, keep accounts in your books for the supplies which they require for their families and for the fishing?-Yes.

11,988. Each man has a ledger account?-Yes.

11,989. And although you are out of the business, you are still intimately acquainted with the way in which it is conducted?- Yes.

11,990. Do you think that one half of the men at this settlement have a balance to get in money?-I think most of the ling fishermen had, but the cod fishermen were much more in debt.

11,991. You had not many ling fishermen?-No, only a few boats.

11,992. It is the Dunrossness men you speak of as the ling fishermen?-Yes.

11,993. The Scalloway men are not ling fishermen?-No. I think there was only one boat that went from Scalloway.

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11,994. Is the business still carried on in your name?-No; it is carried on in the name of Nicholson & Co.

11,995. Have you any interest in it at all?-No.

11,996. It is practically the same business, however, which you carried on?-Yes.

11,997. When you carried on business, were you in the practice of buying hosiery?-Very little. I never took it at all, except when the poor people were starving and in want of bread. They sometimes came to me and said they wanted bread, and could not get it in Lerwick, and I gave it to them.

11,998. Have you taken the goods they have got for their hosiery in Lerwick and given them provisions instead?-Not very often, but I have done that out of compassion.

11,999. Have you sometimes given them money in that way?-I would not have seen them at a loss for a shilling if they wanted it for any particular purpose.

12,000. Have you sometimes taken their lines from them which they got from the Lerwick merchants?-No; I don't remember doing that.

12,001. Have you been asked to do that sometimes?-I don't think so.

12,002. Have you not been asked to give them provisions for lines?-No.

12,003 Was it mostly cotton and soft goods or tea that you took from them?-It was cotton and soft goods, not tea. They had a chance of getting a little meal and potatoes in country places for their tea, and they did not require to come to me with it.

12,004. What kind of price did you allow them for these things?- I allowed them the same price as I sold such articles at in my own shop; but they had paid a higher price for them in Lerwick. When they brought the goods to me, I saw they were not equal to mine at the same price.

12,005. So that you generally buy these cottons at a lower price than they have been charged at in Lerwick, but at the same price that you were in the habit of selling them for here?-Yes.

12,006. The knitters therefore would be losers nominally by the bargain?-Yes; but it was not much that they brought to me in that way-it was hardly worth mentioning.

12,007. What would be the difference in price on a yard of cotton?-Perhaps 1d.

12,008. Did you find that there was always that difference?-I don't exactly remember; but I remember sometimes looking at the articles, and seeing that they were inferior to mine at the same price. That was very easily seen.

12,009. Do the women sometimes object to give you the goods at a lower price than they had paid for them?-No. It was through necessity they came to me with them, and they always felt very grateful that they could get bread in exchange.

12,010. Has that system gone on at times until now?-Yes, at times.

12,011. You have some vessels employed in the Faroe fishing?- Yes, there are two.

12,012. Are these still in your hands, or have you handed them over to the company?-I have handed them over to the company, as agents.

12,013. But they are still your property?-Yes; at least they are partly mine. There are some other people who have shares in them.

12,014. Do the men who are employed in these Faroe vessels generally belong to Scalloway and the neighbourhood?-No; only a few of them. The others come from different parts of the country; some from as far west as Sandness, and others from as far north as Delting, and so on.

12,015. Have these men accounts opened in your shop for their outfits?-Yes.

12,016. And also for supplies to their families?-The young men don't require supplies.

12,017. But if there are any of them married men, they will have accounts, and their families get supplies from the company's shop during their absence?-Yes.

12,018. Then there is a settlement with them at the end of the season?-Yes. As soon as we can know what the fish are to bring in the market there is settlement made.

12,019. Have you a written agreement with these men?-Yes; it is written on stamped paper and each man signs it.

12,020. Have you made your agreements for 1872?-They are written and are being filled up now.

Scalloway, January 22, 1872, DAVID DALGLEISH, examined.

12,021. You are now a partner of the firm of Nicholson & Co., Scalloway?-I am.

12,022. You have been present and heard the evidence of Mr. Charles Nicholson?-Yes.

12,023. Have you anything to add to it, or anything additional to suggest?-No. He has had long experience in the business, and I have had very little. I have only been in it twelve months, since Mr. Nicholson retired.

12,024. You have been shown certain returns with regard both to the home and Faroe fishing, which you have been asked to fill up and return to me. You will do so at your earliest convenience, with the assistance of Mr. Nicholson if necessary?-Yes.

12,025. I see a number of fishermen present; if there are any of them who wish to make any statement to me I shall be glad to hear them. [No answer.] If no one wishes to give any further evidence, I adjourn the sittings at this place until further notice.

<Adjourned>.

LERWICK: WEDNESDAY, JANUARY 24, 1872

<Present>-Mr Guthrie.

GEORGE GEORGESON, examined.

12,026. You are a merchant at Bayhall, in the parish of Walls?-I am.

12,027. How long have you been in business there?-I have been in business in Walls for about twenty-seven years. My place of business is in the village in the

centre of the parish.

12,028. Are your customers principally of the class of fishermen and tenants?-They are mostly fishermen and farmers. The greater part of my business is in ready money transactions.

12,029. Are there some farmers there who do not go to the fishing?-There are some small crofters, but they all go to the fishing. These parties are not confined to me in the business they do. They can go where they choose. I supply them, and they pay me once a year.

12,030. Are you engaged in the fish-curing business yourself to any extent?-I do not cure fish now. At one time, about twenty or twenty-five years ago, I cured fish, and had some small vessels, but I don't do anything in that way now at all.

12,031. You say your transactions are mostly for ready money?- Yes, mostly.

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12,032. But I suppose you have some accounts when you have a customer that you can trust?-Yes.

12,033. And with him, as you said, you settle every year?-Yes.

12,034. Are there many of these accounts in your business?- There may be some hundreds of them; I cannot say how many.

12,035. Does not every one of your customers open an account in that way?-Not every one; perhaps not above one-third of them.

12,036. You have an annual settlement with them?-When we get an annual settlement, we consider that to be very good. Sometimes it does not come up to that; but we would like it every three months if possible.

12,037. Are many of your transactions settled by means of barter?-Not many.

12,038. In what way is that system of barter carried on with you? Is it by the purchase of eggs and other produce?-Yes; eggs are looked upon as money. We make no difference upon the price of our goods whether they are paid for in eggs or money. With regard to hosiery, our trade is a mere nothing. I think would cover all that I buy in the year.

12,039. Do you pay for hosiery in cash at all?-No.

12,040. I suppose the system that prevails with you is very much the same as that which exists in Lerwick?-It is not the same as in that town at all. The difference is, that we do not manufacture goods to order. We merely buy them when they are offered to us, if they please us. I don't think there is any other difference.

12,041. Is the price you fix for the hosiery generally such as to allow you a profit upon the sale of it?-It is not; sometimes we really pay more for it than we get.

12,042. But do you sometimes look for a profit upon it?-If we look for a profit we don't get it out of the hosiery. If we have a profit, it must be upon the goods that are given in exchange for it, because we often sell hosiery below its value, according to

its value here.

12,043. But I suppose you sell it below its real value only in consequence of some change in the market, or some miscalculation?-Perhaps that is the case; but, in point of fact, we don't buy hosiery as a trade. We are forced to buy it. We don't care for that trade at all, because we always lose by it.

12,044. In fixing the price to be given for the hosiery goods, don't you endeavour to make it at such a figure as will at least keep you safe, and possibly allow you a small profit on the hosiery itself?-I cannot say that we do. We are forced to take the hosiery as a matter of business. We don't deal in that at all, so to speak.

12,045. But don't you endeavour to fix the price at such a figure as would allow you a profit?-Of course we do, so far as we can; but in many cases we sell the hosiery goods below what we paid for them.

12,046. Do you sell them in Lerwick, or send them south?-We send them to Scotland. We don't sell them in Lerwick at all.

12,047. In what other departments of your business does a barter system prevail?-I may say that, except in eggs and hosiery, our trade is principally for cash and we deal in barter for eggs because we look upon them as being the same as money.

12,048. Do you give the full price for eggs?-Yes.

12,049. Do you pay for them principally in tea?-In anything the people want. It is all the same to us. If they want cash, and we pay a few shillings in cash, then we pay a halfpenny less per dozen for the eggs; but that is all the difference we make otherwise we treat them the same as cash.

12,050. Do you purchase a considerable quantity of eggs in that way?-I cannot state the amount exactly.

12,051. Do you send a box south by every steamer?-Yes, and sometimes more than that in the season. Perhaps we send a couple of boxes in the season when they are being brought in.

12,052. Do you send 10 or 20 dozen?-More than that. We can put, perhaps, from 70 to 100 dozen in a box, and we may have two such boxes a week in the season.

12,053. And these, as a rule, are all paid for in goods?-Yes.

12,054. At what time of the year do you generally get your accounts settled?-The fishermen settle their accounts generally about November or December.

12,055. Is that after having settled with the fishcurers?-Yes. I supply the men with what they want through the season until that time, and then they settle. Most of the men who deal with me cure their own fish, and sell them the best way they can.

12,056. Is it a common thing in your district for the fishermen to cure their own fish?-Yes; they have liberty to do that.

12,057. To whom are the sales of these fish made?-They sell them anywhere they choose. Sometimes they send them south, but principally they sell them to Garriock &

Co. The men are rather confined in that way. They don't have exactly their free will to sell them, unless merely a little.

12,058. Do you mean that they have not their free will to sell their fish where they like?-They have that way; but where a proprietor is dealing in fish, the men are generally expected to sell to him.

12,059. Are Messrs. Garriock & Co. factors for some of the proprietors there?-Yes. They are factors for the estate of Dr. Scott of Melby.

12,060. Do the men look upon themselves as being bound?-They are not really bound. They have a little liberty.

12,061. But they think they ought to sell their fish to Garriock & Co. rather than to another?-Yes, that is what is understood, but they are not really bound.

12,062. In what way have you observed that feeling among the men, that they ought to sell to Garriock & Co.? Do they sometimes speak of it to you?-If Garriock & Co. offered them the same price as other merchants, they consider they ought to give them the preference; that is the only way in which I have seen it.

12,063. Would they sell to Garriock & Co. if they were offered a less price?-I don't think they would.

12,064. They would be independent enough not to agree to that?- I think so. But there is a confusion there. I could not enter into explanations upon that point fully.

12,065. Why?-Because I don't think it is necessary.

12,066. But that is just the very point I want to know about. What have you to say with regard to it?-I know that sometimes, if I were offering the same price as Garriock & Co., I would not get the fish from the men.

12,067. Have you tried that recently?-I have.

12,068. Were you willing to resume the business of buying fish?- Certainly.

12,069. But the competition of Garriock & Co. was too much for you?-Not the competition, because I offered the same price, and perhaps even more, and could not get them.

12,070. Do you mean that Garriock & Co. had such an advantage over you, from their position as factors and proprietors in the district, that you could not venture to compete with them?-Yes, I ventured, and I could not get the fish.

12,071. Was that the reason why you gave up the fish-buying originally?-No, that was not the reason. I had some small vessels, and they were unsuccessful, and I just dropped out from the business.

12,072. But you think that the buying of the fish from the fishermen might be more remunerative lately than it was before?-I could not say about that; but the fishermen had the liberty to cure their own fish if they had liked, and then they sold them dry.

12,073. Was it dry fish that you proposed to purchase?-Yes. It was dry fish that I made the offer to buy, but we would not get them even if we had given the same price

as Garriock & Co., or more.

12,074. How long is it since you offered to buy the dry fish?- Perhaps 4 or 5 years ago.

12,075. In what way did you make your intention known: did you offer to certain fishermen at that time [Page 297] to take their fish?-Yes. I have sometimes offered them to buy their fish, but I never could get them to sell them to me.

12,075. [sic] Do you remember any particular men to whom you made that offer?-I could not mention any particular man; but I have offered to several crews to buy their fish, and they would not sell them.

12,076. Do you remember what skippers you offered to?-If it is necessary to give names, I would rather do so in private. [Hands in the name of one skipper and crew.]

12,077. Do you remember any others?-I might mention several, but I don't think it is necessary.

12,078. What answers did they give to your offer?-I sometimes offered the currency, or above the currency, but that did not matter: I could not get their fish.

12,079. Did they decline to entertain your offer?-Yes.

12,080. What did they say was their reason?-They considered themselves as a sort of tied down to sell to one; but I know they were not tied down, and that they could have sold their fish to any one they chose.

12,081. But they did say to you that they were tied down?-They did.

12,082. Was it through a fear of disobliging the factor that they refused to sell their fish?-I suppose so. Perhaps they thought that if they required a favour again, they might not get it so easily if they made a change.

12,083. If the favour they expected was in the way of an advance, would they not have got that from you?-Yes, at any time, either in money or in goods.

12,084. What other favour could they expect from the factor?- From the fact of Messrs. Garriock & Co. being factors, they had more power than I had with regard to the men.

12,085. Did the men express any fear of being turned out of their holdings?-They did not.

12,086. But that may have been in their minds?-Perhaps it might.

12,087. Did you ever hear of any influence being used by Garriock & Co. to secure the fish of these men or of other men?-I cannot say that they used any undue influence; but, of course, it was an understood thing that they had the first chance, and the only chance of them. Where Messrs. Garriock cure the fish, of course they have the fish to themselves; but where they do not cure them, it is considered that they shall have the first chance of buying the fish.

12,088. Where they cure, of course, there is an engagement with the men at the beginning of the season?-No. That was the case about 30 years ago but it is not so

now.

12,089. But in the ling fishing the crews are all engaged in the beginning of the season?-Yes; but there is no price fixed at the beginning of the season. About 30 years ago that was the case and there was some more competition.

12,090. Was it the case 30 years ago that the price was fixed at the beginning of the season?-Yes, there was a price fixed, and sometimes agreements were written on paper for the ling fishing, but that practice fell away. Sometimes the fishermen got above the real value of the fish under that system.

12,091. Do you know whether that system existed only in your part of the island?-No, it existed all over Shetland more or less unless where the factors had control over the fishermen. At that time every man who had his freedom could sell his fish to the best bidder.

12,092. But he can do so still, only the price is now fixed according to the current rate at the end of the season?-He cannot do so exactly in every place in Shetland. The price is not understood to be known until the fish are sold, which, I think, makes the fishermen scarcely so persevering in fishing as they were when they did know the price. I think when the price was fixed at the beginning of the season, they persevered even more than they do now.

12,093. Was that system given up before you ceased to be in the business?-No, it continued after that. The thing which made the price to be fixed at the beginning was, that other buyers than the native buyers came into the market, and there was more competition.

12,094. Was there much more competition at that time than there is now?-In buying fish green there was more competition, but now the competition is very little.

12,095. How do you account for that?-Where factors have the power, it is understood that the men must fish either to the factor or the proprietor.

12,096. Do you think the factors have more power now than they had in those times?-I rather think they have in some cases.

12,097. In those times was it not the rule that the fishermen were always bound to deliver the fish to the proprietor, or to some one appointed by him?-It was.

12,098. So that, in that case, there could not be competition?- There were several people who had the chance of buying the fish at that time; but, of course, they could not get their summer fish. They might get fish during the spring season in small quantities, but that was all.

12,099. I thought you were speaking with reference to the summer fishing, when you said that in those times there was a great deal of competition, and that the price was fixed at the beginning of the season?-Yes; that was the case about thirty years ago but within the last twenty years it has fallen away.

12,100. But even at the time you speak of, were not the fishermen very frequently bound to deliver their fish to the proprietors or their factors, or tacksmen?-They were

bound in some places, but not so much in our part of the country as elsewhere.

12,101. The men were not so much bound in the district that you speak of when the price was fixed at the beginning of the season?-The price was fixed in many cases, but not in all.

12,102. Then the fish in those times were bought from the fishermen green?-Yes.

12,103. And it was the price for green fish that was so fixed?- Yes. The proprietor never fixed the price. It would only be fixed by a buyer or it merchant.

12,104. Do you think it would be advantageous to return to that practice of fixing the price at the beginning of the season for green fish?-Where fish are bought green, I think it would.

12,105. Would it not be better for all parties if the fish were always bought green, and cured by a professional curer?-I don't think it would. There are some of the fishermen who can cure the fish as well as any professional curer.

12,106. Are the fishermen in your neighbourhood generally supplied with vats and other implements for curing fish?-Most of them who cure for themselves have implements of their own. They only require their supplies, such as lines, and salt, and food from the merchant.

12,107. I suppose these independent fishermen who cure their own fish, frequently take their lines and salt and materials for curing from you?-They get them anywhere they choose. They have much more liberty in that way in our parish than, I think, they have in any part of Shetland.

12,108. Would you say that curing by the men themselves is practised to it greater extent in your parish than anywhere else in Shetland?-Much more. Since the men began to cure their own fish they have got on well, and they have got much out of debt, and become more independent.

12,109. When did they begin to cure their fish?-It is about fifteen or sixteen years since it came to be practised to any extent; but there are it good many of them who do not cure their own fish yet. I should say there are about one half of them who sell their fish green.

12,110. Do those who sell their fish green engage at the beginning of the season with Garriock & Co.?-They sell their fish to them. They do not have any price stated at the beginning, but are settled with according to the current price at the end of the season.

12,111. Do you find that the men who are so engaged to sell their fish according to the current price at the end of the season, are less frequent customers at your [Page 298] shop than those who cure their own fish?-Yes; that must be a consequence.

12,112. Why?-Because it is understood that their supplies must come from the place where their goods are going. They are a sort of bound; they are not independent; but if they were curing for themselves, then they would have their freedom to go anywhere they chose.

12,113. Do you mean that the men who are paid according to the current price at the end of the season want to get their supplies on credit?-Of course they must get their supplies on credit at the place where they are giving the proceeds of their work.

12,114. Is there any other reason why they deal with the fish-curer for their supplies? Does a man who has money in his hand go to the fish-curer by preference for his supplies, as well as a man who has not?-Some men would go there even although they had the money, and get an advance on credit.

12,115. Do the men think it an advantage to get their supplies on credit?-Some men do, even although they paid a higher price for them.

12,116. And they might at the same time have money in the bank?-Yes.

12,117. Do you think that is a common notion among the men?- No, I don't think it is a common notion.

12,118. Are the men who act in that way men to whom you would yourself give credit?-Yes. I have sometimes given them credit for their supplies, such as salt and lines, and anything they wanted.

12,119. Would you consider yourself safe in giving them credit, even if they were engaged to deliver their green fish to Messrs. Garriock & Co.?-No. I would not like to deal with the men who sell their green fish, because I would run the risk of not getting my money from them.

12,120. But you say the men will take advances from the curer during the summer, even although they are quite able to pay for what they are getting?-Some men will do so from their natural disposition; but, as a rule, if the skipper goes to a certain place for his supplies, it is considered that his men must go there too.

12,121. How is that?-The skipper, of course, has some control over his crew on shore as well as at sea.

12,122. Do you think the skipper sometimes advises or persuades his men to go to a particular shop?-He might; I cannot say that he would not, but that is not known to me.

12,123. Do you suppose there is any understanding that it is part of the skipper's duty to guide his men to the right shop?-I don't think the skipper is tempted in any way to do that. I don't know that he derives any benefit from it. There may be a premium given to a skipper for being the best fisher; but I don't think the skippers are tampered with to control their crews as to the shops where they are to deal.

12,124. Who has the appointment of the skipper?-The crew may choose a man for themselves.

12,125. Have you noticed, as a rule, that the skippers deal at the fish merchant's shop more commonly than the men?-No. I think there is no difference in that way, so far as I have seen.

12,126. Then the only reason you can suggest for men who sell their green fish dealing at the shop of the curer, is because there is a sort of understanding among

them that they shall take their supplies there?-Yes. In fact, they would not get them anywhere else because they could not get the money to pay for them. The man who buys the fish has the first chance of the men's money; while we who don't buy the fish have only a second or a third chance of being paid. We would not care to supply men in that way, because we don't consider ourselves safe.

12,127. But in giving supplies to the men who cure their own fish, you think you have some security?-Certainly.

12,128. What is that security?-The men are more independent, and if they sell their fish south, they are sure to get their money at the time.

12,129. But you told me that these men are under some kind of obligation to sell their fish to Garriock & Co.?-There is some understanding of that kind, but they are not bound.

12,130. They always give them the preference?-Yes.

12,131. And you have been unable to buy their fish from them?- Yes. Even if I were to offer a somewhat higher price, I know that I would not get them.

12,132. If that is the state of matters with them, then you have not much more security for your advances in their case than in the case of the other men?-I have security. There is no fear for them.

12,133. May they not be taking supplies all the season from the merchant's shop?-We have a good chance of knowing where they get their supplies; and men like that, who are independent, are not likely to run away with the money when they get paid for their fish. They are safe enough to pay their accounts.

12,134. Then your reliance is very much on the character of the men themselves?-Certainly.

12,135. Do you find that the men who cure their own fish are of a more reliable character, and more to be depended upon, than the others?-Generally they are, and they are more persevering.

12,136. I suppose Messrs. Garriock & Co. know pretty well what men deal at your shop, and what men deal at their own?-I think they do.

12,137. Have you ever obtained from them, or through them, payment of any accounts that have been run up by men at your shop?-No. I would not like to apply to them for that. I think they would rather pay the money to the men themselves.

12,138. Do the men who deal with you upon accounts generally keep pass-books?-Some of them do.

12,139. Do you find any irregularity or difficulty in settling their accounts, in consequence of the want of pass-books?-I find none; but, of course, if a man understands accounts, and keeps a pass-book, I find it more agreeable to settle with him. The more ignorant a man is, the more trouble you have in settling with him.

12,140. Are there any other buyers of dried fish in that district than Garriock & Co.?-There is no other person who buys them in large quantities.

12,141. There may be small buyers, but I suppose they don't have much chance in the circumstances you have already described?- No; they don't have a chance.

12,142. How do these small buyers get any fish all?-There are very few who buy dried fish, and who have the chance of getting much. They might get few tons in some years, but not as a regular thing.

12,143. Is there any public-house in the parish of Walls?-No.

12,144. Or any one who has a grocer's licence?-No, there has not been one for some years.

12,145. You don't hold a grocer's licence for the sale of spirits?- No.

12,146. Where do people in that parish get their supplies of liquor?-There are two licensed houses in the next parish of Sandsting-one at Tresta, and one the Bridge of Walls, on the Sandsting side.

12,147. Have the people to go there for all their supplies of that kind?-Yes.

12,148. I believe they are a very temperate people?-I think they are.

12,149. Have you ever been asked to purchase second-hand goods in small quantities by your neighbours, by people coming from a distance?-No.

12,150. Have you not been asked to buy small packet of tea across the counter?-Never.

12,151. Do you know whether the people in your district sometimes get their supplies of tea from those who have got the tea in exchange for hosiery in Lerwick?-No; there is no practice of that kind among us.

12,152. If it happens, it will be an exceptional thing so far as you know?-I never knew any case of the kind.

12,153. When you were engaged in the fish business yourself, were you ever asked to advance the rent of any fisherman from whom you had bought fish?-I might sometimes advance money to a fisherman to help [Page 299] him to pay his rent, but I cannot say that I was ever pressed either by a factor or a landlord on that point.

12,154. When you gave that advance, it was given directly to the fisherman?-Yes, and voluntarily.

12,155. Do you ever make money advances now for that purpose, or for any other purpose, to your customers who have accounts with you?-I have not done so within the last two or three years; in fact, most of the men don't need it; they can get on without it.

12,156. The accounts incurred to you, and which are settled for at the end of the year, are paid in cash, I suppose, for the most part?-Yes, in cash.

12,157. The only things you get in part payment, and which are entered on the other side of the account, are eggs and sometimes butter?-There is not much butter. The greater part of my trade is done in cash.

12,158. But eggs and hosiery may sometimes be entered in the account?-Not much hosiery. I don't do much in that way.

12,159. You said it might amount to £50, but the transactions, I suppose, are settled at the time?-Yes. In some years I do not do the half of that, but would cover my transactions in that way in any year. I remember some years ago buying three or four times as much, but now the knitters all go to Lerwick with their work.

12,160. What hosiery you do buy is all settled for at the time?- Yes, it is paid right off there and then. The articles are offered to us, and if we are satisfied with the quality and the price we take them, the same as in any other money transaction.

12,161. Do the accounts which you settle at November or December generally amount to some pounds apiece?-Yes; with those fishermen to whom we have advanced.

12,162. Are these accounts generally paid in cash which the men have got from Messrs. Garriock & Co. for the sale of their fish to them?-Yes.

12,163. I suppose you take good care to bring as many of your accounts as possible to settlement immediately after the settling time with Garriock & Co.?-Yes; that is our usual practice.

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12,164. You are a merchant at Voe, in the parish of Walls?-I am.

12,165. How far is that from Bayhall?-About five minutes' walk.

12,166. Have you heard the evidence of Mr. Georgeson?-I have.

12,167. Is your business much of the same description as his?- It is exactly the same. There is no difference between them whatever.

12,168. It is conducted with the same class of customers?- Exactly.

12,169. Are your settlements made at the same season?-Yes.

12,170. Have you ever been in the fish-curing business yourself?- Yes. For the last two years I have done little in the winter season. I get no fish in summer.

12,171. Do you buy the fish green?-Yes; in winter.

12,172. Are you ready to buy them cured if you could get them?- Yes. I have often offered for fish, but I never could get them. I have made the offer publicly to all the boats.

12,173. In what way did you intimate that offer publicly?-I just said to the men that I would buy their fish, and give as high a price for them as another. I have said that if I did not give them 10s. more, I would not give them 10s. less; but I could not get them.

12,174. What did they say?-They said nothing, but they never gave me the fish.

12,175. Did you mean by the offer you made to them that you would give them a price fixed at the beginning of the season?- No; I could not fix a price then. I meant that I would give them as much as any other fish-buyer who was in the trade.

12,176. Did you mean that you would give them that price at the end of the season when they delivered their cured fish?-yes.

12,177. Did you make a special offer to any particular crews?-I have said to some of the men to tell their skippers what I had offered. The skipper was not in at the time, but I told one of the men that I would give him 10s. more than any other one if he would give me his fish.

12,178. Have you reason to believe that the man carried your message to the skipper?-Yes; I know he did carry it.

12,179. Did you get any answer to it?-No.

12,180. Then how did you know that the man had carried your message to the skipper?-Because I asked the skipper afterwards about it; and he said he had been engaged at the beginning of the season to deliver his fish to another party.

12,181. Were these fish to be cured by himself?-Yes.

12,182. Are contracts made so early as that with men who cure their own fish?-In some cases they are.

12,183. Was the other party in this case Messrs. Garriock & Co.?-I don't think it was. I would rather mention the name privately. [Hands in the name of a fish-curing firm.]

12,184. Are these gentlemen you have named extensive purchasers of cured fish in your district?-I believe they would buy all they could get.

12,185. Perhaps they have the same difficulty which you experience in buying fish?-I suppose they have.

12,186. Do you carry on any business with men who are engaged to fish in the ling fishing for Messrs. Garriock & Co.?-Yes. I supply the crews with what they require for the fishing, such as lines, and hooks, and tar.

12,187. Are they not expected to take their supplies from the shop of the merchant with whom they engage?-Sometimes it is much handier for them to get them from me than to go to Reawick for them; and when I know the crew will pay me, I supply them to them.

12,188. Your shop is at a great distance from Reawick, or any of the larger fishing stations?-Yes.

12,189. Do you make these supplies to the men to a large extent?-No, not to a large extent; only to a few boats. It is only to the crews that I make these supplies, because the company accounts are paid first at the time of settlement, and I look to the skipper to see that I am paid.

12,190. Then a company account of that kind is a safer thing than an account with one of the men?-Yes.

12,191. Do the fishermen themselves, as individuals, get supplies from you on credit while they are engaged in the ling fishing?- Yes.

12,192. Do they not go more frequently to Reawick, or to Messrs. Garriock & Co.'s other stores, for supplies?-Yes. There are certain parties that I won't give them to.

12,193. Do you furnish the principal part of the supplies to those men in your neighbourhood who fish for Garriock & Co.?-No. Garriock & Co. do that themselves. It is only when they cannot get over to Garriock a Co.'s stores, or when Garriock & Co. might be out of any article they want, or something like that, that they come to me. They only come to me for what they want when they cannot do better.

12,194. Is it the case that some of them come to you for supplies because Reawick is so far away?-Sometimes that is the case in the busy season. When the fishing is going on they are glad to go to the nearest place, and get a few lines or hooks, or what they want but when they do go to Reawick they take as much from there as possible.

12,195. Are they expected to do so?-I rather think they are.

12,196. Do you understand that from the men themselves, or is it merely your own inference from the way in which they act?-It is my own opinion.

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12,197. Have you heard anything from the men which has confirmed that opinion?-No, I could not say that I have.

12,198. Do you find that the connection of the fishermen with a large company of that kind, which buys their fish, and which acts as factor upon the estates where the fishermen live, interferes with the extension of your own business?-I cannot say that it does.

12,199. Have you not told me already that you have not been able to buy fish from the men, although you wanted to do so?-Yes; it interferes with me in that way, so that I cannot get the fish.

12,200. But you don't suppose the men would deal at your shop, in preference to the shop of the merchant who employs them, even although they could do so?-If they were fishing to me, I believe they would deal with me the same as with any other one. I cannot quite agree with what Mr. Georgeson said about that. I think there is a little bribe which the skippers get for seeing that the men go to the shop. I think it is an understood thing between the skipper and the fishbuyer, that he (the skipper) is to get something extra.

12,201. Does not the skipper usually get a fee?-No; he is generally supposed to get the same as the men, but I rather think he gets a little more.

12,202. You say that that serves as a bribe: for what purpose?-I leave that to you.

12,203. Do you suppose it has the effect of making him influence the men to take their supplies from the merchant's shop?-I leave that to you to judge.

12,204. Do you suppose that the skipper, in general, does guide his men in that direction?-I rather think he does in some cases.

12,205. Have you known any special instance that you could point to, where that was done?-There was one boat's crew with whom I was settling for a small company account. I asked them why they did not give me their fish as we were next-door neighbours, or something like that; and the men all got up against the skipper, and said they were quite willing to give me their fish, only that the skipper had gone away and made an agreement for them before.

12,206. That was for the sale of their fish?-Yes, for the sale of the dry fish. I would have bought them at the same price as Garriock & Co, or any other one.

12,207. But that was not a case in which the men were induced to go for supplies to the fish-curer?-They did not require to go there for their supplies unless they had liked, because they could have got their supplies from me if they had said they would give me their fish at the end of the season. If they had done that I was willing to supply them with money, or meal, or anything they wanted.

12,208. These were men who were curing their own fish?-Yes.

12,209. But have you known any cases in which men who were engaged to fish during the whole season, and to deliver their fish green to Garriock & Co., were induced by the skipper to go to Reawick for their supplies?-I cannot say that I have.

12,210. Is it not the fact that men who live near you do go to Reawick for supplies although it is much farther away?-Yes.

12,211. And although it is inconvenient?-Yes, it is inconvenient. They could do much better by coming to my shop, which is next door to them, and they could get as good articles at the same price as they can at Reawick.

12,212. How far is it from your place to Reawick?-I think it is about 10 or 12 miles.

12,213. When the men go there for meal or other supplies, are these supplies brought across the country?-Sometimes they are brought by boats and sometimes round by the rocks.

12,214. When a crew cure their own fish, is it the rule that the sale must be of the whole catch of the boat, or can each man sell his fish separately?-No, they must all be sold together; and they generally go to the place where the skipper or the majority of the men want them to go.

12,215. Do you think the skipper has a considerable influence in that matter?-I think he has.

12,216. Of course, where the men are fishing independently, and curing their own fish, there is no arrangement with the merchant for the skipper's fee?-No; that is an understood thing between the skipper and the fish-buyer, and I don't think the men know anything at all about it. There is no fee at the ling fishing, and the men can go

to whom they please. They are different there from what they are in the Faroe fishing.

12,217. Do you buy any hosiery?-I buy it little, and I pay for it in the same way which Mr. Georgeson explained. It is all done by barter.

12,218. Do you also pay for eggs and butter by goods?-Yes.

Lerwick, January 24, 1872, JOHN JOHNSTON, examined.

12,219. You are a merchant at Bridge of Walls, in Sandsting?-I am.

12,220. You are a son of Mr. George Johnston, merchant at Tresta?-Yes.

12,221. Is that in the same parish, but at some distance from your place?-Yes; I think it is about eight miles away.

12,222. Your father is in delicate health, and has not been able to come to-day?-Yes. He has not been able to come in consequence of the rough day.

12,223. Were you concerned in his business before you set up business on your own account?-Yes.

12,224. You are acquainted with his business at Tresta as well as with your own?-Yes.

12,225. Have you heard the evidence which has been given by Mr. Georgeson to-day?-Yes.

12,226. Is your business and that of your father similar in character to Mr. Georgeson's?-Yes, it is just the same only we have a spirit licence in addition. My father has a public-house licence, and I have a grocer's licence.

12,227. Then you supply what spirits may be wanted in the parishes of Walls and Sandsting?-Yes. I suppose we supply the principal part of them; but the people may go to Lerwick or any other place for them if they choose.

12,228. Your dealings in that way, I suppose, are always settled for in cash?-Yes, always in cash.

12,229. Is the bulk of your other transactions paid for in cash too?-No; there is a good deal of credit given.

12,230. To what class of customers do you give credit?-To the fishermen.

12,231. Have you any fishermen who are employed in your own boats?-We have no boats fishing to us.

12,232. Do you buy cured fish or green fish from the fishermen?- No, we don't buy any. My father has one vessel of his own that goes to the Faroe fishing. He had three about five or six years ago.

12,233. Where do you get the men for these Faroe vessels?-They are very much scattered. Sometimes, we get part from Walls, and sometimes part from Sandsting.

12,234. Do these men take supplies for themselves and their families during the summer from your father's shops?-Yes.

12,235. And they have an account which is settled at the end of the fishing season?-Yes.

12,236. Do you buy no fish at all?-No. My father has an interest in two boats that fish on the home banks off Shetland. That is the cod fishing; they don't go to the Faroe fishing. They are smacks, but they are small.

12,237. That bank is between Shetland and Orkney?-Yes.

12,238. Exclusive of the men who are engaged in the Faroe fishing, have you or your father many accounts with fishermen living in the district?-Not very [Page 301] many. We have some, but they are principally with men who go south, and we supply their families during the time they are away. They go principally to Liverpool, and sometimes to Greenock, and enter the merchant service. They remain away for a year or two, and then come home for a winter.

12,239. Do these men send allotment notes home to their wives?- Not often. They generally remit money home at the end of the voyage.

12,240. Then you have no security at all for your advances, except the personal credit of the men?-None at all.

12,241. There may be some stock on their farms occasionally?- Of course they have a little.

12,242. Have you any accounts with fishermen on the ling fishing at home?-Not many. There is no ling fishing carried on close to where I live.

12,243. But a few of your neighbours are engaged in it?-No. I think there are none of them engaged in it.

12,244. Is it the same with your father's place?-Yes; there is no ling fishing there at all.

12,245. Have you any accounts with fishermen engaged in the Faroe fishing for other merchants than yourselves?-We have some, but not many.

12,246. I suppose these Faroe men generally open accounts with the merchants in whose smacks they are engaged?-Yes, generally.

12,247. Have you anything to say in addition to what was stated by Mr. Georgeson and Mr. Twatt in their evidence?-The only thing I would like to say is, that I think all the men have complete liberty to engage anywhere they choose, or to go to the fishing or south as they like. I don't think any compulsion is used.

12,248. I don't think any of the previous witnesses said there was any compulsion in that way. Have you ever endeavoured to purchase cured fish?-No.

12,249. Why? Did you never think of it?-No.

12,250. Was that because you considered you would have no chance of getting the fish to buy?-I could hardly say that; but I never thought much about it.

Lerwick, January 24, 1872, ARCHIBALD ABERNETHY, examined.

12,251. Are you a shopkeeper at Whiteness, in the parish of Tingwall?-I am.

12,252. In what goods do you deal?-Principally in eggs and butter.

12,253. Do you deal in groceries and a little in soft goods?-Yes.

12,254. Do you pay for eggs and butter generally in goods?-Yes, generally; but I very often pay money for eggs too.

12,255. Do you make a difference on the price, according as they are paid for in money or in goods?-Yes; there is a difference of 1/2d. per dozen, as a general rule.

12,256. Have you ever bought fish?-Yes, a little.

12,257. Do you buy them dry or green?-I buy them green, and cure them myself.

12,258. Do you own any boats?-No. Occasionally I may hire a boat and a crew for a month or two about this season of the year for the spring fishing, before they go to Faroe.

12,259. Do you fix the price of your fish at the time they are delivered, or do you settle with the men for them according to the price at the end of the season?-They will scarcely agree to fix a price at the time they are delivered, in case the price of fish may rise during the year, and then they expect to get a better price for them. They prefer to wait until the fish go to the market, and then they know what the price is.

12,260. Is that what is done when you buy the fish green?-Yes.

12,261. In that case, you settle with them according to the current price at the end of the year?-Yes. I generally guarantee to give them that price.

12,262. I thought you said you had only one boat for a short time at this season?-I sometimes have one or two boats for a short time at this season, and that is generally the agreement I make with them.

12,263. Don't you buy the fish promiscuously, as it were, from any man who comes and offers them to you?-Yes.

12,264. Do you do that only in the winter and spring, or also in the summer?-It is only in the winter and spring that I have the chance of doing it. There are scarcely any fish got in our quarter in the summer time, because the fishermen are generally engaged in the Faroe fishing then.

12,265. Are none of them engaged in the ling fishing?-None at all.

12,266. Do you keep accounts for supplies that you make to fishermen?-Yes, a few.

12,267. Are these men engaged in the Faroe or the ling fishing?- Principally in the Faroe fishing.

12,268. Do any of these men get their whole supplies from you?- None of them. I think they are generally supplied from the shops of the owners of the vessels they are in.

12,269. Do they get the most of their supplies from there?-I think so.

12,270. Do these men live near your shop, or are they living at a distance from you?-They live pretty near me. Some of them are near neighbours, and others live about three or four miles away.

12,271. How many men of that kind may there be who deal occasionally with you, but who get the bulk of their supplies from the parties for whom they are fishing?-I should fancy there may be about forty or fifty of them.

12,272. Have most of these men got accounts?-Generally they have, but not to a great extent; perhaps for a few shillings.

12,273. You understand they are supplied chiefly by the merchant for whom they ship?-Yes, generally.

12,274. Would it not be more convenient for them to get their supplies nearer their own homes?-I don't know that it would make much difference. It is not very far from our place to Lerwick. I think it is only about eight or nine miles, and the people generally are in the town every now and again with hosiery and things of that kind.

12,275. Who are the merchants with whom most of the men engage for the Faroe fishing?-I think the principal parties are Mr. Leask, and Messrs. Hay & and Messrs. Harrison & Sons.

12,276. Do the people generally carry home their meal and provisions from Lerwick when they buy meal there?-A good deal of it comes in that way; but it is a very common thing, when the men are going to Faroe, for them to bring the smack round to Whiteness and leave a boll or two of meal at their houses there before they go away.

12,277. What prices do you pay for the fish caught in spring and winter?-From 6s. 6d. to 7s. We are paying 7s. just now for cod. There are very few ling caught.

12,278 What is the price for the small fish?-It is 4s. 6d. for the smallest and then there are different prices from that upwards until we come to the big size.

12,279. What quantity of fish will you get in that way from a boat's crew in the course of a winter and spring?-I really don't know. I don't get them all. They may come to me with a few cwts. perhaps, and perhaps go to Scalloway or anywhere else with the rest. They are quite at liberty during the winter, so far as I know, to go anywhere they like where they can get the best price. When they come to me they generally take what goods they want, and if there is a balance over they usually get it in cash.

12,280. When they come with fish in that way, I suppose you generally ask them what they want after fixing the price?-They know the price before they come with them, and they generally want some things out of the shop. If they do not, then they get the cash.

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12,281. Do you weigh the fish?-Yes, we weigh them in presence of the men.

12,282. Is not the first thing you do after that to see what goods the people want?-Very seldom. I just ask them if they are wanting any goods, and then they buy them; but they sometimes take the whole price in money, and sometimes they settle previous accounts with fish which they bring in that way. In winter that is generally the way in which they settle their accounts with me.

12,283. Are the accounts which the men run up in summer generally settled by the sale of their winter fish?-Yes; that is the way in which the thing is done in our quarter.

12,284. How many tons of dry fish would you be able to sell from that kind of trade?-Perhaps three or four tons, or the like of that. It is not carried on to any great extent.

12,285. Do you sell these fish at what is called the current price?-No; I just take my chance. I get them dried perhaps in April or May, and send them south.

12,286. Can you sell them earlier than the large fish sales of the year?-Yes. The spring fish are all dry by April or May.

12,287. Is the price of cured fish generally higher early in the season than it is in September, when the large sales take place?-I don't know; the price is very fluctuating.

12,288. Are you aware that the current price this year for ling was £23 per ton?-Yes; but I am not aware of that price having been paid for any of the small fish such as I am speaking of.

12,289. What did you manage to sell your fish for last year?-I sent them principally to Leith, and I got about £16 per ton for them on an average, after deducting expenses. I do not know the price at which the fish were actually sold, but that is what I realized. I sent them to an agent in Leith, and that was my return.

12,290. Do you suppose that any of the men that you bought fish from would get as much as £5 from you in the course of the winter and spring for their fish?-I don't think they would.

12,291. Might one crew get as much as that?-Yes, more than that; or if they were going to the spring fishing also, they would get perhaps £4 or £5 each man for the big cod. I paid more than that per man last year, when they had been both at the winter and spring fishing.

12,292. I suppose most of that would be settled for by the men taking the goods?-No; I think three-fourths of it would be settled for in cash. That would not be so in every case; but in some cases more than three-fourths would be paid in cash.

Lerwick, January 24, 1872, LEWIS F.U. GARRIOCK, examined.

12,293. You are a partner of the firm of Garriock & Co., general merchants and fish-curers at Reawick?-I am.

12,294. You have prepared a statement which you wish to appear as part of your evidence?-Yes.

12,295. Is that statement correct?-It is, to the best of my knowledge.

[The witness then handed in the following statement:-]

'I am a partner of the firm of Garriock & Co. general merchants and fish-curers at Reawick.

'Mr. Umphray, the senior of the firm, and myself, are proprietors of land. Mr. Umphray, my younger brother, and I, are joint factors on the estate of Dr. Scott of Melby.

'I am trustee for the proprietors of the Burra Isles.

'Our general store for all sorts of goods is at Reawick. We have, besides, two small shops or general stores, one in the Island of Foula where there are about forty families, and the other at Sandness, where there are about seventy-five families.

'We engage our fishermen and servants from the district of country comprising the parishes of Weisdale, Aithsting, Sandsting, Walls, Sandness, and Foula, with a few from districts beyond Tingwall, Burra, etc.

'We cured last season the fish from ten smacks fishing at Faroe, Iceland, etc., and five smaller vessels prosecuting the fishing in the neighbourhood of our own and the Orkney Islands. There are other owners interested in some of these vessels, but we engaged the crews on shares; and at the end of the season, when the value of the fish was realized, we accounted with owners and men for their proportions. The gross value will be about . . . £4600 0 0 The cost of bait, salt-curing, etc., . . £650 0 0 The cost of biscuit, coals on owners' account, 250 0 0 Proportion paid crew individually, . . 2200 0 0 Proportion paid owners, 1500 0 0 £4600 0 0

'The fishermen's proportion is paid to each of them in cash, under deduction of any provisions and articles of clothing for themselves, and provisions, etc., supplied to their families during the season, so far as they have supplied themselves from us; but they are under no obligation to take such advance from us and can, if they choose buy their articles from any shopkeeper, either for cash (which many of them have spare) or on credit. A few of the men can do without advances, having spare money; but the fishing could not be carried on if we were not to supply them, especially as regards the lads in their first and second year.

'In years when the fishing is not remunerative merchants making those advances lose heavily in bad debts.

'I have gone carefully over the accounts with the crews of two smacks, and produce an abstract of the men's accounts, which shows that, as respects one of them in 1870, we accounted to them for £427,19s. 2d., of which they had from us for lines, hooks, and provisions on board, £71, 7s. 9d.; clothing, and supplies of meal, etc., to their families, £114, 14s. 5d.; and in cash, £239, 17s. The other crew, in 1870, had, in lines, hooks, and provisions, £81, 7s. 11d.; goods, £129, 0s. 8d.; and in cash, £374, 13s. 6d. The same crew, in 1871, in lines, provisions, etc., £63, 3s. 4d.; goods, £67, 7s.; cash, £198, 9s. 7d. Looking at the last two years as regards our fishermen in smacks, it appears they have had considerably more than half their gross shares paid

them in cash.

'We would, as merchants, greatly prefer a cash system, payment being made upon the fish being delivered, the same as we do to English smacks fishing for us at it contract price-and we derive about one-third of our cure from this source. But I believe were such a mode attempted it would lead to fixed wages, and would end in loss to both men and owners, and a great falling off in this branch of the fishery.

'BOATS.-About one-fourth of our cure last year was from open boats-six-oared boats at far haaf, and four-oared boats at home haaf. About 63 tons of these are from crews who cure their own fish, and deliver at one time, at the end of the curing season. The remaining 71 tons are delivered fresh every day, as landed at our stations. Those who cure their own fish, whether they have advances of salt, meal, etc., from us or not, are at perfect liberty to treat with and sell to any merchant they can get the best price from when their fish are ready. Their boats and gear are all their own. The understanding about those delivered fresh is, that we pay not less than the current rate of the country. These men, as well as the others, own their boats and gear. The peculiarities of their situation make this mode of delivering in a fresh state a necessity. At two of the stations we receive from in that way; and we prefer it, although the fish should [Page 303] cost us higher than those cured by the men themselves, as we can make a much better article, having skilled men and better appliances. To show that our boat fishers do see more than a pound at settlement, I take the liberty to hand you herewith an abstract of my settlement last and previous month with the men at two stations in Walls, by which it appears that 36 men employed at far haaf, and 34 men at home haaf, had value in fish, £829, 19s. 1d. Our supplies in boats, lines, salt, meal, and other goods, was £29, 0s. 81/2d.; and I paid them in cash £600, 18s. 41/2d. I have not access to some of the station books; but, from an abstract of my last year's settlement at one of these stations, there was placed to credit of the men for fish, work, curing, etc., £655, 0s. 6d., which was thus disposed of: '1st. To account of arrears of advances of meal, etc., from previous years, £71 12 7 '2d. Fishing material, meal, goods, and cash from storekeeper during year, 270 7 2 '3d. Cash at settlement, 313 0 9

'It is not always so; this same island for three years, 1867-69, suffered severely from the crops being blasted, and the fishing of 1868 proving a failure (each fisherman's earnings for the whole year only amounting to about £3). We supplied them with meal during these years, at the end of which they were due us £228, 19s. 9d., besides some arrears of rent to Dr. Scott. All this is now cleared off, unless some three or four individuals; and the more provident have a good few pounds saved.

'In settling with our men, the whole crew, both as respects smacks and boats, are brought in together, and the statement of the division is gone over carefully. Afterwards each man comes separately, and every item of his account read over, or if a pass-book is kept (which is very common) it is made up. Copies of the account are given in every case when desired. I think our men are perfectly satisfied with the present system.

'The tenants on the Melby estate are perfectly free to earn their living as they choose; and it is the same as regards Mr. Umphray's tenants (who number 75) and my own. On going over the roll of Mr. Umphray's tenants, I observe there are only 17 fishing to my firm (some of them only part of the season), and of my tenants only 4.

'It is the exception, not the rule, for our fishermen to be in debt to us. Of the 70 men representing the sixteen crews of which I have given particulars, all had money to get, with the exception of six, who are due us balances to the amount of £33, 2s.

'We employed last year 40 beach boys, from 13 to 17 years of age. All had cash to get at settlement, and none are in advance on the coming season.

'HOSIERY.-We take hosiery in barter for any sort of goods required, including meal and provisions. We have found this branch of trade uniformly a losing one but it is convenient for our customers-families who occupy their spare time from farm work in knitting plain articles-to get such exchanged; and it would put them much about if we were to give it up, being so far from Lerwick, and the neighbouring country shops only taking such things as they have an outlet for. A good many of the girls go to town, perhaps once in the year, with their hosiery.

'EGGS.-We take in eggs in the same way, but pay cash readily when asked.

'We have only one price in our stores for goods, whether sold for cash or barter.

'My firm has no separate account for the wife, and with other members of the family, unless when such are working or fishing for themselves.'

12,296. You say in your statement that Mr. Umphray and yourself are proprietors of land: is that in the district in which your business is carried on?-Mr. Umphray is a proprietor of land there. His rental is somewhere between £300 and £400, and the number of his tenants is between 70 and 80.

12,297. What is the rental and the number of tenants on the Melby estate?-The rental is about £1200, and there are nearly 300 tenants; but I cannot give the exact number.

12,298. Do most of the tenants on these estates fish for you in summer?-There are more of them who fish for us than for any other.

12,299. Do you think all who are engaged in the ling fishing fish for you?-By no means; but I should say that fully three-fourths of them do.

12,300. You say in your statement that you are trustee for the proprietors of the Burra Isles: are they the Misses Scott of Scalloway?-Yes. Mrs. Spence and Miss Scott.

12,301. Are you aware that some complaints were made by the inhabitants of the Burra Isles, a few years ago, to the agent for the proprietors in Edinburgh?-Yes, there was a letter sent to him.

12,302. In consequence of these complaints, did you make an investigation and report?-Yes; I went to the island to inquire into the matter. The prayer of the petition was, that the proprietors should be more careful, when another lease was given, not to allow certain things which the tenants complained of to be inserted in it.

12,303. At that time was a new lease in contemplation?-No; there were two or three years to run of the old lease.

12,304. Was the lease of Burra, under which the islands were then held by Messrs. Hay, granted during your management?-No; it had been granted some years before.

12,305. A copy of the letter to Mr. Mack which occasioned the inquiry, was sent to you at the time?-Yes.

12,306. The first complaint in that letter was, 'That every householder is bound to pay £1 sterling annually for every son who, being a common fisherman, ships in any Faroe-going fishing smack, not belonging to the lessees or the agent of the North Sea Co.; otherwise he must remove from the island, or expel any such son from his home.' I have not seen the lease in question, but did you find that that was a well-founded complaint?-There was nothing of the kind stated in the lease. My understanding of the complaint is, that when the lease was taken by Messrs. Hay, they entered into an arrangement with the tenants with regard to the terms on which they were to occupy under them.

12,307. Did you ascertain whether any such stipulation had been entered into between Messrs. Hay and the tenants?-I investigated the matter upon the spot, but I could not find any case where the money had been paid.

12,308. In what year did you make the investigation?-In 1869.

12,309. Did you find any case in which the money had been demanded?-I did not find any; but I understand that Messrs. Hay had sent round or had handed to each of the tenants the terms of the engagement under which they were to occupy, and that there was something about it in that. I did not see it myself; but I understood they were either to fish to Messrs. Hay, or to have liberty to fish elsewhere if they chose on payment of £1. That was the rule that had been laid down by Messrs. Hay; but I could not trace any case in which the money had been paid.

12,310. Have you any objection to state the name of the party who wrote the letter to Mr. Mack which you now hold in your hand?-I believe it was a private communication, and I would rather not mention the name. The writer says, 'Having fulfilled my promise to write you, I have to express the hope that this confidential communication may receive your kind consideration.' I don't know that it is of much importance who wrote the letter; but I may mention that he was a minister who was in the habit of visiting the island, and to whom some of the people had made complaints. It became very clear to me, from my investigation, that the case had been very much overstated. I got particulars of the prices paid to the men for several years, and I made inquiry at other places in the neighbourhood about the prices, and I could not find that they had any cause of complaint about the prices paid to them for their fish.

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12,311. Did you find the statement to be correct which is contained in the third head of the letter: 'The price given is never less than 1s. per cwt. below the average paid for green fish in the islands; and in the case of herring, not less than 5s. per cran

below the market price is a common thing'?-There was no foundation for that statement whatever. I found the Burra people were getting fully as much as any other fishermen.

12,312. Did you ascertain that from an examination of the books of Messrs. Hay & Co, or from statements made by the people themselves?-I ascertained the prices paid to the men from Messrs. Hay & Co.'s books, and on comparing it with the prices paid in other localities, I found that that was an unfounded statement altogether.

12,313. Did you find that the fourth complaint, about oysters being underpaid, was correct?-I found that in that very season the men were selling their oysters where they liked. There was no restriction at all at that time. There had been before. I believe Messrs. Hay had endeavoured to prevent anybody from coming in and dredging upon the oyster beds that lay between the islands, and to get the people to deliver the oysters to them; but they had given up that before that time and allowed them to sell them where they chose.

12,314. I suppose the result of there being no restriction is that the oyster beds are nearly exhausted?-They are almost entirely exhausted. In the course of two seasons they were all taken up.

12,315. Did you ascertain whether a regular system of deception had been practised in order to evade the obligation to deliver to Messrs. Hay, while the restriction existed about the oysters?-I did not find that there was a regular system of deception, because, at the time when I made my inquiry, any oysters which the men dredged were sold where they pleased. Messrs. Hay found out, that unless they had an Act of Parliament, they did not have the power of hindering the men from selling where they chose. That oyster bed had been held by the proprietor almost exclusively as his own property, and for generations it was dealt with as such. Messrs. Hay & Co. came into the proprietor's place and I daresay they very naturally supposed that they had the same right; but on the men insisting on selling where they chose, they found they could not prevent them.

12,316. Did you find that at the time when it was supposed Messrs. Hay had that power, a system of deception had prevailed, as is alleged in this letter, in order to evade the supposed obligation?- That is one way of putting it; but I should suppose that before the matter was determined as to the right of the people to sell oysters where they chose, they had been in the habit of quietly going to other parties with the oysters, that Messrs. Hay should not know.

12,317. Then I suppose that, so far as it went, that complaint was not very far from the truth?-It was perfectly untrue. The statement made in the complaint was that Messrs. Hay only gave 1s. per 100, and that that was paid in goods, while the men could get 2s. 6d. elsewhere. I found that to be utterly untrue.

12,318. Was it the case that Messrs. Hay paid a larger price than was stated, or that the higher price could not be obtained elsewhere?-Oysters had been selling years before as low as 1s. per 100; but Messrs. Hay were paying the same price as other people at that time. I think 2s. 6d. was the price in 1869.

12,319. Were Messrs. Hay paying that price then?-They were paying the same as Mr. Harcus who is still a buyer.

12,320. Was he the only other buyer?-No. I believe Mr. Nicholson and Mr. Tait also purchased about that time.

12,321. But the previous time, when the oysters were selling for 1s. per 100, was before the date of your inquiry?-Yes, it must have been some time before.

12,322. Could a larger price have been got elsewhere than from Messrs. Hay & Co.?-I don't know. I know that oysters were not so dear at that time as they became afterwards; but at the time when Messrs. Hay & Co. were the only parties buying oysters, they got very few. They were not fished to any great extent.

12,323. Did you find that the fifth complaint, that every person on the island selling any article to a neighbour was liable to expulsion, had any foundation?-It had a foundation to this extent, that Messrs. Hay did not allow anybody to set up a shop in the island; but it was nonsense to say that people were not allowed to sell any article to a neighbour, such as fish or any of their produce.

12,324. A resident clergyman or schoolmaster might have got fish for his table if he wanted them?-Yes, or any article of produce that the people had. The complaint was only true so far that the people were not allowed to set up retail shops in the island.

12,325. Was there any prohibition on selling tea?-That is what I refer to.

12,326. Even if they had no shop, was not one neighbour prevented from selling a 1/2 lb. or 1/4 lb. of tea to another?-I am not aware that Messrs. Hay ever looked into the matter so closely as that.

12,327. But was not that the substance of their complaint?-Of course, if anybody had set up a tea-shop, that would have been objected to. But this complaint refers to the practice of getting tea and other goods from merchants in exchange for hosiery; and it goes on to say, that if a woman exchanged that for anything she wanted, she exposed her family to the loss of house and land, and expulsion from the island, if she was known to sell any of the goods she had received in return for her handiwork to any neighbour.

12,328. Did you hear of any person being expelled for that?-No, nor threatened. They told me that several of them would have had tea and various other things in the island for selling to their neighbours, if they had been allowed, but that they were prevented from doing so, and I approved of that.

12,329. Did you find that the people were in a state of nervous apprehension about expulsion?-Not in the least.

12,330. Then how do you account for this letter, and for these charges being made, if they were not in a state of anxiety and nervousness about the matter?-I think the case was put much more strongly in the letter than it had been put to the writer of the letter by the people themselves.

12,331. You don't think that the people of Shetland or the inhabitants of Burra are liable to panics of that kind?-There was no panic that I was aware of at that time. Some of the people, when I read over the letter to them, were very much amused to hear what had been said, and they attributed the statements to two or three persons who were usually dissatisfied with their condition.

12,332. Is it within your knowledge whether the Burra people were in the habit for a series of years of carrying over their oysters to Lerwick, and retailing them there openly?-Yes. I have often met them carrying oysters to Lerwick in kishies for the purpose of selling them there.

12,333. You are acquainted with that from the fact that you then resided in Scalloway?-Yes, and from coming and going and meeting the people.

12,334. Did you find existing in Burra, at that time, feeling of bondage most unfavourable in its influence towards the lessees themselves, and most pernicious in its influence over the tenants under them?-I could not say that there was anything of that sort. I found that the people would much rather not have been under a lessee at all, but have been allowed each to fish for himself.

12,335. Did they wish to fish and cure for themselves?-Some of them would have liked that, but I found from the best fishermen that they would not have considered that to be any advantage for the island on the whole.

12,336. What reason did they assign for their objection to being under a lessee?-Just that they were under certain restrictions as to the ling fishing; and naturally a man would prefer to be altogether free, and to be able to deal as he chose.

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12,337. Did you think these restrictions were such that the people might reasonably complain of them?-I thought they had not much to complain of.

12,338. At that time the lease of Messrs. Hay & Co. was within a year or two of its termination?-Yes. I think it was the last year of it.

12,339. The letter was dated 5th April 1869, and think the lease expired in November following. Has it been renewed since?-No. The tack has been continued on the old plan for two years, as a sort of intermediate arrangement. There is just a missive which expires in November next. Indeed I had some difficulty in getting Messrs. Hay to renew the arrangement, even for two years.

12,340. Were they unwilling to resume their liability for the rents upon the same terms?-Yes. The reason they gave to me was, that the great bulk of the people were fishing where they chose, and that they did not have much profit by the island.

12,341. Do you mean in the ling fishing, or in the Faroe fishing?- I mean in the fishings generally. There were only a few old men remaining at home for the fishings, and it was not a great deal of the produce of the island that they had anything to do with.

12,342. Do Messrs. Hay pay the tack duty annually or half-yearly to the proprietors?-Half-yearly.

12,343. The tenants, I suppose, as is usual in Shetland, pay only once a year?-Yes, they pay in November.

12,344. If the proprietors were taking the ground into their own hands, is it probable they would require the tenants to pay half-yearly, or has that been in your contemplation?-The money would require to be raised half-yearly, because it has to be paid half-yearly. There are heavy liabilities such as interest on bonds to be paid out of it every half-year, and the money must be raised for that purpose.

12,345. Do you believe it to be possible for the tenants in Havera, or on such an island, to pay their rents half-yearly?-I don't think such a system would work. Spring and summer is the time when they earn their money to pay their rents with, and we would not be able to collect the rents at Whitsunday from the tenants.

12,346. Are you aware whether the tacksmen of Burra interfere with the tenants in the sale of their cattle hosiery, or eggs?-I know they do not interfere with them in that way.

12,347. Are you aware whether the tacksmen insist on the tenants taking their supplies from their shops at Scalloway or Lerwick?-I am sure they do not. Nobody ever alleged that to me.

12,348. Would you as trustee for the proprietors, object to such a restriction?-Certainly.

12,349. Are you the factor on the estate?-I am trustee. I have to collect the money from the property, and pay the burdens, and account to the ladies for the residue.

12,350. Do you suppose the Burra islanders would be benefited by the establishment of shops in Burra by the tacksmen?-I don't think that would be any particular benefit to them.

12,351. Is there a population there to support shops?-Not shops.

12,352. Or a shop?-I daresay a shop might pay; but I don't think it would be any advantage to the people. They are so near to Scalloway that a shop in Burra would only get a portion of the custom of the island.

12,353. Do you think the Burra men have an opportunity of purchasing their goods at other shops than Messrs. Hay & Co.'s?- Certainly; they don't deal exclusively with them. They can buy their goods where they like and I think they divide their custom very much.

12,354. Where else do they buy?-In the other Scalloway shops and in Lerwick.

12,355. Did you ascertain that in the course of the inquiry which you made in 1869?-It is a fact well known to me from my intercourse with the people, I am meeting them every month, not on the island, but elsewhere.

12,356. Do they tell you that they purchase their goods elsewhere than from Messrs. Hay & Co.?-I never put the question to them, because I was quite aware of their dealings being divided. A great many of the men are fishing to smack owners in Lerwick, and probably have a good deal of their dealings with the merchants they fish to.

12,357. Are some of them in your own Faroe vessels?-Yes, we have two or three.

12,358. Is that your reason for believing that they are not confined in their dealings to the shops of Messrs. Hay & Co.?-I know that to be a fact, from various circumstances.

12,359. But you know it from the circumstance that they are engaged in fishing to other merchants?-No; that does not follow.

12,360. It does not follow as a necessary consequence that they do not deal with Messrs. Hay & Co. but it is a reasonable presumption, that if they are fishing to another merchant they get some of their supplies from his shop?-Certainly.

12,361. Are you prepared to say that the bulk of the dealings of the Burra men is not at Messrs. Hay's shops?-I should think that much more than one half of their dealings must be with other people. That is speaking of the whole population of the island, and including those men who go to Faroe.

12,362. Are the greater number of the men in Burra engaged in the Faroe fishing?-There are more of them engaged in the Faroe fishing than in any other.

12,363. And more on an average than in other districts in Shetland?-Yes. They have taken to that kind of fishing more readily than others.

12,364. How, does it happen that they have taken to it?-I don't know; I suppose it is just from their position, and their early training in boats. They take to a good fishing rather than to the Greenland trade. They are generally good fishermen. Taking them as a class, they are better fishermen than in any other district that I know of in Shetland.

12,365. Would it be a reasonable presumption to suppose that they had taken to the Faroe fishing in order to avoid the restrictions which are laid upon them with regard to the ling fishing?- Certainly not. These young men would not have remained at home about the shore fishing. If they had not gone to Faroe they would have gone to the merchant service or to Greenland.

12,366. Do you think the restriction had anything at all to do with it?-Nothing whatever.

12,367. But you ascertained in the course of your inquiries, and you know now, that there is a restriction by the terms of their leases upon the Burra men with regard to the ling fishing?-Yes, they hold their land under condition that they are to deliver their fish to Messrs, Hay.

12,368. Your largest shop is at Reawick, and you have also two small ones at Foula and Sandness?-Yes.

12,369. Do most of the fishermen engaged in the ling fishing usually deal at one or other of the stores you have mentioned?- Yes; there is no other store near.

12,370. Do you mean that there is no other store near Reawick?- No. I thought you referred to the two smaller shops. All the men get the whole of their supplies from our stores there.

12,371. At Sandness and Foula there are no other stores within reach of the fishermen residing there?-No.

12,372. Is there any restriction upon the opening of other shops in Foula, or on the sale of goods there by any other party who chooses to attempt that?-As acting for the proprietor, I don't think we would allow it. We would not allow small shops in either of these districts if we could help it.

12,373. Would you allow a trader from Scalloway or Lerwick to sell goods out of his smack there?-Yes; and I have known instances of them going there from [Page 306] Walls and Scalloway. There is no restriction upon the like of that.

12,374. Are the inhabitants sometimes supplied with meal and articles of dress and provisions by other merchants from the mainland?-The Foula people, annually, when their fishing is over, come to the mainland, and they can then lay in what supplies they are in need of.

12,375. Do they come in every year themselves?-Not the whole of them, but many of them do.

12,376. Do you know whether or not any traders visit the islands for the purpose of selling provisions or goods?-No; they have not done that lately. They could have no object in going there.

12,377. Why?-Because they could not compete with us. We have a shop there for the supply of goods, and we supply them to the people on as moderate terms as other parties could do. Therefore the men have no object in dealing elsewhere.

12,378. I suppose it would be a very small trade that could be driven with 40 families?-Yes, rather.

12,379. But I presume you consider it fair that, as you supply these families year by year, and are in a sense responsible that their supply shall not run short, you should in return have the bulk of their business?-They may go where they choose.

12,380. But would you continue to supply them if you did not have the bulk of their dealings?-No, we would not keep a shop there if we did not have the bulk of their dealings; it would not be worth our while. I may explain that, a few years ago, some of the young men wished to cure their own fish, and go out with them to the mainland. There was a little discussion amongst them about it, and we put it to them whether they would wish to have that liberty or not and in order to ascertain their views, we sent in a paper to the schoolmaster, and asked him, to circulate it among the men.

[The witness put in a document in the following terms, signed in the affirmative by 65 men:-

'Garriock & Co., who have for the last fourteen years kept a curing establishment on the island of Foula, and found the undivided produce small enough to pay for the trouble and risk of it, while furnishing the necessaries of life, fishing material, etc., at ordinary rates, would, now that some parties have shown an inclination and even begun to cure their own fish, wish to ascertain the views of the people as to whether they desire G. & Co. to continue their establishment as before; or would they prefer each to cure as it suits him, and provide his necessaries as he can? Whilst there is always the most perfect freedom to all to fish, labour, and sell their produce in what appears to them the best market, the isolated position of the island appears to require that one system be followed by all.

'The heads of families and other fishermen will therefore please indicate their views by subscribing below, adding yes if the former system be preferred; or no if otherwise.-1867.']

12,381. Were there any negatives to the paper?-No. It created

great alarm amongst the people, because they were afraid they would be left to their own resources.

12,382. In consequence of that you continued to supply the islanders?-Yes, we went on as before.

12,383. Was it previous to that that the last attempt was made to trade in the island by outside traders?-I think so; I do not think there has been anything of that sort attempted for several years.

12,384. Do you remember when any attempt of that kind was made?-I cannot say. I remember hearing of some boats coming in from Walls or Scalloway, I forget which.

12,385. Did you object to any one coming from Orkney?-No, not in this generation. They came from Orkney above 80 years ago.

12,386. Since you sent in that paper, has any attempt been made by the inhabitants of Foula to cure their fish themselves?-No; we found it needless to have sent in that paper, because they had given it up themselves, as it had not been paying them.

12,387. But that paper had the effect of making it quite clear to the inhabitants of Foula that they must either give their fish to you green, or you would remove your shop?-We would either have their whole trade or none of it. It is a great risk to send vessels and boats there, and part of their trade would not pay. I may say that we supply goods there at the same price as we do at our shop at Reawick.

12,388. The majority of the fishermen engaged in your ling fishing, you have said, have their accounts at one or other of your shops, and those at Foula and Sandness have no other shops within reach?-Yes.

12,389. Is it not the case that many of the men have accounts and take their supplies at Reawick, who live much more conveniently for other dealers in the district?-Yes, we have accounts with many people in the neighbourhood of other shops.

12,390. But the men come to you, I suppose, because they sell their fish to you?-I don't know. For instance, we give very small supplies to the Walls men. They deal a good deal in the shops in their own neighbourhood, and we pay them for their fish in cash. I have mentioned in my statement, that of £829, 19s. 1d., which was the amount of their earnings, we paid them 18s. 41/2d. in cash at settlement. These men lived from 8 to 10 miles distant from Reawick, and with some of them we have no dealings in goods at all.

12,391. Do men who live nearer Reawick take a greater amount of supplies from you?-Yes.

12,392. Why do you not adopt, with these men on the mainland, the same rule which you have laid down at Foula, that you must have their whole dealings or none?-We don't require to do it with the men on the mainland. They are at perfect liberty to deal where they choose.

12,393. But you might lay down that rule if you pleased?-We might; but I would not consider it fair to do so.

12,394. Would it be impracticable to carry it out?-I don't know. I suppose it is done in some places in Shetland; but the men in our neighbourhood have always been free to deal where they chose, since we had anything to do with them, and we were always prepared to pay them for their fish in money.

12,395. But, in point of fact, they have sometimes taken a very large portion of their earnings in goods?-I think, when we give in our schedules, it will be found that we have paid them more than one half of their earnings in money.

12,396. Was it not the case formerly, that the amount paid in goods was much larger than it has been for the last few years?- I don't think so.

12,397. I understand you buy a considerable quantity of fish which have been already cured by the crews themselves?-Yes. We don't look upon these men as our fishermen. They are at perfect liberty to sell their fish when they are cured, to any one they please.

12,398. But, in point of fact, many of these crews are composed of tenants upon your own or Mr. Umphray's property, or on Melby?-Yes, a good many of the ling fishers are.

12,399. Are you aware whether these men have been invited to sell their cured fish to other dealers than you?-Yes; I suppose they have offers every year.

12,400. But they generally prefer to sell them to you?-They do. We can always give them the best price, because we are exporters, and buy from the merchants; and we have always given the men the benefit of the highest price going.

12,401. Have you been told by them that they have been offered a higher price than you paid them, but that they preferred notwithstanding to sell to you?-No; I never knew of any case of that sort.

12,402. I have been told today that some men in that district have been willing to give a higher, or at least as high, a price as that which you gave at the end of the season for cured fish, and that they could not get the fishermen to give them the chance of buying them at all: has that come within your knowledge?-I think that is wrong. I was not present when these parties were examined to-day; but I know that one of them near our station at Dale offered the men this year £21 [Page 307] for their ling if they would sell them, but they preferred just to put fish into our hands without the price being stated, and we paid them £22 for the same fish.

12,403. What was the current price this year?-The shipping price for ling was £23, but these fish cured by the men themselves are not equal to the fish cured by us or by the larger curers. They are somewhat inferior, as they are cured in smaller quantities.

12,404. Were the men to whom that offer was made mostly tenants of your farm, or on the Melby estate?-Not necessarily; but I think the bulk of them must have been tenants on Melby.

12,405. Has any intimation ever been made to the tenants on that estate that they ought to sell their fish to you?-Never.

12,406. Has the contrary been intimated to them by Dr. Scott or by yourself?-It has always been given out that they were at perfect freedom to fish where they chose.

12,407. In your statement about the Faroe fishing, you say that the fishing could not be carried on if you were not to supply them, especially as regards lads in their first and second year: is it the case that lads at the Faroe fishing, in their first and second years, are generally much more deeply in debt to the merchant than the older men?-Yes; they require larger outfits, and they have not had any means of earning money before with which to buy clothes.

12,408. Are these outfits necessarily obtained from the merchant who owns the smack in which they sail?-We are obliged to advance them to them. It is rather a risky thing for us sometimes, but they cannot go to the fishing unless they have such supplies.

12,409. Still you can secure yourselves at settlement?-Yes, if they make a fishing.

12,410. And if they don't make a fishing, they will probably engage with you in the following year?-As a rule they do.

12,411. If they did not, you could take them to the Small-Debt Court?-Of course; but we always prefer a free man to a man who is in the book with balance against him.

12,412. Do you find that such a man fishes with more heart than a man who is in debt?-Undoubtedly.

12,413. He thinks he is going to get something for himself, and not merely something to pay off a debt?-For many years we have had very few indebted men, so that I cannot say much about that.

12,414. In arranging with the crew of a smack for the year's fishing, do you embody your agreement in writing?-Yes; it is a stamped agreement. There is one for the crew of each smack, and they are written out each year.

12,415. Do they differ materially in their details?-They are all the same for the Faroe fishing. They have been altered from year to year, according to circumstances, but not very much.

12,416. Does that agreement leave the whole power of disposing of the produce and of fixing the price in the hands of the fish-curer?-Not of fixing the price exactly. The men are to be paid at the current price for the year. That is their stipulation with us.

12,417. But the ascertainment of the current price is left entirely to the merchant?-Yes. The merchants have to dispose of the fish, and account for them to the men.

12,418. These agreements make the fishermen and the merchant really partners or joint adventurers, so far as the fishing of the season is concerned?-Of course they do.

12,419. But it leaves the merchant in the position of having the sole power over the produce, both as to selling it and fixing the price?-He has the power of completing the cure of it and of selling it. The merchant has to take the risk in selling. If we were to sell to a party who failed, we would still be responsible to the men for the current price.

12,420. Is that expressed in the agreement?-I don't think it is expressed in our agreement, but it is understood.

12,421. Is it not the case that the fishermen can only claim what is really got for the fish?-No. If we were to sell them at half-price, we would still be bound to pay the men the current rate at the end of the season.

12,422. If you sold them for the current price, but failed to recover that price from the buyer, would the fishermen have any recourse against you?-Yes; we would have to pay them.

12,423. Has that been done frequently?-No. There was one instance where we sold fish and got almost nothing for them, and yet accounted to the men for the price. I think that was in 1867. The party to whom we sold the fish stopped payment, and we only got a small compromise.

12,424. Had you paid your fishermen before the failure?-I think not; at least we knew of the loss before we settled with the fishermen, but there never was any thought of not paying them. We knew that we were responsible for the payment to the men, under the terms of the agreement.

12,425. Then the agreement does lay the risk upon you?-Yes, it does lay the risk upon us, although it does not expressly state anything about a loss.

12,426. The other articles in the agreement provide for the amount of food to be furnished by the owners?-Yes.

12,427. And a scale of victualling if the men go to Iceland?-No, we have nothing about that. Our fishermen are all partners to the end of the season. We do not pay them in wages at all.

12,428. Are there not sometimes special stipulations for that event?-Other owners sometimes send out their vessels on wages, but then it is another agreement altogether that is entered into.

12,429. What are the other conditions in your agreement?-The owners bind themselves to find the ship, and everything relating to her; to provide the coals necessary for the voyage; and to give the men an allowance of 8 lbs. of bread per week. The men, on the other side, agree to accept of a certain proportion of the fishing: one half, after deducting certain items for salting and curing the fish, in full of wages, or as their interest in the affair; and they also provide bait. The details of the agreement are given in the statement I have produced.

12,430. You say that sixty-three tons of your cure is from crews who cure their own fish and deliver them at one time at the end of the curing season; and these, of course, as you have already said, would be sold at a rather lower price than fish of your own cure?-Yes. They are never equal to our own cure; indeed they cannot be, from want of skill; and from the fish being cured in very small quantities, they can never be properly pressed.

12,431. Do you know of any case in which a trader in Walls attempted some time ago to introduce the practice of buying fish, and paying for them in cash at delivery?-Yes, I have heard of that, I think, in more cases than one.

12,432. Have you tried it yourself?-No, I don't think we have. Sometimes, if we buy small quantities from the fishermen, we pay them in cash if they wish it so.

12,433. But you have not known any case in which that has been attempted throughout the whole year?-I think the men could always sell for cash at any season if they chose.

12,434. Could they sell in that way to you?-Yes, to me or to any of the dealers in Walls. We would be quite prepared to take their fish and to pay them cash, but we would pay for them at such a safe price that they would not sell them.

12,435. Have you known of any dealer other than yourself who has attempted to introduce that system?-I know that the Walls people have offered to buy from the fishermen generally, and to pay cash if they chose, and they have probably paid some.

12,436. Do you know why they have not succeeded in carrying out that system?-They could not agree with the men about the price. They would not give so high a price in cash as the men expected.

12,437. You say that last year you employed forty beach boys from thirteen to seventeen years of age, all [Page 308] of whom had cash to get, and none of whom are in advance on the coming season: is that a usual state of things with the people employed in curing?-It is with us.

12,438. But I suppose that, in fact, they all take supplies from your stores during the season?-Yes, more or less. They must have meal to live upon, at any rate.

12,439. And they get that as they want it from you in the course of the season?-Yes.

12,440. Are they paid by beach fees?-Yes; they are paid by a certain sum, which is settled for at the end of the season.

12,441. Are any of them paid by weekly wages?-We have a number of people employed in curing fish, who are paid either daily or weekly-just occasional hands; and we sometimes have to put out quantities of fish to be cured by contract. These are paid for in cash as soon as the fish are put into the store and weighed.

12,442. In that case, are advances made at your store to the parties so employed?-Yes. We sometimes advance money while the work is going on, but never goods.

12,443. If they want money, do they come to you with a line from the contractor?-We have never given it in that way. If the contractor requires some money to pay the people who are working for him, he comes for it himself.

12,444. Have you any dealings at all with the parties employed under your contractor, or do you make him transact all the necessary business with them?-We transact with him entirely: we have nothing to do with the parties under him.

12,445. Do you also employ parties in the curing at weekly wages yourselves?-Yes. At Reawick and at all the stations we have extra hands on when there is much to do.

12,446. Do you find that these parties require to come to you for supplies before the weekly pay-day?-There are some cases of that kind, I daresay.

12,447. Is it not the case, in the majority of cases, that you have to give them supplies?-The most of our payments in that way are in cash, and they are made every week or ten days.

12,448. Is Saturday your pay-day?-We have no fixed pay-day for the people employed among the fish.

12,449. If they require to come for, advances in the meantime, in what way are these given out?-Most of our work in that way is done at Scalloway, where we have no shop, and we could not give them goods. They get their money when their work is done every week, or at all events within the fortnight.

12,450. Do they not get advances of money in the interim?-No, not the daily hands. The contractors whom I mentioned before sometimes get some money.

12,451. But the daily hands don't get any money until the settlement?-Not as a rule. I may perhaps give them a few shillings between the pays, but that is not common thing; they don't require it.

12,452. If they want supplies in the meantime, have you any idea how they get them?-I have no doubt they can get credit from the shops in Scalloway.

12,453. Do you know whether they have a practice of applying to your manager there for a line or a certificate, to the effect that they have wages to receive in order to satisfy the shopkeeper?-No; I don't think they do that.

12,454. Have you ever known of such cases?-I don't remember of any case, and I don't think there has ever been a case of the kind.

12,455. Do you know whether these people run accounts with the shopkeepers in Scalloway?-I know that often what they have to get on the Saturday night is partly forestalled in the shops.

12,456. Have they told you that, or how have you found it out?-I have found out from the shops that they were giving them credit.

12,457. Have the shopkeepers applied to you to stop their wages?-No; I would not stand that. I have always paid the money over to the people themselves, and if they have run accounts they have to go themselves and pay them.

12,458. Have you found a tendency among the people employed by you to run into debt in that way at Scalloway?-Yes.

12,459. Do you not think that is due to the system which prevails in the country, of running accounts instead of paying in ready money?-I cannot say.

12,460. Would you say that a party who was engaged to work to you for a week at curing, feels that it is a natural thing when he has money to receive at the end of the week, to have it all exhausted by his out-takes from the shop before it is due?-I don't know if it is the feeling; but it is just a custom they have got into, and a bad custom.

12,461. Then there is such a tendency to get into debt before the pay is due even when it is paid in cash?-Yes, there is a tendency in that way.

12,462. You say that you found the hosiery trade a losing one for you, but convenient for your customers?-Yes; that is the only reason why we have anything to do with it.

12,463. Is it convenient for your customers because they get supplies of goods for hosiery at your shop, without the necessity of taking the hosiery to another market and selling it?-Yes. When they come to us with money and eggs, and produce of that kind, they may have some hosiery with them too; and we cannot very well turn them away, and cause them to go a great distance with it.

12,464. Do you fix the price of the hosiery?-Yes.

12,465. You do not require to take it at a price which would not remunerate yourselves?-No. Of course, if they asked more than we were inclined to give, they would have to take it away.

12,466. Have you any dealings in kelp?-None. There is some kelp on Dr. Scott's property, but Mr. Adie purchases it.

12,467. Does he pay a rent to Mr. Scott for the kelp shores?-He pays a trifle; it is not much.

12,468. You say you have a certain number of boats engaged in what is called the home cod fishing?-Yes, they are small smacks.

12,469. You are almost the only people who are still engaged in that business?-Yes.

12,470. What number of vessels do you employ in that way?-We had five out last year; we used to have ten or twelve.

12,471. What would be the number of the crews in these five vessels?-They would average nine hands.

12,472. How long in the year are they engaged in that fishing?- For a little more than three months, from 1st May to 15th August. The men in that fishing go on shares, and are settled with in the same way as those on board the Faroe smacks. The arrangement as to the division is different in these vessels The crew get seven-twelfths of the earnings, and we don't find bread or coals.

12,473. Do these men come home oftener than the Faroe fishers?-Yes; they come home weekly. I now produce a settlement with one of these vessels. [Produces it.]

12,474. That shows that, as nearly as possible, four-fifths of the whole earnings were paid in cash?-Yes. Two of these men are our tenants. I think we had three of Mr. Hay's tenants in that vessel. It is a mixed crew; we never ask whose property they are on when we engage them.

12,475. You say in your statement that your firm has no separate accounts for the wife and none with the other members of the family, unless when they are working or fishing for themselves: is that when the other members of the family are fishermen or beach boys?-Yes.

12,476. Or when the wife is engaged in curing?-We have no married women employed in any branch of our business.

12,477. Do you keep any account with women engaged in the curing?-No. These women are only employed by the day.

12,478. I believe that you are yourself a skilful boatman, and acquainted with the fishing in all its details? Do you think it possible in Shetland to prosecute the [Page 309] winter fishing to a greater extent than at present, if boats of a superior class were introduced?-Not to any great extent. I have no doubt the fishing will increase. It is increasing, and will increase, and the boats will be improved

12,479. I presume you would be glad to continue curing to as large an extent in winter as in summer, if you could get the fish delivered to you?-Yes. I think there are facilities all round Shetland for that and they could sell their fish any day. It is not for the want of a market that the men don't fish. The great barrier is the weather.

12,480. Would the weather be as great a barrier if the boats were of an improved class?-The men could not have a better class of boats than they have.

12,481. Would decked boats not enable them to fish all the winter?-No.

12,482. What is the difference in that respect between Shetland and the east coast of Scotland?-We have a heavier sea, and more uncertain weather here. Our present boats can go out in a lull, and some more quickly ashore when the weather gets rough; but the heavier decked vessels could not do that. In order to fish with decked vessels, the men would require to remain at sea in good and bad weather.

12,483. Would that be impracticable here?-I think so. It would not pay.

12,484. Would that be from want of a market?-No; it would be because there was not enough good weather, and the men would not catch fish enough. Some of the welled smacks have gone out in winter, and gone up to Grimsby with their fish, and that has paid occasionally.

12,485. Are there vessels of that class in use in Shetland?-Yes, several. Mr. Harrison had one up in December which succeeded very well, and there is one out from Scalloway just now at Faroe; but it is not considered that it will be extensively or generally continued, the fishing is so precarious.

12,486. Are the men unwilling to engage in the winter fishing in any of these modes?-I think it will be very difficult to get many men to go to it.

12,487. In other places the winter fishing with decked vessels is practised all winter, is it not?-On the coast of England it is.

12,488. The men there go to the Dogger Bank mostly?-Yes.

12,489. Is there any reason why that sort of fishing cannot be practised in Shetland?-There are many reasons why it cannot be done. There is the heavy sea, and the deep water, and the nature of the fishing grounds.

12,490. Would long-line fishing be impracticable on the banks of Shetland?-In winter it would. It could not be done in these vessels.

12,495. Is that owing to the nature of the ground, or for what reason?-It is owing to the depth of the water and the strong tides.

12,492. Has it ever been tried to set lines from these decked vessels?-In summer it has been tried, and it has generally failed. It has always been discontinued.

12,493. I believe it is necessary to set lines with rowing vessels?- Yes; the fishermen consider that to be the safest way, after all.

12,494. But they do sail out their lines sometimes, do they not?- Yes; and that saves them the trouble of pulling.

12,495. Is it only recently that that practice has been introduced?- I think so. I have not heard of it until lately; but I believe it is now done in consequence of larger boats being used than were in use at one time.

12,496. What is the amount of the poor-rate in the parish of Sandsting?-It is 2s. 4d. on the landlord, and the same on the tenant.

12,497. Is not that rather above the average?-It is. In Walls it is 1s. 10d. Alexander Wallace is the inspector in Sandsting, and Mr. Umphray is the chairman of the Board.

12,498. Does Wallace live in Sandsting?-Yes; on the Walls road.

12,499. How long has he been inspector?-I could not say. I think six or eight years, or more than that.

12,500. Where does he pay the paupers' allowances?-I think he used to go to the parish church at one time, but latterly, I believe, he has paid them at his own house.

12,501. Who is the inspector in Walls?-James Georgeson.

12,502. Does he also pay the paupers at his own house?-Yes, so far as I know.

12,503. Has there ever been a practice of paying them at Reawick?-There are a few, I think five or six, in that district whom our shopman has been in the habit of paying. Wallace sends their pay to him, as they live five or six miles from his (Wallace's) house.

12,504. Are these paupers always paid in cash?-Yes.

12,505. Are they paid in the shop?-I suppose so. There was some inquiry about that lately. I asked the man about it, and he said he invariably paid them in cash; but we put a stop to it, as the thing was not considered to be regular. It had just been done to save the inspector trouble, or to save the people from going so far for their money.

12,506. Have you any knowledge as to how men are employed here for the Greenland fishery?-I am not engaged in that business myself, but I know pretty well how the thing goes on.

12,507. Are there any men from your district employed in that fishery?-There are a few who go to it from some little distance from where I live.

12,508. Do the men employed in that fishing require a larger and more expensive outfit than those who are employed in other fishings or in other seafaring pursuits?-They require warmer clothing. I think that is the only difference.

12,509. Do you suppose that the first month's wages which a lad going to that fishing gets is sufficient to provide him with the necessary outfit?-Certainly not, and I know that in consequence of that very few lads are now going to Greenland. They cannot be fitted out now as they used to be before the new Board of Trade regulations were issued.

12,510. Have you that knowledge from the statements of the lads in your neighbourhood?-Yes, I know it from the men and the lads who go to the fishing. It is coming to be mostly men who are taken for these voyages.

12,511. Is that because the men have already got outfits?-Yes. They could not take lads who are insufficiently clothed; while the men are better clothed, and are more able to stand the severity of the climate. That fishing used to be a nursery for our young men, bringing them up to be able to take their position in the merchant service; but now it is not, and cannot be.

12,512. Do you think the result of the Board of Trade regulations has been to prevent agents in Lerwick from giving the young men credit for their outfits?-I think

that must have been the result; and it has prevented so many young men from being employed as there used to be.

12,513. Have you known of any young men going to Greenland with insufficient outfits in consequence of that difficulty in getting credit?-I cannot say that I have known of any particular case; but I should suppose it was very likely to have happened.

12,514. Do you know that, in point of fact, young men engaging to go to Greenland cannot get any reasonable amount of credit from an agent in Lerwick?-Yes, I know that to be the fact; and I also know it to be the fact that there are very few young men now going there.

12,515. Can you tell me of any young man who has said to you that he would have gone to Greenland if he could have got an outfit?-No, I cannot.

12,516. Has that ever been said to you by any young man in Shetland?-I don't know that I ever put the question to any one.

12,517. Has anybody made such a statement to you without you having put the question?-No. I have asked some of the men how it was that there were so [Page 310] very few green hands now going to Greenland, and they said the young men and lads could not be fitted out now as they were before,-that they could only get one month's advance, and that if their wages were only 16s. or 20s. a month, that would only buy them a pair of boots, and they had nothing for clothing.

12,518. In what way did that question suggest itself to your mind?-I think it was from noticing the fact of so many young lads pressing in to go to Faroe. We found more lads wishing employment at Faroe than we could find room for, and on making inquiry I found that that was the reason.

12,519. Why is it that the agents do not give the same credit as they gave before?-I think it must be in consequence of the Board of Trade regulations.

12,520. But these regulations do not interfere directly with the giving of credit; they only provide that the payment of wages shall take place in presence of the superintendent at the Custom House and shall be in cash?-I am aware of that.

12,521. The agent has, with an honest man, the same security for payment of his account that he had before, only the wages cannot be retained by him at settlement?-It must be from the fact that the wages cannot be retained, that the credit has been limited.

12,522. Do you think it would be an expedient thing that these young men should be allowed to incur an account for their outfit, and that the agent furnishing that outfit should be in a position to retain the wages due at the end of the voyage?-I would not give an opinion upon that point. Perhaps it is better as it is.

12,523. Do you wish to make any remarks upon the Report by Mr. Hamilton to the Board of Trade, which was printed in the appendix to the previous report of the Commissioners?-I think that report is manifestly incorrect in what Mr. Hamilton says in regard to the Shetland system generally. He says, 'Almost every fisherman in the

islands is in debt to some shopkeeper; and not only is the head of the family in debt, but frequently his wife also and other members of his family, down to children of twelve or fourteen years of age, for whom the shopkeeper opens separate accounts in his books.' I don't know where Mr. Hamilton could have got that information from.

12,524. Your own firm is an exception as regards the women, because you have no transactions with them?-It is surely not an exception. I think it must be the rule. I don't believe that such a system exists generally, as that of keeping separate accounts for a husband and wife.

12,525. But the younger members of the family may have separate accounts, and a few of them have separate accounts even in your business?-They have, if they are employed by us. A man may have five or six sons, every one fishing and getting his own share and having his own account.

12,526. May some of these sons be as young as twelve or fourteen years of age?-They begin about fourteen to go to the fishing, as well as to go to the beach. It appears to me that Mr. Hamilton's report has been rounded very much on hearsay, and on opinions which he had formed when he was a boy.

12,527. Was the state of things different in Shetland when he was a boy from what it is now?-Yes, it was a good deal different; I think we are improving. I think there are more of the fishermen now who are free to deal as they choose. I think they have a much greater outfit in every way for fishing, and much better returns; and the fishermen, as a class, are living better and wearing better than they did in those days.

12,528. Is there anything else in the report that you wish to correct?-I consider that the report is altogether wrong.

12,529. I should like specific statements about that, because gentlemen have come to contradict the report before and have gone through it sentence by sentence?-I consider that Mr. Hamilton was going out of his way altogether in making that report.

12,530. Still it might be correct, for all that?-It might be; but it appears to have some weight as coming from the Board of Trade, whereas Mr. Hamilton could have no opportunity of knowing these things from personal knowledge or of judging for himself.

12,531. The point on which he had been directed to inquire was as to the official discharge of Shetland seamen after voyages made in whaling vessels?-Yes; and if he had confined himself to that, he would have been doing what was quite right; but all these general remarks about the Shetland System are very wide of the mark, and must have been got from hearsay, because many of them are incorrect. He says, for instance, 'Any man who carried his custom to any other shop than to that of the agent employing him would run the risk of being a marked man, not only with that particular agent, but also with all the others, among whom the news of his contumacy would soon spread; and as there are more men than there are berths, he will probably never get any employment again.' I look upon that as an ill-natured, unfounded remark.

12,532. Was there any foundation for that in time past?-I don't believe there was any foundation for such a statement at any time.

12,533. Have you any personal knowledge that enables you to contradict that statement, or have you any knowledge of the matter different from the hearsay knowledge which you attribute to Mr. Hamilton?-I am much better able to judge of it, because I have been mixed up with these men every day for the last thirty years, and if such a thing had taken place I would have heard of it.

12,534. Have you ever made any inquiry among them as to whether that statement was correct?-I have made the most minute inquiries as to how they were treated, and they volunteered statements about how they got on, and why they went to one agent rather than to another.

12,535. What sort of reasons did they give for that?-Of course they had their own reasons for preferring one agent to another. For instance one man thought he got his supplies cheaper from a particular agent, and he went to him.

12,536. Did the reasons they gave for preferring one agent to another, all assume that the man got his supplies from the agent who engaged him?-I have been speaking now of what took place in the trade formerly. For some years back I have not heard anything about supplies at all. They say they get their month's advance now in money.

12,537. Do you know whether, in point of fact, the men do get their supplies from the agent still?-I believe they get them to a very small extent.

12,538. You mean to a small extent, compared with what was the case in former times?-I believe so.

12,539. Is that belief rounded upon the statements of the men themselves, or is it simply from hearsay?-I have been told so by the men.

12,540. Have they told you that they get smaller outfits now than they did formerly, or smaller supplies from their agents?-The class of men who go now to that fishing are not the same as they used to be; they do not require the supplies which the green hands used to get.

12,541. You mean that they do not require so large outfits?-Yes.

12,542. But if they are men with families they probably require much larger supplies for their families during their absence. I suppose they get these supplies from the agents?-I know that in some cases they do; but I know that my firm supplies many of the families of men who go to Greenland, and they pay us in money when they come back and have got their settlement.

12,543. Has your firm a larger business in the way of supplying the families of fishermen who go to Greenland than it formerly had before these regulations of the Board of Trade were introduced?- I think so. I think that formerly the men confined themselves more to the agents for their supplies.

12,544. Are you aware whether at any time the men were under any obligation to ship with one agent more than with another for the Greenland voyage: have you

[Page 311] heard anything to that effect from the men?-No. I never heard them speak about being compelled in any way with regard to the Greenland trade.

12,545. I do not speak of compulsion; but have you heard of them being expected or obliged in any way, or of influence being used?-I never heard of them being influenced in any way. I don't think that was ever the practice with regard to the Greenland trade.

12,546. Is there any other passage in the report to which you wish to refer?-Mr. Hamilton says, 'This is merely one phase of the truck system in Shetland, on which are also based arrangements with the crews of coasting and home trade vessels, of the few foreign going vessels, of the Faroe and Iceland fishing vessels, and of the large fleet of fishing boats. Some of the seamen and fishermen feel, and bitterly complain of, the bondage of the system; but, as a rule, the character and habits of the natives have become so assimilated to it, that they are either unconscious of its existence, or are reconciled to its working, that they would probably themselves be averse to any change; for although they may have no option but to work for one master at such remuneration in goods as he may see fit to give, yet they feel that in bad seasons he will not let them starve.' That is a fearfully overdrawn picture.

12,547. I suppose your firm has often had occasion to make large advances in a bad season in order to carry your fishermen through?-Yes.

12,548. And these advances have been repaid by the men from the produce of the following seasons?-Yes; but I deny that there are such hardships as are spoken of here. We have often had to advance a fisherman for perhaps two years' rent, and he had to remain in debt. His fishing was not sufficient to meet his requirements.

12,549. In that case the man would usually continue to fish for you?-Yes. He usually continues until he has wrought off his debt.

12,550. Have you known men in that position who attempted to dispose of their fish to other employers?-I cannot say that I have.

12,551. Have they always continued with you until their debt was wiped off?-They continued from year year at any rate.

12,552. But they did not leave you in these circumstances?-No; as a class, they are much too honest for that.

12,553. Have you ever had an occasion, when a man came to you from another employer, to become responsible to that employer for a debt due by the fisherman to him?-No, I don't think we ever undertook anything of that kind.

12,554. Have you been in the converse position of obtaining payment of a debt due to you from a fisherman who changed his employment?-I don't recollect any case of the kind.

12,555. Does any arrangement exist between your firm and any other by which you undertake the debts of that firm, and they undertake yours in such cases?-No; we have never taken fishermen into our employment under such circumstances. Then Mr. Hamilton says: 'The employer has unlimited opportunity of appropriating to

himself all the result of their labour, leaving to them only so much as is absolutely necessary to prevent them from starving.' That is a state of things which I know nothing about, and I don't believe it exists.

12,556. If a merchant has full power to fix the price of the fish, and if he also fixes the price at which he sells his goods, and the fisherman has no other place where he can get credit for the supplies which are necessary for his existence, is it not conceivable that that state of matters might be abused?-It is conceivable, and there may be a few cases of that kind; but to speak of that as being the rule, is not correct.

12,557. Have you ever heard complaints from the men engaged in the Greenland fishery that they could not get their wages settled for at an earlier period?-I never heard of any difficulty in that way.

12,558. Have you heard them complain that the agent had contrived to keep them in his debt?-I never heard of such a thing. Often when they had money to pay to us, they have said they had not been in for their wages, and that they were going; but they never said there was any difficulty in getting it, if they only went to Lerwick for it.

12,559. Is all the rest of Mr. Hamilton's report correct except those passages you have referred to?-Certainly not. I do not agree with it at all. There is shade of truth about some things stated in it, but it is overstated.

12,560. Do you differ from this statement in it: 'For this purpose they employ agents in Lerwick who get, as I am informed, little direct profit from their agency. Their chief profit arises from what they can make out of the earnings of the men?'-That used to be the case.

12,561. That means, of course, that the agents' chief profit arose from their sales of goods to the men; and that used to be the case formerly?-Yes.

12,562. When did it cease to be the case?-I believe that since the Board of Trade regulations were enforced there has been a change.

12,563. Have you heard of any gentlemen giving up the agency in the Greenland trade in consequence of their failure of profit from that source?-I think Messrs. Hay & Co. have given it up; I have not heard of any others.

12,564. Have you any doubt at all that the principal part of these agents' profits was derived from sales of that kind, at least previous to 1868?-I should think that that is quite correct, if you speak of several years ago.

12,565. The price for the fish caught in the summer fishing is fixed according to the current price for dry fish at the end of the season. How is that current price ascertained?-We know how much green fish make one cwt. of dry. It varies according to the size of the fish, and their original quality. The average is about 21/4 cwt. of green fish to one cwt. of dry.

12,566. Is that the average which is taken in calculating the price every year, or is there sometimes a different average taken?-That is taken generally. It varies a little, according to the fish being very thin or fat at the time they are caught; but 21/4 cwt.

is a very fair estimate taking one time with another. We know how many tons of wet fish we have at the station, and we know how many tons of dry fish we get from that place. I have seen the proportion as high as 21/2 cwt.

12,567. The produce of dry fish at one station might differ from the same quantity of wet at another?-Yes, it will never be the same.

12,568. Then, in calculating the amount in order to settle with the men, do you take it overhead at all your stations?-We take our chance of it varying.

12,569. You do not settle with the men at one station according to the actual quantity of dry fish produced from the green fish delivered there?-No. We have one price for all the season.

12,570. How do you ascertain the current price of dry fish in order to settle with the men? Is it from your own sales, or do you communicate with other merchants?-We are not very extensively engaged in buying the fish green from the men.

12,571. Do you not buy sixty or eighty tons annually?-Yes; but we generally make a calculation for ourselves. We don't always pay the current price.

12,572. Is it not your bargain to pay the current price?-That is the understanding with the men; but we have sometimes paid the current price, and sometimes we have paid more. We don't bind ourselves by what others pay.

12,573. Did you ever pay less than the current price?-No; but we have sometimes paid more.

12,574. The men have no voice at all in settling what the price shall be: it is left entirely to the merchants, is it not?-I think it is left very much to the merchants with regard to the green fish.

12,575. Is the competition for fish sufficient here to bring the price up to the highest figure?-Yes; there is no fear of that.

12,576. Are you prepared to say that any complaints [Page 312] which the fishermen make to the effect that they do not get the fair current price which they ought to get for their green fish, as regulated by the current price at the end of the season, are unfounded?-We very seldom have such complaints.

12,577. But if there were such complaints, do you say they are unfounded?-I think the fishermen, generally are very fairly paid for green fish.

12,578. Are there not two prices for fish exported from Shetland, according as they are sent to one market or to another?-There are many prices. Although a current price is fixed, there may be a considerable difference in what the curer realizes. If a curer chooses to take the chance of consigning to a certain market, he may get more or he may get less than if he chose to sell here at what is the shipping price.

12,579. If a curer sends his fish to the Spanish market, for example, he may get a much higher price than by selling to a purchaser at home?-He may get a higher price.

12,580. Does he generally do so?-He generally does, because it is the best fish that are selected for that market; and if I choose to reserve a certain portion of any cure and take my chance of how the market will be going after Christmas, I may get more or I may get less. I may speculate in that way as I like; but every curer does not get the same price for his fish, although there is a current price fixed.

12,581. How is that current price fixed?-I cannot explain it very well. There is generally a great fight for about a fortnight between the purchasers from the south and the merchants here. The south-country buyers come down here, and sometimes they come to terms at once but sometimes they go away without fixing if they cannot agree upon the terms. About the month of September, however, the price generally comes to a figure at last at which the bulk of the fish go.

12,582. At that time are there communications between the fish-curers here upon the subject?-Yes; they consult together as to the offers they have, and whether they are to hold for a higher price, or take what they can get.

12,583. Is it usual that the bulk of the fish is sold at nearly the same figure?-As a rule, the bulk of the fish go at one price.

12,584. And the current price, according to which the men are paid, is fixed by that?-Yes.

12,585. Do you think it would be possible to introduce in the fishing trade here a system of paying at short intervals for the fish delivered?-I think it would be quite impossible. We would be very thankful if we could do so. We would be quite ready to pay our own men in cash the same as we pay all the Englishmen. We get large quantities of fish from English vessels, for which we pay cash; and we would be quite as ready to pay our own men in cash as them.

12,586. Why is that impossible?-There are many reasons for it. Our men deliver their fish at a great number of little stations all round the islands, and we could not have a person at each of these stations to pay them, without a considerable expense. That is the case with the curers generally.

12,587. You have only two stations besides Reawick?-We have more stations than that for receiving fish.

12,588. Would the factor who receives the fish not be quite competent to pay the men at short intervals?-Sometimes he might be there for that purpose, and sometimes not; but the difficulty would be with the men themselves. They would not be satisfied to have a price fixed then.

12,589. But part of the price might be paid as a bounty, as it were, and the balance might be payable according to the current price?- Such an arrangement might be made; but I don't see any object it could serve because, if our men wish an advance of money during the fishing season at present, they can get it. If they wish money to pay for anything they require while the fishing is going on, we make no difficulty in giving them that advance, because we know they are delivering fish which will cover it.

12,590. Would not the principal difficulty in the way of such a system be the necessity under which the men are of getting advances in goods or cash during the season? Would they be able to hold on till the fortnightly or monthly payment without getting advances?-They only require a very small proportion of their fishing, either in money or in goods, during the season. The great proportion of it has to be reserved for their annual payments of rent and poor-rates, and various other things of that sort. The great difficulty would be with the men: they would not like the system, because they would feel that they would be losers by it.

12,591. How would they be losers?-Because no curer would risk such a high price in the summer season as he is ready to pay the men in the autumn, when he sees what he can afford to pay.

12,592. But when a certain amount of fish is delivered, it is quite plain that something will be due to the fishermen at the end of the season: would it not be possible then to fix a minimum price, below which there could be no reasonable expectation of the fish falling at the end of the season, and the men might be paid according to that minimum price?-That would only increase trouble, without any earthly advantage, so far as I can see.

12,593. The men would have the money in their own hands?-The men have the money in their own hands as it is. I believe that from all respectable curers they get money for any purpose they ask it for.

12,594. But they have to go and ask for it specially?-Certainly.

12,595. And perhaps they have to ask for it as a favour?-Well, it is a favour. The money is not due for the fish. They have delivered the article, but it is in advance.

12,596. You mean the bargain is that the fish are to be delivered as caught, but not to be payable till the end of the season; so that the mistake, if there is one is in making that bargain?-I don't see that there is any mistake in it.

12,597. Do you not think the fisherman would be wiser to make the bargain to get his money paid as he wants it, instead of being obliged, when he does want it in the course of the season, to ask for it as a favour?-Such a system could not work, because in these boats there are certain expenses which must come off the whole crew. They may have hired men along with them, and they could not divide each day's fishing or each week's fishing, without a great deal of trouble and confusion.

12,598. Do you think the present arrangements between the curers and the men are so complicated that it is necessary to have only one settlement for the year?-I think the present system is the best that can be devised. It would be a complicated system if weekly payments were made; but there is no complication as it is at present.

12,599. Do you think the system that has been suggested would require too much accounting?-Yes; and the men could not take the time to do it, without being great losers.

12,600. Do you receive a large portion of your annual cure from the English boats which fish for you?-Yes. I suppose we receive about one-third of our cure from them.

All the men who fish for us in these boats are paid wages, and they have a small allowance, called score money, on the fish which each man takes.

12,601. Do you buy their fish green at a fixed price?-Yes, at a price fixed with the master or owner, usually before the vessel comes out.

12,602. That price is a standing price for the whole season?-Yes, we take our chance.

12,603. And the owner also takes his chance?-Yes.

12,604. Do you think the men in these boats prosecute the fishing as vigorously and successfully as those in the Shetland boats, who are paid on a different principle?-They prosecute it with great rigour. Generally they are thoroughbred fishermen. They have all been apprenticed to the fishing when they were boys of 8 or 10 years of age.

12,605. Can you say that the practice which prevails in the Shetland boats produces a greater amount of energy in carrying on the fishing, and results in a [Page 313] larger capture of fish than in the case of these Grimsby boats?-I know that the Shetland boats catch more fish when competing with the others.

12,606. Are they equipped in the same way, or is there any difference in the style of boat or of equipment which would account for that?-They are very much the same class of vessel as to size and equipment.

12,607. Are the English boats in any way superior?-No, there is very little difference. Some of the smacks we have are the very same, having been built by the same builders. I am speaking now of the Faroe fishing, and these English vessels are all of the same size and description.

12,608. Which system do you think the best of the two?-The best for the Shetland fishermen is to have their share. Our men are better paid than the Englishmen.

12,609. Do they take more from their shares than the Englishmen take from their wages, as a rule?-Yes. I know the amount of their earnings.

12,610. I have been requested to ask you this question: In what number of boats, fishing at one station to different curers, would these men be willing to accept the value of a week's fishing, probably amounting to £20, and carry to their homes by sea, or undertake the subdivision of them more frequently than once annually, that at present?-I think I have answered that, or almost that question already. I have already said that I believe the men would refuse to adopt that system.

12,611. Is that in consequence of the trouble it would entail in dividing the fish?-Yes, and the time taken up with it. Besides, they don't require it.

12,612. How do you account for the English boats coming north to compete with the Shetland crews, although they receive less for their fishing than the Shetland fishermen do?-They are fishing all the year round, and they come north to fill up their time when fresh fish do not pay them on their own coasts.

12,613. Fishing is their only employment?-Yes.

12,614. You think it is not likely to become the only employment of Shetland fishermen?-Not generally.

12,615. And you think it is not expedient that it should?-I don't think it is. I think they all require something to do on the land as well.

Lerwick, January 24, 1872, THOMAS HUTCHINSON, examined.

12,616. Are you a fisherman and tenant in Skerries?-I am.

12,617. Who is your landlord?-Mr. Bruce.

12,618. Do you pay your rent to him?-No, to Mr. Adie.

12,619. Is he your tacksman?-Yes.

12,620. Who do you fish for?-Mr. Adie.

12,621. Are you bound to fish for Mr. Adie, or can you engage to fish with anybody you like?-We are bound to fish for Mr. Adie.

12,622. How do you know that?-Because Mr. Adie told us we were not at liberty to fish for any other man except him.

12,623. When did he tell you that?-I cannot state the date exactly, but it has been since I commenced to fish there, eighteen years ago. That was the time when the agreement was made last.

12,624. What agreement?-That we were to deliver all our produce, fish, and every other thing, to him, and to no one else.

12,625. If you chose to fish for anybody else, what was the penalty to be?-That we were to be removed from our crofts.

12,626. Has any person been removed for fishing to another than Mr. Adie?-None, for there have been no offenders.

12,627. How many people are in these lands?-There are almost 130 of a population, old and young. There are six boats belonging to the islands that fish for Mr. Adie.

12,628. Do a number of people come there in the summer time from other places to fish?-Yes. They fish both to Mr. Adie and to Mr. Robertson. These are the only two who employ men there.

12,629. Has Mr. Robertson a station and a shop there?-Yes; he has a store for supplying his fishermen.

12,630. Is it open all the year round?-No, only during the fishing season.

12,631. Where do you get your supplies?-From Mr. Adie's shop at Skerries. It is open all the year round, and is kept by Robert Umphray.

12,632. Do you pay for your supplies at the time you get them, or do you settle for them at the end of the year?-Sometimes at the end of the year, and sometimes not for fifteen months.

12,633. How does it happen that you are sometimes fifteen months in settling?-We live in an isolated place, and Mr. Adie's people cannot sometimes get conveniently exactly at the twelvemonth's end, but they make arrangements to come when they please.

12,634. Is it sometimes late in the spring before they come to settle?-Sometimes we have not settled until March, but the usual time is at Martinmas.

12,635. Have you any objection to that state of things?-The only objection I have to it is that we do not have our freedom to fish to the person who will pay us best, and we should also like to be able to get our goods from the best market we can, and at the cheapest price we can.,

12,636. Can you not get your goods from any market you please just now?-No.

12,637. Why?-Because we cannot get our pay in hand.

12,638. Can you not get cash from Mr. Adie or from Mr. Umphray when you ask for it?-Yes, if we have it to get.

12,639. If you want supplies during the season, before the settlement comes, do you get them?-Yes, we can get our supplies then, as far as our earnings are likely to cover them.

12,640. Have you ever been restricted?-Yes; they only allow us to go so far as our earnings are likely to pay, and no further.

12,641. Have you ever been refused supplies?-Yes. I cannot give the date of that, but I have been put on an allowance both of meal and other things.

12,642. Did you get a certain amount of goods from the store each week?-Yes, each Saturday night.

12,643. How often have you been put upon that allowance?-That is always done, unless we can clear ourselves in Mr. Adies book.

12,644. When were you last put upon an allowance?-In 1869.

12,645. Was that a year of scarcity?-In our isolated place there is generally scarcity, because our crops are scanty.

12,646. Are they not sufficient to keep your families all the year round?-No.

12,647. Therefore you have every year to buy a certain amount of meal from Mr. Adie?-Yes, we have generally to buy about six months' provisions from him.

12,648. Were you put on an allowance in 1869 because you were in debt?-Yes

12,649. What allowance was made to you then?-Three pecks of meal a week; and there are seven of us in the family.

12,650. Was that less than you required?-Of course it was, but I could get no more.

12,651. How much do you use when you are not upon an allowance?-I could not say exactly, because when I can buy it for myself I take no notice. I think, however, we would require about five pecks a week.

12,652. Did you find the allowance of three pecks to be too small for you?-Of course we did.

12,653. Was the rest of the island put upon an allowance at that time?-All the indebted men were.

12,654. Were there many of them?-Most of the men in Skerries, in the fishing line were in debt at that time.

12,655. At what season of the year was that?-In summer.

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12,656. Were there a number of men at that time in the island who did not live there?-Yes, a great number.

12,657. Were they put on an allowance too?-I could not say as to that. I can only speak of those who live constantly in the island, and more especially myself.

12,658. Do you not think it was quite reasonable, that if a person to whom you were due money was to continue to make you further advances, he should use his own discretion as to the amount of these advances?-Of course, if I got the goods at the market price. I think I ought to have got my meal, or whatever I was requiring, at the market price in Lerwick, adding something for freight.

12,659. Did you not get it at that rate?-No; I found that I could buy meal 7s. per sack cheaper in Lerwick than in Skerries; and from that down to the lowest thing we got, it was generally charged one-third more than it could be got for in Lerwick or any place near to it. I have paid for a sack of meal at Mr. Adie's station at Skerries, when I could have got it from any merchant in Lerwick at 50s. or 51s.

12,660. That was a difference of 10s.: when did you do that?-I could not say, but I have done it. I think it was about four years back.

12,661. Was that before 1869, when you were put on an allowance?-Yes.

12,662. Were you in debt at that time?-Yes.

12,663. Did you get an advance of a sack of meal at a time, and were charged 61s. for it?-Yes.

12,664. Where could you have got it in Lerwick for 50s. or 51s.?- From Mr. John Robertson, senior. I got it from him at that, and paid the cash down.

12,665. Did you get another sack from Mr. Adie at the same time?-Yes, at the same date.

12,666. Did you get both of these supplies within month of each other?-Within a month or two.

12,667. Have you any pass-book or any paper to show that?-No.

12,668. Did you get a receipt from Mr. Robertson for the money?-No.

12,669. At what season of the year was that?-In January.

12,670. And you think that was about four years ago?-Yes.

12,671. That would probably be about January 1868?-I think so, but I cannot exactly say.

12,672. Did you buy the meal from Mr. Robertson in your own name?-One part in my own name, and the other part in the name of my father, John Hutchison.

12,673. Who gave the order to Mr. Robertson?-I did.

12,674. Did you tell him that one half of the meal was for yourself and one half for your father?-Yes.

12,675. Do you know whether the purchase was entered in his books?-I cannot say, for I paid the cash down.

12,676. Do you know anything about the quality of that meal?-It was just about the same quality as we could get from Mr. Adie.

12,677. Was it before or after you got the meal from Mr. Robertson, that you bought the sack at 61s. from Mr. Umphray?- It was after, about two months after at the furthest.

12,678. Did you say anything to him about the price when you got it?-I did; and Mr. Umphray told me he must sell it at the invoice price which his master sent to him.

12,679. Did you take the meal at that price?-I was obliged to do so, when I could not make a better of it.

12,680. Could you not have gone and got some more from Mr. Robertson?-I could; but I had no expectation of having anything at the end of the time with which to pay him.

12,681. Did you think Mr. Robertson would not have given it to you on credit?-I don't think it, for I could not have asked it.

12,682. Do you think Mr. Robertson would have given you the meal as cheap if you had been buying it on credit?-He would have given it to me cheaper on credit than Mr. Adie did.

12,683. Is there any other time that you remember, when you bought meal or any other goods at Adie's shop, and when you could have got them cheaper elsewhere?-That has happened every time.

12,684. But did you ever try at what price you could get your goods at another place in the same way as you did at that time?- I have done so at times. We can get as many sillock hooks at Messrs. Hay's shop, at Simbister in Whalsay, for 1d. as we can get beside us for 11/2d.

12,685. Do you generally buy your sillock hooks at Whalsay?- No; we generally go for them to the store where we are supplied. I could also get washing soda in Lerwick for 1d., and we pay 11/2d. for it at Skerries. I bought 14 lbs. of it in Lerwick yesterday at 1d. a lb. The last I bought at Skerries was about two months ago, and it was marked down to me at 11/2d. If I were buying as much as 14 lbs. at a time in

Skerries, I would get no discount upon it; I would still be charged 11/2d. per lb.

12,686. Do many of the people in Skerries go for their supplies to other places?-No; they all go to Adie's store for them.

12,687. Why do they do that when the prices are so high as you say?-Because they are bound so far to do it, in this way: that they fish for him, and all their earnings go to him, and they must go to the store for whatever supplies they require.

12,688. Do you mean that they are obliged to get their supplies on credit, and that they have credit nowhere else?-They cannot have credit anywhere else until they see whether they have any money to get, and then they can come to Lerwick or any other place with their money; but they cannot do that at any other time.

12,689. Are you at liberty to sell the produce of your farm to any person you please?-No. We are under the restriction to take it all to Mr. Adie's store.

12,690. Who told you that?-Mr. Umphray, Mr. Adie's factor.

12,691. Is there anybody else you could sell it to?-No; except in the summer time, when Mr. Robertson's man is there.

12,692. Have any of you offered to sell to him?-Yes.

12,693. Have you been prevented from doing so?-Yes; we have been prevented in this way, that we were obliged to go to Mr. Adie with all that we had, or else we would have been put out of our crofts.

12,694. Did anybody ever interfere with you selling to Mr. Robertson?-If it had been known that it had been done, they would have interfered; but no man, so far as I know, ever put the produce of his farm or of his fishing past Mr. Adie.

12,695. Do you know of any person being fined for selling to Mr. Robertson's man?-No; but I know that my father was fined 2s. 6d. for selling a dozen of eggs to a man at the lighthouse station. That was in 1858.

12,696. Was that by Mr. Umphray?-Yes.

12,697. Was he Mr. Adie's factor at that time?-Yes.

12,698. Do you know of anybody having been fined in the same way since?-No; except men going to Greenland, or going any other way where they think they can be better. They are fined in this way, that every man, young and old, on the island, is obliged to fish for Mr. Adie.

12,699. But if a man goes to Greenland he is not on the island?- No; and it is for that reason he is fined.

12,700. But if he is not on the island, how can he be fined?-He comes back in the winter.

12,701. Who has been fined in that way?-I was fined, for one, in 1855.

12,702. Have you been at the Greenland fishing since that?-No.

12,703. Have you been away from the island since?-No.

12,704. Why have you not gone since?-Because I became a tenant of Mr. Adie then, and I had to stick by that and fish for him.

12,705. Were you not a tenant of his at the time when you were fined?-No.

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12,706. Then why did you pay the fine?-I must either pay the fine, or my father would have been warned away for me.

12,707. Were you told that your father would be put away if you did not pay the fine?-Yes.

12,708. How much did you pay?-£2.

12,709. To whom did you pay it?-To Mr. Adie himself.

12,710. Did you get a receipt for it?-No.

12,711. Was it put down to your account?-Yes.

12,712. Was it ever repaid to you?-It was never repaid to me, but these fines were repaid to some others. It was repaid to Andrew Williamson, for one. There were six men belonging to Skerries who went to Greenland in 1855, and they were all fined £2 each.

12,713. That is a very old story. Did it ever happen again?-No.

12,714. Have men gone to Greenland from Skerries since then?- Yes.

12,715. And they have not been fined?-No.

12,716. How did they escape?-I cannot say.

12,717. They just had their liberty, and nothing was said to them?-Nothing.

12,718. Do you think the fines imposed on these six men served as a warning?-I don't think so.

12,719. That did not prevent other men from going to Greenland?-No, not for a few years back.

12,720. But did it do so at the time?-No; some men went to Greenland immediately after that, and were not fined. I think the fines were imposed on these six men in order to try to stop them from going there; but it did not have that effect, and it was not attempted again.

12,721. Why did you not get back your fine, when it was repaid to Williamson and the other men?-I never asked it back.

12,722. Have you or anybody else been fined for that, or for selling your goods to other people, since 1855?-No.

12,723. Except on that one occasion in 1858, when your father was fined for selling eggs?-Yes.

12,724. Can you sell your eggs to the lighthouse keepers now, or to any person you please?-Yes.

12,725. You are not bound now to sell them to Mr. Umphray?- Not so far as I know.

12,726. Have you sold eggs to Mr. Robertson's man within the last year or two?-Yes.

12,727. How do you sell your beasts?-To Mr. Adie.

12,728. Can you not sell them to any person you like?-Yes; but the cash must be returned to him.

12,729. You mean the cash must be handed to because you must pay your debts?-Yes.

12,730. Is there anything else you wish to say about Skerries?- Nothing, except that I may state, on behalf of all the men who are in the town now from Skerries, that they would like their freedom to fish for any man who would pay them best, and be allowed to get whatever they require from the cheapest market.

12,731. Supposing you had your freedom, is there one to whom you could sell your fish for a better price than Mr. Adie allows?- There are no others at the present time, so far as I know; but opposition might arise if there were more buyers than one, and if we had our freedom.

Lerwick, January 24, 1872, PETER HENDERSON, examined.

12,732. Are you a fisherman and farmer in Skerries?-I am.

12,733. How long have you been there?-This is the second year since I came there, but I was born in Skerries. I have been living in the North Isles for about twelve years.

12,734. Are you bound to fish for Mr. Adie?-Yes.

12,735. How do you know that?-I just know it in the same way that the rest of the tenants know it. He is our tacksmaster, and of course we have to fish for him.

12,736. When you took your bit of land two years ago from him, were you told that you must fish for him?-Yes. Mr. Umphray told me so.

12,737. Did Mr. Umphray let the land and agree with you about it?-Yes.

12,738. He told you at the time that you must fish for Mr. Adie, and you entered into that agreement, quite understanding what it was?-Yes.

12,739. Do you take your supplies from Mr. Adie's shop, and settle up every year at settling time?-Yes. I have always had a balance to get then.

12,740. Did you get money besides that in the course of the season if you wanted it?-Yes, when I asked for it.

12,741. Did you ask for much?-No; perhaps for £1 or so, when I required it.

12,742. Were you at liberty to buy your supplies at any other place you liked?-Yes, if I had money to give for them.

12,743. Could you have got money?-I did not ask it for that.

12,744. If you had asked for money with which to go and buy your meal and tea in Lerwick, would you have got it from Mr. Umphray?-I don't know that. If he had known it was my intention to go with it to other parties, I don't think he would have given it to me, because he would have wanted for himself any profit there was upon it.

12,745. Have you any reason for supposing so?-I have only my own reasons for supposing it, and I would think so.

12,746. Has he ever told you that he expects you to buy your goods at his shop?-No. He has never said anything about that.

12,747. Has he ever had any occasion to tell you that?-No.

12,748. Do you think he would tell you that if you went and got your goods in Lerwick or in Whalsay?-I don't know.

12,749. Have you ever been fined for selling your produce to anybody else or for fishing for another than Mr. Adie?-No.

12,750. Do you want to have liberty to fish for another?-Of course we should like to fish for any one who would pay us most.

12,751. But you came voluntarily to Skerries two years ago, knowing that you could fish only for Mr. Adie there

12,752. Why do you object to that now?-I don't object to it, only I should like if I could get more for my produce.

12,753. Do you think you could get more for it from any one else?-I don't think I could get more for it at the present time, because Mr. Adie is paying as high price as any other man.

12,754. Why did you go to Skerries?-Circumstances led me to go. I could not keep the land I was on, because the rent was too high. That was in Fetlar.

12,755. Do you get your land cheaper in Skerries?-I have only half a house and land in Skerries, but I could not get that chance in Fetlar. I had a heavy tack of land there, and I was not able to pay for it.

12,756. Do you know anything about the price and quality of provisions in Skerries?-They are dearer than in Lerwick. I bought a boll of meal in Lerwick yesterday from R. & C. Robertson's, to take home with me, and paid 19s. 6d. for it, while the price in Skerries just now is 23s. I have not bought so much there lately, but I know by the peck price that that is the price of it. I bought a peck lately, and it was marked down to me at 1s. 4d.

12,757. Would it not have been less if you had bought a boll?-It might have been a little less, but not much.

12,758. To whom do you sell your cattle?-To Mr. Adie.

12,759. Do all the people in Skerries sell their cattle to him?- They generally go to the roup at Voe, and have a chance of selling them there.

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12,760. Do they take their cattle or ponies all the way to Voe?- There are no ponies in Skerries.

12,761. Are you paid in money for your cattle at the time of the roup?-Yes, if we want it. Of course Mr. Adie does not like to pay us the whole of it in money if we are in his debt, but if a man is clear he gets whatever he wants.

12,762. If a man is clear does he always get his money down, or is it put into his account?-If he wants to leave it in Mr. Adie's hands he will get interest for his money, but if he wants the money itself it will be paid down to him.

12,763. What are the usual earnings in the summer fishing?-They vary according as we are successful or not. Last, summer I think I had £18, 6s. for my fish from April to Lammas.

12,764. Did you catch some fish in the winter and early spring, before that?-Very little. I got perhaps 30s. for them.

12,765. Is the fishing of the Skerries men in summer as large as that of the men who come from the mainland?-Yes. Most of the Skerries boats are quite as well fished as the boats that come from the mainland.

12,766. Had you as much money to get as most of the mainland men?-I believe I had. I don't think there were any who were much above me.

Lerwick, January 24, 1872, THOMAS HUTCHINSON, recalled.

12,767. How much did you get for your summer fishing last year?-£17, 19s.

12,768. Was that as much as most of the mainland men got, so far as you know?-Yes. I don't know what money they actually got; but I know the number of cwts. they took, and I know that none of them had much more than me. The highest of the mainland boats had 252 cwts., while our boat, which was manned entirely by Skerries men, had 246 cwts. 1 qr. 18 lbs. The mainland boat I have mentioned was one of Mr. John Robertson's. Ours was the highest fished boat belonging to Mr. Adie at Skerries. The six boats belonging to Skerries had all about the same take.

12,769. Do you think the Skerries boats generally had a smaller number of cwts. than the mainland boats?-In general they had more.

12,770. Was that because they lost less time in coming and going to the fishing?-Yes. The Skerries men had the advantage of Friday afternoon and Saturday above the Lunnasting men, who went home at the end of every week on the Friday afternoon, and did not return until Monday about twelve o'clock.

12,771. You had thus a longer time at the fishing than the Lunnasting men. How do you account for it that you had not one-third more fish than they?-I just account for it by chance or fortune.

Lerwick, January 24, 1872, DAVID ANDERSON, examined.

12,772. Are you a fisherman in Skerries?-I am. I have been there since I was a child.

12,773. Do you hold a bit of land?-Yes.

12,774. Do you consider yourself bound to fish for Mr. Adie?- Yes, the same as any other.

12,775. Were you told so?-I was not; but my father was when he signed his agreement for the land, about twenty years ago. I have the half of the farm with him.

12,776. Have you ever been fined or found fault with for fishing to another, or for selling the produce of your farm to any one else than Mr. Adie?-Never.

12,777. I suppose there has been no occasion to do so?-No.

12,778. Have you ever sold fish, or eggs, or butter, or cattle to any one except Mr. Adie?-No.

12,779. Have you always got as good a price from him as you could have got anywhere else?-I usually got the currency.

12,780. Do you think you would have been better off if you had had liberty to deal with another?-I don't know that I would.

12,781. Have you any wish for a change?-No.

12,782. Are you content as you are?-Yes.

12,783. Do you think the evidence of the two previous witnesses was correct with regard to the price and quality of the goods at Skerries?-Quite correct.

12,784. Are the goods dearer at Skerries than they are elsewhere?-Yes.

12,785. But you have no wish for a change, and are quite content to go on paying the higher prices?-I am merely content to fish for Mr. Adie as well as for another; but I think the prices which he charges for his goods in the shop are far too dear.

12,786. But you are not bound to take all your goods from his shop?-No, not if I had the money.

12,787. Do you not get the money at settling time?-Yes, at settling time I do; but hardly as much as will keep me going for a twelvemonth, and I must go to him for some supplies.

12,788. Do you not get enough money at settling time to carry you on for two or three months?-Yes.

12,789. After that could you not get credit from any other shop where you could get your goods cheaper?-I have no doubt I could if I knew that I could pay my account at the twelvemonth's end.

12,790. But if you had credit at another shop where you could get your supplies cheaper, and if you got no credit from him, you could get all your money from him at

settlement, instead of having part of it in supplies?-I could, but we have our rent to pay to him annually. In the meantime we might have a good fishing or a bad fishing, as Providence sends it. If we had a good fishing, we might have enough money to pay the men from whom we had got credit; but if not, we would not have plenty of money and then how could we pay our accounts?

12,791. Does not Mr. Adie take the same chance with you?-Yes.

12,792. You might have no money to pay him for the credit he has given you?-That is quite true.

12,793. Therefore he has to wait for payment just as another merchant would have to wait for payment, if you get your goods on credit from him?-Yes.

12,794. Then why do you think that another merchant would not give you credit?-There is no doubt we would get plenty of credit.

12,795. Have you ever compared the prices of goods at Skerries with what you could get them for at any other place?-Yes; and everything is dearer there than it is in Lerwick. For instance, cotton is always from 2d. to 21/2d. a yard dearer at Skerries than at Lerwick. I have bought cotton of the same quality at both places for oiling, and I found there was that difference in the price. Then last year I bought a sack of meal in Lerwick for 42s., and we were paying 46s. in Skerries for it at that time. It was in February last year that I bought it in Lerwick, from Mr. Charles Robertson, and I bought some in Skerries in April or May. I think the freight to Skerries is 8d. a sack. We generally get it conveyed by Mr. John Robertson's packet when we buy it in Lerwick, and I think his charge for it is 8d.

12,796. Were these two purchases of meal of the same quality?- Just about the same.

Lerwick, January 24, 1872, ALEXANDER HUMPHRAY, examined.

12,797. Are you a fisherman in Skerries?-I am.

12,798. You are not a tenant yourself?-No. My father is a tenant, and I live with him.

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12,799. Do you fish to Mr. Adie?-Yes.

12,800. Are you not at liberty to fish for any other person?-I don't know. I am in my father's boat, and therefore I cannot get clear. I would like to oblige Mr. Adie as far as possible by going in his boat; but if we have fish to sell, and if there is another merchant in Skerries who would buy the fish, and perhaps give us 3d. or 6d. per cwt. more for them, we cannot sell them to him. We must give them all to Mr. Adie.

12,801. How do you know that?-Because we have seen it.

12,802. When did you see it?-About four years ago. There was another merchant there, who was giving more for the fish, but I could not leave the boat and go to him when the other men in the boat were bound to give their fish to Mr. Adie.

12,803. Did you think you were free at that time?-I did not know. I thought Mr. Adie could pay as much as any other man for fish, but he would not do it; and I could not take my fish out of the boat and sell them to another man when all the other men were selling their fish to Mr. Adie. It would not have looked right.

12,804. Who was the other merchant?-Mr. John Hughson, Yell. He was offering 3d. per cwt. more, and yet we could not give him our fish.

12,805. Did you try to take your fish away to him?-I did not try. I would have liked to have done it, but the fish had been weighed before I could get my share, and it would not have looked well to have taken them away.

12,806. Did you speak about that at the time?-Yes, I spoke about it to Mr. Umphray, Mr. Adie's factor, and he said we must give our fish to him, as we were bound to do so.

12,807. Have you ever been at Faroe or Greenland?-I have been fishing to Mr. Adie at Skerries all along.

12,808. Were you employed as a beach boy there at one time?- Yes, for two years. That was five years ago. The regular fee then was £3 for three-fourths of the year, and £4 for a splitter.

12,809. When you were engaged as a beach boy, did you get most of your payment in supplies?-Yes.

12,810. You were settled with at the end of the year?-Yes; and I was buying their goods at the same time.

12,811. How much of your fee did you get at the end of the year?-I got £1 the first year. My father did as much for me as he could, so that I did not require to buy meal from him. I got about £1 at the end of the second year also.

12,812. When you were a beach boy, could you not get your cash in hand if you asked for it in advance in the course of the year?-I know we might have got 1s. or 2s. to serve a particular purpose, but no more.

12,813. Were you expected to take it out in supplies?-Yes.

12,814. If you had asked it by the week, would you have got it?- No; they said they would not give it until the end of the season, and it was fixed then according to the amount of fish that had been taken.

12,815. Was not your beach fee a uniform sum, whatever kind of fishing there was?-No; there was a sum fixed at the beginning of the year, and then at the end of the season they gave us what they liked.

12,816. Is that the practice still?-Yes.

12,817. If it is a good fishing, the beach fee is fixed higher?-Yes.

12,818. And you think it is always higher in proportion to the success of the fishing?-Yes; and according to the number of years you have been at the work.

12,819. How many beach boys and men are employed at Mr. Adie's station in Skerries?-There are usually about six boys and two splitters. In some years there are eight, and I have seen as few as three and four. They settle with us at Skerries, in Mr. Adie's house there, not in the shop. They brought the books over from Voe.

12,820. When you were settled with at the end of the year, were you asked if you wanted anything?-No.

12,821. You were paid the money?-Yes, whatever I had to get. If I was due £1 or £10, there was 1s. per pound of interest charged against me, and that was done with every one in Skerries. I knew a man who was due £14 last year, and he had to pay 14s., but he cleared himself this year. If a man's debt is above £40, that is £2 a year he has to pay, and they never can get out of debt.

12,822. Are there many men who are due above £40, and who never get out of debt?-As far as I can learn, there is one.

12,823. How do you know that he never will get out of debt?- Unless better times come, I don't know how he can. He will not be able to do it with the present fishings.

12,824. Has he been long in debt in that way?-I believe he has been for a good while. Sometimes the debt may be £1 more or £1 less but the interest is always charged.

12,825. Have you sometimes had a balance to get at the end of the year?-Yes; sometimes I may have had £5 or £6 to get, and sometimes nothing.

12,826. When you have a balance of that kind to get, does Mr. Umphray never ask you if you want any goods?-He never says anything. We just please ourselves. I would never take anything from the shop at Skerries if I could get it in Lerwick, because everything is overpriced there. For instance, there is soap and soda. You cannot get a bit of soap there under 6d. a lb., and soda is 11/2d., while here it is 1d. Everything I could mention is dearer there than here. Sugar is 5d. and 6d. there, and I know that in Lerwick we can get as good for 5d. as we get there for 6d. If we were paid money every time we come on shore with our fish, or every time we want it, we would be able to get our things very much cheaper from other places.

12,827. Are you sure the sugar which you pay 6d. for in Skerries is not better than you would get for 5d. here?-I don't think it is. We pay 7d. for hard sugar there, and we can get the same kind for 6d. here.

12,828. Would you not have a long way to go from Skerries in order to get your goods cheaper, even although you had your money in your hands?-There is a packet going to Whalsay every week, and goods are almost as cheap there as in Lerwick. They are far cheaper than in Skerries, and it is the same freight to Whalsay.

12,829. I suppose it is not very easy to get goods carried to Skerries?-Unless from Whalsay it is not very easy. We can get them quarterly; but we could get them every week by the packet to Whalsay, by sending a letter to Lerwick, and then we could get them brought to Skerries when we had a chance.

12,830. Does Mr. Robertson's packet only go in the summer season?-Yes; but the Commissioners' mail packet comes every week to Whalsay, and any of us could go over there and bring whatever small thing we wanted.

<Adjourned>.

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BODDAM, DUNROSSNESS, FRIDAY, JANUARY 26, 1872

ROBERT HENDERSON, examined.

12,831. You are the son of Mr. Gavin Henderson, who is a merchant at Scousburgh, Dunrossness?-I am.

12,832. You have charge of his business now?-Yes, mostly.

12,833. Are you in partnership with him?-No.

12,834. You are his manager?-Yes.

12,835. Of what does your stock consist?-It is most impossible to say. It consists of drapery goods, groceries, ironmongery, coal, and I don't know what more.

12,836. Do you buy some hosiery?-A little; and we buy eggs as well.

12,837. I believe you have about the largest business in the neighbourhood?-We do a reasonable business.

12,838. You are not engaged in the fishing in any way?-We buy fish, but we have no boats of our own.

12,839. From whom do you buy fish?-From any parties who present them to us. We buy scarcely any in summer. It is mostly in winter that we get them, because in the summer months the boats are all engaged to certain fish-merchants, and the men sell their fish to them or to the proprietors.

12,840. Is it generally the proprietors who have the fishing in their own hands?-Some of them have, and some have not. Mr. Bruce of Simbister does not have the fishing in his hands; the others have.

12,841. To whom do Mr. Bruce of Simbister's tenants generally fish?-His tenants on the west side, those round us, fish for Mr. John Robertson, jun., Lerwick, and for Mr. Robert Mullay, Lerwick.

12,842. How many boats has Mr. Mullay?-I don't know exactly; perhaps seven or eight. He has a station at Ireland, and Mr. Robertson, jun. has one at Spiggie. They have no shops there. They have only the stations hired from Mr. Bruce. Those of Mr. Bruce's tenants who fish from Spiggie are bound to fish for Mr. Robertson during the summer months, and those who fish from Ireland at that time are bound to fish for Mr. Mullay.

12,843. Do you understand that these tenants are bound to fish for these merchants?-Yes.

12,844. Is that the understanding in the district?-Yes; but during the summer months only.

12,845. Do you know that from the men themselves?-Yes.

12,846. Have they often told you that they are bound to fish for these tacksmen?-They have often told me that; but they are not tacksmen, they only have the stations.

12,847. Do these men deal a great deal at your shop?-Yes.

12,848. Have they ever told you in what way they are bound, or how they know they are bound?-Robert Robertson, of Noss, once wished to have liberty to dry his fish for himself, and to fish from Spiggie, and he would force a beach for himself quite apart from Mr. Robertson's beach, but he was refused liberty.

12,849. When was that?-I could not say; it was about four or five years ago, I think.

12,850. Do you know any one else who was interfered with in the same way?-I know a man from Ireland who was obliged to beach and draw his boat in a ghive some distance from Ireland, in order to sell his fish to Charles Nicholson, Scalloway. His name was Gavin Goudie.

12,851. Are these the only curers for whom the tenants of Mr. Bruce of Simbister fish?-No. If they do not fish from Spiggie or from Ireland, they are at liberty to fish for whom they like. They can dry their fish or sell them wet, just as they please. A good many of them fish from about Scatness and West Voe, and sell their fish to Hay & Co. A few of them fish from Voe, and sell their fish to Mr. Grierson of Quendale.

12,852. But they are at liberty to sell to any person they like?- Yes. Mr. Grierson of Quendale has a station at Voe in tack, and the fishermen are not bound to fish for him unless they like.

12,853. Have you dealings with all the fishermen in your neighbourhood on the Simbister estate?-Not with all, but with most of them.

12,854. And also with some on the Sumburgh and Quendale estates?-Yes.

12,855. Are your transactions with these men generally paid for in cash, or do you run accounts with them?-We run accounts with them partly, and their purchases are paid in cash partly.

12,856. Do you run accounts with them for any length of time?- For a year. There is only a yearly settlement here, and we run accounts with them to the end of the year, when they settle with their fish-merchants. Then, as a rule, they pay us, though there are exceptions.

12,857. How do these exceptions occur?-Perhaps they are not able to pay us.

12,858. I suppose you are not very willing to give long credits in that way?-No. We would wish very much to have the credit system done away with; but we must do it.

12,859. You have not got the same security as a curer for whom the men are fishing?-No.

12,860. Do you think that more of the fishermen would deal with you if you were able to afford them the same credit as they get from the curers?-It is very likely they would.

12,861. But you restrict their credits?-Yes.

12,862. Have you understood from any of the fishermen, that they are obliged to deal at Grutness or Quendale in order that they may get their goods on credit?-Mr. Bruce, so far, as I know, does not interfere with his men with regard to the purchase of their groceries or goods. If they buy at Grutness, I suppose it will be so much the better; but if they did not buy there, I never heard any of them say that Mr. Bruce would say anything to them.

12,863. That is not the question. What I asked was, whether the fact that they can get a longer credit there, and there only, and that they have no ready money, obliged them to go to these shops?- Very often it does.

12,864. Do you know that from the statements of the fishermen themselves?-Yes.

12,865. Is it a common feeling amongst men with whom you come in contact, that they would like to have liberty to fish for themselves?-Yes, very much so.

12,866. Do they speak as if they felt that the restriction which is put upon them with regard to fishing is also a restriction as to the shop at which they are to deal?-If they have no cash, it comes to be a restriction. What the men want is to have the stations in their own power, so as to be able to dry their fish for themselves, or to sell to whom they like. That would give a competition in trade; but while the fishermen are bound to fish to certain parties, it causes a monopoly in trade.

12,867. What is about the utmost amount to which you can allow an account to run in the course of the year?-It depends very much upon the position of the party who is running the account. Ordinarily we allow an account with fishermen to run from 30s. to £2, but some of them run accounts up to £10.

12,868. Have you any men on the Sumburgh or Quendale estates who have run up accounts as high as £8 or [Page 319]£10?-Not on Sumburgh or Quendale to that extent; but I daresay some of them do run up accounts to the extent of £5 or £6 or £7.

12,869. Are the men who run accounts to that extent fewer upon these estates than upon the Simbister estate and the other estates in the district?-We don't run such heavy accounts as that with any men at all, unless they have something else to fall back upon

12,870. What was about the average price of your meal in 1870?- It varied very much. Before the French War broke out, the meal was very low. I remember that in the first of the season we were selling oatmeal for 17s. per boll, or 34s. a sack.

12,871. How much was that per lispund?-4s. 3d.; and it rose throughout the season to about 21s. 6d. or 22s., or 5s. 6d. per lispund.

12,872. Is the lispund less than a quarter boll?-We give it nearly about the same size. We give 34 lbs. to a lispund.

12,873 Is that usual in the country?-No; 32 lbs is the usual measure. We give 8 lbs. for a peck, and charge a less price for it than for a quarter of a lispund. We have the meal in boll bags, and when parties want a boll we sell it without breaking bulk.

12,874. Would you look over your books for 1870, and ascertain the highest and the lowest price at which you bought and sold meal in the course of that year?-Yes.*

12,875 At what are you selling tobacco?-We sell Irish roll at 11d. per quarter, and mid at 1s. per quarter. We sell the mid at 31/2d. per ounce, or 6d. for 2 ounces.

12,876 What is the price of the best quality of soft sugar?-We sell soft brown sugar at 5d. per lb. We sell our best crushed sugar at 6d., and hard sugar at 61/2d.

12,877 Do you sell lines?-Sometimes. Our price for 2-lb. lines is 2s., for 21/4-lb. lines 2s. 3d., and for hooks is 8d. per 100.

12,878. Are these quite as good as are sold by your neighbours?-I suppose they are. We sell them freely.

12,879. What is the price of a 60-fathom line?-We don't keep these, but they generally come to about 1s. per lb. The price depends upon the weight. When we buy fish we do so at a stated price, which is fixed at the time of the purchase Most of the fish we buy are in the winter time, from those tenants of Mr. Bruce who fish for Hay & Co. and Mr. Robertson and Mr. Mullay in summer. In winter they are free to sell to whom they like; and we put a price on the fish, and give them cash over the counter when the fish are delivered.

12,880. Do they sometimes take away the price of their fish in goods?-They can please themselves. We pay them cash, and they buy goods or not as they like

12,881. Do you always give them cash?-Yes, when we have got it. Sometimes we may give them an I O U, and others prefer to have the amount put to their accounts but the fish are bought at a certain price, and that is divided at the time amongst the men.

12,882. In winter the boat's crew, I suppose, consists of 3 or 4 men?-Yes.

12,883. Is any difficulty experienced in fixing the shares of the men at the time?-No. The price is just divided among them according to the way in which they want it.

12,884. You ascertain the price of the whole catch of the boat, and then each man takes his third or his fourth, as the case may be?- Yes, whatever the catch may be, each man gets his share of it.

12,885. Would there be any difficulty in paying for the fish in that way in the summer fishing?-In the summer fishing it would not work very well, because it would not do to give the men their cash just off-hand; but there is a way in which it could be done equally well. Suppose the men knew what the price of the fish was to be, the amount could be left in the hands of the parties who bought their fish from them. They don't require to draw all their money at once.

12,886. Do you mean that they could draw some of it?-Yes. What I hear the men complain of is, that they don't know what price they are to get for their fish until the end of the season; but if they had the fishing in their own hands, so that they could sell to whom they liked, they could make their bargain at the commencement of the season if they chose, in the same way as the herring fishing is carried on at Wick.

12,887. Or they might fix the price from week to week, or from month to month?-Yes. If there were several parties who were at liberty to buy the fish from the men, that would cause competition in the market, and the probability is the price would go higher.

12,888. But you think it would not work so well to have the men paid every time the boat came in in summer?-I don't think it would, because they would be liable to spend the money.

12,889. Is that the only reason why you think that system would not work?-Yes, the only reason.

12,890. Would there be any difficulty in settling?-We don't experience any difficulty in settling with our men.

12,891. Might it not require a curer at a station such as Spiggie or Ireland, or at a more distant place, to have a more efficient factor there than he would otherwise have, and perhaps also to keep money there?-That might be avoided. For instance, Mr. Irvine has some workmen here who work for him in building houses and other things; and he tells their foreman to hand us in a note of their time every fortnight, in order that we may settle up with the men. The men don't choose to draw their money whenever it falls due; but we give the foreman a few pounds, and he gives them as much money as they like to draw. Some of them don't draw any of their wages until the end of the season, when they get it to pay their rents with; and the fishing might be managed in the same way.

12,892. Are those masons and labourers who are employed by Mr. Irvine?-Yes; on the Simbister estate. Of course they know the money is there, and they can draw it every fortnight if they like; but there is nothing to prevent them from leaving it until the end of the season, or whenever they wish to square up.

12,893. I suppose these men very often have accounts running at the same time?-Some of them have, and some have not; but that is quite a distinct matter. Their wages are always paid to them in cash.

12,894. But they often don't choose to ask for it?-They sometimes don't choose to ask for it till the end of the season.

12,895. Do you think they have a fear themselves that it might be spent if they took it sooner?-It is quite possible they have.

12,896. And they get what they want in the meantime at your shop, or anywhere else where they can have credit?-They may or they may not, as they like. That is entirely at their own option; but they can get supplies of cash from their foreman when they want them.

12,897. Is it the foreman who gives the money to them?-Yes. We supply the foreman with cash when he wants it; and then he gives it to the men when they want it, and charges it against them.

12,898. You have a note of the men's time furnished [Page 320] to you every fortnight by the foreman. What is the purpose of that?-In order that the accounts may be regularly kept.

12,899. Who keeps the accounts?-We do.

12,900. Do you add up the men's time every fortnight, and make a note of the amount that is due to each?-Yes.

12,901. In that way, supposing a man has an account with you, you know whether he has been overdrawing it in goods or otherwise?-Yes; but he draws the cash from the foreman if he applies for it, and then the foreman gives us a note of the cash he has paid, and of the man's time for the fortnight.

12,902. But if the man takes out goods he settles with you?-Yes; or if he draws the money from the foreman, he pays the goods he has got from us with it.

12,903. If he has an account with you, in that case he will settle with you at once?-If he has an account with us he allows his account to go on, and the foreman pays him cash when he wants it When he gets cash from the foreman, it is at his own option to square his account with it or not, as he likes.

12,904. If the man is in your debt, do you still give him the cash?-Yes.

12,905. But you could retain it if there was any doubt about the men's solvency?-We always do hand them the cash.

12,906. You have never had occasion to retain it on account of a man's delay or refusal to pay his debt?-No.

12,907. Do you sometimes get stray lots of fish during the summer?-Not much. Sometimes, perhaps, we get a 'supper piltock.' The men take home a few fish for their own family use, Sometimes a man has large family, and another man has a small family, but they require to take home an equal number of fish to each of them; and then the man who does not require so much sells what he has got extra and that is called a supper piltock.

12,908. I suppose there is not much smuggling of fish going on here?-I don't think so; not in the summer time.

12,909. But if a man who is bound to fish wants a little ready money, does he not come to you with a lot of fish?-Not in the summer time; they would not be safe to do that. They would get their warning if they sold their fish past their proprietor in the summer time.

12,910. If it were known?-Yes, if it were known.

12,911. But don't they try to do it sometimes on the sly?-I don't know that they do.

12,912. You take them all for supper piltocks, if any are brought to you?-I suppose so.

12,913. Do you buy hosiery upon the system that is usual in the country?-No; we buy for cash.

12,914. Are you the only merchants in Shetland who do so?-I don't know; but it is very little hosiery we deal in. We find it very easy to buy, but very difficult to sell. We are not rightly in the market. We wish to carry on the hosiery trade on the same principle as the rest of our business, buying everything at a cash price, and giving cash for it if it is asked.

12,915. Do you find any unwillingness on the part of the knitters to take lower prices for their hosiery if they are to be paid for it in cash?-No, they are ready to sell for lower prices if they can get cash; and so they may, because sometimes girls come into our shop with cottons or flowers or other goods which they have brought from Lerwick, and ask us to exchange them.

12,916. Are you often asked to take flowers in that way?-Not often, because we refuse to do it, unless they are goods which have been bought from ourselves. In that case we exchange them; but if they are bought from other parties we won't take them. We find that the goods which are offered to us as having been received for hosiery are very much higher priced than what we would sell the goods at ourselves.

12,917. Have you been offered goods in that way lately?-Not lately, because we have refused to take them. The girls have told us that there is no use asking for cash in Lerwick, because they won't get it, and they don't ask us to take the goods, because they know we won't take them.

12,918. Do you remember any case in which you were offered goods that had been obtained for hosiery at a lower price than they were nominally sold at to them?-I have been offered goods at a lower price, certainly, but I could not mention any particular case.

12,919. Has that happened more than once?-It has happened very often.

12,920. About what amount of business are you doing in hosiery on that system?-Very little at present.

12,921. Is that because you don't get a sale for it?-Yes. As I said, we have not got into the market rightly.

12,922. Do you find it difficult to get the hosiery sold at a profit when you buy it on that system?-Yes.

12,923. Have you been obliged to sell it at something like the price which you paid for it?-Yes, we don't look for a profit upon hosiery.

12,924. Then why do you deal in it if you don't look for a profit?-Because it gives the people a chance of getting cash for it, and then we have a chance of getting the cash again.

12,925. I suppose that generally you do get the cash again?- Generally we do; but that is quite optional with the people themselves.

12,926. Do you pay for hosiery in goods at all?-If they ask for goods, of course we give them goods; but if they ask for cash they get it. That is the way in which we do all our business. We put the goods that we buy at cash prices, and we put the goods that we sell at cash prices, and it is a matter of indifference to us whether they ask goods or cash.

12,927. But, in point of fact, the hosiery may be paid for in goods, and no cash may pass if the party so chooses?-That may happen, but we don't do it as rule. As a rule, some other party buys the hosiery who knows better about it than I do, and hands the cash to the party from whom the hosiery is bought, and then they are at liberty to buy from us, or from any other person they like.

12,928. Are the eggs which you buy paid for on the same principle?-They are paid for in goods or cash, as the parties wish.

12,929. But the custom of the country is to pay for them in goods?-That is the custom of the country.

12,930. Do you generally find that the people who bring them are content to take the price, or prefer to take the price of them in goods?-They often take the price in goods, because they want them, but at the same time that is quite optional with themselves.

12,931. Are there not two prices for these things, whether they are paid in goods or cash?-Some parties have two prices, but we have not. We have only one price. We often prefer to pay the people in cash when they really want goods, because it saves a great deal of trouble in settling with them, and then they buy goods again.

12,932. Do you find that your cash transactions for goods are generally greater at one season of the year than at another?-Yes, very much greater. Our busy season for cash commences when the landlords and fishcurers commence to pay the men for their season's fishing, and we continue to drive a large trade of that description until April.

12,933. Do you then find the men beginning to ask for credit more frequently?-Yes.

12,934. Do you think it would be better for the trade generally, as well as for the men, if they were paid more frequently, and the settlements were not so distant?-It would certainly be better for us if they were paid more frequently, because then we would be paid more frequently also.

12,935. Do you think it would be better for the men too, and that they would make a better bargain with their money, or do you think it is just as well that the money should be kept for them?-I consider that the money is kept up a great deal too long. For instance, if the fish-curers paid for the fish at the end of the fishing season, that is, on 1st September, that might serve the men very well; but as it is with some parties, it is the 1st of April or the end of March before they are paid.

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12,936. Are the men sometimes in difficulties with regard to their supplies, in consequence of that?-No; because if they have anything to get, they can obtain supplies from the stores of the fish-merchants. They can get anything they like from them in goods. Perhaps that is the reason why the settlement is sometimes so long delayed, because it gives the men the chance of running a larger account than they would otherwise do and then they have less cash to get.

12,937. Have you any ground for that statement other than from mere inference?-No. There is one thing I may mention in connection with the fishing, that when the men sell their fish green, the drying of them must be paid for to other parties; but suppose the men dried the fish themselves, there are often windy days, when they cannot be at the fishing, and then they work at the drying of their own fish when they would have been doing nothing if they had been on-shore. In that way they can dry their fish for themselves very much cheaper than the fish-curer can dry them.

12,938. But can they do it as well? Do you think the fish cured by a fisherman himself command as good a market as those cured on a large scale by a curer?-We have had very little experience in that matter, because we don't buy fish in that way.

12,939. Do you cure any fish at all?-Yes; we cure the fish which we buy in the winter time wet.

12,940. How many fish do you sell in the course of a year?-From 10 to 20 tons.

12,941. Do you sell these at what is called the current price?- There is a current price for the ling fishing, according to which the fishermen are paid, and we try to get the most out of the fish that we can.

12,942. Do you generally get above or below what is called the current price in Shetland?-I don't know, because merchants, as a rule, don't care about saying much about what they have got for their fish.

12,943. Are you not consulted by other curers about fixing the current price?-No; we just act for ourselves.

12,944. Do you get a lower price for winter fish than is given for summer fish?-Yes, as a rule, we get less for them.

12,945. Your father is present to-day, but he prefers that you should be examined, as he is not in very good health?-Yes.

*Mr. Henderson afterwards furnished the following statement:-

LIST of OATMEAL invoiced to and sold by Gavin Henderson, Dunrossness, in 1870. Date of Invoice. 1870. a March 11. 24 Bolls Oatmeal, sold by him at 16s. 6d b " 18. 24 " " 17s. 0d c April 15. 8 " " 18s. 0d d May 13. 6 " " 18s. 0d e " 13. 14 " " 18s. 0d f June 3. 20. " " 19s. 0d g 24. 8 " " 19s. 6d h July 26. 16 " " 21s. 0d i Aug. 10. 2 " " 22s. 0d j Sept. 30. 2 " " 19s. 6d k Nov. 4. 2 " " 19s. 0d. l 126 Bolls

a ...£19 16 0 b ... 20 8 0 c ... 7 4 0 d ... 5 8 0 e ... 12 12 0 f ... 19 0 0 g ... 7 16 0 h ... 16 16 0 i ... 2 4 0 j ... 1 19 0 k ... 1 18 0 l £115 1 0 Average price sold at per Boll, 18s. 3d, as nearly as has been ascertained.

Boddam, Dunrossness, January 26, 1872, THOMAS TULLOCH, examined.

12,946. You are a fish-curer and merchant at Lebidden?-Yes.

12,947. Do you employ a number of boats' crews for fishing in summer?-Yes. I think I had about 20 altogether last year.

12,948. Are the men you employ chiefly tenants on the Simbister estate?-No; they are on the Sandlodge part of the Sumburgh estate.

12,949. Are they in any way restricted as to the person to whom they are to sell their fish?-No.

12,950. Do you also buy fish in winter from any men who choose to sell them to you?-Yes.

12,951. Have you bought any from tenants on the Quendale estate?-No, not from Quendale tenants.

12,952. Have you bought any fish in winter from the Sumburgh tenants in Dunrossness?-No.

12,953. Do you settle with your fishermen annually in the winter, in the same way as other merchants do?-Yes; once at year.

12,954. Have you a shop at which they run accounts?-Yes.

12,955. I suppose they generally incur an account in the course of the year, which runs away with part of their earnings?-Yes.

12,956. And you set the one against the other?-Yes.

12,957. Are your boats hired out to the men?-In some cases they are, but in other cases they are their own boats.

12,958. What is the amount of the boat hire they pay?-£2 for the summer.

12,959. Do you hire out lines and hooks also?-Very seldom.

12,960. Do you sometimes make an arrangement by which the men buy a boat and pay for it by instalments?-Yes. It will take about five years to pay it up.

12,961. Is that arrangement made at the beginning of the transaction, or do you just sell the boat, and leave the men to pay it up as they are able?-It is an arrangement which is entered into at the beginning. They have to pay so much every year,-say £1 a year from every man.

12,962. Do you find that the men generally manage to settle up for their boats within the five years?-Yes, about that time.

12,963. How long does at boat last?-Some of them last longer than others, but I should say that on an average they last about fifteen or sixteen years.

12,964. Do you pay the same rate for the fish that are caught by men who own a boat and by those who hire one?-The same.

12,965. Is the price which you pay for your fish generally a higher one than the current price?-Generally it is a little higher.

12,966. What is the reason for that?-I don't know. We like to get the services of the men, if possible.

12,967. I understand the current price last year was 8s. for ling?-I don't think it was so much.

12,968. What did you pay?-I paid 8s. 3d. in 1870, and 8s. 9d. in 1871.

12,969. Do you think the current price was less than 8s.?-I think so, but I am not quite certain.

12,970. Are you obliged to give a higher price in consequence of competition among fish-curers in your neighbourhood?-No.

12,971. Then why do you do it?-We just want to satisfy the men.

12,972. Do the men in your district require a higher price than their neighbours in order to be satisfied?-Yes; they want a higher price, and it has been paid for some years back.

12,973. Can you account for that in any way?-No. I once got into the way of giving a little more than the currency, and the men have always looked for it since.

12,974. Were not the men in your district, until lately, bound to fish for a tacksman, Robert Mouat?-Not in our district. The men who fished for him lived at some distance from me.

12,975. Have you settled this year?-Yes.

12,976. What would be about the average amount of cash which each man had to receive at settlement?-I should say about £4.

12,977. Would the amount of his earning from the fishing be £12 or £15 on an average?-Not so much. It might be about £8 or £9.

12,978. Has the fishing in your neighbourhood been less successful this year than in other parts of Shetland?-It has been less successful for some time back, but last year it has done very well; I should suppose about an average.

12,979. Some of your men, I suppose, would have nothing to take at settlement?-Yes, some had nothing.

12,980. They had exhausted the amount of their earnings by advances in shop goods?-Yes, and in money advances too. The advances were not all in shop goods.

12,981. Do they often ask for advances before the end of the season?-Often.

12,982. Do you think it would be an advantage if they were paid more frequently for their fish?-I don't think so. I think they would not get such high prices.

12,983. Do you mean that if the price were fixed at the beginning of the season, the merchant would be cautious about fixing a high price?-Yes.

12,984. But if the prices varied from time to time, according to the state of the market, would the men not be better to have the money in their own hands, and then they would have a chance of a variable price?-In that case they would; but some people don't know how [Page 322] to take care of their money when they get it. They don't know how to lay it out.

12,985. If they had money in their own hands, would they not learn to take care of it?-I don't know. I think it would be rather a difficult matter to learn some of them.

12,986. What other fish-curers are there in your neighbourhood?- Mr. Smith. There is no other merchant in the immediate neighbourhood. Mr. Harrison has also some curing done there.

12,987. Has he a station there?-Yes; it is about mile from my place.

12,988. How far is Mr. Smith from you?-He is next door.

12,989. Is there not a good deal of competition between you three?-Not much.

12,990. Are you not all anxious to get a larger number of boats to fish for you?-Of course.

12,991. Has not that some effect upon the price which you offer for the fishing?-Perhaps it has a little.

12,992. Do you think if you were the only curer there, you would be able to get your men to give you their fish for 8s.?-Perhaps I might, if they could get no other body to take them, and who would give them more.

12,993. Have you always given the same price as Mr. Smith, or is there sometimes a difference between you?-There never is any difference.

12,994. How long have you been in business there?-For fifteen years.

12,995. How long has he been there?-I think about sixteen or seventeen years.

12,996. Do his men sometimes shift from him to you, or the other way?-Yes, sometimes.

12,997. Is there any particular reason for that?-I cannot say; I suppose it is just their fancy.

12,998. Is a man more likely to shift when he is in your debt, or when he is out of it?-When he is out of it.

12,999. When he is in your debt, does he like to continue to fish for you until his debt is paid off?-Sometimes he does.

13,000. Have you any arrangement with Mr. Smith by which, when a man changes from one place to the other, the new employer takes in hand the debt which the man is due to his former employer; or becomes responsible for it?-There is no arrangement of that kind between us.

13,001. Have you sometimes done that?-I believe I have done it.

13,002. Have you undertaken a debt due to Mr. Smith?-Yes, when it was not very much.

13,003. And you have got it from the man at the end of the season, or as soon as he was able to pay it, and handed it over to Mr. Smith?-Yes; he either got it, or it was set down in his book.

13,004. How often may that have happened?-Not very often.

13,005. Has it been done lately?-Yes.

13,006. I suppose it is not an unusual thing in the fishing trade for that to be done?-It is not unusual. Of course, the curer that the man leaves expects him to pay his debt when he does leave.

13,007. Are you responsible to any landlords for the rents of their tenants?-No.

13,008. Do you, in point of fact, sometimes pay the fishermen's rents for them?-Yes, to Mr. Bruce of Sumburgh.

13,009. That is to say, the fishermen, instead of getting the money from you, have the amount of their rent entered in their accounts, and you pay the whole in a cheque to Mr. Bruce?-Yes; but in some cases I give the money to the men.

13,010. How do you pay it to the landlord when it is paid by you to him?-I just give Mr. Bruce a cheque for the whole when it is collected together.

13,011. How many men's rents may you have paid in that way last year?-I think about six. I gave money to the others, and they handed it to Mr. Bruce themselves.

13,012. Is there any arrangement with the landlord that you should do that?-None.

13,013. Does he sometimes apply to you for the rents of particular men?-No.

13,014. Do you sometimes buy cattle?-No.

13,015. Do you buy eggs?-Yes.

13,016. Do you pay for them in goods?-Yes.

13,017. Have you two prices for them, as they are paid in goods or in cash?-No. If the people did want cash I would not like to give them so much in cash as in goods, because it is cash that I look for in return.

13,018. But I suppose you are never asked for cash payment for eggs?-Very seldom.

13,019. What is the price of meal at your shop just now?-I think Scotch meal is about 5s. a quarter, or 20s. a boll.

13,020. What was it in the summer of 1870?-I don't remember.

13,021. What was it last summer?-I think it was about 5s. or 6s. up or down, according to the market.

Boddam, Dunrossness, January 26, 1872, JAMES SMITH, examined.

13,022. You are a merchant and fish-curer at Hill Cottage, Sandwick?-I am.

13,023. Your shop is near that of Mr. Tulloch?-Yes, next door.

13,024. You have heard his evidence?-Yes.

13,025. Do you conduct your business in the same way?-The very same.

13,026. How many boats do you employ?-I had about twenty last summer.

13,027. What did you pay for you fish then?-8s. 9d., and I understand the current price of the country has been 8s.

13,028. Have you paid 9d. more than the currency?-Yes, on ling.

13,029. Did you pay as much higher a price for cod and tusk?- No. We paid 7s. for cod and tusk, and I understand the current price of the country has been 6s. 6d. We paid 4s. 3d. for saith, and I understand the current price has been 4s.

13,030. Do you generally pay as much above the current price as you have done last year?-No, not as general thing.

13,031. Can you assign any reason for your price this year being so much higher?-No, I cannot assign any particular reason.

13,032. Is it not in order that you may get as many fishermen as you require?-The great reason is to try to please the fishermen as far as possible; and in our quarter they are very bad to please.

13,033. Why do you want to please them?-To get them to fish for us. We are anxious to have as many fishermen as possible. There is one thing which enables Mr. Tulloch and I to pay somewhat higher prices than the currency; which is, that our curing places are very near to ourselves, and we can always see the curing carried on, and can cure cheaper.

13,034. Do any of the fishermen in your district cure for themselves?-Yes.

13,035. Do you buy from them?-Sometimes. They sell to us if they choose.

13,036. Do you think the fish which they cure are as good as yours?-Not unless they have a factor. When they cure them by their own hands they are never so good.

13,037. What do you mean by them having a factor?-A man set over the fish to look after the curing of them, the same as I have.

13,038. Do the fishermen who cure for themselves have a factor?-Yes; the men at our place have a man to whom they pay so much per ton per every ton of dried fish which are produced.

13,039. In that case, where the fishermen agree to employ a factor, do you think the curing is as well done as it is by you?-It is, when they get an experienced man for the purpose.

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13,040. In that case do the men club together in order to buy implements, vats, and other things for curing?-Yes.

13,041. It is it sort of co-operative system?-Yes.

13,042. Do you do anything in hosiery?-No.

13,043. Do you buy eggs, and pay for them in goods?-Yes.

13,044. Are the prices of the goods in your shop the same as in Mr. Tulloch's?-They are generally the same.

13,045. What is the price of meal at present?-Scotch oatmeal is 20s. a boll, or 5s. a quarter; Shetland meal is only 3s. or 3s. 6d.

13,046. Is the Shetland oatmeal of much inferior quality?-As a general thing, it is much inferior. There is not much of it sold. The people generally use their own meal, and it is much to be regretted that they require a great deal more than what they can grow.

13,047. Do you think you could manage to pay your people, without much inconvenience, as the fish are landed?-I think I might manage that, but I don't think it would be for the public good. In the first place, the fishermen would not be able to get the fishing articles and the quantity of meal they require before the fishing commenced, because they would not have money to pay for them. Another reason is, that if they had the money they don't very well know how to manage it, and it would be spent before rent time came. Then, if they had no money, the landlord would have to go and take their corn or their cattle and roup them in order to get his rent, and the people would be losers.

13,048. Do you think one advantage of the present system is, that it carries the men through a bad year?-Yes. Last year we had a very good fishing, but the majority of them had their rents to get. For as few fishermen as I have, I had to advance them in order to help them to pay their rents.

13,049. Do you sometimes pay their rents for them?-I do so, as a general thing. It is expected that the fish-merchant will not see them at a loss; but, of course, if a ready-money system was introduced, they could not look to the fish-merchant for any help.

13,050. Why should they not look to him then?-If I only had the men engaged from voyage to voyage, or from week to week, and did not have the advantage of knowing that they were to fish for me next year, it could not be expected that I would advance them £140 to help them in paying their rents for this year.

13,051. But perhaps they would not need it if they were in the habit of getting their money?-In my opinion, they would need it more than they do now.

13,052. Have not other people than fishermen sometimes to pay rents?-Yes.

13,053. And they manage to have it in hand when the rent day comes?-Yes; but these people, as a general rule, have bigger farms, and cattle and ponies that they sell, and that helps them on with their rents.

13,054. But there are rents to be paid by people who have small farms, or no farms at all; and if they manage to gather up for their rent day, might not the fishermen do so as well?-They might do so; but in our quarter-and I can only speak for it-the great majority of the people have enough to do when there is a good season, and when there is a bad one they are far short.

13,055. Then I suppose the reason which you are now assigning for keeping up the present system is rounded upon your opinion, that the people of Shetland are less careful and less sensible than people of the same class in other parts of Scotland?-I don't believe they are less sensible than the fishermen or men of the same class elsewhere. I believe there are as competent men in Shetland, as a general rule, as in any other part of Scotland; but the fishing is a very fluctuating piece of business, and I think that very often they could not manage to save up money for their rent if there was a cash system. Of course there are differences among them. There are some men in our quarter who are laying past money, while there are others who are overhead in debt, in spite of all that can be done for them.

13,056. I understand you have been frequently at Fair Isle?-I think it is about six or seven years since I was there last, but I was very often there before. I had a small vessel of my own, and I went to the Isle to barter goods with the people. I bartered them for cash, not for fish.

13,057. Did you go there every year for some time?-I went three or four times in some years, and I continued going for seven or eight years.

13,058. Did you go as a private speculation of your own?-Yes.

13,059. What kind of goods did you take?-Tea, sugar, tobacco and cottons.

13,060. Was there any particular reason for giving up that trade?- No; I was getting tired of it.

13,061. Did you find it a hazardous sort of thing?-It was very much so: I ran many a risk of losing my life. It was an open vessel, without a deck, that I went in, and in the winter time the coast there is very dangerous.

13,062. Was the market open at that time at Fair Isle?-Generally in the winter time it was.

13,063. Was it not open in the summer time also?-Not so much, because the man who had it in tack generally supplied the fishermen at that time with their stores and meal. I made one or two trips there with meal, because the people sent for me to bring it, as their master could not get their meal forwarded so quickly from Orkney as they required it.

13,064. Who was the tacksman then?-John Hughson from Orkney.

13,065. Have you been there since he ceased to be tacksman?- Never.

13,066. Was your trade with the Fair Isle people objected to by him?-He never objected to me.

13,067. Did he object to any one else?-Not to my knowledge.

13,068. Then you could trade with the people as much as you pleased?-Yes; there was no restriction whatever. I very often spoke with Mr. Hughson himself.

13,069. Did you stop at the time when Hughson ceased to be tacksman?-I was almost giving up the trade before he ceased to be tacksman. His time was not quite run out the last time I was there.

13,070. Who succeeded Mr. Hughson as tacksman?-Mr. John Bruce, jun., of Sumburgh.

13,071. You have not been there since he became tacksman?- Never as a trader. I was there once when a ship was wrecked on the Seil. I have made a mistake there: I have been once at the island trading since Mr. Bruce bought it, and I had full liberty from him to go.

13,072. Did you get express permission from him?-Yes.

13,073. When was that?-I don't remember; it may have been four or five years ago.

13,074. Why did you ask permission?-He wished me to go in with goods to the people, and I told him I did not like to go with freight there unless he would allow me to trade for myself; and then he gave me full liberty.

13,075. Was Mr. Bruce not sending a vessel of his own at that time?-He could not get a vessel to go. It is such a nasty coast for inexperienced men, that it is difficult to get men to venture there.

13,076. You agreed to go only on condition that you had the trade in your own hands?-Yes; and I had his freight in the meantime.

13,077. Did you understand at that time that you were not at liberty to trade with the Fair Isle people without Mr. Bruce's permission?-I did not understand anything about it. He only asked me to go with freight, and I asked him if I would be at liberty to trade with the people myself, and he said I would.

13,078. Did he not say that it was only for this special occasion that you were to have liberty?-He did not.

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Boddam, Dunrossness, January 26, 1872, 1872 JOHN HALCROW, examined.

13,079. You are a fisherman at Levenwick?-I am.

13,080. On whose property is your ground?-On that of Mr. Bruce of Simbister.

13,081. Was that ground formerly under tack to Robert Mouat?- Yes. His tack expired about a year ago; but before that, he had become bankrupt.

13,082. Were you bound to fish for him?-Yes.

13,083. Were you also obliged to deal at his shop?-No. I had a little money of my own, and I went to any merchant that I thought I could get the best bargain from.

13,084. Did you go to Mouat for a good bargain?-No.

13,085. Why?-Because he never had good bargains. The quality of his articles was not good, and the price was dearer than that of any merchant in the neighbourhood.

13,086. Were many men in the habit of dealing with him?-Mr. Bruce's tenantry both in Channerwick and Levenwick were bound to fish for him.

13,087. But did they deal with him for shop goods and provisions?-Yes, almost all of them dealt with him.

13,088. Why?-Because they were bound to do it.

13,089. Were they bound to deal with him for shop goods?-The fishermen were. They were required to go to him with all their produce, meal, ponies, and eggs, as well as with their fish.

13,090. But they were not bound to buy their goods from him?- No; but they had to do so, because he received all their produce, and they could not go anywhere else. They had no money.

13,091. Would he not give them money for their produce?-Yes, for such as cattle he would. But it was very few of them who had any money to get from him.

13,092. Why?-Because they were bound to fish for him, and he received all their fish.

13,093. But if he received all their fish he would have to pay them money for them?-It was very hard to get it from him.

13,094. Did he prefer to give them the price in goods?-Yes, if they would take it.

13,095. And did they take it in goods?-Not very much.

13,096. Why?-Because they were not very good.

13,097. Then they would have money to get, at the end of the year if they did not take very much in goods?-Yes.

13,098. Did they get the money at the end of the year?-No. He said he did not have it to give them.

13,099. Then they did not get their money at all?-In some cases they got it.

13,100. But some of them did not get it?-Yes.

13,101. And some of them did not get goods either?-Yes; they would not take his goods.

13,102. Then did they go without either money or goods?-Yes.

13,103. Was that often?-I have had to do it myself.

13,104. When was that?-In 1870. He said he had no money to give me.

13,105. Was that at settlement?-Yes. He had the tack for two years more at that time, and he gave me a receipt for the rent of 1871. Then he failed; and I had to pay my rent for 1871 over again to Mr William Irvine.

13,106. Why did you give Mouat your rent for 1871 nearly two years before it was due?-Because I thought he was to have the tack for two years more.

13,107. But it was your own fault, was it not that you had to pay it twice?-I don't know about that.

13,108. Could you not have got the money from Mouat?-No. I would have had to apply to the civil law to get it.

13,109. You could have got the value of it in goods from him?- Yes. I could have got it in goods; but they were of an inferior quality, and I did not want to take them. [The witness produced a receipt for the rent of 1871 from Mr. William Irvine, and also receipt from Mouat in the following terms: '£5 MOUL, 13<th Jn>. 1871. ' This is to certify that I have from Thomas Halcrow the rent of 1871 in my hands. ROBT. MO.']

13,110. Is that Mouat's signature?-Yes; it is what I got from him.

13,111. Did you see him write it?-I did.

13,112. Do you know any other men who paid rent to Mouat in the same way?-I don't know of any others who paid him in that particular way, but I know some men who had money in his hands.

13,113. Was John Mouat one of them?-Yes. He had money in Robert Mouat's hands by the fishing.

13,114. Was he not able to get his money at the settlement of 1870?-No. I know that he could not get it.

13,115. Do you know anything about that except that he could not get it?-No.

13,116. You have another document in your hands: what is it?-It is a copy of our account from Mr. Smith for the fishing.

13,117. Do you get a copy of your accounts from Mr. Smith at every settlement?-Yes. I have only settled with him one year.

13,118. This is an account for two men; and it shows the prices you got in 1871,-ling 8s. 9d., cod 7s., tusk 7s., and saith 4s. 3d.?-Yes.

13,119. Did you get all that in cash?-Yes, except what I had received in cash before. I had received a little cash in the course of the summer. I had got no advances from him in goods, because his shop was so far from where I lived.

13,120. Why are the two men's accounts in the same slip of paper?-Because there are five of us who go in one boat; and three men agreed to fish for Mr. John Robertson, jun. and two for Mr. James Smith.

13,121. Whose boat was it?-James Gilbertson was the skipper; and the boat belonged to the men.

13,122. Is it a usual arrangement, that part of the crew fish to one merchant and part to another?-No.

13,123. How did it happen in this case?-Because we wanted our liberty. We did not want to agree to fish for Mr. John Robertson.

13,124. Would you not have been at liberty if you had fished for Mr. Robertson?-Our reason for not fishing for him was because Robert Mouat called all his tenants to the Moul, and ordered them to agree to fish for Mr. John Robertson for him two rising years.

13,125. Was Mr. John Robertson Mouat's trustee in his sequestration?-Yes.

13,126. Some of you declined to fish for him, and others engaged to fish?-Yes.

Boddam, Dunrossness, January 26, 1872, GILBERT IRVINE, examined.

13,127. Are you shopkeeper at Grutness to Mr. John Bruce, jun.?-I am.

13,128. Do you also act as factor on the estate?-I don't know that I could be called a factor exactly. I just do things about the estate as Mr. Bruce wishes me.

13,129. But you are sometimes employed as, a factor or overseer going about the estate?-Yes, at times.

13,130. Are you aware that the tenants on the Sumburgh estate in Dunrossness parish are under tack to Mr. John Bruce, jun., and are bound to deliver their fish to him?-It is understood that they are to do so, but some of them don't do it. There are some of them who have not fished for Mr. Bruce, and are not are very doing so at the present time; but these are very few. The general understanding is, that they are to deliver their fish to him.

13,131. How long have you been at Grutness?-About twenty-three or twenty-four years.

13,132. I believe it was about 1860 that Mr Bruce took the tack?- Yes.

13,133. How were you employed at Grutness before [Page 325] then?-I was there for Messrs. Hay & Co. They had the shop there formerly, and some of the men belonging to that estate were employed by them as fishermen.

13,134. Do you remember intimation being made to the tenants about 1860 that they were expected to fish for Mr. Bruce?-Yes. I think there was some person sent round with a letter to that effect, but I did not see the letter.

13,135. However, you know that such an intimation was made?-I understood so.

13,136 Do you remember, a good many years ago, of one James Brown at Toab selling some fish to Robert Leslie?-I don't remember about that at present.

13,137. Do you remember of James Brown's farm being advertised to be let at the shop, a ticket being put up there?-I don't remember about that.

13,138. May it have happened, although you do not remember?- It is possible it may have happened; but I don't remember anything about it at the present moment.

13,139. Can you say that such a thing did not happen twelve years ago?-I think James Brown had not got a farm twelve years ago.

13,140. Perhaps it was his father?-I never knew his father. I think his father was dead before James Brown came to the parish.

13,141. Do you remember any case of a farm being advertised because the tenant had sold his fish, or attempted to sell them, to another merchant?-I do not remember any case of a farm being advertised for man selling fish. The tenants have been reproved for doing so; but I cannot remember of any farm being advertised for that.

13,142. Have you spoken to them about doing such things?-Very likely I have.

13,143. Do you know one Thomas Aitken?-Yes.

13,144 Do you know whether he had to sign a paper agreeing to fish for Mr. Bruce so long as he lived on the ground?-I did not see the paper.

13,145. It was not through you that that was done?-No.

13,146. Was there any special arrangement with him about fishing?-I don't remember anything about it. If there was such an arrangement, it would be with Mr. Bruce.

13,147. You say you have sometimes reproved the tenants for selling their fish to others?-Yes. There have been some seasons when, from the end of October until May, they delivered none at all, or not more than perhaps one cwt. or so. I believe most of them have not delivered more than that during the whole time.

13,148. But that was their winter fishing?-Yes.

13,149. Have you said to them that they ought to deliver some of their winter fish to you?-I told them, even last year, that if the proprietor was aware that they were selling all their fish to other merchants, he would be offended at them, or something to that effect.

13,150. Had that any effect?-Not much.

13,151. They did not bring their winter fish to you?-No.

13,152. Would it be as convenient for them to bring their winter fish to you as to another?-Mr. Bruce had a station at the beach head, and a factor, who was paid all the season round, for taking fish, and salt and everything ready for them, but they would not bring them to him.

13,153. Where did they go with them?-I don't know, I suppose to the merchants round about.

13,154. Did they go to Messrs. Hay & Co., or to Quendale?-I could not say where they went.

13,155. Why did they not choose to come to you?-I don't know. It is a general practice in Shetland, that tenants fishing for landlords try to do as much trade with other merchants as they can.

13,156. What has been their reason for that practice?-I think the fact that they fish for their landlords has created a kind of feeling that they are rather in bondage.

13,157. And they like to have their liberty in winter?-I think their feeling is, that they don't like the proprietor to know all their transactions. That has been a practice in Shetland for a long time, both in the north and the south.

13,158. Have you had occasion to reprove the tenants for carrying off their fish or smuggling them to other merchants in summer?-I think I have done so once or twice. I remember on one occasion seeing a boat coming from the sea to land their fish. I counted the fish they had in the boat; I don't recollect the number, but they were not all brought to the store. I made inquiry about that, and found that some of the fish had been taken to other merchants; but I never told Mr. Bruce about it.

13,159. Your settlements at Grutness are made every year?-Yes, once a year.

13,160. What is the usual period at which the settlements are completed?-In some years Mr. Bruce has begun towards the end of January; but last year, on account of him being out of the way, and me not having the accounts ready, the settlement went on as late as April.

13,161. Are the balances of these settlements always paid in cash?-Yes; they are readily paid. Mr. Bruce always did that.

13,162. Do you sometimes make advances in money to the men in the course of the summer?-I do not make these advances. Mr. Bruce sometimes does so and when at settlement some of them are in debt, he gives them money in advance. It very seldom happens that a man, even when he is in debt at settlement, will not ask him for some shillings, or for £2 or £3, and he always gives it to them, although they have no money to get, but have been in his debt for some time.

13,163. Do the men run accounts at your shop at Grutness as they do with other merchants, for the purpose of supplying their families and of getting supplies for the fishing?-Yes; what they get is chiefly meal and hooks, and things of that kind. We do not do much in dry goods.

13,164. Except outfits for the fishermen?-Yes, except what we cannot avoid giving them.

13,165. At what time of the year are your transactions with the fishermen largest?-In summer. While the fishing is going on, our place is very busy.

13,166. Is that the season when the meal of the fishermen themselves is exhausted?-Yes. I have seen in bad years, when there was a poor crop in Shetland, that they had to get meal supplied to them so early as February; but for 2 or 3 years back the crops have been better, and most of the men have carried on till April or May without requiring any advances of that kind.

13,167. Then your principal sales of meal are in the summer time?-Yes. We seldom do anything in it after the crop has been got in, except perhaps in the case of a person who has had a very poor crop, or no crop at all, and then we may give him some.

13,168. The quantity of meal which each man gets is entered in the ledger account in your book at the time that he gets it?-Yes; we just keep one ledger account.

Sometimes the meal is marked on slips of paper or in a little book when I am out of the way, but I try to enter all these things in the ledger daily.

13,169. But they are all entered in the ledger account, although there may be some little delay in entering them?-Yes; every person has all his dealings entered in one account.

13,170. I understand, from what I saw in the books last night, and from what you mentioned to me, that you don't fix the price of the meal when it is given out?-No. I don't know yet the current price of bear meal for this year.

13,171. At first you only enter the quantity that is given out?- Yes.

13,172. And the price of the meal is fixed at settlement?-Yes, or some time before it, in order that I may get the account extended and added up.

13,173. In what way is the price of the meal fixed for the year?-It is generally taken on an average. In 1870, for instance, which is the last year for which there has been a settlement, meal was pretty low in [Page 326] the spring, varying from 18s. to 19s. per boll, and it rose during the season until it was somewhere about £1, if not above it. These changes frequently take place in the markets; and in fixing the price for a particular year, we generally make an average of the prices from first to last. If we were not to do that, then it might chance that the poorest people might get the whole of their meal at the dearest price, or when the price of meal was highest; but the way in which we take it makes it more equal over all.

13,174. Do you take the average according to the whole quantity of meal which you have sold?-Yes. We add up the total amount of meal sold, and the prices per boll which the meal has cost. I don't do that, but I believe that is the way in which it is done. It is generally done by Mr. Bruce himself, but I have a general understanding about it. For instance, if 20 bolls cost a certain figure, and 30 bolls cost another figure, if we add the amounts together, and take the average of the whole, we know what to sell it for. That is the way in which I would do it, and I believe it is the way in which it is done.

13,175. You first strike the average of the wholesale price, and then you allow a certain amount of profit upon that?-Yes. We include the expense of bringing it here, and then we make an average price accordingly.

13,176. Do some of the fishermen who deal at your shop have pass-books?-Very few; but I think a great many of them keep accounts themselves. I never saw many men settling who did not know what quantity of meal they had had.

13,177. Have you sometimes objected to the trouble of keeping pass-books for the men?-I don't recollect doing that, but I might have said that it was vexatious. I think there were two or three cases in which I was anxious that the people should have pass-books, and I began them with them. They came with them for a certain time, but then they would come without the book, and that confused me altogether. However, I never was very much asked to keep pass-books for them, and the fact is that it would have been almost out of my power to have attended to them. I am frequently out of the shop, and there are days when the men are coming ashore in large numbers, on

which we could scarcely have time to mark down the meal.

13,178. Have you a fixed day in the week for giving out meal?- We have had a fixed day for some years back. Formerly we had no particular day, but we could not get them to understand the quantity of meal that was to be disposed of; and as there are some people to whom we only allow a certain quantity of meal per week, we have found it better to fix a particular day on which they are to come for it. People who have credit, or who have money in Mr. Bruce's hands, can come any day and get what they please, so that there are scarcely any days in the week when some is not given out; but the bulk is given out on a particular day, generally on a Friday.

13,179. You said just now that certain people had to be restricted to a given quantity of meal: are these people who are in debt?- Yes, and people who have been in debt. If it had not been for that restriction, there are some people on the estate who were in debt not long ago, and who would still have been in debt.

13,180. I thought it was because they were in debt that you restricted them?-No; we restricted some because they might have got into debt. We just gave them an allowance sufficient to support them through the week; but if we had given them more, or given them what they wanted, they would have taken double the quantity. These, however, are only a few individuals; in general the people are much more careful.

13,181. When you put parties on an allowance in that way, are they generally people who have had a balance against them at settlement the year before?-Generally they are. Some of them may have been in debt £8 or £10, and some as high as £20, and it is these people we put on an allowance in order to try to keep them going.

13,182. Do people who have no balance against them, and who can get an unlimited supply of meal, come to you on Fridays along with the rest?-Sometimes, and sometimes not; they just come as they choose.

13,183. Do they frequently not come to you at all for meal?- There are few of them who don't come for meal; but the greater part of the men at Dunrossness are generally in good circumstances, and have the command of money, and they generally buy their meal in Lerwick, or where they can get it cheapest.

13,184. In looking at your books last night, of course I did not find the prices for meal entered for the year 1871?-No.

13,185. But I saw that a lispund of bear meal in 1870 was charged at 4s. 6d.?-I think the lispunds were 4s. 4d., and the quarter bolls 4s. 6d.

13,186. I noticed also that you sometimes charged what you call a lispund at a different price?-Yes; when we break a boll and sell it in quarters, we generally call it a lispund. Sometimes two or three men may get a boll and divide it among themselves, and it is generally charged to them as lispunds. That accounts for the lispund sometimes being charged at one price and sometimes at another.

13,187. When you do actually weigh out a quarter boll, you charge it at 4s. 6d.?-We seldom weigh that out. They take the boll and divide it among themselves; we seldom

weigh it.

13,188. When the prices are not entered until the end of the season, how do you know whether to charge for a quarter boll or for a lispund, when you have put it in your book in the first instance as a lispund in both cases?-I had slips of paper or a little pass-book, and when we gave the meal out we had a line for the boll weight and a line for the lispund.

13,189. What is done with the lines?-We have some of them yet.

13,190. Do you file them?-No. We rule the small pass-book, and have a place in which we enter the lines, so many for lispunds, so many for bolls, and so many for quarter bolls, or whatever it may be.

13,191. Do you call that book the weighing-book?-Yes. It is generally only part of the meal that is entered there.

13,192. When you are putting in the prices at the end of the season do you go over all the entries in that book, and all the entries in the ledger account as well?-There is a great deal of the meal that we never keep any slips for, but just enter it direct into the ledger and we know which of these people are getting lispunds, and which are getting quarter bolls.

13,193. How do you know that?-At the beginning of the season we know quite well the people we are giving the meal to regularly, and those who just get it as they come.

13,194. Are there certain people who always get it in lispunds, and others who always get it in quarter bolls?-Yes.

13,195. And you know which is which?-Yes, because the people who get it regularly generally get it in lispunds; and sometimes if we give them a boll or half a boll, we mark it in the ledger at once.

13,196. Then you say that bear meal in 1870 was charged at 4s. 4d. per lispund, and 4s. 6d. per quarter boll?-I think so.

13,197. And a lispund of oatmeal in 1870 was 5s. 6d.?-I think it was 22s. per boll, or 11s. 6d. per half boll, but I cannot say exactly. I think the price per lispund was 5s. 4d.

13,198. Then the entry which I noted of half a lispund of oatmeal in 1870-2s. 9d., would be for one half of a quarter boll?-I would suppose so; but I could not be sure about that unless I saw the entry.

13,199. But although you saw the entry, that would not help you?-It would not, but I could not say anything positive about that.

13,200. I received this piece of half-bleached cotton from you [showing], which you sell at 41/2d. a yard?-Yes.

13,201. Also this piece [showing], which you sell at 8d.?-Yes.

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13,202. And this piece of shirting [showing], which you sell at 1s.?-Yes.

13,203. These were all got from J. & W. Campbell, Glasgow?- Yes.

13,204. You sell your tobacco at 4d. per oz.?-Yes. We have two kinds, both sold at 4d. or 15d. per quarter lb.

13,205. Is that the price, whether it is entered in the account or sold for cash?-We very seldom sell for cash, but the price is the same in both cases.

13,206. Do you not take cash in the shop at all?-Yes, we take it if we get it; but we never have the chance of getting much of it. We get a few shillings occasionally. I don't think we get so much cash in the course of the year as will pay for postages.

13,207. That shows that your business is entirely for the supply of your own fishermen?-Entirely; and Mr. Bruce was never inclined to increase the trade as a shop trade. It is only to accommodate the fishermen that the things are kept.

13,208. That is to say, it is to accommodate those who do not have money with which to go elsewhere?-Yes. The men, on coming ashore, do not have time to go for lines and supplies to some other place; but it would be better for Mr. Bruce and the whole concern if there was no store there at all.

13,209. Do you mean to say that there is no profit on goods?- There is a profit on the goods, but the shop cannot pay the people that have to attend to it.

13,210. Are you paid by salary for your attention to the shop, or have you an interest in the sale of the goods?-I have no interest in the sale of the goods at all.

13,211. You sell your 2-lb. lines for 2s. 2d.?-Yes.

13,212. You sell your best sugar for 6d.?-Yes. During the summer, until the end of the season, it was 61/2d.: but now they get sugar of the same kind for 6d.

13,213. You purchase it from Greenock-two cwt. at a time?-I cannot exactly say where the last sugar came from. We had an agent in Glasgow to buy it from Greenock, and I understand he did so.

13,214. I observed an entry in December 1871-1 lb. sugar, 6d.: was that the best?-Yes. That was part of the last sugar we broke up.

13,215. That sugar was invoiced to you on 14th September 1871?-I think so; but the sugar had been higher in the course of the year.

13,216. What was the price at which sugar sold in your shop in 1870?-I think it was 61/2d., because the price of sugar was higher then. We had the finest sugar in 1870 as high as 7d., but never above that.

13,217. Do you keep only one kind of sugar?-No, we have more than one kind. It is not always alike. We have two different kinds of sugar.

13,218. I show you an invoice dated 12th May 1870, 1 cask sugar 2 1 25 18 2 1 7 at 42s. 6d. £4, 18s. 4d. Grutness shop debtor, £6, 1s. 41/4d.

At what price did you sell that sugar per lb.?-I think it was 61/2d.

13,219. What would be the freight of it from Greenock to here?-I could not say. I think Mr. Bruce keeps the freight accounts.

13,220. The sum of £6, 1s. 41/4d. is entered against the shop: is that the sum you were to realize by the sale of that sugar?-Yes.

13,221. Or does it merely indicate the price and the expenses, leaving you to fix the selling price yourself?-No; I think that is what was expected to be realized, and all expenses and inlake have to come off that. I think that is the net sum that must be realized after expenses and inlake.

13,222. Was there no more than that realized from the sugar contained in that invoice?-I could not say. I have not tried that particularly.

13,223. You have shown me two invoices of meal, one August 12th, and the other August 23d, 1870, from Jonathan Mess; one for 10 bolls oatmeal at 19s., and the other for 15 bolls at 17s. 9d.: I suppose the difference in price between these two is to be accounted for by the variation in the market price at that time?- Yes.

13,224. Was that meal which you got in August the dearest purchase of the year?-I don't remember.

[Produces invoices, showing the following purchases in 1870:- April 1, 25 bolls of oatmeal at 15s. " 1, 1 " " " 15s. " 22, 20 " " " 15s. 6d. June 3, 40 " " " 16s. 3d. " 14, 60 " " " 16s. 3d. Aug. 12, 10 " " " 19s. " 23, 15 " " " 17s. 9d.

Those are the prices at Aberdeen, exclusive of the cost for bags, which were charged separately.]

13,225. Was that the whole supply of meal for 1870?-Yes.

13,226. Had you a stock in hand at the beginning of the year?- None.

13,227. I think you said before that you had very few sales before April?-Yes; we do very little in meal before the fishing begins.

13,228. What quality of oatmeal is contained in these invoices?- It is meal ground entirely from Scotch home-grown oats. A great part of the meal that comes to this country is grown from foreign oats, and is not nearly so good, and it can be bought far cheaper.

13,229. Was the oatmeal of the best quality which you sold for 5s. 4d. per lispund, or 5s. 6d. per quarter boll?-Yes.

13,230. Do you know anything about the freights from Aberdeen?-I think Mr. Bruce will be better able to speak to that than I can.

13,231. You get your tobacco from Mr. Henry Christie, Edinburgh?-Yes.

13,232. Have you charge of the despatch of goods to Fair Isle when they are required?-Yes. When the vessel is going I supply the man's orders if the things are in Mr. Bruce's shop. At times we have to buy trifling things at other shops to supply the people with.

13,233. I noticed in your Fair Isle order-book an entry of 2 cwt. soap ordered from Hedly & Co., Newcastle, on 30th August 1871: at what price would that be retailed in Fair Isle?-At 6d. per lb.

13,234. Have you the invoice price of that?-No, not in 1871: but it was very similar to the price in 1870. We generally got the finest extra pale brown soap. [Produces invoice of 18th August 1870, showing the price of soap at that time to be 28s. per cwt.]

13,235. In the same order-book there is an entry of 4 cwt. soft sugar, ordered on 30th August 1871 for Fair Isle: at what rate would that be sold there?-If it is the same quality as ours, it would very likely be sold at 7d.; it would be at least a halfpenny dearer in Fair Isle, to cover the expense of freight.

13,236. But you don't know what was the quality of sugar that you sent to Fair Isle in August 1871?-No; we never break up the casks, but the quality ordered would be the same as the common brown which we order for ourselves.

13,237. Are the whole supplies to Fair Isle furnished by Mr. Bruce?-He generally furnishes what is ordered by the factor.

13,238. Do you know whether the factor has instructions to prevent any one else from trading with the inhabitants?-I don't think he has very positive instructions on the subject, because he could not prevent it. Mr. Bruce and I were there this year, and at that time two vessels came to trade. We saw them there, but could not prevent them. One pretty large sloop came down from Westray, belonging to a man called Luggie; and Rendall came also and traded during the whole night when I was asleep. We did not know that he was doing anything until he was under weigh, and when the vessel was off we saw that he had half-a-dozen cattle on board. Rendall goes from house to house [Page 328] on the island, and trades with the people just like a hawker.

13,239. Are the inhabitants prohibited from selling their cattle to Rendall, or to any other outside trader?-I think they were made aware that Mr. Bruce wanted the preference of the cattle from people who were in debt; but it is generally those individuals who are in debt who try to slip off their cattle in that way when they have a beast to dispose of. The people who are well to do on the island give Mr. Bruce the preference willingly.

13,240. Do you purchase cattle for Mr. Bruce?-Merely in the way of business. He was in the south when the public sales took place this year, and I and his grieve did purchase a few beasts for him. Our only object in doing so was to keep up the sales, so that the tenants might get a better price for their cattle.

13,241. Like other merchants in Shetland, does Mr. Bruce purchase a number of cattle for re-sale?-No: he never drives a trade of that kind. He has four cattle sales in the year, and he buys his cattle generally at these sales: which have been the means of keeping up the price of cattle in this end of the country ever since he began them.

13,242. Are cattle frequently taken by Mr. Bruce in liquidation of a debt due by a tenant?-Those tenants who are in debt, and who have cattle, are generally requested

to bring them to a public sale.

13,243. When a man is in arrear, is he asked to do that?-Yes, when he has a beast to dispose of. These are Mr. Bruce's instructions.

13,244. Do you recollect one Thomas Wilson in Fair Isle being forbidden to sell a cow to Rendall?-The factor may have forbidden him, but, so far as I know, neither Mr. Bruce nor I did so.

13,245. Did you know of a cow of Thomas Wilson's being brought over and sold here for £4, 1s.?-Yes. I remember that transaction quite well, for he wanted me to buy the cow for Mr. Bruce; but I thought as he had come out of the island with her himself, the best way to give him a fair chance of selling his cow was to allow him to take her to the public sale and put her up to auction. He said he had had an offer of £5, 10s. from Rendall, but I said I did not think the animal was worth it.

13,246. Do you think he was really offered £5, 10s.?-It was £4, 10s. he said he was offered, and Mr. Bruce of Vinsgarth bought the cow for £4, 1s. at the sale.

13,247. Then he only lost 9s. by not taking Rendall's offer?-Yes; and I only had his own word for it, that he had been offered that.

13,248. Are you quite sure it was not £5, 10s. that Wilson said he had been offered?-Yes, I am sure it was £4, 10s.

13,249. Did she not look like a cow that anybody would offer £5, 10s. for?-No: she was sold too high as it was. I bought far cheaper cattle than that for Mr. Bruce. When the cow was sold Wilson was quite satisfied with the price

13,250. Would you be surprised to hear that the meal at Grutness is very often sold at 4s. a boll dearer than the same meal had been got for in Lerwick?-I would be rather surprised at that. It cannot be the same quality of meal if that is the case.

13,251. Do you say that it is not the case?-I cannot say what they may sell their meal for at Lerwick. The men sometimes go to Lerwick with money, and bargain to get goods under the market price. I have seen that done, and a handle of that may be made in Lerwick.

13,252. Are you aware whether the tenants on the Sumburgh estate have been offered leases and refused them?-Yes.

13,253. If they had got leases, would they have released them from the obligation to fish for their landlord?-I don't think Mr. Bruce would have given lease of that kind unless he had raised the rents on his property, because it is on account of the fishing that he does not raise them as it is.

13,254. Do you understand that the farms are let at a lower rent in consequence of the men being obliged to fish?-Yes. I think Mr. Bruce would get higher rents if that was not the case.

13,255. Do you know whether these [showing paper headed, 'Rules for the better management of the Sumburgh estate'] are the rules that were laid down for the management of the property?-Yes.

13,256. I believe very few of the men have accepted them?-None at all, to my knowledge.

13,257. But that contains no obligation about fishing?-No; but the thing in it which the men object to is the last paragraph: 'Subject to the above rules, the landlord reserves right to take into his own hands any part of his estate at any time on giving the tenant legal notice.' The men object to that, and I think I would do the same if I was taking a lease.

13,258. Do you understand that if the men agree to these regulations they would be free from the obligation to fish, or is that obligation referred to in the clause, 'The tenant shall be bound to observe the rules generally in force on the property for the time being?'-Of course it would be considered that they would still have to deliver their fish to Mr. Bruce at the current rate of the country; but although they have no leases, there is no man who has been annoyed on the property since the young laird had the management of it.

13,259. Have you sometimes heard the men complaining that they only got lispund weight?-Sometimes they did, but sometimes when we had to give them pecks we could not afford to give more.

13,260. When you sell pecks do you charge boll price?-No, we charge it little beyond that; but if we retail meal out in peck weight we lose a great deal.

13,261. Supposing 5s. 6d. was the quarter boll price in 1870, what would be the price of a peck?-We would not weigh it out in that way.

13,262. What would be the price of a peck if it was weighed out? Would it be 1s. 41/2d.?-It would be somewhere thereabout; but there is not so much inlake [sic] in weighing out small quantities of meal as there is in other things.

13,263. But if you were selling a peck of meal when the price was 5s. 6d. per quarter boll, what would you charge for the peck?-I suppose it would be 1s. 4d.

13,264. That would be a 1/2d. less than the quarter of quarter boll?-Yes, I think I would charge about that.

13,265. Then is there any foundation for the statement of the men, that they only got lispund weight at the boll price when they bought it in pecks?-There might be but I could not say as to that. It might have happened in some cases.

13,266. But that would be intended to cover the loss in weighing out?-If we take a sack of meal and weigh it out in lispunds and pecks, there is a great inlake [sic] and often when the meal comes wet there is some of it lost in transport, and when it lies long there is a great deal lost in the stores by vermin and in other ways, and the inlake [sic] must be met in some way.

13,267. Do you always read over the accounts of the men to them before settlement?-Generally.

13,268. Do you check them along with the men?-Yes; and Mr. Bruce never enters the amount of their accounts until the men are satisfied with them.

13,269. You hand in the total amount of a man's account at the shop to Mr. Bruce in order that it may be entered in Mr. Bruce's own ledger for settlement with the man?-Yes. When Mr. Bruce begins to settle, the Grutness ledger is brought up to the office, and the accounts are added up and squared off. Mr. Bruce never enters a shop account in his ledger until he and the men agree that it is correct. Some of the men also have accounts of their own, and can compare every article as it is entered in the shop ledger.

13,270. Do you know what arrangements are made with the men about boats and lines?-There is no arrangement. They furnish their boats and lines for themselves.

13,271. Is that so in all cases?-Yes. If a man is not able to buy his boat, or when he is shifting, he [Page 329] goes to Mr. Bruce before the fishing season begins and gets an order for a new boat.

13,272. Is he expected to pay that up by instalments?-He is not asked for it until he settles matters at the twelvemonth's end.

13,273. But is there a fixed instalment payable each year by a term of years, or is it paid just as the man finds himself able to do so?- There are some men with money to get who would be able to pay up the whole price of their boat at the first settlement, or the greater part of the price. That is seldom the case, but I have known it to happen. Generally they get twelve months' credit, and at the end of the twelve months any money that is due to them is entered the same as cash to account in Mr. Bruce's books. Then if a man cannot pay his way altogether, the balance is carried on perhaps for several years.

13,274. How long is it before a boat that is purchased in that way is usually paid for? would it be three or four years, or more or less?-Of course it depends very much on the circumstances of the men. If it is a poor man who has generally been behind, he may have a balance this year against him, which may run on for half a dozen years always increasing, and his share of the boat may be in that balance.

13,275. You mean that his share of the boat may be very long in being paid, while the other shares may be paid up sooner?-Yes; but the expense of a boat is not very great. I don't think one of the boats we have would cost more than £3 for the whole affair-that is, the material we give the order for.

13,276. Do you mean to say that a boat for the longline fishing costs only £3?-The material of it does.

13,277. Do you not use the six-oared boats here?-They are beginning to use the six-oared boats now, but they are very expensive. There are two or three now. I think there were some before Mr. Bruce came to the place, and now for the last two years their use is becoming general.

13,278. Has the fishing been carried on entirely with the small boats hitherto?-Yes; and I believe the small boats in general make most money.

13,279. How many men are in each of those small boats?- Generally three men, or two men and two boys.

13,280. That is a different system from what prevails in other parts of Shetland?-There is no difference, except that our men make more money than they generally do in the north fishing, and there are no men in Shetland who have to incur less expense for sea material.

13,281. Do you engage any fish-curers?-Yes, for Mr. Bruce.

13,282. Is the fee fixed at the end of the year according to the result of the fishing?-No; it is generally fixed at the beginning; but when a heavy fishing occurs, we generally advance their wages a little.

13,283. Do these men and boys generally run an account at the store?-Very little. I was observing from the books, that one man had as high a fee as £10 last year, and £12 the year before, and this year I think he is to have £10 again; and I don't think he has an account of £1 in the book, or anything near it. All that he gets is a mere trifle; a few shillings up or down.

13,284. Do most of the people engaged in the curing get a large part of their earnings in money?-Most of them do. There is seldom a year when we do not have people from other estates curing for us. We get them wherever we can; of course at as low a rate as possible. They sign an agreement for the season, and then they are paid according to that agreement generally at Martinmas.

13,285. Are the tenants upon the estate bound to send their sons to the curing?-They are not regularly bound, so far as I know; but it is understood in the same way as with the fishing, that if a man has a son, and we can afford to give him as much wages as another, we are to get the preference.

13,286. Have you interfered with any boys going to other engagements, in order that you might have them for the curing?- There was one case of that kind last year, with the son of William Goudie.

13,287. Had he got another engagement?-He was not engaged. His uncle is manager at the station, and he wrote me saying that he boy could get £3, 10s. of wages from another party, and that we would not get him again unless we gave him that wage. That was far higher for a boy's wage than we were in use to give, and I told the boy to tell his father to come over and speak to Mr. Bruce or me about it. The father came over and told Mr. Bruce and me that the boy had been offered £3, 10s. and we distinctly told him that if we could not afford to give him the same wages, he was at liberty to go to any one he chose. I also said we could hardly believe that he had got such a rise, but I told him, and Mr. Bruce also said, that if he could get 1s. more we did not want the boy, and he could engage him to any one he chose. The father went home, but he thought that perhaps we would be displeased if he gave the boy to another, and the boy went to the store. He went with his own accord, and by his father's instructions, and remained the whole season. He was a very good boy, and when he settled with Mr. Bruce he gave him the same wages that he had stated, £3, 10s. The father was a tenant of Mr. Bruce's, but at first we could scarcely believe that the boy had got the offer of such a rise.

13,288. Do you believe now that he got the offer of such a rise?- Yes. The man was one of those who were examined in Lerwick, and that was his declaration, and I believe it to be true. There have been other cases where boys have not been interfered with when they had engaged with another party. Last year one of Mr. Bruce's tenants had a boy who was engaged with another party to cure fish, and he would not come to us at all, and there was nothing said about it.

13,289. Is there any expectation on your part that the men whom you employ in the fishing shall come for goods to your shop?- No. We would rather be clear of it. The only trouble we have in the matter is to keep some of them from coming too much to us. They want more goods than we are inclined to give them. We never lay in goods to induce them to come, while those who have plenty of money go to other shops, and perhaps never come to us at all. We never ask them to do so.

13,290. Do you think you would get as many and as good men to fish for you if you did not have the shop at all?-I think so. The principal advantage which the shop is to them is that when they are coming ashore they require fishing material, such as hooks, twine, lines, and other things, at the place where they land, and before they go to sea again. We endeavour to get the best of that material for them, because there are always a great many complaints made in Shetland about the quality of that material. Two or three years ago, when I was south, I went to two or three of the principal makers, and got hooks made on purpose for our trade. We pay 41/2d. per 100 for them to the manufacturer above what other merchants pay; and the other merchants sell their hooks at 2s. 4d. per lb, while we sell them at 2s. 6d., being a loss to us of 21/2d. upon every 100 hooks that we sell, over what is charged by our neighbours.

13,291. That is to say, you get 21/2d. less profit than other merchants do?-Yes. I also made arrangements for lines and twine being made specially for us in the same way. For 2-lb. lines, although we try to keep a better article, we charge only 2s. 2d., while I find that other parties charge 2s. 3d. for the same thing; and our articles are better, because they are made specially for us.

Boddam, Dunrossness, January 26, 1872, JOHN BRUCE, jun., examined.

13,292. You are a son of Mr. Bruce of Sumburgh, and you hold a tack from him of his property in Dunrossness?-Yes.

13,293. You have prepared a statement on the subject [Page 330] of this inquiry which you wish to appear as part of your evidence?-Yes.

[The witness put in the following statement.]

'The tenants on the property in this parish managed by me are at liberty to go to sea or to the Greenland or Faroe fishing, or to pursue any land occupation as they please; but if they remain at home and go to the home fishing, they are expected to deliver their fish to me and receive for it the full market value. This is one of the conditions on which they hold their farms and is, I consider, a beneficial rule for the fishermen. They must fish to some merchant, and as I give them as high a price as they could get from another, they are no losers, while I provide suitable curing and

fishing stations, and these stations of mine are the most convenient places for them to deliver their fish.

'I am obliged to keep stores at some of the fishing stations for the convenience of the fishermen, to supply them with fishing gear, groceries, and other things which they may require. But no fisherman is expected or wished to take anything from these stores unless it is his wish to do so.

'Any fisherman can get the full value of his fishing in money from me at any time if he wishes it. I have never once refused to pay a fisherman the full sum due to him in money. And, in fact, there are many cases in which fishermen take nothing whatever out of my stores, but receive the full value of their fishing in cash.

'I have also fishing for me fishermen who are not my tenants, and over whom I have no control; and these are treated in every respect the same as my own tenants.

'Prior to 1860 the tenants on the property managed by me were permitted to fish to any one they liked, and the people were very much in debt, both to the landlord and to the various merchants to whom they fished-and, for the most part, could not pay their rents.

'The debts to the landlord averaged two years' rents over the whole property.

'On account of the general state of bankruptcy, I was obliged to take the fishing into my own hands, and I consider the people now to be in a much more flourishing state.

'For the most part, fishermen are quite satisfied with having their accounts read over to them. But those fishermen who ask for copies of their accounts at settlement always get them, and the books are always open for them to refer to at any after-time.

'With regard to the prices charged at the stores, the goods I keep are in all cases of the best quality, and may be a little higher-priced than goods of the same description but of inferior quality, but I am not aware that anything is charged unreasonably high.

'NOTE.-The only grievance of which my tenants can complain is, that they are obliged to fish to me. This, I will endeavour to show, is no grievance at all, but an advantage to the fishermen.

'In looking over the whole of Shetland, it will be found that the most prosperous districts are those under the direct management of the landlords.

'Many of the fishermen in this country (as indeed many of the poorer classes everywhere) are unable, from want of thrift and care to manage their own matters in a satisfactory manner, and require to be thought for and acted for, and generally treated like children, and are much better off under the management of a landlord who has an interest in their welfare, than they would be if in the hands of a merchant whose only object was to make a profit out of them.

'A merchant who has no control over the fishermen, may, in some cases wish to get them and keep them in his debt, in order to secure their custom; but the case of a

landlord also a merchant is quite different. It is his interest to have a prosperous, thrifty, and independent tenantry; and he will use his utmost endeavour to keep them out of debt, and to encourage saving habits.

'I can see no reason why the fact of a man being a landlord should prevent him from being also a merchant and fish-curer; and if so, why he should not secure a lot of good fishermen by making it one of the conditions of occupancy by his tenants, that if fishermen they shall fish to him.

'The very fact of a landlord being a fish-curer would lead up to this, for tenants would naturally wish to stand well with their landlord, and other conditions being equal, would prefer to give him their fish.

'The same thing is done everywhere else. In Orkney, in many estates, the tenants are obliged to manufacture a certain quantity of kelp, and to deliver it to the landlord at a certain fixed price, which leaves the landlord a large profit.

'In many counties in England and Scotland, farmers are required to send their grain to mills belonging to landlords, and to perform certain services, such as cartage for the landlord, either free or at a low fixed rate. I can see no greater hardship in a Shetland landlord letting his farms to tenants who will fish to him, than in a south-country manufacturer letting his cottages to tenants who will work to him.

'There are, no doubt, many things in the Shetland system of trade which might be improved; but the system has been of long growth, and is so engrained in the minds of the people, that any change must be very gradual; a sudden and sweeping change to complete free-trade principles and ready-money payments would not suit the people, but would produce endless confusion, hardship, and increased pauperism.

'Under the present system, our small rentals and large population, our poor-rates are very high. But the landlords support a great many families which would otherwise be thrown on the rates.

'It is no uncommon thing, where a family is deprived of its breadwinner, for the landlord to support the family till the younger members grow up, and are abler to provide for themselves, and repay the landlord's advances.

'Abolish the present system suddenly, and I am afraid our poor-rates would become unbearable, and nothing would save the country but depopulation.

'It has never been the habit in Shetland to fix the price to be paid for the fish till after the fishing is over. Complaints have been made against this, and I do not defend the practice, but I believe it to be popular with fishermen; and I believe, on the whole, they receive more money for their fish under the present practice they would if an engagement at a fixed price was always entered into at the commencement of the season.

'If you ask a fisherman if he has a grievance, he will be sure to try and find one for you; but I do not believe that the respectable part of my tenants find it to be any grievance their being obliged to fish to me.*

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13,294. You have heard the evidence which has been given by Mr. Irvine?-Yes.

13,295. Has he explained correctly, so far as you have heard, the manner in which the business is carried on at Grutness?-His statement was substantially correct; but I could satisfy you on some of the points that he did not know about.

13,296. There was a question asked about a Thomas Aitken, whether he had signed any special obligation with regard to fishing?-I am not aware that he ever did. It would not be usual to make him sign any agreement with regard to that.

13,297. Was there any agreement signed with regard to the fishing when you were in partnership with Mr. Grierson?-None that I am aware of with regard to the men, and I know of no special agreement with Thomas Aitken.

13,298. Was there any agreement with any of the men?-No. The only persons who sign agreements are fishermen who do not belong to the property I manage

13,299. Are agreements signed with them?-Yes. In the case of a man coming to me for an advance of money, I occasionally make him sign an agreement to fish for the rising year, in case he may take the advance of money from me and then go somewhere else.

13,300. Do men from adjacent properties sometimes come to you for an advance in that way?-Yes.

13,301. Do they get advances from you in money or in supplies?- In money or in goods, but generally in money; and in these cases agreements are sometimes written out.

13,302. Do you remember James Brown being told by you the reason why his farm was advertised to be let?-Yes; but I am not very clear about the time.

13,303. Was it about ten or twelve years ago?-I don't think it was so long ago as that. There were two men, James Brown and William Irvine, at Toab; I either advertised their farms, or threatened to advertise them.

13,304. For what reason did you do that?-I am not very sure that I can recollect. I don't think it was for selling fish. I think it was for breaking some rule.

13,305. Was it not because he (Brown) had sold some fish to Robert Leslie, Messrs. Hay's factor?-I think not. I think it was for declining to assist to cure some fish in spring; but if James Brown swears it was for selling fish, that may have been the case.

13,306. In what way do you fix the average price of meal for a year?-We take what other people are charging in Lerwick and elsewhere; and after considering the quality of the meal, and our extra expense upon it, we charge what we think it can reasonably bring, without any regard to the cost price of it.

13,307. Do you not take the cost price into consideration at all?- Of course it is an element, but not the principal element, in fixing the price.

13,308. You think you are entitled at Grutness to put an additional charge on the meal above what it is in Lerwick, in respect of the risk and expense of carriage?-Yes.

Then the price at Lerwick, is a cash price always, while at Grutness it is a credit price.

13,309. Do you mean that at Grutness the settlement for the meal sold does not take place until the end of the year?-Yes; that is one reason why the meal is a little dearer at Grutness than it is at Lerwick, because when a man goes to Lerwick he goes with the money in his hand, and pays for the meal at the time as a rule.

13,310. But at Grutness it is usually settled for as against fish?- Yes; but very often it is supplied long before the fish are there to meet it.

13,311. Mr. Irvine has said the supplies generally begin in April, and the fish begin to be caught in April or May?-Yes; the summer fishing begins about 15th May.

13,312. The fish are not paid for either until the following spring?-No.

13,313. So that the fish are bought at a credit price, and the meal is sold at a credit price?-Yes; when the accounts are balanced.

13,314. But the fish with which the meal is really paid for are in your hands all the time?-They may or they may not be.

13,315. Are they not in your hands from the time they are caught?-Yes; but a man may have money to his credit with me, or he may be in debt when he gets the meal.

13,316. But the fish are not paid for to the fisherman at a credit price?-No.

13,317. Then why should the meal be charged a credit price any more than the fish?-Perhaps there is no good reason for it. The reason would only hold good when the man is in debt.

13,318. Are the men as often in debt as not?-No. My people are pretty free from debt. I should say that not over one in six or seven is in debt.

13,319. What is the freight of meal from Lerwick?-I think it is 11d. per boll in the steamer from Aberdeen to Lerwick; 1d. for landing at Lerwick; 4d. from Lerwick to Grutness by the packet; and 1d. for landing at Grutness.

13,320. Do you sometimes bring your meal direct from Aberdeen to Grutness by a packet?-I have once done so. I had a vessel coming up at any rate, and she took load of meal on board.

13,321. You say in your statement that you have never refused to pay a fisherman the full sum due to him in money: I presume that means at settlement?-Yes, at settlement, or if wanted before.

13,322. If a man applies for money before settlement, do you consider how much is reasonably due to him at that period of the year?-If he is a good man, I would give him any sum he asked for. If he was a man I was doubtful of, I would only give him the amount he had at his credit, but he might get that full amount at whatever time he asked for it.

13,323. In these circumstances, is there any reason for the complaint of the men, that they cannot get their money until settling time?-There is none.

13,324. The settlement last year was protracted as late as April: is that usual?-It is not usually so late as April. The settlements are generally finished by March.

13,325. Can you suggest any reason why the settlements with the men in Shetland should not generally be at an earlier period than that?-It is merely a matter of convenience. The settlements could be earlier if the men so wished it; but I don't know that it would do any good although they were earlier.

13,326. With regard to Fair Isle, is there a standing prohibition against other traders dealing with the inhabitants [Page 332] there?-To a certain extent there is. I don't object to people trading there if they confine themselves to hosiery and eggs, and that sort of thing; but what I am afraid of is, that persons may go there and buy fish.

13,327. The inhabitants there are under an obligation, as a condition of their tenure, to fish for you?-Yes.

13,328. As the landlord, do you place a restriction upon the sale of their cattle also?-Yes, there is a rule to that effect, but it is a very lax one.

13,329. Is it not virtually the result of the obligation to fish or to sell cattle to the proprietor alone, that the proprietor has the power of fixing the price, and that the tenant has no option at all with regard to that in either case?-That is not the result. Even although the proprietor buys the cattle and prevents any one else from competing with him, still he respects public opinion so far, that he gives the full value for the animal.

13,330. Then public opinion is the only check upon the proprietor, and of course his own sense of right?-That is his only check.

13,331. How do you ascertain the current price of fish, according to which you pay your men at the end of the year?-There is an understanding among the principal fish-curers with regard to that.

13,332. Is there a consultation upon the subject?-Yes, either directly or indirectly, and they all pay the same.

13,333. Do you send your fish Scotland generally, or do you send them abroad?-I send them principally to Ireland. Our fishing here is principally for saith, which is not carried on to any great extent in any part of the country except in this parish; and that kind of fish only finds a market in Ireland.

13,334. Did you pay as high a price for saith last year as Mr. Smith and Mr. Tulloch?-No. I have not settled yet for last year.

13,335. But you did not get such a price for your saith last year as would justify you in paying so high a rate?-I did not; and I can explain the reason. These small curers send their fish away in retail lots, and realize a price for them that no large curer can get.

13,336. Have the small curers more trouble in selling?-They have much more trouble; but they do the work themselves, and they don't take that into account.

13,337. Does that not show that fishermen curing on a small scale on their own behalf might realize higher prices if they could cure equally well with the large curers?-Not if all the fishermen were on that footing. Unless they entered into some sort of co-operation, they could not get their fish sent to market at all.

13,338. Would they not be likely to sell them through travellers coming up for the purpose of buying fish?-Yes.

13,339. The returns with which you are to furnish me will apply to the year 1870, as you have not yet settled for the year 1871?-Yes.

*Mr Bruce afterwards put in the following additional statement:- I may here mention that stores such as I keep at the stations for the convenience of the fishermen do not pay as a speculation, though we could not very well carry on the business without them. For instance, the store at Grutness, some of the accounts of which you examined, would show a balance-sheet thus- Gross value of goods charged against the shop at retail prices during season 1870 £410 11 21/2 Cost value of goods at the various markets. £313 0 10 Freights on do. 28 16 4 12 tons coals at 21s. allowed to storekeeper; say fire and light 15 0 0 Wages to storekeeper-I pay £70 say for store 40 0 0 Nominal profit, say 13 14 0 £410 11 21/2

But against this nominal profit has to be placed rent of shop, and house occupied by storekeeper, incidents such as stationery, wrapping paper, twine, furniture, etc., interest on capital invested in goods, loss in retailing goods, bad debts, and loss by deterioration of goods on hand. These figures are not supposed to be exactly correct, but they are substantially so, and at all events are near enough to show that these stores, as managed by me, do not pay, and would certainly never be kept with a view to profit were they not required as a matter of convenience. In a place like Fair Isle, with a population of only 226, there is only room for one store. As I have to keep a store there for the convenience of the islanders, I discourage them from trading with any one else, as the only chance to make my store pay is to get the whole or the greater part of their custom. Though there is a rule that the islanders shall not trade with others, I have never enforced this rule where I believed the parties visiting the island did not attempt to buy fish-in fact, in many cases I have given liberty to parties to trade with the islanders; and the only case in which I have enforced the rule, as in the case of a man from Orkney who, I had evidence to prove, stole my fish from the station at night, and shipped it on board of his vessel. I have no poor-rates and no paupers in Fair Isle, and I have never evicted a tenant. If a widow or other poor person can't pay their rents they sit rent free, and get help from their friends, and my manager has orders to see that no one starves. I may mention that I have some property of my own in Sandwick parish where the tenants are free to fish to whom they like, and they do not fish for me; but they pay good rents, and are not in arrears. I also manage a property in the parish of Cunningsburgh belonging to my father. It consists of 69 holdings, at a rental of £194, 19s. 7d. and the arrears of rent due on the property when I took the management of it in 1869 amounted to £487 10 3 Since then I have received payment of £97 9 21/2 And have written off in compromise with tenants deeply in debt, sums to the amount of 63 11 7 Thereby reducing the balance to 326 9 5 £487 10 3

These tenants are free to fish to whom they like, and none of them fish to me. I have not yet evicted any tenant, and if they go on as they are doing I may have to make no change; but should they fail to pay their rents as in times past, I must either evict the non-payers, or take the fishing into my own hands.

JOHN BRUCE, jun. SUMBURGH, SHETLAND, 1<st. Feby>. 1872.

Boddam, Dunrossness, January 26, 1872, ROBERT HENDERSON (recalled), examined.

13,340. I understand you want to make some explanation of your previous evidence?-Yes. I said that when we bought fish we paid for them when they were delivered. As a rule we do, and any party who wishes to be paid at once can be paid at once; but sometimes, when a few men are going in one boat, they wish merely to have the weight of the fish marked, and then have it squared off perhaps in a month or two or at the end of the fishing.

13,341. You are speaking now of the winter and spring fish?- Yes.

13,342. So that you have some accounts for fish?-Yes.

13,343. And these may be liquidated partly by the men taking goods?-Yes, just as they like.

13,344. In these cases, is there a ledger account with the goods on the one side and the fish on the other?-Yes, if the men choose to have it so; but it is entirely at their own option whether they are to be paid at once or whether the fish are to be put into the account.

13,345. What may be the amount of these accounts generally?- Will they be as much as £2 or £3?-Yes; sometimes £4 or £5.

13,346. In some of these cases no cash may pass at all?-As a rule, the men wish, to have the cash placed to the credit of their private accounts; but if they wish cash at once they can get it.

13,347. Will you have 20 or 30 of these accounts in a year?-No. There may be four or five accounts for crews in that way, but they are the exception. As a rule, we pay for the fish when we receive them.

Boddam, Dunrossness, January 26, 1872, OGILVY JAMIESON, examined.

13,348. You are shopkeeper at Mr. Grierson's shop at Quendale?-I am.

13,349. Do you also act as factor or overseer on his property?- Generally I do.

13,350. Do you keep all the books connected with the fish-curing and shop business?-Yes.

13,351. How many fishermen are employed by Grierson?- Perhaps from 80 to 100 hands, men and boys.

13,352. How many do you employ in the curing?-Generally 14 or 16.

13,353. When you take on a boy as a beach boy, is he paid by a fee?-Yes.

13,354. That is settled like the fishermen's accounts at the end of the season?-Generally; but sometimes they want to know their wages before and they are told what they are.

13,355. Do you ever pay these fees as advances, or during the course of the season?-Generally, when they require anything, they get it from the shop, and the balance is paid in cash, or the whole amount is paid in cash if they have taken no advances.

13,356. I suppose a beach boy, or one employed in the fish-curing, generally begins by opening an account and taking out supplies?- Sometimes they do, and sometimes not. Some of them have not taken out more than perhaps 2s. during the whole season.

13,357. Do three-fourths of them run up accounts?-They generally do to a small extent, but not to the full amount of their wages.

13,358. What is the average fee for a boy?-It is generally 30s. for the first year, and it is advanced according as they are found to be worth it. 50s. was the highest we paid the boys this year.

13,359. Will a boy ever have 10s. or £1 to get at the end of the year?-Yes, and sometimes more. I should wish to state that we had a boy last-indeed we have had him for two years-over whom we have no control. Last year he had 25s., and in the present year he was engaged for 27s. but I paid him 30s.

13,360. I understand there are some of the boys over whom you have control?-Yes.

13,361. That is to say, they are the sons of tenants?-Yes; and it is one of the conditions of their holdings, that they have to supply boys when they have them suitable for the purpose.

13,362. That is one of the conditions, in the same way as it is a condition of their holdings, that if the tenants themselves engage in ling fishing at all, they shall fish for Mr. Grierson?-Yes.

13,363. Have you known any cases of boys engaged to other employers who have been required by Mr. Grierson, or by you on his behalf, to give up that engagement and come to you to work at the beach?-There has been no case of that kind, to my knowledge.

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13,364. Do you know James Jamieson at Berlin?-I do.

13,365. Had he a son, a boy of thirteen, employed with you lately?-Yes, last year.

13,366. Are you aware that he had previously been engaged as a servant to a neighbouring farmer, and that Mr. Grierson required him to come and work at fish-curing?-I did not know that he was engaged at all.

13,367. Who engaged him for the curing?-I did.

13,368. Did he not state to you that he was already engaged to another master?-Not that I remember of.

13,369. Do you know James Brown, Millpond?-Yes.

13,370. Is he an elderly man now?-Yes.

13,371. Is he engaged at the fishing?-No.

13,372. Do you know whether he had to pay £1 of liberty money?-He has not done so within the last year or two, to my knowledge; but I think he paid it in 1869. However, I am not quite clear about that. I know that I got notice about the liberty money, and I think either he or his son went to Lerwick to Mr. Grierson about it.

13,373. Did he pay it?-I cannot say.

13,374. Was he at that time an old man, and fishing with two or three other old men, but not actively engaged in the summer fishing?-He was not fishing at all, so far as I know.

13,375. Then why had he to pay liberty money?-I don't know. Perhaps it may have been on account of his son, but I cannot say.

13,376. Would any transaction of that kind take place with Mr. Grierson and not with you?-It might.

13,377. Do you know Charles Eunson?-Yes.

13,378. Had he to pay liberty money in 1867?-I cannot say; I have only been three years in Mr. Grierson's employ,

13,379. Is Brough on the Quendale estate?-Yes.

13,380. Do you know James Shewan, who lives on the Brough property?-Yes.

13,381. Whom did he fish for last year?-I think he cured fish for himself. He was fishing at Scatness, and I think he delivered his fish to Hay & Co.; but I am not sure.

13,382. Had he to pay £1 of liberty money at last settlement?- Yes.

13,383. Was that in January 1872?-I think it was before January; but he paid it at the settlement.

13,384. Have there been other cases of liberty money being exacted and paid in 1871 and 1872?-There has been one other case besides Shewan's.

13,385. Why did these men choose to pay the fine rather than to deliver their fish to you?-I cannot say. One man who pays it does not fish at all, and I suppose they think they get value for it, or else they would not pay it.

13,386. Who pays it and does not fish?-William Gilbertson, the Mails.

13,387. You have not got the books connected with the fishing business in your possession at present?-No; they are all in Lerwick at present, except one daybook.

13,388. I noticed an entry in one of your books this morning, of one boll meal sold on 2d June 1870 at 16s. 6d.?-Yes, that was the price at that time.

13,389. Did the price vary much during that year?-Very considerably.

13,390. What would you consider a fair average of the price for that year?-I think it was from 17s. 6d. to 22s. or 23s. per boll, so far as I remember.

13,391. Do you think 22s. or 23s. was the highest price during the year?-I think so; but I am merely speaking from recollection.

13,392. What is the price of a 2 lb. line at your shop?-2s. 3d.; 21/4 lbs. is 2s. 6d.; 13/4 lbs, 2s.; and 11/2 lbs, 1s. 9d.

13,393. How many kinds of tea do you keep?-Three kinds, which we sell at 8d., 9d., and 10d.

13,394. How many kinds of sugar?-Three kinds, which we sell at 5d., 6d., and 61/2d.

13,395. What is the price of your tobacco?-1s. and 1s. 2d. per quarter for mid and small tobacco. We sell it at 31/2d. and 4d. per ounce for single ounces and 6d. and 7d. for two ounces.

13,396. Do your men own their own boats?-Yes, entirely.

13,397. You not hire out any boats?-Not any.

13,398. Do you sell the boats to them?-No; they buy them for themselves, or Mr. Grierson buys them for them.

13,399. Do you make an advance to them for the purchase of boats?-Yes; we generally give a line as security to any person supplying boats to the men.

13,400. Does the builder obtain the payment from you?-Yes. He is paid direct by us in cash.

13,401. Do you get repayment from the fishermen by instalments?-Not by instalments; they sometimes pay it all up in one year, but sometimes when a man is in arrears it runs over a good many years before it is paid. The sum he is due for his boat is included along with the rest of his dealings.

13,402. Is it the small boats that are used at Quendale?-No; we have mostly large boats now, which cost about £20.

Boddam, Dunrossness, January 26, 1872, HENRY GILBERTSON, examined.

13,403. You keep the post office at Virkie near Sumburgh?-I do. I am a tailor to trade.

13,404. You are aware that the men in your neighbourhood are under an obligation to fish for the tacksman of the estate and that many of them deal at the shop at Grutness?-Yes.

13,405. I presume there is no obligation upon them to purchase their goods at that shop?-I suppose not, unless circumstances compel them to do so.

13,406. What circumstances compel them?-There are many of them who have not got cash with which to go to any other place.

13,407. Have you sometimes purchased goods at the Grutness store yourself?-I have occasionally.

13,408. Did you find the quality and the price good and reasonable?-The price was generally higher than I could purchase the goods for at any other place, and the quality was sometimes as good and sometimes not so good. About a year ago there was cotton at Grutness at 16d. a yard; but it had been purchased during the time of the American War, when the price was high, and the price was kept up still. I have some goods that were given to me to supply Mr. Bruce's fishermen with including some of that cotton, and I have never been told to reduce the price.

13,409. Were you entrusted with that cotton to sell it?-Yes. I got about £50 worth of cloth and furnishings about five years age to supply to such tenants as had not the means to go to any other place; and although the prices of cotton and wincies fluctuated since I have continued to sell at the same price. Of course most of it is gone now.

13,410. But you have been selling it at that advanced price?-Yes. The fishermen have taken it who had no other way of getting it.

13,411. Have they taken it on credit?-Yes; most of it has been given on credit. There were very few who have taken any of it except those who had no money to go to any other place.

13,412. If they had had money, would they have been able to get exactly the same article at a cheaper rate?-The cloth was pretty moderate, because, when I brought it from Grutness, Mr. Bruce asked me how it would range with the cloth Mr. Henderson had. I told him it was dearer, and he said he would take off some of the price of it, for he meant to give the fishermen the same advantage which they got in another shop; and the three pieces of cloth which I got were reduced 1s. upon each yard. In that case no one complained about the price of the cloth, only the furnishings were higher.

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13,413. Is there any other article with regard to the price and quality of which you can speak?-I have not dealt in Grutness for some time, because I generally had money, and I bought my goods elsewhere, where might get them cheaper. I got most of them from Mr. Henderson, and some I got from Lerwick.

13,414. Do you sometimes buy from Hay & Co.'s, shop at Dunrossness?-Yes,

13,415. Are some things cheaper there than at Grutness?-Some things are and other things are much about the same.

13,416. What things are cheaper?-Tea and sugar, and such things as these.

13,417. Is Hay & Co.'s shop nearer to you than Grutness?-Yes.

13,418. Is it nearer to most of the people than Grutness?-Yes. Grutness is rather out of the way.

13,419. Do you know anything about a meeting that was held at Grutness, some time ago?-I know there was a meeting of fishermen held at the schoolhouse but I was

not there. After the meeting several of the men came to my house on their way home, and spoke about what had taken place. They were generally dissatisfied with the way in which the meeting had been conducted.

13,420. What was the occasion of the meeting?-It was in order that they might lay their grievances before the commissioner at Lerwick. I believe one of the men actually went there.

13,421. Did you understand that the others were unwilling or afraid to go?-I understood, from what they said, that they were unwilling, for fear of offending their masters. They told me that at the time.

13,422. What did they say?-They accused some of their number of cowardice. Some were frightened for one thing, and some for another.

13,423. What were they afraid of?-Just of offending their masters; that was their principal idea. They were afraid they might be warned.

13,424. What was the complaint they had to make?-I believe their principal complaint was about the bondage which they are under.

13,425. Do you think they have not so much to say about being settled with only once a year?-Of course that was discussed too and they thought it was not right. They thought the settlement was made too late in the year. That was one of their objections; but the principal thing was, that they wished their liberty to sell their produce to any person who would pay the best price for it.

13,426. Have you lived in Dunrossness all your life?-I have been in Dunrossness all my life except twelve years, when I was south.

13,427. Was your father a farmer or crofter and fisherman in Dunrossness?-Yes.

13,428. Before Mr. Bruce took the fishing into his own hands, I believe, the tenants were free?-No; the fishermen were bound some forty-three years ago. My father held a croft then on the estate of Brough, of which Mrs. Sinclair was proprietor, and she bound him over to fish for Mr. Bruce at that time, although she did not take the fishing herself. That fishing came to be the most ruinous concern that ever happened to my family, because it brought my father into debt that he might otherwise have been clear of.

13,429. How did it bring him into debt?-Because the fish were not managed properly, and of course they came to be sold as bad fish, and the men got nothing for them, or next to nothing. I heard my father say that they got 3s. 11d. for dry fish in the last year of the fishing, and they had to pay for salt and cure out of that.

13,430. Could a free man, at that time have got more?-A free man was getting from £9 to £10 a ton; and things came to such a pass that the people got desperate. There were poor years at the same time, and the men applied to their landlord, and got their liberty on condition of paying 15s. a head of liberty money. That was kept on until a few years ago, and then it was put into the rent again.

13,431. But it has only been since 1860 that the men have been bound again to fish in this district for their landlord; they were free before that time?-Yes, they were free for about twenty years. Of course I have always been a free man, because I have not been a fisherman.

13,432. Have you known many men in your district being warned in consequence of fishing for others than their landlord?-I have not known many.

13,433. Have you known men who would have fished for others if they had not been afraid of being warned?-I suppose they would have preferred that but warning comes to be a very serious thing here. In the south a man can shift from town to town and get employment: but here, if he leaves his house and farm, he has no place to go to except Lerwick, and there is no room to be got there, either for love or money.

13,434. Do you know of any case where compulsion has been used to oblige any of the men to deal at any of the stores in the district?-I cannot say that I have.

13,435. Do the men never get a hint to that effect?-No; but I suppose they are obliged to go through necessity, because they have no money with which to go anywhere else.

Boddam, Dunrossness, January 26, 1872, GEORGE M'LACHLAN, examined.

13,436. Are you the principal lightkeeper at Sumburgh Lighthouse?-I am.

13,437. Where do you get the supplies for your house?-I get most of them from Aberdeen and Granton.

13,438. Do you purchase them yourself?-Yes.

13,439. They are not supplied by the Commissioners?-no.

13,440. Have you got any supplies at the neighbouring shops?-I have got very little from Grutness.

13,441. Have you got any from Hay & Co.'s shop, from Quendale?-No. I opened an account with Mr. Henderson after I came; but I have only been here since 1st. July.

13,442. Have you found Mr. Henderson's goods reasonable in price?-Quite reasonable in price, and good in quality.

13,443. How far is his shop from you?-About six or six and a half miles.

13,444. How far is Grutness from you?-About one and a quarter mile, or a little more.

13,445. How far is Hay & Co.'s shop?-About two and a quarter miles.

13,446. How far is Quendale from you?-I think about four miles.

13,447. Why do you go so far as Mr Henderson's or Aberdeen, or Granton for your supplies?-I opened an account at Mr Henderson's shop, because I could get anything there that I wished, and because Mr. Henderson was highly recommended to me before I came to the country at all.

13,448. Have you found the supplies at Grutness to be expensive?-I never bought much there.

13,449. Did you find that that shop was understood in the neighbourhood to be an expensive one?-I have heard people say so.

13,450. Was that the reason why you did not get your goods there?-Not particularly. One reason was because it was dear, and another reason was that they cannot supply us with general articles such as we want. I thought it was much better to open an account with man who was reasonable in his charges, or who at least was recommended to me as such, and a man who could supply me with anything I wanted.

13,451. What have you bought at Grutness or at the other shops?- Sometimes I have bought small things such as tobacco, but my wife has got most of the things we required.

13,452. Have you bought any tobacco at Hay & Co.'s?-Yes. I found it to be of ordinary quality. I think [Page 335] the price was 4s. 4d. per lb., as far as I can recollect but I am not quite sure, because I never bought much there. I could have got tobacco of about the same quality at Mr. Henderson's for 3s. 6d. I now produce a piece of Mr. Henderson's very good tobacco.,

13,453. Have you bought tobacco at Grutness also?-Only very little. I don't like the sort of tobacco that is kept there. There are two kinds kept at Grutness: but the best quality is too small in twist for smoking, and I don't care about teasing it up.

Boddam, Dunrossness, January 26, 1872, LAWRENCE GARRIOCK, examined.

13,454. Are you a fisherman at Scatness?-I am.

13,455. Are you bound to fish for anybody?-No. I have always been at liberty. I am on the property of Mr. Bruce of Simbister, and I generally fish for Hay & Co.

13,456. They are the factors on the estate?-Yes.

13,457. Do you deal at their shop?-Yes, occasionally, when I like.

13,458. Do you pay your rent to Mr. Irvine, of Hay & Co.?-Yes.

13,459. Does he come down to settle at Dunrossness every year?- Yes. He settles in a room above the shop at Laighness.

13,460. Do you go through the shop to it?-Yes.

13,461. Have you generally money to receive at settlement?-I have had a little to receive for some years; but I run an account at the shop, and I am almost always in debt.

13,462. If you have got money to receive, is it paid to you in cash?-Yes. I am paid in cash what is due.

13,463. If there is anything due to you, do they ask you, as you come through the shop, if you want any goods?-No, that is left to my own choice.

13,464. But it would be quite fair to ask?-Yes, but they don't do it.

13,465. Are you satisfied with the quality of the goods you get there?-Yes. I never had any reason to complain about the quality, and the price is something similar to what I could get them for at other places.

13,466. At Grutness, for instance?-I never had much dealings there. It lies rather out of my way.

13,467. Is Hay & Co.'s shop the most convenient shop for you?- Yes.

13,468. Have you ever dealt at Gavin Henderson's shop?-Yes, I have tried it too.

13,469. Are not his goods cheaper than Hay & Co.'s?-No; they are much about the same. I could not say there was much difference. I have bought meal, cottons, and tobacco from him, land the difference in price was not worth mentioning.

13,470. Do you keep a pass-book at Hay & Co.'s?-No. I just trust to those who are serving me.

13,471. Were you at a meeting of fishermen held at Scatness a few weeks ago?-I was.

13,472. What was the object of the meeting?-I could scarcely say. The men assembled on purpose to give you (the Commissioner) some information about how they were situated, as you had come to Shetland to inquire into the matter; but when they were met together, they appeared to be frightened to say anything at all. Therefore the meeting was broken up, and every man went home.

13,473. How did it appear that they were frightened?-By the way in which they behaved at the meeting. There was a paper drawn up, and the men were to sign their names to it, but none of them would sign their names except about a dozen or so. The rest appeared to be very much frightened, and I told them so.

13,474. What were they frightened of?-They did not say, at least I did not hear them; but it was supposed they were frightened for the proprietor giving them their warning.

13,475. If they did not say it, how did you know they were frightened for that?-Because none of them would sign their names to the paper which was to be sent to you.

13,476. They might not have had any grievance all?-They might not; but all the men who were present wished to be at liberty to fish, and they were frightened to sign the paper saying that they wanted that. At least they appeared to be so, from not putting down their names.

13,477. Did not some of the men who were present come to Lerwick?-Yes. One man went, and some others went when they were summoned.

13,478. How did you happen to be at the meeting when you were not a bound man?-I went to see whether anything would be said about the right of the landlord to take one-third of the whales which are driven ashore. Occasionally whales are driven in from the sea; and I have seen us commencing at six o'clock on summer morning and working till late in the afternoon, or perhaps six at night, in getting them

secured. Then, when the whales were flinched, the proprietor came in and took away one-third of the proceeds, and we were rather dissatisfied about that.

13,479. Do you think you ought to have got the whole?-Yes.

13,480. Did you not flinch the whales upon his shore?-Yes, but below high-water mark.

13,481. Has it not been always the custom in Shetland that the proprietor gets one-third of the blubber?-It has been so all my time.

13,482. Why do you submit that if it is not right?-The way we submit to it is because they have told us that if we carried off all the blubber they would raise the rent of the land we were labouring.

13,483. Who has told you that?-It has been said all my time.

13,484. Has any proprietor ever told you that?-There are men who have asked it and striven for it in my time. I have never done it myself, although I was very much dissatisfied about it: but the poor men are frightened to presume any further, for fear of the land being further burdened upon them, and it is so much burdened just now that we can scarcely pay for it.

Boddam, Dunrossness, January 26, 1872, ARTHUR IRVINE, examined.

13,485. Are you a fisherman at Garthbanks, on the Quendale estate?-I am.

13,486. You have handed in to me a document signed by 28 fishermen on the Quendale property, stating that 'We, the undersigned, hereby certify that we have been honourably dealt with by Andrew J. Grierson, Esq. of Quendale, our present landlord and fish-merchant; and it is our desire to continue with him as our fish-merchant, and resolve that no other fish-curer in Shetland will get our fish until he refuses to take them?'-Yes.

13,487. How long have you fished for Mr. Grierson?-About 13 years.

13,488. Have you always sold your fish to him?-Yes.

13,489. And have you always got a fair price for them?-I have got the currency of the country.

13,490. Could you have got a higher price anywhere else in the district?-Not in our district, that I know of.

13,491. How far do you live from the place where the fish are delivered?-I live close to it. The curing place is about 50 yards from my house.

13,492. Who wrote this document?-I did.

13,493. When?-Yesterday.

13,494. Did anybody suggest to you to do so?-No. It was done at my own option.

13,495. Did anybody speak to you about it?-No.

13,496. Did you just take it into your own head?-Yes, at six o'clock last night.

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13,497. Did you get all these men to sign it last night?-Some last night, and some this morning on my way here.

13,498. Are they all neighbours of yours, quite close to Quendale?-Yes.

13,499. Were they all quite willing to sign it?-Yes; and more would have signed it if they had been asked.

13,500. You think Mr. Grierson is a very good landlord?-Yes; and we do not want to fish to any other. If there is any one better than him we don't know it.

13,501. Do you think you would not make anything more of it by curing your own fish and selling them to any other merchant?- We cannot cure the fish ourselves on that station, because there is no convenience except for one. There is room for all the boats, but only room for one man. The beaching station cannot be divided. It is not like down about Scatness, where there are so many different places for landing.

13,502. Are you a skipper in one of Mr. Grierson's boats?-Yes, of a six-oared boat.

13,503. Do you ever act as a factor to him?-No.

13,504. Do you receive his fish?-No.

13,505. Do you not hold any employment under Mr. Grierson?- No. I have a bit of ground from him, and I act in looking after his peat-mosses, but that is all the employment I have.

13,506. Do you get a small salary for that?-Yes.

13,507. Do you get all your goods at the Quendale shop?-Yes.

13,508. Do you get paid in money at the end of the year?-Yes; any one who has money to get, has it paid to him at that time.

13,509. Have you always something to receive?-No, some years I have something, and some years not.

13,510. Had you some cash to get last year?-No.

13,511. Were you behind the year before also?-I was not behind for that year, but I had been behind before.

13,512. And there has been a balance against you for good number of years?-Yes, because Mr. Grierson gave me an advance when I first took the land from him.

13,513. Do you think that if you were not bound to fish for Mr. Grierson your rent would be raised?-We think so, but perhaps we my be wrong.

13,514. Has anybody suggested to you that your rents might be raised if you were not going to fish to Mr. Grierson?-No, that is only our own imagination.

13,515. Has Mr. Grierson ever said so?-Not to my knowledge.

13,516. Did you ever hear that he had said so?-No, I never heard that.

13,517. Do you think it would be a reasonable thing for him to raise your rents if you were not fishing for him?-I cannot say; I think our rents are high enough as it is.

13,518. But you are afraid that your rents might be raised, and perhaps that may be the reason for some you having signed that paper?-It may have been, but I cannot say.

13,519. Are the goods which you get at Quendale store of good quality and cheap enough?-They are as cheap as we can get anywhere.

13,520. Have you dealt much anywhere else?-No; I have got most of my goods there.

13,521. Do you know anything about Gavin Henderson's goods?- I know a little about them, and I think they are very much the same as at the Quendale store, both as to price and quality.

13,522. Is there anything else you wish to say?-No.

13,523. Is there any other person present who wishes to make any statement?-[No answer.] Then I adjourn the sittings here until further notice.

<Adjourned>.

LERWICK: SATURDAY, JANUARY 27, 1872

<Present>-MR GUTHRIE.

JAMES POTTINGER, examined.

13,524. Are you a fisherman residing in Burra?-Yes. I live with my father, who is a tenant there.

13,525 I understand you wish to make some statement; what is it about?-It is about the way in which I have been served in Burra. My father and I had to spend upwards of £12 on repairs on the house where we lived about 1865; and in January 1866, when I was in Messrs Hay's employment, they asked me for extra for peat leave, because we put a small chimney in the bedroom end of our house. I refused to pay it, but when Mr. Irvine settled with me he paid me all except the pound, which he kept.

13,526. What employment were you in then?-I had been at Liverpool with a cargo. I was not at the fishing at the time; I was settling up for my voyage to Liverpool at the time when the pound was taken off.

13,527. Had you got any supplies during that winter from Hay & Co.?-I did not have much.

13,528. Had you been in their employment the summer previous?-No; I had been in Messrs Harrison & Son's employment at the Faroe fishing. When Mr. Irvine would not give me the pound I said I would not sign the books, and I have not signed my account yet. The thing ran on from then until last year, when my father was charged £4 for the extra peat leave. He came back to Burra and asked me what he should do, and then he went in again to Lerwick and paid it. Then, this year, I went in to Mr.

Irvine and asked him if he was not to take off the pound, and he said he would never take it off; and when my father settled this year again he had to pay it.

13,529. Then that is a charge made upon your father and not upon you?-Yes.

13,530 Is your father the tenant?-He is, but I went in and paid half of the rent and got a receipt for that half; but the pound was not included in it.

13,531. Why was it not charged upon you?-Because he gripped my father for me.

13,532. But why was it not charged upon you first?-Mr. Irvine told me that we were burning two fires in the house, and that I would have to pay that, but I would not do it

13,533. Had you built an addition to the house when you were married?-I was at the expense of building it. It was a new end to the house that was built then.

13,534. Is it a rule that all who live on the island and burn a fire have to pay peat leave?-Every house has the same privilege that I have, but none of them pay it except myself.

13,535. How do you mean that they have the privilege?-They have a small chimney in the bedroom, the other apartment in the house, the same as I have.

13,536. Why do you come to me to complain of that?-I did not think it would do any good, but I thought I would let you know that such a thing was done, because I think it is unfair.

13,537. Has it anything to do with the fishing?-No.

13,538. Were you ever in Messrs. Hay's employment at the fishing?-I was three years in their vessels as a lad, but that is twelve years ago. I have been twelve years in Messrs. Harrison's employment.

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13,539. Did you leave Messrs. Hay and go to Messrs. Harrison?- Yes.

13,540. Did Messrs. Hay object to one of their tenant's sons leaving their employment and going to fish in the smack of another curer?-No.

13,541. Have you been asked to go in Messrs. Hay's smacks since?-Yes. Mr. Irvine asked me to go in their vessels both in 1866 and 1867, in both of which years I had vessels from them in the winter time, but I told Mr. Irvine that I would not leave the vessel or the employ I was in and go with them.

13,542. Was it before or after you were charged that sum for peat leave that you were asked to go?-It was in the same year. 1866 was the first time I had to pay £1 of peat leave.

13,543. But you said you were charged with that in January 1866; was it before or after January 1866 that Mr. Irvine asked you to go in his Faroe vessel?-It was both before and after I went to Liverpool for Messrs. Hay in the 'North Sea Queen.'

13,544. Was it some time after you came back from Liverpool that you were settled with?-No; it was in the same week or the week after.

13,545. Had you seen Mr. Irvine after you came back and before you settled with him?-Yes.

13,546. Was it when you first came back that he asked you to go to Faroe in the following season?-It was at the time when I settled, and also when I joined the vessel.

13,547. Do you think if you had not refused to go in one of Messrs. Hay's vessels to the Faroe fishing you would have been charged with peat leave?-I don't know about that.

13,548. Is the charge for peats just so much for each fire that is burned?-We don't know; it is just included in the rent.

13,549. Is it not charged separately from the rent?-No; it is all put together, so far as I know; it is all called land-rent.

13,550. Have you any note of your settlement with Mr. Irvine in 1866?-No. I don't think I got any receipt then; but I got a receipt yesterday when I paid the half-year's rent.

13,551. I suppose the people in Burra were quite at liberty to go to the Faroe fishing with any person they pleased during the last twelve years?-No, some of them were not at liberty, but I was at liberty because I had charge of a vessel. A single man who was not master of a vessel did not have liberty.

13,552. How do you know that?-Because I have been told of tenants who had to pay £1 in consequence of their sons going to the Faroe fishing. Andrew Laurenson paid £1 for going to Faroe in Messrs. Harrison's employ, and he has not got it back. I don't know any one else who has not got the money back except him; but there may be others who had to pay it, and who have not got it back.

13,553. Were a number of the young men obliged to go to the fishing in Hay & Co.'s vessels?-A good few of them went in their vessels, and some of them left and went in the vessels of other owners.

13,554. But did you know of any man leaving another owner's vessel in which he was engaged, and going in one of Hay & Co.'s because they required him to do so?-No; I only know that money was paid for that.

13,555. Do you understand that if you had not been a master, but had been merely an ordinary seaman, you would have been obliged to go in Messrs. Hay's vessels?-So far as I know, I would.

13,556. Would you have been bound to do so if they had offered you as good a vessel as master as the one you were going in?-I don't think it; I never heard anything about that. I wish to say that I could get turf from another island which would not cost me over one-fourth of the pound which Hay & Co. charged me for peat leave. My father asked Mr. Irvine yesterday whether, if I got the turf in that way, he would take the pound off me, and he said he would not.

13,557. What kind of agreement do you sign with Harrison & Co. when you go to the Faroe fishing?-It is a written agreement.

13,558. I suppose the fishermen in the Faroe fishing regard themselves as partners with the owners of the ship to the extent of one half?-Yes, that is what we sign for.

13,559. The owners of the ship are always the curers that you deliver the fish to?-Yes.

13,560. And I suppose the owners employ men as curers?-Yes.

13,561. The payment which the fishermen get at the end of the year will depend a good deal upon the way in which the fish are cured, because, if they are ill cured, the fishermen will receive less money?-Yes.

13,562. Or if the fish are ill sold the fishermen will also suffer?- Yes.

13,563. Therefore the fishermen have as much interest in the curing and sale of the fish as the owner has?-Yes.

13,564. But I suppose you leave the management of these matters in the hands of the owners?-Yes; the owners have all the management.

13,565. Is it understood in the Faroe fishing that you get one half of the actual returns from the fishing?-They tell us so.

13,566. It is not according to any current price that you get it, but it is one half of the actual price at which the fish are sold which you are to get?-Yes.

13,567. And you trust entirely to the owners to obtain that price, and to account to you for one half of that, under certain deductions?-Yes.

13,568. Do you know what deductions are allowed before the proceeds of the fish are divided?-I cannot tell; I have seen it all in the agreement, but I cannot recollect what it is just now. It is every man's wish to see a bill of sale for their fish at settling time, but such a thing has never been asked for. I have never asked for it so long as I have gone to the fishing.

13,569. You think you ought to see the bill of sale?-Yes; and that is the opinion of all the fishermen, so far as I know.

13,570. Do the men in Harrison & Son's employment undertake to be ready to join the vessel for putting in salt, bending sails, and so forth, at a certain time before the vessel leaves?-Yes, and that is usually done.

13,571. How long are you bound to remain in the vessel?-Until about 13th August.

13,572. On board the vessel, what do you do with the fish when you catch them?-We bleed them, and wash and split them, and salt them in the hold, and generally prepare them so as to fetch the best market.

13,573. The deductions which are charged before dividing the fish are the expenses of curing and the price of the salt?-Yes. They put the salt and curing altogether, and charge £2, 10s. for that.

13,574. They do not charge the actual cost, but make a slump charge for the whole work?-Yes.

13,575. There is also an allowance deducted of 10s. per ton to the master, and 2s. 6d. to the mate?-Yes.

13,576. And the agreement which you sign provides for a certain quantity of bread for each man?-Yes, 8 lbs. of bread per week; and there is an allowance of 9d. for score money. The score money is paid before the division is made, so that one half is paid by the owners and one half by the men themselves.

13,577. Is it also part of the bargain, that the fishermen are liable for breaking lines or spoiling any part of the vessel?-Yes.

13,578. On returning you put the vessel into dock and unbend the sails?-Yes.

13,579. There is a stipulation in the agreement against smuggling, is there not?-Yes.

13,580. Is there any smuggling carried on at Faroe-Not a great deal now.

13,581. Is there any arrangement about going farther north than Faroe if required?-Yes; if the master thinks it prudent to go to Iceland or elsewhere before a certain time, the men are taken bound to go, and in that case they are paid by wages, which are fixed in the agreement. They begin to run from the 13th or [Page 338] the middle of August, and continue till 1st October. But if we are going to Iceland during the summer, the men run their share of the fishing the same as they do at Faroe.

13,582. It is only for a late voyage to Iceland that they get wages?-Yes.

13,583. Do you often go upon these late voyages?-I have done so for the last few years.

13,584. Are the men bound to go upon them?-They are bound to go if the master or owners require them; but there are plenty of men to be got at that period of the year, so that if any man wants his liberty then he can get it.

13,585. You can fill up your crew from other boats which are not going upon these late voyages?-Yes.

13,586. Does the Iceland voyage commence from Foroe, or do you come to from Lerwick first?-We come back to Lerwick.

13,587. There is a scale of victualling for that voyage contained in the agreement?-Yes.

13,588. The men don't provide their own food?-No; it is provided by the owners. The men provide nothing.

13,589. There is a less supply of bread on the Iceland voyage than on the other voyage, is there not?-Very little less. They have 8 lbs. per week in the summer time, and 7 lbs. at Iceland.

13,590. Do you always get ample supplies according to your agreement?-Yes.

13,591. Do you also get your small stores and outfits from the owner's shop?-Yes. We always go to his shop for what we want at leaving.

13,592. Do you also run an account with Messrs. Harrison for supplies to your family during your absence?-Perhaps some of the men do that, but I don't do it. I pay the money for what I want, and get it where it can be got best.

13,593. Do you run no account at all?-Not much. I sometimes run an account for a little with Messrs. Harrison when I want anything,-perhaps in the year, and that is settled at settling time.

13,594. But most of your supplies you get elsewhere-at Scalloway or Lerwick?-Yes.

13,595. Do all the men in your vessel keep accounts at Harrison & Son's, and get their supplies there?-Yes.

13,596. You purchase your own lines and hooks for Faroe?-Yes. A lead of lines for each man will cost about 11s.

13,597. Is that the only fishing expense that you have?-Yes; but perhaps we may have two leads of lines in one summer.

13,598. Do you always purchase them from the owners?-Yes; or they are put on board the vessel, and the men take them as they require them. The master keeps an account of that.

13,599. How do you do on the Iceland voyage for these fishing supplies?-The men pay hire for their lines on the Iceland voyage.

13,600. Then the lines in that case are at the owners risk?-Yes.

13,601. If they are lost, do the owners bear the loss?-The men have to pay for them if they lose them, and if they return them they only pay hire for them.

Lerwick, January 27, 1872, WILLIAM ROBERTSON, recalled.

13,602. You have handed in an agreement for the year 1871 with the crew of the 'Royal Tar?'-Yes.

13,603. Is that the form that is always used by Mr. Leask in agreements for the Faroe fishing?-Perhaps a word or two may vary, but that is the substance of the agreement. It is in this form:

'Royal Tar.' 'We, the undersigned, hereby agree to prosecute the cod and other fishings ,in the said vessel wherever required by the master or owner during the fishing season of 1871, that is, from the time we are requested to join the vessel until the end of August if required, it being understood that one half of the net proceeds of the fishing belong to the owner of the vessel, and the other half to be divided among the crew in the proportions set opposite their respective names; the owner supplying the crew with 1 lb. of bread per man per day.' Then follow the men's names and residences, and their ages, the last ship in which they were employed, their capacity as master, mate, second mate, sharesman, or half, or three-quarter sharesman, as the case may be. In the next column there is given the rate per ton of premium or extra above the share, being 9s. in this case to the master, 3s. 6d. to the mate, and 1s. to the second mate. Then follows the rate of score money to each man, being in this case 6d. throughout. There is also a column for observations, in which it is noted opposite

the names of three men, and as much as he is worth; how is that fixed?-It is left to the discretion of the principal men of the vessel.

13,604. Is anything else of importance ever entered in the column for observations?-If anything occurs, of course it will be entered. I may mention that the time when the men generally have to join the ship is about the middle of March. That time is not fixed by the agreement; it is merely said that they have to join when they are requested.

13,605. What do you do about an Iceland voyage?-The Iceland voyage generally commences about the middle of August, after the Faroe voyage is over. The agreement does not refer to that.

13,606. Do they make a separate agreement for an Iceland voyage, the men being paid by wages?-Yes.

13,607. I understand you have something to add to your previous evidence?-Yes. When my examination ceased previously, I think I was speaking about the work-people, and I have now brought one of the time-books to show the proportion of money and of goods received by each. [Produces book.]

13,608. That is a time-book for the work-people employed in 1871 at Sound beach, which is about a mile from Lerwick?-Yes. It shows the amount of cash paid, the balance, of course, being the amount of their accounts for the week.

13,609. The first name is M'Gowan Gray?-He is the superintendent.

13,610. The entry in his case is, Cash 2s., time 6, wages 10s.: what does that mean?-He has 10s. a week of wages, six days a week, and 2s. is the cash he has to get.

13,611. The entry in the inner column is made at pay-day, showing the amount of cash he has to get?-Yes.

13,612. How is the amount of cash ascertained?-We have a ledger account with each individual, which is settled every week, but perhaps it may not be balanced. We do not generally balance until the end of the year, but we square accounts before.

13,613. Is the account squared to ascertain the amount of cash payable?-Yes, the amount of cash due to the individual.

13,614. Is that not a sufficient balance for the whole?-I daresay it comes to the same thing as a sufficient balance, only the account is not ruled off.

13,615. Is it done in pencil?-It is done in ink, but it is not ruled off in lines; it is not added up.

13,616. But there is an addition made in the inner column in ink: how is that done?-It is just like any ordinary account, with double money columns. The wages are credited; then the goods stand against them, and the balance is charged, so that the one squares the other.

13,617. Is that done each week?-Yes.

13,618. Are the balances entered here always paid in cash?- Always.

13,619. Are they never allowed to lie?-Not with the work-people.

13,620. Is the week ending 2d Sept. 1871, of which this- [showing]-is the account, a fair average of a [Page 339] week throughout the season?-I think it will be about a fair average.

13,621. It shows £5, 17s. 5d. as the total amount of wages earned; and of that, £3, 19s. 7d. was paid in cash at the end of the week, the rest having been taken out in the course of the week in goods?-Yes, principally in provisions.

13,622. I see that in one case it had been altogether taken out in goods, and there was no cash due?-Yes, but in others you will find that there has been nothing taken out, and that the whole was paid in cash.

13,623. I see that in six cases cash has been paid in full out of twenty-seven people employed altogether?-Yes.

13,624. I fancy that in that week rather more has been paid in cash than the average, because in the following week £2, 9s. 2d. was due, and £1, 1s. 6d. was paid in cash. In another week £4, 12s. 2d. was payable, and £1, 11s. 10d. was paid in cash. In another week £4, 6s. 9d. was payable, and £1, 4s. 5d. was paid in cash, there being twenty-five persons employed in that week. Then, in the last week which appears in the book £3, 14s. 7d. was payable, and £1, 2s. 7d. was paid in cash, there being twenty-five persons employed then also?-Yes; people, of course, require the same amount of provisions, whether they earn much or little, the amount of their balance in cash being less where the work has been less.

13,625. In the Faroe fishing formerly-I am not speaking of Mr. Leask's business only, but of your general knowledge of the country-was it the case that tenants were held under an obligation to fish for particular persons, just as they now are in some places in the ling fishing?-I am not aware of any tenants having been compelled or bound to fish to their proprietor in the Faroe fishing, either now or formerly.

13,626. When was the Faroe fishing introduced into Shetland?-I think about 1851 or 1852.

13,627. Have you known cases in which proprietors or tacksmen attempted to get their ships manned from their estates, not by compulsion, but by persuasion or influence?-I am not aware of any compulsion having been used at all.

13,628. When the Faroe fishing was first introduced, was it not the case that a merchant's smacks were manned for the most part from lands of which he was proprietor or tacksman?-I believe that is quite true, because when a merchant had tenants he invariably got the preference from them; but they were not bound to go to the fishing for him.

13,629. There was not such a demand for places on board Faroe vessels at that time as there is now?-Nothing like it.

13,630. Now the service has become more popular?-Yes; and the number of the ships has increased considerably, so that the number of men required is far greater.

13,631. Is there always an ample supply of men for that fishing?- Not always.

13,632. When men fall short, what means do you adopt to increase the supply? Have you to canvas for men, or do you raise your terms, or what is done?-There is very little difference in the terms. Men have been very scarce this season in consequence of the bad fishing last year, but we have not altered the terms. I remember one year we had to offer wages as an inducement to the men to ship. In 1861 there was a bad fishing, and in 1862 we had to guarantee them £1, 10s. a month of wages; but I don't think fishermen in general like wages.

13,633. Have you ever had recourse to any other means except persuasion to fill up your vessels not except persuasion; but we have not been at a great loss for men. We have generally had as many as we required, until this season. I don't think we will be able to get as many as we require this season, because of the bad fishing last year.

13,634. I suppose the great bulk of the business in Mr. Leask's shop passes through accounts with fishermen and others?-Yes, the great bulk of it.

13,635. When a man pays in cash for the goods he buys, does he get a discount?-No. We price the goods at the very lowest at the commencement, and we don't alter the prices.

13,636. There are not two prices, according as the man pays in cash or takes it out in his account?-No, it is all the same price.

13,637. Then a man has no advantage in paying cash?-None whatever.

13,638. And he is not expected to pay in cash?-Not if he be employed by Mr. Leask. Of course we sell a great quantity of goods for cash to persons whom we don't employ, both in the provision shop and also in the draper.

13,639. In addition to the fish which are delivered in a wet state at your stations, do you purchase dry fish?-Mr. Leask has been in the habit of purchasing ling for a firm in Dublin for many years. He also buys cod in a dry state occasionally.

13,640. Last year, I understand, you bought all the Greenbank fish?-Yes, all the Greenbank ling, not the other.

13,641. And also some from Mossbank?-Yes.

13,642. Did you also buy dry fish from Thomas Williamson, Seafield?-Yes.

13,643. Do you supply Pole, Hoseason, & Co. with goods as wholesale merchants?-No.

13,644. Then these fish would be settled for by cash or bills?- Yes; by cash at three months from the date of shipment.

13,645. Were these ling paid for at the current price-Yes, at £23 per ton, free on board at Mossbank or Cullivoe, the port of shipment.

13,646. The men, I understand, are paid according to the current price of dry fish at the end of the season?-Yes. They get all the advantage that the curer can afford to give them. The price is not fixed at the commencement, and I think it is much better not.

13,647. What was the current price at the end of last season?- £23.

13,648. Is that calculated to afford 8s. per cwt. for green fish?- Yes. In the previous year the price was, I think, £21 for dry fish, and the price allowed for green fish was 7s. 3d. for ling. Of course tusk and cod were much less.

13,649. How would a transaction such as you have mentioned be taken into account in ascertaining the current price at the end of the season? Would you stand in the position towards the curers of a wholesale purchaser?-Exactly.

13,650. Do you think a number of small sales in the course of a season may be able to get a higher price than a large curer who sells all in a lump all the end of the year?-At rare times he may sell a small parcel for a larger price; but generally, I think, the small curers get a less price than we do at the end of the season.

13,651. Would you be surprised to hear that some small curers were able to pay their fishermen much higher prices for ling and all other fish than the larger curers, and that they have done so, in point of fact, for some years back?-Such a thing is quite possible. They may have got more for their fish when dry.

13,652. How would you account for that?-I cannot account for it; it may have happened by accident.

13,653. Do they require less remuneration for their trouble?-No.

13,654. Or does selling in small parcels enable them to get a higher price?-Sometimes it may.

13,655. Do you think they may sell to retail dealers at once, and thus get the advantage of the retail price?-Perhaps they may sell a small parcel at once at a higher price; but, as a rule, I don't think they do. I think a large parcel generally sells best.

13,656. Is not a large parcel sold to parties who themselves supply retail dealers?-Yes.

13,657. But a small dealer, by taking a little more trouble, may possibly sell direct to the retail merchant himself, so that he secures his profit without the intervention of another dealer?-He may.

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13,658. Is that the way in, which you account for him getting a higher price?-That is the only way in which I can account for it.

13,659. The small curers get not only the curer's profit, but they also get the wholesale fish-dealer's profit at times, by selling direct to the retail dealer. Do you think that is a reasonable explanation of the matter?-I think so. It is the only way in which I can account for it, because I know that the large curers pay the utmost they

can afford to the men.

13,660. Do you supply Thomas Williamson, Seafield, with goods?-Yes.

13,661. Are these set in the account against the fish which you buy from him?-Yes.

13,662. And that account is settled from time to time?-Yes.

13,663. Is that the only security which Mr. Leask has for his supplies to Williamson?-Yes; in fact he has no security at all until he gets the fish.

13,664. I suppose Mr. Williamson's is a case of man starting business without much capital?-I think so.

13,665. Is Mr. Leask his security with the Commercial Bank?-I know that he became answerable either for an account or for the value of boats, or perhaps for both; but I could not say what he may have done with regard to the Commercial Bank.

13,666. Are you aware that Williamson obtained letter from Mrs. Budge's agent requiring the fishermen on Seafield to fish for him?-I am not aware of that; I never heard of it before.

13,667. You showed me before the correspondence which had taken place between Mr. Leask and Mr. William Jack Williamson. In a letter dated 7th December 1869 Mr. Leask stated that he had directed the fishermen to fish to him (that is, Williamson), and that Williamson had become liable to him (Mr. Leask) for the rents as James Johnston had done: had he done so?-I suppose Mr. Leask simply recommended them to fish for Williamson; he did not direct them.

13,668. But the word used in the letter is 'directed?'-That simply means recommended. Mr. Leask never directed them to fish for Williamson, or to fish at all. They might have gone to the ends of the earth, to the south, or elsewhere, for anything he cared; but when they did fish, I suppose he wished them to fish for Williamson.

13,669. Probably that recommendation would be taken into account in fixing the rent to be paid for Williamson's premises at Ulsta?-It was not. The rent has never been reduced on account of that.

13,670. But it would not be reduced; it would rather be raised, because that would increase the value?-There was no such understanding at all. I deny most positively that Williamson's rent was increased in consequence of the tenants being allowed to fish for him.

13,671. Was Williamson on the property when Mr. Leask bought it?-Yes. Mr. Leask has been at very great expense on Williamson's property, repairing houses, and one thing and another, and very likely he would have raised the rent in consequence of that. I think he paid about £20 one year for improvements, and there were other improvements carried through which cost a great deal of money; and I consider that Mr. Leask was entitled to a percentage upon that.

13,672. Did he get a rise of rent?-I don't know that he did. I am only saying that if he did get it he was entitled to it.

13,673. But is it not reasonable to suppose that man can pay a higher rent for a piece of ground if the fishermen in the district are under an obligation to deliver their fish to him?-He ought certainly to pay more for a monopoly; there is no doubt about that.

13,674. Do you not know whether the rent was altered after Mr. Leask bought the property?-I believe the rents in general were raised a little,-not the whole of them, but a great many of them,-because Mr. Leask has been at a great deal of expense in building new houses, and otherwise.

13,675. Have you any doubt at all that the fact that the fishermen were fishing for Mr. Williamson and Mr. Johnston was taken into account in fixing the amount of their rents?-It had nothing whatever to do with the fixing of the rents.

13,676. Was it merely as a favour to the merchant who occupied the premises that the tenants were directed to fish to him?-Quite so. It was merely a favour to recommend the tenants to fish for him.

13,677. That was no favour to the fishermen, however?-I don't think it was, but it did them no injustice, because I have no doubt Williamson would have paid them the same price as other people.

13,678. Did Williamson become liable to Mr. Leask then for the rents of the fishermen?-No, never. Williamson never became liable for anything but the balance in his hands.

13,679. Mr. Leask's letter states that he had directed the fishermen to fish to him, and that Williamson had become liable to him for the rents, and he complains also that Williamson had not fulfilled that obligation: had he not become liable?-He may have talked about doing so, but he never did so.

13,680. Did he promise to become liable?-He may have promised to become liable, but to the best of my knowledge, he never did so.

13,681. Is it not a very usual, indeed almost a universal, arrangement in Shetland, that some of the fishermen's rents are paid to the proprietor by the fish-merchant to whom his tenants fish?-Yes; I believe that is quite common.

13,682. Is it not very often done by debiting the fishermen with the amount of the rent in the fish-merchant's books, and the fish-merchant handing a cheque to the proprietor for the slump sum of the rents due by his fishermen?-Yes, that is quite common.

13,683. Is it not almost universal?-I believe it is, but in this case it was not done. Williamson simply paid the balance in his hands which was due to the fishermen. When the balance could not pay for the rent, of course Williamson did not make it up.

13,684. He did not pay any rents for fishermen who were not able to pay for themselves?-No.

13,685. But James Johnston had done so, and fulfilled his obligation?-In one or two cases, I believe, Johnston did so. I could not even say that he has done that, but I

think there was some understanding of that sort.

13,686. In that letter of December 1869 to Williamson, Mr. Leask refers to Johnston as having fulfilled the stipulation on that point which Williamson had failed to do. I suppose you have no reason to doubt that that statement is correct?-None; only I was not aware of it. I did not pay any attention to that part of the letter.

13,687. Is it the practice for Mr. Leask to pay to the proprietors the rents of a number of fishermen who have accounts with him?- No; he pays no rents for the men whatever.

13,688. That practice does not exist in connection with the Faroe fishermen?-No. It is only in the home fishing, so far as I know, that that is done.

13,689. Are the rents of any of the men employed in the Faroe fishing by Mr. Leask paid through him to the proprietors?-If an individual gave an order on Mr. Leask in favour of the proprietor, of course it would be paid if the fisherman had funds in Mr. Leask's hands to meet it.

13,690. But not otherwise?-Not otherwise. No guarantee is given.

13,691 Are such orders frequently given?-Frequently; at least they are not uncommon.

13,692. A fisherman sometimes, at or before settlement, gives an order on the shipowner in favour of the proprietor?-Yes.

13,693. And you may perhaps have a number of such orders from the tenants of a particular proprietor?-We have some, but very few.

13,694. When a number of such rents are payable to single proprietor, do you give him one cheque for the whole?-I don't remember any order of that kind being given, except one.

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13,695. I believe you wish to make some additional statement with regard to the Greenland whale fishery?-Yes. With your permission I would again refer shortly to Mr. Hamilton's report, in case there is anything in it which I left uncorrected when I was previously examined. I think I showed last day that crews have been discharged within about one month or less from the date of their being landed; and I referred to the crew of the 'Esquimaux' in May 1870, and to the crew of the 'Polynia' from Davis Straits in November 1871. The former crew contained the latter, I think, 19 men, who were discharged within less than a month.

13,696. Have you known any other cases in which the crews were discharged as rapidly?-I refer to the shipping master of the port for other cases. I have no doubt there are plenty more.

13,697. Are there any others within your own knowledge?-I don't remember any, but I have no doubt there are others. I admitted that in some cases seamen have taken an unreasonable length of time before coming to be discharged; but I explained that that was not the fault of the agents, but of the men themselves. Then I deny that

the truck system in an open or disguised form prevails in Shetland to an extent which is unknown in any other part of the United Kingdom. I have no proof to offer in contradiction of that statement; I simply deny it, and I don't believe it.

13,698. What is the population of Shetland?-About 30,000.

13,699. Of these, how many do you suppose consist of fishermen and their families?-I should say that perhaps about three-fourths of them are fishermen and seamen, and their families.

13,700. I suppose the seamen are mostly the younger members of the families?-Yes.

13,701. Is it not the case that almost every fisherman has an account with the merchant to whom he sells his fish?-Yes; but I don't consider that to be truck at all.

13,702. That account is settled at the end of the year, part of the value of the man's fish being taken out supplies of goods, and the balance being paid in cash, if any balance is due?-Yes. He simply has an account, in the same way that all the retail merchants in Shetland and everywhere else have to deal with wholesale merchants, and have to pay them.

13,703. Do you suppose Mr. Hamilton meant anything else than that by saying that the truck system prevailed in Shetland?-I am not bound to know what he meant, but I deny his statement.

13,704. I presume he merely intended to state that a great part of the earnings of every fisherman, as well as of some other people in Shetland, were really settled by taking out goods from the employers. Do you suppose he meant anything else than that?-I am afraid he did. I am afraid he meant to convey the idea that the men got nothing but goods when they should have got money.

13,705. Is it not the case that many of them do get nothing but goods?-That is their own fault.

13,706. Still it may be the fact although it is their own fault?-It may be the fact, because the men earn very little, and they require supplies of provisions and clothing; and no person would give them such supplies unless the person who employs them. But I don't think that is truck, in the common meaning of the word.

13,707. Then the difference between you is rather a dispute about the meaning of the word truck than as to the actual state of matters in Shetland?-I would not even admit that. I don't think there is any room for complaint about the state of matters in Shetland, as a rule.

13,708. I suppose you mean that the fishermen have a certain advantage by getting advances of goods?-Of course they have.

13,709. But you do not mean to deny the fact that they do get such advances when they require them?-Of course I don't deny that; but the shipowner or curer runs a great risk in advancing goods on the security of fish which have to be caught. It is a very good thing in a good season, but in a bad season he may come rather short.

13,710. On the other hand, he does not pay for the fish that are caught until six or seven months afterwards?-He does not realize them until then. None of the fish-curers get one penny for their fish until about the end of December, except perhaps for a very small parcel which they may send to a retail dealer in the south.

13,711. That may be quite true; but is any employer of labour in a better position?-Yes.

13,712. A farmer, for instance, pays his labourers weekly or fortnightly, as the case may be, and he very often does not realize his crops until many months afterwards?-That is true; but he is selling his butter and milk and cattle.

13,713. Still it does not follow that he is paid for them at the time?-Cattle, I think, are generally paid for in cash.

13,714. But there are other producers, such as manufacturers, who are only paid by long-dated bills, generally at three months?-Yes; but here the merchant does not get his return until the end of twelve months. The fish-merchant or curer begins to advance in the beginning of January, and he continues to advance until the end of December, without getting any money back; so that he lies out of his money for twelve months. He neither gets money from the party to whom he advances the goods, nor from the party to whom he sells his fish.

13,715. Do you think that is the main justification for the long settlements which are made with the men?-Of course it is.

13,716. Is it not possible for a fish-curer beginning business on a small scale, to carry on his business without any capital at all, or almost without capital?-If he gets assistance he may, but it is not possible to do it without assistance. No one can carry on business to any extent without capital.

13,717. But he requires only a limited capital, does he not?-He requires a good deal of capital, but it depends entirely upon the extent of his business.

13,718. He has no wages to pay until about the time when he realizes the sales for the year?-But he has goods to supply or money to advance.

13,719. But he may have a certain amount of goods which may be got at three or six months' credit, according to arrangement?- Yes.

13,720. For instance, Mr. Thomas Williamson, at Seafield, does not pay for his goods, I presume, until his fish are sold to Mr. Leask?-That is an exceptional case. If Mr. Leask or Mr. Adie, or any other person, chooses to accommodate such a person as Mr. Williamson, they may do so; but that is not the rule, by any means.

13,721. It is an exceptional case in this respect, that the fish-curer there has a very small capital, and that he has obtained goods on credit?-Yes.

13,722. Still it illustrates the possibility of doing these things under the system which prevails?-Yes, I may mention that the merchants in Lerwick are not so hard as merchants in the south, in requiring that money must be paid at the end of three or four months. A merchant in Lerwick may allow his account to run on for twelve

months, because that is the custom of the country.

13,723. Is that the only other point in Mr. Hamilton's report which you wish to refer to?-No. I deny that almost every fisherman in the island is in debt, and that his wife and other members of his family are also in debt.

13,724. How do you know that?-I would refer you to the bank-books, particularly to those of the Union Bank, and also those of the Commercial and National Banks, and of the Post Office Savings Bank, and the Seamen's Savings Bank.

13,725. Are these all the banks in Shetland?-Yes.

13,726. Are you aware that men who take advances in goods and cash from you as their employer frequently have considerable sums in bank?-Yes. I can point to a home fisherman, not a tenant of Mr. [Page 342] Leask's, who has accumulated between £100 and £200 within the last few years.

13,727. Does he take large advances?-I don't know what he takes; he does not deal with Mr. Leask at all. I can also point to a man in the Greenland trade, who within the last six years has saved up, I think, about £130 or £140.

13,728. Do these men obtain advances from their employers in the same way as other men?-Yes; they have accounts in the same way.

13,729. But they have a large balance at the end of the year; probably they don't allow their accounts to exceed their earnings?-Quite so.

13,730. You don't know about the debts which stand in the books of other merchants?-No.

13,731. So that you really cannot say to what extent fishermen are in debt to merchants other than Mr. Leask?-I cannot say to what extent they are in debt to other merchants; but I don't believe they are in debt to any great extent. Part of them may be in debt to some extent, but not the majority. The debtors must be a minority among the men.

13,732. What is the next point in the report to which you wish to refer?-I have already proved that the average quantity of ground on the farms of Mr. Leask's estates in Sound and Whiteness is about 12 acres, and not 3 or 4 acres, as Mr. Hamilton alleges, and I produce the rent rolls and plans to show that the rent is under 10s. an acre. In addition to that, in Sound and Whiteness the tenants have the free use of extensive scattald for their sheep and cattle.

13,733. Are the farms divided there?-Yes, they are all divided. In Yell the tenants have an unlimited amount of sheep pasturage, for which they pay 6d. per head per annum.

13,734. Still these estates of Mr. Leask's only form a small portion of the land in Shetland?-Yes; but I believe they may be taken as a fair criterion for the rest.

13,735. Then you would say that this would have been a fair statement if it had run thus: 'These fishermen for the most part also rent small farms of about 10 to 12 acres, paying a rent of about £6 a year?'-Yes; from £5 to £6 a year on the average. The rents

range from perhaps £3 to £12, but on an average they may be taken as from £5 to £6. Then I admit that the direct profit from the shipping agency or the commission allowed to the agents is not a sufficient remuneration for the trouble the agents have and the work they have to perform. I also admit that they do make some profit from their customers; and also that many of the men engaged are utterly unable, without assistance of the agents, to provide themselves with the clothing necessary for the voyage; but I explain that in consequence of that the agent is very often sacrificed in the event of a bad voyage, because then a number of the young hands in the Greenland trade are always in debt.

13,736. Is it within your experience that a much smaller number of green hands is now employed in the Greenland fishery than formerly?-Yes, the number is much smaller than it used to be.

13,737. Is that in consequence of the reluctance of the agents to engage green hands who require an outfit?-Yes. The agents do not wish to give £5 or £6 of an advance for outfit to young hands who have only 30s. to get.

13,738. Therefore they single out more experienced hands, who get larger wages and require no outfit?-Yes, that is my experience.

13,739. Has that tendency been very strongly exhibited within the last few years?-It has been very strongly exhibited of late.

13,740. The agents have made a great effort to exclude young hands, and to obtain experienced men?-Yes, and that admittedly in consequence of the risk attending the advances to the young hands.

13,741. Have the masters of the ships concurred in that course of conduct?-They generally do so. So far as the sealing voyage is concerned, they generally prefer to have experienced hands, but in the whaling voyage they may have about one-fifth of young hands.

13,742. Have they complained about the reduction in the number of young hands engaged for these voyages?-I cannot say that they have.

13,743. Are the gentlemen here who act as agents authorized in any way to engage men for ships?-The masters of the ships are invariably present when the men are engaged; indeed they engage the men themselves.

13,744. Then no engagement is made by the agents?-Very seldom, unless in presence of the master.

13,745. Is that in order to comply with the 147th section of the Merchant Shipping Act?-No; it is because the masters prefer to see the men they engage. Two or three years ago, I think in 1869, we engaged about sixty men and sent them to Dundee; but the masters did not like that plan, and preferred to see the men themselves.

13,746. Are you aware that the 147th section of the Merchant Shipping Act provides, that 'if any unauthorized person engages or supplies any mate, seaman, midshipman, or apprentice, to be entered on board any ship in the United Kingdom, he will be liable to be prosecuted; and if convicted, to a penalty of £20 for each

offence?' I was not aware of that.

13,747. It is also provided, that 'the only persons authorized to engage or supply mates, seamen, midshipmen, and apprentices, are the following: owner, the master, or the mate of the ship, or some person who is the bona fide servant and in the constant employ of the owner; the superintendent of a Government Mercantile Marine Office, or an agent licensed by the Board of Trade?'-I may mention that Mr. Leask is part owner of most of the vessels for which he acts as agent; indeed of all except one.

13,748. Therefore he would not fall within that clause as you read it?-No; he would not come within that.

13,749. But you say that, in point of fact, the practice here is, that the seamen are engaged by the master of the ship?-They are virtually engaged by the master.

13,750. And what takes place between the men and the agent before that engagement, is merely of the nature of preliminary negotiations?-Quite so; they are all engaged in presence of the shipping master and the master of the vessel, or at least legally engaged. That is the only binding engagement which is made with them; and it is made in presence of the shipping master and the master of the vessel. It frequently happens that we may arrange in Mr. Leask's office with men to go in the ship, and they fail to appear at the Shipping Office; so that the agreement in the office of the agent is not at all binding.

13,751. Do you remember any occasion of the master of a ship objecting to take any man whom you had recommended to him?- I cannot say that I remember that, but it may have occurred. We generally endeavour to get good men; but when men are scarce, we may have been forced to take what men we could get, and these may not have pleased the master altogether.

13,752. Do you remember any occasion on which the master of a ship objected to take the men whom you wished him to take, and suggested that you were asking him to take men who had accounts with you in preference to others?-I don't remember of that; it may have occurred, but I don't think so. I have known us sometimes trying to persuade a master to take a young lad, out of charity; and sometimes he would do so, against his own inclination.

13,753. Mr. Hamilton says, 'It is quite common for allotments of wages to be made out in favour of the agents; or, in other words, for the agent to undertake to pay himself part of the seaman's wages.' Is that so?-I already explained that we never gave allotments.

13,754. He also says, 'Even those men who are able to pay for their own outfit, and who might be able to obtain it at a cheaper rate from some other shopkeeper, are practically debarred from doing so?'-I deny that most emphatically.

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13,755. Do you say that a man who obtains an engagement through Mr. Leask or you is quite at liberty to go to any other shopkeeper and obtain his outfit from

him?-Yes; he can go wherever he pleases. Every man gets his advance note from the shipping master, or at least in his presence, when he engages.

13,756. Have you never invited any of these men to obtain their outfit at your shop?-We never invited them, but plenty of them have done it.

13,757. Have none of Mr. Leask's people invited them?-No, we never invited them; but they mostly all take a certain amount of goods from us, for all that.

13,758. Do the preliminary negotiations to which you refer generally take place within Mr. Leask's premises?-Yes; but sometimes I have seen it done on board ship.

13,759. Are the same men generally engaged by you for a succession of years, or do they change from one agent to another?-It is not very common for masters to change their men. The men generally stick to one master, and a great number of them stick to one agent; but it is quite common for them to change agents. Mr. Hamilton also says, 'Any man who carried his custom to any other shop than to that of the agent employing him would run the risk of being a marked man, not only with that particular agent, but also with all the others, among whom the news of his contumacy would soon spread.' I deny that entirely.

13,760. I think you told me in your previous examination that no lists were now exchanged between agents?-It was the custom at one time to exchange lists of balances due by seamen, but it is not done now.

13,761. How long is it since that custom ceased?-I have seen very little of it for a number of years.

13,762. Is it half a dozen years ago since it was given up?-Fully that.

13,763. Have you known any case of a man being refused employment in consequence of dealing with another agent for his outfit?-Never. We were always anxious to get hold of good seamen, whether they dealt with us or not.

13,764. Has that never occurred in the case of middling seaman?- No; even then we never objected to take any seaman in consequence of him going elsewhere with his custom.

13,765. Has there been a large supply of seamen during the last few years for the Greenland trade?-They have been about equal to the demand, certainly not more. I think when the ships were all manned last year, the men were done. There may have been few boys left, but the men were done when the ships were done,

13,766. Have you known any case of a man obtaining an engagement through you and getting his outfit from another shop?-I have no doubt there are plenty of cases of that kind, but I could not point to any particular case.

13,767. Do you remember of any such case occurring?-I cannot say that I remember; but I know that there are plenty of our men who buy very little, perhaps only a few shillings' worth, from us when they go.

13,768. But do you know any case of a man in want of an outfit, engaging with you and getting that outfit from another employer?-I cannot point to any such case.

13,769. The cases which you have in your mind, in which the men have bought very little from you, may be the cases of men who have been for many years at the fishing?-Yes, and who did not require an outfit.

13,770. What was the state of the supply and demand in 1870?-I think it was very much the same as in 1871: the supply was just about equal to the demand, but in 1867 the demand was greater than the supply. In March of that year the 'Jan Mayen' had to leave here three or four men short of her complement. In 1868 I think the supply was about equal to the demand, and also in 1869. In the summer of 1869, after the month of May, the supply was fully greater than the demand.

13,771. Were there few vessels going to the whaling that year?- Yes. In May there were some vessels here engaging men, but we had more men that year than ships.

13,772. How did you select your men that year?-The captain selected there.

13,773. Had you no voice in their selection?-I was not present when they were engaged. Mr. Leask and Mr. Andrew Jamieson were present. I refer to the 'Camperdown' and 'Polynia' in May 1869.

13,774. Were these your only whaling vessels that year?-We had more; but I think we had only these two in at that time when the men were so plentiful. With regard to Mr. Hamilton's report, again, I admit there is no time fixed for settlement, but I have already explained that we cannot compel the men to come until they like. I also deny that the men have to give back all the money that they receive. I have shown that we paid £1120, 12s. 3d. to the crew of the 'Camperdown' in 1865.

13,775. Mr. Hamilton does not say that the men had to give back all the money that they received. What he says is, 'The man has no option but to hand it all back to the agent at once, to whom he is indebted in an equal or greater amount.' That is only that the men who are in debt to the agent in an equal or greater amount have to hand back the money to him?-The idea that is conveyed is, that every man is in that position.

13,776. Do you deny Mr. Hamilton's statement, that 'when the whalers return after a short and successful voyage, it is, under this system, manifestly to the agent's interest that the Shetland portion of the crew should not be settled at once?'-Yes, I deny that. I say that no man has to ask twice to be settled with.

13,777. That is not the question. Is it to the agent's interest that the settlement should take place at once or not?-If we wish to have as little trouble as possible, it is our interest to settle with the men at once; but if an agent wishes to retain the men's money in his hands for a month or so, it may be a little to his interest then to delay the settlement.

13,778. May there not be a good deal of money his hands belonging to the men?-There may.

13,779. It is quite a different question whether the agent acts as his interest dictates, but still it is to his interest in such a case to delay the settlement for some time?-I admit that it may be to his interest to retain the money, but I deny that he

delays the settlement on that account.

13,780. He may have an interest to retain the money, and it may also happen that a certain amount of supplies is being taken out by the men before they are settled with?-It is very seldom that a man buys anything after he comes home.

13,781. But even although that has not occurred in your business, it is quite possible that in other businesses, or in the hands of an unscrupulous agent-I don't suppose there are any such here,-the settlement may be protracted in order that the agent may retain the money in his hands, and be running up an account against the men at the same time?-I say that the shipping agents in Lerwick are all highly respectable men.

13,782. That is assumed in my question; but I am putting the case of another kind of men engaging in the business. I suppose you can conceive such a case?-Such a case is possible. Shetland is not exempt from bad men.

13,783. In such a case, might not the settlement be protracted for such reasons?-I don't think it could, because, if the settlement is unduly protracted, the man has nothing to do but apply to the shipping master and complain.

13,784. Still that would require an application to the shipping master in order to get it put right?-Yes.

13,785. Do you deny this statement of Mr. Hamilton's: 'I need hardly point out that it is clearly most important, in the interests of the man, that he should not merely nominally but actually receive his [Page 344] wages in cash, and be able to spend them as he likes?'-That is common sense. There can be no doubt about that. Then Mr. Hamilton says, 'But while the men employed are not free agents,'-I deny that,-'however fair an employer may desire to be, he cannot treat them as if they were; and if, on the other hand, the employer wants to make all he can out of those he employs, and to take every advantage of their dependent position, he has unlimited opportunity of appropriating to himself all the result of their labour,'-I deny that,-'leaving to them only so much as is absolutely necessary to prevent them from starving.' I deny that he has the opportunity of doing that.

13,786. You will observe that it is not alleged that any agent in Lerwick does so. All the allegation which Mr. Hamilton makes is that the opportunity exists?-I deny that there is such an opportunity, because Shetland men in general are very intelligent. They are not at all what they have been represented to be. They are a very sharp, acute, intelligent lot of people, and they are perfectly able to take care, and do take very good care, to protect themselves, and to make sure that their accounts are just. I further think they are very provident, as can be proved by the amount of deposits in the banks. I don't think they are an extravagant people at all. In my opinion they are a very careful, active, energetic, intelligent people, as a rule, much more so than will be found among the same class of people in other parts of the United Kingdom.

13,787. Do you think it is a sign of independence and intelligence, and care in money matters, that fishermen and seamen should leave all these matters in the hands of merchants and landlords?- They don't always do that.

13,788. In the majority of cases they pay their rents through their fish-merchant, and many of their accounts are paid by him?-That must be so, because they have no other means of doing it.

13,789. Most workmen in other parts of the country have their wages in their own hands every fortnight or every month, and can disburse them at their own pleasure; whereas in Shetland the universal practice is for the fisherman to run an account with the fish-merchant to whom he delivers his fish, and the fish-merchant transacts all his money matters for him. Do you think that is a proof of their intelligence and independence?-The man has merely a current account as he would have with a banker. He gets money, or anything he likes, if he wishes to pay an account. I suppose the fish-merchant, if he has money in his hands, would give it to him; but to settle with the fishermen every week or every fortnight is utterly impossible in Shetland.

13,790. Why?-Because the fishermen are in a sort of partnership with their employers. For instance, in the Faroe fishing it is a joint speculation betwixt the men and the owner. The men supply their time and labour, and the owner supplies the vessel and other things, and the men cannot get their share of the proceeds until the fish are dried and sold. It is quite impossible for the fish-merchant to settle with them every week or every fortnight unless they have been paid by wages. Of course, if they were paid by wages, the curer could settle at short intervals with the men, or with some one on their behalf when they were away.

13,791. Is it not the fact that in almost every case the fishermen depend for the accuracy of their accounts upon the fish-curer?- No, they all have a good check upon their accounts. They have them carefully read over, and every item criticised; and if they don't remember exactly about a particular article, they will not settle for it until they do remember.

13,792. You are now speaking of the Faroe fishing and the Greenland fishing, of which you have had experience?-Yes.

13,793. Is there anything else you wish to say?-I should wish to refer to certain passages in the previous evidence given before the Commission in Edinburgh. In question 44,207 Mr. Smith is asked, 'Is it a fact, that very little money passes between the proprietor and the fishermen on these occasions?' [that is, at settlement], and he replies, 'It is the fact.' I say that it is not a fact, and I have proved already that the men do get money. At Ulsta the amount earned was £86, and the cash paid was £72.

13,794. Of course you are only speaking now of what comes under your own observation in Mr. Leask's business?-That is all. Then in question 44,219 Mr. Smith is asked, 'As a rule, are these fishermen in their debt?' and he replies, 'I think very often they are.' Now I say they are not in debt. The balances at the end of the year are generally in their favour. Then, in question 44,225, referring to the payment of the men employed at Greenland, Mr. Smith is asked, 'Are the wages handed over to the agents?' and he replies, 'The fishermen have the right of insisting that their wages should be paid at the Custom House in terms of the articles, but that is very

extensively evaded.' I deny that.

13,795. Have attempts never been made to evade that rule about paying wages at the Custom House?-I don't think so. There is no chance of evading it:

13,796. Do you say that no attempt has been made to make deductions other than those allowed by the statute at the time when the wages were paid at the Custom House?-I say that, during the first year or two, settlements were made in the Shipping Office of the agents' accounts as well as of the men's accounts.

13,797 Was not that an evasion of the Merchant Shipping Act?-I cannot say as to that.

13,798. When is the last payment of oil-money made?-It is not always at the same time. Sometimes it is in November, and sometimes in December.

13,799. Where is it paid?-At one time it used to be made in the Shipping Office also, but now it is invariably in the agent's office.

13,800. Is not that an evasion of the Merchant Shipping Act?-I don't think so. It is an arrangement between the parties. Mr. Smith further says, that what he calls the evasion of the Act is as much at the wish of the fishermen as at the wish of the proprietor. That conveys the idea that the Greenland men are generally tenants of the agent, but I may say that in the 'Camperdown' crew in 1865 only one man was tenant of Mr. Leask. In question 44,243 Mr. Smith is asked, 'Confining ourselves to the whalers, is there any reason why the settlement should be so long delayed?' and he replies, 'I see none, except to save the merchants trouble.' I deny that; and I say that it gives the merchants more labour and trouble to be going up to the Shipping Office so often.

13,801. In the following answer Mr. Smith says the fisherman has the power to insist on the settlement taking place at the Custom House if he chooses. Have you known any cases where they have insisted on that?-They don't require to insist. So far as we are concerned, they never have to ask twice to be settled with.

13,802. Had you any applications from Shetland men before 1867 to have such settlements at the Custom House?-I cannot say that I remember any. The custom then was to pay the men as soon as we got the remittance from the owner, which was generally about a month after the ship landed her crew. No doubt, if a man had come before then wishing for settlement, we would have refused to settle with him if we had not got the remittance. That, however, was previous to 1867.

13,803. If a man insisted on getting payment and going to the Custom House then, what would have taken place?-The Custom House did not interfere then at all.

13,804. Then there was no case before 1867 or 1868 of a seaman asking you to go and settle in presence of the superintendent?- No.

13,805. And such settlements were never made presence of the superintendent?-No, except in 1854 and 1855, and I explained why we settled there then.

13,806. But from 1854 or 1855 down to the issuing [Page 344] of the notice in February 1868, there was no instance of the settlement being made before the superintendent?-None, to my knowledge.

13,807. The accounts during that time were settled invariably in the agent's office, in the same way and on the same principle as fishermen's accounts?-Yes. Then, in answer to question 44,247, Mr. Smith says he considers the system of barter to be hurtful to the independence of the people very much. I deny that the people are not independent. I consider them to be as independent as any people in the kingdom. Mr. Smith also says, 'They don't know the value of money, and they don't know how to eke it out, or make it last. They are very improvident in that way, and a men's energies are entirely destroyed.' I maintain that the Shetland people know very well the value of money, and they also know how to eke it out and make the most of it. I also say they are not improvident or extravagant, but the reverse.

13,808. Do you think a man who is deeply in debt fishes as well as a man who is not in debt?-It is an exception when a man is deeply in debt: but that statement is a charge against the whole people of Shetland. There are exceptions to every rule, and it may be the case that some men are in debt.

13,809. But you don't know the circumstances of the whole people of Shetland?-I have a pretty good idea with regard to most of them.

13,810. Would it surprise you to be informed that two-thirds of the fishermen in any district in Shetland were in debt at settlement to the merchant to whom they sold their fish?-Yes, that would surprise me.

13,811. Then the opinion you have formed as to the character of the Shetland people proceeds on the supposition that that is not the case?-It proceeds upon my own experience with Mr. Leask's tenants and fishermen and seamen.

13,812. Would it surprise you to hear that a large proprietor in Shetland had said that fishermen required to be treated like children,-that they could not manage their own money matters,- and that therefore he was obliged to take them into his own hands?-I would be surprised to hear that, and I would not agree with it at all. I have found them all to be very intelligent and very sharp, and perfectly able to take care of themselves.

13,813. Do you think the men who are engaged in the ling fishing are of the same class as those with whom you have had dealings?-Some of them are the same, and I think the men employed both in that fishing and in the Faroe fishing are all much the same. They have all had the same opportunities. Then in Mr. Walker's evidence, in answer to question 44,366, he estimates that £60 or £70 goes into a Shetland house every year. I think that is an over-estimate. About one half of that would be nearer the truth.

13,814. But his estimate of what goes into a Shetland house does not apply to fish merely, but to all produce and stock from the farm, and kelp and hosiery?-Still I consider that to be an over-estimate, and I think about one half the sum he named would be nearer the mark. Then, in question 44,368, he is asked, 'But the greater

portion of that is not paid in coin?' and he replies, 'Not a fraction of it. If a man gets £1 or £2 out at the end of the season, it is an extraordinary thing.' I deny that most positively, and I have proved it not to be the case.

13,815. But that is only in your own business?-Yes. Then, in answer to question 44,386, Mr. Walker says the cost of rearing a lb. of Shetland wool was something like 8s. to 10s. He must have been taking leave of his senses when he stated that. In order to disprove his statement, I say that Mr. Leask's tenants in Yell pay 6d. a head for sheep for grazing over a whole twelve months, and a Shetland sheep carries from 2 to 3 lbs. of wool on an average, so that the cost of rearing it is something like 21/2d. or 3d.

13,816. But you don't include the price of the sheep or other expenses except that of pasturage?-There are no expenses, except driving now and then. They don't require to feed them in winter, except perhaps for a day or so, when there is snow on the ground.

13,817. Do they get no artificial food?-No. Very little of that is ever imported.

13,818. You don't take into account the rent which the tenant pays for his ground?-That has nothing to do with the rearing of the sheep. They are reared altogether on the scattald.

13,819. But the use of the scattald is limited to tenants?-No. Those who are not tenants get permission from Mr. Leask to graze sheep on the scattald at 6d. per head, being the same rate as for tenants.

13,820. Is that the usual practice in Shetland?-I don't know that it is, but that is the practice with Mr. Leask, and plenty of people who are not tenants of his enjoy the same privilege. I merely mention that to disprove this statement of Mr. Walker's, which is so glaringly incorrect. I hold that 1 lb. of Shetland wool as bought from Mr. Leask's tenants costs only from 2d. to 3d. I don't think I need take up your time by going over the evidence any further. I would merely say that I disagree with all, or almost all, of Mr. Walker's statements. The parts of his evidence with which I more particularly disagree are contained in the answers to the following questions:-Nos. 44,290, 44,316, 44,318, 44,319, 44,337, 44,345, 44,346, 44,351, 44,353, 44,366, 44,368, 44,369, 44,370, 44,372, 44,374, 44,384, 44,385, 44,386, 44,389, 44,392, 44,411. The statements in Mr. Smith's evidence which I more particularly deny are contained in the answers to the following questions:-Nos. 44,160, 44,195, 44,222, 44,225, 44,226, 44,241, 44,244, 44,245, 44,246, 44,247, 44,248, 44,252.

13,821. Is there anything else you wish to say?-No.

Lerwick, January 27, 1872, JOSEPH LEASK, examined.

13,822. I believe you are the largest employer in the Faroe trade, and also one of the largest fish-curers in the island?-I am one of the largest: I don't know that I am the largest.

13,823. The previous witness, Mr. William Robertson, has been for a long time in your employment?-Yes.

13,824. He came forward to be examined, I understand, at your suggestion, in order that you, being advanced in years, might not require to do so?-Yes; and he has been more in the habit of settling with the men than I have been myself.

13,825. Have you heard the greater part of his evidence?-I have.

13,826. Do you know it to be correct?-I do.

13,827. You concur in it generally?-Yes. There is only one point on which I would make a remark. With regard to some fishermen getting higher prices than others from small curers, I know there were one or two parties who got more last year, the reason being that there are frequently parties in Scotland who get orders for fish for Australia, and these parties give a higher price than ordinary in order to get good fish, and they are shipped earlier in the season than the bulk of the fish. Last year, also, one or two curers shipped to parties in London at a higher price, and consequently were able to give a higher price to their fishermen; but that was only an exception.

13,828. That would not explain the fact of certain curers paying a higher price every year?-No.

13,829. Is there anything else you wish to state?-No.

Lerwick, January 27, 1872, LAURENCE SIMPSON, examined.

13,830. Are you a tenant on the estate of Lunna?-I do not wish to give any statement before you at all, [Page 346] because the proprietor may not look well upon me, and perhaps may raise my rent or warn me. My name has been put in to you privately without my knowledge. I did not give it in myself.

13,831. Every one knows that you do not come here of your own free will, but that you have been summoned to come just as you would be summoned as a witness in a court of law. Now that you are here, you are bound to answer the questions which are put to you, and to speak the truth?-I will do so as far as I can, and as far as my memory will enable me.

13,832. Then you are a tenant on the estate of Lunna?-I am.

13,833. Are you bound to fish for the tacksman of Lunna?-I believe I am, so far as I can understand.

13,834. You have no liberty to sell your fish to anybody else?- No.

13,835. Was there a meeting held at Lunna about eight or ten years ago, at which Mr. Bell and Mr. Robertson were present and told the tenants that they were expected to fish for Mr. Robertson?-I believe there was.

13,836. Were you there?-I don't remember.

13,837. But you knew about it?-I heard that Mr. Bell had delivered the fishing over to Mr. Robertson.

13,838. Was that the reason why you did not want to come forward to-day?-Yes.

13,839. You knew you were bound to fish, and you did not want to say anything to the contrary?-Yes, in case it might affect me in any way with them.

13,840. Would you prefer to have your liberty?-Of course; but my days are done now. I have been bound to serve the estate since I was eleven years of age, and now I am sixty. I was two years at the beach when I was a boy; and I went to the ling fishing when I was thirteen.

13,841. Has there been any time since then when you could have sold your fish to anybody else than the landlord or his tacksman?-I could have sold some of them to small fish-curers or yaggers if I had pleased; but I did not attempt to do so, because I thought I was bound to fish for them.

13,842. Are there small fish-curers or yaggers who buy fish on the sly in the summer?-Yes.

13,843. But in the winter you can sell your fish to any person you please?-I don't think we can do that either. None of the tenants can sell their fish in winter unless they do it privately.

13,844. Do they all sell their winter and spring fish to Mr. Robertson at present?-Yes.

13,845. Have they always sold them to the proprietor or his tacksman?-Yes, except those who sell them privately.

13,846. Are there many yaggers about Lunna?-Not many.

13,847. Do they come round in the course of the season and attempt to buy fish from you?-There is one or two of them in Skerries. Mr. Adie is there.

13,848. But he is not a yagger?-No> John Hughson is also there. Thomas Hughson was there for a while.

13,849. Who does Hughson act for?-John Hughson has only one boat; but I believe he would buy fish from any one if he could get them.

13,850. Where does Hughson live?-John Hughson lives at Coppister, in the south-west part of Yell; and he has a man in Skerries who cures some fish for him. I think they are in partnership in some way.

13,851. What is the name of the man in Skerries?-I cannot say.

13,852. Have you seen men selling their fish to Hughson's factor in Skerries?-No.

13,853. But you know that he is ready to buy them-I hear that.

13,854. Do you think that a man selling his fish to these men, or to any other yagger, would lose his farm?-I don't know.

13,855. But you don't sell to these people yourself, for fear of losing your farm?-I wish to serve the man that I am bound to, and to sell all my fish to him, so far as I can.

13,856. Are you bound to fish for him by your own free will?-I believe it is the landlord who has bound me, but I cannot say.

13,857. Can the landlord bind you unless you agree yourself to be bound?-I am his tenant, and I must submit to his terms.

13,858. Could you not get another holding if you were not satisfied?-The holdings are very difficult to get, because a large part of Shetland has been laid out in sheep farms, and tenants have no opportunity of getting places.

13,859. Do you know John Johnston and Arthur Anderson, who were once in Lunna, and who went over to Burravoe some years ago?-Yes.

13,860. Do you know why they left?-I cannot say, unless it was because they were not satisfied in some way or other, and looked out for better places.

13,861. Did they not leave because they did not want to be bound to fish?-I cannot say.

13,862. Where do you get your supplies?-I purchase them in Lerwick, or wherever I can get them cheapest, except when I run out, and then I take them from the shop at Vidlin.

13,863. Do you buy much in Lerwick?-Sometimes I buy a good quantity; but when my stock runs out, I go to the merchant who is nearest to me for any small thing I want.

13,864. Then you don't get much of your supplies at Mr. Robertson's shop at Vidlin?-I can get any supplies there that I ask for, but I wish to go where I can purchase them cheapest.

13,865. Can you purchase them cheaper in Lerwick than at Vidlin?-Yes; but of course we must allow for freight.

13,866. But, allowing for freight, do you think you are cheaper, on the whole, by buying in Lerwick rather than in Vidlin?-Yes.

13,867. What kind of goods do you get at Vidlin?-Meal or tea, or anything I want.

13,868. Do you get most of them there?-No; I only get a part.

13,869. Does it depend upon whether you have a balance in your favour, or cash in your hands, that you go to Vidlin?-I sometimes go for credit and sometimes for cash.

13,870. Do you get your goods at the same price there, whether you get them on account or pay cash?-I believe I do.

13,871. Is that [showing] your pass-book with Mr. Robertson at Vidlin?-Yes. The account is kept with Mr. Robert Sutherland, the shopkeeper there. I also produce an old account for 1864.

13,872. Do you always keep a pass-book?-No; only at times. I got that account just after the settlement. I thought it rather too heavy, and I wished a copy of it; but I cannot say whether it is accurate or not.

13,873. Did you get a discount when you complained about the account being too high?-I don't remember; but I have sometimes got a small discount.

13,874. Is the settlement at Vidlin generally in December?-It is generally after Martinmas, sometimes sooner and sometimes later.

13,875. We need not go back so far as 1864. Have you ever got an account like that since?-No; I think that was the heaviest account I ever had.

13,876. You never disputed the rates you were charged since then?-No, I never disputed them.

13,877. Do you always get your account read over to you at settlement?-Yes; Mr. Robertson sometimes does it.

13,878. Do you settle with Mr. Robertson himself?-Yes.

13,879. Does he always read over your account?-Sometimes he reads it over, and at other times he allows me to get it read over by Mr. Sutherland.

13,880. Is there a separate account kept for any of your family?- No.

13,881. I see from your pass-book that in 1870 you got two advances of cash in April and June?-Yes.

13,882. Do you get cash advanced to you when you ask it?-Yes.

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13,883. Had you a balance to get at the settlement for 1870?-I think I had.

13,884. I see that on September 9th, 1870, you were charged quarter boll best oatmeal, 5s. 8d.; September 26th, quarter boll, 5s. 6d.; one peck, 1s. 4d. Were you buying meal in Lerwick at that time?-No; that was just about the time when I was getting in my crop.

13,885. Did you buy any meal in Lerwick last summer or autumn?-I bought some in April before I began to the fishing. I paid £2 to Mr. John Tait for sack of Orkney oatmeal.

13,886. The book you have produced also contains your fish account?-It contains a copy of it, which was made by my son on Thursday night, from an old pass-book which I used in settling with Mr. Robertson.

13,887. In 1870 you got 7s. 3d. for your ling: did all the fishermen in Lunnasting get the same?-Yes.

13,888.,Was that the current price for the year?-Yes, but I believe some got more.

13,889. Did you hear that the people about Sandwick had got 8s. 3d. for ling that year?-Yes.

13,890. Was that from Smith and Tulloch, the curers there?-I don't know the men's names, but I believe it was.

13,891. Do you think it would have been possible to pay you as high as that, and to allow the fish-curer a decent profit?-I could not know unless I had been dealing in the fish myself, but I don't think it would have been possible.

13,892. The current price this year was 8s. for ling, 6s. 6d. for tusk and cod, and 4s. for saith?-Yes.

13,893. Do you think there was a higher price paid anywhere else this year?-I cannot say.

13,894. If you had got the price that was paid in 1870 at Sandwick, would you have had a larger sum to receive for your fishing?- Yes; we would have received about £13 more for the crew on the summer and harvest fishing.

13,895. Do you fish much in harvest?-No; we sometimes fish two weeks after old Lammas Day.

13,896. Is that put into a separate account from the summer fishing?-Yes, but it is all paid at the same time, because it has been earned by the same crew.

13,897. Do you sometimes fish in small boats in winter?-I have done that on former occasions, but not now. I have dropped the winter fishing.

13,898. Did you sometimes take large quantities of fish in winter?-Sometimes the fishing then was not very good. In some years we might make a few pounds by it.

13,899. Did you always sell your winter fish to the tacksman at Vidlin?-Sometimes; but I cannot say that we did so always.

13,900. Did you consider yourself bound to sell them to him?-I believed I was bound.

13,901. But you were not so strict in doing it in winter as you were with regard to the summer fishing?-No.

13,902. What led you to think that you were bound to sell your winter fish to him as well as your summer fish?-I don't know. I only knew that the tacksman wished to have them; but we did not sell them all to him.

13,903. Are you at perfect liberty to go to Lerwick for your goods if you choose?-Yes.

13,904. Does Sutherland or any one else ask you at settlement if you want any goods?-No; they just give me whatever goods I ask.

13,905. But do they ask you if you want anything when you are settling?-At times they may, but not always.

13,906. Do you settle in the shop at Vidlin?-We settle in the office behind the shop.

13,907. Do you go past the counter into the office?-Yes.

13,908. After you have had your account read over to you, and the amount of your fish stated, are you ever asked whether you want any more goods?-No; not unless I please to take some.

13,909. But are you ever asked if you want them?-I cannot say that I am. If I buy anything myself, then they may ask me if I want anything more.

13,910. Do they not ask you unless you are buying something at any rate?-No.

13,911. Does not Mr. Sutherland sometimes ask you if you want goods before you go in to settle?-No.

13,912. If you take goods at that time, are they put into your account for the past year, or do they go into your account for the next year?-They are entered any way I choose. Perhaps they may be marked down to account, or I may pay for them in cash if it is any small thing. I don't wish to run a heavy account.

13,913. Do you pay in cash for the articles you get in Lerwick, or have you an account with Mr. Tait?-There are some merchants who know me who would give me credit for perhaps twelve months or so, but sometimes I pay cash down.

13,914. I suppose they know that you have got something in the bank?-It is not much. Mr. Robertson is my banker.

13,915. Then you sometimes leave your balance in his hands at the end of the year, and get interest on it?-Yes.

13,916. Why do you not deal more with him for your supplies when he is your banker?-I deal with him in Lerwick, but I deal as little as possible at Vidlin, unless when I run out.

13,917. Do you get goods from Mr. Robertson in Lerwick?-Yes, I get what I want.

13,918. Have you an account with him here as well as an account in the shop at Vidlin?-Yes.

13,919. Do you get any meal from him in Lerwick?-Yes, and tea and sugar.

13,920. Do you get them cheaper from Mr. Robertson in Lerwick than at Vidlin?-Yes.

13,921. On the opposite side of your Lerwick account is there entered any money or interest that is due to you?-Yes; Mr. Robertson enters that in his book.

13,922. Do you know whether John Hughson buys a large quantity of fish in the course of a year?-I cannot say.

13,923. Why do the men prefer to sell to him?-They do it of their own free will.

13,924. Do they get a larger price from him?-Perhaps they may, but they only sell to him privately.

13,925. Did any man ever tell you that he had got a larger price from Hughson?-I don't remember.

13,926. Would he be paying money at the time for the fish which were sold to him?-Perhaps he might, or in any trifle of goods which were needed at the time. There are some things which Mr. Robertson may be out of in Skerries, and we have to go to another merchant for them. For instance, if we wanted a refreshment of spirits, or anything like that, we have to go to Mr. Adie for it.

13,927. Does Hughson's man keep spirits too?-I don't know. Perhaps he may have a little for supplying his own men, but I don't know anything about that.

13,928. Has Mr. Adie got a licence?-Yes.

13,929. When fish are bought by Mr. Adie's man or by Hughson's man, are they paid for at the time, or is there an account kept of them?-I cannot say; perhaps the men may run a small account, and settle it up afterwards. I have had to go to Mr. Adie for many a thing, and I have run an account with him for them.

13,930. Do you not sell fish to him?-No.

13,931. You merely run an account with him for anything you want?-Yes.

13,932. Has Mr. Robertson not a shopkeeper at Skerries in the summer time as well as Mr. Adie?-He has a small supply of goods there, such as lines, and tea and sugar; but that is all. Sometimes I required something else and went to Mr. Adie for it, and sometimes I bought my stores at Lerwick.

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Lerwick, January 27, 1872, LAURENCE ROBERTSON, examined.

13,933. Are you a fisherman at Skelberry, in Lunnasting?-I am.

13,934. Are you bound to fish for the tacksman, Mr. Robertson?- Yes.

13,935. How do you know that you are bound?-Because I understand we are bound by Mr. Bell to fish for him.

13,936. Who told you that?-When Mr. Bell came in to rule over us at first, the agreement was that the tenants were to give the offer of all their produce to him, and to no other man.

13,937. Did Mr. Bell tell you that?-Yes.

13,938. Was that about ten or twelve years ago?-It is longer ago than that.

13,939. Was it when Mr. Bell came to the estate first?-Yes.

13,940. Did he buy your fish at that time?-Yes.

13,941. Was there a meeting at which Mr. Bell told you that?- Yes; it took place in the house of Lunna.

13,942. How were you informed that Mr. Robertson became the tacksman?-We were informed that he was the tacksman, and we knew it.

13,943. Was there a meeting at that time too?-I was aware of none.

13,944. You only heard that Mr. Robertson became tacksman, and you don't remember who told you?-No.

13,945. Have you always fished for him since, and got the current price?-Yes.

13,946. Do you get your provisions at the shop at Vidlin?-Yes; and sometimes I get them from Mr. Robertson's shop in Lerwick, if I ask them there.

13,947. Do you keep an account at Lerwick also?-Yes, a small account.

13,948. Is it separate from the Vidlin account?-They are all brought together and settled for at the same time.

13,949. Do you get your goods cheaper when you come to Lerwick for them, than when you get them at Vidlin?-I cannot say, because I never had money to purchase them with.

13,950. You have always had to run an account?-Yes.

13,951. Had you a balance to get in cash at the end of last year?- No; I was in debt.

13,952. Have you been so for many years?-Yes.

13,953. Have you sometimes bought your goods at other shops?- Not often, because I did not have money to buy them with there.

13,954. When you did buy them at other shops, where did you get the money?-In the first part of the time I had a little; but I have not bought anything at other shops lately.

13,955. Do you not sometimes sell your winter fish for a little money in hand?-No.

13,956. Do you sometimes get an advance from Mr. Robertson?- Yes. If I ask for a little money I get it.

13,957. Have you got a pass-book?-Yes. I have got an account of my last year's dealings here. [Produces it.]

13,958. Have you always had a pass-book?-No.

13,959. Is this the first one you had?-Yes.

13,960. You pay your rent to Mr. Robertson, and it is put into your account?-Yes.

13,961. You begin on December 12, 1870, with a balance against you of £22, 18s. 8d., and that was increased at December last to £39, 14s. 2d., including the rent?-Yes.

13,962. You were credited at settlement with a payment of cash in August of £2, and with the amount of your fishing, £18, 12s. 11d., reducing the balance to £19, 1s. 3d.?-Yes.

13,963. Where did the cash you paid in August come from?-It came from the sale of an ox.

13,964. Who did you sell it to?-I cannot exactly say, because it was my wife who sold it. I was at Skerries at the time.

13,965. Have you got any supplies since November from the Vidlin shop?-Yes.

13,966. Are the supplies of the men sometimes stopped when they get too deep in debt?-Yes.

13,967. Are they then put upon a certain allowance?-Yes.

13,968. Is that a common thing about Vidlin?-I cannot say for any one but myself. I have been put upon an allowance; but I cannot say how much it was, because it was

my family who always got it.

13,969. I see that in your book on June 14, 21, and 28, there are entries on each of these dates of 24 lbs. oatmeal, and 3s. 81/2d. for flour; was that your allowance?-I believe so.

13,970. There are similar entries on July 5 and 12, and there is no other entry till 26th July, when you got double the quantity, but it is entered in a different form?-Yes.

13,971. Did you understand that you were on an allowance all last summer?-Yes.

13,972. Was that done with the view of reducing the amount of your debt?-Certainly.

13,973. And it is considerably reduced now?-Yes.

13,974. Do you think you will get it all wiped off?-I don't know. It depends on the fishing and the crop.

13,975. Are there many men are in the same position as yourself?-That is a secret to me. I don't know how the men's accounts stand with Mr. Robertson.

13,976. Why did you get so far into debt?-I and my family had a fever in the middle of summer about six years ago, and I got behind then. My earnings were all stopped by the fever.

13,977. Do you think that if you had ready money you would be able to purchase your supplies cheaper than you can get them at the Vidlin shop?-I don't know. Perhaps if I was trying, I might be able to purchase them a little better. There are freights and other things that must make them dearer at Vidlin than elsewhere.

Lerwick, January 27, 1872, ROBERT SIMPSON, examined.

13,978. Are you a fisherman at Valour, in Lunnasting?-I am.

13,979. Are you a relation of Laurence Simpson, who has been already examined?-I am his brother.

13,980. Have you heard his evidence?-Yes, I heard good deal of it; but his case is different from mine, because he has had ready money with which to purchase things as he best could, and I have not had it. I have been obliged to take my goods from the people I was fishing to, because I did not have money with which to buy them at any other place.

13,981. Do you think he got his things rather cheaper than you in consequence of having ready money?-I think so.

13,982. Were you obliged to deal at the shop at Vidlin?-I was, because I was in debt.

13,983. Were you bound to fish for Mr. Robertson?-I was.

13,984. Do you think you could have got a better price for your fish if you had been free?-Perhaps we might; but we could not ask for it, because we were bound.

13,985. If you were free, would you attempt to cure your own fish, or to sell them to another curer?-I might.

13,986. Do you think you would make anything by curing your own fish?-I think I would.

13,987. Would you be able to give some idle time to it when you could not go to sea?-If we were curing our own fish, two or three boats would join together, and employ a man and a boy for the purpose, and then the men would have all their time to go to sea.

13,988. Would you have a factor of your own?-Yes, if we had our freedom.

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13,989. Have you often thought about that?-We would have thought about it if we had had our freedom; but we were bound, and we could not do it.

13,990. Have you got your pass-book?-I have had no pass-book for some time. There was one year when I had a pass-hook for some time, but it was not made up regularly, and it was given up. Then the whole account was put into the ledger, and Mr. Sutherland went over it with me at settlement; but the last year Mr. Sutherland was busy, and we did not get it done. This year, however, Mr. Robertson has given me a copy of the account for the two years' transactions. I only got it to-day before I came down here, but I cannot understand it very well. [Produces two passbooks.]

13,991. Did you get the copy of your account after you got the summons to come here?-No. The girl came with it just about the same time that the summons came. She had been over at the shop, and she brought the summons with her.

13,992. Did you ask Mr. Robertson at settlement for a copy of your account?-I asked Mr. Sutherland to read over my account, and when I went to hear him read it he said he would give me a copy, and he has put it down in a pass-book.

13,993. I see here an entry on 17th current, 'To paid freight on b. meal, 5d.' What does that mean?-It was a boll of meal I got from Lerwick, and very likely Mr. Sutherland has paid the freight for me.

13,994. Did you get that meal from Mr. Robertson in Lerwick?- No, I got it from William Smith.

13,995. The balance against you in December 1869 was £30, 5s. 3d., and it was reduced at last settlement to £21, 17s. 111/2d.?- Yes, I have brought it down to that by my two years' earnings.

13,996. How did you happen to have such a large debt?-I had a fever in the same year that Laurence Robertson was ill, and I earned no more that year, although the fishing then was a good one. My illness brought me into debt that season, and I have never been able to clear it off.

13,997. I see in your account on 7th September last, 'By balance to kelp, per son Robert, 6s. 4d.' How does that go into your account?-The boy had some things out of the shop, and that has likely been to pay for them.

13,998. Had he an account of his own for kelp?-He had no account, because he is not old enough yet but he was working with his mother and sisters at the kelp, and he got some clothes.

13,999. Had his mother and sisters some out-takes from the shop while they were working at the kelp?-Yes.

14,000. And the 6s. 4d. would be what was due on the kelp above the amount of these out-takes?-It was what they allowed the boy for his share of the kelp.

14,001. Had your wife and your daughters accounts of their own separate from yours?-Yes.

14,002. Do the other members of your family always have accounts of their own, independent of your account?-They have had accounts for kelp, and perhaps for some other trifles besides.

14,003. Do they take in hosiery at the Vidlin shop?-Very little.

14,004. Do they take any of it from the members of your family?-I don't know if they have much to give them, but if they wanted a little at a time they might have taken some of it to them.

14,005. I see on September 22, 'By 74 lbs. wool at 111/2d.' What was that?-It was wool that I gave into the shop to help to pay off my account.

14,006. Was that all the wool off your sheep for the year?-It was not the whole of it. I had a little more than that. There had been some of it used for my own family. The sheep were kept in a park which Mr. Bell had taken in. We had it as a free pasture before, but he took the pasture from us, and rouped the park for £15, to keep 200 head of sheep. That was the reason why we were bound to give our produce to Mr. Robertson. I considered it right in me to give him the wool, in order to pay for the rent of the park; but previously we had that pasture at our own freedom.

14,007. Were you bound to sell the wool and the sheep in that pasture to Mr. Robertson?-Mr. Robertson was the cautioner to Mr. Bell for the rent of it, the same as he was for the rent of our toon.

14,008. Was he the tacksman?-Yes.

14,009. And Mr. Robertson let you the park?-No. Mr. Bell let us the park. It was his own property, but Mr. Robertson was cautioner for the rent.

14,010. Was the park at Lunna House?-No. It was a park about a mile to the south of Lunna. We were allowed by Mr. Bell to put 200 head into it, and we did so; but there came a dearth, and it could hardly bear that number.

14,011. Have you got the park still?-Yes, I and my brother and Mr. Anderson. There was another man interested in it at first, Hunter Sinclair, but he gave up his share, and now the three of us have it.

14,012. Have you one-third share of the sheep which are put upon it?-Yes.

14,013. And this was the wool which had been produced from these sheep?-Yes; and because Mr. Robertson had become bound for the rent of the park, we thought we ought to give him the wool in return.

14,014. Was 111/2d. the current price for wool last autumn?-I cannot say. That was what we got for it from Mr. Sutherland.

14,015. Did anybody else offer to buy it from you?-We did not offer it to anybody else, because we thought he had a better right to it, as he was paying the rent. There were several people asking me for it, but I would not sell it to them.

14,016. How much did they offer you for the wool?-We never came to any particular agreement about the price, because I would not consent to sell it to them at all.

14,017. Did they not say anything about what they would give you?-They spoke of 1s.; but I thought it better to sell it for 111/2d. wholesale than to sell it to them for 1s., even although I had had power to do it. Besides, I thought Mr. Robertson had the best right to it.

14,018. Had Mr. Robertson told you that he expected to get your wool?-I cannot say that he had.

14,019. Had Mr. Sutherland told you that?-If I could have paid my debt he would not have asked it.

14,020. But did Mr. Sutherland tell you that he expected to get your wool?-Sometimes he would ask me if I would give him the wool, and that I would be better to give it to him than to sell it to another.

14,021. Even at a halfpenny less?-Yes.

14,022. How do you sell your eggs?-We sell them mostly to Mr. Sutherland, and get small stores for them at the time, such as tea or sugar, or anything we want. They do not go into the account.

14,023. The eggs are never paid for in cash?-No; but I have no doubt we would get cash for them if we asked it.

14,024. But you always choose to take tea or sugar?-Yes, just the things we are needing.

14,025. Is that the way in which all the people in your neighbourhood do with their eggs?-I cannot say it is the way with the whole of them. Perhaps some of them may take them to other places for anything they want; but I believe most of the people dispose of them in that way to Mr. Sutherland.

14,026. Do you know Robert Murray at Swinister-Yes.

14,027. He is a merchant there, and keeps a shop?-Yes.

14,028. Does he sometimes buy fish?-He buys small fish, like what are called hand-line fish, or fish caught with lines near the shore; but I cannot say whether he has the summer time or not. He may have, for anything I know.

14,029. Does he sometimes engage people to fish for him in the winter or spring or summer?-I don't know.

14,030. Do you know whether he once engaged a [Page 350] man named Peter Williamson?-I heard so. I heard that Williamson was bargained to fish to Robert Murray, and that Mr Robertson would not allow him to do so. I never asked Mr Robertson about that.

14,031. Are you a relation of Mr Robertson?-I am his cousin.

14,032. Does Murray sometimes buy fish in the same way as the yaggers do?-He buys fish in his own shop; but I don't know that he goes to the Skerrries, or anywhere at a distance to buy fish.

14,033. Do the men sometimes go to him when they want a little ready money or supplies that cannot be got at Vidlin?-There are none of the fishermen at Lunnasting who go to him, so far as I am aware.

14,034. Is his place a long way from where you live?-Yes; it takes me a good day when I go there by sea, and it is a long way by land; but I never sold a tail of fish to him in my life.

Lerwick, January 27, 1872, MARGARET JAMIESON, examined

14,035. Do you live in Quarff?-Yes.

14,036. Are you sometimes employed in knitting?-Yes, in knitting and dressing. I have also a little farm which I work, but I generally work at the knitting and dressing when I can get that kind of work to do. The farm is my brother's but he is very ill.

14,037. Do you knit with your own wool, or is it given out to you by the merchants?-I always knit with wool which I purchase for myself.

14,038. What kind of things do you knit?-Shawls, veils, haps, plaids, and other things.

14,039. Are you always paid for these in goods?-I sold a plaid to Mr Sinclair in the spring when I was unwell, and did not get it settled for until the summer. The price of the article was 18s., and I asked a halfpenny from him, and he refused to give it to me.

14,040. Did he not give you the halfpenny?-He gave it to me in the end, because I had to post a letter, and I got the halfpenny from him for that purpose.

14,041. Was the postage of that letter only a halfpenny?-No, but I had another halfpenny of my own, and I required the halfpenny from him to buy a stamp with. On Wednesday last I sold a plaid to him for 20s. and asked 2s. in cash at the end of the settlement, but they refused to give it to me. I then asked 1s. 6d., and they said if I got that they would mark it as 1s. 9d. against me.

14,042. Who said that?-It was one of the serving-men in Mr Sinclair's shop; I don't know his name. Then I asked 1s., and he said it would be 1s. 3d. against me; but I refused to take it on that footing. I then asked for 9d. which he consented to give me,

saying he did not have it in the shop, but that he would borrow it from one of the clerks or serving-men.

14,043. Did he say he did not have 9d. in the shop?-Yes. I got 6d. and left 3d. due, which I could not get unless I took calico.

14,044. You did not put him to the trouble of borrowing the 9d.?- He borrowed 4d. from one of the persons there, and he found 2d. in the counter.

14,045. Do you think there was no money in the till at that time?- I do not know anything about it except what he told me. I consider from my own experience, and from what I hear from others, that we are very much like the Hebrews of Egypt,-very much burdened down with many things, and not able to bear our burdens.

14,046. When you took the shawl in the other day, which you sold for a pound, did you bargain that you were to get payment for it in goods?-There was no bargain made about it.

14,047. When you sold the shawl in the previous spring, was it marked down in an account, or did you get a line for it?-I got a line for it.

14,048. Did you send in your shawl?-No; I went in and sold it and asked a line, which I got.

14,049. Did you not want the goods at the time?-I got some goods and the balance in a line.

14,050. But you did not want to take the whole in goods?-No, I refused to do that. I did not want them until afterwards.

14,051. Does it often happen that you don't want goods when you sell your shawls, and that you would rather have money?-We would rather have money, because there are many things that we require it for. There are many taxes we have to pay, and there are many things we can only buy with money.

14,052. Would you take a lower price for your hosiery if you could get cash instead of goods?-I don't know, because goods will help us through a part of the year as well as if we got a little money. I consider our hosiery is worth what we sell it at, even although it was paid in cash.

14,053. Where do you get your wool?-I get it from any person who has wool, and who will exchange it for a little tea or hosiery, or a bit of calico or yellow cotton.

14,054. Do you spin it yourself?-Always. I am not able to get it spun for me, because that has to be paid for in money, and I cannot get the money.

14,055. Are you not able to pay for worsted?-No, because it has to be paid for in money; and I am not able to put the wool to the spinner, because that would require money too.

14,056. Do you sometimes have to pay money for wool?-If we can get a day's work or anything of that kind to do, we may get a little wool in exchange for it, but it is not very often we can get that.

14,057. Have the people who sell wool generally a fixed price for it?-Yes, according to the fineness or coarseness of it.

14,058. What do you pay for the finer wool?-It may be about 1s. 6d., according to the quality of it. I think the cheapest we can get is 1s.

14,059. But you get it by barter; do you give goods for it at the same price as you paid for them?-Generally we give a parcel of goods, and they will give us so much wool as they think it is worth. It is never priced at all; we merely give a small parcel of tea in exchange for so much.

14,060. Do you sometimes buy wool at the shops in Lerwick?- No, I cannot say that I ever bought any there.

14,061. Have you any sheep of your own?-Very few. We sometimes get wool from them, but not much.

14,062. Have you sold wool from them?-Never.

14,063. Can you not get as much wool off your own sheep as serves you for your own work?-No, we don't have so many of them as that.

Lerwick, January 27, 1872, ISABELLA SINCLAIR, recalled.

14,064. Do you wish to say anything about the evidence which Margaret Jamieson has just given?-Yes. I wish to explain that those in the shop have no power to give money except by referring to my father. Then with regard to the want of money in the shop, it may have happened that my father had taken the money with him to the bank, as very often happens. Frequently when there is some small change in the drawer, it is given away upon lines or something of that kind. I suppose that is the explanation of what the witness has said.

14,065. But I suppose the practice is that you don't give money at all unless you can help it?-If the bargain is made for money, then we give money; but I don't see that we have any right to give money when the bargain is made for goods, any more than if the bargain had been made for goods we could compel them to take money for it. Sometimes my father is [Page 351] very unwilling to take hosiery, and would rather not buy it, either for goods or money. That is frequently the case when he is not requiring the article, or when the article is of inferior value.

14,066. Was what the witness said correct about 1s. 6d. being offered to her in money for 1s. 9d. and 1s. for 1s. 3d.?-It depends on circumstances. In some cases if an article was sold at 1s. for goods, the person might get 9d. or 10d. for it in money, according as the article was worth it. If it was an article which we had a special order for, we would perhaps give 10d., because we would soon get the money back again; but if it was an article that was likely to lie for some time, we would only give 9d. for it.

Lerwick, January 27, 1872, JOHN ROBERTSON, senior, examined.

14,067. You are a merchant in Lerwick, and tacksman of the estate of Lunna?-I am.

14,068. Have you a fish-curing establishment at Vidlin?-It is at Skerries. We take a few fish at Vidlin, but there is not much done there.

14,069. But you have a store at Vidlin?-Yes.

14,070. Have you also a curing establishment in Lerwick?-We do very little with it. We sometimes take a few dried fish here.

14,071. You were present to-day and heard the evidence of some men from Lunnasting parish?-Yes.

14,072. Do you wish to make any observation or any statement with regard to that evidence?-I think there are no particular observations I can make, except with regard to the difference between the charges for goods in Lerwick and in the country. We always have some additional expense upon the goods which are sent to the country, but we make the difference as small as we possibly can.

14,073. What should you say was the difference between the prices charged at Vidlin and those which you would charge in Lerwick?-Perhaps from 21/2 to 5 per cent.; but the fact is, that for some things the prices are the same. For instance, cotton goods are the same price.

14,074. Can you land them at Vidlin at very nearly the same price, as at Lerwick?-Yes. The amount of freight would be very small, and we make a point to sell them at the same rates. I put on the prices myself, and I know that we sell these articles at the same price as here.

14,075. I understand the men on the Lunna estate are under obligation by the tenure on which they hold their land to fish for you?-Yes, if they fish at Skerries. Mr. Bell has booths and beaches there; and seventeen years ago he applied to me about them. I was very reluctant to go into the matter at all, but he asked me to assist him, and I agreed to do it, and we have been dealing in that way ever since.

14,076. Has Mr. Bell an interest in that yet, except that he receives his rent from you?-No. He has no interest in it whatever, except that by his arrangement with me he is secure in getting his rent.

14,077. Have you any fishermen fishing for you who are tenants upon other estates than that of Lunna?-Not at that place. I have had several people in Nesting, on Mr. Bruce of Simbister's ground. They have fished for me perhaps for thirty years; but it is very little they do, and they generally give their fish dry.

14,078. Are these winter or summer fish?-Both winter and summer.

14,079. What do you pay for a fisherman's summer fish of his own curing?-Their own fish are generally never so well cured as when cured by the merchants themselves. This year I paid the men £21 for their own cure, and I don't think I could get above that for them. For my own cure the current price was per ton.

14,080. What were the circumstances connected with the case of Peter Williamson who had come under an engagement to Robert Murray at Swinister last season?-I don't know what engagement he came under to Murray, but Williamson denied it to

me. All I can say about it is that he is a tenant of Mr. Bell's, and that when he settled his account at Vidlin with me it was understood he was to fish again; but one of his partners had engaged to go with another boat of mine, and he (Williamson) did not know very well whether he would manage to get a boat for the fishing or not. I suppose he had made some kind of statement to Robert Murray about that; but at that time Williamson was really very much indebted to me. I had kept him and his family alive with meal for year after year, and he was very far behind; and it would scarcely have done to have allowed him to go anywhere he liked. I got a crew for him, and then he was quite willing to go and fish for me. I think he ought to have asked me first before he made any promise to any other body, because he knew that it was the rule on the estate to fish for me if they fished from Skerries at all. There are many of the Lunna tenants who never fish for me, but who fish for Mr. Adie or go to Faroe and Greenland, and I never stop them from doing that at all.

14,081. It is not part of the understanding that any men who go to Faroe or Greenland should go in your boats?-No.

14,082. If a man goes to Faroe or Greenland, he is free to go for whoever he likes?-Yes.

14,083. Is he free if he stays at home?-If he goes to Skerries, as there is an establishment there belonging to the estate, and which must be kept up, it is understood that any man going there must fish for me; but Mr. Adie has a good many of Mr. Bell's tenants fishing for him, and when people go to Feideland I never interfere with them.

14,084. Are there many of them who go so far as Feideland?- Yes, a good many. The Delting tenants do that.

14,085. I understand you had a considerably smaller number of men employed last year than you had some years ago?-Yes; they had succeeded very well for two or three years previously, and they had received a good deal of supplies, and I did not ask or force anybody to go to the fishing unless they chose. I told them that if they could do better otherwise, I should be very glad if they did so; but I am sorry to say that those tenants who fished elsewhere, or who went to Greenland, did not seem better off.

14,086. How do you engage your beach boys and curers at Skerries?-I generally engage them by the week.

14,087. Are they mostly connected with the Lunna estate?-Yes, generally; but sometimes I engage others.

14,088. Then you don't pay, as they do in other places, a beach fee by the year?-We settle with them at the year's end. We cannot very well do otherwise.

14,089. Are they engaged on weekly wages?-Yes.

14,090. That is to say, the wage is counted by the week?-Yes.

14,091. It is not a fee for the season?-No; it used to be, but I found it better to pay them by the week, and let them know what they have to get.

14,092. Is that wage fixed at the commencement of the season?- Generally it is, but sometimes it is not. Sometimes we don't know what the boys can do, as we have not tried them; and we like to see what they are fit for before we arrange what they are to be paid. We generally give them what we consider a fair thing.

14,093. These people, you say, are settled with at the end of the year, and they have been taking supplies as they require them?- Yes; they require little meal and other things to live upon.

14,094. Do they get these at Skerries in the course of the season?-Yes.

14,095. And these supplies are accounted for at settling time?- Yes.

14,096. Have the people so employed in curing generally a balance to get, or do they generally exhaust [Page 352] their wages in supplies?-That depends very much upon the disposition of the party.

14,097. But what is the fact in the general run of cases?-We generally have a balance to pay them. The dealings of these beach people are usually small. They cannot be very large, but they generally have a balance in their favour, and they get what is due to them in cash as soon as we ascertain its amount.

14,098. Do they get a small sum of cash, if they want it, in the course of the season, for any particular purpose?-Yes; I keep cash at the station for that particular purpose, so that none of the men may be disappointed if they want it.

14,099. But I suppose it is a very small proportion which they ask for in cash?-They cannot expect much. They don't need it.

14,100. They have nothing to do with it at a place like that?-No; but whenever they want it they get it; and sometimes when they get cash, they don't put it to the best purpose. They are near a spirit shop there.

14,101. Is that Mr. Adie's?-Yes.

14,102. Is his the only spirit shop there?-Yes.

14,103. Do you think people supply themselves more with liberally with spirits and other luxuries in the fishing season than they do during the rest of the year?-I think not, generally.

14,104. They are working harder at that time, are they not?-Yes.

14,105. And they would require a larger supply?-Yes; but the men are not very much addicted to that. A few individuals may be; but the men, upon the whole, are not extravagant in that way.

14,106. I noticed that a purchase of meal was made by Thomas Hutchison in Skerries at your shop about January 1868. Can you tell me what the current price of meal was at that date?-I was told it was in 1867, and I looked up the prices for that year.

14,107. I have found, however, that it was in 1868. What do you think the price was at that time?-I would not like to say, because the price of meal varies so much;

but I will look my books, and mention what it was.

14,108. You were engaged in the herring fishing one time, I understand?-Yes; and I unfortunately am a little engaged in it still. It has been a complete failure lately.

14,109. What is the nature of the arrangement with the men in that fishing?-The men are generally understood to have the nets and the boats. The boats are their own property. If a crew wants a boat, which costs from £17 to £18, I have to pay for it; but I wish them to have the name of owning the boat, and I charge them hire, although the hires really cannot pay the price. I wish them to call the boats their own, and I do not debit them with the price, but it is charged in a separate account to the crew.

14,110. Is that account debited yearly with the hire of the boat?- Yes.

14,111. How do you arrange about the nets?-They are also entered in a separate account for the crew.

14,112. How is the payment for the fish arranged?-The men get one half of the fish for their labour, and the other half goes to the credit of the boat and nets. It is entered to the credit of the boat and net account, and the other half of the fish goes to their own account.

14,113. Is there a fixed hire for the boat and nets?-There is no fixed hire. We generally charge £1 for the herring fishing, and £2, 10s. for the haaf or summer fishing.

14,114. How long does the herring fishing last?-About six weeks; but the men rarely go to it at all, because lately there have been no herrings on the coast.

14,115. Then it is hardly a hire that is paid for the boat and nets, but you furnish both and get one half of the fish?-Yes.

14,116. There is no account for the boat and nets, except that you take one half of the fish and the other half is divided among the men, without any other deduction, unless for the amount of any account which they may have incurred?-Yes.

14,117. Is the price of the herring fixed at the commencement of the season?-I never made any arrangement about that with them, but usually paid the price which Messrs. Hay & Co. paid. But we have got none to pay for lately at all.

14,118. How long has that fishing been in existence here?-For four years with me, but there has been a herring fishing existing here for a long time.

14,119. Are Messrs. Hay the principal parties engaged in it?-Yes.

14,120. Then the herring fishing here is not conducted on the same principle as at Wick?-It is not.

14,121. No price per cran has been fixed at the beginning of the season?-I think not.

14,122. Is there any particular reason for that?-I don't know any reason for it at all.

14,123. I suppose it has been rather assimilated to the other fishing speculations of Shetland?-I believe so.

14,124. The arrangement you enter into is as nearly as possible the same as exists in the other branches of the fishing trade here?- Yes.

14,125. There is a settlement at the end of the year for the summer fishing?-Yes. The men are settled with for both branches of the fishing together.

14,126. In a letter which you wrote and sent along with the returns you have made, you say, 'In the year 1868 I paid about £300 in cash advances for the people on the herring fishing alone, which has since then turned out a complete failure. These circumstances account for the large amount of debt shown to be due in the year 1870.' Does that mean that when the people went to the herring fishing you had to make considerable advances to them in cash?- I may explain that these men had been fishing for Mr. Adie, and a number of them were due him money on account, and I paid all their advances and cleared them off with Mr. Adie. I took them into my own hands, and of course these sums had to be debited in the men's accounts.

14,127. At that time had you gone into the herring fishing more largely than before?-Yes.

14,128. Had you no men engaged in the herring fishing then who had been fishing for you in the home fishing before?-No, I had not been in the herring fishing for twelve years before.

14,129. But had you any man who had been engaged in the home fishing of the year before for you?-Yes; the men had all been engaged at the ling fishing for me, but they fished for Mr. Adie in the herring fishing as soon as the ling fishing was over, and some of them seemed anxious for a change, and others not.

14,130. For what change?-That I should have the herring fishing as well as the ling fishing. It was their own request that I should begin the herring fishing again, and I thought it was as well to do it.

14,131. Had they had accounts with Mr. Adie, as regards the herring fishing, separate from what they ran for the time they were employed in the ling fishing with you?-Yes.

14,132. Did Mr. Adie go out of the herring fishing altogether when these men left him?-No. He is in it still, but he had not so many hands employed in after they left him as he had before.

14,133. You thought it a reasonable thing, when you took away his herring fishers, that you should take their accounts with them?- Yes; that was suggested by some of the men to me, and I intimated to Mr. Adie that some of the men wanted it, and that it would be as well to carry it out.

14,134. Did the men say to you that they had accounts with Mr. Adie?-I knew that.

14,135. And perhaps they demurred a little, or felt little difficulty in leaving him in that state of matters?-They did not say much about that, but I thought it was fair to clear Mr. Adie if I took away the men who had been engaged to him.

14,136. Have you ever known such an arrangement [Page 353] being made when a change of employment took place in any other branch of the fishing business?-No.

14,137. If a man shifted from one employer to another in the home fishing, has it been usual for the new employer to take over any debt that the man may have incurred to the previous employer?-I should suppose that would be reasonable, but I am not aware that it has been generally the case.

14,138. Have you known any instances where it has occurred?-I think I remember one or two instances.

14,139. But you don't know of any special arrangement between merchants to that effect?-No.

14,140. And you have not entered into any such arrangement yourself?-No.

14,141. Did any of the men object to the debt which they had incurred to Mr. Adie being transferred to you?-No; I think they were rather pleased at it, because they were afraid Mr. Adie would have been hard upon them for it.

14,142. Might he have been harder after they left his service?- There is no doubt he would, and he would have had a right to be so.

14,143. Do you purchase kelp on the Lunna estate?-Yes.

14,144. Does your tack include a lease of the kelp shores?-In point of fact I have no tack, but merely a letter, and just now I am acting upon a verbal agreement from year to year. I can give it up whenever I choose, on giving it short intimation.

14,145. Does that arrangement include the kelp shores?-Yes.

14,146. What is the price allowed by you for kelp?-4s. 6d. when paid in goods.

14,147. Is there a different price when it is paid for in cash?-Mr. Sutherland manages that matter; but I am pretty sure that he pays only 4s. in cash, and anybody can get that who chooses.

14,148. But I suppose most of them take it in goods-Many of them do. It is it very convenient way for them, and the goods are not charged any higher in consequence, but we consider that the profit on the goods enables us to give a higher price.

14,149. How many of the women may be employed in that way?- Perhaps about sixty, taking it as a rough guess.

14,150. All these people, I presume, have accounts open at the shop at Vidlin, as I have seen to be the case in other parts of Shetland?-Yes. We would be very glad if the accounts were less, but really it is impossible to work with the people without them. It is almost impossible to get the balances brought down, but we never refuse them cash when they have it to get.

14,151. Do you purchase wool to any extent?-No, I don't do anything in the hosiery line.

14,152. Do you think it would be possible to carry on the fish-curing business here profitably without combining it with the other business in the shop at Vidlin?-I don't

see how it could be done.

14,153. But supposing it could be done,-supposing the people could get their supplies elsewhere,-would the fish-curer be able to carry on his business at profit?-All they would do in that case would merely be to take a commission, as they now do, for selling the fish. They calculate upon getting that commission at present, and that is what they would expect under another system; but the people unfortunately cannot do without these supplies. Some of the men, however, are well off. For instance, the man Laurence Simpson, who was examined today, is very well off and can do without advances. He can buy his meal wherever he chooses.

14,154. Would it be a profitable thing for the fish-curer if he were content with that commission, without having a profit on his goods?-Perhaps that might be done, but I don't know.

14,155. Is there any other point you wish to mention?-I have heard some of the men who have been examined here, saying that they would like their freedom. I have no objection to any man having his freedom and being allowed to cure his fish for himself, but I suspect such a system would destroy the character of the fish in the country if it were gone into. The fish would be injured by it; I know that by experience. The cure would not be so good as it is at present.

14,156. But if the men had their freedom, would they not employ a factor for themselves or would it not come to this in the end, that the men would sell their fish to any curer who was most convenient for them?-Many of them would cure their own fish, which they do now in some places, but we never can get the quality of the fish good enough when they are cured in that way. They cannot be put in among fine fish, because the men do not dry them so well as they ought to be, and they will not keep for any length of time.

14,157. Would they not very soon find that out, and either employ a fish-factor for the curing of their fish upon the co-operative system, or return virtually to the present system and sell their fish to any merchant who would take them, with the exception that he would pay for them in ready money?-I am afraid any change of that kind would affect the quality of the fish.

14,158. But if it affected the quality of the fish, the men would soon find that they did not get so good a price for them?-Yes.

14,159. And they would either return to the old system, or to some one under which the curing of the fish would be equally good. The men would not be content permanently to take a lower price?-They might be obliged to take a lower price, although they did not know it.

14,160. But I have been told today that the Shetland people are a very intelligent class, and they would surely have intelligence enough to discover that they were getting a lower price than they might get for their produce?-Some of them are intelligent, and no doubt they would discover that.

Lerwick, January 27, 1872, ANDREW B. JAMIESON, examined.

14,161. Are you a clerk in the employment of Mr. Leask?-I am.

14,162. How long have you been in his service?-About nineteen years.

14,163. Have you been principally concerned with the engagement and settling with seamen employed in the Greenland whale fishing?-Principally, of late, since the settlement at the Custom House was commenced. That was five years ago.

14,164. Were you not employed in that way before?-Yes; not altogether, but along with others.

14,165. Before that time, the accounts of the men, I understand, were always settled at Mr. Leask's office?-Always.

14,166. And the men were paid merely the balance in cash?- They were paid the balance, but they had to get cash during the currency of their account besides that. They always got advances of cash in the course of the year if they wanted them.

14,167. The balance that was paid to them at the end in cash was the settlement for their wages and their first payment of oil-money?-Yes.

14,168. Was the settlement for the final payment of oil-money generally made at a later period?-Always at a later period.

14,169. Was there always a settlement before the last payment of oil-money became due?-Always, except when they happened to be in debt.

14,170. They might be in debt to a greater amount than anything that was due to them?-They might, but of course, if a man had money to get, he was sure to come forward when he required it.

14,171. Were the accounts which were run with the men at that time larger than you now allow them to incur?-I should say not.

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14,172. Are there some men even now who are indebted at settlement to the full amount of their wages and oil-money?- Very few.

14,173. But that does occur?-It may be the case with some of the young hands.

14,174. Does that happen now as often as formerly?-I daresay it does. It depends on the success of the voyage; but we are rather more particular now than we used to be.

14,175. In what way are you more particular now?-We know better what time the voyage will occupy and we always keep within the mark as far as possible.

14,176. Is there less security now for getting your money paid at the proper time than there was formerly?-I cannot say that we have experienced that.

14,177. Previous to 1867, you said the settlement of the men's accounts generally took place before the last payment of oil-money was due?-Yes, always.

14,178. Was that not so only in the greater number of cases?-It was always the case. The final payment was only a few shillings in general, and it was usually a

considerable time before the owners advised us what amount of oil the vessel had turned out; so that if a man had the bulk of his wages to get, he generally got them a long time before the second payment of oil-money came.

14,179. Was the second payment usually made before the man engaged for another voyage if he was going?-In some cases; but if the man lived at a considerable distance from Lerwick, he would not come in for the few shillings which were due him for his second payment until he was about to engage again.

14,180. How was that second payment made? Was it in money, or generally in goods?-If the man had the money coming to him, it was usually paid in money; but sometimes he may have got a little advance on his second payment.

14,181. If that was the case it would be in his account?-Yes, a continuation of his previous account; but we did not care much about advancing on second payments, because they were so uncertain. The vessel might not turn out nearly so much as was expected.

14,182. You are aware that a new system was introduced about 1867 or 1868?-Yes.

14,183. And since that time you have been employed in going up to the Custom House to settle with the men?-Yes.

14,184. Do you take a quantity of cash up with you and hand it over to the men in presence of the superintendent?-Yes.

14,185. Have you, since that system began, invariably taken up your ledgers containing the men's accounts, or any note of the amount of their accounts, with you?-Of course we have never taken up the books.

14,186. Did you at any time take any notes or abstracts of the men's accounts?-I always took a note of the sum which each man had to get.

14,187. Was that a note of the sum which each man had to get for wages and oil-money?-No; it was a note of the actual amount due to the men, because each man had an account of wages furnished to him previously.

14,188. Had he received that from the captain?-No; the account of wages was made up by the agent on shore from the captain's store-book.

14,189. Is that account of wages always made up by the agent and handed to the men before settlement?-Yes.

14,190. Is it not sometimes taken up with you to the settlement?- The man always carries it up with him.

14,191. When you go up to the Custom House, are you provided with any note of the amount of the man's account due to Mr. Leask?-In the first years, I think we had that occasionally.

14,192. In what form did you take that up?-Just slip.

14,193. Was that a note of all the items in the account?-No

14,194. It was just a note of the total sum due to Mr. Leask?-Yes.

14,195. Have you not done so since the first year?-I think not.

14,196. When did you last take such a slip with you to the Custom House?-I think not after the first year, so far as I can recollect.

14,197. The first year of what?-The first year, say, 1867; I think I have not done it since that time.

14,198. Can you not tax your memory so far as to say whether or not you had it in 1870?-I did not have it in 1870; I am quite sure of that.

14,199. Nor in 1871?-Nor in 1871.

14,200. May you have had it in 1869?-I think not.

14,201. Was the last time you had it in 1868?-To the best of my recollection I think it was.

14,202. May you have had it in 1869, although you don't remember?-I think not, but I cannot be quite positive.

14,203. But you are quite clear about 1870, that you had no note whatever of the men's accounts with you, except what was entered in the account of wages?-Yes. I did not require it then. It could do no good.

14,204. Why was it required in 1868?-Because sometimes the men settled their accounts at the Custom House.

14,205. Would that be done often?-Sometimes; but not as a rule, I think.

14,206. When these regulations were introduced, and you first went up to the Custom House to settle, was it not intended that all the accounts should be settled there and then?-That was the regulation.

14,207. Was it intended that all Mr. Leask's accounts should be paid at the same time that the men got their money handed over in presence of the superintendent?-There was no formal proposal about that.

14,208. Was it not done in some cases?-In some cases it was, when the men agreed to do it.

14,209. Did the superintendent object to that?-He did not object. The whole money was paid down to the men, and sometimes they gave back what they knew they had to give back.

14,210. Would that be done in one half of the cases?-I could not speak to a proportion.

14,211. When they did not hand back then what was due to Mr. Leask, what was done?-They handed it back when they came down to the office afterwards.

14,212. Do they come down to the office now and pay their accounts after being settled with at the Custom House?-Yes.

14,213. Do you settle with five or six or a dozen of them at a time, as the case may be?-Yes, any number, from one up to a dozen, or perhaps more.

14,214. Is the settlement with these men after they have got their cash always carried out and finished on the same day at Mr. Leask's office?-Yes, invariably.

14,215. Do they come straight down from the Custom House to the office and pay their accounts there?-They generally come in the course of the day.

14,216. Do they come down along with you?-If it is only one man who has been settled with, perhaps we will come down together, and perhaps not, just as it happens. I have no fear for them coming down. I never bother my head about them after I give them the money.

14,217. Do you leave them to come down or not as they please?- Decidedly.

14,218. Is there never a black sheep to whom you have to suggest the propriety of coming straight down?-The men know they have the money to pay, and they look upon it as a just debt.

14,219. Is there not a note kept if a man fails to come down?-We are not likely to forget that. There is no note of it kept.

14,220. Do you note the fact that you have settled with him for his wages and oil-money?-Yes. The account is squared at once as soon as we come down from the Custom House.

14,221. Do you not note the fact in some form or [Page 355] other, that the man has not come down to settle his account when he has failed to do so?-No, the book would show that without any note. I may say, however, that I have scarcely ever had a case of that kind, except it may be one.

14,222. Was that Robert Grains?-Yes; and even he did come down ultimately and settle his account. He was settled with along with about a dozen others, and they all went down. Some of them had been settled with before I came down from the Custom House, but he did not come until I came myself.

14,223. Did he come down with you?-No; he came down himself. I believe the other lads induced him to come back to the shop and settle his account.

14,224. Had he at first refused to do so?-He had been telling the lads that he was going to keep the money or most of the money. I think they said he wanted to go right away and never come near the shop at all, but they induced him to come.

14,225. Did he give any reason for wanting to go away?-Nothing, except that he wanted the money for some other purpose.

14,226. Was his account for goods equal to the whole amount of his wages?-He had about £1 to get.

14,227. That means that he had all his money to hand over to you except £1?-Yes.

14,228. Did you speak to him on the subject?-I did. I asked him if he meant to swindle us out of the money for the outfit that he got to enable him to go to Greenland.

14,229. Was it at the Custom House you said that to him?-No, it was at the office after he had come down. He said no, but that he required money to pay for a boat or to buy a boat, or something of that kind.

14,230. Did that happen on the day of settlement?-Yes.

14,231. Had you understood before that he was intending to go away without paying your account?-No, I had no idea of it.

14,232. Then how did you happen to ask him that question?-He came back to the office after he came out from the Custom House, and he was going to give back part of the money, but he wanted to keep more than he actually had to get after paying Mr. Leask's account.

14,233. But how did you know that he required persuasion to induce him to come back and pay his account?-I recollect the other lads telling me that they had induced him to come back.

14,234. Had they told you about that before Grains came down?- I scarcely think so. I think there were several of them there along with him when I came down.

14,235. Did he come down from the Custom House along with you?-No.

14,236. Was he at the office when you came down from the Custom House?-I am not quite sure whether he was actually there when I came down, but most of that crew were discharged that day. They had been landed the day before, and most of them were discharged on the day after they landed.

14,237. I don't quite understand how you knew about Grains having been unwilling to pay his account?-I knew it when he came to the office to give back the money that I had paid him at the Custom House.

14,238. Did he refuse to give you back the money?-He did; not all, but part of it.

14,239. Did he want to pay only a portion of his account?-Yes.

14,240. Did he say that to you when he came to the office?-Yes.

14,241. Was that the first intimation you had got of his intention to keep part of the money?-I think so.

14,242. Did you object to that, and tell him he must pay the whole?-I did.

14,243. Did you intimate what the consequences would be if he did not?-Yes; I daresay I told him that we would pull him up. I considered that we had run a considerable risk in giving him an outfit for his first year at Greenland, and that we were entitled to get the advance repaid, because we might never see him again.

14,244. Have you had occasion to advise any of the men on other occasions as to the propriety of paying agents' accounts, or giving them similar advice to what you gave in the case of Grains?-No; I think that was the only case which has occurred out of many hundreds.

14,245. Have the men always walked down quietly enough to your office?-Yes.

14,246. And often in company with you?-Very often. Perhaps, if there was one, he came back with me; but, as a rule, I would often stay behind for a little, or go down to the office by some other way.

14,247. Then possibly the men may have gone to the office before you?-They often did.

14,248. When you had a batch of them at the Custom House, did you not send some of them down to the office direct, while you waited to finish your settlement with the others?-They were settled with one by one; and they went away as they were settled with.

14,249. But as they were settled with, did you not send them down to the office?-They went of their own accord.

14,250. Did you never tell them to go to the office?-They knew to go.

14,251. Did you never tell them?-I have seen me telling them to go as soon as possible, because I wanted them to be settled with and away before I came down. Mr. Robertson generally would be waiting for them, and he might have to go out.

14,252. Do you mean that Mr. Robertson would be expecting them?-Yes.

14,253. And he might have other engagements which he had to attend to as soon as their business was over?-Yes.

14,254. Therefore I suppose you may often have had occasion to tell them to go down to the shop direct from the Custom House?- I may have told them to go as soon as possible.

14,255. Did you not always do so?-No.

14,256. Did you not always tell them so when you thought it was necessary?-No.

14,257. Do you mean that you may have thought it necessary for them to go to the shop and settle, and that yet you refrained from telling them so?-I never thought much about it at all. I just gave them the money; and sometimes I would tell them to go to the shop as soon as possible, because Mr. Robertson would be waiting for them. Sometimes that was about the dinner-hour, and very often they would not be there until I came down myself. I would be engaged settling with them up till three o'clock.

14,258. Did you consider that it was not necessary on every occasion to tell them to go back to the shop?-Yes.

14,259. Was that because the men understood quite well that they were to go to the shop and settle their accounts?-The men understood that quite well. They understood they had got the money that was due to them from the shop, and they understood that in general they had accounts in the shop for cash or goods, and sometimes for advances to their families, and they required no persuasion to go and repay these sums when they had got their money.

14,260. Did they know that they were expected to go down to the shop?-They were expected to go.

14,261. But did they know that they were expected?-They knew it.

14,262. So that, although they might have had debts due to other merchants, they were expected to go down and pay Mr. Leask in the first instance?-Yes.

14,263. And you expected that, although those debts to other merchants might have been incurred earlier than Mr. Leask's?- The debt contracted on the voyage was the first debt to be settled, and it was always understood that that debt had first to be paid, because it was all incurred during the voyage.

14,264. You mean that it had been incurred for the purpose of the voyage, and you held that you had a [Page 356] prior claim on the proceeds of that voyage for the amount of your account, just as a merchant has a lien on the supplies he furnishes to a shop?-Yes.

14,265. Would you have objected to the men going away and paying the earlier accounts before they paid Mr. Leask's?-Of course, if they paid them out of that money.

14,266. Had you instructions from Mr. Leask, or Mr. Robertson, or any one in Mr. Leask's employment, to see that the men did come down and pay their accounts?-I had no such instructions.

14,267. Did you consider that a part of your duty?-I did not consider it to be any part of my duty at all. If I had a dozen men to settle with, I settled with them one after another, and they went away. I did not tell them to stay there until I came with them, or follow them down by any means.

14,268. Was it no part of your duty to warn a man who was going away without paying, that he had first to settle his account at the shop?-No, I never saw a man who went away without paying.

14,269. But suppose the case of a man who did so: was it any part of your duty to remind him of the debt which he was due to Mr. Leask?-No. They did not require any reminding. They knew quite well about it.

14,270. Why did you cease to settle with the men in the Custom House after 1868?-Because the shipping master objected, and would not allow it to be done.

14,271. Was it to you, or in your presence, that he took that objection?-Yes, I was present.

14,272. Did he take the objection in any particular case when a settlement of that kind was going on with the men?-No, there was no particular case.

14,273. Did he do so at a time when you were settling with a man?-Yes; either with a man, or two or three men, I forget which.

14,274. What took place then?-The men just went to the office.

14,275. Did you remonstrate with the superintendent?-No.

14,276. You just went down to the office with the men, and settled with them there?-The men went to the office, and I finished my business at the Custom House

and went down too.

14,277. Did you consider it a grievance to be prevented from settling with the men in the Custom House?-If the men were agreeable for it, I thought there was nothing wrong in it. It was entirely with their concurrence that it was done.

14,278. Is there anything else you wish to say wish to say?-I wish to say that I have examined the books, and I find that Mr. Jack Williamson's rent at Ulsta was not advanced after Mr. Leask purchased the property. I now show the valuation roll of 1860, where it is entered at £8, 10s., and in 1871 it is entered at the same sum. That rent included the farm and all accommodation-the shop, beach, booth, and everything.

14,279. I see he was tenant of an additional subject in 1871, for which he paid a rent of 10s.; and of grazing park at Ulsta at a rent of £6?-Yes; but the 10s. includes the dwelling-house, shop, farm, and all accommodation he had about the place.

Lerwick, January 27, 1872, ADAM TAIT, examined.

14,280. You are a shopman to Mr. Robert Sinclair?-I am.

14,281. Did you purchase a hap lately from Margaret Jamieson, Quarff, who has been examined today?-Mr. Sinclair purchased it, and I settled with her for it the time she sold it.

14,282. When was that?-About three days ago. It was a long plaid she sold.

14,283. What was the price of it?-20s. in goods; and that was paid.

14,284. To what extent did you supply her with goods?-I gave her 19s. 6d. worth of goods and 6d. in cash. She wanted 3s. in cash. I told her the bargain was made in goods, and I could not give it to her in cash. Besides, there was no cash in the drawer at the time. Then she thought of something else she wanted, and I borrowed 6d. from the clerk in the end gave it to her.

14,285. Did you tell her that if she got 1s. 6d. in cash it would be charged as 1s. 9d. against her?-I believe I did say that she would be charged 2d. in the shilling if she wanted cash, as the bargain had been made in goods.

14,286. Did you tell her that if she got 1s. in cash it would be charged as 1s. 3d. against her?-No. I merely said it would be 2d. in the shilling. I might have given her the cash she asked if we had had it, but there was no change in the shop at the time, and I had to borrow the sixpence that I gave her.

14,287. On what day was that?-I think it was on Wednesday last, but I am not certain, and about twelve or one o'clock in the day. I recollect the transaction very well, as the woman seemed to be ill-pleased when she went out.

14,288. Is it a frequent thing to tell a woman who asks for cash; that there is no cash in the shop?-No; that does not often happen.

Lerwick, January 27, 1872, ROBERT SINCLAIR, recalled.

14,289. Do you wish to make any explanation with regard to the evidence which has just been given?-I wish to say that it often happens that we have no small change in the shop, unless we get change for £1 and any cash that we get during the day is frequently given out again for goods before night. Therefore it is no evasion to say that there is no cash in the shop, because it is often the fact.

14,290. That happens in a great many shops, and it may happen more frequently in a shop where the cash transactions are few and barter transactions prevail?-Yes; it happens more frequently in that case.

<Adjourned>.

LERWICK: MONDAY, JANUARY 29, 1872

Lerwick, January 29, 1872, Mrs. CATHERINE WILLIAMSON, recalled.

14,291. I understand you wish to make a correction on the evidence you gave on the first day of this inquiry?-Yes. I stated that I had sold a shawl to Mr. Laurenson; but I should have said it was to Mr. George Laurence, Commercial Street, Lerwick, and not to Mr. Arthur Laurenson.

14,292. Was the rest of your evidence correct?-Yes.

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Lerwick, January 29, 1872, ANDREW B. JAMIESON, recalled.

14,293. Do you wish to make any addition to your former evidence?-Yes. I wish to say with regard to the Accountant to the Board of Trade's report, that I consider it unjust to the agents concerned in the Greenland trade, and I concur generally in all that was said by Mr. William Robertson on that point.

14,294. Is there any particular fact in that report, apart from matters of opinion, which you think is incorrectly stated?- The report commences: 'In accordance with my instructions, I paid special attention to the circumstances attending the official discharge of Shetland seamen after voyages made in whaling vessels, great difficulty and delay having been experienced by the Board of Trade in getting the releases for such voyages completed within anything like a reasonable time.' I do not consider that to be correct. The Board of Trade never fixed a time for the releases to be completed, and consequently the men do not come for their settlement until it suits their own convenience.

14,295. Do you mean that before 1868 no rule existed on that subject?-There is no time fixed even now for the men to come.

14,296. Does not the third head of the regulations provide that, when the men are landed, the master shall deliver the store-book, and that the balances due shall be paid in presence of the superintendent?-The master does deliver the store-book when the crew are landed, but the regulation does not say that the men are to appear immediately before the superintendent. If they would remain in town, that would be done; but they prefer going home, especially when they are not required by the

regulations to remain.

14,297. The Merchant Shipping Act provides that the master or owner shall pay the wages of every seaman within three days after the cargo has been delivered, or within five days after the seaman's discharge, whichever first happens?-These are the terms of the Act; but that never was the rule in the Greenland trade, because the men are landed in any part of Shetland the ship first comes to, and the men never come forward to Lerwick to be settled with until it suits them to come.

14,298. I don't know that Mr. Hamilton lays the blame upon the agents for the delay in getting the releases completed?-Not in that sentence, but he does so subsequently in his report. He says, 'When the whalers return after a short and successful voyage, it is, under this system, manifestly to the agent's interest that the Shetland portion of the crews should not be settled with at once.'

14,299. Do you say that that is not for the agent's interest?-I say that it is not. It is not for his interest to delay the settlement, and the settlement is not delayed by him.

14,300. Is it not for the agent's interest to have the money in his hands as long as possible?-Perhaps if he has the money in his hands, he may make a few shillings of interest; but when the men come forward individually to settle, there is more time spent in making the settlement than any profit he can make can cover. Then Mr. Hamilton says, 'But no time is fixed for settlement, and the consequence is that it is the interest of the agent to delay it until he gets the man in debt to him again, and when he does pay to the man the balance of wages due to him before the superintendent, the man has no option but to hand it all back to the agent at once, to whom he is indebted in an equal or greater amount.' That statement is not consistent with fact.

14,301. Is it not true, as you have already stated, that the seamen do hand back to the agent the money which they have got?-Yes, but it is not true that they are indebted to the agent in an equal or greater amount.

14,302. You think the amount of debt is not generally equal to the amount payable in wages?-I am quite sure it is not.

14,303. Was it, at any time in your experience, common for a man to have an amount of debt to the agent equal to the amount of his wages and oil-money?-Very often, when they had made a bad voyage, the younger hands would be in debt.

14,304. Mr. Hamilton says, in another part of his report: 'For this purpose to engage the men at Lerwick, they employ agents in Lerwick, who get, I am informed, little direct profit from their agency. Their chief profit arises from what they can make out of the earnings of the men;' is there anything incorrect in that, in point of fact?-It is quite correct that the agents have little direct profit from their agency. The remuneration is quite inadequate for the amount of work and expense connected with the trade. Then he says, 'These agents are all shopkeepers, and most of them are proprietors of land themselves, or act as land agents for others.' There are only four agents altogether, and there are only two of them who are proprietors of any quantity of land. The others do not act as land agents, so far as ever I heard. 'Many of the men

engaged are utterly unable, without the assistance of the agents, to provide themselves with the clothing necessary for the voyage.' That applies chiefly to the young hands, who require extra clothing when going to such a cold climate, and they get it from the agents. 'It is quite common for allotments of wages to be made out in favour of the agents.' I never saw that. It is not done in Mr. Leask's business. Of course I cannot speak with certainty for the others, but am pretty certain it is not done in any case.

14,305. In your experience the seaman takes no allotment note at all, so that the only advances which are got during his absence are those which are made through the agent in the shape of supplies to his family, without any allotment note being required?-Yes. We have always done so.

14,306. But the agent is quite aware that no allotment note has been granted?-Yes.

14,307. So that the effect is just the same as if the allotment note had been given to the agent?-It is not quite the same in settling with them, because we have to pay the whole money to the men; whereas, if an allotment had been granted, it would have been deducted.

14,308. But if there is no allotment note made out to the man, and given to his wife or any of his friends, the agent has not to pay the money away?-No.

14,309. So that he is in perfect safety to make advances in the shape of any supplies which may be required during the man's absence?-He is quite safe to do that if the man pays him back at the end of the voltage.

14,310. At least he is in greater safety than if the man's friends were in a position to draw part of his wages during his absence, because he knows that the wages cannot be spent?-Yes. If the man's family have a note, that is all the advance they require in general; but as it is when a family have a weekly allowance, I should say they get about one half of their allowance in cash.

14,311. Do the families have a weekly allowance from the agent?-In some cases.

14,312. Is that done by private arrangement?-Yes.

14,313. Are these families residing in Lerwick, or mostly in the country?-Mostly in Lerwick. Families residing in the country only send in occasionally for anything they may require, but they are not by any means bound to do it.

14,314. But is it a common thing for the families of men residing in Lerwick, or near it, to get a weekly advance in provisions or in money?-It is quite common.

14,315. Is it mostly in provisions or mostly in money that that advance is given?-I think it is about one half in money. They always get some money.

14,316. Is that entered in the man's account?-Yes. Then it is not correct to say that a man who wants to take his outfit from any shopkeeper is practically debarred from doing so. He can do so if he likes.

14,317. Does he ever do it?-There is no doubt he does.

14,318. Have you ever known any case of a man doing so?-Yes, plenty. We know that when a man does not get goods from us, he must get them somewhere else.

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14,319. But he may have had an outfit before, and did not require a fresh one for that voyage?-He may.

14,320. Have you ever known a man who required an outfit for a voyage taking it from any agent but the one who engaged him?- Yes.

14,321. Can you name any case of that kind?-I could not exactly name a case.

14,322. Could you show me any case in your books in which the man has not got some outfit from you?-Not very many, I think. On short voyages to the sealing, a considerable number of the men would not require it. Men who had been going there for years, and who were only going on a short voyage, would be well enough provided with clothes. Generally men who get good wages are all provided with their necessary outfit.

14,323. But you think you could show me very few cases in your books in which a man did not require some outfit and did not get it from you?-On long voyages perhaps there are not many.

14,324. Did you ever supply an outfit to a man going on a whaling voyage upon the engagement of any of the other agents?-I think not exactly an outfit; but we have sold them individual articles.

14,325. Did you ever do that on credit?-I daresay we have.

14,326. Do you know that you have?-Yes.

14,327. In what case?-I could not exactly name a case, because if a man comes in wanting to buy anything we sell it to him, if the other agent did not have it, or he did not choose to take it from him. I know that has been the case both with us and with others.

14,328. Have you run an account with the man for that?-If he was well known to us, we would have no objection to give him credit.

14,329. But can you name the case of any man who was engaged for the whaling by another agent and who received credit from you?-I could not name a case. It is done just in the ordinary way of trade, and we would not pay any attention to a case like that. We could not be expected to recollect where every customer was going.

14,330. Is it not the case that every man who engages with you does take so much of his outfit as he requires from Mr. Leask's shop?-I think that is very generally the case; but he does it because he chooses to do it, and because, I suppose, he thinks he will be as well served there as by going elsewhere. With regard to the report, again, I say that the greater proportion of the men are settled with in a reasonable time.

14,331. Do you mean within six months?-The greater proportion of them are settled with in one month.

14,332. That is the case now?-Yes.

14,333. But formerly the time was considerably greater, was it not?-I don't think there was much difference. The men came then when it suited them, and they do the same now, except when they are all landed in Lerwick at one time, and choose to stay few days in town to get the settlement carried through. They are not bound to a day now more than they were then; but the releases and official papers in the Custom House can prove the proportion of men discharged within the month.

14,334. Mr. Robertson showed me some accounts with Greenland whaling men in which there was a charge for insurance upon outfits: is that an arrangement made by you with the men?-Yes.

14,335. Have you explained to them the nature of the charge, and why it was made before entering it in your books against them?- Yes; we have been doing that for the last fifteen years at least. If the vessel is lost, then the men don't pay for the outfit; it is paid by the insurance.

14,336. Mr. Leask is also an agent for the Shipwrecked Mariners' Fund, and there is a charge of 3s. made at the beginning of each man's account for a payment to that Fund?-Yes.

14,337. Does that 3s. cover the loss of clothing?-They get that in addition. When the vessel is lost, the man gets an allowance for clothing, and also the payment from the Shipwrecked Mariners' Fund. He gets the allowance for clothing in this way: that he pays nothing for the goods if the vessel is lost, and then he gets the allowance from the Shipwrecked Mariners' Society in addition, and is sent home free if he is landed in any part of the kingdom.

14,338. Therefore that is a double insurance?-Yes.

14,339. If a man is lost, his widow, in return for the 3s., gets an annuity or some allowance?-Yes. The amount of it depends on the number of years he has subscribed, and the number of his family. It varies considerably; but she gets an allowance at first, and generally a small annual grant.

14,340. Is that 3s. paid in every case when the men are going to Greenland?-It is such a small payment, and they have experienced so much benefit from it, that they never object to it now.

14,341. I suppose that charge is entered in a man's account as a matter of course?-Yes.

14,342. You say that if a man who subscribes that 3s. loses his outfit, or his boat, or anything, that is covered by the insurance, and he is entitled to a certain payment, which is made by the agents?-Yes.

14,343. Is that payment always made in cash?-Always.

14,344. How long is it since it has been universally made in cash at your agency?-It has always been made in cash, so far as I had to do with it.

14,345. Do you remember of any sums of a few pounds in cash being paid from the Shipwrecked Mariners' Fund?-There are often payments of that kind.

14,346. Do you remember any case of it man being refused payment of his allowance in cash?-No.

14,347. Or being asked to take goods?-No, I don't recollect any such case.

14,348. Do you remember the case of a man named Williamson from Coningsburgh having a claim against Mr. Leask, as agent for the Society, in respect of a loss which he had sustained, and falling within the conditions of the Shipwrecked Mariners' Fund?-I don't recollect anything about the case or about the man.

14,349. Do you remember any case where the amount due from the Shipwrecked Mariners' Fund was put to the credit of a person insured, in order to reduce the debt due by him to Mr. Leask?- No, I don't recollect any such case.

14,350. Can you say that that has never been done?-I cannot say that exactly. Perhaps if the man chose to put the money to his account it would be done.

14,351. But can you say it has never been done where the man did not choose to put the money to his account?-It has never been done where the man did not choose, so far as I know.

14,352. Do you know any case in which Mr. Leask has asked the man to do it, or has proposed to do it, and the man has resisted?- No.

14,353. Is an allowance of that kind sometimes put to the credit of a man who has an account in Mr. Leask's books, and taken out in goods in the course of the year?-It may be in some cases.

14,354. Is it not usually the case when a sum of that kind falls due that it is entered to the man's credit?-That is not usually the case, because nobody knows whether it will be paid or not, or whether the man will have a claim to receive money.

14,355. But when you know that it is due, and that it is to be paid, and the man happens to have an account, is the amount not just entered in that account and credited to the man?-It may be in some cases, but it is only when a man is wrecked that he is entitled to any allowance from the Society; we don't know when he is to be wrecked, and therefore he cannot get advances on the faith of a claim against the Society.

14,356. I am not speaking about advances on the faith of a claim; but when the money is due, is it not generally put into the man's account?-Not generally, but there may have been a case or two of that kind.

14,357. Is it generally handed over to him in cash?-Generally.

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14,358. Even when a man has an account, and when the balance of that account is against him?-The man perhaps will not require it to be handed over to him if he had an account and wished the amount of his debt to be reduced by putting that to it. In

that case there would be very little occasion for a transfer of the cash, but I can scarcely recollect any cases of that kind.

14,359. I am not asking whether the man wishes it or not, I am asking whether it is ever done, or whether it is generally done?-I should say it is not generally done. I would say it is almost never done.

14,360. How many of these payments have you to make in the course of a year?-In some years there are very few.

14,361. Will there sometimes be a dozen?-Perhaps there may, but I could not say, without the books.

14,362. And you say that out of the dozen payments which you make, one half of them will pass through the men's accounts?- No, I should not say that.

14,363. Should you say that three out of every dozen did so?-No, I should not even say that.

14,364. Should you say that one in every dozen passed through the men's accounts?-I might say one, but I could not be sure. It might be less, or it might be none at all.

14,365. Might it not be more?-It is not a regular business transaction at all, and it is very seldom that such a thing ever enters the accounts. It is a present payment for an accident happening to a man, and he just gets the money, and there is no more about it; but it might happen occasionally that he applied it towards payment of a debt.

14,366. The premium or subscription of 3s. universally passes into the man's account?-Yes.

14,367. I cannot quite see why the payment of a policy should not also go into the man's account if he has one?-It is only when a man is wrecked that such it payment is to be made. There are many men who have been paying for twenty or thirty years, and have never had occasion to claim against the Society, while there are others who have.

14,368. But if a man happens to have an account running with Mr. Leask, do you say that the payment is made to him in cash rather than put in to the account?-No, I don't say that, because the man might make no difficulty in applying it to his account, if he had one; but we are applying for men from different parts of the country who have no account with us, and in these cases the money is paid over at once.

14,369. In the majority of cases in which the money is paid through you when it is due, is it not to the men who have paid their premium through you?-By no means. We issue a great many tickets to men who are not in our employment at all,-men going south, and fishermen on the islands. I think we are generally called upon to make applications in cases of loss in preference to the other agents, and that money is paid over to the men at once.

14,370. Then do you say it is the case that the money is entered in the man's account whenever he has an account with you?-If the man to whom the money was to be paid had an account, it might probably be put to that account; but of course it would only be done with the man's concurrence.

14,371. Did you ever know any man object to that being done?-I cannot say that I ever did.

14,372. Are you sure that you never did?-Yes, I am sure.

14,373. Is there anything else you wish to say?-I wish to correct the statement made in the report, that it is the interest of the agent to delay the settlement until he gets the man in debt to him again. I say that is not the fact.

14,374. Is it not the fact that that is the interest of the agent?-It may be the interest of the agent, but it is never done.

14,375. The report only says that it is the interest of the agent: it does not state that he does it?-I think it does. It says that the man is indebted to the agent in an equal or greater amount, and that it is the interest of the agent to delay settlement until he gets the man in debt to him again. What I object to in that statement is the impression conveyed by it, that all the men are in debt to an equal or greater extent than their earnings. I think that is the way in which the statement would naturally be read; but, as a rule, the men do not run accounts after they come home until they settle, and then they will only buy what they require. They are never importuned to buy or to take goods, nor is the settlement delayed for that purpose.

14,376. You say the men are never importuned to buy anything. Are they not asked at settlement if they want anything?-No. Their money is paid them as soon as they call for it, without any demur.

14,377. I know it is; but are they not asked at that time if they want to take any goods?-After they have got their money we may ask them if they want anything; and if they are as well served by us as elsewhere, sometimes they do buy some goods.

14,378. I suppose in a number of cases the men are quite ready to take what they want from your shop, and to pay for it with the cash they have got?-Yes.*

*Mr Jamieson afterwards put in the following Return in supplement of his evidence:- RETURN relative to the Discharge of Greenland Seamen from Vessels for which Mr. JOSEPH LEASK was Agent. Year 1871.

Ship's Name and Voyage No. of men Date of Place of En-gaged Landing Landing

a Camperdown, sealing voyage 33 Apr. 30 Lerwick b Polynia, sealing voyage 34 Apr. 17 Lerwick c Esquimaux, sealing voyage 30 Apr. 17 Lerwick d Narwhal, sealing voyage 29 Apr. 21 Scalloway e Ravenscraig, sealing voyage 31 Apr. 17 Lerwick f Victor, sealing voyage 30 June 1 Lerwick g Alibi, sealing and whaling voyage 19 July 21 near Scalloway h Total 206 62 52 i Ravenscraig, Davis Straits whaling voyage 20 Oct. 26 Lerwick j Polynia, Davis Straits whaling voyage 19 Oct. 26 Lerwick k Narwhal, Davis Straits whaling voyage 14 Oct. 29 Scalloway l Camperdown, Davis Straits Whaling voyage 26 Nov. 11 Lerwick <via> Longhope m Total 79

Ship's Name and Voyage Numbers Discharged in Apr. May June July a Camperdown, sealing voyage 25 b Polynia, sealing voyage 12 11 c Esquimaux, sealing voyage 15 3 d Narwhal, sealing voyage 13 9 e Ravenscraig, sealing voyage 22 4 f Victor, sealing voyage 19 5 g Alibi, sealing and whaling voyage 4 h Total 62 52 19 9 i Ravenscraig, Davis Straits whaling voyage j Polynia, Davis Straits whaling voyage 19 k Narwhal, Davis Straits whaling voyage 14 l Camperdown, Davis Straits Whaling voyage m Total 79

Ship's Name and Voyage Numbers Discharged in

Aug Sept Oct Nov Dec a Camperdown, sealing voyage 3 1 1 2 b Polynia, sealing voyage 3 6 2 c Esquimaux, sealing voyage 10 2 d Narwhal, sealing voyage 2 2 3 e Ravenscraig, sealing voyage 1 2 1 f Victor, sealing voyage 19 4 1 g Alibi, sealing and whaling voyage 10 1 1 h Total 33 4 7 13 5 i Ravenscraig, Davis Straits whaling voyage 8 10 2 j Polynia, Davis Straits whaling voyage 19 k Narwhal, Davis Straits whaling voyage 13 1 l Camperdown, Davis Straits Whaling voyage 21 5 m Total 8 63 8

Ship's Name and Voyage Not Dis- Totals Remarks. charged at Year's End

a Camperdown, sealing voyage 1 33 157 men returned in April, of whom b Polynia, sealing voyage 34 95 were landed in one day. 114 were c Esquimaux, sealing voyage 30 discharged by the end of May. d Narwhal, sealing voyage 29 I requested the rest to return for e Ravenscraig, sealing voyage 1 31 discharge not later than August, when f Victor, sealing voyage 30 the ling fishing terminated. g Alibi, sealing and whaling voyage 19 h Total 2* 206 * The only cases I ever had. i Ravenscraig, Davis Straits whaling voyage 20 j Polynia, Davis Straits whaling voyage 19 71 out of 79 landed in October and k Narwhal, Davis Straits November were discharged in a month. whaling voyage 14 l Camperdown, Davis Straits Whaling voyage 26 m Total 79

Lerwick, January 29, 1872, WILLIAM BRUCE TULLOCH, examined.

14,379. You are a merchant and shipping agent in Lerwick?-I am.

14,380. You have been engaged as an agent for Greenland [Page 360]whaling vessels for some time?-Yes, on my own account, or as a partner of the firm of Laurenson & Co., for five years.

14,381. Before that, you were in the employment of Mr. Leask?- Yes.

14,382. I understand you desire to make some statement with regard to the evidence which has already been led upon this subject?-Yes. I heard a part of the evidence of Mr. Wm. Robertson; and some parts of what I heard I could not agree with. In the first place, with reference to the handing of lists of balances at the end of the year by one agent to another, he said that practice had been discontinued for a number of years. So far as I know, that is not the case.

14,383. Does that practice still exist?-I know nothing to the contrary.

14,384. To what do you refer?-To the balances that may be due by men to the agents.

14,385. Have you in your business had such lists handed to you, or have you handed them to other agents in the trade?-Yes.

14,386. Is that still done?-It has been done within the last five years. It was the only legitimate way of keeping before you the men who were in debt. When they went from one agent to another, that was the only way in which we could know where they were, or whether they were still continuing to go in the trade; but, of course, when any balance was recovered, it was always with the entire concurrence of the indebted person.

14,387. Do you mean that when any balance was paid by an agent on his behalf it was with his concurrence?-It was always understood to be with his entire concurrence.

14,388. I suppose the practice you refer to came to this, that an agent to whom a man was in debt was able to recover from the agent who engaged him for the subsequent year in the Greenland voyage the amount of his debt or a part of it?-Yes, that was the object of it.

14,389. And the agent so paying became the creditor of the seaman, and trusted to be repaid out of the man's earnings from the voyage which was begun?-We might have a list of perhaps half a dozen men from an agent, and it might happen that only one of these men had been out for that agent for that year. If the man had the means to pay and was willing to pay, then of course he left it with the agent to do so.

14,390. If he had not the means to pay, was it usual for the agent engaging him for that year to advance the money?-Never. I never knew of a case where a debt was paid in that way, unless when the man had money to receive at the end of the voyage.

14,391. Then, at the end of the voyage does the agent receiving that list retain the money?-He would retain the money, and give a note to the man, or send the money with the man.

14,392. Would he send the man down to your office?-The man would often come himself, and sometimes be the bearer of a note stating that he left that money with the agent.

14,393. Has that been done since the regulations of 1868 came into force?-The regulations were in 1867.

14,394. The copy I have is dated 1868?-1867 was the first year that the men had to be paid at the Shipping Office.

14,395. Was there a previous notice to that I have got, which is dated February 1868?-I am not quite sure; but if there was one, I think it must have been something similar.

14,396. The change of procedure may have taken place without a notice; but you say that there was a change made in 1867?-Yes. That was the first year when we were obliged to pay the whole at the Shipping Office.

14,397. Have the lists you refer to ever passed since that new system was introduced?-Yes.

14,398. Can you remember the last time when such a list was handed to you?-I have a case here in point. In a book of the 'Arctic,' which I now produce there is an entry in the account of Magnus Thomson, dated 29th April 1868, 'By value in account with Hay & Co., 10s. 3d.'

14,399. The man was credited in the account for a sealing voyage with 10s. 3d., paid by Hay & Co. to you, the balance having been against him in his account with you for a previous sealing voyage to the extent of 11s. 9d.?-Yes.

14,400. Was that done in consequence of your handing Hay & Co. a note showing that balance against the man?-Yes.

14,401. Can you say whether any such cases have occurred since 1868?-I don't recollect any other case.

14,402. Have you ever handed such lists to Mr. Joseph Leask, or any person in his establishment, or received them from his house?-I went along one day and mentioned the names of two men to one of Mr. Leask's men, but I had no list.

14,403. Who was the person to whom you mentioned the names?-Mr. John Jamieson, the brother of the young man who was examined just now. I told him the names of two men who were indebted to me, and asked him if he would be kind enough to mention it to them. A day or two afterwards one of these men went to settle with Mr. Leask at the Shipping Office, and was discharged, and shortly afterwards he came and paid me a sum to account. I may mention that I was aware they could not keep the amount off the man's account; but I mentioned the matter to Mr. Leask's people, because I knew they would have an opportunity of seeing the men when they came to be discharged, and I wished them to remind them of their debt.

14,404. I suppose it was expected that if any case should occur in which a debt was due to Mr. Leask, you would do the same good office for him?-Yes.

14,405. Have you done so for Mr. Leask?-I am not aware that I have.

14,406. Have the names of any persons been suggested by Mr. Leask's people to you, in order that you might, if they were engaged by you, remind them of their debt to him?-Not so far as I recollect at present.

14,407. Is there any other point on which you differ from Mr. Robertson?-When you referred to the case of a man not having settled for his second payment until the time when he engaged for another year's voyage, you asked him if, when he got that second payment and his first month's advance for the following voyage, he left much of that money with the agent. Mr. Robertson stated that in many cases he did; but in all my experience, which has now extended over thirty years, I seldom ever saw a man leave any part of his first month's advance and his second payment both at the same time with the agent. If he did, it was an exceptional case.

14,408. Did he usually transmit it to his family for their maintenance during his absence, or spend it at the time in supplies for them?-Yes; in the case of a married man, I think the most of it was sent home, to be a provision for his family during his absence.

14,409. Is it usual for the man, at the same time, to send home a certain amount of supplies for his family upon an account?-Very often that was the case.

14,410. Is it not the case now?-It is not done to the same extent now, in consequence of the recent Board of Trade regulations, because the men don't get nearly so many advances.

14,411. Is the agent not willing to trust them to the same extent now?-No; they do not get the same sort of supplies now which they did formerly, which was generally meal.

14,412. But does the agent still afford them supplies of another kind?-He gives them an outfit for the voyage.

14,413. Does he not generally go beyond that in the supplies which he gives to them?-Not to anything like the same extent as formerly.

14,414. In fact he restricts their credit?-Very much.

14,415. Would you say that the advances given in that way are now reduced by one half?-Fully. Another statement which Mr. Robertson made was, that [Page 361] their books don't show the cash paid when the men are discharged at the Shipping Office.

14,416. I understand from what Mr. Robertson stated, and I think I saw from the books themselves, that the books still show the amount due to the man after settling his account with Mr. Leask,- that is to say, that the system of book-keeping which was in use before 1867 is still continued in the shop?-Yes.

14,417. The cash is actually paid in presence of the superintendent, but no settlement takes place in the books until afterwards?-Yes.

14,418. Has your system been changed since 1867?-Our system has not been changed; only, so far as I know, the practice of paying the whole balance to a seaman was not put in force until 1871. We had then ceased to be agents.

14,419. Had you ceased to be agents in 1871?-Yes.

14,420. In what way was the system carried on until 1871?-Every man on being landed was furnished with an account of wages, according to the Board of Trade regulations; and our practice, when furnishing that to a man, was to read over his account from the ledger, and tell him what balance he had to get, according to our account; and he was paid accordingly at the Shipping Office. When he appeared at the Shipping Office, the shipping master, or any one acting for him, asked the man if he had got his account of wages from the agent. He said 'Yes.' 'Are you satisfied with your account?' 'Yes;' and then I paid the amount of the balance. The shipping master did not see that what I had paid was the exact sum entered in the account of wages.

14,421. Then, in point of fact, what you paid was the sum actually due to the man in his private account with you?-Yes; that is to say, we squared accounts at the Shipping Office.

14,422. Was the shipping master aware that the cash actually passing was not the sum stated in the account of wages?-I am not aware of that. It was only last year that I understand the real sum paid was entered in the release which a man subscribed, and of course the shipping master had then to be satisfied that the actual sum was paid.

14,423 Was there a change in the form of the release then?-Yes, to that extent.

14,424. I understand the release is signed by the seamen, and the sum paid to each man is entered in the column opposite his name?-Yes.

14,425. That column either did not exist or was not filled up previous to 1871?-Yes. There was no column of that kind then.

14,426. Was that the reason why, in 1871, the superintendent began to look into the matter more closely, and to require that he should be satisfied that the actual sum named in the regulation account of wages was handed to the seamen?-Yes.

14,427. Under the present system, the superintendent has to give a certificate to that effect upon the release?-I suppose so.

14,428. Mr. Robertson stated that, in his experience, no allotment notes were ever taken in the names of the agents?-Yes; and that is another thing with regard to which I differ from him. That has been done in my own experience. Several young men, who had no wives to receive their allotment notes, asked at the Shipping Office if they could be made payable in my own name and the shipping master said it was quite legitimate. I think that occurred first in 1867.

14,429. Have you had such allotment notes in your own name since?-They were signed in that way unasked by me. I never knew about it until the men stated it in my presence.

14,430. The object of signing the allotment notes in that way was to enable you to draw their wages, or rather to retain their wages in security for your advances to them?-It had that effect.

14,431. In what year did you cease to act for Mr. Leask?-I left him in the end of 1865.

14,432. Had any allotment notes been taken before then in the agent's name?-Not to my knowledge.

14,433. While you in his employment, was it the practice to give the sailors no allotment notes at all?-Yes. I am not aware, from my own experience, that allotment notes were granted previous to 1867.

14,434. Is there any other point on which you differ from Mr. Robertson's evidence?-Not having heard the whole of his evidence, I cannot say; but these are the only points on which I differ from him, so far as I heard what he stated.

14,435. You have handed me a memorandum with regard to the voyage of the s.s. 'Narwhal' of Dundee, in the seal and whale fishing of 1866, showing the earnings of the Shetland portion of the crew, the amount in cash paid to each man, and the time of settlement?-Yes.

14,436. Was that memorandum made for the owners?-No. I have made it up from my books for the purposes of this examination.

14,437. That statement shows that thirty-one men were engaged through you for that vessel in that year, that their earnings amounted to £411, 15. 8d., and the amount paid in cash to £321, 19s. 10d. You also state the average earnings to be £13, 5s. 8d.; the average cash £10, 7s. 9d., and the average goods £2, 17s. 11d.?-Yes.

14,438. You also state that seven of the men were discharged on the same day when they left the vessel and that the others were discharged afterwards at different times, varying from seven days up till two, two and a half, seven and a half, and eight and a half months after they left the vessel?-Yes.

14,439. Was the average amount of cash received by the men of the 'Narwhal,' on that voyage, below or above, the average received by men in other ships, in your experience?-I have not looked particularly at the other books. That was not a very successful voyage, otherwise the goods might have been a little more, and the cash would have been more as well.

14,440. You have also produced a similar memorandum with regard to the s.s. 'Arctic,' in 1867, after the new regulations were introduced, which shows that the proportion in goods and money had not altered very much?-Yes.

14,441. Do you think it has altered since 1867?-I don't think so.

14,442. I thought you said that since 1867 you had greatly limited your advances to the men?-I consider the amount advanced, even in 1867, to be limited.

14,443. The amount of goods advanced in 1866 was £2, 17s. 11d. out of £13, 5s. 8d. of average earnings in the case of the 'Narwhal,' and in 1867, in the case of the 'Arctic,' it was £2, 13s. 1d. out of £11, 15s. 3d. of average earnings: that was very nearly the same proportion?-Yes.

14,444. Can you say that the amount of cash paid now is much greater than it was as shown in this return?-No; of course much will depend upon the success of the voyage, but I don't think there would be a great difference in the proportion.

14,445. Then is this memorandum intended to show that as much cash was paid before 1867 as you pay now?-I just took these two ships for the two respective years. I had no such object in view as you suggest.

14,446. Do you think that, in point of fact, as much cash was paid before 1867 as is paid now?-As I said before, it depends very much on the success of the voyage.

14,447. But you have had a great deal of experience, and, taking an average successful voyage, would the payment of cash be as great before 1867 as it has been since?-The regulations of the Board of Trade won't interfere with that to any great

extent, but the agents have not been engaging so many young hands since.

14,448. Is it your experience, as well as Mr. Robertson's, that green hands are not employed now to the same extent as they were formerly?-Yes; that must be the experience of every one.

14,449. What is the total cost of a green hand's outfit?-About £7.

14,450. The average amount spent on outfit by a man who has been at the whaling before must, I suppose, be [Page 362] considerably less?-A man who has been there for many years before may be keeping up his outfit.

14,451. May he require to spend £3 or £4 when he goes out again?-He may not require to spend one half of that.

14,452. And besides that he obtains a higher wage?-Yes.

14,453. Are you in the habit of insuring your men's outfits?-Yes.

14,454. What is the rate of insurance?-I think it is from 5 to 6 guineas per cent. I may mention that the Greenland trade was always considered to be a great nursery for seamen. A great many of our naval reserve men now, the majority of whom could compare with similar class in any part of Great Britain, commenced their career in the Greenland trade; but now these stringent Board of Trade regulations have utterly prevented, or nearly so, agents from taking them.

14,455. Is that because it has lessened the agents' power over the men?-No, it is because the men can only engage for one voyage; while almost the whole of the ships go to the seal fishing first, and come home, and then go back to Davis Straits.

14,456. Do the men ever engage for both voyages at once?-They have done so for the last year or two but it is not legal.

14,457. But they did it formerly?-Yes.

14,458. And they have resumed the practice within the last year or two?-Within the last two or three years the young hands have come to know that they cannot be forced to go both voyages, but that if they choose to leave at the end of the first voyage they do so. Of course an agent, when giving him an outfit for the sealing voyage, knew that nearly the same outfit would do for the whaling; but he cannot run the risk of giving that outfit upon one voyage merely, and therefore he cannot engage young hands.

14,459. I thought you said they had begun within the last year or two again to engage them for both voyages?-No. I say they have given it up within the last few years, because the young hands came to know that they could not be compelled to go both voyages if they chose to leave at the end of the sealing voyage.

14,460. Then that is another reason for ceasing to employ young hands?-That, in my opinion, is principal reason.

14,461. Are these young hands not anxious to get employment for both voyages?-If they have to rough it very severely in the first voyage perhaps they get cured of

going, and wish to stay at home.

14,462. But the abstracts you have produced show that the amounts of goods in 1866 and 1867 were very much in the same proportion; so that that is not consistent with the general proposition you stated, that the agents have restricted their credits to the men very much since these regulations were enforced?-As I said before, I made up these two lists in this way, that one was for the last year when the agents could settle without going before the shipping master, and the other was for the following year when they were compelled to go.

14,463. The abstracts you have produced, if they are to be taken as representative cases, rather show that the system introduced in 1867 made no difference at all?-I merely took these two years as specimens of what was done before and after the new system was introduced. I can prepare statements for other years if you think it necessary.

14,464. Perhaps the explanation may be that the 'Narwhal' was the case in which the greatest amount of cash was paid before 1867, in your experience?-I did not fix upon the ships in that way. I merely took them for the reason I have stated. The first man's account in that list shows that of £28, 11s. 3d. which he had to receive, he got £27, 15s. in cash. What I meant to show by that was, that the agent had no control over the man's cash, but that when he asked it he got it.

14,465. How many ships had you in 1866?-Two; the 'Narwhal' and the 'Erik.'

14,466. Did the men in the 'Erik' receive as large a proportion of cash as those in the 'Narwhal'?-I could not say positively unless I had the book, but I think they could not have had so much.

14,467. Would they have a good deal less?-They would have considerably less, because the vessel returned clean. The voyage was utterly unsuccessful.

14,468. Then, taking your experience while in Mr. Leask's employment before 1866, should you say that the men sailing in the ships for which he was agent generally received as much cash as the men of the 'Narwhal' in 1866?-I think on an average they would; but of course that would be in pretty successful years.

14,469. I am not speaking about the actual amount of cash which they would receive, and whether it was larger or smaller, but would they receive the same proportion of cash and of goods as is shown by your memorandum?-Scarcely.

14,470. Would the proportion be considerably less?-I am hardly prepared to say.

14,471. Are you prepared to say that since 1867 the men in the ships under your charge have got the same proportions of cash as against goods as are stated in the memorandum with regard to the 'Arctic'?-Nearly. I shall furnish a statement for a year or two in order to show how the matter stood then.*

14,472. How many vessels had you in 1871?-I had none in 1871. In 1870 I had two-the 'Narwhal' and the 'Arctic.'

14,473. Have you a separate book for each year?-I have for each ship. I should wish to make a remark with regard to the report of the Accountant of the Board of Trade. Enough, perhaps too much, has already been said on that subject, but I think his report is couched in rather exaggerated terms, and, to a cursory reader, is calculated to convey a very erroneous impression. To a careful reader it is very different, I must acknowledge, but with a cursory reader it might have that effect.

14,474. Then you don't go so far as Mr. Robertson has gone, and say that the statements in it are utterly erroneous?-No, I cannot do that.

14,475. You merely object to the general impression which it conveys?-Yes; but I decidedly object to that. I would also say that in my experience, which is nearly as long as that of any one in the agency I never knew of an agent intentionally putting off time in settling with the men. When I was in Mr. Leask's employment, before the passing of the Merchant Shipping Act, when the men were landed and got what cash and goods they wanted, they would generally ask at what time they would be settled with, and we would tell them that in the course of a month, by which time we got the returns ready-that is, the [Page 363] ship's accounts for wages and oil-money-we would settle with them at any time. That was the universal practice.

14,476. Formerly you did not settle with the men until you had got funds put into your hands by the owners-No; and we generally got these in the course of four weeks.

14,477. Do you know of any case in which a settlement was refused on the ground that you had not received funds from the owners?-No; I do not recollect of any such case.

14,478. Is there any foundation for this statement in Mr. Hamilton's report: 'Any man who carried his custom to any other shop than to that of the agent employing him, would run the risk of being a marked man, not only with that particular agent, but also with all the others, among whom the news of his contumacy would soon spread; and as there are more men than there are berths, he would probably never get any employment again.' Has a man had any difficulty in getting employment because he had carried his custom away from a particular agent?- I don't think so. If there was such a case, I think it must have been only one.

14,479. Was there one case?-I say I think it could only be one case.

14,480. But do you know of any one case?-Having left Mr. Leask's business, I consider it treading on rather delicate ground to speak about that; and I would not like to be pressed. Of course I must always remember in giving my evidence that I am on oath, but I would not like to be considered as equivocating.

14,481. I think you are giving very candid evidence; but you ought to tell if there is any foundation for the statement that the men had been refused employment because they had carried their custom elsewhere?-I am only aware of one solitary case.

14,482. Was that because the man had gone away and got an outfit or supplies elsewhere?-I am not aware of a man being denied a berth because he had taken an outfit elsewhere. I think the report of the Accountant is incorrect in that respect, because I have known no case in which a man has been refused a berth because he

had taken his outfit elsewhere.

14,483. What was the one case to which you referred just now?-I cannot condescend upon the particulars which led to it specially; but there was one case of man being engaged, or partly engaged. He had been with the same master for some years before, but some little difference arose, and the man was prevented from going the voyage, and did not go to it. I cannot say what was the particular cause for that.

14,484. What was the name of the man?-Thomas Manson, Bressay. That has been the only case of that kind, in my experience of the Greenland trade.

14,485. The practice in engaging seamen, I understand, is that the men go to the agents and intimate their desire to be employed for the voyage?-Yes.

14,486. The agent has not the power of making legal engagement with the men, but the engagement is finally made by the captain?-Yes.

14,487. Do you go on board the vessel with the men for the purpose of having them engaged, or is the engagement generally made by the captain on shore?-There have been a few cases of engaging men on board ship, but very few.

14,488. But it is done at a meeting between the captain, the agent, and the men?-Yes.

14,489. I suppose the agent, where there are a number of men, has some voice with regard to their selection?-Unquestionably.

14,490. Are you aware whether any effort has been made by agents, either yourself or others, to secure engagements for the men who had larger accounts or larger debts in your books?-Of course there have been a few cases where an engagement has been got for a man who was in debt.

14,491. Do you know of any case where the captain has objected, or complained of the efforts made by the agent to get such men engaged?-No, I don't recollect of any such case.

14,492. Did you know a Captain M'Lennan who came here for men?-Yes.

14,493. Did he make any objection of that kind on any occasion?-No.

14,494. Did he not complain of it being done?-Not to my knowledge. I never heard any such complaint, either from him or from the owner on his behalf.

14,495. Were you at one time agent for a vessel of which he was master?-Yes, in 1870. He had his men sent south to him in the previous year. We had him for two years.

14,496. Were you not in business at all in 1871?-Not as shipping agents.

14,497. Had you applied to have the agency for Captain M'Lennan's ship in 1871, before you gave up the business?- No; we had her from 1866 till 1871, when we gave her up voluntarily.

14,498. Was no complaint made at all that you had endeavoured to engage men who were in your debt or who were running accounts with you?-No.

14,499. In your business, who was in the habit of settling with the men at the Custom House? was it yourself or a clerk?-It was invariably myself. In fact it was the same individual who had to appear every time. The shipping master would not allow one person to come now, and another person to come then.

14,500. You have already stated that, so long as you were engaged in the trade, the amount of your account was deducted, and only the balance was handed over to the man in presence of the shipping master?-Yes.

14,501. So that, in point of fact, your account was settled in the Custom House just as it was before the Board of Trade regulations, with this exception, that there was no writing or reading over of the accounts at that place?-Yes. Before 1867 it was done in our own office. I may mention that in several cases, of which this [showing an account of wages] is a specimen, the men actually got what they had to get according to the Board of Trade regulations. In that case the sum which the man had to get was £5, 16s. 3d.

14,502. Did he get the whole amount because he had no account at all?-He had an account, but he got this sum in full because his wife had not drawn all his allotments.

14,503. Were the allotments deducted in that account?-Yes, that was invariably done.

14,504. Did you draw the allotments for your account?-We drew them regularly from the owners.

14,505. So that this man got his balance due upon the account of wages, because his allotments had been applied to the account due to you?-Yes. I may mention that his account was very trifling,- in fact was next to nothing; and in addition to that he had a balance to get, when he came down to the office, of £3 odds due upon his allotments.

14,506. Have you any vessels engaged in the Faroe trade?-No; we are in no way connected with that fishing.

14,507. Have you any share as owner in any of the vessels for which you have acted as agent?-No; and as we are entirely out of that trade just now, have no reason for making the statements I have done, except merely to give it correct account of the way in which the business has been conducted. The statement I have made is altogether an unprejudiced one.

14,508. But you think the 21/2 per cent. allowed to you was a very inadequate remuneration?-Since the recent Board of Trade regulations were issued, it was because we had often to throw our own business aside to attend to the men when they came to settle.

*Mr. Tulloch afterwards furnished the following statement:- Men on s.s. 'Arctic,' of Dundee, voyage to seal and whale fishing in 1867. Amount of wages and oil-money, £411 14 6 Amount of cash paid Shetland portion of crew-35 men, 318 14 6 Amount of goods sold, £93 0 0

Average earnings, £11 15 3 ,, cash, 9 2 1 ,, goods, 2 13 1

Men on s.s. 'Narwhal's' voyage to seal and whale fishing in 1869-M'Lennan, master. Amount of wages and oil-money, etc.,. £303 15 2 Amount of cash paid Shetland portion of crew-19 men, 255 11 6 Amount of goods sold, £48 3 8

Average earnings, £15 19 9 ,, cash, 13 9 0 ,, goods, 2 10 9

Men on s.s. 'Erik,' of London, voyage to seal fishing in 1869-Robert Jones, master. Amount of wages and oil-money, etc., £365 10 10 Amount of cash paid Shetland portion of crew-25 men, 326 4 4 Amount of goods sold, 39 6 6 Average earnings, £14 12 5 ,, cash, 13 1 0 ,, goods, 1 11 5

Lerwick, January 29, 1872, GEORGE REID TAIT, examined.

14,509. You were for a number of years engaged as an agent in Lerwick for whaling vessels?-I was.

14,510. How many ships had you generally?-I have had as high as eighteen in one year.

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14,511. For these, I suppose, you would sometimes employ 100 or 200 men?-Fully that; perhaps about 250 men.

14,512. You have heard the evidence of Mr. Tulloch?-I have.

14,513. Are there any points on which you differ from him?-Yes. So far as my own experience is concerned, since the issuing of the Board of Trade regulations in 1867 we have invariably settled with our men at the Shipping Office without deducting our own account

14,514. Were these settlements conducted by yourself, or by one of your clerks?-Principally by one of my clerks; but at times, when he was absent, I generally settled with the men myself.

14,515. Was that clerk Mr. Leisk, who is now your successor in business?-Yes.

14,516. Is the statement correct that these settlements were generally protracted for months, and were only made at intervals as the men came up?-I don't think it is generally correct. When a vessel arrived at Lerwick, the men were generally settled with at once.

14,517. Even before 1867?-Even before 1867. I don't think there is any difference with regard to the dates of settlement.

14,518. Then what effect have the regulations had?-I don't think they have had very much effect, so far as my own experience goes.

14,519. Have they had the effect of reducing the amount of debit against the men in the agents' books?-I don't think so.

14,520. You have not found it necessary in consequence to restrict your advances to the men?-I have not. I just give them much about the same as formerly

14,521. Have you formed any idea from your experience as to what proportion of a man's earnings in an average voyage may be exhausted by his supplies in goods?-I have taken a note of it for the last three years. In some cases it has been as high as 20 per cent.; but where the vessels were successful, the proportion of goods was not by any means so great, compared with the amount of oil-money and wages. In that case it would sometimes be reduced to 5 per cent. In the case of the 'Arctic,' Dundee, last year, £995, 6s. 8d. was paid at the Shipping Office to 29 men, and they afterwards returned and paid me £48, 2s. 5d. for goods That was a very successful year, and the 'Arctic' was particularly fortunate. I may explain that out of the twenty-nine men there were only eight taken on the second voyage The vessel made two voyages, and that return is exclusive of the eight men who went with her the second time.

14,522. So that the advances were really made for the sealing voyage only?-Yes, really for the sealing voyage.

14,523. And I suppose it was from the sealing voyage that the greater part of the returns were made?-No. I think the eight men grossed pretty nearly as much from the second voyage.

14,524. But that was an extraordinary case altogether, was it not?-Our vessels were all fortunate last year, on the whole.

14,525. However, you say that in some cases the amount of goods has been as much as 20 per cent. of the whole earnings?-I think so; but these were exceptional cases.

14,526. After the new regulations were issued, did the men universally come down and settle their accounts as soon as they received their cash at the Custom House?-As a rule, they did.

14,527. Are they expected to do so?-A great number of the men who are customers of my own are always very honourable in settling their accounts.

14,528. But is it understood when you are paying them the money that they are to do so?-Yes.

14,529. Is there an understanding expressed at the time when they are getting the advance, that they are to settle as soon as they receive their wages?-We have never expressed it in words, but I should fancy that there is such an understanding.

14,530. Have your accounts since 1867 been kept in the same way as they were before?-In the same way.

14,531. That is to say, they show the receipt by the seaman of the balance due after deducting his account, and don't show the actual sum received by him at the Custom House?-We generally credit the men with the full amount of wages, oil-money, and seal-money payable to them; then there are the advances prior to the voyage; then there is the sum paid at the Shipping Office;-the full amount is entered against the men; and then the sum returned.

14,532. Do you make a separate entry of that so as to show what has been actually paid?-Yes.

14,533. Have you known any case of a man declining to come down from the Shipping Office to pay his account at the time?- There have been two or three very rare cases.

14,534. What happened when such cases occurred?-The men are still due the amount. That was all that happened.

14,535. Did you make any effort to get them an engagement in the following year?-No; I have never seen them since. I think two of them are south.

14,536. Have you seen any evidence on the part of the men in other cases of an unwillingness to come down?-No. I have never seen any evidence of that at all. We leave the men at the Custom House after we pay them, and they always turn up afterwards and pay us.

14,537. Do you ever accompany them down from the Shipping Office?-We never have to do such a thing. It may be a day or so before they come, but they always pay very honourably.

14,538. Do you generally tell them at the Custom House that they are to come down to the office?-No. I do not recollect ever once telling them that, or giving them the least hint on the subject. I trust to their honour, and they always come forward. I may remark, that masters of vessels coming home from the sealing are very anxious to proceed with all despatch to Dundee or Peterhead, and it is sometimes difficult to make the harbour here. It would be an exceedingly annoying thing to force shipmasters to spend some days perhaps in making Lerwick harbour; so that they are very anxious in passing Shetland, to land their crews at any of the islands; but in that case the expenses of the crew are invariably paid to Lerwick, and it may be a fortnight perhaps before we see the men. Generally speaking, however, they are in town in less than eight days.

14,539. Have you known any cases in which your account for goods furnished was entered in the captain's store-book?-I have known cases of that some years ago-perhaps about three years ago, I should fancy; but am not certain.

14,540. Was that done after the new system was introduced?- There was a special order of the Board of Trade issued afterwards, preventing us from doing so. It was done before that time.

14,541. Did that order prohibit such entries being made in the captain's store-book?-Yes, with the exception of the captain's own account.

14,542. Such entries were made, I presume, to entitle you to deduct the amount of your account at the settlement before the superintendent?-Yes.

14,543. Do you think the remuneration of 2 1/2 per cent. is sufficient for the trouble that an agent has in obtaining engagements for the men and settling with them?-That depends entirely upon the success of the vessel. Some vessels, such as the 'Arctic' in the voyage I have mentioned, pay well enough; but if the vessel is unfortunate, the remuneration is scarcely sufficient.

14,544. But, taking the vessels overhead, is it sufficient?-I don't think it is, considering the time and trouble that are necessary.

14,545. Might not the rate of remuneration be raised by agreement with the owners?-They have refused to increase it. There was an application to that effect made some years ago, and I think they refused to entertain it.

14,546. Then I fancy the agent's principal inducement to continue in the business is that he has an opportunity [Page 365] of supplying the men with goods?-I don't think there are many agents inclined to continue the business now.

14,547. You have given it up yourself?-Yes.

14,548. But your successors are to continue it?-Yes. I think for a year they are to continue it.

14,549. You are not one of the gentlemen who have come voluntarily forward for the purpose of contradicting the official report of Mr. Hamilton?-No; but, so far as my own experience is concerned, I think Mr. Hamilton's report was very much exaggerated. In fact it was not correct, because all our men invariably got paid in full at the Shipping Office, without any deductions, since 1867. From the report, it would appear that the agent deducted his own account, but that was never done by me.

14,550. But if you put your account into the captain's store-book, that was getting deduction of it?-There was a special clause in the ship's articles, entitling us to do that. During the last three years that has been prohibited, so far as the Shetland men's accounts were concerned, but not in the Peterhead ships' articles. I think the clause still holds good with regard to Peterhead crews.

14,551. In your business, were you in the practice of taking out the allotments of wages in your own name?-No, not the allotments.

14,552. Did you give any allotment notes at all?-Yes, since 1867.

14,553. Did you do so in all cases?-No. I have had allotment notes, in a few exceptional cases, made out in my own name, when the men desired that. They volunteered it at the Shipping Office in a few cases; but the great bulk of them were made out in their wives' names and, where they were young men, in the name of their mothers.

14,554. Were there many cases in which no allotment notes were taken at all?-Yes. I think last year we had one crew who had no allotment notes at all; and before 1867 I think no allotment notes were given.

14,555. Since 1867, has it been a common thing for men not to take allotment notes at all?-It is common thing for the men to take them if the voyage is long; but if it is short, the captain does not give allotment notes, because the voyage would be ended before the first note was due.

14,556. Have you known any case in which agents have endeavoured to secure engagements for men who were due them money, or who were running accounts with them, in preference to other men who were not in that position?-I never knew any

such case, although I have heard it often talked about.

14,557. Have you heard the captains complaining that the agents wanted them to take men who were indebted to them, rather than the best men who were not in debt?-I have heard Captain M'Lennan say so. I was not his agent at all, but I heard him make such a complaint in our place last year. I did not know anything as to the truth of it.

14,558. Were you acquainted with the system of exchanging lists which Mr. Tulloch spoke of?-Yes; but I have seen none from anybody for the last five or six years, nor have I handed any within that time.

14,559. What was the purpose of these lists?-It was simply for the purpose, if possible, of procuring payment of the balance due, or of ascertaining where the man was employed. The list gave us a sort of idea where he had been in the previous season.

14,560. Was it a list of all the men who were in your debt, and who had not engaged with you, that you handed to the other agents?-It was generally a list of about half a dozen men, whether they engaged or not. It depended upon whether they were customers.

14,561. But if a man engaged with you, it was quite unnecessary for you to hand his name in a list to any other agent?-Yes; it was quite unnecessary then.

14,562. Therefore the list must have contained the names of men who had not engaged with you?-Yes.

14,563. At what period were these lists made out?-About the spring, or some time during the season, prior to the vessels returning from the Arctic regions.

14,564. Have you ever handed lists of that kind to Mr. Leask or to any of his people?-Yes, when Mr. Tulloch was a clerk to him, but never since the regulations of the Board of Trade were issued.

14,565. Have you known any case of a man being paid his wages before the superintendent, and leaving to hand back a large proportion of them to the agent in settlement of his account?- Yes. If he was an honest man, he would come down and settle his account, whatever it was.

14,566. May it have happened in many cases that he had to hand back the whole or a considerable portion of his earnings in that way?-Yes; in the case of a young lad whose earnings were small, his account might amount to the whole.

14,567. Your books, I have no doubt, would show many cases of that kind?-Yes, many cases.

14,568. Did you cease to engage young hands to the same extent as formerly, in consequence of the regulations of the Board of Trade?-Yes. That is the sole reason why so few young hands are engaged now.

Lerwick, January 29, 1872, JOHN ROBERTSON, sen. recalled.

14,569. Have you examined your books for January 1868?-Yes.

14,570. Did you find any entry there of a sale of meal to Thomas Hutchison, Skerries, or to his father?-No; there is no entry of a sale of meal in that month.

14,571. Did you find the price at which your meal was being sold in the following month?-Yes.

14,572. You have no entries to show the price during January?-I cannot find any.

14,573. At what price was it being sold in February 1868?-At 52s. That is the price I charged; but I find the price was rising that year, because in the following month again it was charged 1s. higher; and it is quite possible that I would sell a sack at 50s. in January.

14,574. Is it possible you may have sold a sack of meal without it being entered in your books at all?-Yes; we frequently do that. If the cash is paid down we don't make any entry of it.

14,575. The price of 52s. in February was the credit price?-Yes.

14,576. So that, if a man were buying it over the counter, he would probably get it 1s. cheaper, paying for it at the time?-Yes. We usually give it 1s. cheaper when paid for at the time, than when we give two or three months' credit.

14,577. Do you do an extensive business in meal?-Yes.

14,578. Is there much difference in the price of the meal sold in Shetland, according to the quality of it?-There is a considerable difference in the prices of flour.

14,579. But is the meal generally about the same quality?-Much about the same.

14,580. Is there a difference between south-country meal and Orkney meal and Shetland meal?-There is no Shetland meal sold. We never get any to buy; at least very little.

14,581. I have seen one or two entries of Shetland meal in country places: would it be sold much lower than south-country meal?- Yes, very much lower.

14,582. But it is not an ordinary article of commerce in the country?-No. There are very few who deal in it.

14,583. In comparing the books of different merchants selling meal throughout the country, would it, in your opinion, be fair to assume that a merchant in a country district was selling the same quality of meal that you sell in Lerwick?-Yes. I think they would be selling the same quality. There may be different qualities of meal, but I think they all keep the same qualities. For instance we keep three kinds of flour.

14,584. That is in flour, but in meal is it usual in Shetland to keep more than one quality?-I think not.

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14,585. You keep only one quality of meal?-Yes.

14,586. And you are inclined to believe that merchants in other parts of Shetland will generally be selling the same quality?-I think so. Of course it must be a little dearer in the country, but I have heard of prices being charged, at which I was a little surprised.

14,587. Did you at one time give a note of the prices of meal to a man, Henry Gilbertson?-I was inquiring at my clerk about that, and I found that he did it. Of course he would give the prices which he knew, and which he would find in my book. I may mention that the prices of meal differ very much in one year.

14,588. But probably not within one month, unless there is a sudden rise?-No; not unless there is a sudden rise or a sudden fall. I generally consider that we should charge as little for meal as we can, so that the poor people may get it at as low a price as possible; and we take a less profit on it than on other goods.

Lerwick, January 29, 1872, JOHN LEISK, examined.

14,589. You are a partner of the firm of Leisk & Sandison, merchants and shipping agents, Lerwick?-I am.

14,590. I understand you were previously in the employment of Mr. George Reid Tait, who has now retired from business?-Yes; I had been in his employment since 1862.

14,591. Were you in any other business of the same kind before?-No; I entered business then for the first time.

14,592. Have you heard the evidence which has been given by Mr. Tait?-Yes.

14,593. Do you agree generally with him in the account he has given of the way in which seamen have been discharged and had their wages paid?-Yes. I think it was generally correct.

14,594. Have you been in the habit of going up and paying wages at the Custom House?-I generally went with the men there.

14,595. Is it the custom now to hand them over their wages in cash, deducting only the sums which they have got for the month's advance, the allotment money, and the captain's account for stores?-During the last year, 1871, we only deducted the captain's stores and the first month's advance.

14,596. Were there no allotments?-The men had allotments but we did not deduct them. We were entitled to do so; but I found it simpler not to deduct them, and trust to the men refunding.

14,597. Then the allotments were not entered in the accounts of wages at all?-No.

14,598. Why did you not enter an allotment which the man had really drawn?-Our reason for not doing so was that in some cases they had not received the allotment in full, and they did not understand the accounts very well. In fact we found they understood them much better when they saw the full amount of their wages and were told the amount of advances. It was less trouble to us, and we got on better with the men by doing so.

14,599. Did you not include the allotment in the settlement with the men at the Custom House because it was involved in their accounting with you?-Yes; it became involved with that.

14,600. Had the allotment notes in 1871 been taken in name of the agent?-Very few of them. Perhaps in one or two cases they were, but not more.

14,601. Had they generally been left in his hands?-Yes, generally.

14,602. When not taken in his name, but left in his hands, in whose name were they made out?-Generally in name of their wives or some of their relations.

14,603. Had you found that the wives had come to get advances?-Yes, generally they had.

14,604. But not to the full extent of the allotment money?- Sometimes, and in other cases they did not. In Lerwick they always got supplies to the full extent, but in the country they did not.

14,605. In what way did they get supplies?-Chiefly in money.

14,606. But in the country they did not take money to the full extent of the allotment note?-Sometimes they did. In fact the allotments were generally paid in cash.

14,607. Was it usual for the wives only to take it as they wanted it, and not to draw the full amount of allotment money due at any one time?-They generally had it divided in four; and they came for it weekly, instead of monthly-the allotment note being payable monthly.

14,608. Was it in consequence of that practice of drawing upon the allotment money that you found it more convenient not to put it into the account of wages?-Yes.

14,609. If it had been drawn at monthly intervals the account would have been simpler?-It would.

14,610. And it might have been entered in the account of wages without any trouble?-Yes.

14,611. Why was it not paid over to the women monthly?-They generally wanted money before it was due. It is only due two months after the vessel has left; and they required money before that time and generally got it.

14,612. When the two months had expired, did you not settle accounts with them, so as to clear off all that was due?-In some cases we did. When they were drawing upon us regularly we did so, but we did not make a practice of doing so.

14,613. I suppose you were supplying them with goods at the time as they wanted them?-If they wanted goods we supplied them, but we never asked them to take them.

14,614. Neither did you ask them to take the full amount of their allotment money when it was due?-No.

14,615. Have you since 1862 been in the habit of settling the accounts with seamen engaged in the whaling trade?-Only since the new regulations in 1867.

14,616. Since then has it generally been you who have gone up to the Custom House for Mr. Tait?-Yes, almost invariably, except when I was away.

14,617. Since 1867 has the deduction for your account ever been made in settling at the Custom House-Never since 1868. There was an order issued by the Board of Trade in 1867, but it was not very complete, and there were fuller regulations issued in 1868.

14,618. But the system was altered in 1867?-Yes. There was nothing to prevent us from including supplies for the men in the captain's store-book previous to 1868; but the new regulations prevented that, and we never did it afterwards.

14,619. Then it was only in 1867 that any entries were made in the captain's store-book?-Yes, by us. There was a clause about that in the regulations of 1868 which was not in the regulations of 1867.

14,620. Have you ever read over to the men the account of their transactions with you before going up to settle at the Custom House?-We generally read it over when they come to pay it.

14,621. Is it ever done before they go to the Custom House?-If they wish it, it is done but we never volunteer to do it.

14,622. Has there been any case since 1868 in which settlement of your account has been made or proposed at the Custom House?-I don't remember one. I know it was never allowed by the superintendent. He always counted the money, in every case since 1868.

14,623. Do you know how it was done in the case of other agents?-I don't know.

14,624. Did you hear the evidence of Mr. Tulloch to the effect that up to 1870 he had only paid the cash balance due to the man after deduction of his account, and that the superintendent had not taken care to see that the whole amount was paid, except the legal [Page 367] deductions?-Yes. I understood that that had been allowed in Mr. Tulloch's case, but it was not allowed in ours.

14,625. Had you been expressly debarred from doing so by the superintendent?-Yes.

14,626. Was that done on any occasion when you were about to settle your own account there?-No. We never tried that; but he has repeatedly counted the money, perhaps not every man's, but that of two or three, to see that it was complete.

14,627. Has that been done since 1868?-Yes, always since 1868.

14,628. Do the men universally come down to your shop to settle their accounts after receiving the money?-Yes, I think invariably. I only remember one case in which a man failed to do so. Perhaps there has been one case more, but I don't think it.

14,629. Who was the man whose case you remember?-John Henderson, Yell.

14,630. Have you had occasion to remind the men that they ought to come down and pay their accounts?-No; we do not remind them of it, but we always explain the account of wages as we hand it to each man.

14,631. Is that explanation made in the Custom House?-No; we explain it previously. The man is supposed to be satisfied with it before he goes to the Custom House.

14,632. When making that explanation, do you also tell them that they are bound to come and pay their account for furnishings to you?-We do not tell them so. We tell them that our account is not included in the account of wages, and has to be paid simply when they get their money.

14,633. And the men have always come down without being told, and have paid their accounts at your shop?-Yes. They generally leave the Shipping Office one by one as they are paid, and come down to the shop, sometimes straight, and sometimes they do not appear for a long time afterwards. We never look after them, but just trust to their coming.

14,634. I suppose the amount of your account for outfit and furnishings sometimes exceeds the amount of wages and oil-money due; at least in the case of young hands?-In the case of young hands only; and as rule, in their case it does so. It is a very exceptional thing in the case of older hands. The young hands have less clothes to start with, and they require larger outfit, and their wages are smaller.

14,635. Do young hands invariably come back to you in the second year to get an engagement?-Not invariably.

14,636. What do they do in that case?-I don't know what becomes of them. Perhaps they go to some other fishing, or engage with some other agent.

14,637. Have you known any case of a young hand obtaining his outfit from another shop than that of the agent by whom he has been engaged?-I don't know of any.

14,638. Have you known any case of a young hand obtaining what he wanted for his second or third voyage from another shop than that of the agent who engaged him?-No, I have not been aware of it. If he had money to get at the end of the voyage, he possibly bought what he wanted elsewhere. I don't know of such a case, but it may have happened.

14,639. Was there a correspondence between Mr. Tait and the superintendent hereabout the system of paying seamen at the Custom House within the last three or four years?-There was some correspondence between them in the beginning of 1871.

14,640. Was that after the publication of Mr. Hamilton's report?- Yes.

14,641. How did that correspondence originate?-I think it originated from some document that came down for explanation from the Board of Trade through the shipowners in Dundee. Mr. Tait sent it up to the Shipping Office here, and asked what was complained of in discharging the seamen.

14,642. Did he get an answer?-The correspondence was carried on between Mr. Tait and Mr. Gatherer. I was not concerned in it.

14,643. Had you any interviews with Mr. Gatherer on the subject?-Yes, one. I carried up the document to him which had come from the Board of Trade and conveyed a message to him from Mr. Tait asking what was complained of, as we did not know of anything wrong. He refused to give me an explanation, saying at first that he knew nothing about it. I insisted that there must have been some complaint from him or from this quarter, but he still refused to give me any explanation of it, and I got none.

14,644. Did the correspondence follow upon that interview which you had with him?-Yes.

14,645. Was any explanation obtained in the correspondence?-I am not conversant with the correspondence, and I cannot answer that question.

14,646. Are you engaged in any other branch of the fishing business except the agency for the whaling vessels?-No. With regard to the Shipwrecked Fishermen's Society, I heard Mr. Jamieson's evidence upon that point, and I would like to add, that a man who is wrecked has the option of applying through any agent that he may choose, and is not bound in any way to apply through the man who has sold him his ticket.

14,647. What is the practice in cases of that sort?-The men generally apply through the agent nearest to them.

14,648. Have you known any cases in which men or widows have applied through others than the agent who sold them the ticket, in order that they might obtain money instead of being paid in goods?-I did not know that that was their reason, but it might have been.

14,649. In such cases as those to which I have referred, have they generally asked for money?-They have generally got the money, so far as I know.

14,650. But you are not acquainted with any case in which that has been assigned as the reason for applying to a different agent?- No; I never heard it. They would likely apply to the agent they were best acquainted with, or who lived nearest to them. There are five agents in Lerwick, one of whom is the fishery officer, who is not connected with trade in any way, so far as I am aware.

14,651. Is there anything further you wish to say?-With regard to the time for settling with the men, we generally, as soon as we can get their accounts ready, fix a day for them to appear at the Shipping Office, and we settle then with as many as make their appearance.

14,652. You do not settle with the men on landing?-When the men land, we fix a day for settling with them, and as many men as appear on that day get their wages then, and the rest get them when they call.

14,653. But if you see the men when they land, in order to fix the day with them, why is it that you cannot [be] there and then settle with them?-Because we cannot get

the accounts ready. We require some time to make up the accounts of wages, and then they have to get discharges, which take them fully as much time as the accounts. There is a great deal of writing to be done in that; they are all made out in duplicate.

14,654. Do you mean that your own shop accounts have to be made up?-No, our own shop accounts have all been made up long before; it is only the accounts of wages that have to be made up at that time.

14,655. Have they to be made out in duplicate?-No; only the discharges.

14,656. Are not the whole crew discharged in one document?- That is the release; but each man besides has to get a separate discharge, and a certificate of character and ability and conduct.

14,657. Do you ever settle accounts of wages with the men before your own shop accounts are made out and balanced?-Never. We always make out our shop accounts shortly after the vessel sails.

14,658. But you may be giving supplies to the families all the time when the vessel is away?-Yes; but it is very easy to add that. It is always posted up, and can be added to the account at any time. I now produce the store-book of the 'Tay' in order to show you [Page 368] the form in which we understand it has to be kept in order to comply with the regulations.

14,659. Is that book kept by the captain?-Yes, We generally furnish a book for the purpose. The captains are not very careful about that, and we have had a great deal of annoyance with the Shipping Office in consequence.

14,660. Is there a separate store-book, kept in these steamers for the Shetland men?-Yes. The entries are filled in by the captain, and signed by him and each man; but sometimes they are not very particular in getting them signed, and objections have been made to receiving them at the Shipping Office in consequence.

14,661. Who is G.R.?-That is the signature of one of the clerks in the Shipping Office. That book will show the dates on which the men have been paid. The vessel arrived on Sunday 14th May, and we fixed the 17th as the day of settlement, when a few men made their appearance. There are three days allowed by the Merchant Shipping Act for settlement.

14,662. Do you think that is too short a period to enable you to make out all these accounts?-Three days are plenty of time. That settlement was made within the three days. The vessel arrived on the Sunday, which of course does not count, and we had Monday and Tuesday for making out the accounts. The Monday was a mail day, and we put them off until Tuesday. We employed ourselves making them out on that day, and appointed the men to meet us at the Shipping Office, at ten o'clock on the Wednesday morning, and you will see how many men made their appearance out of a crew of fifty men.

14,663. How many of them did so?-I have not counted them over, but the dates are all there when the men were settled with, with the exception of one man, John Robertson, Yell, who has not made his appearance yet. Mr. Tait sent him a verbal

message, requesting him to come down and get his wages, but he has not attended to it.

14,664. I see that one of these men was settled with on 15th May, being the day after the vessel arrived?-That has been an exceptional case. The man had probably been anxious to get away, but I don't remember.

14,665. I also see that a number of them did come forward on the 17th, or within a few days after it?-Yes. They came just when it suited them. I think there were only about a dozen who came on the 17th out of the fifty.

14,666. How soon were they all cleared off, except the one man who has not come yet?-I could not answer that question without referring to the book, but most of them would be within a month. There are always a few exceptional cases in every ship, of men who either do not require the money, or who have something which prevents them from coming.

14,667. Had you ever got a ship cleared off so rapidly before?- Frequently.

14,668. But not before 1871?-Yes; in 1870 and 1869 we got them settled with as rapidly. The settlements are never put off by the agents, but the men may stay away as long as they like of their own free will.

14,669. I suppose the agent seldom continues to furnish supplies after the men have returned from their whaling voyage?-They don't get any supplies afterwards, as a rule.

14,670. Is there anything more you wish to say?-There are some parts of Mr. Hamilton's report which I think I ought to notice.

14,671. Have you heard any part of the evidence of Mr. Robertson or Mr. Jamieson with regard to that report?-I heard a part of Mr. Jamieson's evidence this morning, but I did not hear Mr. Robertson's. Mr. Hamilton says, 'Any man who carried his custom to any other shop than to that of the agent employing him, would run the risk of being a marked man.' That is incorrect, so far as my experience goes.

14,672. Have you known any case of a man who did carry his custom to another shop?-Yes, I have known several cases of that kind, but I could not name them. There have been men who had money in their possession at the time of engaging, who did not purchase their outfit from us.

14,673. Would there be one in 1870 of all the men engaged by you?-I could not say; but I have known some of the men who purchased their outfit from us for cash at the time of engaging and who had no accounts whatever.

14,674. Were any lists exchanged of these men?-Never, to my knowledge.

14,675. The only lists you know of were those which related to men in your debt who had not paid up this debt?-Yes, and that was only previous to 1867.

14,676. Have there been no such lists exchanged since then?-Not that I remember.

14,677. Have you verbally mentioned the names of such men to other agents, and made inquiries about them since 1867?-I don't remember any particular case.

14,678. May you have done so?-Yes.

14,679. And many such inquiries have been made at you?-It is possible. I don't remember of it being done, but I would not say that it had.

14,680. Does it happen in your experience that green hands have generally to hand back the whole of their earnings to the agent?- Green hands frequently do so, where their wages are low.

14,681. And they may perhaps remain still in the agent's debt?- Possibly in some cases they do, but it is the interest of the agent now to have as few green hands as possible.

14,682. Was that his interest before 1867?-Not so much as it is now. Mr. Hamilton also says that it is the interest of the agent to delay the settlement until he gets the men in debt to him again. That is not the fact.

14,683. Do you mean that it is not the fact that it is his interest to do so?-It is not his interest; and it is not the fact that he does it, to my knowledge.

14,684. Is it not the interest of the agent to get man to take goods from him?-It is the interest of the agent to sell goods to a man, but not to get him into his debt.

14,685. But if a man takes goods from the agent, is he not in the agent's debt?-He does not leave it as debt. When a man gets his wages, it is the interest of the agent to sell as much goods to him as possible; but that is a cash transaction over the counter after the settlement

14,686. Are there many such cash transactions?-A good many-not so many at the time of settlement; but we see the men repeatedly after they have been paid.

14,687. Do they come back to you and spend part of the cash they have got?-Yes. I cannot tell whether it is the same cash or not, but they do spend cash. We see them almost daily.

14,688. When you have been settling in Mr. Tait's office with the men who had been at Greenland, was it usual, when they came down from the Custom House, to ask them if they wanted any goods?-Sometimes we did that, and sometimes not; but we never pressed them to take goods.

14,689. But it was not unusual to ask them?-We might ask them if they required anything, and sometimes they bought something from us after settlement.

14,690. In that case would it be added to their account at the time, or would there just be a handing back of the cash to you for the goods?-Just a handing back of the cash.

14,691. Such purchases are usually made after settlement?-They are always made after settlement, at least almost invariably; but occasionally I have seen men purchasing goods and laying them aside until they got their money, and then paying

for them. In that case the goods were not entered into any book, but were just put up into a parcel and laid aside for them.

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Lerwick, January 29, 1872, Dr. ROBERT COWIE, examined.

14,692. You are a medical practitioner in Lerwick?-I am.

14,693. Are you a native of Shetland?-Yes; a native of Lerwick.

14,694. Have you lived here almost all your life?-Yes; except when I was south for my education.

14,695. I presume you have had many opportunities of mixing with all orders of people here in the course of the practice of your profession, and also previously to some extent?-I have.

14,696. You are acquainted with the fact that a system of barter prevails very extensively in different parts of the islands?-Yes, almost universally.

14,697. And that both fish and hosiery are paid for, to a considerable extent, in that way?-Yes.

14,698. With regard to hosiery, has it come within your own knowledge that knitters are paid in goods to an extent that is unwholesome for themselves and for the community?-Yes, in drapery goods.

14,699. In what way has that been forced upon your attention?- Sometimes in the discharge of my professional duties, I have observed that there was an utter disproportion between the clothing and the food of these knitters. I am no judge as to the value or quality of the goods, but many of them are clothed in a very gaudy, showy manner, and in a way quite inconsistent with their position in life. I have reason to know at the same time that their food is utterly insufficient. I have known knitting girls, one might almost say, starving or very nearly, starving, when they were at the same time very well dressed or dressed in a very showy manner; and I would give an illustration of that. I remember one Sunday, between one and two o'clock in the afternoon, being called in to see a poor man, in Lerwick. He was very ill, and evidently dying. He asked me if I could prescribe anything that would relieve him, and I replied that I knew of no medicine that could really do him good,-that the only thing I could recommend was some sherry wine and beef tea. His reply was, if it came to that, it was utterly out of the question, for he had not the means of getting such luxuries. He told me that all the money they had in the house was a single shilling, and that they had lived for some days, as far as I remember, entirely upon tea and bread. A few minutes after having that conversation with him, I saw the poor man's daughter-who was his only daughter, so far as I am aware, and who lived with him-going to church, dressed like a fine lady. That struck me as being a very deplorable state of matters. Here were a family who were on the verge of starvation, and unable to get medical comforts for their dying parent, and yet the daughter, who was a knitter, was I might almost say magnificently dressed.

14,700. Is that the strongest and most striking instance of the kind that has come under your notice?-I think it is, in that form.

14,701. Have you seen other instances in which you were led to believe that the state of things was similar?-Yes, very similar. On many occasions knitters have consulted me as to their health, complaining of certain forms of dyspepsia. I inquired as to their food, and found it was very insufficient, while at the same time they were well dressed, at least apparently well dressed. But I would remark as to their dress, that I have reason to believe that the dress which the knitting girls in Lerwick and girls of the lower orders all over Shetland wear is not adapted to the climate. There is too much cotton in it; it is too thin, and it is insufficient to protect them from the inclemency of the weather. In former times in Shetland a great deal of the clothing worn by the females was home-made: it consisted of woollen garments, which were much better adapted to the climate.

14,702. Is it not the case that in the country districts the women still make the greater part of their own clothing?-I suppose they do; but what I intended to refer to just now was their inside clothing. I think there is too much cotton worn now, and not sufficient warm worsted clothing.

14,703. Then the worsted underclothing which the Shetland women make is entirely for the market, not for their own use?- I fear they sell it and buy cotton underclothing instead. I believe the disproportion, as I may term it, which exists between the food and the clothing of these knitters is chiefly, if not entirely, due to the system of truck by which they are paid.

14,704. Do you refer to the difficulty which they have in getting money for their work?-Yes; and to the fact that they get goods, chiefly drapery goods, for it.

14,705. Do you think that induces them to take larger quantity of dress than they really need?-I think so.

14,706. But at the same time you say that they do not have a sufficient amount of good underclothing?-Yes. I do not think they have a sufficient amount of good, warm, substantial underclothing for the climate in which they live.

14,707. Might they not get that if they required it in return for their work?-I suppose they might, but the fact is that they very seldom have it. They rather prefer to take showy outside clothing.

14,708. If women are reduced to distress for food, but yet have a considerable supply of handsome clothing, would you not suppose it natural that they should have recourse to the pawnbroker's shop in winter, or when they were in straits?-I would, but I am not quite sure if there is a pawnbroker's shop here. There is a sort of pawn in the town, but I don't think it is much resorted to. I have no doubt, if they were in a large city, they would resort to the pawnbroker's; but pawnbroking is practically unknown here. The people, some way or other, have not got into the way of it.

14,709. Have you known any cases in which women, in a state of distress for food, have sold their clothes to private individuals for it, or have endeavoured to do so?-I am aware that there are one or more old women employed, either regularly or

occasionally, in going round the houses and hawking clothes which had been obtained by knitters for their goods. On one occasion I met in with one of these women. I was seeing a patient in the house of one of the lower orders, and the woman came in with some article of children's clothing to sell. I inquired how she had got it, and I was told that she was hawking it for some person who had got it for knitting goods.

14,710. Then she had not bought it, but was selling it as the agent of another person?-Yes. She was selling it, as I understood, as the agent of the knitter.

14,711. Have you had opportunities of obtaining any knowledge with regard to the amount of immorality which prevails in Lerwick?-I have heard, and I have reason to believe, that it prevails to a very considerable extent; but I have had no means of obtaining any accurate knowledge on the subject.

14,712. Are you aware whether the amount of professional prostitution is greater in Lerwick than in other places of the same size?-I am not very well acquainted with small towns similar to Lerwick; there are only one or two small towns that I know well. I am better acquainted with large cities, such as Edinburgh and Aberdeen; but I scarcely think that in Lerwick there is a greater amount of professionals prostitution, in proportion to the size of the place, than there would be in a seaport town of a similar size.

14,713. Would you say there was a larger amount of occasional prostitution?-I believe there is. I don't think I could prove it, but I have good reason to believe so.

14,714. Is that from knowledge which you have obtained in the discharge of your professional duties, or is it from general observation?-It is partly from hearsay, and partly from general observation.

14,715. Can you ascribe that in any degree to the system of barter which prevails?-I think it may to a large extent be accounted for by that system; because the knitters, I believe, are insufficiently supplied with food, and they are supplied with plenty of handsome clothing. They are thus led to walk about the streets good deal, and are in that way led into evil courses.

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14,716. Is that an opinion which you have entertained for some time?-Yes. I think it is to be expected in the ordinary course of events, that if women, have insufficient food and plenty of showy clothing, they will be more apt to go astray than others who have comfortable homes, and plenty of food and clothing in keeping with their position in life.

14,717. You are aware, I presume, that statistics show the amount of illegitimacy in Shetland to be less than it is in many parts of Scotland?-I am aware of that.

14,718. Is not that inconsistent to some extent, or apparently inconsistent, with the opinion you have expressed about the state of morals in Lerwick?-It is apparently inconsistent; but I am afraid that in Shetland we get credit for a higher state of morality than we are entitled to, in the country districts.

14,719. Do you mean that the system of registration here is not efficient?-I mean merely that the Registrar General's returns do not always show that illegitimacy corresponds with immorality.

14,720. Is that in consequence of the marriages being celebrated at such times as show the existence of what clergymen call antenuptial fornication?-It is partly in consequence of that, but not altogether.

14,721. Then is it possible to reconcile these statistics entirely with the prevalence of an excessive amount of immorality?-I have heard attempts to explain it, but I don't know if they were satisfactory. However, it is such a delicate matter that I would rather not enter further into it.

14,722. Have you no satisfactory explanation to give on the subject?-No.

14,723. Has it fallen within your observation, that the want of food has had any physical effect upon the women employed in knitting?-I remember being recently told by a respectable married woman, who was very well acquainted with the habits of knitting girls, that many of them enjoyed very good health, and felt pretty well and vigorous during the first two or three days of the week, but became languid towards the end of it; and she explained that circumstance in this way: These girls got an extra supply of food on the Saturday night, and they walked about a good deal during the Sunday, which, as it were, recruited them; but towards the end of the week their supplies got exhausted, and they did not enjoy much out-door exercise, and therefore became languid.

14,724. How do you account for their obtaining an extra supply of food on the Saturday night?-They were probably settling then. Many of them, I may explain, are not mere knitters, but are otherwise occupied. They are very ready, I believe, to take other work when they can get it, and many of them live not wholly by their own exertions, but partly on their parents and friends; therefore there would be extra supplies of food and groceries going into the house on the Saturday night, which they had enjoyed during the first days of the week.

14,725. Have you been aware of cases in which the way of dealing has led to the formation of imprudent habits on the part of the women?-I think they are very extravagant as regards dress.

14,726. Do they also expend a great deal of money on what may be called luxuries in food, rather than upon what is necessary, when they have money?-I think they do. The lower orders in Shetland use a very large amount of tea, much more than is good for them. It is very strong tea, and they take it very frequently during the day-I think to an unwholesome extent. I think it injures their health very considerably.

14,727. Is oatmeal still used to a great extent as an article of diet?-It is used in the country districts, but I think not so much in Lerwick. Here it is more loaf bread that is used.

14,728. In what form is oatmeal generally used in the houses of the poorer Shetlanders?-I think it is chiefly in cakes, what would be called scones in Scotland. I don't think it is so much in porridge, so far as I am aware.

14,729. Is that the bulk of the diet of a fisherman's family?-That, and fish and potatoes.

14,730. Don't you think that, taking the Shetlanders as a body, they are as well off with regard to diet and clothing as any similar class in Scotland?-I think the peasantry in the country are so, on the whole. The lower orders in Lerwick differ considerably from those in the country districts; there are more employments open to them. I think the people in the country are better fed, on the whole, than those in Lerwick. They enjoy more fresh air, and are a better-off class of people, on the whole, than the lower orders here.

14,731. Has any special matter come within your observation that you think of mentioning with regard to the system of barter in other trades than hosiery?-Nothing very special. I think the system of the men being compelled to fish to the landlords or tacksmen on certain estates is a bad system, and should be abolished. One of the many evils resulting from it is that very often men don't know whether they have money or are in debt. They may think they have means, and at settling time they may discover they have nothing.

14,732. Would that not happen all the same if the creditor were a merchant who had no connection with the land?-It might, it arises from the system of long credits.

14,733. Have you known cases in which a man was under a false impression as to the balance at his banker's, as one may say?-I have. The other day a man in the country sent for me to visit his wife professionally; and on leaving he told me he had not the means in the house, but that he had sufficient to pay me, and good deal more, at the merchant's. I afterwards saw the merchant with whom he dealt, and he told me something similar. He also told me to send the man's account to him, which I did; but a few weeks afterwards the merchant wrote me that he had been mistaken,- that he found, instead of the man having means in his hands, that he was in debt, and he had had to advance him his rent, and that I could not get my account paid in the meantime; but that he would do his best to get it for me at a future time.

14,734. Is it a common thing to have accounts paid in that way through the merchant?-Very common.

14,735. The merchant, in short, appears in many cases to transact the whole of a man's business affairs?-Yes; he appears to pay his rent very often, and to transact other business for him.

14,736. He pays accounts for him of all sorts?-Yes.

14,737. So that the man may know nothing at all of his money affairs?-He may know little or nothing.

14,738. Do you speak of that as being a general thing within your own knowledge?-Yes.

14,739. Have you formed any opinion as to the effect of that system of dependence upon the merchant upon the character of the people generally?-Yes; they are deficient in that sturdy independence, if I may so express it, which characterizes the

peasantry throughout the rest of Scotland. The system fosters a dependent, time-serving, deceitful disposition, and it cripples enterprise.

14,740. Don't you find at the same time that the people are generally very well able to take care of themselves in any ordinary transaction? They have intelligence sufficient?-Yes; they are sharp enough. The Shetland peasantry possess very considerable intelligence; but there is in them a want of proper independence.

14,741. Do you mean that the position in which they are develops a kind of cunning rather than acuteness or cleverness?-Yes; it fosters a sort of low cunning. The system having been continued, one might almost say, for centuries has fostered that element in their character.

14,742. That you represent as being the principal defect in the Shetland character?-It is one of the principal defects.

14,743. In other respects, do you not think they are a very superior class to the ordinary run of peasantry in Scotland?-They are careful and intelligent, and they are [Page 371] pretty well-bred. They have a good deal of the <suaviter in modo>, more so than the most of peasants but there is that want of proper independence amongst them which I have mentioned, and they are of a very conservative disposition. I mean by that, that there is a want of desire to better themselves; for instance, to improve their houses, or to produce better crops, or to educate their families. There is a want of proper ambition among them; they are content to remain very much as they are.

14,744. Do you mean to represent that as being the effect of the system of barter which prevails?-I think it is partly the result of the system of barter, and partly of the short leases which are given of the land, and the want of any encouragement to improve their land and houses.

14,745. As a rule, the houses in Shetland are still in a very defective condition?-Very much so indeed. As far as we can see, they are in the same condition as they have been for centuries.

14,746. Are there many districts in the country where the houses still consist of a single room and have no chimney?-There are a good many instances in which they want chimneys, but they have generally two apartments-a but and a ben end, as it is called.

14,747. In such houses how is an exit furnished for the smoke?- Just through holes in the roof called 'lums;' but I am glad to observe a disposition to correct that in some districts. In many houses lately I have noticed that they have built wooden chimneys, and these improve the houses very much.

14,748. That has been so in Unst; but perhaps your professional duties don't take you so far?-I have not been in Unst for some years.

14,749. But in the course of your professional visits you have to travel over the whole extent of the mainland?-Yes, over the most of it.

14,750. Formerly, I understand, glazed windows were very rare in Shetland?-Very rare.

14,751. Has there been a change in that respect in recent years?- Yes, a very considerable change; but in some of the more primitive districts glazed windows do not exist yet.

14,752. In that case, is the light only admitted by the door?-Only by the door, and the lum or hole in the roof.

14,753. Are there many houses of that description in Shetland still?-A good many. I am afraid I could not say accurately how many.

14,754. Can you say whether these houses are inhabited by people who are pretty well-to-do as peasants?-Yes; I believe many of them are pretty well-to-do. They have bits of ground, and good earnings from their fishing, and are free of debt; and probably many of them have some means, although that is not known. It is one peculiarity of their character, that they don't like it to be known when they have money. I believe many of the men have considerable means in the banks, but they conceal it.

14,755. Have you had occasion to observe that yourself?-I don't know that I have had direct occasion to observe it; but I have heard it, and I believe it to be the fact.

14,756. Is it the current belief among those with whom you converse, that there are many of the fishermen who have means of their own, which they conceal from other people?-Yes.

14,757. What would you say was the character of the Shetland people with regard to sobriety?-I should say that, on the whole, they are very sober and steady; and I may give an illustration of that. It is well known that the Shetlanders as seamen are very highly prized at ports in the south, such as Liverpool and Shields; and very often a shipmaster, when desiring a crew, will put into the advertisement 'Shetland men preferred.' I believe the reason for that preference is not so much that the Shetlanders are better seamen, although they are as good if not better than others, but because they are more steady and more to be depended upon. For instance, I have heard of a shipmaster who, if he had occasion to land at Quebec or some port in America, and had to take a boat's crew on shore with him to bring him back again at night, he would select the Shetland men in his crew for that purpose if there were any, as he was more sure of having them in waiting for him at the time he wanted. That is not the result of personal observation, but it is what I have heard on good authority. I may state further, as a proof of their sobriety, that I have had occasion to examine it very large number of Shetland seamen in my capacity as Admiralty surgeon and agent. I have held that office for five and a half years, and during that time I have examined probably between 500 and 600 men, and I almost never yet found any traces amongst them of venereal disease, which is it very common thing amongst seamen. That is a proof of the steady habits of the Shetland men.

14,758. I understand there are very few public-houses in Shetland?-Very few. I think there is only one public-house in the mainland of Shetland outside of Lerwick, but there are several places holding grocers' licences where the men can buy liquor.

14,759. Is there anything further you wish to say?-I don't know that there is anything further, except that I may state it as my opinion, that it would be better, both for merchants and their customers, if the barter system were abolished and all transactions were carried on in cash. I believe the system of long credits is very injurious to all the parties concerned in it.

14,760. Do you think habits of independence would be fostered among the Shetland people if they received their wages or other payments in cash?-Yes; habits of independence and enterprise would be fostered, and I believe the merchants would be able to make better use of their money by turning over their capital more frequently.

Lerwick, January 29, 1872, PETER MOODIE, examined.

14,761. Are you it seaman and fisherman in Lerwick?-I am.

14,762. Have you been for a number of years at the sealing and whaling?-I have been at it since 1855, exclusive of two years when I was south.

14,763. Did you always ship from Lerwick?-Always.

14,764. From what agent?-I have been from them all. The first year I shipped was from Hay & Co., the next from Mr. Leask; and I have been from Hay & Co., Mr. Leask, and Mr. George Reid Tait ever since.

14,765. Did you get your outfit from Hay & Co. in 1855?-I did. I was then a boy, and I was glad to get it from them, because I had no person to give it to me except the agent.

14,766. Is it usual for green hands to get their outfit from the agent who employs them?-Yes. I don't think they would get it from any one else.

14,767. Did you pay off your outfit in the first year?-I did, and I had something to get.

14,768. Have you always had something to get ever since?-No, not every year. One year our ship had to come home because the master had fallen from the mast-head, and I was not clear with the agent upon voyage; but I shipped again to Davis Straits, and I did clear it off before the end of the season.

14,769. Do you always get a large quantity of supplies from the agent you ship with?-If I want it, I do, but if I like, I can get my first month's advance and my half-pay ticket; only, I find that the agents can supply me with everything I wish, and I have not taken a halfpay ticket except in one year, and I sold it as soon as I got it. I found, however, that I could get my goods as cheap from the agents as from the grocer's shop; and besides, I found that when I took my ticket to a grocer he did not like it. But the agents will allow you to take whatever you want. I have seen me go into an agent's shop in Lerwick about Christmas, and he would advance me 10s. or 15s. or £1 if I wanted it, and I paid him up for it, perhaps in the course of the [Page 372] next year; whereas I don't think many of the grocers would have advanced me one penny.

14,770. Don't you think your wife could have got her goods cheaper if she had had the money to pay for them?-No. I have never found that I could get them any cheaper. I have had groceries from a grocer's shop, and I have had the same things from agents, and I have found them to be all the same price.

14,771. It was the practice some years settle your accounts at the agent's shop, just in the same way that a fisherman settles with his curer at the end of the season?-Yes, we did that regularly.

14,772. For some years back, however, you have had your wages paid to you at the Custom House?-Yes.

14,773. Have you had them paid without any deduction except your advance?-Yes, except that and the ship's bill. If I had taken any goods from the agent before I went out, of course I got my money, and I could go and pay him when I wanted. He did not take it from me at the Custom House.

14,774. Did the agent ever seek to deduct the amount of his account at the Custom House?-Never from me. I cannot speak for anybody but myself.

14,775. Did you never see it attempted?-I did one year, but that was before they understood exactly how it was to be done. They had made out our account of wages so that the amount of their account was taken off; but as soon as we came to the Shipping Office, the shipping master told the agent that it was not to be done in that way. He altered our accounts of wages so that the money was all given to us, and then we went back to the agent's shop and paid him.

14,776. Was that in 1867 or 1868?-I don't remember which it was. I think it was in 1867.

14,777. Has any deduction of that sort been made since?-Never from me.

14,778. Do you always go straight down from the Custom House to the agent's office and settle your account with him?-I generally do so, if I think the agent is in his office; but if he is settling with some others besides, and has to wait with them at the Custom House, I may wait until the next day and then go along and settle it.

14,779. Do you generally go down from the Custom House in company with the agent or the clerk who has been paying you?- Generally I do. I think it is as well to pay my debt as long as I am able, rather than to spend the money, and perhaps not be able to pay afterwards.

14,780. Have you any difficulty in getting an engagement in a good ship?-I have never had any difficulty in getting an engagement from any of the agents I applied to, either from Hay & Co. or Mr Leask or Mr Tait. If I told them I wished to go in such a ship, they generally gave me a chance, if I was pleased with the wages; and if the wages were low and I would not go, I generally got an engagement in some other ship.

14,781. Did you ever get your outfit or supplies from some other agent than the one you engaged with?-No. I never did that, because I found I could have no advantage by it. I have found the system better here than ever I did in the south,

because here, if I got my first month's advance, I could get a half-pay ticket along with it; but in the south when I shipped, I got a month's advance, but very seldom a half-pay ticket. In some places I have paid 2s. in the pound, and sometimes 3s. in the pound, for cashing my note; while here the agents don't charge any money for cashing an advance note at all. In Glasgow I have paid 2s., and in the Sailors' Home I have paid 1s. 6d. for that, but here I pay nothing to the agents; at least I have never done it.

14,782. When you take an advance note, do you generally cash it?-Yes, here I do.

14,783. Are you not content to take it out in advances of goods?- If I require it I take it; and if not, I do not. They never asked me to take it in that way. I have come into the office, and I said I wanted my advance note cashed. It is not supposed to be paid until after the ship leaves, but generally the practice with us has been to come down as soon as soon as we have finished signing and ask to get it cashed. Perhaps there is not enough money in the office at the time, and they will give us £1, and say that we will get the rest afterwards. However, I may be willing to take it until I can get it all, and I came back again and get it all.

14,784. When you come down to settle you account at the office, are you usually asked if you want any more goods?-When you come down to settle you account at the office, are you usually asked if you want any more goods?-I was never asked to go and settle my account and to take more goods; but after the money was laid down before me, and I went into the shop to settle any small account I had, they would say, 'Do you want any clothes, Peter?', and I would say 'No;' and there would be no more about it.

14,785. How do you do about the last payment of oil-money? Is it paid at the Custom House?-Generally it is. It has been paid to me for the last two years; but last year it was not, because I was away when it was due. They asked me if I wished to go to the Custom House with it, and I said I did not; that it was all the same to me if I got the money when I cleared the ship's book.

14,786. Have you sometimes had a large sum to get for a last payment of oil-money?-Yes. One year I got about £5 for it from Mr Leask.

14,787. Do you take payment of that when it becomes due, or is it not paid to you usually until you go to get engaged for the next year's voyage?-I have never waited so long for it as the next year's voyage.

14,788. When you get your second payment of oil-money, is it just put into your hand, even although you have been running an account?-Yes. If I have been running an account they lay down the money to me, and then they tell me what my account is, and pay it.

14,789. Do you continue to run an account with the agent after getting your first payment?-Sometimes I do, but very seldom.

14,790. Do you pay in cash at the time for any supplies you get after you have received your first payment?-Yes; whatever I get I pay for them at the time.

14,791. Do you deal in any particular place for them?-Yes; in R. & C. Robertson's.

14,792. You don't deal during winter with the agent who had engaged you for the voyage?-When I have got an engagement through a particular agent, I don't think it is right that I should take the money from him and give it to another; and therefore I get what I want for the voyage from the agent that I getting money from.

14,793. But why do you prefer dealing with R. & C. Robertson in the winter time?-Because Mr. Robertson and I were boys at school together; and when I had a house of my own, he supplied me with goods when I wanted them. That was my only reason for preferring him to any one else.

14,794. But notwithstanding that, you prefer to go to the agent for the supplies you want, when you are on your voyage?-Yes. I have tried it both ways. I have tried taking money out, and buying what I wanted with it, but I did not find that it made any difference.

14,795. Is there not a sort of understanding among seamen who go upon Greenland voyages that they are to take their supplies from the agent who employs them?-I cannot say for anybody but myself. There may be such an understanding, but I cannot say. They may perhaps have asked me if I wanted some small things, and they were there for me if I wanted them; but that was in addition to my first month's advance, and they ran their risk of being paid for them.

14,796. But is there not such an understanding among the men, that they are to get their supplies from the agent who employs them?-Yes, that is the general understanding among the men; but the agent does not bind them in any way to take them. They never did that to me; I don't know what they may have done to others.

14,797. Might the men not stand a chance of not having a good engagement next year if they took their custom elsewhere?-That is wherein the agent loses; [Page 373] at least I don't know if they lose, but they run a chance of losing when the men go off to another agent, because they have then to lie out of their money. If they have made advances to the amount of £3 or £4 to a boy who has only 15s. or 16s. a month, and who will only be out three months on the voyage, they cannot get their money from him then; and perhaps they may never get it, because the boy may go upon a south voyage, and then they lose sight of him. There have been cases of that kind which have come within my own knowledge. I was shipwrecked in 1869, and young lad who was along with me told me he owed 10s. to Mr. Tait. We came back to Shetland again, but he went south two months afterwards, and I don't know if Mr. Tait has been paid yet. The boy has not come back to Shetland again, at any rate.

14,798. But that was not the question I was asking you. What I asked was, if you did not take your custom to the merchant who employed you, would you stand a chance of not getting a good engagement next year?-I have never had any difficulty in that way. I have got an engagement through Mr. Leask, and taken £3, 2s. out of his shop for a voyage of six weeks and a few days; and I came back again next year, and got a ship the same as ever. I went in the same ship again.

14,799. Is there anything more you wish to say?-I went out for Mr. Tait last year. He has resigned the business now to his brother-in-law and another, but I have no doubt I shall go back to the shop and get ship from them; or I could get one from Messrs. Hay the same as ever, if they had any ships this year.

14,800. Have you ever paid a subscription to the Shipwrecked Mariners' Fund?-Yes.

14,801. Have you ever got anything out of it?-Yes, twice; both from Mr. Leask and Mr. Tait.

14,802. Had you much to get?-The first time I had anything to get was after I had been paying in two years, and I got 30s. when I came back.

14,803. What did you lose that year?-I lost different things that I could hardly name.

14,804. Did you get the things replaced?-No.

14,805. Did you get cash for the 30s.?-Yes.

14,806. Was that cash put into your account?-No, I got the money paid down to me.

14,807. Was it paid down in the same way the next time?-Yes. At that time I got it from Mr. Leask. In fact I got it from him before the money was actually payable, because I was going south.

14,808. When was that?-In 1864. I was wrecked in the 'Emma,' and I wished to get south; but I had not money enough, and I went to Mr. Leask, and he advanced it to me.

14,809. How much does your outfit generally cost at the beginning of the year?-I could not exactly say. Some years it will be more, and some less. There are some of the men who have people that make things for them, but others have got nobody to do that, and therefore they have generally more to get from the agents.

14,810. Do you generally lay out £1 or £2 in that way before you start upon your voyage?-Yes; and sometimes £4 or £5.

14,811. Is that an unusual sum?-Yes.

14,812. Who insures the outfit?-The agent generally insures it for his own advantage, so that if the ship is lost he gets his money.

14,813. But they charge the insurance to you?-Yes, they charge the insurance to us if we tell him to insure it. For a good many years I told the agent to insure for me, but I have not lost any ship. When I did lose a ship I have not been charged for it; at least if I was, it was not with my knowledge.

Lerwick, January 29, 1872, Daniel Inkster, examined.

14,814. Are you a seaman living in Lerwick?-Yes. I have been here for the last two years. Before then I lived in the North Isles, on the property which is now in Mr. Walker's hands.

14,815. Have you been at the sealing and whaling for a number of years?-Yes. I have been there for the last fifteen years, but not every year. I was at the ling fishing for about seven years during that time, at Cullivoe, where Mr. Peter Sandison lives.

14,816. Why did you leave Yell?-I was one of Major Cameron's tenants, and I was put away by his factor, Mr. Walker. He offered us leases but of course we knew it was not in our power to take them.

14,817. Why was that?-Because our farms were so small; and when we had to take one-fifth of them for rye-grass, that made them a great deal less. Then the scattald was taken away from us; but we still had to pay our rent, for all that.

14,818. Were you offered a lease?-Yes; but the lease was all on his side, and there was nothing on our side at all.

14,819. When you were in Yell, were you bound to fish for any one?-No. There was no binding at all.

14,820. Where did you get your supplies?-From Mr. Sandison. We always fished for him, and got our supplies from him. I was three years under Mr. Walker. During the first two years I paid my rent, but in the third year we had either to take his lease or go and I knew that I was not able to do it. He said to me that I would have to leave; but I did not know where to go, and I had a family to support. The last year I was on that property I came a little short of my rent, and I wanted him to wait for it until I came down to Lerwick; but he said he was not to wait any longer. He asked me what means I had to give him, and I said I had not much means at all. I said if he chose to take the crop he might do it, but that I would be left to starve afterwards. He took the crop at his own hand, and never put a value upon anything at all; but he told me that if I was not off the ground by such a time he would put me off. He went away to the south at that time, and when Candlemas came round I got a room in Lerwick before he came back. He has done that to a great many more besides me.

14,821. Then you had to leave because you had not paid your rent?-He got the corn and potatoes for the rent.

14,822. But you did not give him money; and if you had paid your rent he would not have taken your crop?-No; but many a proprietor has to wait for month or a couple of months for that, and he sometimes does not get it even then.

14,823. Were you not fishing for Mr. Sandison then?-Yes; but there was a very small fishing that year.

14,824. Had Mr. Sandison paid your rent before?-No; I had paid it.

14,825. You had not been at the whale fishing for several years before that?-No; but I have been for the last two years. I have gone to it since I have been living in Lerwick.

14,826. Whom do you ship with?-For the last two years I have gone out for Mr. Leask.

14,827. Did you require an outfit when you went two years ago?- Yes. I got it from Mr. Leask. It cost about £5.

14,828. What were your wages?-£2, 5s.

14,829. Were you both at the sealing and whaling that year?-Yes; I went both voyages in the same ship.

14,830. Were you due a large account to Mr. Leask at the end of the year?-About £16 or £17.

14,831. Was that for supplies to your family?-Yes.

14,832. Had you any money to get for your voyage?-Yes. I had £12 to get in the first year.

14,833. Had you £28 of earnings for the year?-Yes, for the first and second payments.

14,834. Was that money paid to you at the Custom House?-Yes.

14,835. How much of it?-The whole of it; and then I went down and paid what I was due at the shop after I had been paid off at the Custom House.

14,836. Who went down from the Custom House with you?- There were a good many more than me going [Page 374] down,- men who had been settled with at the same time.

14,837. Did you all go down together to Mr. Leask's?-Yes.

14,838. Who settled with you there?-Mr. Robertson.

14,839. Did you go down with him?-No. One of Mr. Leask's men came up to the Custom House and paid us there, and when we came back Mr. Robertson settled with us at the shop. The person who settled with us at the Custom House was either Andrew Jamieson or John Jamieson, I don't remember which.

14,840. Did he not go down to the shop with you?-No.

14,841. Did he say anything to you about going down to the shop?-No.

14,842. Had you seen Mr. Robertson or any of Mr. Leask's people before you went up to the Custom House?-Yes, one of them told us we had to go there, and that he would be there to settle with us.

14,843. Did he tell you anything else?-He did not tell me anything.

14,844. Had he arranged with you before about meeting him at the Custom House for the settlement?-Yes, either the night before or that morning.

14,845. Had he sent for you to tell you about that?-No; we were waiting there for a settlement.

14,846. Did he tell you at that time how much your account was with Mr. Leask?-Yes.

14,847. And did he tell you that you would have to pay it when you got your money?-Yes.

14,848. Accordingly you did pay it when you got your money, as you had been told?-Yes.

14,849. Did you get an engagement from Mr. Leask in the following year?-Yes.

14,850. Had you an account with him in the same way then, and some money to get at the end of the season?-Yes.

14,851. Were you told in the same way that you would be settled with, and that you would have your account to pay to Mr. Leask after you got your money?-Yes.

14,852. Did you come down from the Custom House with Mr. Jamieson then?-I did not.

14,853. You had been told before that you had to go down to the shop?-Yes.

14,854. And you did go down and pay your money?-Yes.

14,855. Had the rest of the men been told the same thing, that they were to come down and pay their accounts after receiving their money at the Custom House?-Yes, all the men who were in town that day.

14,856. Did you get any of your supplies anywhere else than at Mr. Leask's?-No; not when I was in his employment.

14,857. Why not?-Because I thought I could get my things just as cheap from him as I could get them anywhere else; and another reason was, that if I was short of money I could go and ask him for a supply, or for a little money; whereas if I had gone to any of the small groceries in the town they would not have been able to give me that.

14,858. Where do you get your supplies in the winter time when you are at home?-We generally take couple of bolls of meal from Mr. Leask and pay for them, or get an advance of them if no trade is doing in the town, or if any of us are in bad health.

14,859. Do you sometimes get your supplies elsewhere in winter?-Generally if we have any money, we can buy them at the cheapest market. There is no particular place where we go to.

14,860. Do you sometimes find a cheaper market somewhere else?-No. Mr. Leask can give an article as cheap as anybody in Lerwick can do. There is a Mr. Fraser, a grocer in Lerwick, from whom we got some things in the dead of winter. We take them from him during the week, and pay him on Saturday night for them.

14,861. Are his things as good and cheap as Mr. Leask's?-Just the same. He only charges us the currency.

14,862. Do you employ yourself at any trade during the winter?-I work at anything I have the chance of, when my health permits me. If I get the chance of discharging vessels, or doing a day's work, or anything of that kind, I take it; or sometimes we go

to the fishing in a small boat.

14,863. Do you always subscribe to the Shipwrecked Mariners' Fund when you go the whale fishing?-Yes. I have been nineteen years in that Fund.

14,864. Did you ever get anything out of it?-I have got out of it twice. I was cast away in 1863 at Davis Straits, and I had £2, 15s. to get then. I got it in cash from Mr. George Reid Tait. The second time was when I lost a small boat by a storm at sea.

14,865. Were you at the fishing at the time?-No, the boat was secured, but the water came in and took her away. I applied to the agent, and he valued the boat, and sent the money to me.

14,866. Were you running an account with the agent at that time?-No.

14,867. Were you running an account with the agent at the other time when you got money from the Society?-The first time I was. I had an account with Mr. Reid Tait then, and I got the money from him which I had to get from the Society.

14,868. Do you know whether you pay insurance for your outfit when you get one?-I have done so, but not during the last two years.

14,869. Why?-Because I always insured so much on the voyage myself, perhaps upon £7 or £8.

14,870. Why do you do that?-In case the ship is lost, and then of course we get that paid to us until the insurance is taken off.

14,871. Who do you arrange that with?-With the agent who takes out the insurance for us-Mr. Leask or any of the agents. They take 1s. 8d. per £1 for insuring.

14,872. Is that for insuring the ship?-Yes.

14,873. Then it is not the agent's advance to you that is insured?- Perhaps they insure that themselves, but I don't know whether we pay for it or not.

14,874. Is the insurance you have mentioned the only one you pay?-Yes; the only one I pay, to my knowledge.

14,875. Do you get any writing for that insurance?-It has never been asked.

14,876. Has it ever been offered to you?-No; it never was offered that I have been aware of, because we always had to go to the ship and leave here to go south. Therefore I wrote to my wife to go to the merchant about the insurance.

14,877. Do you not join the ship at Lerwick?-Yes; but we are landed in Shetland from the sealing, and the vessel goes south and discharges her oil, and then they send for us to go south and join the ship there. That has been done during the last two years.

14,878. When you get your wife to insure for you, where does she go?-She goes to Mr. Leask.

14,879. Do you not know whether Mr. Leask charges you with an insurance upon your outfit?-No; at least I never was sensible of it.

14,880. Do you not read over your account when you settle it?- Yes, but I never observed that in it.

14,881. Is there no sum for insurance charged in it?-Not to my knowledge; but it may have escaped my notice.

14,882. How does your wife pay for the insurance which you effect?-I pay for it myself at the end of the voyage.

14,883. Who told you about the insurance first?-Mr. Leask or some of his people. I don't know any of them in particular; but of course we have always done it.

Lerwick, January 29, 1872, ARTHUR JOHNSON, examined.

14,884. Are you a tenant and fisherman at Colafirth, near Ollaberry?-I am.

14,885. Do you go to the ling fishing every year?- [Page 375] Yes. I was one year a hired boy, and I have been thirty-three years a sharesman.

14,886. On whose land are you a tenant?-On that of Mr. Gideon Anderson, Ollaberry. It is let on tack to Mr. John Anderson, his brother, and to Mr. John Robertson, Lerwick.

14,887. How do you pay your rent?-We pay our rent at Hillswick to Mr. John Anderson.

14,888. Is that done when you settle for your fish?-We have to go a day or two after we have settled for our fishing, and pay our rent to Mr. Anderson. We get a line from the man we have settled with and go to Mr. Anderson with it, and then he writes us out a receipt for the rent. We do not get the money to give to him at all.

14,889. Do you settle with Mr. William Irvine at Ollaberry?-Yes.

14,890. Are you bound to sell your fish to him?-He is only the factor for Messrs. Anderson & Co. We are bound to sell our fish to them.

14,891. Are you not at liberty to sell your fish to any other person you please?-Not in the summer time. We have not had liberty to do so for the last four years.

14,892. How do you know that?-Because Mr. John Anderson has told us so himself.

14,893. Have you wished to sell your summer fish to any other person?-Yes. If I was at liberty I could have an advantage by it. I have cured my own fish for nineteen years.

14,894. What advantage would you have by doing that?-We sell to more advantage when we are at liberty, but now we get less from Mr. Anderson than we got before for our salt fish, and we get from £1 to 30s. per ton less than he paid to other men who were free men. Last year he paid the free men £22, and he paid me £20, 10s. for salt fish.

14,895. Was it Mr. Irvine who did that?-Yes. He settled according to Mr. Anderson's order. Mr. Irvine is only the factor, and keeps the shop.

14,896. Were you not free to sell your cured fish to any person you pleased?-I did not think it.

14,897. But probably your cured fish were not of such good quality as those which brought £22?-I would put my character for having good fish against that of any man, because we attended to the curing of our fish ourselves. We only had a boy for washing, but we split and cured them ourselves, and we paid them all the attention we could. I know that the quality was good, because those who knew good fish told us so and I also knew it myself.

14,898. But when you got £20, 10s. offered to you, why did you not take your fish to another market if you thought you could get a better price for them?-It was not in my power then, because the fish were in Leith; they had been shipped there.

14,899. Did you deliver your dried fish without knowing what price you were to get for them?-Yes.

14,900. Why did you do that?-We must do it. We had no cellars of our own, and we had to put them into Mr. Anderson's cellar.

14,901. Why did you not get the price fixed before you delivered them?-Because that is not the practice. When we deliver our fish, they tell us they don't know the price.

14,902. Did you not see the bills of sale after the fish were sold in Leith?-No, I never see them.

14,903. Might you not have seen them if you had asked for it?-I never asked for it.

14,904. Then you have no reason to believe that you got less for your fish than they actually brought when sold in Leith?-I cannot say what the Leith price was.

14,905. But you could have seen the bills of sale if you had asked for them?-I do not think I would have been allowed to see the bills of sale.

14,906. You cannot be sure of that unless you had asked for them?-No, I cannot be sure of that; but I don't believe they would have been shown to me.

14,907. Why did you not ask for them?-I don't know.

14,908. Were you afraid to do that?-No, I was not afraid; but it did not occur to me to do so. I know that last year I was stopped from selling my fish, and free men were paid 8s. 6d., while I was only paid 8s. for them.

14,909. Was that for your green fish?-Yes.

14,910. Then what fish were you selling dry?-Ling, tusk, and cod.

14,911. Were these your winter fish?-No, they were the summer fish.

14,912. But I thought you were bound to deliver your fish green to Mr. Anderson?-No. We had been in the practice of salting them before we delivered them, and we continued to do so until last year; but he stopped us from salting them then.

14,913. I thought you said you had been bound for four years?- Yes. It is four years since we were bound to fish for him regularly; he got the tack then.

14,914. Have you been fishing for Mr. Anderson for these four years?-Yes; three years we delivered the fish to him salt, and one year green.

14,915. Then all you were bound to do was to deliver your fish to him, either salt or green?-Yes.

14,916. You could cure them or not, as you liked?-Yes, for the first three years; but this year he would not allow us to cure them.

14,917. Was that because the quality of your cured fish was not good?-The fish were good.

14,918. Did he not assign that to you as the reason?-No. When I was told not to salt the fish last season, I went to him and asked him if that was on account of bad fish, and he said, No, he could not say that it was.

14,919. Did he give you any reason for not allowing you to continue to cure your own fish?-Very little.

14,920. Did he give any reason at all?-He said that other fishermen in the neighbourhood were thinking that they might be allowed to cure their fish as well.

14,921. Do you think fishermen generally can cure their own fish as well as when they are cured by a factor who gives his whole time to it?-I think so, provided they would pay a little attention to it themselves.

14,922. Do you get your supplies at the shop at Ollaberry?-Yes; or from Mr. Anderson's factor at the fishing station at Hamnavoe.

14,923. Can you get these supplies as cheap at Ollaberry as you can get them anywhere else?-Yes. He made an arrangement last year that the meal was to be all one price, whether it was got at the station or at Ollaberry. We got it a little cheaper by taking it from Ollaberry the year before; but he made the regulation last year that it was to be all one price.

14,924. But do you get it as cheap there as you could get it from any other shop in the country?-No. If we had our money we could get it a little cheaper from Lerwick, or from other places.

14,925. How do you know that?-Because I buy some things from Lerwick, such as meal and tea, and I sometimes get the meal a little cheaper, according as the market there is high or low.

14,926. Have you any pass-books or accounts to show the prices you pay for the articles you get?-No. I kept a pass-book for a year or so, but I rather thought the prices were too high, and it annoyed me to look at it, and so I gave it up.

14,927. Did you think the prices were higher because you had the pass-book?-No. I thought they were rather too high, at any rate.

14,928. Did it not annoy you quite as much to hear the prices in your account read over to you?-When my account was read over at the time when I paid it, I knew that the price was high; but I do not think there was anything in the account except what I had had.

14,929. Is the price of your meal mentioned to you at the time when you get it at Ollaberry?-Very seldom.

14,930. Do you ask to know the price?-Sometimes we ask, and sometimes we do not.

14,931. Does the price vary throughout the season?-[Page 376] Yes, sometimes it does, according, to the rise and fall in the market.

14,932. It is not sold at one price all the year round at that shop?- No.

14,933. Do you buy your own boats at Ollaberry?-I had a boat of my own until four years ago; since then I have had a hired boat. The boat hire is £2, 10s. I got my lines ordered for me from the Glasgow market, because I thought I got them a little cheaper in that way. 21/4 lb. lines cost me 1s. 11d., including freight and everything.

14,934. Do you get any 2-lb. lines?-No; but we can get them at Ollaberry. They charge 2s. for them there. A 21/4 lb. line would be charged 2s. 3d. there if paid in cash, and 2s. 6d. if marked down to be paid for by instalments.

14,935. Can you show me any account for the lines you get from Glasgow?-No; it is five years since got them from there.

14,936. Were the prices you have mentioned as being paid for lines at Ollaberry the same as you would have paid there five years ago?-Yes, the price has been the same. The lines I am using now are the same lines that I got from the market for myself.

14,937. Did you buy a great quantity of them at that time?-I bought 25 buchts.

14,938. Did you get them for yourself only, or was it to sell to your neighbours as well?-It was for myself only.

14,939. Is there anything else you wish to say?-With regard to the fishing, I would like liberty to sell my fish to any man who would give me the highest price for them, or to cure for myself. We had some casks for storing salt, and we broke them down, and parted the staves among the partners to whom they belonged. Then there was a fish vat which is my own, and it is lying on the beach, and no man to buy it from me. It has been a loss to me altogether.

14,940. Was that in consequence of the intimation that you were to fish for your landlord?-Yes, and that I was to stop salting my fish.

14,941. Can you not get all your supplies at a cheaper shop than Ollaberry if you choose?-I could get them from other parties cheaper, but I don't have the money in my hands to get them cheaper at present.

14,942. Can you not get the money as an advance upon your fishing?-No. We could get a little, but not to a great extent.

14,943. Could you not get as much as would buy you a boll of meal?-Yes, but that would not serve for boat for the fishing season. We would need nearly two sacks.

14,944. Could you not get an advance of money upon your fishing large enough to buy that in Lerwick?-I don't think it; but there are other things required besides that. There are tea and sugar, and various other things that are necessary for the use of the men when they are at the fishing.

14,945. Do you think you would buy any cheaper if you had the money to buy these things with yourself, instead of getting them on credit from the merchant?-Yes, I would be cheaper.

14,946. Would you be any better off if your money was paid to you fortnightly or monthly?-Yes, if I was at liberty to sell my fish to any one who would give me the highest price for them; but if I am bound to give my fish to any particular man, and he gives me no higher price than he pleases, I would be no better off.

14,947. From whom did the free men you mentioned get 8s. 6d. for their green fish while you only got 8s?-From Mr. Anderson. That was at the settlement this year.

14,948. How many free men got that price from him?-There were four free men in that boat, and two tenants; but the six men that were in my boat were all tenants.

14,949. Did your boat get 8s. per cwt. for all the fish of the season?-Yes; and the others got 8s. 6d.

14,950. Did the two men in the other boat who were tenants get 8s. 6d. also?-I think they all got the same.

14,951. Where did the four men who were not tenants come from?-They live at Colafirth. They bought their boat and lines, and agreed to pay for them. We asked for 3d. per cwt. extra because the lines we used were our own, but they would not give it.

14,952. Do these four men not live on Mr. Anderson's land?- Two of them live on his land, and two on Busta.

14,953. If two of them live on Anderson's land, how are they free?-They are not free. They sell their fish to him.

14,954. But you said four of the men were free: where do they live?-They live at Colafirth, on the property of Mr. Gifford of Busta.

14,955. Do all the four free men live there?-Yes.

14,956. Was there any reason why they got 6d. more than you, except that they were free men and lived on the Busta property?- No; I knew of no other reason.

14,957. Did they not buy their boat and lines?-Yes, they had their own lines, but the lines we had belonged to ourselves too.

14,958. Was it said that they got a higher price because they had their own boat and lines?-Yes.

14,959. Did Mr. Irvine say so?-Mr. Irvine did not settle with these men. It was Mr. John Anderson himself.

14,960. Did he say that he gave them the higher price because the boat and lines were their own?-Yes.

14,961. He did not say it was because they were free men?-No, he did not say that; but had they not been free men, I don't think they would have got it.

14,962. Have any men who live on Mr. Anderson's estate got boats and lines of their own?-Yes. I think there is one man who has got a boat and lines.

14,963. Did he get 8s. 6d. too?-I don't know what he got.

Lerwick, January 29, 1872, GILBERT SCOLLAY, recalled.

14,964. I understand you wish to give some additional evidence to what you gave when you were examined at Brae?-Yes. In the first place I spoke as if the party I have from Lunnasting parish was still in my house but it is four months since that party was removed to another house, at the instance of the Board of Lunacy.

14,965. How many different prices of meal are there at Voe, according to the weight sold?-A party taking a whole sack will get it at a less price; when divided and subdivided, the meal rises in price.

14,966. What is the lowest price just now?-I have not bought any lately, and I cannot tell; but there has been flour sold lately for fifteenpence a peck.

14,967. Is there only one price for meal at Vidlin?-Yes; only one price for the same meal, whether you take it in large or in small quantities. That has been my experience.

14,968. Have you any statement to make about the rise in price at Voe according to the southern market?-Yes. I have been told that Mr. Adie has said that it should rise not only in his cellar, but in his book too, according to the market in the south. Henry Manson, post-runner between Voe and Lunna says he heard him say so.

14,969. But that is not what you know yourself; it is only what you have heard from other people?-I have heard Mr. Adie say so myself, that it would rise in price both in his cellar and in his book.

14,970. Do you mean that it rises with the southern market?-Yes; but at Vidlin it does not rise until the meal that has been bought at a certain price has been finished. Mr. Sutherland has told me that a quantity of meal bought in by Mr. Robertson at a certain price remained at the same price until the last of it was sold, and the same with the next parcel.

14,971. When you have pass-books at Voe, is the price generally entered in the pass-book at the time when you get the meal?-No; it is not entered until [Page 377] settlement, when it is compared with their book, as my pass-book will show. There are several quantities of meal in it for which no price is entered.

14,972. Is it entered at settlement at one price for the whole season, or at different prices?-I cannot tell. If what they say is true, it is entered at the highest market price if the market has risen, because they say it rises in their book as well as in their cellar.

14,973. You have produced several pass-books to me. Is that [showing] a pass-book of your father's in account with Mr. Adie at Voe?-Yes.

14,974. Have you carried through some of the transactions for your father at Mr. Adie's shop?-Yes.

14,975. I see here an entry on April 21, 1868, '24 lbs. meal at 5s. 3d.:' who made that entry?-It was made at the shop, not by me.

14,976. Here [showing] is another entry, 'April 25, one lispund Indian meal, 5s. 6d.:' who made that?-My father perhaps made some entries in the book himself when he got things, and when the pass-book was not sent to the shop.

14,977. Was that entry made by your father?-The entry of 24 lbs. meal at 5s. 3d. is not by my father. I think the other is by him.

14,978. There is another entry, June 30, of 'Indian meal, 2s.:' who made that entry?-It is not in my father's writing. It has been made at Voe.

14,979. There is another entry, 'July 1, one boll Indian meal, 16s. 6d.:' who made that?-It is my father's.

14,980. There is another, 'Dec. 6, Indian meal, 1/2 lisp. 2s.?'-Yes.

14,981. That account has been settled in January 1869, you having given 21 yards cloth at 3s. 6d.?-Yes.

14,982. Have you any doubt that all the things entered in that account were got by your father?-No. They were all got and settled for.

14,983. The next account was settled on March 17, 1870: have you any doubt that all the things entered before that date were got by your father at Voe?-No, they were all received.

14,984. On November 25 he got 1/4 gallon oil at 6d.: would that be sillock oil?-Perhaps it was.

14,985. In that settlement your father is credited with 26 yards cloth, which comes to £3, 13s. 8d. There is something else that comes to 1s., being £3, 14s. 8d. due to him, and £2, 19s. 4d. to Mr. Adie, leaving a balance in your father's favour of 15s. 4d.?-Yes.

14,986. Mr. Adie takes a discount for cash of 1s. 6d.: does that mean that he charged 1s. 6d. of discount on the 15s. 4d. which he was to pay to your father?-Yes.

14,987. Why was that?-I don't know; but it was a common thing, that when he gave cash he gave so much less for the cloth.

14,988. Was it the rule that all cloth was to be settled with by goods?-The price was 5 per cent. less if paid in cash.

14,989. But was it the rule that all the cloth was to be paid for by goods?-No. They just had to take the goods for convenience; but the wool was my father's, and I could go to whom he pleased with it.

14,990. The account for 1870 in the book is still unsettled?-It has been settled lately, and my father's account is now in another book.

14,991. Do you think the things that are marked in that book were got at the prices which are entered there?-Yes, so far as I know, they were. There was no dispute with my father, either about price or anything else.

14,992. We will go to your own books. Is this [showing] your pass-book with Mr. Adie at Voe from 1869 downwards?-Yes.

14,993. Were all the articles entered there got by you at the prices which are there marked?-Yes.

14,994. I see that in June and July 1869 there is some meal and flour entered in quantities, without any price being marked?-Yes.

14,995. How did that happen?-They know best themselves why they did not enter the prices. I cannot explain it.

14,996. I show you an entry of one quarter boll Indian meal: is that in Mr. Adie's handwriting?-I don't know; it will be in the writing of some of Adie's men. All the entries in that book were written in the shop.

14,997. Has that account been settled?-Not yet.

14,998. Is that the reason why the price has not been put in?-No, I should not say that was the reason.

14,999. Is this [showing] a continuation of the other account?- Yes.

15,000. Have you got all the articles that are marked in this book?-Yes.

15,001. Did you get all the articles entered there at the prices which are marked?-Yes, I got them at the prices marked when there is any price; but there is a sack of pease-meal entered without any price to it.

15,002. I see an entry on May 30, 'To dog licence, 5s.; by cash, 2s. 6d.:-2s. 6d.:' what does that mean?-I had 2s. 6d. that I paid as part of the dog licence, and Mr. Adie charged me with the rest.

15,003. Did you pay that licence through Mr. Adie?-Yes.

15,004. Does he transact all your business for you in that way?- Yes.

15,005. Does he pay your accounts for you?-No; he never pays any accounts for me, that I know of.

15,006. Did he only pay your dog licence for you?-He only paid one half of it. He might have paid the whole if I had asked him to do it.

15,007. The following are some of the entries in your book:-

1869. May 18. 24 Ind. ml., 0 3 0 16 o. meal, 0 3 0 29. 35 o. meal, 0 4 3 June 14. 1/4 boll In. meal. July 8. 35 sec. paring flour. 30. 35 overhd. flour. Oct. 23. 1/4 gall. oil, 9d. Dec. 10. 16 lbs. flour, 2s.

Was the oil mentioned in the entry of October 23, oil which you required for burning?-Yes; and I could have got it at the same time at Mr. Robertson's for not above 2s. per gallon.

15,008. In the continuation of that book there are the following entries:-'1871. May 31: 35 Ind. meal; 35 Shetland groats:' did you get these articles?-Yes.

15,009. Have you had any price fixed for them yet?-No; but I knew the price current at the time.

15,010. There is also in the same book an entry under date June 2, '1/2 boll overhead flour,' and 1s. 3d. is marked in small figures above the entry: what does that mean?-I don't know. It was there when I got the book home, but what it meant I could not say.

15,011. There are other two entries under date June 16, of '35 Indian meal, and 35 flour,' with the small figures 1s. and 1s. 3d. respectively written above them in the same way?-These figures may mean the price of the meal and flour per peck at that time.

15,012. There are also the following entries in the book:-'June 26, 35 flour, 5s.; July 5, 35 flour, 5s; and July 13, 28 Shetland meal, 3s. 91/2d.:' have you any doubt that all these entries which have been read are entries of articles which you got at the times stated from Mr. Adie at Voe, and that they were charged at the prices marked in the pass-book?-I have no doubt the entries are quite correct as to that.

15,013. You have also produced to me a pass-book kept by you with Mr. Robert Sutherland at Vidlin, in which I find the following entries. 'Nov. 11, 1869: 16 lb. oatmeal, 2s. 6d. Feb. 11, 1870: 16 lb. oatmeal, 2s. 3d.:' have you any doubt that these articles were got and charged at the prices stated?-I have no doubt of that, and that these were the regular prices they were being sold at.

15,014. Is there anything else in these books to which you wish to direct my attention?-There [showing] is an entry in the book with Mr. Adie, September 26, sack pease-meal, and there is no price stated.

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15,015. But there is no price fixed of fifty things in the book?- No; that is what I say.

15,016. Did you not ask to have the price of that pease-meal fixed at the time?-No.

Lerwick, January 29, 1872, CHARLES ROBERTSON, examined.

15,017. Your firm of R. & C. Robertson have an extensive trade in provisions in Lerwick?-Yes; we do fair business, both wholesale and retail.

15,018. Is it generally one kind of meal that is kept by each merchant for ordinary retail purposes?-So far as I know, it is.

15,019. Do you generally have only one quality of oatmeal in stock at a time?-Yes.

15,020. Is it the same with Indian meal?-We have not been in the habit of selling Indian meal.

15,021. Can you tell me the price of oatmeal on 21st April 1868?-It was 26s. 6d. per boll of 140 lbs. is the credit price; for cash it would be 6d. less.

15,022. How much would that be for 24 lbs.?-About 4s. 6d., or about 1s. 7d. per peck.

15,023. Would is 7d. per peck be your selling price at that time?- Yes.

15,024. Would 1s. 9d. per peck have been a high price for it in Lerwick then?-It would have been much higher than we would get for it.

15,025. Would you be surprised to find that at that date it was selling in the country districts at is. 9d.?-I would.

15,026. Was the price in a fluctuating condition about that time?- I see that a month later it was 1s. less, and two months later it was 2s. less per boll. The market was falling in April.

15,027. Did it continue to fall during the rest of the year?-I see that a month later than the last quotation I have given it was just about the same price.

15,028. Was there a good harvest in 1868?-No; but the crop here does not affect the market price.

15,029. But was there a good harvest that year over Scotland and England?-I don't remember just now. I see that in August 1868 the price was up 6d. per boll.

15,030. Was the price as high as 1s. 9d. per peck in January 1869?-It was not. I see on 26th January we have it charged at 23s. per boll, which would be about 1s. 6d. less per boll than it was in July, and 3s. 6d. less than it was in April 1868.

15,031. Therefore you would say that in January 1869 meal was considerably cheaper than it had been in April of the previous year?-Yes.

15,032. What was the price of oatmeal on February 11, 1870?-I don't have the price on the 11th; but on 5th February it was 17s. 3d., and on the 15th 17s., or about 1s. per peck.

15,033. Have you any means of telling me the price of Indian meal, although you do not sell it?-I have bought two or three bolls of it within the last year or two, and I have paid somewhere about 13s. or 14s. per boll for it. That would be somewhere about 9d. per peck, or rather 10d., because in weighing out there is generally about half a peck of loss per boll, and allowance must be made for that.

15,034. Then 1s. per peck would be rather a high price for it by retail?-Yes, it would be high enough.

15,035. I suppose the qualities of flour that you sell in your trade are more various than the qualities of meal?-Yes, we have several qualities.

15,036. What would be the price of your best flour on October 6, 1869?-I see the finest quality of flour would be about 14d. per peck. The next quality below that was 16s. per boll, which would retail at 1s. per peck; that is overhead flour, what we call fine.

15,037. On 2d June 1871 what would be the price of overhead flour?-It was 16s. 6d. per boll on 30th May, which would retail at 1s. per peck. There are two qualities of overhead flour, fine and common.

15,038. At that date would 1s. 3d. per peck have been a high price for overhead flour of any quality?-Yes, it would have been a top price. 1s. per peck was the price of the common kind; but there is only a difference in price of about 2s. per boll between common and fine.

15,039. Therefore, even for the fine quality, 1s. 3d. would be it very high price?-Yes.

15,040. What were the average prices of oatmeal in 1870?-

In Jan. about 17s. 9d. In April, about 17s. 6d. " Feb. " 17s. 3d. " May, " 18s. 9d. " March, " 17s. 6d. " June " 19s. 0d.

Up to the middle of July it was 19s. 6d., and then it took it start in the beginning of the French War up to 22s. In a week it was down 1s., to 21s., at which it continued during the first three weeks of August, and the last week 19s. 6d. September, 19s. The first week of October, 19s.; second week, and to the end of the month, 18s. 6d. November, 19s. December, about 19s. 3d. In 1871 the prices, taking them about the middle of each month, were-

s. d. s. d. January, 19 6 July, 21 6 February, 20 0 August, 21 0. March, 20 6 September, 21 0 April, 21 0 October, 20 0 May, 21 6 November, 19 0 June, 21 6 December. 19 6

In January 1872, 19s. cash, or 19s. 6d. credit. The prices I have given are all credit prices. If the cash was paid for meal at any of these times, it was always 6d. per boll less.

15,041. How do you proceed when you sell by the peck?-We always allow half a peck or a peck per sack for weighing out, and that comes to about 1/2d. a peck.

15,042. So that, when meal is 19s. 6d., as at present, it is 131/2d. per peck?-Yes, either cash or credit. We would not make any difference on the peck.

15,043. What was the price of flour at June 26, 1871?-Common overhead flour about that date in June was 16s. per boll, and the best overhead would have been 18s. or 18s. 6d. There is another quality of fine flour, the finest quality we keep, which would have been about 22s. per boll, or 5s. 6d. per quarter.

15,044. Was the price the same about 5th July following?-About the same. There has been little or no alteration on the price of that flour almost the whole season.

15,045. If you saw an entry of flour at 5s. in a passbook, and another of overhead flour at 1s. 3d. in the same book within the course of a month, would you think it probable they were the same article,-the quantity not being mentioned?-Yes. 5s. would be the price of a lispund, or four pecks and 1s. 3d. of peck.

15,046. Shetland meal, I suppose, is an article that you hardly ever have in the market?-We seldom or never buy it. In fact there is very little of it now to be got.

15,047. Then you cannot give me any information as to the price of it last July?-Not last July, but it always sells considerably below the price of south-country meal.

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LERWICK, TUESDAY, JANUARY 30, 1872.

<Present>-MR GUTHRIE.

ANDREW JOHN GRIERSON, examined.

15,048. Are you the proprietor of the estate of Quendale?-I am.

15,049. Are you also engaged in the fish-curing business?-I am. I have been so for 11 years.

15,050. Mr. Ogilvy Jamieson is your shopkeeper at Quendale, and keeps a shop there for the supply of your neighbours and fishermen?-Yes, for the supply of my fishermen primarily, and for any one else who chooses to go to it.

15,051. The returns you have made to me show the amount of dealing which these fishermen have had in accounts at your shop, and also other particulars of your business?-They do. They have been made up from my ledger for the two years which have been selected.

15,052. Were these favourable years for the fishing, or otherwise?-1871 was an exceedingly favourable year. I should say that 1867 was not more than a medium year. The price was miserable, but I had a great quantity of fish. Both the fishing and the price were good in 1871.

15,053. How do you arrange with your men about boats? Do the boats belong to themselves, or are they hired out?-I have no boats. They are debited to the men.

15,054. How long does it generally take for a man to pay up the price of his boat?-I have had no experience of these six-oared boats, such as I have been furnishing lately, because the fishing was entirely of saith until now.

15,055. Have you introduced larger boats lately?-Yes. I have got the men encouraged to take them within the last three years; and I have only supplied the large new boats within the past season.

15,056. About what number of tenants have you upon your estate?-I can tell by referring to the copy of my valuation return for the last year; but only one half, the smaller half, of my property is in Dunrossness. There are 48 tenants on Quendale and Brough, in Dunrossness.

15,057. Does that include the large farm there?-No; I am not including myself. I am holding my own farm, and I have counted it out. I have also counted out the Free Church minister, who holds a house from me.

15,058. Are these 48 tenants all men who might fish?-Yes; they don't all fish to me, but they might fish.

15,059. You have also a number of tenants in Sandsting?-Yes; I have 108 there.

15,060. Are the tenants in Sandsting at liberty to fish for any one they please?-They are at liberty to do anything under the sun, if they only pay me my rent. They are under no obligation whatever.

15,061. It is said that there is an obligation on the tenants on Quendale to deliver their fish to you. Is that so?-It is. That is a condition upon which they sit upon the ground.

15,062. Have you found them generally willing to agree to that condition?-They have agreed to it without the slightest difficulty. I am the third generation of the name for whom they have fished. They never sat upon the property on any other condition since it was purchased by us about 1765.

15,063. Do you consider that condition to be beneficial to the landlord and the tenants?-I do. I am satisfied that it is beneficial for the tenants when the landlord will take the trouble; but it is a very great deal of trouble.

15,064. Does it not depend entirely upon the landlord's efficiency as a man of business, whether the condition is a beneficial one for the tenants or not?-Yes. I think Mr. Bruce, junior, Mr. Urnphray, and I are the only proprietors in the country who carry on the fishing to any extent.

15,065. Do you think it would be necessary to increase the rents of the tenants if they were not under that obligation to fish for you?- I certainly should increase their rents in Dunrossness if they were not under that obligation.

15,066. You are aware that a great deal has been said about that kind of obligation, and that some of your tenants and many of Mr. Bruce's have come forward and complained loudly about it?-I know that. I understand the complaint of a great part of Mr. Bruce's tenants has turned very much upon the question whether they should be allowed to dry their fish for themselves.

15,067. To some extent it has; but they also wish to be able to sell their fish as they please, whether they dry them or not. Still it is the case that a good many of them have spoken very strongly in favour of being allowed to cure their fish for themselves?-I would not carry on the fishing upon that condition at all.

15,068. Would you not buy the fish if they had been cured by the men?-No. I would not undertake to do that on any consideration, because you would just be swindled, and you could not help yourself in buying the dry fish. The men are not able to cure their fish and be ready to commence the next season's fishing. They could not come to me or to any other person at the end of the year, and say in an independent manner, 'Will you buy my fish?' because, in the first place, they must come to me or to

some other person and ask, 'Will you be pleased to supply us with salt and, meal, and so on, and we will dry our fish and deliver them to you?' If we agreed to do so, the men commence, it may be from February, and we supply them with salt, lines, meal, and everything they require, and that goes on until the end of the fishing in August, when we must take their fish, but the fish are mortgaged already. Then, if we go to look at the fish, we find they have been salted with the least possible amount of salt, and they are just a parcel of rubbish; but we have paid for them already by the advances we have made, and we must take them and make the best or the worst of them. Besides, in the case of an unprincipled man, he has got the thing in his own hands, because he is aware that he has already pledged all his fish to you. They are still his property, however; but while the fish are undelivered, it is very easy for him to slip some of them on board one of the packets running to Lerwick, and sell them to any person for cash down. I am not a lawyer sufficient to know whether that would be a case of theft or not; but when the wet fish are weighed to me out of the boat, it is my own fault if I don't cure them so as to be fit for the market; and if any fellow steals any of my fish, then it would be a case of theft. I have seen the results of such a system on a neighbouring property, because Mr. Bruce of Sumburgh's property has only been under his son's management for eleven years. Before then his tenants were at liberty to go anywhere they liked, and they were drowned over head and ears in debt, both to their landlord and to their fish-curers.

15,069. Do you think the indebtedness of the fishermen is reduced when the landlord takes the fishing into his own hands?-I do think so; when they are dealt with in the same manner that is followed at Dunrossness now.

15,070. But you are speaking now of the previous state of indebtedness, not from personal knowledge of [Page 380] your own tenantry, but from what you know of Mr. Bruce's?- I was as well acquainted with them as if they were my own tenantry. I was living at my own place then; and when young Mr. Bruce and I went into partnership together, and endeavoured to secure the tenants from some of the merchants in Lerwick, it was part of our business to ascertain the exact amount of debts upon the south part of the Sumburgh property.

15,071. Are you prepared to say that the amount of debt due by the fishermen on that property was greater then than it is now?-I am not prepared to say anything more than what Mr. Bruce told me about the year 1866 or 1867. 1866 was the last of a series of years when there were very few of them in debt. Mr. Bruce and I were talking over the matter, and I was bragging about how small the debt was in my case, and he told me then that the debt was very much reduced; and I believe that now they are due nothing to any person except himself.

15,072. Can you give an idea as to the amount of debt that was due at the date you speak of? Do you think it would amount to the whole value of the stock on each man's farm in one half the cases?-No; nothing like that. A man's stock mounts up to a large amount of money when it comes to be turned into cash. I would not speak to precise figures; but my impression at present is, that the debt at that time might amount to about three rents, or something like £1200. There might be three rents in arrear of the rental.

15,073. Have you had any experience that enables you to compare your own property, at a time when it was not in your hands for fishing purposes with what it is now?-No. It has never been out of the hands of my family since the time I mentioned.

15,074. I believe it is not a common practice to raise rents in Shetland?-No; there has really been very little done in that way.

15,075. Has that something to do with the system of fishing for and obtaining supplies from the landlord?-I don't think it has been so much that, as the fact that the landlords are resident in the place, and there is a sort of moral pressure brought to bear upon a person who is living in the neighbourhood. You don't like to make yourself odious among the neighbours round about you. I think that has had more to do with it than anything else. It is not the same sort of thing as if a factor was raising the rent for a man living at a distance. On the Annsbrae estate the proprietors had not had the fishing for a long time, but I believe there was not a rise of rent there for two generations, until Mr. Walker commenced to deal with the property a few years ago. The land there was very cheap. I think the land is not over-rented, and there has been very little change upon it in that way until lately.

15,076. I understand the proprietors interested in fishing invariably make advances to their tenants, in the form of meal and goods?- They must do so.

15,077. That, I suppose, arises from a want of ready money among the tenantry themselves?-Yes. Those who have not ready money must have these advances. There are some people who do not require them.

15,078. Don't you think their number would be increased if by a ready-money system they were encouraged to save money and to acquire habits of frugality?-I don't think so. My experience, from the beginning of the business, so far as I have had to do with it, has been, that under the present system a prudent man who chooses to exercise self-denial could pass out of all possible control, either of landlord or fish-curer, to do him any injury. He could, if he chose, draw his money and send it where he liked; and I have had numbers of men who have not dealt to the extent of £1 in the year with me since I began business. They just took their money at the end of the year, and supplied themselves where they chose.

15,079. Does it not seem to you that the improvident have undue facilities for obtaining credit when they get supplies for the fishing from the landlord, who has an inducement to carry them on in the knowledge that they have to fish for him?-That has not been my practice. I don't like to make any bad debts, and in two cases I have turned a man about his business because I could not keep him out of debt. The most profitable fisherman is the man who pays his way, and not the man who takes goods out of the shop.

15,080. But in order to get your boats manned, I fancy you are obliged to make these supplies?-Yes, we must make advances.

15,081. Do you think the system of paying a man cash down for his fish, or at shorter intervals than an annual settlement, could be carried out?-I cannot see how it would work; and besides, I think if such a plan were introduced, the people would just

revert to the present system. I am perfectly satisfied that, if you were to pass a law requiring the men to be paid in cash down, the result would be that we would have a meeting, and we would agree to pay so much per cwt., and the fishermen would say, 'We know you, and we will trust to you paying us that price at the end of the season.' That would be the case with the greater number of curers, such as Hay & Co., Mr. Garriock, and myself. The price would be fixed at a particular time but the men would take our word for it that they were to be paid at the end of the season. We would have to pay them a nominal price at short intervals in order to satisfy the law, but they would expect to be paid a higher price at the end of the season, if it turned out that we realized a higher price for our fish. That would be a binding arrangement, on the one side at least.

15,082. But that would not be a very fair bargain?-It would just be the bargain that we are constantly forced to make with the fishermen, because they always expect the curers to be fast on one side, but not on the other. For instance, if they sign an agreement to go to the Faroe fishing from March to August, and it comes a bad year, they don't get so many fish as makes the voyage a profitable one for them, and they say they will rather go to prison than go to the fishing another year, unless you put them upon wages. In the meantime you have made advances to them, and you must give them the chance of that. I know that Messrs. Hay and others have engaged fishermen for that fishing at a settled price, but when the end of the season came the fish had been sold so well that other curers were paying a high rate, and they have just had to put the bargain in the fire, and pay according to the higher price, or lose the services of the men.

15,083. Could not an arrangement of this kind be carried out, that a price should be fixed to be paid weekly, or fortnightly, or monthly, on the delivery of the fish, according as the case may be, and that the fishermen should be entitled, as in the whale fishing, to an additional payment, similar to oil-money, at the end of the season?-Yes, they might be paid at such a rate as the curer could afford, in the same way as is done now; but that would come practically to the same thing as the present system.

15,084. Would it not be a system of paying weekly wages, with an additional payment in proportion to the produce?-It would not be wages: it would be a weekly payment for produce, because weekly wages would never do.

15,085. Would it not virtually be wages, with a bonus on the amount of the produce besides?-I suppose it would; but wages are a different thing from paying a man for what he delivers to you. If you pay a man wages, he may turn lazy and do nothing, and you cannot be looking after him when he is at the fishing.

15,086. But this would be a payment of wages, and something more. He would have an inducement to work in order to increase the total produce at the end of the season?-That might be so; but I have thought over the subject, and I see no other way in which the system can be worked than it is at present. The law will be complied with nominally, but matters would fall back into their old state.

15,087. But if the law only required a certain proportion to be paid at short intervals, could it not be complied with, not only nominally, but substantially, in that way, and still recognise such an arrangement as [Page 381] you consider would be necessary?- It might be, but it would be a very disagreeable and a very difficult thing to carry out. It would be hardly possible to arrange the price that, was to be paid for the fish during the course of the season.

15,088. Would the price not always be very considerably below what the fish were expected to realize?-Supposing the price in a number of years had been, on an average, 7s. or 8s. per cwt. for ling, probably both curers and fishermen might agree to fix 5s. 6d. as the rate at which the men were to be paid in the course of the season, reserving to them a further payment, according as the fishing turned out?-Yes, it might be managed in that way quite well; but then what would the people do before they got any fish ashore at all? How would they be able to live then?

15,089. I suppose the object of the Legislature would be to teach them to lay by something on which they might be able to live when they were not actually at the fishing?-That might be the object, but the people might die in the teaching. It is all very well to come down and see the country in a year like this, when money has been flush; but if you had seen such a year as 1868 or 1869 or 1870, when the people were coming to you in January starving, and wanting you to advance them meal and other things, and a big debt standing against them at the same time in the merchant's books, you would have seen that it was not such a matter of plain sailing then.

15,090. Don't you think that even at that season the fishing might have been prosecuted to some extent?-No; there was nothing to catch. Besides, a good crop makes a great difference in Shetland. I don't think I bought thirty bolls of meal in the south country last year, but I was buying 300 or 400 for the same number of men in those years. Still, although the men are in such distress in bad years, I think you ought to know what an amount of money some of the fishermen have lying in the Union Bank, on deposit receipt. You would find then that they are not so poor as they have been represented.

15,091. Do you think most of the deposits in the banks here under £100 belong to fishermen?-I think so.

15,092. Do you also think that a number of the deposits above that sum belong to people of the same class?-I am satisfied of that.

15,093. In short, you think that almost all the deposits in the banks here must be those of fishermen?-I think most part of them are those of fishermen, crofters, and small tenants throughout the country; because I think that any person who had accumulated more than that sum would be likely to invest it in some more remunerative way than to leave it on deposit receipt in the bank. When people have been told in the public prints that a Shetlander nearly loses his head when he sees a £1 note, it is very important that there should be some inquiry on that subject.

15,094. Do you think that men who are indebted to you, for instance, or to any other person engaged in business, and getting advances in the course of the year, are likely to have deposits in the bank?-I don't think that. I could tell over the names of

the men upon my property who I suppose have deposits; but I am perfectly satisfied that none of those who are indebted to me have any deposits at all.

15,095. It has been alleged that a fisherman might get advances from the merchant who employs him, although he had a deposit receipt in the bank, especially in a distant place, where it would cost some trouble to him to go to his bank and get his deposit receipt altered. Do you think he would do so if he only wanted a small sum?-I believe that to a certain extent he would. I believe that he might take advances from his landlord's shop during the season, although he had a deposit receipt, if he saw that he could get the things as moderate upon credit from his landlord as he could elsewhere, paying for them at the end of the year. That is sometimes done when the men want a boat. There are tenants of mine without means of their own, who have come to me and said they wanted a new boat. I would ask them who was to pay for it, and they would tell me that some of the men to whom the boat was to belong were not able to pay for then, although others might be able to pay their share; and it was better for the whole of them to pay their shares at the end of the season, because the men who had the money would have got no advantage by paying it at the time.

15,096. But do you think a man would stand permanently in arrear at settlement with you if he had money in the bank?-No; but if I settle with him in January, I believe he would go and deposit a £10 note from that year's settlement, and begin a new account with me, and get a new boat, and let it stand to his credit until next year. But he would never think of having a permanent running balance with me if he had money of his own in bank.

15,097. Is it a general thing among the men to go and deposit some of their money in bank and begin a new account with you?-Yes, I believe they do that for a single year. They would be great fools if they did not. They keep a pass-book, if they choose, with the shop, and they would be no better off if they were to pay for their goods in money.

15,098. Would they not be better off if they could get their goods cheaper for cash?-I don't know that they could do that. I cannot get the things any cheaper from the Lerwick dealers for cash. I pay my accounts here every six weeks, and get only 2s. 6d. or so off £4 or £5.

15,099. But are not the prices in Lerwick lower than they are in your quarter?-I don't think so. I think I am selling as low as they do in Lerwick, and sometimes even lower. Mr. Gavin Henderson's shop is near ours, and he acts as a powerful pressure upon us.

15,100. Do you sometimes exact liberty money?-I have exacted liberty money two or three times from landholders. I don't take it from young men-only from landholders. Three guineas is what I fixed it at, but I asked a pound only for the last man who fished off the property. His name was James Shewan; and I told him this year that he could fish for nothing, because I wanted his land to put a few sheep on. He is going to fish for nothing this year, and he is to leave at Martinmas.

15,101. That is to say, he is to fish to any party for nothing?-He can fish to any person he likes. I believe in the evidence which has been given, mention was made of a lad Thomas Johnston not getting liberty to go home to his father's house because he was fishing for another curer. The understanding I have with the tenants is, that I expect them all, both young men and old, to fish for me, on condition that I pay them as well as any other person; and I want to put as much pressure as I consider reasonable upon them for that purpose. But young men are not to be bound always to fish at the home fishing, and sometimes there may not be a way suitable for them; and I have told them all in such a case that they could go to Faroe or to Greenland, or go out of the parish into the next parish, and prosecute the fishing there. This lad Johnston, who was the son of a man considerably indebted to me, went down to the other side and fished to Messrs. Hay & Co., and I daresay I did come pretty hard down upon the father for allowing his son to go away. The result was, that the lad spent his winter about a mile and a half or two miles from his father's house in service there, but he has been back since then. On other occasions two or three young men have left the parish when they could not get a convenient boat in it, and gone to Dunrossness to the fishing, and I have never said anything to them about it. There is one lad who is to fish for Mr. Bruce in a boat's crew of his in the incoming season, and I have made no objection to it.

15,102. There was another case mentioned in the previous evidence also-that of a man named Williamson, at Berlin. It was said his son was engaged to a neighbouring crofter as a servant, and that he had been obliged to leave that and come to your employment as beach boy for a lower wage?-I cannot tell anything [Page 382] about that; but, as a rule, I expect the boys to serve me at the beach on the usual terms. I always make a point of informing them in plenty of time, perhaps about August, that I will require so and so the following year, so that they may not make any other engagement. If such a thing took place with Williamson's son, I never heard of it. I had a boy named Williamson in my employment at the beach last season, and I suppose he was a son of old James Williamson's, but I knew nothing about him having been previously engaged to another service. With regard to liberty money, I may say that in 1867 Charles Eunson paid me over £3 or three guineas; and John Flawes. I think they fished to me in the following year.

15,103. One complaint made by the men with regard to the price paid to them for their fish, was that some neighbouring curers at Sandwick, Thomas Tulloch and James Smith, paid 9d. per cwt. more for ling, and also an additional price for other fish above what is called the current price: can you explain how that arises?- I can explain how the current price, according to which we pay, is fixed, but I don't understand how Tulloch and Smith can pay the price they do. If you can investigate that and let us see it in the blue-book, we will perhaps get a wrinkle out of it; but we cannot understand it in the meantime. What I promise to my fishermen, and what I promise any stray boats that come to me-and I have three or four boats fishing to me just now from Simbister property-is, that whatever Messrs. Hay & Co., Mr. John Bruce, Mr. John Robertson, and Mr. Mullay pay, will be paid by me also. Mr. Tulloch and Mr. Smith are no guide to me with regard to the price which I am to pay; and I tell the men they must go to them if they want their price.

15,104. Can you account for their higher prices by the fact that they sell, not to wholesale dealers as the larger merchants do, but to retail purchasers, and thus get both the retail and the wholesale profit?-That may account for it. I know that Tulloch's boat is coming up to Lerwick every week during the summer with casks of fish for retail dealers. Of course, when I am shipping 100 tons, I must allow a middle-man to take them, and he must have his profit; but I have nothing to do with how Tulloch manages his business.

15,105. Do communications pass between you and the other fish-curers as to the price of fish before you settle with your fishermen?-The fact is, that I have always found it the most difficult thing possible to make out what price they were going to pay. One curer may get a sort of a pull over another if he pays 6d. or so above the market price but that leads to very disagreeable feelings. I have asked Hay & Co. repeatedly what price they were to pay, and they have given me no answer; and I have actually found the current price by taking care to be about the last who sold, and seeing what my neighbours had got before me. At the present time I have squared up my books at a certain price; but Mr John Bruce has not settled yet, and if he pays 2d. or 3d. above me I shall have to turn my books over again and pay that additional. I have always been the second last in settling, just in order that I might see what my neighbours were to pay. One year I settled before Hay & Co.'s people, and they paid 2d. a gallon on the livers above me. I paid that up on the next year's livers, and lost a £10 note on the transaction.

15,106. Do you find the fishermen a difficult people to deal with?-Exceedingly.

15,107. Do they make many inquiries as to the prices at which you have sold the fish, or ask to see your accounts?-No. They begin to understand about the end of the season what the price is to be which they are to get. As a general rule we tell them that they will get what other people are getting, and they will hear in time enough; but they never think of asking what I am getting for the fish myself. The Faroe fishers are the only people who would be disposed to be troublesome in that way, because they are entitled to one half of the proceeds of the fishing.

15,108. Have you anything to do with the Faroe fishing?-I have one vessel there; but I don't supply the men with goods. Messrs. Hay or Mr. Leask have been the agents for that; and I merely interpone my security, and pay cash for the goods, without a penny of profit upon them.

15,109. Do you give security to Messrs. Hay or Mr. Leask for the advances which they make to your fishermen?-Yes; they are debited to me.

15,110. Are the fishermen aware that such security is given and that they can get advances at these shops?-Yes. Of course I speak to one of Mr. Leask's men, and tell him that they are not to advance the men beyond a certain amount, for fear of them going over the line.

15,111. Do you get no commission upon their transactions at these shops?-Not one farthing.

15,112. Do the fishermen in the Faroe trade require any exhibition of the bills of sale?-I do not know. I never was asked to exhibit my bills of sale; but they know exactly what the prices are. There are people going back and forward to Leith who know exactly what we get.

15,113. Are the fish sold by public sale in Leith?-No.

15,114. Are they sold by commission agents there?-We have often to sell them direct. It is a miserable thing to put them into a commission agent's hands. We try to make the best bargain we can with the middle-men from Glasgow or Belfast.

15,115. Is there a traveller who comes round and purchases the fish in Shetland?-They very often come round for that purpose.

Lerwick, January 30, 1872, WILLIAM SIEVWRIGHT, examined.

15,116. You are a solicitor in Lerwick?-I am.

15,117. Do you act as factor on the property of Mrs. Budge, Seafield?-Yes; I have been so for about two years, or something like that.

15,118. [Shown letter from witness to William Stewart, Kirkabister, dated 22d November 1870, quoted in Stewart's evidence, question 8917]-Did you write that letter?-Yes.

15,119. Have you anything to say with regard to it?-All I have to say is, that the Thomas Williamson mentioned in the letter had been carrying on a small business at Seafield, and the tenants had taken a prejudice against him, and did not wish to do any business with him; the result of which was that he had resolved, or pretty well resolved, to leave the place, and the business premises were likely to be shut up in consequence. Before writing the letter, I had seen several of the tenants there, and particularly William Stewart, who was a leading man among them, and had endeavoured to overcome that prejudice. I told them that Mrs. Budge expected that they would, in her interest, fish to the tenant of the business premises upon equal terms-that is to say, if they could arrange with him upon as favourable terms as with any other body, but not otherwise. They seemed to acquiesce in that, or at any rate did not take any objection to it after I had explained the matter to them; and I believe they have been thoroughly satisfied with their transactions. I may explain further, that most of these tenants, or at least many of them, were in debt, some of them to a large extent, for land rent; and I thought it only reasonable that if they could assist the proprietor, they should do so. There was no compulsion, in the proper sense of the word. The tenants understood quite well that it was merely if they could make a bargain as favourable with Williamson as with any other body that they were to do that.

15,120. Did Williamson become responsible to the proprietor for the rent?-No.

15,121. Has it been paid through him?-I don't think so. Perhaps a few of the tenants have paid it through [Page 383] him, but he certainly was not responsible for it in any way. At any rate, I did not make him bound.

15,122. Do the tenants ever pay their rents directly to you?-Yes. Occasionally they hand them in to Mrs. Budge, who sends the money to me; but the settlements are all made by me.

15,123. How many tenants are there on that property?-I think altogether there are 25 or 26.

15,124. Have they any leases?-No; they are just yearly tenants. The proprietor was very anxious to give them leases, but she is only a liferenter herself, and she cannot give them the warrandice they should have.

15,125. How many of these tenants are fishermen?-I think there should be perhaps 15 or 16 of them, but I cannot be positive as to that. I believe Williamson has two boats manned from among them.

15,126. Has he also a shop?-Yes, a small shop.

15,127. And I suppose the trade of the shop depends on his securing a certain number of fishermen for his boats?-Yes, and on the good-will of the tenants there.

15,128. But if the tenants are in debt, are they not virtually obliged to deal at his shop?-I don't think so.

15,129. Do you think it probable that they could get credit anywhere else?-I certainly think so; and I think Williamson himself is in a position to go a great way in giving them credit.

15,130. Are you aware that Williamson commenced business with a very small capital?-I don't think he could have had much means; but I believe he has paid his fishermen in cash this season.

15,131. You mean that he has paid in cash any balances that were due?-I don't know that there were many balances due. I think the fishermen would not deal much with him, and he actually paid for the fish almost wholly in cash. I know that I sent him about £120 for the purpose.

15,132. Then, notwithstanding the obligation to fish that is laid on the tenants, Williamson has not been able to make a good business there?-I don't think he has, because, notwithstanding that the proprietor wished the tenants to deal with him as much as possible, they have not, in point of fact, done so more than they could possibly avoid. He is nearer to them, and they might get some things more conveniently from him than anywhere else. I am anxious to make it appear that I explained thoroughly to them, that if they could not arrange with him upon as favourable terms as with another, they were quite at liberty to do as they chose.

15,133. Is the letter I have shown you the only one that has passed on the subject of fishing with Stewart or any of the tenants on that estate?-The only one; and I have never had any complaints since it was written.

15,134. Have you had any experience in the management of property in other parts of Shetland?-Not a large experience, but I have a pretty good notion of the manner in which it is managed.

15,135. Can you say whether it is common for rents to be paid through the fish-merchant?-I believe it is rather common that the fish-merchant becomes responsible for the rents. The proprietor says to him, 'You have my fishermen, and you must pay their rents,' or something like that.

15,136. Do you know that, in point of fact, it is usual for a fish-curer to draw a cheque in favour of the proprietor for the rents of a large number of the fishermen employed by him?-I have seen it done. There is a small property in Delting that I have managed, where a number of the rents have been paid in that way; but there was no arrangement whatever that the fish-curer should pay the rents: they just came through him. I have got perhaps £50 at a time in that way.

15,137. You are also a bank agent?-Yes.

15,138. Has that practice not come within your knowledge as a bank agent?-I cannot say that it has.

15,139. You have not been long in that position?-Not long. Besides, I could not be sure that cheques presented were for that purpose.

Lerwick, January 30, 1872, ROBERT MULLAY, examined.

15,140. Are you a merchant and fish-curer in Lerwick?-Yes, to a small extent.

15,141. Have you any other business?-I have a retail shop here.

15,142. How many boats had you employed in the line-fishing last year?-Seven.

15,143. You have a fishing station at Ireland, in Dunrossness, on the property of Mr. Bruce of Simbister?-Yes. I pay rent to him for the beach and booth.

15,144. Is your station the only place in that neighbourhood where fish can be landed and dried?-There is no other place in that bay where fish can be cured; there is no other beach than the one I have.

15,145. Are the tenants on that part of the Simbister estate under any obligation to fish for you?-None whatever.

15,146. Do they, in point of fact, all fish for you?-Yes; all those who fish out of that bay.

15,147. Is that because there is no other beach?-I suppose there is no other cause for it.

15,148. Would it be a misstatement to say that the Simbister tenants in that quarter are obliged, by the terms of their tenure, to fish for you and for Mr. John Robertson, jun.?-Yes. They are not bound, because there are some of them who fish for me in one year, and perhaps they are at the farthest end of Shetland the next, and then they may come back to me again.

15,149. Do you keep a shop at the fishing station?-I keep nothing there except a supply of fishing lines and hooks.

15,150. Do any of the fishermen there get their supplies from your shop in Lerwick?-They get what they want.

15,151. Do they keep an account with you, which is settled at the annual settling time?-Yes; but many of them never get one penny from me except in the shape of cash. There must be an account for them in my books when settling with them, and when the fishing is divided between them and their partners; but many of them have no individual account for out-takes.

15,152. Have you any interest in the Faroe fishing?-None whatever.

Lerwick, January 30, 1872, JOHN ROBERTSON, jun., examined.

15,153. Are you a merchant and fish-curer in Lerwick?-I am. I have a retail shop here, and a fishing station at Spiggie on the property of Mr. Bruce of Simbister.

15,154. Are the tenants in the neighbourhood of that station under any obligation to fish for you?-None whatever. If such a statement was made to you, it was entirely wrong. I am quite sure the tenants there do not hold their land under any such condition.

15,155. Do many of Mr. Bruce's tenants fish for you, in point of fact?-I think I had ten boats at Spiggie last year-three men in each boat.

15,156. Were these men mostly from Mr. Bruce's lands?-Almost entirely, I should say.

15,157. Was that because these lands are adjacent to your fishing station?-I believe that is the principal reason why they fished for me.

15,158. Might these men have cured their own fish, or fished for any other merchant, if they had chosen?-Yes.

15,159. Was there any local circumstance that prevented them from doing so?-They could not have cured their own fish in that neighbourhood, because the beach was mine. I possessed it and there is no other beach within several miles.

15,160. Therefore the fishermen residing in that particular place, may be bound to a particular fish-curer by the physical character of the country as well as by a legal obligation?-I believe that is so. That is the only way [Page 384] in which I can account for the men fishing at my station.

15,161. You have certain natural advantages at your station?- Yes; and I presume it is the same in many other cases. At the same time, I am willing to believe that if the men had had a choice of stations, they would just as soon have fished for me as for any other person in that neighbourhood. I settled with them at the end of the year, and paid them according to the current price.

15,162. You did not pay them above it?-No.

15,163. I believe there are some merchants in your neighbourhood who pay considerably above the current price?-They are not exactly in my neighbourhood, but there are such merchants within a dozen miles.

15,164. How do you account for them being able to do so?-I am not able to account for the proceedings of these gentlemen; they always appear to me to be inexplicable.

15,165. Could you not afford to pay at the price which they give?-No, not unless I worked for nothing.

15,166. Could you not do it if you were selling to the retail dealers direct?-I don't think I could: that could not be done, as a general rule.

15,167. Do you sell your fish to wholesale merchants?- Generally; I may say always.

15,168. Do you sell them in one lot at the end of the season?- Generally in one lot.

15,169. Do most of the men run accounts with you for supplies during the fishing season?-A few of them do.

15,170. Have you a store there for that purpose?-I have a station there, and during the summer season I keep some fishing materials at it, such as lines and hooks, and things of that sort. These are the only materials I am expected to supply them with.

15,171. Do you not supply them with meal and other stores?-It is expected that I will supply them with them too, if they ask for them; but the men generally in that neighbourhood are very well off, and they can get their supplies from other merchants, and in fact they do so.

15,172. Do many of them run accounts with you in Lerwick for supplies?-The only article I supply them with is meal, and it is principally the poorer men who get it from me; that is, men who are a little behind, and who would not get credit so readily as some of their neighbours.

15,173. Are these accounts for meal settled at the annual settlement in the usual way?-Yes.

15,174. Have you any other fishings, except at Spiggie?-I have a station at Levenwick also. I have not many boats there. I think there were about half a dozen boats fishing for me last season.

15,175. Have you a store there for supplying the fishermen?-I have, during the summer season, for supplying lines and hooks and other fishing materials. I have also a store there for the sale of general goods.

15,176. Is that a permanent store?-It has been permanent for the last twelve months.

15,177. Do the men keep accounts there when they want goods on credit, and settle for them at the end of the season?-Yes; but my instructions to my factor are, to give as little as possible, except fishing materials and some of the absolute necessaries of life, on credit.

15,178. You are the successor to the business of Mr. Robert Mouat?-Yes, and his predecessor too.

15,179. Were you trustee on his sequestrated estate?-No; it was Mr. William Robertson.

15,180. Did Mouat, during the last two years of his tack, call the tenants together and desire them to fish for you?-No. In October or November 1870 he came and told

me he was going to give up the fishing, because he had so many other kinds of business, and he could not look after them all quite well; and he said he would give me the run of the store at Levenwick and the beach during the last two years of his tack that remained. I agreed to take it, and came down to the place. He was there at the time, and he invited a number of the men to wait upon him, and told them what he had resolved to do, and recommended that they should fish for me. Some of the men agreed to do so, and others said they preferred having their freedom to do what they liked; and they did so.

15,181. Did many of the fishermen who had been in Mouat's employment continue to fish for you when you took up that station?-I made up about five or six boats last year out of his men,-perhaps twenty men.

15,182. Did you find that these men were in great indebtedness?- I found that there were some of them very poor and ill-off, much worse than I would like to find them.

15,183. Did you take over any part of the stock which Mouat had in his shop there?-Yes, I bought the stuff that remained in his shop at the Moul.

15,184. Did you pay a full price for that?-Yes; it was sold at a valuation, at which he and I were present.

15,185. What was the quality of the stock?-It consisted principally of lines and some drapery goods. The quality of the goods that I bought was very fair. Some of them had been very recently brought in, but others had lain in the shop for a good while. These articles I generally refused to take.

15,186. Had you to take over any meal?-No; there was not an ounce in the shop.

15,187. Were there any articles of food of any kind?-No.

15,188. Then what you took over was entirely soft goods and fishing materials?-Yes.

15,189. Have you any knowledge as to the quality and prices of the provisions which had been sold in his shop?-No; that did not come within my knowledge at all.

15,190. Have you understood from the people in the neighbourhood whom you have since employed, that the quality was very inferior and the price high?-I have heard such complaints.

15,191. I suppose the people express themselves well pleased with the change that has been made?-I heard of nothing else.

15,192. Was that the only transaction you had with Mouat or with the trustee on his estate with regard to the shop business?-Ever since Mouat became tacksman of that property, I have had some dealings with him every year in the purchase of fish and herrings.

15,193. But had you any other transaction with him in connection with him leaving the property and you taking over the fishermen?-No; nothing beyond what I have stated.

15,194. Are you engaged in the herring fishing?-Yes.

15,195. How many vessels have you employed in it?-I would have perhaps twenty boats from Levenwick and Lerwick going to the herring fishing for about six weeks, commencing on 12th August, and ending about the end of September.

15,196. What is the nature of the bargain which you make with the crews of these boats?-It is understood that I am to pay the prices that are generally paid in Shetland for herrings. Prior to 1869 the price I paid to my men was generally regulated by the price paid by Mr. Methuen, fish-curer, Leith, who is the largest fish-curer in Scotland. He, up to that time, had boats from Mr. Bruce of Sand Lodge. Mr. Bruce, once a year, made a bargain with Mr. Methuen, and generally brought him to a very high figure, and my fishermen expected that I was to pay the same price that Mr. Methuen did. They considered that when Mr. Methuen, the greatest fish-curer in Scotland, was able to give certain price to his men, they ought to get the same and that was the price I always paid until three years ago. Since then the herring fishing has been almost a blank; it has been a source of great loss.

15,197. At that time did you become bound to pay them only the current price in Shetland?-There was no bargain made about that. In fact the fishing is so very uncertain, that it is just a matter of circumstances whether we speak about prices or not. Last year, for instance, I had to prepare for about twenty boats fishing, and, I think I did not get thirty crans of herrings altogether.

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15,198. You did not fix a price per cran at the beginning of the season?-No.

15,199. Are the men who are engaged in the herring fishing the same men who fish for ling during the summer months?-Yes.

15,200. Are the boats different?-Frequently they are the same boats.

15,201. Is the settlement made at the same time as the settlement for the ling fishing?-Yes.

15,202. Is there any other point you desire to mention in connection with this inquiry?-No. The whole question seems to be very well ventilated, and I have nothing to add.

15,203. Would you have any objection to a system of weekly or fortnightly payments for the fish that are delivered to you?-I would have no objection to that if it were practicable, but I think there are difficulties in the way which make it practically impossible.

15,204. Would these difficulties not be removed, or greatly reduced, if the weekly or fortnightly payment were only a portion of the price, or a minimum price of say 5s. 6d. per cwt. for ling, leaving the balance of the price of the fish to the end of the season, and to pay it then?-I don't think that system would work very well. It would entail a great amount of trouble and I cannot see how it could be carried out.

15,205. Would there be any trouble, except keeping cash at the stations and handing it to the fishermen at short intervals?-That would be one great source of trouble.

15,206. Would there be any other?-The difficulty of introducing such a system appears to me to be this, that the poor men would not be able to get on in January and February before the fishing begins, unless they obtained advances of some kind from the merchants. If a system of ready-money payments were introduced, the fish being paid for only when they were delivered in the month of June, then the men would have some difficulty in maintaining themselves in the winter and spring.

15,207. No doubt there might be some hardship or difficulty at first, but after one or two seasons do you not think the men would have learned to provide for that part of the season?-There are certain classes of men that I don't see how such a system could work with at all.

15,208. Could these men not find a certain provision in more application to the winter fishing?-There are some localities where the winter fishing is impracticable. The boats cannot be hauled up and down, so that really there are no fish got except in a few days of exceptionally fine weather.

Lerwick, January 30, 1872, PETER GARRIOCK, examined.

15,209. Are you a merchant in Lerwick?-I am an agent in Lerwick.

15,210. Do you keep a shop?-No; but I keep fishing materials for my men, and for general sale.

15,211. Are you engaged in the Faroe fishing?-Yes, only in the Faroe fishing. I have three vessels employed in it.

15,212. Where are the men employed in these vessels supplied with their materials and fishing supplies?-Their fishing materials are got from me, and I generally appoint them to get their other materials from Hay & Co., or R. & C. Robertson, or Harrison & Sons. There are four or five individuals in Lerwick that I give them their option to get their materials from.

15,213. Do you guarantee these gentlemen for the advances they give to your men?-Yes; at least of late I have had to do it.

15,214. Do you settle with the merchants before settling with the fishermen?-No, not before. The men get their accounts from them, and we retain the amount.

15,215. Do you receive a commission upon the advances made by the merchants?-Occasionally.

15,216. Do you not always do so?-No. Some of them don't agree to give it; there is no arrangement about that.

15,217. Do those who give it get a reference?-They do not. The men have very often to go to them.

15,218. But you give them the option only to go to certain parties whom you name?-Yes. If they begin to deal with one party, they must deal with the same party during the season, because of the difficulty of keeping accounts with the various parties in the town.

15,219. You name a certain number of merchants with whom they must deal?-Yes; and they are generally the most respectable people in Lerwick, where they can get their supplies most moderately. But the men were naming any one themselves with whom they wished to deal, they would have the same option to deal with him, only they must deal with the same individual for the season.

15,220. Would you give a similar guarantee to a merchant whom the men named themselves?-Yes.

15,221. Do you do that in order that the families of the men may be able to live during the fishing season-Yes.

15,222. But it is only in the event of a man requiring these advances that you give such a guarantee, or require them to go to such a shop?-They all require it.

15,223. Are none of them able to live upon their own resources?- Plenty of them; but still they come for their supplies. There was an instance of that occurred with me only eight days past on Saturday. A man who had been in my employment for two or three years had been engaged two or three weeks before to go to the fishing for the rising season, and he came on Saturday and asked for supplies. I asked him where he wished them from, and he said Hay & Co.'s, and I gave him an order to go there. After giving it to him, he came and asked me for some cash. I told him thought it was rather early to come and ask for cash for the rising season, and that he could hardly have spent the money he had got from me at settlement. After a good deal of pressure, he said that about the time he had settled with me he had got some money from his son, and he had added it to the money he had from me, and had put it into the bank, and he did not like to draw it out again. Therefore it is not altogether from necessity that they get these supplies.

15,224. But they all take them as a matter of course?-Yes. There are some men who always get them, and the other men would think they were not so well treated if they did not get them also.

15,225. Then the necessity of making these advances to the men is one of the elements which the merchant must take into account in making his arrangements for the season?-To some extent it must be.

15,226. Is it not an element in fixing the price which the men are to get, that the merchant has to make advances of that description?- Not so far as the Faroe fishing is concerned.

15,227. In the Faroe trade do the men get exactly the same price for their fish which the merchant realizes?-Yes, and something more.

15,228. Why do you give more?-Just because we are obliged to do it. This year I am paying more than I can get. I am bound to pay the currency, as it is called; and if the

currency is higher than I realize for the fish, I am still bound to pay it.

15,229. Have you not been able to sell up to the current price this year?-No. I did not accept the price which was offered to me at one time, thinking the fish would be higher, but instead of being higher they fell. I did not sell until after the men were settled with.

15,230. Are you agent or owner of the fishing smack 'Gondola'?- Yes.

15,231 What was the amount of earnings of the men employed in that vessel last season?-The men's earnings in 1871 were about £19 or £20, on an average, for the season.

15,232. Was that the whole proceeds that were paid from the catch of the 'Gondola'?-Yes.

15,233. Was that the sum of which the men received payment after the necessary deductions?-The sum which each man receives varies according to his position [Page 386] in the vessel. The master received £42, 11s. 3d.; the mate received £25, 8s. 10d.; one man received £21, 6s., and the others ran from that to £19, 13s. 6d., if they were there the whole season, according to the amount of their score-money.

15,234. What was the amount credited to each sharesman for the value of his share of the fish?-It varied from £19, 13s. 6d. to about £21, 6s. for an ordinary sharesman. The score-money makes a little difference between one sharesman and another.

15,235. What was the amount of the share apart from the score-money?-It was £14, 4s. 7d. for the Faroe fishing. That was for the period when they were paid by shares; but there was a part of the season when they were paid by wages, when they were upon an Iceland voyage.

15,236. What was the number of the crew?-There were fourteen during the Faroe fishing. Of these, nine were full sharesmen, and the others varied from threequarters to half a share. There were 121/4 shares altogether, and the whole proceeds of the fishing would be divided by that.

15,237. What was the total take of fish?-20 tons 6 cwt. 3 qrs. 21 lbs.

15,238. Was that a fair average fishing for the season?-No, it was rather a poor season. I daresay it was fully an average for last year; but it was a poor fishing, taking other years into account. We would not consider it a paying season.

15,239. Who classes the quality of the fish?-It is generally the merchant. We usually send the first-class fish to Spain, and the other cod go to the home market.

15,240. You charge 52s. 6d. as the cost price for curing. Is that by arrangement with the men at the beginning of the season?-No.

15,241. Is it rounded upon an estimate of the actual expense of curing for the year?-We cannot ascertain every particular with regard to the expense of curing the fish and bringing them into market; but I am certain we are charging under the rate which it actually costs us, including wages, salt, material, and a great many other

things that have to be embraced in it. We have often to include coffee and other things supplied to the women at the beach.

15,242. Are the people employed in your curing establishment paid by weekly wages or by fees for the season?-They are not paid in that way at all. Here [showing in book] is the account of a man, Arthur Leask, who employs some women from the mainland. I make a contract with him for the curing of the fish. He generally gives an order to the women, and I pay them what is contained in that order.

15,243. Is that the way in which most of your curing business is managed?-Yes.

15,244. Do you cure at the island of Linga?-Yes. Here [showing] is another account with people who have been curing for me for a number of years. I entered into the contract first with Laurence Thomson; he died and left the farm, and then John Thomson took it, and now Miss Thomson has it.

15,245. Is the work all done in contract with them?-Yes.

15,246. Do they give orders to their employés in the same way as Leask?-I think they manage it themselves, both there and at Linga, with the exception of the washing.

15,247. Do you pay them in cash?-Yes.

15,248. Have you any transactions with the people employed by them?-No.

15,249. Had they an account for goods in any shop?-Not so far as I am aware.

15,250. In what way are the people paid whom Leask sends to you with orders?-They are paid in cash altogether.

15,251. Have you a written agreement with your Faroe fishers?- Yes; I have a separate one for each smack every year.

15,252. Do you stipulate in that agreement what deductions are to be made?-Yes; at least that is done generally. The deductions, including the expenses of curing and bringing the fish to market, and master's and mate's fees, score-money, and cost of bait, are made from the gross proceeds, and then the balance is divided into two-one half going to the men, and the other to the owners.

15,253. Is there not a deduction for commission?-No; that is generally just an understanding.

15,254. What is that understanding?-That a commission is to be charged. In the account I have produced for the 'Gondola' commission and guarantee are charged at 5 per cent.,

15,255. Do the men at settlement see, or desire to see, the bills of sale?-They have never done so in any case.

15,256. Do they sometimes complain that they did not see them, or make any complaints about the price of the fish?-They are always grumbling; but they never made any direct complaint to me on the subject. In order to save a good deal of that trouble, the North Sea Fishing Co. have produced their accounts, but very frequently

they have begun to settle with their fishermen at the currency before the accounts were ready.

15,257. Do the company produce their bills of sale to the men?- They are bound to do it if the men call for them.

15,258. Are you connected with that company?-I am a director of it. Mr. Irvine, of Hay & Co., is the agent.

15,259. Do you know whether, in point of fact, the fishermen generally see the bills of sale of that company?-I cannot tell. That is a matter which is left in the hands of Mr. Irvine.

15,260. Are the men frequently in debt to you at the commencement of the fishing season?-No. There were some men who left me in debt last year, and they have gone elsewhere,-I don't know where. In fact I would rather get clear of a man who is in debt, and take my chance of getting my debt from him afterwards, than employ him again, unless he was a very good man.

Lerwick, January 30, 1872, JAMES COUTTS, examined.

15,261. Are you a provision merchant in Lerwick?-I am. I have been in business for eleven years.

15,262. Do you deal in anything else but provisions?-Nothing of any consequence. Sometimes I get a little cottons, or small wares as we call them.

15,263. Do you sometimes purchase soft goods over the counter?-I used to do it; but I have not done so for the last twelve or eighteen months.

15,264. Why did you give it up at that time?-There were several reasons for it. I did not think it was a nice thing to do; and sometimes it was more bother than it was all worth.

15,265. You probably found your other business increasing?-It was not for that reason that I gave it up. I got more humbug by it than all the good it was.

15,266. How were you humbugged by it?-I would sometimes take goods in that had perhaps been stolen, and I lost them altogether. It was a kind of broker's business that I did.

15,267. Did you do a good deal of that business at one time?-Not much.

15,268. But still you were a broker to some extent?-It was not worth speaking of.

15,269. What kind of goods were you in the habit of getting in that way?-Various sorts of goods, such as wearing apparel. There was nothing else that I recollect of particularly just now.

15,270. Did you sometimes get cottons and other goods that were not made up into wearing apparel?-Not that I remember.

15,271. I thought you said you had dealt to some extent in cottons and calicoes?-I got them from the south along with my other goods.

15,272. Did you sometimes lay in a small stock of these?-Yes.

15,273. Have you never purchased any cotton, or [Page 387] calicoes, or dress stuffs not made up, from people at your counter?-I cannot recollect just now. I had a small book in which I entered these purchases.

15,274. Have you got that book with you?-I have not seen it for the last six months.

15,275. You will go for that book, and show it to me here?-Yes.

Lerwick, January 30, 1872, LAURENCE THOMPSON, examined.

15,276. Are you a seaman in Lerwick?-I am.

15,277. Have you gone frequently on sealing and whaling voyages from this port?-Yes.

15,278. By what agent, have you been engaged?-I have gone from them all.

15,279. Did you have an account for outfit and supplies from the agent who engaged you every time you went?-Yes.

15,280. When did you go first?-In 1858.

15,281. Did you go as a green hand then?-Yes.

15,282. Where did you get your outfit?-From Mr. Leask.

15,283. Did you settle for it at the end of the voyage?-Yes.

15,284. Did you manage to pay it up the first year?-Yes; and I had 5s. clear.

15,285. Did you ask on that occasion for payment of part of your earnings in cash?-Yes; when I came home I got the 5s. which I had clear. I had had all the rest in goods.

15,286. Did you not want to let part of the goods stand on an account?-No.

15,287. You wanted to pay it all up and to be clear?-Yes.

15,288. Did you continue to engage with Mr. Leask for some years after that?-For two years; and then I went to Mr. Tait.

15,289. Why did you go to him then?-Partly because I wanted a longer voyage; I wanted to go to Davis Straits.

15,290. Had Mr. Leask no ships going the long voyage that year?-Yes.

15,291. Could you not have got a berth from him?-Yes, if I had asked for it.

15,292. Why did you not ask for it?-I did not just incline.

15,293. Why did you not incline?-I had no particular reason for it.

15,294. Had you run up an account with Mr. Leask the year before?-Yes.

15,295. Had you left him clear?-Yes; and I had got £2 in cash.

15,296. Had you a second payment of oil-money to get that year?-Yes.

15,297. Did you get payment of that in money?-Yes.

15,298. Was that before or after you had engaged with Mr. Tait?- It was before.

15,299. How long did you continue with Mr. Tait?-I went five voyages with him.

15,300. Did you get all your supplies during that time from him?- Yes, whatever I asked or wanted.

15,301. Did you always get your balances paid to you in cash?- Yes.

15,302. Had you no difficulty in getting that?-No; whenever I asked them I always got them.

15,303. Were you not sometimes asked to take them in goods?- No. They would ask you if you wanted anything, but that was all; and I got my things as good there as at any other place.

15,304. Had you not, in one of these years, to ask more than once for the money?-No, not to my recollection. If I asked for the money I always got it.

15,305. Was it paid to you in Mr. Tait's office beside the shop?- Yes. I went through the shop into the office, and Mr. Tait settled with me there.

15,306. Did he or any of his people always ask you if you wanted any goods when you went to get your settlement?-No, he did not ask me; but sometimes they would ask me if I wanted anything when I came out from settlement. We could either take it or leave it, any way we liked.

15,307. In some of these years, were there a great number of men going to Greenland?-Yes.

15,308. Were there sometimes more than there were berths for?- Yes.

15,309. But you never lost a berth?-No; whenever I asked it I got it.

15,310. Were you not known to the agents to be a good seaman, and were you not always on good terms with them?-I never was on bad terms with them, and I always got a berth when I wanted it.

15,311. But you always had an account with your agent?-Yes.

15,312. And a good lot of supplies?-Sometimes not very much, but sometimes I had a good lot.

15,313. Do you think the fact of your having a pretty large account had anything to do with your always getting a berth?-I don't think it. Sometimes I would have a good account with one agent, and go to another agent and get a ship from him.

15,314. Did you not always take your supplies principally from the agent with whom you were engaging for the year?-Yes, principally.

15,315. You were five years with Mr. Tait; that would be down to 1866: who did you go to then?-I went back to Mr. Leask.

15,316. Have you been engaged with him ever since?-No; I was with Mr. Tulloch in 1868.

15,317. Why did you leave Mr. Leask at that time?-I don't know. The ship was not in that I was going with, and I just shipped in another one.

15,318. Did you take your supplies from Mr. Tulloch that year?- Yes, whatever small things I wanted.

15,319. Had you been quite clear with Mr. Leask the year before, and got payment of your balance in money?-Yes. I got paid in the Custom House that year.

15,320. Was the amount of your account at Mr. Leask's shop deducted when they paid you at the Custom House?-Yes.

15,321. Then it was merely the balance that was paid to you there?-No; I got the full amount, and paid them back.

15,322. Did you go down to the shop and pay them back there?- Yes.

15,323. Had you seen your account at the shop before?-Yes.

15,324. Is that the way in which you have been settled with ever since?-Yes.

15,325. You see your account beforehand, and then go up to the Custom House, get payment of the cash, and then you bring down the money and settle your account?-Yes.

15,326. When you left the shop after seeing your account and went up to the Custom House, were you told to come back and pay your account the same day?-Yes.

15,327. You were always reminded of that?-Yes.

15,328. And when you came back to pay your account, were you asked if you wanted any more goods?-No. I did not buy anything unless I chose.

15,329. Do you generally get your last payment of oil-money in cash, or in goods?-In cash; but if I want them, I can get it in goods.

15,330. Do you sometimes want it in goods?-Sometimes we may take some trifling things on it if we want them, but if not we get it all in money.

15,331. Have you any reason to complain of having to go to the Custom House and then to go down to the shop and pay your money?-No.

Lerwick, January 30, 1872, JAMES COUTTS, recalled.

15,332. You have now produced to me the book containing your transactions in the brokery line: are all [Page 388] your transactions in that business entered there?-Yes, so far as I know.

15,333. These transactions do not appear to have amounted, on the whole, to more than two or three per month on an average?- There might be that in some months, but in other months there would be nothing. It was a rare case when I bought anything in that way at all; it was merely when anything was brought to me that I thought worth buying.

15,334. Were these articles paid for in cash or in provisions?- In cash first, and then the people might spend it in provisions afterwards. I have seen me get all the money back again before they went out.

15,335. Have you known many instances of knitters bringing goods or articles of dress to you and selling them?-I never questioned them about that. If they came with an article, I asked their name and the price, but that was all. I have also asked them if they were sure it was not stolen; I was very particular about that.

15,336. Have they ever told you that the goods they were selling were goods that they had got for knitting?-I recollect them saying once or twice that they had taken them for their hosiery, but they took money from me when I bought the goods from them.

15,337. But they told you they had got these goods for hosiery?- They had perhaps got them out of certain shops; but I believe they had generally got them on credit, until they had something made which would pay for them.

15,338. Were these women employed in knitting?-Yes; but there were only one or two cases of that kind.

15,339. But you have known two or three cases in which women, known to you to be knitters, came with goods in that way and sold them?-Yes, they would say they had got them from so and so; but I don't recollect any particular party.

15,340. Can you point to any of these transactions in the book?- No; I don't recollect whether the articles that were entered in the book were got from knitters or from other parties. Sometimes they wanted cash for their goods, because they could not get cash at the shop where they were dealing.

15,341. But, in these circumstances, the people who were refused the cash got the goods, as you understood at the time?-Yes, I understood so.

15,342. And they took the goods, and brought them to you and got the cash?-Yes.

15,343. Did you know that these goods were got at a shop where hosiery was taken?-I cannot tell; I never asked about that. They may have said so but perhaps that might have been false.

15,344. Did they give the name of any party from whom they had got the goods?-No; they just said they had got the goods when they could not get the cash.

15,345. May that have been said half a dozen times?-Not so many. I only recollect hearing of it once or twice.

15,346. Do you say that it has not happened half a dozen times in the ten or eleven years that you have been in business?-I don't recollect it happening so often as that. I just recollect hearing it spoke about.

15,347. Do people sometimes come to you yet offering articles for sale, although you have given up that part of your business?-Yes, occasionally; but not so much now as before I gave it up.

15,348. Do you not sometimes take them still?-I don't think I have taken any since the 1st entry in the book on April 15, 1870.

15,349. Are you quite sure that you have never bought any article at all in your shop since then?-Not that I recollect.

15,350. Would you be likely to forget if you had done it?-I don't know; but I have not done it, so far as my recollection goes. I have once bought a jacket which I wore myself; but it was from a friend, a party that I knew, and it was not a thing that I was in the way of buying.

15,351. Can you swear that you have not had more than half a dozen applications, in the whole course of your business, from women whom you knew or supposed to be knitters, asking you to give them money or provisions for goods which they had got for their hosiery?-They never asked provisions for them. If they wanted provisions, they took them out afterwards; they just asked for the cash, and I gave them what I thought the article was worth to me.

15,352. Do you swear that you have not had more than half a dozen such applications in the course of your business?-I don't recollect more than one or two. Of course, I did not ask them pointedly where they had got the articles, or how they had got them, except merely that I wished to know that the articles had not been got in a dishonest way.

15,353. But I see that a great number of the entries in the book relate to transactions with females?-Yes.

15,354. Can you swear that the majority of these women were not knitters who were in the habit of dealing with hosiery shops, and who came to you and got cash for the goods which they had got there?-That might have been so, but I really cannot say.

15,355. Can you swear that one out of every two of these women did not come and sell goods to you which she had got in that way?-She might have got them in that way, but I cannot tell.

15,356. Were most of the purchases which you made, of new articles or of old?-The greater part of the things had been worn.

15,357. Do you think there was any other way in which the women got these articles, except by getting them from the hosiery shops?-Certainly.

15,358. Were there some of them which had been got at the agents' shops where the women were supplied, while the men were away at the fishing?-They might have had accounts at these shops, and got goods there in part payment for the men's wages.

Lerwick, January 30, 1872, Mrs. BARBARA DALZELL, examined.

15,359. Do you live in Scalloway Road, Lerwick?-Yes.

15,360. Have you been in the habit of knitting and selling your goods, or have you knitted with your own wool?-I have both knitted with merchants' wool and with wool of my own.

15,361. Have you knitted for a long time, and had a great deal of experience in it?-I have knitted for about thirty-two or thirty-three years. During that time I have knitted mostly with my own wool.

15,362. How have you been paid for your hosiery?-Either in money or goods.

15,363. Have you ever been paid altogether in money?-Yes, often.

15,364. Is it not the usual way in Lerwick to pay for hosiery in goods only?-Yes, that is generally the way in which most of them do.

15,365. Why has an exception been made in your case?-I don't think any exception has been made with me. Whenever I brought a good article to the merchants I asked money for it, and when I thought it was an inferior article I never thought of asking for money.

15,366. Was it generally very fine articles that you knitted?-Not particularly fine, but I have sometimes knitted very fine articles.

15,367. Was it only for the very fine articles that you got the money?-It was only for them that I asked the money.

15,368. How much was the largest sum you got at one time?-I think I have got as much as £5 at one time from Mr. Arthur Laurenson, but I am not sure; his books will show.

15,369. Did you get that money for one article?-Not for one article. It was for a number.

15,370. Was it on an account with him that you got that?-Yes; but I do not remember the exact sum.

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15,371. What did you get it for?-There was a cloak and several other articles, and the balances upon several shawls which I had been leaving with him.

15,372. For what purpose did you get so much money?-I cannot remember exactly. I had a reason at the time for asking so much, but I don't remember asking the money when I sold the articles.

15,373. But you had a special reason for wanting that money?- Yes. I would rather not mention what it was, unless it is necessary.

15,374. Did you tell Mr. Laurenson the reason?-Yes.

15,375. Did you get all the money that was due to you at that time?-Yes. I sent a girl who was living in my house at the time to Mr. Laurenson for the cash, and he sent the balance by her, and a line along with it to show that he had paid it.

15,376. Was there not a discount taken off because you had got it in cash?-There was nothing taken off.

15,377. What was the next largest sum that you got at any one time?-I have got £3 at one time from Mr. Robert Linklater.

15,378. Was there any special reason for that?-I got it for a very fine cloak which I sold to him.

15,379. Did you sell it to him for a money price?-I sold it, and asked the money, and got it from him there and then.

15,380. Did you ever get as much as that on any other occasion?- No; but I have often got £2, which is generally considered the price of a good cloak.

15,381. Did you sell it to them for that in cash?-Yes.

15,382. Did you ever get money when you knitted for any merchant

15,383. How much did you get then?-I can scarcely remember. I knitted at one time for Mr. Gilbert Harrison, and I always got money from him when I asked it, whether it was a large sum or a small sum. The firm is now Harrison & Sons, but it was before young Mr. Harrison's time that I got that money. I don't think they deal in hosiery now; at least I have not dealt with them for a long time.

15,384. Have you dealt with any other merchant and got money in such large sums as that?-I once had a transaction with Mr. Wm. Johnston, and I asked in money and £1 in goods, and I got it.

15,385. There was a letter sent to me in which it was stated that you could tell me a story about a certain merchant in town: do you know anything about that letter?-No. I was wondering who had mentioned my name to you.

15,386. [Shown letter dated 9th January 1872, and signed W. Linklater.] Do you know that handwriting?-I do not, but I know what it refers to. It was merely a private thing that I was telling to another party about having taken some hosiery to a merchant.

15,387. Do you know the party who writes the letter?-I don't think I do.

15,388. What does the letter refer to?-I bought some stockings from a merchant in Lerwick, and I was selling some shawls to him, but he did not like to take hosiery in return for his stockings. He said he would take one half money and one half shawls, and I went home, and I think it was either 20s. or 30s. that I got from my husband to pay one half of the price.

15,389. What quantity of hosiery had you bought?-I think it was rather more than £2 worth.

15,390. Was that for your own family?-No. It was for a party who had sent to me for some hosiery, and I went to that merchant's shop for it.

15,391. Do you sometimes deal in hosiery yourself?-I sometimes send work south, but I oftener sell it here. It is a long time since that affair happened; and I think the price came to nearly £3, but I don't remember the amount.

15,392. How long ago was it?-Perhaps 12 years ago, or perhaps not so much.

15,393. Was it the practice at that time, as it is now, to pay for hosiery in goods?-Yes.

15,394. But when you bought hosiery, was it understood you were to pay for it in cash?-There was no understanding about it. I just went to the shop for the stockings, and the merchant agreed to take one half of the payment in hosiery and the other half in cash, which I paid to him. I asked his reason for doing that, and he said that by taking the hosiery it was turning his goods twice over for only one profit.

15,395. Was that the only transaction you ever had with that merchant?-I had plenty of transactions with him before, but not many after.

15,396. Do you sometimes buy a great quantity of wool?-Yes; but it is very difficult to get the best wool.

15,397. Where do you buy it?-Sometimes from country merchants, generally from Fetlar. I get some worsted from William Tulloch, Fetlar. I generally pay 4d. a cut for it. The finest is 6d. a cut; that is the kind which is used in making fine shawls and fine cloaks in Shetland.

15,398. You don't buy it in wool yourself, but in worsted?-Yes. There are some of the people in Lerwick who buy it in fine wool, and send it to the country to be spun, before they can get it really fine.

15,399. Are they not able to buy the finest worsted in the shops in Lerwick?-I never could do so.

Lerwick, January 30, 1872, GEORGE JAMIESON, examined.

15,400. Have you a farm at North Roe, on the estate of Busta?- Yes. I have only had one crop there.

15,401. Have you been a fisherman?-Yes, all my life.

15,402. Whom did you fish for?-I have fished for different people in my time. When I was on Messrs. Hay's property I fished for them; but they suspended me from fishing, and I would not go again. They wanted to put me into a boat with some old men. I would not agree to that, and I lost my fishing for four years.

15,403. Were you at liberty to fish for whom you pleased?-I was not. They stopped other fish-curers from taking me during these four years.

15,404. How did they do that?-I offered to go for different men, and they would not take me for fear of Mr. Greig, Messrs. Hay's factor at North Roe.

15,405. Are the tenants on the Gossaburgh estate bound to fish for Messrs. Hay & Co.?-Yes. I was bound to do so all the time I was there. One year I agreed with Mr. Anderson, Hillswick, to go to the fishing for him, and I came with my share of fishing lines, but he would not give his men a share of lines to make up the fishing with; and he gave us an old boat that we would not risk our lives in, and he would not give us any meal.

15,406. Are you also employed in keeping paupers?-Yes, I have two old women-one from the parish of Lerwick, and one from the parish of Northmaven. I have £8 for the one from Northmaven. I only had 13s. for five months for the pauper who belonged to Lerwick, but now they have given me 1s. 6d. a week, which comes to £3, 18s. a year.

15,407. Who pays you these sums?-Mr. Greig.

15,408. Does he pay you for both the paupers?-Yes.

15,409. Does he keep the post office?-No; but they put the money into his hands, and most of it has been taken out in truck. He refuses to give me any money except a mere trifle.

15,410. Whom did you make your bargain about these paupers with?-One was with Mr. Johnston of Lerwick, and the other was with Mr. Bruce at Urrafirth.

15,411. Do you not receive post-office orders or money from Mr. Bruce or Mr. Johnston for the maintenance of these paupers?-It comes to Mr. Greig; I cannot say how it comes.

15,412. Have you ever asked that the money should be sent to you direct?-No.

15,413. Is Mr. Greig a member of the parochial board of Northmaven parish?-I believe he is.

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15,414. But he is not a member of the Lerwick parochial board?- No.

15,415. How does he happen to pay you money for Lerwick parish?-They send it to him.

15,416. Have you ever asked him for the whole of that money in cash?-No.

15,417. Why?-Because he seemed that he would not pay it in cash.

15,418. How did he seem so?-He said he would not do so, and that there was no use of him taking the trouble if I would not take the greater part of it out in truck.

15,419. When did he say that to you?-He has said it to me several times. He said it some time after I got the first pauper, who belonged to Northmaven. That is about two years back.

15,420. Did he say it to you when you went for the first payment?-Yes.

15,421. Had you not run up an account at his shop before the money was due?-I had not.

15,422. Did you owe him anything then?-I owed him nothing. He was my landmaster then, but I did not owe him anything.

15,423. Is that money paid quarterly?-It is paid monthly here.

15,424. Did you ever ask Mr. Greig for a monthly payment in cash?-I did not.

15,425. Why?-I cannot tell. I suppose it was because we always had his shop to go to for things that we required for the paupers, and we thought we need not ask for cash.

15,426. Were you not always due him as much as the monthly payment before it became due?-I was not.

15,427. Were you not due him something?-Yes, a small thing, but not the whole of the money.

15,428. Did you ever ask him for the balance in money?-Yes.

15,429. Did you get it?-Yes.

15,430. Then, when was it that Mr. Greig said he could not give it to you in money, but that you must take it out in truck?-Just when they sent the paupers to me.

15,431. Are you sure there was not something due to Mr. Greig then for supplies to the paupers?-There was nothing due.

15,432. Had you not got any supplies from him for these women before the first payment was due?-Yes, I got what I wanted whenever I asked it.

15,433. Then there was something due to him for that?-Yes; he never refused to give me anything for them as soon as I came for it.

15,434. There was something due to him for these supplies at the time when the first monthly payment became due?-Yes, but not to the whole amount of it.

15,435. Why did you say that you were not due him anything?-I had to take out the things because I could not get the money.

15,436. Did you ask him for the balance?-I did.

15,437. How much was there due to you at that time?-I cannot tell, because we don't keep accounts.

15,438. Have you no pass-book?-No.

15,439. Did Mr. Greig actually say to you that you must take your payment in truck?-He said we must take part of it in truck, and that he would not pay it all in money.

15,440. Did he use the word truck?-Yes.

15,441. Did he not say that you were to take part of it in goods?- Goods were the same as truck, and he meant that we were to take meal or tea, or anything, out of his shop.

15,442. But what did he actually say?-He said we must take goods out of his shop for part of the money, because he could not pay it all in money. He said that the first time I went to him.

15,443. When did he say it again?-He said it very often.

15,444. When did he say it last?-This winter.

15,445. Where did he say it?-In his shop at North Roe.

15,446. Were you asking for money at that time?-Yes. I asked him then for the 13s. which came for the pauper from Lerwick, and he said he would give me that, but that he need not have the trouble of paying it all down in money.

15,447. Had you not got a lot of supplies at that time?-No.

15,448. Do you swear that, when you asked him for the 13s., you were owing him nothing for supplies?-I was owing him nothing.

15,449. Had you got any supplies from him before that?-I had got nothing from him for the pauper from Lerwick.

15,450. But had you got supplies for your own household?-I had; but I was due him nothing.

15,451. Had all the supplies that you had got from Mr. Greig for other parties up to that time been paid for?-They were all paid for when I asked for the 13s.

15,452. Had you any account due at the-shop at that time?-I cannot tell. I don't think it. There could be nothing due.

15,453. You said just now that all the supplies you had ever got were paid for at that time?-They were paid for.

15,454. And then you say in the next sentence that you cannot say whether they were paid for or not?-I asked for nothing for this woman until the came.

15,455. Do you keep a separate account for every woman that you have?-I believe we do.

15,456. Do you know anything about your accounts?-I don't know a great deal about them.

15,457. Are you sure that Mr. Greig has told you that you must take part of your payment for the paupers in goods?-Yes.

15,458. Is not all that he has done merely to keep part of the money that was already due to him for supplies which you had got?-He said he would not pay it all in money. That is all I have got to say about it.

15,459. Did he not say that he would not give it all to you in money because you were due him something for supplies you had already got?-I was never due Mr. Greig anything.

15,460. Had you not got supplies from him before he said that?-I had got supplies, but they never ran up to the sum which I had to get payment of from him. There was always money due to me.

15,461. Were you ever due Mr. Greig anything at all?-I was not.

15,462. Did you not owe him money for the supplies you had got?-We never sought supplies that would run up to the sum which we had to get. There was always something in his hand.

15,463. Do you understand what it is to be due a man money?- Yes.

15,464. Do you understand that you are due a man money when you have got goods from him and not paid for them?-I know that.

15,465. Were you not due Mr. Greig money when you had got these goods and had not paid for them?-I was.

15,466. Was it not at the time when you were due him money for these supplies that he said he could not give you the money which was due for the paupers?-He said, first of all, that we were not to ask all money when we were due him for goods.

15,467. Is there anything else you wish to say?-Nothing.

15,468. You have given your evidence in such a manner, that I cannot allow you any expenses for attending here.

Lerwick, January 30, 1872, ROBERT IRVINE, examined.

15,469. Are you a broker in Lerwick?-I am a general dealer. I deal in new as well as second-hand goods.

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15,470. Do you deal in provisions?-Very little; mostly in soft goods.

15,471. Do you make many purchases of soft goods and wearing apparel over your counter?-Of wearing apparel, but not of hosiery.

15,472. Do you sometimes purchase articles which are not made up, such as cotton?-Yes, and new articles too. If a man buys an article that does not fit him, and he comes back to me with it, I will take it from him and sell him another, or give him the cash.

15,473. Is this [showing] the book in which you enter all your transactions?-Yes.

15,474. Are women in the practice of selling goods to you which they have got in the shops?-There is very little of that done. I cannot say that I ever recollect a case of it.

15,475. Have you many transactions with women?-Very few. It is mostly men's apparel that I get.

15,476. I see that in your book most of the entries are in the names of men?-Yes; I always deal with men, except on rare occasions.

15,477. Are you the only broker of this kind in Lerwick?-I think I am the principal one; I have a licence as a broker.

15,478. Can you say that you have not had any transactions with women who might have been knitters, and who were disposing of goods which they had got for their hosiery?-I cannot tell exactly. Sometimes they may have come in with goods which they had got in that way, but it is very little of that kind of thing that comes my way.

15,479. Have you had many dealings with women whom you knew to be knitters?-Very few. I don't know that I recollect a single case. As I have said, it is generally men's work that I get.

15,480. Do you enter every transaction which you have in the book which you have produced?-Every one.

15,481. Is it not possible that some purchases of that kind from women are not entered in it?-No; I do not want to omit them, because I want to punish them if they

are rogues.

15,482. But these women will be perfectly honest in making such sales?-Yes, but I don't think there has ever been such a case in my business.

15,483. Have you ever bought any lines from women?-I never saw one offered; and even if it had been offered, I would not have bought it or meddled with it at all.

15,484. Do you know anything at all about the lines?-I don't recollect ever seeing one in my life because I am not in the way of it.

15,485. Have you heard of them?-I have heard of them repeatedly.

15,486. I suppose the trade of a broker is not a very flourishing one in Lerwick?-No, it is very dull; but I am a dealer also, and can make up things otherwise, which helps me through.

15,487. Do you know whether that business of buying second-hand articles is practised by any people who act as hawkers and who hawk through the country?-I don't know of any people who do that.

Lerwick, January 30, 1872, FRANCIS GIFFORD, examined.

15,488. Are you a seaman, living in Bressay?-I am.

15,489. Have you gone on sealing and whaling voyages for a good many years?-Yes, I went there during the first years of my time, and then I went south; but afterwards I have been at the sealing and whaling again.

15,490. Have you always engaged with some agent in Lerwick?- Yes, I have engaged with them all except Mr. Tulloch; I never went out from him.

15,491. Have you always received payment of your wages on your return from the voyage?-Yes, for the last three or four years I have always got my money at the Custom House.

15,492. Before the regulations were introduced according to which you were paid at the Custom House, did you settle with the agent at his shop?-Yes.

15,493. Did you always get your money on these occasions?-Not exactly.

15,494. Had you an account then for outfit and supplies?-Yes.

15,495. Did you always get the balance that was due?-Yes, I got it, but very little money.

15,496. Was that because you had a large account?-I don't know.

15,497. Do you remember some years ago being engaged by Mr. Joseph Leask on a voyage to what is called the west-ice?-Yes.

15,498. Is that in Davis Straits?-No, it is to the northward.

15,499. Do you remember applying for your wages in money in that year?-Yes.

15,500. Did you get it at once whenever you asked for it?-Yes.

15,501. Did you sail in the same vessel again that year?-Yes; but Mr. Leask was not for me going in her again, because I had got my money. If it had not been for the captain I would not have got with the vessel, but he said he would have me. The vessel was the 'Camperdown,' and that occurred in 1866.

15,502. What was Mr. Leask's reason for not engaging you for that vessel?-I don't know.

15,503. You said it was because you got your money?-I believe Mr. Leask thought I was for the double voyage, but I was only for the single voyage; and when I came home after the first voyage I got settled with him, because at that time I was intending to go south. I came over and got my money, but before the end of the week the vessel returned again, going to Davis Straits, and I went up to see if I could get a chance to go in her. When Captain Bruce told me to go and get my things and come with the vessel again, Mr. Leask was wild, and said I should not get a chance.

15,504. Had you intended at first not to go on the second voyage that year?-I was anxious to go but I did not know that the Captain was to put me down for the double voyage.

15,505. Why was Mr. Leask wild?-I don't know; I suppose it was because he thought I was only for the single voyage, and I came over and got my money.

15,506. Would he not have given you your money if he had known you were going the other voyage?-I believe he would not.

15,507. How did you happen to ask for your money at that time? Is it not usual to ask for it after the first voyage?-When the men go for a single voyage, which lasts for about six weeks, they are cleared off when they go home; but when they go for the double voyage they cannot get their money until the end of the season. Mr. Leask thought I was shipped for the double voyage and that I would come over and draw the whole of my money at one time; but of course I did not know myself that I was for the double voyage until the captain came again and put me down for it.

15,508. Do men never draw their money at the end of the first voyage except when they are done with the ship for that season?- They do it now. As soon as their six weeks are over and they come back again, they draw their money; but they did not do that before.

15,509. Was it always the practice before to make only one settlement for the long voyage?-Yes.

15,510. Have you always got your money since 1866?-Yes.

15,511. Have you also incurred an account at the same time with the agent who engaged you?-Yes.

15,512. How is it settled?-It was settled at the end of the season.

15,513. Was it read over to you before you went up to the Custom House to get payment of your money?-Yes.

15,514. Was the balance written out in the books before you went up?-Yes.

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15,515. You went up and got your money from the Custom House from the agent or his clerk, and then you came down to the shop and paid your account?-Yes.

15,516. When you went to the shop in the first place, were you always told to come back and pay your account?-Yes.

15,517. Who tells you to do that?-The agent.

15,518. Have you always had your account clear at the end of the season, or have you sometimes been in debt to the shop?-I have always been clear.

15,519. Do you know that young hands are sometimes in debt to the shop at the end of the season?-Yes.

15,520. Has there sometimes been a difficulty in getting berths in the sealing and whaling vessels, in consequence of more men applying than were wanted?-Yes.

15,521. What kind of men are preferred in such circumstances; is it the best quality of men?-There are generally all sorts of hands-green hands, and able seamen, and ordinary seamen of all kinds.

15,522. When a man is in debt to an agent, do you think he has any better chance of getting a berth?-My partners think so. They think that if a man is in debt the agent will perhaps try to get him into a vessel, in order that he may be able to clear off his debt.

15,523. Do you know that they have done that?-Yes, I have seen it.

15,524. What have you seen?-I have seen agents getting men who were in their debt put into their ships.

15,525. Have you heard the captains complaining of the agents putting inferior men upon them for that reason?-I have. Captain Bruce of the 'Camperdown,' complained about that in 1866. He said to the men that Mr. Leask was putting hands into the ship that he did not like, and that he would have liked better hands.

15,526. Did he state the reason why he supposed Mr. Leask was doing that?-He did not tell us about the reason.

15,527. Then how did you know that that was the reason why Mr. Leask had put in inferior hands?-I knew they were men who were in debt to him.

15,528. Did you know that from the men themselves?-Yes, I knew it from several men; but I don't remember their names- they were men on board the 'Camperdown' that year along with me.

15,529. Did they tell you that their being in debt had given them a better chance of a berth?-Yes; and that when they were in debt they got a ship.

15,530. Was that a general understanding among them?-Yes.

15,531. Did you know of any better men who wished to go in that ship, but who were refused because they were not in debt?-No; but I know that if men are debt to

the agent they will get a ship sooner than those who are clear with him.

15,532. But you have always got a ship although you were not in debt?-Yes.

15,533. Are you an able seaman?-Yes, I am a boat-steerer.

15,534. Do harpooneers and boat-steerers get a higher wage, and are they more sure of getting a berth than ordinary seamen?-Yes, they get higher wages, and are more in demand.

15,535. On the occasion you spoke of, when you went in the 'Camperdown' with Captain Bruce, it was to the captain that you owed your engagement, and not to the agent?-Yes.

15,536. If the agent had had his own way, would you have been engaged?-I would not.

15,537. Had you an account with the agent at that time?-No, I had some more money to get from him.

15,538. Had he not paid you up the whole of the money that was due to you on the sealing voyage?-No; there was a second payment of oil-money which I had to get.

15,539. Is it quite understood among the whalers, that when their money is paid to them at the Custom House they have to go down to the shops and pay it to the agents?-Yes; they quite understand that they have to clear the agent's books.

15,540. I suppose a man would not think of letting his account stand any longer?-No.

15,541. What would be the consequence if he did that?-I cannot say.

15,542. Would he get a berth next year?-He might get a berth next year, but it is best to have the books cleared.

15,543. But suppose a man had other accounts due, would he have to go and pay the agent first, and let his other accounts wait?-I don't know about that.

15,544. Does not a man go and pay the agent first, whether he has other people wanting his money or not?-As a rule, they go and pay the agent first.

15,545. Have you heard any of the men complain that they had to pay the agents in preference to other accounts which they wished to settle?-No.

Lerwick, January 30, 1872, PETER HALCROW, examined.

15,546. Are you a seaman?-Yes.

15,547. Have you gone on sealing and whaling voyages for some years back?-Yes, for nine years.

15,548. What agents in Lerwick have you been engaged by?-The whole of them.

15,549. Did you always get your outfit from the agent you engaged with?-Yes, the most part of it.

15,550. And you settled your account with him at the end of the year?-Yes.

15,551. Had you always a balance to receive in money?- Generally. Once I had not; that was in my second year.

15,552. Have you always got any money that was due to you paid in cash?-No.

15,553. When did you not?-The first year I was out.

15,554. Was there something due to you that year?-Yes,

15,555. Did you ask for it to be paid to you?-Yes, at different times; but I did not get it. I was told that the agent had not got it himself, and that therefore I could not get it.

15,556. When did you return that year?-On 1st October.

15,557. How long was it after that before you got your money paid?-I never got it paid at all. I had to take goods for it out of Mr. Leask's shop.

15,558. Were you told to take goods?-No, he did not tell me to take them; but I had to take them when I could not get the money. I was in need of them.

15,559. Did you want the goods?-Yes, I was requiring things, and I got them there.

15,560. Did he say that you had better take goods, as the money had not come?-No, he did not say that. He only said it was not come every time I came and asked for it, and as I could not wait longer I just took the things I had to get.

15,561. How long was it after you returned before you began to take the goods?-About a month or five weeks.

15,562. How often had you asked for the money within that time?-Three or four times.

15,563. Were you offered the goods?-No, I was never offered them until I asked for them.

15,564. Did you say anything about not getting your money to the agent or any of his people?-No, I did not say anything.

15,565. Are you sure there was £4 due to you at that time?- There was £4, 10s. due when we left home from the owners, and 30s. from the Shipwrecked Mariners' Fund, because we were shipwrecked.

15,566. Then there was no oil-money that year?-None.

15,567. Did you not get the payment from the Shipwrecked Mariners' Fund in cash?-No.

15,568. Did you apply for it in cash?-Yes; I applied at the shop for it, and I got a very little cash, perhaps about £1 at one time and another-not all at once.

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15,569. Have you ever taken part of your earnings in goods since then?-Yes, I have done so almost every year that I have been out.

15,570. But that was just in the account which you opened when you went away?-Yes.

15,571. Did your people get any advances when you were absent from the agent with whom you shipped?-Yes; a little.

15,572. And they get any supplies anywhere else?-They generally got them from the agent.

15,573. Why was that?-I don't know; they just got them there.

15,574. Do you not get a month's advance when you leave?-We get a month's advance now. We don't get the money before we leave, but we get a ticket to be paid three days after the ship sails. We generally give it to the agent, and get a little money on it, but not to the full amount of the advance.

15,575. Do you not leave that ticket at home?-Some of the men leave them at home, and the value of them is got afterwards.

15,576. Why do you not do that?-Because I may want the money before I go away, and I get a part of it from the agent.

15,577. In that case you have to leave your ticket with the agent?-Yes, we have to give it up to him.

15,578. Do you not get allotment tickets when you leave?-I don't know them.

15,579. Can you not get half-pay tickets if you want them?-Yes.

15,580. Is it not the practice to get them?-Sometimes they get them if they ask for them.

15,581. Do you take them?-No.

15,582. Why?-I don't know. We generally just get what we want in money or in goods, as we ask for it.

15,583. Do the agents give these half-pay tickets whenever they are asked for?-Yes.

15,584. Would they prefer you not to take them, but to take goods instead?-I don't know about that. I have not been told so.

15,585. Did you hear the evidence of Francis Gifford?-Yes.

15,586. Do you think what he said was generally correct?-I think so.

15,587. Was he correct in what he said about a man who was in debt to the agent getting a berth more readily than another?-Yes.

15,588. Have you known that in your own experience?-I got a ship when I was in debt in my second year.

15,589. Do you think you got it more easily because you were in debt?-I cannot say for that.

15,590. Have you heard men speaking about getting a ship more easily when they were in debt?-I have heard them talking about it, but still I don't know about it myself except on that one occasion.

15,591. Have you known any case like that which Francis Gifford mentioned, of inferior men being put on board a ship because they were in the agent's debt, in preference to better men?-I never knew of that, but still it may have happened. I wish to say that in 1866 I shipped in the 'Diana' of Hull, for the west ice in Davis Straits, and when we were out I was beset in her for thirteen months, and for seven months we were on short allowance. We have never been paid for that short allowance, although the men in Hull were paid for it.

15,592. Have you applied for that?-There is a man here who has applied for it. I think he applied to Mr. Charles Duncan, writer, and also to the sheriff.

15,593. Who was the agent from whom you thought you should have got it?-Mr. Leask.

15,594. Did you apply to him for the difference which you ought to have got in consequence of being put upon short allowance?- Yes; and he told us it was no use applying for it, because he did not think we would get it. I never asked Mr. Leask about that myself, but other men in Lerwick have done it.

15,595. Did they mention to him that the Hull men had got the difference paid to them?-Yes.

15,596. Did Mr. Leask offer to do anything for you in that case?- Not as far as I know; but I was away from home at the time when the men applied for it.

15,597. Do you think that has anything to do with your dealings at Mr. Leask's shop?-I don't think so, but I suppose Mr. Leask could have applied for it if he had liked.

15,598. Had you an account with him that year which you settled as usual at the end of the season?-Yes.

15,599. Did you not apply for the difference on the short allowance when you were settling that account?-Yes. They told me then that they did not know but what they might get it for us, but still they did not say that we would get it, and it has not come yet.

Lerwick, January 30, 1872, WILLIAM LAURENSON, examined.

15,600. Are you a seaman living in Bressay?-Yes. I have been at the sealing and whaling for thirty-six years. I have got settled, and got my wages paid to me at the Custom House for some years back, but that was not done when I first went.

15,601. Before you were paid at the Custom House, did you not get payment of your wages?-I got no satisfaction of them. I very often did not see an account. I would come over from Bressay two or three different times wanting to get settled, but they would shove me off time after time, giving me perhaps 10s. or £1; but they would not settle with me.

15,602. Were you owing an account for supplies at that time?- I got supplies from the shop when I went on the voyage, but I always had balances of money to get. I never was in debt.

15,603. By what agents were you treated in that way?-They are long dead now.

15,604. Did that not continue till 1867, when the new regulations came into force, according to which you were paid at the Custom House?-Yes; the system continued much the same until then.

15,605. Were you put off in the same way from time to time down till 1867?-Yes; perhaps getting £1 or 10s. now and again.

15,606. What agents were you engaged by, five or six years ago?- I was engaged by Mr. Tait, and I was three years for Mr. Tulloch; but I was paid at the Custom House then.

15,607. Were you often engaged by Mr. Tait before 1867?-I would be engaged by him perhaps two years at a time, and then I would leave him and go to another, and then go back to him again.

15,608. Who else did you engage with?-I went out a long time for Messrs. Hay, and I was with Mr. Leask too.

15,609. When you went, until five years ago, to get a settlement of your account, were you always put off with £1 or 10s., or some supplies, if you wanted them?-I was put off now and again.

15,610. Did all the agents who employed you treat you in the same way?-Almost every one.

15,611. Did you not get a settlement with Messrs. Hay when you asked for it?-Yes; I got a fair settlement with Messrs. Hay when I went out from their shop.

15,612. Were you ever put off in the way you have mentioned when you were engaged by them?-No; and I was engaged by them for ten years.

15,613. When you went to Mr. Tait, did he settle with you when you asked for it, even before the new system?-Yes.

15,614. Did he ever put you off in that way?-No. I was out of his shop when his father was alive, and he settled with me in the same way.

15,615. Had you ever to ask him twice for your money?-No.

15,616. Did you get a settlement whenever you went there for it?-Yes.

15,617. Did you always get your money in full when you went over to ask for it from Mr. Leask?-I got what was due to me; but I generally had some things out of the shop before I went, and then I got the balance.

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15,618. Could you always get it at once without any difficulty?- Yes; I just asked for it and I got it.

15,619. Then who were the agents who put you off in the way you mentioned?-They are all dead long ago.

15,620. I thought you said the system of putting you off in that way, and of giving you £1 or 10s. at a time, continued till about five or six years ago?-Sometimes it did, and sometimes not. Some years I never got a fair account, and in other years I did.

15,621. But you always got a fair account from Messrs. Hay?- Yes.

15,622. And from Mr. Leask?-Yes.

15,623. And from Mr. Tait and Mr. Tulloch?-Yes.

15,624. What agents were there besides these, five or six years ago?-It is far longer than five or six years since I was put off in that way, and did not get the settlement when I wanted it.

15,625. Will it be ten years since you asked for your money and did not get it?-It will be ten years, or above that.

15,626. Will it be fifteen or twenty years ago?-It will be from fifteen to twenty years.

15,627. Are you a harpooneer or a boat-steerer?-I am a boat-steerer.

15,628. Did you hear the evidence of Francis Gifford?-Yes.

15,629. Do you think he was generally correct in what he said?- Yes. I know quite well that men who were in debt to the agent could get a ship sooner than I could, who was clear with them.

15,630. Could a man do that although he was not so good a seaman?-Yes.

15,631. Was that a general belief among the men?-Yes. For my part, I never was indebted to any of the agents, and therefore I got a ship whenever wanted it.

15,632. Did you get a ship because you were not in debt?-Yes; it did not matter. I stayed in one ship for a long time.

15,633. Were the agents more willing to get a berth for a man who was not in their debt?-No.

15,634. Did they prefer to engage a man who was in their debt?- Yes; but there were not very many that would be in debt. Perhaps a young hand, who had been a year or two only at the whaling, and had small wages, would be in debt, and they would take him next year in order to clear off the accounts which he had left the year before.

15,635. Do you think the green hands were ready to get into debt in order to make sure of getting a berth next year?-I don't know about that.

15,636. Then what did you mean by saying that you never were in debt, and therefore you always got berth when you wanted it?-I only meant to say that always got a ship when I wanted one, but that I never was in debt to the agents; and therefore I cannot prove whether they would take me more readily if I was in debt.

But I have heard the men saying that those who were in debt would be shipped as soon as the others.

Lerwick, January 30, 1872, ELIZABETH MORRISON, examined.

15,637. Do you live in Lerwick?-Yes.

15,638. What do you do?-Anything that I can. I go errands or knit stockings, or anything of that sort.

15,639. Do you sometimes go about selling things?-I have sold three or four neckties to different people.

15,640. Do you not sell other kinds of goods?-No. If I sell anything, it is of my own.

15,641. Do you sell shop goods of different kinds?-No.

15,642. Do you mean that you do not go about the country and hawk goods?-I don't do that.

15,643. Did you ever get any shop goods from a knitter for the purpose of selling them or exchanging them for other things?- No; the neckties I sold I got ready money for.

15,644. It is not neckties I am speaking about at all. Have you not sold goods that you had got from knitting women for that purpose?-No, not for some years past.

15,645. Did you once do that?-Yes, some time ago.

15,646. How long ago?-I cannot remember.

15,647. A year ago?-It is about that.

15,648. Did you not make a living sometimes by getting goods from knitters and selling them again in the country?-No; I never was out of Lerwick in my time.

15,649. Did you sell them in Lerwick?-I sold some bits of dribblets of things that were not worth mentioning; but that was some time ago.

15,650. What was it that you sold?-It may have been three yards of cotton, or such as that.

15,651. Did you get such things pretty often from knitters?-No, not often.

15,652. When did you get them last?-It was a long time ago.

15,653. Was it six months ago?-It would be above that.

15,654. Would it be twelve months since you got anything of that kind to sell?-I cannot say.

15,655. You said you had perhaps sold three yards of cotton: whom did you sell it for?-I cannot remember.

15,656. Whom did you get it from?-I cannot remember.

15,657. Have you got it more than once?-Perhaps once or twice; but it is a long time ago now.

15,658. Do you think you may have got it three or four times?-I don't think I did.

15,659. What else did you get besides the three yards of cotton?- Nothing.

15,660. Did you never get a bit of cloth for a dress?-No.

15,661. Or a jacket?-No.

15,662. Or a pair of boots?-No.

15,663. Did you ever get any tea or sugar to sell?-No.

15,664. Do you swear that?-I do.

15,665. Do you swear that you never sold a quarter pound of tea in your life?-I do.

15,666. Did you never sell any sugar?-No.

15,667. Did you ever buy any except out of a shop?-I never bought any except what I bought out a shop for my ready penny.

15,668. Did you ever tell anybody that you had sold things for knitters?-No, I could not tell any one that.

15,669. Did you get that cotton from a woman who had got it for her knitting?-I don't know in what way she may have got it, but I got it from a woman. Who she was I cannot say, because she picked me up in the street and gave it to me.

15,670. Did you get it sold for her?-I did. I don't remember who bought it; it was some country person.

15,671. Do you not remember who the woman was that you got it from?-I cannot remember.

15,672. Did you know her?-I did not know her.

15,673. In what way did she ask you to sell it for her?-She asked me if I could get anybody to buy it, and I saw a country woman at my side, and she bought it.

15,674. Why did the woman ask you to get it sold?-I don't know.

15,675. Had you never seen her before?-Neither before nor since.

15,676. Have you any idea why she asked you to sell it?-No, I have no idea of that.

15,677. Do you think she had ever seen you doing the like before?-There is many an old person such as me who does errands for many a one.

15,678. Have you done errands of that kind at other times?-Yes, years and years ago.

15,679. May you have done so a good many times?-I don't know. It was very seldom I did it.

15,680. What did you get for that cotton?-I cannot remember now.

15,681. Was it money you got for it?-Yes.

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15,682. Did you pay the woman you got it from at the time?-Yes.

15,683. Had you not paid her for it before you sold it?-I gave her the money just as I got it from the woman at my side.

15,684. How long was it between the time when you got the cotton and the time when you sold it?-Perhaps a minute or five or ten minutes. The woman was just at my hand who bought it.

15,685. Why could the woman who gave it to you not have sold it herself?-I don't know.

15,686. How much did she give you for selling it?-A penny.

15,687. Did you ever get a penny for selling anything else?-No; I don't work in that way for my living.

15,688. Are you sure you never got a penny for selling any other article for a woman?-I have got many a penny at different times, but not in that exact way.

15,689. What else do you do for your living?-I live very meanly.

15,690. But do you never get any more than a penny for doing an errand now and then?-I have no idea of doing errands only for my living.

15,691. Is there anything else by which you make a living, except by going errands?-I am not going errands for ever. I sometimes sit and knit a stocking in my own room; that is all I do.

15,692. Do you sell your stockings?-No; they are just for myself.

15,693. Then they will not make it living for you?-No; but perhaps some of my friends might lift a hand to help me.

15,694. Do you live on charity?-Not altogether on charity.

15,695. You do run an errand for a penny now and then?-No, not I.

15,696. Why are you reluctant to tell me the truth?-I am not denying the truth.

15,697. You are not willing to answer my questions: why is that?-I have answered them so far as I know, and as far as I am able. I have no more to say than I have told you, and I have told you all the truth.

15,698. You say you do not make your living by charity, and you only get a penny now and then for running errands, but that is very seldom: is there any other way in which you make your living?- When a person wishes to lift their hand to me in charity, I take what they have to give me.

15,699. Do you swear that you don't make the principal part of your living by selling things in the town?-I don't make my living by that.

15,700. Do you swear that you don't sell something every day?-I don't sell something every day.

15,701. Don't you sell two or three things every week?-No; I am quite sure of that.

15,702. Have you sold anything this week?-No.

15,703. Did you sell anything last week or the week before?-No.

15,704. Did you sell anything last year?-I cannot remember what I did last year, for my memory is quite gone.

Lerwick, January 30, 1872, WILLIAM B.M. HARRISON, examined.

15,705. Are you a partner of the firm of Harrison & Sons?-I am.

15,706. Your firm, I believe, are extensively engaged in the Faroe fishing?-Yes.

15,707. In what form is the agreement you enter into with the men for that fishing?-The men agree, in the first place, to prosecute the fishing in a certain vessel, and to join the vessel any day when we may call upon them to do so, and proceed to the fishing to either Faroe, Iceland, Rockall, or any other place that the master may think most expedient, and to stay there as long as the master thinks fit, with the exception of the trips they may make home for landing any fish they may catch, or in case of accident or for any other good reason; in consideration of which services the fishermen have to receive one half of the proceeds of the fish caught, after deducting the expenses of curing, etc., such as master's premium, 10s. per ton, mate's premium 2s. 6d. per ton, and the cost of bait required for catching the fish. Along with that the men have to get eight pounds of bread per man per week and 9d. per score for the fish which each man takes, one half to be paid by the owners and the other half by the crew. That is the substance of the agreement. And then there are clauses for our safety, having reference to damage that may be done to the vessel or her gear, which the men bind themselves to pay for.

15,708. Is there a scale of victualling for the men in case the vessel goes to Iceland?-Yes. The agreement binds the men to fish according to it until the 20th August; and the next clause says that if the master or owner sees fit to leave Faroe for Iceland or for a late voyage, then the men agree to go upon the victuals and wages which are stated in the agreement.

15,709. Then in addition to the stipulations in the agreement, I understand the owner receives a commission of five per cent. on the whole proceeds of the voyage?-He is entitled to get it if he can, but very often we don't get it. This year we have got nothing.

15,710. Was that because the men objected to it?-We always try to pay as high as other people; but this year we have not made such good sales, and therefore we have not taken anything off, so that we might be able to give as much per ton as other people give. In other years, again, we may get two and a half or we may get five per cent, just as the fish sales turn out; and the men don't object to us getting it if we can.

15,711. Why is there no stipulation for a commission put into the agreement?-It has never been put into our agreements from the first.

15,712 Is it a usual thing to take it?-Yes, it is quite usual if we can get it; but we have to bear and haul with other people, and if the men would be dissatisfied with us taking it we have to give it up, and we would rather do so than have any words about

it.

15,713. Was this not a good year in the Faroe fishing?-No, very indifferent.

15,714. What was the amount of a share in one of your smacks with an average take this year?-I should say about £18.

15,715. Was that sum larger than the ordinary, or would some of them be less or more?-We had some of them as high as £28 for a sharesman.

15,716. Were these in the larger smacks?-No; there were others as large, but less fortunate; and there were some of them much smaller, and they could not be expected to do so well.

15,717. Do the men ever ask for or get a sight of the bills of sale?-Yes. I have shown them to the fishermen this year.

15,718. Had you ever shown them to them before?-Yes. I had not shown them to every man, but I had shown them to the captain, who I expected would have more knowledge of the matter than the other men.

15,719. Do the men generally run accounts at your shop?-Yes; every one of them has an account.

15,720. Do you think they get most of the supplies for their families during the season from your shop?-I think they do. Perhaps there are two or three of them who want to look after their means better than the rest, and who have money lying beside them: these men may perhaps buy goods with cash, and not from our shop; but, as a rule, every one of them gets his supplies from us.

15,721. I believe the majority of your men are not in debt to you at settlement, but have a balance to receive in cash?-Yes. I think there are very few this year, and there were very few last year, who were in debt; and even with these men the amount of debt is very small.

15,722. Do you think the amount of debt was smaller than usual in the two years for which you have given [Page 396] returns, 1867 and 1871, or was it about an average?-That depends altogether upon the fishing. If it is not a total failure, the men are generally all clear of debt; but if a bad year comes in, then we cannot expect that.

15,723. How do you account for the fact that the men almost all take their supplies for the season from your shop in an account with you?-If they have no money, it is not likely that other people will give them supplies, unless they know them very well; and even if they have money, I always find that the men prefer to keep it and come to the shop again and take up goods.

15,724. Do they keep the money in their hands rather than pay for the goods in cash when they get them?-Yes, invariably. I have frequently noticed that practice among the men, and I have spoken to them about it. I have paid as much as £20 to a man at settlement, and then he would come into the shop and take out his outfit. I have asked them why they did so, and told them it would be better for them to pay for their goods with their own money, and then they would know what they were doing.

15,725. What was their answer to that?-They said they preferred to keep the money. It was always in their hand, and the goods could stand over for a year; and perhaps, if the next year's fishing is bad, they think we will allow it to stand for two years rather than push them for the price.

15,726. Would the men not get their goods cheaper if a system existed of paying in cash?-I don't think they would.

15,727. They might not get them cheaper as matters stand at present; but if they were, all willing to pay in cash, would it not be possible for you to give them their goods cheaper than you supply them upon credit?-I would not sell cheaper for cash. The goods are all marked in figures, and when they are paid for in cash they are charged at the same prices as when put down to the account. We have not two prices for our goods.

15,728. What proportion does your cash trade bear to your credit trade?-I should say that it is more than one third, but not one half.

15,729. In the answers you have given, are you speaking of the Faroe fishermen in your employment, or are you also referring to the home fishermen?-I have been speaking of the Faroe fishermen principally.

15,730. Where are the men employed by you in the ling fishing?- Most of them are situated in Sandwick parish.

15,731. Have they also accounts in your shop here?-Most of them have.

15,732. But not to the same extent per man as the Faroe men?- No; but we know exactly how much they are likely to gain, and therefore they are not allowed to exceed a certain sum.

15,733. Do you limit the credits of the men employed in the home fishing?-They limit their credits themselves, because they are grown-up men with families, and they know how far they should run their accounts. Of course, if they were running them further, we would limit them; but we rarely have to do that, because we know they must have the little which they do get.

15,734. Is not that the case with the Faroe fishermen also?-Yes; we limit them too.

15,735. But I understand you to say that the necessity for limiting the home fishermen is greater than in the case of the Faroe fishermen?-Yes.

15,736. Why is that?-Because I consider the home fishing is not so good a fishing: the earnings from it are not so great.

15,737. You said you knew quite well what the men are likely to earn in the ling fishing?-Yes. I can tell from my experience the outside which any ling fisherman can earn.

15,738. Do you know that before the season begins?-Yes. By taking five or six years together, I can see what a man has done in time past, and I don't expect that he will exceed it.

15,739. Do you think that any five years of a fisherman's life will give an average from which you can calculate his probable take for next year?-Yes; I think five years is quite sufficient.

15,740. The variation, I suppose, arises from the nature of the season?-Yes; in stormy weather they cannot go to sea so often as in good seasons, and in other times the fish do not come over the ground so well as they did before. Another thing is the herring fishing, which is connected with the ling fishing, the same boats being used for both purposes.

15,741. Are you engaged in it extensively?-No, not very extensively. I think we have about 10 or 11 boats altogether which fish in the herring fishery.

15,742. Is the engagement of the fishermen in the herring fishing similar to that which exists in the ling fishing?-It is exactly the same.

15,743. They are paid according to the current price at the end of the season, and that price is settled for at the same time as the price for the ling fishing?-Yes; they are both settled for together.

15,744. Do the returns which you have furnished with regard to the home fishing include in any of the answers the earnings from the herring fishing?-Yes; they apply to both ling and herring put together. In fact they apply to everything that the man has earned in the years to which the questions relate.

15,745. Do you think it would be practicable to introduce a cash system into Shetland in place of the annual settlements which now exist?-It would be better for the curer. I don't know if it would be better for the fishermen altogether. I think it would be better for perhaps one half or two thirds of them; but the other third, I am afraid, could not get on at all with the cash system.

15,746. Do you think they would have a difficulty in living over the first half of the year?-Yes; over winter or spring, until the fishing had commenced.

15,747. Do you think it would be impossible for them to get advances during that time in order to keep them going?-If they were to be paid in cash, the fish-curer of course would not give them anything until they brought the fish to him, and other people would be inclined to say the same thing. The man would merely have to be trusted like any other man going into any shop and purchasing goods on his own credit.

15,748. But, except for that difficulty, you would prefer a cash system?-I would.

15,749. Do you think there would be any difficulty in carrying out that system, supposing it were once begun, the men had tided over that transition period?-I think there would be none whatever.

15,750. Would it be possible to pay the men fortnightly or monthly, or at delivery?-I would pay them weekly.

15,751. Would you pay them the whole proceeds of the fish caught during the week?-I would pay them exactly for every tail they landed. I would fix a price with

them at first, before they began to the fishing at all; but that price might be altered weekly, according the markets went up or down, the same as in any other trade.

15,752. Do you think the fishermen would agree to that?-We have asked them to agree to it, but they have not done so.

15,753. Was that because they did not like to have the price fixed and thus lose the chance of a rising market?-It was not so much the fixing of the price that they objected to. They would have agreed to that, but some of them who did not know where to find means said, 'What are we to do if we get no cash for a week or two in stormy weather, and we cannot go off; the merchant cannot supply us then.' Of course they could not expect us to supply them with anything after we had commenced with that system.

15,754. If the man was bound to fish for you, would you not be willing to give him supplies?-But they would not be bound to fish at all in that case.

15,755. But the men might be bound to fish for you all the season, although they were paid weekly?-I would not care to engage anybody then for the season. I would have a station at a certain place, [Page 397] with weights there, and I would pay for the fish as I got them.

15,756. Was that the nature of the offer which you made to the fishermen, and which they would not accept?-Yes. We would have no hold over the fishermen in that case at all.

15,757. Would it not be quite practicable to engage the men for the whole season and to pay them weekly?-It would be quite practicable.

15,758. Have you made an offer to them of that description?- Yes; we have made an offer to some fishermen who fish for us now.

15,759. Did you offer to engage them to fish for you for the whole season?-Yes. If they commenced, they would never think of changing.

15,760. In that case would there be any reluctance on the part of the fish-curer to make an advance to the men in a bad week if they were bound to fish for him over the whole season?-I should not care to do it because they might get no more fish after a certain date. At the end of the year the weather is very often such that the men cannot go off for weeks, and we might be advancing on the prospect of what never came, and then the men would be in debt.

15,761. In the case you refer to, were the fishermen not willing to accept your offer?-They were not willing.

15,762. Do you think it would have made any difference in that respect if the offer had been to pay a proportion of the price-say a minimum price of 5s. 6d. or so for ling-and that the balance should be paid according to the current price at the end of the season?-I don't know how that would do. I never spoke about that with the men. I think that would be giving them two chances. It would be giving them the cash, and then giving them the full value of the market after I had paid out my cash so much sooner than I would otherwise have done. When a thing is sold, it is sold, and you

take your chance either to lose or to gain, but in that case the fishermen would have the cash in their hands, and they would also have the chance of benefiting by a rise in the price.

15,763. But in other trades, merchants have to lay out their cash in wages and take their chance of a return?-Yes; and I would do the same.

15,764. You would do the same if the men were paid wages, but would you not be prepared to make part of the wages dependent upon the market price of the fish?-No. I hold that in a business transaction, if a party agrees to sell, and you agree to purchase, the one takes his chance, and you take your chance too. That would bring each party to an understanding of how matters stood between them. If it was the practice altogether to purchase the fish green, and to pay for them in money, there would be so many people in competition for them that the men would be sure to get the full value, because, if I gave 6d. more, another man would be sure to give 6d. more if he could afford it, and the men would not lose by that. The fish would go up to the very top price, and the men would reap the advantage.

15,765. Do you think there would be always two or three competing merchants at each station?-Certainly there would. The stations are only half a mile apart; and if one man would not offer the price, another would do so.

15,766. Are your curers paid by weekly wages?-We have one curer paid by weekly wages.

15,767. Do you cure by contract?-Yes, as well as by wage.

15,768. How many people are employed in your curing establishment during the season?-I cannot say, because some go on for a week or two, and others go on at the end of that time; but we will have as high as forty and as low as twenty people who are not off work.

15,769. How are these people paid?-They are paid weekly by a daily wage on Saturday night.

15,770. Do they receive payment of their whole wages in cash?- Every penny.

15,771. Are they paid in cash even if they have had out-takes during the week?-They have no out-takes; we don't give them.

15,772. Is yours the only establishment in Shetland, so far as you know, where that is the practice?-So far as I know, I believe it is; but I am not certain. The only other one where I thought it was done was Leask's; but I happened to be present last day when Mr. Robertson was examined, and I heard him say that they did give credit, which I did not know before.

15,773. Has it been long the practice in your establishment not to give credit to your weekly workers?-It has been the practice for about five years.

15,774. Have you found it to facilitate your transactions very much?-Yes; and it was for that reason we gave up the practice of giving credit. When we first commenced to cure at Bressay, we paid by weekly wages; but the people usually

wanted some advances before the Saturday night, and we found in a short time that we were losing money by bad debts while a great deal of time was involved in settling with them on the Saturdays. In fact it took up so much time, and caused so much trouble, that we stopped it altogether.

15,775. How did the bad debts occur?-The girls wanted to take up clothing, and on Saturday night they required food for another week, and we found they took up too much.

15,776. Have you found that the people are now contented with the system which you have introduced?-They are quite contented.

15,777. They don't come to you wanting out-takes?-Never.

15,778. Do you find they get on quite comfortably under the present system?-Yes. What took us hours before to settle, we can settle now in the course of half an hour.

15,779. Don't you think the fishermen might manage to get on under the cash system if it were introduced in the same way that you have done with your workers in the curing establishment?- The fishermen are different thing. The fish have first to be caught before they are paid for; whereas, in the other case, the people are engaged for a weekly wage, which they are certain to get.

Lerwick, January 30, 1872, CHARLOTTE JOHNSTON, examined.

15,780. You live at Colafirth, near Ollaberry?-Yes.

15,781. How long have you lived there?-I was born at Colafirth, but I came to Lerwick when I was 25 years of age, and I was here for 17 years.

15,782. What did you do in Lerwick?-We kept a few boarders and lodgers.

15,783. What do you do now in Colafirth?-I have been employed scouring or dressing hosiery for the most part, and I generally had to go to one man with it for 10 years, except two months. I commenced on 1st. June 1861, and stopped on 8th April 1871.

15,784. Who did you dress hosiery for?-Chiefly for Mr. Morgan Laurenson, Lochend.

15,785. Do you also knit?-Yes.

15,786. Were you always paid for that in goods?-Yes.

15,787. Did you get them at Mr. Laurenson's shop at Lochend?- Yes.

15,788. Do you also deal sometimes at the shop at Ollaberry?- Yes.

15,789. Have you an account there?-Yes. I have had a good many accounts. I think the first account I had with Mr. Laurenson was in 1863.

15,790. Were these accounts settled regularly?-No; that was the mistake. I wanted to settle regularly after a few months, when I got home perhaps from 10 to 20 dozen, but he ran on the accounts for perhaps 14 or 15 months, so that I did not know whether I was going ahead or going back.

15,791. This account [showing] was settled on [Page 398] December 31, 1864: 'By contra., £7, 10s. 9d.' What was that due you for?-I had scouring, and I had two tatted rugs, and I knitted cloth.

15,792. I see the account is settled again on March 31, 1866: were you still working at the same things?-Yes.

15,793. The work you did was put at the end of the book?-Yes.

15,794. The book you have shown me is a very carefully kept pass-book, is it not? Is there anything wrong in it?-I was not satisfied, and therefore I kept it.

15,795. Why were you not satisfied with it?-I thought he charged me too much for my groceries, and gave too little for my dozens of scouring.

15,796. Could you not have fixed your price for your scouring yourself?-No, I did not get the chance. He did it all himself, because he had both sides of the question.

15,797. But you had no need to work for a less wage than you thought was fair. Could you not have gone somewhere else with your work?-He always thought I should work to him. I could have gone to many a place else, and got work and been paid for it what I thought was a fair price, but he thought I should still have to stay and work for him.

15,798. Why did he think so?-I suppose he thought he got as well done to by me as he could have got done to him by another.

15,799. But he could not oblige you to do anything you did not choose to do?-When I would refuse to do what he wanted me to do at a time when I was up myself, he would send the things to me in a box to be done.

15,800. But you did not need to dress the goods unless you got what you thought was a fair price for them?-I had to do it, because I had to work for my own maintenance.

15,801. Are the pass-books you have produced the only pass books you have?-Yes.

15,802. The next one is for 1868 and 1869. Is with Mr. Laurenson too?-Yes.

15,803. It is only brought down to October 1869. Have you had no pass-book since then?-No; I wanted to stop work then because I was not well.

15,804. Have you got no supplies from Mr. Laurenson since 1869?-Yes; I have got an account of them. [Produces account.]

15,805. When was the account settled last?-I think it was in April or May 1871; perhaps it may have been in June.

15,806. On May 16, 1870, I see you are charged 8d. for oatmeal: how much was that for?-4 lbs.

15,807. Were you told at the time you got it what the price of it was to be?-No; I did not know at the time how much it was to be.

15,808. On June 27 you are charged 2s. for tea: how much was that?-Half a pound.

15,809. Do you buy 4s. tea at Lochend?-We have bought 5s. tea at Lochend, but that was in 1863.

15,810. Is it very fine tea that you get at 2s. per 1/2 lb.?-We ask for the best that is in the shop.

15,811. Are you quite content with the quality of it?-We must just take it as it is, because we have no means of going anywhere else. I have a sample of it here. [Produces sample of tea.]

15,812. Is that 4s. tea?-No, it is 4s. 4d. tea. That [producing line] is the line they gave us for the goods we got on the 22d of this month. [Witness produces line in the following form

s d By hosiery 2 0 Tea 1 1 0 11 Rice 0 31/2 0 71/2 Sugar 0 21/2 0 5

s d 0 5 Soda 0 1 0 4 Soap 0 11/2 0 21/2 Cloves 0 1 0 11/2 Sugar and tobacco 0 11/2

15,813. Where do you say you got these goods?-At Lochend, from Mr. Laurenson.

15,814. You took him 2s. worth of hosiery?-Yes.

15,815. How much tea did you get for 1s. 1d?-A 1/4 lb.

15,816. How much rice did you get for 31/2 d?-1 lb.

15,817. How much sugar did you get for 21/2 d?-1/4 lb.

15,818. Did you pay him 21/2d. for it?-Yes

15,819. Was that loaf sugar?-Yes; I have a sample of it.

15,820. How much soap did you get?-The soap was 6d. per lb. [The witness here produced a sample of the tea for which she had paid 1s. 1d. per 1/4 lb.; a sample of the loaf sugar for which she had paid 21/2d. per 1/4 lb.; a sample of the rice for which she had paid 31/2d. per lb.; a sample of the soap for which she had paid 6d. per lb.; and a sample of flour for which she paid 2d. per lb. These were all docketed by the clerk as having been produced by witness, and purchased from Mr. Laurenson's shop at Lochend.]

15,821. Did Mr. Laurenson know that you were to bring these goods here?-No.

15,822. Did you get them for your own use?-Yes.

15,823. Were you asked by your summons to bring them here?- Yes.

15,824. Are the articles which you get at the shop at Ollaberry of the same quality as you get at Lochend?-Mr. Irvine, who keeps the shop there, is very kind to me. If I want all cash at any time, he gives it; and Mr. George Henry and Mr. William Smith have also been very kind to me. They would give me cash at any time on my hosiery if I asked for it.

15,825. Are you quite sure that the samples you have produced were got at the same price that is charged for similar goods in your account by Mr. Laurenson?-The prices in the account are those which are charged when the goods are given for work, but the samples I have produced were given in exchange for hosiery.

15,826. Are there two prices for goods at that shop?-Yes, they always charged two prices. When we pay for goods in hosiery, they are always above the price which is charged when cash is paid for them.

15,827. Do you get the goods cheaper when you pay for them by your work, such as you are dressing, than when you are selling hosiery?-Yes. The price is then perhaps 1d. less for the 1/4 lb. of tea.

15,828. How do you know that?-Because I see it marked.

15,829. Was the tea for which you were charged 4s. 4d., when you paid for it by hosiery, the same tea that is charged 4s. in the account?-I think so.

15,830. Are you not sure of it?-I did not see them take it out of the chest. I asked them for the same tea, but I don't know if they gave the same kind.

15,831. But did you ask for the best tea in the shop in both cases?-Yes, I always do.

15,832. Then all you know is that you asked for the best tea in the shop, and it was charged 4s. 4d. when you gave hosiery for it, and it was charged 4s. when it was put into your account for dressing?-That is all I know; but it is a very short time since it was 4s. 4d. It was always 4s. 8d. before.

15,833. I see that on September 29, 1870, you are charged 1s. 6d. for oatmeal: was that a peck?-Yes.

15,834. Were you paying 1s. 6d. for the peck of oatmeal at that time?-Yes; and I suppose there were others paying it as well as me.

15,835. Would you have paid the same for it in any other shop in the neighbourhood?-No. It was dearer [Page 399] than if I had had the cash and gone into another shop to get it.

15,836. What did you say when you went to Mr. Laurenson with the hosiery which you sold to him on the 22d?-It was my sister who went, not me.

15,837. Did she tell you what she said?-I don't think it.

15,838. Are you quite sure your sister did not say what the goods were wanted for?-I told her what goods to ask for, and she got what I told her to get.

15,839. Did you tell her what you were to do with them?-No; I had not got the summons then.

15,840. Would you have got these goods from Mr. Laurenson even although you had not got the summons?-Yes.

15,841. Did you want them for your own use?-Yes. I got them on the Monday, and I did not get the summons until the Tuesday night.

15,842. You have not brought the whole of the goods which you bought then. You have merely brought samples from what you bought?-Yes. I was only told in the summons to bring samples.

15,843. Was the note which you have produced, given in the shop at the time when the goods were bought?-Yes. The shop lad marked down the things on that slip of paper and gave it to my sister, so that she might show me what she had got, and what the prices were.

15,844. You have handed me a letter from one Laurence Clark, dated 25th January 1872, in which he says, 'I have to inform you that I built Miss Charlotte Johnston a house in 1863, and I could not get 1s. from her, because she wrought all her work to Mr. Laurenson, at dressing hosiery, and could not get so much cash as 1s. Therefore I had to take anything that she had to give me, that could do me any good. That kind of payment is not so good as cash.'-For what purpose was this letter written?-It is merely a line from the man who built my house, to show that I could not get cash with which to pay him.

15,845. What did you pay Clark with for building your house?-I got meal, tea, tobacco, sugar, and anything that was in the shop at the times which he required; but I had to reduce the goods to him to cash price, because he would have required his money of me, and I did not have it to give him.

15,846. What was the price charged for building your house altogether?-He charged 15d. a day and his food; I think it came to about £2.

15,847. Did you give him a great deal more in goods, according to the price which was charged to you for them?-Yes. I gave him six yards of cloth for jacket, and other things.

15,848. I see there is a lot of tobacco entered in your book about 1863?-Yes; that was for the men who were working at the house.

15,849. When was the house finished?-It is about eight years in October since it was done.

15,850. I see there is some tobacco in December 1864. Was your house finished before then?-No. It was finished outside, but not inside. We went into it in October, but the windows were not in, and it was two years before I was able to get the flooring put in one of the ends of it.

15,851. Did you give him a little tobacco every now and then until it was finished?-Yes; but he got other things besides tobacco.

15,852. Does that account for the entries of tobacco in August and September 1865 in your book?-Clark was paid by that time, but I had to get my house thatched.

15,853. Was it not to pay him that you got that tobacco?-It was either to pay him or some one else who was working for me. I did not have any money; and when any one did any job for me, I had to pay them in some way or other.

15,854. What did you give them besides tobacco?-I sometimes had a few dishes that they required, and they took them or tea.

15,855. Does that account for there being so many entries of tea in your book?-Yes. I got wool and potatoes for tea.

15,856. At the settlement in July last there was a balance due by you to Mr. Laurenson?-Yes.

15,857. Have you not been working to him since?-I was not able to work.

15,858. About a month ago you got a notice from him that you would be summoned to court unless you paid the balance of your debt, 14s. 31/2d?-Yes; but I did not expect that I should have had anything to pay.

15,859. Did you think the balance was in your favour?-Yes, I expected that.

15,860. But you were running up an account, and you did not know?-Yes, but that was not my blame. I always wanted a settlement; and if he had paid me for my work and my goods, I would not have been due him anything.

15,861. When did you leave home?-I left home on Thursday, and came by the steamboat. I did not go on board of her at Ollaberry until Saturday night, but I had left home two days before, and had to wait for her.

15,862. How old are you?-I was fifty-two in July.

15,863. You are not in good health, and you are not able to walk a long distance?-No. I cannot walk far on account of the rheumatics.

15,864. Have you any idea when you will get home?-No.

15,865. Do you intend to go back by the steamboat if you can?-If the steamboat goes I will go with her but if not, I will have to stay until the packet comes back from Northmaven.

<Mr Guthrie>.-I have to give notice that I do not think at present that I shall summon any more witnesses to appear in Shetland; but there will be a meeting at half-past nine o'clock, and if any one wishes to make any statement, or to bring forward any additional evidence, he will then have an opportunity of doing so.

<Adjourned>.

LERWICK: WEDNESDAY, JANUARY 31, 1872.

JOHN GATHERER, examined,

15,866. You have been for a long time Collector of Customs at Lerwick?-I have. Before questioning me, I would like if you would allow me to make a brief preliminary remark or two which may render clear any after-evidence which you may call upon me to give. At the time when certain gentlemen tendered their evidence on Shetland truck before the Commission at Edinburgh, I read the brief, necessarily imperfect, and probably inaccurate reports of the same which appeared in the Edinburgh weekly papers. I also read some articles and letters which appeared in the newspapers at the time. About seven months ago I read, as printed I think in a Parliamentary blue book, the report of Mr Hamilton to the Board of Trade about the discharge of the Shetland whaling seamen at this port. I have never read the report since. On my return from the, mainland last summer, I found a gentleman had left in my house a copy of the evidence, as [Page 400] printed <in extenso> in a pamphlet form. I think the

pamphlet contained a report of Mr. Arthur Hay's adverse evidence; but I had not time to read it before I posted the pamphlet to a friend in the south. I therefore never read his evidence. Beyond a brief newspaper paragraph, which I read recently, I literally know nothing as to the evidence which has been given under the present inquiry. I purposely kept aloof from the same, and from inquiring about the same. I appear here very reluctantly on the present occasion, and, as you are aware, I would not have appeared at all had I not been cited. I have several reasons for this reluctance to appear: I will mention two of them. I entertain very strong opinions condemnatory of the truck system, which I believe prevails all over Shetland; but I do not wish personally to have anything to do with the matter, directly or indirectly. I think it is to be regretted that the question as to the mode of paying the whaling seamen should have been introduced at in the Edinburgh evidence, and complicated by being mixed up with the general question of truck. Both questions, I think, should have been treated separately, as they are the subject of distinct laws and regulations, these laws at the same time being administered by distinct departments. From what I have already stated, you will see that I have a very imperfect recollection of the statements in Mr. Hamilton's report, but I recollect my impression of it at the time when I read it. It was, that the statements in the report were essentially correct representations of what had taken place at one time or other at Lerwick. I have heard that some one has questioned the accuracy of some portions of his report. It might be liable to misconception in this respect. When he inspected my office, we talked generally over the objectionable system that had so long prevailed here in the mode of discharging and paying off the men. A great deal of this must have been patent and notorious to Mr. Hamilton, as a former resident in Shetland, and having subsequent intercourse with the same; and he may not possibly, in his narrative of this to the Board of Trade, have clearly separated some of the past and the suppressed practices of the agents, and those of more recent date. This would the more readily occur, as I have reason to believe that at the time he prepared his report he was not aware that I had over a number of years repeatedly and fully reported the whole matter to the Board of Trade. I have here with me a report relative to the discharge of whaling crews during the last year, and some returns relative to the same, and for previous years, which I hurriedly prepared with the view of sending to the Board of Trade by the mail, which I expected would have sailed yesterday. When preparing the same, I was not expecting I would have to give evidence on the subject. I do not wish to hand in the documents, but I may have occasion to refer to them.

15,867. You showed me these returns last night, and allowed me to see the report which you were sending to the Board of Trade?- I did.

15,868. You are satisfied, I presume, as to the substantial correctness of these returns?-Yes, of my own report and the returns. There is a difficulty in preparing them, from the time that has elapsed; but, as you are aware, I have asked them to verify the accuracy of them at the proper quarter.

15,869. Subject to that verification, you believe these returns to be correct?-Yes. They were prepared by myself and those in any office from the records.

15,870. Therefore, if any application should be made to the Board of Trade afterwards for production of these returns under this Commission, you have no objection to their being regarded as part of your evidence given upon oath?-None; and in continuation of the report, I will refer to the fact that I have been examined before you.

15,871. You are aware that before 1867 the wages of seamen returning from Greenland voyages and landed in Shetland were never paid at the Custom House?-In some cases they were, but very seldom.

15,872. Do you also know from your own observation, and from what you heard at the time, that those seamen were generally running large accounts with the agents, by whom they were secured for these sealing and whaling voyages?-I was aware of that from the statements of the seamen, themselves.

15,873. In numerous cases?-Yes, in numerous cases.

15,874. In almost every case?-I believe so.

15,875. In what way did these statements come to be made to you?-The seamen often came and complained to me that they were not paid off. It may perhaps be proper to explain that at that time, before the special Board of Trade regulations were issued, the masters should have come and paid off the seamen. I may add further, that I am aware that every means was taken by the agents to keep the masters of the Peterhead and Dundee vessels from coming and discharging their men in cases where it would have been attended with no inconvenience.

15,876. In what way did you become aware of that?-I got numbers of letters from the masters stating that they were unable to attend themselves with the men. These letters, so sent to me, were often written by the agents, but signed by the masters.

15,877. Did you know them to be in the handwriting of the agents?-Yes, or of their clerks; and on inquiring at the captains when they came back to engage men again, some of them told me that the agents desired them to do so.

15,878. Not to pay the men?-Yes, not to pay the men. In these letters they stated that they often wished the men to appear, but that they (the men) ran away home; which statement the men subsequently told was incorrect.

15,879. At that time, was the payment of these Greenland seamen at Lerwick subject to the same general regulations which were in force in other parts of the empire?-Yes. There were instructions to shipping masters at that time.

15,880. Were these the same regulations that are still in force in other parts of the kingdom?-Yes.

15,881. They are still in force everywhere, except in Lerwick?- Yes. They are still in force, except in the case of Shetland, Orkney, and the port of Stornoway. I may mention that the procuring of seamen, by agents was at that time, and is still in other places, illegal and punishable by fine-that is, according to the Merchant Shipping Act of 1854. I believe the mode in which they then acted would in the south be treated as crimping; and allow me to say also, that the offence was rendered greater by the fact

of the agents being merchants and supplying the men with goods.

15,882. I believe there is a prohibition of that?-Yes; and even licensed agents-that is, individuals licensed by the Board of Trade-are not allowed to be so if they have dealings with the men. That also is under the Act of 1854.

15,883. The regulation at the time you speak of, although it was not observed, was, that the men should be paid before the superintendent?-Yes, then called the shipping master.

15,884. That officer in this case was yourself, as there is no local marine board here?-Yes.

15,885. Why was the regulation not observed?-I am satisfied it was from the agents desiring to secure the profits on the supplies of the men.

15,886. Had you made frequent endeavours to enforce compliance with the Act?-Yes.

15,887. You reported repeatedly to the Board of Trade on the subject?-Yes. I may mention that, when I came here first, there was an attempt on the part of some of the agents to introduce their accounts into the men's accounts of wages, which I checked, and which I believe then led to the shipmasters not appearing.

15,888. That was many years ago?-It is a good many years ago. In some cases these accounts were introduced under the name of ship's accounts.

15,889. Was not that done as late as 1867, after the regulations had been modified? At least I was told that in some cases the agents had introduced their own accounts among the captain's stores in the ship's store-[Page 401]book?-I suspect that was done to a trifling extent, although I should not like to say decidedly that it was done.

15,890. Was there not a clause introduced in 1868 by which that was distinctly prohibited?-There were some defects in the regulations, and they were altered in order to meet the attempts made to evade them.

15,891. Since 1867 has the system been materially changed by the regulations then introduced by the Board of Trade?-Yes, materially.

15,892. The seamen now receive their full payment in cash in your presence?-They do.

15,893. Although not at the time required by the Act?-There is great delay in many cases.

15,894. That is said by several witnesses who have appeared here, to be due to the reluctance of the men to come forward, and their desire to go home and see their friends as soon as they are landed: is that so?-To a great extent, I do not believe that.

15,895. Have you any reasonable doubt that if the men were instructed by the master of the ship and the agents to go at once to the Custom House for payment of their wages, they would obey that direction?-I believe from my knowledge of the men,

that if the master and the agent decidedly told them to go to the Custom House after being landed, they would go. There is no doubt that men after a long voyage are naturally anxious to get home; but if they knew they had to be paid then, they would readily accede to the request of the master and the agent.

15,896. Is there any reason you can assign, from your acquaintance with the practice in paying seamen's wages, why the accounts should not be all ready within the time allowed by the law?-My whole experience in the matter points to the fact that the agents are unwilling to have a speedy settlement, and that unless compelled they would never appear at the Custom House at all, or rather I should say at the Mercantile Marine Office.

15,897. Have you had occasion since 1868 to know that the seamen are still incurring large accounts, or considerable accounts, to the agents by whom they are secured?-I have endeavoured not to be cognisant of any of their dealings; but I may add further, that I believe, although the special regulations are outwardly and nominally complied with the agents still secure their accounts from the men for their supplies.

15,898. You think there is still a security-a sort of virtual impledgment of the men's wages although they are nominally paid over in cash?-Yes. It may not be by agreement, but the thing practically exists; and I never heard the agents conceal the fact that the profit on the seamen's wages is the main inducement to them in accepting the agency. That very fact, in my opinion, renders the whole transaction irregular and illegal. Of course, that is a matter of opinion.

15,899. Have you had occasion to interfere while seamen were settling wages with the clerk of the agent, in order to prevent part of the money being retained for the payment of the agent's account?-I may mention that the men, after being settled with at the Custom House generally run down to the agent's office. I know that, because I hear the men speaking about it, and the agents, or rather the agents' clerks, telling them to go down to the place.

15,900. Have you frequently heard the men told to go down?- Yes. The men sometimes blurt it out, and the agents' clerks are not very much satisfied at their doing so; but the whole thing is so well understood, that there is little concealment about it.

15,901. You have frequently heard conversations on the subject, showing that the men were expected to go down at once?-Yes; and some of the clerks had the audacity to attempt to deduct the amount at the office not later than last year.

15,902. Who were these? Are they mentioned in your report?- They are mentioned in my report to the Board of Trade.

15,903. Do you know whether one consequence of the new regulations has been, that the green hands engaged for the settling and whaling voyages are much fewer now than they were before 1867?-I am not aware of the fact. My attention has never been called to it.

15,904. Are you prepared to say that there are not fewer green hands engaged now than there were before 1867?-I cannot say as to that.

15,905. Your observation has not led you to think so?-No. The idea never occurred to me.

15,906. Have you had occasion to know whether the seamen have been told by the masters or the agents since 1868 to attend at the Shipping Office within the time required by law?-The special regulations, unfortunately, do not define any time within which they are to attend, and I have no doubt the agents know that fact.

15,907. The three days do not apply under these regulations?- That is a question that I should not like to give an opinion upon.

15,908. The clause about the three days is quoted in the last head of the regulations?-It is quoted there to show what the general law is.

15,909. But you have a doubt in your own mind as to whether it applies here?-I may at once say that these special regulations were a sort of compromise, and I am so far answerable for their being framed, thinking that they would secure the men their wages. My opinion now is, that it would have been better if the Act had been enforced as it originally stood; and I believe the thing will never be on a satisfactory footing as long as agents who are merchants continue to act as agents.

15,910. Is it not a benefit for the young men who are engaged for the Greenland fishery, to be able to get their outfit from the merchants on credit, as they do?-I think the same thing could be secured by other and legitimate means.

15,911. You know that the men get an advance note for the amount of the first month's wages?-Yes; and after these special regulations came into force, Laurenson & Co. were the first who paid the men over the counter in cash.

15,912. You are speaking now of the advances?-Yes, of the advance note. Messrs. Hay latterly did the same; and Mr. Tait, I think, did so this year for the first time. I recollect asking Mr. Laurenson if he sustained any loss by treating the men with confidence and giving them the money, and to the best of my recollection he said he did not.

15,913. But the outfit requires a larger sum than the advance amounts to in any case?-Yes; but allotment notes would meet that. That would give the relatives of the seamen an opportunity of drawing the money in their absence.

15,914. Are these the only means by which you think a young man without an outfit could provide himself with one?-I think any merchant would give the seamen credit, if they were certain that the present agents did not enjoy the monopoly of giving them their supplies. I may further state, that I believe a gentleman intends to a certain extent to act its agent for some of the vessels this year, to pay the men's advances in cash, and to allow their allotment notes to be paid by a banker or some disinterested party. If that system were introduced, it would knock the whole irregularity on the head. Such is my individual opinion.

15,915. Do you think the gentlemen who now act as agents would have any hesitation, or that any danger would arise to them, in supplying goods to the men, if they were not acting as agents, but merely as merchants?-I think they are not entitled to enjoy a monopoly of the trade.

15,916. But supposing they were not acting its agents at all, but merely as merchants, do you think they would hesitate, or that they would incur any risk by advancing outfits to the men its they now do, but without the security or the quasi security which they now possess?-In that case the men's custom would be distributed over all the town. They would give their custom to the merchants they were partial to, instead of being confined to the shop of the agent who engages them, as at present.

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15,917. But would those who got their custom incur any serious risk in giving them their supplies and outfits on credit?-They would be liable to the same risk that every merchant who embarks in trade is subject to. No man can deal with another on credit without being liable to a risk; but at present the merchants practically enjoy a monopoly of the seamen's supplies.

15,918. The seamen, however, could go to any other shop in town for their supplies if they chose?-At present they could, but I have no doubt they would offend the agent by doing so. If they repudiated his right to secure his own account, that would put an end to the thing, because the main inducement for the agents to act as they do is that they have the supplying of the men with goods.

15,919. Have you anything else to say?-Nothing.

Lerwick, January 30, 1872, JOHN WALKER, recalled.

15,920. You formerly gave evidence before the Commissioners under the Act of 1870, in Edinburgh?-I did.

15,921. Are there any points on which you wish to give further information?-I merely wish to reaffirm all that I previously stated. From what the people say, the only thing that seems to require explanation, is with regard to the value of the worsted or wool for the making of a shawl.

15,922. You refer to question 44,290: 'I know for a fact that the worsted of a shawl which sells at about 30s. is worth from 2s. to 3s. They nominally give the worker 9s. for working it, but if they get it in goods that will be about 4s.; and they get from 25s. to 30s. for it?'-Yes. The question was intended to apply to half square shawls and haps selling at from £1 to 30s., according to the verdancy of the animal that was buying it. It takes about sixteen hundreds to make a hap, and the worsted will be worth. from 2d. to 21/2d. It will take from sixteen to seventeen hundreds to make a half square fine shawl, and the worsted of it will be worth about 4d.; and these shawls are sold at from 18s. to 30s., according as customers can be got for them.

15,923. Are haps often sold at so high a price as 30s?-No, not haps; they are sold up to about £1. That has been my experience. I may say that I have been in shops, when the first question asked before a price was stated was, whether the article was

for the person's self or for a stranger; that is to say, was it to be sold to a person in the country, or was it to go away outside, because in these cases they have two different prices. I have likewise been in shops when, if there were any of the knitting girls there selling shawls or other articles, the merchant would take very good care to state the price to his other customers in the lowest possible voice, and at the farthest possible distance from these girls; and I have been repeatedly told that they will occasionally put the price upon a piece of paper, so as not to let the knitters hear it. That I say in contradiction to the assertion which is made, that the merchants sell the hosiery articles at the same price as that at which they nominally buy them. Again, I want to point out that in most cases all the worsted that the hosiery merchants in Lerwick dealt in up to the last year was bought from the country merchants for goods, and therefore that even that nominal value did not represent the true value of the articles. I produce an account containing transactions amounting to £146; it is all balanced by goods, which were entirely worsted, up to £1, 3s. 10d. The only item of cash I find in the account is 15s. Lately, however, they have been obliged and are ready to buy the worsted for cash, because they cannot do without it, and the supply of worsted is decreasing.

15,924. You are speaking of Shetland worsted?-Yes. I may mention also that that estimate of the value of the worsted for a shawl was intended by me to embrace the Yorkshire worsted, or what they call the Pyrenees, although I don't suppose either the worsted or the wool ever saw the Pyrenees: it is made in Yorkshire.

15,925. Are you speaking, in both these cases of haps and of shawls, of articles made of Shetland worsted?-All the haps are made from Shetland worsted, the coarser worsted.

15,926. You said in that answer to which you have referred, 'They nominally give the worker 9s. for working it, but if they get it in goods that will be about 4s.:' is not that a little too strong?-I don't think it.

15,927. That assumes that the charge for the goods is about 100 per cent. above the cost price, or rather it assumes that it is 100 per cent. above the price at which the worker of the shawl ought to get these goods, which would not be the cost price, but the retail price?-No, I don't mean that. I mean to say that if these merchants were to go to the proper market, they could buy their goods at such a rate that they would be able to sell them at 100 per cent. profit; but I know that a great many of these merchants go to second-hand houses to buy. Whether it is for the object of getting long credits, or what it is, I don't know; but I know from the parties who come here that a great many of them are not first-class houses.

15,928. Have you any personal knowledge as to the wholesale houses with which these merchants deal for their goods?-Do you mean, do I know who comes down here?

15,929. Yes?-Yes, I do.

15,930. From what source is your knowledge derived?-From their travellers, and from seeing their goods coming down.

15,931. You are acquainted with the travellers of those houses?- Most assuredly.

15,932. And you know that they are not wholesale houses in the strict sense of the term, but middle-men?-Exactly. I say that the merchants here could go to much better quarters for their goods if they were to put their business on a proper footing. Wholesale houses in Aberdeen are not in the same position as wholesale houses in London.

15,933. Do London houses send travellers here?-No; but if the merchants' business was on a proper foundation they could get introductions to these houses, and do their business at a better rate.

15,934. Is there any other point on which you wish to make an addition or explanation upon your former evidence?-It has been generally remarked by fishcurers, that one reason why they could not give up the present system of dealing with their men was because the men would not have the means of getting boats and fittings for the fishing, whilst at the same time the principal fish-curers assert that they do pay enormous sums of money to the men. For instance, I have seen from the papers that it has been stated by Messrs. Hay & Co. that in the island of Whalsay alone they paid £1300 last year, whilst the total value of the boats and fishing gear there cannot be over £400. Therefore it is absurd to say that the men would not be able to supply themselves with boats. Again, it has been stated and maintained that the Shetland men as a race are intelligent, and in one sense they are. Indeed their intelligence is so acute that the employers are ashamed, as I have no doubt you have found in the evidence, to give them accounts. They are rather afraid that their acuteness would discover too much in them, but in addition to that they tell you it would be impossible for the men to divide the produce of the fishing among themselves if it was paid in cash at the station, because it would require a man conversant with accounts; so that it is an absurdity to say that they are an intelligent race, and yet cannot adjust the proportions which would go to the different men in a boat's crew if they were paid in cash.

15,935. Probably they would be sufficiently acute to adjust their accounts if they were accustomed to do so like other people in other parts of the world?-I say they are quite capable of doing that. They are quite capable of looking after their own accounts if these were [Page 403] produced to them. There is another thing I should like to point out with regard to the agriculture of Shetland as compared with that of other places. I am sorry I have come away without the statistics, but if you look into them you will find that we have a much larger number of stock in Shetland with a rental of only £30,000, than Orkney with a rental of £60,000, from which I deduce that it is a far greater object to the merchants and proprietors here to continue the people as fishers upon the present system, than to put the land upon a legitimate and proper footing.

15,936. In what way do you arrive at that inference?-The land is under-rented for the purpose of binding the men to continue as fishermen for their employers. A great deal of the land is in outsets, and these outsets were originally set at the mere interest upon the house that was built, or upon any enclosures that were made. That

was done for the purpose of procuring extra fishermen, and the system has been continued to this day. By looking at the valuation roll, you would find an immense difference between the rents of merks land and the rents of outsets.

15,937. I don't suppose that any proprietor who employs his men in fishing would deny that if he ceased to do so the rents of his tenants must be raised?-I rather think they do deny that.

15,938. I have had admissions made to that effect in the evidence which has been given before me?-I have heard none of the evidence that has been taken; but I am glad to hear that they are thinking of turning over a new leaf, and admitting even that they are wrong.

15,939. I don't say it has been a general admission, but that admission has been made by one proprietor at least?-I say that it ought to be a general admission. Another thing I would mention is, that the people with their present beliefs are unfortunately too subservient to come forward and frankly give full evidence upon the matter, and I would give an instance of the sub-serviency and illiterateness that prevails among them. I received the other day a report from two men, in which they use such language as 'resources of science and art,' and one of them was styled the superintendent, and the other the manager, of the working department of the largest establishment in this place for the manufacture of blubber. One of these men could hardly sign his own name, while the other had to sign with cross. That fact I mention in order to show that these men are under the belief that they are bound to do in most cases as their superiors may dictate to them.

15,940. Has it come within your knowledge that many people have been afraid to come forward and give evidence before this Commission?-Yes; a great many people have told me they would not do it.

15,941. Do you refer to fishermen?-To fishermen and to females too. I may mention also that I have been instrumental in starting a large company here upon the limited liability principle, the first object of which is stated to be to afford to the people of Shetland an opportunity of prosecuting their fishings free from the truck system.

15,942. Is that a company for prosecuting the Faroe fishing or the ling fishing?-It is to be for all. It is to commence this year with the Faroe fishing.

15,943. Did you send out any vessels in 1871?-No, we did not begin in 1871, except with a single vessel in which I was interested, and which we sent out to see what we could do with it.

15,944. Did that vessel belong to the company?-No, not to this company. The company has been formed in Glasgow, of gentlemen who are desirous of putting down this iniquitous system.

15,945. Do you propose to carry on the fishing with out any shop?-Yes.

15,946. And to pay all in cash?-Yes.

15,947. Do you propose to pay by annual settlements?-The men still prefer going upon the old system of payments; but in order to provide for their outfit, as they call

it, we propose to pay it in cash the moment the vessel leaves the harbour with them on board, and we intend to afford to their families an advance of what is fair and reasonable to keep them while the men are away. We are quite prepared to run all that risk against a bad fishing, and we will pay them the balance in cash at any moment they choose after they come home.

15,948. Are the advances you are to make to be in cash also?- Yes; they are to be in cash, not in goods.

15,949. Do you think it will be possible for the fishing business to be conducted, perhaps not immediately, but shortly after this, without the fishermen requiring advances either in cash or goods?-Certainly; and I say that if that system could be adopted now it could be carried on, looking to the amount of money that has been accumulated on deposit by the people in the country generally.

15,950. Then why do you propose in your enterprise to make advances in cash?-Just to suit the humour of the people, until they come to see for themselves that such advances are not necessary.

15,951. I suppose you want to begin cautiously?-We do, and to work them into the system gradually. In fact we wish them eventually to take shares in these vessels, and to get vessels and boats for themselves.

15,952. But in the arrangement you propose, so far as the Faroe fishing is concerned, the men will be sharesmen?-They are sharesmen in the produce, but they have no shares in the vessel; but I propose that they should eventually have an interest in the vessel, and we are quite willing to give them an interest in any vessel they choose. We are also desirous to get better boats for them in the ling fishing. It has been stated likewise that the people could not get their supplies at the stations if there was a cash system, as there would not be shops there, because the whole amount that is sold at the stations in the course of a year is merely nominal; and to show that, it is mentioned that it is usually an ordinary splitter who attends to the shop, or the fish factor. That man is not in the shop any time during the rest of the year, and it is said that there is only a very limited amount of goods sent there, being intended only for the supply of the men when they go out to sea. If that is the case, it would be no great hardship if these goods were not there, but I say that they would be there.

15,953. Do you think the men could easily take their own supplies with them?-Quite easily; and wherever the carcase is, there will the eagles be gathered. If there is money to be got there, you will be sure to find shops there too.

15,954. In what way were the men paid who went to the Faroe fishing in your vessel last year?-They were paid by shares the same as they had hitherto been, and this [producing it] is a copy of their settlement. The name of the vessel is the 'Lily of the Valley.'

15,955. I see that this account of the settlement is drawn up in the form which is ordinarily used in Shetland?-I don't know, but I suppose it is.

15,956. It shows the amount of fish caught, and then the deductions, and finally the division?-Yes.

15,957. I see no deduction for commission?-There is no commision.

15,958. That is usually, but not universally, taken by the owner?- I don't know why it should be. I think it is hardly fair if the men are doing their duty that the owner should not do his also, and take the fish to the best market.

15,959. You think the owner should be considered to be paid for that by his share of the produce?-I think so. I also produce a copy of our account for the expense of salt and curing.

15,960. Does this show the actual expenditure incurred by you in curing the fish brought in by the vessel?-Yes.

15,961. Was it arranged with the men that they should be charged only the actual expense incurred for salt and curing, and not an estimate according to the usual system?-Yes.

15,962. Is it not usual in Shetland that the expense of curing is deducted according to an estimate of 47s. 6d. and 50s., or 52s. 6d., as the case may be?-No; I understand it is the cost that is charged. The agreement [Page 404] with our men was that they were to receive one half of the proceeds of the fish caught, after deducting the expenses of curing, salt, etc., and master's premium 10s. per ton, and mate's premium 2s. 6d. per ton, and that they should receive 8 lbs. weight of bread per man per week, and also 9d. per score to each man for all the fish caught by him, one half to be paid by the owners, and the other half by the crew.

15,963. What was the return to the owners upon their share of that vessel last year?-22 per cent.

15,964. The total share payable to each man is shown in the account you have produced?-Yes. Their half share amounted to £188, 9s. 6d., but then they had wages in the succeeding voyage as specified in the agreement.

15,965. Is there any other point on which you wish to make any additional remark?-I may say that when I was south lately, I saw letters from some of the whaling agents here, which plainly indicated that the commission of 21/2 per cent. paid to them for the engagement of seamen for the seal and whale fishing, would not, in their opinion, afford sufficient remuneration to them.

15,966. Have you got these letters?-No; but I saw them, and I was asked by the owners in the south if I could put them in the way of getting an agent who would consider himself sufficiently remunerated by that commission. I was first asked if I considered 21/2 per cent. paid them for their trouble. I said certainly; and I then engaged with Mr. Scott in Lerwick to act as agent for these vessels. Their previous agents did not consider that they would be remunerated sufficiently unless they got a full opportunity of trading with the men.

15,967. Is Mr. Scott to act as agent without having any opportunity of trading with the men?-Yes. The advance will be paid in cash at the time of the engagement, and

the allotment notes will be paid at the bank.

15,968. Did you make that arrangement in consequence of what the shipowners in the south said to you?-Yes. That is an experiment which Mr. Scott is about to make; but there is no doubt about the result of it, because 21/2 per cent. is a very liberal commission for doing little or nothing.

15,969. Are you now in the management of the chromate of iron quarries in Unst?-Yes.

15,970. I understand the wages there are not paid in truck?-No; they have not been since I had anything to do with the quarries.

15,971. Are you aware that that was the case formerly-Yes; it was truck from beginning to end.

15,972. Did you find that to be the case when you undertook the management of the quarries?-Yes; after I had commenced the thing I was asked by the man who had previously trucked them if I would allow the workmen to be settled with in the office, so that they could get them into the shop immediately afterwards.

15,973. In what capacity had that person trucked them? Was he secretary or manager for the company?-They had a sort of anomalies there for managing the company. This one was supposed to be paymaster, and then they had a manager. The paymaster was a director, and he had a shop too.

15,974. Did you ascertain that the men had been paid at that shop by lines or tickets?-There was no payment at all. Their accounts were adjusted from time to time, the amount of goods which they had got was taken off, and the balance was handed to them. It was done openly and above-board; the man himself told me about it.

15,975. But accounts are always kept and settled in Shetland without any attempt of concealment?-I think so. I never had any difficulty in discovering it. I may add further, from my experience as chairman of three parochial boards, that since the system of truck and paying with lines was done away with in the parishes I am connected with, the rates have been reduced considerably.

15,976. How do you account for that?-Because the people have got money. It used to be considered an acknowledged fact, that for a pauper's shilling, if they brought a shilling to the shop, they would get 14d. worth of goods. The money was able to go much further, because there was wholesome competition between the different merchants to get a share of the money.

15,977. I understand Major Cameron's tenants throughout Shetland are at liberty to fish for any fish-curer they please?- Yes, for any one they please.

15,978. I think in your previous evidence you referred to the lease to Spence & Co. in Unst, and expressed a sort of regret that it had ended in a monopoly?-Yes.

15,979. There has been a good deal of evidence given before me to the effect that a monopoly of that kind is beneficial, and that it is wholesome, mainly in preventing small shops from springing up in large numbers, and that it requires a large capitalist

to develop the resources of the country properly: is that so?-That is perfectly true: but a merchant or any one who says that should recollect that except for the capital of the poor fishermen they could not carry on the business themselves.

15,980. Are you aware whether the fish-merchants generally are men of large capital?-I should say that they cannot be, from this fact, that they would readily pay the men in cash which they get, and which in the month of August must amount to about £40,000 due to the men, if they had it.

15,981. Is that merely an inference which you draw from the practice which prevails?-Yes.

15,982. But have you any personal knowledge on the subject?- Yes. Perhaps it would not be fair to mention the names of the firms, but I know several firms who have commenced within the last few years with no capital, and who are carrying on a business which in the south would require an enormous capital. I know it is alleged by merchants generally that they do not consider they are trading upon the poor man's capital.

15,983. I suppose you speak of the merchants trading upon the poor man's capital, in this sense, that they do not pay for the fish which is in their hands until about the time when they get their returns?-Exactly; that they neither are merchants nor agents. They are not merchants, because they do not pay the men for the raw material, and they are not agents, because they do not give them honestly their account sales.

15,984. Are you aware of the practice existing in Shetland, that the proprietors in many cases receive their rents from the fish-curers?-Yes. During the first year or two that I settled for Major Cameron, I got many cheques from the fish-curers.

15,985. Was that for the whole amount of rent due by a number of fishermen?-Yes, either that, or each man would bring his separate cheque; but in a great many cases in Shetland the fish-curer just pays it slump, or what is called guarantees it.

15,986. That is not an actual guarantee; it is merely an arrangement by which the fisherman, for the convenience of all parties, is debited in the fish-curer's book with the amount of rent which the fish-curer pays to the landlord?- True; but in it great many cases, as I have previously stated, I think there is a chronic balance against the men, which balance, I think, if looked into, would generally be found to be composed to a great extent of advances of rent for the next year, which practically thirls the men on to them, but which has no right to go through their books at all.

15,987. Are you aware whether the fish-curer is induced to make that advance of rent by the consideration that he holds his own premises from the landlord, and might be charged a higher rent, or lose some other advantage, if he did not do so?-Most assuredly. There is no doubt that, if they were thrown open, the rents of the business premises would double themselves throughout the country.

15,988. Have you known any instance in which the landlord favoured the merchant so far as to refuse to allow other businesses to be begun upon his estates?-Yes.

15,989. Had that happened in the case of Major Cameron's estates?-Not so far as I know, and no one [Page 405] has ever asked it. In fact we have business premises lying unlet just now.

15,990. Do you know that that has happened elsewhere?-I do; in more cases than one.

15,991. Is it not virtually the case in Unst, that no premises are allowed there except those of Spence Co.?-I don't know about that, because Spence & Co.'s principal premises are upon Henderson's property.

15,992. Were you not aware of Spence & Co. removing a merchant who had premises on the property of Major Cameron, which was under tack to them?-No; I think that was on a neighbouring property.

15,993. Was that the case of a house that was shifted bodily across the road?-It was not shifted bodily. The man put up a new place altogether.

15,994. Was that on Major Cameron's property?-No; neither in the one case nor in the other. I think he came off the Greenfield property, and he built a place upon the Earl of Zetland's lands.

15,995. Was there no one removed from Major Cameron's property in the neighbourhood of Uyea Sound, by Spence & Co.?-I don't think there was. There was a man there with a lease of land who kicked up a row with us about a pier and other things of kind, whose nephew, under his name was keeping a shop, and we distinctly told him that he must turn his attention to something else; that if he would use the house for a lodging-house or something of that kind he could stay, but that we would not allow him to do it under these circumstances.

15,996. Did he put up a shop elsewhere?-Yes. They built a new place to the west of Baltasound.

15,997. What were their names?-Isbister. If I am not misinformed, I think these parties are still carrying on the shop at Uyea Sound, conducted by a man Donald Johnston; at least I saw a boatload of goods coming ashore there, and on inquiry I was told they were for Isbister's shop.

15,998. Do you think such an arrangement as you have made with Spence & Co. is in any sense different as respects the interest of the men from that by which a proprietor cures himself, and employs his own tenants in the fishing?-In the way it is carried out, I don't think there is very much difference; but had it been carried out in the way that was intended and promised, it would have been very different. You must bear in mind that I don't think it is for the interests of the working people in Shetland to have scattald, and therefore it was intended that each man should have a farm for himself, and a lease of it, and they have a right to that under the lease to Spence & Co. Had they stuck to that, or were they to stick to that, they would be quite independent; but as they persist in believing that the scattalds are for their benefit, and as Spence & Co. have a right to these scattalds, it practically binds them to the merchants.

15,999. I understand that Spence & Co, from their lease, have absolute power to remove tenants if they don't comply with the rules and regulations which, are appended to the lease?-I don't think so, not without our sanction. I know that we don't think so.

16,000. That, if it is so, would give them an absolute power to compel the men to fish for them, just as much as when a landlord intimates to his tenants that they must fish for his tacksman on pain of removal. Assuming that they have that power, is not that the effect of it?-Assuming that they have that power, that would be the effect of it, but I don't think they have that power. It was never intended that they should have it, and I don't think they have it. I hold that we alone have power to turn off the tenants, and under the lease we only have power to bring in tenants.

16,001. The effect of the lease and the regulations appended to it, so far as I have been able to examine it, appears to be, that if a sub-tenant fails to comply with the rules and regulations appended to the lease, he may be removed by the lessee?-No, we quite deny that.

16,002. How do you reserve power under the lease to deal with the sub-tenant who does not comply with the rules?-We exclude assignees and sub-tenants, except as after-mentioned.

16,003. Perhaps the shortest way of dealing with that matter will be, that I should have an opportunity of reading the lease or it copy of it at leisure?-Certainly, but I may say decidedly that it was not intended that Spence & Co. should have such a power, and it is not being acted on, because we are now in process of warning four or five tenants who will not come under the rules. It was intended distinctly that we reserved all our present tenants, irrespective of Spence & Co. altogether.

16,004. But are not the powers with which Spence & Co. are invested with regard to peats and other matters, really such as to compel the tenants to remove if they do not comply with the rules?-No. The peats are reserved in our hands, for the purpose of compelling them to take care of the peat-banks.

16,005. That is not Mr. Sandison's reading of the lease?-I cannot help Mr. Sandison's reading of it but I am certain that it is the correct reading, from the fact that there was a very considerable correspondence carried on about Spence & Co. being allowed to put in certain tenants during the first two or three years of their lease. They have only right to put in new tenants within a certain time and after that they have no right to put anybody into a vacant farm.

16,006. You were speaking of poor-rates: do you think there has been no reduction of poor-rates in Shetland from any other cause than the reduction of truck?-Not in my opinion.

16,007. Have there not been better crops and better seasons lately?-Yes, but that does not reduce the number of paupers. The number of paupers has been increased rather than reduced.

16,008. But if there are good seasons with regard to crops and fishings, may not a greater number of paupers be maintained by their own friends, and fewer people fall

upon the rates?-That might be so; but if the same number of paupers are on the roll, and if the allowances are practically the same, it must follow that the rates should be stationary.

16,009. Your statement is that the number of paupers has not been reduced?-It has not been reduced. It has been rather increased. I may mention that in Unst there has been a decrease from deaths, but not anything to account for a reduction of the rates from 8s. to 2s. 6d.

16,010. With regard to the price of shawls, when you spoke of a shawl being worth 25s. or 30s., did that apply to the merchants who purchase shawls for goods, or to private dealers?-I referred to what the shawls would be sold for to private individuals in the town.

16,011. The prices which you name for shawls are not the prices that were paid by merchants?-No; but with regard to that I may mention that I have heard merchants from the south say that when they sold goods to merchants here, in a great many cases they got goods back. There is a man named Saint in Aberdeen who deals considerably with the merchants here, and perhaps he would be able to give evidence as to whether he does not prefer to pay in cash, but that to give goods is insisted upon by the merchants here.

16,012. Did you mean to say in an earlier part of your evidence that the merchants here get supplies of goods mostly from second-hand houses?-I mean to say that they could get them from better houses if they chose.

16,013. Would you say that J. & R. Morley & Co.; Copestake, Moore, & Co.; Stewart & M'Donald, Glasgow; Fletcher & Sons, Manchester; J. & W. Campbell, Glasgow; Arthur & Co., Glasgow; Mann, Byars, & Co. Glasgow; George Peek, Manchester, Vesey & Sons, London; Allan & French, London, were second-class houses?-No; but I should like to know the extent of business which the merchants here do with them, and whether they deal wholesale with them or not.

16,014. Would you be surprised to hear that Shetland merchants engaged in the hosiery trade obtain the bulk of their goods from such houses as these?-I should say that perhaps that was the truth, but I should like to know the whole truth about the matter, because [Page 406] these houses, large as they may be, have certain clearances occasionally, which it may suit a people such as those of Shetland to take. I know at least one instance of a large quantity of that class of goods coming down in the steamer, and being damaged by a cask of porter being burst upon them, and a claim was made upon the Leith and Clyde Shipping Co. for something like 50 per cent. of profit, because it was a job lot which had been bought from big houses of that kind.

16,015. But I suppose there are job lots bought by almost every house at times?-Yes, but that has been the system here; in fact it has been stated by people in these big businesses, that they did get rid of their over-season's goods in that way.

16,016. I suppose over-season's goods come to all parts of the rural districts of Scotland?-I am not aware of that, but they may do so.

16,017. Is there anything else you wish to say?-Nothing that I am aware of.

Lerwick, January 30, 1872, CHARLES OLLASON, examined.

16,018. You are a member of the firm of Charles Ollason & Son, bootmakers, Lerwick?-Yes.

16,019. Did you receive that letter [showing] from Mr. Williamson?-Yes. [The following letter was put in:-] 'Haggersta, Jan. 20th 71.' 'Messrs. Charles Ollason & Son. 'Dear Sirs,-I am sorry to say that by some misunderstanding I did not get the wages that I expected to get; for instead of a 3/4th I only got a 1/2 share, and therefore instead of £18 I only got £12. I was due Mr. Stove £4 from the year that I was at the fishing from him, and he handed in that bill against me to Mr. Irvine, who retained that for him, so in that way I had nothing to get at all. Therefore I am sorry to say that I cannot pay the 15s. that I am due you for the boots that I got in August, and I beg that you will wait till the turn of the season, and then I hope that I will be able to pay you, for I am signed to go in the 'Olive' as a sharesman. If you cannot wait till then, you will be so good as to let me know. You will make out a bill, and I will sign it and hand it in to Mr. Irvine, and let it be marked against me, and then you will be sure of your money then-for it is entirely out of my power to pay you any other way just now. I beg that you will comply with my request, as I can't do better.-Your humble Debtor,

'M. Williamson, 'Haggersta, 'Whiteness.'

16,020. Was that letter written to you by him in answer to a demand for payment of your account?-Yes.

16,021. Were you surprised to get a letter of that kind explaining the reasons why your account was not paid?-We were not very much surprised, for we believed the facts to be just as he stated them.

16,022. Did you think it a reasonable enough explanation he was not able to pay you?-Yes; it was reasonable enough for him.

Lerwick, January 30, 1872, JOHN WALKER, recalled.

16,023. I now show you Messrs. Hay & Co.'s store ledger, kept by William Halcrow, their storekeeper here: was Halcrow the party referred to in the report which you mentioned in your evidence?- If Messrs. Hay & Co. say he is their superintendent, he is the same individual.

16,024. Is Messrs. Hay & Co.'s the largest establishment of that kind in Lerwick?-I understand so.

16,025. And the party mentioned in the report describes himself as superintendent of the largest establishment in this place?-Yes, general superintendent, and the other is described as the manager of the working department. The general superintendent is the one who signs his name, and the other is the one who signs with a cross, and they are the parties who speak about the resources of science and art.

16,026. Is the book I now show you kept in a fair enough mercantile hand?-Fair enough.

16,027. Would, you be surprised to hear that it was kept by William Halcrow?-I would not. The reason why I mentioned this matter at all was to show the subserviency of the people in Shetland,-that they are accustomed to do what they are bidden,- that they are ready to sign their names to what they really cannot understand, if they think it is doing a favour to any one above them.

16,028. Do you think Halcrow was incapable of understanding such a phrase as the resources of science and art?-I think so, as it is applied here; because I may mention that in the correspondence which passed before, and which refers to the same parties, they said they did not know that whales had skins.

Lerwick, January 30, 1872, ARTHUR LAURENSON, recalled.

16,029. I understand you have heard the evidence which has been given by Mr. Walker with regard to the merchants in Lerwick, and that you wish to make some explanation in regard to it?-I have not heard it, but the substance of it has been reported to me since I entered the room. I have been told that he said that the merchants in Lerwick buy from second-class houses, and pay for their goods by consignments of hosiery. I wish to refute that, so far as I am concerned; and I refer to Messrs. J. & W. Campbell, Glasgow; Stewart & M'Donald, Glasgow; Arthur & Co., Glasgow; John Clapperton & Co., Glasgow, and Geo. Peek & Co., Manchester, as a proof that I deal with first-class houses.

16,030. Are these the only houses with which you deal?-No; I deal with a good many more.

16,031. Are there any houses from which you get portions of your goods which might be characterized as second-class houses?-No.

16,032. Is it the case that you ever get job lots or over-seasons goods?-Never, unless in the ordinary way of trade. Perhaps an article may be shown to me by a traveller occasionally, but only one pattern out of fifty which may be described as a job lot.

16,033. You do not get in a larger proportion of these goods than other dealers in other country towns?-No; I never bought a job lot altogether in my life. We never pay by consignments of hosiery.

16,034. Is there anything further you wish to state?-At the close of my last examination I wished to make objection to the credibility of a witness. I was asked to state it privately, and I now hand in paper with regard to it. [Produces paper.]

Lerwick, January 30, 1872, ROBERT SINCLAIR, recalled.

16,035. Do you wish to concur with Mr. Laurenson in the statement which he has now made?-Yes. The only difference is that I deal with more houses in London.

16,036. The list of houses which I read from in putting a question to Mr. Walker was furnished by you?-Yes; but it does not include one half of the houses that I deal

with. I wish also to say that I have now been 25 years in business, and I never to this day exchanged 2d. worth of hosiery goods for goods in the [Page 407] south. I do not mean to say that I have not bought hosiery goods for goods here, but I have never exchanged them in the south for other goods.*

16,037. Does any one present wish to give any further evidence?- [No answer.] Then I adjourn this inquiry. I have to think the Commissioners of Supply for the use of this room, which they have kindly furnished to me; and I have also to return my thanks to all parties in Shetland with whom I have met, for the courtesy which I have received from them, and for the readiness which they have shown in furnishing me with all information which I required.

*Mr. Linklater also, on the same day, sent the following letter to the Commissioner, referring to the same subject:-

LERWICK, 31st January 1872. W. GUTHRIE, Esq.

Sir,-I am sorry that I was absent when Mr. Walker in his evidence before you today stated, as I have been told, that the merchants here bartered their goods in exchange for drapery goods from second-class warehouses in the south. I beg to state that I have been thirty-seven years in business here, and have paid cash for all the goods ever I bought, and beg to refer you to the following houses from whom I get my goods.-I am, sir, yours very respectfully,

ROBERT LINKLATER.

J. & W. Campbell & Co., Glasgow; Stewart & M'Donald, Glasgow; Arthur & Co., Glasgow; Anderson & Co., Glasgow; J. Clapperton & Co., Glasgow; Chamberlain & Birrell, Glasgow; John Howell & Co., St. Paul s, London; Fandel, Phillips, & Co., Newgate Street, London; Hutton & Co., Newgate Street, London; D. Hyam, Houndsditch, London; Copestake, Moore, & Co., London; George Peek & Co, Manchester; Hall, Russell, & Co., Bradford.

LERWICK: MONDAY, FEBRUARY 5, 1872

<Present>-MR GUTHRIE.

<Mr. Guthrie>.-As I have been detained here longer than I expected, owing to the state of the weather, I have held this sitting to-day in order to examine some witnesses who were formerly suggested to me by gentlemen in Lerwick, and whom I was not able to call before closing the previous sittings, and also some others who I think may be useful in supplementing the evidence already taken.

Lerwick, February 5, 1872, Mrs. JOAN WINWICK or FORDYCE, examined.

16,038. Do you live in Chromate Lane, Lerwick?-Yes.

16,039. Is your husband alive?-Yes. He is a pensioner. He was a carpenter to trade, but he does nothing now.

16,040. Do you knit worsted work?-Yes, I knit, but for myself only. I knit with my own wool, and sell the goods.

16,041. Have you never knitted with merchants' wool?-No.

16,042. To whom do you generally sell your hosiery?-I always sold it to Mr. Robert Sinclair since he became a merchant. I always knit haps or coarse shawls.

16,043. What do you pay for the worsted which you use in knitting?-When I buy the worsted it is 2d. per hundred; but when I buy the wool and spin it myself, it comes to be a great deal dearer. We cannot get proper worsted to buy, and we have to manufacture it with our own hands.

16,044. Is the worsted which you buy at 2d. per hundred the kind which you use for a hap of ordinary quality?-Yes.

16,045. At what price do you sell a hap two yards in size made of that worsted?-Perhaps about 10s.

16,046. Have you any of these haps in hand just now?-No.

16,047. Have you sold any lately?-No; I have not sold any this winter. I have not been knitting this winter to sell. I have just been doing things for my own family.

16,048. What else have you knitted besides haps?-I have knitted nothing but haps for a good while. Since I could not see to do finer work I have been spinning worsted and making frocks for my husband, and stockings and things of that sort.

16,049. Where do you buy your worsted?-I have not bought any worsted for a long time. I always bought the wool and spun it myself, because I could not get the worsted to buy.

16,050. Where did you buy your wool?-I buy skins from the women who sell the sheep, and get the wool ru'ed off the sheep when they are killed.

16,051. Are there women who go about and sell wool in that way?-They sell mutton, but they will sell wool to us when we go to their houses and ask them for it.

16,052. Do these women buy the whole sheep?-Yes, they buy them alive; and when they have killed them, they sell the mutton to any person in the town who will buy it.

16,053. Are there many such women?-I suppose there are a few, but I cannot say how many.

16,054. Is that the way in which many people get their supply of wool for spinning?-I think it is, because we cannot get wool in any other way.

16,055. How much wool do you buy at a time?-I have bought 10s. or 12s. worth at a time,-just the skin as I could get it.

16,056. How much do you think you pay for the wool per lb. in that way?-I have seen it cost me 2s. and 16d. and 18d.; but it has been higher of late since the wool became so dear.

16,057. Is not that a very high price for it?-Yes.

16,058. Is it not more commonly about 1s. per lb.?-Yes. When I came to Lerwick it was 1s., 8d., and 6d.

16,059. Is it not still to be got at 1s. per lb.?-Perhaps it may be in country places, where they have plenty of it; but I cannot get it for 1s. unless it is very coarse, and a great deal of refuse in it.

16,060. How much wool does it take to make a hap two yards square?-About 2 lbs. That would be 16 hundreds or cuts.

16,061. Are you speaking all this time of a hap of the ordinary quality?-Yes, the ordinary quality.

16,062. Do you know what a woman gets for knitting a hap of that kind when it is given out?-I cannot say exactly; but I think they give some knitters for plain work only 2d. per hundred, or perhaps a little more. That is what they say they get for knitting plain work.

16,063. Do they count the payment of the knitting by hundreds?-I suppose some of them do, but I have never put out any to knit myself, or taken any in to knit.

16,064. Then for a hap like that, if there were 16 hundreds in it, the knitter would get only 2s. 8d. for the knitting?-Yes; but I think that for knitting borders they get a little more. It is for plain frocks that they say they get 2d. per hundred.

16,065. Are you always paid in goods for your work?-Mr. Sinclair always gave me what I asked. When I asked a little money I got it, and when I required goods for my family, such as soap, soda, or tea, I got them too.

16,066. But I suppose it was understood that you were to be paid in goods?-Yes, that was the custom of the place; but he always trusted me with anything I wanted, if I happened to be due him something at times.

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Lerwick, February 5, 1872, Mrs. ROSINA DUNCAN or SMITH, examined.

16,067. Do you live in Lerwick?-Yes.

16,068. Is your husband alive?-Yes. He is turning an old man now, but he was at the sea at one time.

16,069. Has he got a pension?-No.

16,070. Do you employ yourself in knitting?-I knit a little for my own family.

16,071. Have you given up knitting for other people-Yes.

16,072. Did you knit for Mr. Sinclair at one time?-I sold him a few haps last year.

16,073. Did you sell him a great number before that-I did not; but when I had any little things I sold them to Mr. Joseph Leask, and got money articles for them.

16,074. Did you ever sell so many as half a dozen to Sinclair?-I cannot say, for I did not count them. The last one I sold was to him.

16,075. What did you get for it?-12s.

16,076. How much wool was in it?-I cannot say, for I spun it myself, and wrought it until it was done.

16,077. Do you not know how many cuts of worsted were in it?- No; I did not count them.

16,078. What was the size of it?-I suppose it would be about two yards.

16,079. Was it made of fine wool or ordinary wool?-It was just the ordinary wool that is used for haps.

16,080. Were you paid in money or in goods for it?-I was paid mostly in goods, but he gave me money without my asking for it.

16,081. How much money did you get?-1s. or so. I could not exactly say how much, but he gave me what I required. I got the goods which I required, and he gave me that money, and he also gave me tea, which was the same as money, because if I had had to buy it I would have had to pay for it.

16,082. Could you get money for the tea?-I did not sell it; I kept it for my own use.

16,083. Did you ever sell anything that you got for hosiery?-No. I always required anything I got for my own family.

Lerwick, February 5, 1872, GRACE SLATER, examined.

16,084. Are you a knitter in Lerwick?-Yes.

16,085. Do you do anything else?-I keep lodgers. They are generally workmen, such as masons.

16,086. Do you knit a good deal?-No; all that I do in that way is very trifling. It is generally fine veils that I knit.

16,087. Who do you sell them to?-Mr. Sinclair; I work for him; he gives me the worsted. It is Scotch worsted that I get, but I don't know the quality of it, nor the price.

16,088. Have you got any of these veils in hand just now?-Yes, I have a few that I am knitting.

16,089. Do you knit with your own wool at all?-No, I only work for him.

16,090. How much do you get for knitting one of these veils?- From 16d. to 1s., according to the quality as it is coarse or fine.

16,091. Do you get more for knitting one of fine worsted than one of coarse?-Yes.

16,092. Will you bring one of the veils that you are knitting just now and let me see it?-Yes,

Lerwick, February 5, 1872, ELIZABETH MALCOMSON, recalled.

16,093. Do you live with your mother in Baker's Close, Lerwick?-Yes.

16,094. What do you do?-I sometimes knit, and sometimes sew; but I mostly knit. My mother knits sometimes, and does the house-work.

16,095. Do you support yourself mostly by knitting?-Yes, almost entirely.

16,096. What kind of knitting do you do?-Fine veils and shawls.

16,097. Are you paid for them in money or in goods?-Always in goods.

16,098. Do you sometimes get a little money?-No, I never asked for it.

16,099. Do you get money for your sewing?-Yes. I sew to private people, and they always pay me in money.

16,100. Where do you buy your provisions?-From any shop I like. I don't go to any one in particular.

16,101. Where do you get the money for that?-From my sewing.

16,102. Do you get all the money that you require for provisions by your sewing?-No. We generally keep a lodger or two when we can get them.

16,103. Would you not prefer to get some money for your knitting?-Yes; but it never was the practice to ask for it, and therefore I never thought of doing so.

16,104. Would you not be better off if you had money for your knitting, which you could spend upon provisions?-I think I would be; but I never thought of asking it, as it is not the usual thing.

16,105. What kind of goods do you get for your knitting?-Tea, sugar, soft goods, groceries, or any kind of goods that are in the shop.

16,106. Do you get most of the dress for yourself in that way?- Yes.

16,107. Do you knit a greater number of articles than are sufficient to supply yourself with dress?-Yes.

16,108. What do you do with them?-I buy anything that is required for the house.

16,109. Do you sometimes get goods for your friends if they want any?-No, I generally require all I get for myself.

16,110. You don't get provisions for your knitting?-No.

16,111. Do you get enough money for your sewing and from your lodgers to supply you with provisions all the year round?-Yes; it has always done so in time past.

16,112. Is there anybody living in family with you except your mother?-No.

16,113. What is the usual price that you get for your fine shawls?-We generally get 10s. or 12s., but that is not the very finest worsted either.

16,114. Are these shawls knitted with the merchant's worsted?- Yes.

16,115. It is always given out to you, and you keep an account?- Yes.

16,116. Do you know what quality of worsted it is that you knit one of these shawls with?-It is usually Shetland worsted. The price of it is 31/2d., and some of it 4d. per cut; at least I would think so, judging by the fineness of the worsted.

16,117. Have you sometimes bought worsted yourself?-Yes, sometimes.

16,118. Have you bought it often enough to know the quality and price?-Yes.

16,119. What size of shawl is it that you get 12s. for?-About 21/4 yards. That, is, 25 scores on each border, and there are four borders in the square.

16,120. Then you could say quite positively that for a shawl of 25 scores, knitted with 31/2d. worsted, and measuring 21/4 yards, you got 12s. in goods?-Yes.

16,121. Do you ever sell shawls to any persons except the merchants?-No.

16,122. When did you last take any veils to the shop?-I think it was the week before last. I got 9d. each for them; they were knitted with Scotch wool. When they are coarse, there is less paid for knitting than when they are fine.

16,123. Were these coarse veils?-No, they were ordinary quality. The worsted was not the very coarsest.

16,124. Do you know what was the value of the worsted per cut?-I cannot say.

16,125. Who did you sell them to?-To Mr. Robert Linklater.

16,126. Do you know what you would pay for them at the shop?- I think it would be about 2s. or 2s. 6d.

16,127. Would you go and buy one of them and bring it to me here?-Yes.

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Lerwick, February 5, 1872, GRACE SLATER, recalled.

16,128. [Produces veil.] Is that one of the veils you are knitting for Mr. Sinclair just now?-Yes. It is his own worsted that I am working it with. I think I will get 16d. for it. I have got that for veils of the same quality.

Lerwick, February 5, 1872, ROBERT SINCLAIR, recalled.

16,129. Do you wish to make any explanation with regard to what the witness Grace Slater has now said?-The only explanation I have to make is, that the veil she has now produced belongs to the same class of goods as that with regard to which Mr. Linklater and I were previously examined. The veil which she has produced is quite a good thing, but in the same class of goods there are a great number of job articles which tear in the dressing.

16,130. What is the selling price of such veils?-From 2s. 6d. to 2s. 9d. That is the highest price we get for them.

16,131. What quantity of worsted is in one of them?-About 6d. worth of worsted.

16,132. Is that two cuts of 3d. worsted?-No, it is mohair. But there will be other veils of the same kind which will be worth not more than 18d. or 20d., and therefore the profit which we get upon one veil is no proof as to the amount of profit, if any, which is got upon the whole.

16,133. What quantity of worsted is there in a veil like that?- About 1/4 oz. The price of that worsted is about 36s. now, but I paid 32s. 6d. for it. Taking it at 32s., that would be 2s. per oz., and therefore 1/4 oz. would be 6d.

16,134. How many bad lots might you have in an ordinary time in such veils?-The only way of getting at that would be by examining our books. This very season I had a lot of about 30 dozen veils, which cost me altogether about £45, and I sold them for about the lot.

16,135. How did that happen?-Just because I could get no more for them. I would have been very glad to have got more if I could. I may mention that there is not 20 per cent. of these veils which realize the price I have mentioned of 33s. per dozen, although they all cost that price. Most of them run about 2s. 2d. or 2s., or something like that.

Lerwick, February 5, 1872, ELIZABETH MALCOMSON, recalled.

16,136. [Produces black veil.] Have you bought this veil from Mr. Linklater?-Yes. He says these veils sell at 18s. a dozen, or 1s. 6d. apiece; but this one is undressed, and therefore I only paid 1s. 41/2d. for it.

16,137. Is this one of the veils which you knitted, and for which you got 9d.?-Yes.

16,138. Do you not know the value of the worsted required for it?-No.

16,139. You said you know the value of the worsted in the shawls you knit?-Yes.

16,140. Then how do you not happen to know the value of the worsted in the veil?-Because I knitted them for myself in the one case, and in the other I always got the worsted to knit them with.

Lerwick, February 5, 1872, ALEXANDER MUNRO, examined.

16,141. What are you?-I am second officer of Customs at the port of Lerwick.

16,142. How long have you been in that position?-Fully five years.

16,143. Were you here before it was usual to pay the seamen engaged in the Greenland voyages at the Custom House regularly?-No; I came here in the first year that the special regulations came into effect-1867.

16,144. Did it come under your notice after you came here, that the men who received their wages at the Custom House were frequently indebted to the agents by whom they were engaged?-I am not cognisant of the fact whether they were indebted or not.

16,145. Were you not aware that settlements were sometimes made with the clerk of the agents, or the agents themselves, for accounts due to them at the time when the men were receiving their wages before the superintendent?-Yes, I understood so.

16,146. Was that frequent during the first year that you were here?-Yes.

16,147. Were these settlements actually made in 1867 in the Custom House?-There were deductions taken from the balances shown to be due to the seamen, in addition to the deductions specified in the agreement.

16,148. Did the superintendent interfere to prevent these deductions from being made in his office?-Yes; the parties were interfered with by the superintendent, and the practice was stopped.

16,149. Was that in 1867 or subsequently?-I think it must have been in 1869 or 1870.

16,150. Did the practice go on without interruption or objection until that time?-Not without interruption. We tried to stop it, but we did not succeed altogether until 1869 or 1870.

16,151. Since that time has any attempt been made, within your knowledge, to make a deduction of that kind in the Custom House?-Not so far as I am aware.

16,152. Have you been aware whether seamen have received the money payable to them under deduction of the agent's account in any case?-I could not positively say, but I think I have seen it done.

16,153. Have you suspected that the seamen were receiving only a part of what was really payable to them?-Yes.

16,154. What reason had you to suspect that?-Because I could see them keeping the deduction off.

16,155. Is the money usually counted in presence of the superintendent or of yourself?-Yes.

16,156. Has that always been so?-No. It should always be done, but it has not been done at all times.

16,157. Is there sometimes a press of business which prevents it?-Yes, sometimes; and you cannot always keep your eye watching everybody.

16,158. Do the cases to which you refer, occur when there is a press of business?-Occasionally.

16,159. Are you aware that seamen coming to receive their wages at the Custom House have usually had a settlement with the agent beforehand at his office?-I am not aware of that.

16,160. Have you found, in the course of your experience, whether the seamen, when paid at the Custom House, generally know the amount of their account at the agent's shop?-I am not aware of that either.

16,161. Have you at any time heard the agent, or his clerk, while settling with the seamen, or after settling with them, in presence of the superintendent, remind them that they had to go down to his office and pay their account?-I cannot say positively that I have heard the agents say that to the men, but I know that it was an understood thing that they should do so.

16,162. Is it not so now?-I fancy it is.

16,163. How did you know that it was understood?-I have overheard the agent and the men talking about it between themselves in the office. I could not exactly bring the words to my remembrance which I have heard used, but I have seen cases where a small balance might be due, and when the agent did not have change to settle with a man, he said he would settle when he came to settle the other account at the shop.

16,164. The matter has come under your notice in that way, so that you have come to be aware that it is a usual thing for the men to go down and pay their accounts [Page 410] after having been settled with at the Custom House?-I should fancy it has.

16,165. Have you had anything to do with the engagement of seamen?-Occasionally.

16,166. Are they ever engaged in presence of the superintendent?-For foreign-going vessels they are always engaged there.

16,167. Are they so engaged for the Greenland and sealing vessels?-Yes.

16,168. Is the agent present then and the captain of the vessel?- Yes.

16,169. Is the selection of the men usually left to the agent, or does the master of the vessel exercise a choice?-I fancy the agent collects the men and the master selects them out of the crowd.

16,170. Does the agent interfere with the selection?-I am not aware. They are all selected before they come before us.

16,171. Have you noticed whether in recent years the number of young hands engaged in the sealing and whaling voyages has been less than it was when you first came to the office?-I have not observed that.

16,172. Have you heard any of the men complain that they could not get their wages paid when they wanted them?-I have heard complaints with regard to the second payment of oil-money. The men said the agent had not got his return, or something to that effect, that he was not aware of the quantity being ascertained.

16,173. Is that the only complaint you have heard on the subject?-I think so.

16,174. Do you know whether there was any difficulty or objection on the part of the agents to comply with the regulations when they were issued?-There was little bit of difficulty, and I have no doubt there was little objection at the time.

16,175. What was the ground of it?-I cannot say, except that it was troublesome.

16,176. Was there no objection made to you or in your presence?-No; I cannot bring a case of that kind to recollection.

16,177. Then what was the difficulty or objection that you refer to?-I suppose it was the compulsion of bringing the men forward to be discharged, and producing store-books, and all that.

16,178. Do you mean that the agents do not like to have the settlement made in presence of the superintendent at all?-I don't mean to say that exactly; but I mean that it gave them a good deal of extra trouble, and it was sometimes disagreeable.

16,179. You have said that there was a good deal of difficulty in getting them complied with at first: do you remember any explanation or reason that was given by the agents for that?-The first year I came here the master of each vessel had to get a store-book, in which were entered the goods or whatever extra stores might be supplied to the men during the voyage, and I have known these books coming ashore

signed by the master and the men when they came into the agents' hands, as it proof of their correctness. Then the shop goods which had been supplied to the families of the men during their absence were entered in, but we had to compel them to deduct these and delete the entries.

16,180. Was that a difficulty which you had in 1867?-Yes, the first year.

16,181. Did you find it to exist after 1867?-No; we stopped it at once.

16,182. Then in 1868 there was still a difficulty, as you have already said, in getting the regulations enforced: what was the difficulty then?-The only difficulty then was the agent deducting his own account from the balance shown in the men's account, and handing over the net balance only.

16,183. That did not appear in any written accounting that took place before you?-No.

16,184. Have you seen that attempted so lately as 1870 or 1871?- Not in 1871, I think. I rather think the last time was in 1870, but I could not be positive.

16,185. Are the rules strictly observed now?-So far as we can attend to them, they are.

16,186. Are you not able to attend to them?-Yes.

16,187. Then they are attended to?-Yes.

16,188. What did you mean by qualifying your answer, and saying, so far as you could attend to them?-I meant by taking steps to stop all these informalities.

16,189. But there are no informalities now?-No.

16,190. Is there no delay now in settling?-There is delay in settling, most undoubtedly.

16,191. Is that not strictly prohibited by the regulations?-I don't think it is. There are five days allowed for settling, according to the Act; but here it takes five or six or seven or eight months.

16,192. What is the cause for that in your opinion?-I cannot say.

16,193. Have you any doubt that the men would come forward to be settled with if they were instructed to do so by the agent and the master of the ship?-I should think they would, and be paid within a day or so after the ship's arrival. I think that would be far better for all parties.

16,194. Are you aware whether there is any difficulty in making up the statutory accounts of wages which justifies a delay of five or six months in settling?-No. I think they can be made up in the course of ten hours for any whaling crew.

16,195. But there may be a difficulty in making up the account at the agent's shop, may there not?-I don't know. They might have that prepared beforehand, if it was necessary.

16,196. Do you know whether the effect of the delay which so occurs is to make the men incur larger accounts at the agent's shop?-I am not aware of that.

16,197. Have you ever heard any statement from the men to the effect that they had to go to the shop during that period of delay?-I never did.

16,198. Do you think it is the fault of the men that the settlements are so long delayed?-There is no doubt a fault on the part of the men, because, if they go away to their homes in the distant islands, there must necessarily be a difficulty in collecting them again.

16,199. But is it not the custom to let them away in the first instance without directing them to come and receive their wages?-I think so.

16,200. Do you know whether they have ever been strictly ordered to attend for that purpose by the master of the ship?-Not to my knowledge.

16,201. Where are the men usually landed from these whaling vessels?-They are sometimes landed at the lighthouse, sometimes at Scalloway, sometimes at Sumburgh Head, but most commonly at Lerwick harbour.

16,202. Are nine out of every ten landed there?-No, but more the one half of them are landed in Lerwick harbour.

Lerwick, February 5, 1872, Mrs. MARGARET SMITH or GIFFORD, examined.

16,203. Do you live in Lerwick?-Yes.

16,204. Do you knit haps?-Yes; but only a few, because I am getting old and weak, and I am not so able to work as I used to be.

16,205. Have you knitted lately for Mr. Sinclair?-I have knitted for him for a long time. I think it is about a fortnight since I sold my last hap to him. It was between 11/2 and 13/4 yards.

16,206. What kind of wool was it made of?-Just common wool of different kinds-grey and black and white.

16,207. Was it worth about 2d. per hundred?-It would be worth about that.

16,208. What did you sell it for?-6s.; that was what I commonly got for these little haps.

16,209. Did you sell it for that price in goods?-I was to get anything I wanted. I have something to get yet. I got tea and soap, or anything I required, and I shall get the rest as I need it.

16,210. Was that about the ordinary price which you got for a hap of that size and quality?-Yes. If I could make them bigger, I would get more money, perhaps 10s., and from that down to 6s.

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16,211. How long have you been dealing with Mr. Sinclair?-I have dealt with him from 1840 or 1845.

16,212. Have you always been paid by him in goods during that time?-Yes, when I asked them; but if I asked any other thing I got whatever I asked.

16,213. Have you bought articles for money in Mr. Sinclair's shop?-It was not very often that he got any money from us; but when I wanted anything from him, I found there was no difference whether I paid for it in money or in goods.

16,214. Do you mean that you paid the same price for the goods which you bought, whether you paid for them in money or in hosiery?-Just the same; I never saw any difference.

16,215. Are there not two prices in Mr. Sinclair's shop?-Not so far as I know; but I can only speak for myself.

Lerwick, February 5, 1872, WILLIAM GARRIOCK, examined.

16,216. Do you live in Sandsting parish?-Yes.

16,217. Are you serving in the Naval Reserve in Lerwick just now?-Yes.

16,218. Have you been bred to the sea?-Yes.

16,219. Where have you been at sea?-I have gone to Greenland and Davis Straits, for the most part.

16,220. Have you ever been at the Faroe fishing or at the ling fishing?-No.

16,221. Have you been south?-Yes, I was south for a short time; but I have generally gone to the seal or whale fishing since I was able to go.

16,222. From what agents have you got your engagement?-From Mr. Joseph Leask, Mr. George Reid Tait, and Messrs. Laurenson & Co.

16,223. How long have you been doing that?-Since 1854. I have been in Greenland almost every year since then.

16,224. Did you always get your outfit from the agent with whom you were engaged?-Always.

16,225. And some supplies for your family besides?-Yes.

16,226. Did you keep an account in the agent's shop, from which your family got what they wanted during your absence?-Yes.

16,227. Did your wife get all her supplies from Lerwick?-No; she got most of them from shops in our own neighbourhood, because it was a long distance to come to Lerwick; but sometimes she sent here, and sometimes not.

16,228. Why did she send here for them?-Sometimes she had to send here for money when she could not get money from her neighbours.

16,229. Did she get money here whenever she wanted it?-Yes, so far as ever I knew.

16,230. Did she have allotment notes?-Yes, towards the end of the time, but not at first.

16,231. Did you always take allotment notes for her use while you were absent?-I have done so lately.

16,232. Are these allotment notes taken in her name?-Yes; but sometimes I have been so much indebted to the agent before I left, that I had to leave the allotment note with him until he was paid.

16,233. Have you done that lately?-Yes.

16,234. Had you been in his debt before you engaged with him?- No. I got into his debt at the time of engaging. I got a lot of things from him then.

16,235. Did you leave your allotment note in his hands as a security for the payment of these supplies?-Yes.

16,236. Was the note taken in the agent's name?-No; it was taken in my wife's name, and she was supplied by him if she required anything.

16,237. Who was the agent you engaged with last year?-Messrs. Laurenson & Co. I also engaged with them the year before. The year before that, I think I engaged with Mr. Joseph Leask.

16,238. In all these years did you run up a pretty large account at the agent's shop?-Yes; I always had an account with the agent.

16,239. Did you settle that account before you went up to the Custom House to be paid your wages?-No. Sometimes the agent was at the Custom House to receive payment of his account there, and sometimes I went down to his shop and paid him after I had been paid myself.

16,240. But was the account settled in the book, and the amount due by you to him ascertained before you went up to the Custom House?-Yes.

16,241. Was that done always?-No, not of late.

16,242. Why did you get supplies from Lerwick when you could have got them nearer home, without giving your wife the trouble of sending so far for them?-Sometimes, perhaps, I could not get credit from a neighbour.

16,243. Could your wife not have got money from the agent in Lerwick by sending in her allotment note to him?-If I was in debt to the agent, I could not expect him to advance money until he was paid his debt; but I never saw an agent refusing money, even although there was an account due to him.

16,244. Did you ever ask money and get it when there was an account due?-Yes.

16,245. Do you mean that your wife asked for money when you were away?-Yes.

16,246. Did she require it for any particular purpose when she asked it in that way?-I cannot say.

16,247. Did you ever know of her asking for money in order to buy supplies near home?-No, I never knew that.

16,248. Do you think she would have been likely to?-I don't think it. I think if she had ever done it, I would have known.

16,249. Do you think she would have got the money if she had asked it for that purpose?-I am sure she would.

16,250. Then why did she not do it instead of carrying her supplies all the way from Lerwick?-I don't know as to that.

16,251. How far is it from Lerwick to your place?-I never heard of it being measured, but I should say it is over twenty miles.

16,252. You say the agent keeps your allotment notes, even although they are in name of your wife?-Yes, if I am indebted to him.

16,253. Don't they require to be signed by your wife?-Not at first.

16,254. But afterwards?-Yes; if she has a note, then of course she has to sign it before she gets the money.

16,255. But she does not require to sign it when she gets supplies; these are set down to the account?-Yes; she does not require to sign it unless she is drawing her half-pay at the Custom House.

16,256. Has she ever drawn her half-pay, so long as you remember?-Yes.

16,257. Is that long ago?-It is perhaps a couple of years ago.

16,258. How much of it did she draw then?-She drew half a month's pay every month when I was away.

16,259. What did she do with that?-I suppose she required it.

16,260. Did she spend it at home or in Lerwick?-I cannot say.

16,261. Was the allotment note in the agent's hands at that time?-No.

16,262. She had got the allotment note that year herself?-Yes.

16,263. You had sent it to her before you went away?-Yes.

16,264. Then at that time you had not run up a large account with the agent?-Not very much.

16,265. Had you any account with the agent that year at all?-I don't remember; I don't think it was very much.

16,266. There might have been a little for some articles of outfit, perhaps?-Perhaps there was.

16,267. When you settle at the Custom House, are you ever told by the agent's clerk who goes up to hand [Page 412] you the money, that he expects you down at the shop to settle your account there?-Yes; but I usually go first to the shop and see what my account with the agent there is, and then I pay him immediately afterwards, either at the Custom House or at the shop, as soon as I am paid myself.

16,268. Are you expected to go down and pay your account at once?-Yes.

16,269. Are you ever spoken to about going at once?-No, I have never been told to go at once; but I understand it is my business to pay it at once, as long as I am able to do it.

16,270. Is it expected that the men going on a Greenland voyage are to take their supplies, partly at least, from the agent's shop?-I don't know if it is expected or not. I suppose it is expected, but a man may buy his outfit wherever he pleases.

16,271. Did you ever know a man buying it elsewhere than at the agent's shop?-I have bought some articles elsewhere myself.

16,272. Did you ever buy the whole of your articles anywhere else?-Yes.

16,273. Why did you buy any of them elsewhere?-I was not very particular about where I went. If I had money in my hand I went to any place that was most suitable, or where I could get the most suitable articles.

16,274. Did you often do that?-Not often. I more frequently had an account with the agent.

16,275. When you go to make an engagement in the agent's shop for a voyage, are you sometimes asked if you want anything?-No, I am never asked that, unless if I happen to be running an account he may ask if have got all my things, or something like that.

16,276. Does he not usually ask you that?-I cannot say that he does.

16,277. Is there any difficulty nowadays in getting berths in Greenland ships?-Sometimes there is because there are not many ships that come here.

16,278. Are there more men than berths?-Sometimes that is the case.

16,279. When that is the case, what kind of men have the best chance of being engaged?-I don't know.

16,280. Do you think a man who owes an account to the agent, or who is to keep an account with him, has a better chance than another?-I cannot say that he has.

16,281. Do you think the men have that impression?-I believe they do have that impression; but whether it is a right impression or not I cannot say.

16,282. Have you learned from some of the men themselves that such an impression exists?-No, not from the men themselves.

16,283. Then how do you know that they think so?-I have no real knowledge on the subject; only I know that is said to be the case.

16,284. Who says it?-I cannot mention any particular person that I have heard it from. Perhaps when they see a man engaged for a ship, when they do not have a chance themselves, they may think there is some cause like that to account for it.

16,285. Then some of the men do think that they have a better chance of a berth if they have an account with the agent?-I have merely heard that said; I have no experience of it myself.

16,286. Do you think that if you were not to come down from the Custom House at once and pay your account in the agent's shop, you would have a chance of getting a berth from that agent next year?-I believe I would.

16,287. Why do you think so?-Because, if I was due the agent an account, he might perhaps think that I would make a better voyage in another year, and that I might then be more able to pay him.

16,288. But do you think he would have anything to do with you if you refused to pay your account to him at the settlement in November: do you think in that case that you would have a chance of getting another engagement from him in February or March?-I suppose I would have a chance.

16,289. Would he not say that he would have nothing more to do you, because you had not paid your previous account?-No; I never saw that done.

16,290. Is that because you have always paid your account in proper time?-I don't know; but I always have paid my account when I could.

16,291. Did you ever know of any man who did not pay his account to the agent as soon as he got his money at the Custom House?-No, I never knew of any man who did not do that.

16,292. Did you ever hear that spoken of?-No; I never heard about anything of that kind.

16,293. Did you never hear the men talk among themselves about that matter?-No.

16,294. What do you think would happen if you did not go down at once to the agent's shop and pay your account whenever you got your money at the Custom House?-So far as I know, I don't think anything would happen at all.

16,295. Do you think the agent would look after you?-I have been due things myself for about a year but he never looked after me. That was before I was paid at the Custom House.

16,296. Then you had settled with the agent in office on that occasion?-Yes; and left a balance due.

16,297. Were you due that balance to the agent for twelve months afterwards?-Yes.

16,298. Did the same agent get you a berth in a Greenland ship in the following year?-No; I left that agent and went to another for that year.

16,299. Did that other agent take the balance over and become responsible for it?-Yes; it was brought into the next agent's books.

16,300. Who was the agent who took over your debt in that way?-I was once due an account in that way to Mr. George Reid Tait, and I afterwards found it in Mr. Leask's books.

16,301. Did you not know of that until you found it in Mr. Leask's books at settlement?-I knew I was due the account.

16,302 You knew you were due it to Mr. Tait but did you know that it had been transferred to Mr. Leask until you found it in the book?-No; I did not know that until then.

16,303. Were you surprised to find it charged in Mr. Leask's books against you?-No; I was not surprised at all.

16,304. Did you expect to find it there?-No, not exactly; but of course I would have paid it if I had been able.

16,305. Did that happen to you more than once?-No; only once, to my recollection, in that way.

16,306. Did it ever happen to you in any other way-It happened once in this way: that I supposed I was due an account to Mr. Leask in one year, and I found the account standing in his books against me next year.

16,307. Did you change your agent that year?-No.

16,308. How long is it since your account with Mr. Tait was transferred to Mr. Leask?-I cannot say exactly, but I think it will be more than twelve years ago.

16,309. Have you never had a balance against you since at settlement?-No.

Lerwick, February 5, 1872, ROSS GEORGESON, examined.

16,310. Are you a seaman living at Scalloway?-Yes; I am skipper of a Faroe smack.

16,311. In whose employment have you been lately?-Mr. Leask's.

16,312. For how many years have you gone to the Faroe fishing?- I have gone every year for about fifteen or sixteen years.

16,313. Are you now serving your time in the Naval Reserve?- Yes.

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16,314. Have you always had an account in the books of Mr. Leask when you were engaged in his smacks?-Yes.

16,315. Did you settle that account with him every year?-Yes.

16,316. Have you been employed in his service at any other part of the year, except when you went to the Faroe fishing?-No; but lately I have gone a voyage or two to the south with fish in winter.

16,317. Do your family get their supplies from Mr. Leask's shop in Lerwick?-Yes.

16,318. All the year round?-No; only when it is convenient. For instance, when we go round to Scalloway with the vessel, we generally take a good stock of things with us, which helps us through part of the season.

16,319. Do you not take goods across the country to Scalloway sometimes when any of your family happen to be in Lerwick?- Only very little.

16,320. Do you settle about December or January every year?- Generally about the 1st of December.

16,321. Do you get the balance which is due to you then in cash?-Yes.

16,322. Do you sometimes get advances in money during the course of the year?-Yes; I get what I require.

16,323. How much do you generally get in money before the settlement?-Generally between summer and winter I may run an account of about £30 or £40 for myself and the vessel.

16,324. But what do you get in your private account?-Just what money I require, and what I ask. I may perhaps ask £4 or £5 or £6 at a time, just as I need it.

16,325. Is it for any particular purpose that you ask for so much?- No; there is no particular purpose ever mentioned.

16,326. Do you think you would get all the money that was due to you at any time before settlement if you asked for it?-I have no doubt of that; but there is generally an account run.

16,327. Do you take out goods in the course of the year when you want them?-Yes, when it is convenient to get them to Scalloway.

16,328. Suppose you did not take out any goods at all, but wanted to get the whole in cash, do you suppose you would get that?- Yes.

16,329. Have you ever asked for it all in cash?-No; because I leave my money along with Mr. Leask.

16,330. What do you mean by leaving your money along with him?-I get the same interest for my money when it is in his hands as I would get from the bank.

16,331. Then when you settle you don't always draw the whole balance that is due to you?-No.

16,332. You leave it in Mr. Leask's hands, and get interest allowed to you for it in your next account?-Yes.

16,333. Did you always have an account with him?-Yes.

16,334. Do all the men in the smacks keep accounts with the owner of the smack for their supplies?-Yes, so far as I know.

16,335. Do they all get money when they ask for it?-I never heard anything else. I never heard any man say that he had asked for money and did not get it.

16,336 Do they generally ask for much money?-I don't know. I suppose every man asks for what he requires, or according to what he has to get.

16,337. Are they not expected to get their supplies at the merchant's shop?-It is just as they like.

16,338. Of course it is just as they like, but are they not expected to get a part of their supplies in the shop?-I suppose so. They always do so.

16,339. Are there as many men to be had for the Faroe fishing as are wanted to man the smacks?-Yes. There has been no scarcity in time past.

16,340. Do you know of any men who go to the Faroe fishing and draw money from the owner in the course of the season for the support of their families, and who do not get any supplies at all?- No. , They generally take their goods for the voyage from the merchant, whether they take anything else or not; but I never knew any men who did not take some supplies from him.

Lerwick, February 5, 1872, ARTHUR MOFFAT, examined.

16,341. Are you a seaman living at Lochside, Lerwick?-Yes.

16,342. Are you now serving in the Naval Reserve?- Yes.

16,343. Where have you been employed?-I have been going to the seal and whale fishing.

16,344. Have you ever been at Faroe or at the ling fishing?-No.

16,345. What agents have you engaged with for the Greenland voyage?-I have been out for the whole of them.

16,346. Did you always keep an account for supplies with the agent who engaged you?-Yes.

16,347. Was that settled at his office before 1867?-Yes.

16,348. Since that year it has been settled at the Custom House?- Yes.

16,349. Do you always go straight down from the Custom House to the agent's office and pay your account?-Yes.

16,350. Are you expected to go straight down?-I don't know, but I think it my duty to do so.

16,351. Are you expected to take some of your supplies from the agent who engages you?-We just take them as we require them.

16,352. But if you require supplies or an outfit, are you expected to take them from the agent who engages you?-Yes, we can do nothing else but take them from him; we cannot go to a strange shop for them, because they would not give them to us.

16,353. Why would they not give you credit at it strange shop?- Because they do no business with us, and perhaps they would not know us.

16,354. Would you not have your first month's pay in advance with which to buy what you wanted?-Not very often, because I don't take it out in that way.

16,355 But you could it?-Yes.

16,356. And if you had it you could get what you wanted at another shop?-Yes.

16,357. When you go in to engage with an agent does he, or do his shop-people, ask you if you want anything?-No.

16,358. Do you generally get an advance note?-Yes, we get it, but we leave it with the agent; at least I do.

16,359. Why do you leave it with the agent?-Because I find the half-pay too little for the support of my wife and family during my absence. They require more supplies than that, and they get them out of the agent's shop.

16,360. Has that been your practice for a long time?-It has.

16,361. Have you always engaged with the same agent for a number of years back?-Yes, I have engaged with Mr. Leask for some time.

16,362. Have you always got your supplies at his shop?-Yes.

16,363. You said you could not get credit anywhere else: is that because Mr. Leask has the command of the money you are to get?-No, it is not that, because we get the money if we want it.

16,364. You could get the money if you wanted it on an allotment note, but not otherwise?-Yes.

16,3 65. Do you say that you could get a larger amount of supplies at Mr. Leask's shop than your allotment note would pay for if you had it?-I do.

16,366. Have you a balance to receive at the end of the year when you settle with Mr. Leask?-Generally.

16,367. Are you never in his debt at settlement?-No.

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16,368. Does your wife get cash from Mr. Leask when she wants it?-Yes.

16,369. How much does she generally get?-I don't know.

16,370. Did she ever get 5s. at a time?-Perhaps she got the whole half-pay at a time if she wanted it, or the half of it.

16,371. Was that if she wanted it for any particular purpose, such as for paying rent?-Yes, or any necessary thing.

16,372. But it was only for a necessary purpose that she got it?-I suppose so.

16,373. Is it generally understood among the men in the whaling, that they ought to deal with the agent who engages them for a voyage?-No. We can deal with any person we like.

16,374. But don't they always deal with the agent who engages them, taking their outfit and their supplies for home from him?- Yes.

16,375. Do you think that if a man did not deal with the agent he would be as likely to get a berth next year as if he had kept an account with him?-Just the same; I never found any difference.

16,376. But did you ever go to another agent for your supplies than the one who had engaged you?-No, not in that particular season; but I have changed agents occasionally.

16,377. How long is it since you were engaged by another agent than Mr. Leask?-Two years. I changed from Laurenson & Co. to Mr. Leask then.

16,378. Why did you change?-Just to fall in with the ship that I wanted to go in. That was my only reason.

16,379. Were you clear with Laurenson & Co. when you changed?-Yes.

Lerwick, February 5, 1872, JAMES LAURENSON, examined.

16,380. Are you a seaman residing at Mews, in Dunrossness?-I am.

16,381. Are you serving at present in the Naval Reserve?-Yes.

16,382. What trade have you been engaged in as a seaman?-I have mostly been in the south.

16,383. Have you been in the Faroe fishing?-No.

16,384. Have you been at the ling fishing?-I was two years in the ling fishing at Mews, about eight or nine years ago, for Mr. Robert Mullay.

16,385. Did you keep accounts with him then for your supplies?- Not for supplies, only for fishing material.

16,386. Did you get any advances of money from him?-I did not ask for any; I did not want them at the time.

16,387. Would you have got advances of money if you had asked for them when you were not taking supplies?-I expect I would.

16,388. But you did not want the money, and you did not ask for it?-I did not ask for it.

Lerwick, February 5, 1872, ALEXANDER GOODLAD, examined.

16,389. What are you?-I am a seaman, and I live in Lerwick.

16,390. I understand you wish to make some statement about the sealing and whaling voyages?-Yes. If I ask a half-pay note from an agent, it cannot keep my family, and I am not much acquainted with any person except the agent who will give me credit and therefore I don't know where to get supplies for them in my absence except through him.

16,391. What is the amount of your wages?-Usually 50s., and my half-pay is usually 25s.

16,392. Do you commonly run an account with the agent?-Yes.

16,393. Is your reason for doing so that your halfpay is too small?-Yes.

16,394. Did you ever try to get credit anywhere else except from the agent who engaged you?-I have.

16,395. Were you refused?-Sometimes, but not always.

16,396. What reason was given for refusing you credit?-They said they did not know me.

16,397. Was that by a merchant in Lerwick?-Yes.

16,398. Were you asked on these occasions whether you were running an account elsewhere?-Yes; and I was told to go to the agent's for what I wanted.

16,399. Do the tradesmen here expect that you will get your supplies from the agent who engages you for the whaling voyage?-Commonly they do.

16,400. And they don't care for giving credit to men who are running an account with the agent?-No.

16,401. Were you running an account with the agent also at the time when you applied for credit in that way?-No; I was clear with the agent at that time.

16,402. Did you get no supplies from him at the beginning of the voyage?-No; but I have sometimes got supplies from the agents before I went on another voyage.

16,403. What merchant refused you credit in the way you have mentioned?-It was some of them who did not know me in Lerwick.

16,404. Did they refuse because they knew that the agent had the command of your money, and could keep it for his own account if he had one?-Yes.

16,405. Did they say so?-No, they did not make that statement exactly; but they told me that when a man was getting a ship from an agent he should go and get his things from him.

16,406. Did any merchant refuse to give you goods, and give you that reason for his refusal?-Yes.

16,407. Was he an agent in the whaling trade?-No, he was not.

16,408. Had you an account at that time with any agent?-Yes.

16,409. I thought you said you had not?-I was done with the agent, and had signed clear in his books.

16,410. What season of the year was that?-In February.

16,411. Do you engage then for the rising season?-I engage for it in the month of March.

16,412. Do you then open an account with the agent for your supplies?-Yes.

16,413. Then is it quite an understood thing that man who engages with an agent for a Greenland voyage must get his supplies from that agent's shop?-If his goods are as cheap and its good as any other person's, they commonly take them from his shop; but if not, they usually make a change with the first month's advance they get, and buy what they want where they can get it cheapest and best.

16,414. Did you ever do that?-Yes.

16,415. Do you always do it?-There are many things which the agents do not keep, and therefore we have to go to different places for what we want.

16,416. Do you get money from the agents for that purpose?- Yes; we get our first month's advance on signing, and then they will give us supplies in addition for two or three months I suppose, or as much as we have a mind to take.

16,417. Have you ever been spoken to at the Custom House, when you were getting your pay, about going down to the shop and settling your account?-I commonly settle my account before I go up to the Custom House.

16,418. But you don't pay your money until after you have been at the Custom House?-No.

16,419. Have you ever been spoken to at the Custom House by the agent, or his clerk, about going down to the office and paying the money that was due?-Yes. I was told last year by Mr. Leask's clerk, Mr. Jamieson, to go down and pay the balance which I was due.

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16,420. Did he tell you that in the Custom House or at the office?-At the office, when we got our account of wages.

16,421. That was before you went up to get your money at all?- Yes.

16,422. He told you then to come back with it?-Yes; and to pay the balance due.

16,423. Is not that always done when you go to settle your account?-No.

16,424. Is it not often done?-No; only that was the time anything of the kind had been said to me.

16,425. Did you ever hear it said to anybody else?-No.

<Adjourned>.

LERWICK: TUESDAY, FEBRUARY 6,1872.

JOHN HARRISON, examined.

16,426. What are you?-I am a merchant in Lerwick.

16,427. Have you been for a long time a partner of the firm of Harrison & Son?-Yes, since 1856.

16,428. I understand you have had large experience in the management of the Faroe fishing business?-Yes.

16,429. Have you also had some experience with regard to the ling fishing?-Not a great deal; but I have had some.

16,430. Has your firm had any connection with the management of land or property in Shetland?-None whatever.

16,431. Have you neither been tacksmen nor proprietors?-My father is a proprietor to a very small extent.

16,432. But you have not been in any way dependent for your supplies of fishermen upon any interest or connection with land?-In no way whatever.

16,433. Did you find the absence of that connection with land to be any inconvenience to you in the management of your business, with regard to getting fishermen?-None whatever; but men have been hindered from engaging with us, in consequence of being under the power of tacksmen or landlords, who wished to engage them for themselves, although they would have preferred to have gone into our service.

16,434. Has that occurred in many cases?-I cannot state the number of cases, but it has occurred in many, and within recent times.

16,435. Can you give an instance of that without mentioning names?-I could not particularize the instances at the present moment, but if I had time I am prepared to bring forward more than a dozen instances within a period of between two and four years back.

16,437. Are you now speaking with regard to your supply of Faroe fishermen?-Yes.

16,437. Is it not the case, that where tenants are bound fish for their landlord or tacksman, that obligation only applies to the ling fishing if they engage in it but that they and their families are quite free to go to the Faroe fishing or the whale fishing if they please?-Under the system which obtains in Shetland, it makes no difference what fishery a man may go to. He is bound to do what the landlord or the tacksman wishes; if not the result is merely the service of a warning to the parents; and of course, in consequence of the injury which that would do to them, the children, out of their kindness to them, must submit to any rules which may be laid down for their observance.

16,438. The evidence which has been led before me before, of fishermen and of proprietors, has been to this effect, that the obligation upon a man to fish for the proprietor or tacksman extends only to the ling fishing, if he is engaged in it, and that if he chooses to go to the Faroe fishing he is at perfect liberty to do so?-I know of no such obligation.

16,439. Has your experience been different?-Entirely different.

16,440. Does your experience not apply to cases where the tenant may have been in debt?-When the tenant is in debt, it is utterly impossible for him to go and serve another man. But I was referring to the case of parties who were quite free of debt, and who had money in their own possession.

16,441. How many of these cases have come within your knowledge within the last two or three years?-I could not particularize them. There have been several cases which have come under my own notice, or the notice of my firm, although I could not state the number; but from hearsay, and from the talk of men who are serving other owners, I am led to believe that a very great number of these cases has occurred. I do not mean to say that there was actual straightforward force put upon the men; but there were certain innuendoes, by which they knew perfectly well that if they did not do as the tacksman or landlord wished, the result would be that they would be

warned out.

16,442. Can you mention the circumstances of any particular case in which men have been prevented from going to the Faroe fishing in any of your vessels?-I can particularize one instance which came very vividly before me. There were two brothers, who had been with my firm since they were boys. I had rather a respect for them both, because they were honest men and capital fishermen. One of the boys came to me and said, 'I find that I cannot go in the vessel I wished to go in this year, because I am told by the tacksman that my parents will be warned. My brother can go; but if he does, he will have to pay so much for the liberty of going in the vessel that he wishes to go in.' I had no reason to doubt the correctness of that statement, because, notwithstanding his evident anxiety to get into the vessel belonging to us, in which he wished to go, and in which he had been serving before, he did not go in her; and it was the evident pressure that had been put upon him which hindered him from going.

16,443. Is that the most striking case of the kind that you have come across in your business experience?-I cannot say that it is the most striking case, but it is the case which appears at the present moment most patent to me, because we were so directly interested in it ourselves.

16,444. How long is it since that happened?-Three or four years ago; I cannot say precisely.

16,445. Is that the only way in which your not having connection with land has interfered with your business; or do you find it a disadvantage with regard to the manning of your own vessels, not to have landed property under your control?-No, I don't find that to be a disadvantage; I find that we have been the most successful owners of fishing vessels in the Faroe trade of any in the country; and the reason is simply this, that the men who come to us are free men-men who are not bound, neither will be bound, by tacksmen or landlords but men who have been able to earn money by superior energy; but we have had to do a great deal in order to obtain such it class of men, and we have had to lose a great deal of money which other people perhaps have put into their pockets.

16,446. Do you mean that you have lost it great deal of money in order to secure this superior class of men?- Yes.

16,447. But has not the fact that you have procured them, proved remunerative to you in the end?- [Page 416] Of course it has. It has been a gain to the men, and it has also been it gain to us.

16,448. Do you find that a man who is in debt is its good a fisherman, in your experience, as one who keeps clear of debt?- By no means. My experience has been, on more than fifty different occasions, that although men were due us from £5 to £18 or £20, we would not engage them again if the captains of the vessels said they were not fishermen who were worth being taken, and would rather lose the balances against them in our books than employ them.

16,449. Then you consider it an erroneous statement, that it is advantageous for a merchant in Shetland to obtain a great number of debtors?-I consider it to be the most erroneous statement that ever was made.

16,450. You are aware, I suppose, that that statement was made in the evidence of a witness who was examined in Edinburgh?-Yes, I read something of that kind in the evidence; but I think it was erroneous. I suppose Mr. Walker, when he made it, thoroughly believed that the parties to whom he referred believed that having a number of debtors was the best thing they could possibly have; but my impression is quite different, because the fishermen who are in debt do not have the same energy, nor do they exert themselves so much in procuring fish as other men who are free. If the fishcurer who had so many debtors had called them in and said to them, 'Now men, I will strike off the balances against you, and you will get no more supplies until you bring fish ashore,' I have not the slightest doubt that at the end of the season the result would have been it great gain to him, and a great gain to the fishermen.

16,451. But you think that other parties in Shetland may have acted upon the principle referred to in Mr. Walker's evidence, although you do not approve of it?-They may have done so, and I have no doubt they have, because it is a common axiom in Shetland that if once you get a man into debt you have a hold over him. No doubt you have a hold over him, but it is simply a hold over a very unwilling slave.

16,452. However, you have acted upon a different principle?-I have always endeavoured to do so as much as possible.

16,453. And you think you have been justified in doing so by the results?-Decidedly.

16,454. Can you give me any particular instance in which you proved the superiority of men who were free from debt to those who were in debt?-I can give general instances of that. In an island called Hildesha, belonging to my father, the men were accustomed to cast their fish, as it is called, green, and to get payment at so much per cwt. when they were landed green on shore. I found, after three or four years' experience, that at the settlements the men were getting into debt, although they were very good fishermen; indeed there were no better fishermen on the west side of Shetland. When I asked them the reason they said, 'Will you give us liberty to cure and dry our fish, and to sell them to you, or to Messrs. Garriock & Co., when they are dry?' I said, 'Certainly, if you think that will better your condition. Our house is an exporter of fish to Spain, its well as Garriock & Co., and I expect that you will not give them the fish at the same price which we will give you for them, but that you will rather give us the preference, seeing you are tenants of my father.' The men said that of course I should get the fish immediately they were dried, and they thought that would be an advantage to them. The result of that was, that the men reaped a great benefit; and although some of them afterwards, left the island in debt to the extent of £50, the best of them are now free men, and have money of their own in bank.

16,455. Is it long ago since that happened?-It is more than four or five years since they left the island.

16,456. How long is it since they paid off their debts?-I think not more than three years ago, some of them.

16,457. Was that not binding the tenants to deliver their fish to you in the same way as proprietors do, whose method you disapprove of?-Certainly not. I stated distinctly that if they offered their fish to Garriock & Co., and could get more money from them, then they were at liberty to sell to them. There was no stipulation whatever to the effect that these men were to deliver their fish to us.

16,458. Except that they were to give you the preference?-That was not at all stated. They simply gave us the preference, because they had a notion-a very foolish notion-that we might have acted in the same way as other parties would probably have acted if they had not done so: that was, by giving them a warning and turning them out of the island.

16,459. Did you not say that you stipulated with the men for that preference?-No, I did not stipulate for it. When I said to them that I expected they would give us the preference I did so not in the way of a threat, but, seeing that the men were tenants of ours, and that they had no reason to be dissatisfied with any supplies which they might receive, from our house during the time of the fishing, I felt that they were right in giving us the fish. I don't deny, however, that there was a certain sort of coercion upon them, from the very fact of my father being their landlord.

16,460 Have you considered the existing system in Shetland with the view of suggesting a remedy for the grievances which are alleged to exist?-I have thought it great deal over it, and our firm has suffered a great deal in consequence of the existing state of affairs, in the way I have already referred to; but certainly the remedy one can hardly point out

16,461 What do you consider to be the principal evils which exist?-The principal evil in Shetland arises from the system of land tenure, whereby no man has a lease; or if he gets a lease and if he is a fisherman, that lease is such that it is impossible for him to continue to be a fisherman, and to prosecute the fishing with energy. It is those who have no leases who are so bound down that they cannot do anything in the least degree contrary to the wish of the landlord or tacksman. I may give one instance of that, which is rather ludicrous. I was down at Sandwick parish the other day, and I was very anxious to bring up some fowls to town if I could get them to buy. I sent a man round to see if he could get any for me, but he called back saying that although I had offered about twice the value for each of the fowls, he had found it quite impossible to purchase them, as it was an agreement between landlord and tenants, although the tenants had no leases whatever, that they had to deliver so many fowls about the month of February to the landlord. I don't know whether the landlord gave credit for these fowls and took the value of them off the rent; but my impression is that it was something over and above the rent, as a present for being allowed to sit without leases.

16,462. Was not that just part of the rent as kain was formerly paid, and is now paid in some parts of Scotland?-I don't think it was, because there is no account of rent in which that item is marked down, so far as I know.

16,463. But I suppose the obligation to fish which is imposed upon yearly tenants is the principal objection which you have to the present system of landholding?-Decidedly.-

16,464. It what way does it operate injuriously this way: that neither I, nor any man who has any amount of capital, can come forward and by competition enable these fishermen to get a larger price for their fish.

16,465. But the arrangement with these fishermen all cases is stated to be, that they get the current price at the end of the season. Would that current price be any higher than it is now if the tenantry of Shetland were not so bound?-I am speaking just now of the benefit to the fishermen, not of the benefit to the fishcurers. I think the current price at the end of the year might in many cases be less, even with greater competition, if the parties bought the fish green from the fishermen, all the fishermen being free, because several of them no doubt would be obliged to sell their fish at an early period of the year when they might not obtain a good price. That would therefore bring down the market, and the result would be that the fishermen [Page 417] in that way would get less money if a current price were fixed then. But with regard to the benefit to the fishermen, I think that if there was a system of cash payments the competition would ensure the highest price to the fishermen; and of course the parties who bought would have to take the risk, the same as every merchant does who buys an article in every other trade in the world.

16,466. If you were introducing a system of cash payments, how would you propose to work it in the ling fishing?-That is a very difficult question to answer. In the case of the ling fishing, as well as in other fisheries, the only way would be to pay the men when they came on shore, as the fish were weighed out of the boat.

16,467. Would you pay them the whole amount according to a price fixed at the beginning of the season or at the time of delivery?-At the time of delivery, not at the beginning of the season.

16,468. Then that price would vary according to the state of the market?-Yes. If the price were fixed at the beginning of the season, and if one boat or twenty beats fished to one man, the result would be that that party would have the power over these men, so that no other competitor could come forward, although the markets might rise to the extent of from 1s. to 2s. 6d. per cwt.

16,469. Then you would not only have the price fixed at the time of delivering the fish, but you would give up the existing practice of engaging a boat's crew to fish for the whole of the season?- Decidedly. In the case of the ling fishing I would leave power to the boat's crew to sell to whom they liked.

16,470. In that case would there be any choice but to deliver to any fish-curer whose station happened to be most convenient for the crew?-The distances in Shetland between the different stations are sometimes very considerable, and of course a fisherman would be obliged to deliver his fish to any party who had a station near his house, if no other person came forward, but by the existing law any person who wished to go into the trade could come forward and erect a booth on the shore, and put up all the paraphernalia necessary for the curing and drying of fish, no

matter on whose ground it might be. There are plenty of beaches in Shetland; and if the fishermen at a station came on shore and found that they could get a higher price from any competitor who came forward, other than the person who had a booth erected on that beach, they would be quite entitled to sell their fish to that other party, who could cure his fish on the beach, seeing that the party who held the beach did not have any fish to cure on it himself, no matter to whom the property belongs.

16,471. Is it not the practice in Shetland for proprietors to let their beaches?-It has been the practice, but it is not legal. The practice has generally been to charge 1s. per ton for the curing of fish on the beach; there is no such thing in Shetland as a beach let, but the tenants or small crofters who want to eke out their incomes can cure fish, or rather dry them, for themselves on paying perhaps 1s. per ton to the landlord or to the tacksmaster, for the privilege of drying the fish on the beaches below the crofts which they occupy.

16,472. Is it within your knowledge that 1s. per ton is generally paid by every crofter who cures fish on the beach adjacent to his holding?-That is quite within my knowledge, because our firm have paid it to more than twenty small crofters who have been drying fish for us, and they have then had to pay it to their landlord or tacksman.

16,473. Do you mean that that charge has been made by the crofters against you?-No, not made against us.

16,474. But they have made that charge, and you have agreed to pay it as part of the price of their fish?-When I first went into the trade 12s. per ton was paid for drying fish to the crofters to whom I refer. After a short time they complained about the 1s. per ton for the use of the beaches and our firm then raised the price of curing to 14s. per ton, which we paid, if I mistake not, for two or three years when no other firm in Shetland paid it. Now, as I understand, other firms in Shetland are paying the same money, 14s. per ton for curing; but 12s. was the original price when I entered into the trade.

16,475. Is that for drying also?-Yes.

16,476. If a price were fixed at the time of landing the fish, and were paid in the way you mentioned, by one of several competing purchasers, do you see any difficulty in the way of a fisherman continuing to live and support himself, as an operative in any trade has now to do?-There would be very great difficulty at first, because the greater proportion of fishermen in Shetland are dependent on the supplies which they receive from the fish-curer to whom they fish. At many times the weather is so bad that they have not sufficient to live upon, and are obliged to go to the fish-curer and ask him for the necessaries of life for themselves and their families.

16,477. But in a time of slackness in the iron trade, or any other trade the same difficulty might beset the operative?-Yes, he might be in want of supplies. I have no doubt that the operatives in Lancashire and the manufacturing districts often suffer what our Shetland fishermen have no conception of. I thoroughly believe, however, that any sufferings which they might be exposed to in the first instance might be relieved in some way, which I cannot at present suggest; but still afterwards their

condition would be greatly improved, because such a system would give them a great deal more self-reliance, and the knowledge that they were simply getting payment for what they delivered would make them more independent and more energetic. I believe the result would be a greatly increased fishery in the islands, and the throwing over of that serf spirit which exists at present among so many of the tenants in the islands who fish.

16,478. Is it not the case that the Shetland fisherman has an advantage over the operative in the south, in respect that he has got a piece of land, which of itself is often sufficient to support him and his family during the greater part of the year?-Generally speaking, the crofts would do so. It would be a very poor croft indeed which would not support them for at least six months a year. In such a case the piece of ground must be very small, or at all events it may be their own indolence which leads them not to make the most of it; but in that way the Shetland fishermen have a great advantage over the operatives in the town, who, if they do not earn a day's wages, cannot get a single farthing's worth of food, except from the charity of others.

16,479. But then it is said that the fishing is it more precarious trade, and extends only over it period of the year in Shetland. Does that not counterbalance any advantage which the fisherman derives from having a croft?-It is true that the fishing is a precarious trade, but we have always found that whenever the weather permits, energetic men can make a very fair earning from it. Of course, when the weather does not permit, it is impossible they can do anything except in the way of inshore fishing; but unless the weather is very bad indeed, if a man will only try he will get as much from that as will save his family from starvation. I think the advantage he has by his croft will compensate for any disadvantage to which he is exposed by the occurrence of periods of bad weather; and therefore I consider that his position is infinitely superior to that of an operative in a time of strike or it time of bad trade, when manufacturers are obliged to cast off their hands from want of sufficient work to keep their mills or their manufactories going.

16,480. Do you consider he would be better even if a system of cash payments were introduced, and he did not fall back or could not fall back upon the fish-curer when he was in want of supplies?-I consider it would be much better.

16,481. Would a system of cash payments be an insuperable obstacle in the way of a man of steady and respectable habits and good repute, obtaining advances in provisions from any merchant in his neighbourhood?-I believe it would help him very considerably. I consider that if it system of cash payments was introduced, [Page 418] a man would find a great deal more facility in getting goods at the lowest possible price from any person who might wish to put up a store in his neighbourhood.

16,482. Are you aware that a great amount of apprehension exists among fishermen in Shetland lest any change in the present system involving payments in cash should deprive them of the support which they derive from the fish-merchants in bad seasons?-I am aware that that is a very prevalent idea among them, and several instances of it have come under my notice during the last two or three years.

16,483. Are you of opinion that that apprehension may have had some effect in making the fishermen unwilling to come forward and to give evidence freely before this Commission?-I have not the slightest doubt that that has prevented men from coming forward who would have been able to have given the best possible evidence with regard to the questions you have asked me.

16,484. Are you now speaking from your knowledge of the people and of the system for many years?-I am speaking from my experience of the people and of the system, which experience has extended over more than 20 years.

16,485. Would it be possible to introduce a system of cash payments in this way, by allowing the fish to be paid for at the current price at the end of the season, if the parties so agreed, and arranging that at delivery a certain proportion of the price should be paid in cash: for example, that three-fourths of the average price for the last five years should be paid them, leaving the remainder of the price to be paid according to the current price as ascertained at the end of the season, thus giving the men the benefit of any rise which might take place in the market by that time?-I am afraid that if such a system were adopted, the party who got the fish from the men even on one occasion, and paid three-fourths or two-thirds of the value of the fish delivered according to the contract price, would have such a power over the men, that, even supposing a competitor came forward, say in a month afterwards, to buy their fish, they would not be able to sell to him although he offered a higher price, because the knowledge that there was a balance standing in the hands of the merchant to whom they had sold in the first instance would hinder them from taking advantage of the increased price from the other, for fear they might not be treated in the way in which they ought to be at the settlement.

16,486. But the question which I put assumed that the engagement of the fishermen was for the whole season?-I cannot see how in that case it would alter the system. It would remain the same as it is at present, because, if the engagement was entered into for the year, although there might be no contract or obligation on the fishermen to take supplies from the man who bought their fish, yet there would be a certain feeling on their part which would force them, as it were, to go with their money which they had received as part payment, and buy goods with it from his place. Therefore the merchant might have the same monopoly which he at present enjoys.

16,487. But if the men had the cash, would that monopoly be in any way injurious,-if you can call it a monopoly where the men have the choice between two shops, and voluntarily prefer that of the fish-curer?-Under the present system of land tenure it would have no effect, because whoever the landlord favoured, if the landlord was not a fish-curer himself, would of necessity have the preference in the dealings of the fishermen, as they would know that under the present system they are liable to get forty days' warning and be turned out of their farms at Martinmas.

16,488. Do you mean that under the present system the fishermen would consider themselves bound to deal at the shop of the landowner or tacksman if he were engaged in fishing?-If a system of money payments were adopted they might not

consider themselves bound to do so, but there would be so many petty vexations put upon them, that the men, out of regard for their own comfort, would decidedly give the preference to the tacksmaster's or the landlord's shop, if he happened to be in the trade, notwithstanding that they might have to pay a trifle more for the goods which they got at his shop.

16,489. Then is it your opinion that, without altering the system of land tenure in Shetland, a system of cash payments would be unavailing to improve the condition of the people?-If no landlord and no tacksman under a landlord was in the fishery trade, then an improvement might be effected, but so long as landlords and tacksmen-who have power over the land sometimes to a much greater degree than the landlord himself can exercise-are fish-curers themselves, it is impossible that a system of cash payments can have any effect in ameliorating the condition of the fishermen as it now exists.

16,490. In what way do you think it possible to modify the system of long settlements now existing with regard to the Faroe fishing?-The only way possible, seeing that the voyage to Faroe extends to six or nine weeks on an average, would be, that when the agreements are made out a contract should be entered into between the owner and fishermen along with these agreements, providing that they are to deliver their fish at a certain price per ton weighed out on their arrival at a port in Shetland, whatever port they may agree to deliver them at.

16,491. Then, in the case of the Faroe fishery, you would suggest that the price should be known before the vessel sails, and not, as you propose with regard to the ling fishery, at the time of delivery?-No, I don't say that. The difference is, that the owner of a Faroe vessel, according to the present agreement, has the risk of the vessel and of the outfit, and also of the salt and of materials necessary for the prosecution of the fishery. In most cases, indeed in all cases, he requires to give advances to a certain extent to the crew, say from at the lowest to £7 or £8 in other cases. If he did not have the power of getting the fish in his own hands, by having a contract from the men to deliver their fish to him at a certain price rather than to others on their arrival after the first voyage the men would have the power to deliver their fish perhaps to another competitor, and the result would be, as is sometimes the case in the Greenland trade at present, where the men are paid at the Custom House, that his advances would not be paid to him at all. The difference appears to me to consist in this, that the fish-curer who gets the fish is the owner of the Faroe fishing vessel, whereas in the ling fishing the men who fish in the boats are the owners of them. That, in my opinion, makes a great difference.

16,492. It is part of the agreement in the Faroe fishing that the merchant should have delivery of all the fish, and that he is entitled to it, because he is the partner of the men in all that they take?-That it is the agreement

16,493. Then you think it would be possible, and perhaps expedient, that a settlement should take place at the return of the vessel from each voyage?-I believe most of the owners would agree to that; but my impression, from the feeling which I know to exist among the fishermen, is, that they would have a notion that they were

lying under a disadvantage by making a contract before the fishing commenced.

16,494. Do you think the fishermen get any advantage in the Faroe trade from having their fish paid for at the current price at the end of the season?-They get a very considerable advantage in that way. We have been in the habit for several years of purchasing fish from vessels owned by Englishmen, and manned by English fishermen from Grimsby and Hull. We pay them a certain price per ton, cash down, when the fish are landed on the beach, and we are supposed to make, and I may say that we do make, a profit upon these fish when they are sold in a dried state. Our fishermen, generally speaking, get within a commission of the price that we receive for these Englishmen's fish, which fish are quite as good as our Shetland fish, and therefore they have the difference of the profit which we make on the price we pay for the fish in a green or wet state and the price that we receive when the fish are dried.

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16,495. Then, if the settlement were to take place at each landing of the fish, in whatever way it was made, you think the men would lose that advantage?-I don't say they would lose in all cases. In some cases they would gain. We have often lost in buying fish in that state, because the markets at the end of the season have fallen so very heavily.

16,496. Would there be any objection, in your opinion, to bringing the vessels employed in the Faroe trade under the regulations of the Merchant Shipping Act applicable to foreign-going ships?- There would be very great objection to that. It would ruin the fishery altogether if there was the slightest restriction upon the vessel sailing at any moment: a great part of a fishing voyage might be lost. In my opinion, a delay of twenty-four hours has, in many cases, hindered a crew of mine from gaining £100.

16,497. When a vessel comes in from her first Faroe voyage, how long does she usually remain in harbour?-That depends very much on the energy displayed by the men in getting the fish out and getting on board their supplies of salt and other fishing material requisite for the next voyage. I know vessels which have taken a week, and I know other vessels which have been off again in forty-eight hours. It cannot be done in less time than that.

16,498. I believe the vessels on their return don't always come to Lerwick?-No; the most of them go to the west side,-to Scalloway and the adjacent places in the islands.

16,499. So that it would be necessary to have a Custom House officer in each of these places, if any such regulations were adopted with regard to the Faroe smacks?-It would be necessary to have a Custom House officer in at least eight different places in Shetland.

16,500. Do you mean that there are eight places frequented by these Faroe vessels where they are in the habit of landing their cargoes?-There are eight places where the vessels go, no matter at which place they land; but there are more than thirty or forty different places in the islands at which they land their fish. I am simply referring

to the places where the owners of the vessels live, and where the vessels go in order to receive stores and salt after the fish have been landed.

16,501. Then the fish may be landed at a different place altogether from where the vessel has afterwards to receive her stores and salt?-Yes.

16,502. But they do go to one of these eight places invariably before starting on their second voyage?-Yes.

16,503. What are these eight places?-Voe, Vaila Sound, Skeld Voe, Reawick, Bixter, Tresta, Whiteness, Scalloway, and Lerwick.

16,504. Do you think it is advantageous for the fishcurer, as a matter of business, to have a shop for the supply of his fishermen; and do you think that a system of short payments or of cash payments would be consistent with the fish-curer remaining also the keeper of a shop?-I don't consider that it would be advantageous for a fish-curer to have a shop where there was sufficient competition to cause him to sell at the low rates of profit which obtain in all places where there is a proper amount of competition, because he undertakes a risk which otherwise he would not do. He takes the risk of supplies to men who go to the fishing, and who may come back without anything whatever. Then, if he is not a landlord or tacksmaster, he knows perfectly well that he has not power over these men to force them to serve him for another year; and therefore I consider that if there was a system of short payments, and if the fish-curer had no advances to make to the men, he would be in a better position than at present, if he is a man of capital, and was able to lie out of his money until he could get the fish dried and prepared for market. There is no doubt that fish-curers in Shetland would require to have more capital than they do have if a system of short payments were adopted, because they get credit, perhaps for months, for the goods supplied to the fishermen; whereas if they had to pay cash they would be placed in quite a different position.

16,505. Do they get longer credit on their purchases of goods than merchants in any other parts of the country in consideration of them having to make these advances to fishermen?-I don't say that they get longer credits, but they get sufficient credit perhaps to enable them to get forward so much of their fish. And even suppose they wished a longer credit, they could, from the creditor's knowledge that they had such fish in their possession, obtain a renewal of their bills.

16,506. Are you aware that it is almost the invariable practice for men employed by a fish-curer to take part of their supplies from the shop of their employer?-That is the invariable practice.

16,507. Do you think the men in general have any option as to whether they are to do so or not? I am not speaking of your own business merely, but of the trade generally throughout Shetland?- In the case of men who are in debt they have no option whatever, because other parties would not supply them, knowing that they are bound to deliver the proceeds of their fishing to the fish-curer for whom they fish. But I must also say, that notwithstanding that there are a great number of men who have plenty of money to pay for their advances, whether it is from a knowledge that they can obtain them at the same prices as they can from others, or from carelessness to

look after the matter, they generally take advances to a small extent from the party for whom they are fishing.

16,508. You say that a man who is indebted has no option; but a man who has no cash, although he may not be indebted, may be equally without option, may he not, on the same grounds that you have stated?-I should say that he has little option, unless he is a man who is well known, and who has perhaps dealt with some other shopkeeper or grocer previously, and paid him honestly.

16,509. Are you aware whether it is common for the fish-curer to make advances in cash to fishermen during the course of the season, with which they can go and purchase their goods where they please?-I cannot say that, to my knowledge, money has been advanced to fishermen during the course of the season in order that they may purchase goods where they please. I don't think that any of the fishermen coming to ask for money would tell the fish-curer from whom they were asking it for what reason it was being required, unless it was to help to pay rent, or to buy meal or some other necessary article for the house.

16,510. Could he not get the meal at the shop of the fish-curer?- In some cases he may not be able to do so.

16,511. You say that fishermen frequently prefer to take advances from their employer although they may have money of their own?-I don't say that they prefer to take it; but I know in my own experience, that, without any solicitation on the part of our firm, men who have plenty of money always do take advances to a certain extent.

16,512. Do you suppose they do that in order to save them from drawing their own money from the bank?-I believe that is the case.

16,513. Has it come within your observation whether a practice of hoarding exists to a great extent in Shetland among the fishermen?-I believe it does.

16,514. Even among men who appear upon the books of the merchant with whom they deal to be in his debt to some extent?- I have known several cases of men who have allowed balances to stand over against them year after year, when I knew perfectly well that they had more than sufficient money in their possession to have paid off the debt.

16,515. How do you account for that?-I account for it in this way, that the system has obtained so long of fishermen requiring advances, or rather taking advances, that they cannot see or do not understand, why they should take their own money in order to buy the necessary supplies before they proceed to the fishing. I have no doubt that they have also this idea, that the fish-curer takes a sufficient profit upon the goods supplied, and they consider they have a right to keep [Page 420] their money and not to pay for them until the end of the season.

16,516. Have you or your firm had any connection with the agency for Greenland ships?-None whatever. The only Greenland vessel we ever had any connection with was a Dutch vessel, sent out by an Amsterdam company last year, for the prosecution of the finner whale fishing at Iceland.

16,517. Is there any additional observation you have to make?- The only other observation I have to make is with regard to the evidence given by Mr. Walker at Edinburgh last year relative to the payments to fishermen and their earnings. As the answers which have been given by my firm in the circular sent in to you, refer at least to one of the smallest years with respect to the men's earnings, I should like to make a statement with regard to the gross earnings, and the sums paid at settlement to the fishermen in the previous year, that is, in 1870. For 81 men and boys employed by us that year, after all the supplies which they had received during the season had been paid by them out of their earnings the average payment to each was £23, 15s., and in many cases those who had the greatest earnings did not take up more than one tenth part of them in supplies during the course of the season. Those men who were free men, and who were not bound to fish in any direction except where they wished, were the men who took up the least advances. I now exhibit a statement for the year 1870, proving what I have stated. It refers to six vessels. The gross earnings of the 81 men and boys in that year were £3022, 18s.; the total amount paid in cash was £1923, 0s. 3d., or an average of £23, 15s.

16,518. You mentioned that certain men left your father's island after having cleared off their debt: where did they go?-They went to various other places; they entered chiefly into the Faroe fishing.

16,519. Did any of them return to fish for tacksmen, and deliver their fish green as they had done formerly?-None of them.

16,520. Is it not the case that some of them went to Burra and resumed fishing, and delivered their fish green to the tacksmen there?-The father of the family went to Burra.

16,521. Did you refer to one family consisting of a father and several sons?-Yes.

16,522. Did the father resume his old system of fishing Burra?- Yes.

16,523. Why did he return to Burra?-Because the boys got dissatisfied with the system under which they were fishing, and the old man, of course, finding himself without the help of his sons, could do nothing else than take a croft of land, and try to eke out a living in the best way he could.

16,524. Then, although the men cleared off their debt in the way you have described, by drying their own fish and selling them to you in a dried state, the boys became dissatisfied with that system of fishing?-They became dissatisfied with it, because it was not sufficient to keep them.

16,525. Although it cleared off their debt?-No, they had not cleared it off at the time they left. They cleared it off in consequence of going to the Faroe fishing or elsewhere.

16,526. Then the system of fishing that you refer to, and curing their own fish, did not enable them to clear off their debt?-It did not; but they might never have been in debt if they had been more economical.

16,527. But you referred to that change in their mode of fishing, as showing the effect produced by the difference in the green price and the dry price for fish?-Yes; and if they had remained long enough, I have no doubt they might have cleared off their debt as well as others.

16,528. Then you think they did earn more under that system than under the other system?-Yes.

Lerwick, February 6, 1872, WILLIAM ROBERTSON, examined.

16,529. Are you in the employment of Messrs. Hay & Co. in Lerwick?-I am.

16,530. I believe you desire to give some further evidence on their behalf, with regard to the mode of dealing with men engaged for the seal and whale fishing?-Yes.

16,531. You have prepared a written statement, which you wish to give in as part of your evidence?-Yes.

[The witness put in the following statement:-]

'I am in the employment of Messrs. Hay & Co., and have been for upwards of 28 years, during which time I have had the chief management of their ship-agency business, and particularly as to that part of it connected with the whale ships. It was my part to bring the men and the masters together, and attend to the engagement of the crews. The masters invariably chose the men themselves and fixed their wages, and without any regard whatever as to whether the men had any connection with my employers or not, or might happen to be indebted to them. The masters generally selected first those men who had been with him the previous voyage and that pleased him, and it was no uncommon thing for men to go with the same master for many years. When the men were engaged they always had the option of getting their first month's advance in cash, even before the recent regulations of the Board of Trade; and if they wished it, they also got allotment notes, but they seldom took the latter. In the cases where they did not take all their first month's advance in cash, it was when they required a much larger advance in the shape of warm clothing than the advance could obtain for them. Men going to Greenland require various articles that are not wanted by home fishermen, and which have to be prepared for them specially. Previous to the year 1867 a large proportion of the crews shipped here were young lads from 16 years old and upwards, and the wages from 15s. to 25s. per month. A month's advance could go but a small way in procuring the clothing necessary for such a voyage, and an allotment note could not help them, because sealing voyages were generally short, seldom exceeding two months. The agents had therefore to trust to their getting oil-money and to their honesty in repaying the second year what they could not pay the first. Without such assistance these young men could not go to Greenland; and the consequence of the recent regulations of the Board of Trade having been to prevent them getting the necessary clothing, few of them are now shipped. Of the four crews, consisting of 97 men, shipped by us in 1871, only three lads were under 19 years of age; while in 1866, of the four crews of 67 men, 19 were under that age. Before 1867 I was able to do the greater part of the work of engaging and settling with the crews myself, but since then I have had to be assisted by one or more of the other clerks in the establishment. My employers, that year, foreseeing

the extra trouble that would arise from the new regulations, and that the ship agency would interfere with their ordinary business, arranged with the other agents to insist on getting a higher rate of commission, add intimated to the owners for whom they acted, that they would in future charge 5 per cent. instead of 21/2. They were induced to depart from this, because the agreement was not adhered to by some of the other agents; but they have continued in the trade with much reluctance, and chiefly at my instigation, and from friendly feelings for certain of the masters, for whose fathers and grandfathers even the firm had acted. In 1867, and since then, the men have always got their first month's advance in cash at the Shipping Office; they have also been paid in cash the balance owing to them at the end of the voyage whenever they chose to ask it, irrespective of any advances that had been made to them for clothing; but, as a rule they always came promptly and voluntarily to pay their accounts when so settled, and I am not aware of any case where they required to be compelled to do so. The men are very seldom in debt, and we do our [Page 421] utmost to prevent their being so instead of encouraging it, as has been stated in a report made to the Board of Trade. Whenever the ships came to Lerwick on their return voyage, we always endeavoured to get the men to wait and be discharged in a body, but even then could not always effect it; and when they were landed at other parts of the islands we found it quite impossible. It is not true, so far as Hay & Co. are concerned, that they ever took means to prevent the masters coming to discharge their men at Lerwick. On rare occasions, when the ships have come in, and the masters have been anxious to get away again without waiting to attend at the Shipping Office, I may have written at their request a letter of excuse to the shipping master, but certainly never advised them to go away. It is quite true that when I have paid off men before the shipping master, who had accounts to settle, I have told them to go down to the office and I would follow. Once or twice men have offered to pay me at the Shipping Office, and particularly on one occasion when a man had a trifle to pay he offered it there, which seemed greatly to offend the shipping master, who appeared to dislike the trouble of having to take the men separately. I have been told that a larger proportion of advances in clothing is made to the Peterhead men than to our people, and that such is charged in the masters' accounts there, although not permitted here.'

16,532. You say in that statement, 'The masters invariably chose the men themselves and fixed their wages, and without any regard whatever as to whether the men had any connection with my employers or not, or might happen to be indebted to them. In point of fact, were the men engaged by the masters not generally indebted to the agent?-The masters knew nothing about that.

16,533. But were they not so in point of fact?-They were not, in most cases.

16,534. Had they not arranged in most cases, before going on board the ship or going before the master, to take part of their outfit from your firm?-No; they came and asked that after they had been engaged.

16,535. Did they not purchase their outfit until they had been engaged?-No.

16,536. Had you many cases of men who were engaged by masters through you purchasing their outfit from other shops?-I cannot say. Sometimes I believe that was the case; but of course I could not know what they did in other shops.

16,537. Did all of them come to your shop for part of their outfit at least?-Generally for part of it; but I have seen men who had nothing from our shop except what are called mess things-things which the men have to provide jointly.

16,538. I understand you collect the men and take them before the captains?-Yes.

16,539. Do you make any selection of them before doing so?-No; the captain selects his own men. If the men are strange to the captain, he may ask me if I could find a good man for him, and I may do so, and have done it; but that is the only kind of selection have made.

16,540. But before the men are taken before the captain at all, is there no negotiation on your part as to the men who are to go?- No. If the man has gone in a ship before, he will come and tell me that he wants to go again in that particular ship.

16,541. Do you present a list of the men to the master?-The master generally has a list of his last year's hands, and if he likes them he will take them again, or any part of them he chooses; and if any of them are not suitable for him, he selects the rest from the other men who come forward.

16,542. But do the men that the master selects all come up before him without any list of their names being made beforehand?-He generally has a list of his former crew there to look at.

16,543. Is there any list of the other men besides those of his former crew?-No.

16,544. Are the names of the men wanting engagements not entered in your books?-No.

16,545. Do you not keep a list of the men who come to you asking to be engaged?-We never do that. The men are always there, and I just tell them to be at the place when the master comes, and then he takes his own men.

16,546. But if a man comes in from the country or applies to you for an engagement before the vessel arrives, would you not take a note of that?-No. I merely tell him to be there at the time, and see if there vacant berth that will suit him.

16,547. Do you go up with him before the master?-He goes along with the rest.

16,548. Do you, as acting for Messrs. Hay, ever refuse the application of any man who comes wanting Perth?-We cannot do so, because we always leave that to the master, who can take any man he chooses.

16,549. Do you ever refuse to suggest a man to the master, or to bring him before the master?-I never refused to do that, unless he was a useless man that I knew was of no use.

16,550. Then you have refused to suggest a man in such a case?- Yes; if a man was not a good hand, or the like of that, I would tell the master so, and then he could take

him or not as he chose.

16,551. But have you ever said to a man when he came applying for a berth, 'I cannot take you,' or 'I won't take you, before the captain?'-Not to my recollection.

16,552. Then a man might as well go to the master at once as apply through you for an engagement?-The master comes to the place to select his own men, and some of them go on board and apply to him themselves.

16,553. If you make no selection at all beforehand, is there any use for them applying to an agent? Might the men not go to the master at once and be selected by him, without your intervention at all?- They might; but the master wants an agent to assist him in collecting his men.

16,554. What assistance does the agent give him?-He helps him in engaging them. For instance, the articles are all filled up by the agent, except the names, before going to the Custom House, so as to facilitate business there. Perhaps there may be a number of ships lying here at one time, and there are a number of arrangements to be made. The agent carries through all that, and the master has merely to attend at the Custom House and see the thing completed.

16,555. That is to say, you give the master certain assistance after he has selected the men?-After he has selected the men we take down their names, their places of birth, and so on, and enter them in the articles.

16,556. But before he selects the men the agent has done nothing?-No further than that if a man comes wanting an engagement, the agent will tell him that the master will be on shore at a certain time, and the men are told to be there.

16,557. Is that the statement which is invariably made the men applying for berths to you, without exception?-Yes, invariably; except it is a man that I know is of no use and then I may tell him that I can say nothing for him.

16,558. How many men out of 100 applicants might you say that to?-Not many. I never turn any away if the man chooses to go and take his chance; but if I know that the man is not a suitable hand, I tell him that he cannot expect me to recommend him. But there are very few men of that kind.

16,559. Do you remember any cases in 1871 in which you intimated to the men that they were of no use, and that they would not get a berth?-I don't recollect any.

16,560. Do you remember any particular cases of that kind in the year previous?-I do not recollect any.

16,561. Have you ever intimated to any man who was owing you an account that he was of no use, and would not get a berth?-No, not to my knowledge.

16,562. In what way do you know that a man is of [Page 422] no use?-By being told by masters that he was of no use.

16,563. Have you a general knowledge of the men's abilities from their reputation?-Yes, from what I hear from the sailors who have gone in the same ship; or if the master has found them not to be suitable hands, he tells me not to send them to

him again. But there are very few instances of that kind; perhaps not one out of 100 or 200.

16,564. Was that the mode of selecting the men which was in use five or six years ago?-They were all selected in the same way by the master; he was always present.

16,565. But had not the agents more power in selecting the men some time ago than they have exercised lately?-Not so far as we were concerned. I cannot speak for others.

16,566. When a man went to another agent for employment, being in debt to Hay & Co., was it usual for that agent to enter the men's debt to you in his books, in order to obtain a settlement of it for you?-Not lately; but sometimes it has been done.

16,567. Was it done on the application of Messrs. Hay?-Yes.

16,568. Does the captain apply to you for some opinion as to the qualifications of the men?-Yes, if he does not know them himself.

16,569. You have told me that you have generally made yourself pretty well acquainted with the men's abilities?-Yes.

16,570. Then I suppose only a certain proportion of each crew shipped at Lerwick consists of men who have been in that captain's employment previously, perhaps one third?-Sometimes they had almost all been in the same ship before, but they changed agents occasionally. Perhaps sometimes one half of them might re-ship.

16,571. But very often the captain would secure one half or one third of new hands?-Yes.

16,572. In that case you must be consulted a good deal about the qualifications of the men?-Yes. I tell the master about them, so far as I know; and in some cases, perhaps if he ships a man, that man may be able to recommend another to him.

16,573. But I suppose the captain attaches considerable weight to your recommendation?-Perhaps he does.

16,574. Have you any reason to doubt that he does?-I have not. I would not recommend a man if I did not know him to be a good hand.

16,575. Has a captain ever refused to follow your recommendation and to take a man whom you had recommended?-When he had plenty of men of his own, of course he would take no others than them.

16,576. But when he was in want of men, did he generally follow your recommendation?-Sometimes I have seen him in doubt between two or three men whom I have recommended, and he selected any one of the three that he liked himself.

16,577. If you recommended one man in preference to another, have you ever seen him take a man of whom you disapproved?- In some instances I have seen him take a man who had been recommended to him by another that he had engaged, instead of a man that I could recommend. The man had sailed with him before, and he

recommended another man with whom he was acquainted, and the captain engaged him.

16,578. In that case he might suppose that the shipmate had a more intimate knowledge of the man's abilities than you could have from hearsay?-That is very likely.

16,579. But if there were no such influences as that, have you ever known the captain refusing to follow your recommendation?-No. If he asked me for good man, and I could bring him one and did it, he took him.

16,580. Has any captain complained that you, or those acting for Messrs. Hay & Co., had suggested men who were not preferable on account of their abilities, but who were owing accounts, or were likely to incur accounts to Messrs. Hay?-It is very seldom that I had the chance of recommending men who were in debt to us. I never studied that in recommending a man to a master.

16,581. Was that because you had so few accounts with the men?-We generally had accounts with them all when they went out but there were a few that we had no accounts with.

16,582. Have you any doubt that the men were under the impression or had an understanding that they ought to get their supplies and their outfit, to a certain extent at least, from the agent who engaged them?-They expect that the agent will supply them.

16,583. But does the agent expect that they will give him their custom?-There is no force in that case.

16,584. I am not saying there is force, but does the agent expect that?-We must provide for it, whether they want it or not.

16,585. What must you provide?-We must provide clothing for the men in case they want it.

16,586. But does the agent expect that the men whom he engages for the Greenland whale fishing will come to him for their outfit, or part of it?-Yes, because they had generally done so; but they have never been forced to do so.

16,587. I am not saying that they are forced, but does the agent expect that?-Of course he does, and he is prepared for it.

16,588. Do the men know that he expects that?-I daresay they do.

16,589. Was not that the principal consideration in inducing the agents to undertake to carry on the agency?-I cannot say what it was in former times, because there was an agency in the house before my time, and I came into it after it was established.

16,590. But is it not the case that you are giving up the business because the 21/2 per cent. commission is an insufficient remuneration for your trouble?-Yes, it is insufficient for the trouble we have; and I daresay if it had not been for the circumstance that the present masters are sons and. grandsons to masters who had

been coming to the house long ago, we would have given it up sooner.

16,591. Have accounts for outfit and supplies for men employed in the Greenland fishing become less in recent years than they were ten or a dozen years ago?-I daresay in some cases they have.

16,592. Is it not the case that they have done so upon the whole?- Yes, because there are not so many green hands taken now as there were then.

16,593. You have found it necessary to restrict your credits to them?-On the short voyages we have. A voyage of two months is not like one of five or six months.

16,594. You have therefore lost part of the profit which formerly accrued upon these agencies?-Of course if the outfits are less, the profits must be less.

16,595. Is that the reason why you have found it necessary to give up the business?-That is not the reason. It is because of the trouble we had with them. I believe we have perhaps sold as much to the men this year as we did when we had the agency.

16,596. Even when you had a great number of green hands?- There are not many green hands going now, because the outfits cannot be given to them. That has been the experience of the last few years.

16,597. But, apart from green hands, is not the amount of out-takes by these men less than it was ten or fifteen years ago?-With some men it is as much, and with others far less.

16,598. Do you think that upon the whole it is less?-I have not looked into that, and I could not be sure about it.

16,599. Have you any general impression about that matter?- When there were some green hands going of course they required a larger outfit than they require now.

16,600. I am putting the green hands out of view altogether; I am referring to the able seamen. Do you think that their accounts altogether are not less than they were formerly?-In some cases they are.

16,601. Are they not less upon the average?-I daresay [Page 423] they are, because men do not require so much now as they used to.

16,602. Is it not the case that you have been less willing to make large advances to any class of seamen since the regulations of the Board of Trade in 1867 or 1868?-We would give some men what they required, and to others we would not.

16,603. Do you mean that to men you knew you would give what they required?-Yes, but to strangers we would not.

16,604. Is that because your security in the case of strangers is much less than it was formerly?-Yes.

16,605. Is not that one reason why you are giving it up?-No. The chief reason is that the commission is small, and the trouble is great. We cannot get all the men

together at one time for settlement, or else it would be soon done.

16,606. But if you had the same returns from the men's accounts which you had formerly, would not that be sufficient remuneration for your trouble?-It would not.

16,607. Would you require larger accounts now than you had before, even at the most flourishing time?-No, not larger accounts; but we would require a better commission.

16,608. But larger accounts would serve the same purpose, would they not?-I don't know. We have so much trouble in bringing the men together and getting them settled, that the commission is not sufficient for it, and in fact our people wished to give it up in 1867.

16,609. In what respects is the trouble greater than it formerly was?-Because the men don't come together, and we have perhaps to go up with one and then with another, until we get the whole crew discharged.

16,610. Do you mean that formerly you settled at your own office?-Yes. We did so before the Board of Trade regulations were adopted, and we could take the men at any hour in the day and settle their counts with them; but when we have to go to the Custom House, we can only do that in the Custom House hours, and that entails a great deal of extra time and trouble.

16,611. I suppose that in the case of each ship that may involve a dozen visits to the Custom House?-Possibly it may; sometimes more and sometimes less. We try to get as many of the men forward as possible when the ship arrives, if she comes to Lerwick.

16,612. Will each of these visits to the Custom House occupy an hour?-I would not say that it would occupy an hour.

16,613. Could you do it in half an hour?-Possibly we might.

16,614. You would not have more than twenty visits to the Custom House in the case of any ship?-I could not say the number. I have known sometimes that we had to go to the Custom House with one man, and when we came down to the office we found another man ready, and we had just to return again.

16,615. You say in your statement that you are not aware of any case where the men required to be compelled to come forward and pay their accounts?-No. They have always come forward after coming from the Custom House and paid their accounts.

16,616. I suppose the men understand that they are expected to pay their accounts at that time?-Yes, when they get their money.

16,617. Is that the understanding upon which the advances are made to them?-Yes, they know that.

16,618. What would be the consequence if they did not pay at that time?-We would just have to take steps to get payment; that would be the only consequence.

16,619. If a man declined to pay at that particular time, would you have any objection to get him a berth next year?-We could not refuse him, if the master chose to take him.

16,620. But would you help a man to get a berth if he was in debt for the previous year?-I would not care much for that,

16,621. Could you not prevent him from getting access to the captain along with the other men?-No. The place is open for any one to come in, and I could not prevent him.

16,622. But he would have to apply directly to the captain?-Yes, he would have to apply to the captain for a berth; but they all do that.

16,623. But I understand the captain only takes the men who are secured by you?-No; I never said that. The men come to the place themselves, and they know the place as well as we do, because it is always crowded with men, and the captain chooses from among them, what men he wants.

16,624. Are there usually more men than berths?-Yes.

16,625. And I believe there is often a great crush to get into the presence of the captain?-Yes, generally.

16,626. Do you tell me that a man who is in discredit with you, and who has not your good word, or rather who is in your black books, has any chance of getting a berth from a captain?-We never had any experience of such a case, because the men have always paid their accounts.

16,627. Don't you think they have done that under the apprehension that they would not get a berth in the following year, if they did not do so?-I don't know that.

16,628. Might not that be a reasonable explanation of the punctuality with which they come down from the Custom House and pay their accounts?-It might be, but I cannot say. They never expressed anything of that kind to me and I have no reason for thinking so. The men whom we trust are honest men, and we knew they would pay their accounts. If we thought they were not honest men, who would come down and pay their accounts, we would not advance them.

16,629. Would you not give them advances in goods?-No. We always give them the first month's advance in cash.

16,630. But you would not advance them goods if you thought they would not come direct from the Custom House and pay their accounts?-No, not unless they came on their return.

16,631. Have you any doubt that if the master of the ship and the agent concurred in telling the men to go up to the Custom House at once, and have their accounts settled, the men would attend to that direction?-I have done that myself. I have asked the men on board ship before they left it to remain in town until they were discharged at the Custom House, and I could not get them to do so.

16,632. If you told them that you would decline to pay them afterwards, would they not do so?-They knew we could not do that. I remember once making the remark to the shipping master that the law should be imperative upon the men as well as upon the master or agent; and unless that is done I believe the system will never be other than it is.

16,633. When did you tell the men to remain in town until they were discharged?-I have done that several times in late years.

16,634. Did you fix a day when they were to attend?-They know that they should do so within twenty-four hours. For instance if they landed today, we would settle with them tomorrow.

16,635. Would you have any difficulty in doing that?-None.

16,636. Have you ever had any conversation with the men when engaging them with regard to the outfit or supplies they wanted?- Yes. I have had such conversations with them in the shop after they were engaged. They generally go to the country after they are engaged and come back again; there is a certain time allowed to them.

16,637. Had you ever any such conversations with them before they were engaged?-Not about supplies.

16,638. Or about outfit?-No. We don't know what they want until after they are engaged.

16,639. Have you not asked them what they wanted, in order to know?-No. I suppose they can hardly tell themselves until after they begin to inquire.

16,640. But have you never had any conversation with them [Page 424] on the subject before engaging them?-We don't know whether they would be engaged or not until after the engagement was made.

16,641. Have you never had any conversation about what they might want in the event of their being engaged?-I don't recollect doing anything of that kind. It is generally afterwards that any conversation takes place about supplies.

16,642. I suppose, as a matter of course, there is some conversation about that after the men are engaged: they always want something?-When they come to town again before they sail they must have some warm clothing, because men going in that employment require warmer clothing than in any other climate.

16,643. How long is it after the men are engaged before they come back?-They may come back next day, or two days afterwards, or any time the minister fixes for sailing.

16,644. Does the vessel usually lie in Lerwick for some days?-I have sometimes seen her sail on the following day, or sometimes two or three days afterwards. The master fixes the time when the men have to be on board, and they must all be in Lerwick, able to go on board the same day.

16,645. So that in that case there is not much time to arrange about outfit or supplies?-No; I have known men engaged on one day, and go to sea the next.

16,646. Did you give any allotment notes?-We always paid them in cash at the Shipping Office.

16,647. Did you generally give such notes?-Yes, on long voyages, but on sealing voyages we did not.

16,648. Were these notes taken in name of the man's relations?- Yes; of his wife, or father, or sister, or brother.

16,649. Were they not sometimes taken in the name of the agent who was giving them supplies?-No; they were addressed to the agent, to be paid by him.

16,650. But were they not also taken in the name of the agent or of some of his clerks?-Not that I am aware of.

16,651. Was that never done by Hay & Co.?-Not to my recollection.

16,652. Would you be surprised to learn that it had been done in other houses in Lerwick?-It may have been done, but I cannot tell.

16,653. In the conversations you have with the men about their outfit or supplies, is it not usual to suggest what they should take, and where they should get it?-No. We ask them what they want; but sometimes, if it is a man we are doubtful about, we refuse to give him all that he asks.

16,654. But if it is a man you are not doubtful about, do you always ask him what he wants?-We have done that, but he knows what he wants without being asked, and he takes what is necessary.

16,655. Is there any other person here who wishes to make any further statement, or to tender additional evidence?-[No answer.] Then I adjourn the sittings in this place.

<Adjourned>.

KIRKWALL; THURSDAY, FEBRUARY 8, 1872

THOMAS WILSON, examined.

16,656. I am a weaver in Kirkwall. I was born in Fair Isle, and I lived there till two years and nine months ago. There are between thirty and forty families in Fair Island. They live chiefly by fishing for cod, ling, and saith. They fish chiefly in summer. They have always had to sell their fish to the proprietor, that being a condition of their holding their farms. Their farms are from four to six acres in extent, with a right to the scattald. I believe since I left, they are not allowed to pasture their cattle on the scattald without paying for it. The island belonged, when I first remember, to Mr. Stewart of Brough, in Orkney, whose tacksmen were first Mr. William Strachan, Dundee, and afterwards John Hewison, Westray. Mr. Bruce bought the island about 1864. I remember for about fifteen or twenty years before 1864. I am thirty-five years of age. The people had to sell all their fish to Mr. Strachan and Mr. Hewison. They were told so by them. It was always the custom to sell their fish to the tacksman, who also kept a shop for the sale of goods. There was always a shop, but sometimes no

goods were in it. I have seen it without meal for more than ten days, and then the people had no resource but fish, or milk, or anything they could get. That happened in summer. In winter the people always had a supply of meal of their own. There are three or four water-mills on the island, where the people grind their own meal. They are the old-fashioned little mills usual in Shetland. When Mr. Bruce got the property, the meal and goods generally became dearer than they were before. I don't think we have ever wanted meal altogether since he bought the island. We have had to send to Sumburgh for it, but have generally got a supply before our meal was quite done. Sometimes, however, it has been very scarce. When Strachan and Hewison had the island, any one might come to the island to trade; and sometimes James Rendall, of Westray, and sometimes James Smith, Cunningsburgh, came with boats bringing goods and meal. They sold about the same rates as Hewison and Strachan. The reason why we ran short was, that we could not got notice sent. The steamer did not use to stop for us then, but now we get her to stop for a letter. We have had to sell the fish to Mr. John Bruce, jun. and to him only, since Mr. Stewart sold the island. The price of fish has been fixed by the man who comes to settle, which is in June or July. That settlement is for the previous year, up to the 1st of May immediately preceding. I have seen them miss a year. I have been told that Mr. Bruce has missed a year since I came to Kirkwall. There are very few pass-books. The accounts are all read over to us. We couldn't always remember everything we had got. I suppose we had just to take it as it was. The factor on the island read over the accounts, and he handed a note of the total to Mr. Bruce and Mr. Irvine, who came to settle with us. We got cash if there was a balance in our favour, but never in the course of the season. We never asked for money during the season; it was no use to ask for it, for we would not get it. I don't remember if any one ever asked for it. We could sometimes buy from Rendall, who is the only person that has come to trade there since Mr. Bruce bought the island. Since Mr. Bruce came, he has not had liberty to trade; and he erected a stage on the seashore, and people bought from him there. Formerly he and Smith carried on their trade in the house where they lodged. I suppose Mr. Bruce had forbidden that; at least all the people understood so. They used to lodge with Mrs. Thomas Wilson, near the shore. Rendall's prices were always a good deal lower than the prices at the shop. Their tea and sugar were cheaper. Mr. Bruce has tea at 11d., and I remember once at 15d. a quarter; Rendall's was 10d. or 11d. sometimes, I think, as low as 9d. There was not very much difference in the tea. Rendall always had sugar at 6d., common grey sugar; Mr. Bruce's was regularly 7d. I remember [Page 425] Mr Bruce once had loaf sugar at 1d. per oz., or 14d. a lb., about 1867. I don't remember his having loaf sugar in the shop at all at any other time. Rendall's sugar, I think, was 9d. Cottons were bought cheaper from Rendall. His were 10d or 11d., blue and white shirting: Mr Bruce's 1s., or once 16d. The prices did not vary much at Mr Bruce's store from year to year. I remember quite well the price of oatmeal in Fair Isle during my last year there. I paid 30s. a boll. I sometimes got the price when I got it, sometimes only when I settled. I think I knew the price that year only when I settled. The account was sent to me that year after I had left, and 17s. of balance due to me was remitted. I know meal was that year 23s. or 24s. a boll in Kirkwall. Mr Alexander Gibson, merchant, told me so as I came down here. I have the account which was sent to me, in which the total amount of the shop account is entered to my debit (£9, 13s.

4d.). The entry 'By amount from the 'Lessing' account, £6, 17s. 9d.,' which is put to my credit, means payment for lodging to workmen, and for work done by myself at the wreck of the 'Lessing' on Fair Isle. The owners or insurers, I suppose, were the employers of the men who worked at the wreck; but the money came through Mr Bruce. 'By cash, left as a deposit, 11th May 1868, £3,' was money I was fool enough to leave in Mr Bruce's hands at previous settlement at his request. I left it in his hands as my banker. I can't remember buying meal from Rendall on any particular occasion that I could specify. But I know I have bought it from him cheaper than I could get it at the shop. I got it from Rendall at 26s., and I am quite sure, that during the 4 or 5 years I was on the island under Mr Bruce, I never got meal at the store for less than 30s. I remember his (Rendall's) selling goods at night; but that was for his own purposes:-to get his away as soon as he could. I think I have heard of him selling goods at night one time when Mr Bruce and Mr Irvine were there, when they were asleep, but I can't give any distinct statement about that. In 1868, James Williamson, Kirkwall had men working at the wreck of the 'Lessing,' which he had bought. His meal was cheaper than that at the store. I had to buy some of Williamson's as there was then none at the store. That was in July. I was employed by Mr. Wilson, the factor, in quarrying for a store Mr. Bruce was building. That was settled in the account at the end of the year. All work was so settled I have already shown. It is the entry 'By work with P. M'Gregor, at 1s a day, 13s 7d.'

Six families left Fair Isle, and came to Kirkwall in 1869. We all left because meal was so dear, and wages were so low. They all left of their own accord. I am sure they all left of their own accord, and were not warned away by the landlord. About 100 people left, in my remembrance, for America in 1862. Government helped them. There had been a great scarcity before that. In general, there is always a scarcity some part of the year. They live mostly on tea, and porridge, and oatmeal cakes. In summer there is a little flour sometimes. They get plenty of fish generally in winter, chiefly by fishing from the rocks. [Being asked if he had anything more to say, depones:] Only about the beach fee in the account already shown. I got only the £3 for the whole half year I worked there. I wrought 22 weeks and a half, and I was to get 5s. a week; but he said because I left the work to work at the 'Lessing' I should get no more. I wrote about it to Mr. Bruce, who wanted a detailed account of my work, which I gave him; but I got no definite answer. When Williamson was working at the 'Lessing,' he was not allowed by the laird to employ men Fair Isle. The landlord or his factor said they would be put out if they worked to him. I was forbidden to work to him myself. Mr. Wilson and Mr. Irvine both forbade me to work to him. I was told I would have to leave the island if I did. I was intending to go, and did go, and am glad I goed [sic]. I have been far better off since I left. I have had better wages, better food, and less work since. The other people from Fair Isle who are here, would say the same, I believe. I think Fair Isle people would be better off, if they had liberty to buy and sell with any person they choose.

Kirkwall, February 8, 1872, MARY DUNCAN or QUIN, examined.

16,657. I live in Kirkwall. I was born in Lerwick, and lived there till 7 years ago. I have knitted for 20 years all sorts of articles of hosiery. I knitted both with my own

wool, and for the merchants. I was always paid in goods. I never got a penny in money. I was not much in need of it. I often earned 9s. or 10s. in a week when veils were dear; but generally less than that. I knew many women who depended entirely on knitting for a living; and they had to take the goods and sell them for half-price, to any one who was requiring them. It was sometimes not easy to find people who would buy. They had just to ask among their friends if there was any one who wanted the things they had. I know James Coutts, provision merchant, used to take the goods from knitters. I knew many people who gave them to him for tea and sugar, and sometimes meal. I have been in his shop when such transactions were carried on. I don't know if Robert Irvine dealt in that way. I know Betty Morrison. I know that knitters disposed of their goods to her. I have seen her come to my mother's house with tea and sugar for sale. I knew they were from parties who had been knitters to Mr. Linklater and other merchants. She told us who the tea was from, so that we knew quite well it had been got from some one who had been knitting. Sometimes, too, she would tell who it belonged to. We always got it cheaper than it had been sold in the shop. It was always dearer in these shops than in others, sometimes 15d. a quarter, and we got it from Betty Morrison for 10d. That was very common. Jean Yates, and dozens of others, hawked about goods got from knitters in the same way. I had to buy a great deal more dress than I needed, because I could get nothing else for it. Knitters have all plenty of clothes. Some of them I know have far more clothes than food. I always sell my knitting for money here.

[Shown veil got from Grace Slater, February 5.] I would get 2s. 6d. in goods for that, when knitted with my own wool. Seven years ago, and 3 years ago, when I was home, 1s. or 1s. 4d. in goods, according to the market, would have been paid at Lerwick to one who knitted such a veil with merchant's wool.

[Shown veil from E. Malcomson, February 5.] I would get 1s. 6d. for the veil, wool and all, here.

Kirkwall, February 8, 1872, THOMAS PEACE, examined.

16,658. I am a partner of the firm of Peace & Love, drapers, Kirkwall. I deal considerably in Shetland hosiery, mostly bought in Shetland. I get most from merchants, and a little from private parties, knitters, who meet me at Lerwick. I go there annually. I pay both in cash. I don't get any cheaper, or very little cheaper, from the knitters than from the merchants. I have bought as cheap from the shops as I can buy from knitters. I have no means of knowing whether merchants in Lerwick make any profit on the hosiery. I have been told I was getting goods in the shops at the same price they were bought in at. I never saw the goods bought in. I found knitters in Lerwick eager to sell to me rather than to the merchants there. They at first asked me 50 per cent. more than I could buy the articles in the shops. I told them they were for sale. I have had so much difficulty with them in fixing a price that I now buy the most of my goods from the merchants.

I think a cash system would be much better for parties. I don't think it would affect my business as a [Page 426] purchaser from the wholesale dealers in Lerwick. I think it would be better for the knitters if they got clear with the merchants. I think most of

them are in debt to the merchant's shops. Any system would be better than running accounts from one year to another, and from the beginning of one's life to the end.

<Adjourned>

KIRKWALL; FRIDAY, FEBRUARY 9 1872

Present-MR GUTHRIE.

LAURENCE WILSON, examined

16,659. I am a fisherman in Kirkwall. I was born and lived in Fair Isle till April 1869. I left because three of us were working at the 'Lessing's' wreck, and we heard we were warned for working at it contrary to the master's (Mr Bruce's) orders, and we left that we might not be warned. There was nothing to do at the fishing at the time worth waiting for, so I and they went to the work. I considered I was under no obligation to fish for him if I could better my circumstance any other way. I was only bound not to fish for any other man than Mr Bruce;-not to fish to him while I could get any other employment. The others who left, did not leave for that reason, but just to better their circumstances. Prices at Bruce's shop were higher than in Strachan's and Hewison's time. Prices were very much raised at the time of the American War, when Mr Bruce got the island. I think prices were higher in Fair Isle than was necessary to cover the prices of carriage. I have no pass-book, for no pass-books were called for or used there. [Produces account for 1868, obtained from Mr Bruce] It was sent to me after I left Fair Isle. 'By amount from boat's account, £4, 0s. 3d.;' that's the price of fish. 'By a quey, sold by auction at Dunrossness cattle sale, 19s., less money and auction expenses, 5s. 6d.-13s. 6d.' We were not allowed to sell our cattle to any one but Mr Bruce. The factor told us. I never attempted to sell cattle to any one else; but no doubt others did. I left the island before the time when Thomas Wilson wanted to sell his cow to Rendall for £5, 10s. If that was so, I think I could have got more for my quey than 19s., but never was offered more. Mr. Bruce did not settle for the spring fishing when he came to Fair Isle in summer; but only up to the end of the year. I bought some meal from James Rendall in summer. It was cheaper than I got it at the same time from the shop. I can't tell exactly the price paid to Rendall that year; but I remember well enough that the shop price was 30s. a boll. I bought from Rendall at 24s. in 1868, and Mr Bruce's price was then 30s. Rendall was also cheaper than the shop in 1867. I got from Rendall tea at 9d. and 10d., while the shop was 11d. and 13d. I am not a very good judge of tea. Rendall's sugar was 6d. (common soft), shop sugar of the same quality being 7d. Rendall's loaf sugar was 8d. I have never bought that sugar at the shop; but I heard factor tell others it was 13d. a pound. I had no particular need of it at that price. There was no difference in the price of coffee. Rendall's cottons were also cheaper, but I don't remember the exact prices. I always keep my own account, and could check the account as it was read over to me by the factor. When I lived in the island I never got money till settlement, and never asked for it, because it was usual. Before Mr Bruce's time we all went sometimes to Orkney for meal, but not since, because he sent supplies. That was partly because we did not need to go, and partly because in Hewison's time we had leave to manufacture our

own oil, and we went to sell it, and brought back supplies. We thought we had more of livers before than we got from Mr Bruce. I don't remember getting meal from Mr Bruce for less than 30s. When Mr Williamson was in the island I got some from him 3s. or 4s. a boll cheaper. Rendall was forbidden in Mr. Bruce's time to sell his goods in Mrs. Wilson's house, and he began to sell them at the shore. I think the men in Fair Isle would be better if they had liberty to fish to whom they please. I think they would be better to leave it altogether; for it is a very poor place, and they are subject to many hardships. They remain because some of them are poor and in arrears to the master, and have not means to get away. The hardships are the want of a harbour for large boats: they never have crews of more than three men or two, and two boys. They are sometimes scarce of food in summer, and their boats are too small for crossing often to Orkney or Shetland, though they do so sometimes. It is often a great risk. Larger boats do come sometimes in summer and anchor in a small harbour. They sometimes haul them up; but a big boat can't stay there when there's a weighty sea on, unless hauled up. I know we got 10s. a ton less for fish than was paid at Grutness. It was only an account brought by others that I was to be put away for working at the 'Lessing.' I told Wilson I was going away, and he said he got no word from Mr. Bruce to that effect. After I prepared to go, Mr. Bruce asked me to stay in the same farm. Rents were greatly raised in Fair Isle,-I know that by a letter from the factor a short time ago,-to the amount of £1 to £3 on each farm. Jerome Wilson, the factor, is my uncle. Most people in the Fair Isle are related to one another. Dr. Craig, now of Westray, Mr. Macfarlane and Mr. Arthur have been clergymen in the Fair Isle in my time. I think they always got their supplies from Lerwick. The women sell their hosiery to Mr. Bruce, Mr. Warren, Kirkwall, and James Rendall. All the wool is made up into cloth or hosiery before it leaves the isle so far as I know.

Kirkwall, February 9, 1872, CHARLOTTE SUTHERLAND, examined.

16,660. I live in Kirkwall. I am a knitter. I was brought up in Lerwick, and lived there till 1867 or the beginning of 1868. I then went to Edinburgh, and have been here since May. I was in Lerwick for three weeks in April. I lived with my father, and knitted goods, mostly for the merchants, but sometimes with my own worsted. I did not need to support myself entirely till my father died in 1866. After that, I knitted to Miss Jessie Ogilvy for money, and for the shops for goods. I never asked money from the shops. I got enough money to keep myself from private people; at least I had to be content with it. I had to leave Lerwick for that reason. Knitting does very well in Lerwick for those that have friends to live with and keep them, but not for me when I had to look out for myself. I knew a great many in Lerwick who lived entirely by knitting. I think they were paid almost entirely in goods. I think a number just take the goods out of the shops and sell them again to get their food, and money for rents. I have heard plenty of them say so. I know it was so when I was back lately. I could not say the names of any persons just now. Mary Ann Moodie was one. I never saw any of them selling their goods. Our people were often offered tea or soft goods by parties who lived by selling such [Page 427] articles got from knitters. I knew that because they told us so. When they sell shawls or veils they get so much, and they take a line for the balance, and get what they want till it's done, and sometimes more than they want, and sell it in order to get provisions. The women selling such goods

would not name the one they got them from, but just that some one had got it for work, and had to part with a portion of it. I remember these women perfectly well. There was Betty Morrison and Jean Yates, who were in that custom for many years. They surely did a great deal in that way. They did not get the price put on the goods in the shop. I know that, because these women offered us 10d. tea for 6d. I did not take it, because I was always knitting and getting it for ourselves. I never heard of women bartering their goods for provisions in the provision shops. I never heard of them selling or bartering their goods to Robert Irvine or James Coutts.

EDINBURGH: MONDAY, APRIL 8, 1872.

Present-MR GUTHRIE.

GEORGE SINCLAIR SUTHERLAND, examined.

16,661. This sitting was held for the purpose of examining Mr. Methuen before he went to England, but I have received intimation that he is forbidden by his medical adviser from undergoing any examination on account of his health, and I understand you have come here to speak, to some of the points on which I wished information from him?-Yes; he asked me to attend for that purpose.

16,662. You have been for some years in Mr. Methuen's service?-Yes; for eight years.

16,663. In what capacity?-I had charge of looking over the agreements and settling with fishermen for the first five or six years; and I have since conducted the correspondence, and taken the management of his business.

16,664. Have you had the principal management of his business during his absence in consequence of ill health?-I have, during the last twelve months.

16,665. Has Mr. Methuen the largest business as a fish-curer in Scotland, both in curing herring and cod and ling?-Yes; particularly in curing herring, and pretty extensively in the curing of other kinds of fish.

16,666. You don't say that he has the largest business in curing cod and ling?-No, I would not say that.

16,667. Has he stations on every part of the Scotch coast?-Yes, all round the east and west coasts of Scotland; also in the north of England, and at Yarmouth; and also at Howth in Ireland.

16,668. I believe that at one time Mr. Methuen carried on business in Shetland?-Yes.

16,669. Where were his stations there?-They were near Lerwick, at Cumlywick and Sandwick.

16,670. Are these places about ten miles from Lerwick, near Sandlodge?-I understand so.

16,671. Do you know the reason why Mr. Methuen gave up business in Shetland?-He gave up business there about six years ago, in consequence of the

proprietor, Mr. Bruce, taking over the whole boats and crews into his own hands, in order to carry on the business himself.

16,672. Have you been in Shetland?-I have not.

16,673. Had you any acquaintance from books or otherwise with the way in which the business was conducted there?-I had very little experience in the Shetland business at all.

16,674. Who settled with the men in Shetland?-It was our managers there.

16,675. Are they in Mr. Methuen's service now?-They were not regularly in his service. There was perhaps one man for one, and another for another year; but the books are in Leith, and they were always checked by one party there. The clerk who checked the books in Leith is still in Mr. Methuen's service, and he could speak with regard to the settlement with the Shetland crews. 16,676. Did he go down to Shetland for that purpose?-He did not. He simply checked the books after they came here.

16,677. Had Mr Methuen a shop for supplying his men with goods in Shetland?-I am not aware that he had.

16,678. I understand he does not keep shops for that purpose at any of the stations?-No.

16,679. Has he any stations in outlying remote places?-In the Hebrides he has.

16,680. In those places does he carry on business efficiently without having any shop with which to supply his men?-Yes; they can supply themselves with what they want.

16,681. Where are those stations?-They are scattered all round the Hebrides: in the Lewis Island, and down in the Southern Hebrides, in the islands of Barra, Castleby, Vattersay, and the Uists.

16,682. Are the stations where the fish are delivered usually near the houses of the fishermen, or have they to go some distance with them?-The fishermen in the Southern Hebrides come round from the east coast of Scotland and go to fish there, and they build themselves huts in which they live while they are ashore. Our coopers and women have houses or huts erected for them also on which they live. They take out a supply of provisions with them, which will perhaps last half the time.

16,683. Who do that?-The women and coopers; and they are always getting provisions back and forward when they are at the fishing; because, in point of fact, in the southmost part of the island of Barra and Castleby and Boisdale, there are no shops at all. There is only one public-house in Loch Boisdale, but there are no shops of any kind there. In the southmost island, Vattersay, is uninhabited, and the men take out provisions and everything they want with them, and they fish there during the six weeks of the fishing.

16,684. Where do they get their provisions?-They take them with them from home, or they get them sent out to them from the east coast.

16,685. Do they purchase them themselves?-Yes.

16,686. You have nothing to do with that?-No. In sending coopers there we allow them extra wages-what are called board wages-during the time they are there, being so much extra per week for going to these places and supplying themselves.

16,687. Is that the universal practice in the Lewis fisheries with all the other fish-curers?-It is. They have coopers to whom they allow so much extra when they are at that fishing.

16,688. But do they follow the same practice with regard to their fisheries?-The fishermen simply get the price per cran which is agreed upon. They are not supplied with provisions at all.

16,689. Is it not the case that there are curers in the Lewis who have shops in Stornoway and other places?-In Stornoway they have shops.

16,690. Are these shops usually kept by the curers?-The curers usually advance money to their fisheries; or if they are from home, they give them a line to the merchant's shop with which they can get any small provisions they require during the time they are out.

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16,691. But do the families of the resident fishermen get supplies from the curers in Stornoway?-Yes; they usually give them a line if they are in poor circumstances.

16,692. Have you any West Highland fishermen in your employment in the Hebrides?-A good many. Last year we had altogether about 270 boats both from the east and west coast, fishing in the Hebrides, at the west coast fishing.

16,693. Did you find that the West Highland men and men resident in the Hebrides were able to supply themselves with provisions in the same way as the east coast men?-No. They are not the same class at all, they are not in the same good circumstances as the east coast men. We usually advance meal and money and materials before they can go to the fishing at all.

16,694. Do you give supplies of meal?-Yes, we usually give them some.

16,695. But I suppose that is merely for their own use during the fishing?-Yes. There is a shop in Stornoway upon which we give the men an order to get any meal they want; but, these men are of the poorer class.

16,696. Have you had any difficulty in getting fishermen in consequence of the necessity they are under for getting advances, and the habit they have got into of receiving advances from the curers in Stornoway?-No; I cannot say that there ever was a short supply of fishermen. At some shops the fishermen had fallen behind in a bad season, and required some advances before they could commence another season, and in that case the merchants have given them the advance they required, and the men fished for them, as it were, without a stated agreement.

16,697. Is that the case everywhere, or are you speaking of a particular locality?-I am speaking more particularly of the northern and western coasts. The practice is

quite different along the Moray coast, where the men are in better circumstances, owing to the fact that they have lately had a number of years of successful fishings.

16,698. What is the kind of agreement which you usually make with your fishermen in the Hebrides?-The fishermen who are in independent circumstances agree to a stated price per cran, while the fishermen who require advances usually agree to what is called the current rates given to debted boats. That is usually is to 1s. to 2s. under the free crews; 1s. below has been the usual custom. These have been the general terms of debted boats.

16,699. Is that exactly the same system as is followed at Wick?- Yes; the same system prevails all round the north and west coasts.

16,700. Is there a large proportion of the men in the Lewis fishery who fish upon the terms you have last mentioned?-In some years there are more than others. Of course, if they had had a successful season, there would be fewer of them fishing on these terms next season.

16,701. Will there be one half of them, on the average, who engage on these terms?-Yes; I should say there would be one half of them on the west coast, but not on the east coast.

16,702. In speaking of these men, do you refer to men who are the owners themselves of the vessels in which they fish? I understand that the vessels generally are owned by one or two men, and that the rest are hired men?-That is the case on the east coast, but it is not so on the west. There they usually share and share alike, and probably four or five men have a boat between them, becoming jointly liable.

16,703. Then each man who has a share of a boat gets a share of the fish which are taken by that boat?-That is usually the way. The boat gets one share which goes to the skipper of the boat, as they call him, and the rest of the men get equal shares. In the herring fishing at Wick, the usual way is for one man to own the boat and materials, and to agree so many hired men for the fishing.

16,704. Do you think that a system of paying the men when they deliver their fish would have the effect of keeping them from getting so much into debt as they do now?-I think it would be difficult to work such a system in the far north, or in the Western Hebrides. We could not pay them on delivery there, so as to keep them out of debt. It would certainly be an advantage for all parties concerned if the fishermen would agree to be paid by a price on delivery, as is done on the Fifeshire coast; but from the fact of their being so heavily in debt, and so much encumbered in these northern places, they require some advance before they are able to go to the fishing at all; and it is only perhaps one half of the fishermen who are in an independent position to make terms.

16,705. You think such a system would be an advantage to you because it would simplify your accounts?-Yes; and it would save a great many debts. We reckon that probably 50 per cent. of the amount due by those debted boats is lost to us altogether in our books.

16,706. In what way does that happen?-They run into debt, and get so hopeless, that we have to mark them off as bad debts.

16,707. Does that happen even in your case where you have no shop?-Yes, even where we have no shop or anything of the kind; because, when the fishermen get so hopelessly into debt they don't care what they do, and very often they throw up the fishing altogether and leave the debt. We have had thousands of pounds knocked off in that way as bad debts.

16,708. In what way were these debts incurred?-By advancing the fishermen and trying to get them clear.

16,709. Do you mean advancing them money?-Advancing them money and materials, such as lines and hooks, and always trying to get them to fish clear; but instead of that, some of them go so much behind that their case becomes, quite hopeless.

16,710. Are you speaking now of the boat-owners at Wick and the sharesmen in the Lewis fishing?-Yes; there are a good many debts incurred among them.

16,711. Do these men have ledger accounts in your books, or is there an account for each crew?-We have no individual accounts with the partners. The account is usually headed, So and so and crew, and the place where he belongs to.

16,712. But if you kept a shop and supplied them with goods- as you say the curers in Stornoway do who have shops-there could then be individual accounts in your books?-The curers in Stornoway have not got shops, but they usually give the fishermen an order upon a particular shop where they can go and get supplies. The fish-curers are not the owners of the shops themselves.

16,713. In Wick, I understand, a somewhat similar custom prevails of giving orders upon shops?-Yes; the orders are given upon the shops to get the fishermen supplied during the time of the fishing.

16,714. Do you think it would be practicable to settle the accounts at these shops at shorter intervals than at the end of the season?-I think if it could possibly be done, it would be an advantage to both parties; but there is a difficulty in the way, owing to many of the men being in such a poor position.

16,715. Is there not a difficulty in the men in the Lewis and at Barra being so far from their homes, and so distant from banks?- No. The men at Barra, who fish for five or six or seven weeks, return to the east coast when their fishing is done, and they are paid immediately for their fish. They get what money they require there to pay each other, and when they come home they are all settled with and paid off, so that they get their money immediately.

16,716. Therefore there would be no advantage in paying them on delivery of their fish?-None whatever. If they are paid at once at the end of the fishing, it is all they need.

16,717. At the Lewis would there not be an advantage in paying the resident men week by week, so that they could have money with which to supply themselves?-If

that system were practicable it might be an advantage.

16,718. But even there in your business the settlement takes place within two or three months?-Yes. In many [Page 429] cases it takes place immediately after the fishing is over.

16,719. And the fishing season, I understand, lasts from May to the end of June?-Yes; or the beginning of July. It lasts for eight weeks.

16,720. Why is it not practicable to pay the men more frequently?-On account of the circumstances the men are in; and besides, a good many of them I know have great objections to being paid by the price of the day. They always wish to be engaged at a price to be paid at the end of the season. They are afraid of the price rising and falling. One day it may be high, and the next day it may be very low; so that they prefer a stated price during the whole season, and then they are settled.

16,721. Could you not fix that stated price at the beginning of the season?-Not if we were to pay by the price of the day. If the system pursued in Fife could be got to work in these northern and western places, it would be a decided advantage to the fishermen themselves if they agreed to it.

16,722. Have you tried them?-I have often spoken to the fishermen about that. I have been round there agreeing and settling with the boats, and I have often mentioned the subject, but they have always said that such a thing would not work there at all.

16,723. Do you know the system of settlement in Shetland with the cod and ling fishermen?-Not from my own knowledge.

16,724. The men there are engaged early in the spring, or even as early as Martinmas, to fish for the following season. Some of them are bound to do so without any agreement; but the understanding is, that they are to get the current price at the end of the season,-the season being from May until about 12th August for the cod and ling fishing,-and the settlement does not take place until November or December, and even later?-The reason for that is, that in Shetland after the fishing is over it takes two or three months until the fish are cured, so that they cannot state a price to the men in Shetland until after the curing has been completed.

16,725. Are not the sales made in September or October?-Yes; and they then arrange what the price is to be.

16,726. But you say that the delay in settling there for the cod and ling fishing arises from the way in which the current price is fixed at the end of the season?-Yes; it is merely because the fish cannot be cured within a month or so.

16,727. And you cannot sell them and ascertain the price until they are cured?-That is the usual way in which they do. They ascertain the price at the end of the season when the fish are cured, and they settle with the fishermen accordingly.

16,728. From your experience of fishermen in different parts of Scotland, do you think they are likely to be more prosperous when they are paid by the price of the day than when they are paid upon long settlements?-I think it would be a great advantage

to themselves, and also to the fish-curer, if they were to be paid by the price of the day.

16,729. Why would it be an advantage to the fishermen?- Because they would get simply what is due to them, and the fish-curer would not run any risk from the men getting into debt. Along the Fifeshire coast the fishermen are not in debt to the fish-curers, simply because they get a price per cran per day, and don't require any advances. In the northern districts, on the contrary, owing to the number of fishermen always getting new boats and materials, they require advances to fit them out; and the system of paying by the price of the day not being in force there, they generally get heavily into debt, and many of them never come out of it.

16,730. Is it the case that on the coast of Fife, and in the eastern district of Banff, the fishermen are not in debt to the curers at all?-Yes; they are usually a better class of fishermen altogether on the Fife and Buckie coasts.

16,731. On the east coast do the men get supplies of lines and boats from the fish-curers?-Very seldom. They are all in a pretty good position; and two or three of them can take a boat between them, and fish by the price of the day, so that they always know what they are to have by the end of the week. They are all paid once a week, or even oftener, and they scarcely ever get into debt.

16,732. In Fifeshire, however, they have a fresh market to a considerable extent?-Yes.

16,733. Is it not owing to that that the system of frequent payments has come into force there?-That may be the reason partly. There are always a good many English buyers among the fishermen there, and the men would not trust them, as it were, for more than a day or two, because they are not thoroughly acquainted with them; but in the case of fish-curers who are well known to the men, they never think about settling until the end of the season.

16,734. Is that the case even in Fifeshire?-Yes; but in some cases with the local curers in Fife, the boats agree by a price per cran.

16,735. Is there a large proportion of the boats so agreed?-Not now. At Stonehaven, about one half of the boats fishing there are agreed for the whole fishing. The others are engaged, as it were, by the price of the day.

16,736. Do these boats get an equal price for their green fish with those who sell them on the nail?-Sometimes, if a heavy fishing comes in, the men will only get a few shillings per cran for them; and it is that uncertainty with regard to the price which they may get that makes a great many of the northern fishermen agree by a stated price throughout it whole season.

16,737. Do these men who agree in that way get supplies or advances throughout the course of the season?-They usually do if they require them.

16,738. Are these advances made in money or in goods?-In both.

16,739. How do they get them in goods? Have the curers not shops from which they supply them?-The curers have not got shops, but they will give them an order.

They become security to the merchants, and give the men an order for what they may want, the curer becoming responsible for it.

16,740. Where cod and ling are sold to a curer in Shetland, for instance, is there any reason why they should not be paid in cash on the nail according to the price of the day? Assuming always that the fishermen are willing to agree to that, is there any reason in the nature of the business why that system should not be followed there?-The nature of the business is such that the fish-curers themselves cannot ascertain what price to give to the fishermen until the end of the season, and the fishermen and the fish-curers usually agree together that they are to get the current price, that is the price which the fish-curer can afford to give them at the end of the season, when he has once ascertained what it is.

16,741. In that way the fishermen take part of the risk of the market?-Yes.

16,742. Is there any reason why the fishermen should not take that risk, and be paid according to the market price of the day when he delivers his fish?-None whatever. They could get a stated price for every fish they catch.

16,743. And that price might be higher or it might be lower?-It might be; or they could agree to fish for so many weeks at a certain price per fish overhead.

16,744. They might agree at the commencement of the season to fish for a stated price, or they might allow it to fluctuate from week to week?-They might do either; or they might agree to be settled with at the end of their six weeks' fishing, in a similar manner to what they do at the herring fishing, when they settle with the men immediately upon the fishing being done.

16,745. Is there any reason why they should not actually receive payment for their fish weekly or fortnightly, even in remote places like Shetland where the distances are great?-There is no great reason why they should not have an agreement of that sort because it is [Page 430] practicable even in the West Highlands, and round the Caithness and Buckie coasts.

16,746. Have you to do so in many cases?-We have. This season there has been an extraordinarily large cod fishing, and the boats are agreed at 1s. to 1s. 3d. for cash, with a few pounds of bounty to the fishermen. There are perhaps 8 or 10 curers in each place, and each of them has perhaps 10 or 12 boats fishing to him. These fishermen put in all their fish to their various curers, and they are paid as soon as the fishing is done. They agree from December until the middle or the end of March,-20th March is the date this year,-and upon that date they get settled as soon as the fishing is finished, and if they require any money during the fishing they get it to account.

16,747. Then the price is fixed at the beginning of the season?-It is fixed before the men go to sea.

16,748. And the settlement takes place at the end of the season?- Yes; and the men get any money to account which they require, in order to carry them through the season. That applies to Stornoway and Gairloch, and all round the Caithness and Sutherland coasts, and also to the Fifeshire and Buckie district for this very season. These crews are made up of the local men, natives; they have usually 6 or 7 men in a

boat, and they share and share alike.

16,749. I suppose they do require to have part of the price of their fish advanced to them during winter, and before the general settlement at the end of the season?-Some of them would, but others would not.

16,750. Do you know whether these fishermen have farms of their own?-No; the fishermen on the east coast have no farms. They live in fishing villages, like the village of Newhaven; but in Gairloch and in Stornoway they usually have little crofts.

16,751. Even with these men would it not be an advantage to settle fortnightly? Would there be any practical difficulty in doing so if the men wished it?-No; if they liked to take the risk.

16,752. Would there be any risk?-There would be no risk if the price was fixed at the commencement of the season; but if they were to fish by the price of the day the men would not like it, because in the case of a great fishing the price comes down almost to nothing, and they are always afraid of that.

16,753. When a great quantity of fish is taken the price falls immediately, and that you say is the reason why they don't want to fish at the price of the day?-Yes; they want a stated price, so that they may know what they are to get, whether the fish are many or few.

16,754. On the other hand, they would have an advantage if they got a larger price when there was a small fishing?-Yes; but they won't take that risk. I have often spoken to the fishermen of these districts, especially in Buckie, about that, and suggested that they should take the price of the day, but they always liked to have their agreement with the bounty.

16,755. The bounty, I suppose, is intended to carry their families through part of the season?-No; the bounty is an old custom. It was granted by the Government to the fishermen round about Shetland and in that quarter. A great many boats went there from the south coast, and there usually was a bounty granted to them, I think about 200 years ago; but that system ceased then, and the fish-curers commenced to cure.

16,756. Were they asked to continue the bounty?-Not to continue it; but it was only during the last ten years round the Banffshire coast that the practice was continued. In that district there was a scarcity of boats, and the fish-curers got so numerous that they gave a bounty of from £5, £10, £15, and up to £30, or even £40, to any crew who would agree to them.

16,757. Was that given as a kind of earnest?-Yes.

16,758. I suppose all the fish delivered are entered by the agent or factor of the curer in a fish-book at the time of delivery?-Yes; they are all tallied and extended by him.

16,759. Would it interfere with the business much for that man to pay for the fish as he received them?-He could do it once a week with ease. We could do it with reference to the haddock fishing all round from the Wick coast into the Cromarty Firth, and round by Fraserburgh. There are a great many parties fishing haddocks

there during the winter and spring, and we pay them weekly. They are engaged by a price of so much per cwt., fixed at the commencement of the season.

16,760. Is that an extensive fishery?-It is pretty extensive. In some years it is very successful. This year it has not been so successful; but that is the nature of it. So soon as the fishermen have ceased fishing for herring, the east coast crews go to the west coast about 1st May, and return about the end of June or 1st July. They commence to fish upon the east coast about the 1st of July, and continue until 10th September. They then cease for perhaps two or three weeks, when they commence to fish haddocks until the month of December. They have then the cod fishing; and it continues with cod, halibut, and all fresh fish, until the middle of March, and from the middle of March until the 1st of May, there is comparatively nothing done. There is no engagement during that time.

16,761. Is it the same kind of boats that are employed in all these different kinds of fishing?-No; the fishermen have different kinds of boats to suit the different kinds of fishing. In the herring season the owners have hired men in their boats, and each man has his skipper; whereas in the winter fishing five or six or seven of these men go together and fish for themselves.

16,762. But that is still in the same kind of boat is it not?-The half-decked boat is used at Wick; but, in fact, they have boats to suit each fishing that they wish to go to. They usually use the large herring boat for the cod fishing, and a smaller boat for the haddock fishing.

16,763. What is the size of a haddock boat?-I think it is about 26 or 30 feet keel, and open. There is now usually it small deck on it. The large herring boat is from 36 to 42 feet keel; but the boats have increased greatly in size within the last eight or ten years.

16,764. Do you find that as the boats increase in size the fisherman is generally more successful?-Yes. They have the advantage of going a greater distance to sea and staying longer out when their boats are decked, and they return with heavier takes.

16,765. Are you acquainted, from your own experience, with the character of the boats which are used?-Yes. I have gone out to sea and seen how the fishing was carried on.

16,766. Would you consider that a fishing community was at great disadvantage, as compared with other communities, who used only open six-oared boats of about 21 or 22 feet keel?-They would be at a decided disadvantage.

16,767. Perhaps you are aware that that is the case in Shetland, and that in the haaf fishing they go out twenty or thirty miles to sea, and remain out only for it single night at a time?-If they had the large lugger boats which we have on this coast, they could stay out for several nights, having provisions with them and room for their fish.

16,768. Are the large boats you refer to equally available for laying long lines in very deep water and on a rocky bottom?-I cannot say that. There would be more danger with them. They could not work large boats so easily as they could work the small ones.

16,769. What is the depth of water in which your large boats generally fish?-I can hardly say; but when they go out to the banks, thirty or forty miles off, they may fish in thirty or forty fathoms of water in the Moray Firth.

16,770. Perhaps your knowledge of the fishing does not enable you to give much information about that?-No, not practically; but I have gone out three or four times in the season.

16,771. Do you know any district in Scotland or in England where the settlement with the fishermen takes place only once it year as it does in Shetland?-I understand there are two fishings in Shetland: the herring fishing, and the cod and ling fishing.

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16,772. It is the cod fishing I am speaking of. Do you know any place except Shetland where the settlement for any kind of fishing takes place only once a year?-I scarcely know how to answer that question.

16,773. In Shetland the cod and ling fishing is the only one in which they fish for the curers,-leaving the herring fishing out of account,-and they are paid for that only once a year, a considerable time after the end of the fishing. Do you know any of the fishing contracts in the kingdom which are settled at so long a period after the fishing is over?-In Orkney the fishermen are settled with for the herring fishing of August at the end of October. That fishing ends in the middle of September, and they are not settled with before the end of October.

16,774. But is it not the case that, in almost all the cases with which you are acquainted, there is a short season of from five to six weeks, or two to three months, and a settlement takes place at the end of it?-Yes, the final settlement takes place at the end; but at the beginning of the herring fishing the men get an advance. As soon as the fishing is done they get some money to clear off their current expenses, and to pay their hired men; and then about October or November they get a final settlement, when the season's transactions are settled for.

16,775. That is for the herring fishing which commences when?- It commences on 20th July, and that is their great fishing.

16,776. Then there is the Lewis herring fishing, to which a great number of the same men who fish at Wick go?-Yes.

16,777. Is that settled before the herring fishing at Wick begins again?-Yes; it is settled as soon as it is finished.

16,778. Then, if any of these herring fishermen go to the cod and ling fishing in winter, that is settled for the end of that fishing too?-Yes.

16,779. Some of them may perhaps go to the haddock fishing in spring again, and that is settled weekly?-Yes. The haddock fishing is usually settled weekly.

16,780. On the Moray Firth that makes up the whole fishing seasons of the year?-It does.

16,781. And each of these is settled at its close?-Yes.

16,782. So that they will have four settlements in the course of the year?-Yes; four settlements for the various fishings. With regard to the men who go round to the Stornoway fishing, it would scarcely be practicable to settle with them weekly, or before they return home, because of their distance from home and the peculiar nature of the business. The amount actually due to them could not be rightly ascertained until they came home, and all their accounts had been made up and settled.

16,783. Why is that?-Because, from the nature of our business, there are so many places where we give the fishermen the option to run into with their fish, and we would require all the books from these places to be handed over to us and checked, before we could proceed to settle with them.

16,784. Might these fish not be settled for at the station on delivery?-We could settle for them at the station on delivery; but we find so many mistakes occurring afterwards, that unless the books were first checked before the fishermen were paid, we would be apt to lose a good deal.

16,785. How do these mistakes arise?-Because the fishermen may have delivered so many crans of herrings at a different place, where they could not get them entered, and there are so many fishermen of the same name, that one is often confounded with another, unless they are known to the parties, or have 'T' names attached to them, which are a sort of nickname. But the fishermen are quite well pleased when they get their settlement as soon as the fishing is done. It is only along the Fifeshire coast, and about Stonehaven and Aberdeen, that any of the crews during the great summer fishing for herrings are agreed, or deliver their fish by the price of the day, or sell their fish daily.

16,786. Do you know of any other place in the kingdom, except Shetland, where the men have a final settlement only once a year for all the work of the year, whether cod, or ling, or herring, or whatever it may be?-No. The same system does not prevail in any part of the kingdom except Shetland.

16,787. Do you know any other part of the kingdom where the curers universally keep shops to supply their fishermen with meal and soft goods?-No. There may be an instance or two of that kind round the coast, but I may say that I am not aware of any.

16,788. Do you know whether it is a fact that at Wick the men are to a large extent in debt to the curers?-A great many of them are in debt, but there are a great many independent men who are not in debt.

16,789. I understand the men at Wick are divided into two classes: free men and unfree men?-Yes.

16,790. The unfree men have to fish to the curers to whom they owe money on general terms?-Yes; on the general terms of debted boats, and they are settled with by the curer at the end of the season. That is somewhat similar to the custom in Shetland. The fishcurers at the end of the season find the price per cran after they have ascertained the state of the markets, that is, during the month of October, and then pay the unfree men the price, which is usually 1s. per cran less than what is paid

to the free boats. That difference is made as a sort of guarantee or security for the risk which they run in advancing boats and nets.

16,791. Is the debt incurred by the fishermen to the curer entirely for boats and nets supplied by the curer?-Yes; and for advances in money.

16,792. Are these advances in money made to a man to enable him to pay his hired men, and so on?-Yes. The fish-curer has a great deal of risk to run in fitting out a debted boat, because he usually becomes security for the hired men's wages; and if he does so he will require to pay them whether they make a good fishing or not.

16,793. What are the wages of the hired men?-They usually range from £6 to £10 along the northern coast.

16,794. What is the cost of a boat at Wick?-A new boat at Wick would cost about £120 or £130.

16,795. Does the curer frequently advance that?-He usually advances one half of it. It is not often that any fish-curer would give a boat to any fisherman who had not any means of his own.

16,796. They expect a fisherman to whom they supply a boat to have some capital equal at least to the cost of one half a boat?- Yes.

16,797. What is the cost of a drift of nets at Wick?-They usually have 40 nets there now, and the cost of a net is about £3, so that a boat and nets would cost about £250 altogether.

16,798. All that expense lies upon the herring fishing alone?- Yes.

16,799. The man, if he is a free man, can use his boat for any of the other fishings except the herring fishing?-Yes. They usually engage also for the Lewis fishing, but not to the same fish-curer. In that fishing he may engage to anybody he likes; but in the herring fishing he must engage to the man who has advanced him his boat and lines.

16,800. Would you say that two-thirds of the men at Wick are unfree men?-No. I don't think there are above one third of the men at Wick who are indebted men. I know every one of them personally, from settling with them, and I have a good knowledge of their circumstances.

16,801. Would you be surprised to hear that an extensive curer in Wick estimated the number of free men at nearly one third, and that the unfree men were two thirds?-I would be surprised at that; because I know that of the number of fishermen who own boats not above one third of them are in debt. It may happen that after a bad fishing many of these men may get a little behind, but after a successful fishing there are not more than one third or one fourth of them who are in debt.

16,802. Are you speaking now only of the boat-owners?-Yes.

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16,803. Does a man remain bound to fish on general terms even when his debt is reduced to a low sum, such as £20 or £30?-He is not bound to do it, because he can find another fish-curer who will give him that advance to enable him to pay off his old curer.

16,804. But then he would be unfree and bound to fish to this new creditor?-The other fish-curer usually gives him the current price of free boats, if the man is considered a good man, when the debt comes as low as that.

16,805. Is there any line where you say that a man becomes free? Do you consider him to be so when his debt is reduced to £50?- When it is under £30, I think the man is considered to be a good man.

16,806. Do you know any district, except in Shetland, where the men are bound to fish for the landlord from whom they hold their ground?-Along certain estates on the Moray coast there are certain villages to which a great many fishermen belong, and I think there is sort of feudal system of the same kind there. There are villages on the estate of Sarklet, near Wick, and at Clyth, and other places, where many of the fishermen have had it in their option to leave the place altogether, and they have usually come down to Wick and been dealt with there as free men. If they fished in the village where they lived before, they had usually to fish to the fish-curer who had obtained the station at groundrent from the proprietor. It was to the advantage of the proprietor to have the fishermen fishing for that curer, so long as they remained on his estate. In these places the price usually ranges 1s. per cran below the town price.

16,807. Is that because the men hold yearly tacks?-They hold crofts year by year, and they are fishermen at the same time.

16,808. Do you know whether they pay their rent to the landlord direct, or through the fish-curer?-They pay it twice a year, at Candlemas and Martinmas, to the landlord; but they are not in the same way bound as the Shetland fishermen are. They are not in the same state of bondage.

16,809. Wherein do you think is the difference?-They are free to leave the place when they like, and they may go down to the town and fish; but they might incur the proprietor's displeasure if they were to go away and leave the place altogether if their crofts were under lease.

16,810. Are these the only cases of the kind which you know?- They are; and they are very small in extent.

16,811. Do you know any districts where it is frequently the case that a fisherman does not receive any money at all in payment for his fish, but runs an account for goods which is more than sufficient to balance the money due for the fish?-There may be a stray case of that kind, but it is not common. Where the fishermen are so negligent that they are hopelessly sunk in debt, the fish-curer, of course, tries to give them as little advance as possible, and to get them to fish as much as possible, in order that they may get out of debt; but in some cases where they make a poor fishing and have been heavily in debt he cannot give them any advance in money, but he may give them an advance in goods.

16,812. Is that a common thing in your experience?-It is not.

16,813. In what districts would you say it was most common?- Along the Caithness coast.

16,814. Can you furnish me from your books with a note of the price cod, ling, and tusk in September, for the last ten or fifteen years?-Yes. We usually buy from the Shetland fish-curers during the month of August. Between May and August we often ask quotations from them for a quantity of fish to be delivered either in Ireland or in Leith in September or October, and they usually send on the quotation in September. We have bought largely in that way during the last ten years, so that I can furnish a list of the prices.

16,815. Do you supply hooks and lines to your fishermen?-There is a little of that done to the Gairloch and west coast fishermen, because there are no places there from which they can supply themselves. We buy the materials in Glasgow, and send them on to the men, and allow them to lie at the debit of the crew's account until they are able to pay for them. The only thing we supply usually is cutch to fishermen.

<Adjourned>.

EDINBURGH: THURSDAY, APRIL 18, 1872

<Present>-MR GUTHRIE.

JAMES LEWIS, examined.

16,816. What are you?-I am a grocer and wine merchant in Canongate, Edinburgh. I have other two places of business besides that.

16,817. Have you carried on an extensive business in Edinburgh?-I have, for nearly forty years.

16,818. You have examined some samples which I sent to you, and given me a report of the values you put upon them?-Yes.

16,819. Is it a correct report?-It is.*

16,820. You examined a small parcel of oatmeal, No. 1 in the report, which you value at 1s. per 7 lbs.: how much is that per boll?-There is 140 lbs. in the boll, so that it would be exactly 20s. per boll. At the time I made the valuation that was a fair average price for it in Edinburgh.

16,821. Was it a good quality of meal?-It was not; not so good as some samples which I have frequently seen. I could not sell it in my premises, for instance.

16,822. Would it be considered inferior quality in Canongate?- Yes.

16,823. Could you not sell it at all?-Perhaps I could sell it; but I should not like to trust selling it to my customers, as they might not like to come back again.

16,824. Is it above or below the average quality of meal that is sold in country districts?-I think that in Shetland it will perhaps be about the average quality sold

there, as it has likely been made from oats grown in [Page 433] that country; but it is not like meal made from oats grown in Midlothian.

16,825. Do you know that from any knowledge which you have of Shetland trade?-I don't know anything about it, further than from seeing the quality of the meal which was submitted to me; and comparing it with what could be made in Midlothian, I should say that it was inferior in quality to anything that would be sold as good meal here.

16,826. Perhaps you do not know much about the business which is carried on in country districts?-I cannot say that I have carried it on, but I know a good deal about it.

16,827. Have you examined any samples of meal from districts similar to Shetland?-I have had meal from Aberdeenshire and from Caithness.

16,828. Was this meal which you examined inferior to the average quality of Caithness meal?-It was.

16,829. Was it much inferior?-I could not exactly say that, but it was inferior.

16,830. The sample of tea, No. 2, submitted to you, you have valued at 2s. 4d. per lb.; and you state at the end of your report, that of course an allowance must be made for carriage, etc. to Shetland?-Yes. Of course, tea must be sent to Shetland; they must get it either from Aberdeen, Edinburgh, Glasgow, or London.

16,831. Is the value of 2s. 4d., which you have put upon it, what you consider the retail price of that tea would be in Edinburgh?- Yes.

16,832. Would it be reasonable to charge a much higher price than that, in respect of the carriage to Shetland?-I think about 1s. per cwt., or from that to 2s. at the outside, would be the expense of carriage to Shetland.

16,833. That would make a very slight rise upon the price per lb.?-It would be a mere trifle; because there would be about 84 to 90 lbs. in a chest, and they could get that sent down for 1s.

16,834. Would you consider 2s. 10d. an extravagant charge for that in Shetland?-I would; because the value of 2s. 4d. which I put upon it includes the profit of the merchant here.

16,835. Would 2s. 10d. be an extravagant charge for it in Shetland, even as a credit price?-Yes; it would be so anywhere.

16,836. The tea No. 3 you also value at 2s. 4d. per lb.: is there any difference between these two teas?-So far as I could see, I think they are very like the same value. There is a little difference between the style of the two teas, but nothing to affect the actual value of them.

16,837. Could you account for one of them being sold at 81/2d. per qr. and the other at 7d. per qr. lb.?-No; unless the party may have bought the one too dear. The merchant must have his profit in any case; but if he is not a judge of what he is buying, the wholesale merchant will get a larger profit out of him than another.

16,838. Would you be surprised to be informed that these teas were sold at these different prices?-I could not be done in that way.

16,839. But you suppose the Shetland retail merchants may be done in that way?-They may be ignorant of their business, for anything I know. There are a great many small people in the country who carry on such a business as selling tea and who know very little about it.

16,840. Still you think the teas are of the same quality, although one of them was sold at 2s. 4d. and the other at 2s. 10d. per lb.?- So far as I can judge, they are of the same quality; but I could easily suppose there would be a difference of 6d. per lb. in the way I have mentioned.

16,841. From a mistake on the part of the retailer?-Yes; or from his ignorance of his business and the wholesale dealer taking advantage of that.

16,842. Might he not have purchased the No. 3 tea as a bargain, and given his customers the advantage of that?-He might have done that; but it is not likely a Shetland man would do that.

16,843. The sample No. 4 was a specimen of sugar which you value at 41/2d. per lb.: was that a fair quality of sugar?-Yes; a very fair quality of sugar at that price.

16,844. Would 6d. per lb. be an extravagant price for it?-It would be so here.

16,845. Would you consider it an extravagant price in a country district also?-I think it would be. I think 5d. would be about the value of that sugar in Shetland; it would not be more.

16,846. No. 5 is a sample of tea also which you value at 2s. 6d. per lb.?-Yes; it is better than the others.

16,847. Would 2s. 10d. per lb. be an extravagant price for it in Shetland?-I think it might sell there for 2s. 10d., or even 3s. I consider it to be a very good tea.

16,848. You value it at 2s. 6d?-Yes, here; but I think 2s. 10d. would be a fair value for it in Shetland.

16,849. You allow a greater advance upon that tea as sold in Shetland than you did upon the others?-Yes. The higher the price of the tea is, generally speaking, there is a larger profit upon it.

16,850. Do you think a merchant would be fairly entitled to take a larger profit upon No. 5 than upon No. 2?-Yes; a little.

16,851. Then 2s. 10d. would not be a very extravagant charge for it?-I don't think it.

16,852. No. 6 is a sample of sugar which you value at 41/2d. per lb.: was that of the same quality as the other sugar?-There was very little difference between them.

16,853. Would that be fairly charged at 5d. per lb.?-I think it would sell for about the same as the other.

16,854. No. 7 is a sample of tobacco which you value at 1s. per lb.?-Yes; that is the retail price. I cannot say that I am a great judge of tobacco; but that is the retail price in Edinburgh for something like the same quality.

16,855. That is 3d. per oz.: would you consider 4d. per oz. an overcharge for it in a country district?-Yes, I think it would be 1d. of an overcharge. They buy it for about 3s. 4d. per lb., and I consider that 8d. upon a pound of tobacco is a very fair profit.

16,856. No. 8 is also a sample of tobacco which you value at 4s. per lb.: was it of the same quality?-So far as I am able to judge it was.

16,857. No. 9 was a sample of tea which you value at 3s. per lb.: would 1s. 1d. per qr. lb. be too much to charge for it?-It would be too much to charge for any of the teas that were submitted to me.

16,858. Was this the best of the teas?-I thought so.

16,859. Was it considerably superior to the others?-I thought so; but 4s. 4d. would be far too much to charge for it.

16,860. No. 10 is a sample of loaf sugar which you value at 6d.: would 8d. per lb. be too much for it?-It would be too large a price to charge for it.

16,861. Even in Shetland?-I think so.

16,862. You have stated in your report that the sample of flour, No. 11, was not fit for use?-I considered so.

16,863. Do you think that arises from it having been kept too long after being got from the shop?-No, I don't think it is flour at all. It seems to be a sort of mixture that I would not like to give to a pig.

16,864. I now show you the sample No. 11 again: is that [showing] the flour you refer to?-Yes.

16,865. You don't think it is fit for use at all?-I do not; at least I don't think it would do in Edinburgh.

16,866. What is it?-My opinion is, that there is good deal of barley-meal in it, not flour at all.

16,867. Then, if that is the case, it would in your opinion be overcharged at 2d. per lb.?-Yes. That would be 14d. per peck of 7 lbs., or 46s. per bag, which is about the price of the best flour just now.

16,868. What was it in December or January last?-It was cheaper than it is now.

16,869. Then you think that 2d. per lb. would have been an absurd charge for that flour at that time?-Perfectly absurd.

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16,870. No. 12 is a sample of rice which you have valued at 21/2d. per lb.: was that rice of good quality?-Yes; it was of fairish quality.

16,871. Would 31/2d. be too much for it?-It would be more than could be got for it here.

16,872. Would it be extravagant to charge that price for it in an outlying country district?-I think it would. I think 3d. would be the outside that could be got for it.

16,873. Are you aware that the expense of carriage to some of these places must be pretty high?-They have direct communication to Lerwick twice a week, which, as I said before, cannot exceed 2s. per cwt., and that would be about 1/4d. per lb.

16,874. Supposing it had to be conveyed thirty miles from Lerwick, that of course would increase the expense?-Of course it would add to the expense; but I have been speaking of the direct communication between Edinburgh and Lerwick.

16,875. No. 13 is a sample of soap, which you value at 4d. per lb.: was that a good quality of soap?-It was middling; but it was in such a state from being dried up, that one could scarcely judge of it. However, I think that would be about its value.

16,876. Had it been injured by being kept?-It gets dry and hard from the moisture getting out of it. If I had seen it cut from the bar, I might have come nearer a proper judgement of it.

16,877. Do you think 6d. per lb. would be too high for it?- Decidedly; either for it or any kind of soap.

16,878. You think that even although you had seen it cut from the bar you could not have put so high a value as that upon it?-I could not.

16,879. Can you say generally with regard to the samples, that any of them were deteriorated by having been kept for some time after leaving the shop?-I do not think they had been much affected. The sugar may have changed its character a little by being dry, and also the soap; but I don't think any of the other articles could be much deteriorated in value by that.

16,880. Would you make any allowance in your estimate of their value on that account?-No; I just valued them as I saw them, according to the best of my judgement.

16,881. Do you think it would be fair to make any such allowance?-No, I don't think it would be necessary.

16,882. Is it usual to charge a higher price for such goods in country districts than in the town?-Generally it is the case that a rather higher price is charged. There is less competition in business, and there can be no doubt that in a country district you pay more for articles than in town.

16,883. But, on the other hand, rents are lower in the country than in the town?-No doubt they are; but the amount of business is usually much less.

16,884. Making full allowance for that, however, do you think that certain of the articles which have been submitted to you have been overcharged?-I think the whole of them have been. There is one thing I may mention, which is, that looking back fifty years ago they had then no direct communication between Shetland and the large

towns in the country, and the merchants there were longer in being paid for what they sent south; but now they are paid within ten days of the time when they send their goods to Edinburgh or Glasgow or Newcastle, or wherever it is, and that makes a very considerable difference to these merchants.

16,885. What goods do you refer to?-Any kind of goods that the islands furnish. If the merchants send eggs, butter, bacon, or anything of that kind, to people in Edinburgh or Glasgow, they get a remittance in cash within ten days for the amount of the goods sent. Formerly that could not be the case, because they had to wait perhaps for a sailing vessel once a month, or something like that; and that makes a great difference to the people in Shetland.

16,886. Do you receive large consignments of eggs and butter from Shetland?-I get large consignments from Caithness, but not from Shetland.

16,887. But you know that the practice with Shetland is to remit back at once for that?-Yes, at once.

*Mr. Lewis's report stated the following as his valuation of the different samples submitted to him:- No. 1 Oatmeal, per 7 lbs. £0 1 0 No. 2. Tea, per lb., 0 2 4 No. 3. Tea, do., 0 2 4 No. 4. Sugar, do., 0 0 41/2 No. 5. Tea, do., 0 2 6 No. 6. Sugar, do., 0 0 41/2 No. 7. Tobacco, do., 0 4 0 No. 8. Tobacco, do., 0 4 0 No. 9. Tea, do., 0 3 0 No. 10. Loaf Sugar, do., 0 0 6 No. 11. Flour, not fit for use. No. 12. Rice, per lb., 0 0 21/2 No. 13. Soap, do., 0 0 4

The samples Nos. 1, 2, 3, and 4 were those purchased at Mossbank by the witness A.T. Jamieson, 7954; Nos. 5 and 6 were samples obtained by the Commissioner personally, at Messrs. Spence & Co. at Uyea Sound; No. 7 was obtained at the shop at Grutness; No. 8 from the shop of Mr. Gavin Henderson, Scousborough; and Nos. 9 to 13 were produced by the witness Charlotte Johnston, as having been purchased at the shop of Mr. Morgan Laurenson, Lochend.

Edinburgh, April 18, 1872, MAGNUS MOWAT, examined.

16,888. Are you a boat-builder in Newhaven?-I am.

16,889. Do you do a large business there in building boats for fishermen?-Yes, I do a pretty large business.

16,890. Do you know the style of boat that is built in Shetland?- Yes. I have seen one or more of them at Wick, when I was there at the herring fishing.

16,891. You mean the six-oared boat of about 21 or 22 feet keel?-Yes. I have seen one at least of those dimensions.

16,892. Do you build boats of that kind yourself?-No. Our boats are much superior to the boats there.

16,893. Can you say at what price you could build a of 22 feet keel in the style of the Shetland boat?-I could hardly say.

16,894. What do you get for a boat of that size, such as you are in the habit of building?-£22, 10s. That is just for the shell of the boat, with the ironwork attached to

it. The men have the masts, sails, and oars to supply on their own responsibility.

16,895. How much would the mast and ropes and other fittings cost, including the sail?-I don't know what quantity of ropes they would require, but with the yawls which are used in fishing in the Firth of Forth, it generally costs about £1, 10s. to fit them with mast and oars, and the necessary spar, without the sail. The sail, I think, would cost about £4.

16,896. You have seen a Shetland boat: have you any idea whether such a boat as is used there would cost more or less than a boat such as you have been speaking of?-The Shetland boats of the same size would not be half the value of our boats here.

16,897. Why?-Because the timber is inferior, and they are lighter. I might have 24 timbers in a side, when they would only have 10 or 12.

16,898. Are your boats built in the same style as the Shetland boats? Are they clinker-built?-Yes; but I don't suppose they use the same materials. I think it is Norwegian timber they use; and if that is so, the cost of them would be considerably less.

16,899. About how much less would it be?-I cannot calculate that exactly, because wages there are less than they are here.

16,900. What would be the difference in the cost of the timber? Would it be so much as one half?-No. Larch is about 14s. per 100 feet of planking, and the timber they use would be from 8s. to 10s.

16,901. I suppose boat-builders' wages are considerably less in Shetland and Caithness than here?-Yes; they are from 6s. to 8s. a week less, at any rate. I pay 24s. here, and I should think that 16s. would be about their figure there.

16,902. How long will one of your boats last?-From seventeen to twenty years.

16,903. Is that the ordinary calculation as to the life of a boat?-It depends a great deal upon the kind of work they are put to. In some cases they do not last so long; but if they are preserved from accident, they may last for that time.

16,904. Will a Shetland boat, such as you have seen, last its long as that?-It will not last so long, according to my judgement.

16,905. Suppose it were used only for three or four months in the summer, would it last longer than it would do if it were more used?-Certainly it would.

16,906. But you think it would not last so long in any case its seventeen or eighteen years?-No. The frame is much weaker: there are fewer ribs in it than in our boats; because, while in a Shetland boat there might be a rib every 2 or 3 feet, I might have them 10 or 12 [Page 435] inches apart, and of course the ribs are the strength of the boat.

16,907. Would twelve or fourteen years be the outside of the life of a Shetland boat?-I would suppose that would be about as long as they could run them with safety.

16,908. About how much do you think it takes to keep up a boat of that size?-1s. a day during the time she is at work would keep her up amply.

16,909. Suppose she were at work for 100 days in the year, that would be £5. Do you mean to say that for every year a boat is at work she will require £5 for repairs to keep her up?-The Newhaven fishermen allow that for their 25 feet yawls. A sail is not supposed to last above five years, or not more than three years without repairs; and then they have the chance of breaking oars, or any other accident that may occur. The allowance of 1s. a day may be it little too much to cover all that; but there is an eighth share allowed for the repairs of a boat in the case of the large decked boats.

16,910. Are these the new boats which you have now got at Newhaven?-No, they are the boats which were built in Caithness nine or ten years ago. There is an eighth or a ninth share allowed to the owner to keep them up.

16,911. Is that a ninth share of the fish taken?-Yes, or of the money; but these Caithness boats are much dearer in price and of better value than the Shetland boats.

16,912. From whom do you generally take your orders for building boats? Is it from the fishermen or from the curers?-From the fishermen altogether. I built one for Westray, in Orkney, last year, and I also built a little one that went to Stromness.

16,913. Were these open boats or half-decked?-They were small boats of about 18 feet keel. The one that went to Westray, I built her for £14, because she was so light.

16,914. Do you think that £20 would be about the cost of one of the Shetland six-oared boats ready for sea?-I would think they were not too dear at that, if the sail and everything was provided.

16,915. Do you know anything about the practice of hiring boats to fishermen on any part of the coast?-Yes. I was twelve years at the herring fishing at Wick, and I knew about it there.

16,916. But the boats you had there were of a different class?- Yes, they were far better boats than the Shetland boats. I had a boat myself that cost me £94.

16,917. Are you able to say what would be a fair hire to charge for one of the Shetland six-oared boats?-No; it depends altogether on the material of which the boat is made. If I had seen the boat, I could at once have given an opinion.

16,918. Suppose a fisherman was hiring one of the boats such as you have seen for a season, that is, for about 31/2 months in summer, what would be a fair rate of hire to pay, supposing the boat had cost £20?-The boat would require about one half of a man's share, whatever was the income, unless they made a bargain for so many pounds for the three months, or the two months, or whatever period was fixed.

16,919. Would £2, 10s. be an extravagant hire for that period?-I don't think it would.

Edinburgh, April 18, 1872, DONALD DAVIDSON, examined.

16,920. What are you?-I am a fish-curer in Burntisland.

16,921 Were you for a long time in the employment of Mr. Methuen?-Yes.

16,922. Have you again gone into his employment?-Yes.

16,923. Are you acquainted with the system of agreements between the fish-merchants and fishermen throughout all the Scotch fishings, both on the east and west coast?-Yes; I have had a good deal of experience of them.

16,924. Had you anything to do with Mr. Methuen's fishing transactions in Shetland?-Not particularly. I occasionally sent stock there when ordered, such as empty barrels and salt to supply the stations.

16,925. How long is it since these stations were given up?-About two years ago, I think.

16,926. Do you refer to the stations in the Sandwick district?- Yes.

16,927. Had Mr. Methuen any shop there?-No.

16,928. Do you know how the fishermen there got their supplies during the fishing season?-I understand that a party who held the land where the fishermen resided agreed for the boats with the proprietor, and paid the proprietor at the end of the season, and then the proprietor settled with the men. If they required any goods during the fishing season, I think they got a line from the proprietor to go to the shops in Lerwick or Scalloway for them.

16,929. But I thought it was Mr. Methuen who agreed the boats?- I think that most of the boats that he had were agreed in that way.

16,930. Had he an agent in Shetland?-Yes. The men who fished for him belonged to a certain district, and the proprietor of that district had a control over the boats, and it was him who arranged with Mr. Methuen.

16,931. Do you know whether Mr. Methuen's agent there was in the habit of giving lines to the fishermen to enable them to get supplies from the shops in Lerwick?-I am not aware of that.

16,932. I thought that was what you said?-No; it was the proprietor of the land in the district where Mr. Methuen had the fishing station that gave the lines to the fishermen.

16,933. Was that Mr. Bruce of Sandlodge?-Yes.

16,934. Were Mr. Methuen's arrangements to get these boats to deliver their fish to him all made with the proprietor?-Yes.

16,935. Then he had no direct agreement with the fishermen?-I understand not.

16,936. Have you any personal knowledge about that?-The information I received was from the men who had charge there for Mr. Methuen.

16,937. Are any of these men now in Edinburgh?-I don't think they are.

16,938. Do you know whether Mr. Methuen was in the habit of making payments to the fishermen during the fishing season, or whether all his payments to the fishermen

were made at the end of the season?-I understand that if any advance was given to the men, it was given through the proprietor, Mr. Bruce.

16,939. What is the nature of the contract entered into with the men employed in the cod and ling fishing in Lewis and the western islands?-The boats are agreed at a certain time, sometimes in March, to commence to fish about 20th May, and they get so much per cran and so much of bounty.

16,940. Have you made such contracts yourself, both on your own and on Mr. Methuen's account?-Yes; but principally for Mr. Methuen.

16,941. Do the men receive the bounty at the commencement, or before the commencement of the season?-The way in which it is done is this: the fish-curer and the fishermen make the contract in March, and then the men generally get the bounty a fortnight or a month after the time of agreeing, or at all events they generally get it before they commence to fish.

16,942. What is the purpose of giving the bounty?-I suppose there is no particular reason for it. I understand some curers like to give it in order to procure the best boats, and to be an inducement to the men to contract with them.

16,943. Is the price per cran invariably fixed before the beginning of the season?-If the boats are agreed, as they generally are on the Moray Firth-

16,944. But I am speaking of the Lewis fishery alone. You mentioned about a price per cran, which I suppose applies only to the herring fishing, while I was asking you about the cod and ling fishing?-I don't know [Page 436] much about the arrangements with the cod and ling fishermen; but I understand they get it certain amount per cwt. or per dozen of fish.

16,945. I thought you said you had made arrangements with the Lewis and West Highland fishermen?-Not for the cod and ling fishing. I have made arrangements with them for the herring fishing; but I understand the bargains are made on the same principle.

16,946. Have you made bargains for the herring fishing at the Lewis?-Yes. I have agreed boats at the Lewis for Mr. Methuen.

16,947. Were these boats belonging to the Lewis, and were the fishermen living there?-Yes; both the fishermen and the boats belonged to the Lewis.

16,948. In that case, when did the settlement take place?-I was there two seasons, and I settled with them generally at the end of the season-in the end of June.

16,949. Did the men get advances before the end of the season to any extent?-Yes; they generally got pretty large advances.

16,950. In what form were these advances given?-In some cases they got them in nets and ropes and bark, and sometimes in cash too.

16,951. Do you supply them with the nets and bark, and other things they require?-Yes; that is the general practice in Stornoway.

16,952. Do they also get supplies of food and meal before the end of the season?-Yes; sometimes.

16,953. Where do they get them?-It is generally from the curers that they get their supplies of nets and ropes, so on.

16,954. But Mr. Methuen has not a shop in Stornoway?-No; but he generally supplies the fishermen there with these things if they cannot get them otherwise. He does not prohibit them from getting them from the native merchants; but he usually keeps a supply for any one who may require them.

16,955. Does he supply any meal at all?-None that I am aware of.

16,956. But what I asked you was, whether the men required supplies of meal during the fishing season, if you know where they get them?-I suppose they get them from the native merchants.

16,957. Do you know whether the curers have to make such supplies or to guarantee such supplies in the Lewis?-Yes. I understand they give the men a line or a letter stating that they will be responsible for the price.

16,958. Have you had to do that in your own experience?-No; but I am aware that it is done at Wick, and I think at Stornoway too.

16,959. Do you know of any cases at Stornoway in which it had to be done?-No.

16,960. Are the fishermen in the Lewis very much indebted to the curers?-They are.

16,961. Is that chiefly for nets and boats?-Yes. In some cases the fish-curers give them boats, and perhaps nets too, and when they don't make it good fishing they get into debt in that way.

16,962. Have you had any experience at all of the cod and ling fishery?-No.

16,963. Have you not had any management of the fisheries in Fife or on the east coast of Scotland?-I have been at Fraserburgh and Rosehearty, but that was principally in connection with the herring fishing.

16,964. Are you not acquainted with the cod and ling fishing on the cast coast of Fife?-No; but I understand that in Fife the fish are sold each day. The supply regulates the demand; and the men are not generally agreed at all.

16,965. Would there, in your opinion, be any difficulty in settling for the fish as they are delivered, in the western islands and in Shetland?-No. Perhaps it might take a little time to bring about the proper arrangements; but I think it would work better if such a system were adopted.

16,966. Would it work better in the Wick herring fishery too?-I see no reason why it should not.

16,967. Would it be more convenient for the curers?-They would not make such large profits, I would suppose.

16,968. Why would the system of paying for the fish as they are delivered lessen the curers' profit?-My experience, on the east coast at least, has been, that the free boats are much more independent than the others. The men seem to have a better class of boats, and better material generally, when they can get their money daily or weekly or monthly, as they may call for it. These men can get their money daily if they wish it.

16,969. I thought these free boats were settled with at the end of the season, just like the others: is not that so?-Not generally. They don't have a regular place for delivering their fish. They may deliver them at one place today, and at another place next day, and when they fish in that way they generally collect their money daily; but at some places, such as North Sunderland, where the Fisherrow boats fish, they sometimes do not take the whole amount until the end of the season, except the small amount they get in supplies.

16,970. Do you say that at some places the free boats are paid just as they deliver their fish?-Yes.

16,971. Where is that?-At Burntisland, for instance. When boats come up from Anstruther or Buckhaven, they deliver their fish, and we pay them on delivery, the same day.

16,972. Are these fish for curing, or for the fresh market?-For both.

16,973. Does that lead to any difficulty?-None whatever. I have had about twenty-eight years' experience of that system of paying daily.

16,974. I suppose it saves you keeping accounts with the fishermen?-We keep an account of the fish we have received, but we have no running accounts with the men.

16,975. What kind of fish do you refer to as being delivered in that way at Burntisland?-Principally herrings.

16,976. Do you take delivery of cod and haddocks in that way too?-No; it is very seldom that boats come up in that way with them. When they do, they sell them to the inhabitants and get cash for them.

16,977. Have you had any management of the fisheries at Anstruther?-Yes; I was two winters there, during the time of the winter fishing, buying herrings, and we paid in the same way as we do at Burntisland-just when the fishermen liked to call for their money, which was generally weekly. Some boats were paid daily, but others did not come asking for the money until the end of the week.

16,978. The quantity of fish delivered was marked down in the fish-book each time?-Yes.

16,979. So that you knew exactly how much the men had to get?- Yes. The price was extended in the book.

16,980. Had the price been fixed at the beginning of the season?- No. The price was fixed daily, according to the market, the supply regulating the demand. That is the system at Burntisland, and at Anstruther, Pittenweem, and St. Monance.

16,981. Are the fishermen at these places in a prosperous condition under that system?-I think so.

16,982. Has there been a material change in their circumstances within your recollection?-Yes; a very great change. The boats and material have been very much improved.

16,983. Were the men at one time considerably in debt?-I don't know if they were much in debt, but they did not have the same class of boats, nor so good material, such as nets, and the like of that. Their boats are much better now than they used to be.

16,984. Do the boats there belong to the men themselves?-Yes.

16,985. Do you know whether many of the men in that district are now in debt to the curers or merchants?-A few of them may be but they are not so generally.

16,986. Was there formerly a system there of settling at longer intervals?-Yes. I think that generally they did not make a final settlement with the local curers until the end of the season; but there have been so many strangers going there within the last few years, that it seems to have been adopted as a rule to [Page 437] pay daily, or when the fishermen like to call for the money, which is at least once a week.

16,987. I suppose the railway has made a difference in that respect?-Yes; it has made a great change in the value of the fish.

16,988. Is the cod and haddock fishery prosecuted to great extent at Anstruther and Pittenweem?-It is.

16,989. Is it prosecuted chiefly for the fresh market?-Yes, principally.

16,990. Is it carried on with the same boats which are used in the herring fishing?-No. I think they are generally a larger class of boats-decked boats-that are used for that fishing. A number of the fishermen go in the same boats which they use in the herring fishing, but some of them have a class of boats in which they go out to sea for two or three days, and these are decked and very comfortable.

16,991. Do you buy any of these fish for curing?-Not generally; but Mr. Methuen does at Anstruther and the other stations there. He keeps an establishment at Anstruther.

16,992. Does he cure herrings only, or also cod and haddocks?- He buys cod and ling, and sends them away fresh, I think, and he buys a good number of haddocks and smokes them. Haddocks are what he buys principally there.

16,993. How are these settled for?-I am not quite sure, but I think it is once a week.

16,994. There is no yearly settlement?-No.

16,995. Do you know any reason why a settlement once a week or at delivery should not be made in districts like Shetland or the Lewis, which you know better?-No. I think the fishermen prefer to get their money once a week, and the

curers now like it as well too. They find less trouble with that system, and the fishermen are more independent and do not require advances as they did before.

16,996. Do you think that system of frequent payments has enabled the fishermen to do without advances to the same extent as they required them formerly?-I think so.

16,997. Would there be any practical difficulty in settling in that way in remote and thinly inhabited districts, such as Shetland and the Lewis, where the stations may be a long way from towns?- There would be a difficulty, to a certain extent. One great difficulty would be in getting cash daily, but they might perhaps get it weekly. I think, in the western islands, perhaps once a week might be adopted as a very good plan, if it could be managed, and they could arrange to get their money from Stornoway.

16,998. The man might get an order to receive the money due to him for his fish at the principal countinghouse of the merchant?- Yes. The general system adopted with Mr. Methuen's boats, and those of the other curers belonging to Wick, is, that they generally agree so many boats belonging to the Lewis, and so many belonging to Caithness, and they return to the Wick fishing after leaving the Lewis; then at the end of the Wick fishing they are settled with for both fishings.

16,999. Have you been in the habit of supplying boats to fishermen?-When I was at Stornoway for Mr. Methuen, I generally supplied them with nets and bark, and they got boats in some cases too.

17,000. What kind of boats were these?-They got the Caithness boats; but that is not so much the practice now. The fishermen seem to get them from the boat-builders now, and make their own arrangements for them.

17,001. Have you seen any of the Shetland boats?-Yes, I have seen them at Wick. I think they generally have four oars.

17,002. Have you seen any of the six-oared boats?-Yes. I think there are two or three classes of them. They have a small boat, then a four-oared boat, and then the larger six-oared boat.

17,003. But they depend most on the six-oared boats now: have you any knowledge of the cost of such boats?-There are very few of the Shetland boats that come to Wick; but I have seen some of the Orkney boats there, which I believe are very similar, and I think a boat of that kind, with masts, sails, and oars complete, would cost about £50.

17,004. Were these boats half-decked?-There was no deck on them when I saw them. They were all open.

17,005. What was the size of them?-I would suppose about 24 feet keel.

17,006. However, you don't know much about the Shetland boats?-No; it is the Orkney boats that I have seen coming to Wick.

17,007. Do you purchase salt for curing your fish?-It is generally supplied from Liverpool.

17,008. What is the usual price that is paid for salt for curing?-It varies in price. Last year I think it would be about 12s. per ton in Liverpool.

17,009. Have you been able to get salt in Liverpool for curing as low as 7s. per ton?-No. I have never bought it, but I have an idea about what it costs. It is generally from 9s. to 11s.; I never heard of it being under 9s.

17,010. How do you take it up to the north?-By sailing vessels.

17,011. What is the freight?-We have paid 9s., and as low as 7s. 6d.; but about 8s. is the general thing to Burntisland. It is brought from Liverpool round by the north of Scotland and up the Firth.

17,012. Do you think 10s. would be about the freight to Shetland?-I would suppose so; but we generally get the freights cheaper to Burntisland than they would be there, as it is going to a loading port. Perhaps about 12s. would be a fair freight to Lerwick, because the vessel has to come away in ballast again.

17,013. What allowance would you make for wastage, if you were calculating the cost of curing?-About 21/2 per cent. is the usual thing; if there is more waste than that, then we charge the captain.

17,014. Have you ever made any estimate of the cost of curing a ton of cod or ling?-No; but I would suppose that in Shetland it would cost about £1 per ton to split them and cure them and dry them. There is a great deal of work connected with it.

Edinburgh, April 18, 1872, CATHERINE BROWN, examined.

17,015. Have you been a knitter of Shetland goods for a long time?-Yes, for about fifteen years.

17,016. Did you live in Lerwick at one time?-Yes.

17,017. Were you employed to knit a shawl for the Princess of Wales?-Yes; a cloth or burnous.

17,018. Have you an appointment as knitter to Her Royal Highness?-Yes.

17,019. I believe some of your shawls obtained high prizes at the London Exhibition of 1870?-Yes.

17,020. Are you now going to begin business in Edinburgh?-I think so.

17,021. Have your knitted for Mr. Robert Sinclair?-I have sold to him. I have always been in the habit of knitting with my own wool and selling my goods.

17,022. Have you never knitted with the merchants' wool at all?- No.

17,023. Have you seen Mr. Sinclair within the last ten days?-Yes.

17,024. Are you aware that he and some other merchants in Shetland desired that you should be examined before this Commission?-I know that he wished me to be examined.

17,025. I have been asked by Mr. Sinclair to put certain questions to you on the subject of your dealings with him. Do you know whether, as a usual thing, the merchants in Lerwick pay higher or lower prices for hosiery articles than you could get from private individuals?-They pay lower prices.

17,026. Is that taking the price in goods?-I never sold for goods, always for money.

17,027. Did you never do that from the very first?-I was in the habit of selling to private individuals then.

17,028. Did you never sell for goods at all?-When I wished goods, I exchanged my articles for them; but I got money whenever I wanted it.

17,029. How did you succeed in obtaining cash for [Page 438] your hosiery whenever you wished?-The merchants always came to me and asked for the goods. I did not go to them.

17,030. But you were not always such a good knitter as you are now. Did you not go through any apprenticeship?-Not with the merchants.

17,031. Was the merchants' money price for the goods lower than the money price which you got from private individuals?-Yes. I always gave it to them a little lower, perhaps 1s. or 2s. or 3s. less on a shawl, than I asked from a private individual.

17,032. Did you sell your shawls for a lower price to the merchants in Lerwick than you sell them for to the merchants in Edinburgh?-No. I sell them at the same price to the merchants in Lerwick as to the merchants in Edinburgh.

17,033. Have you ever sold a shawl to a merchant in Edinburgh?- Yes.

17,034. Have you not got more for it from him than you would have got from a merchant in Lerwick?-That was some years ago.

17,035. Was Mr. White the merchant in Edinburgh to whom you sold?-Yes.

17,036. Do you know whether knitters in Lerwick, who depend entirely on knitting for their living, are able to get money for their work?-I do not know about any person but myself.

17,037. Did you ever hear of lines or goods being sold by knitters which they had got for their hosiery?-No, not lines. I have heard of them selling their goods, but I could not say whether it was true or not. I have not heard of that often.

17,038. When a merchant buys a fine shawl or a neck-tie or a lot of veils from a knitter, do you know whether he sells them in the south for a larger price than he pays?-I don't know anything about that.

17,039. Have you ever bought shawls or veils in Edinburgh?-No.

17,040. Or priced them?-No.

17,041. Are the prices of goods in the Lerwick shops generally higher or lower than the prices you pay here for such goods, for instance, as cottons or petticoats-I am a stranger here, and I have not bought anything yet, except a piece of velvet, and I paid the same price for it here as I would have done in Lerwick.

Edinburgh, April 18, 1872, CHARLES FLEMING, examined.

17,042. What are you?-I am a draper to trade, and I am the buyer in that department for Messrs. M'Laren, Son, & Co., High Street, Edinburgh.

17,043. Is that a wholesale as well as a retail house?-Yes.

17,044. How many years' experience have you had in the business?-Eighteen years. I have been two years in my present position as buyer.

17,045. I suppose you are one of the largest buyers in that line in Scotland?-I believe we are, for the retail trade; but we are wholesale as well.

17,046. Do you buy for the wholesale trade, or only for the retail?-I buy for both.

17,047. I show you a piece of half-bleached cotton: what is the usual price of that as an article of retail trade?-It depends upon the width. There are a number of different widths, but the usual widths made are 29, 32, and 36 inches. It is also made 40 inches and wider, but these are not usually sold.

17,048. Can you tell from the sample what the width has been?- No.

17,049. What would be the proper retail price for the 29 inch width?-I should say 21/2d.

17,050. Would that be the fair price in a country district?-I think it would be a very fair price.

17,051. Would it not be legitimate to charge a somewhat higher rate in a remote district of the Highlands?-I think not, for an article such as this. That would be the outside stretch that it would be worth at the present time for 29 inches.

17,052. Is there anything narrower than that?-I am not aware of anything. That is the trade term for them; but I don't know that they exactly measure the width which is named.

17,053. Would you be surprised to be asked 41/2d. a yard for that?-I think it would be very much out of the way.

17,054. What would be a fair price for it if it were 32 inches wide?-About 31/4d. a yard; and about 33/4d. for 36 inches.

17,055. In all these valuations, are you assuming that the article is sold in a country district, and not in a large city establishment where there is a rapid turnover and great competition?-Yes. I think that usually very little difference is made on that class of stuff, wherever it is sold.

17,056. Is it a very common sort of article?-It is the most common thing of the kind that is made. It is generally used for an inter-lining for different parts of ladies' dress, being put between two other materials.

17,057. What would it be used for by working people in the country?-It might be used for lining dress skirts, or such as that.

17,058. I show you another piece of half-bleached cotton: is that also made of different widths?-Yes. The value of that, at 29 inches, would be 4d. a yard; at 32 inches, 51/4d.; and at 36 inches, 61/2d. It is made also in greater widths, but not usually sold, unless for some special purpose.

17,059. Of what greater width is it made?-It is made in 40 inches, and 48 and 54.

17,060. Would the price rise in proportion to the widths in the same ratio as in the three widths you have already mentioned?- Yes.

17,061. But 36 inches is the widest that is commonly sold?-Yes.

17,062. Is that used by fishermen for making oil-cloth?-It may be used for that purpose.

17,063. If used in that way, what width would most likely be selected?-36 inches would be the best width for cutting out. It is the most usual width made in this class of stuff for almost any purpose. Although I am terming it 36 inches, it may measure less, perhaps 341/2 or 35 inches; and the same proportion with the other widths.

17,064. For 36 inches wide, would 8d. a yard be too high a price for that cotton?-I think it would be very dear at 8d. a yard, even at the present price of cotton.

17,065. Was the price in January higher or lower?-It was lower in January than now. There has been an advance of about 5 per cent. on cotton goods since then, and there has been a difference of 10 per cent. since October last. Cotton goods were very steady all last season until then.

17,066. I show you a piece of shirting: what value do you put upon that in the same way?-It is usually made in two widths, 32 and 36 inches. Those, of course, are the same as calicoes; they don't measure exactly what the makers term them, but they are known as these widths. The 32 inches is the width principally used, and this class of stuff is about 63/4d. at the present time. I daresay had it been bought a couple of months ago it would have been 61/2d. In the other width it would be about 1d. more.

17,067. Would 1s. a yard be a high price for that?-It would be a very exorbitant price, in my judgement.

17,068. Would it be so in any part of the kingdom?-It would be so in any part of the world, I should say, either in or out of the kingdom. It would be a very extraordinary price to charge.

17,069. Is there no greater width than 36 inches?-Not in this class of stuff, of this make. This is Glasgow-made stripe, and they don't make them wider than 36. There is a Kirkcaldy stripe too, but it is different class from this altogether.

17,070. Is that stuff used for making shirts for men?-That is what it is principally used for. Country people also use it for what they term short-gowns and children's dresses, and different things of that kind; but its principal use is for working-men's shirts.

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BLANCE, Andrew (analysis of his evidence, p. 221), fisherman at Burravoe, also engaged in seal and whale fishing, 9136; tenant of land under Mr. M'Queen, 9137; system of engagements and settlements in whale fishing, 9147-9221; half-pay tickets, 9154.

BLANCE, Gilbert (analysis of his evidence, p. 137), fisherman at Midgarth, 5542; tenant under trustees, 5543; under no obligation to fish, 5544; deals at the stores of merchants for whom he fishes, 5547; when men are in debt they seldom get cash, 5552; considers himself under obligation to fish when indebted, 5554; has no pass-book, 5574; smuggling of fish, 5577-5592.

BLANCE, William (analysis of his evidence, p. 149), fisherman at Ollaberry, 6008; and tenant, 6009; fishes for landlord, 6011; but is not bound, 6012; has been free for six years, 6013; goes to Faroe fishing; does not know whether if he went to home fishing he would be bound, 6026; believes that men generally are, 6028: deals principally with merchant, 6057; always had advances of money when he wishes, 6076; being indebted to merchant, considers himself bound to fish for him, 6092, 6093; fishing lines and bait, 6103; knitters, 6136; paid generally in goods, 6138-6147; does not know whether money could be got, 6147-6150; ejectment, 6155; never knew of ejectment for refusal to fish, 6160; eggs, 6161-6166; freedom in sale of, 6181, 6182.

BLANCH, Peter (analysis of his evidence, p. 206), fisherman and farmer near Brae, 8510; skipper in Faroe fishing, 8516; for Mr. Adie, 8517; settlement generally yearly, 8518; men generally take their supplies from merchant, 8519; never knew of men bound to fish, 8528; thinks the present system favours the masters, as they can fix

the price of fish as they choose, and men do not know what they are earning till the end of the season, 8531; Englishmen fishing for Shetland curers have price fixed at the beginning of season, 8539, 8541; the system of credit causes men to incur debt, 8564; thinks it would be a good plan for a certain part of the price of fish to be paid on delivery, and the rest at settlement according to current price, 8567; at home fishing thinks a man, unless indebted, is not bound to fish for merchant, 8575; in selling Shetland cloth always got cash if asked, 8576. (recalled). Gives evidence as to the cost of curing fish, 8713; men have to supply their own lines and fishing apparatus in Faroe smacks--thinks the owner should, 8715.

BOATS and Boat Hires, purchase of and advances for (<see> Advances, etc.).

BOLT, Mrs. Barbara (analysis of her evidence, p. 38), lives in Lerwick, 1940; knits with her own wool and sells to dealer, 1941; has no pass-book, 1942; is paid in goods, 1947; gets money when she wishes, 1951; sometimes gets lines, 1955; can get wool for goods or lines, 1955-1965.

BOLT, Mrs. Wilhelmina (analysis of her evidence, p. 38), corroborates Mrs. Barbara Bolt (p. 38), 1969-1971; got money and goods as she wished from merchants for hosiery, 1972.

BORTHWICK, Catherine (analysis of her evidence, p. 32), lives in Lerwick, and knits, 1608; for dealers, 1610; has no pass-book, 1611, 1612; is paid in goods, 1616; price is fixed by dealer, 1617; seldom gets money, 1620-1623; sometimes has to sell goods to obtain money, 1627; prefers to knit for money, 1630.

BROWN, Catherine (analysis of her evidence, p. 437), has knitted Shetland goods for about fifteen years, 17,015; and has appointment as knitter to H.R.H the Princess of Wales, 17,018; always sold hosiery in Lerwick for money, 17,026; and sold at a price slightly lower, 17,031; has heard of women selling goods to get money, 17,037.

BROWN, James (analysis of his evidence, p. 131), tenant under Mr. Bruce of Sumburgh, and fishes for him, 5284; corroborates evidence of William Goudie (p. 105), 5285; in consequence of a report of him selling some fish to another merchant, 5287; his house was put up to let by Mr. Bruce, 5288; on proving to Mr. Bruce that the report was false he was allowed to remain, 5294; meal dearer at store than at Lerwick, 5300.

BROWN, James (analysis of his evidence, p. 193), has a small shop, 7957; at Brough in North Delting, 7958; deals in groceries, 7959; never is forbidden to do so, 7962; deals for cash, 7964; fishes, and buys small fish from other men, 7964; cures fish, 7968; does not think there is any restriction placed on the sale of any fish by men, 7975; kelp, 7986; meal, 7999; thinks a ready money system would be an advantage to all

BRUCE, James (analysis of his evidence, p. 186), schoolmaster and inspector of poor, 7628; pauperism has neither increased nor diminished in his experience, 7631; gives an account of management of paupers, 7629-7656.

BRUCE, John, jun. (analysis of his evidence, p. 329), son of Mr. Bruce, Sumburgh, 13,292 tacksman of property at Dunrossness. Gives in paper stating that tenants on

property managed by him are free to go to sea, to the Greenland or Faroe fishings, and to pursue any land occupation; but remaining at home fishing, are expected to deliver their fish to him, payment at full market value being rendered. This is a condition of holding their farms, and is beneficial to them, as they must fish for some merchant; he gives as good a price as any other, and besides has the most convenient stations for delivery of fish. Keeps store for the convenience of men, but not expected to deal there against their wishes. Prior to 1860 men fished as they pleased, and generally were unable to pay their rents. The people are now in a much better state. Goods at store are of the best quality, and not unreasonably priced, 13,293.

BRUCE, John James (analysis of his evidence, p. 74), shopman to Mr. Sinclair, 3308; there is no profit on hosiery, 3312-3342; lines are generally brought back by original owner, 3345; never knew an instance of lines being sold or transferred, 3350; but has heard that such things are done, 3355; under cash system workers would actually get less value for their work, 3402; but there would be the advantage of having money for provisions, 3409; and it might cause knitters to work more carefully, and then there would be a regular market, 3412. -(recalled, p. 77). Gives evidence as to lines, 3445.

BURGESS, John (analysis of his evidence, p. 126), fisherman and tenant at Hillwill, 5097; corroborates James Flawes (p. 121) and others, 5098; beach boys, 5101; wages not paid until settlement, 5103; are bound to serve, 5105; men are free to deal anywhere, 5114; has no pass-book, 5117.

CATTLE, disposal of, etc., 942, 1295, 4751, 5352, 6583, 7228, 8130, 8849, 8870, 8944, 9127, 9489, 9686, 10,018, 10,071, 12,241, 12,346, 12,727, 12,758, 13,241. -Marking and selling, 5278, 7235, 7600, 8135, 9690.

CHARACTER of Shetland people, 3623, 5981, 7797, 9382, 12,148, 13,807, 14,743, 14,757.

CHRISTIE, Thomas (analysis of his evidence, p. 22), fisherman and tenant at Burra, 1063; corroborates Walter Williamson (p.15) and Peter Smith (p. 20), 1064; to fish and cure for themselves would be advantageous to men, 1074; knitters, 1077; are invariably paid in goods, 1078; wool supplied by dealer, 1084; and price fixed by him, 1091.

CLOTH made by women, sale of, 6681, 8163, 8254, 8309, 8488, 8576.

CLUNAS, Margaret (analysis of her evidence, p. 78), lives at Unst, 3456; knits, 3451; for merchant, 3452, 3453; and sometimes used her own wool, 3455; is paid in goods, 3458; money not given, 3459; sometimes spins wool, and believes she could get cash for the worsted, 3486, 3494.

COD Fishing (home), 12,236, 12,468.

COLVIN, Gavin (analysis of his evidence, p. 28), fisherman in Levenwick, 1382; corroborates John Leask (p. 25), 1392; goods at Mouat's store very inferior, 1394; all produce was required to be delivered up, 1397; can now get money if he requires it, 1405; price of fish should be fixed beforehand, 1409.

CONDITION of people, 3623, 5235, 7470, 9709, 10,544.

COTTON at store, 9815, 9847, 10,511, 13,200, 13,408, 16,656, 17,047.

COUTTS, James (analysis of his evidence, p. 386), a provision merchant in Lerwick for eleven years, 15,261; previously bought in soft goods, 15,263; but gave it up as it caused him a great deal of trouble, 15,264; and [Page 441] he sometimes had stolen goods brought to him, etc., 15,266.

COUTTS, James (recalled, p. 387). Produces book showing his transactions in brokery line, 15,332; paid for these goods in cash, and people spent it frequently afterwards in his shop, 15,334; has taken goods from knitters which they had got for hosiery, 15,336.

COUTTS, Mary (analysis of her evidence, p. 284), lives in Scalloway, 11,585; she and her sister support themselves, father, and aunt, by knitting, 11,587; knits with merchant's wool, 11,589; is paid in tea and goods, 11,590; cannot get money, 11,591; except the merest trifle, 11,593-11,596; barters tea for meal and potatoes, 11,601.

COWIE, Dr. Robert (analysis of his evidence, p. 369), medical practitioner in Lerwick, 14,692; is a native of Lerwick, 14,693; has always lived there except when south for his education, 14,694; a system of barter is almost universal, 14,696; knitters are paid in goods to an extent that is unwholesome for themselves and the community, 14,698; there is an utter disproportion in the food and dress of knitters, who are often clothed in a gaudy, showy manner, while almost starving, 14,699; dress that they wear, also, is unsuited to the climate, 14,701; this is owing chiefly to the system of truck, 14,703; there is no pawnbroker's shop in Shetland, 14,708; some old women who make a livelihood by hawking goods for knitters from house to house, 14,709; believes immorality prevails to a considerable extent in Shetland, but cannot say certainly, 14,711; does not think professional prostitution is greater in Lerwick than other seaport towns, 14,712; but believes that occasional prostitution prevails to a greater extent, 14,713; this may be accounted for by the system of barter, as knitters have insufficient food and plenty of handsome clothes, 14,715; statistics show that illegitimacy is less in Shetland than in many parts of Scotland, but believes that for several reasons the Registrar-General's returns are not to be depended on, 14,717- 14,721; the system has also evil effects on the physical systems of knitters, 14,773; and leads them to be very extravagant in dress, 14,725; it also causes them to use tea to an extent that is injurious to their health, 14,726; oatmeal, fish, and potatoes, the principal diet of a fisherman's family, 14,729; under the system of fishing, men do not know whether they are in debt or not, 14,731; and this causes them to be deficient in independence, and raises a deceitful, time-serving disposition, and cripples enterprise, 14,739; people are intelligent and pretty well-bred, but they want proper ambition, and have no desire of improving their condition, 14,743; this is caused by the system of barter, by the short leases of land, and the want of encouragement to make improvements, 14,744; houses in Shetland are very bad, 14,745; people are sober and steady, 14,757; thinks the system of long credit injurious to all concerned, 14,759.

CURER'S profit, 3623, 4990, 5704, (small) 9698.

CURING, Cost of, 8551, 8660, 8713, 8750, 8999, 9698, 10,109, 10,276, 10,344, 11,291, 11,422, 13,573, 15,240, 15,766, 15,962, 16,474, 17,007.

DALGLEISH, David (analysis of his evidence, p. 295), partner of Nicholson & Co., Scalloway, 12,021; corroborates Mr. Charles Nicholson (p. 293), 12,023.

DALZELL, Mrs. Barbara (analysis of her evidence, p. 388), lives in Scalloway Road, Lerwick, 15,359; has knitted with her own and merchant's wool, 15,360; mostly with her own, 15,361; is paid in money and goods, 15,362; often entirely in money, 15,363; knitters are generally paid in goods only, 15,364; money only given for very fine articles, 15,865; best Shetland wool is very difficult to procure, 15,397.

DAVIDSON, Donald (analysis of his evidence, p. 435), fish-curer in Burntisland, 16,920; for a long time in Mr. Methuen's employment, 16,921; his stations in Shetland given up two years since, 16,925; Mr. Methuen agreed with Mr. Bruce for the delivery of the fish, 16,934; and not directly with the men, 16,935; thinks a system of cash payments could be introduced and worked in Shetland, 16,965.

DEBTS, Transfer of, from one merchant to another, 7365, 7751, 7776, 8127, 8373, 8641, 9074, 9940,10,034,10,499, 10,977, 13,001, 14,137, 14,558, 16,010, 16,299, 16,566.

DEPOSITS in bank and hoarding, 3735, 4785, 10,709, 13,055, 13,726, 15,090, 15,223, 16,330, 16,513.

EDMONSTONE, David (analysis of his evidence, p. 258), factor on Buness estate, and a farmer, 10,624; formerly a fish-merchant, 10,625; was the writer of letter (Q. 44,511) in Edinburgh evidence, 10,626; retains opinions stated therein, 10,627; thinks cash advances during season should be compulsory, 10,631, fishing and farming must be combined in Shetland, owing to the unproductiveness of the winter fishing, 10,633; small boats best for winter fishery, 10,634; fish-curers arrange payment of rents, 10,640; people are beginning to see the wisdom of making improvements, 10,670; thinks the diet of people much better than that of the same class in England and Scotland, 10,672; meal, fish, potatoes, bread, and biscuits principal articles of diet, 10,679.

EGGS, Disposal of, etc., 949, 1297, 6161, 6483, 6853, 7074, 7448, 7538, 8870, 8878, 8967, 9908, 10,169, 11,435, 11,853, 12,038, 12,048, 12,218, 12,252, 12,295, 12,346, 12,695, 12,836, 12,928, 13,015, 13,043, 14,023.

EUNSON, Mrs. Ann (analysis of her evidence, p. 77), lives in Lerwick, 3415; knits for dealer, 3418; paid in goods, and got money when she required, 3421; sometimes sold shawls to travelling merchants for money, 3430; sometimes got advances of money from dealer even when there was not a balance in her favour, 3444.

EUNSON, Charles (analysis of his evidence, p. 125), fisherman and tenant at Waterbru, 5056; corroborates James Flawes (p. 121) and George Goudie (p. 124), 5058, 5059; liberty money, 5060. 5061; beach boys, 5070, 5071.

EVICTION, 577,585, 722, 790, 900, 1012, 1327, 2994, 3025, 3625, 3659, 3755, 4274, 4385, 4486, 4510, 4727, 4777, 4935, 4956, 5069, 5288, 5314, 5320, 6155,

8910, 9227, 9238, 9423, 9636, 10,162, 12,323, 12,625, 12,693, 13,433, 14,816, 16,437.

EXTER, Janet (analysis of her evidence, p. 102), knitter in Satter, 4093; knits for Mr. Linklater, 4094; with his wool, 4095; no lines or pass-book, 4099; could not get money, 4102; is poorly paid, 4101; in goods, 4102; would prefer money, if even a little less, 4103; knits now for Mr. Sinclair, and gets part payment in cash, 4111; formerly exchanged goods for meal, 4112.

FAIR ISLE, 4729, 4739, 5770, 13,056, 13,233, 13,326, p. 330, f.n.

FAMILY supplied by dealer in men's absence (Faroe fishing), 1172, 117S, 1188, 2955, 11,058.

FARM Produce, Disposal of, etc., 939, 949, 1294, 1300, 4673, 6383, 8870, 9873, 10,079, 10,169, 10,605, 12,778, 13,089, 13,814. -Restrictions on sale of, 5271, 12,689.

FAROE Fishing, Statements as to, 876, 923, 1157, 1172, 1178, 1183, 1214, 2929, 5726, 6900, 7860, 8515, 9371, 10,912, 11,268, 11,718, 12,011, 12,211, 12,262, 12,267, 12,295, 12,407, 13,557, 13,603, 13,625, 14,080, 15,107, 15,211, 15,227, 15,706, 16,310, 16,428, 16,490.

FEAR of landlord and merchant, 572, 9670, 12,334, 13,421, 13,472.

FINES, 1044, 3755, 3623, 3917, 4483, 4534, 4751, 9241, 12,695, 12,698.

FLAUS, Mrs. Helen (analysis of her evidence, p. 38), lives in Lerwick; dresses shawls for knitters, 1973; and knits, 1973; confirms Mrs. Arcus (p. 33), 1974; sells for knitters to merchants, and gets lines, 1985; or sees it marked in a book, 1986; can always get money if she wishes it, but cannot say if it is the custom to give it, 1998; believes that if hosiery were paid in money, a less price would be given, 2004, 2012.

FLAWES, James (analysis of his evidence, p. 121), fisherman and tenant at Rennesta, near Quendale, 4910; bound to fish, 4911; on pain of expulsion, 4914; current price of fish fixed by four leading merchants, 4919; other merchants vary, and sometimes give more, 4923-4931; knows cases of men being threatened for fishing to other merchants, 4935-4947; liberty money, 4948; men not obliged to deal at store, 4971; goods dearer there, 4978; thinks the price given for fish is not sufficiently high, 4988; boys are bound to act as beach boys, 5000, 5001.

FLEMING, Charles (analysis of his evidence, p. 438), draper and buyer for Messrs. Maclaren, Son, & Co., High Street, Edinburgh, 17,042; has had eighteen years' experience--two as a buyer, 17,044; gives evidence as to value of samples of cotton shown him, 17,047, 17,070.

FLOUR, Price of, etc., 9069, 9899, 11,847, 14,966, 15,043, 16,862.

FORDYCE, Mrs. John Winwick or (analysis of her evidence, p. 407), lives in Chromate Lane, Lerwick, 16,038; knits with her own wool, 16,040; gets goods or money as she requires, 16,065; but the custom is to pay in goods, 16,066.

FRASER, Rev. James (analysis of his evidence, p. 194), a clergyman at Sullem for twenty-four years, 8007; is well acquainted with the people, 8008; and the systems of payment and credit purchases practised, 8009; thinks the effect of these on the people is not very good, 8010; the large amount of bad debts in [Page 442] merchant's books cause him to charge higher prices, 8011, 8012; the credit system is an annoyance to the merchant, 8016; and injurious to the independence of the people, 8022; does not think fishing and farming could be separated, 8029; payment of hosiery in cash would be no advantage, as a rule, to the knitters, 8035; goods given in exchange for hosiery dearer, 8040; thinks a system of agricultural improvements would be the best thing for Shetland, as men would then be able to supply their own meal, and be more independent of curer, 8052; a system of leaseholding necessary, 8067; price for fish fixed at the beginning of season would not be an advantage to men, 8071; cannot see any advantage in periodical advances during season, 8074; in letter sent afterwards to Commissioner, insists again strongly on agricultural improvements as the most necessary thing in Shetland, p. 197.

GARRIOCH, James (analysis of his evidence, p. 213), shopkeeper to Hay & Co. in Fetlar, 8762; price of meal, 8766; men are not bound to fish, 8781; beach boys, 8792; whisky, 8833; kelp, 8838; paid either in cash or goods, 8845; purchases cattle, 8849; pays in cash, 8850.

GARRIOCK, Lawrence (analysis of his evidence, p. 335), is a fisherman at Scatness, 13,454; lives on the property of Mr. Bruce of Simbister; fishes for Hay & Co., but is not bound, 13,455; deals sometimes at store, 13,457; and runs an account, 13,461; paid balance in cash at settlement, 13,462; is satisfied with price and quality of the goods, 13,465; has no passbook, 13,470; men are afraid to give evidence before commissioner because of curers, 13,472; they are afraid of being ejected, 13,474; landlord takes one-third of oil of whales captured by men, 13,478; thinks this unfair, 13,479; landlord demands it, under threat of raising their rents, 13,482.

GARRIOCK, Lewis F. U. (analysis of his evidence, p. 302), partner of Garriock & Co., general merchants and fish-curers at Reawick, 12,293; gives in a written statement, 12,295, stating that the firm's general store is Reawick, and they have besides two smaller shops: Messrs. Garriock last season cured the fish from ten smacks at Faroe, etc., and five smaller ones at Orkney and home fishing, to the gross value of £4600; there is no obligation on men to deal at store; in bad seasons merchants lose heavily by bad debts; merchants would greatly prefer a cash system, with payment on delivery, but such a system would lead to fixed wages; men curing their own fish are free in selling. It is the exception, and not the rule, for men to be indebted; never knew liberty money paid, 12,307; tenants are never interfered with in sale of hosiery, cattle, or farm produce, 12,346; nor bound to deal at store, 12,347; Burra men generally go to the Faroe fishing, 12,362; not to avoid the restrictions laid on the ling fishing, 12,365; they are bound by their leases to deliver fish to Messrs. Hay, 12,367; Messrs. Garriock, at one time issued a circular at Foula, stating that they wished to ascertain the views of the people as to whether they wished to cure their own fish, stating at the same time that if they did, Messrs. Garriock's store would be discontinued, 12,380; the men unanimously stated they did not wish such

conditions, 12,381; men prefer to bring their fish to the principal merchant, because he can command the largest market, and therefore give the best price, 12,400; young men going to the Faroe fishing require to have their outfit on credit, 12,407; in the Faroe fishing the men and masters are actually joint-adventurers, only the merchant takes all the risk, 12,418, 12,419; in home cod fishing the men are settled with in the same manner as the Faroe fishermen, 12,468, 12,472; the winter fishing could not be much increased, 12,478; long-line fishing from the bank would be impracticable in winter, 12,490; Greenland fishing, 12,506; was formerly a nursery for the merchant service, but now young men do not go, as the Board of Trade regulations prevent them from getting outfit on credit, 12,511, 12,512; large advances are made in bad season to men, 12,547; men usually continue to fish until their debt is paid off, 12,549; the system of fishing on shares is the best, 12,608; believes men would refuse to adopt weekly payments, 12,610.

GARRIOCK, Peter (analysis of his evidence, p. 385), agent in Lerwick, 15,209; sells fishing materials, 15,210; is engaged only in the Faroe fishing, 15,211; men deal with certain other merchants for goods which be guarantees, 15,212; and the amount of their account is deducted at settlement, 15,214; occasionally receives a commission, 15,215; many men are not in a position to require advances, but all take them, 15,223; in the Faroe trade, merchants often have to give the men a price as high or even higher than they themselves get, 15,227.

GARRIOCK, William (analysis of his evidence, p. 411), lives in Sandsting parish, 16,216; serves in Naval Reserve in Lerwick, 16,217; was bred a seaman, 16,218; has principally gone to Greenland and Davis Straits, 16,219; has shipped from various agents, 16,222; always got his outfit from agent with whom he served, 16,224; and supplies for his family, 16,225; always got cash if he asked for it, 16,229; at settlement agent sometimes attends at the Custom-house to receive payment of his account, and at other times the men go down to his shop, and settle it after they have been paid, 16,239; never knew an agent refuse to give money, 16,243; men may buy their outfits where they please, 16,270; has bought his from a dealer other than the one he engaged with, 16,272; an impression exists that indebted men have the best chance of being engaged--cannot say if it is true, 16,280, 16,281; at the end of one year he had a balance against him--he sailed next year under another merchant, and found that the account had been transferred to the new agent's books, 16,299.

GATHERER, John (analysis of his evidence, p. 391), is collector of customs at Lerwick; strongly condemns the truck system, 15,866; before 1867 wages of men from Greenland fishery were seldom paid at the Customhouse, 15,871; and in almost every case the men ran large accounts, 15,872; this system he believes was actually illegal, 15,881; and was only carried on because the agents desired a profit on the men's supplies, 15,885; since 1867 men have received full payment in cash at the Custom-house, 15,892; but there is much delay in payment, 15,893; does not believe this arises so much from the men's reluctance (15,894), as the agent's unwillingness to have a settlement, 15,896; though the regulations are outwardly observed, the agents still continue to have a virtual security for their accounts, and agents admit that their main inducement to accept the agency is the profit to be got on supplies to

the men, 15,898; thinks young men could get their outfits without the help of the agents, 15,910; as any merchant would give a seaman credit if he knew the agent did not enjoy a monopoly of giving supplies, 15,914.

GAUNSON, George (analysis of his evidence, p. 215), fisherman in Fetlar and tenant of land, 8861; does not know if men in Fetlar are at liberty to fish--gets a good price from Messrs. Hay, and never inquired, 8862; generally has a balance in his favour at the end of the season, 8869; always got money or goods as he wanted, 8869; sells farm produce and cattle as he pleases, 8872, 8874; goods at store are good and reasonable, 8887; does not think men are bound to fish, 8894; hosiery, 8896.

GEORGESON, George (analysis of his evidence, p. 295), merchant at Bayhall in the parish of Walls, 12,026; for twenty-seven years, 12,027; principally deals with fishermen and farmers for ready money, 12,028; no men are bound to fish for him--he supplies his fishers with goods, and settles yearly, 12,029; does not do much barter, 12,037; eggs looked on as money, 12,038; never pays for hosiery in cash, 12,039; there is no profit, and sometimes a loss on it, 12,041; men commonly cure their own fish, 12,056; and sell them as they choose, 12,057; but are expected to take them to proprietor, 12,058; could not get men to fish for him, because they considered themselves tied to landlord, 12,080; in ling fishing the price was, thirty years since, fixed at the beginning of the season, but the practice died out, 12,090; at that time men were all free, 12,091; thinks the price of green fish should be fixed at the beginning of season, 12,104; it is an understanding amongst men that they shall buy their goods where they sell their fish, 12,112; men curing for themselves are more to be relied on as customers at his shop, and are more persevering, 12,135; people in Shetland are very temperate, 12,148.

GEORGESON, Ross (analysis of his evidence, p. 412), is skipper of a Faroe smack, lives in Scalloway, 16,310; has gone to Faroe fishing for 15 or 16 years, 16,312; lately in the employment of Mr. Leask, 16,311; has always had an account with Mr. Leask when in his smacks, 16,314; gets the balance that is due in cash, 16,321; and advances throughout year, 16,322; would get payment in cash in full if he wished it, 16,328; banks his money with Mr. Leask, 16,330; never knew of men not taking goods from agent, 16,340.

GIFFORD, Francis (analysis of his evidence, p. 391), seaman in Bressay, 15,488; goes to sealing and whaling, 15,489; under various agents, 15,490; is now paid at the Custom-house, 15,491; previously settled with agent at his shop, 15,492; got balance sometimes in cash, 15,500; has his account read [Page 443] over to him now before going to the Custom-house, and on leaving pays it, 15,515, 15,516; thinks agents like to re-engage men who are indebted to them, 15,222.

GIFFORD, Mrs. Margaret Smith or (analysis of her evidence, p. 410), lives in Lerwick, 16,203; knits haps, 16,204; for Mr. Sinclair, 16,205; sold the last for 6s. in goods, 16,209; in buying articles occasionally for cash, has found no difference in prices, 16,214.

GIFFORD, Thomas (analysis of his evidence, p. 197), is factor on the estate of Busta, 8077; the largest in Shetland, 8078; very few tenants have leases, 8083; they

are free to fish, 8084; there is no opposition to the opening of shops, 8097; knows of no arrangement by which merchants become bound for the debts of men on hiring them, 8126; but there was one formerly, 8127; sales of cattle, 8130-8134; marking and selling of cattle for debt, 8135; not common, but is practised, 8136; believes short settlements would be beneficial to the character of the people, 8147; but does not think they would be practicable, 8149; the payment of hosiery in goods is a bad system, 8156.

GILBERTSON, Gilbert (analysis of his evidence, p. 230), fisherman and tenant at Harra, Mid Yell, 9553; is free to fish, 9555; generally deals with merchant for whom he fishes, 9557; in some cases payment at an earlier time in the season would be an advantage, 9569; never knew fish-curer refuse money for payment of rent, 9572; thinks weekly payment would be an advantage, as they would keep men from incurring debt, and enable them to go to the best market, 9579; goods are dearer at merchant's store, 9583.

GILBERTSON, Henry (analysis of his evidence, p. 111), is a fisherman at Dunrossness, 4497; corroborates Wm. Goudie (p. 105), 4502; although a lodger with his brother-in-law, is bound to fish for landlord, 4508; because his brother-in-law would be warned if he did not, 4509; if at liberty he could make a larger profit, 4516, 4517; prices at the store are higher, 4542. -(recalled, p. 117). Was at Fair Isle three weeks previously, 4729; and heard great complaints there of the high prices charged at the store, 4734.

GILBERTSON, Henry (analysis of his evidence, p. 333), sailor and post-office keeper at Virkie, near Sumburgh, 13,403; men in neighbourhood are bound to fish for tacksmen, and most of them deal at store, 13,404; they are not compelled, unless by want of cash, 13,405; has purchased goods at store, 13,407; quality variable, prices higher than at other places, 13,408; men are afraid to give evidence before commissioner, 13,421; their principal complaints are that the settlement is made too late in the season, and that they have not liberty, 13,425; men 43 years ago were bound to fish, and the fish were so badly managed that they only got about 3s. 11d. per cwt. for them--men were then freed on payment of 15s. per head of liberty money, 13,430; in 1860 men were again bound, 13,431.

GOODLAD, Alexander (analysis of his evidence, p. 414), is a seaman in Lerwick, 16,389; requires to deal with sealing and whaling agent, as his half-pay notes are not sufficient to maintain his family, and no one but the agent will give him credit, 16,390; has endeavoured to obtain credit from other dealers, 16,394; and has generally been refused, 16,395; and told that he should take his goods from the agent from whom he got his ship, 16,405; men generally deal with agent if they think his goods are cheap and good; but if not, they take advances and buy elsewhere, 16,413; looks over his account with merchant before going to the Custom-house for payment, and settles on coming back, 16,417, 16,418.

GOODLAD, Gilbert (analysis of his evidence, p. 24), fisherman in Burra, and tenant, 1179; corroborates previous witnesses, 1181, 1182; goes to Faroe fishing, 1183; his family is supplied by his agent in his absence, 1188; but cannot easily get

money, 1191; knitting, 1201; paid in goods, 1202; knitters cannot get money, 1202-1204; the people are so poor that merchants have complete power over them, 1206; Faroe fishing system, 1214-1217.

GOUDIE, George (analysis of his evidence, p. 124), fisherman and tenant at Garth, 5032; corroborates James Flawes (p.121), 5034; meal, 5044; is dearer at store than elsewhere, 5045; tobacco also dearer, 5053.

GOUDIE, William (analysis of his evidence, p. 105), fisherman at Toab, 4255; obliged to fish for landlord, 4256; never knew of fines being imposed, 4274; no obligation as to any produce other than fish, 4279, 4280; price is fixed at settlement, 4283; is not bound to deal with merchant, but is compelled by the present system, 4298, 4299; the quality of store articles is good, but they are dear, 4313- 4317; price of meal, 4316-4332; never had a pass-book, 4337; under the present system men have an advantage in bad seasons, 4363; boys are obliged to act as beach boys, 4367-4369; whales driven ashore by men, 4405; complains that a third of the oil is appropriated by the landlord, 4406; thinks the men should have liberty and leases of their lands, 4413, 4414; and that it would benefit men to let them cure for themselves, 4424.

GRAY, Charles (analysis of his evidence, p. 253), mason at Bailiasta, 10,412; worked formerly in chromate of iron quarries, 10,413; wages paid in cash, 10,419; has heard of men getting lines, 10,424; does not know what for, 10,426-10,428.

GRAY, Robert (analysis of his evidence, p. 262), is a fisherman to Mr. Sandison, 10,751; at Snarravoe, 10,752; but for his assistance, would have been starved in two bad seasons, 10,753; gets cash when he asks it, but cannot ask much, as he is indebted, 10,763, 10,764.

GREEN, William (analysis of his evidence, p. 145), is a boat-skipper, 5845; fishes at Stenness, 5846; delivers fish to dealer, 5847; corroborates the evidence of Mr. Adie (p. 138), 5850, 5851; does not think a shorter settlement would be an advantage, 5853; deals at merchant's store, 5856; goods not dearer than at other shops, 5862-5864.

GREIG, Clementina (analysis of her evidence, p. 283), lives at Braehead, Scalloway, with her sister, 11,527; has supported herself by knitting for a very long time, 11,529; never got any money for hosiery, except in sales to visitors, 11,531; always uses her own wool, 11,532; merchants pay insufficient prices, 11,533; even in a great emergency could not get money from merchant, 11,535; merchant will only sell worsted for money, 11,545; has offered to take a lower price for hosiery in money, but could not get it, 11,555; women occasionally exchange goods for provisions, 11,559.

GREIG, David (analysis of his evidence, p. 170), is manager for Hay & Co. at North Roe, 7100; fishermen hold their land on the understanding that they fish for dealer, 7111; tenants fishing for other curers not punished, 7119; never knew a man leave employment because of being indebted, 7167; kelp, 7176-7179; purchase of boats, 7208-7211; winter fishing, 7212-7227; cattle, 7228; marking of cattle for debt, 7235-7238; sales of cattle, 7248; are conducted on perfectly fair principles, 7253-7255; increase of paupers, 7272.

GRIERSON, Andrew John (analysis of his evidence, p. 379), is proprietor of the estate of Quendale, 15,048; and fish-curer for eleven years, 15,049; Mr. Ogilvy Jamieson keeps his shop at Quendale for supply of fishermen and neighbours, 15,050; hires no boats--men have their own, 15,053; tenants in Sandsting are perfectly free, so long as they pay their rents, 15,060; men at Quendale hold their ground under obligation to fish, 15,061; they are satisfied, 15,062; thinks that it is beneficial for tenants if the landlord is a good business man, 15,064; rents would be raised if men were not bound to deliver their fish, 15,065; men salting their own fish would turn out a useless and inferior article, and would still depend for supplies and for a market upon the merchant, and it would only encourage a system of dishonesty, 15,068; men having liberty are generally more deeply in debt than others, 15,071; a ready money system would not keep them out of debt, 15,078; if cash payment for fish were enforced by law, men would likely wish to revert to the old system, 15,081; men will not stick to a bargain, 15,082; men are not so poor as represented, and often have deposits in banks, 15,090; has sometimes exacted liberty money, 15,100; expects sons of tenants to serve on beach, 15,102; cannot understand how small dealers can give a price for fish higher than the current one, 15,103; fishermen are very difficult to deal with, 15,106.

HALCROW, Jane (analysis of her evidence, p. 103), lives in Sandwick, 4166; knits for Mr. R. Linklater with his wool, 4167; is paid in goods, 4168; once asked but never got money, 4169, 4170 she could get goods cheaper at other houses, 4173-4186.

HALCROW, Jane (analysis of her evidence, p. 178), lives at Hillswick with her mother, 7418; who is a widow, 7419; and. tenant of land, 7420; knits, 7425; is paid generally in goods, 7430; gets a little money and stamps, 7431; would prefer, but never asked, payment in cash, 7436; eggs, 7448; are paid for in cash if asked, 7449; tea, 7452.

HALCROW, John (analysis of his evidence, p. 324), fisherman at Levenwick and tenant under Mr. Bruce,. 13,080; formerly bound to fish for Robert Mouat, 13,082; the articles at his store were bad and overpriced, 13,085; most men were bound to deal with him, 13,088; and to take all their farm produce to him, 13,089; had to deal because they could not get money, 13,090; he gave money for cattle but very seldom otherwise, 13,091 - [Page 444] 13,093; at settlement he would not pay money, 13,102; paid rent to Mouat two years in advance, and when he failed had to pay it again, 13,105.

HALCROW, Peter (analysis of his evidence, p. 392), seaman, 15,546; goes on sealing and whaling voyages, 15,547; generally gets his outfit from the agent he engages with, 15,549; on one occasion could not get balance and an allowance from the Shipwrecked Mariners' Fund in cash, 15,552-15,568; corroborates Francis Gifford (p. 391), 15,585; men indebted get a ship more readily, 15,587.

HALCROW, Robert (analysis of his evidence, p. 115), fisherman and tenant at Dunrossness, 4646; is bound to deliver his fish to landlord, 4647; corroborates William Goudie (p. 105), 4647-4649; knitting--thinks that to some knitters payment in cash would be an advantage, while to others goods are better, 4650; when new

tacksman came to Dunrossness, notice was given by a bill in a public place that men were bound to fish for him, and would be removed if they did not, 4559, 4560; goods are somewhat dearer at fish-curer's store, 4662-4668; but there is no obligation to deal there, 4671; and men have freedom in disposing of their farm stock, 4673-4683; short warning is a great hardship, 4688; does not think payment for fish on delivery would be an advantage except to young men, 4692; meal is dearer at store than elsewhere, 4706-4718.

HARCUS, William (analysis of his evidence, p. 288), is a small merchant in Scalloway, 11,782; deals with fishermen, but does not buy fish, 11,783; does not give credit, 11,784; his trade would be improved by the introduction of a cash system, 11,786; his weekly drawings are larger at settlement time, 11,794; does not think weekly or monthly payments would be practicable, 11,797; buys lobsters and oysters, and pays in cash, 11,800-11,803; hosiery is a bad speculation, 11,824; has tried the plan of giving meal for it, and found he had no profit, 11,824; hosiery should be paid in cash, 11,826; settlements in Shetland take a long time, owing to the men's ignorance of arithmetic, 11,833-11,836; when whales are drawn ashore by the men, one-third of the oil is taken by the landlord--thinks this unfair, 11,856-11,860. In letter afterwards sent to commissioner, says (p. 290) that he is in favour of short settlements, even if for no other reason than that they would benefit his trade; but thinks them impracticable at present owing to the distance of the fishing grounds from the curers' headquarters, and time would be lost which the crews could not afford to lose. The ignorance of men in arithmetic would also be a hindrance.

HARPER, James (analysis of his evidence, p. 252), is a fisherman to Spence & Co. at Norwick, 10,384; and tenant, 10,385; two prices are charged at store for cash and credit, 10,393, 10,394; was a skipper under another dealer formerly, and changed his employment because he was made to believe that he was obliged to work for his landlord, 10,402; finds now that he was not bound by his lease, 10,402; but was threatened indirectly at the time, 10,405.

HARPER, John (analysis of his evidence, p. 113), is a fisherman at Lingord, 4573; and tenant of land, 4574; is bound to deliver his fish, 4575; corroborates William Goudie (p. 105), Laurence Smith (p. 110), and Henry Gilbertson (p. 111), 4576, 4577; men would like liberty to cure their own fish, 4584; thinks they would make a larger profit, 4588-4603; states that men are obliged to work for landlord three days in summer, three in harvest, and three in spring, in all nine days annually, without receiving either pay or victual, 4605.

HARRISON, Arthur (analysis of his evidence, p. 187), is a merchant at Urrafirth, Hillswick, 7657; deals in groceries, 7661; and cotton, 7662; had some difficulty in obtaining leave to open a shop, 7664; does a small business in curing and drying fish, 7673; and has shop to supply men, 7675; fish-merchants commonly take over the debts of men who leave other employers to come to them, 7751.

HARRISON, John (analysis of his evidence, p. 415), is a merchant in Lerwick, and partner of Harrison & Son, 16,427; has had long experience in the Faroe fishing business, 16,428; and a little of the ling fishing, 16,429; his firm has no connection

with the management of any land or property, 16,430; men who wished to engage with him have been prevented by their landlords or tacksmen, 16,433; men are bound entirely to landlord for both home and Faroe fishings, and young men dare not disobey the landlord, because their parents would be ejected if they did, 16,437; men free of debt and with money are bound equally with indebted men, 16,440; believes that he and his firm have been the most successful owners of fishing vessels in the Faroe trade, and that this is because all the men they employ are free, 16,445; indebted men are not the best fishermen, 16,448; it is not advantageous for a merchant to have a great number of debtors, 16,449; the principal evil of Shetland is the system of land tenure, by which no man has a lease, 16,461; and which binds men to fish, 16,463; thinks fish should be paid for on delivery, at the market price, 16,467; the letting of beaches is not legal, 16,471; the introduction of a cash system might cause difficulty at first, but the result would be a great increase in the fisheries, and the emancipation of the men, 16,477; Shetland fishermen have a great advantage in possessing pieces of ground which support them for at least six months per year, 16,478; were cash payments introduced, men would have much more facility in getting goods at the lowest possible price, 16,481; men have a fear that the introduction of a cash system would deprive them of the means of support in a bad season, 16,482; and this very probably kept men from coming forward to give evidence, 16,483; thinks that so long as landlords and tacksmen are engaged in the fishery, any system of cash payments will do little good, 16,489; in the Faroe trade believes that the owners would agree to a settlement at the end of each voyage, but that the men would not, 16,493; and that a settlement at the end of the season is an advantage to them, 16,494; men invariably take a part, at least, of their supplies from the curer who employs them, 16,506; they have no alternative unless they have cash, and men even with it generally take their supplies from the merchant, 16,507.

HARRISON, William B. M. (analysis of his evidence, p. 395), is a partner of Harrison & Sons, 15,705; engaged extensively in the Faroe fishing trade, 15,706; terms of agreement in that fishery, 15,707; men mostly deal at shop, 15,720; there are very few who do not have a balance to receive at settlement, 15,721; men who have money prefer to take goods on credit, 15,724; men in home fishing are not allowed credit above a certain sum, 15,732; the introduction of a cash system would be an advantage more to the curers than to men, 15,745; but there would be no difficulty in working it after it was once fairly introduced, 15,749; would pay men weekly in full according to the market, 15,751; men have been asked to agree to such an arrangement, but will not, 15,752; curer would not be able to make any advances in bad seasons, 15,760; does not think a system of partial payment on delivery and a yearly settlement of the remainder of the price would be fair for the curer, 15,762; curers are paid entirely in cash, 15,770; are not given credit 15,771; this plan is not practised by other agents, 15,772.

HAY, James (analysis of his evidence, p. 132), fisherman at Firth, about a mile from Mossbank, 5335; and tenant, 5336; fishes for Mr. Adie in ling fishing, 5337; paid current rate at the end of the season, 5339; settlement at Martinmas, 5341; Mr. Adie's nearest store is 71/2 miles distant, 4344; generally goes there for his goods, not because he is bound to do so, 4345; but simply because it has been his custom,

4346; never refused advances of cash, 5372; would prefer to have a price fixed at the beginning of the season, 5377.

HAY, James (analysis of his evidence, p. 255), formerly a merchant at Haroldswick, is now a farmer, 10,519; cured fish, 10,520; preferred a ready money business, 10,522; found it very difficult to deal so because of the general custom, 10,526; believes if once started it would be a benefit, 10,527; monthly payments would make men more independent, 10,528; thinks the condition of the people much improved lately, 10,544; and men are generally free to fish now, 10,551.

HENDERSON, Isabella (analysis of her evidence, p. 285), lives in Scalloway with her father and sister, 11,624; she and her sister support the family by knitting, 11,626; sells veils to merchants for goods, 11,631; cannot get money, 11,634; has often had to exchange goods for provisions, or sell lines, 11,637.

HENDERSON, John (analysis of his evidence, p. 136), fisherman at Mossbank, 5502; not bound to fish unless going to the Skerries, 5504; fishes for Mr. Pole, 5505; deals very little at his store, 5507; is not obliged to go there, 5509; goods are rather dearer there, 5513; would like a system of payment on delivery, 5532.

HENDERSON, Magnus (analysis of his evidence, p. 239), is a small proprietor near Haroldswick, 9918; once engaged in fishing, 9920; men generally fish for landlord, 9924; fishermen generally deal with merchant, 9930; but are not compelled, 9931; debts are very often transferred to the books of new employers, 9940; cash payments would benefit some men, not others, 9945; thinks the fishermen would not be much in favour of having a price fixed at the beginning of the season, 9951; does not think they would agree to [Page 445] weekly wages, 9952; a ready money system would be an improvement, 9974.

HENDERSON, Peter (analysis of his evidence, p. 315), is a fisherman and farmer in Skerries, 12,732; and bound to fish for Mr. Adie, 12,734; was told so by landlord's agent, 12,736; deals at the landlord's store and settles yearly, 12,739; gets money when he wishes, 12,740; may deal elsewhere if he has money, 12,742; would prefer liberty in fishing, 12,750; goods are dearer at Skerries than Lerwick, 12,756; cattle are generally sold to landlord, 12,758.

HENDERSON, Robert (analysis of his evidence, p. 318), is a son of Gavin Henderson, merchant at Scousburgh, Dunrossness, 12,831; and manages his business, 12,832; deals in drapery, groceries, ironmongery, coal, timber, etc., 12,835; deals a little in hosiery and eggs, 12,836; buys fish, principally in winter, 12,839; he gives men credit for goods, but does not like to do so, as fish is the only security they can give, and they are bound or engaged to fish for others, 12,856-12,859; he generally pays winter fishing in cash on delivery, 12,879; or gives an I.O.U., or puts the amount to their account, 12,881; the price of summer fishing should be fixed at the beginning of the season, or from time to time, 12,885-12,887; but weekly payments should not be made, 12,888; there is not much fish smuggled, 12,908; buys hosiery for cash, 12,913; knitters are willing to take a lower price in cash, 12,915; goods bartered by merchants to knitters are very much overpriced, 12,917; eggs paid in goods or cash as wished, 12,928. -(recalled, p. 332). Explains, with reference to

statement that in buying fish he paid for it on delivery, that in some cases accounts are settled annually at the end of the winter or spring fishings, 13,340.

HERRING Fishery, 879, 981, 1002, 1135, 3880, 8154, 8605, 8630, 10,336, 10,563, 14,108, 15,194, 15,740, 16,945.

HOME Fishing, 1208, 5594, 6901, 6940, 10,512, 10,912, 11,909.

HOSIERY, Statements as to the sale of, 71, 221,306, 368, 764, 898, 1077, 1084, 1201, 1366, 1420, 1476, 1562, 1608, 1648, 1698, 1729, 1848, 1902, 1941, 1969, 1973, 2030, 2075, 2120, 2370, 2667, 2770, 2824, 2906, 3059, 3215, 3246, 3310, 3418, 3445, 3451, 3497, 3568, 3612, 3900, 4094, 4140, 4167, 4201, 4650, 5093, 5176, 5741, 5962, 6004, 6136, 6297, 6342, 6444, 6641, 6852, 7291, 7425, 8033, 8156, 8163, 8254, 8309, 8488, 8896, 8971, 9052, 9401, 9547, 9714, 9731, 9793, 10,182, 10,306, 10,449, 11,227, 11,463, 11,529, 11,564, 11,587, 11,626, 11,672, 11,684, 11,757, 11,824, 11,895, 11,997, 12,038, 12,217, 12,295, 12,346, 12,836, 12,913, 12,963, 13,814, 14,036, 14,281, 14,291, 14,697, 15,335, 15,360, 15,785, 15,921, 16,010, 16,040, 16,070, 16,084, 16,094, 16,128, 16,130, 16,136, 16,204, 16,657, 16,658. 16,660, 17,015. -No profit on, 2199, 2523, 2758, 2793, 2842, 2921, 3088, 3312, 3584, 3900, 5743, 6645, 7314, 9402, 11,824, 12,041, 12,463, 12,923,16,658. -Payment of, in goods, and complaints as to, 81, 160, 229, 238, 352, 355, 377, 764, 1078, 1174, 1202, 1370, 1439, 1480, 1522, 1586, 1616, 1652, 1704, 1754, 1855, 1947, 2127, 2671, 2771, 2827, 3458, 3501, 3575, 4102, 4142, 4168, 4206, 5093, 5193, 5742, 6138, 6346, 6448, 6642, 6854, 7294, 7430, 8156, 8314, 9549, 9746, 9797, 10,200, 10,308, 11,227, 11,464, 11,531, 11,590, 11,631, 11,674, 11,898, 12,038, 14,039, 15,364, 15,786, 16,066, 16,097, 16,657, 16,660. -Money obtained for, 8, 312, 316, 1566, 1674, 1708, 1759, 1856, 1906, 1951, 1972, 1998, 2040, 2079, 2373, 3421, 4111, 3593, 11,688, 12,913, 15,363, 16,065, 16,080, 17,026. -Payment in cash preferred, 29, 1581, 1630, 1675, 1809, 1924, 3511, 4103, 4173, 4210, 6006, 7437, 11,826, 16,103. -Price fixed by merchant, 9, 421, 1091, 1440, 1617.

HOUSTON, John S. (analysis of his evidence, p. 233), is parochial schoolmaster at North Yell, 9653; fishermen are suspicious that merchants do not give them a sufficiently high price, 9670; does not think justifiably, 9673; does not see that men would be benefited by any alterations in present system of payment for fish, 9676; settlement should be earlier, 9679, 9680; but thinks fishermen would be dissatisfied, 9682; marking and sale of cattle for debt is still practised, 9690; fish-curer have very little profit, 9698; the condition of Shetland is much improved, 9709; the present system of hosiery dealings is bad, 9714; high price is charged for goods, 9715.

HUGHSON, Hugh (analysis of his evidence, p. 231), is a merchant at Gossaburgh, 9585; cures a few fish, 9586; buys for ready money, 9587; thinks a ready money system would be an advantage, 9592; long credit is a great evil, 9596; but a cash system might be bad for poor men, 9599; advances are necessary, 9600.

HUGHSON, Mrs. Mary (analysis of her evidence, p. 155), wife of fisherman and tenant of land in Hillswick, 6338; her husband is also a labourer, 6340; hosiery is always paid in goods, 6346; never asked cash, 6347; kelp, 6353; paid in goods, 6371.

HUMPHRAY, Alexander (analysis of his evidence, p. 316), is a fisherman in Skerries, 12,797; lives with his father, who is a tenant, 12,798; fishes for Mr. Adie, 12,799; men are obliged to fish for him, 12,800; there is a merchant in Skerries who would give a higher price for fish, but men dare not sell them to him, 12,800; beach boys are expected to take out their fees in goods, 12,813; interest at five per cent. is charged on debts, 12,821; goods at store are overpriced, 12,826.

HUTCHISON, Mary (analysis of her evidence, p. 31), lives in Lerwick, 1561; knits, 1562; with her own wool, 1563; sends her articles to a dealer in Edinburgh, 1564; and is paid in cash, 1566; acts as his agent (1565), employing women to knit, supplying wool, and paying in ready money, 1569-1575; women prefer this system, 1581; sometimes sells shawls at a shop, 1586; and gets a line or I.O.U., 1589; often buys these from knitters to accommodate them, 1592, 1593.

HUTCHISON, Thomas (analysis of his evidence, p. 313), is a fisherman and tenant in Skerries, 12,616; under Mr. Bruce, 12,617; pays rent to Mr. Adie, and fishes for him, 12,618-12,620; is bound to do so, 12,621; under penalty of eviction, 12,625; never knew of a man having offended, 12,626; men are obliged to deal at curer's store, because of their want of money, 12,636; are put on an allowance if they have exceeded their credit, 12,641-12,643; the price of goods at the store is much higher than elsewhere, 12,658; is obliged to sell farm produce at the merchant's store, 12,689; men fined for going to Greenland fishing, 12,698; fathers are ejected for their sons' misdemeanours, 12,706; this, however, refers rather to a former state of matters, as there are no fines imposed now, and farm produce can be sold to any one at discretion, 12,713, 12,726. -(recalled, p. 316). Got £17, 19s. by summer fishing last year, 12,767; that sum is about as much as any other man would get, 12,768.

IMMORALITY and prostitution fostered by the system of paying for hosiery with goods, 14,711.

INDEBTEDNESS, Connection with long settlements, 5234, 5653, 5981, 6537, 7475, 7937, 8564, 10,538. -General statements as to, 5998, 6512, 6875, 7174, 7354, 7475, 8017, 10,925, 10,957, 11,076, 12,306, 12,821, 13,808, 14,172, 14,302. -Impossible to keep men clear in a bad year, 3623, 3793, 6274. -the great trouble of merchants, 3623, 5148, 8016, 12,295.

INDEBTED Men bound to fish for curer, 3852, 5554, 5829, 6092, 7010, 7054, 8695. -Allowances to. <See> Allowances, etc. -Generally change employer, 6822, 6875, 7354, 10,957, 16,566. -Merchants prefer to re-engage, 15,522, 15,587, 15,629, 16,280.

INKSTER, Mrs. Ann Leask or (analysis of her evidence, p. 286), lives in Scalloway, 11,671; knits for Mr. Sinclair, 11,672; is paid in money by strangers, 11,673; but never by dealers--never asked for cash, 11,674·

INKSTER, Daniel (analysis of his evidence, p. 373), is a seaman, living in Lerwick for two years past, previously in the North Isles under Mr. Walker, 14,814; has been at sealing, and whaling, and the ling fishing for a number of years, 14,815; was ejected by Mr. Walker, 14,816; because he could not pay his rent, although he took his crops and sold them, and put him in danger of starving- this is commonly done,

14,820; settlement of whaling voyages made in full, 14,839; men are not obliged, or even told, to go and settle their shop accounts, 14,841; goods are as cheap at agent's. store as elsewhere, 14,860; has had allowance from Shipwrecked Mariners' Fund, and got it in cash from agent, 14,863-14,865.

INTEREST charged on debts, 12,821.

IRVINE, Arthur (analysis of his evidence, p. 335), is a fisherman at Garthbanks, on the Quendale estate, 13,485; hands in a document, signed by twenty-eight men on that property, stating they are honourably dealt with by Mr. A. J. Grierson, their present landlord, and desire to continue to fish for him, 13,486; has fished for thirteen years to Mr. Grierson, 13,487; and has always been paid the currency, 13,489; could not have got a higher price, 13,490; wrote the document handed in himself, on previous night, 13,493; of his own accord, 13,494; men were quite willing to sign it, and more would have signed it if they had been asked, [Page 446] 13,499; deals at store, 13,507; is paid in cash at settlement, 13,508; is satisfied with the price and quality of store goods, 13,519.

IRVINE, Gilbert (analysis of his evidence, p. 324), is shopkeeper at Grutness to Mr. John Bruce, jun., 13,127; men on Sumburgh estate are understood to be bound to fish for landlord, but some do not, 13,130; tenants are reproved, but, he thinks, never ejected for selling fish to another merchant, 13,141; settlements are made yearly, 13,159; balance is always paid in cash, 13,161; men indebted, or who have been indebted, are only allowed to take a certain quantity of meal weekly from store, 13,179-13,181; price of cotton, 13,200; tobacco, 13,204; store is only kept for the accommodation of fishermen, 13,208; there is no profit on it, 13,209; men's rents are lower, because they are expected to fish, 13,253, 13,254.

IRVINE, Janet (analysis of her evidence, p. 3), supports herself by knitting and working in a fish-curing establishment, 71, 72; gets money when she wishes from one dealer, but cannot from any other, 81-90; is paid in money at fish-curing establishment--deals at shop kept by fish-curer, but is not obliged, 120-148.

IRVINE, Robert (analysis of his evidence, p. 390), broker and general dealer in Lerwick, 15,469; deals also in provisions to a small extent, 15,470; deals mostly with men, buys and sells clothes, 15,472, 15,476; seldom deals with knitters, 15,479.

IRVINE, William (analysis of his evidence, p. 83), partner of Hay & Co., merchants in Lerwick, 3619; Hay & Co. have curing stations in several parts of the islands, and manage four estates, two as factors and two as lessees, 3623; the tenants on one of the first are free to fish where they choose, and dispose of all their produce as they please, <ib>.; on the other they are also free (excepting the island of Whalsay and Whalsay Skerries), and to dispose of their produce as they please, <ib>.; balances paid in cash, and people are well-to-do and not in debt; Shetland fishermen not ignorant and uneducated; many have sailed to all parts of the world, and now that communication is so much more frequent and easy with the Mainland, they are much better informed, and goods have very much increased in value; fishermen are charged for goods the same price as the public pay in ready money; carpenters and tradesmen employed by Hay & Co. are paid in cash weekly: at the Burra Islands have

two curing stations; fishermen are paid regular prices, and the tenants have complete liberty in the sale of their produce; there is no shop on the island, and men get supplies from our stores at Lerwick and Scalloway; in bad seasons credit is given to the men, on one occasion the island being indebted to the amount of £1000: in Faroe fishing, crews are engaged on shares; fish salted on board, and landed at curing stations wet, <ib>.; fishings of all kinds succeed best when men are paid by shares; when paid monthly wages they have no inducement to work, and the season being short, the utmost activity is necessary, <ib>.; Shetland fishermen are, on the whole, better off than many of the same class in other parts of the kingdom, <ib>.; the profit of curers on fish is very small; bad debts are a great drawback; a ready money system would be scarcely possible to carry out; it would, entail an additional expense on merchants, which, with their small profits, they could ill afford; small traders would be driven out of the market, and the fishermen would eventually suffer, <ib>.; the statements made before the Truck Commission in Edinburgh were very absurd, especially one to the effect that a merchant would not thrive unless he accumulated a great quantity of bad debts; thinks the fishing trade as it is cannot be altered for the better, and that any Act of Parliament interfering with it will only have the effect of destroying it, 3623; dealing at store is optional, 3640; there has never been any application made for permission to open another shop in Whalsay, 3642, 3648; does not know if such an application would be granted, 3649; does not think fishermen employed by him ever smuggle away fish, 3655; system of book-keeping, 3668-3673; settlements are generally over by the end of the year, 3688; markets for fish, 3698, 3699; prices paid by curers are generally the same, 3708-3710; large deposits are made in bank by men, 3735, 3736; written obligation given by Burra men eight years ago, but never acted on, 3750-3754; it is only in the home fishing that men are bound to deliver their fish, 3764; payment of monthly wages has been agreed to and afterwards repudiated by men, 3833; purchase of boats, 3839-3847; to permit debts is a bad system, 3877; herring fishery, 3880; weekly settlements impossible, 3896; hosiery trade yields, no profit, 3900; does not think a much higher price is charged for goods by hosiery merchants, 3909; men curing their own fish, 3943; would not do it so well, and so would get a smaller price, 3746; Mouat, 3948; oyster fishing, 3970, 3981; shops not permitted in Burra, because of the sale of tea and excisable goods, 3971, 3972; Greenland whale fishery, 3991; monthly notes, 4016-4078; Greenland fishers seldom indebted, 4054.

JAMIESON, Andrew B. (analysis of his evidence, p. 353), clerk to Mr. Leask for nineteen years, 14,161; principally concerned in settlements with seamen employed in the Greenland whale fishery, 14,163; men at settlement, before the system of payment at the Customhouse, paid the balance due them, and besides got cash during the currency of their account if they wanted, 14,166; men are seldom indebted to the full amount of their wages, 14,172; and those who are, are young hands, 14,173; now the whole money is paid to the men, and sometimes they return at once to the clerk the amount of their accounts, 14,209; or they come down to the shop immediately after settlement, 14,212; men have never failed to pay their accounts, 14,221; except in one single instance, 14,222; no compulsion is exercised--the men go of their own accord, 14,249.

JAMIESON, Andrew B. (recalled, p. 357). States with regard to the accountant of the Board of Trade's report, that he considers it unjust to the agents in the Greenland trade--concurs generally in the statements of Mr. William Robertson, (p. 265), 14,293; men are not generally indebted to the amount of the money due them, 14,302; excepting in bad voyages, when young hands are generally in debt, 14,303; families of men commonly have a weekly allowance, 14,311; men not obliged to take their outfits from the store, 14,316; knows no case of sums allowed by the Shipwrecked Mariners' Society being retained for payment of a man's account, 14,349; it would only be done with the man's concurrence, 14,370.

JAMIESON, Arthur Thomas (analysis of his evidence, p. 193), Was employed by commissioner to purchase articles at store of Messrs. Pole, Hoseason, & Co., 7946; got and delivered certain articles to clerk, 7947.

JAMIESON, Geo. (analysis of his evidence, p. 389), farmer and fisherman at North Roe, on Busta estate, 15,400; formerly was under Messrs. Hay--was suspended from fishing for four years, because he refused to go in a boat with some old men, 15,402; other fish-curers were prevented by them from hiring him, 15,403; keeps two paupers--has for one £8, and for the other £3, 10s. per annum--money is paid through Mr. Greig, who refuses payment of more than a trifle in money, 15,406; is told that he must take a part in truck, 15,442; is refused expenses for attending as witness before commissioner, 15,468.

JAMIESON, Margaret (analysis of her evidence, p. 350), lives in Quarff, 14,035; knits and dresses, 14,036; purchases wool for herself, 14,037; cannot get payment in cash--has been refused the sum of one halfpenny, 14,039; gets wool in exchange for tea, or clothes, or hosiery, 14,053; merchants often have no money in their shops, 14,042.

JAMIESON, Ogilvy (analysis of his evidence, p. 332), shopkeeper to Mr. Grierson at Quendale, 13,348; overseer, 13,349; and bookkeeper, 13,350; beach boys paid by fees, 13,353; a condition of holding is that the tenants shall supply boys when they have them suitable, 13,361; men buying boats get advances from dealer, 13,399.

JOHNSTONE, Mrs. Agnes Malcolmson or (analysis of her evidence, p. 104), lives in Lerwick, 4200; knits and sells to merchant, 4201, 4202; is paid in goods, 4205; never got money, excepting on one occasion sixpence, 4206; would prefer money, 4210; would take a lower price in cash, 4211; as she could buy goods cheaper at other shop, 4215; and for other reasons, 4218, 4225; never had to exchange goods for money, but knows people who have, 4226, 4228.

JOHNSON, Arthur (analysis of his evidence, p. 374), is a tenant and ling fisherman at Colafirth, near Ollaberry, 14,884; bound to sell fish to factor, 14,890; thinks it would be an advantage to cure his own fish, 14,893; merchants give a larger price for fish to free men than bound men get, 14,894; prices at the store are higher than they should be, 14,923, 14,928; would like liberty to sell his fish to the highest bidder, 14,939; short settlements would be no advantage unless men had freedom in fishing, 14,946.

JOHNSTON, Barbara (analysis of her evidence, p. 7), knits for dealer, 369; has no pass-book, 371; is paid in goods, cannot get money, 377-379; never got a line, 411; but never asked, 412; merchant always fixes price of goods, 421, 422; thinks them sometimes [Page 447] too low, 423-425; cannot get wool for work done, 449.

JOHNSTON, Charlotte (analysis of her evidence, p. 397), lives at Colafirth, near Ollaberry, 15,780; was seventeen years in Lerwick, and kept lodgers and boarders, 15,781; now dresses hosiery, and knits for Mr. Morgan Laurenson, 15,783; is always paid in goods, 15,786; runs an account, and cannot get it settled at short intervals, 15,790; different prices are charged by merchant for cash and goods, 15,826; hands in statement from man who built a house for her in 1863, stating that he was obliged to take payment from her in goods, as witness could not get payment from Mr. Laurenson in cash, 15,844; she had to give him goods for less than she got for them, 15,845.

JOHNSTON, Mrs. Christian (analysis of her evidence, p. 99), lives in Muckle Roe, and is wife of former fisherman, 8162; knits and weaves grey cloth, 8163; gets wool from merchant, spins it, gives it to 'wabster' to be woven, and sells to merchant, the price of wool being deducted, 8166; gets money to pay 'wabster,' 8179; some dealers pay for it in money and some do not, 8189.

JOHNSTON, John (analysis of his evidence, p. 222), is tenant of Mr. M'Queen at Burravoe, and fishes for Mr. Adie, 9222; formerly tenant on Lunna estate---left because men were handed over to a tacksman, with whom he had a dispute, and was bound to fish for him, 9224; threatened to be ejected for not fishing, 9227; fined for selling fish to another dealer, 9241.

JOHNSTON, John (analysis of his evidence, p. 300), is a merchant at Bridge of Walls, Sandsting, 12,219; business is the same as that of Mr. Georgeson, with the exception that he has a spirit and grocery licence, 12,226; spirits are always sold for cash, 12,228; has accounts with a number of fishermen, 12,230; buys no fish, 12,236; has no security except the personal credit of the men, 12,240; thinks men have complete liberty in fishing, 12,247.

JOHNSTON, Magnus (analysis of his evidence, p. 191), is a shopkeeper at Tofts, near Mossbank, 7843; deals in tea, tobacco, and sugar, and buys fish, 7844; cures it himself, 7845; pays in cash, 7851; formerly at Faroe fishing, 7860; men were of opinion that they were not always allowed a fair price, 7869; meal, 7897; thinks long payments and credit cause improvidence, 7931.

JOHNSTON, Peter (analysis of his evidence, p. 248), registrar of Baltasound, lives at Balliasta, 10,206; formerly a fisherman, 10,207; men entirely free to fish then, 10,208; has a farm now, 10,216; deals at any shop, and pays ready money, 10,217.

JOHNSTONE, William (analysis of his evidence, p. 62), merchant in Lerwick, 2822; pays knitters generally in goods, but sometimes gives a little money, 2827; there is often no profit, and sometimes a loss, on hosiery, 2842-2860; would prefer cash payments, 2863; price of goods would be reduced, 2866; does not give lines, 2875; lines used as a currency, 2880; never heard of goods being taken from shop and sold to obtain cash, 2896; will sell any yarn, except Shetland yarn, for either cash or

goods, 2897; merchants do not sell it, 2899, 2990.

KELP, 5262, 6325, 6353, 6463, 6628, 6851, 7176, 7986, 8838, 8973, 9349, 10,088, 13,293, 13,814, 14,143.

KNITTERS, Getting of worsted by, 2897, 11,579. Selling or bartering of goods or lines by, 236, 986, 993, 1487, 1528, 1592, 1627, 1879, 2190, 2587, 2896, 3516, 3599, 4112, 4147, 4226, 6697, 11,475, 11,559, 11,578, 11,601, 11,637, 11,698, 11,759, 11,998, 12,037, 14,053, 15,336, 15,845, 16,657. Whether much in debt, 2350, 2378. Amount of tea sold to, 2437, 3205, 6696,11,578, 11,764.

LAURENSON, Arthur (analysis of his evidence, p. 41), is a dealer in hosiery in Lerwick, 2120; and partner in the oldest firm of merchants there, 2121; buys knitted goods, and gives wool out to be knitted, but principally the former, 2126; pays in goods, 2127-2130; the practice of barter is of long continuance in Shetland, 2132; and that of part payment in cash very recent, 2133-2136; never refuses to give cash, 2142; advances are often made, 2150; sometimes pays the whole value of hosiery in cash, 2168; two prices, cash and goods, 2171-2173; cash system would prevent dealers from taking knitted work so readily as at present, as they would then buy only what they actually required, 2177; but yet thinks the cash system would ultimately be advantageous to all, 2179, 2204, 2248; as it would be simpler, 2180; as a general rule, believes women cannot get cash, 2184; merchants have no profit on hosiery, but only on the drapery goods sold to the workers, 2199; and often sell particular articles of hosiery at a loss, 2203; system of pass-books, 2213-2241; does not give lines, 2235; wool supply, 2288; always gives yarn for goods, 2291, 2292; but believes some merchants do not, 2293; because they have little or no profit on it, 2297-2312; yarn only kept by dealers for the use of their own knitters, 2303; merchants have no hold over knitters, 2310; regular tariff of prices cannot be made, owing to the differences of workmanship and pattern, 2327; knitters are seldom much in debt, 2359, 2851.

LAURENSON, Arthur (recalled, p. 406). States, with reference to the evidence of Mr. Walker (p. 402), that he always deals with first-class houses, 16,029.

LAURENSON, James (analysis of his evidence, p. 414) seaman at Mews, Dunrossness, and serves in the Naval Reserve, 16,380; has mostly gone south, 16,382; was two years at the ling fishing, 16,384; dealt with merchant curer only for fishing material, 16,385; had no advances, 16,386; but thinks he would have got them if he had asked, 16,387.

LAURENSON, John (analysis of his evidence, p. 237), is a fisherman at Burrafirth, 9816; and tenant, 9817; not bound to fish, 9819; has no pass-book, 9827; winter fish is paid on delivery in cash and goods, 9887, 9890; thinks meal and flour at store sometimes not very good, 9899.

LAURENSON, Morgan (analysis of his evidence, p. 174), is a merchant at Lochend, 7274; deals in drapery and provisions, 7275; employs a few fishermen, 7276; deals in hosiery and pays in goods, 7291; is seldom asked to give cash, 7295; gives lines rarely, 7299, 7300; never refused to give small sums in cash to a regular knitter, 7304; occasionally buys special articles for cash, 7305; giving a lower price, women unwilling to take cash, 7306; there is no profit on hosiery, 7314; wool is very scarce,

7317; smuggling of fish is very slightly carried on, 7336; men much indebted to merchant often change their employer, 7354; it is not the interest of the merchant to let debt be incurred, 7885.

LAURENSON, Simon (analysis of his evidence, p. 10). Corroborates Andrew Tulloch (p. 9), 542, 543; wishes freedom in fishing, 544; does not know exactly what landlord's system is, but knows the tenants under him are not satisfied, 547.

LAURENSON, William (analysis of his evidence, p. 393), seaman in Bressay, has been at sealing and whaling for thirty-six years, latterly paid at Custom-house, 15,600; previously he could get no clear account the state of his account, 15,601; corroborates Francis Gifford (p. 391); knows that indebted men get a ship more easily than others, 15,629.

LEASES, 621, 800, 919, 4258, 6749, 8033, 10,156, 12,252, 14,816, 15,124. -desirable, 4413, 6749, 8067, 16,461. -Men cannot get, 764.

LEASK, John (analysis of his evidence, p. 25) fisherman at Channerwick, 1221; and yearly tenant, 1223, 1224; was bound for the home fishing, but not for others, 1250; the price of fish was fixed by the merchant (Robert Mouat), 1258; and paid in goods, 1276-1287; could not get money from him, 1294; sometimes sold goods got at store to obtain money, 1290; produce of farms had to be sold to tacksman, 1295; 1300; is now under a new merchant, and is not so badly used, 1353, 1354; previously the people were subjected to great tyranny, 1327-1352; knitting paid in goods, 1366; cannot get money, 1371.

LEASK, Joseph (analysis of his evidence p. 345, is one of the largest employers in the Faroe trade and fish-curers in Shetland, 13,822; corroborates Mr William Robertson (pp. 265, 338), 13,823; small fish-curers can only exceptionally get higher prices, 12,827.

LEISK, John (analysis of his evidence, p. 366), is a partner of Leisk & Sandison, merchants and shipping agents, Lerwick, 14,589; previously employed by Mr George Reid Tait, now retired, 14,590; agrees generally with Mr. Tait (p. 363) as to the way in which seamen are discharged and their wages paid, 14,593; paid in cash, without any deductions even of allotments, 14,595; allotments chiefly paid in cash, 14,605; men generally pay their accounts on receiving their wages--only remembers one case of defalcation, 14,628; only young hands are indebted to the full amount of their pay, 14,634; men are free to go to any shop they please for goods, 14,671.

LESLIE, Adam, junior (analysis of his evidence, p. 121), fisherman at Toab, 4877; corroborates previous witnesses as to the holding of land and fish, 4879; has no pass-book, 4881; always gets money if he wishes, 4885; thinks goods dearer at store, 4887.

LESLIE, George (analysis of his evidence, p. 114), is a [Page 448] in the fisherman at Dunrossness, 4610; and lives with his father, who is a tenant of land, 4611; is bound to fish, 4612; corroborates William Goudie (p. 105) and others, 4613; prices are much higher at store, 4614; is at liberty to deal anywhere, 4627.

LESLIE, Henry (analysis of his evidence, p. 126), is a fisherman and tenant at Gord, 5122; bound to fish for sixty years past, 5127; obligation to fish has always been part of the condition of holding land, 5133.

LESLIE, Laurence (analysis of his evidence, p. 15), is a fisherman at Lerwick, 739; corroborates Laurence Mail (p. 11), 742.

LESLIE, Laurence (analysis of his evidence, p. 125), fisherman, and lives with his father, who is a tenant at Hillwill, 5072; is bound to fish, 5077; beach boys, 5086; knitting paid in goods--tweeds refused in exchange for hosiery, 5093.

LEWIS, James (analysis of his evidence, p. 432), is a grocer and wine merchant in Canongate, Edinburgh, for nearly forty years, 16,816; has examined samples sent to him, 16,818; and gives in a report of their value, 16,819; thinks all the articles overcharged, 16,884.

LIBERTY Money, 625, 764, 786, 1012, 1130, 1211, 4483, 4510, 4948, 5060, 8909, 12,306, 13,372, 13,430, 13,552, 15,100.

LINES given to knitters, 248, 257, 329, 411, 1464, 1589, 1679, 1764, 1875, 1889, 1955, 1985, 2190, 2502, 2581, 2694, 2785, 2875, 3070, 3250, 3343, 3445, 3573, 3617, 4099, 6700, 7299, 9657, 9666, 9769, 9787, 10,452, 11,497, 11,637, 11,623, 12,881, 14,047, 15,812.

LINES to day labourers, 10,424, 10,735.

LING Fishery and price of ling, statements as to, 459, 744, 879, 2502, 3623, 6523, 9138, 9238, 9308, 9611, 11,347, 11,393, 11,909, 11,957, 12,089, 12,967, 13,645, 13,648, 13,813, 13,887, 14,885, 15,730, 16,384, 16,429, 16,466.

LINKLATER, Hugh (analysis of his evidence, p. 64), merchant in Lerwick, 2905; buys knitted goods, 2906; sells drapery, 2909; corroborates Mr. Laurenson generally, 2913; deals very little in hosiery, 2914; generally sells drapery for cash, 2918.

LINKLATER, Robert (analysis of his evidence, p. 58), merchant in Lerwick, 2666; deals in hosiery, and keeps a stock of drapery and tea, 2667; conducts his business in a somewhat similar manner to Mr. Robert Sinclair (p. 49), 2669; gives wool to be knitted, and buys from knitters, 2670; pays principally in goods, 2671, 2674; money only given exceptionally, 2675; most knitters have pass-books, 2676; never refuses money, 2684-2692; gives no lines, 2694; money is seldom asked for, 2716; two prices for cash and goods, 2726; gets a small profit on hosiery, 2728, 2730; it is difficult to procure Shetland wool, 2752; does not sell it, 2753; there is often no profit, and occasionally loss, on hosiery, 2758, 2760.

LONG Settlements, 501, 807, 4782, 5981, 9921, 10,702, 11,891. -Men contented with, 5853. -Men discontented with; 693, 1409, 9596.

M'LACHLAN, George (analysis of his evidence, p. 334), is principal lightkeeper at Sumburgh Lighthouse, 13,436; obtains supplies from Granton and Aberdeen, 13,437; has opened an account with local dealer (Mr. Henderson), and finds goods reasonable in price and good in quality, 13,442; has heard, but does not know, that goods at Hay & Co.'s store are expensive, 13,449.

MAIL, Laurence (analysis of his evidence, p. 11), is a fisherman, 548; and tenant of land, 549; complains that he is bound to deliver all his fish to the landlord, Green, 559; is therefore obliged to deal at landlord's store, 568; where goods are dearer, 568, and 598, 612; fishermen are afraid to complain lest warned to leave, 572; and are warned if they sell fish to any other dealer, 577-585; not obliged to deal at store, but really compelled to do so by present system, 586; goods are not inferior at store, 613; leases, 621; liberty money, 625; whales, 651; when driven on shore, one-third of the oil taken by landlord, 657; and the rest of the price paid through the proprietor, 655; believes that freedom in fishing would be a much better system, 659; had a pass-book, but had to discontinue it, as the storekeeper objected to keep it, 690; complains that men do not know what they are earning or what goods they have till the end of the season, and even then cannot get detailed accounts, 693; states that he expects to be warned because of coming to give evidence, 722; merchants in bad seasons give credit to men, 731.

MAINLAND, Hans (analysis of his evidence, p. 120), fisherman, 4857; never dealt at store, 4859; because he heard that goods were dearer, 4860; complains that in the system of ground letting no compensation can be got for improvements, 4865; fishing alone is not sufficient to support men, 4872.

MALCOLMSON, Elizabeth (analysis of her evidence, p. 408), lives with her mother in Lerwick, 16,093; knits and sews--mother knits, 16,094; knits fine veils and shawls, 16,096; paid always in goods, 16,097.; never asked for money, 16,098; gets money for sewing, 16,099; buys her provisions with this money, and money obtained by letting lodgings, 16,101, 16,102; would prefer to get money for hosiery, 16,103. -(recalled, p. 409). Produces black veil bought from Mr. Linklater which cost 1s. 4.1/2d., 16,136.)

MALCOLMSON, Malcolm (analysis of his evidence, p. 66), fisherman at Channerwick, 2978; and his father is a tenant under fish-curer, 2979; tenants under former tacksman (Robert Mouat) fished for him, supposing they were bound, 2983; there was no obligation, 2984; were forbidden to sell their fish to others, 2992; and were threatened with ejectment if they did, 2994; one man was ejected, 2994; and notice of ejectment was served on witness's father because witness had sold fish to another merchant, 2997; but being ill, was afterwards permitted to remain, 3003; men were obliged to take goods from store, 3004; as they had no money, 3005; could not get any, 3006, 3007; goods were very bad, 3009.

MALCOLMSON, Robert (analysis of his evidence, p. 118), fisherman and tenant at Northtown, 4771; corroborates William Goudie (p. 105) and Laurence Smith (p. 110), 4772, 4773; knows a case of ejectment for selling fish to other dealers, 4777; men would make more if they were allowed to cure for themselves, 4780; long settlements are sometimes a disadvantage, 4782; not many fishermen have deposits in bank, 4785; price of meal, 4788; thinks meal dearer at factor's store, 4794; but quality good, 4799.

MANSON, John (analysis of his evidence, p. 64), formerly a fisherman at Dunrossness, 2924; now curer of fish for Harrison & Son at Lerwick, 2925, 2926; and superintendent of their workers, 2927; Harrison & Son are principally engaged in

Faroe fishing, 2929; they have a store, 2932; is not obliged to deal there, but workers generally do, 2933-2936; his wages are paid, and he pays in cash, 2937; no pass-books, 2944; has no complaint to make, 2947; in Faroe fishing the price not fixed till the end of the season, 2954; family, in the absence of fisherman, get goods and cash if they require at store, 2955, 2957; not obliged to deal at store, 2961; men generally get outfit there, 2962.

MANSON, William (analysis of his evidence, p. 67), fisherman at Channerwick, 3018; tenant under fish-curer, 3019; formerly under tacksman (Mouat), 3020; bound to fish for him, 3021; ejected by him for selling fish to another dealer, 3022-3028; permitted to remain on paying the expense of the summons and promising obedience, 3029; goods very bad, 3039-3045; obliged to deal at store from want of money, 3041, 3942; at liberty now to fish for any one, 3047.

MEAL, Price of, etc., 393, 1135, 1345, 3413, 4316, 4548, 4706, 4788, 4835, 5045, 5300, 5324, 5330, 5514, 5696, 5799, 5962, 6194, 6235, 6834, 6972, 7400, 7786, 7897, 7951, 7999, 8475, 8697, 8733, 8766, 8890, 8965, 9068, 9286, 9315, 9396, 9812, 9843, 9899, 10,019, 10,222, 10,254, 10,391,10,511, 10,612, 10,676, 10,753, 11,846, 12,658, 12,756, 12,795, 12,870, 13,019, 13,045, 13,166, 13,173, 13,223, 13,250, 13,259, 13,306, 13,388, 13,884, 14,106, 14,570, 14,727, 14,923, 14,965, 14,975, 15,018, 15,833, 16,656, 16,659, 16,820.

MEN (or boys) cannot help incurring debt, 10,282.

MEN curing for themselves, 924, 964, 1074, 3943, 4780, 5428, 5984, 8466, 11,934, 12,056, 12,295, 12,937, 13,034, 13,986, 14,155, 14,893, 15,068, 13,982.

MEN must take goods from fish-curer, 568, 586, 764, 3004, 13,088, 13,982.

MEN supported by merchant in bad season, 731, 954, 3623, 4363, 6274, 10,753, 12,295, 12,547, 13,048.

MEN taking goods from fish-merchant, 2933, 2961, 3004, 3041, 3640, 4238, 4298, 4345, 4488, 4520, 4627, 4671, 4965, 5112, 5436, 5547, 5628, 5679, 5789, 5856, 6057, 6189, 6253, 6554, 6842, 6903, 6944, 7392, 8337, 8519, 8685, 8726, 9286, 9307, 9557, 9828, 9930, 10,386, 10,587, 10,704, 11,806, 12,112, 12,210, 12,266, 12,295, 12,347, 12,686, 12,739, 12,847, 13,087, 13,405, 13,507, 13,701, 13,946, 13,980, 14,796, 15,720, 16,373.

MEN wish liberty in fishing, 544, 560, 659, 788, 1109, 4424, 4584, 4780, 12,635, 12,750, 12,865, 13,425, 13,840, 14,939.

MERCHANTS, monopoly of shop trade, 12,372.

MILLAR, Rev. Duncan (analysis of his evidence, p. 147), United Presbyterian clergyman at Mossbank, 5974; thinks the system of long payments injurious to men, as apt to lead them into debt and to teach them deception [Page 449], as it encourages smuggling, 5981; men curing for themselves, 5984; indebted men under control of shopkeeper, 5995; system by which men are forced to fish, 5997; hosiery, 6004; women would prefer payment in cash, 6006.

MOFFAT, Arthur (analysis of his evidence, p. 413), seaman at Lochside, Lerwick, and serves in Naval Reserve, 16,341; has gone to seal and whale fishing under various agents, 16,343; always deals with the one he sails under, 16,346; until 1867 had settlement at agent's office, 16,347; since then at Custom-house, 16,348; goes down from there and settles his account, 16,349; amount paid on advance notes is not sufficient to sustain his family, and therefore he prefers to leave his advance notes in the agent's hands and let his family obtain supplies from him, 16,359; generally has a balance to get at settlement, 16,366; wife gets cash when she asks, 16,368; men are quite free to deal, but generally go to the shop of the agent they sail under, 16,373.

MONCRIEFF, Laurence (analysis of his evidence, p. 281), baker and provision merchant in Scalloway, 11,461; deals in hosiery, 11,463; pays in goods, 11,464; never gives money, 11,465; mentions case of a woman bringing soap and bartering it for provisions, 11,475; gets worsted from Edinburgh, 11,507; cannot get Shetland wool, 11,508; deals in ready money with fishermen to a small extent--does not run accounts with them, 11,518; possibly a ready money system would improve his trade with them, 11,521.

MONEY articles, 451, 3473, 5093, 6368, 11,545.

MONRO, Alexander (analysis of his evidence, p. 409), second officer of Customs at the port of Lerwick, 16,141; for five years, 16,142; when new regulations came into force in 1867, merchants endeavoured to make deductions other than those they had a right to make, but were stopped, 16,147, 16,148; it is understood that men always pay their accounts to agent after they are settled with, 16,163.

MOODIE, Mrs Elizabeth (analysis of her evidence, p. 36), knits, 1848; knits partly with her own and partly with dealer's wool, 1851; paid in goods, 1855; but can get some money if she wishes, 1856; gets lines, 1875; sometimes sells them for money, 1879; has sold to strangers at a cheaper rate that she might get money, 1881, 1882; could always have wool for goods, 1890.

MOODIE, Peter (analysis of his evidence, p. 371), seaman and fisherman in Lerwick, 14,761; has been at sealing and whaling for a number of years, 14,762; under various owners, 14,764; green hands generally get outfit from merchants, 14,766; goods are as cheap at agent's shop as any other, 14,769; at settlement paid in full at the Custom-house, with the exception of ship's bill, 14,773; no compulsion is used to make him pay his account at agent's, 14,779; men generally get their goods from agent who employs them, but not bound, 14,796; has got money from Shipwrecked Mariners' Fund, and has always got cash from agent, 14,800.

MORE, Daniel (analysis of his evidence, p. 232), fisherman and proprietor of house at Cunningster, 9632; once opened a shop at Basta, and the landlord (a merchant) put him out because he was succeeding too well, 9634; turned out of another place because he would not fish, 9638; heavier rent charged when men do not fish, 9639-9645.

MORRISON, Elizabeth (analysis of her evidence, p. 394), lives in Lerwick, 15,637; lives by going errands, knitting stockings, etc., 15,638; sells occasionally neckties, 15,639; some years past sold goods for knitting-women, 15,644; has only once or

twice done so lately, 15,649; does not make her living principally by doing errands, 15,698; her evidence contradicted by Mrs E. Quin (p. 425).

MOUAT, Mrs. Andrina (analysis of her evidence, p. 39), lives at Girlsta; knits with her own wool, 2030; paid in cash and goods, 2044; sometimes could not get money, 2052; merchants are not willing to give money, 2067.

MOUAT, William Gilbert (analysis of his evidence, p. 249), partner of Spence & Co., 10,232; and co-manager at Baltasound, 10,233; corroborates Mr. Sandison, 10,236; thinks a system of monthly payments, if it could be introduced, would be an advantage, 10,238; system of book-keeping, 10,242, 10,277; deals a little in hosiery, 10,306; it is generally paid in goods, 10,308.

MOWAT, Magnus (analysis of his evidence, p. 434), boat-builder at Newhaven, 16,888; Shetland boats are inferior to those he is accustomed to build, 16,892; the timber is inferior, and they are lighter, 16,897; thinks a Shetland boat could be used for twelve or fourteen years at the utmost, 16,907; thinks one would be dear at £20, 16,914.

MOUAT, Robert (analysis of his evidence, p. 105), blacksmith at Olnafirth Voe, 4236; works principally for Messrs. Adie, 4237; in getting goods from Messrs. Adie's shop, pays in cash, 4238; does not know whether there are two prices, cash and credit, 4239; never heard any complaints on the subject, 4247.

MULLAY, Robert (analysis of his evidence, p. 383), is a merchant and fish-curer in Lerwick, 15,140; and has a retail shop, 15,141; employs seven boats in the ling fishing, 15,142; and has a station at Ireland in Dunrossness, 15,143; the only place in the neighbourhood where fish can be landed and dried, 15,144; tenants not bound to fish to him, 15,145; but all do so, 15,146.

NICHOLSON, Mrs. Andrina Anderson or (analysis of her evidence, p. 78), lives in Lerwick, 3495; knits, 3497; has almost always had payment in goods, 3501; has often heard this system complained of, and she thinks justly, 3504; to get money she had to become a dresser, 3505; goods are sold at a higher price by dealers, 3508, 3510; therefore a money system would be much better, 3511; goods are sold by knitters to obtain money, 3516; payment in goods makes girls wear more expensive dress than they should, 3525.

NICHOLSON, Charles (analysis of his evidence, p. 211), is a fisherman at North Delting, 8681; for Pole, Hoseason, & Co., 8682; has account with them, 8685; settles at end of year, 8686; considers he is bound to fish for merchant, being indebted to him, 8695; meal, 8697; merchants charge a high price for their goods, 8704.

NICHOLSON, Charles (analysis of his evidence, p. 293), is a retired merchant in Scalloway, 11,906; was 25 years in business, 11,907; as fish-curer, draper, and general merchant, 11,908; sent ten or twelve boats to the ling fishing, 11,909; was not a tacksman, but landlord held him responsible for the men's rents, 11,912; men under no obligation to fish, 11,928; men on the island of Havera cure their own fish, 11,934; and he sold it for them, 11,935; without charging any commission, 11,938; they dealt with him for goods, 11,939; small boats are most suitable for Shetland

fishing, 11,954; in one year, having had a serious loss in the sale of ling, men offered him the use of money they had saved, 11,975; merchants would require to be very honest under this system, for they have ample opportunities of deceiving, 11,981; dealt in hosiery only out of compassion for the poor people--exchanged bread for it, 11,997; or took goods for provisions, 11,998; thinks the goods given by Lerwick dealers for hosiery often inferior, 12,008.

NICHOLSON, John (analysis of his evidence, p. 212), lives in North Delting; fishes for Pole, Hoseason, & Co., 8720; price should be fixed at the beginning of season, 8722; deals at store, 8726; goods dearer there, 8731; quality inferior, 8732.

NICHOLSON, Peter (analysis of his evidence, p. 258), is a fisherman and tenant farmer at Haroldswick, 10,581; devotes himself entirely to farming now, 10,584; deals with Spence & Co., and other dealers, 10,587; pays in cash generally, 10,592; has a small account, 10,597; sorties yearly, 10,600; never bound to fish, 10,622; or to deal at any particular store, 10,623.

NICHOLSON, Thomas (analysis of his evidence, p. 81), draper, and to a small extent a dealer in hosiery, 3568; seldom gives lines, 3573; understood in the trade that hosiery is paid in goods, 3575; thinks a change would be beneficial, 3576; but would lower the prices given for hosiery, 3577; there is no profit on hosiery, 3584; pays partly in cash when required, 3593; it is an understanding that the price is principally taken in goods, 3594; never knew of goods or lines being exchanged for cash or necessaries, 3599; but has heard that such things done, 3601.

NICOLSON, Rev. Nicol (analysis of his evidence, p. 291) clergyman of the Independent Church in Scalloway--has been there for twenty-two years, 11,871; supposed that he was well acquainted with the condition of the fishing population, but finds from the evidence led that he is not, 11,873; was once a fisherman, and when out of debt always got money from merchant if he wished it, 11,874; thinks weekly or monthly settlements would be an advantage if practicable, but in the majority of cases it would not be, 11,875; masters must have security for boats and lines, and so cannot be expected to pay weekly, 11,878; hosiery, 11,895; the rule is to paying goods, 11,898; thinks payment in cash would be an advantage to women, 11,900; thinks a ready money system would be advantageous, but does not see how it would work, 11,905.

OBLIGATION to fish. <See> Tenants.

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OGILVY, Joan (analysis of her evidence, p. 236), knits with her own and other people's wool, 9731; always pays for worsted with cash, but never asked it in exchange for hosiery, 9734, 9735; cannot get payment for hosiery entirely in cash, 9746; gets any cash she requires from one dealer, 9781; never had lines, 9769 and 9787.

OLLASON, Charles (analysis of his evidence, p. 406), member of Ollason & Son, bootmakers, Lerwick, 16,018; produces letter from fisherman, stating that by some misunderstanding he had not got the wages he expected to get, and the amount was

entirely swallowed up by fish-curer's account and account to a former employer retained from him at settlement, 16,019.

OLLASON, Margaret (analysis of her evidence, p. 37), lives in Lerwick, and knits for herself, 1902; sells generally to ladies, sometimes to dealer, 1904, 1905; is paid in money and goods, 1906; buys her own wool, 1920; it is generally preferred to knit for ladies and be paid in money, 1924.

OUTFIT, 2962, 9150, 9306, 10,801, 10,940, 12,407, 12,511, 13,755, 14,316, 14,765, 14,809, 14,827, 15,279, 15,549, 15,910, 15,947, 16,224, 16,270, 16,352, 16,534.

OYSTERS, 3970, 11,458, 11,802, 12,313.

PARAFFIN Oil, price of, 10,263.

PASS-BOOKS, 12, 243, 371, 495, 690, 1340, 1348, 1481, 1611, 1664, 1670, 1700, 1791, 1942, 2077, 2213, 2383, 2455, 2676, 2944, 3668, 4099, 4337, 4881, 5117, 5170, 5574, 6400, 6917, 6994, 8954, 9827, 10,329, 11,839, 12,138, 13,176, 13,470.

PETERSON, Euphemia (analysis of her evidence, p. 157), lives with her parents at Hillswick, 6441; father is a fisherman and tenant, 6442; she knits, 6444; is paid in goods, 6448; never asked or got money, 6460; makes her own worsted, 6462; has worked at kelp, 6463; would be paid in cash if she wished, 6467; eggs paid in goods, 6483.

PAUPERISM, 5234, 7272, 7631, 8637, 15,406.

PAUPERS, 7649, 8378, 12,496, 15,406.

PAYMENT of persons in curing establishment, 120, 2939, 5004, 5103, 5254, 5752, 5907, 6602, 8804, 10,110, 10,345, 12,808, 13,353, 14,086, 15,766.

PEACE, Thomas (analysis of his evidence, p. 425), partner of Peace & Love, drapers, Kirkwall; buys Shetland hosiery both from merchants and knitters, pays in cash, gets goods at about the same price from both; has been told there is no profit on hosiery; thinks a cash system would be a benefit to all parties concerned, 16,658.

PETERSON, Peter (analysis of his evidence, p. 164), is a fisherman at Hillyar and lives at Hillswick, 6772; tenant of land there, 6773; fishes for Mr. Laurence Smith, 6774; formerly fished for Mr. Anderson, 6776; left him because he refused to supply him with goods, as he was largely in debt, 6777; was summoned for the amount, 6785; no decree as yet in the action, 6791; fishermen are liable for the loss of hired lines, 6808; smuggling fish, 6822; when an indebted man ceases to fish for a merchant, he is required to find a cautioner, 6826; price of meal, 6834; men are not obliged to deal with merchant, 6842; his daughter works at kelp, 6851; knits, 6852; and sells his eggs, 6853; is generally paid in goods, but never asks money, 6856.

PETERSON, Laurence (analysis of his evidence, p. 166), is a fisherman, 6898; to Mr. Joseph Leask in Faroe fishing, 6900; formerly at home fishing under Mr. Anderson, 6901, 6902; had account at his shop, 6903; could not get cash during season, 6905; but had any goods he required, 6909; deals with Mr. Leask now, 6913;

refused a pass-book, 6917, 6919.

PETRIE, Catherine (analysis of her evidence, p. 28), lives in Fetlar, 1416; knits her own wool, 1420; sells to dealers, 1432; paid in goods, 1439; price fixed by dealer, 1440; lines, 1465.

POLE, Joseph Leask (analysis of his evidence, p. 225), manager at Greenbank for Pole, Hoseason, & Co., 9335, 9336; fishermen generally have accounts, 9339; system of book-keeping, 9337, 9367; men are not hound to fish, but it is understood they shall do so, 9370; men are not bound for the Faroe fishing, 937l; are very temperate, 9382; hosiery is a bad speculation, 9402.

POLE, William (analysis of his evidence, p. 145), managing partner of Pole, Hoseason, & Co., merchants and fish-curers at Mossbank, 5877; generally corroborates Mr. Adie--current price for fish, how fixed, 5887-5900; thinks a price fixed at the beginning of the season would be no advantage to men, 5904; beach boys, 5907; obligation to fish in home fishing, 5936; not bound for whale or Faroe fishings, 5940; hosiery, 5962; meal, 5962.

POTATOES, 940, 10,019, 10,679, 11,628, 14,729.

POTTINGER, James (analysis of his evidence, p. 336), is a fisherman in Burra--lives with his father, who is a tenant there, 13,524; they spent upwards of £12 on repairs of house in 1865, and in 1866 Messrs. Hay charged £1 extra for 'peat-leave'--he refused to pay it, but it was deducted from him at settlement, 13,525; formerly was under Messrs. Hay, and now is under Mr. Harrison, 13,538; Messrs. Hay did not object, 13,540; only had liberty because he was the master of a vessel, 13,551; some men have had to pay liberty money for their sons going to Faroe under another merchant, 13,552; men going to Faroe fishing sign a written agreement, 13,557; men are partners with the owners to the extent of one-half, 13,558; there is not much smuggling practised, 13,580.

PRICES, higher at store, 568, 598, 4313, 4542, 4614, 4662, 4734, 4742, 4794, 4835, 4860, 4887, 4978, 5045, 5300, 8403, 8704, 8731, 13,866, 13,940, 13,981. -Higher on account of system of barter in hosiery dealings, 2866, 3176, 3508, 3909, 8040, 9585, 9715, 12,785, 12,826, 12,916, 13,085, 13,408, 13,442. -of goods, 568, 598, 956, 959, 3423, 4238, 5801, 5856, 6193, 6266, 8731, 8887, 9299, 9583, 12,658, 12,756, 12,783, 12,826, 13,408, 13,465, 14,769, 14,860.

PRICE of fish, how fixed and ascertained, 4919, 5887, 8932, 9085, 9537, 9675, 10,125, 10,143, 12,277, 12,565, 13,027, 13,331, 13,648, 15,103. -Fixed at first of season, 491, 860, 1409, 5201, 5814, 5904, 6213, 6267, 7059, 8508, 8722, 9951, 10,558, 12,090, 12,104, 12,885, 12,982, 13,519.

QUALITY of goods, 613,956, 959, 1394, 1650, 3009, 3039, 4313, 4742, 4799, 5801, 6266, 7398, 8732, 8887, 9899, 13,085, 13,408, 13,465.

QUIN, Mary Duncan or (analysis of her evidence, p. 425), lives in Kirkwall, was born in Lerwick, and lived there till seven years since; has knitted for twenty years, both with her own wool and that of merchants; always paid in goods, but did not need money much. Women who depended on knitting for a living often had to sell their

goods for half-price to get money; sells at Kirkwall for money. Gives evidence as to the value of veils got from Grace Slater (p. 409) and E. Malcolmson (p. 409), 16,657.

RATTER, Andrew (analysis of his evidence, p. 177), fishermen at North Roe, 7386; and tenant of Messrs. Hay, 7387; generally deals at their store, 7392; articles always satisfactory, 7398; tea, 7399; meal, 7400.

RATTER, John (analysis of his evidence, p. 210), fisherman at Weathersta, 8624; for Mr. Adie, 8625; corroborates Thomas Robertson (p. 211), 8627.

READY Money system, 802, 3623, 8902, 9329, 9587, 9592, 9974, 9945, 10,527, 11,453, 11,826, 11,905, 12,028, 12,039, 15,078, 16,465.

RENT, 488, 911, 944, 1226, 1386, 5274, 5404, 5759, 9991, 10,640, 11,912, 11,969, 12,153, 12,618, 13,007, 13,048, 13,459, 13,681, 14,887, 15,074, 15,120, 15,135. -Dealer responsible for, 10,025, 10,039, 11,912, 13,679, 15,136. -Lower because of obligation to fish, 13,293.

ROBERTSON, Charles (analysis of his evidence, p. 378), member of R. & C. Robertson, wholesale and retail provision merchants, Lerwick, 15,017; merchants generally keep only one kind of meal, 15,018; gives evidence as to prices of meal, etc., 15,021.

ROBERTSON, Elizabeth (analysis of her evidence, p. 5), knits for herself formerly for dealers, 221; merchants supplied her with wool, 223; paid in goods, 229; had not pass-book, 231; could seldom get money from dealers, and often obliged to take goods from them and sell at half-price to get it, 236-238; gets lines from dealers if not requiring goods, 248, 251; to obtain money, sells these lines to persons requiring goods, 257-259, and 287-290.

ROBERTSON, Gilbert (analysis of his evidence, p. 224), fisherman and tenant at Hamnavoe under Mr. M'Queen, 9301; elder of Established Church, South Yell, 9302; free to fish always, excepting for one period of three years, when bound, 9304; ling fishing, 9308; thinks a ready-money system would be somewhat better for men, 9332.

ROBERTSON, James (analysis of his evidence, p. 204), lives at Muckle Roe--was formerly a fisherman, but is now too old, 8435; thinks fishermen are free, and should engage with any merchant whom they think offers the best bargain, 8460; men could not manage to cure their own fish, 8466; as they have not accommodation, [Page 451] 8470; and would not realize so good a price, as they would not be able to command so extensive a market as the merchant, 8471; does not see any advantage in payments for fish being made earlier in the season, 8472; meal is much dearer than in the south, 8475; knitting and weaving, 8488; paid either in goods or money, 8490; if people not indebted, 8502.

ROBERTSON, Mrs. Janet (analysis of her evidence, p. 237), knits, 9793; for Mrs. Spence with her wool, 9794-5; is paid in goods and money--gets money when she wishes, but generally takes goods, 9797.

ROBERTSON, John, sen. (analysis of his evidence, p. 351), is a merchant at Lerwick, and tacksman of Lunna estate, 14,067; fish-curing establishment at

Skerries, 14,068; has a store at Vidlin, 14,069; goods are dearer there than at Lerwick, only because of the cost of transit--they are always sold at the lowest possible prices, 14,072; men fishing at Skerries are bound to deliver their fish to the tacksman of Lunna, 14,075; but are free to go to the Faroe and Greenland fishing, 14,082; beach boys are paid weekly wages, 14,086; but are settled with annually, 14,088; are supplied with goods or cash, as they wish, 14,093-8; herring fishery a failure of late, 14,108; men have half the produce, and the other half goes to the expense of boats, etc., 14,112; remembers one or two instances of new employers taking over debt due by a man to a previous one, 14,138; does not know of any special arrangement to that effect, 14,139; and never entered into one himself, 14,140; purchases kelp, 14,143; pays 4s. 6d. in goods and 4s. in cash, 14,147; gatherers have accounts, 14,150; does not think the fish-curing business could be profitably carried on without combination with a store, 14,152; people require supplies from shop, and could not do without them, 14,153; the quality of fish would be deteriorated if men cured for themselves, 14,155. -(recalled, p.365). Price of meal at Lerwick, 14,570-6; does an extensive business in it, 14,577; meal in Shetland is generally of one quality, 14,579; only one quality sold, 14,585.

ROBERTSON, John, jun. (analysis of his evidence, p. 383), merchant and fish-curer, and has retail shop in Lerwick--has fishing station at Spiggie, 15,153; none of the tenants there are bound to fish for him, 15,154; men in neighbourhood could not cure their own fish, because there is no beach other than his, 15,159; does not understand how some dealers give more than the current price, 15,164; succeeded Robert Mouat, 15,178; Mouat did not call tenants together and order them to fish for him, but merely recommended them to do so, 15,180.

ROBERTSON, Laurence (analysis of his evidence, p. 348), fisherman at Skelberry, in Lunnasting, 13,933; bound to fish for tacksman, 13,934; deals at store, 13,946; runs an account, 13,950; is generally in debt at settlement, 13,951; gets advances of money, 13,956; men put on allowance when too far in debt, 13,967.

ROBERTSON, Thomas (analysis of his evidence, p. 209), fisherman, 8582; and tenant, of land, 8583; fishes for Mr. Adie, 8584; settles yearly, 8585; gets advances if wished, 8587; herring fishery, 8605-8; price fixed at beginning of season, 8608.

ROBERTSON, William (analysis of his evidence, p. 265), cashier and principal clerk to Mr. Joseph Leask, 10,847; gives an account of Mr. Leask's system of business, 10,850; Mr. Leask's tenants are not bound to fish, 10,858; either in home or Faroe fishings, 10,912; hold their land as yearly tenants, 10,913; denies that the truck system is more prevalent in Shetland than other parts of the kingdom, and that it 'makes its depressing effect felt in all the ramifications of the industrial and social life of the natives,' 10,924; that men and their wives and children are all severally indebted to the merchants, or that men generally are in debt, 10,925; the tenants have farms generally of about twelve acres, 10,925; some as many as twenty-three acres, and some again seven, and, besides, there are extensive commons, 10,926; free to the people, except in Yell, where they pay for grazing ponies and sheep, but not cattle, 10,927; whaling agents have a very small and inadequate profit, 10,933; and make very little profit by their stores, for the men are supplied as cheaply, if not

cheaper than at other stores, and there are many bad debts when there is a bad voyage, 10,938; bad voyages are frequent in whale and seal fishing, 10,939; young men must have advances for outfit, 10,940; men indebted generally go to another merchant, 10,957; and in that case, seldom pay their debts, 10,959; it is principally young men who are indebted, 10,961; there is a great scarcity of men, vessels often have to go to the fishing without their full complement of hands, 10,961; agents occasionally settle men's debts to other merchants, 10,977; agents obliged to pay wages in full to men in presence of the shipping master, but men always come to the store immediately after and settle any account they may owe, 11,009; allotment notes not issued by Mr. Leask, 11,051; frequently supplies men's families with money and goods in their absence, 11,058; delays in settlement are often caused by the dilatoriness of the men, 11,073; there is only one price charged for goods, 11,111; men always paid in cash, and not expected to buy; but when they do, goods are given them as cheap or cheaper than they could obtain them elsewhere, 11,187; men are very honest, and if they owe money, invariably pay it after receiving their wages, 11,209; hosiery paid in goods, 11,227; is simply barter, and not truck, 11,229; all Mr. Leask's employees paid in cash, unless they prefer to take goods, 11,248; Mr. Leask is extensively engaged in the Faroe fishing, 11,268; describes agreement with men, 11,270; lines and hooks, and anything else required by men, supplied by themselves, 11,272; half of the fish, after deduction of cost of curing, goes to the owner, and the other half to the men, 11,286.

ROBERTSON, William (recalled, p. 338). Hands in form of agreement for Faroe fishing, 13,603; men generally join about the middle of March, 13,604; shows workbook, 13,607; men never bound to go to Faroe fishing, 13,625; there is only one price for goods at store, 13,635; thinks price should not be fixed at the beginning of season, 13,646; does not think small dealers can command a higher, if so high a price for their fish, 13,655; unless by selling in small parcels to retail dealers, 13,658; denies that Mr. Leask ever forced the men on his property to fish for Mr. Williamson, 13,668; rents are commonly paid by merchant, 13,681; and retained at settlement, 13,682; denies that the truck system prevails in Shetland to an extent unknown in other parts of the kingdom, 13,697; the population of Shetland is 30,000 persons, 13,698; three-fourths of these are fishermen, seamen, and their families, 13,699; nearly every man has an account with the merchant he fishes for--does not consider this can be called truck, 13,701; thinks men have no reason to complain, 13,707; for it is an advantage, 13,708; fish merchant is only paid annually for his fish, and cannot be expected to settle otherwise than yearly with men, 13,710; men frequently have large sums of money in bank, 13,726; in Greenland whale fishing experienced men are preferred, as agents do not like the risk of supplying outfits to young hands, 13,737; men are not bound to take outfit from agents, 13,755; weekly or fortnightly settlements would be impossible, 13,789; Shetland men are not improvident or extravagant, 13,807; and, as a rule are not in debt, 13,808.

ROBERTSON, William (analysis of his evidence, p. 420), is in the employment of Hay & Co., Lerwick, 16,529; gives in statement as to the mode of dealing with men engaged for the seal and whale fishing, 16,530; to the following effect: 'I have been in Hay & Co.'s employment for upwards of twenty-eight years, during which time I have

had chief management of their ship-agency business, and particularly that part of it connected with the whale fishery. The masters of the ships invariably choose the men who form their crews, and fix their wages without any regard to the employer. When engaged, men can get their first month's advance in cash, and if they wished allotment notes. Without farther credit from the agent, however, young hands could not get an outfit, and now the Board of Trade regulations have very greatly lessened the number of young men going to Greenland. The necessity of payment at the Custom-house causes much extra trouble to the agents, and they endeavoured at one time to get a higher commission. They did not, however, and have continued in the agency with much reluctance. Since 1867, men have always been paid first month's advance in cash at shipping office, and the balance at the end of the voyage, whenever they choose to ask it, quite irrespective of advances to them for clothing; these, however, the men, as a rule, came forward and settled promptly.' Men are seldom in debt, 16,531; if indebted, they go to another agent; their accounts are occasionally transferred to the new agent, 16,566; agents expect men to deal with them, but only because they have always done so; there is no compulsion, 16,586; there is great difficulty and trouble in getting men to attend at a settlement, 16,605.

RUSSELL, Euphemia (analysis of her evidence, p. 284), lives at Blackness, Scalloway, 11,562; supports herself by knitting and out-door work, 11,564; would devote her time entirely to knitting if she could get money in payment, 11,565; when requiring money has to take out-door work, 11,567; never got money from [Page 452] dealers, 11,570; has exchanged tea for meal, 11,578; can only get wool for money, 11,579.

SANDISON, Alexander (analysis of his evidence, p. 169), formerly fisherman, now too old to fish, 7049; fished for Mr. Anderson, 7051; was not actually bound when indebted to re-engage with merchant, 7054; but thought it fair to do so, 7077; price fixed at the beginning of season would be a doubtful benefit, 7059; eggs paid in goods, 7074; fishermen much better off now than formerly, 7083; whale fishing, 7088-7099.

SANDISON, Alexander (analysis of his evidence, p. 241), partner in the firm of Spence & Co., 9978; formerly partner of Hay & Co. (Lerwick) at Uyea Sound, 9979; manager there, 9980; lessees of Major Cameron's estate in Unst, 9982; men not bound to fish, 9986; small boats are better adapted to winter fishing, 9998; winter fishing cannot be extended, 10,001; monthly payments in cash would be the best system, 10,067 men decline this, 10,009; a change in the system would cause poverty amongst the men for a time, 10,015; truck is not nearly so common as it was thirteen years ago, 10,027; a dealer is powerless to arrest for debt because of the landlord's hypothec, 10,036; dealer is bound to see tenant's rents paid to proprietor, or men will not be permitted to fish for him, 10,025-10,039; dealer often cannot avoid giving further credit to indebted men, because without it they and their families would be starved, 10,049; a change to monthly payments from present system would cause much pauperism in the period of transition, 10,052; thinks the best thing for Shetlanders would be to find some profitable employment for them in the winter--does not think the winter fishing could be improved, 10,061; thinks the

Government should improve the harbours and roads--in the sale of cattle, men often decline to take the proceeds until the yearly settlement, 10,077; men are quite free in the sale of farm produce, 10,079; boat hiring unprofitable, 10,139; has absolute power to eject men on estates in tack in Unst, but has never done so, 10,162; tenants are not bound to fish or sell farm produce, 10,165, 10,166; but generally do, 10,168; buys hosiery, 10,182; and worsted, 10,183; pays in cash, 10,187; thinks knitters as a rule should have as much for their work as the value of the worsted, 10,196. -Letter sent by (p. 248). Thinks the morals of the people may compare favourably with those of any others in Scotland; small shops are an evil, as they sell whisky surreptitiously; thinks the time spent on winter fishing lost, as it could be more profitably employed in farming; thinks the best remedy for evils is to improve houses and get men to improve their ground. -(recalled, p. 254). Is agent at Uyea Sound for Shipwrecked Mariners' Society, 10,480; men never contribute, 10,481; a man was removed because he had a shop, 10,488; small shops are an evil, for men indebted will beg necessaries from store and sell them for superfluities at them, 10,494; men's debts are often paid by a new merchant, but knows of no rule to that effect, 10,498. -(recalled, p. 263). Want of change, 10,767.

SANDISON, Arthur (analysis of his evidence, p. 191), shopman and book-keeper to Mr. Anderson, Hillswick. 7837; is preparing return from Mr. Anderson's books of number of fishermen, etc., 7841.

SANDISON, Jane (analysis of her evidence, p. 103), lives in Sandwick, 4139; knits for Mr. Linklater, 4140; uses his wool, 4141; is paid in goods, 4142; has asked but never gets money, 4143; has exchanged goods for oil and wool, 4147-4156.

SANDISON, Jemima (analysis of her evidence, p. 33), knitter in Lerwick, 1697; knits for dealer, 1699; has passbook, 1700; is paid in goods, 1704; and in money, 1708; could always get some money if she wished it, 1708; can get wool in exchange for hosiery, 1717.

SANDISON, John (analysis of his eyidence, p. 167), fisherman, 6938; and tenant of land, 6939; goes to home fishing, 6940; for Mr. Anderson, 6941; settlement yearly, 6942; deals at his shop, 6944; never refused cash, 6956; is not bound to deal with merchant, 6960; price of meal, 6972.

SANDISON, Peter Mouat (analysis of his evidence, p. 127), is inspector of poor in the parish of Fetlar and North Yell, 5141; formerly was a fish-curer, 5142; and still cures for Spence & Co., 5255; settlements at end of year, 5145; indebtedness is a bad policy for curers, 5148; the best men are always least in debt, 5149; men will not have pass-books, 5170; hosiery, 5176; is paid generally in goods, 5193; fixing the price of fish at the beginning of season would benefit the enters, but not the men, 5201; boats and boat hires, 5206; men always get the highest currency, 5206; men were bound to fish for him, 5211; but he never enforced the obligation except in one case, 5216; men have been offered a weekly payment, but refused it, 5217; there are scarcely any leases in Yell, 5228; does not think the. system of long settlements tends to increase the poor rates, 5234; beach boys, 5241; sometimes have accounts, 5242; fish-curer would not choose to open these, but it is sometimes necessary to do so,

5243; boys are not obliged to serve, 5248; workers are paid at end of season, getting goods during it from Spence & Co's. store, 5259; kelp, 5262; paid almost entirely in cash, 5269; has known a few instances of restrictions laid on the sale of farm stock when men are hopelessly in debt, 5271; rent, 5274; never knew any instance of cattle being marked for debt, 5278.

SCOLLAY, Gilbert (analysis of his evidence, p. 203), is a tenant on the Busta estate, 8376; keeps pauper lunatics, 8378; previously indebted to merchant, 8379; payments by Parochial Board to him made through merchant, who is chairman of Board, 8387; and complains that merchant will only give him goods, 8389; which are charged at enormous prices, 8403. -(recalled, p. 210). Truck is a great cause of pauperism, as it makes the poor careless and the rich fearless. If man dies, the goods he leaves will be taken by his creditor, and his widow and family left penniless, 8637. -(recalled, p. 376). Corrects his previous evidence, and gives evidence as to prices of meal and flour, 14,964, 14,966.

SECURITY in holding of land, best cure for evils of Shetland, 8055.

SEPARATION of farming and fishing in Shetland (impossible), 4421, 4872, 8029; note, p. 248.

SHARES, fishermen always work best on, 3623, 10,007, 12,604, 12,608.

SHIPWRECKED Mariners' Society, 6711, 10,480, 11,863, 14,348, 14,800, 15,552.

SHORT Settlements, 9579, 9952, 10,006, 10,052, 10,238, 10,341, 10,512, 10,528, 10,718, 10,827, 11,797, 11,875, 12,610, 12,887, 15,203, 15,750. -Impracticable, 3896, 8149, 11,797, 11,875, 13,789.

SHAWLS and haps, price of, 31, 1421, 1441, 1521, 1641, 1686, 3413, 3430, 9739, 10,205, 11,537, 11,606, 11,769, 15,922, 16,010, 16,045, 16,075, 16,113, 16,208. -Dressing of, 1729, 1793.

SIEVWRIGHT, William (analysis of his evidence, p. 382), solicitor in Lerwick, 15,116; factor on property of Mrs. Budge, Scaffold, 15,117; wrote letter to William Stewart, quoted in Stewart's evidence (question 8917), 15,118; written because the tenants had taken a prejudice against Thomas Williamson, and his business fell off; the men, on explanation, were ready to deal with him; there was no compulsion used, 15,119; Williamson was not responsible for rents, 15,135.

SIMPSON, Mrs. Andrina (analysis of her evidence, p. 6), knits for herself, 306; buys her wool, 308; sells to merchants for goods, 310; never got more than part payment in cash, 316-320; never gets lines, 329.

SIMPSON, Laurence (analysis of his evidence, p. 345), does not wish to make any statement, because his rent may be raised or he may be ejected, 13,830; is a tenant on estate of Lunna, 13,832; is bound, so far as he knows, to fish for tacksman, 13,833; would prefer liberty, 13,840; not free to sell winter fish, 13,843; is not bound at all to deal at store, 13,903; goods in Lerwick cheaper than at store, 13,920.

SIMPSON, Robert (analysis of his evidence, 348), fisherman at Valour, in Lunnasting, 13,978; not having money, is obliged to take goods from the merchant,

13,980; is charged more than should be, 13,981; bound to fish for Mr. Robertson, 13,983; could make more if free and curing for himself, 13,986; never sold eggs for cash, but has no doubt he could have got it if he had wished, 14,023.

SINCLAIR, Charles (analysis of his evidence, p. 22), is a fisherman at Burra, 1100; wishes liberty in fishing, 1109; liability for father's debts, 1143-1154; in Faroe fishing can get payment in money, 1157; families of fishermen get provisions and money when they are absent at the Faroe fishing, 1172, 1178.

SINCLAIR, Henry (analysis of his evidence, p. 131), tenant on Symbister estate at Lerwick, formerly bound to tacksman (Mouat), 5309; was warned because of a quarrel with his son as to an entry of fish, 5315; got provisions at store, 5323; never got any money, 5332; meal unfit to eat, 5330.

SINCLAIR, Isabella (analysis of her evidence, p. 72), daughter and assistant of R. Sinclair, 3245; never knew of lines being passed from one to another person, 3250; payments in money less, 3252; Shetland wool is becoming extinct owing to the introduction of Cheviot sheep, 3269, 3270.

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SINCLAIR, Isabella (recalled, p. 82). Has known cases of hosiery being sold for money to other people, and knitters have afterwards come and spent the cash at dealer's shop, 3612. -(recalled, p. 350). Explains, with reference to evidence of Margaret Jamieson (p. 350), that salesmen in her father's shop cannot give money without permission, and that the want of cash is an exceptional case, 14,064; persons are paid in money who have bargained for money, 14,065; but a less price given in cash, 14,066.

SINCLAIR, Mary Ann (analysis of her evidence, p. 40), knits, 2075; for dealer with his wool, 2076; has no pass-book, 2077; is paid in money and goods, 2079; gets as much money as she wishes, 2092, 2107.

SINCLAIR, Robert (analysis of his evidence, p. 49), merchant in Lerwick, 2366; deals in drapery, tea, boots and shoes, and a few groceries, 2367; deals also in hosiery, 2370; principally buys hosiery, but sometimes gives wool out to be knitted, 2371; pays generally in goods, but gives cash, 2373; more cash given lately, 2376; pass-books given if wished, 2383; sometimes pays entirely in cash, 2399; but only for goods actually required, 2402-2404; often takes goods, when not requiring them, from knitters who are in need, 2404; payment in goods generally understood, 2411; the system of pass-books, 2455, 2462; knitters seldom have them, 2455; refers to evidence of Elizabeth Robertson (p. 5), 2462; states she has several times had worsted in part payment of hosiery, 2463-2470; but never gives mohair, 2471; or Shetland wool, 2473; as the supply is very small, and there is great difficulty in getting it, and it is only kept for the merchant's own use, 2473, 2481; as a rule, will not even sell it for cash, 2482; gives lines, 2502; the practice of giving lines commenced lately, 2517; a cash tariff should be introduced, as it would save much trouble, 2519; does not know whether in some cases knitters might not lose by it, 2521; there is no profit on hosiery at present, 2523; and merchant's only profit is on the goods given to knitters, 2531; if cash tariff were introduced, would have to give

less for hosiery, 2543, 2547; to give money to knitters entails considerable loss, 2579; two prices, cash and goods, 2575; lines, 2581-2590; does not think they are often transferred, 2587; women will not take a less price in cash for their work, 2611; lines are seldom long in currency, 2639; refers to evidence of Catherine Borthwick (p. 32), 2643. -(recalled, p. 71). Refers again to evidence of Catherine Borthwick (p. 32), 3215. -(recalled, p. 77). Price of meal, 3413; dyeing of shawls, 3413. -(recalled, p. 78). Ticketing of goods, 3449. -(recalled, p. 82). Mentions case of a customer making cash purchase in his shop, and a person having lines calling her aside and exchanging her lines for the customer's cash in his presence, a line being tendered in payment of his goods, 3617. -(recalled, p. 356). Explains, with reference to Adam Tait's evidence (p. 356), that, for various reasons, there is often a deficiency of cash in shop, 14,289. -(recalled, p.406). Concurs with Mr. Laurenson (p. 406), 16,035; never barters hosiery for goods from merchants, 16,036. -(recalled, p. 409). Explains, with reference to Slater's evidence (p. 408), that a number of goods are torn in dressing, 16,129.

SLATER, Grace (analysis of her evidence, p. 408), knitter in Lerwick, 16,084; and keeps lodgings, 16,085; generally knits veils, 16,086; gets from 1s. to 1s. 4d. for knitting veils, 16,090. (recalled, p. 409). Produces a veil she is at present making for Mr. Sinclair, 16,128.

SMITH, Mrs. Elizabeth Irvine or (analysis of her evidence. p. 286), lives in Scalloway, 11,683; knits chiefly for Mr. Sinclair, 11,684; has account with him, and gets whatever goods she wishes, 11,684; gets money also when she wishes, 11,688; once bartered tea for milk, 11,698.

SMITH, Hans (analysis of his evidence, p. 117), is master of a smack visiting Fair Island, 4739; takes goods to store there, 4740; people satisfied with quality, but not the price of goods, 4742; it is expensive carrying goods thither, and there is a risk of damage, 4743; other dealers are not allowed to sell goods on the island, 4745-8; or to buy, 4749; people fined for selling cattle or horses to them, 4751.

SMITH, James (analysis of his evidence, p. 322), merchant and fish-curer at Hill Cottage, Sandwick, 13,022; conducts his business in the same manner as Mr. Tulloch (p. 321), 13,025; generally pays more than current price for fish, 13,027; men cannot cure fish so well for themselves, 13,036; buys eggs, pays in goods, 13,043; payment on delivery of fish would not be advantageous to men, as men would not get credit, without which they cannot begin the fishing: they would not know how to manage their money, it would be spent before rent-time, and the landlord would roup their corn or cattle, 13,047; the present system is a great benefit to men in a bad year, 13,048.

SMITH, Laurence (analysis of his evidence, p. 110), fisherman and tenant of land at Trosswick, 4435; corroborates William Goudie, 4437; gets advances from dealer, 4457; never was refused one, but always had a balance in his favour, 4459; never paid fines or liberty money, 4483; but understood he was liable for them, 4484; would be content, but objects to be bound to fish for landlord, 4487; not bound to deal at store, 4488. -(recalled, p. 117). Refers to evidence of Robert Halcrow (p. 115); saw

bill mentioned, and states also that a man with a letter was sent to tenants, 4720; from landlord, stating that the lands were given over to his son, 4726; and that they would have to fish for him, under penalty of ejectment, 4727.

SMITH, Peter (analysis of his evidence, p. 20), fisherman at Burra, 976; and tenant, 977; engaged in home fishing, 977; corroborates Walter Williamson (p. 15), 979; formerly it was a custom with men to take tea from store and sell to each other to obtain money, 986-993; this was forbidden by dealers, 987, 990; are bound to deliver fish, 1003; by written obligation, 994-996; was made to pay liberty money for his sons when they worked for another dealer, 1012; but got it paid back afterwards, 1025.

SMITH, Peter (analysis of his evidence, p. 251), fisherman formerly at Westing, now fish-curer for Spence & Co., 10,343; cures by contract, 10,344; beach boys get credit at the curer's shop at the risk of merchant; fees are paid by merchant on receipt of line, 10,345, 10,368.

SMITH, Robert (analysis of his evidence, p. 220), fisherman and tenant, at Burravoe, to Mr. Henderson, 9104; formerly fished at Samphray for Mr. Robert and Mr. James Hoseason, 9106; bound to do so, 9108, 9122.

SMITH, Mrs. Rosina Duncan or (analysis of her evidence, p. 408), lives in Lerwick, 16,067; husband alive, but old--formerly a seaman, 16,068; has no pension, 16,069; witness knits for her family, 16,070; at one time knitted and sold to Mr. Sinclair and Mr. Leask, 16,072; was paid generally in goods, but got money if she required, 16,080.

SMITH, Rev. William (analysis of his evidence, p. 260), clergyman of Baltasound for three years, 10,701; long payments and running accounts have a very deteriorating effect on the character of the people--it destroys self-reliance, 10,703; men look to merchant for help in bad season, 10,704; does not think many men save money, 10,709; and when men have money they conceal it, having a want of confidence in merchants, 10,710; men indebted sell stock to small traders privately, 10,712; thinks some new system of money payments should be introduced, 10,714; clergyman and small proprietors generally obtain supplies out of Shetland, 10,715; as quality and price of dealer's goods are different, 10,716; the houses of the people are very bad and should be improved, but much might be done by the people themselves if paid weekly or monthly wages, 10,718; the present system leads men into debt, 10,719; has been asked to apply funds collected for widows to liquidate debt, but never did so, 10,725.

SMUGGLING of fish, by men bound to deliver to curer, 966, 3655. 3762, 5577, 5663, 5981, 6564, 6822, 7336, 12,908, 13,158, 13,579, 13,840.

SOAP, 12,826, 13,233, 15,820, 16,875.

SPENCE, John (analysis of his evidence, p. 256), senior partner of Spence & Co., 10,556; produces letter, 10,558; stating that cash system would be an advantage, and would necessitate no more, and even less, outlay of capital than at present on the part of masters; at least price of fish should be fixed at beginning of season; sooner or

later it will be necessary to do so; it is already done with the winter fishing, and might with the summer; it would be an advantage to the merchant in several ways, 10,558; herring fishery is carried on at a great loss at present by merchants in hope of future success, 10,563; there should be co-operation and not competition between merchants, 10,567; as the country is too poor for competition, 10,580.

STEWART, William (analysis of his evidence, p. 216), fisherman and tenant at Seafield, Mid Yell, 8911; sells fish to Mr. Thomas Williamson by direction of landlord, 8917; has no written tack, 8919; paid current price at end of year, 8932; sale of cattle, 8944.

SUTHERLAND, Charlotte (analysis of her evidence, p. 426), [Page 454] knitter in Kirkwall; brought up in Lerwick, and lived there till 1867 with her father, and knitted goods sometimes with merchants' and sometimes with her own wool. After her father's death knitted to a Miss Ogilvy for money and the shops for goods. Knew a great many women in Lerwick who lived entirely by knitting, and had to take goods from the shop and sell them to get money, 16,660.

SUBDIVISION (excessive) of land to multiply fishermen, 9728, 10,925 (size of holdings).

SUGAR, 7948, 8733, 10,231, 12,826, 12,876, 13,212, 13.235, 13,394, 13,416, 15,817, 16,656, 16,659, 16,852, 16,860.

SUTHERLAND, George Sinclair (analysis of his evidence, p. 427). Mr. Methuen, who was to have been examined by commissioner, is forbidden by his medical adviser, and witness attends to speak to points on which he was expected to give information, 16,661. Has been for eight years in Mr. Methuen's service, and manages his business, which is the largest business in Scotland, 16,662; gave up business in Shetland because Mr. Bruce took all his tenants' boats into his own hands, 16,671; he had no shop, 16,677; the system of paying for fish on delivery would be very difficult to work in such places as Shetland, 16,704; it would be a great advantage to merchants, 16,705; men prefer to be paid the current price at end of year, to getting the market price on delivery, 16,720; payment of the price of the day would benefit both men and merchants, 16,729; large boats are an advantage in fishing, 16,764; but in bad weather are more difficult to manage, 16,768.

SUTHERLAND, Rev. James R. (analysis of his evidence, p. 179), is minister of the parish of Northmaven, 7468; and well acquainted with the condition of people, 7470; thinks the system of long payments ruinous to men morally and pecuniarily--destroys independence, 7474; most of the people are indebted, 7475; merchants and men are suspicious of each other, 7490; men think merchants take undue profits, 7491; the evidence of fishermen already given is not to be depended on, as they are in terror of the dealers, 7512; branch shops opened by the dealers, 7520-7523; the system of separate accounts for each member of family destroys family affection and mutual dependence, 7525; parents when aged are neglected by their children, 7526; beach boys are generally indebted, 7533; eggs, 7538; women dress more expensively than is necessary because of the payment of hosiery in goods, 7549; when buying corn and straw, witness cannot get it delivered to him till after dark, because the people are in

fear of the merchants, 7563; does not know whether merchants actively cause this terrorism, 7573; money subscribed for widows of men drowned appropriated by merchant for payment of their husbands' debts, 7581; marking of cattle for debt, 7600; whisky, 7615; truck and allowing of credit should be made penal, 7626.

TAIT, Adam (analysis of his evidence, p. 356), shopman to Robert Sinclair, 14,280; settled with Margaret Jamieson (p. 350) for a hap purchased by Mr. Sinclair lately, 14,281; paid 19s. 6d. in goods and 6d. in cash--the bargain was made for goods, and so he refused to give her cash except at a reduction, 14,284; seldom a deficiency of cash in shop, 14,288.

TAIT, Agnes (analysis of her evidence, p. 288), lives in Scalloway alone, 11,755; supports herself entirely by knitting; is always paid in goods; never asked money, because she knew she would not get it, 11,757; got money by sending hosiery south, 11,758; barter of goods for money, 11,759.

TAIT, George Reid (analysis of his evidence, p. 363), agent in Lerwick for whaling vessels, 14,509; settles with men at shipping office in full, 14,513; men generally settled with at once, 14,516; men, as a rule, pay their accounts immediately after, 14,526; are very honourable, 14,527; report by Mr. Hamilton very exaggerated, 14,549; is acquainted with the practice of exchanging lists of men indebted who have left their employment-has not seen any of these for some years, 14,558.

TAIT, Mrs. Jemima Brown or (analysis of her evidence, p. 7), knits for dealer, 335; uses his wool, 338; has pass-book, 343; cannot get money, 352.

TEA, Price of, etc., 986, 1488, 6696, 7399, 7452, 7949, 8733, 8967, 9269, 9811, 10,226, 10,252, 10,318, 10,673, 11,749, 13,393, 13,416, 14,726, 15,808, 15,832, 16,656, 16,830, 16,857.

TENANTS bound to fish for curer, 476, 559, 764, 775, 784, 994, 1003, 1066, 1110, 1114, 1209, 1242, 1396, 2974, 2983, 3021, 4256, 4508, 4575, 4613, 4647, 4803, 4901, 4911, 5077, 5127, 5211, 5284, 5309, 5936, 6028, 7111, 9108, 9224, 9274, 9275, 9304, 9370, 9638, 9821, 9924, 10,402, 10,661, 12,058, 12,367, 12,621, 12,734, 12,774, 12,800, 12,843, 13,082, 13,130, 13,293, 13,833, 13,934, 13,983, 14,075, 14,731, 14,890, 15,061, 16,433, 16,656.

TENANTS free in fishing, 1109, 3047, 5409, 5544, 5804, 6185, 6251, 7975, 8084, 8781, 8894, 9304, 9514, 9555, 9819, 9986, 10,165, 10,208, 10,324, 10,551, 10,622, 10,640, 10,858, 10,874, 10,912, 11,060, 11,729, 11,928, 12,029, 12,247, 12,949, 13,293, 13,455, 15,060, 15,145, 15,154.

THOMASON, Thomas (analysis of his evidence, p. 152), fisherman at Eskerness and at Stenness, 6183; fishes for dealer, 6185; free to fish for any one, 6185; tenant of land, 6186; has an account with dealer, 6189; no pass-book, 6190; is not bound to deal at shop, 6192; goods much the same in price as elsewhere, 6193; meal, 6194; does not think a price fixed at beginning of season would be an advantage, 6213; freedom in fishing an advantage to men, 6227; meal, 6235.

THOMPSON, Laurence (analysis of his evidence, p. 387), seaman in Lerwick, 15,276; has frequently gone thence on sealing and whaling voyages, 15,277; under

various agents, 15,278; always got outfit from agent he sailed under, 15,279; got goods from him and balance in cash, 15,285-15,300; always got money when he asked, 15,302; now is paid at Custom-house, and pays his account at shop immediately thereafter, 15,321.

THOMSON, John (analysis of his evidence, p. 287), shopkeeper and grocer at Sandsound in Sandsting, 11,699; deals a little in fish in winter and spring, 11,703; cures for himself, 11,704; pays on delivery, 11,706; in goods if cash not wished, 11,707; runs accounts with fishermen, but does not like doing so, 11,711; might have a better business if men were paid for fish on delivery, 11,717; men have freedom in fishing in his district, 11,729.

TOBACCO, Price of, etc., 5053, 10,229, 10,257, 12,875, 13,204, 13,231, 13,395, 13,457, 16,854.

TULLOCH, Andrew (analysis of his evidence, p. 9), a fisherman, 456; fishes for ling for Mr. Tulloch, 459; is afraid of the landlord taking the tack of the tenants into his own hands, 468; does not complain of present arrangement, except that prices of fish are never fixed till the cud of the season, 474; no written agreements, 476; all the fish delivered to merchant's factor, 484; can get money before settlement to pay rent, 488; would rather contract to supply fish at a stated price, 491; can have pass-books, 495; balance paid at end of season, 501; sometimes a deficiency, 501; which is allowed to stand over, 503; is not bound to deal with merchant, 514; has heard that landlord proposes to take fishing into his own hands, and fears oppression in that case, 528.

TULLOCH, Andrew (analysis of his evidence, p. 134), lives at Brough in Mossbank, 5426; fished for himself for two years, and sold to Mr. Leask, 5427; has a man to cure his fish, 5428; makes more this way, 5430; takes his fish to Lerwick yearly, and is then paid for them, 5434; in cash, 5435; men on Busta estate all free, 5443; pays the same price when buying goods for cash as he would taking them on credit, 5447; price of fish and cost of curing, 5446-5460.

TULLOCH, Gilbert (analysis of his evidence, p. 277), shopkeeper at Scalloway to Hay & Co.; they have a shop, 11,309; in winter fishing men paid in cash on delivery, 11,313; men generally take their goods, but are not obliged, 11,372; people employed in curing paid weekly wages, 11,427; they generally take full value of these prior to settlement, 11,429; butter and eggs paid for in goods, 11,435; ready-money payments would facilitate business, 11,455.

TULLOCH, James (analysis of his evidence, p. 60), merchant in Lerwick, 2767; sells drapery, tea, and soap, 2768; deals in hosiery, 2770; buys it chiefly--seldom employs knitters, 2770; pays principally in goods, seldom gives cash, 2771; knitters have no pass-books, 2772; does not sell worsted, 2779; but lately has sold a little Pyrenees wool, 2779; sometimes giving it for hosiery, 2781; objects to sell Shetland wool even for cash, 2783; gives lines, 2785; there is generally no profit on hosiery, 2793; system of payment in goods is very old; does not think knitters would agree to a cash system, as they would be paid a less price, 2800; does not object to a cash system, but thinks it would greatly interfere with the sale of goods, 2807; it would also be injurious to

merchants, 2808.

TULLOCH, Margaret (analysis of her evidence, p. 29), knits, 1476; has used her own wool for eighteen months, 1477; previously knitted for Mr. Linklater, 1478; was paid in goods, 1480; had a pass-book, 1481; got tea and sold it to get money, 1488; knits now, and sells to merchants for part money and part goods, 1515-1527; gets articles and sells them to others for money, 1528, 1540.

TULLOCH, Thomas (analysis of his evidence, p. 321), [Page 455] fish-curer and merchant at Lebidden, 12,946; employs a number of crews in summer fishing, 12,947; men not obliged to fish, 12,949; settles annually, 12,953; men have accounts at store, 12,954; pays men a price higher than the current price, 12,972; if price were fixed at the beginning of the season, men would get less, 12,982; men's debts sometimes paid by new merchant, 13,001; is not responsible for rents, 13,007; buys eggs, pays in goods, 13,015.

TULLOCH, William Bruce (analysis of his evidence, p. 359), merchant and shipping agent at Lerwick, 14,379; agent for Greenland whaling vessels, 14,380; disagrees in part with the evidence of Mr. William Robertson, 14,382; lists of balances due by men to merchants are still handed by agents to each other, 14,385; but accounts only paid with consent of man, and when there is a balance sufficient in his favour, 14,386; young hands are not so commonly employed in Greenland fishing now, 14,448; formerly that trade was a nursery for the navy, now the regulations of the Board of Trade have prevented this, 14,454.

TWATT, John (analysis of his evidence, p. 299), merchant at Voe, in the parish of Walls, 12,164; business the same as that of Mr. Georgeson, 12,167; cannot get men to fish for him, 12,173; men are expected to deal at store, 12,195; thinks that skippers of vessels get a fee to make the men deal at store, 12,200; deals a little in hosiery and eggs; pays by barter, 12,217, 12,218.

TWO Prices (cash and credit), 1936, 4238, 5392, 9438, 10,393, 10,507, 11,111, 13,635. -(cash and goods), 2171, 2575, 2726, 12,295, 15,826.

VEILS, Price of, etc., 1422, 9738, 11,629, 16,090, 16,122, 16,128, 16,130, 16,657.

WALKER, John (analysis of his evidence, p. 402). Formerly gave evidence before the commissioners, under the Act of 1870, in Edinburgh, 15,920; re-affirms all evidence then given, and explains as to the value of wool in a shawl, 15,921; contradicts that merchants have no profit on hosiery, as he believes they often have an extremely large one, 15,922; a great deal of land in Shetland is under-rented for the purpose of binding fishermen, 15,936; men are afraid to come forward to give evidence before the commissioner, 15,940; witness has been instrumental in starting a large Limited Liability Company, to afford Shetlanders the means of prosecuting fishing free from the oppression of truck, 15,941; the old system of payments to be adhered to, but men to be paid in cash--in order to provide for outfits, the accounts to be paid by Company whenever the ship leaves with the men on board -- and advances to be made to families, 15,947; manages chromate of iron quarries at Unst, 15,969; wages not paid in truck, 15,970; but were formerly, 15,971; since the abolition of truck in parishes with which he is connected, the poor-rates have been reduced

considerably, 15,975; merchants often commence business without any capital, and so trade on that of the fishermen, 15,982. -- (recalled, p. 406). Messrs. Hay's establishment is the largest of the kind in Lerwick, 16,024; men are ready to sign or do anything they are bid by the curers, 16,027.

WANT of change and money, 10,767, 14,042, 14,064, 14,289.

WANT of independence, 3717 (none), 5992, 8050, 9946, 10,650, 13,877, 14,739.

WARNING too short, 4688, 8055.

WEEKLY or monthly payments (see Short Settlements).

WHALE and Seal Fishery, statements as to, 3991, 7088, 9136, 9609, 10,799, 10,931, 12,506, 13,695, 13,735, 14,080, 14,163, 14,293, 14,509, 14,522, 14,762, 14,815, 15,277, 15,489, 15,547, 15,600, 15,871, 16,221, 16,343, 16,390, 16,530.

WHALES driven ashore by men, one-third of oil taken by landlord, 657, 764, 861, 4405, 11,856, 13,479.

WHALING Agents (see Whale and Seal Fishery).

WILLIAMSON, Charles (analysis of his evidence, p. 963), fisherman at Cullivoe in North Yell, 10,769; does a good deal in winter fishing, 10,773; makes more by it than most men, 10,774; large boats are not so good for it, 10,788; but he intends to make a trial in one, 10,789; was at whale fishing in 1864, 10,799; men commonly paid in cash unless they require goods, 10,811; does not see any advantage in monthly payments; in his own case, gets money whenever he requires it, 10,827.

WILLIAMSON, Mrs. Christina (analysis of her evidence, p. 4), knits, 150; uses her own wool, 152; often asked for money, but cannot get it, 160-165; sells a shawl, and opens an account with dealer, 175-186.

WILLIAMSON, Mrs. C. (recalled, p. 356). Corrects her former evidence (p. 4) to the effect that it was not Mr. Laurenson but Mr. Laurence to whom she sold a shawl, 14,291.

WILLIAMSON, George (analysis of his evidence, p. 121), fisherman and tenant, Eastshore, Dunrosness, 4888; free in fishing till twelve years since, then bound to fish for tacksman, 4901; corroborates William Goudie (p. 105) and others, 4904; can always get money, 4905.

WILLIAMSON, George (analysis of his evidence, p. 232), fisherman at Mid Yell; goes to whale and seal fishing, 9609; in whale fishing month's wages paid in advance, and allotment notes given, 9613.

WILLIAMSON, Gideon (analysis of his evidence, p. 202), fisherman at Muckle Roe, 8333; fishes for Mr. Inkster, 8335; is settled with at Hallowmas yearly, 8336; deals at Mr. Inkster's store, 8337; does not wish to deal elsewhere, 8342; never knew men change employers because of being in debt, 8348.

WILLIAMSON, Gilbert (analysis of his evidence, 253), principal storekeeper to Spence & Co., Haroldswick, 10,448; knows nothing of hosiery purchases, as they are

made by Mrs. Spence, 10,450; gets lines by her from women, 10,452; and always pays them in goods, 10,455.

WILLIAMSON, Mrs. Grace (analysis of her evidence, p. 201), lives in Muckle Roe, 8253; knits and makes cloth, 8254; uses her own wool for the cloth, 8256; gets either money or goods in payment as she requires, 8257; her husband fishes for Mr. Inkster, 8274; she has no separate account at shop from her husband, 8277.

WILLIAMSON, Henry (analysis of his evidence, p. 153), fisherman at Stenness, 6248; tenant at Tangwick, 6249; free in fishing, 6251; fishes for dealer, 6252; deals principally at his shop, 6253; gets advances during season if required, 6265; is satisfied with price and quality of goods at shop, 6266; thinks the fixing of a price for fish at the beginning of the season would be a great disadvantage to men, 6267; people are often supported by merchants in bad seasons, 6274-6277; kelp, 6325.

WILLIAMSON, Laurence (analysis of his evidence, p. 218), merchant at Linkhouse, Mid Yell, 8993; men free to fish to any one, 8998; formerly engaged to fish for him, but had to break their engagements by order of their landlord (see William Stewart's evidence, p. 216), 9000; deals a little in hosiery, 9052; pays chiefly in goods, 9053; has occasionally liquidated debts of fishermen coming into his employment, 9074.

WILLIAMSON, Margaret (analysis of her evidence, p. 202), lives in Muckle Roe, 8308; knits and makes some cloth, 8309; knits her own wool, 8310; is always paid in goods, cannot get money, 8314; paid for cloth in money if required, 8328.

WILLIAMSON, Thomas (analysis of his evidence, p. 228), merchant and fish-curer at Seafield, 9463; previously shopman to Magnus Mouat, 9464; his system of business, 9469-9486; purchase of cattle, 9489; supplying of fishermen the principal support of his business, 9495-9500; would not wish men to fish for him unwillingly, 9523; gives for fish the current price as fixed by the principal merchants, 9538; deals a little in hosiery and yarn, 9547; sells it in Lerwick for goods, 9548; hosiery and worsted are bad speculations, 9552.

WILLIAMSON, Walter (analysis of his evidence, p. 15), fisherman at Burra, 762; tenant, 763; complains that men are bound to fish for landlord or pay liberty money, and that price not fixed till end of season; cannot get leases, and owing to the nature of the settlements must deal at landlord's shop; one-third of oil from whales driven on shore is taken by landlord; daughters who knit cannot get payment in money (these statements made in a letter signed by witness and twelve others), 764; not under written obligation to fish for landlord, 775; but bound verbally, 776; cannot obtain liberty, 784; would prefer to fish on his own account, 788; but would be ejected if he did, 790; long settlements, 807; would prefer the price to be fixed at the beginning of season, if fixed honestly, 860; whales, 861-4; Faroe fishing, 876; ejection for giving evidence, 900; rents, 911; farm produce, 939; men have the advantage of credit in bad seasons, 954; but if they had liberty, would not require it, 955; quality and price of store goods, 956; men occasionally are obliged to cure and sell fish secretly to obtain money, 967-970.

WILLIAMSON, William (analysis of his evidence, p. 250), fisherman at Snarravoe, Unst, and tenant, 10,320; supposes he is quite free in fishing, 10,324; and to deal

[Page 456] at any shop, 10,325; once fished for fixed price, and got more at the end of the season, 10,330; price fixed always in the herring fishery, 10,336; does not know whether monthly payments would be an advantage, 10,341.

WILSON, Laurence (analysis of his evidence, p. 426), is a fisherman at Kirkwall; was born and lived in Fair Isle until 1869; left because he expected to be evicted; prices were too high in Fair Isle, 16,659.

WILSON, Thomas (analysis of his evidence, p. 424), weaver at Kirkwall; born in Fair Isle, and lived there until lately; population about 30 or 40 families; they live chiefly by fishing, and that principally in the summer; have always been bound to deliver their fish to proprietor; men were settled with yearly, and never could get cash; previously prices at store were much higher than charged by hawkers who came to the island, 16,656.

WINTER Fishing, 7212, 7802, 8033, 8815, 8847, 8904, 9328, 9887, 10,001, 10,062, 10,083, 10,633, 10,773, 11,312, 11,703, 12,279, 12,478, 12,764, 12,879. -Possibility of extending.

WINWICK, Catherine (analysis of her evidence, p. 1), knits for Mr. Linklater, 2; uses his wool, 5; and is paid for her knitting, 7; partly in money, partly in goods, 8; price fixed by merchant, 9; keeps no passbook, 12; does not think she could have got payment entirely in money, but never tried, 15; is always content, 19; only needs money for rent or provisions, 20; always got whatever money she asked, 22; but would have liked more, 29; knits a shawl in about a month, 31; gets 10s. in money and goods, 33; wool usually supplied, and women paid for the knitting, 44-46; dealers will not sanction any other arrangement, 60.

WOOD, John (analysis of his evidence, p. 203), is a fisherman at Muckle Roe, 8360; to Mr. Inkster, 8361; corroborates Gideon Williamson (p. 202), 8363; men's debts usually transferred to new merchant, 8373.

WOOL and worsted, 449, 1154, 1423, 1515, 1571, 1671, 1717, 1890, 1955, 2288, 2463, 2752, 2783, 2897, 3087, 3188, 3269, 3486, 6462, 7317, 8486, 8897, 9058, 9412, 9547, 9715, 9723, 9734, 10,183, 11,507, 11,571, 13,815, 14,005, 14,053, 15,396, 15,921, 16,043, 16,116.

WORSTED a ready-money article, 449, 1720, 11,545, 11,579.

YOUNG, Charles (analysis of his evidence, p. 143), fisherman at Stenness, 5773; holds no land, 5775; goes to home fishing, 5777; deals with merchant, 5789; can get advances of money during season, 5791; meal, 5799; goods as good and cheap at merchant's store as at any other shop, 5801; not bound to fish, 5804; would like price fixed at beginning of season, 5814; but thinks there might be some difficulty in getting fishermen to abide by their bargain, 5819; men in debt to curer expected to fish for him, 5829.